SUPPLEMENT NO. 7
May 2025

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-64, enacted November 13, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19	SH:19—SH:21
CD2:95—CD2:100	CD2:95—CD2:101
CD4:1—CD4:8.3	CD4:1—CD4:8.4
CD5:1—CD5:3	CD5:1—CD5:4
CD5:5—CD5:10.1	CD5:5—CD5:10.3
CD5:53	CD5:53—CD5:71
CD8:3—CD8:9	CD8:3—CD8:9
CD12:1—CD12:4	CD12:1—CD12:4
CD12:34.1—CD12:42	CD12:35—CD12:43
CD13:1—CD13:3	CD13:1—CD13:3
CD13:5—CD13:10	CD13:5—CD13:10.1
CD13:29	CD13:29—CD13:31
CD14:7, CD14:8	CD14:7—CD14:8.1
CD14:101, CD14:102	CD14:101—CD14:104
CD15:1—CD15:10	CD15:1—CD15:10
CD15:39, CD15:40	CD15:39—CD15:41
CD17:1—CD17:6	CD17:1—CD17:6
CD17:30.1—CD17:32	CD17:31—CD17:32.1
CD21:8.1	CD21:8.1
CD21:155	CD21:155, CD21:156
CD23:5	CD23:5
CD23:43—CD23:56	CD23:43—CD23:57
CCT:91, CCT:92	CCT:91—CCT:93
CDi:1—CDi:116	CDi:1—CDi:122

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 6, REVISION
January 2024

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement No. 6, Revision, is printed to revise pages appearing in Supplement No. 6, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
ix—xi	ix—xi
CHT:59—CHT:62.1	CHT:59—CHT:62.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 6
December 2023

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-9, enacted May 22, 2023.

See the Code Comparative Table for further information.

Included in the Charter is:

Resolution No. 300, adopted July 28, 2022.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:17, SH:18	SH:17—SH:19
CHT:3—CHT:16	CHT:3—CHT:16.1
CHT:23—CHT:30	CHT:23—CHT:30
CHT:57—CHT:62	CHT:57—CHT:62.1
CHT:67—CHT:74	CHT:67—CHT:74.2
CHTCT:1, CHTCT:2	CHTCT:1, CHTCT:2
CD15:3, CD15:4	CD15:3, CD15:4
CD15:37	CD15:37—CD15:40
CD16:13—CD16:16	CD16:13—CD16:16.1
CD16:23—CD16:28.1	CD16:23—CD16:28.1
CD17:11—CD17:12.1	CD17:11—CD17:12.1
CD18:1, CD18:2	CD18:1, CD18:2
CD18:7, CD18:8	CD18:7—CD18:8.1
CD21:29, CD21:30	CD21:29—CD21:30.1
CDC:53	CDC:53
CDC:55	CDC:55
CCT:91, CCT:92	CCT:91, CCT:92
CHTi:11, CHTi:12	CHTi:11, CHTi:12
CDi:27, CDi:28	CDi:27—CDi:28.1
CDi:63, CDi:64	CDi:63, CDi:64

Remove Old Pages	*Insert New Pages*
CDi:81, CDi:82	CDi:81, CDi:82
CDi:105, CDi:106	CDi:105—CDi:106.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 5
March 2023

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-40, enacted September 7, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
vii	vii, viii
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:13	SH:13—SH:18
CD2:1—CD2:11	CD2:1—CD2:11
CD2:16.1—CD2:18	CD2:17—CD2:18.2
CD2:35—CD2:40	CD2:35—CD2:40.3
CD2:49, CD2:50	CD2:49
CD2:65, CD2:66	CD2:65—CD2:66.3
CD2:95—CD2:102	CD2:95—CD2:100
CD2:119—CD2:124.1	CD2:119—CD2:124.3
CD5:1—CD5:3	CD5:1—CD5:3
CD5:9, CD5:10	CD5:9—CD5:10.1
CD8:5, CD8:6	CD8:5—CD8:6.1
CD11:3—CD11:4.4	CD11:3—CD11:4.4
CD12:1—CD12:4	CD12:1—CD12:4
CD12:13, CD12:14	CD12:13—CD12:14.3
CD12:23—CD12:30	CD12:23—CD12:30.1
CD13:3	CD13:3
CD13:25, CD13:26	CD13:25—CD13:29
CD14:7, CD14:8	CD14:7, CD14:8
CD14:43—CD14:46	CD14:43—CD14:46.1
CD14:87—CD14:92	CD14:87—CD14:92.1
CD14:101	CD14:101, CD14:102
CD15:1—CD15:14.2	CD15:1—CD15:14.1
CD16:3, CD16:4	CD16:3, CD16:4

Remove Old Pages	*Insert New Pages*
CD16:23—CD16:28	CD16:23—CD16:28.1
CD16:35—CD16:42.2	CD16:35—CD16:42.2
CD17:79—CD17:80.1	CD17:79—CD17:80.1
CD17:89, CD17:90	CD17:89—CD17:90.1
CD21:1—CD21:8	CD21:1—CD21:8.1
CD21:19, CD21:20	CD21:19—CD21:20.3
CD21:39—CD21:48	CD21:39—CD21:48.9
CD21:61, CD21:62	CD21:61, CD21:62
CD21:97—CD21:100	CD21:97—CD21:100.1
CD21:139, CD21:140	CD21:139—CD21:155
CD23:5	CD23:5
CD23:17, CD23:18	CD23:17—CD23:18.1
CD23:45, CD23:46	CD23:45—CD23:56
CDC:11	CDC:11
CDC:55	CDC:55
CCT:91	CCT:91, CCT:92
CDi:5, CDi:6	CDi:5, CDi:6
CDi:11, CDi:12	CDi:11, CDi:12
CDi:15, CDi:16	CDi:15—CDi:16.1
CDi:23—CDi:26	CDi:23—CDi:26
CDi:34.1—CDi:36	CDi:35—CDi:36.1
CDi:51—CDi:58	CDi:51—CDi:58.2
CDi:61, CDi:62	CDi:61, CDi:62
CDi:67, CDi:68	CDi:67—CDi:68.1
CDi:86.1	CDi:86.1, CDi:86.2
CDi:95, CDi:96	CDi:95—CDi:96.1
CDi:99—CDi:102.1	CDi:99—CDi:102.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 4
July 2019

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-78, enacted December 7, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11—SH:13
CD2:1—CD2:2.1	CD2:1—CD2:2.1
CD2:15, CD2:16	CD2:15—CD2:16.1
CD2:57, CD2:58	CD2:57—CD2:58.1
CD4:1, CD4:2	CD4:1, CD4:2
CD4:7—CD4:8.1	CD4:7—CD4:8.3
CD12:31—CD12:34.1	CD12:31—CD12:34.1
CD13:1—CD13:3	CD13:1—CD13:3
CD13:9—CD13:14	CD13:9—CD13:14.1
CD15:1—CD15:4	CD15:1—CD15:4
CD15:13—CD15:14.1	CD15:13—CD15:14.2
CD16:19—CD16:32	CD16:19—CD16:32.2
CD17:79, CD17:80	CD17:79—CD17:80.1
CD17:89, CD17:90	CD17:89, CD17:90
CD18½:3—CD18½:8	CD18½:3—CD18½:8
CD21:7, CD21:8	CD21:7, CD21:8
CD21:117—CD21:120	CD21:117—CD21:120.1
CD23:5	CD23:5
CD23:41—CD23:44	CD23:41—CD23:46
CD27:i—CD27:288	CD27:1
CDB:7, CDB:8	CDB:7, CDB:8
CDC:11	CDC:11
CDC:53	CDC:53
	CDC:55
CCT:89, CCT:90	CCT:89—CCT:91

Remove Old Pages	*Insert New Pages*
CDi:1—CDi:6.1	CDi:1—CDi:6
CDi:12.1—CDi:14	CDi:13—CDi:14.1
CDi:23, CDi:24	CDi:23, CDi:24
CDi:52.1—CDi:54	CDi:53—CDi:54.1
CDi:61—CDi:68	CDi:61—CDi:68
CDi:77—CDi:80	CDi:77—CDi:80
CDi:97—CDi:102.1	CDi:97—CDi:102.1
CDi:107, CDi:108	CDi:107, CDi:108
CDi:115—CDi:128	CDi:115, CDi:116

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 3
April 2018

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-50, enacted November 7, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9—SH:11
CD4:1, CD4:2	CD4:1, CD4:2
CD4:7, CD4:8	CD4:7—CD4:8.1
CD11:1	CD11:1
CD11:3, CD11:4	CD11:3—CD11:4.4
CD14:7, CD14:8	CD14:7, CD14:8
CD14:99	CD14:99—CD14:101
CD15:1—CD15:4	CD15:1—CD15:4
CD15:13, CD15:14	CD15:13—CD15:14.1
CD15:25—CD15:36	CD15:25—CD15:37
CD16:3, CD16:4	CD16:3, CD16:4
CD16:41, CD16:42	CD16:41—CD16:42.2
CD16:49—CD16:58	CD16:49—CD16:61
CD18½:1—CD18½:8	CD18½:1
	CD18½:3—CD18½:22
CD21:3, CD21:4	CD21:3—CD21:4.1
CD21:39, CD21:40	CD21:39, CD21:40
CD23:1, CD23:2	CD23:1, CD23:2
CD23:20.1—CD23:22	CD23:21—CD23:22.3
CD27:i—CD27:v	CD27:i—CD27:v
CD27:9—CD27:26	CD27:9—CD27:26
CD27:41, CD27:42	CD27:41, CD27:42
CD27:47—CD27:50	CD27:47—CD27:50
CD27:53—CD27:74	CD27:53—CD27:74.1
CD27:79—CD27:84	CD27:79—CD27:84

Remove Old Pages	*Insert New Pages*
CD27:107—CD27:114	CD27:107—CD27:114
CD27:123, CD27:124	CD27:123, CD27:124
CD27:135, CD27:136	CD27:135, CD27:136
CD27:141—CD27:144.1	CD27:141—CD27:144
CD27:153—CD27:164	CD27:153—CD27:164.1
CD27:169, CD27:170	CD27:169—CD27:170.1
CD27:201, CD27:202	CD27:201—CD27:202.1
CD27:229—CD27:236	CD27:229—CD27:236
CD27:241—CD27:258	CD27:241—CD27:258.1
CD27:275—CD27:278	CD27:275—CD27:278
CD27:280.1—CD27:284	CD27:281—CD27:284.1
CDB:7, CDB:8	CDB:7, CDB:8
CCT:89	CCT:89, CCT:90
CDi:5, CDi:6	CDi:5—CDi:6.1
CDi:25—CDi:28	CDi:25—CDi:28
CDi:32.1—CDi:34	CDi:33—CDi:34.1
CDi:49, CDi:50	CDi:49, CDi:50
CDi:56.1—CDi:64	CDi:57—CDi:64.1
CDi:75—CDi:78	CDi:75—CDi:78
CDi:83, CDi:84	CDi:83, CDi:84
CDi:91—CDi:94	CDi:91—CDi:94
CDi:99, CDi:100	CDi:99, CDi:100
CDi:105, CDi:106	CDi:105, CDi:106

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 2
July 2017

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-52, enacted December 12, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title Page	Title Page
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
CD2:1, CD2:2	CD2:1—CD2:2.1
CD2:9—CD2:11	CD2:9—CD2:11
CD2:15, CD2:16	CD2:15, CD2:16
CD2:121—CD2:124	CD2:121—CD2:124.1
CD9:3	CD9:3
CD9:23—CD9:29	CD9:23—CD9:30
CD12:21—CD12:24	CD12:21—CD12:24.1
CD14:3—CD14:8	CD14:3—CD14:8
CD14:37—CD14:40	CD14:37—CD14:40.2
CD16:51—CD16:54	CD16:51—CD16:54
CD17:47, CD17:48	CD17:47, CD17:48
CD21:131—CD21:140	CD21:131—CD21:140
CD23:1, CD23:2	CD23:1, CD23:2
CD23:11—CD23:14	CD23:11—CD23:14.1
CD27:33—CD27:42	CD27:33—CD27:42
CD27:53—CD27:58	CD27:53—CD27:58
CD27:119, CD27:120	CD27:119—CD27:120.1
CD27:135, CD27:136	CD27:135, CD27:136
CD27:141—CD27:144	CD27:141—CD27:144.1
CD27:153, CD27:154	CD27:153, CD27:154
CD27:179—CD27:190	CD27:179—CD27:190.1
CD27:227—CD27:230	CD27:227—CD27:230
CD27:245, CD27:246	CD27:245, CD27:246

Remove Old Pages	*Insert New Pages*
CD27:279, CD27:280	CD27:279—CD27:280.1
CDB:7	CDB:7, CDB:8
CDC:25	CDC:25
CDC:53	CDC:53
CCT:87, CCT:88	CCT:87—CCT:89
CDi:29, CDi:30	CDi:29, CDi:30
CDi:39—CDi:42	CDi:39—CDi:42.1
CDi:55, CDi:56	CDi:55—CDi:56.1
CDi:65, CDi:66	CDi:65, CDi:66
CDi:99, CDi:100	CDi:99, CDi:100

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 1
June 2016

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-64, enacted December 28, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7—SH:9
CD5:3—CD5:10	CD5:3 CD5:5—CD5:10
CD5:41, CD5:42	CD5:41—CD5:53
CD12:15—CD12:22	CD12:15—CD12:22.1
CD12:27—CD12:34	CD12:27—CD12:34.1
CD14:3—CD14:8	CD14:3—CD14:8
CD14:47—CD14:56	CD14:47—CD14:54
CD15:3, CD15:4	CD15:3, CD15:4
CD15:25—CD15:28	CD15:25—CD15:28.1
CD15:35	CD15:35, CD15:36
CD16:19—CD16:22	CD16:19—CD16:22.1
CD17:5, CD17:6	CD17:5, CD17:6
CD17:11, CD17:12	CD17:11—CD17:12.1
CD17:19—CD17:30	CD17:19—CD17:30.1
CD17:59—CD17:99	CD17:59—CD17:100
CD21:7—CD21:10	CD21:7—CD21:10.1
CD21:121, CD21:122	CD21:121—CD21:140
CD23:19, CD23:20	CD23:19—CD23:20.1
CD27:i—CD27:v	CD27:i—CD27:v
CD27:5—CD27:32	CD27:5—CD27:26
CD27:41, CD27:42	CD27:41, CD27:42
CD27:51—CD27:60	CD27:51—CD27:60.1
CD27:81—CD27:84	CD27:81—CD27:84
CD27:103—CD27:118	CD27:103—CD27:114
CD27:123—CD27:128	CD27:123—CD27:128

Remove Old Pages	*Insert New Pages*
CD27:135, CD27:136	CD27:135, CD27:136
CD27:143—CD27:146	CD27:143—CD27:146.1
CD27:153—CD27:156	CD27:153—CD27:156
CD27:169—CD27:194	CD27:169—CD27:194
CD27:227—CD27:230	CD27:227—CD27:230
CD27:253—CD27:264	CD27:253—CD27:264.1
CD27:271—CD27:276	CD27:271—CD27:276
CDB:7	CDB:7
CDC:53	CDC:53
CCT:85, CCT:86	CCT:85—CCT:88
CDi:1, CDi:2	CDi:1, CDi:2
CDi:11, CDi:12	CDi:11—CDi:12.1
CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:31, CDi:32	CDi:31—CDi:32.1
CDi:41—CDi:52	CDi:41—CDi:52.1
CDi:57—CDi:68	CDi:57—CDi:68
CDi:75—CDi:78	CDi:75—CDi:78
CDi:85, CDi:86	CDi:85—CDi:86.1
CDi:93, CDi:94	CDi:93, CDi:94
CDi:99—CDi:102	CDi:99—CDi:102.1
CDi:111, CDi:112	CDi:111—CDi:112.1
CDi:123—CDi:126	CDi:123—CDi:126

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

REPUBLICATION
October 2015

CODE OF ORDINANCES

City of

PROVIDENCE, RHODE ISLAND

REPUBLICATION

This copy of the Providence, Rhode Island Code is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Chapter No. 2014-56, adopted December 11, 2014. See the Code Comparative Table for further information.

This copy replaces all existing copies of the Code as published through Supplement No. 83. Future supplements will commence with "Supplement No. 1."

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

CODE OF ORDINANCES

OF THE
CITY OF

PROVIDENCE, RHODE ISLAND

CONTAINING
THE CHARTER LAWS
and
THE GENERAL ORDINANCES AND RESOLUTIONS
OF THE CITY

ADOPTED, OCTOBER 17, 1968
EFFECTIVE, OCTOBER 21, 1968

PUBLISHED OCTOBER 1968 BY ORDER OF THE MAYOR AND CITY COUNCIL
REPUBLISHED OCTOBER 2015 BY ORDER OF THE MAYOR AND CITY COUNCIL

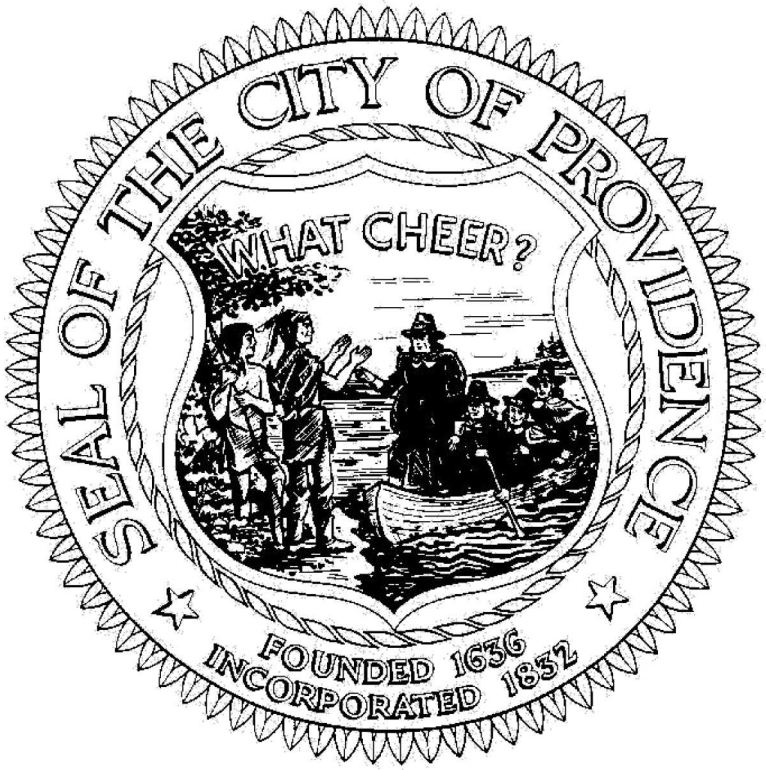


info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

Dedicated to Honorable Joseph A. Doorley, Jr., Mayor of the City of Providence, Rhode Island, and to the Members of the City Council, 1967-1970, who honored me with their confidence.

Vincent Vespia

City Clerk of Providence, Rhode Island



CITY OF PROVIDENCE
RHODE ISLAND

Mayor
Joseph A. Doorley, Jr.

City Clerk
Clerk of Council
Clerk of Committees
Vincent Vespia

CITY COUNCIL

Councilmen

Council President
Russell J. Boyle

Council President Pro Tempore
Jerry Lorenzo

Majority Leader
Joseph P. McNulty

Deputy Majority Leader
Charles A. Pisaturo

Minority Leader
Thomas W. Pearlman

Deputy Minority Leader
Richard D. Worrell

Salvatore A. Beatini
William G. Bradshaw
Frank Caprio
Raymond Cola
Raymond J. Devitt, Jr.
Edward S. Goldin
Sanford H. Gorodetsky
Joseph P. Hassett*
Robert J. Haxton
Michael E. Kelly
Robert F. Lynch
Louis A. Mascia
Donald E. McKiernan
Peter C. Moran
John M. Murphy
William J. Murphy
Thomas L. Payne
Joseph F. Prete
Anthony B. Sciarretta
Edmund Wexler

---

*Resigned August 30, 1968

CURRENT OFFICIALS
of the
CITY OF PROVIDENCE
RHODE ISLAND

Council President
Councilor Rachel M. Miller

Council President Pro Tempore
Councilor Juan M. Pichardo

Majority Leader
Councilman James E. Taylor

Senior Deputy Majority Leader
Councilman John Goncalves

Deputy Majority Leader
Councilwoman Mary Kay Harris

Majority Whip
Councilor Miguel A. Sanchez

Council Members
Councilor Sue R. AnderBois
Councilwoman Helen D. Anthony
Councilman Pedro J. Espinal
Councilwoman Althea A. Graves
Councilwoman Shelley T. Peterson
Councilor Justin M. Roias
Councilwoman Jo-Ann Ryan
Councilwoman Ana S. Vargas
Councilman Oscar O. Vargas

Mayor
Brett P. Smiley

City Clerk
Clerk of Council
Clerk of Committees
Tina L. Mastroianni

PREFACE

This publication is a reprinting and updating of the Code of Ordinances for the City of Providence, Rhode Island. It contains ordinances and resolutions of a general and permanent nature as adopted by the City Council of the City of Providence in 1968 and subsequent revisions and amendments thereto through and including Ord. 2014, Ch. 2014-57.

Part I of this volume contains the Charter Laws of the City of Providence, Rhode Island, as amended, followed by a disposition table giving the disposition of each Act of a general and permanent nature, included in Part I. Part II contains the Code of Ordinances of the City of Providence, being a revision and codification of the ordinances and resolutions of a general and permanent nature of the City of Providence, and the ordinances and resolutions amendatory thereof and appropriate for inclusion. Attention is also invited to the Code Appendix immediately following Part II, which at the time of this codification includes the following: Appendix A, "Will of Marshal H. Gould"; Appendix B, "Ordinances Approving and Adopting Redevelopment Plans"; Appendix C, "Table of Bond Issues Outstanding"; and Appendix D, "Public Laws Relating to the City." Following the Appendices is a comparative table of the ordinances and resolutions included in Part II of this publication and their disposition.

Part II is the Code of Ordinances, and as expressed in the Adopting Ordinance, supersedes all ordinances and resolutions not included herein or expressly saved from repeal by the adopting ordinance. Special ordinances or resolutions or those dealing with only a portion of the inhabitants of the city, rather than all of them, or relating to special purposes, such as ordinances levying special assessments, providing for bond issues, paving, vacating and opening specified streets, changing street names, granting franchises, etc., are not included herein. For a more specific enumeration of the types of ordinances or resolutions which are not included in Part II, see Section 3 of the Adopting Ordinance.

The chapters have been arranged in alphabetical sequence and the various sections within each chapter have been catchlined to facilitate usage. In addition footnotes tie related sections of the Code together and direct reference to relevant state laws.

The source of a section is included in the history note enclosed in parentheses at the end of a section. The absence of a history note indicates that the section was adopted for the first time with the adoption of this Code.

New chapters may be included by the addition of a fraction after the chapter number, e.g., new material may be included between Chapters 12 and 13, by designating it as Chapter 12½. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same manner, or in the case of articles, may be placed at the end of the chapter embracing the subject, and in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division, as the case may be.

A special feature of this volume to which the attention of the user is particularly invited is the loose-leaf system of binding and supplemental servicing for the Code. With this loose-leaf system, this volume may be kept up-to-date periodically. Acts of the State Legislature which amend the Charter or pertain to the City can be inserted after reprinting the pages affected, adding new pages or deleting pages in case of repeal. Likewise, amendatory ordinances, upon final passage by the City, can be edited and the page or pages affected reprinted for insertion in the Code. In such event, the new or reprinted pages then shall be distributed to the holders of the Codes with instructions for the manner of inserting the new pages and deleting the obsolete pages. To each amendment will be attached an amendment or editorial note explaining briefly the effect of the amendment upon the section or sections amended and the derivation of such amendment. Each such subsequent amendment when incorporated into this Code, may be cited as a part hereof as provided in Section 5 of the Adopting Ordinance.

Each index entry has been placed under several headings, some being couched in lay phraseology, others in legal terminology, and still others in language generally used by city officials and employees. There are numerous cross references within the index itself which are intended as guideposts to direct the user to the particular item in which he is interested. Additions, alterations and deletions in the index will be accomplished in the same manner as is provided for additions, alterations and deletions to the substantive provisions of this publication.

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the

Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER	CHT:1
CHARTER COMPARATIVE TABLE	CHTCT:1
CODE	CD1:1
CODE APPENDIX	CDA:1
	CDB:1
CODE COMPARATIVE TABLE	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
CHARTER INDEX	CHTi:1
CODE INDEX	CDi:1

The successful maintenance of this Code and keeping it up-to-date at all times depends largely upon the holder of the volume. As revised sheets are received it shall then become the responsibility of the holder to insert the amendments according to the accompanying instructions. It is earnestly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacement, and that all deleted pages be saved and filed for historical reference purposes.

The publishers are most grateful to Ms. Tina L. Mastroianni, City Clerk, for her cooperation and assistance, and for the interest shown by her in the preparation of the manuscript of this publication. Credit is gratefully acknowledged also to the members of the publisher's staff for their sincere interest and able assistance throughout this project.

This republication was under the direct supervision of Connie Hamilton, Editor, and Karyl Rivers, Proofreader, of the editorial staff of Municipal Code Corporation, Tallahassee, Florida, and is presented for the use and benefit of the citizens of the City of Providence, Rhode Island.

MUNICIPAL CODE CORPORATION
Tallahassee, Florida

October 2015

CITY OF PROVIDENCE

STATE OF RHODE ISLAND AND PROVIDENCE

PLANTATIONS

No. 421 CHAPTER NO. 68-63

An Ordinance Adopting and Enacting a New Code of Ordinances of the City of Providence, Rhode Island; Establishing the Same; Providing for the Repeal of Certain Ordinances Not Included Therein, Except as Herein Expressly Provided; Providing for the Manner of Amending Such Code of Ordinances; Providing a Penalty for the Violation Thereof; and Providing When This Ordinance Shall Become Effective.

APPROVED October 21, 1968

Be It Ordained by the City of Providence, Rhode Island, and it is Hereby Ordained by Authority of the Same:

Section 1. That the Code of Ordinances, consisting of Chapters 1 to 27, each inclusive, is hereby adopted and enacted as the "Code of Ordinances of the City of Providence, Rhode Island," and shall be treated and considered as a new and original comprehensive ordinance which shall supersede all other general and permanent ordinances of the City passed on or before December 16, 1966, to the extent provided in Section 2 hereof.

Section 2. That all provisions of such Code shall be in full force and effect from and after the 21st day of October, 1968 and all ordinances of a general and permanent nature of the City of Providence, enacted on final passage on or before December 16, 1966, and not included in such Code or recognized and continued in force by reference therein are hereby repealed from and after the 21st day of October, 1968, except as hereinafter provided. No resolution of the city not specifically mentioned, is hereby repealed.

Section 3. That the repeal provided for in Section 2 hereof shall not affect the following:

(a) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this ordinance;

(b) Any ordinance promising or guaranteeing the payment of money for the City, or authorizing the issuance of any bonds of the City or any evidence of the City's indebtedness, or any contract or obligation assumed by the City;

(c) Any administrative ordinances of the City, not in conflict or inconsistent with the provisions of such Code;

(d) Any ordinance fixing salaries of officers or employees of the City;

(e) Any appropriation ordinance;

(f) Any right or franchise granted by the Common Council of the City to any person, firm or corporation;

(g) Any ordinance dedicating, naming, establishing, locating, relocating, opening, closing, paving, widening, vacating, etc., any street or public way in the City;

(h) Any ordinance establishing and prescribing the street grades of any street in the City;

(i) Any ordinance providing for local improvements or assessing taxes therefor;

(j) Any ordinance dedicating or accepting any plat or subdivision in the City, or providing regulations for the same;

(k) Any ordinance annexing property to the City;

(l) Any zoning ordinance of the City;

(m) Any ordinance regulating the erection, alteration, repair, demolition, moving or removal of buildings or other structures, including particularly the Building Ordinance of the City of Providence, Chapter 1079 of 1956, as amended;

(n) Any ordinance prescribing traffic regulations for specific locations, prescribing through streets, parking limitations, parking prohibitions, one-way traffic, limitations on loads of vehicles or loading zones, not inconsistent with such Code;

(o) Any ordinance fixing utility rates and charges;

(p) Any ordinance approving a redevelopment area;

(q) Any ordinance enacted after December 16, 1966;

nor shall such repeal be construed to revive any ordinance or part of an ordinance which is repealed by this ordinance.

Section 4. That whenever in such Code an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in such Code the doing of any act is required or the failure to do any act is declared to be unlawful, and no specific penalty is provided therefor, the violation of any such provisions of such Code shall be punished as provided in Section 1-10 of such Code.

Section 5. That any and all additions and amendments to such Code when passed in such form as to indicate an intention to make the same a part thereof shall be deemed to be incorporated in such Code so that reference to the "Code of Ordinances of the City of Providence, Rhode Island," shall be understood and intended to include such additions and amendments.

Section 6. That in case of amendment of any section of such Code for which a penalty is not provided, the general penalty as provided in Section 1-10 of such Code shall apply to the section as amended; or in case such amendment contains provisions for which a penalty, other than the aforementioned general penalty is provided in such other section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Section 7. That a copy of such Code shall be kept on file in the office of the City Clerk, preserved in loose-leaf form or in such other form as the City Clerk may consider most expedient. It shall be the express duty of the City Clerk, or someone authorized by him, to insert in their designated places all amendments and all ordinances or resolutions which indicate the intention of the Mayor and Council to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such Code all provisions which from time to time may be repealed by the Mayor and Council. This Copy of such Code shall be available for all persons desiring to examine the same.

Section 8. That it shall be unlawful for any person to change or alter by additions or deletions, any part or portion of such Code, or to insert or delete pages or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of Providence to be misrepresented thereby. Any person violating this section shall be punished as provided in Section 1-10 of the "Code of Ordinances of the City of Providence, Rhode Island".

Section 9. That all ordinances or parts of ordinances in conflict herewith, are to the extent of such conflict hereby repealed.

Section 10. That this ordinance shall become effective on the 21st day of October, 1968.

PASSED, APPROVED AND ADOPTED BY THE CITY COUNCIL on this 17th day of October, 1968.

APPROVED BY THE MAYOR on the 21st day of October, 1968.

(SEAL)

A TRUE COPY,
ATTEST:

/s/ JOSEPH A. DOORLEY, JR.
Mayor

/s/ VINCENT VESPIA
City Clerk

A true copy,
Attest:

/s/ VINCENT VESPIA
City Clerk

CERTIFICATE

I, Vincent Vespia, City Clerk, do hereby certify that the above and foregoing is a true and correct copy of that certain ordinance of like tenor and effect, passed on the 21st day of October, 1968, by the Council of the City of Providence, Rhode Island, and approved by the Mayor of said City, and as now appears duly recorded in the Journal of proceedings of the said Council, No. 41, in the Department of the City Clerk.

IN WITNESS WHEREOF, I have hereunto affixed my signature the 21st day of October, 1968.

VINCENT VESPIA
City Clerk

TABLE OF CONTENTS

Page

List of Officials at Time of Publication v

List of Current Officials vii

Preface ix

Adopting Ordinance xiii

Checklist of Up-to-Date Pages ..... [1]

Supplement History Table SH:1

PART I

HOME RULE CHARTER

Home Rule Charter CHT:1

Charter Comparative Table CHTCT:1

PART II

CODE OF ORDINANCES

1. General Provisions CD1:1

2. Administration CD2:1
   - Art. I. In General CD2:13
   - Art. II. Mayor and Council CD2:38
   - Art. III. City Clerk CD2:49
   - Art. IV. City Treasurer CD2:52
   - Art. V. City Controller CD2:55
   - Art. VI. City Solicitor CD2:57
   - Art. VI½. Department of Public Property CD2:58.1
   - Art. VII. Department of Public Works CD2:61
   - Art. VII½. Department of Communication CD2:63
   - Art. VIII. City Engineer CD2:64
   - Art. VIII½. Office of Sustainability CD2:66
   - Art. IX. Traffic Engineering Department CD2:66.3
   - Art. IX½. Department of Planning and Urban Development CD2:69
   - Art. X. City Sergeant and City Messenger CD2:73
   - Art. XI. Superintendent of Public Buildings CD2:75
   - Art. XII. Superintendent of Weights and Measures CD2:76
   - Art. XIII. Superintendent of Vehicles CD2:77

Chapter		Page
	Art. XIV. Public Service Engineer	CD2:78
	Art. XV. City Plan Commission	CD2:79
	Art. XV½. Community Mental Health Board	CD2:84
	Art. XVI. Lobbyist Registration	CD2:85
	Art. XVII. Industrial Commission	CD2:91
	Art. XVIII. Inspection of Payroll Lists	CD2:92
	Art. XIX. Elections	CD2:93
	Art. XX. Flags and Colors	CD2:103
	Art. XXI. Municipal Seals	CD2:109
	Art. XXII. Art in City Life	CD2:116
	Art. XXIII. Capital Center	CD2:120
	Art. XXIV. Juvenile Hearing Board	CD2:123
	Art. XXV. Truancy Board	CD2:124.3
	Art. XXVI. Conservation Commission	CD2:127
	Art. XXVII. Prohibition of Awarding Public Contracts to Certain Campaign Contributors	CD2:129
	Art. XXVIII. Economic Development Planning Commission	CD2:133
3.	Advertising	CD3:1
4.	Animals and Fowl	CD4:1
	Art. I. In General	CD4:3
	Art. II. Dogs	CD4:7
	Art. III. Control of Dogs and Other Animals	CD4:10
5.	Buildings and Structural Appurtenances	CD5:1
	Art. I. In General	CD5:5
	Art. II. Convalescent and Nursing Homes and Similar Establishments	CD5:10.2
	Art. III. Stables	CD5:12
	Art. IV. Fences	CD5:14
	Art. V. Construction in Fire Limits	CD5:17
	Art. VI. Post-Construction Stormwater Control	CD5:23
	Art. VII. Soil Erosion and Sediment Control	CD5:29
	Art. VIII. In-Building Public Safety Radio System Coverage and Obstruction to Fixed Point-to-Point Microwave Network	CD5:38
	Art. IX. Special Flood Hazard Areas	CD5:42
	Art. X. Building Energy Reporting Program	CD5:53
	Art. XI. Energy Efficiency and Carbon Neutral Goals for Municipal Buildings	CD5:60

Chapter		Page
	Art. XII. Greenhouse Gas Emissions Reduction Targets in Buildings	CD5:65
6.	Cemeteries	CD6:1
	Art. I. In General	CD6:3
	Art. II. North Burial Ground	CD6:4
7.	Emergency Management	CD7:1
8.	Courts	CD8:1
	Art. I. In General	CD8:3
	Art. II. Housing Court	CD8:5
9.	Fire Prevention and Protection	CD9:1
	Art. I. In General	CD9:5
	Art. I½. Fire Prevention Code	CD9:7
	Art. II. Bureau of Fire Prevention	CD9:8
	Art. III. Explosives and Inflammables	CD9:15
	Art. IV. Connection of Private Alarm Systems with City System	CD9:25
	Art. V. Charges for Emergency Medical Services.	CD9:29
10.	Food and Food Products	CD10:1
	Art. I. In General	CD10:5
	Art. II. Food Establishments	CD10:7
	Art. III. Milk and Milk Products	CD10:15
	Art. IV. Frozen Desserts	CD10:19
	Art. V. Slaughtering Poultry	CD10:31
11.	Harbor and Port	CD11:1
12.	Health and Sanitation	CD12:1
	Art. I. In General	CD12:5
	Art. II. Relief of the Poor	CD12:14.2
	Art. III. Garbage, Trash and Refuse	CD12:15
	Art. IV. Privies and Cesspools	CD12:34
	Art. V. Rat and Vermin Control	CD12:35
	Art. VI. Stagnant Water	CD12:40
13.	Housing	CD13:1
	Art. I. In General	CD13:5
	Art. II. Minimum Housing Standards	CD13:6
	Art. III. Affordable Housing Trust Fund	CD13:9
	Art. IV. Residential Owner-Occupied Mortgage Foreclosure Intervention	CD13:10
	Art. V. Notice of Foreclosure to Bona Fide Tenants of Rental Residential Property	CD13:14

Chapter		Page
	Art. VI. Housing Board of Review	CD13:14.1
	Art. VII. Abandoned Property Registration, Security and Maintenance	CD13:19
	Art. VIII. Security Housing Developments for Elderly Persons and Persons with Disabilities	CD13:26
	Art. IX. Multi-Unit Dwellings	CD13:29
14.	Licenses	CD14:1
	Art. I. In General	CD14:9
	Art. II. Auctions and Auctioneers	CD14:22
	Art. III. Bootblacks and Newsboys	CD14:25
	Art. IV. Commercial Parking Lots	CD14:27
	Art. V. Engineers and Boiler Operators	CD14:33
	Art. VI. Intelligence Offices	CD14:40.1
	Art. VII. Junk and Secondhand Dealers	CD14:41
	Art. VIII. Pawnbrokers	CD14:46
	Art. IX. Vendors	CD14:47
	Art. X. Shows and Other Amusements	CD14:53
	Div. 1. License Required	CD14:53
	Div. 2. Billiard Parlors, Poolrooms, Bowling Alleys, Shooting Galleries and Amusement Centers	CD14:62
	Div. 3. Trampolines	CD14:65
	Div. 4. Commercial Establishments Where Alcoholic Beverages are Offered for Sale	CD14:67
	Art. XI. Registration and Licensing of Bicycles	CD14:72
	Art. XII. Body Works Services	CD14:79
	Art. XIII. Motor Vehicle Repair Business	CD14:89
	Art. XIV. Valet Parking	CD14:92
	Art. XV. Tobacco Dealers	CD14:94
	Art. XVI. Management and Operations	CD14:99
	Art. XVII. Neighborhood Events	CD14:102
	Art. XVIII. Short-Term Lenders	CD14:103
15.	Motor Vehicles and Traffic	CD15:1
	Art. I. In General	CD15:5
	Art. II. Impoundment of Vehicles	CD15:13
	Art. III. Storage of Dismantled, Junked or Abandoned Vehicles	CD15:19
	Art. IV. Bus Lanes	CD15:21
	Art. V. Bicycles	CD15:23

Chapter		Page
	Art. VI. Municipal Garage	CD15:24
	Art. VII. Snowmobiles and Recreational Off-Road Vehicles	CD15:26
	Art. VIII. Reasonable Speeds	CD15:29
	Art. IX. Fire Lanes	CD15:30
	Art. X. Automated Red Light Enforcement	CD15:31
	Art. XI. Motorized Vehicles	CD15:35
	Art. XII. Weight Limits	CD15:40
16.	Offenses and Miscellaneous Provisions	CD16:1
	Art. I. In General	CD16:5
	Art. II. Discrimination	CD16:22
	Art. III. Noise Control	CD16:42.2
	Art. IV. Security Alarm Systems	CD16:49
	Art. V. Graffiti	CD16:56
17.	Officers and Employees	CD17:1
	Art. I. In General	CD17:7
	Art. II. Bonds	CD17:32
	Art. III. Compensation and Other Benefits	CD17:34
	Div. 1. In General	CD17:34
	Div. 2. Disability Compensation	CD17:41
	Div. 3. Vacations with Pay	CD17:44
	Div. 4. Sick Leave	CD17:46
	Div. 5. Additional Payments to Retired Employees	CD17:48
	Div. 6. Annuities for Widows of Policemen and Firemen	CD17:52
	Div. 7. Presumptive Cancer Benefit and Wellness Incentive for Firefighters	CD17:53
	Art. IV. Suggestion Award Program	CD17:57
	Art. V. Police Reserve	CD17:59
	Art. VI. Retirement System	CD17:61
18.	Parks and Recreation	CD18:1
	Art. I. In General	CD18:3
	Art. II. Board of Park Commissioners	CD18:8
	Art. III. Department of Recreation	CD18:12
18½.	Police	CD18½:1
19.	Railroads	CD19:1
20.	Redevelopment Areas	CD20:1

Chapter		Page
21.	Revenue and Finance	CD21:1
	Art. I. In General	CD21:9
	Art. II. Contracts, Purchases and Sales	CD21:20.3
	Art. III. Funds	CD21:40
	Div. 1. In General	CD21:40
	Div. 2. Sinking Funds	CD21:48.8
	Art. III½. First-Source Agreements	CD21:51
	Art. IV. Relocation Payments	CD21:59
	Art. V. Real Property Tax Exemption for Elderly	CD21:61
	Art. V½. Real Property Tax Exemption for the Disabled	CD21:62
	Art. V6/10. Real Property Tax Exemption for Persons Aged Sixty-Two Through Sixty-Four Years of Age Receiving Social Security Old Age Insurance Benefits	CD21:65
	Art. V7/10. Increases in the Amount of Various Real Property Tax Exemptions	CD21:66
	Art. V8/10. Real Property Relief for Owner-Occupied Residential Real Estate Wherein Household Income is Not Greater Than Seventeen Thousand Five Hundred Dollars Per Annum	CD21:68
	Art. V9/10. Real Property Tax Exemption for Former Prisoners of War and Veterans of Enumerated Conflicts	CD21:69
	Art. VI. Tax Abatement on Rehabilitated Property	CD21:70
	Art. VII. Providence Review Commission	CD21:72
	Art. VIII. Tax Stabilization for Industrial Property	CD21:76
	Art. IX. Motor Vehicle Tax Exemption for the Handicapped	CD21:89
	Art. X. Property Tax Classification for the City	CD21:90
	Art. XI. Tax Exemption for Computer and Telephone Equipment	CD21:94
	Art. XII. Tax Exemption for Certain Property Owned by the Providence Redevelopment Agency	CD21:99
	Art. XIII. Business Improvement Districts	CD21:100
	Art. XIV. Industrial and Commercial Building District Tenant Relocation Program	CD21:114
	Art. XV. Real Estate Non-Utilization Tax	CD21:117
	Art. XVI. Reserved	CD21:121

Chapter		Page
	Art. XVI. Tax Predictability for Commercial and Multi-Family Residential Property	CD21:121
	Art. XVII. Providence Neighborhood Revitalization Act for Commercial and Multi-Family Residential Property	CD21:132
	Art. XVIII. Providence Tax Stabilization Investment Act	CD21:141
22.	Schools	CD22:1
23.	Streets, Sidewalks and Public Places	CD23:1
	Art. I. I General	CD23:7
	Art. II. Public Works	CD23:22.1
	Art. III. Construction and Repair of Sidewalks	CD23:23
	Art. IV. Westminster Pedestrian Mall	CD23:26
	Art. IV½. Market Square Pedestrian Mall	CD23:28
	Art. IV¾. Fulton Street Pedestrian Mall	CD23:29
	Art. V. Poles, Wires and Conduits	CD23:30
	Art. VI. Bridges	CD23:44
	Art. VII. Street and Sidewalk Sweeping	CD23:46
	Art. VIII. Green and Complete Streets	CD23:47
23½.	Trees	CD23½:1
	Art. I. In General	CD23½:3
	Art. II. Administration	CD23½:6
	Art. III. Standards for Planting and Maintenance	CD23½:10
24.	Vehicles for Hire	CD24:1
	Art. I. In General	CD24:5
	Art. II. Rates and Charges	CD24:9
	Art. III. Motor Buses	CD24:10
	Art. IV. Sound Trucks	CD24:21
25.	Water and Sewers	CD25:1
	Art. I. In General	CD25:3
	Art. II. Installation of Water Mains	CD25:5
	Art. III. Water Services	CD25:5
	Art. IV. Reserved	CD25:7
	Art. V. Connection and Discharge to Public Sewer	CD25:7
26.	Weights and Measures	CD26:1
27.	Zoning	CD27:1

Appendices Page

Appendices

A. Will of Marshall H. Gould CDA:1

B. Ordinances Approving and Adopting Redevelopment Plans CDB:1

C. Table of Bond Issues Outstanding CDC:1
- Bridge Bonds CDC:1
- Community Facilities Bonds CDC:3
- Emergency Housing Bonds CDC:5
- Fire Department—Bonds for Modernizing CDC:7
- Funding Bonds CDC:9
- General Obligation Bonds CDC:11
- Highway Bonds—Construction and Reconstruction CDC:13
- Hurricane Bonds CDC:15
- Incinerator and Sludge Disposal Bonds CDC:17
- Municipal Dock Improvement and Extension Bonds CDC:19
- Municipal Wharf Shed Bonds CDC:21
- Off-Street Parking Bonds CDC:23
- Public Improvement Bonds CDC:25
- Public Library Bonds CDC:27
- Public Works and/or Municipal Garage and Warehouse Bonds CDC:29
- P.W.A. Dockets CDC:31
- Recreational Facilities Bonds CDC:33
- Redevelopment Bonds CDC:35
- Refunding Bonds CDC:37
- Sanitation Bonds CDC:39
- School Bonds CDC:41
- Sewer Bonds CDC:43
- Special Obligation Tax Increment Revenue Bonds. CDC:45
- Traffic Signal and Traffic Control Bonds CDC:47
- Unemployment Relief Bonds CDC:49
- War Memorial Bonds CDC:51
- Water Supply Bonds CDC:53

D. Public Laws Relating to the City CDD:1

Code Comparative Table CCT:1

Charter Index CHTi:1

Code Index CDi:1

Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

Page No.	Supp. No.	Page No.	Supp. No.
Title page	5	SH:19, SH:20	7
iii	OC	SH:21	7
v, vi	OC	CHT:1, CHT:2	OC
vii, viii	5	CHT:3, CHT:4	6
ix, x	6, Rev.	CHT:5, CHT:6	6
xi	6, Rev.	CHT:7, CHT:8	6
xiii, xiv	OC	CHT:9, CHT:10	6
xv, xvi	OC	CHT:11, CHT:12	6
xvii, xviii	7	CHT:13, CHT:14	6
xix, xx	7	CHT:15, CHT:16	6
xxi, xxii	7	CHT:16.1	6
xxiii, xxiv	7	CHT:17, CHT:18	OC
SH:1, SH:2	OC	CHT:19, CHT:20	OC
SH:3, SH:4	OC	CHT:21, CHT:22	OC
SH:5, SH:6	OC	CHT:23, CHT:24	6
SH:7, SH:8	1	CHT:25, CHT:26	6
SH:9, SH:10	3	CHT:27, CHT:28	6
SH:11, SH:12	4	CHT:29, CHT:30	6
SH:13, SH:14	5	CHT:31, CHT:32	OC
SH:15, SH:16	5	CHT:33, CHT:34	OC
SH:17, SH:18	6	CHT:35, CHT:36	OC

Page No.	Supp. No.
CHT:37, CHT:38	OC
CHT:39, CHT:40	OC
CHT:41, CHT:42	OC
CHT:43, CHT:44	OC
CHT:45, CHT:46	OC
CHT:47, CHT:48	OC
CHT:49, CHT:50	OC
CHT:51, CHT:52	OC
CHT:53, CHT:54	OC
CHT:55, CHT:56	OC
CHT:57, CHT:58	6
CHT:59, CHT:60	6, Rev.
CHT:61, CHT:62	6, Rev.
CHT:62.1	6, Rev.
CHT:63, CHT:64	OC
CHT:65, CHT:66	OC
CHT:67, CHT:68	6
CHT:69, CHT:70	6
CHT:71, CHT:72	6
CHT:73, CHT:74	6
CHT:74.1, CHT:74.2	6
CHT:75, CHT:76	OC
CHT:77, CHT:78	OC
CHT:79, CHT:80	OC
CHT:81, CHT:82	OC
CHTCT:1, CHTCT:2	6
CD1:1	OC
CD1:3, CD1:4	OC
CD1:5, CD1:6	OC
CD1:7, CD1:8	OC
CD2:1, CD2:2	5
CD2:3, CD2:4	5
CD2:5, CD2:6	5
CD2:7, CD2:8	5
CD2:9, CD2:10	5
CD2:11	5
CD2:13, CD2:14	OC
CD2:15, CD2:16	4
CD2:17, CD2:18	5
CD2:18.1, CD2:18.2	5
CD2:19, CD2:20	OC
CD2:21, CD2:22	OC
CD2:23, CD2:24	OC
CD2:25, CD2:26	OC
CD2:27, CD2:28	OC
CD2:29, CD2:30	OC
CD2:31, CD2:32	OC
CD2:33, CD2:34	OC
CD2:35, CD2:36	5
CD2:37, CD2:38	5
CD2:39, CD2:40	5
CD2:40.1, CD2:40.2	5
CD2:40.3	5
CD2:41, CD2:42	OC
CD2:43, CD2:44	OC
CD2:45, CD2:46	OC
CD2:47, CD2:48	OC
CD2:49	5
CD2:51, CD2:52	OC
CD2:53, CD2:54	OC
CD2:55, CD2:56	OC
CD2:57, CD2:58	4
CD2:58.1	4
CD2:59, CD2:60	OC
CD2:61, CD2:62	OC
CD2:63, CD2:64	OC
CD2:65, CD2:66	5
CD2:66.1, CD2:66.2	5
CD2:66.3	5
CD2:67, CD2:68	OC
CD2:69, CD2:70	OC
CD2:71, CD2:72	OC
CD2:73, CD2:74	OC
CD2:75, CD2:76	OC
CD2:77, CD2:78	OC
CD2:79, CD2:80	OC

Page No.	Supp. No.
CD2:81, CD2:82	OC
CD2:83, CD2:84	OC
CD2:85, CD2:86	OC
CD2:87, CD2:88	OC
CD2:89, CD2:90	OC
CD2:91, CD2:92	OC
CD2:93, CD2:94	OC
CD2:95, CD2:96	7
CD2:97, CD2:98	7
CD2:99, CD2:100	7
CD2:101	7
CD2:103, CD2:104	OC
CD2:105, CD2:106	OC
CD2:107, CD2:108	OC
CD2:109, CD2:110	OC
CD2:111, CD2:112	OC
CD2:113, CD2:114	OC
CD2:115, CD2:116	OC
CD2:117, CD2:118	OC
CD2:119, CD2:120	5
CD2:121, CD2:122	5
CD2:123, CD2:124	5
CD2:124.1, CD2:124.2	5
CD2:124.3	5
CD2:125, CD2:126	OC
CD2:127, CD2:128	OC
CD2:129, CD2:130	OC
CD2:131, CD2:132	OC
CD2:133, CD2:134	OC
CD2:135	OC
CD3:1	OC
CD3:3, CD3:4	OC
CD4:1, CD4:2	7
CD4:3, CD4:4	7
CD4:5, CD4:6	7
CD4:7, CD4:8	7
CD4:8.1, CD4:8.2	7
CD4:8.3, CD4:8.4	7
CD4:9, CD4:10	OC
CD4:11, CD4:12	OC
CD4:13, CD4:14	OC
CD4:15, CD4:16	OC
CD4:17, CD4:18	OC
CD4:19, CD4:20	OC
CD4:21, CD4:22	OC
CD4:23	OC
CD5:1, CD5:2	7
CD5:3, CD5:4	7
CD5:5, CD5:6	7
CD5:7, CD5:8	7
CD5:9, CD5:10	7
CD5:10.1, CD5:10.2	7
CD5:10.3	7
CD5:11, CD5:12	OC
CD5:13, CD5:14	OC
CD5:15, CD5:16	OC
CD5:17, CD5:18	OC
CD5:19, CD5:20	OC
CD5:21, CD5:22	OC
CD5:23, CD5:24	OC
CD5:25, CD5:26	OC
CD5:27, CD5:28	OC
CD5:29, CD5:30	OC
CD5:31, CD5:32	OC
CD5:33, CD5:34	OC
CD5:35, CD5:36	OC
CD5:37, CD5:38	OC
CD5:39, CD5:40	OC
CD5:41, CD5:42	1
CD5:43, CD5:44	1
CD5:45, CD5:46	1
CD5:47, CD5:48	1
CD5:49, CD5:50	1
CD5:51, CD5:52	1
CD5:53, CD5:54	7
CD5:55, CD5:56	7

Page No.	Supp. No.
CD5:57, CD5:58	7
CD5:59, CD5:60	7
CD5:61, CD5:62	7
CD5:63, CD5:64	7
CD5:65, CD5:66	7
CD5:67, CD5:68	7
CD5:69, CD5:70	7
CD5:71	7
CD6:1	OC
CD6:3, CD6:4	OC
CD6:5, CD6:6	OC
CD6:7, CD6:8	OC
CD7:1	OC
CD7:3, CD7:4	OC
CD7:5, CD7:6	OC
CD7:7, CD7:8	OC
CD7:9, CD7:10	OC
CD7:11, CD7:12	OC
CD8:1	OC
CD8:3, CD8:4	7
CD8:5, CD8:6	7
CD8:7, CD8:8	7
CD8:9	7
CD9:1, CD9:2	OC
CD9:3	2
CD9:5, CD9:6	OC
CD9:7, CD9:8	OC
CD9:9, CD9:10	OC
CD9:11, CD9:12	OC
CD9:13, CD9:14	OC
CD9:15, CD9:16	OC
CD9:17, CD9:18	OC
CD9:19, CD9:20	OC
CD9:21, CD9:22	OC
CD9:23, CD9:24	2
CD9:25, CD9:26	2
CD9:27, CD9:28	2
CD9:29, CD9:30	2

Page No.	Supp. No.
CD10:1, CD10:2	OC
CD10:3	OC
CD10:5, CD10:6	OC
CD10:7, CD10:8	OC
CD10:9, CD10:10	OC
CD10:11, CD10:12	OC
CD10:13, CD10:14	OC
CD10:15, CD10:16	OC
CD10:17, CD10:18	OC
CD10:19, CD10:20	OC
CD10:21, CD10:22	OC
CD10:23, CD10:24	OC
CD10:25, CD10:26	OC
CD10:27, CD10:28	OC
CD10:29, CD10:30	OC
CD10:31, CD10:32	OC
CD11:1	3
CD11:3, CD11:4	5
CD11:4.1, CD11:4.2	5
CD11:4.3, CD11:4.4	5
CD11:5, CD11:6	OC
CD11:7, CD11:8	OC
CD11:9, CD11:10	OC
CD11:11, CD11:12	OC
CD11:13	OC
CD12:1, CD12:2	7
CD12:3, CD12:4	7
CD12:5, CD12:6	OC
CD12:7, CD12:8	OC
CD12:9, CD12:10	OC
CD12:11, CD12:12	OC
CD12:13, CD12:14	5
CD12:14.1, CD12:14.2	5
CD12:14.3	5
CD12:15, CD12:16	1
CD12:17, CD12:18	1
CD12:19, CD12:20	1
CD12:21, CD12:22	2

Page No.	Supp. No.
CD12:23, CD12:24	5
CD12:25, CD12:26	5
CD12:27, CD12:28	5
CD12:29, CD12:30	5
CD12:30.1	5
CD12:31, CD12:32	4
CD12:33, CD12:34	4
CD12:35, CD12:36	7
CD12:37, CD12:38	7
CD12:39, CD12:40	7
CD12:41, CD12:42	7
CD12:43	7
CD13:1, CD13:2	7
CD13:3	7
CD13:5, CD13:6	7
CD13:7, CD13:8	7
CD13:9, CD13:10	7
CD13:10.1	7
CD13:11, CD13:12	4
CD13:13, CD13:14	4
CD13:14.1	4
CD13:15, CD13:16	OC
CD13:17, CD13:18	OC
CD13:19, CD13:20	OC
CD13:21, CD13:22	OC
CD13:23, CD13:24	OC
CD13:25, CD13:26	5
CD13:27, CD13:28	5
CD13:29, CD13:30	7
CD13:31	7
CD14:1, CD14:2	OC
CD14:3, CD14:4	2
CD14:5, CD14:6	2
CD14:7, CD14:8	7
CD14:8.1	7
CD14:9, CD14:10	OC
CD14:11, CD14:12	OC
CD14:13, CD14:14	OC
CD14:15, CD14:16	OC
CD14:17, CD14:18	OC
CD14:19, CD14:20	OC
CD14:21, CD14:22	OC
CD14:23, CD14:24	OC
CD14:25, CD14:26	OC
CD14:27, CD14:28	OC
CD14:29, CD14:30	OC
CD14:31, CD14:32	OC
CD14:33, CD14:34	OC
CD14:35, CD14:36	OC
CD14:37, CD14:38	2
CD14:39, CD14:40	2
CD14:40.1, CD14:40.2	2
CD14:41, CD14:42	OC
CD14:43, CD14:44	5
CD14:45, CD14:46	5
CD14:46.1	5
CD14:47, CD14:48	1
CD14:49, CD14:50	1
CD14:51, CD14:52	1
CD14:53, CD14:54	1
CD14:57, CD14:58	OC
CD14:59, CD14:60	OC
CD14:61, CD14:62	OC
CD14:63, CD14:64	OC
CD14:65, CD14:66	OC
CD14:67, CD14:68	OC
CD14:69, CD14:70	OC
CD14:71, CD14:72	OC
CD14:73, CD14:74	OC
CD14:75, CD14:76	OC
CD14:77, CD14:78	OC
CD14:79, CD14:80	OC
CD14:81, CD14:82	OC
CD14:83, CD14:84	OC
CD14:85, CD14:86	OC
CD14:87, CD14:88	5

Page No.	Supp. No.
CD14:89, CD14:90	5
CD14:91, CD14:92	5
CD14:92.1	5
CD14:93, CD14:94	OC
CD14:95, CD14:96	OC
CD14:97, CD14:98	OC
CD14:99, CD14:100	3
CD14:101, CD14:102	7
CD14:103, CD14:104	7
CD15:1, CD15:2	7
CD15:3, CD15:4	7
CD15:5, CD15:6	7
CD15:7, CD15:8	7
CD15:9, CD15:10	7
CD15:11, CD15:12	5
CD15:13, CD15:14	5
CD15:14.1	5
CD15:15, CD15:16	OC
CD15:17, CD15:18	OC
CD15:19, CD15:20	OC
CD15:21, CD15:22	OC
CD15:23, CD15:24	OC
CD15:25, CD15:26	3
CD15:27, CD15:28	3
CD15:29, CD15:30	3
CD15:31, CD15:32	3
CD15:33, CD15:34	3
CD15:35, CD15:36	3
CD15:37, CD15:38	6
CD15:39, CD15:40	7
CD15:41	7
CD16:1, CD16:2	OC
CD16:3, CD16:4	5
CD16:5, CD16:6	OC
CD16:7, CD16:8	OC
CD16:9, CD16:10	OC
CD16:11, CD16:12	OC
CD16:13, CD16:14	6
CD16:15, CD16:16	6
CD16:16.1	6
CD16:17, CD16:18	OC
CD16:19, CD16:20	4
CD16:21, CD16:22	4
CD16:23, CD16:24	6
CD16:25, CD16:26	6
CD16:27, CD16:28	6
CD16:28.1	6
CD16:29, CD16:30	4
CD16:31, CD16:32	4
CD16:32.1, CD16:32.2	4
CD16:33, CD16:34	OC
CD16:35, CD16:36	5
CD16:37, CD16:38	5
CD16:39, CD16:40	5
CD16:41, CD16:42	5
CD16:42.1, CD16:42.2	5
CD16:43, CD16:44	OC
CD16:45, CD16:46	OC
CD16:47, CD16:48	OC
CD16:49, CD16:50	3
CD16:51, CD16:52	3
CD16:53, CD16:54	3
CD16:55, CD16:56	3
CD16:57, CD16:58	3
CD16:59, CD16:60	3
CD16:61	3
CD17:1, CD17:2	7
CD17:3, CD17:4	7
CD17:5, CD17:6	7
CD17:7, CD17:8	OC
CD17:9, CD17:10	OC
CD17:11, CD17:12	6
CD17:12.1	6
CD17:13, CD17:14	OC
CD17:15, CD17:16	OC
CD17:17, CD17:18	OC

Page No.	Supp. No.
CD17:19, CD17:20	1
CD17:21, CD17:22	1
CD17:23, CD17:24	1
CD17:25, CD17:26	1
CD17:27, CD17:28	1
CD17:29, CD17:30	1
CD17:31, CD17:32	7
CD17:32.1	7
CD17:33, CD17:34	OC
CD17:35, CD17:36	OC
CD17:37, CD17:38	OC
CD17:39, CD17:40	OC
CD17:41, CD17:42	OC
CD17:43, CD17:44	OC
CD17:45, CD17:46	OC
CD17:47, CD17:48	2
CD17:49, CD17:50	OC
CD17:51, CD17:52	OC
CD17:53, CD17:54	OC
CD17:55, CD17:56	OC
CD17:57, CD17:58	OC
CD17:59, CD17:60	1
CD17:61, CD17:62	1
CD17:63, CD17:64	1
CD17:65, CD17:66	1
CD17:67, CD17:68	1
CD17:69, CD17:70	1
CD17:71, CD17:72	1
CD17:73, CD17:74	1
CD17:75, CD17:76	1
CD17:77, CD17:78	1
CD17:79, CD17:80	5
CD17:80.1	5
CD17:81, CD17:82	1
CD17:83, CD17:84	1
CD17:85, CD17:86	1
CD17:87, CD17:88	1
CD17:89, CD17:90	5
CD17:90.1	5
CD17:91, CD17:92	1
CD17:93, CD17:94	1
CD17:95, CD17:96	1
CD17:97, CD17:98	1
CD17:99, CD17:100	1
CD18:1, CD18:2	6
CD18:3, CD18:4	OC
CD18:5, CD18:6	OC
CD18:7, CD18:8	6
CD18:8.1	6
CD18:9, CD18:10	OC
CD18:11, CD18:12	OC
CD18:13, CD18:14	OC
CD18:15	OC
CD18½:1	3
CD18½:3, CD18½:4	4
CD18½:5, CD18½:6	4
CD18½:7, CD18½:8	4
CD18½:9, CD18½:10	3
CD18½:11, CD18½:12	3
CD18½:13, CD18½:14	3
CD18½:15, CD18½:16	3
CD18½:17, CD18½:18	3
CD18½:19, CD18½:20	3
CD18½:21, CD18½:22	3
CD19:1	OC
CD19:3, CD19:4	OC
CD19:5, CD19:6	OC
CD19:7, CD19:8	OC
CD19:9, CD19:10	OC
CD20:1	OC
CD20:3, CD20:4	OC
CD20:5, CD20:6	OC
CD20:7, CD20:8	OC
CD21:1, CD21:2	5
CD21:3, CD21:4	5
CD21:5, CD21:6	5

Page No.	Supp. No.
CD21:7, CD21:8	5
CD21:8.1	7
CD21:9, CD21:10	1
CD21:10.1	1
CD21:11, CD21:12	OC
CD21:13, CD21:14	OC
CD21:15, CD21:16	OC
CD21:17, CD21:18	OC
CD21:19, CD21:20	5
CD21:20.1, CD21:20.2	5
CD21:20.3	5
CD21:21, CD21:22	OC
CD21:23, CD21:24	OC
CD21:25, CD21:26	OC
CD21:27, CD21:28	OC
CD21:29, CD21:30	6
CD21:30.1	5
CD21:31, CD21:32	OC
CD21:33, CD21:34	OC
CD21:35, CD21:36	OC
CD21:37, CD21:38	OC
CD21:39, CD21:40	5
CD21:41, CD21:42	5
CD21:43, CD21:44	5
CD21:45, CD21:46	5
CD21:47, CD21:48	5
CD21:48.1, CD21:48.2	5
CD21:48.3, CD21:48.4	5
CD21:48.5, CD21:48.6	5
CD21:48.7, CD21:48.8	5
CD21:49, CD21:50	OC
CD21:51, CD21:52	OC
CD21:53, CD21:54	OC
CD21:55, CD21:56	OC
CD21:57, CD21:58	OC
CD21:59, CD21:60	OC
CD21:61, CD21:62	5
CD21:63, CD21:64	OC
CD21:65, CD21:66	OC
CD21:67, CD21:68	OC
CD21:69, CD21:70	OC
CD21:71, CD21:72	OC
CD21:73, CD21:74	OC
CD21:75, CD21:76	OC
CD21:77, CD21:78	OC
CD21:79, CD21:80	OC
CD21:81, CD21:82	OC
CD21:83, CD21:84	OC
CD21:85, CD21:86	OC
CD21:87, CD21:88	OC
CD21:89, CD21:90	OC
CD21:91, CD21:92	OC
CD21:93, CD21:94	OC
CD21:95, CD21:96	OC
CD21:97, CD21:98	5
CD21:99, CD21:100	5
CD21:100.1	5
CD21:101, CD21:102	OC
CD21:103, CD21:104	OC
CD21:105, CD21:106	OC
CD21:107, CD21:108	OC
CD21:109, CD21:110	OC
CD21:111, CD21:112	OC
CD21:113, CD21:114	OC
CD21:115, CD21:116	OC
CD21:117, CD21:118	4
CD21:119, CD21:120	4
CD21:120.1	4
CD21:121, CD21:122	1
CD21:123, CD21:124	1
CD21:125, CD21:126	1
CD21:127, CD21:128	1
CD21:129, CD21:130	1
CD21:131, CD21:132	2
CD21:133, CD21:134	2
CD21:135, CD21:136	2

Page No.	Supp. No.
CD21:137, CD21:138	2
CD21:139, CD21:140	5
CD21:141, CD21:142	5
CD21:143, CD21:144	5
CD21:145, CD21:146	5
CD21:147, CD21:148	5
CD21:149, CD21:150	5
CD21:151, CD21:152	5
CD21:153, CD21:154	5
CD21:155, CD21:156	7
CD22:1	OC
CD22:3, CD22:4	OC
CD22:5, CD22:6	OC
CD23:1, CD23:2	3
CD23:3, CD23:4	OC
CD23:5	7
CD23:7, CD23:8	OC
CD23:9, CD23:10	OC
CD23:11, CD23:12	2
CD23:13, CD23:14	2
CD23:14.1	2
CD23:15, CD23:16	OC
CD23:17, CD23:18	5
CD23:18.1	5
CD23:19, CD23:20	1
CD23:21, CD23:22	3
CD23:22.1, CD23:22.2	3
CD23:22.3	3
CD23:23, CD23:24	OC
CD23:25, CD23:26	OC
CD23:27, CD23:28	OC
CD23:29, CD23:30	OC
CD23:31, CD23:32	OC
CD23:33, CD23:34	OC
CD23:35, CD23:36	OC
CD23:37, CD23:38	OC
CD23:39, CD23:40	OC
CD23:41, CD23:42	4
CD23:43, CD23:44	7
CD23:45, CD23:46	7
CD23:47, CD23:48	7
CD23:49, CD23:50	7
CD23:51, CD23:52	7
CD23:53, CD23:54	7
CD23:55, CD23:56	7
CD23:57	7
CD23½:1	OC
CD23½:3, CD23½:4	OC
CD23½:5, CD23½:6	OC
CD23½:7, CD23½:8	OC
CD23½:9, CD23½:10	OC
CD23½:11, CD23½:12	OC
CD24:1, CD24:2	OC
CD24:3	OC
CD24:5, CD24:6	OC
CD24:7, CD24:8	OC
CD24:9, CD24:10	OC
CD24:11, CD24:12	OC
CD24:13, CD24:14	OC
CD24:15, CD24:16	OC
CD24:17, CD24:18	OC
CD24:19, CD24:20	OC
CD24:21, CD24:22	OC
CD24:23	OC
CD25:1, CD25:2	OC
CD25:3, CD25:4	OC
CD25:5, CD25:6	OC
CD25:7, CD25:8	OC
CD25:9, CD25:10	OC
CD25:11, CD25:12	OC
CD25:13, CD25:14	OC
CD25:15, CD25:16	OC
CD25:17, CD25:18	OC
CD25:19, CD25:20	OC
CD25:21, CD25:22	OC
CD25:23, CD25:24	OC

Page No.	Supp. No.
CD25:25, CD25:26	OC
CD25:27, CD25:28	OC
CD25:29, CD25:30	OC
CD25:31, CD25:32	OC
CD25:33, CD25:34	OC
CD25:35, CD25:36	OC
CD25:37	OC
CD26:1	OC
CD26:3, CD26:4	OC
CD26:5, CD26:6	OC
CD27:1	4
CDA:1, CDA:2	OC
CDB:1, CDB:2	OC
CDB:3, CDB:4	OC
CDB:5, CDB:6	OC
CDB:7, CDB:8	4
CDC:1	OC
CDC:3	OC
CDC:5	OC
CDC:7	OC
CDC:9	OC
CDC:11	5
CDC:13	OC
CDC:15	OC
CDC:17	OC
CDC:19	OC
CDC:21	OC
CDC:23	OC
CDC:25	2
CDC:27	OC
CDC:29	OC
CDC:31	OC
CDC:33	OC
CDC:35	OC
CDC:37, CDC:38	OC
CDC:39	OC
CDC:41, CDC:42	OC
CDC:43	OC
CDC:45	OC
CDC:47	OC
CDC:49	OC
CDC:51	OC
CDC:53	6
CDC:55	6
CDD:1, CDD:2	OC
CDD:3, CDD:4	OC
CDD:5, CDD:6	OC
CDD:7, CDD:8	OC
CDD:9, CDD:10	OC
CDD:11, CDD:12	OC
CDD:13, CDD:14	OC
CDD:15, CDD:16	OC
CDD:17, CDD:18	OC
CDD:19, CDD:20	OC
CDD:21, CDD:22	OC
CDD:23, CDD:24	OC
CDD:25, CDD:26	OC
CDD:27, CDD:28	OC
CDD:29, CDD:30	OC
CDD:31, CDD:32	OC
CDD:33, CDD:34	OC
CDD:35, CDD:36	OC
CDD:37, CDD:38	OC
CDD:39, CDD:40	OC
CDD:41, CDD:42	OC
CDD:43, CDD:44	OC
CDD:45	OC
CCT:1, CCT:2	OC
CCT:3, CCT:4	OC
CCT:5, CCT:6	OC
CCT:7, CCT:8	OC
CCT:9, CCT:10	OC
CCT:11, CCT:12	OC
CCT:13, CCT:14	OC
CCT:15, CCT:16	OC
CCT:17, CCT:18	OC

Page No.	Supp. No.
CCT:19, CCT:20	OC
CCT:21, CCT:22	OC
CCT:23, CCT:24	OC
CCT:25, CCT:26	OC
CCT:27, CCT:28	OC
CCT:29, CCT:30	OC
CCT:31, CCT:32	OC
CCT:33, CCT:34	OC
CCT:35, CCT:36	OC
CCT:37, CCT:38	OC
CCT:39, CCT:40	OC
CCT:41, CCT:42	OC
CCT:43, CCT:44	OC
CCT:45, CCT:46	OC
CCT:47, CCT:48	OC
CCT:49, CCT:50	OC
CCT:51, CCT:52	OC
CCT:53, CCT:54	OC
CCT:55, CCT:56	OC
CCT:57, CCT:58	OC
CCT:59, CCT:60	OC
CCT:61, CCT:62	OC
CCT:63, CCT:64	OC
CCT:65, CCT:66	OC
CCT:67, CCT:68	OC
CCT:69, CCT:70	OC
CCT:71, CCT:72	OC
CCT:73, CCT:74	OC
CCT:75, CCT:76	OC
CCT:77, CCT:78	OC
CCT:79, CCT:80	OC
CCT:81, CCT:82	OC
CCT:83, CCT:84	OC
CCT:85, CCT:86	1
CCT:87, CCT:88	2
CCT:89, CCT:90	4
CCT:91, CCT:92	7
CCT:93	7

Page No.	Supp. No.
CHTi:1, CHTi:2	OC
CHTi:3, CHTi:4	OC
CHTi:5, CHTi:6	OC
CHTi:7, CHTi:8	OC
CHTi:9, CHTi:10	OC
CHTi:11, CHTi:12	6
CHTi:13, CHTi:14	OC
CHTi:15, CHTi:16	OC
CHTi:17, CHTi:18	OC
CHTi:19, CHTi:20	OC
CHTi:21, CHTi:22	OC
CHTi:23, CHTi:24	OC
CHTi:25, CHTi:26	OC
CHTi:27, CHTi:28	OC
CHTi:29, CHTi:30	OC
CDi:1, CDi:2	7
CDi:3, CDi:4	7
CDi:5, CDi:6	7
CDi:7, CDi:8	7
CDi:9, CDi:10	7
CDi:11, CDi:12	7
CDi:13, CDi:14	7
CDi:15, CDi:16	7
CDi:17, CDi:18	7
CDi:19, CDi:20	7
CDi:21, CDi:22	7
CDi:23, CDi:24	7
CDi:25, CDi:26	7
CDi:27, CDi:28	7
CDi:29, CDi:30	7
CDi:31, CDi:32	7
CDi:33, CDi:34	7
CDi:35, CDi:36	7
CDi:37, CDi:38	7
CDi:39, CDi:40	7
CDi:41, CDi:42	7
CDi:43, CDi:44	7
CDi:45, CDi:46	7

Page No.	Supp. No.
CDi:47, CDi:48	7
CDi:49, CDi:50	7
CDi:51, CDi:52	7
CDi:53, CDi:54	7
CDi:55, CDi:56	7
CDi:57, CDi:58	7
CDi:59, CDi:60	7
CDi:61, CDi:62	7
CDi:63, CDi:64	7
CDi:65, CDi:66	7
CDi:67, CDi:68	7
CDi:69, CDi:70	7
CDi:71, CDi:72	7
CDi:73, CDi:74	7
CDi:75, CDi:76	7
CDi:77, CDi:78	7
CDi:79, CDi:80	7
CDi:81, CDi:82	7
CDi:83, CDi:84	7
CDi:85, CDi:86	7
CDi:87, CDi:88	7
CDi:89, CDi:90	7
CDi:91, CDi:92	7
CDi:93, CDi:94	7
CDi:95, CDi:96	7
CDi:97, CDi:98	7
CDi:99, CDi:100	7
CDi:101, CDi:102	7
CDi:103, CDi:104	7
CDi:105, CDi:106	7
CDi:107, CDi:108	7
CDi:109, CDi:110	7
CDi:111, CDi:112	7
CDi:113, CDi:114	7
CDi:115, CDi:116	7
CDi:117, CDi:118	7
CDi:119, CDi:120	7
CDi:121, CDi:122	7

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2010-2	1-21-10	Included	79
2010-3	2- 4-10	Included	79
2010-4	3- 4-10	Omitted	79
2010-5	3-18-10	Omitted	79
2010-6	4- 1-10	Omitted	79
2010-7	5- 6-10	Included	79
2010-8	5- 6-10	Included	79
2010-9	5-10-10	Omitted	79
2010-10	5-20-10	Omitted	79
2010-11	5-20-10	Omitted	79
2010-12	5-20-10	Omitted	79
2010-13	5-20-10	Omitted	79
2010-14	5-20-10	Omitted	79
2010-15	5-20-10	Omitted	79
2010-16	5-20-10	Omitted	79
2010-17	5-20-10	Omitted	79
2010-18	5-20-10	Omitted	79
2010-19	5-20-10	Omitted	79
2010-20	5-20-10	Omitted	79
2010-21	5-20-10	Omitted	79
2010-22	5-20-10	Omitted	79
2010-23	5-20-10	Omitted	79
2010-24	5-20-10	Omitted	79
2010-25	7- 1-10	Omitted	79
2010-26	7- 1-10	Omitted	79
2010-27	7- 1-10	Omitted	79
2010-28	7-15-10	Included	79
2010-29	7-15-10	Omitted	79

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2010-30	7-26-10	Included	79
2010-31	7-28-10	Included	79
2010-32	7-28-10	Included	79
2010-33	9-16-10	Included	79
2010-34	9-16-10	Included	79
2010-35	9-16-10	Included	79
2010-36	9-16-10	Included	79
2010-37	10-21-10	Included	79
2010-38	10-21-10	Omitted	79
2010-39	10-21-10	Included	79
2010-40	11- 4-10	Omitted	79
2010-41	12- 2-10	Omitted	79
2010-42	12- 2-10	Included	79
2010-43	12- 2-10	Included	79
2011-1	1-29-11	Included	80
2011-3	2-10-11	Omitted	80
2011-4	2-10-11	Omitted	80
2011-7	2-10-11	Omitted	80
2011-8	2-10-11	Omitted	80
2011-9	2-17-11	Omitted	80
2011-10	3-11-11	Included	80
2011-11	3-21-11	Included	80
2011-16	6-10-11	Included	80
2011-17	6-20-11	Omitted	80
2011-18	6-16-11	Omitted	80
2011-19	6-22-11	Included	80
2011-20	6-22-11	Included	80
2011-21	7- 7-11	Included	80
2011-22	7- 7-11	Included	80
2011-23	7- 7-11	Included	80
2011-24	7-18-11	Included	80
2011-26	7-18-11	Omitted	80
2011-27	7-18-11	Omitted	80
2011-28	7-18-11	Included	80
2011-29	7-18-11	Omitted	80
2011-30	7-19-11	Included	80
2011-31	7-19-11	Included	80
2011-32	7-19-11	Included	80
2011-33	7-19-11	Included	80
2011-34	7-20-11	Included	80
2011-35	7-18-11	Included	80
2011-36	7-18-11	Included	80
2011-37	7-18-11	Omitted	80
2011-38	10- 3-11	Included	80

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2011-39	10- 3-11	Included	80
2011-40	10- 3-11	Included	80
2011-41	10- 3-11	Included	80
2011-42	11-10-11	Omitted	80
2011-43	11-10-11	Omitted	80
2011-44	11-10-11	Omitted	80
2011-45	11- 3-11	Omitted	80
2011-46	11- 3-11	Omitted	80
2011-47	11-22-11	Included	80
2011-48	11-22-11	Omitted	80
2011-49	11-22-11	Omitted	80
2011-50	11-22-11	Omitted	80
2011-51	11-22-11	Omitted	80
2011-52	11-22-11	Omitted	80
2011-53	11-22-11	Omitted	80
2011-54	11-22-11	Omitted	80
2011-55	11-22-11	Omitted	80
2011-56	11-22-11	Omitted	80
2011-57	11-22-11	Omitted	80
2011-58	11-22-11	Omitted	80
2011-59	11-22-11	Omitted	80
2011-60	11-22-11	Omitted	80
2011-61	11-22-11	Omitted	80
2011-62	11-22-11	Omitted	80
2011-63	11-22-11	Omitted	80
2011-64	11-22-11	Omitted	80
2011-65	11-22-11	Omitted	80
2011-66	11-22-11	Omitted	80
2011-67	11-22-11	Omitted	80
2011-68	11-22-11	Omitted	80
2011-69	11-22-11	Omitted	80
2011-70	11-22-11	Omitted	80
2011-71	11-22-11	Omitted	80
2011-72	11-22-11	Omitted	80
2011-73	11-22-11	Omitted	80
2011-74	11-22-11	Included	80
2011-75	12- 9-11	Included	80
2006-26	4-20-06	Omitted	81
2011-12	3-17-11	Included	81
2012-25	5- 3-12	Included	81
2012-26	5- 3-12	Included	81
2012-27	6- 7-12	Included	81
2012-30	6-12-12	Omitted	81
2012-31	6-11-12	Omitted	81

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2012-32	6-11-12	Omitted	81
2012-33	6-11-12	Omitted	81
2012-34	6-11-12	Omitted	81
2012-35	6-11-12	Omitted	81
2012-36	6-11-12	Omitted	81
2012-37	6-11-12	Omitted	81
2012-38	6-22-12	Included	81
2012-39	6-21-12	Included	81
2012-40	6-21-12	Included	81
2012-41	6-21-12	Included	81
2012-42	7-30-12	Omitted	81
2012-43	7-30-12	Omitted	81
2012-44	7-30-12	Omitted	81
2012-45	8- 1-12	Included	81
2012-46	8- 1-12	Omitted	81
2012-47	8- 1-12	Included	81
2012-48	10-18-12	Omitted	81
2012-49	10-18-12	Omitted	81
2012-50	10-18-12	Omitted	81
2012-51	10-18-12	Omitted	81
2012-52	10-18-12	Omitted	81
2012-53	10-18-12	Omitted	81
2012-54	10-18-12	Omitted	81
2012-55	10-18-12	Omitted	81
2012-56	10-18-12	Omitted	81
2012-57	10-18-12	Omitted	81
2012-58	10-18-12	Omitted	81
2012-59	10-18-12	Omitted	81
2012-60	10-18-12	Omitted	81
2012-61	10-18-12	Omitted	81
2012-62	11- 1-12	Included	81
2012-63	11-19-12	Included	81
2012-64	11-19-12	Included	81
2012-65	11-19-12	Omitted	81
2012-66	11-19-12	Omitted	81
2012-67	12- 6-12	Omitted	81
2012-68	12- 6-12	Included	81
1997-20	3-13-97	Included	82
2011-13	4-13-11	Included	82
2012-6	1- 9-12	Included	82
2012-7	1- 9-12	Included	82
2012-12	2-20-12	Included	82
2013-1	1-14-13	Omitted	82
2013-2	1-24-13	Included	82

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2013-3	2-28-13	Included	82
2013-4	2-21-13	Omitted	82
2013-5	3-18-13	Included	82
2013-6	3-18-13	Included	82
2013-7	3-22-13	Omitted	82
2013-8	3- 4-13	Omitted	82
2013-9	4- 9-13	Included	82
2013-10	4- 4-13	Included	82
2013-11	4- 4-13	Included	82
2013-12	4- 4-13	Included	82
2013-13	4- 4-13	Included	82
2013-14	4-18-13	Omitted	82
2013-15	4-18-13	Omitted	82
2013-16	4-18-13	Omitted	82
2013-17	6-13-13	Included	82
2013-18	6- 3-13	Omitted	82
2013-19	6-13-13	Omitted	82
2013-20	6-13-13	Omitted	82
2013-21	6-13-13	Omitted	82
2013-22	6-13-13	Omitted	82
2013-23	6-13-13	Omitted	82
2013-24	6-27-13	Omitted	82
2013-25	6-20-13	Included	82
2013-26	7-26-13	Included	82
2013-27	7-26-13	Included	82
2013-28	7-18-13	Included	82
2013-29	7-18-13	Included	82
2013-30	7-31-13	Omitted	82
2013-31	7-31-13	Included	82
2013-32	7-31-13	Included	82
2013-33	7-31-13	Included	82
2013-34	7-25-13	Omitted	82
2013-35	7-31-13	Included	82
2013-37	9-19-13	Included	82
2013-36	9-19-13	Included	83
2013-38	9-12-13	Omitted	83
2013-39	10-17-13	Omitted	83
2013-40	10-17-13	Omitted	83
2013-41	10-17-13	Omitted	83
2013-42	10-17-13	Omitted	83
2013-43	10-17-13	Omitted	83
2013-44	10-17-13	Omitted	83
2013-45	10-17-13	Omitted	83
2013-46	10-17-13	Omitted	83

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2013-47	10-17-13	Omitted	83
2013-48	10-17-13	Omitted	83
2013-49	10-17-13	Omitted	83
2013-50	10-17-13	Omitted	83
2013-51	10-17-13	Omitted	83
2013-52	10-17-13	Omitted	83
2013-53	11- 7-13	Included	83
2013-54	11- 7-13	Omitted	83
2013-55	11- 7-13	Omitted	83
2013-56	11-26-13	Included	83
2013-57	11-26-13	Included	83
2013-58	11-26-13	Included	83
2013-59	11-26-13	Included	83
2011-15	5- 5-11	Included	Repub.
2012-3	1- 5-12	Included	Repub.
2012-4	1- 5-12	Included	Repub.
2012-5	1- 9-12	Included	Repub.
2012-8	1-23-12	Included	Repub.
2012-9	2- 8-12	Included	Repub.
2012-13	2-20-12	Included	Repub.
2012-14	2-20-12	Included	Repub.
2012-16	3-15-12	Included	Repub.
2012-17	3-30-12	Included	Repub.
2012-18	4- 9-12	Included	Repub.
2012-20	4-30-12	Included	Repub.
2012-21	5- 5-12	Included	Repub.
2012-28	6- 8-12	Included	Repub.
2012-29	6- 8-12	Included	Repub.
2014-1	1-16-14	Included	Repub.
2014-2	2-20-14	Omitted	Repub.
2014-3	3- 4-14	Included	Repub.
2014-4	3-13-14	Included	Repub.
2014-5	3-28-14	Included	Repub.
2014-6	3-28-14	Included	Repub.
2014-7	3-20-14	Included	Repub.
2014-8	5- 1-14	Omitted	Repub.
2014-9	5-21-14	Included	Repub.
2014-10	5-21-14	Included	Repub.
2014-11	6-12-14	Included	Repub.
2014-12	6-12-14	Omitted	Repub.
2014-13	6-12-14	Omitted	Repub.
2014-14	6-12-14	Omitted	Repub.
2014-15	6-12-14	Omitted	Repub.
2014-16	6-12-14	Omitted	Repub.

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2014-17	6-12-14	Omitted	Repub.
2014-18	6-12-14	Omitted	Repub.
2014-19	6-12-14	Omitted	Repub.
2014-20	6-26-14	Omitted	Repub.
2014-21	6-26-14	Omitted	Repub.
2014-22	6-26-14	Omitted	Repub.
2014-23	6-26-14	Omitted	Repub.
2014-24	7- 2-14	Omitted	Repub.
2014-25	7- 2-14	Omitted	Repub.
2014-26	7-14-14	Omitted	Repub.
2014-27	7-14-14	Included	Repub.
2014-28	7-14-14	Included	Repub.
2014-29	7-14-14	Included	Repub.
2014-30	7-24-14	Included	Repub.
2014-31	8- 8-14	Omitted	Repub.
2014-32	8- 8-14	Omitted	Repub.
2014-33	8- 8-14	Included	Repub.
2014-34	8- 8-14	Included	Repub.
2014-35	8-14-14	Included	Repub.
2014-36	10-23-14	Omitted	Repub.
2014-37	11- 6-14	Omitted	Repub.
2014-38	11-24-14	Omitted	Repub.
2014-39	11-24-14	Included	Repub.
2014-40	12-11-14	Omitted	Repub.
2014-41	12-11-14	Omitted	Repub.
2014-42	12-11-14	Omitted	Repub.
2014-43	12-11-14	Omitted	Repub.
2014-44	12-11-14	Omitted	Repub.
2014-45	12-11-14	Omitted	Repub.
2014-46	12-11-14	Omitted	Repub.
2014-47	12-11-14	Omitted	Repub.
2014-48	12-11-14	Omitted	Repub.
2014-49	12-11-14	Omitted	Repub.
2014-50	12-11-14	Omitted	Repub.
2014-51	12-11-14	Omitted	Repub.
2014-52	12-11-14	Omitted	Repub.
2014-53	12-11-14	Omitted	Repub.
2014-54	12- 4-14	Included	Repub.
2014-55	12-11-14	Included	Repub.
2014-56	12-11-14	Included	Repub.
2014-57	12- 8-14	Omitted	Repub.
2015-1	1-20-15	Omitted	1
2015-2	1-20-15	Omitted	1
2015-3	1-20-15	Omitted	1

Chapter No.	Date Adopted	Included/ Omitted	Supp. No.
2015-4	3-16-15	Omitted	1
2015-5	4-13-15	Included	1
2015-6	4-13-15	Included	1
2015-7	4-27-15	Omitted	1
2015-8	5-15-15	Included	1
2015-9	5-18-15	Omitted	1
2015-10	5-29-15	Included	1
2015-11	6-11-15	Included	1
2015-12	6-11-15	Omitted	1
2015-13	6-11-15	Omitted	1
2015-14	6-11-15	Omitted	1
2015-15	6-11-15	Omitted	1
2015-16	6-11-15	Omitted	1
2015-18	6-11-15	Omitted	1
2015-19	6-29-15	Included	1
2015-20	7- 6-15	Omitted	1
2015-21	7- 7-15	Included	1
2015-22	7- 6-15	Included	1
2015-23	7-24-15	Included	1
2015-24	7-24-15	Omitted	1
2015-25	7-24-15	Omitted	1
2015-26	7-24-15	Included	1
2015-27	7-27-15	Included	1
2015-28	7-23-15	Included	1
2015-29	7-23-15	Included	1
2015-30	7-24-15	Omitted	1
2015-31	7-24-15	Included	1
2015-32	7-24-15	Omitted	1
2015-33	9-11-15	Omitted	1
2015-34	9-11-15	Omitted	1
2015-35	9-11-15	Omitted	1
2015-36	9-11-15	Omitted	1
2015-37	9-11-15	Omitted	1
2015-38	9-11-15	Omitted	1
2015-39	9-11-15	Omitted	1
2015-40	9-11-15	Omitted	1
2015-41	9-11-15	Omitted	1
2015-42	9-11-15	Omitted	1
2015-43	9-11-15	Omitted	1
2015-44	9-11-15	Omitted	1
2015-45	9-11-15	Omitted	1
2015-46	9-11-15	Omitted	1
2015-47	9-18-15	Included	1
2015-48	9-17-15	Omitted	1

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2015-49	9-18-15	Included	1
2015-50	9-17-15	Included	1
2015-51	10- 5-15	Included	1
2015-52	10- 5-15	Omitted	1
2015-53	10- 5-15	Omitted	1
2015-54	10- 5-15	Omitted	1
2015-55	10-23-15	Included	1
2015-56	10-23-15	Included	1
2015-57	10-23-15	Included	1
2015-58	11-12-15	Included	1
2015-59	11-12-15	Omitted	1
2015-60	12-22-15	Included	1
2015-61	12-28-15	Omitted	1
2015-62	12-22-15	Omitted	1
2015-63	12-22-15	Omitted	1
2015-64	12-28-15	Included	1
2016-1	1-13-16	Included	2
2016-2	1-29-16	Omitted	2
2016-3	2-11-16	Included	2
2016-4	3- 8-16	Included	2
2016-5	3- 8-16	Omitted	2
2016-6	3- 8-16	Included	2
2016-7	3- 8-16	Omitted	2
2016-8	3-23-16	Omitted	2
2016-9	3-23-16	Omitted	2
2016-10	3-23-16	Omitted	2
2016-11	3-23-16	Omitted	2
2016-12	3-23-16	Omitted	2
2016-13	3-23-16	Omitted	2
2016-14	4-15-16	Omitted	2
2016-15	4-29-16	Included	2
2016-16	4-29-16	Included	2
2016-17	4-29-16	Included	2
2016-18	4-29-16	Omitted	2
2016-19	5- 9-16	Omitted	2
2016-20	6-20-16	Included	2
2016-21	6-20-16	Omitted	2
2016-22	6-20-16	Omitted	2
2016-23	6-20-16	Omitted	2
2016-24	6-20-16	Omitted	2
2016-25	6-20-16	Omitted	2
2016-26	6-20-16	Omitted	2
2016-27	6-20-16	Omitted	2
2016-28	7-29-16	Included	2

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2016-29	7-29-16	Omitted	2
2016-30	8- 3-16	Omitted	2
2016-31	8- 3-16	Included	2
2016-32	8- 3-16	Included	2
2016-33	8- 3-16	Omitted	2
2016-34	8- 5-16	Included	2
2016-35	10-26-16	Included	2
2016-36	10-26-16	Omitted	2
2016-37	11-10-16	Omitted	2
2016-38	11-10-16	Omitted	2
2016-39	11-10-16	Omitted	2
2016-40	11-10-16	Omitted	2
2016-41	11-10-16	Omitted	2
2016-42	11-10-16	Omitted	2
2016-43	11-10-16	Omitted	2
2016-44	11-10-16	Omitted	2
2016-45	11-10-16	Omitted	2
2016-46	11-10-16	Omitted	2
2016-47	11-10-16	Omitted	2
2016-48	11-10-16	Omitted	2
2016-49	11-10-16	Omitted	2
2016-50	11-28-16	Included	2
2016-51	12-12-16	Omitted	2
2016-52	12-12-16	Included	2
2017-1	1-27-17	Omitted	3
2017-2	1-19-17	Included	3
2017-3	2-10-17	Omitted	3
2071-4	2-10-17	Included	3
2017-5	2-22-17	Included	3
2017-6	3-13-17	Omitted	3
2017-7	3-22-17	Omitted	3
2017-8	4-24-17	Omitted	3
2017-9	5- 5-17	Included	3
2017-10	5- 5-17	Omitted	3
2017-11	5-15-17	Omitted	3
2017-12	6- 2-17	Omitted	3
2017-13	6- 2-17	Included	3
2017-14	6- 2-17	Included	3
2017-15	6- 6-17	Included	3
2017-16	6- 6-17	Included	3
2017-17	6- 6-17	Omitted	3
2017-18	6- 6-17	Included	3
2017-19	6-15-17	Included	3
2017-20	6-19-17	Included	3

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2017-21	6-19-17	Omitted	3
2017-22	6-20-17	Omitted	3
2017-23	6-20-17	Omitted	3
2017-24	6-20-17	Omitted	3
2017-25	6-20-17	Omitted	3
2017-26	6-20-17	Omitted	3
2017-27	6-20-17	Omitted	3
2017-28	6-20-17	Omitted	3
2017-29	6-20-17	Omitted	3
2017-30	7-12-17	Omitted	3
2017-31	7-31-17	Omitted	3
2017-32	7-31-17	Omitted	3
2017-33	8- 1-17	Omitted	3
2017-34	9-15-17	Included	3
2017-35	10-12-17	Omitted	3
2017-36	10-12-17	Omitted	3
2017-37	10-12-17	Omitted	3
2017-38	10-12-17	Omitted	3
2017-39	10-12-17	Omitted	3
2017-40	10-12-17	Omitted	3
2017-41	10-12-17	Omitted	3
2017-42	10-12-17	Omitted	3
2017-43	10-12-17	Omitted	3
2017-44	10-12-17	Omitted	3
2017-45	10-12-17	Omitted	3
2017-46	10-12-17	Omitted	3
2017-47	10-12-17	Omitted	3
2017-48	10-12-17	Omitted	3
2017-49	10-12-17	Omitted	3
2017-50	11- 7-17	Included	3
2017-51	11- 7-17	Omitted	3
2017-52	11-22-17	Omitted	3
2017-53	11-27-17	Omitted	3
2017-54	12- 8-17	Omitted	3
2017-55	12- 8-17	Omitted	3
2017-56	12- 8-17	Omitted	3
2018-1	1-18-18	Omitted	4
2018-2	1-23-18	Included	4
2018-3	2- 9-18	Included	4
2018-4	2- 9-18	Omitted	4
2018-5	2-21-18	Included	4
2018-6	2-26-18	Omitted	4
2018-7	3-26-18	Omitted	4
2018-8	3-26-18	Omitted	4

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2018-9	3-26-18	Omitted	4
2018-10	4-16-18	Included	4
2018-11	4-16-18	Included	4
2018-12	4-16-18	Included	4
2018-13	4-16-18	Omitted	4
2018-14	4-20-18	Omitted	4
2018-15	4-20-18	Omitted	4
2018-16	4-20-18	Omitted	4
2018-17	4-20-18	Omitted	4
2018-18	4-20-18	Omitted	4
2018-19	5-11-18	Omitted	4
2018-20	5-14-18	Omitted	4
2018-21	5-14-18	Omitted	4
2018-22	5-14-18	Omitted	4
2018-23	5-14-18	Omitted	4
2018-24	5-24-18	Omitted	4
2018-25	6-22-18	Omitted	4
2018-26	6-22-18	Omitted	4
2018-27	6-22-18	Included	4
2018-28	7- 2-18	Omitted	4
2018-29	7- 2-18	Omitted	4
2018-30	7- 2-18	Omitted	4
2018-31	7- 2-18	Omitted	4
2018-32	7- 2-18	Omitted	4
2018-33	7- 2-18	Omitted	4
2018-34	7- 2-18	Omitted	4
2018-35	7- 2-18	Omitted	4
2018-36	7- 2-18	Omitted	4
2018-37	7-10-18	Included	4
2018-38	7-10-18	Included	4
2018-39	7-10-18	Included	4
2018-40	7-27-18	Omitted	4
2018-41	7-27-18	Omitted	4
2018-42	8- 2-18	Omitted	4
2018-43	8- 2-18	Omitted	4
2018-44	8- 2-18	Omitted	4
2018-45	8- 2-18	Included	4
2018-46	9-25-18	Included	4
2018-47	9-25-18	Omitted	4
2018-48	10- 9-18	Included	4
2018-49	10- 9-18	Omitted	4
2018-50	10- 9-18	Omitted	4
2018-51	10-25-18	Included	4
2018-52	10-25-18	Omitted	4

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2018-53	10-25-18	Omitted	4
2018-54	11- 8-18	Omitted	4
2018-55	11- 8-18	Omitted	4
2018-56	11- 8-18	Omitted	4
2018-57	11- 8-18	Omitted	4
2018-58	11- 8-18	Omitted	4
2018-59	11- 8-18	Omitted	4
2018-60	11- 8-18	Omitted	4
2018-61	11- 8-18	Omitted	4
2018-62	11- 8-18	Omitted	4
2018-63	11- 8-18	Omitted	4
2018-64	11- 8-18	Omitted	4
2018-65	11- 8-18	Omitted	4
2018-66	11- 8-18	Omitted	4
2018-67	11- 8-18	Omitted	4
2018-68	11- 8-18	Omitted	4
2018-69	11-20-18	Omitted	4
2018-70	11-20-18	Included	4
2018-71	11-20-18	Omitted	4
2018-72	11-20-18	Omitted	4
2018-73	11-20-18	Omitted	4
2018-74	11-20-18	Omitted	4
2018-75	11-20-18	Omitted	4
2018-76	11-20-18	Omitted	4
2018-77	11-20-18	Included	4
2018-78	12- 7-18	Included	4
2018-79	11-13-18	Omitted	4
2019-1	1-22-19	Included	5
2019-2	2-26-19	Included	5
2019-3	3-15-19	Omitted	5
2019-4	3-15-19	Omitted	5
2019-5	3-15-19	Omitted	5
2019-6	3-15-19	Omitted	5
2019-7	3-29-19	Omitted	5
2019-8	3-29-19	Omitted	5
2019-9	3-29-19	Omitted	5
2019-10	3-29-19	Omitted	5
2019-11	3-29-19	Omitted	5
2019-12	3-29-19	Included	5
2019-13	4- 1-19	Omitted	5
2019-14	4-15-19	Omitted	5
2019-15	5- 1-19	Included	5
2019-16	5- 1-19	Included	5
2019-17	5- 1-19	Included	5

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2019-18	5-30-19	Omitted	5
2019-19	5-30-19	Omitted	5
2019-20	5-30-19	Omitted	5
2019-21	5-30-19	Omitted	5
2019-22	5-30-19	Omitted	5
2019-23	7- 9-19	Omitted	5
2019-24	7- 9-19	Omitted	5
2019-25	7- 9-19	Omitted	5
2019-26	7- 9-19	Omitted	5
2019-27	7- 9-19	Omitted	5
2019-28	7- 9-19	Omitted	5
2019-29	7- 9-19	Omitted	5
2019-30	7-19-19	Included	5
2019-31	7-24-19	Omitted	5
2019-32	9-16-19	Omitted	5
2019-33	9-30-19	Included	5
2019-34	10-11-19	Omitted	5
2019-35	10-10-19	Omitted	5
2019-36	10-11-19	Omitted	5
2019-37	10-11-19	Omitted	5
2019-38	10-11-19	Omitted	5
2019-39	10-11-19	Omitted	5
2019-40	10-11-19	Omitted	5
2019-41	10-11-19	Omitted	5
2019-42	10-11-19	Omitted	5
2019-43	10-11-19	Omitted	5
2019-44	10-11-19	Omitted	5
2019-45	10-11-19	Omitted	5
2019-46	10-11-19	Omitted	5
2019-47	10-11-19	Omitted	5
2019-48	10-11-19	Included	5
2019-49	10-22-19	Included	5
2019-50	11-26-19	Omitted	5
2019-51	11-26-19	Omitted	5
2019-52	11-26-19	Omitted	5
2019-53	12-13-19	Omitted	5
2019-54	12-13-19	Omitted	5
2019-55	12-13-19	Omitted	5
2019-56	12-27-19	Included	5
2019-57	12-27-19	Omitted	5
2020-1	1- 9-20	Omitted	5
2020-2	3- 2-20	Included	5
2020-3	2-27-20	Omitted	5
2020-4	2-27-20	Omitted	5

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2020-5	2-27-20	Omitted	5
2020-6	2-27-20	Omitted	5
2020-7	2-27-20	Included	5
2020-8	2-27-20	Included	5
2020-9	3- 2-20	Omitted	5
2020-10	3- 2-20	Omitted	5
2020-11	3-20-20	Included	5
2020-12	3-20-20	Omitted	5
2020-13	4- 6-20	Omitted	5
2020-14	4- 6-20	Omitted	5
2020-15	5-13-20	Omitted	5
2020-16	5-13-20	Omitted	5
2020-17	5-26-20	Omitted	5
2020-18	5-26-20	Omitted	5
2020-19	5-26-20	Omitted	5
2020-20	6-26-20	Included	5
2020-21	6-26-20	Included	5
2020-22	6-26-20	Omitted	5
2020-23	6-30-20	Omitted	5
2020-24	7-22-20	Omitted	5
2020-25	9-14-20	Omitted	5
2020-26	9-14-20	Included	5
2020-27	9-24-20	Omitted	5
2020-28	9-24-20	Omitted	5
2020-29	9-24-20	Omitted	5
2020-30	9-24-20	Omitted	5
2020-31	9-24-20	Omitted	5
2020-32	10- 8-20	Included	5
2020-33	10-22-20	Omitted	5
2020-34	10-22-20	Omitted	5
2020-35	10-22-20	Omitted	5
2020-36	10-22-20	Included	5
2020-37	10-26-20	Omitted	5
2020-38	10-26-20	Omitted	5
2020-39	10-26-20	Omitted	5
2020-40	10-26-20	Omitted	5
2020-41	10-26-20	Omitted	5
2020-42	10-26-20	Omitted	5
2020-43	10-26-20	Omitted	5
2020-44	10-26-20	Omitted	5
2020-45	10-26-20	Omitted	5
2020-46	10-26-20	Omitted	5
2020-47	10-26-20	Omitted	5
2020-48	10-26-20	Included	5

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2020-49	11-13-20	Included	5
2020-50	11-25-20	Omitted	5
2020-51	11-25-20	Omitted	5
2020-52	11-25-20	Omitted	5
2021-1	2-26-21	Omitted	5
2021-2	2-26-21	Included	5
2021-3	3-11-21	Included	5
2021-4	3-25-21	Omitted	5
2021-5	3-25-21	Omitted	5
2021-6	3-25-21	Omitted	5
2021-7	3-25-21	Included	5
2021-8	4-19-21	Omitted	5
2021-9	4-19-21	Omitted	5
2021-10	4-19-21	Omitted	5
2021-11	4-19-21	Included	5
2021-12	4-19-21	Included	5
2021-13	5-17-21	Omitted	5
2021-14	6- 1-21	Omitted	5
2021-15	6- 1-21	Included	5
2021-16	6- 1-21	Omitted	5
2021-17	6- 1-21	Included	5
2021-18	6- 1-21	Omitted	5
2021-19	6- 1-21	Omitted	5
2021-20	6- 1-21	Included	5
2021-21	6- 1-21	Included	5
2021-22	6-24-21	Omitted	5
2021-23	6-24-21	Omitted	5
2021-24	7-16-21	Omitted	5
2021-25	7-16-21	Omitted	5
2021-26	7-16-21	Omitted	5
2021-27	7-16-21	Omitted	5
2021-28	7-16-21	Omitted	5
2021-29	7-27-21	Included	5
2021-30	8- 2-21	Included	5
2021-31	8- 2-21	Included	5
2021-32	8- 2-21	Omitted	5
2021-33	8- 2-21	Omitted	5
2021-34	8- 2-21	Omitted	5
2021-35	10-29-21	Omitted	5
2021-36	10-29-21	Omitted	5
2021-37	10-29-21	Omitted	5
2021-38	10-29-21	Omitted	5
2021-39	10-29-21	Omitted	5
2021-40	10-29-21	Omitted	5

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2021-41	10-29-21	Omitted	5
2021-42	10-29-21	Omitted	5
2021-43	10-29-21	Omitted	5
2021-44	10-29-21	Omitted	5
2021-45	10-29-21	Omitted	5
2021-46	10-29-21	Omitted	5
2021-47	10-29-21	Omitted	5
2021-48	10-29-21	Omitted	5
2021-49	10-29-21	Omitted	5
2021-50	11-15-21	Omitted	5
2021-51	11-15-21	Omitted	5
2022-1	1-13-22	Omitted	5
2022-2	2-23-22	Omitted	5
2022-3	2-23-22	Omitted	5
2022-4	4-15-22	Included	5
2022-5	4-18-22	Omitted	5
2022-6	4-18-22	Omitted	5
2022-7	4-18-22	Omitted	5
2022-8	4-18-22	Omitted	5
2022-9	4-18-22	Omitted	5
2022-10	4-18-22	Omitted	5
2022-11	4-18-22	Omitted	5
2022-12	4-25-22	Included	5
2022-13	4-25-22	Included	5
2022-14	4-25-22	Included	5
2022-15	4-25-22	Omitted	5
2022-16	4-25-22	Omitted	5
2022-17	4-25-22	Omitted	5
2022-18	4-25-22	Omitted	5
2022-19	4-25-22	Omitted	5
2022-20	4-25-22	Omitted	5
2022-21	5-20-22	Omitted	5
2022-22	6- 1-22	Omitted	5
2022-23	6- 1-22	Omitted	5
2022-24	6- 1-22	Omitted	5
2022-25	6-13-22	Included	5
2022-26	6-13-22	Omitted	5
2022-27	6-24-22	Omitted	5
2022-28	6-24-22	Omitted	5
2022-29	6-24-22	Omitted	5
2022-30	6-24-22	Omitted	5
2022-31	6-27-22	Included	5
2022-32	7-14-22	Omitted	5
2022-33	7-14-22	Omitted	5

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2022-34	8-10-22	Included	5
2022-35	9- 7-22	Omitted	5
2022-36	9- 7-22	Omitted	5
2022-37	9- 7-22	Omitted	5
2022-38	9- 7-22	Omitted	5
2022-39	9- 7-22	Omitted	5
2022-40	9- 7-22	Omitted	5
2022-300	7-28-22	Included	6
2022-41	10-12-22	Included	6
2022-42	10-12-22	Included	6
2022-58	11- 4-22	Omitted	6
2022-59	11- 4-22	Omitted	6
2022-43	11-10-22	Included	6
2022-44	11-10-22	Omitted	6
2022-45	11-10-22	Omitted	6
2022-46	11-10-22	Omitted	6
2022-47	11-10-22	Omitted	6
2022-48	11-10-22	Omitted	6
2022-49	11-10-22	Omitted	6
2022-50	11-10-22	Omitted	6
2022-51	11-10-22	Omitted	6
2022-52	11-10-22	Omitted	6
2022-53	11-10-22	Omitted	6
2022-54	11-10-22	Omitted	6
2022-55	11-10-22	Omitted	6
2022-56	11-10-22	Omitted	6
2022-57	11-10-22	Omitted	6
2022-60	11-18-22	Omitted	6
2022-61	12- 8-22	Omitted	6
2022-62	12- 8-22	Included	6
2022-63	12- 8-22	Omitted	6
2022-64	12- 8-22	Omitted	6
2022-65	12- 8-22	Included	6
2022-66	12-21-22	Omitted	6
2022-67	12-21-22	Included	6
2022-68	12-21-22	Omitted	6
2022-69	12-21-22	Omitted	6
2022-70	12-21-22	Omitted	6
2022-71	12-21-22	Omitted	6
2022-72	12-21-22	Omitted	6
2022-73	12-21-22	Omitted	6
2022-74	12-21-22	Omitted	6
2022-75	12-21-22	Omitted	6
2022-76	12-21-22	Omitted	6

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2023-1	2- 6-23	Omitted	6
2023-2	4-10-23	Included	6
2023-3	4-10-23	Included	6
2023-4	5-10-23	Omitted	6
2023-5	5-10-23	Omitted	6
2023-6	5-10-23	Omitted	6
2023-7	5-10-23	Omitted	6
2023-8	5-10-23	Omitted	6
2023-9	5-22-23	Included	6
2023-10	6- 7-23	Omitted	6
2023-11	6-26-23	Omitted	6
2023-12	6-26-23	Omitted	6
2023-13	6-26-23	Omitted	6
2023-14	6-26-23	Omitted	6
2023-15	6-25-23	Omitted	6
2023-16	7-25-23	Omitted	6
2023-17	7-25-23	Omitted	6
2023-18	7-25-23	Omitted	6
2023-19	7-25-23	Omitted	6
2023-20	7-25-23	Omitted	6
2023-21	10-13-23	Omitted	7
2023-22	10-13-23	Omitted	7
2023-23	10-13-23	Omitted	7
2023-24	10-13-23	Omitted	7
2023-25	10-13-23	Omitted	7
2023-26	10-13-23	Omitted	7
2023-27	10-13-23	Omitted	7
2023-28	10-13-23	Omitted	7
2023-29	10-13-23	Omitted	7
2023-30	10-13-23	Omitted	7
2023-31	10-13-23	Omitted	7
2023-32	10-13-23	Omitted	7
2023-33	10-13-23	Omitted	7
2023-34	10-13-23	Omitted	7
2023-35	10-25-23	Omitted	7
2023-36	11- 8-23	Included	7
2023-37	11-22-23	Omitted	7
2023-38	11-22-23	Omitted	7
2023-39	12-13-23	Omitted	7
2023-40	12-13-23	Omitted	7
2023-41	12-13-23	Omitted	7
2023-42	12-13-23	Omitted	7
2023-43	12-13-23	Omitted	7
2023-44	12-13-23	Omitted	7

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2023-45	12-13-23	Omitted	7
2023-46	12-13-23	Omitted	7
2023-47	12-13-23	Omitted	7
2023-48	12-13-23	Omitted	7
2023-49	12-21-23	Included	7
2023-50	12-21-23	Included	7
2023-51	12-21-23	Included	7
2023-52	12-21-23	Included	7
2024-1	1-12-24	Omitted	7
2024-2	3-13-24	Omitted	7
2024-3	3-12-24	Included	7
2024-4	3-13-24	Omitted	7
2024-5	3-13-24	Omitted	7
2024-6	3-13-24	Omitted	7
2024-7	3-13-24	Omitted	7
2024-8	3-13-24	Omitted	7
2024-9	3-27-24	Omitted	7
2024-10	4- 5-24	Included	7
2024-11	4- 5-24	Included	7
2024-12	4-24-24	Omitted	7
2024-13	5- 8-24	Omitted	7
2024-14	5- 8-24	Omitted	7
2024-15	5-24-24	Included	7
2024-16	5-24-24	Included	7
2024-17	5-24-24	Included	7
2024-18	5-24-24	Included	7
2024-19	5-24-24	Omitted	7
2024-20	5-24-24	Omitted	7
2024-21	5-24-24	Omitted	7
2024-22	5-24-24	Omitted	7
2024-23	5-24-24	Omitted	7
2024-24	5-24-24	Omitted	7
2024-25	5-24-24	Included	7
2024-26	5-24-24	Omitted	7
2024-27	6-12-24	Omitted	7
2024-28	6-25-24	Omitted	7
2024-29	6-25-24	Omitted	7
2024-30	6-25-24	Omitted	7
2024-31	6-26-24	Omitted	7
2024-32	6-25-24	Included	7
2024-33	6-25-24	Omitted	7
2024-34	6-25-24	Omitted	7
2024-35	6-28-24	Omitted	7
2024-36	6-28-24	Omitted	7

SUPPLEMENT HISTORY TABLE

Chapter No.	Date Approved	Included/ Omitted	Supp. No.
2024-37	6-28-24	Omitted	7
2024-38	6-28-24	Omitted	7
2024-39	7-17-24	Omitted	7
2024-40	7-23-24	Included	7
2024-41	7-23-24	Omitted	7
2024-42	7-23-24	Omitted	7
2024-43	7-23-24	Omitted	7
2024-44	10-10-24	Omitted	7
2024-45	10-10-24	Omitted	7
2024-46	10-13-24	Omitted	7
2024-47	10-24-24	Omitted	7
2024-48	10-24-24	Omitted	7
2024-49	10-24-24	Omitted	7
2024-50	10-24-24	Omitted	7
2024-51	10-24-24	Omitted	7
2024-52	10-24-24	Omitted	7
2024-53	10-24-24	Omitted	7
2024-54	10-24-24	Omitted	7
2024-55	10-24-24	Omitted	7
2024-56	10-24-24	Omitted	7
2024-57	10-24-24	Omitted	7
2024-58	10-24-24	Omitted	7
2024-59	10-24-24	Omitted	7
2024-60	10-24-24	Omitted	7
2024-61	11-13-24	Omitted	7
2024-62	11-13-24	Omitted	7
2024-63	11-13-24	Omitted	7
2024-64	11-13-24	Included	7
2024-65	11-26-24	Omitted	7
2024-66	11-22-24	Omitted	7
2024-67	12- 9-24	Omitted	7
2024-68	12- 9-24	Omitted	7
2024-69	12- 9-24	Omitted	7
2024-70	12- 9-24	Omitted	7
2024-71	12- 9-24	Omitted	7
2024-72	12- 9-24	Omitted	7
2024-73	12- 9-24	Omitted	7

PART I

HOME RULE CHARTER

ARTICLE I. BASIC PROVISIONS

101. Title.
102. Incorporation.
103. General corporate powers.
104. Exercise of powers.
105. Form of government.
106. Reserved.
107. Definitions.

101. Title.

The people of the City of Providence hereby establish this home rule Charter for the better conduct of their affairs and to secure for themselves the benefits and rights of self-government guaranteed by the Constitution of the State of Rhode Island. This Charter shall be cited as the Providence Home Rule Charter of 1980.

102. Incorporation.

The inhabitants of the City of Providence shall be a body politic and corporate under the name of the City of Providence and shall have, exercise and enjoy all the rights, immunities, powers, privileges and franchises and shall be subject to all the duties and obligations of a municipal corporation under the Constitution and laws of the State of Rhode Island and of the United States of America.

103. General corporate powers.

The city shall have all powers of local self-government and home rule and all powers possible for a city to have under the Constitution and the laws of the state, including the power and authority to act in all local and municipal matters and to adopt local laws and ordinances relating to its property, affairs and government.

104. Exercise of powers.

All powers of the city shall be exercised in the manner prescribed by this Charter or, if not so prescribed, then in such manner as shall be provided by ordinance or resolution of the city council.

105. Form of government.

The municipal government established by this Charter shall be known as the mayor-council form of government. All powers of the city shall be vested in a chief executive to be known as the mayor and a legislative body to be known as the city council.

106. Reserved.

107. Definitions.

The terms used in this Charter shall have the following meaning:

(a) "City" shall mean the City of Providence, in the County of Providence, and the State of Rhode Island.

(b) "Council" shall mean the duly elected city council of the City of Providence.

(c) "Domiciled" shall mean that place where a person has his or her true, fixed, and permanent home and principal establishment, and to which whenever he or she is absent has the intention of returning.

(d) "Mayor" Whenever the word "mayor" is used, it shall mean the mayor of the City of Providence.

(e) "Quorum" shall mean a majority of the members of a public body or duly-appointed committee.

(Res. No. 509, 8-7-12)

ARTICLE II. ELECTIONS

201. Elected officials.
202. Date of election and terms of office.
203. Board of canvassers.
204. Wards, ward boundaries, regions and region boundaries.
205. Swearing in of elected officials.
206. Vacancies in elective offices.
207. Enforcement.
208. Recall.
209. The initiative.

201. Elected officials.

The elected officials of the city shall consist of a mayor, who shall be elected at-large by the qualified voters of the City of Providence, a city council which shall consist of fifteen (15) members, one elected from each of the fifteen (15) wards into which the city shall be divided pursuant to section 204 of this article, and an elected school board consisting of five (5) members, one elected from each of the five (5) regions into which the city shall be divided pursuant to section 204 of this article.
(Res. No. 2022-300, 7-28-22)

202. Date of election and terms of office.

The mayor, the members of the city council and elected members of the school board shall each be elected for a term of four (4) years at a general city election to be held on the Tuesday next after the first Monday in November, A.D. 1982, and each fourth year thereafter. Said elections shall be conducted pursuant to applicable provisions of state election law, and the provisions of any special acts relating to the city. The term of office of the mayor, the terms of office of the members of the city council, and the terms of the elected members of the school board shall begin on the first Monday in January next following their election, and each person shall hold office until his or her successor is elected and qualified; provided, however, that no such office becomes vacant before the end of the term as a result of a recall pursuant to section 208 of this article, or from other causes, pursuant to section 206 of this article. The mayor shall be limited to serving two (2) consecutive full terms (excluding any partial term of less than two (2) years previously served); and council members shall be limited to serving three (3) consecutive full terms (excluding any partial term of less than two (2) years previously served).
(Election of 11-7-06; Res. No. 2022-300, 7-28-22)

203. Board of canvassers.

There shall be a board of canvassers of three (3) qualified electors of the city, not more than two (2) of whom shall belong to the same political party.

(a) *Appointment.* Upon the expiration of the terms of each of the members of the board who are in office on the effective date of this Charter, the city council

shall elect a member of said board to succeed the member whose term is expiring, to serve for a term of six (6) years. All terms of members of the board shall commence on the first Monday in March, next following their election. The mayor shall nominate the members of the board from lists of party voters submitted by the respective chair of the city political committees. Each such list shall contain the names of five (5) times the number of persons to be appointed. If the city council shall refuse to approve the nomination of any person to the board, the mayor shall submit another person named on one of the lists, and so on until a person shall be appointed; provided, however, if the chair of the city committee of a political party entitled to an appointment shall fail or refuse to submit a list as aforesaid, the mayor shall nominate any party voter of the political party entitled to said appointment.

(b) *Powers and duties.* The board of canvassers shall:

(1) Select one of its members as presiding officer and another as clerk of the board;

(2) Exercise the powers and duties established by law for such boards concerning nominations, elections, registration of voters and canvassing rights, the preparing and correcting of voting lists and other matters relating thereto;

(3) Make or furnish all returns or other things required by law of such boards within the purview of state election law;

(4) Appoint and employ all its necessary clerical and technical assistants and fix the compensation of each person so appointed, within the limits of funds available to it pursuant to law.

(Res. No. 2022-300, 7-28-22)

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

204. Wards, ward boundaries, regions and region boundaries.

The city shall be divided into fifteen (15) council wards and five (5) school board regions, the boundaries of which shall be drawn pursuant to the provisions of this section.

(a) The city council shall, following each federal decennial census, enact an ordinance providing for the establishment of the boundary lines of the fifteen (15) council wards, and five (5) school board regions of the city, said boundary lines to be established following the federal census of 1980, and to be revised as necessary to conform to the criteria set forth in subsection (b) of this section, following the federal census of 1990 and each census thereafter.

(b) The procedure for establishing or revising the council ward and school board region boundary lines, as the case may be, shall be the following:

(1) At its first meeting in September, 1981, 1991, 2001 and 2011, and at its first meeting in January each tenth year thereafter, the city council shall elect a committee on ward boundaries of five (5) members, who may be members of the city council or other qualified persons who are electors of, and are domiciled in, the city as defined in Section 206 below. Three (3) members are to be elected by the majority party, and two (2) members are to be elected by the members of the city council who are not members of that party. The committee shall draw up a plan for establishing or revising the council wards and school board regions subject to the following requirements:

(A) The committee will hold at least four (4) public meetings, during which public comment will be accepted, at various locations throughout the City of Providence before designating a map to submit to the city council for approval;

(B) The committee will provide public notice at least seventy-two (72) hours before holding its meeting to approve the final map that is submitted to the city council for approval. Public comment will be accepted at this meeting prior to the vote;

(C) The committee will submit with the final map a written report of findings and reasons for adoption which includes notation of all criteria employed in the process and a full analysis and explanation of decisions made by the committee;

(D) All committee meetings will comply with the Open Meetings Act.

(2) Upon receiving the plan, the city council shall hold at least one public hearing thereon, following the completion of which the city council shall adopt the plan as presented or with such amendments as it shall think proper. Final approval will require two (2) separate votes by the city council, with the second vote taking place no sooner than seventy-two (72) hours after the first one. Final approval will require a vote of at least two-thirds (⅔) of all city council members attending the meeting at which the vote is taken.

(3) The procedure set forth in this subsection shall be completed no later than March 1, 1982, in the case of the committee appointed in September, 1981, 1991, 2001 and 2011 and May first of each tenth year thereafter.

(c) The committee on ward boundaries and the city council shall insure that said boundaries are drawn in accordance with the following criteria:

(1) Equality of ward, and region, populations so far as practicable;

(2) Contiguousness of the territory of each ward and region;

(3) Wards and regions shall comply with the federal Voting Rights Act (42 U.S.C. Sec. 1971 and following).

(4) The geographic integrity of any local neighborhood, or local community of interest, shall be respected in a manner that minimizes their division to the extent possible without violating the requirements of any of the preceding subdivisions. A community of interest is a contiguous population which shares common social and economic interests that should be included within a single ward for purposes of its effective and fair representation. Examples of such shared interests are those common to an urban area, an industrial area, and those common to areas in which the people share similar living standards, use the same transportation facilities, have similar work opportunities, or have access to the same media of communication relevant to the election process. Communities of interest shall not include relationships with political parties, incumbents, or political candidates.

(5) To the extent practicable, and where this does not conflict with the criteria above, wards and regions shall be drawn to encourage geographical compactness such that nearby areas of population are not bypassed for more distant population.

(6) The place of residence of any incumbent or political candidate shall not be considered in the creation of a map. Council wards and school board regions shall not be drawn for the purpose of favoring or discriminating against an incumbent, political candidate, or political party.

(d) If the Charter is revised to change the number of council wards or school board regions for an election to take place prior to the next decennial census, the city council will determine the new council ward and school board region boundaries in compliance with the procedures and standards set forth above, except that the date for forming the ward boundaries committee will be January 1 of the year preceding the election, and the date for completing the ward and region boundary map will be May 1 of the year of the election.
(Res. No. 515, 8-8-12; Res. No. 2022-300, 7-28-22)

205. Swearing in of elected officials.

The mayor, the members of the city council and the elected members of the school board, before taking office, shall first be sworn or affirmed to the faithful discharge of their duties, and to the support of the Constitution and laws of the State of Rhode Island and of the Constitution of the United States, in the form and manner provided by law. The oath shall be administered by the judge of the probate court of the City of Providence, or in the judge's absence by the clerk thereof; such oath shall be administered only to a candidate or candidates to whom a certificate of election

has been issued as required by law; provided, however, that said oath may be refused to any candidate where the election of such candidate shall have been declared void by a court of competent jurisdiction.
(Res. No. 2022-300, 7-28-22)

206. Vacancies in elective offices.

(a) Vacancies in the offices covered by the provisions of this article shall be defined and filled pursuant to the provisions of this section. For the purposes of this section, a vacancy in a city elective office shall be declared to exist by the city council in the event the incumbent thereof:

(1) Dies;

(2) Holds any other elective public office carrying a salary, whether such office be municipal, state, or federal;

(3) Ceases to be domiciled in, and a qualified elector of, the city; or, in the case of a member of the city council, ceases to be domiciled in, and a qualified elector of, the ward from which the member of the city council was elected; or, in the case of an elected school board member, ceases to be domiciled in, and a qualified elector of, the region from which the elected member of the school board was elected. As used herein, domiciled shall mean "that place where a person has his or her, true, fixed, and permanent home and principal establishment, and to which whenever he or she is absent has the intention of returning";

(4) Resigns;

(5) Is convicted of a felony or a crime of moral turpitude and has exhausted all appeals from said conviction;

(6) Is recalled as provided hereafter; or

(7) Is otherwise permanently incapable of performing his or her duties of office.

The city council shall provide by ordinance such definitions and procedures as may be necessary and appropriate to carry out its duties under this section, including but not limited to the suspension of an official convicted of a felony from performing any official duties until said official's status is finally determined.

(b) If a vacancy occurs in the office of mayor, of a member of the city council or of an elected school board member more than one hundred eighty (180) days before the time of holding the next succeeding regular city election, the city council shall call a special election for the purpose of filling such vacancy for the remainder of such person's term, such special election to be held within ninety (90) days of the date of the occurrence of such vacancy. If any such vacancy occurs one hundred eighty (180) days or less before the time of holding the next succeeding regular city election, the city council shall call a special election for said purpose, to be held within said period

of ninety (90) days, on demand in writing signed by at least one-third of all the members of the city council, and filed with the board of canvassers and the city clerk at least one hundred (100) days prior to the time of holding the next succeeding regular city election. In the event that any state election, regular or special, or any city election for any other purpose shall be held within said period of ninety (90) days, the city council may in its discretion order any special election required by the provisions of this section to be held at the same time as such other city or state election.
(Res. No. 2022-300, 7-28-22)

207. Enforcement.

In the event that the city council does not declare a vacancy in the city council or the elected school board pursuant to section 206(a) above, any fifty (50) qualified electors of a single ward, or single region as it pertains to an elected school board member, may file a signed statement with the city clerk charging that the member of the city council elected from said ward, or that the elected school board member from said region, has ceased to possess one or more of the qualifications of office, and stating the particulars as to what lack of qualifications is charged. The city clerk shall present the charges to the city council at its next regular meeting, and at such meeting, the city council shall set a time and place for the holding of a public hearing thereon. Such hearing shall be held not more than fifteen (15) days after said meeting of the city council, and the city council shall determine whether the charges shall be sustained. Upon the affirmative vote of two-thirds of the entire city council, the seat shall be deemed vacant and shall be filled pursuant to the provisions of section 206(b) above.
(Res. No. 2022-300, 7-28-22)

208. Recall.

The mayor, members of the city council or an elected school board member may be removed from office by recall, provided that recall may not be initiated during either the first six (6) months or the last year of an incumbent's term. The procedure to accomplish removal by recall shall be as follows:

(a) A declaration of intent to petition for recall shall be filed with the city clerk; in seeking recall of the mayor said declaration shall include the signatures of one thousand (1,000) qualified city electors, or in the case of members of the city council or elected school board member shall include the signatures of three hundred (300) qualified electors of the ward, or region as it pertains to an elected school board member, from which such member was elected;

(b) Within one hundred twenty (120) days of the presentation of said declaration, a written petition demanding the removal of the mayor, member of the city council or elected school board member shall be filed with the city clerk. When removal of the mayor is demanded, said petition shall include the

signatures of fifteen (15) per cent of all qualified city electors, provided that no more than fifteen (15) per cent of the total signatures thereon may be from any one ward of the city. When removal of a member of city council is demanded, said petition shall include the signatures of twenty (20) per cent of the qualified electors of the ward from which such member of city council was elected. When removal of a member of the elected school board is demanded, said petition shall include the signatures of twenty (20) per cent of the qualified electors of the region from which such member of the school board was elected. The signatures on any recall petition provided for in this subsection may be on separate papers, but to each separate paper there shall be attached a signed statement of the circulator thereof, who states therein under oath, that each signature appended to said paper was made in the presence of the circulator. All such papers comprising a recall petition may be bound together and filed as one instrument at one time, or may be filed at different times as separate papers; provided, however, that all such separate papers must be filed within the time limit set in this subsection.

(c) The city clerk shall refer said petition forthwith to the board of canvassers which shall within ten (10) days from the date of the filing of such petition examine it and shall from the voters registered determine the sufficiency thereof and certify the results to the city council forthwith; if the examination shows that the petition contains the requisite number of signatures, the city council shall order and fix, forthwith, a date for holding an election, which date shall not be less than thirty (30) nor more than sixty (60) days from the date that the board of canvassers certified the petition as sufficient;

(d) Each ballot at such election shall have printed thereon the following question: "Shall (name of person) be removed from the office of (name of office)?" Immediately following such question, there shall be printed on the ballot the following two (2) propositions in this order:

"Yes"

"No"

(e) In any such election, if a majority of the votes cast on the question of removal is affirmative, the person whose removal is sought shall thereupon be deemed removed from office as of certification of the results by the board of elections.

(f) The city council may, through ordinance, make other and further regulations for carrying out the provisions of this section not inconsistent herewith.

(Res. No. 2022-300, 7-28-22)

209. The initiative.

The right to enact ordinances is hereby granted to the qualified electors of the city by initiative, provided that such power shall not extend to the budget or capital

programs or to any ordinance relating to the appropriation of money, or to the levy of taxes or to the salaries and benefits of city officials or employees. The initiative shall be exercised in the following manner:

(a) Whenever one thousand (1,000) qualified electors of the city petition the city council to enact a proposed ordinance, it shall be the duty of the city council to consider such proposed ordinance within seventy (70) days of receipt. Receipt, for the purpose of this subsection, shall be defined as the reading of said petition at the next regularly scheduled meeting of the city council.

(b) The signatures on any initiative petition provided for in this subsection may be on separate papers; provided, however, that each such separate paper shall contain a full and correct copy of the title and text of the proposed ordinance and all such separate papers shall be bound together and filed as one instrument with the city clerk. To each said separate paper there shall be attached a signed statement of the circulator thereof, who states therein under oath, that each signature appended to said paper was made in the presence of the circulator.

(c) In the event that the city council shall fail to enact such proposed ordinance without amendment, and upon the receipt by the city clerk of a notarized referendum petition signed by an additional five (5) per cent of the qualified electors of the city, the city council shall submit such proposed ordinance to a vote of the people of the city at the next general election; provided, however, that said ballot referendum petition must be filed at least sixty (60) days prior to the date fixed for such general election.

(d) The ballots used when voting upon such proposed ordinance shall include an ordinance title which shall state the purpose or intent of such ordinance, the question, "Shall the ordinance pass?" and shall set forth on separate lines the words "Yes" and "No."

(e) If a majority of the electors voting on the proposed ordinance shall vote in favor thereof, such ordinance shall thereupon become a valid binding ordinance of the city; an ordinance so adopted shall not be altered or modified by the city council within one year after the adoption of the ordinance at said general election.

(f) The city council may, by ordinance, make such other further regulations for carrying out the provisions of this section as are not inconsistent herewith.

ARTICLE III. MAYOR

301. Executive and administration powers.
302. Powers and duties of the mayor.
303. Salary.
304. Absence or disability.

301. Executive and administrative powers.

The executive and administrative powers of the city shall be vested in a mayor, who shall have and exercise all powers and duties that are or may be vested in the office of mayor by this Charter, the ordinances of the city council, and by the laws of the state.

302. Powers and duties of the mayor.

The powers and duties of the mayor shall include, without limitation, the following:

(a) To supervise, direct and control the activities of all departments and agencies of city government to the extent and in the manner provided by this Charter and by the ordinances of the city, and the laws of the state.

(b) To appoint all heads of city departments and agencies with the approval of the city council, except as otherwise provided in this Charter, which approval shall be sought at the commencement of a mayor's four (4) year term, regardless of whether the mayor has served a previous term; and to appoint such other officials as the mayor may be empowered to appoint by this Charter or by the laws of the state, with the approval of the city council unless the power of appointment is vested in the mayor alone. Except as otherwise provided herein, all such appointees shall serve at the pleasure of the mayor. In no case shall a person serving under an acting appointment hold office on that basis for more than ninety (90) days, nor shall a regular appointee serve beyond the expiration of the term for which he or she was appointed unless reappointed in accordance herewith.

(c) To prepare and implement the city budget.

(d) To call special meetings of the city council in the manner provided in section 406 of Article IV of this Charter.

(e) To communicate to the city, from time to time, such information and recommendations as the mayor may think appropriate.

(f) To pass upon all ordinances and resolutions adopted by the city council and exercise the right of veto conferred upon the mayor by the provisions of section 412 of Article IV of this Charter. The right of veto shall include the authority to veto any ordinance or resolution in its entirety, and as to any budget or appropriation, to veto or reduce any separate line item or items.

(g) To insure that all officers of the city faithfully comply with and discharge their official duties.

(h) To assign or reassign by executive order any governmental function or functions not specifically provided for by this Charter to any department or agency herein established.

(i) To declare a state of emergency when the mayor shall deem such action necessary to preserve the public peace, property, health or safety of the city, such declaration to have effect for no more than sixty (60) days unless renewed with the approval of three-fourths of all of the members of the city council.

(Res. No. 2022-300, 7-28-22)

303. Salary.

The compensation of the mayor shall be fixed pursuant to the provisions of Article IV, section 415.

304. Absence or disability.

Whenever the mayor is temporarily unable to perform the duties of the office because of illness or accident as declared by the city council by an affirmative vote of three-fourths of its members or because of absence from the city for more than fifteen (15) consecutive days, the powers and duties of the mayor shall be exercised and performed by the president of the city council. The city council shall have the power to prescribe by ordinance or resolution such definitions and procedures as may be necessary for the application of the provisions of this section, but not inconsistent therewith.

ARTICLE IV. CITY COUNCIL

401. Legislative powers.
402. Power of investigation.
403. Charges against administrative personnel.
404. Organization meeting of city council.
405. President and president pro tempore of city council.
406. Meetings.
407. Rules, quorum, journal.
408. Voting.
409. Introduction and form of ordinances.
410. Inspection of proposed ordinances and resolutions by the public.
411. Public hearings.
412. Mayor's veto and council reconsideration.
413. Emergency measures.
414. Authentication and publication of ordinances and resolutions.
415. Salaries; salary review commission.
416. Acquisition and disposal of property.

401. Legislative powers.

The legislative powers of the city shall be vested in a city council, which shall have and exercise all powers vested in it by this Charter and by the laws of the state. The powers and duties of the city council shall include, without limitation, the following:

(a) To enact such ordinances as the city council may consider necessary to insure the welfare and good order of the city and to provide penalties for the violation thereof;

(b) To approve or reject all appointments submitted to the city council by the mayor pursuant to section 302(b) of Article III; provided, however, that any such appointment upon which the city council fails to act within thirty-five (35) calendar days of its submission shall be deemed to have been approved. The thirty-five (35) days shall commence with the first meeting of the city council at which the appointment appears on the agenda. The mayor may withdraw any appointment before it has been acted upon by the city council;

(c) To adopt the annual city budget appropriation ordinance and levy taxes;

(d) To retain by majority vote of the entire city council and to fix the salaries of those consultants it deems necessary for the exercise of its functions including, but not limited to, accountants, engineers, and other experts not regularly employed in any city department or service. Legal counsel shall be retained by two-thirds vote of the entire city council and to fix the salaries of Legal counsel it deems necessary for the exercise of its functions. The city council shall have the power to appropriate funds to defray the costs thereof;

(e) To appoint officers and employees of the city as prescribed by this Charter. (Election of 11-7-06; Res. No. 2022-300, 7-28-22)

402. Power of investigation.

The city council or any duly authorized committee thereof may investigate the financial transaction of any office or department of the city and the acts and conduct of any city office, department or agency or to any matter upon which the city council may act and, by investigation, may secure information on any matter within its jurisdiction. In connection with such investigation, the city council may compel the attendance of witnesses and the production of books, papers and other evidence. The subpoena power granted herein may be delegated upon the majority of a vote of its members, to any standing committee requesting same for a specified investigation. Subpoenas shall be signed by the presiding officer of the city council or the chairperson of any committee to which such power has been delegated and may be served and executed by an officer authorized by law to serve subpoenas.

If any witness shall refuse to testify to any facts within the knowledge of such witness, or produce any papers or books in the possession or control of such witness relating to the matter under inquiry by the city council or any authorized committee thereof, the city council, by resolution, may seek a citation of such witness for contempt. Upon the adoption of said resolution, the city clerk shall forthwith notify the city solicitor who shall, within ten (10) days of said notification, apply ex parte to any court of competent jurisdiction for a citation of such witness for contempt, and thereupon such witness may be cited and punished in like manner as if such witness was in contempt of said court. In the event that the city solicitor fails or refuses to act within thirty (30) days as required by this section, the city council may according to Article IV, section 401(d), employ and fix the compensation of counsel who shall, upon appointment, be empowered to seek citations in contempt and otherwise assist the city council in its investigation.

No witness shall be excused from testifying as to his or her knowledge of a matter under investigation in any city council inquiry, but such testimony shall not be used against such witness in any subsequent criminal prosecution except for perjury committed upon such inquiry, unless such witness shall in writing at the time of so testifying waive his or her rights not to have such testimony used against him or her.

Except insofar as is necessary in the performance of the duties of a member of the city council, no member of the city council shall interfere in any way with the actual administration of any administrative department or division of the city government, nor shall any such member or members interfere in any way in connection with the appointment or promotion of any of the personnel of the city government, or attempt to obtain the removal of any such personnel except as explicitly provided in this Charter.

403. Charges against administrative personnel.

Subject to the general laws of the state, except as otherwise provided by this Charter, the city council may bring charges against any department head or agency head, any deputy thereof, any appointive officer of the city, any appointee of the city council or any appointee of the mayor, except the staff of the mayor's office, for neglect of duty or gross misconduct having an effect upon the discharge of the duties of such person. Any such charges which the city council should choose to bring shall first be presented to the mayor, in writing. Not less than thirty (30) days after the delivery of such charges, the city council shall order a public hearing thereon, which hearing shall be held only after due notice to such person of the details of such charges and with reasonable provision for answer by said individual. The person so charged shall have the right to be heard, to be represented by counsel, and to request the city council to compel the attendance of witnesses and production of evidence, including relevant records of the city.

After such hearing is concluded, the city council may, upon the affirmative vote of at least two-thirds of all of its members, suspend or dismiss any department head or agency head, any deputy thereof, any appointive officer of the city, whereas a majority vote of all of its members is required to dismiss any appointee of the city council. Such action shall be final and not subject to veto by the mayor.

The hearing process may be specified in this charter or by ordinance.
(Res. No. 2022-300, 7-28-22)

404. Organization meeting of city council.

At twelve o'clock noon on the first Monday of January or the first Tuesday if the first of January shall fall on a Monday, following a regular municipal election, the newly elected members who shall have taken the oath of office in the form and manner required by this Charter shall assume the duties of office. Until the election of a president as provided in section 405 hereof, the presiding officer of the city council shall be the member who shall be the senior member of the city council in point of service thereon whether or not in consecutive terms, or, if there shall be two (2) or more members with equal seniority, then, of these, the member senior in age shall be the presiding officer.

405. President and president pro tempore of city council.

At its first meeting in the month of January next following a regular municipal election, or as soon thereafter as possible, the city council shall elect from among its members a president and a president pro tempore. The affirmative votes of a majority of the entire city council shall be required for each such election. The president shall preside over the meetings of the city council.

During any absence of the president from any meeting of the city council the president pro tempore shall preside. In case of the absence of the president from the city or the president's inability to discharge the duties, the president pro tempore shall discharge the duties of such office.

In case of the absence of both the president and president pro tempore or the inability of both to discharge the aforesaid duties of the office of president, the city council may in such case elect one of its other members to perform such duties.

406. Meetings.

Regular meetings shall be held at such times and in such places as may be prescribed by ordinance or resolution, but not less frequently than once each month. Special meetings shall be called by the city clerk, or in the absence of the city clerk, by a duly authorized assistant, upon written request of the mayor, the president of the city council or of five (5) members of the city council. Notice of any special meeting shall be served personally on each member, or at least two (2) days' notice thereof shall be given each member in any other manner prescribed by ordinance. No business shall be transacted at any special meeting of the city council unless notice of same is included in the call of the meeting. All meetings of the city council and all committees thereof shall be open to the public; except that the city council may upon the affirmative vote of a majority of its members, authorize an executive session in accordance with state law.

407. Rules, quorum, journal.

The legislative powers of the city council shall be exercised as provided by this Charter or by ordinance or rule not in conflict therewith. A majority of all members of the city council shall constitute a quorum. A less number of members of the city council than a quorum may adjourn from time to time and compel the attendance of absent members in such manner and under such penalties as may be prescribed by ordinance.

The city council shall from time to time establish rules for its proceedings and, in case applicable rules have not been adopted, shall be governed by "Robert's Rules of Order" and by the common law. A full and accurate journal of the proceedings of the city council shall be kept and shall be a public record.

408. Voting.

Every member of the city council may vote on any question coming before it, except as provided by state law. All voting on ordinances shall be by roll call and the yeas and nays of the individual members shall be recorded in the journal.

409. Introduction and form of ordinances.

Every ordinance and resolution shall be introduced in written or printed form, and passed or adopted at each reading by a majority of the members of the city council then present. Every legislative act shall be by ordinance. When introduced, any ordinance requiring an appropriation of money for implementation shall bear a fiscal note prepared by the budget analyst stating the estimated annual cost of such ordinance. No ordinance shall be so amended in its second passage as to change its original purpose. Ordinances making annual or supplemental appropriations shall be confined to the subject of appropriations.

410. Inspection of proposed ordinances and resolutions by the public.

(a) [*Copy on file.*] After the introduction of any resolution or ordinance in the city council, the city clerk shall keep available a copy of such proposed resolution or ordinance, together with all amendments thereto, which shall be a public record.

(b) *Procedure for the passage of ordinances.* No ordinance shall be passed until it has been read on two (2) separate occasions at least forty-eight (48) hours elapsing between the first and the second readings; provided, however, that the requirement for a second reading may be dispensed with in the case of emergency ordinances by a vote of not less than three-fourths of the entire city council. The second reading of each ordinance shall be in full, unless a copy thereof shall have been furnished to each member of the city council prior to such reading.

411. Public hearings.

The city council shall not take final action on the following types of legislation without a public hearing, which shall be held not less than ten (10) days following notice published in a newspaper circulated generally in the City of Providence:

(a) Salaries of elected officers of the city, appointed members of commissions, department and agency heads;

(b) The annual appropriation ordinance and capital improvement budget;

(c) Land use control, such as zoning, subdivision or planning, including adoption of the comprehensive plan;

(d) New taxes or increases in the rate of existing taxes;

(e) Wards and ward boundaries; and

(f) Proposed Charter amendments or changes.

When any ordinance or resolution shall be referred by the city council to a committee for further investigation, said committee may hold public hearings thereon; and in the event that a petition shall be presented to the city clerk signed by at least fifty (50) qualified electors of the city, the committee shall hold a public hearing within two (2) weeks from the date of presentation.

A public hearing required or permitted by this Charter shall be preceded by a notice setting forth the date, time and a brief description of the substance of the hearings, such notice to be published in a newspaper of general circulation in the City of Providence not less than ten (10) days prior to the hearing and posted in the office of the city clerk.

412. Mayor's veto and council reconsideration.

Each resolution or ordinance adopted by the city council shall, within twenty-four (24) hours of final passage thereof, be transmitted to the mayor by the city clerk. Any

ordinance adopted by the city council as an emergency measure shall be acted upon by the mayor within three (3) days after receipt thereof by the mayor from the city clerk. All other ordinances or resolutions shall be acted upon by the mayor within ten (10) days of such receipt. The mayor shall either approve such ordinance or resolution adopted by the city council by signing and returning the same to the city clerk within the time limit applicable thereto, or the mayor shall disapprove and veto any resolution or ordinance, or veto or reduce any separate appropriation item or items, and shall return each such resolution or ordinance to the city clerk with written objections thereto within the time limit as aforesaid. Failure of the mayor to make such return within ten (10) days, or three (3) days in the case of an ordinance adopted as an emergency measure, shall constitute approval and such ordinance or resolution shall take effect at the time indicated therein without the mayor's signed approval. The city clerk shall note such fact on the official copy of such resolution or ordinance. If any separate appropriation item or items in any resolution or ordinance are vetoed or reduced by the mayor as herein provided, the remainder of any such ordinance or resolution may be approved by the mayor and, if not specifically approved by the mayor shall take effect without such approval and shall be so noted by the city clerk.

The city council may reconsider any resolution or ordinance vetoed or disapproved, or any separate appropriation item or items vetoed or reduced by the mayor, and if after such reconsideration two-thirds of the entire city council shall vote in favor of passage thereof, it shall become effective notwithstanding the mayor's action.

If a larger vote is required for the adoption of a measure by the provisions of this Charter, such larger vote shall be required to overcome the veto of the mayor. If the ordinance or resolution or separate appropriation item or items is not passed over the mayor's veto or reduction within thirty (30) days from the date of the delivery of the veto or reduction to the city clerk, as hereinbefore provided, the measure or items shall be lost, or shall stand reduced, as the case may be.
(Election of 11-7-06)

413. Emergency measures.

To meet a public emergency affecting life, health, property or the public peace, the city council may adopt one or more emergency ordinances, but such ordinances may not levy taxes, grant, renew or extend a franchise, regulate the rate charged by any public utility for its services or authorize the borrowing of money except as provided in Article VIII, section 807. An emergency ordinance shall be introduced in the form and manner prescribed for ordinances generally, except that it shall be plainly designated as an emergency ordinance and contain, after the enacting clause, a declaration stating that an emergency exists and describing it in clear and specific terms.

An emergency ordinance may be adopted with or without amendment or rejected at the meeting at which it is introduced, but the affirmative vote of three-fourths of the

entire city council shall be required for adoption. After its adoption, the ordinance shall be presented to the mayor for his consideration as provided in section 412 of this article, and upon approval by the mayor, or in the case of a veto, repassage by the city council by an affirmative vote of three-fourths of all of its members, the same shall be published and printed as prescribed for other adopted ordinances. It shall become effective upon such date as shall be specified therein. Every emergency ordinance shall stand repealed as of the sixty-first day following the date on which it was adopted, but this shall not prevent reenactment of the ordinance in the manner specified in this section if the emergency still exists. An emergency ordinance may also be repealed by adoption of a repealing ordinance in the same manner specified in this section for adoption of emergency ordinances.

An emergency justifying the implementation of this section shall be deemed to exist only in the event of a grave threat to the public peace, property, health or safety of the city resulting from riot, fire, flood, hurricane, blizzard or other calamity. It is hereby declared to be the policy of this Charter that such definition shall be strictly construed by the courts.

414. Authentication and publication of ordinances and resolutions.

Upon its final passage each ordinance or resolution shall be authenticated by the signature of the president and the city clerk and shall be recorded in a book kept for that purpose. Each ordinance and resolution shall be available to the public in such manner as the city council may prescribe by ordinance within 20 days after enactment.

415. Salaries; salary review commission.

(a) The salaries of the mayor, the members of the city council, all department heads, and of the members of all boards and commissions entitled to compensation, shall be set by the city council by ordinance; provided, however, that the salary of the mayor and the members of the city council shall not be increased or diminished six (6) months prior to the beginning of the term of office of mayor or city council, and that any such ordinance shall be based on recommendations of the salary review commission as provided for in this section.

(b) There shall be a salary review commission of five (5) members appointed by the mayor, with council approval, from among persons who hold no city elective or appointive office, nor are employed by the city. The commission members shall be appointed during the month of January, 1983, and every four (4) years thereafter in the month of January. Vacancies shall be filled in the same manner for the unexpired term or terms. Members of the commission shall serve without compensation.

(c) The salary review commission shall, no more often than every two (2) years, recommend to the mayor salary levels for the offices listed in subsection (a) of this section. In acting on said recommendations, the mayor shall approve, reject or reduce

the same, or any of them, and forward his or her recommendations to the city council. In acting upon the recommendations of the mayor, the city council shall approve, reject, or reduce the same, or any of them. No salaries for the said offices shall be set, except pursuant to commission recommendation as aforesaid.

Cross references—Budget, Art. VIII; boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

416. Acquisition and disposal of property.

Public notice shall be given by publication in a newspaper circulated generally in the City of Providence once at least ten (10) days prior to the acquisition of any real property when the purchase price to be paid by the city equals or exceeds the sum of two thousand dollars ($2,000.00), unless such acquisition is to be accomplished pursuant to the general laws of the state by condemnation in eminent domain proceedings, or unless such acquisition is necessary in connection with public improvement proceedings accomplished pursuant to law.

Any sale of city-owned property except that which has reverted to the city for nonpayment of taxes shall be accomplished in accordance with the following procedure:

(1) Public notice of any proposed sale of city property shall be given at least once a week for two (2) weeks in a newspaper circulated generally in the City of Providence, and this shall be done at least two (2) weeks prior to the acceptance of sealed bids. Such notice shall contain a statement that any and all bids may be rejected and the property may be readvertised. Such notice shall also contain any restrictions placed on the use of the property to be sold as mandated by the city plan commission or established by the city council by a majority vote.

(2) Prior to the sale of any city property, the city assessor shall appraise the same and determine the current market value thereof. With the approval of the city council, the city assessor may obtain the services of other qualified persons to assist him in such appraisal.

(3) Sale of city property may be made only to the highest qualified bidder in compliance with the restrictions noted in subsection (1) upon sealed bids to the city council. Any and all bids may be rejected and the property readvertised or removed from the market. No sale of any city property shall be made for less than ninety (90) per cent of the appraised value thereof.

(4) Any city personal property having an appraised value of one thousand dollars ($1,000.00) or less may be sold without public notice or public bid as required by this section; and, further, such property may be sold for any reasonable amount irrespective of its appraised value.

(5) Any sale of real property shall be authorized only by resolution adopted by the affirmative vote of a majority of all members of the city council.

(6) Any lease of city-owned real property shall be authorized by resolution of the city council. If the city council does not take any action within forty (40) days of receipt of the proposed lease, the lease shall take effect.

(7) No city property shall be exchanged for other property until an appraisal of all property included in the exchange has been made by the city assessor and the value of the property to be received by the city equals or exceeds the value of the property to be disposed of by the city. Exchange of property must be authorized by resolution passed by an affirmative vote of the majority of the entire city council unless otherwise specified by this Charter.

(8) Sale of city property to the Providence Redevelopment Agency or the Providence Plan Housing Corporation shall not be subject to the restrictions set forth in subsections (1), (2), (3), (4) and (7) of this section.

(Res. No. 404, 9-11-92)

Editor's note—Res. No. 404, adopted Sept. 11, 1992, adding an exception to the sale of city property requirements, § 416(8), was approved by the voters at the general election held Nov. 3, 1992.

ARTICLE V. COURTS

501. Municipal court.
502. Probate court.

501. Municipal court.

There shall be a municipal court for the City of Providence consisting of three (3) judges, or such number as the city council may from time to time determine. Each such judge shall be a member of the bar of the State of Rhode Island, and shall be elected by the city council for a term of four (4) years or until his or her successor is elected and qualified. There shall be a clerk of said court elected by the city council to serve for a term of four (4) years. The said municipal court shall have all of the powers, duties and jurisdiction provided for by law at the time of the taking effect of this Charter, and by such amendments thereof as may be enacted from time to time.

502. Probate court.

There shall be a probate court for the City of Providence consisting of one judge, or such number as the city council may from time to time provide, who shall be a member of the bar of the State of Rhode Island, and shall be elected by the city council for a term of six (6) years or until his or her successor is elected and qualified. The first election of a probate judge under this Charter shall be made in November of the year 1983, upon the expiration of the current term. The city council shall also elect the clerk of the probate court, who shall be a member of the bar of the State of Rhode Island, to serve for a term of six (6) years concurrent with the term of the probate judge. The probate court shall have all of the powers, duties and jurisdiction provided for by law at the time of the taking effect of this Charter, and by such amendments thereof as may be enacted from time to time.

ARTICLE VI. APPOINTED OFFICERS*

601. City clerk.
602. City treasurer.
603. City solicitor.
604. Recorder of deeds.
605. City sergeant.
606. Registrar of vital statistics.

601. City clerk.

(a) *Election and term.* On the first Monday in January, 1983, or as soon thereafter as may be practical, and every four (4) years thereafter on the first Monday in January, or as soon thereafter as may be practical, the city council shall elect, by a vote of a majority of all of its members, a city clerk who shall serve until a successor shall have qualified; provided, however, that in the event of a vacancy in said office, such vacancy shall be filled within thirty (30) days of its occurrence by the city council for the remainder of the term. The city clerk shall have the status of a department head and shall have all powers and perform all duties vested in the office of the city clerk by the provisions of this Charter or otherwise, including, without limitation, the following:

(1) To act as clerk of and to attend all meetings of the city council and to keep a journal of the acts and proceedings thereof. In case of the absence of the city clerk from any meeting of the city council, the first deputy city clerk shall act as city clerk during such absence. In case of the absence of the city clerk and the first deputy city clerk, the second deputy city clerk shall act as city clerk during such absence. If at any meeting of the city council, no person is present as required by this section, the city council shall elect one of its members as clerk pro tempore;

(2) To keep on file all official documents, papers, reports and records of the city as are required by law to be filed in the department of city clerk and the rules, regulations and organizational charts of departments, boards, commissions and other agencies of the city developed pursuant to Article XII, section 1201(c) of this Charter; and to make due provision for public inspection of such papers as are required to be open to inspection pursuant to the provisions of section 1203, of Article XII of this Charter and of applicable state law.

(b) [*Division of archives and history.*] There shall be a division of archives and history, which shall be a responsibility of the city clerk and shall be part of the department headed by the city clerk. The division of archives and history shall be headed by a city archivist, appointed by the city clerk, who shall be a person with at least a bachelor's degree from an accredited college or university, who shall be

*__Cross reference—__Officer, defined, § 1207.

trained in history, archival management, library science or some combination thereof, and who shall have had at least five (5) years' experience as an archivist, manager of records, or equivalent training or experience. The city archivist will serve at the pleasure of the city clerk. The city archivist shall be in charge of the division of archives and history under the general supervision of the city clerk and shall be responsible for the custody, management and preservation of all historical records of the city and of such noncurrent records as shall be transferred to the division by the city clerk or any department or agency of the city. The city archivist shall make provision for access to the materials in the custody of the division, under appropriate conditions and safeguards, to qualified individuals desiring to make use thereof.

602. City treasurer.

(a) *Election and term.* On the first Monday in January, 1983, or as soon thereafter as may be practical, and every four (4) years thereafter on the first Monday in January, or as soon thereafter as may be practical, the city council shall elect, by a vote of a majority of all of its members, a city treasurer who shall be a college graduate and shall have training and at least five (5) years' experience in fiscal management or the equivalent training or experience. The city treasurer shall serve until a successor shall have qualified; provided, however, that in the event of a vacancy in said office, such vacancy shall be filled within thirty (30) days of its occurrence by a majority of the entire city council for the remainder of the term. The city treasurer shall have the status of a department head and shall have all powers and perform all duties vested in the office of the city treasurer by the provisions of this charter or otherwise.

(b) *[Powers and duties.]* The powers and duties of the city treasurer shall be, without limitation, the following:

(1) To have direct access to records to all receipts, appropriations, and allotments of the city.

(2) To review the decisions of the controller as to the sufficiency of funds and in conformity with the Home Rule Charter and Code of Ordinances before approving payment of any bill, payroll or other claim, demand or charge against the city;

(3) To have direct access to records which accurately reflect the financial condition of the city;

(4) To have custody of all public funds belonging to or under the control of the city, or any office, department or agency of city government;

(5) To select depositories from among those financial institutions approved by the finance director pursuant to Article VIII, section 813(a)(6), and deposit all funds coming into the treasurer's hand in such depositories, subject to the

requirements of all as to surety and the payment of interest on deposits; but all such interest shall be the property of the city, and shall be accounted for and credited to the proper account;

(6) To have custody of all investments and invested funds of the city government, or in possession of such government, in a fiduciary capacity, and have the safekeeping of all bonds and notes of the city and the receipt and delivery of city bonds and notes for transfer, registration, or exchange;

(7) To supervise the preparation of bond ordinances, bonds, advertisements for sale of bonds and delivery of bonds, subject to provisions of state law and city ordinance.

(Res. No. 2022-300, 7-28-22)

603. City solicitor.

(a) *Election and term.* On the first Monday in January, 1983, or as soon thereafter as may be practical, and every four (4) years thereafter on the first Monday in January, or as soon thereafter as may be practical, the mayor shall appoint, subject to the approval of the city council, a city solicitor who shall be an attorney at law in good standing, a member of the Rhode Island Bar Association and who shall have practiced law in the State of Rhode Island for at least five (5) years. The city solicitor shall not receive any salary from any source other than provided for the office of city solicitor by the city council and shall not conduct any private practice while serving in said office; provided, however, that residual fees for work completed prior to appointment may be received. In the event of a vacancy in said office, such vacancy shall be filled through appointment by the mayor and approval by the city council within thirty (30) days of its occurrence, for the remainder of the term. The city solicitor shall be the head of the department of law and shall have all powers and perform all duties vested in the office of the city solicitor by the provisions of this Charter or otherwise.

(b) [*Powers and duties.*] The powers and duties of the city solicitor shall be, without limitation, the following:

(1) To appoint a deputy and such number of assistant city solicitors as may from time to time be authorized by the city council. All persons so appointed shall be attorneys at law in good standing of the State of Rhode Island;

(2) To be the chief legal advisor of and attorney for the city and all departments, boards, commissions, bureaus and officers thereof in the matters relating to their official powers and duties. No department, board, commission, bureau or officer shall employ any other attorney at the expense of the city or through the use of any funds from the federal government or other source, unless otherwise provided by this Charter, or unless the city council shall approve such employment by ordinance. Any such attorney so authorized by

the city council shall be subordinate to the city solicitor and in all litigation to which the city may be a party, said attorney shall be under the direction of the city solicitor;

(3) To attend or designate a solicitor to attend all meetings of the city council and any standing committee of the city council;

(4) To give advice in writing, when so requested, to the city council, the mayor, or any agency of city government listed in clause (2) of this section;

(5) To prosecute or defend, as the case may be, all suits or cases to which the city or any agency of city government listed in clause (2) of this section may be a party;

(6) To prosecute all complaints brought by the police of the city which do not fall within the jurisdiction of the attorney general of the state;

(7) To draft executive orders, rules and regulations for the mayor or for any agency of city government listed in clause (2) of this section;

(8) To prepare all leases, deeds, contracts, bonds and other instruments in writing in which the city is concerned and/or to endorse thereon the approval of the city solicitor of the form and correctness thereof;

(9) To perform such other legal duties as the city council may by resolution or ordinance require;

(10) To apply, when so instructed by the mayor or the city council, in the name of the city to a court of competent jurisdiction for an injunction to restrain the misapplication of the funds of the city or the abuse of its corporate powers or the execution or performance of any contract which was made on behalf of the city in contravention of law or which was procured by fraud or corruption;

(11) To apply, when so instructed by the mayor or by the city council, or upon said city solicitor's own initiative, for suitable process to stop any activity prohibited by this Charter, or to compel the performance of any officer or employee of the city who fails to perform any duty, discharge any responsibility, or make any disclosure required by the terms of this Charter or by law.

(Election of 11-7-06)

604. Recorder of deeds.

The mayor shall appoint, subject to the approval of the city council, a recorder of deeds who shall serve at the pleasure of the mayor. The recorder of deeds shall have the status of a department head and shall keep records concerned with real estate within the city limits. These records shall include but shall not be limited to deeds, mortgages, leases, attachments, suits, liens and violations of the minimum standards housing code.

605. City sergeant.

The mayor shall appoint, subject to the approval of the city council, a city sergeant who shall serve at the pleasure of the mayor. The city sergeant shall have the status of a department head and shall have all powers and perform all duties vested in the office of city sergeant by the provisions of this Charter, or otherwise, including but not limited to the duty to serve as city messenger.

606. Registrar of vital statistics.

The mayor shall appoint, subject to the approval of the city council, a registrar of vital statistics. The registrar shall serve at the pleasure of the mayor, and shall have the status of a department head. The registrar shall keep all records of births, deaths and marriages occurring in the city, and shall issue all marriage licenses, burial permits, licenses of clergy, certified copies of birth and death certificates and such other licenses or permits as the city council may by ordinance prescribe.

ARTICLE VII. SCHOOL DEPARTMENT*

701. Number, selection and term of school board.
702. Qualifications.
703. Vacancies.
704. Compensation.
705. Organization, rules and meetings.
706. Powers and duties.
707. Budget.
708. Purchases.

701. Number, selection and term [of school board.]

(a) Commencing January 1, 2025, there shall be a school board consisting of ten (10) members, five (5) members who shall be appointed by the mayor with the approval of the city council and five (5) members who shall be elected at the November 2024 general election, one from each of the five regions as specified in Section 201 of this Charter. Commencing January 1, 2025, of the five (5) members first appointed, one (1) shall serve a term of one year, two (2) shall serve a term of two (2) years and two (2) shall serve a term of three (3) years. All subsequent appointments or reappointments shall be for a term of three (3) years. No more than one (1) individual shall be appointed by the Mayor from each of the five (5) electoral regions as set forth in Section 201 of this Charter. No appointed member shall continue in office after his or her term expires without being reappointed by the mayor with approval of the city council. Elected members shall be selected in a nonpartisan election and shall serve four-year terms.

(b) The mayor shall be empowered to appoint a school board nominating committee with responsibility to narrow the field of school board appointees.
(Election of 11-7-06; Res. No. 2022-300, 7-28-22)

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

702. Qualifications.

Members of the school board shall be domiciliaries of the city and qualified electors of the city. Additionally, elected school board members shall be a qualified elector of the region from which the elected member of the school board was elected. School board members shall hold no other paid office or employment in the service of the city and shall not be financially interested directly or indirectly in any contract concerning the public schools. The credentials of school board appointees

*__Cross references—__City departments, Art. X; general provisions for departments, § 1201.

and nominating committee members shall reflect ethnic and racial diversity, and diversity of backgrounds, experiences and training that are representative of the city.
(Election of 11-7-06; Res. No. 2022-300, 7-28-22)

703. Vacancies.

If during a term of office any appointed school board member dies, resigns or ceases to possess any of the qualifications set forth above, the mayor shall thereupon declare the office vacant and shall fill such vacancy for the remainder of the term with the approval of the city council. Vacancies of elected school board members are subject to the provisions provided in section 206 of Article II of this Charter.
(Res. No. 2022-300, 7-28-22)

704. Compensation.

Members of the school board shall receive compensation fixed by ordinance of the city council.

705. Organization, rules and meetings.

The school board shall elect from among its membership a president, vice-president and secretary each of whom shall serve for a period of one year. The secretary shall keep a journal of the proceedings of the board. All meetings of the school board shall be open to the public and no action shall be taken by the board except in a public meeting, provided that the school board may close the meeting by majority vote in accordance with state law. The vote of its members of all motions except those of a procedural nature shall be by roll call and shall be entered in the official record of the board. The board shall adopt rules of procedure and orders of business consistent with the provisions of this Charter.

706. Powers and duties.

The powers and duties of the school board shall be all those imposed on school boards by state law, and, without limitation, the following:

(a) To determine and control all policies affecting the administration, maintenance and operation of the public schools;

(b) To provide rules and regulations for the use, operation and maintenance of public school properties;

(c) To appoint a superintendent of schools to serve as the chief administrative agent of the school board;

(d) To establish the compensation for said superintendent;

(e) To appoint and remove all school department employees and fix their salaries within limits established by appropriation of the city council for the school department.

707. Budget.

Annually at the time and in the manner provided in Article VIII, section 802 for all city departments, the school board shall submit to the finance director an itemized budget, including an itemized estimate of the anticipated revenue and the proposed expenditures necessary to meet the financial needs of the school department, including sums for the promotion of health of the school children for the ensuing fiscal year, together with such other supporting information as the finance director may direct.

The finance director, under the supervision of the mayor, may revise the estimates as submitted by the school board, and the mayor shall present to the city council the recommended budget for the operation of said school board in the same manner as required by Article VIII, section 803 for any other city department.

The city council shall have the power and authority to act on the school budget in the same manner and to the same extent it may act on the budgets of other city departments, and the city council may appropriate funds to the school department in lump sum or in such detail as it deems necessary and appropriate. The total amount or amounts so appropriated to the school department shall include all revenues from whatever source derived, and the department of finance shall be charged with the responsibility of insuring that no expenditures are made or obligations created by the school board which are in excess of the amount or amounts so appropriated or of such amounts as may be amended by the city council.

There shall be no change to the budget process as set forth in this section with the establishment of a hybrid elected school board set forth in section 701 of Article VII of this Charter.
(Res. No. 2022-300, 7-28-22)

708. Purchases.

All purchases or contracts for supplies, materials, equipment, and services required by the school department, other than salaries for teaching and administration, shall be made by the board of contract and supply or the purchasing agent of the city.

Cross reference—Board of contract and supply, § 1007.

ARTICLE VIII. BUDGET PROCEDURE AND FINANCE DEPARTMENT*

801. Fiscal year.
802. Budget estimates.
803. Operating budget.
804. Budget presentation.
805. City council power to change appropriation ordinance.
806. Failure to pass appropriation ordinance.
807. Borrowing.
808. Application of revenue.
809. Reductions to balance budget.
810. Transfer of appropriations.
811. Additional appropriations.
812. Capital budget.
813. Finance department.
814. Board of tax assessment review.
815. Board of investment commissioners.
816. Internal auditor.
817. Annual audit.

801. Fiscal year.

The fiscal year of the city shall be established by ordinance. Such fiscal year shall constitute the budget and accounting year. Taxes shall be due and payable within thirty (30) days following the beginning of each fiscal year on a date fixed by the city council by resolution. The city council shall also determine by resolution the installments in which taxes may be paid, the dates on which penalties for nonpayment shall apply and the rate of such penalties consistent with state law.
(Election of 11-7-06)

802. Budget estimates.

Annually at such date as the mayor shall determine, the finance director shall, at the direction of the mayor, obtain from each head of a department, office or other agency of the city an itemized estimate of the anticipated revenue and of the proposed expenditures necessary to meet the needs of such department or agency. Each itemized estimate shall be detailed by the character and object of expenditure and shall be accompanied by an inventory of all equipment, materials and supplies on hand and a statement in writing of the work to be performed by means of such proposed expenditures. Estimates shall be in a form and with such explanation as the finance director may require. Itemized estimates of the financial needs of the city council shall be furnished by the city clerk and estimates of the amount of money required for interest and principal payments on the city debt, the amounts required

*__Cross references—__Salaries, § 415; budget of school board, § 707.

for payment into the city sinking funds, the amount required for payments on all judgments standing against the city and all other anticipated expenditures not properly chargeable to any specific department, office, commission or other agency shall be furnished by the controller.

803. Operating budget.

It shall be the duty of the mayor to frame and submit to the city council not later than sixty (60) days prior to the start of each fiscal year an operating budget for the ensuing fiscal year containing:

(a) An estimate of the amount of any general fund surplus in the current fiscal year available for appropriation in the ensuing fiscal year;

(b) An estimate of receipts for the ensuing fiscal year from taxes on real estate and tangible and intangible personal property;

(c) An estimate of other receipts for the ensuing fiscal year itemized by sources;

(d) Debt service requirements for the ensuing fiscal year;

(e) An estimate of any deficit from the operations of the current fiscal year and any other charge or obligation required by this Charter or by law to be paid in the ensuing fiscal year;

(f) An estimate of the expenditures recommended by the mayor as necessary or desirable for the purpose of carrying on the work of the several departments, offices and agencies of the city for the ensuing fiscal year itemized by activities and objects and related to the performance goals and objectives of each department, office and agency of the city under guidelines established by the finance director;

(g) An overall statement of the financial condition of the city at the end of the last completed fiscal year, the estimated financial condition at the end of the current fiscal year, and an estimate showing what the financial condition at the end of the ensuing fiscal year would be in the event that the financial proposals contained in the budget should be adopted.

The operating budget shall further be arranged to show in parallel columns comparative figures for receipts and expenditures as estimated for the current fiscal year and the ensuing two (2) fiscal years and actual receipts and expenditures for the preceding two (2) fiscal years. The total of estimated expenditures listed in the operating budget shall not exceed the total receipts estimated therein, taking into account any general fund surplus or deficit estimated to be carried over from the current fiscal year and the estimated receipts from proposed new revenue measures within the authority of the city council to enact.

804. Budget presentation.

At the same time that the mayor presents the operating budget to the city council the mayor shall also present and deposit with the city clerk to be open for public inspection:

(a) A budget message which shall be explanatory of the budget and shall contain an outline of the proposed financial policies of the city for the budget year and which shall also describe in connection therewith the important features of the budget plan. The message shall set forth the reasons for significant changes from the previous year in cost and revenue items and shall explain any major changes in financial policies. Attached to the budget message shall be such supporting schedules, exhibits and other explanatory material as the mayor may deem useful to the city council;

(b) An appropriation ordinance making provision for financing the city government for the ensuing fiscal year in the manner proposed by the budget;

(c) A personnel ordinance which shall be in detail for each department, office or other agency of the city for which city appropriations are provided other than the office of the mayor. The personnel ordinance shall provide for the classes of positions, the number of employees in each class, and the maximum number of employees. The maximum number of employees in classes of positions definitely representing temporary seasonal employment shall not be fixed. The number and classes of positions provided in said personnel ordinance for each department, office or other agency of the city shall correspond directly with the number and classes of positions provided in the proposed expenditures for personal services as set forth for the particular department, office or other agency in the recommended budget and the appropriation bill.

805. City council power to change appropriation ordinance.

The city council may increase, decrease, alter or strike out any item or group of items contained in the appropriation ordinance. No action shall be taken which will cause an excess of appropriations over expected revenue receipts submitted by the mayor nor shall the city council vary the titles, descriptions or conditions of administration specified in the budget, appropriation ordinance or personnel ordinance. If additional appropriations are deemed necessary by the city council, it shall also provide for increasing the total anticipated income so that the total means of financing the budget shall at least equal in amount the aggregate appropriations. If the city council shall make any change in the appropriation for personal services recommended by the mayor for any city department or agency other than the office of the mayor, a corresponding change shall be made in the personnel ordinance. Upon final passage of the appropriation ordinance, such changes as have been made in said

ordinance as originally proposed by the mayor shall also be made in the budget document and the budget document shall be placed on file with the appropriation ordinance in the office of the city clerk.

806. Failure to pass appropriation ordinance.

In an emergency caused by failure of the city council to pass the annual appropriation ordinance by the beginning of the fiscal year, the same amounts appropriated in the fiscal year immediately preceding shall be available for each department, office and other agency of the city government, subject to monthly or quarterly allotments, in accordance with seasonal requirements as determined by the finance director and approved by the mayor. Expenditures for payment of any indebtedness of the city on bonds or notes, or for interest thereon, shall be in such amounts as may be required, regardless of whether or not an annual appropriation ordinance is passed by the city council.

807. Borrowing.

(a) *Tax anticipation notes.* In any fiscal year, in anticipation of the collection of property tax for such year, the city council may by resolution authorize the borrowing of money by the issuance of negotiable notes of the city, each of which shall be designated "tax anticipation note for the year ending June 30 of that fiscal year." Whenever the city shall issue any notes for borrowings in anticipation of taxes, the total amount of said borrowings shall not in any fiscal year exceed eighty (80) per cent of the revenue receipts of that year, as estimated in the appropriation ordinance, other than for water bills and other earnings of the water supply board, remaining uncollected at the time said notes were issued. All receipts and revenues of the general fund, beginning on the first day subsequent to the issuance of such notes, shall be reserved for the specific purpose of retiring the obligation incurred by and for paying off said notes, or the remainder thereof, and such revenues or receipts shall not be available for expenditure for any purpose other than for the payment of principal and interest on bonds and notes, until such borrowing in anticipation of taxes shall have been repaid. The provisions of this section shall not apply to any funds or payments received as grants from the federal government or to any funds or payments received from the state.

(b) *Special revenue notes.* In any fiscal year, in anticipation of the collection or receipt of revenues other than the property tax of that fiscal year, the city council may by resolution authorize the borrowing of money by the issuance of negotiable notes of the city, each of which shall be designated "special revenue note for the year ending June 30 of that fiscal year." Such notes may be renewed, but all such notes, together with the renewals, shall mature and be paid not later than the end of the fiscal year immediately following the fiscal year in which the original notes shall have been issued.

(c) *Emergency notes.* Such authorization shall be made pursuant to section 413 of this Charter. Emergency notes shall also require the approval of the mayor.

(d) *Demand notes prohibited; notes to be sold at not less than par.* No notes shall be made payable on demand, but any note may be made subject to redemption prior to maturity on such notice and at such time as may be stated in the note. All notes issued pursuant to this article may be sold at not less than par and accrued interest at private sale without previous advertisement by the director of finance.

(e) *Bond ordinances.* The city shall authorize the issuance of bonds by a "bond ordinance" passed by the affirmative votes of at least eight (8) members of the city council as provided by this Charter and the Constitution and laws of Rhode Island. Except to provide for the issuance of refunding bonds, a bond ordinance shall contain in substance at least the following provisions:

(1) An appropriation of a sum of money for a capital project, described in brief and general terms sufficient for reasonable identification;

(2) An authorization of the incurring of indebtedness by the issuance of bonds in a stated amount, pursuant to this Charter;

(3) A statement of the estimated maximum cost of the capital project; including any sums theretofore or thereby appropriated;

(4) A determination of the period of usefulness of the project;

(5) A determination of the net debt of the city after the issuance of the bonds thereby authorized, together with declaration that the bonds thereby authorized will be within all debt and other limitations prescribed by the Constitution and laws of the State of Rhode Island.

The title of the bond ordinance shall state the amount appropriated for an indicated project and the amount of bonds authorized to finance the appropriation. A bond ordinance shall be limited to one specific project.

(f) *Emergency bonds.* Such authorization shall be made pursuant to section 413 of this Charter. Emergency bond ordinances shall also require the approval of the mayor. Emergency bond ordinances shall not be subject to section (g) of this article.

(g) *Referendum.* Each bond ordinance shall be submitted to a vote of the electors in accordance with statute at a general election, and no bonds shall be issued pledging the credit of the city unless approved at such general election.

(h) *Bond anticipation notes.* In anticipation of the issuance of bonds approved pursuant to this article, the council may by resolution authorize the issuance of negotiable notes. Each note shall be designated "bond anticipation note" and may be renewed, providing, however, that any notes issued after the completion of the project

for which an issuance of bonds was approved, shall be paid in the same manner as provided for the payment of the bond issue in anticipation to which the notes were originally issued.

(i) *Debt service.* In connection with any bond ordinance and prior to the date of introduction thereof, the finance director shall prepare and file for public inspection in the office of the city clerk, a special debt statement which shall set forth:

(1) The aggregate principal amount of all outstanding bonds and notes of the city,

(2) Deductions permitted by the constitution and general laws,

(3) The amount of the existing net indebtedness,

(4) The amount of the net indebtedness after the issuance of the bonds authorized by such bond ordinance, and

(5) The aggregate principal amount of bonds and notes which the city may issue, pursuant to law.

(j) *Payment of bonds.* All bonds issued pursuant to this Charter shall be paid in equal or diminishing annual installments. The first annual installment shall be paid not more than one year after the date of which said bonds were issued. The last annual installment of each authorized issue of bonds shall be paid not later than the expiration of the period of usefulness as determined in the bond ordinance authorizing the issuance of the bonds, but in no event for a period exceeding thirty (30) years.

(k) *Period of usefulness.* The period of usefulness of each project financed by an authorized issuance of bonds as prescribed by this Charter shall be as determined by certificate of the engineer or architect as approved by the mayor and shall be stated in the bond ordinance. The period of usefulness shall be computed from the date such issuance of bonds shall be approved by the electors. The determination of the city council, in the bond ordinance, as to the period of usefulness, shall be conclusive in any action or proceeding involving the validity of the bonds. In no case, however, is the period of usefulness to exceed thirty (30) years.

(l) *Method of sale of bonds.* All bonds issued under this Charter shall be sold at public sale upon sealed proposals after at least ten (10) days' notice published at least once in a publication carrying municipal bond notices and devoted primarily to financial news or to the subject of state and municipal bonds, distributed in the State of Rhode Island and at least ten (10) days' notice published at least once in a newspaper having a general circulation in the City of Providence. All funds from the bond issue shall be kept in a special account and used only for the project authorized by the bond issue.

(m) *Validity of bond ordinances.* When twenty (20) days shall have elapsed after the publication after final passage of a bond ordinance as provided by this Charter:

(1) Any recitals or statements of fact contained in such bond ordinance, or in the preambles or recitals thereof, shall be deemed to be true for the purpose of determining the validity of the bonds thereby authorized and the city and all other interest shall forever thereafter be stopped from denying the same;

(2) Such bond ordinance shall be conclusively presumed to have been duly and regularly passed by the city and to comply with the provisions of this Charter and of all laws; and

(3) The validity of such bond ordinance shall not thereafter be questioned by either a party plaintiff or a party defendant, except in a suit, action or proceeding commenced prior to the expiration of such twenty (20) days.

(n) *Remaining balances from sale of bonds.* Any balance remaining from the sale of bonds issued in accordance with this Charter, after the project as described in the bond ordinance authorizing the issuance of such bonds shall have been completed and full payment shall have been made thereon, shall be held separate from all other funds of the city, and shall be used only toward the final payment of the bonds so issued.

Such amounts shall not be included in any budget receipts as revenue except in the fiscal year in which final payment of said bonds is due. Such funds may be held in approved depositories or may be invested in obligations of the United States or in bonds of the City of Providence maturing not later than the year in which such funds may be included in budget receipts for a fiscal year. Any income received from such investments shall be added to such funds held for final payment of said issue of bonds in the same manner as prescribed for the amounts originally remaining from such bond issues. No portion of any such funds shall be invested in tax anticipation notes, bond anticipation notes, or special revenue or emergency notes of the city.

(o) *Obligations of the city.* The power and obligation of the city to pay any and all bonds and notes hereafter issued by it pursuant to this charter shall be unlimited and the city shall levy ad valorem taxes subject to statute upon all the taxable property within the city for the payment of such bonds or notes and interest thereon. The faith and credit of the city is hereby pledged for the payment of the principal of and the interest on all bonds and notes of the city hereafter issued pursuant to this Charter, whether or not such pledge be stated in the bonds or notes, or in the bond ordinance authorizing their issuance.

(p) *Time limit on bond issuance.* Bonds shall be issued within three (3) years following certification of their approval by the voters of Providence, unless the city council, by ordinance, grants an extension to the Treasurer which is not to exceed two (2) years. Any bond ordinance authorized by the electorate which has not been issued within five (5) years of that approval shall be void.

808. Application of revenue.

Except for such revenue as may be by law, this Charter or trust devoted to specific purposes, all revenue of the city shall be paid into and credited to the general fund; provided, however, that monies received by the city from the sale of capital assets shall be deposited in a special fund and used only for payment of the city debt or to

finance capital expenditures authorized by the capital improvement budget, and provided further, that all revenue from the water supply system shall first be applied to the operation and maintenance of the system and for the payment of interest on the retirement of bonds of the system, any excess revenue thereafter, as determined by the water supply board, shall be paid into and credited to the general fund; and provided, further that all payments made by the state or federal governments to the City of Providence for the support of public schools, together with tuition fees earned by the school department and all miscellaneous receipts of the school department now available to it for expenditure in accordance with the provisions of state law shall be paid over and credited to the school fund by the city treasurer. Any surplus resulting from excess revenue receipts over estimates and unencumbered balances of appropriations at the end of any fiscal year shall revert to the general fund current operating surplus account and shall be subject to such reservations or other disposition as the city council may direct.

809. Reductions to balance budget.

At any time during the fiscal year, upon notification by the finance director that it is indicated that actual revenue receipts will not equal the original estimates upon which appropriations were based, the mayor, for the purpose of maintaining a balanced budget, shall recommend to the city council such reductions or suspensions in the appropriations for any or all departments, offices or other agencies of the city government as will, in the mayor's opinion, prevent the occurrence of a deficit. However, there shall be no reductions of appropriations for the city debt payments, the retirement fund or the sinking fund to balance the budget. The city council shall by ordinance either approve the same in whole or in part or make such other reductions or suspensions in total equal to that proposed by the mayor as will prevent the occurrence of a deficit.

810. Transfer of appropriations.

The mayor may authorize a transfer of a portion of any unencumbered item of appropriation as certified by the finance director to another item of appropriation either within a single department, office or agency of the city or between two (2) or more such departments, offices or agencies, except appropriations for payments to the sinking fund, city debt or retirement fund, provided that no transfer shall exceed five thousand dollars ($5,000.00) in the aggregate within one fiscal year, and provided further that the mayor shall notify the city council of the transfer. If the amount to be transferred exceed five thousand dollars ($5,000.00), it shall be the duty of the mayor to submit the proposal in writing to the city council for approval or rejection before such transfer is accomplished; provided, however, that the city council may alter the ceiling of five thousand dollars ($5,000.00) by a two-thirds vote of its entire member-

ship following a public hearing. If the transfer is approved by resolution of the city council, the finance director shall cause the amounts of the appropriations affected to be transferred accordingly.

811. Additional appropriations.

(a) The city council shall identify and provide additional revenue for any additional appropriations approved by it subsequent to the passage of the annual appropriation ordinance, unless the mayor and the finance director shall certify in writing that there is available in the general funds an unappropriated and unencumbered cash balance sufficient to meet such appropriation.

(b) In the case of an immediate emergency threatening the lives, health, safety or property of the people, the city council, on the written recommendation of the mayor, by an emergency ordinance passed pursuant to section 413, may appropriate funds in amounts and for purposes in addition to those contained in the operating budget and appropriation ordinance of the capital budget. Such an ordinance shall include a brief statement of the facts which show the existence of such an emergency.

812. Capital budget.

At the same time that the mayor submits the operating budget to the city council, the mayor based upon estimates and recommendations of the city plan commission as provided for in Article X, section 1013, shall prepare and submit to the city council a capital budget for the ensuing fiscal year and the next four (4) fiscal years thereafter. Said capital budget shall embody the mayor's estimates of cost and recommendations of means of financing each project contained with the capital improvement program, provided that no project shall be included in said budget which has not been favorably considered by the city council. In acting on the capital budget, the city council may accept, reject or modify the projects described therein or the proposed methods of financing the same.

813. Finance department.

There shall be a finance department consisting of a finance director, city controller, budget officer, budget analyst, city collector and city assessor. The finance director shall be appointed by the mayor with approval of the city council and shall hold office at the pleasure of the mayor. The city controller, budget officer, budget analyst, city collector and city assessor shall be appointed by the finance director and shall serve at the pleasure of the finance director.

(a) Finance director. The finance director shall be a college graduate who shall have such training and experience in accounting, budgeting, and management, either in public or private business, and shall have knowledge of, and preferably experience in, government finance or equivalent training or experience as will qualify for the duties of this position. The finance director shall

be the chief fiscal officer of the city and shall be responsible to the mayor for the sound and prudent financial direction of the city. The director shall supervise all functions of the department, and shall implement a performance budget system for the city. The powers and duties of the finance director shall include, without limitation, the following:

(1) To prepare the operating budget annually under the direction of the mayor who shall submit the same to the city council as provided in section 803;

(2) To develop a five-year financial plan for the city which shall be deposited by the mayor with the city clerk to be open for public inspection. The plan shall include projections of anticipated revenues and general estimates of expenditures during the five (5) fiscal years next ensuing, with appropriate supporting information, arranged so as to identify the planning goals, planning objectives and anticipated programs of city government for the ensuing five (5) years. The plan shall be revised annually;

(3) To compile the capital budget in cooperation with the city plan commission;

(4) To prepare and transmit to the mayor and city council within ninety (90) days of the end of each fiscal year a complete financial statement and report of the financial transactions of the city for the year;

(5) To describe the format, form, and content of the records and accounts of the funds in the charge of the city treasurer;

(6) To determine, with the approval of the board of investment commissioners, a listing of financial institutions within which city funds may be deposited.

(b) *City controller.* The city controller shall be a licensed public accountant or have equivalent training or experience. The powers and duties of the city controller shall include, without limitation, the following:

(1) To supervise and be responsible for all disbursement of monies and have control over all expenditures to ensure that budget appropriations are not exceeded;

(2) To maintain a general accounting system for the city government and each of its offices, departments and agencies; keep records for and exercise financial and budget control over each department, office and agency; keep separate accounts for the items of appropriations contained in the city budget and the allotments thereof, and encumber such items of appropriations and their respective allotments with the amount of each purchase order, payroll or contract, approved by the controller for sufficiency of funds, immediately upon such approval; and keep such records

as shall show at all times for each account the amount of the appropriation, the amounts paid therefrom, the unpaid obligations against it, and the unencumbered balance;

(3) To examine all contracts, purchase orders, and other documents which involve financial obligations against the city, and approve the same only upon ascertaining that monies have been appropriated and allotted, and that an unexpended and unencumbered balance is available in such appropriation and allotment to meet the same;

(4) To audit before payment of all bills, invoices, payroll and other claims, demands or charges against the city, and approve the same only if proper, legal and correct;

(5) To prescribe the form of receipts, vouchers, bills or claims to be used, and the accounts to be kept, by all departments, offices, and agencies of the city, and provide suitable instructions for their use;

(6) To require reports of receipts and disbursements from each receiving and spending agency of the city government to be made daily or at such intervals as the controller may deem necessary;

(7) To inspect periodically and audit the accounts and records of financial transactions maintained in each department, office and agency of the city;

(8) To submit a monthly financial report to the city council through the mayor showing the financial condition of the city, including the condition of all items in the operating budget including estimated revenues, revenues received, appropriations and allotments for such appropriations;

(9) To prescribe the times at, and the manner in which monies received by any department, office or agency of the city shall be paid to the city treasurer or deposited to an account under his or her control to the credit of the city.

(c) *Budget officer.* The budget officer shall be a college graduate with a degree in finance or business administration who shall have five (5) years' experience in the supervision of a budget process, or equivalent training or experience. The powers and duties of the budget officer shall include, without limitation, the following:

(1) To be the deputy finance director and during the temporary absence or incapacity of the finance director have and perform all the powers and duties of the finance director;

(2) To compile, under the supervision of the finance director, the departmental estimates and other data necessary or useful to the mayor and the finance director, and plan and develop, under the direction of the mayor and the supervision of the finance director, the annual operating budget of the city, the capital budget and the five-year financial plan;

(3) To examine from time to time the departments, offices and agencies of the city government in relation to their organization, personnel and other requirements; ascertain the manner in which their respective budgets are carried out and their functions performed; call the attention of the department heads, the mayor, commissions, and other agencies, to any improvements or economies which might be made in their administrative practices and cooperate with the heads thereof in the preparation of their budget estimates for the ensuing fiscal year;

(4) With the advice and assistance of the controller, to write, revise and maintain a proper standard procedure instruction manual to be followed by all officers, departments, boards and other agencies of the government to insure uniform budgetary procedures;

(5) To receive and approve all requisitions from all departments, agencies and offices of the city before they are sent to the purchasing office.

(d) *Budget analyst.* The budget analyst shall have a master's degree in business administration and five (5) years' supervisory experience in budget analysis and budget projection, or equivalent training or experience. The powers and duties of the budget analyst shall include, without limitation, the following:

(1) To plan for the future fiscal integrity of the city;

(2) To conduct efficiency studies and project future payroll, maintenance and utility costs of the city;

(3) To cooperate with the budget officer in the preparation of the operating budget, the capital budget and the five-year financial plan;

(4) To carry on a continuous research program in system and methods so as to keep current in all phases of data processing, business methods and the like;

(5) To make recommendations from time to time to the finance director for using the newest equipment and methods;

(6) To prepare and submit to the mayor and the city council a fiscal note for all ordinances with a fiscal impact.

(e) *City collector.* The city collector shall bill and collect all taxes, real and personal, tangible and intangible, and shall collect or be responsible for the collection of all rents, fees, charges or taxes imposed by the city and any other monies due to the city or any agency of the city. All monies collected by the city collector shall be turned over to the city treasurer.

(f) *City assessor.* The city assessor shall be a college graduate with a minimum of five (5) years' experience in real estate appraisal of commercial and residential

property or equivalent training or experience. The city assessor shall exercise and perform the powers and duties with respect to the assessment of taxes in the city as prescribed by law.

Cross references—City departments, Art. X; general provisions for department, § 1201.

814. Board of tax assessment review.

There shall be a board of tax assessment review which shall consist of five (5) members, no more than three (3) of whom shall be members of the same political party. Members shall be appointed by the mayor with the approval of the city council. Of the five (5) members first appointed, two (2) shall serve a term of one year, two (2) shall serve a term of two (2) years, and one shall serve a term of three (3) years. All subsequent appointments or reappointments shall be for a term of three (3) years. No member may continue after his or her term expires without being reappointed by the mayor with city council approval. Any vacancy which may occur shall be filled by appointment by the mayor subject to the approval of the city council for the balance of the unexpired term.

(a) *Qualifications and organization.* The members of the board of tax assessment review shall be selected upon the basis of their knowledge of the subject of property taxation and real estate values and shall be qualified electors of the city at the time of their appointment and shall have been domiciliaries of the city for at least the immediately preceding five (5) years. A majority of the members of said board shall constitute a quorum. The members at their first meeting shall elect one of their number as chairperson and thereafter shall elect a chairperson upon the appointment of any new member for a full term and whenever the office of chairperson may become vacant.

(b) *Powers and duties.* It shall be the duty of the board of tax assessment review to receive and consider appeals regarding the amounts of assessments as determined by the city assessor. No appeal shall be considered unless it is made in writing and is received by the board within thirty (30) days of the date on which taxes become due and payable, and unless the tax levied on the valuation appealed or such portion of the tax as is due and payable, has been paid. The board shall have the authority to adopt rules and regulations as to the procedure in presenting, considering and disposing of appeals and may hold public hearings, administer oaths and receive testimony and exhibits. It shall have the power to change any assessment so appealed and reviewed, but only after the city assessor has been given an opportunity to appear before it or otherwise present the assessor's case. The taking of an appeal to the board, or any action thereon shall not be construed to in any way alter legal requirements relative to city council review of abatements or the right of a taxpayer to apply to a court of competent jurisdiction in accordance with state law for relief from the assessment as originally made by the city assessor.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

815. Board of investment commissioners.

There shall be a board of investment commissioners consisting of the mayor, the chairperson of the committee in charge of budgetary matters of the city council, the finance director and the city treasurer, all ex officio, and three (3) additional members appointed by the mayor who shall not be officers or employees of the city. The appointed members of the board shall be selected on the basis of their knowledge of, and expertise in, investments and finance, and shall serve for a term of three (3) years. Of the three (3) members first appointed by the mayor, one shall serve a term of one year, one shall serve a term of two (2) years and one shall serve a term of three (3) years. The board shall have the control and management of all sinking funds established for the redemption of any bonds or notes issued by the city, or for the redemption of any bonds held by the city. The board shall hold any fire insurance fund, waterworks depreciation and extension fund, or any additional funds which the city council may by ordinance from time to time prescribe. It shall further be the responsibility of the board to direct the investment of all unencumbered and unappropriated funds of the city government, including but not limited to all bequests, devises and trusts, except as otherwise provided by the governing instrument.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

816. Internal auditor.

The city council by a majority of all its members shall appoint a city internal auditor who shall be a certified public accountant who shall have a minimum of five (5) years' experience in finance, operational auditing or equivalent training or experience. The city internal auditor shall have access to the books and records of all offices, departments and other agencies of the city, and it shall be the duty of all officers and employees thereof to supply such information and documents concerning the affairs of the city as the internal auditor may request.

(a) *Powers and duties of the internal auditor.* The powers and duties of the internal auditor shall be, without limitation, the following:

(1) To perform audits of all offices, departments and other agencies of the city, and additional audits as directed by the president of the city council or by resolution of the city council;

(2) To report the findings of such audits to the city council at least quarterly;

(3) To issue a report to the city council at least annually on all operations of the city;

(4) To submit such reports and financial data, information and statements to the city council as it may from time to time require;

(5) To perform such other duties as may be assigned by ordinance and perform other auditing services of an official nature as may be required by the city council.

(b) *Scope of audits.* Audits shall include, but shall not be limited to determining:

(1) Whether financial operations are properly conducted in accordance with standards for governmental accounting and generally accepted accounting controls;

(2) Whether the audited entity is operating within its budgetary limits;

(3) Whether the audited entity is in compliance with the state constitution, this Charter, city ordinances, and all other applicable laws and regulations;

(4) Whether the audited entity is managing and utilizing its resources in an economical and efficient manner;

(5) Whether the management information system, administrative procedures and organizational structure are adequate to insure the timeliness and reliability of management information;

(6) Whether the property of the city is properly accounted for and safeguarded from losses;

(7) Whether the objectives or benefits of the audited entity are being achieved.

817. Annual audit.

Not later than six (6) months after the close of each fiscal year the city council shall provide for an audit of the financial accounts of the city as provided for by state law. For the purpose of this audit the city council shall employ either the services of state auditors or the services of one or more certified public accountants, none of whom shall be officers or employees of the city government. If the city council fails to provide for such an audit, the failure shall be deemed a direct request for state auditors to conduct the audit. The annual audit shall be conducted in accordance with municipal accounting and reporting standards for Rhode Island Municipalities as promulgated by the state auditor general. The period covered by the audit shall be for one complete fiscal year. All officers of the city shall be required to extend such assistance and make available such records as the accountant or accountants may request.

ARTICLE IX. PERSONNEL DEPARTMENT*

901. Human resources department.
902. Personnel policy.
903. Director of human resources; duties and powers.
904. Appointment, promotion, demotion, suspension and dismissal of employees.
905. Personnel system coverage and exemptions.
906. Affirmative action.
907. Employee organization and collective negotiations.
908. Retirement board.

901. Human resources department.

There shall be a human resources department, the head of which shall be the director of human resources, who shall be a person holding at least a bachelor's degree from an accredited college or university, and who shall have had a minimum of five (5) years' experience in personnel management of an employment system, or an equivalent combination of training and supervisory experience. The human resources department shall be responsible for instituting and operating a personnel management system for the city in accordance with the provisions of the following sections of this article.
(Res. No. 511, 8-7-12)

902. Personnel policy.

There shall be established a personnel management system based on these principles:

(a) Recruiting, selecting, and advancing employees on the basis of their relative ability, knowledge and skills. Equal opportunity shall be given to all qualified applicants for appointment;

(b) Providing equitable and adequate compensation;

(c) Training employees, as needed, to assure high quality performance;

(d) Retaining employees on the basis of the adequacy of their performance, correcting inadequate performance, and separating employees whose inadequate performance cannot be corrected;

(e) Assuring fair treatment of applicants and employees in all aspects of personnel administration without regard to political affiliation, race, color, national origin, sex, religious creed, physical handicap, age or marital status, and with proper regard for their privacy and constitutional rights as citizens;

***Cross references—**City departments, Art. X; general provisions for departments, § 1201.

(f) Assuring that employees are protected against coercion for partisan political purposes and are prohibited from using their official authority for the purpose of interfering with the result of an election or a nomination for office.

903. Director of human resources; duties and powers.

The director of human resources shall, after consultation with department heads and in accordance with state law or applicable collective bargaining agreements:

(a) Make annual and special reports to the mayor on the quality and status of personnel administration in the city government and make recommendations for improvements;

(b) Prepare and revise at least once every four (4) years the classification plan for all city positions based on:

(1) The duties, authority and responsibility of each position,

(2) The degree of experience and/or education required,

(3) Standards for determining qualifications, and

(4) Job title and salary range. There shall be adequate provision for reclassification of positions if necessary;

(c) Establish, with the approval of city council, a pay plan listing all the position classes in the city with the pay rates or ranges assigned to each class;

(d) Establish, with the approval of city council, minimum qualifications for each class of position and standards for determining eligibility and fitness of the candidate(s) after consultation with the appropriate appointing officers;

(e) Provide for a probationary period of six (6) months before the appointment or promotion becomes permanent, during which time the probationary employee may be discharged or reduced in class position;

(f) Establish the standards for evaluating job performance and supervise the maintenance of personnel files by the appointing officers. Probationary employees shall be evaluated at least twice within the first six (6) months of employment on their job performance. Regular employees shall be evaluated annually according to the performance standards established by the appointing officer and the director of human resources. Personnel files shall also be current with regards to records and attendance at work, in-service training, and any other education and/or training taken on the initiative of the employee. These shall be considered as factors in determining promotions, demotions, discharges, and transfers;

(g) Establish procedures for temporary appointments. These shall be made only with the approval of the director of human resources for a period of no longer than one hundred eighty (180) days, and are renewable once for an additional one hundred eighty (180) days;

(h) Provide for emergency appointments only with the approval of the director of human resources and only when necessary to prevent serious impairment of the public business. These appointments are to continue only during the period of the emergency;

(i) Provide for temporary transfer of employees between departments or other agencies of the city because of seasonal, abnormal or emergency conditions before any temporary employees are appointed;

(j) Establish and enforce procedures for suspensions, discharge or reduction in class position, and layoffs;

(k) Provide for transfers within the same class position;

(l) The director of human resources shall certify that each salary or wage earner has been appointed and is being employed under the rules and regulations of the director of human resources and that the pay rates conform with the pay plan, and that regulations with regard to sick leaves, overtime and vacations have been observed;

(m) Identify promotional paths within municipal service, organize this information and freely provide career planning assistance to all city employees;

(n) Aid the mayor, city council, and all appointing officers in handling personnel matters under their jurisdictions;

(o) Aid the mayor in all negotiations with collective bargaining units.

(Res. No. 402, 9-11-92; Res. No. 511, 8-7-12)

904. Appointment, promotion, demotion, suspension and dismissal of employees.

All department heads and all boards, agencies and commissions of the city shall have the responsibility for the appointment, promotion, demotion, suspension and dismissal of all employees under their jurisdiction in accordance with the provisions of this Charter and such personnel rules and regulations as may be made pursuant thereto. Regular employees shall not be dismissed except for cause which shall be defined in rules developed by the director of personnel and shall be promulgated to all employees of the city.

905. Personnel system coverage and exemptions.

All officers and employees of the city, and of every department, office or other agency thereof shall be covered by the personnel system provided for in this article with only the exceptions listed below. The following officers and employees of the city shall not be covered by the personnel system:

(a) Officers elected by the people;

(b) Department heads;

(c) Officers elected or appointed by the city council;

(d) Members of city boards, commissions and agencies;

(e) Mayor's office staff, personal aides and assistants;

(f) Experts retained by the city council;

(g) One personal secretary for each department head;

(h) One secretary for each board, agency or commission;

(i) Legal assistants to the city solicitor;

(j) All employees of the school department;

(k) Persons employed by contract to perform special services for the city where such contract is certified by the director of personnel to be for employment which because of its expert nature or character cannot be performed by persons within the system;

(l) Persons temporarily appointed or designated to make or conduct a special inquiry, investigation or examination or to perform a special service where such appointment or designation is certified by the director of personnel to be for employment which because of expert nature or character could not or should not be performed by persons in the personnel system;

(m) Policemen and firemen under the jurisdiction of the department of public safety, otherwise known as the sworn personnel of said department.

906. Affirmative action.

There shall be an affirmative action office, headed by an affirmative action officer appointed by the mayor, within the office of the mayor. It shall be the duty of the affirmative action officer, in cooperation with the director of personnel and appointing officers to ensure equal employment opportunities for all of the citizens of the city within the city government.

907. Employee organization and collective negotiations.

Employees shall have the right of self-organization, and may form, join or assist any employee organization to negotiate collectively through representatives of their own choosing, as provided for in state law and city ordinances. It is the intent of this Charter that collective bargaining and personnel management are and shall be compatible employer/employee systems in the city government, and that compatibility can be preserved to the extent to which each of these systems respects the legitimate concerns of the other.

908. Retirement board.

(a) *Election and term.*

(1) There shall be an employee retirement board consisting of the city treasurer, the chairperson of the city council committee on budgetary matters or his designee and the finance director, ex officio; two (2) members who shall not be officers or employees of the city who shall be elected by the city council; two (2) members who shall not be officers or employees of the city who shall be appointed by the mayor and representatives of the present and retired employees of the city. The employee representatives shall be chosen from the two (2) classes of employees designated for retirement purposes, to wit, "Class A employees," who are all employees covered by the retirement system not otherwise designated, and "Class B employees," who are police personnel and firefighters, otherwise known as the sworn personnel of the department of public safety. Two (2) Class A employees shall be elected by the members of the system who are Class A employees; one Class B employee shall be elected by the members of the system who are Class B employees of the city fire department; one Class B employee shall be elected by the members of the system who are Class B employees of the city police departments; one retired Class A employee shall be elected by the retired members of the system who were Class A employees; and one retired Class B employee shall be elected by retired members of the system who were Class B employees. The election by the members shall be in accordance with such rules as the board shall adopt to govern such elections. The regular terms of elected members shall be four (4) years. Vacancies among the elected members of the board shall be filled for the unexpired term in the manner provided for the original election.

(b) [*Powers and duties.*] The powers and duties of the retirement board shall be prescribed by ordinance and shall include, without limitation, the following:

(1) To establish rules and regulations for and be responsible for the administration and operation of the city employee retirement systems under its jurisdiction;

(2) To report annually in detail to the city council on or before the first Monday in January, showing the fiscal transactions of the system for the fiscal period of the city next preceding, the amount of the accumulated cash and securities of the system and a copy of the last balance sheet showing the financial condition of the system by means of an annual actuarial valuation of the assets and liabilities.

(Election of 11-7-06)

Cross references—Boards and commission, Art. XI; general provisions for boards, authorities and commission, § 1202.

ARTICLE X. CITY DEPARTMENTS*

1001. Department of public safety.
1002. Department of public works.
1003. Board of park commissioners.
1004. Department of recreation.
1005. Recreational advisory board.
1006. Department of public property.
1007. Board of contract and supply.
1008. Department of inspection and standards.
1009. Zoning board of review.
1010. Housing board of review.
1011. Building board of review.
1012. Department of planning and urban development.
1013. City plan commission.
1014. Comprehensive plan.
1015. Department of sewer management.
1016. Port commission.
1017. Department of traffic engineering.

1001. Department of public safety.

There shall be a department of public safety, the head of which shall be the commissioner of public safety, hereinafter referred to as the commissioner, who shall be a person holding at least a bachelor's degree from an accredited college or university and a minimum of five (5) years' supervisory experience in administration or community relations or the equivalent in training and supervisory experience. The department of public safety shall include a police department, a fire department, a department of communications, and an emergency management agency and homeland protection department. In addition to the requirement in section 1201, subsection (e), the commissioner shall make such reports to the mayor and city council as they may request. In the event of a vacancy in the office of commissioner, the mayor shall act as commissioner of public safety until a commissioner has been appointed and approved by the city council.

(a) *Police department.* The head of the police department shall be the commissioner, who shall appoint a chief of police, who shall serve as the chief executive officer of the police department subject to the direction of the commissioner. The commissioner shall:

(1) Be responsible for the administration and discipline of the police department;

***Cross references—**School department, Art. VII; finance department, Art. VIII; personnel department, Art. IX; general provisions for departments, § 1201.

(2) Be charged with and responsible for the enforcement of all laws and ordinances and the promulgation and enforcement of rules and regulations of the police department;

(3) Have authority to appoint, remove, organize and control the officers and personnel of the police department and the police surgeons, matrons and all other attaches of the police department, subject to applicable personnel rules;

(4) Have authority to make all rules and regulations necessary for the efficiency, management and direction of the police department. Said rules shall provide for the qualification, appointment, removal, organization, powers, duties, discipline and control of members of the police department;

(5) Have and exercise, together with the mayor and all police officers duly appointed, all such other powers granted by law or ordinance as have been heretofor vested in them.

(b) *Fire department.* The head of the fire department shall be the commissioner, who shall appoint a fire chief, who shall serve as the chief executive officer of the fire department subject to the direction of the commissioner. The fire department shall continue to perform the functions and services relating to fire protection and fire prevention heretofor performed and such other duties as may be required by law or ordinance. The commissioner shall:

(1) Have authority to appoint, remove, organize and control the officers and personnel of the fire department and all other attaches thereof, subject to applicable personnel rules;

(2) Have authority to make and promulgate all rules and regulations necessary for the efficiency, management and direction of the fire department. Said rules shall provide for the qualification, appointment, removal, organization, powers, duties, discipline and control of members of the fire department.

(c) *Department of communications.* The head of the department of communications shall be the commissioner, who shall appoint a director of communications, who shall serve as the chief executive officer of the department of communications subject to the direction of the commissioner. The department of communications shall have jurisdiction over all design, procurement, installation and operation of all municipal radio, television, teletype and other associated equipment. The commissioner shall:

(1) Have authority to make and promulgate rules and regulations for the efficiency, management and direction of the department of communications;

(2) Be responsible, through the director of communications, for the complete operation of the department of communications and for the design, procurement, installation and proper operation of all the equipment under its jurisdiction;

(3) Insure that close liaison is maintained with other city departments and that they are provided with technical advice and specifications for the procurement of new communications equipment;

(4) Insure the proper discharge of any and all additional responsibilities which may from time to time be assigned to the department of communications by the mayor or the city council.

(d) *Emergency management agency and department of homeland security.* The head of the department of the emergency management agency and department of homeland security shall be a director, who is appointed by and serves at the pleasure of the mayor. The director shall appoint, with the approval of the mayor, such deputy directors of divisions and the chiefs of services of such divisions as may be provided for by ordinance of the city council. The director shall serve as the chief executive officer of the agency and department, subject to the direction and supervision of the commissioner of public safety. The director shall be charged with all phases of comprehensive emergency management and homeland security, as provided for by state law and ordinance.

(Res. No. 513, 8-7-12)

1002. Department of public works.

There shall be a department of public works, the head of which shall be the director of public works, who shall be a person holding a degree in engineering, with at least five (5) years' experience in the supervision of public works or building construction or equivalent training or experience. The deputy director may, in the discretion of the director of public works, also serve as head of one or more of the divisions or offices within the department.

The functions and responsibilities of the department of public works shall consist of the following, and such other functions and responsibilities as may be assigned to the department from time to time: Construction, reconstruction and maintenance of highways and bridges; operation of drawbridges and other movable bridges; snow removal; sidewalks and curbing; street cleaning; garbage and refuse collection and disposal, including operation and maintenance of incinerators and dumps; street lighting; the operation, maintenance and necessary reconstruction of the sewer and storm drain systems of the city, the sewage treatment plant or plants related thereto; compliance with state and federally mandated standards for waste water disposal, and such other related functions as may be assigned to the department.

(Election of 11-7-06)

1003. Board of park commissioners.

There shall be a board of park commissioners which shall have jurisdiction over all green spaces of the city, all parks including Roger Williams Park Zoo and Roger Williams Park Museum, the North Burial Ground and other city-owned or controlled cemeteries, public recreational areas of all types including those on or adjacent to school property and all forestry functions including the setting out, care and removal of trees, shrubs and other plants on the streets of the city as well as on the properties for which it is responsible. The board shall consist of seven (7) members, four (4) appointed by the mayor, two (2) elected by the city council, and the mayor ex officio. Of the four (4) members first appointed by the mayor, one shall serve a term of one year, one shall serve a term of two (2) years, one shall serve a term of three (3) years, and one shall serve a term of four (4) years. The members elected by the city council shall serve a term of four (4) years concurrent with the term of the city council. All subsequent appointments by the mayor and election by the city council shall be for a term of four (4) years.

(a) *Powers and duties.* The board shall:

(1) Acquire, plan, develop, and maintain the areas and facilities under its charge. No other city department or agency may undertake any plan, activity, construction or operation in or involving any public park of the city except by permission of the board.

(2) Determine policies, rules, regulations governing access to, and use of, the areas and facilities under its charge.

(3) Appoint for a period of not more than five (5) years a superintendent of parks who shall be a person holding at least a bachelor's degree from an accredited college or university with a minimum of five (5) years' experience in fields related to parks' administration or the equivalent in training or experience; and remove the superintendent of parks for official misconduct or failure to perform the duties of the office, after notice and hearing by a majority vote of its members. The superintendent of parks shall have the status of a department head with all the powers and duties appertaining thereto, and shall be responsible, subject to the authority of the board of parks commissioners, for the administrative and supervisory details of all matters within the jurisdiction of the board.

(4) To hold public hearings on its own initiative on any matter relative to program and policy decisions within the department of public parks and shall be required to hold such hearings not less than ten (10) days nor more than twenty (20) days following receipt of a petition signed by at least fifty (50) registered voters of the city.

(5) To invest the assets of the Charles H. Smith bequest in conformity with the terms of the last will and testament of Charles H. Smith.

(b) *Use of bequests and income from sale of surplus property limited.* No funds bequeathed to the city, or income from trusts donated to the city, for facilities or programs of the board of parks commissioners may be transferred to or used to pay the bills of any other city department, board or agency. All income derived from the sale of surplus property under the jurisdiction of the board shall be applied to the capital improvement budget of the board and shall not be used for any purpose other than capital improvements of facilities under the jurisdiction of the board.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1004. Department of recreation.

There shall be a department of recreation, the head of which shall be the director of recreation, who shall be a person with at least a bachelor's degree from an accredited college or university in health sciences, recreation, education or related fields and five (5) years' experience in a supervisory capacity or equivalent training or experience. The department of recreation shall be responsible for the planning and administration of recreation programs in the city for all age groups, and for such other programs and services as may from time to time be placed under its jurisdiction.

1005. Recreational advisory board.

There shall be a recreational advisory board consisting of five (5) members, three (3) appointed by the mayor and two (2) elected by the city council. Of the three (3) members first appointed by the mayor, one shall serve a term of one year, one shall serve a term of two (2) years, and one shall serve a term of three (3) years. All subsequent appointments by the mayor shall be for a term of three (3) years. The members elected by the city council shall serve a term of four (4) years which shall be concurrent with the term of the city council. The recreational advisory board at its first meeting shall select a chairperson and such other officers as it may deem necessary from among its members and adopt rules of procedure for the conduct of its business not inconsistent with the provisions of this Charter. The board shall meet at least quarterly and shall hold special meetings upon the request of any two (2) members.

(a) *Duties and responsibilities.* The powers and duties of the recreational advisory board shall include, without limitation, the following:

(1) To advise the mayor, the city council and the director of recreation on matters relating to the recreational facilities and activities to serve all the people of the city which fall under the jurisdiction of the department of recreation.

(2) To hold public hearings on its own initiative on any matter relative to program and policy decisions within the department of recreation and

shall be required to hold such hearings not less than ten (10) days nor more than twenty (20) days following receipt of a petition signed by at least fifty (50) registered voters of the city.

(3) To make such budgetary recommendations to the director of recreation as it may think appropriate.

(4) To be advised of all proposals for changes of policy by the director of recreation which would have the effect of discontinuing any existing programs or services; initiating any new programs or services; substantially altering any current program or service; effecting a transfer of funds of more than five hundred dollars ($500.00) from one account to another within the budget of the department.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1006. Department of public property.

There shall be a department of public property, the head of which shall be the director of public property, who shall be a person holding at least a bachelor's degree from an accredited college or university, or who shall have had a minimum of five (5) years of experience in the supervision of a centralized system for purchase, distribution and inventory of supplies, or supervision of building maintenance, or equivalent training or experience. The department of public property shall have jurisdiction over all land owned by the city which does not come under the jurisdiction of the department of public parks as set forth in section 1003 and over all buildings and other structures owned by or under the control of the city, and shall be responsible for the maintenance, planning, design, construction, alterations and repairs to all such city property under its jurisdiction. In the event of disagreement over whether a particular piece of city land, or a particular building or other structure falls under the jurisdiction of the department of public property, or of another department or agency of city government, such disagreement shall be resolved by the mayor. The department of public property shall also be responsible, subject to the provisions set forth hereinafter relating to the board of contract and supply, for all purchasing and procurement of materials, supplies, contractual services, equipment and all other necessary categories of procurement for the city.

(a) *Powers and duties of the director.* The powers and duties of the director of the department of public property shall include, without limitation, the following:

(1) To make such rules and regulations as may be necessary to carry out the responsibilities imposed upon the department; provided, however, that all rules and regulations relating to the conduct of the purchasing function including the manner of purchase, delivery, storage and distribution of materials and supplies, the manner of making and of submitting requisitions and estimates, the inspection and testing of materials, supplies

and equipment, reports as to stocks and transfers thereof, and the manner of approval of payment therefor, shall be laid before the city council which shall have thirty (30) days to disapprove the same in whole or in part before they take effect;

(2) To sell all supplies, materials and equipment not needed for public use, or that may have become unsuitable for use, but only after authorization by the board of contract and supply;

(3) To transfer from one department or agency of city government to another any materials, supplies or equipment that any such agency shall have declared surplus;

(4) To control all central storerooms now or hereafter operated by the city or any department or agency thereof;

(5) To establish and enforce standard specifications, subject to the approval of the board of contract and supply and relevant department heads, for all supplies, materials and equipment purchased for use by any department or agency of city government;

(6) To supervise and control the municipal garage and its operation;

(7) To supervise and control the use and operation of all printing and duplicating equipment;

(8) To make and keep current an inventory of all movable equipment on property belonging to the city;

(9) To be responsible for all other functions and duties which are or shall be hereafter assigned to the department of public property.

(b) *Revolving fund.* There shall be a revolving fund into which payment shall be made by departments and agencies of the city in reimbursement for the cost of such maintenance and repair services as are performed by the department of public property on property, buildings or facilities under the jurisdiction of such department or agencies. The city council may specify the terms, conditions and accounting procedures for the operation of such revolving fund.

(c) [*Purchases of less than two thousand dollars.*] All contracts for purchase of materials, supplies, services, equipment and property on behalf of the city, the price or consideration of which shall exceed five hundred dollars ($500.00) but amount to less than five thousand dollars ($5,000.00) shall be made by the director of public property on the basis of three (3) or more informal competitive bids, which may be solicited without advertising, but which must be submitted in writing. Upon receipt of said informal bids any such contract shall be awarded to the lowest responsible bidder among them. All purchases made on behalf of the city, the price or consideration of which shall be five hundred dollars ($500.00) or less, shall be made by the

department or agency requiring the materials, supplies, services, equipment or property involved, in accordance with rules and regulations established by the director of public property. No purchase request which is essentially a unit shall be divided for the purpose of evading the requirement of solicitation of competitive bids set forth in this subsection or that set forth in section 1007(c), clause (1) below; provided, however, that said requirements for competitive bidding may be dispensed with to allow emergency purchases upon the recommendation of the director of public property with the approval of a majority of all of the members of the board of contract and supply. Emergency shall be defined for the purposes of this subsection as an unforeseen situation, requiring immediate attention in order to safeguard the welfare of the people of the city, and one which renders the process of competitive bidding impractical or impossible.

(d) [*When contracts or purchases are void.*] Whenever any purchase or contract for any supplies, materials, equipment or services is made on behalf of the city contrary to the provisions of this Charter or the rules or regulations made hereunder, such order or contract shall be void and of no effect. The person or persons responsible for authorizing any such order or contract shall be personally liable for the cost thereof, and if already paid for out of city funds, the amount may be recovered from such person or persons in the name of the city in an appropriate action instituted therefor.

(e) [*Records.*] The director of public property shall cause to be maintained in his office a complete chronological record of all purchases and contracts made or attempted to be made, including the name of each bidder, the amount of each bid, an indication of the successful bidder, the originals of all sealed bids and, where competitive bidding was dispersed with, the name of the vendor or contractor, the price paid and the written approval of the board of contract and supply where required.

(Ord. No. 107, § 2, 3-13-97; Res. No. 512, 8-7-12)

1007. Board of contract and supply.

There shall be a board of contract and supply whose members shall consist of the mayor, the president of the city council, the finance director, the city controller, the chair of the committee of the city council with jurisdiction over city property, the chair of the committee of the city council with jurisdiction over budgetary and financial matters, the director of public works, the commissioner of public safety, the city treasurer, the director of public property, the chair of the water supply board and the president of the school committee, all ex officio. In the absence of any of the above-named members, a deputy shall serve in the place of said member. On the first Monday of January, 1983, or as soon thereafter as may be practical, the members of the city council who are members of a political party or parties other than that of the mayor, or are independents, shall elect from their total number one

member to serve on said board for a term of four (4) years. Any vacancy that may occur in the office of an elective member shall be filled for the unexpired term by those members of the city council eligible to vote for that elective member under the terms of this subsection. Failure to elect such elective member shall in no case prevent said board from acting. The city assessor shall likewise be, ex officio, a member of the board for such purposes as may be declared by ordinance.

(a) The mayor, or in the absence of the mayor, the president of the city council, shall be the chair of said board. The city clerk, or in the absence of the city clerk, one of his or her deputies, shall act as clerk of said board.

(b) In addition to the membership established herein, the city council, by ordinance, may appoint the heads of other city departments or agencies to the membership of the board of contract and supply, but may not deny membership to any member so named in this subsection unless the department or agency of which said member is the head shall have been abolished.

(c) It shall be the responsibility of the board of contract and supply:

(1) To make all contracts for purchase of materials, supplies, services, equipment and property on behalf of the city, the price or consideration of which shall exceed ten thousand dollars ($10,000.00), and twenty thousand dollars ($20,000.00) for construction contracting on the basis of sealed bids solicited through public advertisement in a newspaper of general circulation in Providence, such bids to be submitted, opened and considered in accordance with rules and regulations approved by the board. The city council may increase the figures of ten and twenty thousand dollars ($10,000.00 and $20,000.00) by a two-thirds vote following a public hearing, but no more often than once every five (5) years;

(2) To insure before a contract is entered into that there exists sufficient appropriation to pay the cost thereof;

(3) To reject any or all bids submitted to it for a specific purpose if it considers that the public interest will be best served thereby.

(d) The board of contract and supply shall have the authority to enter into agreements with the state, or the United States, or any public body having authority to condemn property of the city, with respect to the value of any such property so taken; and shall have the authority to employ such experts as it shall deem necessary to assist it in the purchase of real estate, or in connection with the condemnation thereof, under such terms and conditions as the city council may set.

(Ord. No. 107, § 2, 3-13-97; Res. No. 2022-300, 7-28-22)

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1008. Department of inspection and standards.

There shall be a department of inspection and standards, the head of which shall be the director of inspection and standards and the chief building inspector, who shall be a person who is a registered professional engineer or registered architect, or who has had experience as a general building contractor or general supervisor of building construction, with at least twelve (12) years' experience in one or a combination of the foregoing fields, at least five (5) years of which were spent in responsible charge of important building work, or the equivalent training or experience.

(a) *Functions and responsibilities.* The functions and responsibilities of the department of inspection and standards shall include the following:

(1) All inspection functions carried on by the city, including but not limited to electrical inspection, plumbing, mechanical inspection, gas and drainage inspection, building inspection, and minimum housing code enforcement and inspection;

(2) General administrative responsibility for the zoning board of review, the housing board of review and the building board of review, and the responsibility of providing to said boards necessary staff and professional assistance; provided, however, that the mayor, with approval of the city council, shall appoint a secretary who shall serve all three (3) boards at the mayor's pleasure;

(3) The duties and responsibilities imposed upon the city by state law relating to weights and measures, and the inspection and verification of weighing and measuring devices.

1009. Zoning board of review.

There shall be a zoning board of review of five (5) members and one auxiliary member who shall sit in the absence of one of the regular members, all appointed by the mayor with the approval of the city council for five-year staggered terms, such terms to be so arranged that the term of one member shall expire each year for five (5) successive years, the auxiliary member also to serve for a five-year term. The city council shall provide by ordinance for the organization and procedures of the board. The board may, in appropriate cases and subject to appropriate conditions and safeguards, make special exceptions to the terms of the zoning ordinance in harmony with its general purpose and intent and in accordance with general or specific rules therein contained, or where such exception is reasonably necessary for the convenience or welfare of the public.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1010. Housing board of review.

There shall be a housing board of review of five (5) members appointed by the mayor with the approval of the council, one of whom shall be a medical doctor, one an engineer or architect, one a licensed professional engineer and two (2) to represent the general citizenry of the city. All of the said members shall be appointed for five-year staggered terms, such terms to be so arranged that the term of one member shall expire each year for five successive years. The city council shall provide by ordinance for the organization and procedures of the board. The board shall hear appeals from findings by minimum housing inspectors under the minimum housing code of the city or of the state.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1011. Building board of review.

There shall be a building board of review of five (5) members appointed by the mayor with the approval of the council, one of whom shall be a licensed civil engineer, one a licensed architect, one a licensed mechanical engineer, one a licensed electrician, and one a qualified builder. All of the said members shall be appointed for five-year staggered terms, such terms to be so arranged that the term of one member shall expire each year for five (5) successive years. The city council shall provide by ordinance for the organization and procedures of the board. The board shall hear, pursuant to the provisions of state law, appeals relating to the enforcement of the state building code.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1012. Department of planning and urban development.

There shall be a department of planning and urban development, the head of which shall be the director of planning and urban development, who shall be a person with a minimum of ten (10) years' experience in professional city planning and urban development, including at least five (5) years of supervisory and administrative experience, or an equivalent combination of professional training and supervisory experience in city planning or related fields.

(a) *Powers and duties.* The powers and duties of the department of planning and urban development shall include, without limitation, the following:

(1) To advise the mayor on any matter affecting the physical development of the city;

(2) To assist the city plan commission in the development of the comprehensive plan and modifications thereto;

(3) To review and make recommendations regarding proposed action by the city council, the Providence Redevelopment Agency and other city agencies regarding implementation of the comprehensive plan and its elements pursuant to section 1014(c) below;

(4) To develop and periodically review the five-year capital improvement program and the annual capital improvement budget and upon their approval by ordinance, to advise the mayor and city council on their implementation;

(5) To provide staff and consultant services to the city plan commission for the purposes of the preparation of the comprehensive plan, the plan elements and other purposes connected with the duties and responsibilities of the commission.

(6) Upon request of the commission or the city council, to prepare rules and regulations to govern, control and restrict the platting or other subdivision of land, or amendments thereto, for submission to the city council for its approval.

1013. City plan commission.

There shall be a city plan commission of seven (7) members. The mayor shall appoint, and the city council approve, five (5) members, who shall be qualified voters of the city, to serve for staggered five-year terms, with appointments arranged so that the term of one member shall expire each year. One member shall have experience in real estate, development or finance; one member shall have experience in city planning, architecture or urban design; and three (3) members shall represent the general citizenry of the city. The president of the city council and the mayor, or their designees, shall serve as members, ex officio. Any vacancy among the appointed members of the commission shall be filled by the mayor with the approval of the city council to serve for the remainder of the unexpired term. No member shall serve beyond the date of expiration of said term unless reappointed.

(a) *Powers and duties.* The powers and duties of the city plan commission shall include, without limitation, the following:

(1) To prepare a comprehensive plan for the city of Providence;

(2) To submit advisory opinions and recommendations on all zoning amendments referred to it under the provisions of the city zoning ordinance and shall report on any other matter referred to it by the city council or by the mayor;

(3) To perform such other duties as may be assigned to the commission from time to time by any state law or by any ordinance or resolution of the city council or by the mayor; and

(4) To review and approve for submission to city council the capital improvement plan as prepared by the department of planning and urban development.

(Res. No. 2022-300, 7-28-22)

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1014. Comprehensive plan.

(a) [*Purpose; scope.*] There shall be a comprehensive plan for the development of the city. The comprehensive plan shall set goals for the city and policies for achieving those goals, such goals and policies to include but not be limited to land use, transportation routes and facilities, public facilities and services, renewal and rehabilitation of blighted areas, housing programs, conservation areas, historic preservation areas, environmental protection programs, economic and industrial development, downtown and commercial center revitalization and protection from disaster. It shall be the responsibility of the city plan commission to prepare, monitor the implementation of, and periodically revise the comprehensive plan, in consultation with the director of planning and urban development, pursuant to the procedures set forth herein. It shall also be the responsibility of the commission to gather and evaluate, in conjunction with the department of planning and urban development, all pertinent information, statistical and otherwise, including but not limited to the economic and social characteristics of the population of the city, as may be useful in carrying out its planning responsibilities. The comprehensive plan shall be developed in general conformance with the applicable goals and policies contained in state plans. Upon adoption of the comprehensive plan for the development of the city, the city plan commission shall use said plan as a guide to its actions in areas relating thereto, and at least every five (5) years, shall review the plan and propose any amendments deemed necessary. Both in the course of the development of the comprehensive plan by the commission, and during consideration of any amendments thereto, the commission shall solicit the views of all city department and agency heads.

(b) *Adoption of comprehensive plan.* Upon completion of the comprehensive plan, the commission shall hold at least one public hearing thereon. After making such changes as it deems necessary, the commission shall adopt the plan by a majority vote of its members and forward the plan to the city council. Upon receipt of the plan, and following at least one public hearing thereon by the city council, the city council shall within sixty (60) days of the date of submission either adopt, reject, or amend the plan by a majority vote of all of its members. If the entire plan is rejected, the city council shall return said plan to the commission together with its reasons for rejection and its recommendations. If the city council amends the plan, it shall, prior to final passage, notify the commission and lay the plan on the table for a period of thirty (30) days from the date of notification. Upon receipt of any comment by the commission or the expiration of thirty (30) days, whichever is sooner, the city council shall complete final consideration of the plan and vote thereon.

Amendments to and revisions of the comprehensive plan shall be developed from time to time by the commission and following at least one public hearing thereon, adopted by the commission. Such amendments and revisions shall thereupon be submitted to the city council, which shall, following at least one public hearing thereon, adopt, reject, or amend the same in the same manner as is provided herein for city council action on the comprehensive plan.

(c) *Implementation of comprehensive plan.* The city plan commission shall develop detailed analyses of the needs and resources of the community in conformance with the comprehensive plan. These analyses shall conform to the comprehensive plan as adopted by the city council and shall be made subject to at least one public hearing no less than thirty (30) days prior to adoption by the commission. Prior to such hearings, expanded written explanations of the analyses to be considered shall be made available to the public.

(d) *The effect of the comprehensive plan.*

(1) No public or private improvement or project or subdivision or zoning ordinance shall be initiated or adopted unless it conforms to and implements the comprehensive plan and elements thereof.

(2) No capital improvement shall be funded unless that improvement is consistent with the comprehensive plan.

(3) All development and project plans and proposals and all privately developed projects and developments which require approval by the city council or by other city boards, commissions or committees shall be submitted by the appropriate aforementioned public agency to the director of the department of planning and urban development for determination as to compliance with the comprehensive plan and its elements. All appeals from the director's decisions shall be submitted to the city plan commission for a determination as to compliance with the comprehensive plan.

1015. Reserved.

Editor's note—Pursuant to the results of the election of November 7, 2006, § 1015 has been repealed. Former § 1015 pertained to the department of sewer management, and derived from the Charter adopted September 18, 1980.

1016. Port commission.

There shall be a port commission for the Port of Providence of seven (7) members, five (5) of whom shall be appointed by the mayor to serve for staggered three-year terms, and two (2) of whom shall be elected by the city council from among its own members to serve for four-year terms. The initial appointments by the mayor shall be made during the month of January, 1983, in such manner that two (2) such appointees shall serve for terms of three (3) years, two (2) for terms of two (2) years, and one for a term of one year. In each succeeding January the mayor shall make such appointments as may be required to fill the places of commissioners who terms are due to expire during that month. The commission members elected by the city council shall be chosen in January of 1983 and every fourth year thereafter. In the event of vacancies in the membership of the commission, such vacancies shall be filled by the mayor or by the city council, as the case may require, for the unexpired term or terms.

The commission shall, at its first meeting in February of each year, elect its chairperson and such other officers as it may see fit, and shall have the authority to make and amend rules for the conduct of its business.

(a) The port commission shall have the following powers and responsibilities:

(1) To develop the Port of Providence through the planning, construction and maintenance of all needful berths, docks, structures and facilities, and through the encouragement to the maximum extent possible of use of the same by shippers and the maritime industry generally;

(2) To manage, supervise and control the port district and all navigable waters, tidelands and all lands and interests within it, subject to applicable provisions of state law;

(3) To appoint and contract for a period not to exceed five (5) years with a director for the Port of Providence, who shall serve as the executive officer of the commission, and to remove the port director for official misconduct or failure to perform the duties of the office, after notice and hearing, by a majority of its members;

(4) To make and enforce all necessary rules and regulations governing the port district, including the fixing of rates for any use of facilities or services owned or provided by the city in the port district;

(5) To adopt an annual budget for submission to the mayor for inclusion in the operating budget of the city, and to make recommendations for inclusion in the capital budget of the city, pursuant to the provisions of this Charter;

(6) To specify the requirements and/or restrictions for the leasing of lands and facilities, forfeiting of leases, fixing of rentals, applications for franchises, permits, leases, licenses and expenditures of funds by the commission. All leases entered into by the commission must be approved by the city council before taking effect.

(b) The city council shall define, by ordinance, the boundaries of the port district of the Port of Providence which shall be under the jurisdiction of the port commission. The city council may, by ordinance, add any tidelands, submerged lands, waterfront or adjacent lands acquired by the city to the port district. The authority conferred by this subsection shall be exercised subject to applicable state law.

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

1017. Department of traffic engineering.

There shall be a department of traffic engineering, the head of which shall be the traffic engineer, who shall be a person who has had professional training in the field

of traffic engineering and has been employed for and [at] least five (5) years in the field of traffic engineering or a closely related field, or who has had equivalent training or experience.

(a) Powers and duties of the department of traffic engineering [are as follows:]

(1) To make all needful rules and regulations for the regulation and control of traffic in the city not inconsistent with the laws of the state; provided, however, that all regulations relative to the establishment of one-way streets shall first be approved by resolution of the city council, except that the traffic engineer without prior approval of the city council, but with approval of the mayor, may establish temporary or emergency one-way streets where construction projects or detours are involved.

(2) To collect and analyze all traffic, physical and economic data needed to measure existing, and to estimate future, street and highway traffic characteristics and needs, including parking needs; and report recommendations thereon.

(3) To prepare and submit to the mayor plans for the proper location, function and operation of city highways, parking terminals and appurtenances thereto.

(4) To establish rules and regulations governing the use of public highways and public off-street parking facilities, which may be parking lots, garages, or other structures.

(5) To perform such other functions, exercise such other powers and fulfill such other responsibilities as may from time to time be assigned to the department.

(b) All design drawings prepared by other departments of the city government for the construction of proposed highways, bridges, parking terminals and other traffic-handling facilities shall be submitted to the traffic engineer for a review and recommendation, but nothing in this subsection shall be construed to prevent the city council from acting on such matters without such review or recommendation.

(c) Rules and regulations made pursuant to this article shall be promulgated by publication at least once in a newspaper of general circulation in the City of Providence, and the traffic engineer shall have printed copies thereof available for distribution to the public.

ARTICLE XI. BOARDS AND COMMISSIONS*

1101. Water supply board.
1102. Board of licenses.
1103. Human relations commission.
1104. Civic center authority.
1105. Commissioners of the Dexter Donation.
1106. Charles H. Smith Estate.
1107. Providence Housing Authority.
1108. Providence Redevelopment Agency.

1101. Water supply board.

There shall be a water supply board which shall consist of the director of finance, ex officio, and six (6) other members, four (4) of whom shall be appointed by the mayor for four-year terms arranged in such a manner that the term of one appointed member shall expire annually and two (2) of whom shall be elected by the city council from among its members to serve for a term of four (4) years. The city council may elect members to the water supply board who are not presently members of the city council, provided that such members serve a term concurrent with the term of the city council. Annually at its first meeting following the qualification of new members, the board shall elect one of its appointive members to serve as chair. In the event of a vacancy in the office of chair, the board shall fill the vacancy for the balance of the term. No member of the board shall continue in office after his or her term expires without being reappointed by the mayor or re-elected by the city council as the case may be.

(a) *Powers and duties.* The powers and duties of the water supply board shall include, without limitation, the following:

(1) To supervise, manage and control water collection, storage, purification, and distribution system of the city and other areas within its jurisdiction;

(2) To protect and conserve the water supply of the city and other areas within its jurisdiction;

(3) To appoint for a period of not more than five (5) years a general manager who shall have at least a bachelor's degree from an accredited college or university and five (5) or more years of supervisory experience in the administration of a utility system.

***Cross references—**Board of canvassers, § 203; salary review commission, § 415; school board, § 701; board of tax assessment review, § 814; board of investment commissioners, § 815; retirement board, § 908; board of park commissioners, § 1003; recreational advisory board, § 1005; board of contract and supply, § 1007; zoning board of review, § 1009; housing board of review, § 1010; building board of review, § 1011; city plan commission, § 1013; port commission, § 1016; general provisions for boards, authorities and commissions, § 1202; charter review commission, § 1302.

(4) To appoint for a period of not more than five (5) years a chief engineer who shall be a professional engineer with at least five (5) years of service as such; and to remove the general manager or chief engineer for official misconduct or failure to perform the duties of the office, after notice and hearing, by a vote of a majority of its members.

(5) To appoint a legal advisor, subject to the approval of the mayor, to hold office at the pleasure of the board, for the purpose of advising the water supply board upon all questions involving its official actions and business; provided that said legal advisory shall be subordinate to the city solicitor and in all litigation to which the city may be a party, said legal advisor shall be under the direction of the city solicitor.

(b) *General manager's powers and duties.* The general manager shall have sole charge of the city water system in every particular, being subject at all times to the prescribed orders and direction of the water supply board, and shall personally attend to all administrative and supervisory details of operating the water system, including personnel matters, subject to the orders and direction of the board. The general manager shall annually prepare a report for presentation to the board, mayor and city council containing a description of the general operation of the water system, a detailed statement of expenditures and income and such other data and information as the board may require.

(Election of 11-7-06; Res. No. 2022-300, 7-28-22)

1102. Board of licenses.

(a) There shall be a board of licenses which shall have and exercise such power and duties relating to licenses as may be prescribed by law or ordinance. The board shall consist of five (5) members appointed by the mayor with the approval of the city council. Of the five (5) members first appointed, two (2) shall serve a term of one year, two (2) shall serve a term of two (2) years, and one shall serve a term of three (3) years. All subsequent appointments or reappointments shall be for a term of three (3) years. At its first meeting following qualification of the member appointed for that year, the board shall elect from among its membership a chairperson and secretary. In the event of a vacancy in the office of chairperson or secretary, the board shall fill the vacancy for the balance of the term. No member of the board shall continue in office after his or her term expires without being reappointed by the mayor with the approval of the city council.

(b) The board of licenses, subject to such terms, limitations and conditions as prescribed by state law, this Charter or ordinance of the city council, shall:

(1) Require an inspection, investigation and report by the police department on the application for any license and of the person making such application in all cases in which the police department has an interest or concern therein.

Such board, in the same or other cases, may require a similar inspection, investigation and report to be made by said department or by any other officer, department or agency of the city.

(2) Receive from the police department notification of the violation of the terms of any license and any information concerning a person holding any such license which relates to the fitness of such person to be licensed. Similar information shall be furnished to the board of licenses by any officer, department or agency of the city as to matters within the officer's or agency's jurisdiction.

(3) Unless otherwise provided by state law, suspend, annul, rescind, cancel or revoke any license issued by the board of licenses for any reason which the board may deem to be in the public interest; provided, however, that no license shall be suspended for more than seventy-two (72) hours or annulled, rescinded, cancelled or revoked unless the licensee shall have been given at least three (3) days' written notice of the action proposed to be taken and of the grounds therefor and the time and place of the hearing. The said licensee shall also be notified of the right to be represented at said hearing by legal counsel.

(4) Submit an annual report to the mayor and city council.

(c) In the discharge of its duties, the board of licenses shall have the following powers:

(1) Members of the board are hereby severally authorized to administer oaths;

(2) To summon witnesses by subpoena signed by any member and to compel such witnesses to attend and testify;

(3) To compel the production of all papers, books, documents, records, certificates or other legal evidence that may be necessary or proper for the determination and decision of any question or for the discharge of any duty required by law of said board, by issuing subpoena duces tecum signed by any member;

(4) Any person disobeying any such subpoena shall be considered in contempt and said board may seek a citation in contempt from the superior court of Providence County.

1103. Human relations commission.

There shall be a human relations commission which shall act to further amicable relations among various segments of the population; help make it possible for each citizen, regardless of race, color, sex, religion, marital status, handicap, age, or country of ancestral origin, to develop talents and abilities without limitation; aid in

permitting the community to benefit from the fullest realization of its human resources; and preserve and further the good name of Providence and its people for tolerance and fair play.

(a) *Appointment.* The commission shall consist of thirteen (13) members who shall be appointed by the mayor with the approval of the city council to serve for three-year terms. Members shall not be entitled to compensation for their service to the commission, but shall be reimbursed for actual expenses incurred in the performance of their duties. Annually at its first meeting following the qualification of the members appointed that year, the commission shall elect from among its membership a chairperson and such other commission officers as may from time to time be established by said commission. In the event of a vacancy in the office of chairperson or in any other office of the commission, the members thereof shall fill the vacancy for the balance of the unexpired term. No member of the commission shall continue in office after his or her term expires without being reappointed by the mayor with the approval of the city council.

(b) *Functions and duties.* The commission shall:

(1) Make studies, surveys and investigations, and recommend to the mayor and the city council such measures as it deems necessary to carry out the objectives of the commission.

(2) Receive, initiate, investigate, hear, and determine charges of violation of federal and state law, this Charter, and ordinances of the city council forbidding discrimination as provided for by ordinance.

(3) Prevent unlawful discriminatory practices and issue remedial orders after notice and public hearing, requiring cessation of such practices, as provided for by ordinance; provided that before instituting a formal hearing, the commission shall seek to induce voluntary compliance.

(4) Employ an executive director, who shall be a person holding at least a bachelor's degree from an accredited college or university and [or have] a minimum of three (3) years' experience in the field of social relations or a combination of both; and to appoint and remove legal advisers and hearing examiners which the commission deems necessary to carry out the objectives and responsibilities of the commission.

(5) Establish by a majority vote of its members such rules and regulations as it may deem essential to carry out the objectives and responsibilities of the commission.

(6) Compel the attendance of witnesses and the production of evidence relevant to the matter in question for investigatory and determinative

purposes by subpoena issued by the city council upon request in writing by said commission, and obtain enforcement of said subpoena in superior court;

(7) Render each year to the mayor and city council a full written report of its activities and its recommendations.

1104. Reserved.

Editor's note—Pursuant to the results of the election of November 7, 2006, § 1104 has been repealed. Former § 1104 pertained to the civic center authority, and derived from the Charter adopted September 18, 1980.

1105. Commissioners of the Dexter Donation.

There shall be a board of commissioners of the Dexter Donation which shall be elected in accordance with the provisions of the last will and testament of Ebenezer Knight Dexter. The board of commissioners shall transact business relating to the property and estate left to the city by the last will and testament of Ebenezer Knight Dexter.

1106. Charles H. Smith Estate.

The investment of the assets of the Charles H. Smith bequest, and the expenditure of income therefrom, shall be determined by the board of parks commissioners, in conformity with the terms of the last will and testament of Charles H. Smith.

1107. Providence Housing Authority.

There shall be a Providence Housing Authority consisting of eleven (11) commissioners, nine (9) of whom shall be appointed by the mayor, and two (2) of whom shall be elected by the city council from among its members. All commissioners shall be residents and domiciliaries of the city. Those commissioners appointed by the mayor shall serve for staggered five-year terms so arranged that the terms of two (2) commissioners shall expire in each of four (4) successive years, and the term of one commissioner shall expire in the fifth year. At all times three (3) of the said appointees of the mayor shall be occupants of public housing, which commissioners shall be appointed from a list of nominees chosen yearly by the occupants of public housing in open elections, each housing project choosing three (3) nominees from among its occupants. Upon the determination by the mayor that any commissioner chosen as a resident of public housing shall have been not an occupant of public housing or not a resident of the city for a period of six (6) consecutive months, the mayor shall remove such commissioner and designate a person to fill the resulting vacancy, provided that the mayor choose the replacement from the list of nominees chosen yearly by the occupants of public housing when appropriate. No commis-

sioner may be a city or state official, provided that members of the housing authority may serve on the city council. The two (2) commissioners to be elected by the city council shall be so elected on the first Monday in January. Vacancies shall be filled for the unexpired term. The mayor shall file with the city clerk a certificate of the appointment or reappointment of any commissioner and such certificate shall be conclusive evidence of the due and proper appointment of such commissioner.

(a) When the office of chair of the housing authority becomes vacant, the authority shall select a chair from among its members. The authority shall also select from among its members a vice-chair, and it may employ a secretary (who shall be executive director), technical experts and such other officers, agents and employees, permanent and temporary, as it may require and shall determine their qualifications, duties and compensation. The authority may call upon the city solicitor for such legal services as it may require or it may employ its own counsel and legal staff. The authority may delegate to one or more of its agents or employees such powers or duties as it may deem proper. Seven (7) commissioners of the authority shall constitute a quorum. The city council shall set the compensation for commissioners in accordance with the provisions of section 415 of Article IV.

(b) Commissioners may be removed from office pursuant to the provisions of section 403, Article IV, and the procedures set forth therein.

(c) The Providence Housing Authority shall have all of the powers, duties and responsibilities in connection with the provisions of adequate housing for the people of the city, and for all other purposes, as set forth in applicable laws of the state and of the federal government, and this Charter, now or hereafter in effect for housing authorities generally or the Providence Housing Authority in particular.

(Res. No. 2022-300, 7-28-22)

1108. Providence Redevelopment Agency.

There shall be a Providence Redevelopment Agency consisting of the mayor, ex officio, and seven (7) members. Five (5) of said members shall be appointed by the mayor from among persons who are residents and domiciliaries of the city, to serve for five-year staggered terms so arranged that the term of one member shall expire each year, any vacancy to be filled for the unexpired term. None of said members appointed by the mayor shall be an elected officer or employee of the city. Two (2) of the members of the agency shall be elected by the city council from among its members on the first Monday in January, 1983, and every fourth year thereafter on the first Monday in January. The powers of such agency shall be vested in the members thereof then in office. Members shall receive their actual and necessary expenses including travel expenses and may receive such other compensation as the city council may prescribe.

(a) The redevelopment agency shall elect a chair and vice-chair from among its members. The agency shall elect or appoint a secretary who need not be a

member of the agency. The term of office of the chair, vice-chair and secretary, unless otherwise prescribed by the city council, shall be for the calendar year, or for that portion remaining after each such officer is designated or elected.

(b) Members of the agency may be removed from office pursuant to the provisions of section 403, Article IV, and the procedures set forth therein.

(c) The Providence Redevelopment Agency shall have all of the powers, duties and responsibilities in connection with the redevelopment of blighted and substandard areas in the city, and for all other purposes, as set forth in applicable laws of the state and of the federal government, and this Charter, now or hereafter in effect for redevelopment agencies generally or the Providence Redevelopment Agency in particular.

(Res. No. 2022-300, 7-28-22)

ARTICLE XII. GENERAL PROVISIONS

1201. General provisions for departments.
1202. General provisions for boards, authorities and commissions.
1203. Public records.
1204. Open meetings.
1205. Public hearings.
1206. Prohibited activities and conflicts of interest.
1207. Officers, defined.
1208. Oath of office; entry upon duties of office.
1209. Separability.
1210. Residence requirement; exemptions.
1211. Bonds of officers and employees.

1201. General provisions for departments.

The following provisions shall apply to all heads of departments and to all departments of city government, subject to any exceptions and qualifications set forth in this Charter or in state law.

(a) *Qualifications of department heads.* It shall be the responsibility of the mayor in the making of all appointments of department heads pursuant to section 302(b), to appoint, and it shall be the responsibility of the city council to approve, only persons who are qualified by training, education or previous experience for the positions they are to hold, and who meet the qualifications for any such position as may be specified in this Charter or by ordinance. All department heads shall be subject to applicable personnel regulations that may hereafter be adopted.

(b) *Deputies, appointment.* As soon as may be after each department head's appointment is approved by the city council, said department head may appoint a deputy or deputies, without the necessity of any approval or confirmation by any other person or body, and shall designate in writing the respective rank and duties of said deputy or deputies. During the absence from the city or disability for any cause of any such department head, or at his or her request, any such deputy or deputies shall perform such duties as shall be prescribed by said department head. Subject to any applicable personnel regulations that may hereafter be adopted, all such deputies shall serve at the pleasure of their respective department heads.

(c) *Authority of department heads.* Each department head shall have the supervision and control of the department of city government committed to his or her charge by the provisions of this Charter. Each department head shall have power to prescribe rules and regulations not inconsistent with this Charter and the resolutions and ordinances passed pursuant thereto, for the distribution and performance of the business of the department, and for the

custody and preservation of the books, records, papers and property under his or her control. Except in the case of the department of the city clerk, and subject to such other exceptions as may be set forth in this Charter or in state law, all powers granted in this subsection shall be exercised under and subject to the direction of the mayor. Copies of all rules, regulations and organizational charts issued hereunder shall be deposited with the city clerk and be open for public inspection.

(d) [*Delegation of work.*] Except as otherwise provided in this Charter, any department head may with the approval of the mayor, assign the functions vested in his or her department to such subordinate officers and employees as may seem desirable and may establish within the department such subdivisions or other administrative or organizational units as may seem desirable in order to expedite the work of the department in the interest of economy and efficiency and in accordance with good administrative principles and practices.

(e) [*Annual report.*] Within sixty (60) days after the end of each fiscal year, each department head shall render to the mayor a full report in writing of the operations of his or her department for the preceding fiscal year and shall at the same time forward one copy to each member of the city council and to the city clerk.

(f) [*Delivery of records to successor upon leaving office.*] Whenever any department head or other officer shall resign or be removed from office, or the term for which he or she shall have been elected or appointed shall expire, said individual shall on demand deliver over to his or her successor in office all the books, records, monies and effects in his or her custody as such officer.

(Res. No. 2022-300, 7-28-22)

Cross references—School department, Art. VII; finance department, Art. VIII; personnel department, Art. IX; city departments, Art. X.

1202. General provisions for boards, authorities and commissions.

The following provisions shall apply to all boards, authorities and commissions of the city, subject to any exceptions or qualifications set forth in this Charter or in state law.

(a) If during a term of office a board, authority, or commission member dies, resigns, is convicted of a felony or crime of moral turpitude or a violation of official duties, or is absent from five (5) consecutive regular meetings of the board, authority or commission on which such member serves without the consent of the appointing authority, the office shall thereupon be declared vacant by the appointing authority and the vacancy shall be filled for the remainder of the term in the same manner as the original appointment.

(b) No member of a board, authority or commission shall continue in office after his or her term expires without being reappointed by the appointing authority.

Cross references—Board of canvassers, § 203; salary review commission, § 415; school board, § 701; board of tax assessment review, § 815; retirement board, § 908; board of park commissioners, § 1003; recreational advisory board, § 1005; board of

contract and supply, § 1007; zoning board of review, § 1009; housing board of review, § 1010; building board of review, § 1011; city plan commission, § 1013; port commission, § 1016; boards and commissions, Art. XI; charter review commission, § 1302.

1203. Public records.

All public records in the charge of or under the control, custody or supervision of any officer of the city, or any agency or public body thereof, shall be open at all times during business hours to any and all persons, without giving any reasons therefor, for the purpose of inspecting the same or for making or obtaining copies and/or abstracts thereof. "Public record" shall be defined as written or recorded information made or received by a public body relating to public business. Every public body shall make, keep and maintain written or recorded minutes of its meetings and shall be deemed to be public records to the extent permitted under state law. The only records or forms of recorded information maintained by an office, agency or public body of the city which shall not be deemed to be public records are those categories thereof specifically so designated and exempted by state law. Persons seeking access to public records of the city and its officers, agencies and public bodies shall have the same rights of access and appeal as provided by state law, and the same obligations as provided by state law to bear the costs of retrieval or copying thereof.

1204. Open meetings.

All meetings of all public bodies of the city convened to discuss or act upon any matter over which such public body has supervision, control, jurisdiction or advisory power shall be open to the public; provided, however, that any such public body may, by roll call and upon affirmative vote of the majority of its members, hold a meeting closed to the public solely and exclusively for such purposes or subjects as permitted under state law. A "public body" shall be defined for the purposes of this section as the city council, any department, agency, commission, committee, authority or board or any subdivision thereof of the executive or legislative branches of the government of the city. All public bodies of the city shall give written notice of their regular meetings at the beginning of each calendar year including the dates, times and places thereof, and shall give written notice of any rescheduled or special meetings at least twenty-four (24) hours in advance.

1205. Public hearings.

Any public hearings required by this Charter shall be preceded by a notice setting forth the date, time and a brief description of the subject matter of the hearings, such notice to be published in a newspaper of general circulation in the City of Providence not less than ten (10) days prior to the hearing and posted in the office of the city clerk.

1206. Prohibited activities and conflicts of interest.

(a) *Prohibitions concerning partisan political activities.*

(1) No officer or employee of the city shall discriminate or threaten to discriminate in favor of or against any employee or candidate for prospective employment within the personnel system, to include those employees otherwise exempt from the personnel system listed in section 904(f), (i), (j), (k), (l) and (m), on any political basis.

(2) Employees and appointed officers are prohibited from engaging in political activities during working hours.

(3) Employees and/or appointed officers are prohibited from becoming official candidates and from holding any elected public office of the government of the City of Providence. Employees and/or appointed officers who become candidates for such offices in the City of Providence shall be granted an unpaid leave of absence for up to six (6) months, with no individual receiving more than six (6) months leave of absence within a four-year period, dating from the beginning of the first leave of absence. Upon election to a public office of the government of the City of Providence, the individual shall cease to be an employee or appointed officer of the City of Providence.

(4) No officer or employee of the city shall be required to solicit money on a partisan political basis.

(5) No officer or employee of the city shall be required to contribute money for any partisan political purpose.

(6) No person shall, in a room or building occupied in the discharge of official duties by an officer or employee, solicit for any partisan political purpose.

(7) The foregoing prohibited activities shall not be deemed to preclude the right of any appointed officer or employee to vote as he or she chooses and to express opinions on all political subjects and candidates or to be a member of any political party, organization or club.

(b) [*Certain activities required to be disclosed.*] Any elected or appointed officer of the city, or any employee thereof, who engages in any of the following prohibited activities shall, within ten (10) days, make full disclosure in writing of such activity or activities in such form as may be prescribed by the city solicitor, said disclosure to be filed in the office of the city solicitor.

(1) Solicit or accept any gift, directly or indirectly, whether in the form of money, gratuity, favor, service, thing, promise, or in any other form, under circumstances in which it can reasonably be inferred that the gift is intended to influence him or her in the performance of his or her official duties. Nothing herein shall preclude the solicitation or acceptance of lawful contributions for election campaigns.

(2) Accept any service or thing of value directly or indirectly upon more favorable terms than those granted to the public generally from any person, corporation or firm having dealings with the city.

(3) Make available confidential information gained by reason of his or her office or position or use such information for the personal gain or benefit of anyone.

(4) Solicit or receive any compensation for his or her services as an officer or employee of the city, except as otherwise provided by this Charter or by ordinance.

(5) Represent private interests in any action or proceeding against the interests of the city or appear in behalf of private interests before any boards, commissions, authorities or agencies except as otherwise provided by law.

(c) [*State provisions adopted.*] All definitions of prohibited activities contained in state conflict of interest statutes, and the applications thereof as provided therein to elected and appointed officers of the city, their families and business associates, are hereby adopted and incorporated in this Charter and shall be enforceable to the full extent of state law, including but not limited to the obligation of such officers to file reports as required with the state conflict of interest commission.

(d) [*Disclosure of interests.*] Any elected or appointed officer or employee of the city who possessed or who acquires such interests as might tend to create a conflict with the public interest shall make full disclosure in writing to his appointing officer or in the case of a member of the city council, to the city council at any time such conflict occurs. Such disclosure statements shall be made a matter of public record and be filed with the city clerk for submission to the city council. The disclosure obligation created by this subsection shall be in addition to, and not in substitution for, obligations incurred pursuant to state law.

(e) *[Prohibition against influence in hiring.]* However, no officer or official shall use the authority or influence of his/her position to secure employment for any person within his or her family and/or for business associates.
(Res. No. 514, 8-7-12)

1207. Officers, defined.

The term "officer" or "official" as used in this Charter shall refer to and include the mayor, the members of the city council and of the school board, the members of all boards, commissions and authorities whose members are appointed by the mayor with or without city council approval and those appointed or elected by the city council, all department heads, deputy department heads and all persons serving in positions of whatever sort that are specifically established by the provisions of this Charter.

1208. Oath of office; entry upon duties of office.

(a) All officers of the city as defined in section 1207 of this article shall take and subscribe the following oath of office:

> "I do solemnly swear (or affirm) that I will support the Constitution of the United States and the State of Rhode Island, and the Providence Home Rule Charter, and that I will faithfully discharge the duties of such office to the best of my ability;"

and shall file such oath, duly certified by the officer before whom it was taken, in the office of the city clerk.

(b) Officers who are elected at regular or special city elections shall enter upon their duties as provided in section 202. Appointive officers and officers who are elected at other than regular city elections shall enter upon their duties within fifteen (15) days next following certification of their election or appointment. If any officer shall willfully neglect to take and subscribe his oath of office within said period of fifteen (15) days, the city council may by resolution in such case declare the office vacant, and such vacancy shall be filled as provided in this Charter.
(Election of 11-7-06)

1209. Separability.

The unconstitutionality or invalidity of any section or part thereof of this Charter shall not invalidate or impair the validity, force or effect of any other section or part thereof unless it clearly appears from the context that such other section or part thereof is wholly and necessarily dependent for its operation upon the section or part thereof held unconstitutional or invalid.

1210. Residence requirement; exemptions.

All officers of the city as defined in section 1207, and all employees of the city and of any and all agencies and instrumentalities thereof, including all employees of the school department and the department of public safety, shall be residents of the city during such employment; provided, however, that any person employed by the city on the date upon which this provision takes effect shall not be subject to the foregoing provision. Persons not residents of the city may be appointed or engaged for employment on the condition that within six (6) months of such appointment or engagement they shall become residents of the city. Residence shall be defined for purposes of this section as being domiciled in the City of Providence according to the definition of domicile set forth in section 206. Any officer or employee of the city who, during employment, ceases to be a resident shall forfeit his or her position in the employ of the city. It shall be the duty of the director of personnel to monitor this residency requirement on a timely basis and report any violations to the mayor and city council for appropriate action. Upon certification by the mayor that after diligent

search no person with proper qualifications can be found to fill a particular position among residents of the city, the city council may exempt a nonresident employee from the provisions of this section.
(Res. No. 481, 10-13-90; Res. No. 482, 10-13-90; Res. No. 483, 10-13-90; Res. No. 402, 9-11-92)

Editor's note—Res. No. 402, adopted Sept. 11, 1992, providing for enforcement of residency requirements, § 1210, was approved by the voters at the general election Nov. 3, 1992.

1211. Bonds of officers and employees.

The city council may require any officer of the city as defined in section 1207 above, and any employee of the city, to give a bond to be deposited with the city treasurer for the faithful and proper performance of the duties of such office or employment with such surety and in such amount as the city council may deem necessary.

ARTICLE XIII. CHARTER AMENDMENT

1301. Charter amendments.
1302. Charter review commission.

1301. Charter amendments.

Amendments to this Charter shall be proposed by the city council and adopted by the people of the city in the manner provided by the Constitution of the State of Rhode Island.

1302. Charter review commission.

In the month of January 1992, and every tenth year thereafter until 2012, a charter review commission shall be appointed to review the operation of the Charter and to recommend to the city council such amendments as it may deem appropriate. Each such commission shall comprise nine (9) members, four (4) of whom shall be appointed by the mayor and five (5) of whom shall be appointed by the city council, and shall have a maximum of eight (8) months from the date of the appointment of its members to complete its report and submit the same to the city council. Following the appointment of the 2012 commission, such commission shall be appointed in September 2021 and every tenth year thereafter. At any time the appointment of a charter review commission may be requested by petition containing at least three thousand (3,000) valid signatures of qualified voters of the city. Upon submission of such petition to the city council, a commission shall be appointed in the same manner as aforesaid to submit its report in a maximum of eight (8) months from the date of its appointment; provided, however, that no such commission shall be appointed if a charter review commission shall have been appointed within one (1) year of the submission of said petition, and provided further, that no such commission shall be appointed during the life of any charter review commission or any home rule charter commission elected by the voters of the city.
(Res. No. 510, 8-7-12)

Cross references—Boards and commissions, Art. XI; general provisions for boards, authorities and commissions, § 1202.

ARTICLE XIV. TRANSITIONAL PROVISIONS

1401. Effective dates of Charter.
1402. Continuity in office.
1403. Council powers to implement Charter.
1404. Inconsistent acts and ordinances.

1401. Effective dates of Charter.

With the exceptions set forth in this section, this Charter shall take effect on the first Monday in January, A.D. 1983. Sections 201, 202 and 204 of Article II shall take effect upon approval of this Charter by the electors of the city, and subsequent to such approval, the city council shall take all necessary action to implement section 204 of Article II to the end that the election of members of the city council held on the first Tuesday after the first Monday in November, A.D. 1982, shall be conducted on the basis of ward boundary lines drawn in conformity with the provisions of this Charter. Unless otherwise noted, amendments approved by the electors of the city at a general election shall take effect upon such approval.
(Res. No. 510, 8-7-12)

1402. Continuity in office.

All officers of the city as the same are defined in section 1205 [1207] of Article XII of this Charter, who are holding office on the effective date of this Charter, shall continue to serve in their respective offices until the expiration of their terms, or until they shall have been removed from office pursuant to the terms of this Charter applicable to their respective offices, or until their offices shall have been abolished conformable to the provisions of this Charter. In all cases of expiration of term or vacancy in such offices from any cause other than the abolition thereof, said offices shall be filled in the manner provided for by the terms of this Charter. The offices of the members of the board of park commissioners who are holding office upon the date of the taking effect of this Charter shall be deemed to have been vacated upon the appointment or election and qualification of the members of the board of park commissioners provided for in section 1003 of Article X, but in any event no later than the thirtieth day following the date of the taking effect of this Charter. The offices of the members of the school board who are holding office upon the date of the taking effect of this Charter shall be deemed to have been vacated upon the appointment, approval by the council and qualification of the members of the school board pursuant to section 701 of Article VII, but in any event no later than the thirtieth day following the date of the taking effect of this Charter. The offices of the members of the board of tax assessment review who are holding office upon the date of the taking effect of this Charter shall be deemed to have been vacated upon the appointment, approval by the council and qualification of the members of the board of tax assessment review pursuant to section 814 of Article VIII, but in any event no later than the thirtieth day following the date of the taking effect of this Charter. The offices of the members of the

board of licenses who are holding office upon the date of the taking effect of this Charter shall be deemed to have been vacant upon the appointment, approval by the council and qualification of the members of the board of licenses pursuant to section 1102 of Article XI, but in any event no later than the thirtieth day following the date of the taking effect of this Charter.

1403. Council powers to implement Charter.

The mayor shall provide and the city council shall, where necessary, enact by ordinance for such reorganization of departments, agencies, boards and commissions, for such reallocation or transfer of unexpended balances in the appropriations available thereto, for such reassignments of jurisdiction and custody of equipment and facilities and for such other changes as may be necessary to implement the provisions of this Charter.

1404. Inconsistent acts and ordinances.

Upon the taking of effect of this Charter and the validation of this section by the General Assembly, this Charter shall be deemed to have superseded Chapter 832 of the Public Laws of 1940 and all acts in amendment thereto which are inconsistent with this Charter and shall be deemed to have superseded all other acts and parts of acts applicable to the City of Providence which are inconsistent with this Charter. Upon the taking of effect of this Charter, all ordinances and resolutions inconsistent therewith shall be deemed to have been repealed, and all ordinances and resolutions which are consistent therewith shall remain in effect until amended or repealed by the city council in conformity with the terms of this Charter.

CHARTER COMPARATIVE TABLE

Listed below, the user of this volume will find all amendments to the Providence Home Rule Charter, as they are enacted.

Date of Adoption	Disposition
9-18-80 (Home Rule Charter)	§§ 101—105 202—209 301—304 401—416 501, 502 601—606 701—708 801—817 901—908 1001—1017 1101—1108 1201—1211 1301, 1302 1401—1404

Number/Type	Date	Section	Charter Section
481(Res.)	10-13-90		1210(a)
482(Res.)	10-13-90		1210(b)
483(Res.)	10-13-90		1210(c)
402(Res.)	9-11-92		1210 903(p)
404(Res.)	9-11-92		416(3), (8)
107(Ord.)	3-13-97	2	1006(c) 1007(c)(1)
Election of	11- 7-06		202 401(b) 412 603(b)(3) 701, 702

Number/Type	Date	Section	Charter Section
			801
			908
			1002
			1101
			1208
		Rpld	1015
		Rpld	1104
509(Res.)	8- 7-12	Added	107
510(Res.)	8- 7-12		1302
			1401
511(Res.)	8- 7-12		901
			903
512(Res.)	8- 7-12		1006
513(Res.)	8- 7-12		1001
514(Res.)	8- 7-12	Added	1206(e)
515(Res.)	8- 8-12		204
300(Res.)	7-28-22		302
			401
			403
			1007
			1101
			1201
			701—703
			707
			201, 202
			204—208
			203
			1107, 1108
			602
			1013

PART II

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS*

Sec. 1-1. Designation, citation of Code.
Sec. 1-2. Rules of construction.
Sec. 1-3. Catchlines of sections.
Sec. 1-4. Effect of repeal of ordinance.
Sec. 1-5. Severability of parts of Code.
Sec. 1-6. Amendments to Code.
Sec. 1-7. References in ordinances to former enactments.
Sec. 1-8. Ordinances to be numbered consecutively as chapters.
Sec. 1-9. Altering Code.
Sec. 1-10. General penalty; continuing violations.
Sec. 1-11. Prosecution where different penalties exist for same offense.

***Cross references—**Publication of ordinances and resolutions, § 2-1; posting ordinances and resolutions, § 2-2; subscribing name of city and making oath, § 2-3.

State law references—City to have and exercise existing powers and privileges, be subject to existing duties and liabilities, conferred or imposed by charter or by special acts relating to it, § 45-2-1, Gen. Laws 1956; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Sec. 1-1. Designation, citation of Code.

The ordinances embraced in this and in the following chapters shall be designated and cited as the "Code of Ordinances of the City of Providence."
(Rev. Ords. 1946, ch. 1, § 1)

Sec. 1-2. Rules of construction.

In the construction of this Code and of all ordinances hereafter enacted, the following interpretations shall be placed on the words and phrases hereinafter mentioned, unless such construction or interpretation shall be manifestly inconsistent with the evident intent of the city council or the qualified voters, or repugnant to the context or to the evident purport of any ordinance:

City. The words "the city" shall mean the City of Providence, in the County of Providence, and the State of Rhode Island.

Computation of time. The time in which an act is to be done shall be computed by excluding the first and including the last day; and if the last day be Sunday or a legal holiday, that shall be excluded.

Corporate limits, corporation limits. Whenever the words "corporate limits", "corporation limits" or "city limits" are used they shall mean the legal boundary of the City of Providence.

Council. The words "the council" shall mean the city council of the City of Providence.

Councilman. The word "councilman" shall mean any person elected to that office.

County. The words "the county" or "this county" shall mean the County of Providence in the State of Rhode Island.

Delegation of authority. Whenever a provision appears requiring the head of a department or other officer of the city to do some act or to make certain inspections, it is to be construed to authorize the head of the department or other officer of the city, as the case may be, to designate, delegate and authorize subordinates to perform the required act or make the required inspection unless the terms of the provision or section designates otherwise.

Gender. A word importing the masculine gender only shall extend and be applied to females and to firms, partnerships and corporations as well as to males.

Interpretation. In the interpretation and application of any provision of this Code, it shall be held to be the minimum requirements adopted for the promotion of the public health, safety, comfort, convenience and general welfare. Where any provision of the Code imposes greater restrictions upon the subject matter than the general provision imposed by the Code, the provision imposing the greater restriction or regulation shall be deemed to be controlling.

Joint authority. All words giving a joint authority to three (3) or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

Keeper, proprietor. The words "keeper" and "proprietor" shall mean and include persons, firms, associations, corporations, clubs and partnerships, whether acting by themselves or through a servant, agent or employee.

Mayor. Whenever the word "mayor" is used it shall mean the mayor of the City of Providence.

Month. The word "month" shall mean a calendar month.

Name of officer. Whenever the name of an officer is given it shall be construed as though the words "of the City of Providence" were added.

Nontechnical and technical words. Words and phrases shall be construed according to the common and approved usage of the language; but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in law shall be construed and understood according to such meaning.

Number. A word importing the singular number only may extend and be applied to several persons and things as well as to one person and thing.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Or, and. "Or" may be read "and", and "and" may be read "or", if the sense requires it.

Owner. The word "owner", applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant, or tenant by the entirety, of the whole or of a part of such building or land.

Person. The word "person" shall include a corporation, firm, partnership, association, organization, club, society, body corporate or politic, or any other group acting as a unit, as well as a natural person.

Personal property. The term "personal property" shall include every species of property except real property, as herein described.

Preceding, following. The words "preceding" and "following" shall mean next before and next after, respectively.

Premises. Whenever the word "premises" is used it shall mean place or places.

Property. The word "property" shall include real and personal property.

Public place. The term "public place" shall mean any park, cemetery, school yard or open space adjacent thereto, and all beaches, canals or other waterways.

Real property. The term "real property" shall include lands, tenements and hereditaments.

Residence. The term "residence" shall be construed to mean the place adopted by a person as his place of habitation, and to which, whenever he is absent, he has the intention of returning. When a person eats at one place and sleeps at another, the place where such person sleeps shall be deemed his residence.

Seal. Whenever the word "seal" is used it shall mean the city or corporate seal.

Sidewalk. The word "sidewalk" shall mean any portion of a street between the curbline and the adjacent property line, intended for the use of pedestrians, excluding parkways.

Signature, subscription. The "signature" or "subscription" of a person shall include a mark when the person cannot write.

State. The words "the state" shall be construed to mean the State of Rhode Island.

Streets, highways, ways. The words "streets", "highways" and "ways", when used in an ordinance, shall be construed as including boulevards, avenues, courts, lanes, alleys, squares, places and sidewalks, and each of these words shall include every other of them.

Tenant. The words "tenant" or "occupant", applied to a building or land, shall include any person holding a written or oral lease of, or who occupies, the whole or a part of such building or land, either alone or with others.

Time. Words used in the past or present tense include the future as well as the past and present.

Week. The word "week" shall be construed to mean seven (7) days.

Written, in writing. The words "written" or "in writing" shall be construed to include any representation of words, letters or figures, whether by printing or otherwise.

Year. The word "year" shall mean a calendar year.

Whenever reference is made to "Gen. Laws, c. _____, § _____," this shall mean the 1938 edition of the General Laws of Rhode Island. Whenever reference is made to "P.L.", this shall mean the Public Laws of Rhode Island.

Sec. 1-3. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section, and unless otherwise expressly so provided, shall not be deemed or taken to be titles of such sections, or as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

Sec. 1-4. Effect of repeal of ordinance.

(a) The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed or cause of action arising under the ordinance repealed.

Sec. 1-5. Severability of parts of Code.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of the volume, since the same would have been enacted by the city council without the incorporation in this Code of any such unconstitutional phrase, clause, sentence, paragraph or section.
(Rev. Ords. 1946, ch. 1, § 9)

Sec. 1-6. Amendments to Code.

(a) All ordinances passed subsequent to this Code of Ordinances which amend, repeal or in any way affect this Code of Ordinances, may be numbered in accordance with the numbering system of this Code and printed for inclusion therein, or in the case of repealed chapters, sections and subsections or any part thereof, by subsequent ordinances, such repealed portions may be excluded from the Code by omission thereof from reprinted pages affected thereby, and the subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code of Ordinances and subsequent ordinances numbered or omitted are readopted as a new Code of Ordinances by the city council.

(b) Amendments to any of the provisions of this Code should be made by amending such provisions by specific reference to the section of the Code in substantially the following language: "That section _____ of the Code of Ordinances of the City of Providence, Rhode Island, is hereby amended to read as follows: . . . (Set out new provisions in full) . . . ."

(c) In the event a new section not heretofore existing in the Code is to be added, the following language may be used: "That the Code of Ordinances of the City of Providence, Rhode Island, is hereby amended by adding a section (or article, chapter or other designation, as the case may be), to be numbered _____, which reads as follows: . . . (Set out new provisions in full) . . . ."

(d) In lieu of the foregoing paragraph, when the city council desires to enact an ordinance of a general and permanent nature embracing a subject not previously existing in the Code, which the city council desires to incorporate into the Code, a provision in substantially the following language may be made a part of the ordinance: "It is the intention of the city council, and it is hereby ordained that the provisions of this ordinance shall become and be made part of the Code of Ordinances of the City of Providence, Rhode Island, and the sections of this ordinance may be renumbered to accomplish such intention."

(e) All sections, articles, chapters or other provisions of this Code desired to be repealed should be specifically repealed by section number, article number, chapter or other number, as the case may be.

Sec. 1-7. References in ordinances to former enactments.

All ordinances in amendment of, addition to, or in repeal of any chapter of the Code of Ordinances shall contain in the title thereof a reference to the number and title of the chapter of which the same is in amendment, addition or repeal.
(Ord. 1941, ch. 1048, § 3; Rev. Ords. 1946, ch. 1, § 5)

Sec. 1-8. Ordinances to be numbered consecutively as chapters.

The city clerk shall number all ordinances as chapters, consecutively in the order of their adoption, said number to consist of two (2) parts separated by a dash, the number preceding the dash to be the year in which the ordinance is enacted and the number following the dash to be the number of the ordinance in the year in which it is enacted.

Sec. 1-9. Altering Code.

It shall be unlawful for any person in the city to change or amend by additions or deletions, any part or portion of this Code, or to insert or delete pages, or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of Providence to be misrepresented thereby. Any person violating this section shall be punished as provided in section 1-10 hereof.

Sec. 1-10. General penalty; continuing violations.

(a) Whenever in this Code or in any ordinance or resolution of the city any act is prohibited or is made or declared to be unlawful or an offense, or whenever in such Code, ordinance or resolution the doing of any act is required or the failure to do any act is declared to be unlawful or an offense, where no specific penalty is provided therefor, the violation of any such provision of this Code or any such ordinance or resolution shall be punished by a fine of not less than one dollar ($1.00) nor more than five hundred dollars ($500.00), or by imprisonment of not less than one day nor more than thirty (30) days and/or require restitution in cases involving property damage or

personal injury in an amount up to twenty-five hundred dollars ($2,500.00) and/or for voluntary community service for a town or city agency for not more than ten (10) days for any one offense, unless other penalties therefor, or penalties within other limits, are specially prescribed by statute, to be prosecuted by some office appointed for that purpose, and to be recovered to the use of the city, or of such person or persons, and in such proportions, as said ordinances or regulations shall designate. Each day any violation of this Code or of any such ordinance or resolution shall continue shall constitute a separate offense.

(b) In addition to the penalty hereinabove provided, any condition caused or permitted to exist in violation of any of the provisions of this Code or any such ordinance or resolution shall be deemed a public nuisance and may be, by the city, abated as provided by law, and each day that such condition continues shall be regarded as a new and separate offense.

(c) The penalty specified in this section 1-10 shall be imposed against any individual company or corporation, willfully causing construction, repair and/or installation without first obtaining permission from the proper authority of the City of Providence, for the same.

(Ord. 1974, ch. 74-26, § 1, 9-9-74; Ord. No. 1986, Ch. 86-4, § 1, 2-12-86)

Cross references—Disposition of fines, costs, fees in police court, § 8-2; penalties for traffic violations, § 15-2 et seq.; reward for apprehension of person damaging city property, § 16-5.

Sec. 1-11. Prosecution where different penalties exist for same offense.

In all cases where the same offense may be made punishable, or shall be created by different clauses or sections of the ordinances of the city, the prosecuting officer may elect under which to proceed; but not more than one recovery shall be had against the same person for the same offense.

Chapter 2

ADMINISTRATION*

Article I. In General

Sec. 2-1. Publication of ordinances and resolutions.
Sec. 2-2. Posting ordinances and resolutions in city hall.
Sec. 2-2.1. Fiscal notes to accompany ordinances and resolutions.
Sec. 2-2.2. Access to public documents.
Sec. 2-3. Subscribing name of city and making oath.
Sec. 2-4. Prohibited interests of councilmen, officers, employees.
Sec. 2-5. Member of city government not to act as surety.
Sec. 2-6. Description of municipal medal.
Sec. 2-7. Person upon whom municipal medal bestowed.
Sec. 2-8. Reserved.
Sec. 2-9. Keeping offices open on Saturdays, in emergency.
Sec. 2-10. Closing offices on Good Friday.
Sec. 2-10.1. First night of Passover.
Sec. 2-10.2. Black History Month.
Sec. 2-10.3. Irish-American and Italian-American Heritage Month.
Sec. 2-11. Public celebrations in city; personnel, supplies, materials therefor.
Sec. 2-12. Purchase of fuel-efficient vehicles.
Sec. 2-13. Personal use of city vehicles.
Sec. 2-14. Mailing to residents of rental units required.
Sec. 2-15. Mailing and posting of notices in English and other languages required.

***Cross references—**Civil defense, § 7-1 et seq.; courts, § 8-1 et seq.; establishment, regulation of bureau of fire prevention, § 9-22 et seq.; provisions pertaining to harbor master, § 11-2 et seq.; relief of the poor, § 12-28 et seq.; housing board of review, § 13-27 et seq.; enforcement of housing code, § 13-38 et seq.; municipal garage, § 15-86 et seq.; officers and employees, generally, § 17-1 et seq.; bonds thereof, § 17-36 et seq.; compensation and other benefits, § 17-54 et seq.; suggestion award program for employees, § 17-139 et seq.; police reserve, § 17-148 et seq.; board of park commissioners, § 18-29 et seq.; department of recreation, § 18-50 et seq.; revenue and finance, generally, § 21-1 et seq.; contracts, purchases and sales, § 21-26 et seq.; funds of city, § 21-63 et seq.; relocation payments, § 21-97 et seq.; review commission, §§ 21-141—21-149.

State law references—City to have and exercise existing powers and privileges, be subject to existing duties and liabilities, conferred or imposed by charter or by special acts relating to it, § 45-2-1, Gen. Laws 1956; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; imposition of penalties thereof, § 45-6-2. Gen. Laws 1956.

Sec. 2-16. Payment for snow removal.
Sec. 2-17. Divesting from the Republic of Sudan.
Sec. 2-18. Avoidance of purchasing items fabricated in sweatshops.
Sec. 2-18.1. Socially responsible investing.
Sec. 2-18.2. Predatory lending.
Sec. 2-18.3. Investment in manufacturers held liable for causing lead poisoning in the state prohibited.
Sec. 2-18.4. Participation in Cities for Climate Protection Campaign.
Sec. 2-18.5. Hospitality business protection and worker retention.
Sec. 2-18.6. Hospitality worker comeback.

Article II. Mayor and Council

Sec. 2-19. Filling office in case of disability, suspension, etc.
Sec. 2-19.1. Appointment of directors/officers/committee members.
Sec. 2-20. Identification cards for council members.
Sec. 2-21. Signature by mayor on instruments in writing.
Sec. 2-22. Salary of mayor.
Sec. 2-23. Salaries of councilmen; expense accounts.
Sec. 2-24. Calling special meetings of council.
Sec. 2-25. Summoning members to special meetings of council.
Sec. 2-26. Notice of pendency and hearing of petitions to council.
Sec. 2-27. Annual reports to council.
Sec. 2-28. Expenditures by committees of council.
Sec. 2-29. Acquiring option to purchase land—Authority.
Sec. 2-30. Same—Payment for option and services of broker.
Sec. 2-31. Same—Preservation of resolution or vote.
Sec. 2-32. Committee on finance—Transfer of appropriation from one department to another.
Sec. 2-33. Same—Contracts with depositories; notice to city treasurer.
Sec. 2-34. Committee on relief of firemen and policemen constituted.
Sec. 2-35. Dr. Charles V. Chapin Memorial Award Committee constituted.
Sec. 2-36. Authority of mayor to preserve public peace, property, health and safety.
Sec. 2-37. Powers of mayor during declared public emergency—Enumerated, regulated.
Sec. 2-38. Same—Ratification by city council.
Sec. 2-39. Same—Termination.
Sec. 2-40. Position of administrative assistant created; appointment; salary; duties.
Sec. 2-41. Leases to be accompanied by statement from city collector.
Sec. 2-42. City council internal auditor.
Sec. 2-43. Removal by recall.

Sec. 2-44. Community development block grant administration.
Sec. 2-45. Reserved.

Article III. City Clerk

Sec. 2-46. Duty to record votes, orders, resolutions and ordinances.
Sec. 2-47. Duty to furnish names of committeemen and elected officers.
Sec. 2-48. Duty to furnish heads of departments, committee chairmen copies of pertinent votes or resolutions.
Sec. 2-49. Duty to furnish copies of votes of council requiring expenditures.
Sec. 2-50. Duty to furnish copies of proposals and ordinances relating to finance.
Sec. 2-51. Duty to prepare manual, superintend printing.
Sec. 2-52. Duty to act as clerk of committees.
Sec. 2-53. Deputies and assistants.
Sec. 2-54. Duty of deputies as to committees.
Secs. 2-55—2-64. Reserved.

Article IV. City Treasurer

Sec. 2-65. Duty to deposit with contracting depositories.
Sec. 2-66. Accounts to be kept.
Sec. 2-67. Daily record of receipts to be kept.
Sec. 2-68. Duty to credit yearly account with receipts.
Sec. 2-69. Semiannual report of receipts, disbursements, balances and status of city debt.
Sec. 2-70. Annual account.
Sec. 2-71. Issuance of notes.
Sec. 2-71.1. Regulating urban renewal expenditures.
Sec. 2-72. Duties as to register of notes, bonds, other obligations.
Sec. 2-73. Redemption of land sold for nonpayment of taxes.
Sec. 2-74. Assignment of tax title.
Sec. 2-75. Foreclosure of the right of redemption.
Sec. 2-76. Holding and disposition of land foreclosed by the City of Providence.
Secs. 2-77—2-83. Reserved.

Article V. City Controller

Sec. 2-84. Annual report; required, contents.
Sec. 2-85. Reports of officers receiving fees.
Sec. 2-86. Statement of accounts deposited with city collector for collection.
Sec. 2-87. Destruction of certain documents after six years.
Secs. 2-88—2-97. Reserved.

Article VI. City Solicitor

Sec. 2-98. Annual reports; required, contents.
Sec. 2-99. Authority delegated to city solicitor to settle small claims against the city.
Sec. 2-99.1. Deputy solicitor for housing and buildings; division of housing and buildings.
Sec. 2-100. Salaries and expenses.

Article VI½. Department of Public Property

Sec. 2-101. Creation of department; jurisdiction.
Sec. 2-102. Appointment of director.
Sec. 2-103. Rules and regulations; adoption, scope.
Sec. 2-104. Personnel of department; appointment, powers, duties, compensation, classification.
Sec. 2-105. Powers and duties of director.
Sec. 2-106. Reports of director.
Sec. 2-107. Establishment of revolving fund.
Sec. 2-108. Disposition of accumulated surplus.
Sec. 2-109. Effect of conflict with other ordinances.
Sec. 2-110. Reserved.

Article VII. Department of Public Works

Sec. 2-111. Annual report; required, contents.
Sec. 2-112. Report by director on highway matters.
Sec. 2-113. Director to superintend work on streets and sidewalks.
Sec. 2-114. Director to superintend numbering streets and placing of signs.
Sec. 2-115. Accounting for property, employing labor.
Sec. 2-116. Acquisition of turbine and boiler insurance at incinerator building.
Sec. 2-117. General powers and duties of director.
Sec. 2-118. Authority of director as to obstructions of streets, highways.
Sec. 2-119. Division of relocation—Established, organized.
Sec. 2-120. Same—Functions and services.
Secs. 2-121—2-123. Reserved.

Article VII½. Department of Communication

Sec. 2-124. Created; jurisdiction.
Sec. 2-125. Appointment of director.
Sec. 2-126. Rules and regulations.
Sec. 2-127. Powers and duties of director.
Sec. 2-128. Reports of director.
Secs. 2-129, 2-130. Reserved.

Article VIII. City Engineer

Sec. 2-131. Duties generally.
Sec. 2-132. Consultation on matters of public improvement.
Sec. 2-133. Authority as to structures and public works.
Sec. 2-134. Duty to measure, certify work done for city.
Sec. 2-135. Duties in relation to streets.
Sec. 2-136. Duties in connection with sewers.
Sec. 2-137. Duty to furnish plats of streets and highways.
Sec. 2-138. Duty to keep record of highways.
Sec. 2-139. Custody of plans; classification, indexing same.
Sec. 2-140. Annual report; required, contents.

Article VIII½. Office of Sustainability

Sec. 2-141. Established.
Sec. 2-142. Director.
Sec. 2-143. Purpose and duties.
Sec. 2-144. Sustainability commission.
Secs. 2-145—2-150. Reserved.

Article IX. Traffic Engineering Department

Sec. 2-151. Established.
Sec. 2-152. Traffic engineering advisory committee; composition, meetings, powers.
Sec. 2-153. Traffic engineer; appointment, term, function.
Sec. 2-154. Appointment of deputy and assistants to traffic engineer.
Sec. 2-155. Appointments under article to be exempt from classification plan of city.
Sec. 2-156. Powers and duties of traffic engineer.
Sec. 2-157. Preservation of existing laws, ordinances, rules and regulations until changed by traffic engineer.
Sec. 2-158. Drawings of proposed traffic facilities to be submitted to traffic engineer.
Sec. 2-159. Publication of rules and regulations.
Sec. 2-160. Assignment of traffic engineering personnel to construction projects, parades, races, rallies, street closings, and special events.
Sec. 2-160.1. Temporary removal of parking meters from service due to building and road construction projects, dumpsters, street closing, and special events.

Article IX½. Department of Planning and Urban Development

Sec. 2-161. Creation of department; jurisdiction.
Sec. 2-162. Appointment of director; delegation of powers, duties to subordinate.

Sec. 2-163. Rules and regulations; adoption, scope.
Sec. 2-164. Personnel of department; appointment, powers, duties, compensation, classification.
Sec. 2-165. Powers and duties of director.
Sec. 2-166. Authority to enter into agreements, covenants and contracts.
Sec. 2-167. Reports of director.
Sec. 2-168. Effect of conflict with other ordinances; transfer of powers and duties; preservation of agencies, offices.
Sec. 2-169. Official capital improvement program 1990—1995.

Article X. City Sergeant and City Messenger

Sec. 2-170. Offices of city sergeant and city messenger combined.
Sec. 2-171. Salary in lieu of fees.
Sec. 2-172. Designated custodian and keeper of city's flags.
Sec. 2-173. Duty to keep flags and colors in good order; repairs and replacements.
Sec. 2-174. Duty to fly national flag.
Sec. 2-175. Service of writs, summonses and other legal processes as city sergeant.
Sec. 2-176. Duty to attend meetings of council.
Sec. 2-177. Duty to attend daily at office.
Sec. 2-178. Service of messages, summonses and notices as city messenger.
Sec. 2-179. Custody and distribution of documents, pamphlets, books.
Sec. 2-180. Custody of city hall and city property.
Sec. 2-181. Duties as to care, superintendence of city hall and offices.
Sec. 2-182. Duty to keep city hall open during specified hours.
Sec. 2-183. Monthly reports of expenditures, obligations.
Secs. 2-184—2-193. Reserved.

Article XI. Superintendent of Public Buildings

Sec. 2-194. General duties and records.
Sec. 2-195. Maintenance, custody, inspection of indexes, books and records.
Secs. 2-196—2-205. Reserved.

Article XII. Superintendent of Weights and Measures

Sec. 2-206. Salary, fees of superintendent.
Sec. 2-207. Approval of accounts.
Sec. 2-208. Deputies; appointment, duties.
Secs. 2-209—2-218. Reserved.

Article XIII. Superintendent of Vehicles

Sec. 2-219. Appointment.

Sec. 2-220. General duties.
Sec. 2-221. Duty to devote entire time to business; office hours.
Sec. 2-222. Duty to make quarterly reports.
Sec. 2-223. Duty to investigate, report applications for licenses.
Sec. 2-224. Duty to issue licenses; collections and records.
Sec. 2-225. Duty to enforce ordinances and conditions of licenses.
Sec. 2-226. Investigation, reports of complaints.
Sec. 2-227. Additional duties.
Secs. 2-228—2-232. Reserved.

Article XIV. Public Service Engineer

Sec. 2-233. Scope of authority of public service engineer.
Sec. 2-234. Faithful discharge of duties required; salary.
Sec. 2-235. Appointment of deputy public service engineer.
Secs. 2-236—2-239. Reserved.

Article XV. City Plan Commission

Sec. 2-240. Created, composition, appointment and term of members.
Sec. 2-241. Filling vacancies.
Sec. 2-242. Organization.
Sec. 2-243. Members to serve without compensation.
Sec. 2-244. Regular and special meetings.
Sec. 2-245. Adoption of rules for transaction of business.
Sec. 2-246. Appointment, term of city plan director, assistants, employees; experience of director.
Sec. 2-247. Manner of appointment of employees.
Sec. 2-248. Employing outside consultants and incurring necessary expense therefor.
Sec. 2-249. General powers and duties.
Sec. 2-250. Adoption of general plan for city; hearing on adoption, amendment of plan.
Sec. 2-251. Adoption of plans for specific improvements and projects.
Sec. 2-252. Assistance from and cooperation with other departments.
Sec. 2-253. Cooperation with finance director as to capital improvement budget and program.
Sec. 2-254. Making investigations, maps and studies; distribution of copies of plans and studies.
Sec. 2-255. Ordinances, resolutions affecting planning to be submitted to plan commission.
Sec. 2-256. Authority to adopt, modify and amend regulations and rules governing land development.

Article XV½. Community Mental Health Board

Sec. 2-257. Creation, membership.
Sec. 2-258. Appointment, terms of members; filling vacancies.
Sec. 2-259. Removal of member.
Sec. 2-260. Compensation, expenses of members.
Sec. 2-261. Designation of chairman.
Sec. 2-262. Duties.
Sec. 2-263. Reserved.

Article XVI. Lobbyist Registration

Sec. 2-264. Purpose.
Sec. 2-265. Definitions.
Sec. 2-266. Exceptions.
Sec. 2-267. Registration required.
Sec. 2-268. Identification badge.
Sec. 2-269. Reporting.
Sec. 2-270. Duties and powers of the city clerk.
Sec. 2-271. Administrative penalty for violations.
Sec. 2-272. Review by the city council.
Secs. 2-273—2-278. Reserved.

Article XVII. Industrial Commission

Sec. 2-279. Established, organized.
Sec. 2-280. Vacancies; compensation and expenses; secretary.
Sec. 2-281. Duties.
Secs. 2-282—2-285. Reserved.

Article XVIII. Inspection of Payroll Lists

Sec. 2-286. Right of inspection by taxpayers.
Sec. 2-287. Inspection subject to reasonable rules and regulations.
Sec. 2-288. Confidential nature of payroll lists.
Sec. 2-289. Misuse of information from payroll lists.
Sec. 2-290. Penalty for misuse.
Secs. 2-291—2-295. Reserved.

Article XIX. Elections

Sec. 2-296. Notice of ward and district meetings.
Sec. 2-297. Board of canvassers and registration, offices.
Sec. 2-298. Payment of primary officials.
Sec. 2-299. Meals for officials at polling places during primaries.

Sec. 2-300. Payment of election officials.
Sec. 2-301. Meals for officials at polling places during elections.
Sec. 2-302. Purging of voters' lists.
Sec. 2-303. Polling place maps at polling places.
Sec. 2-304. Wards.
Secs. 2-305—2-307. Reserved.

Article XX. Flags and Colors

Sec. 2-308. Days for display of national flag.
Sec. 2-309. Material and proportions of national flag.
Sec. 2-310. Position and use of national flag.
Sec. 2-311. National flag to be flown on city hall; size and equipment.
Sec. 2-312. Not more than one national flag on city hall.
Sec. 2-313. National flags used by departments.
Sec. 2-314. National flags for school property.
Sec. 2-315. Display of national flag at half-staff.
Sec. 2-316. Lowering and folding national flag.
Sec. 2-317. Sockets in sidewalks for display of national flag.
Sec. 2-318. Approval of installation of sockets; responsibility for damage; removal of sockets.
Sec. 2-319. Material and proportions of city flag.
Sec. 2-320. Display of city flag in chamber of council, mayor's office.
Sec. 2-321. Display of city flag on city hall; material and dimensions.
Sec. 2-322. Mayor may authorize display of city flag.
Sec. 2-323. Material and proportions of city council flag.
Sec. 2-324. Display of city council flag in chamber of council.
Sec. 2-325. Display of city council flag on city hall; material and dimensions.
Sec. 2-326. Mayor may authorize display of city council flag.
Sec. 2-327. Size of national storm flag.
Sec. 2-328. Time to fly national storm flag.
Sec. 2-329. Inspection of flagstaffs and flagpoles.
Secs. 2-330—2-334. Reserved.

Article XXI. Municipal Seals

Sec. 2-335. Description of city seal.
Sec. 2-336. Meaning of description of city seal.
Sec. 2-337. City clerk as custodian of city seal.
Sec. 2-338. Nature and use of city seal.
Sec. 2-339. Description of city council seal.
Sec. 2-340. Meaning of description of city council seal.
Sec. 2-341. City clerk as custodian of city council seal.
Sec. 2-342. Use of city council seal.

Sec. 2-343. Seal of mayor.
Sec. 2-344. Seal of recorder of deeds.
Sec. 2-345. Seal of city registrar.
Sec. 2-346. Seal of probate court.
Sec. 2-347. Seal of board of canvassers and registration.
Sec. 2-348. Seal of department of weights and measures.
Secs. 2-349, 2-350. Reserved.

Article XXII. Art in City Life

Sec. 2-351. Purpose.
Sec. 2-352. Definitions.
Sec. 2-353. Funds for works of art; informing commission of eligible projects.
Sec. 2-354. Art in city life commission.
Sec. 2-355. Art in city life plan.
Sec. 2-356. Placement of works of art.
Sec. 2-357. Fund established; disbursements.
Sec. 2-358. Special committee for commemorative works.
Secs. 2-359, 2-360. Reserved.

Article XXIII. Capital Center

Sec. 2-361. Purposes.
Sec. 2-362. Description of the special development district.
Sec. 2-363. Public hearings prior to designation of special development district and amendment of boundaries.
Sec. 2-364. Designation of Capital Center Commission.
Sec. 2-365. Jurisdiction of zoning board of review.
Secs. 2-366—2-370. Reserved.

Article XXIV. Juvenile Hearing Board

Sec. 2-371. Establishment.
Sec. 2-372. Referral.
Sec. 2-373. Refusal of referral.
Sec. 2-374. Duties.
Sec. 2-375. Meetings.
Sec. 2-376. Hearings.
Sec. 2-377. Composition.
Sec. 2-378. Juvenile hearing board coordinator.
Secs. 2-379—2-390. Reserved.

Article XXV. Truancy Board

Sec. 2-391. Establishment.

Sec. 2-392. Referral of truant offenders to board.
Sec. 2-393. Refusal of referral.
Sec. 2-394. Legal representation.
Sec. 2-395. Powers and duties; imposition of sanctions.
Sec. 2-396. Meetings and rules of procedure.
Sec. 2-397. Membership, term of office.

Article XXVI. Conservation Commission

Sec. 2-398. Creation and purpose of commission.
Sec. 2-399. Appointment of commission members.
Sec. 2-400. Meetings; records.
Sec. 2-401. Commission activities.
Sec. 2-402. Staff assistance.

Article XXVII. Prohibition of Awarding Public Contracts to Certain Campaign Contributors

Sec. 2-403. Definitions.
Sec. 2-404. Prohibition on awarding public contracts to certain contributors.
Sec. 2-405. Contributions made prior to effective date.
Sec. 2-406. Contribution statement; duty to report violations.
Sec. 2-407. Reimbursement of contributions.
Sec. 2-408. Breach of regulated contract.
Sec. 2-409. Conflicting ordinances.
Sec. 2-410. Severability.

Article XXVIII. Economic Development Planning Commission

Sec. 2-411. Creation and purpose of commission.
Sec. 2-412. Appointment and term of commission members.
Sec. 2-413. Commission activities.
Sec. 2-414. Cooperation required.
Sec. 2-415. Meetings; records.

ARTICLE I. IN GENERAL

Sec. 2-1. Publication of ordinances and resolutions.

The city clerk shall cause all ordinances or resolutions hereafter enacted to be published for the use of the city council as soon as practicable after their enactment.
(Ord. 1941, ch. 1048, § 2, Rev. Ords. 1946, ch. 1, § 4)

State law reference—Printing and publishing ordinances, § 45-6-7, Gen. Laws 1956.

Sec. 2-2. Posting ordinances and resolutions in city hall.

Within fifteen (15) days after final passage of an ordinance or resolution, the city clerk shall publish the said ordinance or resolution by causing a printed or typewritten copy of the same to be posted for a period of five (5) days on a bulletin board to be located in the corridor of the ground floor of the city hall.
(Ord. 1941, ch. 1048, § 1; Rev. Ords. 1946, ch. 1, § 6)

Cross reference—Duty of city clerk to record all votes, orders, resolutions and ordinances, § 2-46.

Sec. 2-2.1. Fiscal notes to accompany ordinances and resolutions.

(a) *When required.* All ordinances and resolutions having an effect on the revenues, expenditures or fiscal liability of the city, excepting the ordinance adopting the proposed city budget for any city fiscal year, including the appropriation, classification and compensation ordinances and any amendments thereto, and other appropriation measures carrying specific dollar amounts, shall be accompanied by an explanatory statement or note which sets forth the estimated dollar effect thereof. Such statements or notes shall be known as "fiscal notes," and they shall be inserted at the end of each such ordinance or resolution prior to consideration.

(b) *Content of fiscal notes.* Fiscal notes shall wherever possible, cite effect in dollar amounts for the current fiscal year and estimates for the next two (2) succeeding fiscal years. No comment or opinion relative to the merits of the bill shall be included, excepting however, that technical or mechanical defects may be noted.

(c) *Requests for fiscal notes.* Fiscal notes shall be requested only by the chairperson of the city council finance committee upon being notified by another committee chairperson, the sponsor of the ordinance or resolution, the internal auditor, or the chairperson of the Providence Review Commission.

(d) *Preparation of fiscal notes.* Fiscal notes requests shall be made in such form and substance as may be required by the city council finance committee chairperson and shall be forwarded through the internal auditor to the finance director who shall determine the departments affected. The finance director shall then be responsible, in cooperation with such departments, for the preparation of the fiscal note.

(e) *Return of fiscal notes.* Fiscal notes shall be returned by the finance director to the internal auditor within five (5) working days from the date the request by the chairperson was made. The internal auditor shall note his approval as to the accuracy and reliability of the dollar estimates or append his comments or exception thereon. The internal auditor, within three (3) working days, shall forward the fiscal note to the chairperson of the city council finance committee, the chairperson of the committee considering the ordinance or resolution, the sponsor of the ordinance or resolution, and the chairperson of the Providence Review Commission or his designee.

(f) *Note or explanation for absence of note required prior to council action.* No ordinance or resolution requiring the fiscal note shall be acted upon by the full city council unless a fiscal note is appended thereto or unless the finance committee shall have appended thereto a description of its efforts to obtain such a fiscal note and/or the reasons for the absence thereof.
(Ord. 1981, ch. 81-63, §§ 1—6, 12-11-81)

Editor's note—The codification of §§ 1—6 of Ch. 1981-63, approved Dec. 11, 1981, as § 2-2.1 was at the editor's discretion, since the ordinance did not specifically amend the Code.

Cross references—Committee on finance, § 2-32; internal auditor, § 2-42; clerk's duty to furnish proposals and ordinances related to finance, § 2-50; projection of revenues and expenses, § 21-16; Providence Review Commission, § 21-141 et seq.

Sec. 2-2.2. Access to public documents.

(a) *Generally.* All city departments and agencies shall provide, to any public radio or television station, or newspaper of general circulation, access to all public documents.

(b) *Editing; copying.* Where it is necessary to edit public documents for the protection of privacy, the cost of such editing shall not be passed onto any group or individual requesting copies of such documents, when such group or individual would otherwise be entitled to access of such documents under state law. Said department or agency, however, may pass on reasonable costs of copying such documents to any group or individual other than those outlined above.
(Ord. 1984, Ch. 84-43, §§ 1, 2, 6-27-84)

Editor's note—Ord. 1984, ch. 1984-43, approved June 27, 1984, expressed its intention to amend the Code but did not specify a Code section number; therefore, codification as § 2-2.2 has been at the editor's discretion.

Sec. 2-3. Subscribing name of city and making oath.

Whenever the name of the city is to be or shall be required to be subscribed to or used in any proceeding or process at law or in equity, or to any account or statement to be given by said city, the mayor or treasurer of said city may so subscribe or use the

name of said city; and in any such case where an oath may be required, the mayor or treasurer may make oath for and in behalf of the city to such proceeding, process, account or statement.
(Ord. 1914, ch. 15, § 3; Rev. Ords. 1946, ch. 1, § 7)

Sec. 2-4. Prohibited interests of councilmen, officers, employees.

No member of the city council and no officer or employee of the city shall appear or act in his own interest or as attorney, agent or representative of any other person before the city council, or any committee of the council relative to any pending claim against the city, or any private or business affair or transaction of such member, officer or employee, or other such person with the city; provided however, that this section shall not prevent any such member, officer or employee from testifying as a witness before the city council, or any committee of the council.
(Ord. 1914, ch. 11, § 1; Rev. Ords. 1946, ch. 2, § 16)

Sec. 2-5. Member of city government not to act as surety.

No member of the city government shall become surety for any contractor with the city; nor shall any officer or committee or commissioner of the city, or any person acting under authority of the city, accept any bond of a contractor with the city, bearing the name of any person as surety who, at the time of the execution of said bond, is a member of the city government.
(Ord. 1914, ch. 15, § 2; Rev. Ords. 1946, ch. 2, § 17)

Cross reference—Bonds of officers and employees, § 17-36 et seq.

Sec. 2-6. Description of municipal medal.

The municipal medal of the city shall be of a design approved by the council president and shall include the words, "Presented by the City of Providence for Deeds of Bravery".
(Ord. 1915, ch. 90, § 1; Rev. Ords. 1946, ch. 13, § 26; Ord. No. 2016-35, § 1, 10-26-16)

State law reference—Special act authorizing the bestowal of these medals, P.L. 1915, ch. 1272.

Sec. 2-7. Person upon whom municipal medal bestowed.

The city council by resolution may bestow the municipal medal upon any policeman, fireman or other officer or employee of the city, in the line of his or her duty as such officer or employee, or any deserving person or persons who shall hereafter perform an extraordinary act of bravery or valor.
(Ord. 1915, ch. 90, § 2; Rev. Ords. 1946, ch. 13, § 27; Ord. 1972, ch. 72-24, § 1, 5-22-72; Ord. No. 2016-35, § 1, 10-26-16)

Sec. 2-8. Reserved.

Editor's note—Ord. No. 2016-35, § 1, adopted Oct. 26, 2016, repealed § 2-8, which pertained to acts of bravery or valor warranting receipt of medal and derived from Ord. 1915, ch. 90, § 3; Rev. Ords. 1946, ch. 13, § 28; Ord. 1972, ch. 72-24, § 2, adopted May 22, 1972.

Sec. 2-9. Keeping offices open on Saturdays, in emergency.

The heads of the several departments of the city, except in cases of emergency, special need or public necessity, may close their departments all day Saturday, notwithstanding sections 17-10 and 17-11 establishing a five (5) day work-week; but any department head may in his discretion keep his department open with such number of employees as special circumstances may require. In case any emergency, special need or public necessity is determined to exist by the mayor, the mayor may require any department head to keep his department open for business on any or all Saturdays, or any part of any Saturday.
(Ord. 1938, ch. 963, § 2; Rev. Ords. 1946, ch. 2, § 164)

Sec. 2-10. Closing offices on Good Friday.

The heads of the several city departments, other than the department of public safety, the school department and the board of hospital commissioners, are hereby directed to close their several departments on Good Friday each year at twelve o'clock noon for the remainder of the day. The mayor is hereby authorized in his discretion to require any department head to keep his department open for business on the Saturday morning following Good Friday, or any part of said Saturday.
(Ord. 1939, ch. 972, §§ 1, 2; Rev. Ords. 1946, ch. 2, § 165)

Sec. 2-10.1. First night of Passover.

The city clerk will maintain in the city council's calendar information about the occurrence of the first night of Passover each year. For the period 2018—2035, those dates are as follows:

2018—Friday, March 30

2019—Friday, April 19

2020—Wednesday, April 8

2021—Saturday, March 27

2022—Friday, April 15

2023—Wednesday, April 5

2024—Monday, April 22

2025—Saturday, April 12

2026—Wednesday, April 1

2027—Wednesday, April 21

2028—Monday, April 10

2029—Friday, March 30

2030—Wednesday, April 17

2031—Monday, April 7

2032—Friday, March 26

2033—Wednesday, April 13

2034—Monday, April 3

2035—Monday, April 23

When scheduling night-time meetings of the city council, or its committees, or public hearings, the city clerk will make best efforts to avoid scheduling on the first night of Passover. At those times when it is necessary to schedule a meeting on the first night of Passover due to the absence of a feasible alternative, the clerk shall note on the agenda and at the meeting itself that the meeting took place on the first night of Passover because there was a scheduling conflict that could not be reasonably avoided.
(Ord. No. 2018-10, § 1, 4-16-18)

Sec. 2-10.2. Black History Month.

The city recognizes the month of February as Black History Month in perpetuity to honor the innumerable contributions of African-Americans to Providence, Rhode Island, and the United States of America. Black History Month was initially launched as Negro History Week by Dr. Carter G. Woodson in 1926 and was later expanded to a whole month by the Black United Students and black educators at Kent University in 1970. Black History Month serves as a reminder of all those who fought and continue to fight for social justice, civil rights, and equality. In observance of Black History Month, the city council, in collaboration with the city archives, will host an exhibit every February to honor and recognize the African-American community of Providence and their contributions to the city and state of Rhode Island.
(Ord. No. 2018-46, § 1, 9-25-18)

Sec. 2-10.3. Irish-American and Italian-American Heritage Month.

(a) Purpose. The purpose of this section is to recognize and honor the innumerable contributions of Irish and Italian immigrants and their descendants to Providence, Rhode Island, and the United States of America.

(b) The city recognizes the month of March as Irish-American and Italian-American Heritage Month in perpetuity. The month will coincide with St. Patrick's Day, the Irish National Holiday, on March 17 and St. Joseph's Day on March 19. The city will host ceremonies, exhibits, activities, and programs to celebrate generations of contributions by the Irish and the Italian communities to the city and the State of Rhode Island.
(Ord. No. 2019-15, § 1, 5-1-19)

Sec. 2-11. Public celebrations in city; personnel, supplies, materials therefor.

In the employment of persons for services in connection with public celebrations in the city, for which money is provided by the city council, preference shall be given to residents of the city; and in the purchase of supplies or materials in connection with such public celebrations preference shall be given to local merchants and other residents of the city except in those instances where, in the opinion of the authority in charge, the goods or services are not obtainable locally or where substantially lower rates or charges for similar goods and services are obtainable elsewhere.
(Ord. 1940, ch. 994, § 1; Rev. Ords. 1946, ch. 2, § 175)

Sec. 2-12. Purchase of fuel-efficient vehicles.

When the city purchases motor vehicles for its municipal operations, each vehicle purchased must be the most fuel-efficient model available that will fulfill the intended municipal function; provided that the vehicle also meets other normal procurement criteria including price, reliability, and life-cycle costs. Hybrid or alternatively fueled vehicles shall be prominently labeled. Among the most fuel-efficient vehicles, a preference shall be given for vehicles with more than sixty-five (65) percent of their value from domestic production and for vehicles made in U.S. unionized factories.
(Ord. 2004, ch. 04-1, § 1, 1-16-04)

Sec. 2-13. Personal use of city vehicles.

(a) No city vehicle may be taken beyond the boundaries of the city for personal use unless prior written authorization for such use has been obtained from the mayor, his designee, or by the director of the department to which the vehicle has been assigned. Personal use shall be limited to travel to and from work or a work-related event. A copy of the authorization must be delivered to the city clerk and to the director of city property.

(b) The department of city property shall promulgate regulations setting forth the monitoring and reporting requirements for use of vehicles consistent with this section.

(c) Violators will be subject to disciplinary proceedings in accordance with collective bargaining agreements and the rules and regulations as promulgated by the department of city property. Disciplinary action shall increase to include suspension without pay up to termination if continued violations of this section occur.
(Ord. 2004, ch. 04-10, § 1, 3-1-04)

Sec. 2-14. Mailing to residents of rental units required.

(a) Whenever the city or any of its agencies requires that a notice be sent to property owners regarding matters including, but not limited to, licensing, zoning or historic districts, the city shall require the applicant to send courtesy notices to each legal residential and commercial unit in the area that is the subject matter of the notice, within a two hundred-foot radius.

(b) Notices to residential and commercial units required pursuant to this section shall be sent via "first class" mail, and be addressed to the "current occupant" of each relevant address.

(c) This section shall not be construed so as to impart upon residents and business owners any legal remonstrance or other standing not already due them as of the date of passage of this section, nor shall the failure to notify any tenant render the notice defective.
(Ord. 2005, ch. 05-24, § 1, 4-25-05; Ord. No. 2020-7, § 1, 2-27-20)

Sec. 2-15. Mailing and posting of notices in English and other languages required.

(a) All notices that the city or any of its agencies requires to be sent to designated members of the public regarding matters including, but not limited to, licensing, zoning or historic districts, must be provided in both English and in all languages that are the first languages of more than ten (10) percent of city residents, as determined by the United States Census Bureau.

(b) Notices that the city or any of its agencies, or any applicant, publishes in a newspaper of general circulation shall be printed in English, but shall include the title, as well as a sentence in distinctive print, in all languages that are the first languages of more than ten (10) percent of city residents, as determined by the United States Census Bureau, and shall include a phone number that may be called for translation into those languages.

(c) When such notices or mailings invite the recipients' or readers' attendance at a hearing or other meeting, such notice shall provide that, upon twenty-four (24) hours advance request, the city shall make its best efforts to have a translator available to translate the meeting into any language that is the first language of more than ten (10) percent of city residents, as determined by the United States Census Bureau.

(d) The city shall not be liable for any mistranslations.
(Ord. 2005, ch. 05-29, § 1, 5-5-05)

Sec. 2-16. Payment for snow removal.

Firms and organizations that provide snow removal services to the city expect and deserve to be paid in a prompt and timely manner. Unjustified delays in paying vendors, contractors, and providers of service may discourage such firms and organizations from doing business with the city and may ultimately increase the costs to the city in obtaining services and achieving the most rapid possible response to major snowstorms.

Bills incurred by the city in hiring contractors responding to snow events shall be paid within ten (10) days of receipt of invoice, subject to the city's proper and reasonable financial oversight activities designed to assure that the city receives the quality of service to which it is entitled, to ensure that public funds are spent in a prudent and responsible manner.
(Ord. 2005, ch. 05-59, § 1, 12-1-05)

Sec. 2-17. Divesting from the Republic of Sudan.

(a) The assets of any investment account, including pension, endowment, and annuity funds, under the jurisdiction of the board of investment commissioners and/or the finance director (the "fiduciaries") shall not knowingly be invested in companies ("targeted companies") which either directly or through an affiliated instrumentality meet the following criteria:

(1) Provide revenues to the Sudanese government through business with the government, government-owned companies or government-controlled consortiums.

(2) Offer little substantive benefit to those outside of the Sudanese government or its affiliated supporters in Khartoum, Northern Sudan and the Nile River Valley; this "outside" population specifically includes the country's disaffected Eastern, Southern, and Western regions.

(3) Have either demonstrated complicity in the Darfur genocide or have not taken any substantial action to halt the genocide; Substantial action shall include but is not limited to curtailment of operations or public pressure on the Sudanese government. Simple company statements shall not constitute evidence of substantial action.

(b) Companies providing military equipment, arms, or defense supplies to any domestic party in Sudan, including the Sudanese government and rebels, shall automatically be targeted for divestment. A strong presumption shall also be made against any company providing any domestic party in Sudan with equipment that may be readily co-opted for military use, including radar systems and military-grade transport vehicles, unless that company has implemented safeguards against such co-option.

(c) Companies which, either directly or through an affiliated instrumentality, provide services clearly dedicated to social development for the whole country shall be excluded from divestment. Such entities include, but are not limited to those providing medicine and medical equipment, agricultural supplies and agricultural infrastructure, educational opportunities, journalism-related activities and general consumer goods.

(d) The following types of investments shall be subject to divestment:

(1) Direct holdings of public equity, corporate bonds, and Sudanese govenmtent-issued bonds.

a. Direct investments shall be defined as holdings directly managed by the fiduciaries mentioned in this section and all holdings administered by a contracted manager in separately managed accounts, including both actively-managed and passively-managed/indexed funds.

(2) Holdings of public equity, corporate bonds, and Sudanese- government-issued bonds in commingled accounts that are passively-managed/indexed. Actively-managed, commingled accounts, for both public equity and fixed-income investments, will be excluded from immediate divestment. Such accounts are still covered under section (e) of this section.

(3) Private equity holdings with readily identifiable ties to Sudan.

a. "Readily identifiable" is left to the good faith judgment of the fiduciaries mentioned in this section.

(e) The finance director and board of investment commissioners shall submit letters to contracted managers of actively-managed, commingled accounts requesting that the manager consider creating an actively-managed, commingled account devoid of companies targeted as a result of this section. In the event of such an introduction, the fiduciaries shall transfer all assets in actively-managed, commingled accounts into the newly available, Sudan-free accounts in an expedited timeframe still consistent with the fiduciaries' prudent investor obligations.

(f) The list of targeted companies shall be determined by submitting the criteria in subsections (a)—(c) to a reputable and non-biased third-party research firm, such as, but not limited to, the Institutional Shareholder Services, Inc. and KLD Research & Analytics. Such a list may require modifications as circumstances in Sudan evolve.

(g) Research attained through the process outlined in subsection (f) must, when possible, be supplemented by publicly available research, communication with potentially targeted companies and communication with states and institutions that have already divested.

(h) Reasons for eliminating or adding a company from a preliminary list of identified companies based on the process outlined in section if must be justified in writing and supported by available research.

(i) The finance director and board of investment commissioners shall take appropriate action to sell, redeem, divest or withdraw any investment held in violation of this act.
(Ord. 2006, ch. 06-24, 4-20-06)

Sec. 2-18. Avoidance of purchasing items fabricated in sweatshops.

(a) *Purpose.* The city declares the city's intent to avoid purchases of items from sweatshops, and its desire to allocate its funds in a manner that enhances the rights and well-being of workers world-wide, while acquiring the best quality goods at reasonable cost. The council finds that contractors can have influence throughout their entire supply chain, and therefore have an obligation to workers in subcontractor and subsidiary factories in addition to their direct obligations to their own employees. The purpose of this section is to ensure that city procurement of apparel is made from responsible contractors and vendors who agree to adhere to the

minimum employment standards required herein and to require their subcontractors and third-party suppliers to do the same, so that all employees involved in the city's procurement may be afforded the opportunity to a fair, humane work environment as described herein.

The council finds the following labor practices inconsistent with international standards of human rights:

(1) Below-subsistence wages;

(2) Excessively long working hours;

(3) Unhealthy and unsafe working environments;

(4) Child, indentured, and forced labor;

(5) Disregard for local and international labor laws and workplace regulations;

(6) Disregard for fundamental women's rights;

(7) Repression of workers' rights to assemble and bargain collectively.

(b) *Applicability—Apparel.* This section shall apply to all city procurement of apparel totaling five thousand dollars ($5,000.00) or more. For purposes of this section, "procurement" shall include the purchase, rental, lease, laundering or dry cleaning of apparel, whether by contract, purchase order, or other means; and allowance and voucher programs for city employees to make their own purchases, except where a city collective bargaining agreement establishes a clothing allowance or voucher program, in which case the terms of the collective bargaining agreement shall control. This section shall also apply to contracts for the provision of city financial assistance, if five thousand dollars ($5,000.00) or more will be used for procurement of apparel.

(c) *Definitions.*

(1) *Apparel* means all garments or items of clothing any part of which is a textile produced by weaving, knitting or felting; and all shoes and other footwear.

(2) *Contractor* or *vendor* means a person or entity from whom the city has a current procurement relationship as that term is used in subsection (b) above, or who is bidding or proposing to provide apparel to the city under a procurement arrangement.

(3) *Employee* means any individual who may be required or directed by any employer, in consideration of direct or indirect gain or profit, to engage in any employment, or to go to or work or be at any time in any place of employment. "Employee" includes individuals whose work is permanent or temporary, or on a full-time or part-time basis.

(4) A *fair wage* is the total "take home" or "net" wage, earned during a country's legal maximum work week, but not more than forty-eight (48) hours. A fair wage provides for the basic needs (housing, energy, nutrition, clothing, health

care, education, potable water, childcare, transportation and savings) of an average family unit of employees in the manufacturing employment sector of the country divided by the average number of adult wage earners in the family unit of employees in the manufacturing employment sector of the country.

(5) *Subcontractor* means a person, partnership, corporation or other entity that enters into a contract with a contractor or vendor for performance of some or all of the city-contracted work. For purposes of this section, "subcontractor" shall include all third-party suppliers or producers from whom the contractor or its contractors obtains or sources goods, parts or supplies for use on the city contract and is intended to include suppliers at all level of the supply chain.

(d) *Employment standards for contractors and vendors.*

(1) Domestic or foreign manufacturers, presumption. It is presumed that all contractors, subcontractors, third-party suppliers and other entities involved in the production of goods under city contracts at locations within the United States are subject to and will follow all applicable federal, state and local laws such as labor, employment, and safety laws. While this section is applicable to procurement of apparel from all sources, the standards in subsection (d) are intended primarily for subcontractors and suppliers located outside the United States where the applicable law or practices does not already provide the protections necessary to accomplish the goals of this section. Nothing in this section shall be construed to limit or reduce the responsibility of contractors located within the United States to follow applicable law in their jurisdiction.

(2) Standards. Contractors shall adhere to or exceed the following minimum employment standards, and shall require all subcontractors, as defined in subsection (c)(5), to do the same. Wherever the word "contractor" is used below, the same requirement shall apply to subcontractors as defined in subsection (c)(5).

These standards shall apply in all phases/aspects of the contractor's or their subcontractor's operations, including but not limited to, manufacture, assembly, finishing, laundering or dry cleaning, (where applicable), warehouse distribution, and delivery:

a. Wages and benefits contractors should recognize that wages are essential to meeting employees' basic needs. Contractors shall pay employees, at minimum, wages and benefits which comply with all applicable laws and regulations, and which provide for essential needs and establish a dignified fair wage for workers and their families. This must always meet or exceed any applicable minimum wage, or other "fair wage," "living wage" or other law that requires a wage that exceeds the applicable minimum wage, whichever is higher.

b. Working hours. Hourly and/or quota-based wage employees shall not be required to work more than forty-eight (48) hours per week or the limits on regular hours allowed by the law of the country of manufacture, whichever is lower, and be entitled to at least one (1) day off in every seven-day period, as well as holidays and vacations off.

c. Overtime compensation. All overtime hours must be worked voluntarily by employees. In addition to their compensation for regular hours of work, hourly and/or quota-based wage employees shall be compensated for overtime hours at such a premium rate as is legally required in the country of manufacture or, in those locations where such laws do not exist, at a rate at least one and one-half (1½) their regular hourly compensation rate.

d. Child labor. Contractors shall not employ any person at an age younger than fifteen (15) (or fourteen (14), where, consistent with International Labor Organization practices for developing locations, the law of the country of manufacture allows such exception). Contractors and subcontractors agree to consult with governmental, human rights, and nongovernmental organizations, and to take reasonable steps as evaluated by the city and any independent monitoring agency acting on behalf of the city, to minimize the negative impact on children released from employment as a result of implementation or enforcement of the section.

e. Forced labor. There shall not be any use of prison labor, indentured labor, bonded labor or other forced labor.

f. Health and safety. Contractors shall provide a safe and healthy working environment to prevent employee accidents and injury to health arising out of or occurring in the course of employment or as a result of the operation of their facilities. In addition, contractors shall ensure that all operations comply with all workplace safety and health regulations established by the national government where the production facility is located, or with Title 29 of the Code of Federal Regulations, enforced by Occupational Safety and Health Administration (OSHA), whichever regulation is more strict. The contractor shall ensure that its operations comply with all health and safety conventions of the International Labor Organization (ILO) ratified and adopted by the country in which the production facility is located.

g. Nondiscrimination. No person shall be subject to any discrimination in employment; including but not limited to hiring, employment, recruitment or recruitment advertising, salary rates of pay or other forms of compensation, benefits, advancement, transfer, selection for training including apprenticeships, discipline, demotion, termination or retirement; on the basis of race, religion, marital status, age, color, sex,

handicap, national origin or ancestry, income level or source of income, arrest record or conviction record, less than honorable discharge, physical appearance, sexual orientation, political beliefs, or student status.

h. Harassment or abuse. Every employee shall be treated with dignity and respect. No employee shall be subject to any physical, sexual, psychological, or verbal harassment or abuse. Contractors will not use or tolerate any form of corporal punishment.

i. Freedom of association and collective bargaining. Contractors shall recognize and respect the right of employees to freedom of association and collective bargaining. No employee shall be subject to harassment, intimidation or retaliation as a result of their efforts to freely associate or bargain collectively. Contractors and sub-contractors shall not cooperate utilize corrupt with governmental agencies and other organizations that use the power of the state to prevent workers from organizing a union of their choice. Contractors shall allow union organizers free access to employees and shall recognize the union of the employees' choice. In addition to respecting the right of employees to freedom of association and collective bargaining, contractors must source from factories where the above commitment has been demonstrated as exemplified by the following:

1. There exist clear channels through which workers can voice their complaints regarding working conditions and such complaints are addressed in a prompt and effective manner;
2. The workers have a representative voice in workplace decisions;
3. Management negotiates with the workers in good faith.

j. Women's rights. Women workers will receive equal remuneration, including benefits; equal treatment; equal evaluation of the quality of their work; and equal opportunity to fill all positions open to male workers. Pregnancy tests will not be a condition of employment, nor will they be demanded of employees. Workers who take maternity leave will not face dismissal nor threat of dismissal, loss of seniority or deduction of wages, and will be able to return to their former employment at the same rate of pay and benefits. Workers will not be forced or pressured to use contraception. Workers will not be exposed to hazards, including glues and solvents, that may endanger their safety, including their reproductive health. Contractors and sub-contractors shall provide appropriate services and accommodation to women workers in connection with pregnancy.

(3) Effect of applicable local law. Contractor (and any subcontractors or third party suppliers) must comply with all applicable laws and regulations of the jurisdiction where it is located. Where there is a conflict between this article

and the local laws or regulations, the more strict restriction shall apply. However, where the law conflicts with this article to the extent that the local law is less strict than the minimum standards stated herein, or where adherence to this section would result in a violation of the law of the country or jurisdiction in question, contractors will be deemed in compliance on an existing contract if they take effective actions as determined by the city and/or any monitoring entity acting on behalf of the city, to achieve full compliance with this section to the extent reasonable, considering the applicable laws (see subsection (g)(3)e. regarding nonrenewal when compliance is deemed impossible).

(4) Contractors shall refrain from any actions that would diminish the protections afforded by this section.

(e) *Bid specifications and pre-award procedures.*

(1) *Contract bid and request-for-proposal specifications.* A copy of this section or a sufficient summary and link to the entire text shall be included in all specifications for all contracts or requests for financial assistance to which this section may apply.

(2) *Bidder disclosure statements.* Prior to an award, the city shall require for each bid or proposal to which this section applies under subsection (b), each bidder, proposer or potential contractor to submit disclosure statements that include the information below, to the city and/or the city's independent monitoring agency, if any, with the knowledge that this information may be disclosed to the public, subject to applicable public records law. If the pre-award disclosure reveals a violation of this section or a statement that the proposed contractor will not or cannot comply with this section, the city reserves the right not to award the contract to that contractor. The disclosures shall include:

a. The names, addresses, and phone numbers of each facility involved in the production of goods covered by this policy.

b. The names, business addresses, and phone numbers of the principal officers of each facility involved in the production of goods covered by this policy.

c. The base hourly wage of non-supervisory production employees, percent of wage level paid as health benefit, other benefits, regular deductions from paychecks, normal working hours per day and week, actual working hours per day and week over the last three (3) months, and overtime policy.

d. The raw number of each type good produced in a given factory for the city.

e. A sworn statement that each of the proposed production facilities, including any subcontractors, complies with all requirements of this section.

f. Any other information deemed necessary by the city for the administration and enforcement of this section.

(3) *Transparency.* Bidders, proposers and contractors shall provide access to the city and the city's independent monitoring agency, if any, to archived and contemporary inspection and monitoring reports for all facilities producing goods for the contract in question and shall require their subcontractors to allow the same access.

(f) *Requirements for contracts and other procurement arrangements.*

(1) Mandatory contract language. No contract to which this section applies under subsection (b) shall be entered into by the city unless such contract contains the following language: "The contractor shall follow labor practices consistent with international standards of human rights, meaning that, at a minimum contractor shall adhere to the minimum employment standards found in Section 2-18 of the Code of Ordinances of the City of Providence, and shall require all subcontractors and third-party suppliers to do the same. For purposes of Sec. 2-18, "Subcontractor" means a person, partnership, corporation or other entity that enters into a contract with the contractor for performance of some or all of the City-contracted work and includes all third-party suppliers or producers from whom the contractor or its contractors obtains or sources goods, parts or supplies for use on the city contract and is intended to include suppliers at all level of the supply chain. The standards in Sec. 2-18 shall apply in all aspects of the contractor's and subcontractor's operations, including but not limited to, manufacture, assembly, finishing, laundering or dry cleaning, (where applicable), warehouse distribution, and delivery. Contractor acknowledges that by entering into this contract, Contractor shall be subject to all of the requirements and sanctions of Sec. 2-18 of the Code of Ordinances." All applicable contracts must also include the list of sanctions in subsection (g)(3).

(2) Inclusion by reference in all contracts. For purposes of carrying out the intent of this section, all provisions of this section are made part of all applicable contracts for procurement under this section.

(3) Every contractor and vendor shall bind its contractors and subcontractors, in writing, to the provisions of this section.

(4) Continuing disclosure and transparency. All contractors operating under an existing contract applicable under subsection (b), shall submit quarterly sworn disclosure statements containing the information required in subsection (f)(2), to the city or its independent monitoring agency, if any. Disclosures that reveal a violation of this section or statement that contractor will not or cannot comply with this section may be grounds for sanctions without further investigation, or may be investigated for action under this section and the contract. The city and its independent monitoring organization, if any, shall

have complete and unfettered access to all contractor's and subcontractor's facilities utilized under a contract to which this section applies. The transparency requirements in subsection (f) above shall continue to apply to contractors under an existing contract.

(g) *Monitoring and enforcement.*

(1) Complaints. Any person may complain that one (1) or more standards of this section are being violated. The city and/or any independent monitoring agency acting on behalf of the city shall receive complaints and investigate the merits of such complaints.

(2) Independent monitoring agency. The city may choose to contract for investigation and monitoring services with a qualified, independent monitoring agency that is not financed by the industry to which this section applies under subsection (b). The purpose of such arrangement would generally be to receive complaints and provide monitoring, inspection, investigation, and remediation services at locations that are too distant or impractical for the city to do itself. Any such services would be subject to the specific terms of any contract the city makes with the agency.

(3) Establishment of consortium. The city shall also explore mechanisms employed by other governmental entities to ensure that businesses that contract with the city are in compliance with this section and any regulations or requirements promulgated in conformance with this section. The mechanisms explored shall include, but not be limited to:

a. Establishing working relationships with other public agencies that have enacted sweatfree procurement laws, and advocacy groups, labor organizations and other appropriate entities to share information regarding manufacturers, vendors, and suppliers.

b. Developing a sweatfree consortium with other states, cities, school boards, or public entities that allows for cost sharing of monitoring and enforcement activities by a nonprofit independent monitor.

(4) Violation, remediation and sanctions. If the city determines there has been a violation of this section, appropriate city staff or the independent monitoring agency, if any, shall inform the contractor of the determination and discuss the violation with the contractor. The purpose of the discussion is to encourage the contractor to change its practices rather than to cease doing business with the contractor. To that end, the city may at its sole option prescribe appropriate measures for the contractor to take in order to comply with this section, however nothing in this subsection shall be construed to limit the city's remedies under an existing contract or other remedies available at equity or at

law. The sanctions for violating this section under an existing contract are as follows and this list of sanctions shall be included in every applicable contract:

a. Withholding of payments under an existing contract.

b. Liquidated damages. The contractor may be charged liquidated damages on an existing contract of two thousand dollars ($2,000.00) per violation, or an amount equaling twenty (20) percent of the value of the apparel, garments or corresponding accessories, equipment, materials, or supplies that the city demonstrates were produced in violation of the contract and/or this section per violation; whichever is greater.

c. Termination, suspension or cancellation of a contract in whole or in part.

d. Nonrenewal when a contract calls for optional renewals.

e. Nonrenewal for lack of progress or impossible compliance. The city reserves the right to refuse to renew a contract that calls for optional renewals, when the contractor cannot comply with the minimum standard under (d)(2) and the noncompliance is taking place in a country where:

1. Progress toward implementation of the standards in this section is no longer being made; and

2. Compliance with the employment standards in this section is deemed impossible by the city and/or any independent monitoring agency acting on behalf of the city. Such determination shall be made in the sole opinion of the city and may be based upon examination of reports from governmental, human rights, labor and business organizations and after consultation with the relevant contractors and subcontractors and any other evidence the city deems reliable.

f. Disqualification of the contractor from bidding or submitting proposals on future city contracts, or from eligibility for future city procurements as defined in subsection (b), whether or not formal bidding or requests for proposals are used, for a period of one (1) year after the first violation is found and for a period of three (3) years after a second or subsequent violation is found. The disqualification shall apply to the contractor who committed the violation(s) whether that be under the same corporate name, or as an individual, or under the name of another corporation or business entity of which he or she is a member, partner, officer, or agent.

(5) Submission of false information. Any person who has been found by the city to have submitted any false, misleading or fraudulent information to the city or its independent monitoring agency (if any), either in their request for bids or proposals or other pre-award submissions; or during the term of the contract, may be subject to any of the above sanctions.

(6) Penalty. In addition to any of the sanctions set forth elsewhere in this section, any contractor or vendor or other person who violates any portion of this

section or fails to comply with any of its requirements shall, upon conviction hereof, be subject to a forfeiture of not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00), plus applicable costs. Each day such violation continues shall be considered a separate offense. Prosecution or imposition of a forfeiture under this paragraph shall not preclude imposition of other sanctions listed above, nor shall the imposition of such sanctions be construed as a limitation on prosecution.

(7) Nothing in this section shall be construed as a limit upon any remedies at law or equity that the city may have to enforce a contractual relationship or otherwise enforce this section.

(h) *Severability.* The provisions of this section shall be severable and if any of the provisions shall be held in contravention of the constitution and laws of the state or of the United States by a court of competent jurisdiction, the validity of the rest of the section shall not be affected. It is hereby declared to be the intent of this section that the same would have been adopted had such unconstitutional or unlawful provision, if any, not been included herein.

(i) *Committee on sweatfree purchases.*

(1) *Purpose, duties, responsibilities.* There is hereby created a committee on sweatfree purchases, for the purpose of ongoing evaluation and assistance in the application of this section and the furtherance of its purpose. On an annual basis, this committee shall provide the council with a report describing any suggested recommendations regarding this section, including the feasibility of expanding the section beyond its original application to apparel only as described in subsection (b). This committee is also encouraged to communicate with other units of government to encourage similar policies to further increase the effectiveness of this section in achieving its policy goals.

(2) *Composition and appointment of members.* Three (3) appointments to be made by, and serve at the pleasure of, the city council; three (3) appointments to be made by, and serve at the pleasure of, the mayor; and one (1) appointment to be made by, and serve at the pleasure of, the Board of Rhode Island Jobs with Justice.

(3) *Meeting schedule.* The committee shall meet as often as necessary, but at minimum four (4) times per year.

(Ord. 2006, ch. 06-25, § 1, 4-20-06; Ord. 2007, ch. 07-18, § 1, 12-28-06)

Sec. 2-18.1. Socially responsible investing.

The city shall make available to its employees socially responsible investment opportunities, in addition to any other investment opportunities, through fund

managers who offer designated funds within employees' deferred compensation 457 plans that invest in companies that demonstrate support of community well-being through safe and environmentally sound practices and fair labor practices.

Specifically, socially responsible 457 plans shall provide funds that:

(1) Include companies that:

a. Support equality of rights regardless of sex, race, age, disability or sexual orientation in their company policies and hiring practices.

b. Protect the rights of individuals, workers and indigenous peoples by requiring high labor standards in communities worldwide.

c. Meet high standards of accountability and disclosure relating to environmental, social and financial activities and practices.

d. Promote human treatment of animals and avoid animal testing.

(2) Exclude companies:

a. Involved at any level in the manufacture of weapons or derive more than five (5) percent of its gross sales from Department of Defense contracts.

b. Which derive revenue from the manufacture of tobacco, liquor and/or gambling products.

c. That own or operate nuclear power plants.

(3) Investigate companies' environmental practices including Environmental Protection Agency violations and fines, and company initiatives to reduce wastes and increase energy conservation.

(4) Review companies' hiring practices.

(Ord. 2006, ch. 06-27, 4-20-06)

Sec. 2-18.2. Predatory lending.

(a) *Lending and deposit specifications required.* With each bid for interest upon city and school funds, the controller shall obtain, in a form prescribed by him from each bidder, the lending and deposit information for its home office and for each branch office or facility information that shall include, but is not limited to, the following:

(1) The affidavit required under subsection (b);

(2) The number of high cost loans made by the lender and its affiliates;

(3) The market share ratio of the lender's refinance loans in minority census tracts in the city to nonminority census tracts in the city;

(4) The market share ratio of the lender's refinance loans in low and moderate income census tracts in the city to middle and upper income census tracts.

(5) Ratios of high cost loans shall be broken out separately; and considering each lender and affiliate separately in the calculation.

(b) *Definitions; city depository.*

(1) The definitions of section 34-25.2-4 of the General Laws, as amended from time to time, are hereby incorporated into this section by reference. In addition, as used in this section, the following terms shall have the meanings respectively indicated below:

Predatory lender means a business entity that has made, within the previous twenty-four-month period, predatory loans that comprise either:

a. Five (5) percent of the total annual number of loans made; or

b. Twenty-five (25) individual loans; whichever is less.

Each lender and affiliate shall be considered separately for the purposes of these calculations, and only loans secured by residential real estate that is located within the city shall be considered. The term "predatory lender" shall not include a business entity that has demonstrated to the satisfaction of the director of finance that it has discontinued the practice of making predatory loans and has taken steps to ensure that it does not make such loans in the future.

Predatory loan means a loan that violates any of the provisions of section 35-25.2-5 or 35-25.2-6 of the General Laws.

(2) No bidding bank or savings and loan association may be designated as a city depository if it or any of its affiliates is a predatory lender. Every bidding bank and loan association shall, prior to any such designation, submit to the city an affidavit certifying that neither it, nor any of its affiliates, is a predatory lender. The affidavit shall be in a form prescribed by the director of finance and shall be sworn by one or more of the officers of the bank or loan association.

(c) *City contracts.*

(1) No person or business entity shall be awarded a contract with the city if the person or business entity, or any of its affiliates is a predatory lender. Every person or business entity seeking to do business with the city shall submit to the city an affidavit certifying that neither it, nor any of its affiliates, is a predatory lender. The affidavit shall be in a form prescribed by the director of finance and shall be sworn by the person or one (1) or more of the officers or owners of the business entity, as the case may be. Nothing in this section shall affect the validity of any contract entered into in connection with any debt obligations issued by or on behalf of the city, regardless of whether the contract is awarded in compliance with this section. Any other contract awarded in violation of this section shall be voidable at the option of the city.

(2) The purchasing agent may suspend the ineligibility of a person or business entity in order to allow execution of a contract with the person or entity, upon

written application by the head of a city agency or department affected by the proposed contract, setting forth facts sufficient in the judgment of the purchasing agent to establish:

a. That the public health, safety or welfare of the city requires the goods or services of the person or business entity; and

b. That the city is unable to acquire the goods or services at comparable price and quality, and in sufficient quantity from other sources.

(Ord. 2006, ch. 06-33, § 1, 6-1-06; Ord. 2007, ch. 07-15, § 1, 12-28-06)

Sec. 2-18.3. Investment in manufacturers held liable for causing lead poisoning in the state prohibited.

(a) Annually in America, elevated blood lead levels that can cause disabilities, hyperactivity and brain damage, are discovered in over 300,000 children. Paint manufacturers, including Sherwin-Williams, N L Industries, Inc. and Millenium Holdings, LIJC (Glidden), while aware of these effects of lead paint, continued to produce the product for many years before they stopped manufacturing and/or selling it. Lead paint poisoning overwhelmingly affects low income and minority children in particular. Nationally, the cost to cities and others to remove lead paint in housing units is estimated to be over $38 billion, and cities and states do not have enough funds to make all housing units lead safe. In addition, lead poisoning costs the nation $43.4 billion each year in lost wages and health care costs. While this has become a financial burden for the nation, lead paint manufacturers profited from a product that they knew to be dangerous. "The Association of Community Organizations for Reform Now" has documented the problem of lead contamination by testing housing units in the city and children with lead poisoning burden our social service programs and public school resources.

It is not in the interest of the city to invest resources in supporting corporations that engage in business practices that harm the city and its residents, nor is it in the interest of the city to invest resources in firms which are facing a particularly uncertain future because of moral, legal, and regulatory scrutiny of their activities. In light of the fact that Sherwin-Williams Company, N L Industries, Inc. and Millenium Holdings, LLC (Glidden), have been found liable in a major federal lawsuit involving lead paint poisoning of Rhode Island children, the city will not invest any of its moneys or funds, including funds held under the auspices of the city to remain invested, or to be invested in the future, in stocks, securities or other business obligations of the Sherwin-Williams Company, N L Industries, Inc. and Millenium Holdings, LLC (Glidden), or in mutual funds which are major shareholders in any of these companies.

(b) The assets of any investment account, including pension, endowment, and annuity funds, under the jurisdiction of the board of investment commissioners and/or the finance director, shall not knowingly be invested in the Sherwin-Williams Company, N L Industries, Inc. and Millenium Holdings, LLC (Glidden), or in any other paint manufacturer subsequently held liable for lead poisoning in the state.

(c) The divestiture so required shall be completed within two (2) months of final approval of this section.
(Ord. 2006, ch. 06-43, §§ 1—3, 9-7-06)

Sec. 2-18.4. Participation in Cities for Climate Protection Campaign.

(a) The city will participate in the Cities for Climate Protection Campaign and, as a participant, pledges to take a leadership role in promoting public awareness about the causes and impacts of climate change.

(b) The city will undertake the Cities for Climate Protection Campaign's five (5) milestones to reduce both greenhouse gas and air pollution emissions throughout the community, and specifically:

(1) Conduct a greenhouse gas emissions inventory and forecast to determine the source and quantity of greenhouse gas emissions in the jurisdiction;

(2) Establish a greenhouse gas emissions reduction target;

(3) Develop an action plan with both existing and future actions which when implemented will meet the local greenhouse gas reduction target;

(4) Implement the action plan; and

(5) Monitor and report progress.

(c) The environmental sustainability task force shall study scenarios by which the city shall participate and implement the Cities for Climate Protection Campaign, and shall file written reports to the city council detailing its finding.

(d) The city shall, as the need arises, request assistance from ICLEI's Cities for Climate Protection Campaign as it progresses through the milestones.
(Ord. 2007, ch. 07-51, § 2, 11-15-07)

Sec. 2-18.5. Hospitality business protection and worker retention.

(a) *Purpose.* The purpose of this section is to bolster Providence as a tourist destination, and to promote the stability of Providence's hospitality and tourism businesses.

(b) *Definitions.*

Change in the identity of the hospitality employer means any event or sequence of events (including a purchase, sale, lease, or termination of a management contract or lease) that causes, within a one-year period, the identity of the hospitality employer at a hospitality business to change.

Employee means any person employed to perform any services by a hospitality business, including part-time and on-call employees who work an average of at least twenty (20) hours per week, including employees on vacations or leaves of absence, but excluding any supervisors or managerial employees as defined in 29 U.S.C.

§ 152(11). If a person or entity is employed by a hospitality business as an independent contractor, said person or entity will not be considered an employee for the purposes of this section.

Hospitality business includes any hotel, motel, resort, boarding house, or bed and breakfast which is kept, used or advertised as, or held out to the public as, a place where sleeping or housekeeping accommodations are supplied for pay to guests for leisure, business or group occupancy, which is operating within the City of Providence with at least twenty-five (25) rooms, and any in-house component thereof, including housekeeping services, front desk, laundry, room service, valet, bell desk, restaurant, food and/or beverage service or other operation facilitating guest service located within a hotel, motel, resort, boarding house, or bed and breakfast containing at least twenty-five (25) rooms.

Hospitality business covered by the October 26, 2009 Ordinance means any hotel within the property of the Dunkin Donuts Center, the Rhode Island Convention Center, and Veterans Memorial Auditorium, or within any building physically connected by internal walkways, skybridges, or parking lots (including streets that are closed to public traffic to facilitate parking or other functions) connected to these facilities, with the exception of the Providence Place Mall, and any instrumentality of the State of Rhode Island, including the Rhode Island Convention Center.

Hospitality business owner means any person or combination of persons that purchases or enters into a lease of the real property or the fixtures, or both, of a hospitality business and within two (2) years thereafter operates any part of the hospitality business directly, through affiliates of such person or persons, or through a contract with an unaffiliated entity. This includes but is not limited to any purchaser or new management company, contractor, subcontractor, lessee, sublessee, or other person, that will take over as an employer in any part of the facility where a hospitality business has been located.

Hospitality employer means a person, whether owner or a manager, who acts as the immediate employer of the employees in a hospitality business.

Manager means any person who operates a hospitality business on behalf of another person pursuant to a lease, sublease, management agreement, operating agreement, franchise agreement or other arrangement.

Ownership means the possessory interest or interests acquired by a hospitality business buyer in property that enables the hospitality business buyer to control any part of the operation of hospitality business.

Person means any individual, firm, partnership, corporation, limited liability company, trust, association, joint venture or other legal entity.

(c) *Retention of hospitality business employees.*

(1) In the event of a change in the identity of the employer at a hospitality business, the new employer (whether the hospitality business owner or its manager) shall retain for at least three (3) months after the commencement of operation of the hospitality business under the new hospitality business employer, those employees who were employed for at least two (2) months preceding the date on which the previous hospitality business employer's status as employer terminated. During such three-month period, employees so hired shall be employed under the terms and conditions established by the hospitality business buyer or manager or as required by law. Hospitality employers shall have the right to discharge any employee during this three-month period for good cause.

(2) If at any time the new hospitality business employer determines that fewer employees are required for its full operation than were required by the previous hospitality business employer, the new hospitality business employer may retain that number of employees needed for its new operations.

(d) *Preservation of rights.*

(1) No provision of this section shall be construed to impair, prohibit, or provide for any right of recovery for, that lawful exercise of employees' or employers' right to engage in strike or lockout.

(2) Nothing in this section shall impose any obligation, direct or indirect, on any instrumentality of the State of Rhode Island, including the Rhode Island Convention Center.

(e) *Enforcement.*

(1) An employee who has been not been retained or who has been discharged in violation of this section may bring an action in any court of competent jurisdiction of the State of Rhode Island no later than within three (3) years of the violation against the hospitality business employer, and shall be awarded:

a. Back pay for each day during which the violation continues, which shall be calculated at a rate of compensation not less than the higher of:

- The average regular rate of pay received by the employee during the last three (3) years of the employee's employment in the same occupation; or
- The final regular rate received by the employee.

b. Treble the damages in subsection a. if the hospitality business employer's violation is shown to be willful.

(2) If the employee is the prevailing party in any such legal action, the court shall award reasonable attorney's fees and costs as part of the costs recoverable.

(f) *Severability.* The provisions of this section shall be severable. If any provision of this section is held to be unenforceable by a court of competent jurisdiction, all remaining provisions shall remain in force.
(Ord. 2009, ch. 09-56, § 1, 10-26-09; Ord. 2010, ch. 2010-39, § 1, 10-21-10)

Editor's note—Section 2 or Ord. No. 2010-39 states: "This ordinance and its amendments are retroactive to October 26, 2009, as to any Hospitality Business covered by the October 26, 2009 Ordinance. As to the other Hospitality Business, this ordinance and its amendments are effective on the date of passage of these amendments to this Ordinance."

Sec. 2-18.6. Hospitality worker comeback.

(a) *Purpose.* The purpose of this section is to bolster Providence as a tourist destination, and to promote the stability of Providence's hospitality and tourism businesses.

(b) *Definitions.*

Employee means any person who was employed to perform any services by a hospitality business, including part-time and on-call employees who worked for a hospitality business for six (6) months or more and whose most recent separation from active employment with a hospitality business occurred on or after March 9, 2020 as a result of a lack of business, a reduction in work force or other economic, non-disciplinary reason. For the purposes of this section, the definition of employee excludes any supervisors or managerial employees as defined in 29 U.S.C. § 152(11) and any independent contractors.

Hospitality business includes any hotel, motel, resort, boarding house, or bed and breakfast which is kept, used or advertised as, or held out to the public as, a place where sleeping or housekeeping accommodations are supplied for pay to guests for leisure, business or group occupancy, which operates within the city with at least twenty-five (25) rentable rooms, and any in-house component thereof, including housekeeping services, front desk, laundry, room service, valet, bell desk, restaurant, food and/or beverage service or other operation facilitating guest service located within a hotel, motel, resort, boarding house, or bed and breakfast containing at least twenty-five (25) rooms.

Hospitality business owner means any person, combination of persons, or company that purchases or enters into a lease of the real property or the fixtures, or both, of a hospitality business and within two (2) years thereafter operates any part of the hospitality business directly, through affiliates of such person or persons, or through a contract with an unaffiliated entity. This includes but is not limited to any

purchaser or new management company, contractor, subcontractor, lessee, sublessee, or other person, that will take over as an employer in any part of the facility where a hospitality business has been located.

Hospitality employer means a person, whether owner or a manager, who acts as the immediate employer of the employees in a hospitality business.

Manager means any person who operates a hospitality business on behalf of another person pursuant to a lease, sublease, management agreement, operating agreement, franchise agreement or other arrangement.

Ownership means the possessory interest or interests acquired by a hospitality business buyer in property that enables the hospitality business buyer to control any part of the operation of hospitality business.

Person means any individual, firm, partnership, corporation, limited liability company, trust, association, joint venture or other legal entity.

(c) *Retention of hospitality business employees.*

(1) A hospitality business, (whether the hospitality business owner or its manager) shall offer any position that is or becomes available to an employee for which said employee is qualified. The offer shall be sent in writing to the last known: (1) mailing address of the employee, (2) electronic mail address of the employee and (3) phone number of the employee by text message. An employee shall be qualified for an available position if the employee: (1) held the same or a substantially similar position at the same employment site at the time of the employee's most recent separation from active service with the employer; or (2) is or can become qualified for the position through the same training that would be provided to a new worker hired for that position. If more than one (1) employee is entitled to preference for a position, first priority shall be for an employee with the greatest length of service in the same or a similar position and then for an employee with the greatest length of service at the employment site.

(2) An employee offered a position pursuant to this section shall be given no less than five (5) business days in which to accept or decline the offer.

(d) *Preservation of rights.*

(1) No provision of this section shall be construed to impair, prohibit, or provide for any right of recovery for, that lawful exercise of employees' or employers' right to engage in strike or lockout.

(2) Nothing in this section shall impose any obligation, direct or indirect, on any instrumentality of the State of Rhode Island, including the Rhode Island Convention Center.

(e) *Enforcement.*

(1) An employee who has not received an offer from a hospitality business, hospitality business owner, or manager in violation of this section may bring an action in any court of competent jurisdiction of the state no later than within three (3) years of the violation against the hospitality business employer, and shall be awarded:

a. Back pay for each day during which the violation continues, which shall be calculated at a rate of compensation not less than the higher of:

- The average regular rate of pay received by the employee during the last three (3) years of the employee's employment in the same occupation; or
- The final regular rate received by the employee.

b. Treble the damages in subsection if the hospitality business employer's violation is shown to be willful.

(2) If the employee is the prevailing party in any such legal action, the court shall award reasonable attorney's fees and costs as part of the costs recoverable.

(f) *Severability.* The provisions of this section shall be severable. If any provision of this section is held to be unenforceable by a court of competent jurisdiction, all remaining provisions shall remain in force.

(g) *Term.* Prior to September 30, 2022, the city council shall hold a hearing regarding: (i) the effectiveness of said section in protecting workers' stability of employment; (ii) recommendations for additional employment stability protections; and (iii) whether the protections of said section are still necessary based on the municipality's recovery from the impacts of the COVID-19 pandemic.
(Ord. No. 2020-49, § 1, 11-13-20)

ARTICLE II. MAYOR AND COUNCIL*

Sec. 2-19. Filling office in case of disability, suspension, etc.

Pursuant to the authority vested in the City Council by Section 206(a), Article II, and by Section 304 of Article III, of the Home Rule Charter of the City of Providence adopted in 1980, the following definitions and procedures are established:

(1) In the event that any person holding elective office under the Charter shall be convicted of a felony under the laws of Rhode Island, or convicted of a crime in any state or territorial possession of the United States or in any

*__Cross references—__Officers and employees, generally, § 17-1 et seq.; bonds thereof, § 17-36 et seq.; compensation and other benefits, § 17-54 et seq.; revenue and finance provisions, § 21-1 et seq.

federal court of the United States which would be the equivalent in designation or penalty to be a felony under Rhode Island law, such individual shall upon initial conviction be subject to suspension from the conduct of, the discharge of, any duties of, and the exercise of any powers of, his or her office, in accordance with paragraph (2) hereof.

(2) It shall be the responsibility of the city clerk upon learning of any such conviction to secure forthwith a properly authenticated copy of the court record of said conviction. Such record, upon receipt thereof, shall be transmitted by the city clerk to the president of the city council, the convicted office holder, all members of the city council and the city solicitor. Not less than fifteen (15) days nor more than thirty days (30) after the delivery of such record, the city council shall order a public hearing thereon, which hearing shall be held only after due notice to the said convicted office holder of the purpose of said hearing. The city council shall promulgate by majority vote, needful rules and regulations to ensure the orderly conduct of the hearing.

The convicted official shall have the right to be heard, to be represented by counsel, and to request the city council to compel the attendance of witnesses and production of evidence, including relevant records of the city. After such hearing is concluded, the city council shall consider and vote upon the following resolution: "Resolved that (insert name of office holder) is no longer fit to hold his or her office and shall be suspended from the office of (insert his or her office)." In the event that two-thirds (⅔) of the entire membership of the city council votes in favor of suspending the convicted office holder from his or her office, the suspension of the convicted office holder shall take effect upon said resolution becoming effective unless the said office holder shall have requested a leave of absence before said effective date. Any such suspension will be with full compensation.

(3) It shall be the further duty of the city clerk to secure properly authenticated records of any further actions in any trial or appellate court involving the said conviction, and transmit the same or copies thereof as aforesaid. The suspension of any such convicted office holder shall continue until:

(a) Certified copy of the mandate of a court shall have been received by the city clerk showing that the convicted office holder shall have been acquitted, or that a new trial shall have been granted, or that the said conviction has been reversed upon appeal; or

(b) Certified copy of the mandate of a court shall have been received by the city clerk showing that the convicted office holder shall have failed to appeal within the time prescribed by law, or shall have exhausted all appeals and the conviction therefore stands, whereupon the office held

by said convicted office holder shall be declared vacant pursuant to Section 206(a)(5) of Article II of the Charter, in conformity with paragraph (4) of this section.

Upon the receipt of the mandate of the court as described in subparagraph (3)(a) above, said office holder shall resume all powers and duties of his or her office.

(4) Upon receipt of notification from the city clerk that any office holder convicted on a felony charge as defined in paragraph (1) hereof, or of a crime of moral turpitude, has exhausted all appeals from said conviction, the city council shall at its next regular or special meeting, if it is satisfied that the provisions of the Charter and of this section have been met, declare, by a vote of the members of the city council, present at said meeting, the office of said convicted felon to be vacant and make provision for the filling of same in the manner provided in the Charter.

(5) (a) In the event that the mayor suffers a physical or mental illness or incapacity which makes it impossible for him or her to perform and exercise the powers and duties of the office, and executes and delivers or causes to be delivered a notarized statement to that effect to the council president, with copies to all members of the council, the city solicitor and the city clerk, the said council president shall serve as acting mayor until the mayor executes a notarized statement to the effect that he or she is now able to resume the powers and duties of the office, copies of such statement to be distributed as hereinbefore provided.

(b) In the event that the mayor or a member of the city council suffers a physical or mental illness or incapacity which makes it impossible for him or her to perform and exercise the powers and duties of the office, and fails or is unable to so advise the council president as provided in subparagraph (5)(a) hereof, the council shall, by majority vote, appoint a special commission composed of the city solicitor, two (2) or more members of the medical profession and a justice of the superior court who shall be the chairperson of said special commission, to evaluate the capacity of the mayor or member of the city council to exercise the powers and duties of his or her office. The commission shall also conduct such consultations and interviews as the members thereof may deem necessary, shall provide the mayor or member of the city council with a hearing, at which said official shall have the right to be represented by counsel, and report to the council within seven (7) calendar days as to whether, in their judgment, the mayor or council person should be declared incapable of exercising his or her powers and duties, and if he or she is incapable, whether such incapacity appears to be temporary or permanent.

(c) The city council upon receiving the report of the commission shall meet forthwith, in regular or special meeting, and shall take up the report and recommendations of the commission. If the city council concurs in a finding of incapacity by a vote of two-thirds of the entire membership of the council, the mayor shall be declared suspended from office and the council president shall serve as acting mayor until the incapacity of the mayor shall have been declared by a two-thirds vote of the entire membership of the council, with the advice of the commission, to have terminated, or the office of mayor or council person shall have been declared by a two-thirds vote of the entire membership of the council, with the advice of the commission, to have been vacated by virtue of permanent incapacity and a successor elected.

(6) If the office of mayor becomes vacant for any of the reasons set forth in Subsection 206(a) or Section 208 of the Charter, or if the mayor takes a leave of absence from his office, or is suspended from office pursuant to paragraph (2) hereof, or is adjudged by the council to be unable to perform the duties of his or her office by virtue of physical or mental illness pursuant to paragraph (5) hereof, the powers and duties of the office of mayor shall be exercised by the president of the city council, who shall be deemed the acting mayor, until the vacancy in the office of mayor shall have been filled pursuant to Subsection 206(a) of the Charter, or the term of the mayor shall have expired, and a successor duly elected and qualified, or his or her absence or disability terminated. All acts performed by the president of the city council when acting as mayor as aforesaid shall have the same force and validity as if performed by the mayor.

(Ord. 1984, Ch. 84-16, §§ 1—6, 2-27-84)

Editor's note—Ch. 1984-16, effective Feb. 27, 1984, has been codified as § 2-19 at the editor's discretion, being nonamendatory of this Code.

Sec. 2-19.1. Appointment of directors/officers/committee members.

Pursuant to the authority vested in the mayor and city council by Section 302 and other sections of the City of Providence Home Rule Charter adopted in 1980 (Home Rule Charter). Unless specifically stated, all appointments of the mayor or the city council shall not exceed the term as stated in the Home Rule Charter Section 202 of four (4) years.

(Ord. No. 2019-30, § 1, 7-19-19)

Sec. 2-20. Identification cards for council members.

(a) The city clerk shall issue an identification card to each member of the city council for the term to which he has been duly elected and qualified.

(b) The identification card shall be four (4) inches long, two and one-half (2½) inches wide of a white color. Upon the face of said card shall be imprinted in a light blue color the facsimile of the seal of the City of Providence, as provided for in Article XXI, section 2-335 of the Code of Ordinances of the City of Providence, Rhode Island, approved October 21, 1968, as amended, within a space one and one-quarter (1¼) inches long by one (1) inch wide. On the upper left side of the face of said card shall be placed a recent photograph of the said member of the city council and in an orderly arrangement in a darker blue color, so as to make distinguishable, the following shall be imprinted:

CITY OF PROVIDENCE, No.

RHODE ISLAND

This is to Certify that:

_____

Whose Signature is Affixed Hereto is a Member of the City Council of the City of Providence, Rhode Island, for the Term Ending _____, 197____.

Attest: _____

Signature

_____

City Clerk

(c) Each such city council identification card shall bear a numeral assigned by the city clerk on the face of the card. The city clerk shall cause the same to be sealed by a lamination process and shall be encased in a leather or plastic container.

(d) This section shall take effect upon its passage and the possession and use of said card issued as herein before provided, shall be for the sole and exclusive identification of the member of the city council to which said card has been issued. (Ord. 1972, ch. 72-63, §§ 1—4, 10-30-72)

Editor's note—Ord. 1972, Ch. 72-63, did not expressly amend this Code, hence inclusion of §§ 1—4 herein as § 2-20 was at the discretion of the editors.

Sec. 2-21. Signature by mayor on instruments in writing.

All contracts, deeds, leases, conveyances, or other instruments in writing, made and entered into by or on behalf of the city, shall be signed and executed by the mayor, unless otherwise provided by ordinance or resolution of the city council. (Ord. 1914, ch. 15, § 1; Rev. Ords. 1946, ch. 2, § 15)

Sec. 2-22. Salary of mayor.

The salary to be paid the mayor of the City of Providence shall be fifty-five thousand dollars ($55,000.00) per year, payable weekly.

The mayor shall receive an annual increase in salary in the amount of seven (7) percentum per annum; said increase shall take effect on the first Monday in January, 1984, and thereafter on the first Monday in January, 1985, and in January, 1986.

The mayor shall receive an annual increase in salary in the amount of five percentum (5%) per annum; said increase shall take effect on the first Monday in January, A.D. 1987, and thereafter on the first Monday in January, A.D. 1988, and in January, A.D., 1989, and in January, A.D., 1990.
(Ord. No. 1964, ch. 1632, § 1; Ord. 1070, ch. 70-32, § 1, 9-10-70; Ord. 1974, ch. 74-73, § 1, 12-20-74; Ord. 1982, ch. 8269, § 1, 12-27-82; Ord. 1986, ch. 86-57, § 1, 12-24-86)

Sec. 2-23. Salaries of councilmen; expense accounts.

The salary to be paid to the president, the majority leader and the minority leader of the city council shall be fifteen thousand seven hundred twelve dollars and sixty-eight cents ($15,712.68) per annum, payable in equal monthly amounts.

The salaries of other members of the city council shall be thirteen thousand three hundred ninety-seven dollars and forty cents ($13,397.40) per annum, payable in equal monthly amounts.

Each member of the city council shall receive an annual increase in salary in the amount of five (5) percentum per annum; said increase shall take effect on the first Monday in January, A.D. 1988, and thereafter on the first Monday in January, A.D. 1989, and in January, A.D., 1990.

Each member of the city council shall be paid an expense account of two thousand four hundred dollars ($2,400.00) per annum payable at the rate of two hundred dollars ($200.00) per month.
(Ord. No. 1942, ch. 1171, § 1; Rev. Ords. 1946, ch. 2, § 4; Ord. 1948, ch. 190, § 1; Ord. 1952, ch. 573, § 1; Ord. 1964, ch. 1633, § 1; Ord. 1970, ch. 70-33, § 1, 9-10-70; Ord. 1974, ch. 74-43, §§ 2, 3; 12-20-74; Ord. 1978, ch. 78-37, § 1, 1-1-79; Ord. 1978, ch. 78-38, § 1, 1-1-79; Ord. 1982, ch. 82-69, § 2, 12-27-82; Ord. 1986, ch. 86-57, § 2, 12-24-86; Ord. 1994, ch. 94-29, § 1, 9-9-94)

Sec. 2-24. Calling special meetings of council.

Whenever the city clerk shall be requested to call a special meeting of the city council, in accordance with the provisions of section 3.11 of the [1940] charter, either upon the written request of the mayor, or of one-sixth (⅙) of the members of the council, notice shall be served personally on each member, or at least two (2) days' notice thereof shall be given each member in the following manner:

The city clerk, or in his absence, one of his assistants thereunto duly authorized by said clerk or by said council, shall command and require the city sergeant to summon the members of the city council to meet in their chamber in the city hall, then and there to transact such business as may legally come before them. The city clerk may include in the warrant calling the special meeting, the statement of the purposes for which the special meeting is called.
(Ord. 1941, ch. 1056, § 1; Rev. Ords. 1946, ch. 2, § 1)

Sec. 2-25. Summoning members to special meetings of council.

In the event a special meeting is called within two (2) days prior to the time for holding said meeting, the city sergeant shall summon the members of the city council by leaving an attested copy of the warrant issued by the city clerk with each of the members of the city council personally, or by reading the same in his presence and hearing; or in the event that said meeting is called more than two (2) days prior to the day thereof, the city sergeant shall give at least two (2) days' notice of said meeting to the members of the city council by summoning each of them as aforesaid or by leaving an attested copy of the warrant issued by the city clerk either in the place of business, or at the last and usual place of abode of each member of the city council, with some person living there. The city sergeant shall make his return on the original of said warrant, certifying that he has summoned all the members of the city council in accordance with the terms of this section.
(Ord. 1941, ch. 1056, § 2; Rev. Ords. 1946, ch. 2, § 2)

Sec. 2-26. Notice of pendency and hearing of petitions to council.

Whenever any private petition shall have been presented to the city council, the committee to which such petition shall be referred may, and, if such petition asks permission to use in any way any highway or public lands, shall order public notice to be given by newspaper advertisement, of the pendency of such petition and of the time it will be considered, which order shall be at once communicated to the petitioner by the committee. In case the petitioner shall not cause such notice to be given as above provided, before the time of consideration of such petition, such committee shall report the fact to the city council with a recommendation that the petitioner have leave to withdraw.
(Ord. 1914, ch. 41, § 1; Rev. Ords. 1946, ch. 2, § 3)

Sec. 2-27. Annual reports to council.

All directors, boards, commissions and bureaus of the city shall annually, during the month of January, render to the city council a report of the operations of their respective departments during the previous fiscal year.
(Ord. 1942, ch. 1138, § 1; Rev. Ords. 1946, ch. 2, § 179½)

Sec. 2-28. Expenditures by committees of council.

Committees of the city council are severally authorized to expend not more than one hundred dollars ($100.00) each in any year in the investigation of subjects referred to them by the city council; or in discharge of such duties as are now or hereafter may be prescribed for such committees by ordinance or otherwise by the city council, or in investigating such subjects as may be deemed expedient by such committees relative to the departments respectively to which they have relation; and all such expenditures shall be charged to the appropriation for the city council.
(Ord. 1914, ch. 20, § 5; Rev. Ords. 1946, ch. 2, § 4)

Sec. 2-29. Acquiring option to purchase land—Authority.

Any committee of the city council is hereby authorized, at any time, or from time to time, to secure, in the name of the city or in the name of any person designated by such committee, for the city, an option for the purchase of any land in the city, which in the opinion of such committee may be required by the city for public or municipal purposes; provided, that any resolution or vote of any such committee to obtain the same shall be first approved in writing by the mayor before any step to secure the same shall be taken.
(Ord. 1914, ch. 14, § 4; Rev. Ords. 1946, ch. 2, § 5)

Cross reference—Purchase of real estate, § 21-41 et seq.

Sec. 2-30. Same—Payment for option and services of broker.

A committee of the city council is authorized, if necessary, to pay as the consideration for any option secured as authorized in section 2-29 and for the services of any broker or other person employed by such committee to secure the same, not exceeding the sum of one hundred dollars ($100.00), or if no such person is so employed not exceeding said sum for said option consideration only, which shall be payable from any appropriation covering the purchase of such land. If at the time of securing any such option no such appropriation has been made, such payment shall be made from the appropriation for contingencies, and all such payments so made shall be returned to the appropriation for contingencies and charged to any appropriation covering the purchase of such land when such appropriation is made. The city controller is hereby directed, from time to time, upon approval of the mayor, to forthwith make, certify and transmit to the city treasurer for payment, a schedule of all sums of money payable pursuant to the provisions hereof.
(Ord. 1914, ch. 14, § 4; Rev. Ords. 1946, ch. 2, § 6)

Sec. 2-31. Same—Preservation of resolution or vote.

Upon the approval by the mayor of any resolution or vote, a copy thereof, certified by the clerk of the committee of council, with the approval of the mayor endorsed by him thereon, shall be filed in the office of the city controller, but shall not be opened to public inspection pending the securing of the option described in section 2-29, and if the same is obtained in the name of any person other than the city, not until after the time specified therein for exercising the option shall have expired.
(Ord. 1914, ch. 14, § 4; Rev. Ords. 1946, ch. 2, § 7)

Sec. 2-32. Committee on finance—Transfer of appropriation from one department to another.

The committee on finance, upon the written request of the city controller, is hereby authorized, at the close of any fiscal year, to transfer, from one to another of the annual appropriations for the several departments for such year, such amounts as may be necessary in closing the accounts with said appropriations for such year; but no such transfer shall be applied so as to increase any one appropriation to an amount exceeding five hundred dollars ($500.00).
(Ord. 1914, ch. 20, § 40; Rev. Ords. 1946, ch. 2, § 8)

Note—For the committees of council, see Rules of Council as contained in Providence City Government Pocket Manual.

Cross references—Revenue and finance ordinances, § 21-1 et seq.; fiscal notes to accompany ordinances and resolutions, § 2-2.1.

Sec. 2-33. Same—Contracts with depositories; notice to city treasurer.

The committee on finance is hereby authorized and directed to contract, from time to time, with such banks or trust companies, located in the city, not less than three (3) in number, as they shall deem most beneficial for the city, for the receipt and payment of interest, at any agreed rate, upon an account current of money deposited with and drawn from such banks or trust companies, by the city; and said committee shall thereupon give notice in writing to the city treasurer, with what bank or trust companies the city funds are to be deposited, and from which they are to be drawn in the manner provided by ordinance.
(Ord. 1914, ch. 20, § 41; Rev. Ords. 1946, ch. 2, § 9)

Sec. 2-34. Committee on relief of firemen and policemen constituted.

The mayor, the president of the city council, the chairman of the committee on claims and pending suits, the chairman of the committee on ordinances, and the chairman of the committee on finance, all ex officio, are hereby created a standing committee of the city council for the relief of disabled firemen and policemen, in accordance with and subject to the provisions set out in the following sections.
(Ord. 1941, ch. 1073, § 1; Rev. Ords. 1946, ch. 2, § 10)

Cross reference—Annuities for widows of policemen and firemen, § 17-128 et seq.

State law references—State law setting up pensions and relief fund, § 45-19-1 et seq., Gen. Laws 1956; special acts authorizing appropriation for relief of disabled firemen and policemen, P.L. 1889, ch. 782, as amended by P.L. 1909, ch. 466, P.L. 1921, ch. 2105 and by P.L. 1927, ch. 1073.

Sec. 2-35. Dr. Charles V. Chapin Memorial Award Committee constituted.

A standing committee of the city council is hereby created, consisting of five (5) members of the city council to be appointed by the president of the council, and to be known as the "Dr. Charles V. Chapin Memorial Award Committee." The members of said committee shall be appointed biennially in every odd-numbered year, as soon as may be after the organization of the city council. The said committee shall cooperate with the Rhode Island Medical Society in arranging for the presentation at the annual meeting of the said society of an oration to be known as the "Dr. Charles V. Chapin Oration."
(Ord. 1944, ch. 1254, § 1; Rev. Ords. 1946, ch. 2, § 14)

Sec. 2-36. Authority of mayor to preserve public peace, property, health and safety.

(a) The mayor is authorized to take any and all steps necessary to preserve the public peace, property, health and safety of the inhabitants of the City of Providence, including, but not limited to the establishment of a curfew; the prohibition of sale or delivery of gasoline and other flammable substances, firearms or ammunition, alcoholic beverages; provided however, that the mayor shall act by executive order only, when necessary, in the exercise of his sound and reasonable judgment. Said executive order shall, as near as may be, designate the area in which said emergency measures shall be imposed and shall recite the facts leading to the issuance of the order.

(b) This section shall become null and void when the mayor, by executive order, determines that the emergency situation ceases to exist, or when the city council by resolution declares that the emergency situation ceases to exist.
(Ord. 1967, Ch. 1861, §§ 1, 3, 8-2-67)

Editor's note—Ch. 1861 was not amendatory of this Code nor of the ordinances from which this Code is derived, hence codification of §§ 1 and 3 as § 2-36(a) and (b) was at the discretion of the editors. The editors deleted § 2 imposing the penalty prescribed in the 1946 Revised Ordinances, as being substantially repetitive of the penalty in § 1-10 of the Code; and deleted the directory portion of § 3, to preserve Code format.

Sec. 2-37. Powers of mayor during declared public emergency—Enumerated, regulated.

(a) In addition to any powers that the office of the mayor may have pursuant to state law, city charter, or otherwise, the mayor may have the following powers during the period of a declared public emergency. These powers shall include but not be limited to the following:

(1) Establishment of a curfew during the hours of which no person shall be allowed in the public streets, ways or places throughout the City of Providence or in any designated section of the same.

(2) The prohibition and/or regulation of congregation by six (6) or more persons upon the streets, highways, uninhabited buildings or appurtenances to buildings.

(3) The prohibition and/or regulation of sale or delivery of gasoline or other flammable materials and substances.

(4) The prohibition and/or regulation of sale or delivery of firearms or ammunition.

(5) The prohibition and/or regulation of sale or delivery of alcoholic beverages.

(6) The establishment of restricted areas, access to which will be denied to all persons except those who must enter the same in the discharge of official duties or with the written permission from the mayor or his duly designated representative.

(7) The prohibition and/or regulation of the use or possession of any incendiary materials.

(8) The rationing or restricting of sale or delivery of any food stuffs.

(b) The mayor shall have the power to declare a public emergency and to exercise said powers only by an executive order when necessary in the exercise of his sound and reasonable judgment. Said executive order shall recite the facts leading to the issuance of said order and shall, as near as may be, designate the area in which said emergency measures shall be imposed. The mayor shall promulgate said executive order by any communication media available.
(Ord. 1968, Ch. 68-48, §§ 1, 2, 7-18-68)

Editor's note—Ch. 68-48 did not amend this Code nor the ordinances from which this Code is derived hence codification of §§ 1—4 as §§ 2-37—2-39 was at the discretion of the editors. The editors deleted § 5, imposing the penalties prescribed in the 1946 Revised Ordinances, as being substantially repetitive of the penalty in § 1-10 of this Code.

Sec. 2-38. Same—Ratification by city council.

The city council of the City of Providence shall meet in emergency session as soon as practicable following the declaration of a public emergency and shall at said meeting take action to ratify said declaration of a public emergency by appropriate legislation.
(Ord. 1968, Ch. 68-48, § 3, 7-18-68)

Note—See the editor's note following § 2-37.

Sec. 2-39. Same—Termination.

Said public emergency shall continue until such time as the mayor by executive order determines that the public emergency ceases to exist or when the city council by resolution declares that the public emergency ceases to exist.
(Ord. 1968, Ch. 68-48, § 4, 7-18-68)

Note—See the editor's note following § 2-37.

Sec. 2-40. Position of administrative assistant created; appointment; salary; duties.

Pursuant to the provision of Chapter 104 of the Public Laws of 1963, there is hereby created an administrative assistant to the city council.

The administrative assistant to the city council shall be appointed by the president of the city council without the necessity of any approval or confirmation of any other person or body for a term of four (4) years commencing on the first Monday of January, 1975, and thereafter the council president shall appoint said administrative assistant to the city council for a term of four (4) years. Any vacancy occurring in the office of administrative assistant to the city council shall be filled in like manner by appointment by the council president.

The salary to be paid the administrative assistant to the city council shall be at the rate per annum provided by the compensation plan of the city or by ordinance.

The duties of the administrative assistant to the city council shall be to assist the president and members of the city council concerning research and any other legislative matter the president and members of the city council deem necessary.
(Ord. 1974, ch. 74-59, §§ 1—4, 12-20-74)

Editor's note—Ch. 74-59, adopted Dec. 20, 1974, did not specifically amend the Code, hence codification of §§ 1—4 as § 2-40 was at the discretion of the editor.

Sec. 2-41. Leases to be accompanied by statement from city collector.

All leases to be entered into, extended or renewed by the committee on city property and the city council shall be accompanied with a statement from the city collector that all rents and/or taxes due are current and up to date on all property leased from the city by said lessor.

Any lease approved in violation of this section shall be considered null and void. (Ord. 1980, ch. 80-29, § 1, 5-23-80)

Cross reference—Leases to be furnished to controller, § 21-39.

Sec. 2-42. City council internal auditor.

The city council by a majority of all its members shall appoint a city internal auditor who shall be a certified public accountant who shall have a minimum of five (5) years' experience in finance, operational auditing or equivalent training or experience. The city internal auditor shall have access to the books and records of all offices, departments and other agencies of the city, and it shall be the duty of all officers and employees thereof to supply such information and documents concerning the affairs of the city as the internal auditor may request.

(a) *Powers and duties of the internal auditor.* The powers and duties of the internal auditor shall be, without limitation, the following:

(1) To perform audits of all offices, departments and other agencies of the city, and additional audits as directed by the committee on finance of the city council or by resolution of the city council or Providence Review Board.

(2) To report the findings of such audits to the city council at least quarterly.

(3) To issue a report to the city council at least annually of all operations of the city.

(4) To submit such reports and financial data, information and statements to the city council as it may from time to time require.

(5) To perform such other duties as may be assigned by ordinance and perform other auditing services of an official nature as may be required by the city council.

(b) *Scope of audits.* Audits shall include, but shall not be limited to determining:

(1) Whether financial operations are properly conducted in accordance with standards for governmental accounting and generally accepted accounting controls.

(2) Whether the audited entity is operating within its budgetary limits.

(3) Whether the audited entity is in compliance with the state constitution, this city's Charter, city ordinances, and all other applicable laws and regulations.

(4) Whether the audited entity is managing and utilizing its resources in an economical and efficient manner.

(5) Whether the management information system, administrative procedures and organizational structure are adequate to ensure the timeliness and reliability of management information.

(6) Whether the property of the city is properly accounted for and safeguarded from losses.

(7) Whether the objectives or benefits of the audited entity are being achieved.

No director of any department or other officer or employee of the city shall take any action or omit to take any action which in any way prevents the internal auditor from obtaining direct access in such manner as the internal auditor deems appropriate to any records or information under the control of said department including, without limitation, that the internal auditor shall not be required to take any action through any department director or with the prior consent of any department director.
(Ord. 1981, ch. 81-11, § 1, 3-18-81; Ord. 1984, ch. 84-32, § 1, 5-24-82)

Cross references—Revenue and finance, generally, Ch. 21; review commission, §§ 21-141—21-149.

Sec. 2-43. Removal by recall.

The following procedure for the declarations of intent and for the removal by recall of elected officials in accordance with Section 208 of the Providence Home Rule Charter of 1980, is hereby adopted.

(a) Forms for the declaration of intent and for the recall of elected officials shall be drafted, printed and provided by the board of canvassers. The recall petition forms shall have printed on said form, "Name, Address and Ward."

(b) Upon validation of the petitions for declaration of intent to recall an elected official, the petitions for recall shall be time-stamped by the board of canvassers upon submission to the persons requesting said petitions.

(c) Signature requirements on declaration of intent and recall petitions shall correspond with the requirements for signatures on nomination papers (Section 17-4-8 of the Election Laws of Rhode Island).

(d) The number shall be calculated using the number of registered voters on the first day of the one hundred twenty (120) day period for collecting signatures on the recall petitions. A person who is a qualified elector at that time and any individual who becomes a qualified elector during the one hundred twenty (120) day period shall be eligible to sign the recall petition.

(e) Forms for recall petition signatures shall not be given out until the declaration of intent has been validated as containing the requisite one thousand (1,000) signatures for recall of the mayor and three hundred (300) as required for a

member of the city council. In this respect, the beginning of the one hundred twenty-day period for collecting recall petition signatures shall not begin until the declaration of intent has been validated.

(Ord. No. 1985, Ch. 85-74, § 2, 7-13-85)

Editor's note—At the discretion of the editor, § 2 of Ch. 85-74, approved July 13, 1985, has been codified as § 2-43. Said ordinance did not amend the Code.

Cross reference—Elections, § 2-296 et seq.

Sec. 2-44. Community development block grant administration.

(a) No strategic plan, consolidated plan, or certification, or other planning document relating to the community development block grant program shall be submitted to United States Department of Housing and Urban Development unless and until approved by the city council.

(b) No community development block grant issued to the city by the United States Department of Housing and Urban Development shall be allocated unless and until the city council ratifies the allocation.

(c) The city council, upon approval, shall submit all program amendments involving new activities or alteration of existing activities that will change the scope, location, or objectives of the approved activities or beneficiaries for projects undertaken with community development block grant funds.

(Ord. 2003, ch. 03-45, 8-1-03)

Sec. 2-45. Reserved.

Editor's note—Ord. No. 2021-17, § 1, adopted June 1, 2021, repealed § 2-45, which pertained to sustainability director and derived from Ord. 2012, ch. 2012-28, § 2, adopted June 8, 2012.

ARTICLE III. CITY CLERK*

Sec. 2-46. Duty to record votes, orders, resolutions and ordinances.

In addition to the duties prescribed by the laws of the state, the city clerk shall record all votes, orders, resolutions and ordinances made and passed by the city council.

(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 60)

***State law reference—**Special act relative to department of city clerk, P.L. 1913, Ch. 978, as amended by P.L. 1923, Ch. 2371.

Sec. 2-47. Duty to furnish names of committeemen and elected officers.

The city clerk shall, from time to time, furnish the chairman of each committee of the city council with the names of the members of such committee, and shall furnish the city messenger with the name of each committeeman and officer elected by the city council.
(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 61)

Sec. 2-48. Duty to furnish heads of departments, committee chairmen copies of pertinent votes or resolutions.

The city clerk shall furnish to all heads of departments of the city government, and to the chairmen of all committees of the city council, certified copies of such votes or resolutions as relate to their respective departments or committees.
(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 63)

Sec. 2-49. Duty to furnish copies of votes of council requiring expenditures.

The city clerk shall furnish the city controller with a certified copy of all votes of the city council requiring expenditure of money, as soon as practicable after such votes have been passed.
(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 62)

Sec. 2-50. Duty to furnish copies of proposals and ordinances relating to finance.

(a) The city clerk shall furnish to the budget director at least twenty-four (24) hours previous to any meeting of the city council, an exact copy of any proposed ordinance, resolution, rule or order of a financial nature which may appear on the docket as furnished by the city clerk to the members of the city council.

(b) The city clerk shall also furnish to the budget director, as soon as possible after final passage, a certified copy of all ordinances, resolutions, rules or orders which in any way relate to the financial situation of the city.
(Ord. 1943, ch. 1174, § 12; Rev. Ords. 1946, ch. 2, § 64)

Cross reference—Special requirements for handling of fiscal-related ordinances, § 21-16.

Sec. 2-51. Duty to prepare manual, superintend printing.

The city clerk shall prepare the city manual, and superintend all printing ordered by the city council.
(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 65)

Sec. 2-52. Duty to act as clerk of committees.

The city clerk shall when no other provision is made, act as the clerk of all councilmanic committees. As said clerk of committees he shall make, or cause to be

made by one of his deputies, proper records in books kept for that purpose of the proceedings and transactions of each committee, and shall perform such other duties and services for said committees as they may from time to time require.
(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 66)

Sec. 2-53. Deputies and assistants.

There shall be two (2) deputy city clerks. The city clerk may employ such additional assistants, to assist him in the performance of his duties as such and as clerk of committees, as may be authorized by city council. Each deputy city clerk shall, within thirty (30) days after his appointment and approval by the city council, give bond to the city for the faithful performance of the duties of his office.
(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 67)

Cross reference—Bonds of employees, § 17-36 et seq.

Sec. 2-54. Duty of deputies as to committees.

The deputy city clerks shall also act as assistant clerks of committees and shall perform such service relative to the work of the clerk of committees as said clerk of committees may direct. In the absence or disability of the clerks of committees from any cause, the assistant clerks shall perform all his duties.
(Ord. 1914, ch. 38, § 12; Rev. Ords. 1946, ch. 2, § 68)

Secs. 2-55—2-64. Reserved.

ARTICLE IV. CITY TREASURER*

Sec. 2-65. Duty to deposit with contracting depositories.

The city treasurer shall deposit to the credit of the city, immediately after the receipt thereof, all sums of money received by him as city treasurer, with such banks or trust companies as the committee on finance may designate for the deposit of the moneys of the city.
(Ord. 1914, ch. 20, § 43; Rev. Ords. 1946, ch. 2, § 69)

State law reference—Designation of banks permitted to act as depositories, § 19-5-11, Gen. Laws 1956.

Sec. 2-66. Accounts to be kept.

The city treasurer shall not be required to keep accounts with appropriations, but shall keep such accounts only as may be necessary to show the complete cash transactions of his office.
(Ord. 1914, ch. 20, § 44; Rev. Ords. 1946, ch. 2, § 70)

***Cross references—**Return by director of public welfare of monthly receipts to treasurer, § 12-33; revenue and finance generally, § 21-1 et seq.; contracts, purchases and sales, § 21-26 et seq.; funds, § 21-63 et seq.; relocation payments, § 21-97 et seq.

Sec. 2-67. Daily record of receipts to be kept.

The city treasurer shall daily record in duplicate the receipts of his office, and shall certify the duplicate to the city controller on the next business day following.
(Ord. 1914, ch. 20, § 44; Rev. Ords. 1946, ch. 2, § 71)

Sec. 2-68. Duty to credit yearly account with receipts.

The city treasurer shall credit in the accounts of each fiscal year all money belonging to the receipts of said year that shall be paid to the city treasurer on or before the close of business on September thirtieth in each fiscal year.
(Ord. 1940, ch. 1026, § 1; Rev. Ords. 1946, ch. 2, § 72)

Sec. 2-69. Semiannual report of receipts, disbursements, balances and status of city debt.

The city treasurer shall, on or before the 31st day of March and the 30th day of September in each year, make a report in print to the city council showing the receipts and disbursements during the preceding six-month period and the balance in the treasury, and a trial balance sheet of his ledger at the end of each such six-month period, and also the issues and payments of the city debt during the preceding six months.
(Ord. 1914, ch. 20, § 46; Rev. Ords. 1946, ch. 2, § 73; Ord. 1950, ch. 393, § 1)

Sec. 2-70. Annual account.

The city treasurer shall make up his account annually on or before the first day of December, for the fiscal year ending on the thirtieth day of September preceding, which account shall be presented to the city council on or before the first Monday in January following.
(Ord. 1914, ch. 20, § 55; Rev. Ords. 1946, ch. 2, § 74)

Sec. 2-71. Issuance of notes.

(a) The city treasurer, under the advice and direction of the committee on finance, is hereby authorized to issue the notes of the city, which shall be signed by him and countersigned by the mayor and chairman of said committee, and such notes shall be recorded and signed by the controller.

(b) Such notes if issued and sold to other than the sinking fund, the employees' retirement system or other trust funds held by the city shall be payable on fixed dates. All notes issued and sold to the sinking fund, the employees' retirement system or other trust funds held by the city shall be demand notes with interest payable on the 15th day of June and December of each year.

(c) The city treasurer with the advice and consent of the committee on finance may apply the prevailing rate of interest to all notes so issued and sold.
(Ord. 1914, ch. 20, § 47; Rev. Ords. 1946, ch. 2, § 75)

State law reference—Issuance of duplicate bonds when bonds are damaged, P.L. 1939, ch. 668, § 2.

Sec. 2-71.1. Regulating urban renewal expenditures.

No urban renewal project shall be undertaken with bond funds or property tax dollars unless the difference between the fair market value of the urban renewal area after the project's completion is sufficiently greater than the fair market value of the area before the project's commencement so as to generate the necessary property tax revenues to justify the project, or unless the project can be justified as serving the area and the city's interest. The amount of any benefit shortfall shall be clearly stated and projected over the period corresponding to related debt payments. The city council finance committee shall review and approve the necessary fiscal impact study of all projects before authorizing funding.
(Ord. 1984, ch. 84-46, § 1, 6-27-84)

Sec. 2-72. Duties as to register of notes, bonds, other obligations.

Whenever any note, bond or other obligation of the city shall be issued, the city treasurer shall present the same to the city controller who shall record in a register all the particulars concerning same; and whenever any city note, bond or other obligation shall be paid or cancelled, the city treasurer shall immediately exhibit the same to the city controller, who shall thereupon record in said register that such payment or cancellation has been made.
(Ord. 1914, ch. 20, § 48; Rev. Ords. 1946, ch. 2, § 76; Ord. 1950, ch. 360, § 1)

Cross references—Exchange of coupon bonds for registered bonds, § 21-7; exchange of registered bonds for coupon bonds, § 21-8.

Sec. 2-73. Redemption of land sold for nonpayment of taxes.

The city treasurer is authorized upon payment to him of the sums provided for in Section 44 of Chapter 9 of the General Laws of the State of Rhode Island, to execute for and in the name and behalf of the city a quitclaim deed which has the prior approval of the city solicitor, conveying to the party of interest entitled to redeem said property all the right title and interest of the city.
(Ord. 1936, ch. 931, § 2; Rev. Ords. 1946, ch. 2, § 81; Ord. 1978, ch. 78-23, § 1, 8-10-78)

Cross reference—Acquisition of titles of tax-reverted properties for resale as dwellings, § 21-39.1.

Sec. 2-74. Assignment of tax title.

The city treasurer is authorized upon payment to him of the sums provided for in Section 44, Chapter 9 of the General Laws of the State of Rhode Island to assign tax title to any person and may execute and deliver on behalf of the town any instrument necessary therefor.
(Ord. 1978, ch. 78-23, § 2, 8-10-78)

Sec. 2-75. Foreclosure of the right of redemption.

One year from the purchase by the city collector of land for the nonpayment of taxes, or as soon thereafter as may be practicable, the city treasurer shall in accord with the provisions of Section 44 of Chapter 9 of the General Laws of the State of Rhode Island foreclose the right of redemption of prior owners.
(Ord. 1978, ch. 78-23, § 2, 8-10-78)

Sec. 2-76. Holding and disposition of land foreclosed by the City of Providence.

After foreclosure by the City of Providence of the rights of redemption under a tax title, as hereinbefore provided, the land shall thereafter be held and disposed of like any land belonging to the City of Providence and held for municipal purposes, and shall not be assessed for taxes.
(Ord. 1978, ch. 78-23, § 2, 8-10-78)

Secs. 2-77—2-83. Reserved.

ARTICLE V. CITY CONTROLLER*

Sec. 2-84. Annual report; required, contents.

The city controller shall, on or before the first Monday in January in each year, present to the city council a printed report of the receipts and expenditures of the preceding fiscal year, giving in detail the amount of appropriations and expenditures for each specific object and the receipts from each source of income; and said report shall also contain a statement of the debts due from the city, the rates of interest thereon, and the times when the same will respectively become due; also a schedule of all real estate of the city, which schedule shall contain all real estate that was in the schedule presented in the year 1878, except so much thereof as the city shall have been divested of, either by authority of the city council or the action of a competent

*__Cross references__—Certification of accounts of director of public welfare to controller, § 12-32; city controller to have custody of bonds of city officers, § 17-42; report of fees, financial reports to be furnished controller, § 21-10; certificates of bills and licenses to be filed with him, § 21-11; leases to be furnished to him, § 21-39; vendors to submit claims to him, § 21-46.

court, and the leases thereof, with the names of the lessees, the rates of rent, and the time when such leases respectively terminate; and the city controller shall omit no property from the schedule of the property of the city without being warranted so to do by the action of the city council or a competent court; also a summary of the inventories hereinafter mentioned, giving the valuation of all the personal property belonging to the city which may be in the custody of any officer or agent of the city, together with the names of the persons having charge of the same; and for this purpose the purchasing agent is hereby required to present to the city controller, on or before the first Monday in November in each year, a detailed inventory of all such property, enumerating the items and the valuation thereof.
(Ord. 1914, ch. 20, § 37; Rev. Ords. 1946, ch. 2, § 85)

Sec. 2-85. Reports of officers receiving fees.

Each and every officer, board or commission, elected or appointed by the city council, or the mayor, or in any other manner, whose compensation or any part thereof is fixed by fees in lieu of salary, and each and every city officer, board or commission who shall receive any fees or make any charges for any certificates, copies of papers or documents, or for any work performed in furnishing or supplying information from the records, papers or documents belonging to the city under his or its custody, which are not required by law to be paid to the city treasurer, shall, on or before the fifth day of each month make a report to the city controller showing the amounts received during the last preceding calendar month from each of the herein mentioned sources, and also the amount of the expenses relative thereto incurred by such officer, board or commission. The city controller shall include in his annual report to the city council a statement of the amounts received and paid as returned to him under the provision of this section.
(Ord. 1914, ch. 20, § 58; Rev. Ords. 1946, ch. 2, § 78)

Cross reference—Report of fees, financial reports to be furnished controller, § 21-10.

Sec. 2-86. Statement of accounts deposited with city collector for collection.

All officers and departments, when so requested by the city controller, shall furnish a statement in detail of all accounts deposited with the city collector for collection.
(Ord. 1914, ch. 20, § 30; Rev. Ords. 1946, ch. 2, § 86)

Cross reference—Cancellation of uncollectible bills, § 21-12.

Sec. 2-87. Destruction of certain documents after six years.

The city controller may, under the advice and direction of the finance committee, destroy vouchers for payments that have been on file in his department six (6) years or more; copies of contracts and agreements on file in his department the terms of

which have been completed six (6) years or more; and such letters and other miscellaneous papers, that have been on file in his department six (6) years or more, as said finance committee shall deem to be of no permanent value.
(Ord. 1946, ch. 1451, § 1; Rev. Ords. 1946, ch. 2, § 88; Ord. 1954, ch. 846, § 1)

Secs. 2-88—2-97. Reserved.

ARTICLE VI. CITY SOLICITOR*

Sec. 2-98. Annual reports; required, contents.

Annually in the month of April of each year, the city solicitor shall make a report in writing to the city council of all civil suits or legal proceedings in which the city has any interest, begun, pending or determined during the year next preceding the time of making such report; and in such report shall state the names of the parties, the nature of such actions, the date when each suit or proceeding was begun and before what court or tribunal, the amount of the judgment rendered, if any, and in whose favor, and the condition of all pending suit or proceedings, with such other information as the city solicitor may deem necessary.
(Ord. 1914, ch. 38, § 17; Rev. Ords. 1946, ch. 2, § 57)

Sec. 2-99. Authority delegated to city solicitor to settle small claims against the city.

(a) The city solicitor shall have the authority and power delegated to him and his office to settle claims against the city for damages and injuries due to, or occasioned by, the negligence of the city or any officer, agent, or employee of the city without the necessity of the approval of the mayor or the chairman of the committee on claims and pending suits in claims not to exceed three thousand dollars ($3,000.00). At any time when the city solicitor shall exercise the authority and power delegated to him under this ordinance he shall report the disposition to the committee on claims and pending suits.

(b) For the settlement of claims, pending suits, arbitrations, mediations, consent decrees, consent judgments and/or any other legal matters of any kind that the city seeks to resolve by agreement, and whose resolution would have a fiscal impact of more than three thousand dollars ($3,000.00), the city solicitor, or other attorney representing the city, shall not have the authority to settle the matter without approval of the committee on claims and pending suits and the mayor. This approval

*__Cross references—__City solicitor to assist inspectors in investigation of fires, § 9-29; employment of collection attorneys authorized, § 21-6; city solicitor to approve form of contracts and purchases, § 21-36; to approve form of agreement for purchase of land, § 21-43.

requirement shall not apply to the matters listed below; but when a settlement of one (1) of the matters listed below occurs, the settlement shall be reported, at least quarterly to the committee on claims and pending suits:

(1) Matters involving collective bargaining agreements that are subject to section 17-27;

(2) Labor disputes, including grievances, arbitrations, and separation agreements, where the settlement amount does not exceed ten thousand dollars ($10,000.00), and where the director of human resources, or, in the case of public safety employees, the commissioner of public safety, consents to the settlement;

(3) Actions brought pursuant to the Rhode Island Workers' Compensation Act; and

(4) Matters concerning appeals for relief from tax assessment where the tax assessor consents to the settlement.

(Ord. 1926, ch. 501, § 1; Rev. Ords. 1946, ch. 2, § 59; Ords. 1974, ch. 74-25, § 1, 9-9-74; Ords. 1994, ch. 94-28, § 1, 9-9-94; Ord. No. 2018-39, § 1, 7-1-18)

Sec. 2-99.1. Deputy solicitor for housing and buildings; division of housing and buildings.

The city solicitor shall appoint in the month of July, 1980, and thereafter as such vacancy shall occur, a deputy city solicitor for housing and buildings whose duty it shall be to prosecute all cases referred to his department by the director of minimum housing, the building inspector or the director of environmental control.

The deputy city solicitor for housing and buildings shall appoint two (2) assistant city solicitors, two (2) paralegals and two (2) secretaries and such other staff as the council shall by ordinance provide, and the deputy city solicitor, one assistant city solicitor, one paralegal and one secretary shall work in the division of code enforcement and receive day-to-day direction and assignments from the chief of code enforcement. The other assistant city solicitor, paralegal and secretary shall work in the department of building inspection and shall receive day-to-day direction and assignments from the building inspector.

In no event shall any of the staff be removed from the assigned location or assigned any duties outside their given department or division; except, when necessary in the opinion of the aforementioned deputy, staff may be moved between the division of code enforcement and the building inspector's office for a limited period of time with the approval of the chief of code enforcement and the building inspector.

All of the positions called for in this section shall be full-time positions.

The finance director in preparing the budget for fiscal year 1980-1981 and each year thereafter shall make provisions for the salaries of each of the above individuals and reasonable expenses necessary for the operation of the division of housing and buildings.
(Ord. No. 1980, ch. 80-34, § 1, 6-10-80)

Cross reference—Housing code enforcement, § 13-35 et seq.

Sec. 2-100. Salaries and expenses.

The salary of the city solicitor as fixed by the city council shall be in full compensation of all official services required of the city solicitor; but whenever the attendance of the city solicitor or either of his assistants is required out of the city, they shall be allowed reasonable traveling expenses.
(Ord. 1914, ch. 38, § 18; Rev. Ords. 1946, ch. 2, § 58)

ARTICLE VI½. DEPARTMENT OF PUBLIC PROPERTY*

Sec. 2-101. Creation of department; jurisdiction.

(a) Pursuant to the provisions of Chapter 104 of the Public Laws of 1963, there is hereby created in the City of Providence, a department of public property.

***Editor's note—**Ch. 68-74, enacted Dec. 19, 1968, did not expressly amend this Code, nor the ordinances from which this Code is derived, hence codification of §§ 1—9 as Art. VI½, §§ 2-101—2-109 respectively, was at the discretion of the editor. The editor changed the word "ordinance" to "article," and deleted § 10, the effective date and repealer, to maintain Code style and format.

Cross reference—Authority of director as to municipal garage, § 15-86 et seq.

(b) The department of public property shall have jurisdiction over all public lands, buildings or other structures owned by and under control of the City of Providence, and shall be responsible for the planning, design, construction, alterations, maintenance and repairs of same. The department of public property shall be responsible, subject to the provisions of the board of contract and supply for all purchasing and procurement of materials, supplies, contractual services, equipment and all other necessary categories of procurement for the City of Providence.
(Ord. 1968, ch. 68-74, § 1, 12-19-68)

Sec. 2-102. Appointment of director.

The director of the department of public property shall be appointed by the mayor, subject to the approval of the city council, and shall hold office at the pleasure of the mayor.
(Ord. 1968, ch. 68-74, § 2, 12-19-78)

Sec. 2-103. Rules and regulations; adoption, scope.

The director is hereby empowered to make and to adopt such written rules and regulations as may be necessary to carry out the provisions of this article, but no such rules and regulations shall be in conflict with the provisions of this article, or shall have the effect of waiving any of the provisions of this article.
(Ord. 1968, ch. 68-74, § 3, 12-19-68)

Sec. 2-104. Personnel of department; appointment, powers, duties, compensation, classification.

The director may appoint such deputies, assistants and employees under his supervision and control as the city council may deem necessary and for whose compensation, appropriations are available in the city budget and/or finance provisions included in any revolving or other resources apart from the general fund. The city council shall prescribe their powers and duties, fees and compensation, and establish their classifications. The director shall have the power to appoint temporary employees and to establish their powers and duties.
(Ord. 1968, ch. 68-74, § 4, 12-19-68)

Sec. 2-105. Powers and duties of director.

The director shall have charge of and be required to direct and supervise all design, construction, alterations, maintenance and repairs of all public lands, buildings and other structures owned by or under the control of the City of Providence. He shall be required to undertake all maintenance and repairs that may be requested by any City of Providence department, agency, commission and any other unit of city government, regardless of their source of revenue, or whether or not they are known to be separate and apart from the general fund; provided however, that the department of public property may be reimbursed for any and all costs for work so ordered by any unit. The

director shall also have charge of and be required to purchase and procure, subject to the provisions of the board of contract and supply, all materials, supplies, contractual services, equipment and all other necessary categories of procurement for the City of Providence.
(Ord. 1968, ch. 68-74, § 5, 12-19-68)

Sec. 2-106. Reports of director.

The director shall annually, in the month of January, submit a report to the mayor and to the city council regarding the activities of the department of public property for the prior fiscal year.
(Ord. 1968, ch. 68-74, § 6, 12-19-68)

Sec. 2-107. Establishment of revolving fund.

(a) As soon as feasible, at the mayor's pleasure, the department of public property in the general fund shall be paid over from the general fund to the trust and special funds, revolving section, and when such payment is received it shall be credited to a revolving fund account to be known as "Department of Public Property," which will henceforth operate as a separate revolving fund being financed by its own revenue.

(b) The transfer shall consist of all assets and encumbrances and will amount to the unencumbered balance at the transfer date plus the outstanding encumbrances at the transfer date. The net value of the transfer (cash minus outstanding encumbrances) shall become the fund balance of the "Department of Public Property." The fund balance shall remain constant and any profits or losses shall be reflected in a "surplus" account of the department of public property.
(Ord. 1968, ch. 68-74, § 7, 12-19-68)

Sec. 2-108. Disposition of accumulated surplus.

At the discretion of the mayor, whenever in this [his] opinion, the accumulated surplus of the department of public property exceeds the necessary requirements of the activity he may order the amount of any such excess or any part thereof to be paid over to the general fund revenue.
(Ord. 1968, ch. 68-74, § 8, 12-19-68)

Sec. 2-109. Effect of conflict with other ordinances.

In any case where the provisions of this article or any regulation adopted pursuant thereto is found to be in conflict with the provisions of any ordinance, resolution, rule or regulation of the City of Providence, the provisions of this article shall apply.
(Ord. 1968, ch. 68-74, § 9, 12-19-68)

Sec. 2-110. Reserved.

ARTICLE VII. DEPARTMENT OF PUBLIC WORKS*

Sec. 2-111. Annual report; required, contents.

The director of public works shall, on or before the first Monday in January of each year, present to the city council a report showing the nature, condition and cost in detail of all work ordered, performed or contracted for by him in the several departments under his direction and control, during the fiscal year ending on the thirtieth day of September preceding said first Monday in January in each year.
(Ord. 1914, ch. 49, § 8; Rev. Ords. 1946, ch. 2, § 89)

Sec. 2-112. Report by director on highway matters.

The director of public works shall take into consideration, and report as soon as practicable, upon all matters of questions relating to highway work in said city referred to him by the mayor, the city council, or the committee on public works of the city council.
(Ord. 1914, ch. 49, § 12; Rev. Ords. 1946, ch. 2, § 90)

Sec. 2-113. Director to superintend work on streets and sidewalks.

The director of public works shall superintend the opening, widening, straightening, laying out, cleaning, repairing and paving of all the streets and highways of the city, the setting of curbstones and the paving of gutters therein, the establishment or alteration of grades of streets, the ordering of new sidewalks, and the alteration and repairing of sidewalks already established.
(Ord. 1914, ch. 49, § 11; Rev. Ords. 1946, ch. 2, § 91)

Sec. 2-114. Director to superintend numbering streets and placing of signs.

The director of public works shall superintend the numbering and renumbering of streets, and the placing of street signs, when required by the city council.
(Ord. 1914, ch. 49, § 11; Rev. Ords. 1946, ch. 2, § 92)

Sec. 2-115. Accounting for property, employing labor.

The director of public works shall keep an accurate detailed account of all property belonging to the city which shall come into his possession; and he may employ such labor and hire such equipment as may be necessary for the use of his department, and may sell or exchange any equipment or materials not required by him.
(Ord. 1914, ch. 49, § 15; Rev. Ords. 1946, ch. 2, § 98)

***Cross references—**Duties of director of public works in relation to garbage collection and disposal, § 12-48 et seq.; duties relative to explosives and blasting, § 9-74 et seq.; duty to supervise railroad work on streets, § 19-17; to give approval to alteration in sewerage or drainage system, § 19-19.

State law reference—Special act as to powers and duties of the former commissioner of public works, P.L. 1880, Ch. 815.

Sec. 2-116. Acquisition of turbine and boiler insurance at incinerator building.

The director of public works is hereby authorized to acquire on behalf of the city turbine and boiler insurance at the incinerator building at Field's Point.
(Ord. 1941, ch. 1082, § 1; Rev. Ords. 1946, ch. 2, § 97)

Sec. 2-117. General powers and duties of director.

The director of public works shall continue to have and exercise all the powers and authority heretofore conferred upon him by the several acts of the General Assembly and the ordinances of the city, including the powers conferred upon the board of public works by section 1 of chapter 4 of the General Ordinances which took effect January 1, 1887.
(Ord. 1914, ch. 49, § 1; Rev. Ords. 1946, ch. 2, § 101)

Sec. 2-118. Authority of director as to obstructions of streets, highways.

(a) The director of public works, subject to the control of the city council, may make such orders as he may deem expedient, directing the owners of land adjacent to any public street or highway to build or alter any wall or fence separating such land from said street or highway, or to remove from the highway any step, stairway, post, cellar door, swinging gate, swinging door or other obstruction thereon, within such time as the said director shall in such order direct.

(b) Any person who shall refuse or neglect to obey such order within five (5) days after said order has been served upon him in writing, shall be deemed guilty of an offense.
(Ord. 1914, ch. 30, § 3; Rev. Ords. 1946, ch. 2, § 99)

Sec. 2-119. Division of relocation—Established, organized.

Within the department of public works there shall be a division of relocation, the head of which shall be an administrator appointed by the director of public works, and who shall hold office at his pleasure. The administrator shall appoint, subject to the approval of the director, such subordinate officers or employees, within the appropriation therefor, as may be required.
(Ch. 2, § 201, added by Ord. No. 1958, ch. 1219, § 1)

Cross reference—Relocation payments, § 21-97 et seq.

Sec. 2-120. Same—Functions and services.

The division of relocation shall have and perform all functions and services in connection with the relocating of families and businesses displaced as a result of any public works project undertaken in the city.
(Ch. 2, § 202, added by Ord. No. 1958, ch. 1219, § 2)

Secs. 2-121—2-123. Reserved.

ARTICLE VII½. DEPARTMENT OF COMMUNICATION*

Sec. 2-124. Created; jurisdiction.

Pursuant to the provisions of Chapter 2723 of the Public Laws of 1951, there is hereby created in the City of Providence, a department of communications within the department of public safety.

The department of communications shall have jurisdiction over all designing, procuring, installation and operation of all municipal radio, telephone, teletype and other associated equipment.
(Ord. 1971, Ch. 71-7, § 1, 3-10-71)

Sec. 2-125. Appointment of director.

The director of the department of communications shall be appointed by the mayor, subject to the approval of the city council, and shall hold office at the pleasure of the mayor.
(Ord. 1971, ch. 71-7, § 2, 3-10-71)

Sec. 2-126. Rules and regulations.

The director is hereby empowered to make and to adopt such written rules and regulations as may be necessary to carry out the provisions of this article, but no such rules and regulations shall be in conflict with the provisions of this article, or shall have the effect of waiving any of the provisions of this article provided, also that said rules and regulations do not conflict with any rule or regulation of the department of public safety.
(Ord. 1971, ch. 71-7, § 3, 3-10-71)

Sec. 2-127. Powers and duties of director.

This employee is responsible for the complete operation of the communications division in all of its phases. He is ultimately responsible for designing, procuring, installation and proper operation of all municipal radio, telephone, teletype, and other associated equipment.

***Editor's note—**Ch. 71-7, §§ 1—3, 5 and 6, did not expressly amend this Code nor the ordinances from which it is derived, hence codification as §§ 2-124—2-130 was at the discretion of the editors. The editors substituted "article" in lieu of "ordinance" to maintain format. Sections 4, 7 and 8, "Reserved" sections and 9 and 10, directory provisions, have been omitted.

He delegates authority to his subordinates as necessary for the smooth operation of the division. He maintains close liaison with other city departments and provides them with technical advice and specifications for procurement of new equipment. He performs related work as may be assigned him by the mayor or the city council.
(Ord. 1971, ch. 71-7, § 5, 3-10-71)

Sec. 2-128. Reports of director.

The director shall annually, in the month of January, submit a report to the mayor and to the city council regarding the activities of the department of communications for the prior fiscal year.
(Ord. 1971, ch. 71-7, § 6, 3-10-71)

Secs. 2-129, 2-130. Reserved.

ARTICLE VIII. CITY ENGINEER

Sec. 2-131. Duties generally.

The city engineer shall perform all such services for the city as properly come under the direction of a civil engineer or surveyor.
(Ord. 1914, ch. 49, § 22; Rev. Ords. 1946, ch. 2, § 102)

Sec. 2-132. Consultation on matters of public improvement.

The city engineer shall be consulted on all matters relating to public improvements of every kind where the advice of an engineer or surveyor would be of service.
(Ord. 1914, ch. 49, § 22; Rev. Ords. 1946, ch. 2, § 103)

Sec. 2-133. Authority as to structures and public works.

The city engineer shall take charge of all such structures and public works of the city as the director of public works may direct; and under his direction he shall prepare all plans and specifications for such structures and public works, and shall prepare or cause to be prepared all contracts for the same.
(Ord. 1914, ch. 49, § 22; Rev. Ords. 1946, ch. 2, § 104)

Cross reference—Public works, § 23-40 et seq.

Sec. 2-134. Duty to measure, certify work done for city.

The city engineer shall measure or cause to be measured all work done by contract for the city, and shall certify to the same.
(Ord. 1914, ch. 49, § 22; Rev. Ords. 1946, ch. 2, § 105)

Sec. 2-135. Duties in relation to streets.

The city engineer shall prepare all such plans, statements and estimates, and furnish all such information, in relation to the grading, laying out, enlarging, straightening or otherwise altering streets, as may be required by the city council, or any committee of the city council, or by the director of public works, and shall, whenever required, furnish the city solicitor with all necessary descriptions of land.
(Ord. 1914, ch. 49, § 23; Rev. Ords. 1946, ch. 2, § 106)

Sec. 2-136. Duties in connection with sewers.

The city engineer shall prepare all plans for the construction of sewers, and perform all such duties in reference to the construction, repair or maintenance of the sewers of the city, as the director of public works or the city council may require.
(Ord. 1914, ch. 49, § 24; Rev. Ords. 1946, ch. 2, § 107)

Cross reference—Water and sewers, § 25-1 et seq.

Sec. 2-137. Duty to furnish plats of streets and highways.

The city engineer shall furnish such plats relative to the streets and highways as may be required in the office of the city clerk.
(Ord. 1914, ch. 49, § 28; Rev. Ords. 1946, ch. 2, § 109)

Sec. 2-138. Duty to keep record of highways.

The city engineer shall keep a record, alphabetically arranged, of all highways in the city.
(Ord. 1914, ch. 49, § 28; Rev. Ords. 1946, ch. 2, § 110)

Sec. 2-139. Custody of plans; classification, indexing same.

The city engineer shall have the custody of all plans relative to all work under his charge, and shall keep the same properly classified and indexed.
(Ord. 1914, ch. 49, § 28; Rev. Ords. 1946, ch. 2, § 108)

Sec. 2-140. Annual report; required, contents.

The city engineer shall annually, in the month of January, present to the city council a report in relation to the city engineer's department, in addition to other reports which he is herein required to make, showing the number of persons employed, the detailed expenses of the department, the general nature of the work, the condition of all structures that have come under his supervision, that are in process of construction or that have been completed during the year, and such other general information in relation to the same as he may deem expedient. He shall, if required, make an examination of the boundary lines of every parcel of land owned by the city, and shall present to the city council, on the second Monday in January

in each year, a written report showing the date of his last examination of each estate, and whether any change has been made in the occupation lines thereof, and how long time has elapsed since such change took place.
(Ord. 1914, ch. 49, § 27; Rev. Ords. 1946, ch. 2, § 111)

ARTICLE VIII½. OFFICE OF SUSTAINABILITY

Sec. 2-141. Established.

There is hereby established an office of sustainability.
(Ord. No. 2021-17, § 2, 6-1-21)

Sec. 2-142. Director.

There shall be a director of sustainability appointed by the mayor with the approval of the council. The director of sustainability shall be a full-time employee and shall not serve in any other capacity or position within the city. The director of sustainability shall have the status of a department head and shall serve at the pleasure of the mayor. The director of sustainability shall be a person holding at least a bachelor's degree from an accredited college or university, and who has had a minimum of five (5) years' experience in the administration or supervision of developing and implementing a sustainability action plan or other relevant experience.
(Ord. No. 2021-17, § 2, 6-1-21)

Sec. 2-143. Purpose and duties.

(a) The office of sustainability will create policies and programs to create and promote a healthy, low-carbon, climate resilient and environmentally just city. The office will adopt and promote the following citywide goals:

(1) A carbon neutral city by 2050, with the following interim targets:

a. Fifty (50) percent carbon free electricity by 2035 and one hundred (100) percent carbon free electricity by 2050, thirty (30) percent of which is local renewable generation;

b. Forty-eight (48) percent of residential heating will be converted to heat pumps by 2035 and ninety (90) percent will be converted by 2050;

c. Forty-five (45) percent of commercial heating will be converted to heat pumps by 2035 and eighty-five (85) percent will be converted by 2050;

d. Eleven (11) percent reduction in vehicle miles traveled (VMT) by 2035 and a twenty (20) percent reduction by 2050;

e. Forty-three (43) percent of VMTs will be by vehicles powered by electricity by 2035 and eighty-five (85) percent will be by 2050.

f. One hundred (100) percent of municipal buildings' electricity will be renewable by 2030;

g. One hundred (100) percent of municipal buildings' heating will be renewable by 2040;

h. One hundred (100) percent of the city's fleet and school buses will use renewable energy by 2040;

(2) Access to housing with affordable, efficient and clean energy, while eliminating fossil fuel use in all buildings;

(3) Healthy air and community spaces free from pollution, with a focus on port-area neighborhoods and other communities exposed to the highest rates of pollution;

(4) A sustainable, zero-waste economy, with a focus on support for local businesses;

(5) Access to clean and efficient public transportation and infrastructure that support walking and bicycling, and otherwise reducing carbon and co-pollutants;

(6) Preparing the city for the impacts of climate change.

(b) The duties of the office of sustainability shall include, but are not limited to, the following:

(1) Monitoring and documenting citywide carbon pollution and co-pollutants;

(2) Monitoring progress for meeting goals and targets set forth in this ordinance and in the Sustainable Providence and Climate Justice Plans by maintaining a public-facing online dashboard that tracks the plans' metrics and targets;

(3) Reviewing the city's capital improvement plan to ensure infrastructure and other investments are aligned with goals and targets set forth in this ordinance and in the Sustainable Providence and Climate Justice Plans;

(4) Monitoring the implementation and enforcement of policies and ordinances aimed at improving sustainability;

(5) Producing a comprehensive update to the sustainability and climate justice plans every five (5) years, based on the most up-to-date science and community input;

(6) Producing a comprehensive greenhouse gas inventory every three (3) years, in accordance with the global protocol for community-scale greenhouse gas emissions;

(7) Partnering and collaborating with environmental justice communities;

(8) Producing annual reports for the mayor and council including, but not limited to, the status of the city's progress in achieving each of the purposes set forth in paragraph (2) above, and all matters monitored and documented by the office of sustainability;

(9) Developing and promulgating regulations to reflect and implement the purposes of the office of sustainability.

(Ord. No. 2021-17, § 2, 6-1-21)

Sec. 2-144. Sustainability commission.

(a) There shall be a sustainability commission consisting of eleven (11) members, three (3) of whom shall be appointed by and serve at the pleasure of the mayor, three (3) of whom shall be appointed by and serve at the pleasure of the council; two (2) of whom shall be appointed by the by the racial and environmental justice committee (REJC) or other local environmental justice organization; two (2) of whom shall be appointed by youth-led organizations; and one (1) of whom shall be appointed by the Environmental Council of Rhode Island.

(1) Members shall serve for no more than six (6) consecutive years.

(2) Members shall have strong community ties and a wide range of expertise related to community needs and priorities, sustainability and climate policies.

(3) Membership of the sustainability commission should reflect diverse constituents and businesses.

(b) The sustainability commission shall meet as often as necessary to fulfill the following responsibilities:

(1) Advise the council, mayor, municipal departments, and other boards and commissions on the city's sustainability and climate agenda;

(2) Review the office of sustainability reports referenced in [subsection 2-143(b)] above prior to their submission to the mayor and the council;

(3) Produce an annual report to the mayor and the council that highlights sustainability accomplishments from the previous year, and community priorities going forward;

(4) Provide a level of accountability and transparency for the sustainability initiatives the city is currently implementing or planning to implement.

(c) City departments, agencies and staff shall cooperate with the commission by providing timely providing all relevant documents and information requested.

(Ord. No. 2021-17, § 2, 6-1-21)

Secs. 2-145—2-150. Reserved.

ARTICLE IX. TRAFFIC ENGINEERING DEPARTMENT*

Sec. 2-151. Established.

There is hereby established a traffic engineering department of the City of Providence.
(Ch. 2, § 188, added by Ord. 1948, ch. 163, § 1)

Sec. 2-152. Traffic engineering advisory committee; composition, meetings, powers.

There shall be a traffic engineering advisory committee consisting of the mayor, the finance director, the city solicitor, the director of public works, the chief of police, the city plan director, the public service engineer and the chairman of the city council committee on public works. Said traffic engineering advisory committee shall meet at the call of the mayor or traffic engineer for the purpose of considering matters proposed by the mayor or the traffic engineer. The committee shall have no administrative or regulatory powers.
(Ch. 2, § 193, added by Ord. No. 1948, ch. 163, § 5)

Sec. 2-153. Traffic engineer; appointment, term, function.

The mayor shall appoint, subject to the approval of the city council, a qualified traffic engineer to serve as the head of the traffic engineering department, to hold office until his successor is appointed and qualified. On the first Monday in January of every odd-numbered year the mayor shall make such appointment for the term of two (2) years. Any vacancy occurring in the office of traffic engineer shall be filled in like manner by appointment by the mayor, subject to the approval of the city council.
(Ch. 2, § 189, added by Ord. 1948, ch. 163, § 1; Ord. 1949, ch. 215, § 1; Ord. 1954, ch. 892, § 1)

***Cross reference—**Motor vehicles and traffic, § 15-1 et seq.

State law reference—Special act concerning authority of city to establish traffic engineering department, P.L. 1948, ch. 2067.

Sec. 2-154. Appointment of deputy and assistants to traffic engineer.

The traffic engineer, subject to the approval of the mayor, may appoint such deputy, assistants and employees as the city council may determine, and he shall be charged with the administration of the traffic engineering department.
(Ch. 2, § 190, added by Ord. 1948, ch. 163, § 2)

Sec. 2-155. Appointments under article to be exempt from classification plan of city.

Appointments made under authority of this article shall be exempt from the provisions of chapter 1209 of the ordinances of 1943 as amended, entitled "An Ordinance Establishing a Classification Plan for the City of Providence", until such time as the city council may by ordinance otherwise provide.
(Ch. 2, § 194, added by Ord. 1948, ch. 163, § 6)

Sec. 2-156. Powers and duties of traffic engineer.

(a) The traffic engineer shall have authority to make all needful rules and regulations for the regulation and control of traffic in the city not inconsistent with the laws of the state; provided however, that all regulations relative to the establishment of one-way streets shall first be approved by resolution of the city council, except that the traffic engineer without prior approval of the city council, but with approval of the mayor, may establish temporary or emergency one-way streets where construction projects or detours are involved.

(b) Without in any manner limiting the generality of the powers conferred under subsection (a), said traffic engineer shall have full authority to perform and carry out the following duties:

(1) Collect and analyze all traffic, physical and economic data needed to measure existing, and to estimate future, street and highway traffic characteristics and needs, including parking needs; and report recommendations thereon.

(2) Prepare and submit to the mayor plans for the proper location, function and operation of city highways, parking terminals and appurtenances thereto.

(3) Establish rules and regulations governing the use of public highways and public off-street parking facilities, which may be parking lots, garages or other structures. Without in any way limiting the generality of the foregoing, such rules and regulations may include the installation of traffic-control devices, designations of throughways and stop streets, of parking zones at the curb and in public off-street parking facilities and the manner and limit of their use, including areas for the installation of parking meters, the establishment of

parking fees and rates, designation of public carrier stands and stops, curb loading zones, crosswalks, safety zones, and streets at which driver shall not make right or left turns, speed of vehicles, time of loading and unloading.

(Ch. 2, § 191, added by Ord. 1958, ch. 163, §§ 2, 3; Ord. 1951, ch. 538, § 1; Ord. 1958, ch. 1233, § 1)

Sec. 2-157. Preservation of existing laws, ordinances, rules and regulations until changed by traffic engineer.

All existing laws, ordinances, rules and regulations governing the regulation and control of traffic, including parking, shall remain in full force and effect until changed by the traffic engineer.

(Ch. 2, § 195, added by Ord. 1948, ch. 163, § 7)

Sec. 2-158. Drawings of proposed traffic facilities to be submitted to traffic engineer.

All design drawings prepared by other departments of the city government for the construction of proposed highways, bridges, parking terminals and other traffic handling facilities, shall be submitted to the traffic engineer for a review and recommendation, but nothing in this section shall be construed to prevent the city council from acting on such matters without such review or recommendation.

(Ch. 2, § 192 added by Ord. 1948, ch. 163, § 4)

Sec. 2-159. Publication of rules and regulations.

Regulations made pursuant to this article shall be promulgated by publication at least once in some newspaper published in the city, and the traffic engineer shall have printed copies thereof available for distribution to the public.

(Ch. 2, § 196, added by Ord. 1948, ch. 163, § 8)

Sec. 2-160. Assignment of traffic engineering personnel to construction projects, parades, races, rallies, street closings, and special events.

The traffic engineer shall have the power and authority to assign traffic engineering personnel to any road construction project, parade, race, rally, street closing, or special event within the City of Providence when it is determined by him that such an assignment is necessary for the public safety.

The personnel so assigned will be paid for such duty by the contractor or party requiring their use in accordance with the schedule of charges in effect by the City of Providence. Fees may be waived for private nonprofit corporations and organizations and/or city sponsored events by the traffic engineer.

(Ord. 1986, ch. 86-23, § 1, 5-9-86)

Sec. 2-160.1. Temporary removal of parking meters from service due to building and road construction projects, dumpsters, street closing, and special events.

Private contractors, utility companies, and others requesting the temporary removal of parking meters from operation in the City of Providence due to building and/or road construction, dumpster placement, street closing, or special events shall pay to the City of Providence one hundred (100) percent of the daily lost parking meter revenue. The traffic engineer shall determine and assess the lost parking meter revenue based upon the prevailing meter rates, the hours of daily operation, and the number of days the meters are out of service.
(Ord. 1986, ch. 86-22, § 1, 5-9-86)

Article IX½. DEPARTMENT OF PLANNING AND URBAN DEVELOPMENT*

Sec. 2-161. Creation of department; jurisdiction.

Pursuant to the provisions of Chapter 104 of the Public Laws of Rhode Island, 1963, and section 1012 of the Providence Home Rule Charter of 1980, there is hereby created and established a department of planning and urban development in the city having jurisdiction over all matters relative to all those changes which singly or collectively lead to improvement in:

(a) The type, distribution, intensity and treatment of land and building use;

(b) The design, construction and operation of circulation facilities; and

(c) The organization and effectiveness of economic activities and social systems.
(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

Sec. 2-162. Appointment of director; delegation of powers, duties to subordinate.

The director of the department of planning and urban development shall be appointed by the mayor, subject to the approval of the city council, and shall hold office at the pleasure of the mayor. The director may delegate any powers or duties under the provisions of this article to any employee of the department.
(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

***Editor's note—**Ord. 2013, ch. 2013-53, § 1, adopted Nov. 7, 2013, amended Art. IX½ in its entirety to read as set out herein. Former Art. IX½, §§ 2-161—2-169.1, pertained to similar subject matter and derived from Ord. 1967, §§ 1—8, approved 2-16-67; Ord. 1981, Ch. 81-49, § 1(a)—(c), approved Sept. 25, 1981; Ord. 1984, Ch. 84-1, § 1, approved Jan. 13, 1984; Ord. 1988, Ch. 88-33, § 1, approved Aug. 10, 1988; Ord. 1991, Ch. 91-21, § 1, approved May 23,1991; Ord. No. 2012, ch. 2012-27, § 2, adopted June 7, 2012.

Sec. 2-163. Rules and regulations; adoption, scope.

The director is hereby empowered to make and to adopt such written rules and regulations as may be necessary to carry out the provisions of this article, to interpret and to secure the intent thereof, but no such rules or regulations shall be in conflict with the provisions of this article or shall have the effect of waiving any provisions of this article.
(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

Sec. 2-164. Personnel of department; appointment, powers, duties, compensation, classification.

The director may appoint such deputies, assistants and employees under his or her supervision and control as the city council may deem necessary and for whose compensation appropriation has been made. The city council shall prescribe their powers and duties, fees and compensation and establish their classification. The director shall have the power to appoint temporary employees, to establish their powers and duties and set their compensation.
(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

Sec. 2-165. Powers and duties of director.

The director shall have charge of and be required to direct and supervise all planning, research, project development, community services, relocation, fiscal affairs and legal services pertaining to urban development, and other duties as prescribed in section 1012 of the Home Rule Charter.
(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

Sec. 2-166. Authority to enter into agreements, covenants and contracts.

The department of planning and urban development is hereby authorized and empowered to enter into agreements, covenants and contracts with the United States of America, the State of Rhode Island and Providence Plantations, the Providence Redevelopment Agency, the city plan commission or any other public or private corporation, firm or individual for purposes of carrying out the provisions of this article and for securing maximum financial assistance.

Notwithstanding the authority of the department to enter into agreements, covenants, and contracts, the department shall obtain council approval prior to converting to a grant any loan issued utilizing federal funds that was not initially intended to be a conversion, and was not referenced as such in the original loan documents.
(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

Sec. 2-167. Reports of director.

The director shall submit to the mayor and the city council the following:

(a) Annual reports regarding the activities of the department of planning and urban development;

(b) Quarterly reports detailing all loans issued utilizing federal funds, including all funds allocated through the department as well as the Providence Economic Development Partnership and the Providence Redevelopment Agency. Such reports should include, at a minimum, the following information: the company name, brief description of company, loan amount, and a checklist of funding objectives such as facade improvement, micro enterprise assistance, economic development infrastructure project, job training and placement activities, etc.; and

(c) Quarterly reports detailing the activities and status of the Providence Housing Trust, as required under section 13-26 of the Code of Ordinances of the City of Providence.

(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

Sec. 2-168. Effect of conflict with other ordinances; transfer of powers and duties; preservation of agencies, offices.

(a) In any case where the provisions of this article or of any regulation adopted pursuant thereto is found to be in conflict with the provisions of any ordinance, resolution, rule, regulation or code of the City of Providence, the provisions of this article shall apply.

(b) All powers and duties heretofore vested in any other department or commission of the City of Providence pertaining to planning and urban development inconsistent with those powers and duties herein granted are hereby divested and hereby vested in the director of the department of planning and urban development.

(c) Nothing herein contained shall be construed to abolish, affect or in any way alter or change any of the powers heretofore granted to the Providence Redevelopment Agency or the city plan commission and the terms of office of the members of the city plan commission shall be in no way affected.

(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

Sec. 2-169. Official capital improvement program 1990—1995.

(a) *Objectives of the capital improvement program:*

(1) To improve financial management of the city's capital resources;

(2) To maintain a high credit rating for Providence, thereby lowering interest costs;

(3) To continue stimulation of private investment;

(4) To insure that capital projects and comprehensive planning are based on Providence's long-range fiscal potential;

(5) To advocate a regular preventive maintenance program that would result in tax savings and lower capital improvement costs;

(6) To guide implementation of Providence's development programs.

(b) *Purpose.* The capital improvement program is the primary management guide for allocation of limited city resources for physical improvements over the next five (5) years. It helps use those resources to achieve overall goals in providing city services and in developing neighborhoods, the downtown, and the city's economy in general. The capital improvement program outlines costs and funding alternatives involved in implementing the city's ongoing comprehensive plan. It thereby insures that the comprehensive plan reflects financial realities.

Other purposes of the capital improvement program are:

(1) *Annual review of priorities.* At both department and citywide levels, yearly review of priorities ensures that funding decisions adjust to changing circumstances.

(2) *Joint project coordination.* Savings, in time or money, or increased project impact can result from coordinating projects of different agencies with respect to location, function and timing.

(3) *Stimulation of private investment.* A readily available schedule of future public improvements encourages private residential, commercial and industrial investments.

(4) *Lower cost credit.* Evidence of prudent, long-range financial planning is important to credit rating services. Better knowledge of needs and resources will improve Providence's flexibility during money market fluctuations.

(5) *Neighborhood participation.* By opening capital improvement funding decisions to continuous public debate, on a citywide basis, the capital improvement program limits the influence of pressure groups that might otherwise obtain commitments for a disproportionate share of city resources. At the same time, neighborhood groups have the opportunity to react to city departments proposals, submit their own projects for review, or identify gaps in service or development plans.

(c) *Definition of capital improvements:*

(1) New construction, reconstruction, substantial alterations and extraordinary repairs;

(2) Acquisition of real property or interest therein;

(3) Designs or preliminary studies or surveys relative to subsections (1) and (2) above;

(4) Acquisition and installation of equipment and furnishings relative to subsections (1) and (2) above.

(Ord. 2013, ch. 2013-53, § 1, 11-7-13)

ARTICLE X. CITY SERGEANT AND CITY MESSENGER*

Sec. 2-170. Offices of city sergeant and city messenger combined.

The city sergeant shall act as city messenger of the city and in addition to all services which he may be called upon to render in behalf of the city in his capacity as city sergeant, shall also perform all the duties now or hereafter prescribed by ordinance as duties of the city messenger.

(Ord. 1923, ch. 365, § 1; Rev. Ords. 1946, ch. 2, § 114)

Sec. 2-171. Salary in lieu of fees.

The salary fixed for the city sergeant shall be in lieu of all his fees as city sergeant and in full compensation for all his services as city messenger.

(Ord. 1923, ch. 365, § 1; Rev. Ords. 1946, ch. 2, § 115)

Sec. 2-172. Designated custodian and keeper of city's flags.

The city sergeant shall be the custodian and keeper of the city's national, the city's official and the city council's flags and colors.

(Ord. 1941, ch. 1058, § 1; Rev. Ords. 1946, ch. 13, § 1)

Sec. 2-173. Duty to keep flags and colors in good order; repairs and replacements.

The city sergeant shall cause all such flags and colors, excepting those in charge of other departments of the city to be kept clean and in good order. He shall cause said flags and colors to be repaired and replaced with new ones when in his opinion the occasion demands it and at all times he shall have an extra flag or color of those authorized by this chapter. The cost of said repairs and replacements shall be provided for in the annual appropriation ordinance under the heading "Flags and Colors" in the appropriation for the city sergeant's department.

(Ord. 1941, ch. 1058, § 2; Rev. Ords. 1946, ch. 13, § 2)

***State law references—**State law governing city sergeant, Gen. Laws, Ch. 336, §§ 1—9; bribery of city sergeant, Gen. Laws, Ch. 605, § 21; special act authorizing appointment of deputy city sergeants, P.L. 1917, Ch. 1559.

Sec. 2-174. Duty to fly national flag.

The said city sergeant shall cause the national flag to be flown from the large flagstaff on the roof of the city hall every pleasant day in the year, except Sundays, not longer than sunrise to sunset.
(Ord. 1941, ch. 1058, § 4; Rev. Ords. 1946, ch. 13, § 4)

Sec. 2-175. Service of writs, summonses and other legal processes as city sergeant.

The city sergeant shall serve all writs, summonses and other legal processes issued for or in behalf of the city that lawfully may be served by him, except that the city solicitor may, in his discretion, cause any such processes to be served by any duly qualified police constable.
(Ord. 1923, ch. 365, § 1; Rev. Ords. 1946, ch. 2, § 116)

Sec. 2-176. Duty to attend meetings of council.

The city messenger shall attend all meetings of the city council, and all meetings of any committee of the city council whenever requested so to attend by the chairman thereof.
(Ord. 1922, ch. 329, § 1; Rev. Ords. 1946, ch. 2, § 120)

Sec. 2-177. Duty to attend daily at office.

The city messenger shall be daily in attendance at his office during ordinary business hours when not elsewhere officially employed.
(Ord. 1922, ch. 329, § 1; Rev. Ords. 1946, ch. 2, § 121)

Sec. 2-178. Service of messages, summonses and notices as city messenger.

The city messenger shall deliver and execute all messages, summonses and notices from the mayor, the city council, the city clerk, the clerk of committees, the city solicitor, the city treasurer, or the city controller.
(Ord. 1922, ch. 329, § 1; Rev. Ords. 1946, ch. 2, § 119)

Sec. 2-179. Custody and distribution of documents, pamphlets, books.

The city messenger shall have the care, custody and distribution of all documents, pamphlets and books printed for the city council.
(Ord. 1922, ch. 329, § 1; Rev. Ords. 1946, ch. 2, § 117)

Sec. 2-180. Custody of city hall and city property.

The city messenger shall have the general custody of the city hall building and the city property therein, including elevators and steam apparatus.
(Ord. 1922, ch. 329, § 1; Rev. Ords. 1946, ch. 2, § 118)

Sec. 2-181. Duties as to care, superintendence of city hall and offices.

The city messenger shall have the care and superintendence of the city hall, and of the offices in the same, and he shall see that they are at all times kept clean; provided however, that he shall not make any assignment, reassignment, distribution or redistribution of offices or office space in the city hall to any officer or department therein except with the approval of the city council. For this purpose he is empowered to employ such janitors, watchmen, engineers, mechanics, and other assistants as he may find necessary, and to discharge them at his pleasure, subject, however, to the ordinances governing the qualifications, classification and compensation of employees of the city, as the same may be amended from time to time. He shall see that the city hall and the offices therein are kept supplied with all things needed for ordinary use, except stationery. He shall be empowered to call upon the bureau of police and fire for such detail of police as may be required for the protection of the city hall and the property therein and for the maintenance of order in and about the same.
(Ord. 1922, ch. 329, § 1; Rev. Ords. 1946, ch. 2, § 122)

Sec. 2-182. Duty to keep city hall open during specified hours.

(a) The city messenger shall see that the outer doors of the city hall are opened every day, except Sundays and legal holidays, at 9:00 a.m. and are with the exception of the Fulton Street door closed every day except Saturday at 5:00 p.m. and every Saturday at 12:00 noon, provided that from the first Monday in July to the first Monday in September, inclusive, of each year, said doors shall be closed at 4:00 p.m. instead of 5:00 p.m. He shall keep open such other outer doors of the building, and during such time, as the mayor may in writing request and specify.

(b) He shall see that one or more police officers are on duty to prevent the ingress of improper persons so long as any of the outer doors of the building remain open.
(Ord. 1922, ch. 329, § 1; Ord. 1931, ch. 804, § 1; Rev. Ords. 1946, ch. 2, § 123; Ord. 1947, ch. 1622, § 1)

Sec. 2-183. Monthly reports of expenditures, obligations.

The city messenger shall make a monthly report in writing to the city council containing a detailed statement of the expenditures and obligations incurred in the care and superintendence of the city hall and adjacent sidewalks.
(Ord. 1922, ch. 329, § 1; Rev. Ords. 1946, ch. 2, § 124)

Secs. 2-184—2-193. Reserved.

ARTICLE XI. SUPERINTENDENT OF PUBLIC BUILDINGS

Sec. 2-194. General duties and records.

The superintendent of public buildings shall have the powers and duties prescribed by statute and by the ordinances of the city. He shall give his entire time to the duties

of his office. He shall keep full and complete records of all buildings, structures, monuments, flagpoles, fences, grounds and lands, and the fixtures and appurtenances thereof, to which his duties pertain, and of the work done thereon or pertaining thereto, and of all expenses and receipts of his department.
(Ord. 1921, ch. 314, § 1; Rev. Ords. 1946, ch. 2, § 112)

Sec. 2-195. Maintenance, custody, inspection of indexes, books and records.

The superintendent of public buildings shall maintain a suitable index system showing relative to each estate and building within his charge, the work done thereon or relative thereto and the cost thereof so far as practicable. All books, records and papers of his department shall be kept in his office, and at all reasonable times shall be open to the inspection of the mayor, city controller and any member of the city council.
(Ord. 1914, ch. 38, § 30; Rev. Ords. 1946, ch. 2, § 113)

Secs. 2-196—2-205. Reserved.

ARTICLE XII. SUPERINTENDENT OF WEIGHTS AND MEASURES*

Sec. 2-206. Salary, fees of superintendent.

The superintendent of weights and measures shall receive, for the use of the city, for all services rendered by him, the fees and expenses provided by law. The salary of the superintendent of weights and measures fixed in lieu of fees shall be in full compensation for his duties.
(Ord. 1914, ch. 38, § 34; Rev. Ords. 1946, ch. 2, § 132)

Sec. 2-207. Approval of accounts.

All accounts of the superintendent of weights and measures shall be approved monthly by the commissioner of public safety.
(Ord. 1914, ch. 38, § 35; Rev. Ords. 1946, ch. 2, § 136)

Sec. 2-208. Deputies; appointment, duties.

The superintendent of weights and measures, biennially in January of each odd-numbered year shall appoint, subject to the approval of the commissioner of public safety, a deputy sealer of weights and measures, a second deputy sealer of weights and measures, a deputy city weigher and a second deputy city weigher, who shall assist the superintendent of weights and measures in the duties of his offices as

*__Cross references—__Seal of department of weights and measures, § 2-348; weights and measures, § 26-1 et seq.

__State law reference—__Treatment of weights and measures under state law, chs. 47-1—47-14, Gen. Laws 1956.

sealer of weights and measures and city weigher, respectively. In the absence or disability of the superintendent of weights and measures, the deputy sealer of weights and measures shall have all his powers and duties.
(Ord. 1927, ch. 558, § 1; Rev. Ords. 1946, ch. 2, § 125)

Secs. 2-209—2-218. Reserved.

ARTICLE XIII. SUPERINTENDENT OF VEHICLES*

Sec. 2-219. Appointment.

The commissioner of public safety from time to time shall select one of the police constables of the city to act under his direction as superintendent of vehicles.
(Ord. 1927, ch. 583, § 1; Rev. Ords. 1946, ch. 2, § 139)

Sec. 2-220. General duties.

The superintendent of vehicles shall have the general superintendence of all vehicles of every description required to be licensed, whether said vehicles are used for the conveyance of passengers or the transportation of merchandise in the city, and he shall have the powers and duties prescribed for him by ordinance and such other duties as may be prescribed from time to time by the bureau of police and fire.
(Rules of Bd. of Ald., ch. 3, r. 7; Ord. 1927, ch. 583, § 1; Rev. Ords. 1946, ch. 2, § 140)

Sec. 2-221. Duty to devote entire time to business; office hours.

The superintendent of vehicles shall devote his whole time to the business of his department, and shall be at his office, daily from 9:00 a.m. to 10:00 a.m., and from 2:00 p.m. to 3:00 p.m., for the transaction of business connected with licensed vehicles.
(Rules of Bd. of Ald., ch. 3, r. 8; Rev. Ords. 1946, ch. 2, § 141)

Sec. 2-222. Duty to make quarterly reports.

The superintendent of vehicles shall make reports to the commissioner of public safety on the first Mondays in March, June, September and December in each year, of the business of his department.
(Rules of Bd. of Ald., ch. 3, r. 14; Rev. Ords. 1946, ch. 2, § 147)

Sec. 2-223. Duty to investigate, report applications for licenses.

The superintendent of vehicles shall investigate all applications for licenses relating to vehicles, and report thereon to the mayor.
(Rules of Bd. of Ald., ch. 3, r. 9; Rev. Ords. 1946, ch. 2, § 142)

***Cross reference—**Municipal garage, § 15-86 et seq.

Sec. 2-224. Duty to issue licenses; collections and records.

The superintendent of vehicles shall issue all licenses when granted, collect the fee therefor and pay the same to the city collector, and shall keep a full and complete record of the name and place of residence of the owner of such vehicle, with the number and description thereof.
(Rules of Bd. of Ald., ch. 3, r. 10; Rev. Ords. 1946, ch. 2, § 143)

Sec. 2-225. Duty to enforce ordinances and conditions of licenses.

The superintendent of vehicles shall see that the provisions of the licensing ordinances relative to vehicles and the conditions of the licenses granted in accordance therewith are enforced and observed.
(Rules of Bd. of Ald., ch. 3, r. 11; Rev. Ords. 1946, ch. 2, § 144)

Sec. 2-226. Investigation, reports of complaints.

The superintendent of vehicles shall promptly investigate all complaints that may be made to him of violations of the ordinances or conditions, or of any irregularities in his department that may come to his knowledge, keeping a record of all such complaints and irregularities, together with his doings thereon. He shall also make a report thereof to the mayor at such times as he may require.
(Rules of Bd. of Ald., ch. 3, r. 12; Rev. Ords. 1946, ch. 2, § 145)

Sec. 2-227. Additional duties.

The superintendent of vehicles shall perform such duties in addition to those prescribed in this article as the mayor, chief or deputy chief of police from time to time may order.
(Rules of Bd. of Ald., ch. 3, r. 13; Rev. Ords. 1946, ch. 2, § 146)

Secs. 2-228—2-232. Reserved.

ARTICLE XIV. PUBLIC SERVICE ENGINEER*

Sec. 2-233. Scope of authority of public service engineer.

The public service engineer shall have general supervision of all electrical and gas machinery, apparatus, appliances, fixtures and installation now or hereafter made in,

---

***Cross references—**Powers and duties as to engineers and boiler operators, § 14-85 et seq.; supervision of railroads, cars thereof, etc., by public service engineer, § 19-4 et seq.; authority, duties as to poles, wires and similar installations, § 23-98 et seq.; authority over city lights, § 23-136; duty to keep maps showing locations of public electrical installations, § 23-142; duty to keep records, § 23-143.

State law reference—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

on, over, across or under the public estates and buildings of the city and of the location, installation, construction and maintenance of all poles, wires, cables, conduits, subways, manholes, pipes, and other electrical and gas fixtures, apparatus, appliances and appurtenances, now or hereafter installed pertaining to the fire alarm and police signal systems of the city or now or hereafter installed in, on, over, across or under the streets and other public places in the city by any public service company or by any corporation or any other person for the purpose of conducting or furnishing electricity or gas for light, heat or power or for railroad motive power or for telephonic, telegraphic or signal purposes or for any other purpose, public or private.
(Ord. 1929, ch. 700, § 3; Rev. Ords. 1946, ch. 26, § 3)

Sec. 2-234. Faithful discharge of duties required; salary.

The public service engineer shall be engaged to the faithful discharge of the duties of his office, shall devote his entire time to the duties of the office and shall receive such salary as may be fixed by the city council.
(Ord. 1929, ch. 700, § 3; Rev. Ords. 1946, ch. 26, § 1)

Sec. 2-235. Appointment of deputy public service engineer.

On the first Monday in March, biennially in each odd-numbered year, the public service engineer may appoint, subject to the approval of the director of public works, a deputy public service engineer who shall hold office until his successor is appointed and qualified to act.
(Ord. 1929, ch. 700, § 2; Rev. Ords. 1946, ch. 26, § 2)

Secs. 2-236—2-239. Reserved.

ARTICLE XV. CITY PLAN COMMISSION*

Sec. 2-240. Created, composition, appointment and term of members.

(a) There shall be a city plan commission for the city consisting of the mayor, ex officio, five (5) persons to be appointed by the mayor from citizens of the city who hold no salaried official positions in or under the city government, and who are interested in and have special qualifications for the work pertaining to city planning, and two (2) members of the city council who shall be elected by said city council, to serve on said

*__Cross reference—__Zoning ordinance, amendments saved from repeal, § 27-1 et seq.

__State law references—__Authority of city to create plan commission, §§ 45-22-1, 45-22-2, Gen. Laws 1956; state law as to state planning board, including its duty to cooperate with city planning commissions, and duty of such commissions to report to state board, §§ 42-26-10—42-26-14, Gen. Laws 1956.

commission during their respective terms of office. In January of each year the mayor shall appoint some qualified person to succeed the member whose term then expires and said appointee shall thereafter hold office for the term of five (5) years.

(b) All members appointed by the mayor shall serve until their respective successors shall have been appointed and shall have qualified and the appointments shall be approved by the city council.
(Ord. 1944, ch. 1269, § 1; Rev. Ords. 1946, ch. 8, § 1; Ord. 1957, ch. 1155, § 1)

Sec. 2-241. Filling vacancies.

Any vacancy occurring among the members of the city plan commission shall be filled for the unexpired term in the same manner as the original appointment or election.
(Ord. 1944, ch. 1269, § 1; Rev. Ords. 1946, ch. 8, § 2; Ord. 1957, ch. 1155, § 1)

Sec. 2-242. Organization.

As soon as practicable after each annual appointment the city plan commission shall organize by electing from its own members a chairman, a vice-chairman and a secretary.
(Ord. 1944, ch. 1269, § 1; Rev. Ords. 1946, ch. 8, § 3; Ord. 1957, ch. 1155, § 1)

Sec. 2-243. Members to serve without compensation.

No member of the city plan commission shall receive any compensation as such member or for any services rendered by the commission.
(Ord. 1944, ch. 1269, § 1; Rev. Ords. 1946, ch. 8, § 4; Ord. 1957, ch. 1155, § 1)

Sec. 2-244. Regular and special meetings.

Regular meetings of the city plan commission shall be held at least monthly, on such day as the commission may determine, and special meetings may be held at any time at the call of the chairman and shall be called by the chairman upon the written request of three (3) members.
(Ord. 1944, ch. 1269, § 3; Rev. Ords. 1946, ch. 8, § 14; Ord. 1957, ch. 1155, § 1)

Sec. 2-245. Adoption of rules for transaction of business.

The city plan commission shall adopt rules for the transaction of business.
(Ord. 1944, ch. 1269, § 3; Rev. Ords. 1946, ch. 8, § 15; Ord. 1957, ch. 1155, § 1)

Sec. 2-246. Appointment, term of city plan director, assistants, employees; experience of director.

The city plan commission shall appoint a city plan director for such term as it may deem desirable, and shall appoint such other assistants and employees as it may deem necessary. The city plan director shall have had before his appointment not less than five (5) years' experience in city planning.
(Ord. 1944, ch. 1269, § 3; Rev. Ords. 1946, ch. 8, § 11; Ord. 1957, ch. 1155, § 1)

Sec. 2-247. Manner of appointment of employees.

Employees appointed by the city plan commission shall be appointed in accordance with the provisions of the charter and chapter 17 of this Code as heretofore or hereafter amended.
(Ord. 1944, ch. 1269, § 3; Rev. Ords. 1946, ch. 8, § 12; Ord. 1957, ch. 1155, § 1)

Sec. 2-248. Employing outside consultants and incurring necessary expense therefor.

The city plan commission may employ outside consultants and incur any expense necessary therefor, but it shall not for any purpose contract for the payment of any sum of money or incur any expense greater than the amount then appropriated or available therefor.
(Ord. 1944, ch. 1269, § 3; Rev. Ords. 1946, ch. 8, § 13; Ord. 1957, ch. 1155, § 1)

Sec. 2-249. General powers and duties.

The city plan commission shall make careful studies of the construction, resources, possibilities and needs of the city with reference to its future and progressive development and particularly shall investigate and consider as to any present or pending civic problems involving the physical construction, arrangement or equipment of the city; the causes and prevention of congestion of population, habitation or travel in the city; the causes and prevention of slum districts and the improvement of any districts in the city which are run-down or decreasing in value; the public health or sanitary condition of the city and any public means or facilities for promoting the public health, comfort or welfare.
(Ord. 1944, ch. 1269, § 2; Rev. Ords. 1946, ch. 8, § 5; Ord. 1957, ch. 1155, § 1)

Sec. 2-250. Adoption of general plan for city; hearing on adoption, amendment of plan.

The city plan commission shall make and adopt a general plan for the development and improvement of the city, and as a means toward that end it may also record its opinion as to the development of any area outside the city which in the judgment of the commission bears relation to the planning of the city. Before the adoption of any general plan or portions thereof or amendments thereto the commission may hold a

public hearing thereon, and shall hold such public hearing upon the filing in the office of the city clerk of a petition for such public hearing signed by at least fifteen (15) citizens of the city. Notice of the pending adoption of any such plan or amendment on which the plan commission does not plan to hold a hearing on its own motion shall be published at least twice in a newspaper of general circulation in the city, the last such publication to take place at least ten (10) days before the date set for the adoption of such plan. Any petition for public hearing shall be filed in the office of the city clerk at least three (3) days before the date set for the adoption of such plan. When a public hearing is requested by petition, the commission shall not adopt such plan or amendment until after such public hearing thereon.
(Ord. 1944, ch. 1269, § 2; Rev. Ords. 1946, ch. 8, § 6; Ord. 1957, ch. 1155, § 1)

Sec. 2-251. Adoption of plans for specific improvements and projects.

The city plan commission shall make plans and proposals for specific improvements and projects which it deems desirable for the city and its surrounding area, and recommend them to the appropriate authority. Such plans and proposals shall not become a part of the general plan until adopted as such.
(Ord. 1944, ch. 1269, § 2; Rev. Ords. 1946, ch. 8, § 7; Ord. 1957, ch. 1155, § 1)

Sec. 2-252. Assistance from and cooperation with other departments.

The city plan commission shall have authority to call upon other departments of the city for assistance in city planning and shall cooperate with such other departments and with any commission or committee having charge of the investigation of any special matter referred to it by the city council.
(Ord. 1944, ch. 1269, § 2; Rev. Ords. 1946, ch. 8, § 8; Ord. 1957, ch. 1155, § 1)

Sec. 2-253. Cooperation with finance director as to capital improvement budget and program.

The city plan commission shall collaborate with the finance director in the preparation and recommendation to the mayor and the city council, on or before June 1st of each year, of a capital improvement budget for the following year and a comprehensive five (5) year capital improvement program.
(Ord. 1944, ch. 1269, § 2; Rev. Ords. 1946, ch. 8, § 9; Ord. 1957, ch. 1155, § 1)

Cross references—Contracts, purchases and sales, § 21-26 et seq.; public works, § 23-40 et seq.

Sec. 2-254. Making investigations, maps and studies; distribution of copies of plans and studies.

The city plan commission shall have authority to make such investigations, maps and studies relating to the planning of the community as it may deem desirable. All plans and reports of the commission shall be first submitted to the city council. The

commission shall thereafter have authority to publish and distribute copies of plans and reports for the purpose of promoting public interest in and understanding of its plans and reports.
(Ord. 1944, ch. 1269, § 2; Rev. Ords. 1946, ch. 8, § 10; Ord. 1957, ch. 1155, § 1)

Sec. 2-255. Ordinances, resolutions affecting planning to be submitted to plan commission.

All proposed ordinances or resolutions of the city council which affect the city plan or concern the plan, design, character, extent, location or use of any public improvement or public property or change thereof, or concern zoning or other regulations affecting or controlling the use or development of land or otherwise coming within the functions of the city plan commission as set forth in this article, and all maps, plans or charts required to be submitted to the city council under the provisions of Chapter 987 of the Public Laws of 1913, before final passage thereof shall be submitted to the city plan commission for report and recommendation. If said commission shall fail to act within twenty-five (25) days, it shall be deemed to have approved such matter. The mayor, members or committees of the city council or department heads of the city may submit a proposed ordinance or resolution to the city plan commission prior to the introduction thereof in the council, and if such proposed ordinance or resolution shall be acted on by the commission prior to such introduction, it need not thereafter be referred back to the commission. Nothing herein contained shall be construed in any way to limit, restrict or prevent the city council from taking action on any ordinance or resolution contrary or adverse to the report or recommendation of the city plan commission.
(Ord. 1944, ch. 1269, § 4; Rev. Ords. 1946, ch. 8, § 16; Ord. 1957, ch. 1155, § 1)

Sec. 2-256. Authority to adopt, modify and amend regulations and rules governing land development.

Pursuant to § 45-23-51 of the General Laws of the State of Rhode Island (Reenactment of 1991, as amended), the city plan commission is authorized to adopt, modify and amend regulations and rules governing land development and subdivision projects within the city and to control land development and subdivision projects pursuant to those regulations and rules.
(Ord. 1995, ch. 97-27, § 1, 12-19-95)

ARTICLE XV½. COMMUNITY MENTAL HEALTH BOARD*

Sec. 2-257. Creation, membership.

Pursuant to the provisions of Section 1, Chapter 231, Public Laws of 1962, there is hereby created a community mental health board for the City of Providence. Said board shall consist of the director of social welfare of the City of Providence and eight (8) other members appointed by his honor, the mayor, representing such community interests as local medical societies, lay associations concerned with mental health, hospital boards, labor, business and civic groups, and the general public.
(Ord. 1967, ch. 1882, 11-16-67)

Sec. 2-258. Appointment, terms of members; filling vacancies.

Upon enactment of this article, his honor, the mayor, shall appoint three (3) members to serve until the first day of December, 1969, three (3) members to serve until the first day of December, 1970, and three (3) members to serve until the first day of December, 1971, and until their respective successors shall be appointed and qualified. During the month of November, 1969, and during the month of November of each year thereafter, his honor, the mayor, shall appoint members to succeed the members appointed by him whose terms will next expire, each such appointment to be for a term of four (4) years and until their successors shall be appointed and qualified. Vacancies shall be filled for the unexpired term in the same manner as original appointments.
(Ord. 1967, ch. 1882, 11-16-67)

Sec. 2-259. Removal of member.

Any member of the board may be removed by the mayor for neglect of duty, misconduct or malfeasance in office, after being given a written statement of charges and an opportunity to be heard thereon.
(Ord. 1967, ch. 1882, 11-16-67)

Sec. 2-260. Compensation, expenses of members.

Members of the board shall serve without compensation, but they shall be allowed their reasonable expenses.
(Ord. 1967, ch. 1882, 11-16-67)

***Editor's note—**Ch. 1882, enacted Nov. 16, 1967, did not expressly amend this Code, nor the ordinances from which this Code is derived, hence codification as Art. XV½, §§ 2-257—2-263, was at the discretion of the editor. The editor changed the word "ordinance" to "article" to maintain Code style and format.

Sec. 2-261. Designation of chairman.

The mayor shall designate one of the members of the board as chairman.
(Ord. 1967, ch. 1882, 11-16-67)

Sec. 2-262. Duties.

Subject to the provisions of Chapter 231, Public Laws of 1962, and the rules and regulations of the state director of social welfare, the community mental health board of the City of Providence shall:

(a) Review and evaluate community mental health in Providence, and report thereon to the director of social welfare, the administrator of the program, and, when indicated, the public, together with recommendations for additional services and facilities when properly documented and justified as to need and availability of funds.

(b) Recruit and promote local financial support for the program from private sources such as community chests, business, industrial and private foundations, voluntary agencies and other lawful sources, and promote public support for municipal appropriations.

(c) Promote, arrange and implement working agreements with other social service agencies, both public and private, and with other educational and judicial agencies.

(d) Advise the director of social welfare or his designate of the community mental health program on the adoption and implementation of policies to stimulate effective community relations.

(e) Review the annual plan and budget and make recommendations thereon.
(Ord. 1967, ch. 1882, 11-16-67)

Sec. 2-263. Reserved.

ARTICLE XVI. LOBBYIST REGISTRATION*

Sec. 2-264. Purpose.

The purpose of this article is to create registration and disclosure requirements for individuals acting as municipal lobbyists. The registration will require lobbyists to

*__Editor's note—__Ord. 84, chapter 2013-3, § 1(1)—(9), approved Feb. 28, 2013, amended Art. XVI in its entirety to read as set out herein. Former Art. XVI, §§ 2-264—2-273, pertained to similar subject matter and derived from Ord. 2011, ch. 2011-11, §§ 1(1)—(10), adopted March 21, 2011; Ord. 2011, ch. 2011-16, §§ 1(1)—(10), adopted June 10, 2011.

provide pertinent information for the benefit of the general public, the mayor and the city council. This article is not intended to discourage or prohibit the exercise of constitutional rights.
(Ord. 84, ch. 2013-3, § 1(1), 2-28-13)

Sec. 2-265. Definitions.

Whenever used in this article, the following words and phrases shall have the definitions provided in this section:

Compensation means any remuneration received or to be received for services rendered as a lobbyist, whether in the form of a fee, salary, forbearance, forgiveness, reimbursement for expenses, or any other form of recompense, and any combination of these. Where lobbying is incidental to a person's regular employment, his or her compensation for lobbying shall be reported as such and the lobbyist shall record the dollar amount of that portion of his or her compensation that is attributed to the time spent pursuing lobbying activities. In those instances, it shall not be necessary to disclose one's total salary or the percentage of one's time spent on lobbying. The lobbyist shall be required to disclose only his or her best good faith estimate of the dollar amount which corresponds to the portion of his or her time spent on lobbying activities.

City official shall include members of the city council and their appointed advisory staff members; the mayor and his or her appointed advisory staff members; the internal auditor; the members and secretary of the board of canvassers; the director and the members of the water supply board; the superintendent of parks and the members of the board of park commissioners; all department heads; the license administrator and the members of the board of licenses; the chief of police; the fire chief; the commissioner of public safety; the city clerk; the city solicitor; superintendent of schools and his or her appointed advisory staff members; all members of the city's judiciary and all city magistrates and executive or administrative heads of any city judicial office, whether appointed or serving as an employee; and members of all municipal boards, including the school board, and commissions whether or not compensated.

Influencing a municipal decision means acting directly or soliciting others to act for the purpose of promoting, opposing, amending, or influencing in any manner a municipal decision.

Lobbying means seeking to influence a municipal decision as an appointed and compensated representative of another. Any function to which the entire membership of the city council or of any legally constituted council committee or commission within the city council is invited, which is sponsored by any person, corporation, or association having engaged any person to act as a lobbyist or by any lobbyist, shall be deemed a lobbying activity, and any funds expended or incurred for that function shall be set forth pursuant to section 2-269.

Lobbyist means any person who seeks to influence a municipal decision as an appointed and compensated representative of another.

Ministerial determination means an act or duty as prescribed by law as part of the duties of an administrative office which does not require personal discretion.

Municipal decision means:

(1) The drafting, introduction, consideration, adoption, defeat, or repeal of any ordinance or resolution.

(2) The amendment of any ordinance or resolution.

(3) A report by a city official to the city council or city council committee.

(4) Non-ministerial determinations of city officials, including, but not limited to, any determination with respect to: zoning or the use, development, or improvement of real property; and the granting, denial or modification of a license or permit with regard to the use of real property.

Quasi-public corporation means a body corporate and politic acting as a public corporation, which has been organized pursuant to law and granted certain powers, rights and privileges by the local and/or state laws, while exhibiting a distinct legal existence from the city and/or state, and not constituting a department of city and/or state government, in order to perform a governmental function. For the purposes of this article, agents and employees of public corporations and quasi-public corporations shall be considered municipal employees. Quasi-public corporations shall include, without limitation, Capital Center Commission, Narragansett Bay Commission, Providence Community Action Program, Providence Economic Development Partnership, Providence External Review Authority, Providence Housing Authority, Providence Plan, ProvPort, Providence Redevelopment Agency, Rhode Island Convention Center Authority, the Providence Center, and the Greater Providence-Warwick Convention and Visitor's Bureau.

Violation means any individual act or item of non-compliance with the provisions of this article.
(Ord. 84, ch. 2013-3, § 1(2), 2-28-13)

Sec. 2-266. Exceptions.

The following persons or actions shall be exempt from the provisions of this article:

(1) Any elected public official or the official's designee acting in his or her official capacity, or any municipal employee acting within the scope of his or her employment.

(2) Any ministerial action by a city official.

(3) News media employees or agents who in the ordinary course of business write, publish, or broadcast news items, editorials, or other comments or paid

advertisements which directly or indirectly urge legislative action, if those persons engage in no other lobbying activities in connection with that action.

(4) Any persons engaged in drafting legislation, resolutions, rules, or other proposed documents for consideration by the city council or the mayor, provided that such persons are not appointed representatives compensated for their work, and do not attempt to influence a municipal decision associated with such legislation, resolution, rule or other document.

(5) Any person appearing solely for himself or herself before any city board, committee, commission, court, or any other legally constituted municipal body to testify in support of or in opposition to legislation or municipal decision.

(6) Any volunteer, employee, officer or director of a not-for-profit entity, lobbying on behalf of said not-for-profit entity, unless said lobbying constitutes more than incidental lobbying:

a. Engaging in lobbying for more than twenty-five (25) hours during a reporting year; or

b. Receiving more than two thousand five hundred dollars ($2,500.00) during a reporting year for lobbying.

(7) Any attorney representing clients before any city board, committee, commission, court, or any other legally constituted municipal body.

(8) Any person requesting assistance in interpreting laws, regulations, city approvals or policies.

(9) Any communication among attorneys representing a party or potential party to pending or actual litigation brought by or against the city.

(10) Any person representing the owner of a single-family home that is owner occupied seeking a variance or other zoning changes for improvements to the home.

(11) Any management decision as to the working conditions of collective bargaining employees that clearly relate to the terms of the collective bargaining agreements.

(Ord. 84, ch. 2013-3, § 1(3), 2-28-13)

Sec. 2-267. Registration required.

(a) Lobbyists shall register with the city clerk within thirty (30) days of their first lobbying activity.

(b) Lobbyists shall file registrations in accordance with procedures set forth by the office of the city clerk, which shall include an option for online registration.

(c) The city clerk's register of lobbyists required under this article shall be made available to the public for review online. The city clerk shall not include the residential street address of natural persons who are lobbyists in the register.

(d) Lobbyists shall certify that the information contained on their registration and reporting forms are true and correct in all aspects subject to the pains and penalties of perjury.
(Ord. 84, ch. 2013-3, § 1(4), 2-28-13)

Sec. 2-268. Identification badge.

(a) An identification badge shall be issued by the city clerk to every person who shall qualify as a lobbyist as provided in this article. The badge shall include the word "Lobbyist" in bold print, the name of the lobbyist, the year of issuance, the registration number of the lobbyist, and the name of his/her employer, and the name of the client being represented. Every lobbyist shall conspicuously display this identification badge on his or her clothing while in city hall or city offices at all times.

(b) An annual fee of twenty-five dollars ($25.00) shall be paid by the lobbyist for each entity for which he or she lobbies. The fee shall be paid to the city clerk at the time of registration for deposit in the city's general fund.
(Ord. 84, ch. 2013-3, § 1(5), 2-28-13)

Sec. 2-269. Reporting.

(a) Every lobbyist shall individually file with the city clerk a lobby report form or forms developed by the city clerk. The reports shall minimally identify the lobbyist by name, his/her employer, the employer's address, telephone number, email address, the name of the client represented, any salary or compensation related to lobbying, and the lobbyist's activities, including the city official(s) and municipal decision(s) concerned, as well as identifying other information as described in subsections (b)(1) through (b)(4).

(b) Reports shall be filed with the city clerk, both by the person, corporation, or association having engaged any person to act as a lobbyist, and by the lobbyist, as follows:

(1) At the time of initial registration as a lobbyist, a report shall be filed which shall include the subjects of concern or of interest to the employer and any city officials responsible for making municipal decisions related to those subjects, and further identifying information as described in subsection (a) above.

(2) Quarterly reports to be filed for the periods from January through March, April through June, July through September, and October through December. Reports shall be filed not later than the fifteenth day of the month following the reporting period. Quarterly reports shall include the lobbyist's salary or compensation related to lobbying, the lobbyist's activities, including the city

official(s) contacted and municipal decision(s) concerned, and also shall include any expenditure, gift, honorarium, or campaign contribution, in cash or in-kind equal to twenty-five dollars ($25.00) or more for each occurrence concerning any city official paid or incurred by the person who engages the lobbyist and the lobbyist.

(3) A final report shall be filed not later than January 15 of each year. The report shall include all money or anything of value which in the aggregate exceeds two hundred fifty dollars ($250.00) provided or promised to any city official within the preceding calendar year. "Money" and "anything of value" in this subsection and in subsection (b)(4) of this section shall mean any fee, salary, commission, expense, allowance, forbearance, forgiveness, royalty, rent, capital gain, gift, loan, reward, favor or service, gratuity or special discount, or any other form of recompense that constitutes income under the Federal Internal Revenue Code. In the event no compensation has been paid or received, and no expenses have been paid or incurred during the preceding calendar year, an annual report stating such information shall be filed not later than January 15.

(4) Not later than January 15 of each year, every person, corporation, or association specified in this subsection shall provide an exact copy of the report required in subsection (b)(3) to the Rhode Island Ethics Commission and to any city official to whom the person, corporation, or association provided or promised money or anything of value which in the aggregate exceeds two hundred fifty dollars ($250.00) within the preceding calendar year.

(c) All reports shall be on a form prescribed by the city clerk, and the reports shall be open for public inspection.

(d) Every lobbyist and every person, private or public corporation, or association that engages any person to act as a lobbyist shall keep, for at least five (5) years, all documentation related to the reports required to be filed under this section.
(Ord. 84, ch. 2013-3, § 1(6), 2-28-13)

Sec. 2-270. Duties and powers of the city clerk.

The city clerk shall have the authority to perform any duties that are necessary to implement the provisions of this article. Without limiting the generality of the foregoing, the city clerk shall:

(1) Designate forms for the making of the required lobby reports.

(2) Develop a register for all lobbyists.

(3) Adopt rules and regulations to carry out the purposes of this article.

(4) Post lobbyist registration instructions, and rules and regulations pertaining to this article on the city website, and have the same available in printed form in the city clerk's office.

(5) Notify city officials and, through the city website, members of the public, of the online access to the lobbyists' register and reporting forms.

(6) Where information has been received through observation by or written complaint to the city clerk to indicate that any person, corporation, association, or lobbyist has failed to register or file reports or has filed an incomplete or inaccurate report, the city clerk may, for good cause shown, extend the dates upon which reports are required to be filed or require the person, corporation, association, or lobbyist to correct any incomplete or inaccurate report, as the case may be. Upon a failure of the lobbyist to show good cause, the city clerk, with such assistance as he or she may request from the city solicitor, investigate said complaints and act in accordance with section 2-271 hereof.

(Ord. 84, ch. 2013-3, § 1(7), 2-28-13)

Sec. 2-271. Administrative penalty for violations.

Any person, corporation, association, or lobbyist who is found to have violated any provision of this article may be subject to administrative penalties imposed by the municipal integrity officer as the circumstances may merit upon notice and opportunity to be heard before the municipal integrity officer. Said penalties include the imposition of a fine not to exceed two hundred fifty dollars ($250.00) per violation and each day of violation shall constitute a new violation of this article. Any violator who has been issued a fine may appeal said fine within twenty (20) days to the Providence Municipal Court.

(Ord. 84, ch. 2013-3, § 1(8), 2-28-13)

Sec. 2-272. Review by the city council.

The council may periodically review the administration and implementation of the provisions of this article. Based upon that review, the city council may take necessary legislative action to strengthen the administration and enforcement of this article.

(Ord. 84, ch. 2013-3, § 1(9), 2-28-13)

Secs. 2-273—2-278. Reserved.

ARTICLE XVII. INDUSTRIAL COMMISSION

Sec. 2-279. Established, organized.

There shall be a commission, to be known as the Providence Industrial Commission, consisting of five (5) qualified electors of the city, to be appointed by the mayor and to serve at his pleasure. Members of said commission shall be representative of labor, management and such other interests as may be deemed necessary or desirable.

(Ch. 2, § 153.1, added by Ord. 1954, ch. 842, § 1)

Sec. 2-280. Vacancies; compensation and expenses; secretary.

Vacancies on the Providence Industrial Commission shall be filled in the same manner as the original appointments were made. Said commission shall serve without compensation, but shall be allowed such necessary travel or incidental expense, as shall be consistent with its requirements and within the appropriation provided by ordinance. Said commission shall appoint a secretary who shall not be a member thereof, and who shall serve without compensation.
(Ch. 2, § 153.2, added by Ord. 1954, ch. 842, § 1)

Sec. 2-281. Duties.

It shall be the duty of the Providence Industrial Commission to study and advise on the most practical approach to community industry development problems, including examination of such factors as would interest and attract industrialists or others who might be seeking an industrial plant site with the purpose of encouraging industry and employment in the city. In the exercise of the foregoing duty, said commission shall cooperate to the fullest possible extent with the development council of the state.
(Ch. 2, § 153.3, added by Ord. 1954, ch. 842, § 2)

Secs. 2-282—2-285. Reserved.

ARTICLE XVIII. INSPECTION OF PAYROLL LISTS*

Sec. 2-286. Right of inspection by taxpayers.

All payroll lists of city employees compiled or kept in the performance of official duty shall be made available by the city controller to any taxpayer of the city for the purpose of inspecting the same or for making written copies and/or abstracts thereof.
(Ch. 2, § 88.1, added by Ord. 1948, ch. 68, § 1)

Cross reference—Access to public documents, § 2-2.2.

Sec. 2-287. Inspection subject to reasonable rules and regulations.

The inspection of payroll lists shall be subject at all times to reasonable regulation by the city controller as to the time, place and manner of making the same.
(Ch. 2, § 88.2, added by Ord. 1948, ch. 68, § 2)

Sec. 2-288. Confidential nature of payroll lists.

No disclosure of city payroll lists shall be required or made while such lists are being used in any investigation or court proceeding by any officer or agency of the city.
(Ch. 2, § 88.3, added by Ord. 1948, ch. 68, § 3)

***Cross reference—**Compensation and other benefits for officers and employees, § 17-54 et seq.

Sec. 2-289. Misuse of information from payroll lists.

No person in the exercise of the privilege granted by sections 2-286 to 2-288 shall use the information obtained by inspection of payroll lists for the purpose of soliciting the employees named on said list or creating a mailing list for such purpose or for any comparable purpose, nor for the purpose of publishing any facts concerning any public official or employee which are solely of a personal or private nature or shall relate to the private business or to the finances of such official or employee and shall have no bearing, concern or relation to the conduct of his business or work as such official or employee.
(Ch. 2, § 88.4, added by Ord. 1948, ch. 68, § 4)

Sec. 2-290. Penalty for misuse.

Any person who shall violate the provisions of section 2-289 hereof shall forfeit the privilege granted by sections 2-286 to 2-288 for a period of six (6) months thereafter and shall be subject to a penalty not exceeding two hundred dollars ($200.00) or thirty (30) days' imprisonment for each offense.
(Ch. 2, § 88.5, added by Ord. 1948, ch. 68, § 5)

Secs. 2-291—2-295. Reserved.

ARTICLE XIX. ELECTIONS

Sec. 2-296. Notice of ward and district meetings.

Notice of ward and district meetings to be held in the respective wards for the purpose of elections shall be given by the board of canvassers and registration, which notice shall be published for and during one week next before each day of election, in the newspapers employed to do the city advertising.
(Ord. 1914, ch. 63, § 1; Rev. Ords. 1946, ch. 2, § 153)

Sec. 2-297. Board of canvassers and registration, offices.

The board of canvassers and registration shall continue to occupy their office in the city hall.
(Ord. 1914, ch. 38, § 11; Rev. Ords. 1946, ch. 2, § 150)

State law references—State law on this subject making particular provisions as to City of Providence, chs. 17-8—17-11, Gen. Laws 1956; special act relating to board of canvassers and registrars, P.L. 1931, ch. 1804.

Sec. 2-298. Payment of primary officials.

Every primary warden and clerk appointed under the provisions of Title 17 of the Rhode Island General Laws, 1956, or any amendment thereof or addition thereto, shall be paid fifty dollars ($50.00) for services rendered at the polling place on primary

day. Every supervisor appointed under said provision of said Title 17 shall be paid forty-five dollars ($45.00) for services rendered at the polling place on primary day; provided, however, that all clerks and wardens who complete, biannually, training provided by the board of canvassers and/or the state board of elections shall receive the following pay: Clerk, eighty dollars ($80.00); warden, eighty dollars ($80.00); and supervisor, seventy dollars ($70.00).
(Ord. 1943, ch. 1178, § 1; Rev. Ords. 1946, ch. 2, § 151; Ord. 1952, ch. 636, § 1; Ord. 1962, ch. 1471, § 1; Ord. 1984, ch. 84-68, § 1, 10-8-84)

Sec. 2-299. Meals for officials at polling places during primaries.

The board of canvassers shall provide meals at the polling places for all primary officials and police officers on duty inside the polling places.
(Ord. 1943, ch. 1178, § 1; Rev. Ords. 1946, ch. 2, § 151; Ord. 1952, ch. 636, § 1; Ord. 1962, ch. 1471, § 1)

Sec. 2-300. Payment of election officials.

Every warden and clerk appointed under the provisions of Title 17 of the Rhode Island General Laws, 1956, or any amendment thereof or addition thereto, shall be paid fifty dollars ($50.00) for services rendered at the polling place at elections. Every supervisor appointed under said provision of said Title 17 shall be paid forty-five dollars ($45.00) for services rendered at the polling place at elections; provided, however, that all clerks and wardens who complete, biannually, training provided by the board of canvassers and/or the state board of elections shall receive the following pay: Clerk, eighty dollars ($80.00); warden, eighty dollars ($80.00); and supervisor, seventy dollars ($70.00).
(Ord. 1943, ch. 1178, § 1; Rev. Ords. 1946, ch. 2, § 152; Ord. 1952, ch. 636, § 1; Ord. 1962, ch. 1472, § 1; Ord. 1970, ch. 70-31, § 1, 6-23-70; Ord. 1979, ch. 79-11, § 1, 3-23-79; Ord. 1984, ch. 84-68, § 1, 10-8-84)

Sec. 2-301. Meals for officials at polling places during elections.

The board of canvassers shall provide meals at the polling places for all election officials and police officers on duty inside the polling places.
(Ord. 1943, ch. 1178, § 1; Rev. Ords. 1946, ch. 2, § 152; Ord. 1952, ch. 636, § 1; Ord. 1962, ch. 1472, § 1)

Sec. 2-302. Purging of voters' lists.

The board of canvassers shall take immediate action to purge the voters' list of all voters who are registered at the address they do not reside at in accordance with 84-S 208 (Substitute "A" as amended).
(Ord. 1984, ch. 84-34, § 1, 5-24-84)

Sec. 2-303. Polling place maps at polling places.

The board of canvassers shall cause to be posted at each polling place in each ward of the City of Providence throughout the hours of voting at any general or special election in the City of Providence a map showing each polling place in said ward and the geographic dimensions of and streets within each of said ward's voting districts, all in a manner sufficient to notify residents of each such ward of the polling place at which said residents vote.
(Ord. 1985, ch. 85-36, § 1, 2-22-85)

Editor's note—Ch. 85-36, approved Feb. 22, 1985, added § 2-302 to the Code; to avoid duplicate section numbers, the editor has renumbered the material as § 2-303.

Sec. 2-304. Wards.

The City of Providence is hereby apportioned into fifteen wards and five school board regions in accordance with Section 204 of the Providence Home Rule Charter of 1980, as approved by the Electors of the City of Providence at the General Election held November 4, 1980 and validated by the General Assembly on May 7, 1981.

FIRST WARD

The First Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of Henderson Expy and the Providence - East Providence Boundary line; thence West on Henderson Expy; thence North on River Dr; thence West on Angell St; thence South on Brook St; thence West on Waterman St; thence South on Thayer St; thence West on Charlesfield St; thence South on Brown St; thence West on Power St; thence Northwest on S Main St; thence Northwest on N Main St; thence West on Park Row; thence Southeast on the Mosshasuck river; thence Southwest on Steeple St; thence west on Memorial Blvd; thence South on I- 95; thence Northeast on I- 195; thence southeasterly on Providence River; thence northeasterly on the Providence - East Providence boundary line to the point of beginning.

SECOND WARD

The Second Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of Power St and S Main St; thence East on Power St; thence North on Brown St; thence East on Charlesfield St; thence North on Thayer St; thence East on Waterman St; thence North on Brook St; thence East on Angell St; thence South on River Dr; thence East on Henderson Expy; thence North on the Providence - East Providence border; thence west on the Providence - Pawtucket border; thence South on Hope St; thence Southeast on Blackstone Blvd; thence Southwest on North Ave; thence South on Hope St; thence East on 8th St; thence Southeast on Winfield Rd; thence Southwest on Lorimer Ave; thence East on Rochambeau Ave; thence South on Elmgrove Ave; thence West on

Doyle Ave; thence North on Taber Ave; thence West on Emeline St; thence South on Morris Ave; thence West on Olney St; thence South on N Main St; thence South on Benefit St; thence West on Meeting St; thence South on N Main St; thence Southeast on S Main St to the point of beginning.

THIRD WARD

The Third Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of Smith St and the Mosshasuck River; thence South on the Mosshasuck River; thence East on Park Row; thence South on N Main St; thence East on Meeting St; thence North on Benefit St; thence North on N Main St; thence East on Olney St; thence North on Morris Ave; thence East on Emeline St; thence South on Taber Ave; thence East on Doyle Ave; thence North on Elmgrove Ave; thence West on Rochambeau Ave; thence North on Lorimer Ave; thence Northwest on Winfield Rd; thence West on 8th St; thence North on Hope St; thence Northeast on North Ave; thence Northwest on Blackstone Blvd; thence North on Hope St; thence West on the Providence - Pawtucket boundary line; thence Southwest on I-95; thence Southeast on New York, New Haven and Hartford RR; thence East on Smith St to the point of beginning.

FOURTH WARD

The Fourth Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of Douglas Ave and I-95; thence Northeast on I-95; thence West on the Providence - Pawtucket Boundary line; thence continue on the Providence - North Providence boundary line; thence Southeast on Douglas Ave; thence East on Concannon St; thence North on Moy St; thence East on Branch Ave; thence South on Louisquisset Pike; thence Southwest on the eastern boundary of Corliss Park and Mansion Park; thence South on Corina St, thence Southeast on Appian St; thence Southwest on Corina St; thence Southeast on Douglas Ave; thence Northeast on Berkshire St; thence Southeast on March St; thence Northeast on Chad Brown St; thence Southeast on the southern boundary of census block 440070027003019; thence Southwest on Fillmore St; thence Southeast on Douglas Ave; thence Northeast on Chalkstone Ave; thence South on N Davis St; thence East on Douglas Ave to the point of beginning.

FIFTH WARD

The Fifth Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of Chalkstone Ave and Leah St; thence East on Chalkstone Ave; thence Northwest on Rosebank Ave; thence Northeast on Pleasant Valley Pkwy; thence Northwest on Convent St; thence Northeast on Maude St; thence Northwest on Smith St; thence North on Tyndall Ave; thence West on Eaton St; thence South on River Ave; thence Northwest on Smith St; thence North on Enfield Ave; thence West on Isabella Ave; thence North on

Gentian Ave; thence East on Texas Ave; thence Northwest on Admiral St; thence Southwest on the Providence - North Providence boundary line; thence continue on the Providence - Johnston boundary line; thence Northeast on Manton Ave; thence East on Chalkstone Ave to the point of beginning.

SIXTH WARD

The Sixth Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of the Providence - Johnston boundary line and the Woonasquatucket river; thence Northwest on the Providence - Johnston boundary line; thence Northeast on Manton Ave; thence east on Chalkstone Ave; thence South on Bergen St; thence West on Regent Ave; thence South on Huron St; thence West on the Northern boundary of census block 440070022003006; thence South on Academy Ave; thence West on Atwells Ave; thence South on Putnam St; thence West on Amherst St; thence Northwest on Manton Ave; thence Southwest on Salmon St, continuing on the western boundary of census block 440070019003001; thence east on Hwy 6; thence Southerly, Westerly, and Northwesterly on the Woonasquatucket river to the point of beginning.

SEVENTH WARD

The Seventh Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of the Providence - Cranston boundary line and Terrace Ave; thence North on Terrace Ave; thence West on Shafter St; thence North on Laurel Hill Ave; thence East on Plainfield St; thence North on Webster Ave; thence East on Eastwood Ave; thence South on Heath St; thence East on Laban St; thence Northeast on Plainfield St; thence Northwest on US Hwy 6; thence Southerly, Westerly, and Northwesterly on the Woonasquatucket river; thence Westerly, Southerly, and Easterly on the Providence - Johnston boundary line to the point of beginning.

EIGHTH WARD

The Eighth Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of the onramp of State Route 10 and Park Ave; thence North on State Rte 10; thence North on Elmwood Ave; thence South on Reservoir Ave; thence Northwest on Amtrak railroad; thence Northeast on the eastern boundary of census block 440070014004026; thence Southeast on Huntington Ave; thence East on Carter St; thence North on Bucklin St; thence North on Dexter St; thence West on Sprague St; thence North on Diamond St; thence West on Hollis St; thence North on Parade St; thence West on Chapin Ave; thence South on Messer St; thence West on Union Ave; thence South on State Rte 10; thence Southerly, Easterly, and Southeasterly on Providence - Cranston boundary line to the point of beginning.

NINTH WARD

The Ninth Ward of the City of Providence shall consist of all that part of the City bounded by a line beginning at the intersection of the onramp of State Route 10 and Park Ave; thence Easterly and Northerly on the Providence - Cranston boundary line; thence West on Montgomery Ave; thence northwest on F C Greene Memorial Blvd; thence Northeast on Hawthorne Ave; thence Northwest on Broad St; thence West on Plenty St; thence West on Bellevue Ave; thence South on Bucklin St; thence West on Carter St; thence Northwest on Huntington Ave; thence Southwest on the eastern boundary of census block 440070014004026; thence Southeast on Amtrak railroad; thence North on Reservoir Ave; thence Southeast on Elmwood Ave; thence Southeast on the onramp of State Route 10 to the point of beginning.

TENTH WARD

The Tenth Ward of the City of Providence shall consist of all of that part of the City bounded by a line beginning at the intersection of Montgomery Ave and F C Greene Memorial Blvd; thence Northwest on F C Greene Memorial Blvd; thence Northeast on Hawthorne Ave; thence Northwest on Broad St; thence East on Gladstone St; thence North on Baxter St; thence East on Potters Ave; thence South on Gordon Ave; thence East on Oxford St; thence North on I-95; thence East on Public St, extending to the Providence - East Providence boundary line; thence South on the Providence - East Providence boundary line; thence west on the Providence - Cranston boundary line; thence West on Montgomery Ave to the point of beginning.

ELEVENTH WARD

The Eleventh Ward of the City of Providence shall consist of all of that part of the City bounded by a line beginning at the intersection of Gordon Ave and Oxford St; thence East on Oxford St; thence North on I-95; thence East on Public St; thence North on the Providence river; thence Southwest on I-95; thence West on I-95; thence Southwest on Westminster St; thence South on Bridgham St; thence Southwest on Cranston St; thence South on Parade St; thence East on Hollis St; thence South on Diamond St; thence East on Sprague St; thence South on Dexter St; thence South on Bucklin St; thence East on Bellevue Ave; thence East on Plenty St; thence South on Broad St; thence East on Gladstone St; thence North on Baxter St; thence East on Potters Ave; thence South on Gordon Ave to the point of beginning.

TWELFTH WARD

The Twelfth Ward of the City of Providence shall consist of all of that part of the City bounded by a line beginning at the intersection of Atwells Ave and the Woonasquatucket River; thence Northeast on the Woonasquatucket River; thence South on I-95; thence East on Memorial Blvd; thence Northeast on Steeple St; thence North on the Moshassuck river; thence West on Smith St; thence North on

New York New Haven and Hartford RR; thence Southwest on I-95; thence Northwest on Douglas Ave; thence North on N Davis St; thence West on Chalkstone Ave; thence Northwest on Douglas Ave; thence Northeast on Fillmore St; thence Northwest on the southern boundary of Census Block 440070027003019; thence Southwest on Chad Brown St; thence Northwest on March St; thence Southwest on Berkshire St; thence South on Douglas Ave; thence West on Eaton St; thence South on Pembroke Ave; thence Northwest on Smith St; thence Southwest on Maude St; thence Southeast on Convent St; thence Southwest on Pleasant Valley Pkwy; thence Southeast on Rosebank Ave; thence West on Chalkstone Ave; thence South on Bergen St; thence West on Regent Ave; thence South on Huron St; thence West on the Northern boundary of census block 440070022003006; thence South on Academy Ave; thence East on Atwells Ave to the point of beginning.

THIRTEENTH WARD

The Thirteenth Ward of the City of Providence shall consist of all of that part of the City bounded by a line beginning at the intersection of Union Ave and Messer St; thence North on Messer St; thence East on Chapin Ave; thence Northeast on Cranston St; thence Northwest on Bridgham St; thence East on Westminster St; thence Northwest on I-95; thence Southwest on the Woonasquatucket river; thence East on Atwells Ave; thence Southwest on US Hwy 6; thence South on State Rte 10; thence East on Union Ave to the point of beginning.

FOURTEENTH WARD

The Fourteenth Ward of the City of Providence shall consist of all of that part of the City bounded by a line beginning at the intersection of Pembroke Ave and Eaton St; thence East on Eaton St; thence North on Douglas Ave; thence Northeast on Corina St; thence North on Appian St; thence Northeast on Corina St; thence Northeast on the eastern boundary of Corliss / Mansion Park; thence Northeast on Hawkins St; thence Northwest on Louisquisset Pike; thence West on Branch Ave; thence South on Moy St; thence West on Concannon St; thence Northwest on Douglas Ave; thence Southwest on the Providence - North Providence boundary line; thence Southeast on Admiral St; thence West on Texas Ave; thence South on Gentian Ave; thence East on Isabella Ave; thence South on Enfield Ave; thence Southeast on Smith St; thence North on River Ave; thence Southeast on Eaton St; thence South on Tyndall Ave; thence Southeast on Smith St; thence North on Pembroke Ave to the point of beginning.

FIFTEENTH WARD

The Fifteenth Ward of the City of Providence shall consist of all of that part of the City bounded by a line beginning at the intersection of Terrace Ave and the Providence - Cranston boundary line; thence Northwest on Terrace Ave; thence West on Shafter St; thence North on Laurel Hill Ave; thence East on Plainfield St; thence

North on Webster Ave; thence East on Eastwood Ave; thence South on Heath St; thence East on Laban St; thence Northeast on Plainfield St; thence Northwest on US Hwy 6; thence Northeast on the western boundary of census block 440070019003001, continuing on Salmon St; thence Southeast on Manton Ave; thence East on Amherst St; thence North on Putnam St; thence East on Atwells Ave; thence Southwest on US Hwy 6; thence South on State Rte 10; thence Northerly and Westerly on the Providence - Cranston boundary line to the point of beginning.

SCHOOL BOARD REGIONS

The five School Board Regions of the City of Providence shall individually consist of the contiguous areas of three combined Wards of the City of Providence as described herein, representing the North, South, East, West, and Central areas of the City.

FIRST SCHOOL BOARD REGION

The First School Board Region of the City of Providence shall consist of all that part of the City bounded by the combined contiguous area of the First Ward of the City of Providence, the Second Ward of the City of Providence, and the Third Ward of the City of Providence.

SECOND SCHOOL BOARD REGION

The Second School Board Region of the City of Providence shall consist of all that part of the City bounded by the combined contiguous area of the Fourth Ward of the City of Providence, the Fifth Ward of the City of Providence, and the Fourteenth Ward of the City of Providence.

THIRD SCHOOL BOARD REGION

The Third School Board Region of the City of Providence shall consist of all that part of the City bounded by the combined contiguous area of the Sixth Ward of the City of Providence, the Seventh Ward of the City of Providence, and the Fifteenth Ward of the City of Providence.

FOURTH SCHOOL BOARD REGION

The Fourth School Board Region of the City of Providence shall consist of all that part of the City bounded by the combined contiguous area of the Eighth Ward of the City of Providence, the Ninth Ward of the City of Providence, and the Tenth Ward of the City of Providence.

FIFTH SCHOOL BOARD REGION

The Fifth School Board Region of the City of Providence shall consist of all that part of the City bounded by the combined contiguous area of the Eleventh Ward of the City of Providence, the Twelfth Ward of the City of Providence, and the Thirteenth Ward of the City of Providence.

(Ord. 1992, ch. 92-3, §§ 1—3, 3-9-92; Ord. 1992, ch. 92-34, § 1, 9-25-92; Ord. 2002, ch. 02-5, §§ 1—3, 3-4-02; Ord. No. 2002, ch. 02-16, §§ 1—3, 6-13-02; Ord. 2012, ch. 2012-17, §§ 1—3, 3-30-12; Ord. No. 2022-12, § 1, 4-25-22; Ord. No. 2022-25, § 1, 6-13-22; Ord. No. 2024-15, § 1, 5-24-24)

Secs. 2-305—2-307. Reserved.

ARTICLE XX. FLAGS AND COLORS*

Sec. 2-308. Days for display of national flag.

An owner or lessee of property in the city is hereby authorized to display, from sunrise to sunset, a standard United States flag, three feet by five feet, upon a flagstaff inserted in and extending twelve feet above the top of said socket, upon the following days: The 12th day of February (Grand Army Flag Day in honor of the birthday of Abraham Lincoln), the 22nd day of February (Washington's Birthday), the 4th day of May (Rhode Island Independence Day), the 14th day of June (National Flag Day), the 30th day of May (Memorial Day), the 4th day of July (Independence Day), the 14th day of August (V-J Day), the first Monday in September (Labor Day), the 12th day of October (Columbus Day), the 11th day of November (Armistice Day) and such other days of national importance or patriotic significance as the mayor may from time to time designate. When any of said days falls upon Sunday, said owner or lessee may display said flag in the manner hereinbefore provided upon the following day. Said owner or lessee is also authorized to display upon said flagstaff the flag emblem of the American Red Cross upon such days as the mayor may from time to time designate.
(Ord. 1935, ch. 909, § 1; Rev. Ords. 1946, ch. 13, § 23; Ord. 1949, ch. 216, § 1)

Sec. 2-309. Material and proportions of national flag.

The flag of the United States, referred to as the national flag and also known as the Stars and Stripes, shall be of suitable material and of the proportions designated by executive order of the President of the United States. The size of the national flag shall be the same as that of the post flag of the United States Army.
(Ord. 1941, ch. 1058, § 3; Rev. Ords. 1946, ch. 13, § 3)

Sec. 2-310. Position and use of national flag.

The national flag represents the living country and is considered as a living thing, the union being the honor point. The right arm is the sword arm and therefore the point of danger; hence, the right is the place of honor. The edge of the flag which is toward the staff is the heraldic dexter or right edge. The union of the flag, and the flag itself when in company with other flags, shall always be given the honor point, i.e., the marching right, the flag's own right, or an observer's left. When the national flag is carried, as in a procession, with another flag or with other flags, the place of the national flag shall be on the marching right, i.e., the left of an observer when the flag is approaching. When the national flag and another flag are displayed together from crossed staffs, as against a wall, the national flag shall be on the right, i.e., the flag's

---

***Cross references—**City sergeant as custodian and keeper of city's flags, § 2-172; duty to keep flags and colors in good order, § 2-173; duty to fly national flag, § 2-174.

State law reference—Provisions of state law as to flags, §§ 11-15-1—11-15-3, Gen. Laws 1956.

own right, or the left of an observer facing the wall, and its staff shall be in front of the staff of the other flag. When a number of flags are grouped and displayed from staffs the national flag shall be in the center, or at the highest point, of the group. When the national flag is hung either horizontally or vertically against a wall the union shall be uppermost and to the flag's own right, i.e., to the observer's left. In general, the national flag should be hung flat. It should not be festooned over doorways or arches, tied in a bowknot, or fashioned into a rosette. When used on a rostrum it should be displayed above and behind the speaker's desk. It should never be used to cover the speaker's desk or draped over the front of the platform. For this latter purpose, as well as for decoration in general, bunting of the national colors should be used, and, since the union of the flag always goes to the honor right, the colors should be arranged with the blue above, the white in the middle, and the red below. No lettering or object of any kind shall be placed on the national flag. No flag or pennant shall be flown above the national flag.
(Ord. 1941, ch. 1058, § 10; Rev. Ords. 1946, ch. 13, § 10)

Sec. 2-311. National flag to be flown on city hall; size and equipment.

During every national legal holiday, during every state legal holiday, during parades and during days and occasions the mayor or the city council may direct and order, but in no event longer than sunrise to sunset, the city sergeant shall cause a national flag to be flown over the main entrance of the city hall facing Exchange Place. The size of said national flag shall be the same as that of the United States Army national recruiting flag, five feet hoist by nine feet six inches fly. This flag may be equipped with a lath encased in the center stripe or device to prevent the flag from wrapping around the staff when displayed.
(Ord. 1941, ch. 1058, § 8; Rev. Ords. 1946, ch. 13, § 7)

Sec. 2-312. Not more than one national flag on city hall.

Not more than one national flag or color shall be flown at the same time from the roof of the city hall.
(Ord. 1941, ch. 1058, § 7; Rev. Ords. 1946, ch. 13, § 8)

Sec. 2-313. National flags used by departments.

Every board, commission and department head, who has jurisdiction of public parks, playgrounds, recreation fields, public buildings or other city property where the national flag is flown, shall be the custodian and keeper of the national flag or flags used by his or its respective departments. Said boards, commissions and department heads shall cause all such flags and colors to be kept clean and in good order and shall cause said flags and colors to be repaired and replaced with new ones when the occasion demands it. The cost of said repairs and replacements shall be charged to the respective appropriations for their respective departments. Said boards, commissions and department heads shall cause the national flag to be flown or displayed in said

parks, playgrounds, recreation fields and on public buildings, under their respective jurisdiction, during every national legal holiday, during every state legal holiday and on days or occasions the mayor, the city council or said boards, commissions and department heads may direct and order, but in no event longer than sunrise to sunset.
(Ord. 1941, ch. 1058, § 9; Rev. Ords. 1946, ch. 13, § 9)

Sec. 2-314. National flags for school property.

The committee on city property shall furnish all school premises hereafter acquired by the city with a national flag and pole for the same, the expense of which shall be included in the cost of the building and its furnishings.
(Ord. 1914, ch. 47, § 4; Rev. Ords. 1946, ch. 13, § 25)

Sec. 2-315. Display of national flag at half-staff.

No national flag, under the jurisdiction of any department head, board or commission of the city, as provided in this article, shall be displayed at half-staff unless explicitly so ordered by the mayor or the city council. On such occasions as the mayor or the city council may order the national flag to be displayed at half-staff it shall be first hoisted to the top of the staff and then lowered to the half-staff position. Before lowering the flag it shall be again raised to the top of the staff. Below the top of the staff (chock-a-block) is technically the half-staff position, but, in general, the middle point of the hoist of a flag at half-staff should, in the case of an unguyed flagstaff of one piece, be halfway between the top of the staff and the foot thereof, or, in the case of a flagstaff with crosstree or guy cables, halfway between the top of the staff and the crosstree or point of attachment of the guy cables. Local conditions, such as the liability of fouling the flag, may however, dictate other positions, a graceful one being with the top of the flag the depth of the hoist below the top of the staff.
(Ord. 1941, ch. 1058, § 11; Rev. Ords. 1946, ch. 13, § 11)

Sec. 2-316. Lowering and folding national flag.

When the national flag is lowered from the staff, no portion of it shall be allowed to touch the ground, either in lowering or in folding. Before being completely detached from the halyards the flag should be folded into the shape of a cocked hat.
(Ord. 1941, ch. 1058, § 12; Rev. Ords. 1946, ch. 13, § 12)

Sec. 2-317. Sockets in sidewalks for display of national flag.

For the purpose of providing for a uniform display of the United States flag on certain days, the owner or lessee of any property within the city is hereby authorized to install in the sidewalk in front of his premises one foot from the face of the curb, at intervals of approximately twenty-five feet, sockets of such design and installed in such manner as shall be approved by the director of public works.
(Ord. 1925, ch. 492, § 1; Rev. Ords. 1946, ch. 13, § 22)

Sec. 2-318. Approval of installation of sockets; responsibility for damage; removal of sockets.

No person shall install any socket in the sidewalk of any public highway without the approval of the director of public works, and no person shall use any such socket for holding any staff, banner or device of any kind except a staff from which shall be displayed the flag of the United States, nor use such socket for the display of the flag of the United States except on the days and hours herein authorized. Such owner or lessee shall be responsible to the city for any and all damages suffered by it in consequence of damages to persons or property by reason of any negligence or defect in the construction of such sockets, or for allowing the same to be or remain out of repair. The director of public works is hereby authorized to cause such sockets or any of them to be removed, if in his opinion their condition at any time render the sidewalks dangerous.
(Ord. 1925, ch. 492, § 3; Rev. Ords. 1946, ch. 13, § 24)

Sec. 2-319. Material and proportions of city flag.

The flag of the city shall be of silk and the color shall be dark blue. In the center of the flag there shall be a white circle thirty-six inches in diameter. The seal of the city shall be embroidered on or painted in natural colors in the said white circle. In general all lettering and numbering shall be in gold and shall always read from left to right, regardless of the position of the observer. The flag shall be trimmed on three edges with a knotted gold colored fringe of silk two and one-half inches wide. The flag of the city shall be alike on both sides, but reversed with respect to the observer, i.e., every point on one side shall be exactly opposite the corresponding point on the other side. There shall be no right or wrong side nor front or back to the city flag. It shall be customary, however, when describing the flag always to place the heading, tabling, staff or pike to the heraldic dexter or right (observer's left). The size of the city flag shall be four feet four inches on the pike and five feet six inches fly and shall be carried on a suitable wooden pike nine feet six inches in length inclusive of the staff head and ferrule. The pike shall be equipped with a tube or tunnel heading. The staff head on the pike shall be a gold colored eagle with spread wings, of suitable design, size and material. Attached below the eagle head of the pike shall be a cord eight feet six inches in length, with a tassel at each end. The cord shall be of silk strands of dark blue and white and the tassels shall be of gold.
(Ord. 1941, ch. 1058, § 14; Rev. Ords. 1946, ch. 13, § 14)

Sec. 2-320. Display of city flag in chamber of council, mayor's office.

The city sergeant shall cause the city flag to be displayed in the chamber of the city council and it shall have a position to the right of the presiding officer. A similar city flag shall be displayed in a suitable place in the mayor's office.
(Ord. 1941, ch. 1058, § 15; Rev. Ords. 1946, ch. 13, § 15)

Sec. 2-321. Display of city flag on city hall; material and dimensions.

The city sergeant shall cause the city flag to be flown from the northerly side of the tower or from the northerly side of the roof of the city hall on every day the city council holds a regular or a special session from 9:00 a.m. until after adjournment of the city council. Said city flag to be flown from the tower or roof of the city hall shall be of wool bunting ten feet hoist by fifteen feet fly and shall be of the same design and appropriate proportions as the city flag displayed in the chamber of the city council, except that this flag shall not have cord, tassels or knotted fringe.
(Ord. 1941, ch. 1058, § 16; Rev. Ords. 1946, ch. 13, § 16)

Sec. 2-322. Mayor may authorize display of city flag.

The mayor shall have the power and authority to order the city flag flown and displayed on occasions and at places other than those authorized by this article.
(Ord. 1941, ch. 1058, § 17; Rev. Ords. 1946, ch. 13, § 17)

Sec. 2-323. Material and proportions of city council flag.

The flag of the city council shall be of silk and the color shall be white. A dark blue stripe three inches wide, shall be fesswise on the upper and lower edge of said flag. These blue stripes represent the old Providence Plantations which ran in narrow strips of land from the river. In the center of the flag there shall be a dark blue circle twenty-nine and one-half inches in diameter. The seal of the city council shall be embroidered on or painted, in gold colors in the dark blue circle. In a circle thirty-eight inches in diameter, outside and around the city council seal shall be one gold star for each ward of the city. Said stars shall be of five points and two and three-quarters inches in diameter. In general all lettering and numbering shall be in gold and shall always read from left to right, regardless of the position of the observer. The flag shall be trimmed on three edges with knotted gold colored fringe of silk two and one-half inches wide. The flag of the city council shall be alike on both sides, but reversed with respect to the observer, i.e., every point on one side shall be exactly opposite the corresponding point on the other side. There shall be no right or wrong side nor front or back to the city council flag. It shall be customary, however, when describing the flag always to place the heading, tabling, staff or pike to the heraldic dexter or right (observer's left). The size of the city council flag shall be four feet four inches on the pike by five feet six inches fly and shall be carried on a suitable wooden pike nine feet six inches in length inclusive of the staff head and ferrule. The pike shall be equipped with a tube or tunnel heading. The staff head on the pike shall be a gold colored eagle with spread wings, of suitable design, size and material. Attached below the eagle head of the pike shall be a cord eight feet six inches in length, with a tassel at each end. The cord shall be of silk strands of dark blue and white and the tassel shall be of gold.
(Ord. 1941, ch. 1058, § 18; Rev. Ords. 1946, ch. 13, § 18)

Sec. 2-324. Display of city council flag in chamber of council.

The city sergeant shall cause the city council flag to be displayed in the chamber of the city council, and it shall have a position to the left of the presiding officer.
(Ord. 1941, ch. 1058, § 19; Rev. Ords. 1946, ch. 13, § 19)

Sec. 2-325. Display of city council flag on city hall; material and dimensions.

The city sergeant shall cause the city council flag to be flown from the southerly side of the tower or from the southerly side of the roof of the city hall on every day the city council holds a regular or special session, from 9:00 a.m. until after adjournment of the city council. Said city council flag, to be flown from the tower or roof of the city hall, shall be of wool bunting ten feet hoist by fifteen feet fly and shall be of the same design and appropriate proportions as the city council flag displayed in the chamber of the city council, except that this flag shall not have cord, tassels or knotted fringe.
(Ord. 1941, ch. 1058, § 20; Rev. Ords. 1946, ch. 13, § 20)

Sec. 2-326. Mayor may authorize display of city council flag.

The mayor shall have the power and authority to order the city council flag flown and displayed on occasions and at places other than those authorized by this article.
(Ord. 1941, ch. 1058, § 21; Rev. Ords. 1946, ch. 13, § 21)

Sec. 2-327. Size of national storm flag.

The size of the national storm flag shall be the same as that of the storm flag of the United States Army, five feet hoist by nine feet six inches fly.
(Ord. 1941, ch. 1058, § 5; Rev. Ords. 1946, ch. 13, § 5)

Sec. 2-328. Time to fly national storm flag.

The city sergeant shall cause the storm flag to be flown from the large flagstaff on the roof of the city hall on stormy and windy days in place of the national flag.
(Ord. 1941, ch. 1058, § 6; Rev. Ords. 1946, ch. 13, § 6)

Sec. 2-329. Inspection of flagstaffs and flagpoles.

The inspector of buildings shall annually during the month of April make a thorough inspection of every flagstaff and flagpole used by every board, commission and department of the city, and render a written report, together with recommendations to said boards, commissions and department heads regarding the condition and safety of said flagstaffs and flagpoles under their respective jurisdiction.
(Ord. 1941, ch. 1058, § 13; Rev. Ords. 1946, ch. 13, § 13)

Secs. 2-330—2-334. Reserved.

ARTICLE XXI. MUNICIPAL SEALS

Sec. 2-335. Description of city seal.

The seal of the city shall consist of two circles with a common center point. The smaller or inner circle shall be one and three-eighths inches in diameter, and shall have a raised roped circumference, approximately three sixty-fourths of an inch in thickness. The larger or outer circle shall be two inches in diameter and shall have a raised sawtooth circumference, approximately three thirty-seconds of an inch in thickness. Between the circumferences of the said two circles, reading clockwise, shall be the words: SEAL OF THE CITY OF PROVIDENCE, preceded and followed by a small raised five pointed star, and said words shall be composed of raised capital Roman letters one-eighth of an inch in height (ten point). In the lower part of the space between the said circumferences of the said two circles, reading counterclockwise, there shall be the words and figures: FOUNDED 1636. Said words and figures shall be composed of raised capital Roman letters one-sixteenth of an inch in height (six point). Under said words, FOUNDED 1636, reading counterclockwise, there shall be the words and figures: INCORPORATED 1832. Said words and figures shall be composed of raised capital Roman letters one-sixteenth of an inch in height (six point). Within the smaller or inner circle shall be a raised shield with the upper parts of its dexter margin and its sinister margin resting on the roped circumference of the said circle. In dexter tierce of the said shield shall be the raised figures of two Indians standing on a rock, under forest trees on the bank of a river. The foremost Indian, in contourne shall have his arms outstretched in greeting toward four white men who are approaching the rock in a canoe. The bow of the canoe, which contains the four white men, has not quite reached the rock on which the Indians stand. In pale of the said shield shall be the raised figure of the first white man who stands upright in the bow of the canoe with his right arm and hand outstretched in greeting toward the Indians, and his left arm and hand at his side. The second white man shall be sitting in the canoe with a canoe paddle in both his hands, the top of the handle of the paddle in his right hand and the shank of the paddle in his left hand. The paddle can be seen extending into the water on the left-hand side (port) of the canoe. The third white man shall be sitting in the canoe with a canoe paddle in both his hands, the top of the handle of the paddle in his left hand and the shank of the paddle is in his right hand. The entire paddle cannot be seen, as it shall extend in to the water on the right-hand side (starboard) of the canoe. The fourth white man shall be sitting in the canoe. In addition to the figures of the two Indians and the four white men; the rock, the water, the canoe and the canoe paddle shall be raised on the said shield. The garb of the white men shall be that of the early settlers in New England, called "Pilgrims", and that of the Indians shall be head feathers and skins. In chief, close to the upper margin of said shield, reading clockwise, shall be the words: WHAT CHEER? Said words and question mark shall be composed of raised capital Roman sans serif letters three thirty-seconds of an inch in height (eight point).
(Ord. 1941, ch. 1057, § 1; Rev. Ords. 1946, ch. 32, § 1)

Sec. 2-336. Meaning of description of city seal.

The blazon or description of figures on the city seal shall represent the historical story of the founding of the City of Providence in 1636. The Indians are standing on slate rock which is on a point of land covered with forest trees on the west bank of the Seekonk River. The Indians are extending friendly greetings, by raising their arms and crying out "WHAT CHEER, NETOP?" to an approaching canoe which contains the early settlers, Roger Williams and his companions. Roger Williams, the founder of the City of Providence, and the State of Rhode Island, stands in the bow of the canoe and acknowledges the greetings of the friendly Indians by raising his right arm.
(Ord. 1941, ch. 1057, § 2; Rev. Ords. 1946, ch. 32, § 2)

Sec. 2-337. City clerk as custodian of city seal.

There shall be one official seal, as described herein, for the city. The city clerk shall be the custodian and keeper of the city seal. The said city clerk shall cause a city seal to be made in accordance with the provisions of section 2-335, shall keep said city seal in good repair and shall replace said city seal with a new one when necessary. He shall provide a suitable safe or vault in which to keep said city seal, and shall never allow said seal to leave his custody or leave his office.
(Ord. 1941, ch. 1057, § 3; Rev. Ords. 1946, ch. 32, § 3)

Sec. 2-338. Nature and use of city seal.

The seal of the city is a sacred device and shall be the authentication and official verification of the city officials' signatures and official city written documents. The said city seal shall be used only by the city clerk, or in his absence by his deputies, or in an emergency by a person designated by the said city clerk, and only on such official documents which the said city clerk may determine the said city seal is necessary. Every board, commission, department head and employee of the city is hereby prohibited from using the said city seal or a facsimile thereof on any written, typed, engraved or printed letter, paper or book, or on any metal badge, without the written permission of the city clerk. Every person is hereby prohibited from manufacturing or reproducing the city seal or a facsimile thereof or using the city seal or a facsimile thereof in any manner or description, without the written permission of said city clerk.
(Ord. 1941, ch. 1057, § 4; Rev. Ords. 1946, ch. 32, § 4)

Sec. 2-339. Description of city council seal.

The seal of the city council shall consist of two circles with a common center point. The smaller or inner circle shall be one and three-eights inches in diameter, and shall have a raised dotted or beaded circumference, approximately three sixty-fourths of an inch in thickness. The larger or outer circle shall be two inches in diameter and shall have a raised roped circumference, approximately three thirty-seconds of an inch in thickness. Between the circumference of the said two circles shall be reading

clockwise, the words: SEAL OF CITY COUNCIL, PROVIDENCE, R. I., followed by a small raised five pointed star, and said words shall be composed of raised capital Roman letters one-eighth of an inch in height (ten point). Within the smaller or inner circle shall be a raised shield. In dexter chief canton of said shield shall be the raised figure of a bee with wings displayed. In sinister chief canton shall be the raised figure of a goose standing with wings folded. In base at the base point of said shield shall be the raised figure of a lamb standing on all four legs. Said figures of bee, goose and lamb shall be in contourne and facing toward the sinister margin.
(Ord. 1941, ch. 1057, § 5; Rev. Ords. 1946, ch. 32, § 5)

Sec. 2-340. Meaning of description of city council seal.

The said blazon or description of figures on the shield described in section 2-339 shall represent and be emblematical of industry, watchfulness and peace. The bee, as a symbol of industry, is derived from the early colonial saying "Busy as a Bee"; the goose, as a symbol of watchfulness, is derived from the story of the goose whose cackling saved Rome; and the lamb, as a symbol of peace, is derived from the biblical use of the lamb as a symbol of peace.
(Ord. 1941, ch. 1057, § 6; Rev. Ords. 1946, ch. 32, § 6)

Sec. 2-341. City clerk as custodian of city council seal.

There shall be one official seal, as described herein, for the city council. The city clerk shall be the custodian and the keeper of the city council seal. The city clerk shall cause a city council seal to be made in accordance with the provisions of section 2-339, shall keep said city council seal in good repair and shall replace said seal with a new one when necessary. He shall provide a suitable safe or vault in which to keep said city council seal, and shall never allow said seal to leave his custody or leave his office.
(Ord. 1941, ch. 1057, § 7; Rev. Ords. 1946, ch. 32, § 7)

Sec. 2-342. Use of city council seal.

The seal of the city council shall be used only by the city clerk, or in his absence by his deputies, or in an emergency by a person designated by the said city clerk, and only on such official documents which the said city clerk may determine the city council seal is necessary. Every board, commission, department head and employee of the city is hereby prohibited from using the city council seal or a facsimile thereof on any written, typed, engraved or printed letter, paper or book or on any metal badge, without the written permission of the city clerk. Every person is hereby prohibited from manufacturing or reproducing the city council seal or a facsimile thereof or using the city council seal or a facsimile thereof in any manner or description, without the written permission of the city clerk.
(Ord. 1941, ch. 1057, § 8; Rev. Ords. 1946, ch. 32, § 8)

Sec. 2-343. Seal of mayor.

(a) *Description.* The seal of the mayor of the city shall consist of two circles with a common center point. The smaller or inner circle shall be one and one-quarter inches in diameter and shall have a raised dotted or beaded circumference, approximately one thirty-second of an inch in thickness. The larger or outer circle shall be one and five-eighths inches in diameter and shall have a raised roped circumference, approximately one-sixteenth of an inch in thickness. Between the circumferences of the said two circles shall be, reading clockwise, the words: SEAL OF THE MAYOR, preceded and followed by a small raised five pointed star, and said words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). In the lower part of the space between the said circumferences of the said two circles, reading counterclockwise, shall be the words: PROVIDENCE, R. I., and said words shall be composed of raised Roman letters three thirty-seconds of an inch in height (eight point). Within the smaller or inner circle shall be raised fasces in a vertical position, through the center point of the said circles, with the blade of the ax in contourne and facing toward the sinister margin; a raised set of balance scales, in perfect balance, the beam of which shall be just below the head of the ax of the fasces; and a raised open book shall be placed between the platforms or pans of said scale. Just inside the lower part of the smaller or inner circle, reading counterclockwise, shall be the words: DEO ET POPULO, and said words shall be composed of raised capital Roman letters one-sixteenth of an inch in height. (six point).

(b) *Meaning.* Said blazon or description of figures on said seal represents and is emblematical of power, justice and law. The fasces, as a symbol of power, the balanced scales, as a symbol of justice and the open book, as a symbol of law.

(c) *Custody, presentation.* There shall be one official seal, as described herein, for the mayor and said mayor shall keep said seal in good repair and shall replace said seal with a new one when necessary. He shall provide a suitable safe place in which to keep said seal, and shall never allow said seal to leave his custody or leave his office.

(d) *Use.* The mayor shall affix imprint of said seal on such official documents which he may determine is necessary.
(Ord. 1941, ch. 1057, § 9; Rev. Ords. 1946, ch. 32, § 9)

Sec. 2-344. Seal of recorder of deeds.

(a) *Description.* The seal of the recorder of deeds shall consist of two circles with a common center point. The smaller or inner circle shall be one and one-quarter inches in diameter and shall have a raised dotted or beaded circumference, approximately one thirty-second of an inch in thickness. The larger or outer circle shall be one and five-eighths inches in diameter and shall have a raised roped circumference, approximately one-sixteenth of an inch in thickness. In the upper part of the space between the said two circumferences, reading clockwise, shall be the words: STATE OF RHODE ISLAND, preceded and followed by a small raised five pointed star, and said

words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). In the lower part of the space between the said circumference of the said two circles, reading counterclockwise, shall be the words: AND PROVIDENCE PLANTATIONS, and said words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). Just inside the upper part of the smaller or inner circle, reading clockwise, shall be the words: CITY OF and just inside the lower part of the smaller or inner circle, reading counterclockwise, shall be the word: PROVIDENCE. Said words, CITY OF PROVIDENCE, shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). Just under the words: CITY OF and just above the word: PROVIDENCE shall be two small raised five pointed stars. Just above the center point of the said two circles shall be, horizontal and reading from left to right, the word: RECORDER, and just under the center point of the said two circles shall be, horizontal and reading from left to right, the words: OF DEEDS. Said words: RECORDER OF DEEDS shall be composed of raised capital Roman letters, one-eighth of an inch in height (ten point).

(b) *Custody, preservation.* There shall be one official seal, as described herein, for the recorder of deeds of the city and said recorder of deeds shall keep said seal in good repair and shall replace said seal with a new one when necessary. He shall provide a suitable safe place in which to keep said seal, and shall never allow said seal to leave his custody or leave his office.

(c) *Use.* The recorder of deeds shall affix the imprint of said seal on such official documents which he may determine necessary and, whenever requested, shall affix the imprint of said seal to any certificate or document, by him given, without making any additional charge therefor.
(Ord. 1941, ch. 1057, § 10; Rev. Ords. 1946, ch. 32, § 10)

Sec. 2-345. Seal of city registrar.

(a) *Description.* The seal of the city registrar shall consist of two circles with a common center point. The smaller or inner circle shall be one and one-quarter inches in diameter and shall have a raised dotted or beaded circumference, approximately one thirty-second of an inch in thickness. The larger or outer circle shall be one and five-eighths inches in diameter and shall have a raised roped circumference approximately one-sixteenth of an inch in thickness. In the upper part of the space between the said two circumferences, reading clockwise, shall be the words: CITY REGISTRAR, preceded and followed by a small raised five pointed star and said words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). In the lower part of the space between the said circumferences of the said two circles, reading counterclockwise, shall be the words: PROVIDENCE, R. I., and said words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). Within the smaller inner circle shall be a raised open book bearing the date 1636. The figures of said date shall be horizontal, reading from

left to right, the first two digits thereof on the left side of the said open book, the last two digits thereof on the right side of the said open book and said figures, 1636 shall be raised and three-sixteenths of an inch in height (twelve point).

(b) *Meaning.* Said blazon or description of figures on said seal represents and is emblematical of recording and registering vital records and statistics since the founding of the city in 1636. The open book shall be a symbol of recording the vital record for posterity and the date 1636, a symbol of when the keeping of vital records was first started.

(c) *Custody, preservation.* There shall be one official seal, as described herein, for the city registrar and the city registrar shall keep said seal in good repair and shall replace said seal with a new one when necessary. He shall provide a suitable safe place in which to keep said seal, and shall never allow said seal to leave his custody or leave his office.

(d) *Use.* The city registrar shall affix imprint of said seal on such official documents which he may determine is necessary.
(Ord. 1941, ch. 1057, § 11; Rev. Ords. 1946, ch. 32, § 11)

Sec. 2-346. Seal of probate court.

(a) *Description.* The seal of the probate court of the city shall consist of two circles with a common center point. The smaller or inner circle shall be one and one-quarter inches in diameter and shall have a raised dotted or beaded circumference, approximately one thirty-second of an inch in thickness. The larger or outer circle shall be one and five-eighths inches in diameter and shall have a roped circumference, approximately one-sixteenth of an inch in thickness. In the space between the said two circumferences, reading clockwise, shall be the words: PROBATE COURT OF THE CITY OF PROVIDENCE, R. I., followed by a single small raised five pointed star and said words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). Within the smaller or inner circle shall be a raised open law book. A raised set of balance scales, in perfect balance, the beam of which shall be just above the top edges of said open book and the platforms or pans of said scale shall be just above the bottom edges of said open book.

(b) *Meaning.* Said blazon or description of figures on said seal represents and is emblematical of law and justice. The open book, as a symbol of law and the balanced scales, as a symbol of justice.

(c) *Custody, preservation.* There shall be one official seal of the probate court of the city. The clerk of said probate court shall be the custodian and keeper of said probate court seal. Said clerk shall keep the said seal in good repair and shall replace said seal with a new one when necessary. He shall provide a suitable safe place in which to keep said seal, and shall never allow said seal to leave his custody or leave his office.

(d) *Use.* Said clerk shall affix imprints of said seal on such official documents which the judge of the probate court may order and on such official documents which said clerk may determine is necessary.
(Ord. 1941, ch. 1057, § 12; Rev. Ords. 1946, ch. 32, § 12)

Sec. 2-347. Seal of board of canvassers and registration.

(a) *Description.* The seal of the board of canvassers and registration shall consist of two circles with a common center point. The smaller or inner circle shall be one and one-quarter inches in diameter and shall have a raised dotted or beaded circumference, approximately one thirty-second of an inch in thickness. The larger or outer circle shall be one and five-eighths inches in diameter and shall have a roped circumference, approximately one-sixteenth of an inch in thickness. In the upper part of the space between the said two circumferences, reading clockwise, shall be the words: BOARD OF CANVASSERS, preceded and followed by a raised five pointed star and said words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). In the lower part of the space between the said circumferences of the said two circles, reading counterclockwise, shall be the words: AND REGISTRATION, and said words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight point). Within the smaller or inner circle shall be a raised shield containing a raised anchor. The shank of said anchor shall be in a vertical position and through the center point of the said shield and said two circles. The stock, arms and flukes of said anchor shall be in the same plane and perpendicular to the shank of the said anchor. An anchor warp shall run from the anchor warp ring, entwining around the anchor shank, to the arms of said anchor. Just inside the upper part of the smaller or inner circle, between the circumference of said circle and the upper margin of said shield, reading clockwise, shall be the words: OF THE CITY OF, and said words shall be composed of raised capital Roman letters one-sixteenth of an inch in height (six point). Just inside the lower part of the smaller or inner circle, between the circumference of said circle and the lower margin of said shield, reading counterclockwise, shall be the words: PROVIDENCE, R. I., and said words shall be composed of raised capital Roman letters one-sixteenth of an inch in height (six-point).

(b) *Custody, preservation.* There shall be one official seal, as described herein, for the board of canvassers and registration of the city. The secretary of said board shall be the custodian and keeper of said seal. Said secretary shall keep said seal in good repair and shall replace the seal with a new one when necessary. He shall provide a suitable safe place in which to keep said seal, and shall never allow said seal to leave his custody or his office.

(c) *Use.* Said secretary shall affix imprints of said seal on such official documents which the board of canvassers and registration may order and on such official documents which said secretary may determine is necessary.
(Ord. 1941, ch. 1057, § 13; Rev. Ords. 1946, ch. 32, § 13)

Sec. 2-348. Seal of department of weights and measures.

(a) *Description.* The seal of the department of weights and measures shall consist of two (2) circles with a common center point. The smaller or inner circle shall be one and three-eighths (1⅜) inches in diameter, and shall have a raised roped circumference, approximately three sixty-fourths of an inch in thickness. The larger or outer circle shall be two (2) inches in diameter and shall have a raised sawtooth circumference, approximately three thirty-seconds of an inch in thickness. Within the smaller or inner circle shall be a reproduction of the seal of the city. In the upper part of the space between the said two (2) circumferences shall be, reading clockwise, the words: (Name of the superintendent of weights and measures who is ex officio sealer of weights and measures) followed by the words: SEALER OF WEIGHTS AND MEASURES and said name and words shall be composed of raised capital Roman letters three thirty-seconds of an inch in height (eight-point). In the lower part of the space between the said circumferences of said two (2) circles, reading counterclockwise, shall be the word: SEALED, followed by the figures of the current year; said word and figures shall be composed of raised capital Roman letters three thirty-seconds of an inch in height.

(b) *Custody preservation.* There shall be one official seal, as described herein, for the department of weights and measures of the city and it may be reproduced in paper or metal. The superintendent of weights and measures, ex officio sealer of weights and measures, shall be the custodian and keeper of said seal. He shall keep said seal in good repair and shall replace said seal with a new one when necessary. He shall provide a suitable safe place in which to keep said seal, and shall never allow said seal to leave his custody. He may have said seal reproduced in paper or metal or in any other suitable material so that he can affix it on weights and measures in carrying out the duties of his office.

(c) *Use.* Said superintendent of weights and measures, ex officio sealer of weights and measures, and his deputies, shall affix an imprint or reproduction of said seal on any document or weighing or measuring devices in accordance with the Statutes of the State of Rhode Island, the ordinances of the city or the rules of the city council.
(Ord. 1941, ch. 1057, § 14; Rev. Ords. 1946, ch. 32, § 14)

State law reference—List of state legal holidays, Gen. Laws, ch. 458, § 1.

Secs. 2-349, 2-350. Reserved.

ARTICLE XXII. ART IN CITY LIFE*

Sec. 2-351. Purpose.

The City of Providence accepts a responsibility for expanding experience with the visual arts. Such art enables people in our city to better understand and appreciate

*__Editor's note—__Ord. No. 1980, Ch. 80-39, enacted Sept. 4, approved Sept. 12, 1980, did not amend the Code; therefore, codification of §§ 1—7 as Art. XXII, §§ 2-351—2-357, has been at the editor's discretion.

their community, and artists capable of creating art for public spaces must be encouraged to do so. A policy is therefore established to direct the inclusion of works of art in public works of the City of Providence.
(Ord. 1980, ch. 80-39, § 1, 9-12-80)

Sec. 2-352. Definitions.

[As used in this article:]

Art in city life plan means the plan required by section 2-355.

Capital improvement program means any city department's program for advance planning of capital developments.

Commission means the art in city life commission.

Commission of artists means engagement of an artist either to construct a new work or to provide an existing work of art for a specified site.

Construction project means any capital project paid for wholly or in part by the City of Providence to construct or remodel any building, decorative or commemorative structure, park, street, sidewalk, parking facility or utility or any portion thereof within the City of Providence.

Eligible fund means money, regardless of source, for construction projects, from which art is not precluded.
(Ord. 1980, ch. 80-39, § 2, 9-12-80)

Sec. 2-353. Funds for works of art; informing commission of eligible projects.

All city department heads shall include in their annual municipal budget requests, as well as special requests, grant applications and other requests for appropriations for construction projects, an amount equal to at least one percent of the total project to be expended on works of art.

All city department heads shall regularly inform the art in city life commission of these eligible construction projects, and follow other procedures of the art in city life commission in accordance with section 2-355.
(Ord. 1980, ch. 80-39, § 3, 9-12-80)

Sec. 2-354. Art in city life commission.

(a) *Composition.* The art in city life commission shall be comprised of nine (9) members appointed by the mayor from the following Providence constituencies: Independent working artists, art organizations and affiliations, universities and colleges, the private sector. The mayor and city finance director shall serve ex officio on the art in city life committee.

(b) *Terms of office.* Each commissioner shall serve a two-year term, except for the nine (9) commissioners to be appointed initially, five (5) shall serve a two-year term, four (4) shall serve a one-year term. All future appointments, to be made annually, shall serve for two (2) years.

(c) *Nominations.* The art in city life commission as well as the community at large shall have the right and responsibility to annually submit nominations to the mayor for each year's appointments.
(Ord. 1980, ch. 80-39, § 4, 9-12-80)

Sec. 2-355. Art in city life plan.

The art in city life commission shall create and periodically update a public document concerning commission administrative policy, relating but not limited to the issues of staffing, procedures and needs of the commission. The commission shall, in this document, define its role in regard to the following responsibilities:

(a) Make periodic reviews at least annually, of all city capital improvement projects with appropriate city department heads or their designated representatives.

(b) Determine the specific allocation and/or amount to be expended for works of art.

(c) Prepare, adopt and amend a method or methods of selection and commissioning of artists with respect to the design, execution and placement of works of art for which appropriations have been made; and pursuant to such methods and City Charter procedures, select and commission artists by contract for such purposes.

(d) Require that any proposed work of art requiring extraordinary operation or maintenance expenses shall receive prior approval of the department head responsible for such operations or maintenance.

(e) Promulgate rules and regulations consistent with this article to facilitate the implementation of its responsibilities hereunder.
(Ord. 1980, ch. 80-39, § 5, 9-12-80)

Sec. 2-356. Placement of works of art.

Works of art selected and implemented pursuant to the provisions of this article and any amendment thereto may be placed in, on or about any municipal construction project or other municipally owned, leased or rented property. They may be attached or detached within or about such property, and may be either temporary or permanent. Placement of works of art shall be authorized by the commission, and specifically located through the cooperation of the art in city life commission and a representative of the appropriate city department and project architects, if any.
(Ord. 1980, ch. 80-39, § 6, 9-12-80)

Sec. 2-357. Fund established; disbursements.

There is established in the city treasury a special fund designated "Art in City Life Fund" into which funds appropriated shall be deposited. Each disbursement from such fund shall be authorized by the commission and shall be expressly designated as to payee and to purpose. Any funds carried over for three (3) years and still unexpended at the expiration of such period shall revert to general revenue; provided that, funds derived from revenue or general obligation bond issues or other special purposes or dedicated funds shall revert to the funds from which appropriated at the expiration of said three-year period.
(Ord. 1980, ch. 80-39, § 7, 9-12-80)

Sec. 2-358 Special committee for commemorative works.

(a) Definitions.

Commemorative work is defined as a monument, memorial, marker, and other similar permanent (intended to last for at least two (2) years) structures and installations intended to express or reflect the collective memory of an individual, group, or event and which are accepted by the city and installed or located on city property with city permission. Collective works exclude works of public art.

(b) There is hereby established within the city a special committee for commemorative works (the "committee") whose charge shall be to evaluate applications by the public for the creation of a new commemorative work or the modification, relocation, or deaccession of an existing commemorative work. The committee's role is advisory only.

(1) The committee shall consist of the following seven (7) members: one (1) member appointed by the city council, one (1) member appointed by the mayor, one (1) member appointed by the city archivist, one (1) member appointed by the director of the arts culture and tourism, and one (1) member appointed by the art in city life commission. The final two (2) positions shall be filled by the director of the department of art, culture, and tourism and the city archivist, or their designees, both of whom shall serve in ex-officio capacities only and may not vote. The director of the department of art, culture, and tourism and the city archivist shall provide support for the rest of the committee.

(2) Each appointed member shall serve a three-year term and may be reappointed an unlimited number of times.

(c) The director of the department art, culture, and tourism shall promulgate a process by which any individual may submit an application for review by the committee. The process shall also outline criteria to be followed by the committee.

(d) The city archivist shall prepare a two- to three-page brief for each commemorative work under review by the committee. The brief shall provide an impartial account of the development of the commemorative work including its historical and contemporary context. Further guidelines for the briefs brief shall be developed by the director of the department of art, culture, and tourism.

(e) The committee shall meet no fewer than two (2) times per year to evaluate applications consistent with the review process developed by the director of the department of art, culture, and tourism. A public hearing where public comment may be made by any individual shall be held for every commemorative work considered by the committee.
(Ord. No. 2020-21, § 1, 6-26-20; Ord. No. 2020-36, § 1, 10-22-20)

Secs. 2-359, 2-360. Reserved.

ARTICLE XXIII. CAPITAL CENTER*

Sec. 2-361. Purposes.

It has been determined that there exists within the City of Providence railroad and former railroad properties including the Union Station complex and adjacent lands thereto which are the subject of a railroad relocation project involving the coordination of federal, state, local and private action and which areas are in or contiguous to urban areas of the City of Providence of historical, aesthetic, social, cultural and economic importance which are hereby declared to be important public assets. It has also been determined that there is a need to design the development of such areas for the purposes of preserving for the citizens of Providence and the general public the important historical and aesthetic features of such areas, promoting of commercial and economic development and the attractiveness of our city for appropriate business, industrial and tourist trade resources and investment, and developing of an attractive environment that fosters the social welfare and health of the public and is harmonious with the social, historic and cultural environment that exists in the City of Providence, and the coordinating of the federal, state, local and private action that influences said railroad relocation project.

It is hereby declared to be an important public goal of the City of Providence to govern in a comprehensive and coordinated manner the development of such areas, including, implementation of special land use controls, proper urban planning,

*__Editor's note—__Nonamendatory ch. 82-54, approved Sept. 10, 1982, has been codified as Art. XXIII at the editor's discretion.

__Cross references—__Department of planning and urban development, § 2-161 et seq.; city plan commission, § 2-240 et seq.; redevelopment areas, § 20-1 et seq.; zoning, ch. 27 et seq.

developmental tools and the implementation and administration of the plan of development which sets forth design and development criteria regulation and enforcement procedures.

Finally, it is recognized that the State of Rhode Island has declared it a public purpose and policy of this state to encourage appropriate, comprehensive and coordinated development of railroad and former railroad properties and adjacent lands that are or may be the subject of railroad relocation projects and specifically has authorized creation of special development districts in each of the cities of the state and the creation of special development district commissions to adopt, implement, and administer plans of development that establish and enforce design development criteria and regulations for the development of such areas.
(Ord. 1982, ch. 82-54, Art. I, 9-10-82)

Sec. 2-362. Description of the special development district.

In accordance with the procedures established herein, the following described area which is part of or contiguous with a railroad or former railroad property and adjacent lands thereto shall be established, designated, laid out defined as the Capital Center Special Development District:

> The Capital Center Special Development District is that tract of land generally bounded by Gaspee Street, Smith Street, Canal Street, West Exchange Street and Interstate Route 95 but is more particularly described in that certain document entitled "Capital Center Project, Providence, Rhode Island" prepared for the City of Providence and the State of Rhode Island by Skidmore, Owings and Merrill, Washington, D.C., dated July 1980, attached hereto [but not reproduced herein] as Exhibit A.

(Ord. 1982, ch. 82-54, Art. II, 9-10-82)

Editor's note—It should be noted that ch. 1989-10, approved May 15, 1989, amended ch. 1982-54, approved Sept. 10, 1982, "to add the contiguous area generally bounded by Hayes Street, Francis Street, Gaspee Street, Promenade Street, and Interstate Route 95."

Sec. 2-363. Public hearings prior to designation of special development district and amendment of boundaries.

There shall be a public hearing by the committee on urban redevelopment, renewal and planning to investigate and make recommendations to the city council concerning the proposed Capital Center Special Development District. All interested persons shall be given opportunity to be heard at such public hearing. The city clerk is hereby instructed to give written notice of said hearing by registered or certified mail, at least seven (7) days before date of said hearing, to all owners of any real property within two hundred (200) feet of the perimeter of the proposed Capital Center Special Development District as described herein and also to give notice, by

publication in a newspaper of general circulation within this city at least once each week for three (3) successive weeks prior to the date of such hearing. Such newspaper notice containing a description of the proposed Capital Center Special Development District shall be inserted once in its entirety and thereafter a weekly formal legal notice shall be inserted stating that a public hearing will be held, specifying the time and place of such hearing and all such weekly formal notices shall include reference to said original advertisement which gave the full description. Written notice of such public hearing shall similarly contain a description of the proposed Capital Center Special Development District.

The boundaries of the proposed Capital Center Special Development District which are established, designated, laid out and defined according to provisions of this section may be amended only in accordance with the procedures set forth in this section.
(Ord. 1982, ch. 82-54, Art. III, 9-10-82)

Sec. 2-364. Designation of Capital Center Commission.

The Capital Center Commission, a commission constituted and established as a public corporation by the General Assembly, in the State of Rhode Island, is hereby designated as Capital Center Special Development District Commission for the Capital Center Special Development District. It shall adopt, implement and administer a plan of development for the Capital Center Special Development District. Said Capital Center Commission is hereby designated a public agency of the City of Providence and shall have all of the powers, rights, duties, obligations specified in Title 45, Chapter 24.4 of the Rhode Island General Laws, 1956, as amended.
(Ord. No. 1982, ch. 82-54, Art. IV, 9-10-82)

Sec. 2-365. Jurisdiction of zoning board of review.

All ordinances, rules, regulations and any part thereof that are in conflict with this article are hereby repealed: provided, that nothing herein shall be deemed to impair, amend, repeal or otherwise supersede the jurisdiction of the zoning board of review in the area designated Capital Center Special Development District pursuant to this article.
(Ord. 1982, ch. 82-54, Art. V, § 1, 9-10-82)

Secs. 2-366—2-370. Reserved.

ARTICLE XXIV. JUVENILE HEARING BOARD*

Sec. 2-371. Establishment.

There is hereby established within the city a juvenile hearing board with the powers set forth in this article for the purpose of hearing all cases referred to such board by the chief of the police department, with respect to persons resident in the city, under the age of eighteen (18) years, who are charged with violating the criminal laws of the State of Rhode Island of the City of Providence.
(Ord. No. 2021-31, § 1, 8-2-21)

Sec. 2-372. Referral.

Any person who is a resident of the city and under the age of eighteen (18) years who allegedly shall have committed a juvenile offense which if committed by an adult would be a misdemeanor, may request a hearing before the juvenile hearing board rather than being referred to the family court; provided, however, that said referral to the juvenile hearing board is made with the approval of the chief of police of the city, or his or her designee, and further provided, however, that referral to said juvenile hearing board shall not be offered to any juvenile:

(1) Who has been charged with the crime of assault or battery, except that in the case of simple assault, the chief, or assigned designee, may use his or her discretion in determining a referral; or

(2) Who shall have been twice previously referred to the board or who shall have been once previously referred to the board and refused or failed to abide by the sanctions imposed or to make the restitution recommended by the board; or

(3) Who at the time of commission of such juvenile offense was within the custody and control of the family court, not to include guardianship matters.

The chief of police, or assigned designee, may offer referral to the juvenile hearing board to any other juvenile where, in the opinion of the chief of police, or assigned designee, such referral would be beneficial to the juvenile concerned and the community at large. No referral to the board shall be made until such person, together with his/her legal guardians, shall have, in writing, waived such person's right to a hearing in the family court with respect to the offense charged, shall have admitted guilt to the offense charged, and shall have agreed to abide by the decision

*__Editor's note—__Ord. No. 2021-31, § 1, adopted Aug. 2, 2021, repealed the former art. XXIV, §§ 2-371—2-377, and enacted a new art. XXIV as set out herein. The former art. XXIV pertained to similar subject matter and derived from Ord. No. 2016-20, § 1, adopted June 20, 2016.

of the board; provided, however, that failure to comply with the decision of the board may result in the referral of said juvenile to the family court by the chief of police, or assigned designee.
(Ord. No. 2021-31, § 1, 8-2-21)

Sec. 2-373. Refusal of referral.

During a hearing as described in section 2-376, the board, after investigation, may refuse to hear any case in which it appears that a juvenile was wrongfully referred in violation of section 2-372 above. In addition, the board may refuse to hear any case in which the juvenile refuses to supply the board with requested information, fails to appear when requested or refuses to cooperate with the proceedings of the board. The board shall immediately notify the chief of police, in writing, of any case which it refuses to hear, and the chief of police shall take whatever further action that is deemed necessary, including referral to the family court.
(Ord. No. 2021-31, § 1, 8-2-21)

Sec. 2-374. Duties.

(a) The board shall hear all cases referred to it by the chief of police or assigned designee and shall recommend sanctions (other than incarceration), and shall direct restitution for any injuries resulting from the commission of such offense.

(b) Sanctions imposed by the board shall be for a period of time not to exceed six (6) months and may consist of, but not be limited to, public service, referral to counseling, curfews, restrictions on association with other juvenile's with cases before the board, or restrictions on employment.

(c) In those cases in which the board shall order restitution, it shall attempt to assist the juvenile and his/her parents in providing a means whereby the juvenile may make such restitution, in ordering restitution, the board shall take into account the juvenile's ability to pay and the amount of actual damages caused as a result of the commission of such offense.

(d) In any such proceeding, the board, prior to imposing sanctions, shall request the juvenile and his/her parents to agree to the sanctions imposed and to agree to the amount of restitution and manner of making the same. In imposing sanctions or ordering restitution, the board shall consider the nature of the offense, the prior record of the juvenile, and any mitigating circumstances involved.

(e) Every member of the board, as well as the juvenile hearing board coordinator, the Providence Police Department, and any other individuals involved in the operation of the board shall sign confidentiality agreements prepared by the city solicitor's office prior to handling any materials associated with juvenile cases.
(Ord. No. 2021-31, § 1, 8-2-21)

Sec. 2-375. Meetings.

At the beginning of each calendar year, the board shall conduct an organizational meeting. For purposes of any organizational meeting of the board, a majority of the members of the board shall constitute a quorum. The board shall elect by simple majority one (1) from its members as its chairperson and one (1) as its vice-chairperson. In the absence of the chairperson, the vice-chairperson shall be the presiding officer. A majority of the members present shall be required to take any action. The board shall have the power from time to time to convene an organizational meeting to draft rules governing its proceedings or to amend or repeal any rules theretofore adopted, with the approval of the chief of police, and not inconsistent with this article.
(Ord. No. 2021-31, § 1, 8-2-21)

Sec. 2-376. Hearings.

(a) The board shall meet not less than once each month for purposes of hearing cases referred to the board pursuant to section 2-372. The board shall give written notice of the matters to be heard before it to the chief of police, and/or assigned designee, the juvenile officer, and the juvenile and his/her parents, not less than ten (10) days prior to the date of the hearing. Said notice shall set forth the nature of the offense, the time and place of the hearing, and the juvenile's right to be represented by counsel at the juvenile's expense. Said ten-day notice requirement may be waived by the express written consent of the juvenile.

(b) For purposes of conducting hearings, or multiple hearings on a given day, as described in this section, a maximum of five (5) board members may be present and a total of three (3) members shall constitute a quorum. All hearings shall be conducted pursuant to section 2-374 and shall be closed to the public.

(c) The chairperson, and in their absence the vice-chairperson, shall have the discretion to assign members to conduct hearings as described in this section.

(d) Hearings conducted pursuant to this section shall be limited to a maximum of thirty (30) minutes per case. In the event the members determine that a particular case requires additional time for consideration, this time limit may be extended for an additional fifteen (15) minutes by affirmative vote of the members present for the hearing.

(e) During the course of a hearing, members shall limit the scope of their questions to those areas that are directly pertinent to the case file before them.
(Ord. No. 2021-31, § 1, 8-2-21)

Sec. 2-377. Composition.

(a) The membership of the board shall consist of fifteen (15) members to be appointed by the city council president, none of whom shall run for elected office at the municipal, state, or federal level, hold an elected office in any capacity, or belong

to or be appointed to any partisan organization in any city or town during their term as a member of the board. The composition of the board shall consist of citizens of Providence who have background in and of the related fields of education, probation and parole, human services community youth programs, members of the clergy, former law enforcement or judicial officials, or any citizen who the council deems has the credentials that would be an asset to the board.

(b) Terms. Members shall be appointed by the city council president and shall serve for a term of three (3) years. Upon expiration of these initial terms, members shall continue to serve on the board until a new member is appointed to replace them. All three-year terms shall expire at the end of their respective third calendar year (December 31) notwithstanding the actual date of appointment. Vacancies shall be filled as necessary. Members serve at the pleasure of the city council president and may be removed at any time.

(c) No member of the board shall be entitled to receive any compensation by reason of his or her service on the board. An attorney from the city solicitor's office shall be assigned as necessary in an advisory role to the board.

(d) Any proposed appointee shall first obtain a BCI background check conducted by the Rhode Island Attorney General's office. Prior conviction(s) shall not result in automatic disqualification from appointment to the board unless the underlying crime or crimes directly relate to the work to be performed as a member of the board. All board members shall have an affirmative obligation to immediately inform the city council president and the chairperson of the board in the event they are arrested during their term as a board member, and the failure to do so shall result in automatic removal from the board.
(Ord. No. 2021-31, § 1, 8-2-21)

Sec. 2-378. Juvenile hearing board coordinator.

(a) *Purpose.* The purpose of the juvenile hearing board coordinator is to organize meetings, locate available services and provide follow up assistance for juveniles seen by the board.

The coordinator:

(1) Acts as the link to service agencies that can provide needed mental health/social service evaluations and services to juveniles.

(2) Serves as the link between the board and the police, receiving notifications about referrals and scheduling appropriate meetings.

(3) Reports vacancies to the city council.

(4) Assists the board with the process of assigning sanctions as may be determined pursuant to section 2-374, and monitors each case file to ensure compliance with any and all sanctions imposed by the board.

(b) *Appointment.* The city council president shall appoint a coordinator, and may consider recommendations from the board. The coordinator shall be an employee of the city council with extensive knowledge of social services, community services, counseling and mental health resources, management, or equivalent training or experience in one (1) or more of those areas.

(c) *Eligibility.* The coordinator must meet eligibility requirements prescribed in this section.

(d) *Relationship to board.* The coordinator is not a voting member of the board and may not be counted for establishing a quorum.

(e) *Reporting.* The coordinator shall file an annual report with the city clerk detailing:

(1) The number of cases handled by the board for the prior calendar year;

(2) The outcomes for the cases handled by the board;

(3) Recommendations for any improvements to the ordinance, by-laws, or practices and procedures that may improve the work of the board; and

(4) Such other relevant statistics and information as may be required by the city council that assist the review and improvement of the juvenile hearing board process.

(Ord. No. 2021-31, § 1, 8-2-21)

Secs. 2-379—2-390. Reserved.

ARTICLE XXV. TRUANCY BOARD

Sec. 2-391. Establishment.

Pursuant to General Laws, section 16-19-8, there is hereby established within the city a truancy board having the powers set forth in this article for the purpose of

hearing all cases referred to such board by the superintendent of the Providence School Department, or his or her designee. The superintendent shall exercise such referral with respect to children who are between the ages of six (6) and sixteen (16) inclusive, who are residents in the city, and who are allegedly in violation of Chapter 19 of Title 16, entitled "Compulsory Attendance" of the General Laws of the State of Rhode Island.
(Ord. 1998, ch. 98-53, § 1, eff. 11-13-98)

Sec. 2-392. Referral of truant offenders to board.

(a) Any child between the ages of six (6) and sixteen (16), inclusive, who is a resident of the city and who, allegedly, shall have violated Chapter 19 of Title 16, may request a hearing before the truancy board rather than being referred to the family court; provided, however, that the referral to the truancy board is made with the approval of the superintendent of the school department or his or her designee and further provided that referral to the truancy board shall not be available to any child:

(1) Who shall have been twice previously referred to the board or who shall have been once previously referred to the board and refused or failed to abide by the sanctions imposed by the board; or

(2) Who at the time of the truancy was within the custody and control of family court, "not to include guardianship matters."

(b) The superintendent of the school department or his or her designee may refer any other child allegedly in violation of General Laws, section 16-19-1 et seq. to the truancy board when, in the opinion of the superintendent of the school department or his or her designee, such referral would be beneficial to that child and the community.

(c) No referral to the board shall be made by the superintendent of the school department or his or her designee until such child, together with his/her legal guardians, shall have in writing:

(1) Waived such child's right to a hearing in the family court with respect to the non-attendance at school;

(2) Admitted to being a habitual truant;

(3) Agreed to abide by the decision of the board;

(4) Acknowledged that failure to comply with the decision of the board may result in the referral of the child to the family court for truancy by the superintendent of the school department or his or her designee.
(Ord. 1998, ch. 98-53, § 2, eff. 11-13-98)

Sec. 2-393. Refusal of referral.

The board, after investigation, may refuse to hear any case in which it appears that a child was wrongfully referred to it in violation of section 2-392. In addition, the

board may refuse to hear any case in which the child refuses to supply the board with requested information, fails to appear when requested or refuses to cooperate with the proceedings of the board. The board shall immediately notify the superintendent, in writing, of any case which it refuses to hear, and the superintendent shall take whatever further action that he/she deems necessary, including referral to the family court.
(Ord. 1998, ch. 98-53, § 3, eff. 11-13-98)

Sec. 2-394. Legal representation.

Any child shall be entitled to be represented by counsel and be entitled to present evidence at the hearing. The costs for any legal representation or any other costs incurred by the child shall be at the child's own expense.
(Ord. 1998, ch. 98-53, § 4, eff. 11-13-98)

Sec. 2-395. Powers and duties; imposition of sanctions.

(a) The board shall hear all cases approved by or referred to it by the superintendent within the parameters of subsection (b) hereinbelow.

(b) The board may impose sanctions for a period not to exceed six (6) months. Sanctions may consist of, but shall not be limited to public service, referral to counseling, curfews, restrictions on employment, or any combination of the above. In imposing sanctions, the board shall consider the length of the truancy, the prior record of the child, and any mitigating circumstances involved.

(c) The board shall have the right to levy hearing costs against the child.
(Ord. 1998, ch. 98-53, § 5, eff. 11-13-98)

Sec. 2-396. Meetings and rules of procedure.

(a) The board shall meet not fewer than one time each month and board meetings shall comply with the Open Meetings Act, General Laws, section 42-46-1 et seq. Whenever a hearing is scheduled with respect to a particular child, the child, his or her legal guardian(s), and the truant officer, shall be notified in writing of the same. The notice shall set forth the nature of the allegations against the child, the time and place of the hearing, and shall state the child's right to be represented by counsel at the child's own expense.

(b) A majority of the members of the board shall constitute a quorum, and its proceedings shall be closed to the public. The board shall elect one of its members as its chairperson and one as its vice-chairperson. In the absence of the chairperson, the vice-chairperson shall be the presiding officer. A majority of the members present shall be required to take any action. The board shall have the power from time to time to draft rules governing its proceedings or to amend or repeal any rules therefore adopted, and not inconsistent with this article.
(Ord. 1998, ch. 98-53, § 6, eff. 11-13-98)

Sec. 2-397. Membership, term of office.

The membership of the board shall consist of five (5) persons each of whom shall be appointed by the city council. Each appointee shall have been a resident of the city for not fewer than five (5) years and may be a member of the clergy, law enforcement, the judiciary or shall have knowledge and/or experience in education, probation and parole, human services, community youth programs, or such training and experience so as to benefit the juvenile appearing before the board.

Upon enactment of this article, the city council shall appoint one (1) member to a term which shall expire on January 1, 2000; two (2) members to terms which shall expire on January 1, 2001; and two (2) members to terms which shall expire on January 1, 2002. Thereafter, upon expiration of a term, the City Council shall make appointment(s) for three (3) years terms.

In the event of a vacancy occurring in the office of a member by death, resignation or otherwise, such vacancy shall be filled in like manner as the original appointment, but only for the remainder of the term of the former member. No member of the board shall be entitled to receive any pension service credits by reason of his or her service of the board. Any appointee may be removed when, after appropriate notice and hearing, the majority of council persons then in attendance finds just cause exists for such removal.
(Ord. 1998, ch. 98-53, § 7, eff. 11-13-98)

ARTICLE XXVI. CONSERVATION COMMISSION

Sec. 2-398. Creation and purpose of commission.

Pursuant to Rhode Island General Laws, section 45-35-1, the city council hereby creates a conservation commission, the purpose of which is to promote and develop the natural resources, protect the watershed resources, and preserve natural esthetic areas within the city. The commission shall conduct researches into its local land areas and seek to coordinate the activities of unofficial bodies organized for similar purposes, and may advertise, prepare, print, and distribute books, maps, charts, plans, and pamphlets which in its judgment it deems necessary for its work. It shall make and keep an index of all open spaces within the city, publicly or privately owned, including open marshlands, swamps, and other wetlands for the purpose of obtaining information on the proper use of those areas. It may make recommendations to the mayor, city council, agencies, boards, commissions and departments for the better promotion, development, utilization, or preservation of open areas, streams, shores, wooded areas, roadsides, swamps, marshlands, and natural esthetic areas. It shall keep accurate records of its meetings and actions and file an annual report with the council. It has power to appoint, subject to any personnel procurement program ordained by the city, clerks and other employees it may from time to time require.
(Ord. 2006, ch. 06-40, § 1, 8-3-06)

Sec. 2-399. Appointment of commission members.

The commission shall consist of seven (7) members appointed by the mayor with the advice and consent of the council. The members of the commission shall be appointed for three-year terms, except the initial appointments of some of the members shall be for less than three (3) years to the end that the initial appointments shall be staggered and so that all subsequent vacancies shall not occur at the same time. In the event of a vacancy, interim appointments may be made by the appointing authority to complete the unexpired term of the position. Duly incorporated and existing wildlife, environmental, watershed, conservation, sportsmen's, horticultural, or like organizations may present to the appointing authority a list of citizens who are residents of the city and have experience in the preservation of open areas, streams, shores, wooded areas, roadsides, swamps, marshlands, and natural esthetic areas from which lists the appointing authority must select at least three (3) members of the commission though not more than one representative may be selected from any single organization.
(Ord. 2006, ch. 06-40, § 1, 8-3-06)

Sec. 2-400. Meetings; records.

All meetings of the commission are subject to the open meeting law, and any person or that persons duly constituted representative is entitled to appear and be heard on any matter before the commission before it reaches its decision. All records of its proceedings, resolutions, and actions are open to public view.
(Ord. 2006, ch. 06-40, § 1, 8-3-06)

Sec. 2-401. Commission activities.

(a) Promote and develop natural resources, protect the watershed resources, and preserve natural esthetic areas within the city.

(b) Conduct research into local land areas and promote the coordination activities by unofficial bodies organized for similar purposes.

(c) Advertise, prepare, print, and distribute books, maps, charts, plans, and pamphlets which in its judgment it deems necessary for its work.

(d) Make and keep an index of all open spaces within the city, publicly or privately owned, including open marshlands, swamps, and other wetlands for the purpose of obtaining information on the proper use of those areas.

(e) Make recommendations for the better promotion, development, utilization or preservation of open areas, streams, shores, wooded areas, roadsides, swamps, marshlands, and natural esthetic areas.

(f) Consult and confer with other statewide and regional conservation commissions with regard to new or existing information, policies, and issues as they pertain to the commission.

(g) Attend and sponsor educational and awareness seminars relevant to conservation issues as they pertain to the purpose of the commission.

(h) Serve in an advisory capacity to the mayor and the city council on proposals or projects concerning preservation of open areas, streams, shores, wooded areas, roadsides, swamps, marshlands, and natural esthetic areas.
(Ord. 2006, ch. 06-40, § 1, 8-3-06)

Sec. 2-402. Staff assistance.

Clerical assistance for the purpose of sending notices for meetings and hearings, receiving and sending notices to city agencies, and the keeping of minutes of the various meetings, shall be provided by the office of the city clerk. The conservation commission may request and receive technical assistance and information from city agencies and departments as they directly pertain to the role of the commission and the departments and agencies.
(Ord. 2006, ch. 06-40, § 1, 8-3-06)

ARTICLE XXVII. PROHIBITION OF AWARDING PUBLIC CONTRACTS TO CERTAIN CAMPAIGN CONTRIBUTORS*

Sec. 2-403. Definitions.

As used in sections 2-404 through 2-410, these terms shall be defined as follows:

Business shall have the same meaning as R.I.G.L. § 36-14-2.

Executive officer means any person who is appointed or elected as an officer of a business entity by either the incorporators, stockholders, or directors of the business entity who is in charge of a principal business unit, division, or function of the business entity, or participates or has authority to participate other than in the capacity of a director in major policy-making functions of the business entity or who is actively engaged in soliciting business from the state or conducting, other than in a ministerial capacity, business with the city; provided, that officers of the business entity who are located outside the State of Rhode Island, are not residents of the state, and do not participate in the business of the business entity within this state shall be exempted from the requirements of this article.

Key person or *key people,* with regard to a particular business, shall include the following individuals:

(1) All persons holding an ownership interest in the business either:

a. Ten (10) percent or greater,

b. Five thousand dollars ($5,000.00) or greater, or both.

***Note—**The provisions of this article are in effect with all contracts executed on or after January 1, 2016.

(2) All executive officers of the business;

(3) Any spouse or dependent child of any individual identified in subsections (1) through (2) above.

Regulated services includes businesses and professions regulated under R.I.G.L. tit. 5, as well as legal services, media, public relations, lobbying, insurance coverage services or any other consulting and/or management service, or those which are original and creative in character in a recognized field of artistic endeavor.

Regulated contract means any contract which:

(1) Is for the provision of a regulated service;

(2) Is not awarded to the low bidder by the board of contract and supply; and

(3) Is for one hundred thousand dollars ($100,000.00) or more.

Individual threshold means:

(1) Two hundred dollars ($200.00) for a member of the Providence City Council and/or a candidate for the Providence City Council, and

(2) Five hundred dollars ($500.00) for the Mayor of Providence and/or a candidate for the position of Mayor of Providence.

Company threshold means:

(1) One thousand five hundred dollars ($1,500.00) in contributions to a member of the Providence City Council and/or a candidate for the Providence City Council, and

(2) Four thousand dollars ($4,000.00) in contributions to the Mayor of Providence and/or a candidate for the position of Mayor of Providence.

(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

Sec. 2-404. Prohibition on awarding public contracts to certain contributors.

(a) The city may not enter into a regulated contract with any business entity if any key person for the business:

(1) Has made a contribution or pledge of money in an amount over the contribution threshold within one (1) calendar year immediately preceding the date of the execution of regulated contract, including in-kind contributions (as that term is defined in R.I.G.L. § 17-25-3), to any city municipal candidate or holder of the public office having ultimate responsibility for the award of the contract under subsection (d); or

(2) Has contributed more than the "contribution threshold" within one (1) calendar year immediately preceding the date the business executes the regulated contract to a campaign committee supporting such candidate or officeholder, to

any city party committee, or to any political action committee (PAC) that regularly engages in the support of municipal elections and/or municipal parties.

(b) The city may not enter into a regulated contract with any business entity if the key people of the business, as an aggregate group:

(1) Has made a contribution or pledge of money in an amount over the company threshold within one (1) calendar year immediately preceding the date the business executes the regulated contract, including in-kind contributions (as that term is defined in R.I.G.L. § 17-25-3), to any city municipal candidate or holder of the public office having ultimate responsibility for the award of the contract under subsection (d); or

(2) Has contributed more than the "company threshold" within one (1) calendar year immediately preceding the date of the regulated contract to a campaign committee supporting such candidate or officeholder, to any city party committee, or to any political action committee (PAC) that regularly engages in the support of municipal elections and/or municipal parties.

(c) The office(s) considered to have ultimate responsibility for the award of a regulated contract shall be:

(1) The city council and the mayor, if the regulated contract requires approval by the city council.

(2) The mayor, if the contract requires approval of the mayor, or if a public officer who is responsible for the award of a contract is appointed by the mayor.

(d) No person may be awarded a subcontract to perform under a regulated contract, if the subcontractor would otherwise be disqualified by subsection (a) at the time that the subcontract is awarded, nor may any such person perform substantially all of obligations described in a regulated contract.
(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

Sec. 2-405. Contributions made prior to effective date.

No contribution of money or any other thing of value, including in-kind contributions (as that term is defined in R.I.G.L. § 17-25-3), made prior to the effective date of this article by a business entity to any municipal candidate, or municipal party committee or PAC shall be deemed a violation of this section, nor shall a regulated contract be disqualified thereby.
(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

Sec. 2-406. Contribution statement; duty to report violations.

(a) Prior to awarding any regulated contract, the city shall receive a sworn statement from the business entity made under penalty of perjury that it has not made a contribution in violation of section 2-404.

(b) The business entity shall have a continuing duty to report any contributions made during the negotiation or duration of a regulated contract.
(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

Sec. 2-407. Reimbursement of contributions.

A business entity may cure a violation of section 2-404 if, within thirty (30) days after contribution, the business entity notifies the city clerk in writing and seeks and receives reimbursement of the contribution from the municipal candidate or municipal political party or PAC.
(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

Sec. 2-408. Breach of regulated contract.

(a) It shall be a material breach of the terms of regulated contract, and thus grounds for its termination, for a business entity to:

(1) Make or solicit a contribution in violation of this article;

(2) Knowingly conceal or misrepresent a contribution given or received;

(3) Make or solicit contributions through intermediaries for the purpose of concealing or misrepresenting the source of the contribution;

(4) Make or solicit any contribution on the condition or with the agreement that it will be contributed to a campaign committee of any candidate or holder of the public office of the city;

(5) Engage or employ a lobbyist or consultant with the intent or understanding that such lobbyist or consultant would make or solicit any contribution, which, if made or solicited by the business entity itself, would subject that entity to the restrictions of this article;

(6) Fund contributions made by third parties, including consultants, attorneys, family members, and employees;

(7) Engage in any exchange of contributions to circumvent the intent of this article; or

(8) Directly or indirectly, through or by any other person or means, do any act which would subject that entity to the restrictions of this article.

(b) Any business entity that violates subsections (a)(1) through (8) shall be disqualified from eligibility for future city contracts for a period of four (4) calendar years from the date of violation.

(c) The determination of whether a city contract has been violated under this section will be made by the city treasurer. A business entity may appeal the decision of the city treasurer to the director of administration.
(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

Sec. 2-409. Conflicting ordinances.

This article takes precedence over any conflicting provision to the extent of such conflict.
(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

Sec. 2-410. Severability.

If any section, subsection, paragraph, sentence, clause, phrase, or word contained in this article shall be declared invalid for any reason whatsoever, such decision shall not affect the remaining portions of this article, which shall remain in full force and effect, and, to this end, the provisions of this article are hereby declared to be severable.
(Ord. 2014, ch. 2014-11, § 3, 6-12-14)

ARTICLE XXVIII. ECONOMIC DEVELOPMENT PLANNING COMMISSION*

Sec. 2-411. Creation and purpose of commission.

The city shall establish an economic development commission commencing in January 2015. The commission shall develop and implement a written comprehensive economic development policy for the city and a strategic plan for implementing said policy. The policy shall set long-term goals and measurable benchmarks.
(Ord. 2014, ch. 2014-54, § 1, 12-4-14)

Sec. 2-412. Appointment and term of commission members.

The economic development planning commission shall consist of seventeen (17) members. Six (6) members shall be appointed by the city council and six (6) members shall be appointed by the mayor, from among individuals with experience in higher education in Rhode Island, public policy, municipal government, the business community, development, environmental sustainability, and/or labor organizations. Additionally, the following individuals shall serve ex-officio on the economic development planning commission: the director of economic development, who shall serve as chair; the director of inspections and standards; the director of planning and development; the director of finance; and the superintendent of schools. Members shall be appointed in the January following a municipal election and shall serve for a term of one (1) year or until an economic development plan has been approved by the mayor and city council.
(Ord. 2014, ch. 2014-54, § 1, 12-4-14)

***Editor's note—**Ord. 2014, ch. 2014-54, § 1, adopted Dec. 4, 2014, added provisions to the Code designated as Art. XXVII, §§ 2-403—2-407. Inasmuch as there were sections already so designated, the added provisions were redesignated as Art. XXVIII, §§ 2-411—2-415 at the discretion of the editor.

Sec. 2-413. Commission activities.

(a) The commission shall, with the director of economic development, and the director of planning and development, develop and implement a written comprehensive economic development policy for the city and a strategic plan for implementing the policy. The policy shall set long-term goals and measurable benchmarks which are not limited to a particular mayoral administration, and shall give consideration to any impacts the plan may have on businesses employing ten (10) or fewer people. The strategic plan shall include any major economic development initiatives and programs of the office of economic development, the department of planning and development, and any other relevant agencies and departments.

(b) In developing the economic development plan and policy, the commission shall review the published economic development plan and policy in effect at the commencement of the mayor's term.

(c) In carrying out its responsibilities, the commission may:

(1) Accept grant funds and in-kind contributions from governmental and private entities;

(2) Hold public hearings;

(3) Invite academic experts and other witnesses to submit testimony; and

(4) Subject to funding, contract with experts and consultants as necessary to inform deliberations and recommendations.

(d) Upon approval by the commission of the plan and policy, the commission shall submit the plan and policy to the city council. The approved plan and policy shall be published in writing and on the official website of the city not later than December 31 of that year.
(Ord. 2014, ch. 2014-54, § 1, 12-4-14)

Sec. 2-414. Cooperation required.

The office of economic development, and the department of planning and development shall be responsible for staffing the work of the commission. All departments represented on the commission shall cooperate with the commission to facilitate the purposes of this article. All departments, offices, boards and agencies of the city shall cooperate with the economic development planning commission, and furnish such administrative and staff support, advice, information, documents and otherwise, data and data analyses and other support as may be necessary or desirable.
(Ord. 2014, ch. 2014-54, § 1, 12-4-14)

Sec. 2-415. Meetings; records.

In addition to any other applicable law, rules or regulations, the economic development planning commission shall be subject to the provisions of the Open Meeting Act, Title 42, Chapter 46 of the Rhode Island General Laws and the Public Records Act, Title 38, Chapter 2 of the Rhode Island General Laws.
(Ord. 2014, ch. 2014-54, § 1, 12-4-14)

Chapter 3

ADVERTISING*

Sec. 3-1. Distribution of handbills, circulars, similar items.
Sec. 3-2. Calling attention to displays, sales, business conducted within building.
Sec. 3-3. Advertising shows, exhibitions and theatricals.
Sec. 3-4. Posting, affixing, bills, posters, signs, notices to structures.
Sec. 3-5. Erection, display of bills, posters, signs, notices on highway.
Sec. 3-6. Penalties.

*__Cross references—__Signs required by commercial parking lots, § 14-68; signs required by intelligence officers, § 14-112; affixing notices, distributing circulars, etc., §§ 18-10, 18-11; erection of projecting signs prohibited in pedestrian mall, § 23-83.

Sec. 3-1. Distribution of handbills, circulars, similar items.

No person shall distribute, or cause to be distributed, any handbill, circular, program, or slip of a commercial nature in or upon any street, highway, mall, plaza or public place within the city.
(Ord. 1929, ch. 716, § 1; Rev. Ords. 1946, ch. 3, § 1; Ord. 1966, ch. 1747, § 1)

Sec. 3-2. Calling attention to displays, sales, business conducted within building.

No person shall stand in or upon any street, highway, mall, plaza or public place within the city or in the entrance or hallway of any building in the city for the purpose of calling the attention of any person in the street, highway, mall, plaza or public place to goods, wares or merchandise displayed or on sale or to business conducted within any building.
(Ord. 1929, ch. 716, § 1; Rev. Ords. 1946, ch. 3, § 1; Ord. 1966, ch. 1747, § 1)

Cross reference—Peddlers and hawkers, § 14-171 et seq.

Sec. 3-3. Advertising shows, exhibitions and theatricals.

No person shall expose, display, post up or exhibit any placard, poster, bill or picture of any show, exhibition, theatrical or other performance in or on any building, billboard, wall or fence on any street in the city unless such placard, poster, bill or picture shall have first been approved by the commissioner of public safety.
(Ord. 1914, ch. 30, § 37; Rev. Ords. 1946, ch. 3, § 5)

Cross reference—Licensing, regulation of shows and other amusements, § 14-193 et seq.

Sec. 3-4. Posting, affixing, bills, posters, signs, notices to structures.

No person shall post or otherwise affix, nor cause to be posted or affixed, any bill, poster, or notice upon any tree, fence, post, pole or Rhode Island Public Transit Authority bus shelters, or other structures within or upon the occupation line of any street or highway; and, no person shall paint, print, mark, or cause to be painted, printed or marked, any sign, notice or advertisement upon any tree, fence, board, post, pole or Rhode Island Public Transit Authority bus shelter or other structure within or upon the occupation line of any street or highway. This section shall be enforced by the Providence Police Department. The director of public works or his or her designee is empowered to remove any materials that constitute a violation of this section.
(Ord. 1914, ch. 30, §§ 35, 36; Rev. Ords. 1946, ch. 3, § 4; Ord. 1978, Ch. 78-3, § 1, 1-5-78; Ord. 2010, ch. 2010-42, § 1, 12-2-10; Ord. 2013, ch. 2013-28, § 1, 7-18-13)

Sec. 3-5. Erection, display of bills, posters, signs, notices on highway.

No person shall erect, place or display any sign, notice or advertisement, within or upon the occupation line of any street or highway, except as permitted by the building

code and zoning ordinance. This section shall be enforced by the Providence Police Department. The director of public works or his or her designee is empowered to remove any materials that constitute a violation of this section.
(Ch. 3, § 6, added by Ord. 1959, ch. 1273, §§ 1, 2; Ord. 2010, ch. 2010-42, § 1, 12-2-10; Ord. 2013, ch. 2013-28, § 1, 7-18-13)

Sec. 3-6. Penalties.

(a) Any person or business violating any provision of sections 3-4 or 3-5 shall be fined as follows:

First offense - up to seventy-five dollars ($75.00).

Second offense - up to one hundred fifty dollars ($150.00).

Third and any subsequent offenses - up to three hundred dollars ($300.00).

(b) Any person who violates any provision of sections 3-4 or 3-5 may, on application to and approval by a judge of the municipal court, in lieu of paying such fine, perform public service reasonably related to the violation as the judge deems appropriate.

(c) Any entity who knows or has reason to know that its name, insignia or contact information appears on any bill, poster, or notice in violation of sections 3-4 or 3-5 may be held jointly and severally liable with those who post, affix or cause to be posted or affixed any bill, poster or notice in violation of sections 3-4 or 3-5.
(Ord. 2012, ch. 2012-16, § 1, 3-15-12; Ord. 2013, ch. 2013-28, § 1, 7-18-13)

Chapter 4

ANIMALS AND FOWL*

Article I. In General

Sec. 4-1. Establishment of public pound.
Sec. 4-2. Running at large.
Sec. 4-3. Keeping swine.
Sec. 4-4. Reserved.
Sec. 4-5. Bins for manure and refuse, removal of manure and refuse.
Sec. 4-6. Burying dead animals.
Sec. 4-7. Transporting dead animals.
Sec. 4-8. Contract for removal of dead animals.
Sec. 4-9. Euthanization by lethal injection only.
Sec. 4-10. Disposition or destruction of animals.
Sec. 4-11. Minimum care of animals.
Sec. 4-12. Confinement of animals in motor vehicles prohibited.
Sec. 4-13. Traveling circuses prohibited.
Secs. 4-14—4-18. Reserved.

Article II. Dogs

Sec. 4-19. Licensure and proof of vaccinations.
Sec. 4-20. Regulations for dogs in city parks and conservation areas; penalty for violations.
Sec. 4-21. Prohibition on access to school property, athletic fields, playgrounds, or recreational areas.
Sec. 4-22. Dog breeding.
Sec. 4-23. Keeping and harboring additional dogs.
Sec. 4-24. Prohibition of the sale of dogs and cats.
Sec. 4-25. Molesting, injuring, interfering with dogs of police department.
Sec. 4-26. Fees for special constable destroying, listing dogs.
Sec. 4-27. Canine waste and its removal.
Sec. 4-28. Sheltering, tethering and nourishment of dogs.
Sec. 4-29. Penalty for violation of sections 4-11 and 4-28.
Sec. 4-30. Reserved.

Article III. Control of Dogs and Other Animals

Sec. 4-31. Definitions.

***Cross references—**Location, construction, etc., of stables, § 5-32 et seq.; slaughtering of poultry, §§ 10-104 et seq.; feeding domesticated birds, fowl, animals, § 12-118; feeding wild birds, § 12-119; animals in parks, § 18-8.

Sec. 4-32. Enforcement.
Sec. 4-33. Restraint of dogs required.
Sec. 4-33.1. Fee for owner-requested destruction of dog.
Sec. 4-34. Impoundment of dogs and other animals.
Sec. 4-34.1. Proof of ownership required prior to impounding dog or cat.
Sec. 4-35. Redemption of impounded dogs or other animals.
Sec. 4-36. Impoundment fees.
Sec. 4-37. Confinement of dogs and other animals in heat.
Sec. 4-37.1. Maximum number of dogs allowed.
Sec. 4-37.2. Maximum number of felines allowed.
Sec. 4-37.3. Maximum chicken hens allowed.
Sec. 4-38. Rabies control.
Sec. 4-39. Reports of bite cases.
Sec. 4-40. Responsibilities of veterinarians.
Sec. 4-41. Exemptions from article provisions.
Sec. 4-42. Vaccination prerequisite to permitting dog in city.
Sec. 4-43. Vaccine to be approved; certification of inoculation or vaccination.
Sec. 4-44. Certificate prerequisite to licensing dog.
Sec. 4-45. Immunization prerequisite to owning, keeping, harboring dog.
Sec. 4-46. Impounding, disposal of unvaccinated, uninoculated dog.
Sec. 4-46.1. Vaccination and impoundment of at-large dogs.
Sec. 4-47. Conditions declared nuisance; abatement required.
Sec. 4-48. Filing complaints under article.
Sec. 4-49. Right of dog officer to enter premises, examine and seize dog.
Sec. 4-49.1. Dog officer authorized to serve summonses.
Sec. 4-50. Interference with dog officer, police, unauthorized release of impounded animal.
Sec. 4-51. Records to be kept by dog officer.
Sec. 4-52. Penalty for violation of article.
Sec. 4-53. Control of vicious dogs.
Sec. 4-54. Registration of certain breeds of dogs required.
Sec. 4-55. Owners responsible for damage done by their dogs.
Sec. 4-56. Penalty for violation of sections 4-53 through 4-55.

ARTICLE I. IN GENERAL*

Sec. 4-1. Establishment of public pound.

The Dexter Asylum grounds, as enclosed by the existing wall around the same, are hereby designated as the public pound of the city.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-2. Running at large.

(a) No horse, sheep, swine, goats or cattle shall go at large, loose or unfastened in any public street or highway within the limits of the city, or on any land therein thrown open as a way for public travel and used by the public for travel although such way be not legally a public street or highway, or go at large elsewhere in the city.

(b) All swine found running at large within the limits of the city are hereby declared forfeited, and any person may seize, or cause to be seized, any swine found so running at large and convert the same to his own use, or deliver the same to the keeper of the Dexter Asylum for the use of the poor persons in that institution.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-3. Keeping swine.

No swine shall be kept within the limits of the city.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-4. Reserved.

Sec. 4-5. Bins for manure and refuse, removal of manure and refuse.

(a) Every person owning, leasing or occupying any stall, stable, shed, barn or apartment, wherein any horse or any cattle shall be kept, shall maintain a covered bin, vault or cellar, satisfactory to the superintendent of health, in which shall be placed all manure or refuse from such horse or cattle.

(b) No person shall, between the hours of 8:00 a.m. and 7:00 p.m. remove or suffer to be removed any such manure or refuse from said premises, except with the permission of the superintendent of health previously obtained in writing.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

---

*__Editor's note—__Ord. 2012, ch. 2012-41, § 1, adopted June 21, 2012, amended Art. I in its entirety to read as set out herein. Former Art. I, §§ 4-1—4-11, pertained to similar subject matter and derived from Ord. 2010, ch. 2010-7, § 1, adopted May 6, 2010.

Sec. 4-6. Burying dead animals.

No person shall bury or cause to be buried the body of any horse, ass, mule, ox, cow, bull, hog or other large animal, within the limits of the city, unless in such manner that every part and portion of such body shall be at least three (3) feet below the natural surface of the ground where the same is buried, and in conformity with the requirements of the superintendent of health.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-7. Transporting dead animals.

No person shall remove, carry or transport over, upon or through any street or highway of the city the dead body of any horse, ass, mule, ox, cow, bull, hog or any other animal, not slaughtered and in condition for use as food unless specially authorized so to do by the superintendent of health.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-8. Contract for removal of dead animals.

The superintendent of health is hereby authorized and empowered, in his discretion, in the name and behalf of the city, from time to time, to contract for the faithful performance of the work of removing from the city, and through the streets thereof, any dead animal bodies, with such party as he shall authorize to make such removals, and upon such terms and conditions as he shall approve, provided the terms of any such contract shall not exceed five (5) years.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-9. Euthanization by lethal injection only.

Within the city any animal subject to destruction under the laws of the state or the ordinances of the city shall be euthanized by lethal injection only. No animal may be destroyed by use of a gas chamber. This enactment shall supersede the provisions of section 4-41 or any other relevant section of the Code of Ordinances.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-10. Disposition or destruction of animals.

Any animal relinquished to any animal shelter or pound by an individual claiming to be the animal's owner shall be held for not fewer than seventy-two (72) hours, excluding Saturday, Sunday and Holidays. A new or previous owner of said animal shall pay the reasonable and customary fees associated with the adoption process. The provisions of this section relating to the seventy-two-hour holding period shall not apply to any animal which, being impounded hereunder, is in need

of immediate medical attention and which same animal has been examined by a licensed veterinarian or shelter staff who shall confirm in writing that the animal should be destroyed for humanitarian reasons.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-11. Minimum care of animals.

(a) An owner or guardian of any animal must provide proper nourishment and access to adequate water at a drinkable temperature, quality and quantity as required by the species, breed, size and age of said animal, which will allow and foster normal growth and maintenance of body weight.

(b) An owner or guardian of any animal must maintain a sanitary environment, which is dry and free of accumulated feces, and free of debris and garbage that may clutter the environment so as not to inhibit comfortable rest, normal posture and range of movement or pose a danger to or entangle an animal, this as set by the industry standard for the environmental health scale as set forth in the most recently adopted version of the Tufts Animal Care and Conditions Scale (TACC).

(c) An owner or guardian of any animal must maintain said animal's health with minimum veterinary care, and a healthy physical condition as set by the industry standard for the body condition scale, TACC.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-12. Confinement of animals in motor vehicles prohibited.

(a) No person shall confine any animal in a motor vehicle in such a manner that places it in a life- or health-threatening situation by exposure to a prolonged period of extreme heat or cold, without proper ventilation or other protection from such heat or cold.

(b) Authority to enter vehicle. In order to protect the health and safety of an animal, an animal control officer, firefighter or law enforcement officer who has probable cause to believe that this section is being violated shall have authority to enter such motor vehicle by any reasonable means under the circumstances after making a reasonable effort to locate the owner or other person responsible.

(c) Authority to remove animal. A law enforcement officer, firefighter or animal control officer may take all steps that are reasonably necessary to remove an animal from a motor vehicle if the animal's safety, health or well-being appears to be in immediate danger from heat, cold or lack of adequate ventilation, lack of food or water, or any other circumstances that could reasonably be expected to cause extreme suffering, disability or death to the animal.

(d) Notice of removal of animal. A law enforcement officer, firefighter or animal control officer who removes an animal in accordance with this section shall, in a secure and conspicuous location on or within the motor vehicle, leave written notice

bearing the officer's or agent's name and office and the address of the location where the animal may be claimed. The owner may claim the animal only after payment of all charges that have accrued for the maintenance, care, medical treatment and impoundment of the animal.

(e) A law enforcement officer, firefighter or animal control officer who removes an animal from a motor vehicle pursuant to this section is immune from criminal or civil liability that might otherwise result from the removal.

(f) Penalties. Any person convicted of violating any provision of this section shall be punished by the payment of a fine consisting of one hundred dollars ($100.00) for a first offense, two hundred dollars ($200.00) for a second offense, and three hundred dollars ($300.00) and seizure of the animal for a third (and any succeeding) violation, said fines to be recovered for the use of the city. If such violation be continued, each day's violation may constitute a separate offense.
(Ord. 2013, ch. 2013-29, § 1, 7-18-13)

Sec. 4-13. Traveling circuses prohibited.

(a) *Definitions.*

Animal means every living creature except a human being.

Wild animal means indigenous, non-domesticated creatures living freely in the wild.

Exotic animal means a wild animal that is that is from a different continent.

Educational exhibits means the presentation or display of an educational material about the animal. All exhibits hosted or created by the Roger Williams Park Zoo are educational exhibits.

(b) *Traveling circuses prohibited.*

(1) It shall be unlawful for any person or organization to conduct, sponsor, walk, exhibit, or operate a traveling show or circus that includes live wild or exotic animals on any public or private land within the City of Providence.

(2) This section shall not apply to domestic animals including, but not limited to, dogs, cats, horses, donkeys, and farm animals.

(3) This section shall not apply to educational exhibits.

(4) Violations of this section shall result in a fine not less than fifty dollars ($50.00), and not more than five hundred dollars ($500.00), per animal. Each day the violation continues shall constitute a separate and additional violation.
(Ord. No. 2023-50, § 1, 12-21-23)

Secs. 4-14—4-18. Reserved.

ARTICLE II. DOGS*

Sec. 4-19. Licensure and proof of vaccinations.

Every dog shall be licensed. At the time of application for a license, the owner or keeper of any dog shall produce evidence that the animal has received vaccination against rabies and distemper-hepatitis-parvovirus-parainfluenza.
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-20. Regulations for dogs in city parks and conservation areas; penalty for violations.

(a) Every owner or keeper of a dog using the municipal parks and conservation areas designated by the board of parks commissioners for such purposes shall obtain a permit for such use. The permit shall be acquired annually through the animal control division at the time of licensing or at any time in advance of use of a designated park or conservation area. Every owner or keeper of a dog must show evidence of licensure in the owner's place of residence. Applications for licenses and permits shall be available at the animal control office and via the city website.

(b) No more than three (3) dogs may be walked at one (1) time by a single walker.

(c) Leashes may not exceed six (6) feet in length.

(d) The penalty for a first offense of the permit requirement is one hundred dollars ($100.00), as well as loss of the permit if the dog is not leashed or if the owner or keeper fails to remove excrement. Second and subsequent offenses will be fined two hundred fifty dollars ($250.00).
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-21. Prohibition on access to school property, athletic fields, playgrounds, or recreational areas.

(a) No dogs are permitted in school yards or on school property, whether at large or under restraint.

(b) No dogs are permitted on any athletic fields or baseball diamonds, whether at large or under restraint.

(c) No dogs are permitted on any playgrounds or recreational areas, whether at large or under restraint.

(d) These prohibitions shall not apply to guide dogs or dogs trained to provide assistive services.

***State law references—**State law relative to dogs, Ch. 4-13, Gen Laws, 1956; state law as to rabid dogs, §§ 4-13-26—4-13-31, Gen. Laws 1956.

(e) The penalty for a first violation of this section is one hundred dollars ($100.00). Second and subsequent offenses will be fined two hundred fifty dollars ($250.00).
(Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-22. Dog breeding.

(a) *Dog breeding permit*.

(1) There shall exist a dog breeding permit, issued by animal control at a cost of two hundred fifty dollars ($250), which shall expire one (1) calendar year for the date it was issued. Permits shall be non-transferrable.

(2) No dog breeding permit shall be issued until and unless the applicant has obtained a breeder permit from the Rhode Island Department of Environmental Management (DEM), in compliance with to G.L. 1956, § 4-19-5.1, and animal control has reviewed and inspected the premises where the dogs are being kept and found it to be in compliance with all applicable laws and suitable for the proper care and breeding of dogs.

(3) Animal control maintain and enforce policies established by DEM for the suitable conditions for proper care and breeding of dogs. Such polices shall be publicly posted on the animal control website.

(b) *Regulation*. Unless an individual has obtained a dog breeding permit, issued by animal control, as described in subsection (a) of this section, or the dog is otherwise exempt under the provisions of subsection (d) of this section, it shall be unlawful to:

(1) Cause or allow any male or female dog, owned or harbored in the city, to breed;

(2) Cause or allow any male dog, aged six (6) months or older, to remain unneutered;

(3) Cause or allow any female dog, aged six (6) months or older, to remain unspayed;

(4) Keep or harbor more than three (3) dogs, aged three (3) months or older, whether or not owned by such person, unless the individual has obtained an additional dog permit or is otherwise exempt under the provisions of section 4-23 of the Code of Ordinances.

(c) *Penalty*.

(1) Each violation of this section shall result in a penalty of one hundred dollars ($100.00). Each dog breeding without a permit; each dog, aged six (6) months or older, unspayed or unneutered without a permit; and each dog, aged three (3) months or older, kept or harbored without a permit, shall count as a separate offense.

(2) Animal control shall have the authority to seize any and all dogs kept or harbored in violation of this section.

(d) *Exceptions*. Dogs meeting the following criteria shall be exempt from the provisions of subsections (b)(1), (b)(2), and (b)(3) this section:

(1) The dog is otherwise exempt from a kennel license or license fee pursuant to G.L. 1956, § 4-13-10; or

(2) The owner of the dog provides a letter to animal control from a Rhode Island licensed veterinarian certifying that the dog is too sick or injured to be spayed or neutered and that the animal's health would be best served by spaying or neutering after a specified date; or that it is unsafe to spay or neuter the animal due to old age, the animal suffers from a permanent and serious medical condition, or the animal suffers from a permanent infirmity that would prevent the animal from reproducing. The letter shall include the veterinarian's license number.

(Ord. No. 2017-15, § 1, 6-6-17; Ord. No. 2018-37, § 1, 7-10-18)

Sec. 4-23. Keeping and harboring additional dogs.

(a) Additional dog permit.

(1) There shall exist an additional dog permit, issued by animal control, at a cost of twenty-five dollars ($25.00) each, which shall allow individuals to keep and harbor one (1) additional dog beyond the maximum established in section 4-22(b)(4) of the Code of Ordinances. An additional dog permit shall be required for each dog owned in excess of the maximum established in section 4-22(b)(4) of the Code of Ordinances. Each additional dog permit issued shall specify the number of dogs kept or harbored by the individual at the time of issuance and the maximum number of dogs they are allowed to keep or harbor in their current dwelling.

(2) No additional dog permit shall be issued until and unless animal control has verified that all the dogs being kept and harbored by the applicant comply with the provisions of section 4-22, subsections (b)(1), (b)(2), and (b)(3).

(3) Animal control shall establish policies for the issuance of additional dog permits. Such policies shall be public documents available on animal control's website. Such policies shall include, but shall not be limited to, specifications relating to the minimum dwelling area required for keeping and harboring additional dogs, the minimum standards of care for additional dogs, and the rules and regulations for the suspension and/or revocation of additional dog permits.

(4) Additional dog permits shall continue to be valid until and unless the holder of the permit moves to a new address. It shall be the responsibility of permit-holders to inform animal control that they have moved. Permit-

holders who inform animal control that they have moved shall, upon providing animal control with documentation verifying that the new dwelling where the dogs are kept or harbored meets the minimum standards for additional dog permits established under this section, be issued a new additional dog permit for each dog owned in excess of the maximum established in section 4-22(b)(4) of the Code of Ordinances, for the new dwelling, at a cost of five dollars ($5.00) each.

(b) The provisions of section 4-22(b)(4) of the Code of Ordinances shall not apply to, nor shall an additional dog permit be required of any individual fostering dogs as part of a formal agreement or affiliation with animal control or a non-profit rescue organization, as defined in section 4-24(a).
(Ord. No. 2018-37, § 2, 7-10-18)

Sec. 4-24. Prohibition of the sale of dogs and cats.

(a) Definitions.

Certificate of source means any document from the source city animal shelter or animal control agency, humane society, or non-profit rescue organization declaring the source of the dog or cat on the premises of the pet shop, retail business, or other commercial establishment.

Commercial establishment means any for profit business enterprise, including a sole proprietorship engaged in retail or wholesale commerce related to dogs and cats, including grooming parlors, canine day care, and boarding facilities.

Non-profit rescue organization means any animal shelter or animal rescue, duly registered pursuant to G.L. 1956, § 4-19-4.

(b) It is unlawful for any person to display, offer for sale, deliver, barter, auction, give away, transfer, or sell any live dog or cat in any pet store, retail business, or other commercial establishment located in the city.

(c) Nothing in this section shall prevent the owner, operator, or employees of a pet store, retail business, or other commercial establishment located in the city from providing space and appropriate care for animals owned by a city animal shelter or animal control agency, humane society, or non-profit rescue organization and maintain those animals at the pet store, retail business, or other commercial establishment for the purpose of public adoption. Such store, retail business, or other commercial establishment must confirm that the animals provided originate from entities that are duly registered under G.L. 1956, § 4-19-3 or G.L. 1956, § 4-19-4 and failure to do so shall constitute a violation of this section.

(d) Violations and penalties. Any person or commercial establishment who violates, fails or refuses to comply with the provisions of this section shall be subject to a fine of not more than five hundred dollars ($500.00) for each separate offense or community service for a period of not more than ninety (90) days or any combination

of fine and/or community service. After the city issues a notice of violation of this section, a person or commercial establishment shall be considered to violate the provisions of this section, and shall be subject to an additional cumulative civil penalty of five hundred dollars ($500.00), for each fourteen (14) day period the violation is not remedied following the issuance of the first notice of violation.
(Ord. No. 2018-37, § 3, 7-10-18)

Sec. 4-25. Molesting, injuring, interfering with dogs of police department.

It shall be unlawful for any person to willfully or maliciously torture, torment, beat, kick, strike, mutilate, injure, disable, or kill any dog used by the police department of the city in the performance of the functions or duties of such department, or to interfere with or meddle with any such dog while being used by said department or any officer or member thereof in the performance of any of the functions or duties of said department or of such officer or member.
(Ord. 1965, ch. 1689, § 1; Ord. 2010, ch. 2010-7, § 1, 5-6-10; Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-26. Fees for special constable destroying, listing dogs.

The special constable appointed annually by the commissioner of public safety to kill or destroy or cause to be killed or destroyed, all dogs going at large and not licensed or collared according to law shall receive therefor from the city treasurer a fee of six hundred seventy-five dollars ($675.00) each month, to be charged to the police department appropriation. The special constables appointed annually by the commissioner of public safety to ascertain and make a list of the owners or keepers of dogs and return such lists to the said commissioner of public safety on or before the last day of May shall receive no fees for making such lists and returns.
(Ord. 1917, ch. 183, § 1; Rev. Ords. 1946, ch. 4, § 10; Ord. 1957, ch. 1165, § 1; Ord. 2010, ch. 2010-7, § 1, 5-6-10; Ord. 2012, ch. 2012-41, § 1, 6-21-12)

State law reference—Provisions permitting council to fix fees for special constables in city, 4-13-12, Gen. Laws 1956.

Sec. 4-27. Canine waste and its removal.

(a) *Duties to dispose.* It shall be the duty of each person who owns, possesses or controls a dog to remove and dispose of any feces left by his/her dog on any sidewalk, street or other public area. It shall further be the duty of each person who owns, possesses or controls a dog to remove and dispose of any feces left by his/her dog on any private property neither owned nor occupied by said person.

(b) *Duty to possess means of removal.* No person who owns, possesses or controls such dog shall appear with such dog on any sidewalk, street, park or other public area without the means of removal of any feces left by such dog. Furthermore, no

person who owns, possesses or controls such dog shall appear on any private property neither owned nor occupied by said person without the means of removal of any feces left by said dog.

(c) *Method of removal and disposal.* For the purpose of this regulation, the means of removal shall be any tool, implement or other device carried for the purpose of picking up and containing such feces, unexposed to said person or the public. Disposal shall be accomplished by transporting such feces to a place suitable and regularly reserved for the disposal of human feces, to a place specifically reserved for the disposal of canine feces, or to a place so designated as appropriate by the department of public works.

(d) *Fines for violation.* Violation of this regulation shall be punishable by a fine not exceeding fifty dollars ($50.00) for the first offense, not exceeding seventy-five dollars ($75.00) for the second offense within a year, not exceeding one hundred dollars ($100.00) for the third and any subsequent offenses within a year to be recovered by action of debt or by complaint or warrant, to use as such city council may prescribe.

(e) *Exemption.* This regulation shall not apply to a licensed dog accompanying any handicapped person who, by reason of his/her handicap, is physically unable to comply with the requirement of this section.

(f) *Severability.* The provisions of this section are severable and if any of the provisions of this section shall be held unconstitutional or in conflict with any other section of the City Charter or ordinances of the City of Providence or state law, then such section shall be void without affecting or impairing any of the remaining provisions.
(Ord. 1980, ch. 80-40, § 1, 10-9-80; Ord. 2010, ch. 2010-7, § 1, 5-6-10; Ord. 2012, ch. 2012-41, § 1, 6-21-12)

Sec. 4-28. Sheltering, tethering and nourishment of dogs.

(a) No person shall allow a dog to be kept outside either tethered, penned, caged, fenced or otherwise confined without access to a shelter when the ambient temperature is beyond the industry standard for the weather safety scale as set forth in the most recent adopted version of TACC if the dog is showing signs of poor health due to the weather conditions.

(b) No person shall keep any dog on a permanent tether less than ten (10) feet.

(c) No person shall tether a dog with a choke-type collar or prong-type collar.

(d) No person shall keep any dog tethered for more than ten (10) hours during a twenty-four-hour period or keep any dog confined in a pen, cage or other outdoor housing structure for more than fourteen (14) hours during any twenty-four-hour period.

(e) No person shall fail to provide proper food, proper water, or proper veterinary care as defined in section 4-31. An owner who allows an animal to become emaciated due to a malabsorption problem, disease, parasitic infestation or any illness or chronic illness when the animal is not under the direct and continued care of a veterinarian for those problems shall be as guilty as an owner who does not provide proper food.

(f) The provisions of this section shall not apply if:

(1) The tethering or confinement is authorized for medical reasons in writing by a veterinarian licensed in Rhode Island which must be renewed annually and an outdoor shelter is provided; or

(2) Such tethering or confinement is authorized in writing by the director of the Providence Animal Control Center; or

(3) To a training facility, grooming facility, commercial boarding kennel, pet shop licensed in accordance with R.I.G.L. § 4-19-5, animal shelter, municipal pound or veterinary facility.

(Ord. 2010, ch. 2010-7, § 1, 5-6-10)

Sec. 4-29. Penalty for violation of sections 4-11 and 4-28.

Any person in violation of section 4-11 or section 4-28 shall be given a warning for the first violation. The second violation shall result in a fine of two hundred dollars ($200.00), and the third violation shall result in a fine of four hundred dollars ($400.00). At any time after the first violation, if the dog is showing signs of poor health due to the weather conditions, second and subsequent violations may result in seizure of the animal.

(Ord. 2010, ch. 2010-7, § 1, 5-6-10)

Sec. 4-30. Reserved.

ARTICLE III. CONTROL OF DOGS AND OTHER ANIMALS*

Sec. 4-31. Definitions.

As used in this article the following terms shall mean:

Animal means any living creature other than a human being.

At large means any dog shall be deemed to be at large when he is off the property of his owner and not under restraint as hereinafter defined.

Director means the director of the animal control center.

Dog officer means the person or persons employed by the city as its enforcement officer and shall include any police officer of said city.

Dog pound means any premises designated by action of the city for the purpose of impounding and caring for all animals found running at large in violation of this article, also known as the animal control center.

Enclosure means a fence or structure of at least six (6) feet in height, forming or causing an enclosure suitable to prevent the entry of young children. Such enclosure shall be securely enclosed and locked and designed with secure sides sufficient to prevent the animal from escaping.

***Editor's note—**Ch. 68-41, enacted June 6, 1968, did not expressly amend this Code, nor the ordinances from which this Code is derived, hence codification of §§ 1—22 as Art. III, §§ 4-31—4-52 respectively, was at the discretion of the editors. The editors revised the catchlines where appropriate, to facilitate indexing and reference, and changed the word "ordinance" to "article" and deleted §§ 23—25, directory provisions, to maintain Code style and format.

Exposed to rabies means a dog has been exposed to rabies within the meaning of this article if it has been bitten by, or been exposed to, any animal known to have been infected with rabies.

Guardian means a person having the same rights and responsibilities of an owner, and both terms may be used interchangeably. A guardian shall also mean a person who possesses, has title to or an interest in, harbors or has control, custody or possession of an animal and who is responsible for an animal's safety and well-being.

Kennel means any person, group of persons or corporations engaged in the commercial business of breeding, buying, selling or boarding dogs or for hobby and recreation.

Leashed means a dog is properly leashed when it has a cord or chain attached to its collar or harness and held in the hand by the owner or competent person restraining a dog.

Owner means any person, group of persons or corporation owning, keeping or harboring or having charge or control of or responsibility for control of an animal; or any person or agency which permits any dog, cat, ferret or domestic animal to habitually be fed within that person's yard or premises. This term shall not apply to veterinary facilities, any licensed boarding kennel, municipal pound, pet shop or animal shelter.

Proper food means access to a sufficient quality and quantity of wholesome foodstuff suitable for that species that will allow for normal growth and maintenance of the animal's body weight and body condition. Wholesome foodstuff is food intended for that species of animal or food that is accepted for that species of animal under acceptable animal husbandry practices. The interval between feeding shall not be more than twenty-four (24) hours.

Proper water means access to clean, fresh, drinkable potable water sufficient to maintain the health of the animal.

Proper veterinary care means providing each animal that is suffering from an illness, injury or medical condition with veterinary care sufficient to prevent unnecessary or unjustified physical pain or suffering by the animal; provided, that nothing herein shall be construed to prevent an owner from treating an animal using acceptable animal husbandry practices.

Restraint means a dog is under restraint within the meaning of this article if he is leashed or within a vehicle being driven or parked on the streets or within the property limits of its owner or keeper.

Shelter for a dog means a structure, doghouse of the appropriate size for the breed and size of the dog, or other adequate protection from inclement weather, as required to maintain the dog in a state of good health, and prevent unnecessary or unjustified suffering of the dog.

Spayed female means any bitch which has been operated upon to prevent conception.

Tether means the practice of fastening a dog to a stationary object or stake by a chain, rope or other tethering device as a means of keeping the animal under control. The tether must remain tangle-free and not restrict the movement of the dog. The term tether does not refer to the periods when an animal is walked on a leash.

Veterinarian means a person licensed to engage in the practice of veterinary medicine, surgery, and dentistry in this state who is a graduate of an accredited veterinary medical, surgical, and dental school or college of a standard recognized by the Rhode Island Veterinary Medical Association.

Vicious dog means:

(1) Any dog that when unprovoked, inflicts bites or attacks a human being or other animals either on public or private property, or in a vicious or terrorizing manner, approaches any person in apparent attitude of attack upon the streets, sidewalks or any public grounds or places; or

(2) Any dog with a known propensity, tendency or disposition to attack unprovoked, to cause injury or to otherwise endanger the safety of human beings or domestic animals.

(Ord. 1968, ch. 68-41, § 1, 6-6-68; Ord. 1977, ch. 77-27, § 1, 6-21-77; Ord. 1989, ch. 89-7, § 1, 4-24-89; Ord. 2010, ch. 2010-7, § 1, 5-6-10)

Sec. 4-32. Enforcement.

The provisions of this article shall be enforced by the dog officer of the City of Providence and any police officer of said city.

(Ord. 1968, ch. 68-41, § 2, 6-6-68; Ord. 2010, ch. 2010-7, § 1, 5-6-10)

Sec. 4-33. Restraint of dogs required.

The owner shall keep his dog under restraint at all times and shall not permit such dog to be at large, off the premises or property of the owner, unless the control of a competent person by means of a leash or within a vehicle being driven or parked on the streets or within the property limits of its owner.

(Ord. 1968, ch. 68-41, § 3, 6-6-68; Ord. 1972, ch. 72-65, § 1, 12-28-72; Ord. 1973, ch. 73-40, § 1, 9-7-73; Ord. 1977, ch. 77-27, § 2, 6-21-77)

Sec. 4-33.1. Fee for owner-requested destruction of dog.

The dog officer may upon the application and request of the owner, who shall file an affidavit that he or she is the true owner of such animal, humanely destroy and dispose of any dog.

The dog officer shall charge a fee of not less than five dollars ($5.00) for such services.
(Ord. 1982, ch. 82-46, § 1, 7-8-82)

Sec. 4-34. Impoundment of dogs and other animals.

(a) Any dog, or dogs, found running at large shall be taken up by the dog officer or any police officer and impounded in the shelter designated as the city dog pound, and there confined in a humane manner for a period of not less than five (5) days, unless first claimed by owner thereof in accordance with section 4-35, and may thereafter be disposed of in a humane manner if not claimed by their owners.

(b) The dog officer may transfer possession of any dog held at the dog pound to the Society for the Prevention of Cruelty to Animals after the legal detention period has expired and such dog has not been claimed by its owner.

(c) When dogs are found running at large, and their ownership is known to the dog officer, such officer may: (1) cite the owners of such dogs to appear in the Providence Police Court to answer to charges of violation of this article, (2) impound the dog, or (3) both cite the owners to appear in the Providence Police Court and impound the dog.

(d) Immediately upon impounding dogs, the dog officer shall make every possible reasonable effort to notify the owners of such dogs, so impounded, and inform such owners of the conditions whereby they may regain custody of such dogs.

(e) Any animals, other than a dog, found running at large within the city limits may be impounded or disposed of according to law when such action is required either to protect the animal or to protect the residents of the city.
(Ord. 1968, ch. 68-41, § 4, 6-6-68; Ord. 1972, ch. 72-65, § 2, 12-28-72; Ord. 1973, ch. 73-40, § 2, 9-7-73)

Sec. 4-34.1. Proof of ownership required prior to impounding dog or cat.

(a) Anyone attempting to commit or have detained or impounded any dog or cat to a police officer, dog officer or any other individuals authorized by the city to exercise such control must first sign an affidavit that he or she is the true owner of said animal.

(b) The dog officer shall charge a fee, as specified in the following schedule, to be paid by said owner of any dog or cat taken to the dog pound for the purpose of transferring title or for disposal according to law.

Fee schedule:

For each adult (6 months or older) dog	$5.00
For each adult (6 months or older) cat	5.00
For each kitten or puppy	5.00

(Ord. 1977, ch. 77-24, § 1, 6-8-77; Ord. 1982, ch. 82-25, § 1, 6-6-82)

Sec. 4-35. Redemption of impounded dogs or other animals.

(a) The owner shall be entitled to regain possession of any impounded dog or other animal, except as hereinafter provided in the cases of certain dogs, at any time upon the payment of impoundment fees set forth herein.

(b) Any dog or other animal impounded under the provisions of this article and not reclaimed by its owner within five (5) days, may be humanely destroyed by the dog officer, have its possession transferred to the Society for the Prevention of Cruelty to Animals as provided for in subsection 4-34(b), or placed in the custody of some person deemed to be a responsible person, who will agree to comply with the provisions of this article and such other regulations as shall be fixed by the dog officer; provided, however, that such person pay to the dog officer an adoption fee of five dollars ($5.00). (Ord. 1968, ch. 68-41, § 5, 6-6-68; Ord. 1972, ch. 72-65, § 3, 12-28-72; Ord. 1973, ch. 73-40, § 3, 9-7-73; Ord. 1982, ch. 82-26, § 1, 6-6-82)

Sec. 4-36. Impoundment fees.

Any animal impounded hereunder may be reclaimed, as herein provided, upon payment by the owner to the dog officer of ten dollars ($10.00) and the additional sum of four dollars ($4.00) per day for each day such dog is retained. Said owner, prior to reclaiming of the animal, must sign an affidavit that he or she is the owner of the animal which he or she is attempting to reclaim. Said owner must also provide proof that the animal is licensed in conformity with R.I.G.L. (1956) § 4-13-4, as amended, to the dog officer. Such fees shall be collected by the dog officer and deposited with the city collector, with a monthly report concerning the number of dogs retained, an accounting of the fees collected, and a copy of the paid receipt given to each owner upon the reclaiming of the animal.
(Ord. 1968, ch. 68-41, § 6, 6-6-68; Ord. 1972, ch. 72-65, § 4, 12-28-72; Ord. 1973, ch. 73-40, § 4, 9-7-73; Ord. 1977, ch. 77-27, § 3, 6-21-77)

Editor's note—Ord. 1977, Ch. 77-27, provided that the $10.00 payment for the recovery of an animal applies to the first offense only. For the second offense within one year, the fee shall not exceed $15.00. For the third and any subsequent offense within one year, the fee shall not exceed $25.00.

Sec. 4-37. Confinement of dogs and other animals in heat.

(a) Reserved.

(b) Every female dog or other animals in heat shall be kept confined in a building or secure enclosure, or in a veterinary hospital or boarding kennel or under control of a competent agent, in such a manner that such female dog or other animal cannot come in contact with another dog or animal, except for intentional breeding purposes.

(c) Any animal described in the foregoing subsection of section 4-37 found at large shall be impounded by the dog officer; the dog officer if the owner is known, shall notify the owner to appear before the Providence Police Court within seventy-two (72) hours from the time the animal is impounded for a hearing to determine whether there has been a violation of subsection (b) of section 4-37.

If after such hearing, the Providence Police Court finds that there has been a violation of subsection (b), it shall order the dog officer to hold the animal for fifteen (15) days. The animal may be reclaimed by the owner by paying the impoundment fees set forth herein.
(Ord. 1968, ch. 68-41, § 7, 6-6-68; Ord. 1980, ch. 80-43, § 1, 10-24-80)

Sec. 4-37.1. Maximum number of dogs allowed.

No owner or occupant of any dwelling house shall keep or permit to be kept more than three (3) dogs in any part of any dwelling house except if said owner or occupant complies with R.I.G.L. (1965) § 4-13-10, as amended.
(Ord. 1977, ch. 77-25, § 1, 6-8-77)

Sec. 4-37.2. Maximum number of felines allowed.

No owner or occupant of any dwelling house shall keep or permit to be kept more than three (3) felines in any part of any dwelling house, except if said owner or occupant complies with R.I.G.L. (1965) § 4-13-10, as amended.
(Ord. 1979, ch. 79-23, § 1, 5-22-79)

Sec. 4-37.3. Maximum chicken hens allowed.

The owner of any dwelling may keep or permit to be kept on the lot containing the dwelling, one (1) hen per eight hundred (800) square feet of total lot area, with a maximum of six (6) on any lot, provided that:

(1) No person shall keep any rooster;

(2) All chicken hens must be provided with both a hen house (coop) and a fenced outdoor enclosure, subject to the following provisions:

a. The hen house must be covered, predator resistant, and well-ventilated;

b. The hen house must provide a minimum of two (2) square feet per chicken;

c. The hen house must be kept clean, dry, and sanitary at all times; manure must be composted in enclosed bins;

d. The hen house must be located upon a permeable surface that prevents waste run-off;

e. The hen house must be located at least twenty (20) feet from any dwelling;

f. The fenced outdoor enclosure must adequately contain the chicken hens;

g. The fenced outdoor enclosure must be kept clean and sanitary at all times; manure must be composted in enclosed bins;

h. The hen house must provide the chicken hens with adequate protection from the elements and inclement weather and provide for the chicken hens good health and prevent any unnecessary or unjustified suffering; and

i. The owner of the hen(s) must be a resident of said dwelling.

(3) No hen house (coop) shall be built onto any shared fence;

(4) No chicken hens may be kept or raised within the dwelling.

(5) All chicken hens must be fed subject to the requirements of section 12-118, and feed must be stored securely;

(6) No chicken hen may be slaughtered except subject to the requirements of section 10-104 et seq. and of the zoning ordinance;

(7) All chicken hens are subject to the nuisance provisions set forth in section 4-47, subsections (2) and (3); and

(8) All chicken hens must be confined between the hours of 9:00 p.m. and 8:00 a.m.

As used herein, "lot" shall mean one (1) or more parcels of land which are contiguous and are under the same ownership according to the tax assessor's records and which are zoned residential or are residential as a legal nonconforming use pursuant to the zoning ordinance.
(Ord. 2010, ch. 2010-36, § 1, 9-16-10)

Sec. 4-38. Rabies control.

(a) Every animal which bites a person shall be promptly reported to the dog officer, and shall thereupon be securely quarantined at the direction of the dog officer for a period of fourteen (14) days, and shall not be released from such quarantine except by written permission of the dog officer. At the discretion of the dog officer, such quarantine may be on the premises of the owner, at the shelter designated as the dog pound, or at the owner's option and expense, in a veterinary hospital of his choice. In the case of stray animals, or in the cases of animals whose ownership is not known, such quarantine shall be at the shelter designated by the dog officer.

(b) The owner upon demand by the dog officer shall forthwith surrender any animal which has bitten a human or animal, or which is suspected as having been exposed to rabies, for supervised quarantine, the expense of which shall be borne by the owner. Said animal may be reclaimed by the owner if it is adjudged free of rabies, upon payment of fees set forth in section 4-36 of this article.

(c) When rabies has been diagnosed in an animal under quarantine or rabies suspected by a licensed veterinarian, and the animal dies while under such observation, the dog officer shall immediately send the head of such animal to the state health department for pathological examination, and shall notify the proper public health officer of reports of human and animal contacts and the diagnosis.

(d) When one or both reports indicate a positive diagnosis of rabies, the dog officer shall recommend an area wide quarantine for a period of ninety (90) days, and upon invoking of such emergency quarantine, no animal shall be taken into the streets, or permitted to be in the streets, during such period of quarantine. During such quarantine, no animal may be taken or shipped from the city without written permission of the dog officer.

During this quarantine period and as long afterward as he decides, it is necessary to prevent the spread of rabies, the dog officer shall require all dogs, six (6) months of age and older, to be vaccinated against rabies with a canine rabies vaccine approved by the Biologics Control Section of the U.S. Department of Agriculture. The types of approved canine anti-rabies vaccine to be used and the recognized duration of immunity for each shall be established by the health officer. All vaccinated dogs shall be restricted (leashing or confinement on enclosed premises) for thirty (30) days after vaccination. During the quarantine period, the dog officer shall be empowered to provide for a program of mass immunization by the establishment of temporary emergency canine rabies vaccination clinics strategically located throughout the city.

No dog which has been impounded by reason of its being a stray unclaimed by its owner, may be claimed during the period of the rabies emergency quarantine, except by special authorization of the dog officer.

(e) Dogs bitten by a known rabid animal shall be immediately destroyed, or if the owner is unwilling to destroy the exposed animal, strict isolation of the animal in an enclosure for six (6) months shall be enforced. If the dog has been previously vaccinated, within time limits established by the dog officer based on the kind of vaccine used, revaccination and restraint (leashing and confinement) for thirty (30) days shall be carried out.

(f) In the event there are additional positive cases of rabies occurring during the period of the quarantine, such period of quarantine may be extended for an additional six (6) months.

(g) No person shall kill, or cause to be killed, any rabid animal, any animal suspected of having been exposed to rabies, or any animal biting a human, except as herein provided, nor remove the same from the city limits without written permission from the dog officer.

(h) The carcass of any dead animal exposed to rabies shall upon demand be surrendered to the dog officer.

(i) The dog officer shall direct the disposition of any animal found to be infected with rabies.

(j) No person shall fail or refuse to surrender any animal for quarantine or destruction as required herein when demand is made therefor by the dog officer.
(Ord. 1968, ch. 68-41, § 8, 6-6-68)

Sec. 4-39. Reports of bite cases.

It shall be the duty of every physician, hospital or other medical practitioner, to report to the police department the names and addresses of persons treated for bites inflicted by animals, together with such other information as will be helpful in rabies control.
(Ord. 1968, ch. 68-41, § 9, 6-6-68)

Sec. 4-40. Responsibilities of veterinarians.

It shall be the duty of every licensed veterinarian to report to the dog officer any animal known or considered by him to be a rabies suspect.
(Ord. 1968, ch. 68-41, § 10, 6-6-68)

Sec. 4-41. Exemptions from article provisions.

(a) Hospitals, clinics and other premises operated by licensed veterinarians for the care and treatment of animals are exempt from the provisions of this article, except where expressly stated.

(b) The licensing and vaccination requirements of this article shall not apply to any dog belonging to a nonresident of the city and kept within the city for not longer than thirty (30) days, provided all such dogs shall at all times while in the city be kept within a building, enclosure or vehicle, or be under restraint by the owner or other competent person.
(Ord. 1968, ch. 68-41, § 11, 6-6-68)

Sec. 4-42. Vaccination prerequisite to permitting dog in city.

No dog over six (6) months shall be permitted within the city limits unless such dog shall have been vaccinated or immunized in the manner set forth in this article within a period of twelve (12) months, if such dog shall have been vaccinated or immunized with the one-year vaccine, or within a period of thirty-six (36) months, if such dog shall have been vaccinated or immunized by the three-year vaccine.
(Ord. 1968, ch. 68-41, § 12, 6-6-68)

Sec. 4-43. Vaccine to be approved; certification of inoculation or vaccination.

The vaccination or immunization referred to in section 4-42 of this article shall be by a vaccine approved by the state department of health and shall be certified to by a

licensed veterinarian. Such certificate shall be dated as of the date of inoculation or vaccination, shall show the rabies tag number, the sex and breed of dog and the owner thereof, and whether the vaccine given is the one-year vaccine or the three-year vaccine, together with such other information as may reasonably be required by the dog officer or the veterinarian administering the same.
(Ord. 1968, ch. 68-41, § 13, 6-6-68)

Sec. 4-44. Certificate prerequisite to licensing dog.

No license shall be issued for any dog required to be licensed in the city unless the person making application therefor shall first present to the bureau of licenses of the city or other person duly authorized to issue such license a current certificate of vaccination or inoculation, as provided in this article for the dog for which such license is requested. Such certificate shall certify that the dog for which the license is to be issued has been properly vaccinated or inoculated in accordance with the provisions of this article.
(Ord. 1968, ch. 68-41, § 14, 6-6-68; ch. 70-21, § 1, 5-15-70)

Amendment note—Ch. 70-21, § 1, amended § 4-44 by deleting subsection (b) providing for inoculation clinics twice a year.

Sec. 4-45. Immunization prerequisite to owning, keeping, harboring dog.

It shall be unlawful for any person to own, keep or harbor any dog over six (6) months old within the city, unless such dog shall have been vaccinated or inoculated in accordance with the provisions of this article.
(Ord. 1968, ch. 68-41, § 15, 6-6-68)

Sec. 4-46. Impounding, disposal of unvaccinated, uninoculated dog.

(a) Any dog over six (6) months old found within the limits of the city without evidence that such dog has been vaccinated or inoculated in accordance with the provisions of this article shall be impounded by the dog officer or other authorized person for a period not exceeding fifteen (15) days, during which time such dog may be returned to its owner upon proof of ownership, vaccination of the dog, payment by such owner of the fees provided in section 4-36 hereof.

(b) At the expiration of the fifteen-day period above mentioned, any dog not so claimed by its owner shall be disposed of in accordance with section 4-35 hereof.
(Ord. 1968, ch. 68-41, § 16, 6-6-68)

Sec. 4-46.1. Vaccination and impoundment of at-large dogs.

(a) *Definitions.* As used in this section, the following terms shall have the meanings herein ascribed to them:

At-large: Any dog shall be deemed to be at large when he is off the property of his owner and not wearing a current, valid license and not under restraint. Dog is under restraint if he is leashed or within a vehicle being driven or parked on the streets or within the property limits of its owner or keeper.

Animal control officer: The person or persons employed by the City of Providence as its enforcement officer(s), including any police officer of the City of Providence.

Valid license: A license to be obtained in the office of the bureau of licenses or at the municipal dog pound in the city where the owner of said dog resides. Such license shall have a registered number assigned by the bureau of licenses or the dog pound and the name and address of the rightful owner of the dog. A valid license issued to a dog outside the municipality will be honored.

Rightful owner: Any person or persons acquiring a valid license for his dog.

(b) *Impoundment and inoculation of at-large dogs required.* Any at-large dog impounded by an animal control officer in the City of Providence and not wearing a current, valid license issued and traceable to the dog's rightful owner will be inoculated against distemper and rabies immediately upon impoundment, such inoculation to be administered by a licensed veterinarian.

(c) *Liability of city agents.* The animal control officer(s), the veterinarian providing his services for inoculating at-large dogs, the City of Providence, its agents and employees shall not be held liable for cost of said inoculations. The cost for said inoculations will be paid by the owner, once his identification is known, at the time of reclaiming or by the new owner at the time of the adoption of the dog. Also, the animal control officer(s), veterinarian, City of Providence, and its agents and employees shall not be held liable if any harm comes to the dog through inoculation.
(Ord. 1980, ch. 80-42, §§ 1—3, 10-24-80)

Editor's note—At the discretion of the editor, §§ 1—3 of Ch. 80-42, enacted Oct. 16, approved Oct. 24, 1980, have been included as § 4-46.1.

Sec. 4-47. Conditions declared nuisance; abatement required.

(a) The keeping or harboring of any dog, whether licensed or not, which by unreasonable and habitual howling, barking, or any other noise, disturbs a surrounding or adjacent neighbor or neighbors, is hereby declared to be a public nuisance. The said neighbor complaining about the dog nuisance must be willing to sign a complaint and testify in court as to the offending animal. The person or owner of the dog must be warned at least once by the dog officer or a representative of the police department or animal shelter. The dog officer shall investigate the complaint to such an extent so as to hear the animal in question barking and to show that the animal is a public nuisance and/or a bother to the peaceful inhabitants of the city, or the neighborhood. The dog officer, if he finds a nuisance exists shall serve written notice upon the owner or custodian of said animal to show that the animal is a public nuisance.

If after said offense has been noted and said offense, howling, barking, or any other noise which disturbs a neighbor is not abated, the owner shall be brought to municipal

court and fined twenty-five dollars ($25.00) for the first offense and fifty dollars ($50.00) for the second offense and if a third offense exists, said dog shall be impounded.

(b) It shall be unlawful to allow or permit any animal to trespass on private or public property so as to damage or destroy any property or thing of value, and the same is hereby declared to be a nuisance and any such animal may be impounded by the dog officer whenever it shall be alleged in writing by three (3) or more persons having separate residences, or regularly employed in the neighborhood that any animal is a nuisance by reason of barking, howling, yelping or other noise, trespassing, causing damage to property, or is vicious or in any manner causing undue annoyance, the dog officer if he finds such nuisance to exist, shall serve notice upon the owner or custodian that such nuisance must be abated.

(c) If the nuisance [as specified in subsection (b)] is not abated, the dog officer may impound the animal, notify the owner to appear before the Providence Police [Municipal] Court for a hearing to determine if there has been a violation of section 4-47. Each day shall constitute a separate offense.
(Ord. 1968, ch. 68-41, § 17, 6-6-68; Ord. 1983, ch. 83-66, § 1, 12-20-83)

Sec. 4-48. Filing complaints under article.

All complaints made under the provisions of this article shall be made to the dog officer or the police department, and may be made orally; provided however, that such complaint is within forty-eight (48) hours, reduced to writing on forms provided by the dog officer and shall be signed by the complainant showing his address and telephone number, if any.
(Ord. 1968, ch. 68-41, § 18, 6-6-68)

Sec. 4-49. Right of dog officer to enter premises, examine and seize dog.

In the discharge of the duties imposed by this article, the dog officer of this city shall have the authority at all reasonable times to enter upon any premises (but such authority should not include the right to enter any residence on such premises) to examine a dog or other animal which is allegedly in violation of a provision of this article. Such officer shall have the further authority to take possession of any such dog or other animal and remove it from such premises for cause set forth herein.
(Ord. 1968, ch. 68-41, § 19, 6-6-68)

Sec. 4-49.1. Dog officer authorized to serve summonses.

The dog officer and his duly qualified agents shall hereby have the authority to serve summonses and/or citations for appearance before the municipal court of Providence for violation of those sections of the Providence Code of Ordinances pertaining to dogs; to wit: Chapter 4 entitled "Animals and Fowl."
(Ord. 1977, ch. 77-26, § 1, 6-8-77)

Sec. 4-50. Interference with dog officer, police, unauthorized release of impounded animal.

No person shall interfere with, hinder or molest the dog officer of this city in the performance of his duties, or seek to release any animal in the custody of the dog officer or any police officer, except as herein provided.
(Ord. 1968, ch. 68-41, § 20, 6-6-68)

Sec. 4-51. Records to be kept by dog officer.

(a) It shall be the duty of the dog officer to keep, or cause to be kept, accurate and detailed records of the impoundment and disposition of all animals coming into his custody.

(b) It shall be the duty of the dog officer to keep, or cause to be kept, accurate and detailed records of all bite cases reported to him and his investigation of the same.

(c) It shall be the duty of the dog officer to keep or cause to be kept, accurate and detailed records of all monies belonging to the City of Providence, which records shall be open to inspection at all times by authorized personnel of the City of Providence and shall be audited by the City of Providence annually in the same manner as other city records are audited.
(Ord. 1968, ch. 68-41, § 21, 6-6-68)

Sec. 4-52. Penalty for violation of article.

Any person convicted of violating any provision of this article other than sections 4-53, 4-54 and 4-55 shall be punished by the payment of a fine consisting of fifteen dollars ($15.00) for a first offense, twenty-five dollars ($25.00) for a second offense, and fifty dollars ($50.00) for a third (and any succeeding) violation, said fines to be recovered for the use of the city. If such violation be continued, each day's violation may constitute a separate offense.
(Ord. 1968, ch. 68-41, § 22, 6-6-68; Ord. 1972, ch. 72-65, § 5, 12-28-72; Ord. 1973, ch. 73-40, § 5, 9-7-73; Ord. 1989, ch. 89-5, § 1, 4-24-89)

Sec. 4-53. Control of vicious dogs.

All vicious dogs shall be confined in an enclosure. It shall be unlawful for any owner or keeper of any mischievous or vicious dog to permit such dog to run at large or without the enclosure of the owner or keeper thereof within the city limits, without being properly leashed and muzzled.
(Ord. 1980, ch. 80-43, § 1, 10-24-80; Ord. 1989, ch. 89-8, § 1, 4-24-89)

Sec. 4-54. Registration of certain breeds of dogs required.

Any person having the custody, ownership or control of any American pit bull dog, pit bull terrier dog, or Staffordshire terrier dog must register said dog with the city on

a form to be provided by the city. Said form shall require the following information: Name, address and telephone number of the dog's owner; the address where said dog is harbored, if different from owner's address; dog's sex, color, Providence County rabies certificate and tag number and other distinguishing physical characteristics of the dog, as well as proof of public liability insurance of not less than twenty-five thousand dollars ($25,000.00) for such registration. The fee for registration shall be twenty dollars ($20.00).
(Ord. 1980, ch. 80-43, § 2, 10-24-80)

Sec. 4-55. Owners responsible for damage done by their dogs.

In accordance with the General Laws of the State of Rhode Island, 1956, as amended, owners of dogs shall be liable for any damage done by their dogs to any domestic animal or livestock or persons. Additionally, the owners of any dog which shall bite any person while such person is on or in a private place, including the property of the owner, shall be liable for such damages as may be suffered by persons bitten, regardless of the former viciousness of such dog or the owner's knowledge of such viciousness.

A person is lawfully upon private property of such owner within the meaning of this section when he or she is on such property in the performance of any duty imposed upon him by the laws of this state or by the laws or postal regulations of the United States, or when he or she is on such property upon invitation, expressed or implied, of the owner thereof; or when he or she is on such property in the performance of a duty relative to public safety, which shall include policemen, firemen, or other authorized members of boards or agencies of city government; provided, however, no owner of any dog shall be liable for any damages to any person or his property when such person shall mischievously or carelessly provoke or aggravate the dog inflicting such damage; nor shall any such owner be so liable if at the time of any such injury he had displayed in a prominent place on his premises a sign easily readable including the words "Bad Dog," "Beware of Dog" or some other language which shall give sufficient warning to any individual.
(Ord. 1980, ch. 80-43, § 2, 10-24-80)

Sec. 4-56. Penalty for violation of sections 4-53 through 4-55.

Any person convicted of violating the provisions set forth in sections 4-53, 4-54 and 4-55 shall be punished by a fine as specified by the General Laws of the State of Rhode Island, Section 4-13.1-9, inclusive. Each day any violation of said section shall continue, shall constitute a separate offense.
(Ord. 1980, ch. 80-43, § 3, 10-24-80; Ord. 1989, ch. 89-9, § 1, 4-24-89)

Chapter 5

BUILDINGS AND STRUCTURAL APPURTENANCES*

Article I. In General

Sec. 5-1. Preservation of building ordinance, amendments.
Sec. 5-2. Egress requirements of certain occupancies.
Sec. 5-3. Sandblast in cleaning.
Sec. 5-4. Protection of lots after demolition of structures thereon.
Sec. 5-5. Correcting violations prior to granting of exceptions.
Sec. 5-6. Fire safety approvals.
Sec. 5-7. Fee schedule for new construction, alteration, demolition or other building operations.
Sec. 5-8. Notice of application for a demolition permit.
Secs. 5-9—5-12. Reserved.

Article II. Convalescent and Nursing Homes and Similar Establishments

Sec. 5-13. Applicability of article.
Sec. 5-14. Conditions for use of second floor of wood frame building.
Sec. 5-15. Requirements as to heating.
Sec. 5-16. Marking and illuminating hallways, passageways or exitways.
Sec. 5-17. Dumbwaiters and laundry chutes.
Sec. 5-18. Hallways, exitways and passageways to be clear of obstructions.
Sec. 5-19. Storage of mattresses, unused furniture and equipment.
Sec. 5-20. Storage of cleaning or polishing compounds and inflammables.
Sec. 5-21. Storage and disposition of waste and rubbish.
Secs. 5-22—5-31. Reserved.

***Editor's note—**The city council adopted a building code on December 21, 1956. Said code does not appear in this publication but will be found in the files of the city council.

Cross references—Inspection of buildings and premises by bureau of fire prevention, § 9-34; inspection, report on hazards, § 9-35; inspections of buildings, receptacles, places where inflammables are stored, § 9-36; inspection of buildings in areas where explosives are used in construction, § 9-77; inspection of restaurants, § 10-31; inspection of frozen desserts plants, § 10-80; creation, organization, personnel of minimum housing standards division, § 13-9 et seq.; enforcement of housing code, § 13-8 et seq.

State law references—Scope of ordinances which may be enacted, § 56-6-1, Gen. Laws 1956; ordinances regulating construction and equipment of buildings, §§ 23-27-1, 23-27-2, Gen. Laws 1956.

Article III. Stables

Sec. 5-32. Approval of location.
Sec. 5-33. Applications to be accompanied by plans.
Sec. 5-34. Applications to be sent to council; time limit to begin work, occupy building.
Sec. 5-35. Condition of grant of permits for stables.
Secs. 5-36—5-45. Reserved.

Article IV. Fences

Sec. 5-46. Lawful fences designated.
Sec. 5-47. Height of fence adjacent to residential driveway.
Sec. 5-48. Barbed wire fences.
Sec. 5-49. Complaint of neglect to maintain or remove fence.
Sec. 5-50. Repair, removal of fence by complainant.
Sec. 5-51. Resolution of dispute as to division line for partition fence.
Sec. 5-52. Resolution of dispute as to cost of partition fence.
Sec. 5-53. Fee for viewing fence on complaint.
Sec. 5-54. Removal of fences exceeding six feet in height.
Secs. 5-55—5-60. Reserved.

Article V. Construction in Fire Limits

Sec. 5-61. Scope.
Sec. 5-62. Definitions.
Sec. 5-63. Fire limits.
Sec. 5-64. Certain uses and structures prohibited in fire limits.
Sec. 5-65. Increases in height and area.
Sec. 5-66. Types of construction.
Sec. 5-67. Fire-resistive construction requirements.
Sec. 5-68. Cooling towers.
Sec. 5-69. Ground signs.
Secs. 5-70—5-80. Reserved.

Article VI. Post-Construction Stormwater Control

Sec. 5-81. Purpose.
Sec. 5-82. Applicability.
Sec. 5-83. Exemptions.
Sec. 5-84. Submissions and approvals.
Sec. 5-85. Technical standards.
Sec. 5-86. Maintenance requirements for best management practices (BMPs).
Sec. 5-87. Stormwater management plans.
Sec. 5-88. Maintenance agreements.

Sec. 5-89. Application fees.
Sec. 5-90. Enforcement.
Secs. 5-91—5-100. Reserved.

Article VII. Soil Erosion and Sediment Control

Sec. 5-101. Purpose.
Sec. 5-102. Applicability.
Sec. 5-103. Determination of applicability.
Sec. 5-104. Provisions of plan; procedures.
Sec. 5-105. Soil erosion and sediment control plan.
Sec. 5-106. Approval; expiration; renewal.
Sec. 5-107. Inspections.
Sec. 5-108. Noncompliance.
Sec. 5-109. Definition of selected terms.

Article VIII. In-Building Public Safety Radio System Coverage and Obstruction to Fixed Point-to-Point Microwave Network

Sec. 5-110. Intent and purpose.
Sec. 5-111. Definitions.
Sec. 5-112. Use and occupancy.
Sec. 5-113. Testing procedures.
Sec. 5-114. Amplification systems allowed.
Sec. 5-115. Who must comply.
Sec. 5-116. Exemptions.
Sec. 5-117. Costs.
Sec. 5-118. Noncompliance.
Sec. 5-119. Penalties.

Article IX. Special Flood Hazard Areas

Sec. 5-120. Purpose and application.
Sec. 5-121. Administrative provisions.
Sec. 5-122. Notification of a watercourse alteration.
Sec. 5-123. Use regulations.
Sec. 5-124. Definition of terms.
Sec. 5-125. [Authority.]

Article X. Building Energy Reporting Program

Sec. 5-126. Purpose and intent.
Sec. 5-127. Definitions.
Sec. 5-128. Establishment.

Sec. 5-129. Benchmarking required for municipal properties.
Sec. 5-130. Benchmarking required for other covered properties.
Sec. 5-131. Notification of covered properties.
Sec. 5-132. Exemptions.
Sec. 5-133. Provision and publication of benchmarking information.
Sec. 5-134. Direct upload.
Sec. 5-135. Energy assessments or actions.
Sec. 5-136. Energy assessment or action requirements.
Sec. 5-137. Maintenance of records.
Sec. 5-138. Violations and enforcement.
Sec. 5-139. Severability.

Article XI. Energy Efficiency and Carbon Neutral Goals for Municipal Buildings

Sec. 5-140. Purpose and intent.
Sec. 5-141. Definitions.
Sec. 5-142. Scope and applicability.
Sec. 5-143. Priorities and timeline.
Sec. 5-144. Annual reporting guidelines.
Sec. 5-145. Labor standards.
Sec. 5-146. Severability.

Article XII. Greenhouse Gas Emissions Reduction Targets in Buildings

Sec. 5-147. Building energy reporting program.
Sec. 5-148. Definitions.
Sec. 5-149. Establishment.
Sec. 5-150. Benchmarking required for municipal properties.
Sec. 5-151. Benchmarking required for other covered properties.
Sec. 5-152. Notification of covered properties.
Sec. 5-153. Exemptions.
Sec. 5-154. Provision and publication of benchmarking information.
Sec. 5-155. Direct upload.
Sec. 5-156. Energy assessments or actions.
Sec. 5-157. Energy assessment or action requirements.
Sec. 5-158. Maintenance of records.
Sec. 5-159. Violations and enforcement.
Sec. 5-160. Severability.

ARTICLE I. IN GENERAL

Sec. 5-1. Preservation of building ordinance, amendments.

For the purpose of providing minimum standards, provisions and requirements for safe and stable design, methods of construction and uses of materials in buildings and other structures, and for structures hereafter erected, constructed, enlarged, repaired, moved, converted to other uses or demolished, and to regulate the equipment, maintenance, use and occupancy of buildings and other structures; for the further purposes of providing basic and uniform regulations in terms of performance objectives, establishing reasonable safeguards for the safety, health and welfare of the occupants and users of buildings and other structures, and making adequate performance the test of acceptability, that certain ordinances of the city known as the "Building Ordinance of the City of Providence", being Chapter 1079 of the Ordinances of 1956, enacted December 21, 1956, as amended, shall be and is hereby preserved and continued as an ordinance of the city, notwithstanding its omission from this Code of Ordinances, and said ordinance shall not be affected by the adoption of this Code of Ordinances, but its provisions shall be controlling as to all of the subjects therein contained, within the corporate limits of the city.

Cross references—Rat and vermin control, § 12-110 et seq.; applicability of housing code, § 13-5; enlargement, alteration of city buildings, § 23-42; construction of new city buildings, § 23-43; clearance of electrical wires over buildings, § 23-121; safety device required on low-tension wires entering buildings, § 23-122.

Sec. 5-2. Egress requirements of certain occupancies.

(a) *Doors, windows.* Every apartment house having more than eight (8) apartments, and every hotel, inn, boardinghouse, rooming house and lodginghouse having accommodations for twelve (12) or more persons shall have the doors or windows of or to any exit or fire escape so arranged as to swing outward.

(b) *Lighting.* The halls and stairways of every hotel, inn, boardinghouse, rooming house, lodginghouse, and apartment house having eight (8) or more apartments shall be adequately lighted at all times and at the head and foot of each flight of stairs and at the intersections of all hallways with main corridors there shall be kept lighted during the night, a red light.

(c) *Compliance required.* It shall be the duty of every owner, lessee, proprietor, or keeper of any of the places mentioned hereinabove to comply with this section.
(Ch. 12, § 31.10(B)—(D), added by Ord. 1947, ch. 1617, § 7; Ord. 1949, ch. 217, § 1)

Cross references—Fire prevention and protection, § 9-1 et seq.; housing code, § 13-1 et seq.

Sec. 5-3. Sandblast in cleaning.

No person shall use a sandblast in cleaning the exterior of any building within the city without a permit therefor from the inspector of buildings. In granting permits,

the inspector may impose such conditions, regulations and restrictions as it may deem proper to prevent sand from being blown about and otherwise to preserve the safety and physical comfort of the portion of the public residing or being about or near the place where such operations may be carried on, or of the public generally.
(Ord. 1920, ch. 248, § 1; Rev. Ords. 1946, ch. 23, § 11)

Sec. 5-4. Protection of lots after demolition of structures thereon.

Whenever application is made for a permit to demolish a structure, the building inspector shall require that application also be made and that plans be submitted and carried out within sixty (60) days of said application or whenever seasonable conditions may allow, for the protection of said lot by grading and seeding; application of concrete, gravel, asphalt, or other suitable refinishing material; or the rebuilding on said lot. If no immediate reuse of the property is proposed and a building permit is not issued for the reuse of the property in a timely fashion and the property is located in an area subject to littering and dumping, the building inspector shall require the fencing of said lot within ten (10) days upon completion of demolition.
(Ord. 1980, ch. 80-33, § 1, 6-10-80; Ord. 1992, ch. 92-2, § 1, 1-10-92)

Sec. 5-5. Correcting violations prior to granting of exceptions.

No petition to the building board of review shall be granted whenever the owner of such property has currently on file with the recorder of deeds a notice of violation on any property owned by such person or corporation in the City of Providence unless he shall include plans for correction of all such violations.
(Ord. 1980, ch. 80-35, § 1, 6-10-80)

Cross reference—Correction of violations prior to grant of zoning variance, Ch. 27, § 300 et seq.

Sec. 5-6. Fire safety approvals.

(a) *General requirements.*

(1) Any person, including any partnership, corporation or association, undertaking the erection, extension, alteration, repair, structural alteration, installation of electrical wiring, plumbing or mechanical equipment in an existing structure which changes are regulated under R.I.G.L. § 23-28.1-1 et seq. or any other change so regulated; shall first make application for an inspection and for a plan review to the city bureau of fire prevention. Said application shall be made not fewer than fifteen (15) calendar days prior to the start of any proposed construction, repair, extension, etc. Such application shall be accompanied by the appropriate fee or fees as described in subsection (b) herein. No construction, repair, extension, etc. shall be initiated until the

required application has been approved by the bureau of fire prevention. No approval is required for any legal one-, two- or three-family residential structure.

(2) Any individual may request review by the city fire marshal of any decision made hereunder. The marshal shall conduct the appropriate hearing. Any person aggrieved by a decision of the city fire marshal may appeal that determination in accordance with R.I.G.L. § 23-28.3-1 et seq., as amended.

(3) Any and all construction, repair, extension, etc. shall be in compliance with the Rhode Island Fire Safety Code, 1976, as amended.

(4) All fees as set forth in this article shall be based on full valuation of current construction costs. Construction costs shall be determined by the applicable building permit issued by the department of inspection and standards.

(5) Payment of fees recited herein shall be made to the bureau of fire prevention upon application and shall be payable to the city collector.

(6) No fees shall be due for any structure situated on land owned by the city, the state, or the United States of America.

(7) No fees shall be due for a fire safety inspection which may be required for a license renewal.

(b) *Fees* The state's fee schedule for fire prevention plan reviews is incorporated herein by reference and the same is hereby adopted for use in all plan reviews conducted. The plan review fee schedule for the state fire marshal's office pursuant to R.I.G.L. § 23-28.2-26, is as follows:

$500.00 or less	$25.00
$501.00 to $1,000.00	$35.00
$1,001.00 to $2,000.00	$45.00
$2,001.00 to $500,000.00	$45.00 + $6.00 for each additional $1,000.00 over $2,000.00
$500,001.00 and up over $500,000.00	$3,033.00 + $4.00 for each additional $1,000.00

(Ord. 1997, ch. 97-74, § 1, 11-26-97; Ord. 2003, ch. 03-48, § 1, 8-1-03; Ord. 2007, ch. 07-40, § 1, 7-25-07)

Editor's note—Ch. 97-74, § 1, approved November 26, 1997, amended the Code by adding provisions designated as a new § 10-31. In order to keep related matter together, the editor has redesignated such provisions as a new § 5-6 at his own discretion. Ch. 03-48, § 1, approved August 1, 2003, amended the provisions of ch. 97-74 by officially renumbering § 10-31 as § 5-6.

Sec. 5-7. Fee schedule for new construction, alteration, demolition or other building operations.

(a) In accordance with R.I.G.L. tit. 23-27.3, § 118.0, fees, the Rhode Island State Building Code, the schedule of fees listed hereunder shall apply to all permits issued for the construction, alterations, maintenance, repair of any building, sign, marquee,

or other structure, including the installation of plumbing, electrical, heating ventilation, air conditioning, refrigeration, or any other mechanical equipment under the purview of the state building code, and the replacement of gasoline pumps and storage tanks, except as may be otherwise specified herein, and to the city zoning ordinance.

SCHEDULE OF PERMIT FEES

Final construction cost		
From	*To*	*Fee*
$0.00	$500.00	$44.00
$500.01	$1,000.00	8.8 percent of construction cost
$1,000.01	$5,000.00	$88.00 + $24.10 per thousand exceeding $1,000.00 cost
$5,000.01	$50,000.00	$184.40 + $26.10 per thousand exceeding $5,000.00 cost
More than $50,000.00		$1,358.90 + $21.60 per thousand exceeding $50,000.00 cost

Fractions of a dollar will be rounded up to the next whole dollar.

(b) The city council of the city hereby reserves the right to modify the fee schedule upon the finding of significant economic benefit to the city. Each project shall be judged on a case by case basis and the criteria shall include, but not be limited to, the number of jobs expected, the overall project or renovation cost, assessment of benefits to the surrounding neighborhood and other benefits to the city as a whole.

(c) Plan review fee. A plan review fee shall be paid upon application for a building permit for construction valued at fifty thousand dollars ($50,000.00) or more. This fee shall be equal to one-third (1/3) of the permit fee calculated in accordance with the schedule of permit fees listed in subsection (a) of this section, but in no case shall exceed ten thousand dollars ($10,000.00). Whenever more than one (1) plan review is required, either because of a change of the drawings, a delay by the owner in obtaining a building permit, or some other reason, the director may charge an additional plan review fee. At the time of the issuance of the building permit, the fee paid for the plan review will be applied towards the amount of the final building permit fee. When more than one (1) plan review fee has been paid, only one (1) fee shall be applied towards the payment of the permit fee.

(d) Permit fee for cleaning the exterior of buildings. The fee for the cleaning of buildings by sandblasting or by steam or acid, or any other process, shall be sixty dollars ($60.00).

(e) Permit fee for obstructing highways during construction. The fee for obstructing a right-of-way during the construction of buildings or other structures shall be based upon the area of the right-of-way obstructed and shall be at the rate of six cents ($0.06) per square foot of obstructed area for each week or fraction thereof that the right-of-way is obstructed. The minimum fee, however, shall be eighty dollars ($80.00).

(f) Permit fee for demolition. The fee for the demolition of buildings or other structures shall be eighty-five dollars ($85.00) for a building two (2) stories or less in height, plus forty-five dollars ($45.00) for each story over two (2) stories in height.

(g) Permit fee for moving buildings or other structures:

Moving buildings without using a right-of-way	$230.00
Moving buildings using a right-of-way	350.00

(h) Fee for a certificate of occupancy:

New buildings or other new structures	115.00
Existing buildings or other existing structures	175.00

(i) Fee for Section 108.1.5, inspections. The fee for inspection performed in accordance with Section 108.1.5 of the Rhode Island State Building Code or performed at the request of the Providence Bureau of Licenses prior to license issuance or renewal shall be forty dollars ($40.00) for each division making an inspection of the premises. The fee for reinspection for a failed or incomplete inspection shall be fifty dollars ($50.00) for each division making an inspection of the premises.

(j) Appeal to the building board of review and zoning board of review. The fee for an application to the building board of review shall be four hundred forty dollars ($440.00). The fee for an application to the zoning board of review shall be as follows. The application fee shall be the sum of the advertising fee plus the processing fee. The advertising fee shall be one hundred fifteen dollars ($115.00). The processing fee shall be as follows:

One-family dwelling	$175.00
Two-family dwelling	345.00
Three-family dwelling	430.00
Multi-family dwelling for first four units	520.00
Plus, for each additional unit	80.00
Other residential uses	430.00
Institutional, governmental, cultural, entertainment, recreational, general trade, transportation, communications, utilities, and manufacturing	870.00
Appeal from decision of director of inspection and standards	260.00
Appeal from city historic district commission	260.00

Where there are mixed use codes, the higher fee shall govern. In no case shall the sum of the fee exceed two thousand six hundred dollars ($2,600.00).

(k) Working without a building permit. The maximum fee allowed by the state building code, in addition to the fees outlined herein, shall be charged whenever any work is performed without a building permit or whenever the terms of any permit are exceeded.

(l) Fees not otherwise classified. If a fee is not listed in this section, a reasonable fee shall be set by the director of the department of inspection and standards.
(Ord. 2002, ch. 02-30, §§ 1—12, 9-20-02; Ord. 2007, ch. 07-36, § 1, 7-25-07; Ord. 2011, ch. 2011-75, § 1, 12-9-11; Ord. 2013, ch. 2013-32, § 1, 7-31-13; Ord. No. 2015-58, § 1, 11-12-15)

Sec. 5-8. Notice of application for a demolition permit.

(a) Upon the application of a permit to the department of inspection and standards for the complete removal of an existing structure, the applicant shall provide the city clerk with a notice of application. For the purpose of this section, a "structure" shall not include accessory structures as defined in the zoning ordinance. Said notice shall include:

(1) A copy of the application submitted to the department of inspection and standards, which application shall include a site plan with location of fencing, debris staging, dumpster locations, and a separate dust/lead/asbestos mitigation plan;

(2) A list identifying all parcels and owners within two hundred (200) feet of the lot where the removal is to occur, whether within the city or within an adjacent city or town ("the abutters").

(b) Notice of an application for the complete removal of an existing structure of a parcel shall also be distributed as provided for in this section:

(1) Upon receipt of an application, the building official shall provide written notice to the city council representative of the ward in which the property is located, which notice shall be delivered-either by the city sergeant and through electronic communication.

(2) Written notice shall be sent at least fourteen (14) days prior to the demolition containing the date, time, and place of the demolition, the nature and purpose of the demolition, and a map showing the existing boundaries and adjacent streets and roads of the property that is the subject of removal, as well as city or town boundaries where appropriate, to:

a. The last known address of the abutters, as shown on the current real estate tax assessment records of the city or town in which the property is located; and

b. Any individual or entity holding a recorded conservation or preservation restriction on the property that is the subject of removal as well as to the owner, occupant, lessee, mortgagee, and any other person with an interest in the property, as indicated by the recorder of deeds.

(3) The written notice required in this section shall be sent by registered, certified, or first-class mail; provided, for any notice sent by first-class mail, the sender of the notice shall utilize and obtain a United States Postal Service certificate of mailing, PS form 3817, or any applicable version thereof, to demonstrate proof of mailing. However, if any such person cannot be identified or located, service may be achieved through publication in a newspaper circulating in the city.

(c) Any applicant who applies for a permit for the complete removal of an existing structure, shall post at the property a notice alerting the public of the pending demolition for fourteen (14) days prior to the commencement of said demolition. The site posting at the property shall comply with the following:

(1) The site posting shall include:

a. A description of the proposed project action;

b. A list of project permits issued;

c. The name, address, and telephone number of the applicant or agent;

d. The date the notice is posted; and

e. The estimated start date of demolition.

(2) The site posting shall be on an all-weather material of not less than three (3) feet by four (4) feet located adjacent to the property line, along the front/sidewalk/address side of the structure. Such material will be provided to the applicant upon payment of related fees.

(3) The applicant shall submit an affidavit, signed under the pains and penalties of perjury, reflecting the form of the site posting to the department of inspection and standards no more than three (3) working days after posting.

(4) Any applicant found to be in violation of this section shall be subject to a penalty of fifty dollars ($50.00) for each day that the required site posting was lacking and may result in the voiding of the applicant's permit to demolish the structure at the discretion of the department of inspections and standards.

(d) No permit shall be issued for the complete removal of an existing structure unless the owner of the site provides an invoice for rat abatement by a licensed pest control company no more than thirty (30) days prior to the commencement of said demolition.

(e) The building official shall have the authority to exempt an applicant from the notice and rat abatement requirements of this section upon a finding that the existing structure poses a threat to the public health and safety and must be removed immediately.

(f) In addition to the procedures contained in this section, the department of inspection and standards may develop general procedures for notification, including but not limited to the format of the notice, the size and configuration of any signage, and an affidavit of posting or mailing.

(g) Any applicant found to be in violation of subsection (a) or (b) shall be subject to a penalty not to exceed five hundred dollars ($500.00) and shall void the applicant's permit to demolish the property.
(Ord. No. 2021-30, § 1, 8-2-21; Ord. No. 2023-52, § 2, 12-21-23; Ord. No. 2024-17, § 1, 5-24-24)

Secs. 5-9—5-12. Reserved.

ARTICLE II. CONVALESCENT AND NURSING HOMES AND SIMILAR ESTABLISHMENTS*

Sec. 5-13. Applicability of article.

This article shall apply only to existing wood frame buildings presently being used for the purposes set forth in section 5-14, and shall not be construed to affect the requirements for new buildings or future occupancies to be used for such purposes.
(Ch. 8B, § 1, added by Ord. 1958, ch. 1201, § 10)

Sec. 5-14. Conditions for use of second floor of wood frame building.

No person shall operate a convalescent home, nursing home, home for aged persons, home for the boarding of seven (7) or more children, or home for mental patients above the first floor of a wood frame building, provided that in wood frame buildings protected by an approved automatic sprinkler system and occupied for no other purpose, and otherwise complying with the provisions hereof, the second floor may be used for such occupancy; and further provided that the second floor of wood frame buildings which are legally being used for said purposes presently, may continue to be so used upon the following conditions:

(a) Said premises shall be occupied for no other purpose.

***Cross reference—**Inspection of buildings and premises by bureau of fire prevention, § 9-34.

State law references—State law giving council authority to regulate for prevention of fires, § 45-6-1, Gen. Laws 1956; fire safety code, ch. 23-28.1 et seq., Gen. Laws 1956.

(b) Said premises shall be protected by a fire detection and alarm system approved by the chief of the fire department.

(c) Said premises and fire alarm and detection system shall be connected directly with the fire alarm headquarters of the fire department.

(d) Said second floor shall be occupied by no more than six (6) persons, all of whom shall be ambulatory.

(e) Strict compliance with the other provisions of this article shall be had.
(Ch. 8B, § 2, added by Ord. 1958, ch. 1201, § 1)

Sec. 5-15. Requirements as to heating.

All heat for buildings provided for in section 5-13 of this chapter shall be supplied from a central heating plant, to be maintained in good operating condition. A boiler or heater room shall be separated from all other areas by walls and ceiling having a fire resistance rating of at least one hour, and all openings between such rooms and other areas shall be protected by automatic or self-closing fire doors.
(Ch. 8B, § 3, added by Ord. 1958, ch. 1201, § 2)

Sec. 5-16. Marking and illuminating hallways, passageways or exitways.

(a) All hallways, passageways or exitways on floors occupied by patients in buildings provided for in section 5-13 shall be illuminated at all times, and all exits shall be suitably marked.

(b) The electrical circuit supplying power for lights in said hallways, passageways and exitways, shall be independent of all other lighting circuits.
(Ch. 8B, § 4, added by Ord. 1958, ch. 1201, § 3)

Sec. 5-17. Dumbwaiters and laundry chutes.

(a) Dumbwaiters and laundry chutes in buildings provided for in section 5-13 of this chapter shall be enclosed by an approved material having a fire resistance rating of at least two hours. All openings to such dumbwaiters and laundry chutes shall be protected by an approved self-closing fire door.

(b) Hoists in such installations shall consist of metal cable, the use of rope being prohibited.
(Ch. 8B, § 5, added by Ord. 1958, ch. 1201, §§ 4, 5)

Sec. 5-18. Hallways, exitways and passageways to be clear of obstructions.

Hallways, passageways and exitways in buildings provided for in section 5-13 of this chapter shall be kept clear of all obstructions.
(Ch. 8B, § 6, added by Ord. 1958, ch. 1201, § 6)

Sec. 5-19. Storage of mattresses, unused furniture and equipment.

Storage of mattresses and unused furniture in buildings provided for in section 5-13 of this chapter must be in a room separated from the heating plant. Storage of more equipment than necessary for the operation of said business is forbidden.
(Ch. 8B, § 7, added by Ord. 1958, ch. 1201, § 7)

Sec. 5-20. Storage of cleaning or polishing compounds and inflammables.

All service closets or compartments used for the storage of cleaning or polishing compounds or implements of an inflammable nature in buildings provided for in section 5-13 of this chapter shall be enclosed by material resistant to fire for at least one hour.
(Ch. 8B, § 8, added by Ord. 1958, ch. 1201, § 8)

Sec. 5-21. Storage and disposition of waste and rubbish.

Waste materials and rubbish from buildings provided for in section 5-13 of this chapter shall be kept in metal cans with metal covers and removed from the premises daily.
(Ch. 8B, § 9, added by Ord. 1958, ch. 1201, § 9)

Cross reference—Garbage, trash and refuse, § 12-46 et seq.

Secs. 5-22—5-31. Reserved.

ARTICLE III. STABLES*

Sec. 5-32. Approval of location.

No person shall use any building, or part thereof, within the city for a stable, which has not been lawfully erected, altered or enlarged for a stable, unless the location thereof shall have been first approved by the city council.
(Rules of Bd. of Ald., ch. 1, r. 57; Rev. Ords. 1946, ch. 4, § 11)

Sec. 5-33. Applications to be accompanied by plans.

All applications to build, alter, enlarge or use any building for a stable, shall contain a plan of the lot with the location of the proposed stable plainly marked thereon.
(Rules of Bd. of Ald., ch. 1, r. 58; Rev. Ords. 1946, ch. 4, § 12)

***Cross reference—**Inspection of buildings and premises by bureau of fire prevention, § 9-34.

Sec. 5-34. Applications to be sent to council; time limit to begin work, occupy building.

The inspector of buildings is hereby directed to send immediately all applications to build, alter, enlarge, or use a building for a stable to the city council. In case the city council shall approve the location for such stable, the work of construction or alteration shall be begun, or if a building is to be used as a stable it shall be occupied within sixty (60) days from the time of such approval.
(Rules of Bd. of Ald., ch. 1, r. 59; Rev. Ords. 1946, ch. 4, § 13)

Sec. 5-35. Condition of grant of permits for stables.

(a) All permits for stables granted under P. L. 1909, Chapter 472, section 30, shall be subject to the following conditions:

(1) The building to be used for a stable shall be located and constructed in accordance with the provisions of the application to build as granted.

(2) The owner or occupant of the stable shall not at any time violate any law, ordinance or rule applicable to stables or barns in the city now or hereafter in force, relative to the care and maintenance of said stable.

(b) All permits for private stables of the first class granted under P. L. 1909, Chapter 472, section 30, shall be subject to the additional condition that no private stable of the first class shall be used for keeping therein more horses or cattle of any kind than six (6) in all at any one time.

(c) In granting permits for private stables of the second class under said section of Chapter 472 of P. L. 1909, the city council shall in each instance fix the maximum number of horses or cattle that may be kept therein, and all permits for private stables of the second class shall be subject to the additional condition that no private stable of the second class shall be used for keeping therein more horses or cattle of any kind at any one time than the number fixed by the city council.
(Rules of Bd. of Ald., ch. 1, r. 61-63; Rev. Ords. 1946, ch. 4, § 15)

Secs. 5-36—5-45. Reserved.

ARTICLE IV. FENCES*

Sec. 5-46. Lawful fences designated.

The fences hereinafter described as partition fences, namely fences erected upon a common division line between two (2) or more lots, are and shall be adjudged to be lawful fences, to wit:

(a) *Hedge.* A hedge planted on the dividing line only when both adjoining owners shall agree in writing to keep, trim and maintain their respective sides and top of the hedge. A copy of the agreement signed by both parties shall be filed with the fence viewer of the city, who shall keep said agreement on file in his office. If either party shall refuse to keep, trim and maintain his side and top of the hedge, the aggrieved party shall complain to the fence viewer, and if he shall find said complaint to be true, he shall in writing notify the delinquent party and order him to trim, keep and maintain his side and top of the hedge within fifteen (15) days after notice. If such order shall not be complied with, the complainant may have said hedge trimmed, and when the work shall be completed to the satisfaction of the fence viewer, complainant shall ascertain the cost thereof, and shall be entitled to demand and recover of the party delinquent double the cost, plus interest at the rate of ten (10) percent per annum in an action of debt.

No hedge consisting of shrubs, trees, flowers or any other kind of plant or evergreen, shall be constructed, erected or grown as a partition fence, except as provided above.

(b) *Stone.* A stone wall fence used as a partition fence in a residential section constructed of flat fieldstone, not exceeding four (4) feet high and having a flat stone top thereof, not exceeding twelve (12) inches in width, and having the same finish on both sides. No partition fence shall be constructed of concrete, brick, cement blocks, cobblestones, boulders or any other materials except as herein provided, unless same shall be properly capped and shall be finished on both faces in a neat and workmanlike manner.

(c) *Woven wire.* A woven wire partition fence of wire not less than number nine gauge firmly fastened to posts not more than sixteen (16) feet apart, woven of not less than eleven (11) horizontal wires, the bottom wire to be not more than

---

***Cross references—**Inspection of buildings and premises by bureau of fire prevention, § 9-34; protection barriers on commercial parking lots adjacent to dangerous conditions, § 14-69 et seq.; erection of fences and buildings on building lines, § 23-4; barbed wire fences, § 23-5.

State law reference—Enactment of ordinances regulating use of land (Zoning), § 45-24-1 et seq., Gen. Laws 1956.

two (2) inches from the ground and with stays or uprights not more than six (6) inches apart. There shall be no sharp prongs on top of said fence, and all prongs shall be either meshed or turned over.

(d) *Others.* All other kinds of partition fences not herein otherwise particularly described shall be four and one-half (4½) feet high, unless both adjoining owners agree in writing to a different height.

(Ord. 1964, ch. 1673, § 1)

Sec. 5-47. Height of fence adjacent to residential driveway.

Notwithstanding any other provisions of this article, no fence other than a wire fence which runs or is to run adjacent to a residential driveway shall be over thirty-six (36) inches high along that portion of the fence extending from the property line back a distance of twenty (20) feet.

(Ord. 1964, ch. 1673, § 2)

Sec. 5-48. Barbed wire fences.

(a) No fence shall be constructed wholly or in part of barbed wire, as a line fence between adjoining owners.

(b) Any adjoining owner may complain of the erection of said type fence to the fence viewer and it shall then be the duty of said fence viewer to notify in writing the other adjoining owner to forthwith remove said fence. If said fence shall not be removed within fifteen (15) days after the giving of said notice then it shall be the duty of said fence viewer to forthwith remove said fence, store or deliver said fence materials so removed to the owner. Said owner shall pay to the fence viewer all expenses necessary to remove, store and deliver said fence. If said owner shall fail to pay said expenses for removal, storing and delivering of said barbed wire, the fence viewer may institute an action of debt to recover the same.

(c) This section shall not apply to fences erected surrounding commercial or industrial property where fences at least eight (8) feet high may be erected provided the barbed wire portion is attached to metal stays projecting inwardly from the top of the fence.

(Ord. 1964, ch. 1673, § 3)

Sec. 5-49. Complaint of neglect to maintain or remove fence.

Whenever any proprietor, possessor or owner of land shall neglect or refuse to repair, remove or rebuild any partition fence, the adjoining owner may complain to the fence viewer of the city who, after ten (10) days' notice to such proprietor, possessor or owner, shall attend and view the same; said notice if the address of the owner is not known to the said fence viewer, to be given by (1) mailing a copy to owner to his address as it appears on the city assessor's records, and (2) by delivering a copy to any occupant of the land; (3) by posting the same in three (3) or more public places in the

city, one (1) of which shall be on the land. If he shall find said complaint to be true after taking a view, he shall in writing order the delinquent party to repair, remove or rebuild the same within such time as he shall therein appoint, not less than thirty (30) days, and shall keep a copy of said order in his office.
(Ord. 1964, ch. 1673, § 4)

Sec. 5-50. Repair, removal of fence by complainant.

If the order provided for in section 5-49 shall not be complied with, the complainant may repair or rebuild the said fence in the manner set forth in said order, and when the same shall be completed to the satisfaction of such fence viewer, said viewer shall ascertain the cost thereof and give a certificate for one-half (½) of said cost of the same, including also his fees, to the complainant, who shall be entitled to demand and recover of the party delinquent double the sum in said certificate mentioned, and interest at the rate of ten (10) per cent per annum. In an action of debt the said fence viewer shall lodge a like certificate, to be signed by him, in the office of the recorder of deeds, and the double sum above-mentioned shall be a lien on the land of such delinquent for two (2) years, and shall attach at and from the time of the filing of the certificate.
(Ord. 1964, ch. 1673, § 5)

Sec. 5-51. Resolution of dispute as to division line for partition fence.

Whenever a dispute arises between abutting landowners with respect to a division line for the purpose of erecting a partition fence, the fence viewer after complaint to him, shall meet with both parties, and if the parties cannot agree, the fence viewer shall appoint a surveyor. The fee of such surveyor shall be apportioned and each of the parties shall pay one-half (½) thereof, and if one (1) party shall refuse to pay his share, the other party shall pay the entire fee and shall be entitled to recover said entire fee plus the fence viewer fee and interest at the rate of ten (10) per cent per annum from the party delinquent in an action of debt.
(Ord. 1964, ch. 1673, § 6)

Sec. 5-52. Resolution of dispute as to cost of partition fence.

Whenever a dispute shall arise between abutting landowners with respect to the type of fence to be erected on a dividing line, the fence viewer, if requested, shall view the abutting parcels of land and determine the cost of the fence selected by each abutting landowner and should the fence viewer approve the more expensive fence, then the abutting owner who initially selected this fence shall bear the greater share of the cost of such fence, plus the fence viewer's fee. The person whose fence shall have been rejected by the viewer shall bear one-half (½) the cost of the fence he selected; provided however, the person bearing the greater cost of the fence erected on the dividing line shall have the right to face it on his side.
(Ord. 1964, ch. 1673, § 9)

Sec. 5-53. Fee for viewing fence on complaint.

The fence viewer provided for herein shall be allowed six dollars ($6.00) per day for viewing any fence on complaint made to him for that purpose, which fee shall be paid in the first instance by the person complaining to him. Said fees shall be paid over to the city collector.
(Ord. 1964, ch. 1673, § 7)

Sec. 5-54. Removal of fences exceeding six feet in height.

No fence or other structure in the nature of a fence which exceeds six (6) feet in height and which is located in or adjacent to a residential use shall be erected. It shall be removed upon order of the fence viewer upon notice as set forth in section 5-49; if not removed within thirty (30) days of said notice from the fence viewer, the abutting owner may have said fence removed and shall be entitled to recover from the adjoining owner double the cost of removal of said fence, plus interest at the rate of ten (10) per cent in an action of debt.
(Ord. 1964, ch. 1673, § 8)

Secs. 5-55—5-60. Reserved.

ARTICLE V. CONSTRUCTION IN FIRE LIMITS*

Sec. 5-61. Scope.

The provisions of this regulation shall control the division of the City of Providence into fire limits and the general limitation of height and area of all buildings and structures hereafter erected, and extensions to existing buildings and structures hereafter altered or enlarged as affected by the fire and life hazard incident to type of construction, use group, density of development, exterior exposure and accessibility of buildings and structures to fire fighting facilities and equipment.
(Ord. 1985, Ch. 85-90, § 1, 12-24-85)

Sec. 5-62. Definitions.

(a) Fire limits [are] the territories defined and limited by the provision of this code for the restriction of types of construction (see section 5-63.)

(b) All reference to the Rhode Island State Building Code shall refer to the Rules and Regulations SBC-1, dated August 1, 1984. All reference to sections or table therein shall be designated as SBC-1 followed by the section or table reference.

***Editor's note—**At the discretion of the editor, ch. 85-90, approved Dec. 24, 1985, has been codified as Art. V of Ch. 5.

Cross reference—Fire prevention, Ch. 9.

(c) All reference to use groups and construction classifications shall refer to the definitions contained in SBC-1, Articles 2, 3 and 4.
(Ord. No. 1985, Ch. 85-90, § 2, 12-24-85)

Sec. 5-63. Fire limits.

(a) *General.* For the purpose of control of use and construction of buildings and structures to prevent conflagration from fire, the City of Providence hereby establishes limiting districts designated "fire limits" and the "outside fire limits" under the legal procedure of the city for creating and establishing fire limits, and in accordance with SBC-1, Section 500.2.

(b) *Fire limits described.* The fire limits shall comprise the areas containing congested business, commercial, manufacturing and industrial uses or in which such uses are developing. The description of the limits of such areas follows. Unless otherwise stated, boundary lines are drawn lengthwise through the centers of a highway, bridge, railroad, and harbor line or parts thereof.

AREA ONE

Area One begins at a point at the intersection of the center of Broadway and Dean Street, thence going southeasterly on Dean Street to West Street; thence, southwesterly on West Street to Cargill Street; thence, southeasterly on Cargill Street to Fountain Street; thence, westerly on Fountain Street to Battery Street; thence, southerly on Battery Street to Westminster Street; thence, easterly on Westminster Street, to Interstate Route 95; thence, southeasterly on I-95 to Broad Street; thence, southwesterly on Broad Street to Pearl Street; thence, northwesterly on Pearl Street to Perkins Street; thence, southwesterly on Perkins Street to A Street; thence, southeasterly on A Street to Booth Street; thence, southwesterly on Booth Street to its intersection with the southerly property line of lot 89, on A.P. 30, as assessed December 31, 1983; thence, southeasterly along the southerly property line of lot 89 to Central Street; thence, southeasterly along Central Street to Broad Street; thence, northeasterly on Broad Street to Lockwood Street; thence, southeasterly on Lockwood Street to Pine Street; thence, northeasterly on Pine Street to Interstate Route 95; thence, southeasterly on Interstate Route 95 to Plain Street; thence, southerly on Plain Street to Borden Street; thence, easterly on Borden Street to Crary Street; thence, southeasterly on Crary Street to Eddy Street; thence, southerly on Eddy Street to Carolina Avenue; thence, easterly on Carolina Avenue to Narragansett Boulevard; thence, northerly on Narrangansett Boulevard to Chapman Street; thence, easterly on Chapman Street to westerly boundary line of the shipyard as shown on A.P. 56, assessed December 31, 1983; thence, southerly along the westerly boundary line of the shipyard as shown on A.P. 56 to the Cranston city line; thence, easterly along the Cranston city line to the East Providence city line; thence, northerly along the East Providence city line to its intersection with the southerly extension of the center line of Traverse Street at

India Point; thence, northwesterly along the center line of Traverse Street to the southerly boundary line of Interstate Route 195; thence, northwesterly on Interstate Route 195 to South Water Street; thence, northwesterly on South Water Street to Crawford Street; thence, northeasterly on Crawford Street to South Main Street; thence, northerly in part along South Main Street and in part along North Main Street to Smith Street; thence, westerly on Smith Street to Francis Street; thence, southerly on Francis Street to Brownell Street; thence, westerly on Brownell Street to Holden Street; thence, northerly on Holden Street to West Park Street; thence, northwesterly and westerly on West Park Street to Valley Street; thence, continuing westerly and southwesterly on Valley Street to the Woonasquatucket River; thence, westerly and southerly along the Woonasquatucket River to Delaine Street; thence, southwesterly on Delaine Street to Manton Avenue; thence, northwesterly on Manton Avenue to Hillard Street; thence, southwesterly and northwesterly on Hillard Street to Pelham Street; thence, westerly on Pelham Street to Curtis Street; thence, northwesterly on Curtis Street to Bosworth Street; thence, southwesterly on Bosworth Street to Route 6; thence, southeasterly on Route 6 to its intersection with the extension of Magnolia Street; thence, southwesterly on Magnolia Street to Huldah Street; thence, southeasterly on Huldah Street to Sterling Avenue; thence, easterly on Sterling Avenue to Atwood Avenue; thence, southerly on Atwood Avenue to Union Avenue; thence, easterly on Union Avenue to Route 10, thence, northerly and northeasterly in part along Route 10 and in part along Route 6 to Dean Street; thence southeasterly on Dean Street to Cedar Street; thence, easterly on Cedar Street to Bradford Street; thence, southerly on Bradford Street to Broadway; thence, westerly on Broadway to Dean Street as said place of beginning.

AREA TWO

Area Two begins at the intersection of the center of Elmwood Avenue and Earl Street; thence, westerly on Earl Street to the property now or formerly of the N.Y.N.H. and Hartford Railroad; thence, northwesterly along its westerly boundary to its intersection with the northerly boundary of lot 170, on A.P. 51, assessed December 31, 1983; thence, westerly, southwesterly and southerly along the boundary line of Lot 170 to its intersection with Adelaide Avenue; thence, easterly along Adelaide Avenue to Downing Street; thence, southerly along Downing Street to Reservoir Avenue at its intersection with Narragansett Avenue; thence, southerly along Narragansett Avenue to Roger Williams Avenue; thence, easterly along Roger Williams Avenue to property now or formerly of the N.Y.N.H. and Hartford Railroad; thence, northwesterly along the easterly boundary of property now or formerly of the N.Y.N.H. and Hartford Railroad to its intersection with Russell Street; thence, easterly along Russell Street to Elmwood Avenue; thence, northwesterly along Elmwood Avenue to the place of beginning.

(Ord. No. 1985, Ch. 85-90, § 3.2, 12-24-85)

(c) *Outside fire limits.* All other areas not included in the fire limits shall be designated as outside fire limits.
(Ord. 1985, Ch. 85-90, § 3, 12-24-85)

Sec. 5-64. Certain uses and structures prohibited in fire limits.

(a) *High hazard uses.* High hazard uses as defined in SBC-1 Article 3, shall not be permitted in any building or structure located within the fire limits.

(b) *Above-ground tanks.* Aboveground tanks used for the storage of flammable or combustible materials shall not be located within the fire limits.
(Ord. 1985, Ch. 85-90, § 9, 12-24-85)

Sec. 5-65. Increases in height and area.

It shall be unlawful to increase the height or area of an existing building or structure, unless the building or structure is of a type of construction permitted for new buildings or structures of the increased height and area, and of a use group permitted within the fire limits in which it is located and as regulated by SBC-1, Section 505 and made to conform with the requirements of the state building code in respect to means of egress, fire protection, light and ventilation.
(Ord. 1985, Ch. 85-90, § 5, 12-24-85)

Sec. 5-66. Types of construction.

(a) *General.* All buildings and structures, hereafter erected within the boundaries of the fire limits shall be of a Type 1, 2A, 2B, 4 or 3A construction as defined in SBC-1, Article 4 and regulated in SBC-1, Table 401; and shall be constructed within the height and area limitations of SBC-1, Table 501, except as herein provided. Open parking structures may be constructed as permitted under SBC-1, Section 617.0.

(b) *Type 2C, 3B or 5A construction permitted.* Buildings and structures and additions to existing buildings and structures, hereafter erected within the fire limits may be of Type 2C, 3B or 5A construction as defined in Article 4 and regulated in SBC-1, Tables 401 and 501, when constructed and located in accordance with the requirements of Table 4.2.

Table 4.2

Exterior Wall Fire-Resistance Rating Requirements

Width of fire separation adjacent to exterior wall	*Fire-resistance rating of exterior wall or barrier*	*Fire-resistance rating of exterior opening protectives*	*Minimum classification of roof covering*
On lot lines of not less than 3 feet therefrom or from any building	4 hour	Not permitted	B
3 feet or more but less than 6 feet	3 hour	3 hour	B

Width of fire separation adjacent to exterior wall	*Fire-resistance rating of exterior wall or barrier*	*Fire-resistance rating of exterior opening protectives*	*Minimum classification of roof covering*
6 feet or more but less than 11 feet	2 hour	1½ hour	B
11 feet or more but less than 30 feet	1 hour	¾ hour	B
30 feet or more	0 hour	0 hour	C

NOTE

a. Not less than required by SBC-1, Table 401. The exterior wall or barrier shall extend to the height of the building and be so constructed that it will remain structurally in place for the duration of time indicated by the required fire-resistance rating. When the exterior wall or barrier is adjacent to a flat roof, it shall be constructed with a parapet.

b. One foot equals 304.8 mm.

(c) *Storm enclosures.* Storm enclosures may be erected of Type 2C or 5 construction not more than ten (10) feet (3048 mm) in height and not more than three (3) feet (914 mm) wider than the entrance doors which they serve, provided they do not project more than six (6) feet (1829 mm) beyond the building line.

(d) *Builders' shanties and reviewing stands.* Temporary builders' shanties erected in connection with approved building operations, platforms, reviewing stands and other similar miscellaneous structures may be erected of Type 2C or 5 construction for a limited period of time as approved by the building official.

(e) *Bins, tanks, towers and roof structures.* Coal and material bins, water towers, tank structures and trestles may be erected of Type 4 construction with dimensions not less than required for Type 4 construction, not over thirty-five (35) feet (10668 mm) in height when located thirty (30) feet (9144 mm) from the interior lot lines or any building, except when located on lot lines along a railroad right-of-way or waterfront.

(f) *Erection on buildings.* Aerial supports not more than twelve (12) feet (3658 mm) in height, water tanks and flagpoles may be erected of wood on buildings not more than three (3) stories nor more than forty (40) feet (12192 mm) in height and drip bars in cooling towers may be constructed of wood.

(g) *Motor fuel service stations.* Gasoline service stations, and structures of similar uses, not including use group H, may be erected of Type 2C construction within the height and area limits for use group M or SBC-1, Table 501, provided they are located not less than eleven (11) feet (3353 mm) from the lot line or another building.

(h) *Bus and passenger terminals.* Roofs over parking lots, bus and passenger terminals may be erected one (1) story and not over twenty (20) feet (6096 mm) in height and not more than eleven thousand (11,000) square feet (1023 square meters) in area of Type 2C or 4 construction.

(i) *Wood veneers.* Wood veneers of one-inch (25.4 mm) nominal thickness or exterior grade plywood not less than three-eighths 3/8 inch (9.53 mm) thick may be used on exterior wall when facing a fire separation of a minimum of thirty (30) feet (9144 mm) provided the veneer does not exceed one (1) story in height and is applied to noncombustible backing or is furred not to exceed 1 5/8 inch (41 mm) and firestopped in accordance with SBC-1, Section 1420.0 and Section 1425.0. Where all wood veneers comply with SBC-1, Section 1043.5.2, for exterior use, the height may be increased to two (2) stories.
(Ord. 1985, Ch. 85-90, § 4, 12-24-85)

Sec. 5-67. Fire-resistive construction requirements.

(a) Buildings of Type 2C, 3B or 5A construction located within the fire limits shall have opening protectives in accordance with the most restrictive requirements of Table 4.2 or SBC-1, Section 1414.

(b) All architectural trim, such as cornices, veneers and other exterior architectural elements, attached to the exterior walls of buildings of Types 1 and 2 construction shall be constructed of approved noncombustible materials and shall be secured to the wall with metal or other approved noncombustible brackets. Inside the fire limits, wood veneers are permitted in accordance with section 5-66(i). Combustible architectural trim shall not be located with a fire separation of less than three (3) feet (914.4 mm) except fire-retardant treated wood conforming to SBC-1, Section 1403.5, for exterior use.

(c) All construction, other than aerial supports, clothes dryers and similar structures less than twelve (12) feet (3658 mm) high, water tanks and cooling towers as hereinafter provided and flagpoles erected above the roof of any part of any building or structure located within the fire limits shall be constructed of noncombustible materials.
(Ord. 1985, Ch. 85-90, § 6, 12-24-85)

Sec. 5-68. Cooling towers.

Cooling towers within the fire limits erected on roofs of buildings shall be constructed of noncombustible materials, except that drip bars may be of wood. Cooling towers may be constructed entirely of fire retardant treated wood, including drip bars.
(Ord. 1985, Ch. 85-90, § 7, 12-24-85)

Sec. 5-69. Ground signs.

Within the fire limits, a ground sign shall not be constructed of combustible materials, except as provided in SBC-1, Section 1907.4.1.
(Ord. 1985, Ch. 85-90, § 8, 12-24-85)

Secs. 5-70—5-80. Reserved.

ARTICLE VI. POST-CONSTRUCTION STORMWATER CONTROL

Sec. 5-81. Purpose.

Unmitigated stormwater from areas altered by development may pose public health and safety threats. Potential contaminants in stormwater runoff may include suspended solids, nitrogen, phosphorus, hydrocarbons, heavy metals, pathogenic organisms (bacteria and viruses), and road salts.

This article establishes the administrative mechanisms necessary for the city to ensure proper stormwater management. This article is written to work in conjunction with current state regulations.
(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-82. Applicability.

This article shall apply to all development and redevelopment occurring within the city. No person shall engage in land development activities without receiving approval from the building official or his/her designee, unless specifically exempted by section 5-83 of this article.
(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-83. Exemptions.

The following activities do not require written approval pursuant to this article, unless the developer or redeveloper is within three hundred (300) feet of a watercourse, as defined in the soil erosion and sediment control ordinance:

(1) Any development or redevelopment on lots less than twenty thousand (20,000) square feet in size located in C1, C2, C4, D1, D2, M1, M2, W1, W2, and W3 zoning districts.

(2) Any complete project that disturbs less than one (1) acre not including projects less than one (1) acre that are part of a larger common plan of development or sale that propose more than one (1) acre of disturbance.

(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-84. Submissions and approvals.

In accordance with section 5-82 of this article, all persons must obtain approval from the building official or his/her designee prior to engaging in any land development activities, unless exempted by section 5-83 of this article. To obtain approval applicants must demonstrate compliance with all policy, standards and requirements of this article to the satisfaction of the building official or his/her designee. Applicants may demonstrate compliance via submission of materials and documentation includ-

ing but not limited to a stormwater management plan, site plan, and maintenance agreement in accordance with this article. Plans will be reviewed in conjunction with site plan review by the planning board.
(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-85. Technical standards.

All applicants are required to develop and submit a stormwater management plan. All stormwater management plans must address stormwater management on a site-by-site basis and all requirements of this article. All stormwater management practices shall be consistent with the "Rhode Island Stormwater Design and Installation Standards Manual" and the "Rhode Island Soil Erosion and Sediment Control Handbook," as amended.

(1) *Performance standards.* Stormwater management plans shall incorporate best management practices (BMPs) for water quality control, which in combination are demonstrated to reduce the average annual total suspended solids in post-development runoff by eighty (80) percent. Development in drinking water supply watersheds or watersheds where impaired waters as defined by the state's 303(d) list exist may be held to higher standards.

(2) *Disallowed stormwater best management practices (BMPs).* The placement of detention basins and other stormwater structures within a floodplain shall be avoided. If there is no alternative, the applicant must show what effects, if any, the tailwaters created by the floodplain will have on the outflow and effective storage capacity of the detention facility.

(3) *Facilitation of maintenance.* Facilities that require maintenance shall be designed to minimize the need for regular maintenance, facilitate required maintenance, and ensure accessibility of components that require maintenance. At a minimum, all stormwater management plans must incorporate BMPs with appropriate maintenance design in accordance with the "Rhode Island Stormwater Design and Installation Standards Manual," as amended; or the "Rhode Island Soil Erosion and Sediment Control Handbook," as amended.

(4) *Flood protection.* Stormwater management plans shall demonstrate that a proposed project provides for protection of life and property from flooding and flood flows. Water quantities must be controlled in accordance with the "Rhode Island Stormwater Design and Installation Standards Manual," as amended, or a municipally approved regional stormwater management plan for the watershed in which the project site is located. Stormwater management plans shall demonstrate incorporation of the following standards into the proposed project:

a. Control and maintenance of post-development peak discharge rates from the two-year, ten-year, twenty-five-year, and one hundred-year storm events and predevelopment levels.

b. Downstream analysis of the one hundred-year storm event and control of the peak discharge rate for the one hundred-year storm to mitigate significant downstream impacts.

c. Discharge from any stormwater facility must be conveyed through properly constructed conveyance system to provide for non-erosive flows during all storm events. The proposed stormwater conveyance system consisting of open channels, pipes, and other conveyance devices shall at a minimum accommodate the runoff from a twenty-five-year storm event. The stormwater conveyance system must provide for non-erosive flows to receiving waters.

(5) *Surface water and groundwater.* Stormwater management plans shall demonstrate that during development and post-development, all receiving waters will be recharged in a manner closely resembling predevelopment conditions and that the developed site will retain hydrologic conditions that closely resemble those prior to disturbance. Predevelopment conditions are defined as those conditions existing at the site (precursor to the currently proposed development) at the time of adoption of this article. For redevelopment of previously developed sites, every effort shall be made to model the conditions prior to the presence of non-permeable surfaces (building or infrastructure) and/or fill.

(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-86. Maintenance requirements for best management practices (BMPs).

(a) *Routine maintenance and repair procedures.* Preventative maintenance procedures are required to maintain the intended operation and safe condition of the stormwater management facility by greatly reducing the occurrence of problems and malfunctions. To be effective, preventative maintenance shall be performed on a regular basis and include such routine procedures as training of staff, periodic inspections, grass cutting elimination of mosquito breeding habitats, and pond maintenance. Disposal of sediment and debris must occur on a regular basis (unless otherwise specified within an approved plan), at suitable disposal sites or recycling sites and shall comply with applicable local, state and federal regulations. Corrective maintenance procedures are required to correct a problem or malfunction at a stormwater management facility and to restore the facility's intended operation and safe condition. Based upon the severity of the problem, corrective maintenance must be performed on an as-needed or emergency basis and include such procedures as structural repairs, removal of debris, sediment and trash removal, erosion repair, snow and ice removal, fence repair, mosquito extermination, and restoration of vegetated and non-vegetated linings.

(b) *General maintenance standards for stormwater best management practices (BMPs).* Maintenance design and maintenance procedures for all stormwater BMPs shall be in accordance with the "Rhode Island Stormwater Design and Installation

Standards Manual," as amended, or the "Rhode Island Soil Erosion and Sediment Control Handbook," as amended as well as in accordance with manufacturer's recommendations. Stormwater management plans shall demonstrate appropriate maintenance design and procedures for each proposed best management practice. A maintenance schedule for each type of BMP must be included in the stormwater management plan. These schedules shall list the frequency and type of maintenance operations necessary along with the legally responsible party's name, address, and telephone number. If the stormwater drainage facility is to be deeded to the city the applicant must obtain a letter from the city or its designee acknowledging maintenance responsibility and intent of ownership.
(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-87. Stormwater management plans.

(a) *Calculations.* In addition to the information required for the site plan the following information must also be included with the application, where applicable.

(1) The area of each sub-watershed as identified on final site plans.

(2) The area of impervious surfaces (including all roads, driveways, rooftops, sidewalks, etc.) for each sub-watershed as identified in the "Rhode Island Stormwater Design and Installation Standards Manual," as amended.

(3) Weighted curve numbers, (CN) as determined by the SCS TR-55 method, for each sub-watershed as identified in the "Rhode Island Stormwater Design and Installation Standards Manual," as amended.

(4) Invert elevations for all applicable BMPs. In addition, the elevations for permanent and/or flood pool stages, including peak discharge rates for each stage, within all basins are required.

(5) The total volume capacity for all flood control and water quality BMPs (e.g., infiltration basin, detention basins, wet ponds, etc.). Volumes must be segregated into permanent and flood pool stage volumes where applicable. Furthermore, the volumes of all sediment storage (basins, forebays, etc.) area must also be provided.

(6) Predevelopment and post-development peak discharge rates and runoff volumes for the two-year, ten-year, twenty-five-year, and one hundred-year frequency storm events for each sub-watershed. The water quality volume must also be calculated for each sub-watershed. All relevant variables such as curve numbers and time of concentration, along with the supporting computations and worksheets must be included.

(b) *Narrative description.* As part of the stormwater management plan, the applicant shall include a discussion of the protection of environmental resource functions and values. The following outline is provided as guidance for preparing a narrative description for the stormwater management plan. Depending on the size

and scope of the proposed project, the amount of information required by the permitting agency may vary, therefore, it is advised to consult the appropriate permitting agency for specific requirements.

(1) Site description—general topography, soil types, current vegetative composition and relative abundance, existing infrastructure, and/or adjacent properties, identification of major resources (e.g., wetlands, groundwater, surface waters, etc.), name of receiving water(s), potential water quality and/or hydrologic impacts on resources.

(2) Site input data—watershed characteristics, area of all impervious surfaces, total area of site, annual mean rainfall, runoff coefficients, curve numbers for various land uses, peak discharge rates.

(3) Land use planning and source control plan.

(4) Best management practices (BMPs)—identify the type of BMP(s) employed both during and post construction and justification for selection, including any deviation from the "Rhode Island Stormwater Design and Installation Standards Manual," as amended, and the potential effect on pollutant removal efficiency.

(5) Technical feasibility of BMPs including sizing, location, hydraulic and environmental impacts. Alternatives, which were considered but determined not to be feasible, should also be discussed.

(6) Maintenance schedule of BMPs to be used, both during and post construction including the frequency of inspections and maintenance.

(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-88. Maintenance agreements.

Maintenance agreements shall provide written, contractual documentation, which demonstrates compliance with this article and legal arrangements for the upkeep of stormwater facilities to assure their functionality and safety in accordance with this article.

The owner or responsible person shall maintain "as-built" plans of any stormwater management practices located on-site after final construction is completed. The plans must show the final design specifications for all stormwater management facilities and must be certified by a professional engineer.

Maintenance agreements, which describe all maintenance schedules and requirements, must be developed for each stormwater management facility unless the facility is dedicated to and accepted by the city.

(1) *Recognition of municipal inspection requirements.* Maintenance agreements shall include a reasonable and regular schedule for the city, or designee, to conduct on-site inspection of the functionality and safety of the stormwater

management facilities. Inspection schedules shall be based on the complexity and frequency of maintenance needs and shall be subject to the approval of the city. At a minimum, the maintenance frequency should be in accordance with the "Rhode Island Stormwater Design and Installation Standards Manual," as amended.

(2) *Record keeping for maintenance activities.* Maintenance agreements shall include provisions for maintenance record keeping. All activities conducted in accordance with a maintenance agreement must be recorded in a work order and inspection log. Timely updates of the log shall be the responsibility of the stormwater management facility owner or other responsible party pursuant to this article. Review of the maintenance and inspection log shall be completed by the city, or designee, to determine the effectiveness of operation, maintenance and safety activities. Reviews shall occur as part of each on-site inspection. Additional reviews may be made as deemed appropriate by the city or designee.

(3) *Responsibility for maintenance to assure functionality and safety.* Appropriate maintenance to assure functionality and safety of stormwater management facilities shall be the responsibility the owner or may be assumed by another party via a written contractual arrangement in accordance with this article.

(4) *Alterations to maintenance agreements.* Any alterations in maintenance responsibility or alterations to maintenance agreements must be reviewed and approved by the building official or his/her designee. If portions of the land serviced by a stormwater management facility are to be sold, written contractual arrangements shall be made to pass all responsibility of the maintenance agreement to the purchaser and shall be subject to review and approval of the building official or his/her designee. All alterations to maintenance agreements shall be recorded in accordance with this article.

(5) *Recordation of maintenance agreements.* All maintenance agreements and alterations to maintenance agreements shall be recorded in the land evidence records of the city. Copies of all maintenance agreements and alterations to maintenance agreements shall be included in stormwater management plans. Recordation of maintenance agreements in accordance with this article shall be the responsibility of the owner.

(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-89. Application fees.

The city shall be empowered to collect fees from permit applicants, which are commensurate with the cost of administering this article.

(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Sec. 5-90. Enforcement.

The city shall have the authority and discretion to invoke penalties and/or impose a lien whenever a stormwater management facility is not implemented, operated, and/or maintained in accordance with its approval and this article. Any penalty invoked shall be in accordance with this section.

(1) *Notification of violation.* In the event that the stormwater management facility becomes a danger to public safety or public health, is in need of maintenance, or has not been maintained in accordance with the maintenance agreement, the city shall notify the responsible person in writing by certified mail. Upon receipt of that notice, the responsible person shall have five (5) calendar days to temporarily correct the violations and thirty (30) calendar days to complete maintenance and permanently repair the facility in a manner that is approved by the municipality. If the responsible person fails or refuses to perform such maintenance and repair, the municipality may immediately proceed to do so and enforce penalties and/or liens as described herein.

(2) *Enforcement of penalties and liens.* Any applicant/owner who fails and/or refuses to temporarily correct the violation within five (5) calendar days from notice and/or to permanently correct a violation within thirty (30) calendar days from notice shall be fined up to seventy five dollars ($75.00), and each day following notice during which the violation continues shall constitute a separate offense. The city also may charge the applicant/owner any costs associated with the removal or repair of damage resulting from the violation. In addition, any violation continuing thirty (30) calendar days after notice shall be deemed, and is hereby declared to be, a public nuisance and the city solicitor is hereby empowered to institute an action for an injunction, abatement or any other appropriate action to prevent, enjoin or abate such nuisance. The remedies provided for herein shall be cumulative and not exclusive and shall be in addition to any other remedies provided by law.

(c) *Hearing.* Any owner or responsible party, receiving a written notice of violation, shall be given an opportunity, within a reasonable time frame, for a hearing before the zoning board of review to state their case. If evidence indicates that a violation has not occurred, the zoning board of review shall revoke the notice of violation.

(Ord. 2005, ch. 05-54, § 1, 12-1-05)

Secs. 5-91—5-100. Reserved.

ARTICLE VII. SOIL EROSION AND SEDIMENT CONTROL

Sec. 5-101. Purpose.

The city council hereby finds that excessive quantities of soil are eroding from certain areas that are undergoing development for non-agricultural uses such as

housing developments, industrial areas, recreational facilities and roads. This erosion makes necessary costly repairs to gullies, washed out fills, roads, and embankments. The resulting sediment clogs the stormwaters and road ditches, muddies streams, and deposits silt in ponds and reservoirs. Sediment is considered a major water pollutant.

The purpose of this article is to prevent soil erosion and sedimentation from occurring as a result of non-agricultural development within the city by requiring proper provisions for water disposal, construction waste disposal and the protection of soil surfaces during and after construction, in order to promote the safety, public health and general welfare of the city.
(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-102. Applicability.

This article shall be applicable to any situation involving any disturbance to the terrain, topsoil or vegetative ground cover upon any property within the city after determination of applicability by the building official or his/her designee based upon criteria outlined in section 5-103 below. Compliance with the requirements as described herein shall not be construed to relieve the owner/applicant of any obligations to obtain necessary state or federal permits.
(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-103. Determination of applicability.

It shall be unlawful for any person to disturb any existing vegetation, grades, and contours of land in a manner, which may increase the potential for soil erosion without first applying for a determination of applicability from the building official or his/her designee. Upon determination of applicability, the owner/applicant shall submit a soil erosion and sediment control plan for approval by the building official or his/her designee, as provided in section 5-104. The application for determination of applicability shall describe the location, nature, character, and time schedule of the proposed land disturbing activity in sufficient detail to allow the building official or his/her designee to determine the potential for soil erosion and sedimentation resulting from the proposed project. In determining the applicability of the soil erosion and sediment control ordinance to a particular land disturbing activity, the building official or his/her designee shall consider site topography, drainage patterns, soils, proximity to watercourses, and other such information as deemed appropriate by the building official or his/her designee. A particular land disturbing activity shall not be subject to the requirements of this article if the building official or his/her designee finds that erosion resulting from the land disturbing activity is insignificant and represents no threat to adjacent properties or to the quality of any coastal feature or watercourse, as defined herein. The current "Rhode Island Soil Erosion and Sediment Control Handbook," U.S. Department of Agriculture Soil Conservation Service, state department of environmental management, and state conservation committee shall be consulted in making this determination.

No determination of applicability shall be required for the following:

(1) Construction, alternation or use of any additions to existing single family or duplex homes or related structures, provided the grounds coverage of such addition is less than one-quarter (¼) acre, and such construction, alteration and use does not occur within one hundred (100) feet of any watercourse or coastal feature, and the slopes at the site of land disturbance do not exceed ten (10) percent.

(2) Use of a home or community garden.

(3) Excavations for improvements other than those described in subsection (1) above which exhibit all of the following characteristics:

a. Does not result in a total displacement of more than fifty (50) cubic yards of material; and

b. Has no slopes steeper than ten (10) feet vertical in one hundred (100) feet horizontal or approximately ten (10) percent; and

c. Have all disturbed surface areas promptly and effectively protected to prevent soil erosion and sedimentation.

(4) Grading, as a maintenance measure, or for landscaping purposes on existing developed land parcels or lots, provided that all bare surfaces are immediately seeded, sodded or otherwise protected from erosive actions and all of the following conditions are met:

a. The aggregate of areas of such activity does not exceed two thousand (2,000) square feet; and

b. The change of elevation does not exceed two (2) feet at any point; and

c. The grading does not involve a quantity of fill greater than eighteen (18) cubic yards; except where fill is excavated from another portion of the same parcel and the quantity does not exceed fifty (50) cubic yards.

(5) Grading, filling, removal, or excavation activities and operations undertaken by the city under the direction and supervision of the director of public works for work on streets, roads, or right-of-way dedicated to public use, provided, however, that adequate and acceptable erosion and sediment controls are incorporated in engineering plans and specifications are employed. Appropriate controls shall apply during construction as well as after the completion of these activities. All such work shall be undertaken in accordance with the performance principles provided for in subsection 5-105(c) and such standards and definitions as may be adopted to implement said performance principles.

(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-104. Provisions of plan; procedures.

(a) *Plan.* To obtain approval for a land disturbing activity as found applicable by the building official or his/her designee under section 5-103, an applicant shall first file an erosion and sediment control plan signed by the owner of the property, or authorized agent, on which the work subject to approval is to be performed. The plan or drawings, as described in section 5-105 of this article, shall include proposed erosion and sediment control measures to be employed by the applicant or the applicant's agent.

(b) *Plan review.* Within five (5) business days of the receipt of a completed plan, the building official or his/her designee shall send a copy of the plan to the review authorities which may include the public works department, parks department, and/or the planning department for the purpose of review and comment. The building official or his/her designee may also within the above time frame, submit copies of the plan to other local departments or agencies, including the conservation district that services their county, in order to better achieve the purpose of this article. Failure of the aforementioned review authorities to respond within twenty-one (21) calendar days of their receipt of the plan shall be deemed as no objection to the plan as submitted.

The time allowed for plan review shall be commensurate with the proposed development project, and shall be done simultaneously with other reviews.

(c) *Plan approval.* The building official or his/her designee shall take action in writing either approving or disapproving the plan with reasons stated within ten (10) calendar days after the building official or his/her designee has received the written opinion of the aforementioned review authorities.

In approving a plan, the building official or his/her designee may attached such conditions deemed reasonably necessary by the aforementioned review authorities to further the purposes of this article. The conditions pertaining to erosion and sediment control measures and/or devices, may include, but are not limited to, the erection of walls, drains, dams, and structures, planting vegetation, trees and shrubs, furnishings, necessary easements, and specifying a method of performing various kinds of work, and the sequence or timing thereof. The applicant/owner shall notify the building inspector or his/her designee in advance of his or her intent to begin clearing and construction work described in the erosion and sediment control plan. The applicant shall have the erosion and sediment control plan on the site during grading and construction.

(d) *Appeals.*

(1) *Administrative procedures.* If the ruling made by the building official or his/her designee is unsatisfactory to the applicant/owner, the applicant/owner may file a written appeal. The appeal of plans for soil erosion and sediment control shall be to the zoning board of review or other appropriate board of review, as

determined by the city council and shall be governed by the appellate procedure applicable thereto. Appeal procedures shall follow current requirements for appeal to the boards above. During the period in which the request for appeal is filed, and until such time as a final decision is rendered on the appeal, the decision of the building official or his/her designee shall remain in effect.

(2) *Expert opinion.* The official or his/her designee, the zoning board of review or other board of review, may seek technical assistance on any soil erosion and sediment control plan. The expert opinion must be made available in the office of the building official or his/her designee as a public record prior to the appeals hearing.

(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-105. Soil erosion and sediment control plan.

(a) *Plan preparation.* The erosion and sediment control plan shall be prepared by a registered professional engineer, or certified landscape architect or a soil and water conservation society certified erosion and sediment control specialist. Five (5) copies of the plan shall be submitted to the building official or his/her designee.

(b) *Plan contents.* The erosion and sediment control plan shall include sufficient information about the proposed activities and land parcels(s) to form a clear basis for discussion and review and to assure compliance with all applicable requirements of this article. The plan shall be consistent with the data collection, data analysis, and plan preparation guidelines in the current "Rhode Island Soil Erosion and Sediment Control Handbook," prepared by the U.S. Department of Agriculture, Soil Conservation Service, state department of environmental management, and state conservation committee. At a minimum, the plan shall contain:

(1) A narrative describing the proposed land disturbing activity with the soil erosion and sediment control measures and stormwater management measures to be installed to control erosion that could result from the proposed activity. Supporting documentation, such as a drainage area, existing site, and soil maps shall be provided as required by the building official or his/her designee.

(2) Construction drawings illustrating, in detail, existing and proposed contours, drainage features, and vegetation; limits of clearing and grading, the location of soil erosion and sediment control and stormwater management measures, detail drawings of measures; stockpiles and borrow areas; sequence and staging of land disturbing activities; and other such information needed for construction.

(3) Other information or construction plans and details as deemed necessary by the building official or his/her designee for thorough review of the plan prior to

action being taken as prescribed in this article. Withholding or delay of such information may cause the building official or his/her designee to judge the application as incomplete and may constitute grounds for disapproval.

(c) *Performance principles.* The contents of the erosion and sediment control plan shall clearly demonstrate how the principles, outlined below, have been met in the project design and are to be accomplished by the proposed development.

(1) The site selected shall show due regard for natural drainage characteristics and topography.

(2) To the extent possible, steep slopes shall be avoided.

(3) The grade of slopes created shall be minimized.

(4) Post development runoff rates should not exceed predevelopment rates, consistent with other stormwater requirements which may be in effect. Increases in stormwater runoff shall be retained and recharged as close as feasible to its place of origin by means of detention ponds or basins, seepage areas, subsurface drains, infiltration chambers, porous paving, or similar technique.

(5) Original boundaries, alignment, and slopes of water-courses within the project locus shall be preserved to the greatest extent feasible.

(6) In general, drainage shall be directed away from structures intended for human occupancy, municipal or utility use, or similar structures.

(7) All drainage provisions shall be of such a design and capacity so as to adequately handle stormwater runoff, including runoff from tributary upstream areas, which may be outside the locus of the project.

(8) Drainage facilities and controls shall be installed as early as feasible during construction, prior to site clearance, if possible.

(9) Fill adjacent to water courses should be avoided. If there is no viable alternative, fill shall be protected from erosion. Vegetative stabilization with minimal rip-rap and/or gabions is the preferred method. Vertical structures, including retaining walls, should not be used unless the applicant can clearly demonstrate there will be no adverse impacts resulting from this method of stabilization.

(10) Temporary vegetation and/or mulching shall be used to protect bare areas and stockpiles from erosion during construction; the smallest areas feasible shall be exposed at any one (1) time; disturbed areas shall be protected during the non-growing months, November through March.

(11) Permanent vegetation shall be placed immediately following final grading.

(12) Trees and other existing vegetation shall be retained whenever feasible; the area within the dripline shall be fenced or roped off to protect trees from construction equipment.

(13) In the city's residential neighborhoods, it is strongly recommended that sidewalks should be separated from the curb by a permeable strip whenever possible, provided there is a uniform appearance. The permeable strip shall be soil, mulch, vegetation or porous paving. At no time should the sidewalk be less than four (4) feet. Sidewalks in excess of six (6) feet in width are strongly discouraged under normal circumstances.

(14) All areas damaged during construction shall be resodded, reseeded, or otherwise restored. Monitoring and maintenance schedules, where required, shall be predetermined.

(15) All construction wastes shall be handled, stored, and disposed of in accordance with applicable local, state, and federal laws.

(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-106. Approval; expiration; renewal.

(a) *In general.*

(1) Every approval granted herein shall expire at the end of the time period set forth in the conditions. The developer shall fully perform and complete all of the work required within the specified time period.

(2) If the developer is unable to complete the work within the designated time period, he or she shall, at least thirty (30) calendar days prior to the expiration date, submit a written request to the building official or his/her designee for an extension of time, setting forth the reasons underlying the requested time extension. If in the discretion of the building official or his/her designee the extension is warranted, the building official or his/her designee may grant an extension of time up to a maximum of one (1) year from the date of the original deadline. Subsequent extensions under the same conditions may be granted at the discretion of the building official or his/her designee.

(b) *Maintenance of measures.* Maintenance of all erosion-sediment control devices under this article shall be the responsibility of the owner. The erosion-sediment control devices shall be maintained in good condition and working order on a continuous basis. Watercourses originating and located completely on private property shall be at the responsibility of the owner to their point of open discharge at the property line or at a communal watercourse within the property.

(c) *Liability of applicant.* Neither approval of an erosion and sediment control plan nor compliance with any conditions of this article shall relieve the owner/applicant from any responsibility for damage to persons or property, nor impose any liability upon the city for damages to persons or property.

(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-107. Inspections.

(a) *Periodic inspections.* The provisions of this article shall be administered and enforced by the building official or his/her designee. All work shall be subject to periodic inspections by the building official or his/her designee. All work shall be performed in accordance with an inspection and construction control schedule approved by the building official or his/her designee, who shall maintain a permanent file on all of his/her inspections. Upon completion of the work, the developer or owner(s) shall notify the building official or his/her designee that all grading, drainage, erosion and sediment control measures and devices, and vegetation and ground cover planting has been completed in conformance with the city's approval, submitted plans, specifications, conditions, and other applicable provisions of this article.

(b) *Final inspection.* Upon notification of the completion by the owner, the building official or his/her designee shall make a final inspection of the site and shall prepare a final summary inspection report of its findings, which shall be retained in the department of inspections in the department of public works permanent inspections file.
(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-108. Noncompliance.

(a) *In general.* If, at any stage the work-in-progress and/or completed work under the terms of an approved erosion and sediment control plan does not conform to the plan, a written notice from the building official or his/her designee to comply shall be transmitted by certified mail to the owner. The notice shall set forth the nature of the temporary and permanent corrections required and the time limit within which corrections shall be completed as set forth herein.

(b) *Penalties.*

(1) *Revocation or suspension of approval.* The approval of an erosion and sediment control plan under this article may be revoked or suspended by the building official or his/her designee and all work on the project halted for an indefinite time period by the building official or his/her designee after written notification is transmitted to the developer for one (1) or more of the following reasons:

a. Violation of any condition of the approved plan, or specifications pertaining thereto;

b. Violation of any provision of this article or any other applicable law, article, rule, or regulation related to the work or site of work; and

c. The existence of any condition or the performance of any act constituting or creating a nuisance, hazard, or endangerment to human life or the property of others, or contrary to the spirit or intent of this article.

(2) Whenever there is a failure to comply with the provisions of this chapter, the city shall have the right to notify the applicant/owner that he or she has five (5) calendar days from the receipt of notice to temporarily correct the violations and thirty (30) calendar days from receipt of notice to permanently correct the violations. Any applicant/owner who fails and/or refuses to temporarily correct the violation within five (5) calendar days from notice and/or to permanently correct a violation within thirty (30) calendar days from notice shall be fined up to seventy five dollars ($75.00) for every two thousand (2,000) square feet of property area or a portion thereof, for each day following notice during which the violation continues shall constitute a separate offense. The city also shall then have the right to take whatever actions it deems necessary to correct the violations and to charge the applicant/owner for any and all costs associated with such action. In addition, any violation continuing thirty (30) calendar days after notice shall be deemed, and is hereby declared to be, a public nuisance and the city solicitor is hereby empowered to institute an action for an injunction, abatement or any other appropriate action to prevent, enjoin or abate such nuisance. The remedies provided for herein shall be cumulative and not exclusive and shall be in addition to any other remedies provided by law.

(Ord. 2005, ch. 05-55, § 1, 12-1-05)

Sec. 5-109. Definition of selected terms.

Applicant: Any person, corporation, or public or private organization proposing a development which would involve disturbance to the natural terrain as herein defined.

Coastal feature: Coastal beaches and dunes, barrier beaches, coastal wetlands, coastal cliffs, bluffs, and banks, rocky shores, and manmade shorelines as defined in "The State of Rhode Island Coastal Resources Management Program" as amended June 28, 1983.

Construction wastes: Solid and/or liquid wastes generated from the site development process. This includes, but is not limited to, discarded building materials, concrete truck washout, chemicals, litter, and sanitary wastes.

Cut: An excavation. The difference between a point on the original ground and a designated point of lower elevation on the final grade. Also, the material removed in excavation.

Development project: Any construction, reconstruction, demolition, or removal of structures, roadways, parking, or other paved areas, utilities, or other similar facilities, including any action requiring a building permit by the city.

Erosion: The removal of mineral and/or organic matter by the action of wind, water and/or gravity.

Excavate: Any act by which earth, sand, gravel, rock or any other similar material is dug into, cut, quarried, uncovered, removed, displaced, relocated or bulldozed, and shall include the conditions resulting therefrom.

Fill: Any act by which earth, sand or other material is placed or moved to a new location above-ground. The fill is also the difference in elevation between point of existing undisturbed ground and a designated point of higher elevation of the final grade. Fill also includes material added to an excavation.

Land disturbing activity: Any physical land altering activity which includes such actions as clearance of vegetation, moving or filling of land, removal or excavation of soil or mineral resources, or similar activities.

Runoff: The surface water discharge or rate of discharge of a given watershed after rainfall or snowfall and including seepage flows that do not enter the soil but runoff the surface of the land. Also, that portion of water that is not absorbed by the soil, but runs off the land's surface.

Sediment: Solid material, both mineral and/or organic, that is in suspension, being transported or has been moved from its site of origin by wind, water, and/or gravity as a product of erosion.

Soil erosion and sediment control plan: The (approved) document required before any person(s) may cause disturbance to the natural terrain within the city as herein regulated. Also, herein referred to as erosion and sediment control plan, approved plan.

Watercourses: The term watercourse shall be held to mean any tidewater or coastal wetland at its mean high water level, and any freshwater wetland at its seasonal high water level, including but not limited to, any river, stream, brook, pond, lake, swamp, marsh bog, fen, wet meadow, or any other standing or flowing body of water. The edge of the watercourse as herein defined shall be used for delineation purposes.
(Ord. 2005, ch. 05-55, § 1, 12-1-05)

ARTICLE VIII. IN-BUILDING PUBLIC SAFETY RADIO SYSTEM COVERAGE AND OBSTRUCTION TO FIXED POINT-TO-POINT MICROWAVE NETWORK

Sec. 5-110. Intent and purpose.

The intent of the chapter is to provide a regulatory framework for the purpose of providing effective 800 MHz citywide coordinated communication system in-building coverage and to maintain current availability specification for fixed point-to-point microwave network throughout the city for police and fire emergency services.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-111. Definitions.

The following words, terms, and phrases when used in this chapter shall have the meanings ascribed to them in this section, except where the context clearly indicates a differing meaning:

Communications: City of Providence communications division.

Citywide coordinated communication system: That radio system used by all local law enforcement and fire departments within the city for emergency and non-emergency radio communication on the 800 MHz radio band. "Citywide coordinated communications system" also includes fixed point-to-point microwave sub-system.

City in-building public safety radio system coverage specifications: Those specifications designed to provide optimum coverage and radio effectiveness within buildings and structures under the citywide coordinated communication system. Also, minimize obstruction to existing microwave point-to-point links supporting both radio and data communications.

Coverage reliability: The reliability to communicate between a portable radio and Communications, to include the ability of the portable radio to hear Communications and the ability of the portable radio to transmit back and be heard by the system.

DAQ - Delivered Audio Quality: DAQ as described in TIA-TSB88 Technical Bulletin. TSB-88 are principles set forth by the Telecommunications Industry Association (TIA) Telecommunications Systems Bulletin, titled "*Wireless Communications Systems - Performance in Noise and Interference-Limited Situations - Recommended Methods for Technology-Independent Modeling, Simulation, and Verification*".

Delivered audio quality is a numeric rating of perceived speech intelligibility as follows:

DAQ 1:	Unusable Speech present and not intelligible.
DAQ 2:	Speech understandable with considerable effort. Requires frequent repetition due to noise and or distortion.
DAQ 3:	Speech understandable with slight effort. Requires occasional repetition due to noise and or distortion.
DAQ 3.4:	Speech understandable without repetition. Some noise and or distortion.
DAQ 4:	Speech easily understood. Occasional noise and or distortion.
DAQ 5:	Speech easily understood. No noise and or distortion.

The citywide coordinated communication system shall have a minimum specification of DAQ 3.4.

800 MHz Radio. The usable radio signal minimum reliability of the citywide coordinated communication system shall be ninety-five (95) percent in general areas and ninety-nine (99) percent in critical areas.

General area. Shall be provided with ninety-five (95) percent floor area radio coverage. These areas include all other areas not specified as a critical area.

Critical areas. Shall be provided with ninety-nine (99) percent floor area radio coverage. Critical areas include: the emergency command center(s), the fire pump room(s), exit stairs, exit passageways, elevator lobbies, standpipe cabinets, sprinkler sectional valve locations, and other areas deemed critical by the city.

Fixed point-to-point microwave radio. Shall be provided with 99.999 percent link availability.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-112. Use and occupancy.

Except as otherwise provided, no person shall own, erect, construct or occupy, any building or structure, or any part thereof, or cause the same to be done, which fails to support adequate radio coverage for city emergency service workers operating on the 800 MHz citywide coordinated communication system. Further, owners must maintain a reasonable standard of reliable radio communication within their buildings and structures once a certificate of occupancy is issued.

For the purposes of this section, adequate radio coverage shall include those specifications in the city in-building public safety radio system coverage specifications, attached and incorporated into Ord. 2008, ch. 08-35 as attachment "A," and obstruction to fixed point-to-point microwave network specification is found in attachment "B" to Ord. 2008, ch. 08-35.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-113. Testing procedures.

Test of radio coverage will be conducted pursuant to those specifications in the city in-building public safety radio system coverage specifications, attached and incorporated into Ord. 2008, ch. 08-35 as attachment "A," as summarized below.

(1) *Initial tests.*

a. New buildings. Initial tests will be performed by FCC certified technicians, authorized by the communications division, or by such agency in accordance with test standards as listed in the city in-building public safety radio system coverage specifications, attached and incorporated into Ord. 2008, ch. 08-35 as attachment "A." A certificate of occupancy shall not be issued to any structure if said structure, or any part thereof, fails to comply with these test standards.

b. Existing buildings. Within twelve (12) months of an approved ordinance, initial tests will be performed by FCC certified technicians, authorized by the communications division, or by such agency in accordance with test standards as listed in the city in-building public safety radio system

coverage specifications, attached and incorporated into Ord. 2008, ch. 08-35 as attachment "A." If building owner fails to comply with these test standards, the building will be considered as non compliant.

(2) *Annual tests.* Annual tests will be conducted by PFD, the local fire department personnel, or their agent in accordance with the test standards as listed in the city in-building public safety radio system coverage specifications, attached and incorporated herein as attachment "A."

(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-114. Amplification systems allowed.

Buildings and structures that cannot support the required level of radio coverage shall be equipped with amplification systems as specified in the city in-building safety radio system coverage specifications, attached and incorporated herein as attachment "A" or any other system approved by the communications, in writing.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-115. Who must comply.

This article shall apply to the following:

(1) *New buildings.* All newly constructed buildings and structures greater than five thousand (5,000) square-feet, whether constructed above or below earth grade, and at any time that may be occupied by employees or the public in general. Must be capable by design and test of receiving and transmitting voice radio signals from the citywide coordinated communication system portable radio on each floor or level from and to communications, and with coverage reliability equal to as described in the city in-building public safety radio system coverage specifications, attached and incorporated into Ord. 2008, ch. 08-35 as attachment "A."

(2) *Existing buildings.* Within five (5) years after the enactment of this article, any existing building or structure of a size larger than five thousand (5,000) square feet not meeting the required radio coverage of this article by testing as delineated in attachment A to Ord. 2008, ch. 08-35, whether constructed above or below ground, and at any time that may be occupied by employees or the public in general; must be capable of receiving and transmitting voice radio signals from the citywide coordinated communication system on each floor or level from, or to communications with coverage reliability equal to as described in the city in-building public safety radio system coverage specifications, attached and incorporated herein as attachment "A."

(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-116. Exemptions.

This article shall not apply to any single-, two-, or three-family residences.

There are no automatic exemptions for any buildings or structures under this article that are serviced by public safety responders; except that, should there be a building or structure as previously described, and proven by the owner not to at any time, or in any way be used or occupied or responded to by public safety responders; then such owner may submit a letter stating their request for such exemption and the reasons therefore.

The letter must be addressed to; Director, Communications Division, City of Providence Public Safety, 1 Communications Place. Providence, RI 02903

A decision will then be rendered within sixty (60) days of receipt of the request for exemption.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-117. Costs.

The FCC certified and communications approved technician required by section 5-113 to conduct initial tests shall be employed by the owner, the engineer or architect of record, or agent of the owner, but not by the contractor or any other person responsible for the work.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-118. Noncompliance.

After discovery of noncompliance following issuance of certificate of occupancy or failure to perform initial tests required in 5-113(1)b., the building owner is provided six (6) months to remedy the deficiency and gain compliance.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

Sec. 5-119. Penalties.

Any person violating any of the provisions of this article shall be subject to a fine pursuant to section 1-10 of the Providence Code of Ordinances. Each individual day of operation in violation of the provisions of this article shall be a separate violation. In addition, any continued non-compliance by any building shall be subject to fines and/or penalties as set forth by the currently adopted International Fire Codes.
(Ord. 2008, ch. 08-35, § 1, 7-3-08)

ARTICLE IX. SPECIAL FLOOD HAZARD AREAS

Sec. 5-120. Purpose and application.

The purpose of this article is to ensure public safety; minimize hazards to persons and property from flooding, to protect watercourses from encroachment, and to

maintain the capability of floodplains to retain and carry off floodwaters. The City of Providence elects to comply with the requirements of the National Flood Insurance Act of 1968 (P.L. 90-488, as amended).

The special flood hazard areas are herein established as a floodplain overlay district. The district includes all special flood hazard areas within the City of Providence designated as Zone A, AE, AH, AO, A99, V, or VE on the Providence County Flood Insurance Rate Map (FIRM) and Digital FIRM issued by the Federal Emergency Management Agency (FEMA) for the administration of the National Flood Insurance Program. The map panels of the Providence County FIRM that are wholly or partially within the City of Providence are panel numbers 44007C0302H, 44007C0303H, 44007C0304J, 44007C0306H, 44007C0307J, 44007C0308J, 44007C0309K, 44007C0311H, and 44007C0312H, all dated October 2, 2015; panel number 44007C0316G, dated March 2, 2009; panel number 44007C0317, dated September 18, 2013; and panel numbers 44007C0318H, 44007C0319H, 44007C0326H, and 44007C0328H, dated October 2, 2015. The exact boundaries of the district may be defined by the 100-year base flood elevations shown on the FIRM and further defined by the Providence County Flood Insurance Study (FIS) report dated October 2, 2015. The department of planning and development is responsible for floodplain management. The FIRM and FIS report and any revisions and amendments thereto are incorporated herein by reference and are on file with the city clerk, department of planning and development, building official, Providence Emergency Management Agency, and department of inspection and standards.
(Ord. No. 2015-51, § 1, 10-5-15)

Sec. 5-121. Administrative provisions.

(a) *Building permit*.

(1) All proposed construction or other development within a special flood hazard area shall require a permit.

(2) The National Flood Insurance Program Special Flood Hazard Area requires permits for all projects that meet the definition of development, not just "building" projects. Development projects include any filling, grading, excavation, mining, drilling, storage of materials, temporary stream crossings. If the construction or other development within a special flood hazard area is not covered by a building permit, all other non-structural activities shall be permitted by either the Rhode Island Coastal Resources Management Council and/or the Rhode Island Department of Environmental Management as applicable. Therefore if another state agency issues a permit, the local building official shall have the opportunity for input and keep a copy of the respective permit in their files.

(3) Prior to the issuance of a building or development permit, the applicant shall submit evidence that all necessary permits and approvals have been received from all government agencies from which approval is required by federal or state law.

(4) A permit fee (based on the cost of the construction) may be required to be paid to the City of Providence and a copy of a receipt for the same shall accompany the application. An additional fee may be charged if the code enforcement officer and/or board of appeals need the assistance of a professional engineer.

(b) *Disclaimer of liability*. The degree of flood protection required by the article is considered reasonable but does not imply total flood protection.

(c) *Severability*. If any section, provision, or portion of this article is adjudged unconstitutional or invalid by a court, the remainder of the article shall not be affected.

(d) *Abrogation and greater restriction*. This section shall not in any way impair/remove the necessity of compliance with any other applicable laws, ordinances, regulations, etc. Where this article imposes a greater restriction, the provisions of this section shall control.

(e) *Enforcement*. The building official shall enforce all provisions as applicable in reference to R.I.G.L. § 23-27.3-108.1.

(f) *Penalties*. Every person who violates any provision of this section shall be subject to penalties put forth in R.I.G.L. § 23-27.3-122.3.
(Ord. No. 2015-51, § 1, 10-5-15)

Sec. 5-122. Notification of a watercourse alteration.

In a riverine situation, the building official shall notify the following of any alteration or relocation of a watercourse:

(1) Adjacent communities;

(2) Bordering states (optional);

(3) NFIP State Coordinator;

Rhode Island Emergency Management Agency

645 New London Avenue

Cranston, RI 02920

(4) Risk Analysis Branch;

Federal Emergency Management Agency, Region I

99 High Street, 6th Floor

Boston, MA 02110

The carrying capacity of the altered or relocated watercourse shall be maintained. (Ord. No. 2015-51, § 1, 10-5-15)

Sec. 5-123. Use regulations.

(a) *Reference to existing regulations*. The special flood hazard areas are established as a floodplain overlay district. All development in the district, including structural and non-structural activities, whether permitted by right or by special permit, shall be in compliance with the following:

(1) Rhode Island State Building Code (As established under R.I.G.L. § 23-27.3).

(2) Coastal Resources Management Act, Rhode Island Coastal Resources Management Council (R.I.G.L. § 46-23).

(3) Endangered Species Act, Rhode Island Department of Environmental Management (R.I.G.L. § 20-37).

(4) Freshwater Wetlands Act, Rhode Island Department of Environmental Management (R.I.G.L. § 2-1-18).

(5) Minimum Standards Related to Individual Sewage Disposal Systems, Rhode Island Department of Environmental Management (R.I.G.L. §§ 5-56, 5-56.1; 23-19.15, 23-19.5, 23-24.3, 42-17.1, and 46-13.2).

(6) Water quality regulations, Rhode Island Department of Environmental Management (R.I.G.L. §§ 42-17.1 and 42-17.6 and 46-12).

Any variances from the provisions and requirements of the above referenced state regulations may only be granted in accordance with the required variance procedures of these state regulations.

(b) *Other use regulations*:

(1) Within zones AH and AO on the FIRM, adequate drainage paths shall be provided around structures on slopes, to guide floodwaters around and away from proposed structures.

(2) Within zones AO on the FIRM, new and substantially improved residential structures shall have the top of the lowest floor at least as high as the FIRM's depth number above the highest adjacent grade and non-residential structures shall be elevated or flood-proofed above the highest adjacent grade to at least as high as the depth number on the FIRM. On FIRMs without a depth number for the AO zone, structures shall be elevated or flood-proofed to at least two (2) feet above the highest adjacent grade.

(3) In Zones A1-30 and AE, along watercourses that have regulatory floodways designated on the Providence County FIRM, encroachments are prohibited in the regulatory floodway which would result in any increase in flood levels within the community during the occurrence of the base flood discharge.

(4) All subdivision proposals shall be designed to assure that:

a. Such proposals minimize flood damage;

b. All public utilities and facilities are located and constructed to minimize or eliminate flood damage; and

c. Adequate drainage is provided to reduce exposure to flood hazards.

(5) Detached accessory structures in zones A, AE, A1-30, AO, and AH (e.g., garages, sheds) do not have to meet the elevation or dry flood-proofing requirement if the following standards are met:

a. The structure has a value less than one thousand dollars ($1,000.00).

b. The structure has unfinished interiors and shall not be used for human habitation. An apartment, office or other finished space over a detached garage is considered human habitation and would require the structure to be elevated.

c. The structure is not in the floodway.

d. The structure is not used for storage of hazardous materials.

e. The structure is used solely for parking of vehicles and/or limited storage.

f. The accessory structure shall be wet flood-proofed and designed to allow for the automatic entry and exit of floodwater.

g. The accessory structure shall be firmly anchored to prevent flotation, collapse and lateral movement.

h. Service facilities such as electrical, mechanical and heating equipment shall be elevated or flood-proofed to or above the base flood elevation.

i. The structure shall not increase the flood levels in the floodway.

(6) Existing contour intervals of site and elevations of existing structures shall be included on plan proposal.

(7) No person shall change from business/commercial to residential use any structure or property located in the floodway of a special flood hazard area so as to result in a use or expansion that could increase the risk to the occupants.

(8) The space below the lowest floor:

a. Free of obstructions as described in FEMA Technical Bulletin 5 "Free of Obstruction Requirements for Buildings Located in Coastal High Hazard Area in Accordance with the National Flood Insurance Program"; or

b. Constructed with open wood lattice-work, or insect screening intended to collapse under wind and water without causing collapse, displacement, or other structural damage to the elevated portion of the building or supporting piles or columns; or

c. Designed with an enclosed area less than three hundred (300) square feet that is constructed with non-supporting breakaway walls that have a design safe loading resistance of not less than ten (10) or more than twenty (20) pounds per square foot.

(c) *Base flood elevation and floodway data*.

(1) *Floodway data*. In zones A, A1-30, and AE, along watercourses that have not had a regulatory floodway designated, the best available federal, state, local, or other floodway data shall be used to prohibit encroachments in floodways which would result in any increase in flood levels within the community during the occurrence of the base flood discharge.

(2) *Base flood elevation data*. Base flood elevation data is required for subdivision proposals or other developments greater than fifty (50) lots or five (5) acres, whichever is the lesser, within unnumbered A zones.

(3) *Base flood elevations in A zones*. In the absence of FEMA BFE data and floodway data, the best available federal, state, local, or other BFE or floodway data shall be used as the basis for elevating residential and non-residential structures to or above the base flood level and for floodproofing non-residential structures to or above the base flood level.

(Ord. No. 2015-51, § 1, 10-5-15)

Sec. 5-124. Definition of terms.

Unless specifically defined below, words and phrases used in this article IX. pertain to floodplain management, having the same meaning as in common usage, giving this ordinance its most reasonable application.

Accessory structure. A structure which is on the same parcel of property as the principal structure to be insured and the use of which is incidental to the use of the principal structure.

Area of shallow flooding. A designated AO, AH, AR/AO, AR/AH, or VO zone on a community's flood insurance rate map (FIRM) with a one (1) percent or greater annual chance of flooding to an average depth of one (1) to three (3) feet where a clearly defined channel does not exist, where the path of flooding is unpredictable, and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

Area of special flood hazard. See definition for "special flood hazard area".

Base flood. The flood having a one (1) percent chance of being equaled or exceeded in any given year.

Base flood elevation (BFE). The elevation of the crest of the base flood or 100-year flood. The height, as established in relation to the North American Vertical Datum (NAVD) of 1988 (or other datum where specified), in relation to mean sea level expected to be reached by the waters of the base flood at pertinent points in the floodplains of coastal and riverine areas.

Basement. Any area of a building having its floor subgrade (below ground level) on all sides.

Building. See definition for "structure".

Coastal A zone. Area within a special flood hazard area, landward of a V zone or landward of an open coast without mapped V zones. The principal source of flooding must be astronomical tides, storm surges, seiches, or tsunamis, not riverine flooding. During base flood conditions, the potential for breaking wave heights shall be greater than or equal to one and one-half (1½) feet.

Cost. As related to substantial improvements, the cost of any reconstruction, rehabilitation, addition, alteration, repair or other improvement of a structure shall be established by a detailed written contractor's estimate. The estimate shall include, but not be limited to: the cost of materials (interior finishing elements, structural elements, utility and service equipment); sales tax on materials, building equipment and fixtures, including heating and air conditioning and utility meters; labor; built-in appliances; demolition and site preparation; repairs made to damaged parts of the building worked on at the same time; contractor's overhead; contractor's profit; and grand total. Items to be excluded include: cost of plans and specifications, survey costs, permit fees, costs to correct code violations subsequent to a violation notice, outside improvements such as septic systems, water supply wells, landscaping, sidewalks, fences, yard lights, irrigation systems, and detached structures such as garages, sheds, and gazebos.

Development. Any man-made change to improved or unimproved real estate, including but not limited to the construction of buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

Existing manufactured home park or manufactured home subdivision. A manufactured home park or manufactured home subdivision for which the construction of facilities for servicing the lots on which the manufactured home are to be affixed (including, as a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the adopted floodplain management regulations.

Expansion to an existing manufactured home park or existing manufactured home subdivision. The preparation of additional sites by the construction of facilities for servicing the lots on which the manufacturing homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

Federal Emergency Management Agency (FEMA). The federal agency that administers the National Flood Insurance Program (NFIP).

Flood or flooding. A general and temporary condition of partial or complete inundation of normally dry land areas from either the overflow of inland or tidal waters, or the unusual and rapid accumulation or runoff of surface waters from any source.

Flood insurance rate map (FIRM). The official map of a community on which the Federal Insurance Administrator has delineated both the special hazard areas and the risk premium zones applicable to the community. A FIRM that has been made available digitally is called a digital flood insurance rate map (DFIRM).

Flood insurance study (FIS). The official study of a community in which the Federal Emergency Management Agency (FEMA) has conducted a technical engineering evaluation and determination of local flood hazards, flood profiles and water surface elevations. The flood insurance rate maps (FIRM), which accompany the FIS, provide both flood insurance rate zones and base flood elevations, and may provide the regulatory floodway limits.

Flood-proofing. Any combination of structural and non-structural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

Floodway. The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height. For the purposes of these regulations, the term "regulatory floodway" is synonymous in meaning with the term "floodway".

Freeboard. A factor of safety usually expressed in feet above a flood level for purposes of floodplain management. "Freeboard" tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, bridge openings, and the hydrological effect of urbanization of the watershed.

Functionally dependent use or facility. A use that cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities.

Highest adjacent grade (HAG). The highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

Historic structure. Any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of the Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historic significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or

(4) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:

a. By an approved state program as determined by the Secretary of the Interior; or

b. Directly by the Secretary of the Interior in states without approved programs.

Limit of moderate wave action (LiMWA). An advisory line indicating the limit of the one-and-one-half-foot wave height during the base flood.

Lowest floor. The lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of § 60.3.

Manufactured home. A structure, transportable in one (1) or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The term "manufactured home" does not include a "recreational vehicle".

Manufactured home park or manufactured home subdivision. A parcel or contiguous parcels of land divided into two (2) or more manufactured home lots for rent or sale.

Market value. Market value is the price of a structure that a willing buyer and seller agree upon. This can be determined by an independent appraisal by a

professional appraiser; the property's tax assessment, minus land value; the replacement cost minus depreciation of the structure; the structure's actual cash value.

New construction. Structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, new construction means structures for which the start of construction commenced on or after the effective date of a floodplain management regulation adopted by a community and includes any subsequent improvements to such structures.

New manufactured home park or *manufactured home subdivision.* A manufactured home park or manufactured home subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain regulations adopted by the community.

Recreational vehicle. A vehicle which is: (a) built on a single chassis; (b) four hundred (400) square feet or less when measured at the largest horizontal projection; (c) designed to be self-propelled or permanently towable by a light duty truck; and (d) designed primarily not for use as a permanent dwelling but as a temporary living quarters for recreational, camping, travel, or seasonal use.

Regulatory floodway. See definition for "floodway".

Sheet flow area. See definition for "area of shallow flooding".

Special flood hazard area (SFHA). The land in the floodplain within a community subject to a one (1) percent or greater chance of flooding in any given year. After detailed ratemaking has been completed in preparation for publication of the flood insurance rate map, zone A usually is refined into zones A, AO, AH, A1-30, AE, A99, AR, AR/A1-30, AR/AE, AR/AO, AR/AH, AR/A, VO, or V1-30, VE or V. For purposes of these regulations, the term "special flood hazard area" is synonymous in meaning with the phrase "area of special flood hazard".

Start of construction. For other than new construction or substantial improvements under the Coastal Barrier Resources Act (P.L. 97-348), includes substantial improvement and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, substantial improvement or other improvement was within one hundred and eighty (180) days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation, or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as

clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erections of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure. For floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home. For insurance purposes, means:

(1) A building with two (2) or more outside rigid walls and a fully secured roof, that is affixed to a permanent site;

(2) A manufactured home ("a manufactured home," also known as a mobile home, is a structure built on a permanent chassis, transported to its site in one (1) or more sections, and affixed to a permanent foundation); or

(3) A travel trailer without wheels, built on a chassis and affixed to a permanent foundation, that is regulated under the community's floodplain management and building ordinances or laws.

For the latter purpose, "structure" does not mean recreational vehicle or a park trailer or other similar vehicle, except as described in subsection (3) of this definition, or a gas or liquid storage tank.

Substantial damage. Damage of any origin sustained by a structure, whereby the cost of restoring the structure to before damaged condition would equal or exceed fifty (50) percent of the market value of the structure before the damage occurred.

Substantial improvement. Any reconstruction, rehabilitation, addition or other improvements to a structure, the cost of which equals or exceeds fifty (50) percent of the market value of the structure before the "start of construction" of the improvement. This term includes structures which have incurred "substantial damage", regardless of the actual repair work performed. The term does not, however, include:

(1) Any project to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions; or

(2) Any alteration of the "historic structure", provided that the alteration will not preclude the structure's continued designation as a "historic structure".

Variance. A grant of relief from the terms of this article IX that allows construction in a manner otherwise prohibited and where specific enforcement would result in unnecessary hardship.

Violation. Failure of a structure or other development to be fully compliant with the community's floodplain management ordinance. Construction or other development without required permits, lowest floor elevation documentation, flood-proofing certificates or required floodway encroachment calculations is presumed to be in violation until such time as that documentation is provided.
(Ord. No. 2015-51, § 1, 10-5-15)

Sec. 5-125. [Authority.]

The regulations of this article IX shall supersede any and all regulations in the code of ordinances pertaining to special flood hazard areas.
(Ord. No. 2015-51, § 1, 10-5-15)

ARTICLE X. BUILDING ENERGY REPORTING PROGRAM

Sec. 5-126. Purpose and intent.

The purpose and intent of the building energy reporting program is to create a data collection process and establish a database to enable municipal tracking of energy use of large buildings in the City of Providence, as well as to:

(1) To encourage efficient use of energy and to reduce greenhouse gas emissions by requiring annual measurement and disclosure to the city of building energy usage;

(2) To enable more effective energy and climate mitigation planning by the city, the state, and large building owners;

(3) To gather data necessary for informing the design and implementation of municipal programs to meet the science-based targets in the statewide Act on climate legislation.

(4) To provide the public with information concerning the city's and others' energy consumption, improvement in energy efficiency, and reduction of greenhouse gas emissions.

(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-127. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a differing meaning:

Benchmarking information shall mean information generated by the benchmarking tool as herein defined, including information about the physical property and its operational characteristics. The information shall include, but need not be limited to:

(1) Property address;

(2) Primary use type;

(3) Gross floor area;

(4) Annual energy use;

(5) Source energy use intensity (EUI); Site EUI, weather normalized source EUI, weather normalized site EUI;

(6) Annual greenhouse gas emissions;

(7) Compliance or noncompliance with this article.

Benchmarking tool shall mean ENERGY STAR portfolio manager, the internet-based tool developed and maintained by the U.S. Environmental Protection Agency (U.S. EPA) to track and assess the relative energy performance of buildings nationwide. Should ENERGY STAR portfolio manager become unavailable for any reporting year(s), the reporting obligations herein will be suspended until such time it is again available or a comparable alternative is designated by the department of sustainability.

Campus shall mean two (2) or more buildings that are served by shared utility services and predominantly used for health care, research or higher education purposes.

Covered property shall mean all residential and non-residential buildings and campuses in the city that contain twenty thousand (20,000) or more gross square feet and all municipal buildings and campuses in the city that contain ten thousand (10,000) or more gross square feet as defined herein and identified by the tax assessors database.

Dwelling unit shall mean a single residential unit consisting of one or more rooms, occupied or arranged to be occupied as a residential unit separate from all other residential units within a building, and used primarily for residential purposes and not primarily for professional or commercial purposes.

Director means the director of the department of sustainability or designee.

Energy shall mean electricity, natural gas, steam, hot or chilled water, heating oil, or other product for use in a building, or renewable electricity generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses in the building and related facilities.

ENERGY STAR shall mean the U.S. Environmental Protection Agency program related to improving energy efficiency in buildings and products.

Gross square feet shall mean the gross floor area of the property as defined by the U.S. EPA portfolio manager.

Municipal property shall mean a building that contains ten thousand (10,000) or more gross square feet that is owned by the City of Providence.

Owner shall mean:

(1) An individual or entity designated in the records of the city tax assessor as the owner of a covered property;

(2) An agent authorized by law to act on behalf of the owner of a covered property;

(3) In the case of a condominium, the person or persons authorized by law to act on behalf of the condominium association or its board of directors, managers or trustees; and/or

(4) In the case of a cooperative, the person or persons authorized by law to act on behalf of the cooperative.

Site energy shall mean the annual amount of all the energy each property consumes on-site, regardless of the source. It not only includes energy purchased from a utility or in bulk, but also renewable energy generated and consumed on-site such as from solar or wind (excess renewable energy generated on-site is excluded from site energy use). Site energy can be used to understand how the energy use for an individual property has changed over time.

Source energy shall mean the total amount of raw fuel that is required to operate your property. Source EUI (energy use intensity) is source energy divided by the property's gross floor area. In addition to what the property consumes on-site, source energy includes losses that take place during generation, transmission, and distribution of the energy, thereby enabling a complete assessment of energy consumption resulting from building operations. Source energy will be used to understand the complete energy impact of each property and compare the energy performance across covered properties in the program.

Tenant shall mean a person or entity leasing, occupying or holding over possession of a covered property or municipal property.

Utility shall mean an entity that distributes, supplies, or transmits energy to covered properties.
(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-128. Establishment.

There is hereby established a building energy reporting program for covered properties with the purpose of helping the city conserve energy, reduce energy costs for businesses, and meet its goal to be carbon neutral by 2050 by requiring large building owners to benchmark their buildings' energy use and report this data to the city. The city will be responsible for reporting this information to the public in order to provide transparency to the marketplace.
(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-129. Benchmarking required for municipal properties.

No later than May 15, 2024 and by May 15 thereafter, the city, by the director of the department of sustainability or their designee, shall input annual energy use from January l through December 31 of the previous calendar year and all other descriptive information required by the benchmarking tool, into the benchmarking tool for each of its covered properties. where a covered property's benchmarking information in the benchmarking tool has fallen out of date, said benchmarking information shall be updated no later than the annual reporting date.
(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-130. Benchmarking required for other covered properties.

Owners of covered properties shall input annual energy use from January 1 through December 31 of the previous calendar year and all other descriptive information required by the benchmarking tool, into the benchmarking tool, according to the following schedule:

(1) For buildings that contain fifty thousand (50,000) or more gross square feet, no later than May 15, 2025 and by every May 15 thereafter;

(2) For buildings that contain twenty thousand (20,000) to forty-nine thousand nine hundred ninety-nine (49,999) gross square feet, no later than May 15, 2026 and by every May 15 thereafter;

For buildings that contain ten thousand (10,000) to nineteen thousand nine hundred ninety-nine (19,999) gross square feet, by May 15, 2026;

(3) Following the receipt of certificate of occupancy, a new covered property that has not yet accumulated twelve (12) months of energy use data by the first applicable reporting deadline shall comply with this article in the following year.
(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-131. Notification of covered properties.

Between September 15 and December 15 of each year, the city shall notify owners of covered properties of their obligation to input energy use into the benchmarking tool. By January 31 of each year, the city shall post a list of the addresses of covered properties. The list shall be published in the office of the city clerk and on the department of sustainability's city webpage.
(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-132. Exemptions.

An owner of an otherwise "covered property" may seek an exemption from the requirements of this article for a reporting year if any of the following conditions apply:

(1) None of the property was occupied for the entire calendar year required to be benchmarked;

(2) A demolition permit for the entire property was issued and demolition work commenced during the calendar year;

(3) The property did not receive energy services for the entire calendar year required to be benchmarked

(4) The property was a residential property with fifteen (15) or fewer dwelling units; and

If the building owner has substantial and documented difficulty accessing data from tenants and/or the relevant utility.

Applications for exceptions can be filed with the director of the department of sustainability, using a form created by the department, and with all relevant supporting documentation included and notarized prior to submission. Waivers will be granted or denied at the discretion of the director of the department of sustainability.
(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-133. Provision and publication of benchmarking information.

Owners shall annually provide benchmarking information to the director, in such form as established by the director, by the date provided by the schedule in section 5-130 above.

No later than October 15, 2024 and thereafter by October 15 of each year, the director shall deliver a summary report on the program to the administration and city council and then publish said report on the department of sustainability's webpage. The report shall include, but not be limited to:

(1) Benchmarking information for each covered property, as described in section 5-127, Definitions, above, for the current year;

(2) Progress against baseline year data from intervening years for both energy use and GHG emissions.

(3) Covered properties' compliance status with the energy assessment or actions requirements described in section 5-135 below.

(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-134. Direct upload.

Owners of covered properties may authorize an energy utility or other third party to report building-specific energy data on their behalf to the director. Such authorization shall not remove the obligation of property owners to comply with reporting requirements.

(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-135. Energy assessments or actions.

The director shall establish requirements for energy assessment or actions, in the manner set forth below. each covered property not exempted by the director shall complete either an energy assessment or action, described below, within five (5) years of its first energy reporting deadline and within every five-year period thereafter. The owner may elect whether to complete an assessment or an action.

(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-136. Energy assessment or action requirements.

(a) In establishing requirements for energy assessments, the director shall look to the most recent edition of procedures for commercial building energy audits published by the American Society of Heating, Refrigerating and Air-Conditioning Engineers (ASHRAE) for guidance, and may vary these requirements based on building size, age, energy performance, and other building characteristics as well as incentives in utility-administered or other energy efficiency programs and changes in energy assessment technology.

(b) Energy actions may include investments in energy conservation measures, development of comprehensive energy management plans, retro commissioning of energy systems, or similar actions.

(c) Summary results of energy assessments and actions shall be reported to the director in such form as the director shall specify.

(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-137. Maintenance of records.

Owners shall maintain and make available upon request the following records for a period of five (5) years:

(1) The U.S. EPA Portfolio Manager Confirmation email evidencing the date the owner submitted its report;

(2) Such other records as the director determines is necessary for carrying out the purposes of this article, as reflected in the director's regulations.

(3) Sellers of covered property will provide purchasers all information necessary for the purchaser to report benchmarking information in a timely manner.

(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-138. Violations and enforcement.

Any person or entity that violates any provision of this article shall be subject to the following civil remedies:

(1) For the first violation, the city may issue a written warning to the building owner.

(2) For a second or subsequent violation, the city may impose civil fines as follows for each building not reported:

a. For buildings that contain fifty thousand (50,000) or more gross square feet, forty dollars ($40.00) per day to a maximum of four thousand dollars ($4,000.00) per year;

b. For Buildings that contain twenty thousand (20,000) or more gross square feet, thirty dollars ($30.00) per day to a maximum of three thousand dollars ($3,000.00) per year;

(3) Upon request by the director, the office of sustainability shall issue notices of violation in accordance with this section. The director shall identify the department responsible for conducting enforcement.

(4) Any person who makes a misrepresentation of a material fact in any document or filing governed by this article shall be subject to any and all other remedies available at law.

(5) In addition to any remedies provided above, the city may, by and through the solicitor, seek injunctive relief in a court of competent jurisdiction.

(6) This subsection shall not be amended unless a public hearing is convened by a committee of the council.

(Ord. No. 2023-36, § 1, 11-8-23)

Sec. 5-139. Severability.

If any provision of this article shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(Ord. No. 2023-36, § 1, 11-8-23)

ARTICLE XI. ENERGY EFFICIENCY AND CARBON NEUTRAL GOALS FOR MUNICIPAL BUILDINGS*

Sec. 5-140. Purpose and intent.

The purpose and intent of this article is to ensure that the City of Providence is leading by example and ensuring that municipal buildings are carbon neutral by 2040. Specifically, this article is intended to create guidelines to ensure all municipal buildings are no longer fueled by fossil fuel or onsite combustion and are carbon neutral. This article intends to encourage electrification coupled with energy efficiency upgrades including, but not limited to, electric heating and cooling systems, electric hot water heating, one hundred (100) percent renewable energy consumption, maximum on-site renewable energy production, thermal energy networks, and biofuel or battery electric emergency backup facilities, in all municipal buildings, including schools. As well as to:

(1) Align the city of Providence's municipal capital improvements and maintenance projects with existing state requirements outlined in R.I.G.L 42-6.2-9 (The Act on Climate; Statewide greenhouse gas emission reduction mandate), and R.I.G.L 39-26 (Renewable Energy Standard).

(2) Provide a path forward to meeting the goals set forth in the Providence Climate Justice Plan of 2019; and

(3) Provide a guide to prioritizing municipal buildings for energy efficiency, electrification, and carbon reduction improvements.

(4) Expand equitable access to clean energy careers with family-sustaining wages and benefits as part of the city of Providence plan to decarbonize its building stock.

(Ord. No. 2024-3, § 1, 3-12-24)

Sec. 5-141. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a differing meaning:

Analysis of feasibility means a report created by a qualified professional that estimates the costs, savings, cost-effectiveness, and greenhouse gas reductions for an on-site renewable energy system, electric heating and cooling system, thermal energy network, or energy-efficiency measure, and shall include a financial plan with sources and uses of funding, including but not limited to, federal, state, and utility incentives.

***Editor's note—**Ord. No. 2024-3, § 1, adopted March 12, 2024, enacted provisions designated as art. X; inasmuch as said article already exists, said provisions have been redesignated as art. XI, at the discretion of the editor.

Carbon neutral building means a building where the design, construction, and operations do not contribute to emissions of greenhouse gases that cause climate change.

Capital improvements shall mean improvements to the physical infrastructure of a building including building systems such as HVAC and major equipment.

Cost-effective means measures that are projected to generate energy cost savings and avoided social cost of carbon dioxide equal to or greater than overnight capital costs and operations and maintenance costs over the lesser of:

(1) Useful life of the equipment, or

(2) Twenty (20) years.

Covered project means a construction, capital improvement, renovation or maintenance project on buildings owned by the City of Providence, including buildings owned by the city and managed by other entities, as well as any capital improvements and maintenance of mechanical systems in each building, especially when those systems are upgraded, including but not limited to:

(1) The building envelope;

(2) Lighting and controls;

(3) Heating, ventilation, and air conditioning (HVAC) systems;

(4) Building management systems.

Energy shall mean electricity, natural gas, steam, hot or chilled water, heating oil, or other product for use in a building, or renewable electricity generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses in the building and related facilities.

Greenhouse gas means climate pollution released by burning fossil fuels that alter the atmosphere, including carbon dioxide, methane, nitrous oxide, hydrofluorocarbons, perfluorocarbons, and sulfur hexafluoride.

Maintenance means amounts spent for repairs or replacements for the purpose of keeping a municipal building open and safe for use, including repairs, maintenance, and replacements to a municipal building's heating, lighting, ventilation, security, building management system, and other fixtures to keep the facility or fixtures in effective working condition. Maintenance shall not include contracted or direct custodial or janitorial services, expenditures for the cleaning of a municipal building or its fixtures, the care and upkeep of grounds, recreational facilities, or parking lots, or the cleaning of or repairs and replacements to movable furnishings or equipment.

Measurement and verification (M&V) is the process of planning, measuring, collecting, and analyzing data for the purpose of verifying and reporting energy and carbon savings within an individual facility resulting from capital improvements specific to and in alignment with this ordinance.

Renewable energy shall mean renewable energy resources as described in R.I.G.L 39-26 (Renewable Energy Standard).

Thermal energy means piped non-combustible fluids used for transferring heat into and out of buildings for the purpose of eliminating any resultant on-site greenhouse gas emissions of all types of heating and cooling processes, including, but not limited to, comfort heating and cooling, domestic hot water, and refrigeration.

Thermal energy network means all real estate, fixtures and personal property operated, owned, used or to be used for or in connection with or to facilitate a utility-scale distribution infrastructure project that supplies thermal energy.
(Ord. No. 2024-3, § 1, 3-12-24)

Sec. 5-142. Scope and applicability.

This article is applicable to all buildings owned by the City of Providence, including buildings owned by the city and managed by other entities. This article is applicable to all capital improvements and maintenance of mechanical systems in every municipal building, especially when those systems are upgraded, including but not limited to:

(1) The building envelope;

(2) Lighting and controls;

(3) Heating, ventilation, and air conditioning (HVAC) systems;

(4) Building management systems.
(Ord. No. 2024-3, § 1, 3-12-24)

Sec. 5-143. Priorities and timeline.

All municipal buildings are to be carbon neutral buildings by 2040. School facilities shall meet the latest definition of zero energy capable as defined by the Northeast Collaborative for High Performance schools (NE-CHPS) by 2040 the priorities for reaching carbon neutrality for each building include, but are not limited to the following:

(1) Completing a comprehensive accounting and analysis of all energy uses in all municipal buildings.

(2) Identification and analysis of energy efficiency measures and energy saving opportunities, as well as applicable local, state, federal, and other sources of capital to defray costs of these measures. Investing in all cost-effective energy efficiency and energy savings opportunities.

(3) Analysis of the feasibility of using thermal energy and thermal energy networks at the facility, including any anticipated limitations on the use of thermal energy networks, along with a characterization of any such limitations, including whether they are permanent, temporary, or resolvable in a cost-effective basis.

(4) Determination of the feasibility and advisability of gathering, combining, or expanding any clean energy sources or central thermal energy networks with neighboring or nearby related municipal facilities.

(5) An analysis of the feasibility of installing electrically powered space and water heating and cooling systems, and associated structural and electrical upgrades, with a goal of all electric buildings.

a. Where and when electrically powered space and water heating and cooling systems are determined to be cost-effective, the city will prioritize these recommended systems and place the system in service, except in cases where thermal energy and thermal energy networks are installed as suitable cost-effective alternatives.

(6) Preference for the installation of on-site renewable energy generation where feasible based on location and building characteristics (orientation, sunshade, etc.), as well as battery storage systems.

(7) Require all public buildings to have an energy use intensity (EUI) assessment within a year of passage in order to prioritize the need for an investment grade energy audit.

(8) Schedule investment grade energy audits based on the above prioritization for buildings with the worse EUI ratings, or with the most favorable renewable energy potential within three (3) years of passage (unless one (1) has been performed in the prior two (2) years), to assess energy savings opportunities, electrification potential, and renewal and battery energy storage system capabilities, and updated based on funding potential and required levels of performance. Buildings scheduled to receive capital improvements based on the city's CIP or other schedules must undergo an investment grade energy audit prior to the issuing of formal construction documents.

(9) Within a year of the investment grade audit, the city will assess the audit findings and create a priorities plan for capital improvements to advance the decarbonization goals of the city/described in this article.

(10) All school buildings must be not powered by metered and delivered fossil fuel by 2040 for all primary building systems. Starting immediately, no new connections to the fossil fuel system from a municipal building will be permitted, provided that the replacement thermal system for heating, cooling, hot water, and appliances in the building provides the same or greater safety, reliability, and cost-effectiveness as defined in section 5-141.

(11) All other municipal buildings must have completed the relevant evaluations as described above and invest in all cost-effective energy efficiency and clean energy systems to move toward full electrification as soon as it is cost-effective, leveraging all available local, state, federal, and other available funding. All other municipal buildings must be powered by one hundred (100) percent carbon pollution-free electricity by 2033, at least half of which will be locally supplied clean energy, as required in the Climate Justice Plan.

(Ord. No. 2024-3, § 1, 3-12-24)

Sec. 5-144. Annual reporting guidelines.

The departments of public property, sustainability, and/or providence public school department shall submit an annual report on progress towards achieving carbon neutrality by 2040 to the city council and the mayor. The annual report shall include, but is not limited to, the following information:

(1) Energy and carbon neutral benchmarks.

(2) Overall energy use and carbon emissions trends.

(3) A plan for the upcoming year in action steps to reduce energy use and carbon emissions in municipal buildings.

(4) Operation goals.

(5) A maintenance plan for upgraded buildings.

(6) Any associated annual budgetary needs for meeting the goals set forth in this article.

(7) Jobs created or sustained by these projects.

(Ord. No. 2024-3, § 1, 3-12-24)

Sec. 5-145. Labor standards.

The city shall support equitable access to family-sustaining jobs with good wages and benefits by:

(1) For all projects subject to the provisions of this ordinance, the city will comply with the requirements of property owners in article XVIII section 21-306(h) Providence Tax Stabilization Investment Act.

(2) Conducting an independent, objective, reasoned study, using reviewable criteria, to determine whether adoption of a project labor agreement on the

proposed project or projects will help achieve the goals of the state purchases act, for all covered projects over twenty-five million dollars ($25,000,000.00).
(Ord. No. 2024-3, § 1, 3-12-24)

Sec. 5-146. Severability.

If any provision of this ordinance shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.
(Ord. No. 2024-3, § 1, 3-12-24)

ARTICLE XII. GREENHOUSE GAS EMISSIONS REDUCTION TARGETS IN BUILDINGS*

Sec. 5-147. Building energy reporting program.

(a) *Purpose and intent.* The purpose and intent of the building energy reporting program is to create a data collection process and establish a database to enable municipal tracking of energy use of large buildings in the City of Providence, as well as to:

(1) To encourage efficient use of energy and to reduce greenhouse gas emissions by requiring annual measurement and disclosure to the city of building energy usage;

(2) To enable more effective energy and climate mitigation planning by the city, the state, and large building owners;

(3) To gather data necessary for informing the design and implementation of municipal programs to meet the science-based targets in the statewide Act on Climate legislation.

(4) To provide the public with information concerning the city's and others' energy consumption, improvement in energy efficiency, and reduction of greenhouse gas emissions.
(Ord. No. 2024-40, § 1, 7-23-24)

***Editor's note—**Ord. No. 2024-40, § 1, adopted July 23, 2024, enacted provisions designated as art. X; inasmuch as said article already exists, said provisions have been redesignated as art. XII, at the discretion of the editor.

The sections in said ordinance set out as §§ 5-140—5-146 have been previously adopted and codified by Ord. No. 2024-3 as art. XI, and have therefore not been set out and included in this art. XII.

Sec. 5-148. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a differing meaning:

Benchmarking information shall mean information generated by the benchmarking tool as herein defined, including information about the physical property and its operational characteristics. The information shall include, but need not be limited to:

(1) Property address;

(2) Primary use type;

(3) Gross floor area;

(4) Annual energy use;

(5) Source energy use intensity (EUI); site EUI, weather normalized source EUI, weather normalized site EUI;

(6) Annual greenhouse gas emissions;

(7) Compliance or noncompliance with this article.

Benchmarking tool shall mean ENERGY STAR Portfolio Manager, the internet-based tool developed and maintained by the U.S. Environmental Protection Agency (U.S. EPA) to track and assess the relative energy performance of buildings nationwide. Should ENERGY STAR Portfolio Manager become unavailable for any reporting year(s), the reporting obligations herein will be suspended until such time it is again available or a comparable alternative is designated by the department of sustainability.

Campus shall mean two (2) or more buildings that are served by shared utility services and predominantly used for health care, research or higher education purposes.

Covered property shall mean all residential and non-residential buildings and campuses in the city that contain twenty thousand (20,000) or more gross square feet and all municipal buildings and campuses in the city that contain ten thousand (10,000) or more gross square feet as defined herein and identified by the tax assessors database.

Dwelling unit shall mean a single residential unit consisting of one (1) or more rooms, occupied or arranged to be occupied as a residential unit separate from all other residential units within a building, and used primarily for residential purposes and not primarily for professional or commercial purposes.

Director means the director of the department of sustainability or designee.

Energy shall mean electricity, natural gas, steam, hot or chilled water, heating oil, or other product for use in a building, or renewable electricity generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses in the building and related facilities.

ENERGY STAR shall mean the U.S. Environmental Protection Agency program related to improving energy efficiency in buildings and products.

Gross square feet shall mean the gross floor area of the property as defined by the U.S. EPA portfolio manager.

Municipal property shall mean a building that contains ten thousand (10,000) or more gross square feet that is owned by the City of Providence.

Owner shall mean:

(1) An individual or entity designated in the records of the city tax assessor as the owner of a covered property;

(2) An agent authorized by law to act on behalf of the owner of a covered property;

(3) In the case of a condominium, the person or persons authorized by law to act on behalf of the condominium association or its board of directors, managers or trustees; and/or

(4) In the case of a cooperative, the person or persons authorized by law to act on behalf of the cooperative.

Site energy shall mean the annual amount of all the energy each property consumes on-site, regardless of the source. It not only includes energy purchased from a utility or in bulk, but also renewable energy generated and consumed on-site such as from solar or wind (excess renewable energy generated on-site is excluded from site energy use). Site energy can be used to understand how the energy use for an individual property has changed over time.

Source energy shall mean the total amount of raw fuel that is required to operate your property. Source EUI (Energy Use Intensity) is Source Energy divided by the property's gross floor area. In addition to what the property consumes on-site, source energy includes losses that take place during generation, transmission, and distribution of the energy, thereby enabling a complete assessment of energy consumption resulting from building operations. Source energy will be used to understand the complete energy impact of each property and compare the energy performance across covered properties in the program.

Tenant shall mean a person or entity leasing, occupying or holding over possession of a covered property or municipal property.

Utility shall mean an entity that distributes, supplies, or transmits energy to covered properties.
(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-149. Establishment.

There is hereby established a building energy reporting program for covered properties with the purpose of helping the city conserve energy, reduce energy costs for businesses, and meet its goal to be carbon neutral by 2050 by requiring large building owners to benchmark their buildings' energy use and report this data to the city. The city will be responsible for reporting this information to the public in order to provide transparency to the marketplace.
(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-150. Benchmarking required for municipal properties.

No later than May 15, 2024 and by May 15 thereafter, the city, by the director of the department of sustainability or their designee, shall input annual energy use from January 1 through December 31 of the previous calendar year and all other descriptive information required by the benchmarking tool, into the benchmarking tool for each of its covered properties. Where a covered property's benchmarking information in the benchmarking tool has fallen out of date, said benchmarking information shall be updated no later than the annual reporting date.
(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-151. Benchmarking required for other covered properties.

Owners of covered properties shall input annual energy use from January 1 through December 31 of the previous calendar year and all other descriptive information required by the benchmarking tool, into the benchmarking tool, according to the following schedule:

(1) For buildings that contain fifty thousand (50,000) or more gross square feet, no later than May 15, 2025 and by every May 15 thereafter;

(2) For buildings that contain twenty thousand (20,000) to forty-nine thousand nine hundred ninety-nine (49,999) gross square feet, no later than May 15, 2026 and by every May 15 thereafter;

(3) For buildings that contain ten thousand (10,000) to nineteen thousand nine hundred ninety-nine (19,999) gross square feet, by May 15, 2026;

(4) Following the receipt of certificate of occupancy, a new covered property that has not yet accumulated twelve (12) months of energy use data by the first applicable reporting deadline shall comply with this article in the following year.

(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-152. Notification of covered properties.

Between September 15 and December 15 of each year, the city shall notify owners of covered properties of their obligation to input energy use into the benchmarking tool. By January 31 of each year, the city shall post a list of the addresses of covered properties. The list shall be published in the office of the city clerk and on the department of sustainability's city webpage.
(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-153. Exemptions.

An owner of an otherwise "covered property" may seek an exemption from the requirements of this article for a reporting year if any of the following conditions apply:

(1) None of the property was occupied for the entire calendar year required to be benchmarked;

(2) A demolition permit for the entire property was issued and demolition work commenced during the calendar year;

(3) The property did not receive energy services for the entire calendar year required to be benchmarked

(4) The property was a residential property with fifteen (15) or fewer dwelling units; and

If the building owner has substantial and documented difficulty accessing data from tenants and/or the relevant utility.

Applications for exceptions can be filed with the director of the department of sustainability, using a form created by the department, and with all relevant supporting documentation included and notarized prior to submission. Waivers will be granted or denied at the discretion of the director of the department of sustainability.
(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-154. Provision and publication of benchmarking information.

Owners shall annually provide benchmarking information to the director, in such form as established by the director, by the date provided by the schedule in section 5-151 above.

No later than October 15, 2024 and thereafter by October 15 of each year, the director shall deliver a summary report on the program to the administration and city council and then publish said report on the department of sustainability's webpage. The report shall include, but not be limited to:

(1) Benchmarking information for each covered property, as described in section 5-148, Definitions, above, for the current year;

(2) Progress against baseline year data from intervening years for both energy use and GHG emissions.

(3) Covered properties' compliance status with the energy assessment or actions requirements described in section 5-156 below.

(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-155. Direct upload.

Owners of covered properties may authorize an energy utility or other third party to report building-specific energy data on their behalf to the director. Such authorization shall not remove the obligation of property owners to comply with reporting requirements.

(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-156. Energy assessments or actions.

The director shall establish requirements for energy assessment or actions, in the manner set forth below. Each covered property not exempted by the director shall complete either an energy assessment or action, described below, within five (5) years of its first energy reporting deadline and within every five-year period thereafter. The owner may elect whether to complete an assessment or an action.

(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-157. Energy assessment or action requirements.

(a) In establishing requirements for energy assessments, the director shall look to the most recent edition of procedures for commercial building energy audits published by the American Society of Heating, Refrigerating and Air-Conditioning Engineers (ASHRAE) for guidance, and may vary these requirements based on building size, age, energy performance, and other building characteristics as well as incentives in utility-administered or other energy efficiency programs and changes in energy assessment technology.

(b) Energy actions may include investments in energy conservation measures, development of comprehensive energy management plans, retro commissioning of energy systems, or similar actions.

(c) Summary results of energy assessments and actions shall be reported to the director in such form as the director shall specify.

(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-158. Maintenance of records.

Owners shall maintain and make available upon request the following records for a period of five (5) years:

(1) The U.S. EPA Portfolio Manager Confirmation email evidencing the date the owner submitted its report;

(2) Such other records as the director determines is necessary for carrying out the purposes of this article, as reflected in the director's regulations.

(3) Sellers of covered property will provide purchasers all information necessary for the purchaser to report benchmarking information in a timely manner.

(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-159. Violations and enforcement.

Any person or entity that violates any provision of this article shall be subject to the following civil remedies:

(1) For the first violation, the city may issue a written warning to the building owner.

(2) For a second or subsequent violation, the city may impose civil fines as follows for each building not reported:

a. For buildings that contain fifty thousand (50,000) or more gross square feet, forty dollars ($40.00) per day to a maximum of four thousand dollars ($4,000.00) per year;

b. For buildings that contain twenty thousand (20,000) or more gross square feet, thirty dollars ($30.00) per day to a maximum of three thousand dollars ($3,000.00) per year;

(3) Upon request by the director, the office of sustainability shall issue notices of violation in accordance with this section. The director shall identify the department responsible for conducting enforcement.

(4) Any person who makes a misrepresentation of a material fact in any document or filing governed by this article shall be subject to any and all other remedies available at law.

(5) In addition to any remedies provided above, the city may, by and through the solicitor, seek injunctive relief in a court of competent jurisdiction.

(6) This subsection shall not be amended unless a public hearing is convened by a committee of the council.

(Ord. No. 2024-40, § 1, 7-23-24)

Sec. 5-160. Severability.

If any provision of this article shall be held to be invalid by a court of competent jurisdiction, then such provision shall be considered separately and apart from the remaining provisions, which shall remain in full force and effect.

(Ord. No. 2024-40, § 1, 7-23-24)

Chapter 6

CEMETERIES*

Article I. In General

Sec. 6-1. Burials regulated.
Sec. 6-2. Right of Female Academy to burial plot.
Sec. 6-3. Right of board of control of state home and school to burial plot.
Sec. 6-4. Right of Providence College to burial plot.
Sec. 6-5. Control of Hopkins Burial Ground by park commission and superintendent.
Sec. 6-6. Penalty for violation of chapter.
Secs. 6-7—6-16. Reserved.

Article II. North Burial Ground

Sec. 6-17. Control by park commission and superintendent.
Sec. 6-18. Duties of board of park commissioners.
Sec. 6-19. Annual report of board of park commissioners.
Sec. 6-20. Superintendent of North Burial Ground; appointment, duties, bond, compensation.
Sec. 6-21. Clerk and assistant clerk; appointment, duties.
Sec. 6-22. Purchases.
Sec. 6-23. Employment of workmen.
Sec. 6-24. Superintendent to maintain fences, to report violations, to act under board.
Sec. 6-25. Record of burials in North Burial Ground.
Sec. 6-26. Fees received by superintendent.
Sec. 6-27. Accounts of fees; certification of bills.
Sec. 6-28. Lots to be held only as burial lots; transfers of lots.
Sec. 6-29. Graves to be dug by superintendent or agents.
Sec. 6-30. Graves not to be dug in avenues or paths.
Sec. 6-31. Perpetual care of certain lots.
Sec. 6-32. Deeds to persons providing for perpetual care.
Sec. 6-33. Permission to erect vault or tomb; commissioners alone permitted to rent.
Sec. 6-34. Disposition of funds received.
Sec. 6-35. Removal of stakes, fences, etc.; injury to monuments, trees, etc.; committing trespass.

***State law references—**Registration of death, ch. 23-2, Gen. Laws 1956; medical examiner, ch. 23-4, Gen. Laws 1956; act relating to, ch. 23-18, Gen. Laws 1956; special act as to exemption of cemeteries from sewer assessments, P.L. 1881, ch. 899.

ARTICLE I. IN GENERAL

Sec. 6-1. Burials regulated.

All burials of the bodies of deceased persons in any burial ground within the limits of the city, except in Grace Church Cemetery, Locust Grove Cemetery, Swan Point Cemetery, the Hebrew Burial Ground, St. Patrick's Cemetery, the Crypt of the Cathedral of St. Peter and St. Paul and the North Burial Ground are hereby prohibited, except as provided in sections 6-2, 6-3 and 6-4.
(Rules of Bd. of Ald., ch. 1, r. 31; Rev. Ords. 1946, ch. 7, § 1)

Sec. 6-2. Right of Female Academy to burial plot.

The Female Academy of the Sacred Heart of Providence, Rhode Island, may use for the purposes of burial a certain parcel of land located on the Elmhurst estate, owned by said Female Academy of the Sacred Heart, measuring about twelve (12) feet by twenty-one (21) feet, enclosed by a wooden fence, and located near the orchard of said Elmhurst estate.
(Rules of Bd. of Ald., ch. 1, r. 32; Rev. Ords. 1946, ch. 7, § 2)

Sec. 6-3. Right of board of control of state home and school to burial plot.

The board of control of the state home and school may use for the purposes of burial a certain parcel of land one hundred feet square, located on the state home and school farm in the sixth ward, belonging to the state. Said land shall be enclosed by a stone fence.
(Rules of Bd. of Ald., ch. 1, r. 33; Rev. Ords. 1946, ch. 7, § 3)

Sec. 6-4. Right of Providence College to burial plot.

Providence College may use, for the purpose of burial, a certain parcel of land two hundred feet square located on the premises owned by said college at the northeasterly corner thereof; said parcel to be enclosed by a fence in order to separate the same from the rest of the college campus.
(Rules of Bd. of Ald., ch. 1, r. 34-A; ch. 7, § 4.1, added by Ord. 1947, ch. 1668, § 2)

Sec. 6-5. Control of Hopkins Burial Ground by park commission and superintendent.

The Hopkins Burial Ground, being the lot of land conveyed to the Town of North Providence by Admiral Esek Hopkins, by deed recorded in the record of deeds in said town, in Book of Deeds 2, page 377, shall be under the care, control and direction of the board of park commissioners and of the superintendent of North Burial Ground.

All of the provisions of sections 6-17 through 6-35 pertaining to North Burial Ground, except those which by their nature cannot apply, shall apply to the Hopkins Burial Ground.
(Ord. 1914, Ch. 37, § 1; Rev. Ords. 1946, ch. 7, § 5)

Sec. 6-6. Penalty for violation of chapter.

Every person who shall violate any of the provisions of this chapter shall be deemed guilty of an offense punishable as provided in section 1-10, and in addition shall be personally liable for any damage or injury as a consequence of such violation.
(Ord. 1914, ch. 37, § 17; Rev. Ords. 1946, ch. 2, § 21)

Secs. 6-7—6-16. Reserved.

ARTICLE II. NORTH BURIAL GROUND*

Sec. 6-17. Control by park commission and superintendent.

The North Burial Ground estate, as the same now is or hereafter may be constituted by any purchase to be made by the city or other parties, or any donation for and on behalf thereof, shall be under the care, control and direction of the board of park commissioners and of the superintendent of North Burial Ground. Said superintendent shall give his personal care, services and attendance to the protection, maintenance, improvement and proper use of the grounds within said estate, and to the maintenance and enforcement of all ordinances and regulations applicable thereto under the direction of said board of park commissioners.
(Ord. 1914, ch. 37, § 1; Rev. Ords. 1946, ch. 7, § 5)

Sec. 6-18. Duties of board of park commissioners.

The board of park commissioners shall direct the expenditure of all the income from the perpetual care funds received by them from the commissioners of sinking funds and shall approve all accounts for payment. Said board of park commissioners shall exercise a general supervision over said burial grounds, shall see that all public laws, ordinances, regulations and resolutions of the city council in relation thereto are duly enforced, and shall do all acts necessary and proper for the improvement and protection of the grounds, avenues and fences thereof.
(Ord. 1914, ch. 37, § 2; Rev. Ords. 1946, ch. 7, § 6)

***Cross references—**Board of park commissioners, § 18-29 et seq.; custody of perpetual care fund of North Burial Ground, § 21-89.

State law references—Special act relative to North Burial Ground, P.L. 1861, ch. 367, as amended by P.L. 1889, ch. 781; special act authorizing sale of portion of North Burial Ground and devotion of portion to highway purposes, P.L. 1919, ch. 1562; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Sec. 6-19. Annual report of board of park commissioners.

The board of park commissioners, annually in the month of January, shall make a report to the city council of the condition of the burial grounds under their jurisdiction, which report shall contain an accurate detailed account of all moneys expended by said board pursuant to the authority given by this chapter, and the general purposes of such expenditures, and also such other information as said board shall deem expedient.
(Ord. 1914, ch. 37, § 2; Rev. Ords. 1946, ch. 7, § 7)

Sec. 6-20. Superintendent of North Burial Ground; appointment, duties, bond, compensation.

The superintendent of the North Burial Ground shall be appointed by the board of park commissioners and shall hold his office during the pleasure of said board. He shall perform such duties, in addition to those prescribed by the ordinances of the city, as said board shall require, and shall receive such salary as said board shall determine, payable monthly from the North Burial Ground Improvement Fund, in addition to house and garden rent. He shall give bond to the city with sureties satisfactory to the board of park commissioners conditioned that he shall deposit all moneys received by him in his said capacity with the city collector.
(Ord. 1914, ch. 37, § 5; Rev. Ords. 1946, ch. 7, § 10)

Cross reference—Bonds generally, § 17-36 et seq.

Sec. 6-21. Clerk and assistant clerk; appointment, duties.

The superintendent of North Burial Ground, by and with the approval of the board of park commissioners, may appoint a clerk and an assistant clerk, who shall hold office during the pleasure of said board. Said clerk and assistant clerk shall keep all books, accounts and records which may be necessary, and shall perform such other duties as the said board of park commissioners may from time to time direct.
(Ord. 1914, ch. 37, § 6; Rev. Ords. 1946, ch. 7, § 11)

Sec. 6-22. Purchases.

The board of park commissioners shall be authorized to purchase such horses, cattle, carts and other vehicles, and all such tools and implements as may be necessary for the proper care and management of North Burial Ground. All such property, so purchased, shall belong to the city.
(Ord. 1914, ch. 37, § 4; Rev. Ords. 1946, ch. 7, § 9)

Cross reference—Purchases, contracts and sales generally, § 21-26 et seq.

Sec. 6-23. Employment of workmen.

The board of park commissioners shall be authorized to employ such workmen as they may deem necessary, to lay out and care for North Burial Ground, and to keep the lots, fences, monuments and avenues therein in proper order, and to do such other and additional work as they may contract to perform.
(Ord. 1914, ch. 37, § 4; Rev. Ords. 1946, ch. 7, § 9)

Sec. 6-24. Superintendent to maintain fences, to report violations, to act under board.

The superintendent of North Burial Ground, under the direction of the board of park commissioners, shall keep the fences around the North Burial Ground in proper repair. He shall report to the chief of police every violation of this chapter, as soon as may be, that the same may be prosecuted, and he shall act in conformity with the directions of said board of park commissioners, in all cases not otherwise especially provided for.
(Ord. 1914, ch. 37, § 8; Rev. Ords. 1946, ch. 7, § 13)

Sec. 6-25. Record of burials in North Burial Ground.

A record shall be kept, in a book to be provided for that special purpose, of all burials which are made in the North Burial Ground, stating the name, residence, occupation, age, and the date and, as near as may be, the place of interment, of each person buried, with any other circumstances which the board of park commissioners shall direct.
(Ord. 1914, ch. 37, § 7; Rev. Ords. 1946, ch. 7, § 12)

Sec. 6-26. Fees received by superintendent.

The superintendent of North Burial Ground shall receive the fees for digging all graves dug in the North Burial Ground, being the sum usually charged for such service; and also the sum of one dollar ($1.00) for making out and granting a certificate for a deed of each lot in said burial ground, except as provided in section 6-32 of this chapter; and also the sum of twenty-five cents ($0.25) for every other certificate which he may give in his official capacity. Said fees shall be paid to the superintendent by the parties for whom the service is rendered, and shall be paid over by him to the city collector on the first Monday of each month.
(Ord. 1914, ch. 37, § 9; Rev. Ords. 1946, ch. 7, § 14)

Sec. 6-27. Accounts of fees; certification of bills.

The superintendent of North Burial Ground shall keep an exact account of all fees received by him pursuant to the provisions of this chapter, and shall, on the first

Monday of each month, transmit a copy of the same to the city collector and a copy to the board of park commissioners. He shall also certify to the board of park commissioners all bills contracted by him.
(Ord. 1914, ch. 37, § 10; Rev. Ords. 1946, ch. 7, § 15)

Sec. 6-28. Lots to be held only as burial lots; transfers of lots.

No person shall take up, hold or own any lot within North Burial Ground except for the purpose of using the same in good faith for a burial lot; nor shall any transfer or sale of any lot therein be made without leave first had and obtained in writing from the board of park commissioners.
(Ord. 1914, ch. 37, § 11; Rev. Ords. 1946, ch. 7, § 16)

Sec. 6-29. Graves to be dug by superintendent or agents.

All graves within the North Burial Ground estate, including those within the proprietors' grounds, shall be dug by the superintendent of North Burial Ground or his agents and no person shall dig or commence or attempt to dig any grave in said burial grounds, except by authority of said superintendent.
(Ord. 1914, ch. 37, §§ 14, 15; Rev. Ords. 1946, ch. 7, § 19)

Sec. 6-30. Graves not to be dug in avenues or paths.

No grave shall be dug nor any body buried in or upon any avenue, path or passageway in North Burial Ground, and any body so buried shall be removed by the superintendent or by the board of park commissioners at the expense of the person burying or procuring the same to be buried.
(Ord. 1914, ch. 37, § 16; Rev. Ords. 1946, ch. 7, § 20)

Sec. 6-31. Perpetual care of certain lots.

The board of park commissioners shall have perpetual care taken of the so-called French memorial lot and also of the General Alfred N. Duffie memorial lot, situated side by side in North Burial Ground, and lot standing in the name of the Providence Association of Firemen for Mutual Assistance, the lot standing in the name of the Providence Police Association, and the lot known as the Prescott Post lot, all in North Burial Ground.
(Ord. 1914, ch. 37, §§ 18—21; Rev. Ords. 1946, ch. 7, § 22)

State law reference—Acceptance of burial lots and funds for care thereof, §§ 45-5-11, 45-5-12, Gen. Laws 1956.

Sec. 6-32. Deeds to persons providing for perpetual care.

The city treasurer is hereby authorized and directed, with the advice and consent of the board of park commissioners, to issue to any person who by himself or his predecessor in interest has had undisputed possession of a lot in North Burial Ground

for a period of forty or more years, and who desires to establish a fund for its perpetual care, a deed of such lot for the sum of one dollar ($1.00). The usual charge of one dollar ($1.00) for granting certificates for deeds issued under authority of this section is hereby waived.
(Ord. 1914, ch. 37, § 22; Rev. Ords. 1946, ch. 7, § 23)

Sec. 6-33. Permission to erect vault or tomb; commissioners alone permitted to rent.

No person shall erect or build any vault or tomb within the limits of the North Burial Ground, nor enclose any part or portion thereof, without leave first had and obtained from the board of park commissioners, which leave shall be first certified by said board to the superintendent of said grounds. No person except said board of park commissioners shall rent or let for money or other valuable consideration, or permit to be let or occupied for money or other valuable consideration, any tomb or vault or any place or apartment therein, within the limits of the North Burial Ground.
(Ord. 1914, ch. 37, § 13; Rev. Ords. 1946, ch. 7, § 18)

Sec. 6-34. Disposition of funds received.

All rents derived from North Burial Ground and all fees or rewards to the use of the city on account thereof, that shall be paid to the superintendent of said burial ground, or to any other person lawfully designated to receive the same, and all income of whatever description derived from said burial ground, shall be paid to the city collector, and together with the sums received from the sale of lots in said burial ground, shall constitute the North Burial Ground Improvement Fund.
(Ord. 1914, ch. 37, § 3; Rev. Ords. 1946, ch. 7, § 8)

Sec. 6-35. Removal of stakes, fences, etc.; injury to monuments, trees, etc.; committing trespass.

No person shall remove any stake, post, bound or fence placed around, within or upon North Burial Ground under the direction or permission of the board of park commissioners or of the superintendent, nor mutilate, deface or injure the same, or any monument, tree, shrub or other thing intended for protection, improvement or ornament placed therein, nor commit any trespass or injury within or upon said ground or any part thereof.
(Ord. 1914, ch. 37, § 12; Rev. Ords. 1946, ch. 7, § 17)

Cross reference—Malicious injury to property, § 16-4 et seq.

Chapter 7

EMERGENCY MANAGEMENT*

Sec. 7-1. Title.
Sec. 7-2. Authority.
Sec. 7-3. Purpose.
Sec. 7-4. Creation and composition of PEMA.
Sec. 7-5. Creation and composition of Providence Emergency Management Advisory Council.
Sec. 7-6. Organization and operation of the emergency operation center.
Sec. 7-7. Duties and responsibilities.
Sec. 7-8. Declaration of disaster emergency.
Sec. 7-9. Temporary suspension of formal requirements.
Sec. 7-10. Construction of chapter.
Sec. 7-11. Liability for death, injury, damage, from emergency management activities.
Sec. 7-12. Obstructing members of organization; violation of rules and regulations; unlawful wearing of insignia.
Sec. 7-13. Advance warning to public of impending hazard.
Sec. 7-14. Emergency siren warning systems.
Sec. 7-15. Powers and duties of the emergency management agency director.
Sec. 7-16. Office of homeland security.

***Editor's note—**Ord. 2012, ch. 2012-8, approved Jan. 23, 2012, amended Ch. 7 in its entirety to read as set out herein. Former Ch. 7 pertained to similar subject matter and derived from Ord. 1952, ch. 583; Ord. 1963, ch. 1536; Ord. 1978, ch. 78-22, Aug. 10, 1978; Ord. 2000, ch. 00-24, Aug. 11, 2000; Ord. 2007, ch. 07-52, Nov. 15, 2007.

State law reference—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Sec. 7-1. Title.

The chapter shall be known and may be cited as the Providence Emergency Management Agency and Office of Homeland Security (PEMA) Ordinance.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-2. Authority.

The Federal Civil Defense Act of 1950 provided the statutory authority for the Federal Civil Defense Administration. Federal Emergency Management Agency (FEMA) was established under the 1978 Reorganization Plan No. 3, and activated April 1, 1979 by President Jimmy Carter in his Executive Order 12127.

Pursuant to R.I.G.L. § 30-15-12, entitled "Local Emergency Management," each political subdivision of the State of Rhode Island has been given the authority by the state to establish a local emergency management agency. It is in the best interests of the health, safety, and welfare of the citizens of Providence that an emergency management agency be established for the city by this chapter.

The Providence Emergency Management Agency and Office of Homeland Security (PEMA) is established pursuant R.I.G.L. § 30-15-12 and the Providence Home Rule Charter, Powers of City, § 2.1 et seq.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-3. Purpose.

The primary mission of PEMA is to reduce the loss of life and property and protect the City of Providence from all hazards, including natural disasters, acts of terrorism and other manmade disasters, by leading and supporting the city in a risk-based, comprehensive emergency management system of mitigation, preparedness, response and recovery.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-4. Creation and composition of PEMA.

There shall be a Providence Emergency Management Agency and Office of Homeland Security. There shall be a director of PEMA who is appointed by the mayor. The director shall be charged with the four (4) phases of comprehensive emergency management and homeland security to include mitigation, preparedness, response and recovery with such other duties included in this chapter or as the mayor may prescribe.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-5. Creation and composition of Providence Emergency Management Advisory Council.

(a) There shall be a Providence Emergency Management Advisory Council (PEMAC) that shall consist of the following: the mayor, who shall serve as chairman of the council; the director of PEMA, who shall serve as vice-chairman; the deputy director

of PEMA, who shall perform such duties as the director may prescribe; one (1) member representing the city council; and representatives from civic, private business sector, academic community, industry, labor, veterans, professional, voluntary organization or other groups within the City of Providence, not to exceed fifteen (15) members.

(b) Members, who will be selected and appointed by the mayor (or council in the case of the council representative) to staggered two-year terms, shall receive no compensation and shall serve at the pleasure of the mayor (or council in the case of the council representative).

(c) PEMAC shall meet upon the call of either the chairman or the vice-chairman.

(d) The powers and duties of PEMAC shall include recommendation to city council, for adoption, of an emergency management plan for the city, and any and all mutual aid plans and agreements which are deemed essential for the implementation of such emergency management plan. The duties of such emergency management council shall also include a continuing study of the need for amendments and improvements in the emergency management plan adopted by the city council.

(e) Each person serving as a member of the emergency management council, or as an officer, employee or volunteer in any capacity in the emergency management organization created by ordinance pursuant to the authority herein conferred, shall, prior to assuming their duty or duties, take an oath which shall be substantially as follows:

"I _____, do solemnly swear, that I will support and defend the Constitution of the United States and the Constitution of the State of Rhode Island and the Providence Home Rule Charter; that I take this obligation freely; without any mental reservation or purpose of evasion; and that I will faithfully discharge the duties upon which I am about to enter to the best of my knowledge, so help me God.

(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-6. Organization and operation of the emergency operation center.

The operational emergency management organization of the city shall consist of the officers and employees of the city designated by the director of emergency management as well as all volunteer workers.

The functions and duties of this organization shall be distributed among such divisions, services and special staff as the city council shall prescribe by ordinance. Any such ordinance shall set forth the forms of organization, establish and designate divisions and services, assign functions, duties and powers, and designate officers and employees to carry out the provisions of this chapter. Insofar as possible, the form of

organization, title and terminology shall conform to the recommendations of the federal government and the recommendations of the emergency management agency of the State of Rhode Island.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-7. Duties and responsibilities.

PEMA shall have the responsibility for emergency management and disaster response and recovery within the city as required by the terms and conditions of this chapter.

PEMA shall have a comprehensive emergency management and homeland security program that meets current-day best practices and widely accepted national standards.

PEMA has the responsibility to lead the city's efforts to prepare for, respond to, recover from, and mitigate against the risk of natural disasters, acts of terrorism, and other manmade disasters, including catastrophic incidents.

Under the direction of the mayor, the director is responsible for PEMA planning and operations, coordinating community exercise programs, coordinating assigned emergency management activities with internal and external departments and agencies, and other assigned responsibilities.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-8. Declaration of disaster emergency.

The director shall have the authority to request the declaration of the existence of an emergency by the mayor in accordance with the Code of Ordinances, sections 2-36 and 2-37. The mayor, upon his own initiative or upon request of the director, may declare an emergency, but such action shall be subject to confirmation by the city council at its next meeting. A state of emergency declaration shall continue for a period of not more than seven (7) days after issued, unless the same is continued by a further executive order or by consent of the city council.

In the event of serious disaster, terrorist attack, sabotage or other hostile action or in the event of the imminent threat of such, the mayor may proclaim that a state of emergency exists, issue such proclamations and executive orders as deemed necessary (such as proclamations and orders to become effective only once such conditions exist), and may personally take direct operational control of any and all parts of the public safety forces and functions in the city. In addition, the mayor is hereby authorized to and empowered to:

(1) Suspend in whole or in part, by order as hereinafter provided, any statute, regulation or requirement or part thereof to be modified or suspended;

(2) Designate such vehicles and persons as shall be permitted to move and the routes which they shall follow;

(3) Take appropriate measures for protecting the health, safety and welfare of the people of the city, to prevent or minimize loss or destruction of property and the protection of life;

(4) Order the evacuation of all or in part of the population of stricken or threatened areas and take such steps as necessary for the receipt and care of such evacuees;

An order or proclamation declaring, continuing or terminating a local disaster emergency shall be given prompt and general publicity, informing the city population through local radio, television, newspapers and any other means of communication available at the time.

Upon declaration of a local disaster emergency, the applicable response and recovery aspects of the Providence's Emergency Operations Plan (EOP) shall be activated, and all provisions for aid and assistance thereunder shall be authorized.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-9. Temporary suspension of formal requirements.

Upon declaration of a disaster emergency, the mayor shall be authorized to exercise the powers granted in the chapter without regard to time-consuming procedures and formalities prescribed by law (excepting mandatory Constitutional requirements) pertaining to the performance of public work, entering into contracts, the incurring of obligations, the employment of temporary workers, the rental of equipment, the purchase of supplies and materials, the levying of taxes and the appropriation and expenditure of public funds. In addition, upon the declaration of a disaster emergency, the mayor is authorized to avail itself of the provisions pursuant to the scope of R.I.G.L. § 45-6-1 and the Providence Home Rule Charter, powers of city, section 2.1 et seq. in connection with the employment of personnel in local organizations established pursuant to the provisions of this chapter.

At all times during the existence of an actual emergency when the orders, rules and regulations made and promulgated pursuant to this chapter shall be in effect, they shall supersede all existing ordinances, orders, rules and regulations insofar as the latter may be consistent therewith, unless the city council shall otherwise determine.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-10. Construction of chapter.

This chapter shall not be so construed as to conflict with any state or federal statute or with any active duty, reserve or National Guard military orders, rules or regulations.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-11. Liability for death, injury, damage, from emergency management activities.

(a) This chapter shall be construed as an exercise by the city of its governmental functions for the protection of the public peace, health and safety, and neither the city, the agents and representatives of said city, nor any individual, receiver, firm, partnership, corporation, association, or trustee, or any of the agents thereof, in good faith carrying out, complying with or attempting to comply with, any order, rule or regulation promulgated pursuant to the provisions of this chapter shall be liable for any damage sustained to persons or property as the result of said activity.

(b) Any person owning or controlling real estate or other premises who voluntarily and without compensation grants to the city a license or privilege, or otherwise permits the city to inspect, designate and use the whole or any part or parts of such real estate or premises for the purpose of sheltering persons during an actual, impending or practice terrorist attack, together with his successors in interest, if any, shall not be civilly liable for the death of, or injury to, any person on or about such real estate or premises under such license, privilege or other permission or for loss of, or damage to, the property of such person.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-12. Obstructing members of organization; violation of rules and regulations; unlawful wearing of insignia.

It shall be unlawful for any person willfully to obstruct, hinder or delay any member of the emergency management organization in the enforcement of any rule or regulation issued pursuant to this chapter, or to do any act forbidden by any rule or regulation issued pursuant to the authority contained in this chapter. It shall likewise be unlawful for any person to wear, carry, or display any emblem, insignia, or any other means of identification as a member of the emergency management organization of the city unless authority so to do has been granted to such person by the proper officials.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-13. Advance warning to public of impending hazard.

Whenever a hazard (natural, accidental or intentional) is imminent, occurring or predicted that may affect the City of Providence, the director is hereby directed to announce publicly, at the first practicable opportunity, that said hazard may adversely affect said city, via all practicable means available to include print, radio, television, and/or internet media and further shall use emergency management to alert the citizenry starting not less than eight (8) hours in advance of the hazard's arrival over said city; the purpose of said alerts is to warn residents of said hazard in order to prepare and take precautionary actions.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-14. Emergency siren warning systems.

(a) No person shall install or operate an emergency siren warning system (ESWS) without written approval by PEMA.

(b) Any person, business or institution wishing to install an ESWS on their property is required to submit a written request for approval to PEMA and show cause for such system.

(c) Any emergency siren warning system approved by PEMA shall:

(1) Be capable of being integrated with the communication and other system requirements of PEMA;

(2) Have a common alarm, tone and sequence which satisfies the requirements of PEMA for emergency alarm notification;

(3) Be tested at a minimum internally twice a year and externally once a year; and

(4) Comply with all regulations and requirements adopted by PEMA.

(d) Any owner or operator of an approved ESWS shall:

(1) Have an implementation plan which is provided to and approved by PEMA and PEMA's emergency siren warning system advisory committee; and

(2) Undertake, at its own cost, periodic public outreach to all residents and business within auditory range regarding the approved uses, testing schedule and protocol for obtaining additional information and appropriate responses upon activation of the ESWS.

(3) Execute a memorandum of understanding in a form acceptable to the city solicitor, providing appropriate assurances that the city shall be indemnified or held harmless for losses, as described in subsection (g).

(e) Emergency siren warning system advisory committee. The emergency siren warning system advisory committee shall consist of one (1) representative from the following organizations:

(1) PEMA;

(2) City fire department;

(3) City police department;

(4) City communication division; and

(5) Others to be determined at the discretion of the director of PEMA.

(f) Yearly fee. The applicant for an ESWS shall attach to the written request for approval a check in the amount of three hundred dollars ($300.00) payable to the treasurer of the city, this being the yearly fee required for the privilege of integration of the applicant's system to the emergency management system. Such fee shall be due and payable in full on or before the first day of January of each year thereafter, but

provided that if the service is applied for during the year, the applicant shall pay only that portion of the fee which the unexpired portion of the year bears to the full fee of three hundred dollars ($300.00).

(g) City not liable for losses. The city shall not be responsible or liable and no cause of action shall arise or be asserted against said city as a result of any losses, damages or injuries of any type whatsoever, to life or property, which may arise or occur to the applicant, or the applicant's heirs, successors or assigns as a result of the failure of the ESWS to function properly or of the city's emergency management system to function properly, whether considered jointly or severally and further the city shall in no way be held liable or responsible for any damages, losses or injuries to persons or property, which may be occasioned or arise by reason of the applicant's ESWS alarm system being connected to the city emergency management system, and in any such event the city shall be held harmless.
(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-15. Powers and duties of the emergency management agency director.

(a) The PEMA director is hereby directed to:

(1) Prepare, maintain and keep current a disaster emergency plan for Providence for the prevention and minimization of injury and damage caused by disaster, for prompt and effective response to disaster and for disaster emergency relief and recovery in consonance with the Providence Emergency Management Plan;

(2) Establish, maintain, and staff an emergency operations center (EOC) for the city;

(3) Have available at its EOC all PEMA plans, rules, regulations, and orders;

(4) Establish a warning and communications system that will support local governmental operations in emergencies;

(5) Provide essential facilities and equipment to those agencies and organizations that have been assigned emergency functions under the provisions of this chapter;

(6) Provide individual and organizational training programs for emergency management volunteers and the general public to insure prompt, efficient and effective disaster emergency services;

(7) Organize, prepare, and coordinate all locally available manpower, materials, supplies, equipment and facilities necessary for disaster emergency readiness, response and recovery;

(8) Adopt and implement precautionary measures to mitigate the anticipated effects of a disaster;

(9) Execute and enforce such rules, regulations and orders as PEMA may adopt pursuant to the provisions of this chapter;

(10) Cooperate and coordinate with any public and private agencies or entities in achieving any purpose of this chapter;

(11) Execute and enforce such rules and orders as may be directed by the mayor;

(12) Make timely recommendations to the mayor and secure the consent of the responsible city officials concerning the development of plans, the acquisition of materials, supplies, and equipment and the development of a budget for the agency, except as provided for in disaster emergencies;

(13) Identify areas within Providence that are particularly vulnerable to disasters and hazards.

(b) The director assumes the overall responsibility for emergency management within the city to include:

(1) Advising the mayor on local government emergency operations and making recommendations concerning the emergency response capabilities of the city; management of the EOC to include assigning departments across the city to act as lead agencies in accordance with the EOP to fill the emergency support functions (ESF) assignments at the EOC. It is the responsibility of each department/agency to assign primary and alternate personnel to fulfill assigned duties for each ESF;

(2) Providing direction and supervision of PEMA;

(3) Responsible for ensuring compliance with federal, state, and local laws pertaining to a wide variety of areas in the field of emergency management;

(4) Responsible for the development and update of emergency response plans;

(5) Conducting risk/hazard analysis to develop emergency response plans;

(6) Conducting site visits and inspections to develop incident response plans;

(7) Developing public education programs;

(8) Assisting with incident management and coordination of multiple jurisdictional emergencies;

(9) Monitoring all potential emergency conditions and incidents that may require a multi-agency response;

(10) Maintaining department files and records;

(11) Overseeing the creation of common command and control structures and terminology, including the National Incident Management System (NIMS) and the incident command system (ICS) for managing the response to any incident;

(12) Ensuring the improvement of the flow of vital information among participating agencies to ensure clear and unambiguous instructions during incidents and day-to-day operations;

(13) Serving as the liaison between the community, state, and federal agencies on emergency management matters;

(14) Performing other related duties as assigned.

(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Sec. 7-16. Office of homeland security.

The mission of the office of homeland security (OHS) is to lead the unified local effort to secure Providence. OHS will prevent and deter terrorist attacks and protect against and respond to threats and hazards to the city. OHS will ensure safe and secure borders, welcome lawful immigrants and visitors, and promote the free flow of commerce.

The OHS is segregated into three (3) separate departments that perform unique and complementary missions. Each department is responsible for performing specific functions.

(1) PEMA, the office of homeland security for preparedness, response and recovery, shall be the lead agency for management and coordination of the city's response to acts of terrorism, natural disasters, or other emergencies. PEMA shall also lead local and private sector efforts to restore services and rebuild communities after acts of terrorism, natural disasters, or other emergencies. PEMA shall cooperate with Providence Police and Fire Departments in the planning process for developing response plans related to acts of terrorism, hazardous materials incidents or any manmade disasters.

(2) The Providence Police Department, Office of Homeland Security for Prevention and Protection shall be the lead agency for prevention, law enforcement, intelligence gathering/analysis, and tactical response to the effects of terrorism incidents. The police department shall identify and understand threats, assess vulnerabilities, determine potential impacts and disseminate timely information to our homeland security partners and the public. It shall detect, deter and mitigate threats to the city and surrounding area. The police department shall safeguard our people and their freedoms, critical infrastructure, property and the economy of our city from acts of terrorism, natural disasters, or other emergencies. The police department shall serve the public effectively by facilitating lawful trade, travel and immigration. The Providence Police Department shall cooperate with PEMA and the Providence Fire Department in the planning process for developing response plans related to acts of terrorism, hazardous materials incidents or any manmade disasters.

(3) The Providence Fire Department, Office of Homeland Security for Fire Prevention and Response shall be the lead agency for fire suppression, emergency medical services, hazardous materials and rescue response to the effects of terrorism incidents. The fire department shall develop and exercise emergency response plans to reduce the effects of terrorism, including, but not limited to:

a. The rescue, decontamination, treatment and transportation to a medical facility of injured or exposed victims;

b. The suppression and investigation of the cause of all fires;

c. The detection, mitigation and reduction of all chemical, biological, radiological and nuclear agents with the assistance of other qualified agencies;

d. Provide rescue and EMS support to all active shooters and IED incidents. The Providence Fire Department Hazardous Materials Team shall screen and transport to the Rhode Island Department of Health for identification all suspicious powders as per state protocols. The Providence Fire Department shall cooperate with PEMA and the Providence Police Department in the planning process for developing response plans related to acts of terrorism, hazardous materials incidents or any manmade disasters. The Providence Fire Department shall participate in the prevention and protection process by participating in identifying critical infrastructure and hazardous sites that exist in or are adjacent to the city and conducting risk analysis based on threats, vulnerabilities and consequences of terrorist acts on these sites.

(Ord. 2012, ch. 2012-8, § 1, 1-23-12)

Chapter 8

COURTS*

Article I. In General

Sec. 8-1. Return of warrants issued by justice of municipal court.
Sec. 8-2. Disposition of fines, costs, fees in municipal court.
Sec. 8-3. Certification, payment of fees due witnesses in municipal court.
Sec. 8-4. Annual report of clerk of municipal court; required, contents.
Sec. 8-5. Scheduling of municipal court sessions in the evenings.
Sec. 8-6. Days for holding court for transaction of probate business.
Sec. 8-7. Days for special sessions of probate court.
Sec. 8-8. Place for holding probate court.
Sec. 8-9. Microfilming records of probate court.
Sec. 8-10. Reserved.

Article II. Housing Court

Sec. 8-11. Short title.
Sec. 8-12. Purpose of article.
Sec. 8-13. Establishment of court; jurisdiction, seal; oaths.
Sec. 8-14. Powers of housing court.
Sec. 8-15. Sessions.
Sec. 8-16. Housing court registry.
Sec. 8-17. Tenure of justice, filling of vacancy.
Sec. 8-18. Administration of operation of housing court.
Sec. 8-19. Rules of practice and procedure.
Sec. 8-20. Housing court administrator.
Sec. 8-21. Vacancy in office of housing court administrator.
Sec. 8-22. Bond of housing court administrator and clerk.
Sec. 8-23. Authority and duties of clerks.
Sec. 8-24. Report of trials; transcripts.
Sec. 8-25. Appeal.
Sec. 8-26. Annual appropriations.
Sec. 8-27. Housing court fees.
Sec. 8-28. City exempt from fees.

***Cross references—**General penalties for Code violations, § 1-10; city sergeant to serve writs, summons and other legal processes, § 2-175; penalties for traffic violations, payment of parking fine, etc., § 15-2 et seq.; reward for apprehension of person violating § 16-4, § 16-5.

State law reference—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

ARTICLE I. IN GENERAL

Sec. 8-1. Return of warrants issued by justice of municipal court.

All warrants issued by any justice of the municipal court and placed in the hands of an officer for service shall be returned, if not served, to the justice issuing the same, within three (3) months from the date thereof.
(Ord. 1914, ch. 44, § 1; Rev. Ords. 1946, ch. 9, § 1; Ord. 1991, ch. 91-15, § 1, 4-26-91)

Sec. 8-2. Disposition of fines, costs, fees in municipal court.

(a) All fines, costs or fees accruing in any case in the municipal court shall be paid by any defendant or other person in his behalf to the clerk of the municipal court; and after paying to the witnesses in such case all fees due and unpaid to them, said clerk shall make return and payment of the balance, if any remains, to the city collector as provided by law.

(b) The municipal court shall be authorized to impose an additional fee in the amount of two dollars ($2.00) per ticket issued. The payment of said fee shall be included as a technology surcharge fee applicable to all tickets issued under the jurisdiction of the municipal court.
(Ord. 1929, ch. 714; Rev. Ords. 1946, ch. 9, § 2; Ord. 1991, ch. 91-15, § 1, 4-26-91; Ord. No. 2024-32, § 1, 6-25-24)

Sec. 8-3. Certification, payment of fees due witnesses in municipal court.

The clerk of municipal court shall, on application, give certificates of the amount of fees due to witnesses other than the chief of police or police constables, who may have been summoned as witnesses in cases tried before the municipal court, whenever the costs in such cases have not been paid by the defendant or other person in his behalf. The city controller, upon presentation of such certificates, shall draw upon the city collector in payment of the amount thereof and take receipts therefor.
(Ord. 1929, ch. 714, § 2; Rev. Ords. 1946, ch. 9, § 3; Ord. 1991, ch. 91-15, § 1, 4-26-91)

Sec. 8-4. Annual report of clerk of municipal court; required contents.

The clerk of the municipal court shall make a detailed report to the city council on the first Monday in January annually of the business done by said court during the preceding year, and failure to make such report shall render such clerk ineligible for reappointment.
(Ord. 1929, ch. 714, § 3; Rev. Ords. 1946, ch. 9, § 4; Ord. 1991, ch. 91-15, § 1, 4-26-91)

Sec. 8-5. Scheduling of municipal court sessions in the evenings.

The justices of the municipal court are authorized, by a vote of the majority of the justices, to schedule municipal court sessions in the evening.
(Ord. 1991, ch. 91-15, § 1, 4-26-91)

Sec. 8-6. Days for holding court for transaction of probate business.

For the transaction of probate business, or business to be done by a court of probate only, the judge of the probate court shall hold said court on Tuesday and Thursday of each week; provided that in the months of July and August in each year, the regular sessions of said court shall be held on the second and fourth Tuesdays and on the Thursdays next following second and fourth Tuesdays in said months; and provided, also, that whenever any such day is a legal holiday then said court shall be held on the day next following.
(Ord. 1925, ch. 455, § 1; Rev. Ords. 1946, ch. 9, § 5; Ord. 1991, ch. 91-15, § 2, 4-26-91; Ord. 1995, ch. 95-9, § 1, 6-9-95)

Cross reference—Seal of probate court, § 2-346.

State law reference—Special act fixing fees of probate court, P.L. 1932, ch. 1970.

Sec. 8-7. Days for special sessions of probate court.

Special sessions of the probate court may be held on such days as the judge of said court shall appoint.
(Ord. 1929, ch. 689, § 1; Rev. Ords. 1946, ch. 9, § 6; Ord. 1991, ch. 91-15, § 2, 4-26-91)

Sec. 8-8. Place for holding probate court.

The probate court shall be held in the city hall or at such place in the city as the judge of said court shall appoint.
(Ord. 1914, ch. 36, § 2; Rev. Ords. 1946, ch. 9, § 7; Ord. 1991, ch. 91-15, § 2, 4-26-91)

Sec. 8-9. Microfilming records of probate court.

The clerk of the probate court is hereby authorized to microfilm the original records of the proceedings of the probate court hereafter filed in said court, and to microfilm the reproductions of the original records of said probate court proceedings, which reproductions have heretofore been contained in bound volumes on file in said court. The microfilm shall be on paper that complies with the minimum standards of quality approved for photographic records by the National Bureau of Standards. After completion of said microfilming all original records and bound volumes

containing the reproductions thereof may be put in storage for safekeeping in such place as may be decided, by the city council. A microfilms record shall be placed in conveniently accessible files in the probate court.
(Ord. 1962, ch. 1500, § 1; Ord. 1991, ch. 91-15, § 2, 4-26-91)

Sec. 8-10. Reserved.

ARTICLE II. HOUSING COURT*

Sec. 8-11. Short title.

This article shall be known and may be cited as "the Housing Court Act."
(Ord. 1987, ch. 87-29, § 1(8.1-1), 9-17-87)

Sec. 8-12. Purpose of article.

This article shall be liberally construed to the end that all the people be housed in dwellings that are safe, sanitary and fit for human habitation; and that levels of residential environmental quality be achieved and maintained as will protect and promote the health, safety and general welfare of the people of the City of Providence.
(Ord. 1987, ch. 87-29, § 1(8.1-2), 9-17-87)

Sec. 8-13. Establishment of court; jurisdiction; seal; oaths.

There is hereby established a housing court, consisting of a chief judge and two (2) associate justices to hear and determine all actions brought before it by the enforcing officer concerning violations of state and local housing laws and ordinances, the Rhode Island State Building Code, the Providence Zoning Ordinance and all actions brought for the prevention thereof, and to hear and determine any other action brought to promote, protect or enhance the residential environmental quality of the people.

The housing court shall commence October 1, 1987. Upon commencement, the housing court shall assume jurisdiction over all matters then pending in district court, or remanded to district court pursuant to court order.

The housing court shall be a court of record and shall have a seal which shall contain such words and devices as the court shall adopt.

***Editor's note—**Ord. 1987, ch. 87-29, § 1, approved Sept. 17, 1987, added Ch. 8.1, §§ 8.1-1—8.1-16, to the Code. At the discretion of the editor, and in order to maintain the alphabetical sequence of chapters in the Code, said Ch. 8.1, §§ 8.1-1—8.1-16, have been included as Art. II, §§ 8-11—8-26, of Ch. 8. The existing provisions of Ch. 8, being §§ 8-1—8-8, have been designated Art. I.

The judges, housing court administrator and clerks of the housing court will have the power to administer oaths and affirmations.
(Ord. 1987, ch. 87-29, § 1(8.1-3), 9-17-87; Ord. 1988, ch. 88-34, § 1, 8-10-88; Ord. 1989, ch. 89-19, § 1, 8-15-89)

Sec. 8-14. Powers of housing court.

The housing court shall be a court of city wide jurisdiction; and no order, decree, judgment, sentence, warrant, writ or process made issued or pronounced by it need set out any adjudication or circumstances with greater particularity than would be required in courts of superior and general jurisdiction. The writs, subpoenas, citations, orders, notices, executions and all other processes issued by the housing court shall be under the seal of the housing court, signed by the housing court administrator, or an assistant clerk and bear the signature of the judge or a justice of the housing court and shall run throughout the state.

In all matters within its jurisdiction, the housing court shall have equity powers, including the power to grant temporary restraining orders and preliminary injunctions as justice and equity may require. Notwithstanding the foregoing, the housing court shall only have the jurisdiction and power to order a dwelling into receivership pursuant to section 34-44-3 when petitioned to do so by the city or the Providence Redevelopment Agency.
(Ord. 1987, ch. 87-29, § 1(8.1-4), 9-17-87; Ord. No. 2021-7, § 1, 3-25-21)

Sec. 8-15. Sessions.

The housing court shall conduct business in Providence Monday through Friday and shall be in session at least three (3) times per week at such times and under such conditions as the chief judge of the housing court may from time to time direct. This court shall meet not less than twice per month for evening sessions.
(Ord. 1987, ch. 87-29, § 1(8.1-5), 9-17-87)

Sec. 8-16. Housing court registry.

Within the housing court there shall be a registry, to be administered by the housing court administrator, which shall receive and disburse all payments by direction of the court, voluntary payments, and those made pursuant to the minimum standards housing ordinances; which shall be regularly promptly paid over the city treasurer.
(Ord. 1987, ch. 87-29, § 1(8.1-6), 9-17-87)

Sec. 8-17. Tenure of justice; filling of vacancy.

The justices of the housing court shall be appointed by the mayor with approval of the city council and upon the oath of office administered by the mayor for a term of

three (3) years, said term to expire on the first Monday of March three (3) years following appointment, and shall hold office during good behavior as provided for by Section 1206 of the Providence Home Rule Charter.
(Ord. 1987, ch. 87-29, § 1(8.1-7), 9-17-87; Ord. No. 2019-2, § 1, 2-26-19)

Sec. 8-18. Administration of operation of housing court.

The chief judge of the housing court shall be administrative judge of said court and shall be the head of said court and have supervision and control of the calendars and the assignment of justices. All court stenographers and secretaries shall be under the supervision of the chief judge whose duty it shall be to gather such statistics as shall reflect accurately the work of the court, for the information of the court and such other use as may be deemed expedient. The chief judge shall also be charged with general responsibility for any recommendations that may be important for the work of said court or any officers in any way connected therewith.
(Ord. 1987, ch. 87-29, § 1(8.1-8), 9-17-87)

Sec. 8-19. Rules of practice and procedure.

The housing court, through its chief justice may from time to time, make and promulgate rules for regulating practice and conducting business therein. In all matters wherein the housing court is authorized or directed to make or promulgate rules, said court shall have the authority, until such time as such rules may be promulgated, to provide by order in special cases.
(Ord. 1987, ch. 87-29, § 1(8.1-9), 9-17-87)

Sec. 8-20. Housing court administrator.

There shall be a housing court administrator for the City of Providence, who shall be appointed by the mayor and upon the oath of office administered by the mayor for a term not to exceed four (4) years and shall hold office during good behavior as provided for by Section 1206 of the Providence Home Rule Charter.
(Ord. 1987, ch. 87-29, § 1(8.1-10), 9-17-87)

Sec. 8-21. Vacancy in office of housing court administrator.

In case of a vacancy in the office of housing court administrator, from any cause, the mayor shall appoint some person to fill such vacancy for the unexpired term, and until their successor is appointed and qualified.
(Ord. 1987, ch. 87-29, § 1(8.1-11), 9-17-87)

Sec. 8-22. Bond of housing court administrator and clerk.

The clerks of the housing court shall, before entering upon the duties of their office, give bond to the treasurer in a sum to be fixed by said treasurer, not less than

two thousand dollars ($2,000.00), nor more than ten thousand dollars ($10,000.00), with surety satisfactory to them in form approved by the city solicitor, conditioned faithfully to discharge the duties of their office according to law.
(Ord. 1987, ch. 87-29, § 1(8.1-12), 9-17-87)

Sec. 8-23. Authority and duties of clerks.

In addition to any other authority or duties provided by this article, the housing court administrator and clerk shall have the authority and carry out the duties with respect to the housing court that are exercised or performed by the clerks of the district courts in housing matters.
(Ord. 1987, ch. 87-29, § 1(8.1-13), 9-17-87)

Sec. 8-24. Report of trials; transcripts.

A court stenographer, except where a tape recording device is employed, shall report stenographically the proceedings in the trial of every action or proceeding in the housing court. If ordered to do so by the judge, the stenographer shall transcribe the report and file same with the papers in the case. The stenographer shall also make a transcript of the whole or any part of such report upon the written request filed with the clerk, by either party to such action or proceeding; and when completed and within the time limited by the court for filing the same, shall immediately deliver the same to the party ordering it, to the attorney of record of such party and for such service shall be paid a reasonable compensation to be allowed by the court; and in case the transcript is used in subsequent proceedings in the case, the cost of the same may be allowed as part of the costs.
(Ord. 1987, ch. 87-29, § 1(8.1-14), 9-17-87)

Sec. 8-25. Appeal.

Any party aggrieved by a final judgment, decree, or order of the court, may within twenty (20) days, petition the supreme court of Rhode Island for a writ of certiorari to review any errors of law involved. The petition for a writ of certiorari shall set forth the errors of law claimed by the petition.

Upon the filing of a petition with the clerk of the supreme court, the supreme court may, if it sees fit, issue a writ of certiorari to the housing court to certify to the supreme court the record of the proceedings in the case together with any transcript of the proceeding furnished by the petitioner at their expense.
(Ord. 1987, ch. 87-29, § 1(8.1-15), 9-17-87)

Sec. 8-26. Annual appropriations.

The city council shall annually appropriate such sums as shall be necessary to carry out the purposes of this article, and the city controller is hereby authorized

and directed to draw their order on the treasurer for the payment of such sum, or so much thereof as may be required from time to time, upon receipt by them of duly authenticated vouchers approved by the chief judge of the housing court.
(Ord. 1987, ch. 87-29, § 1(8.1-16), 9-17-87)

Sec. 8-27. Housing court fees.

The housing court shall be allowed the following fees in full, to be taxed in the bill of costs of every civil action:

For entry of every civil action, or petition..... $100.00
(Ord. 1993, ch. 93-7, § 1, 2-12-93)

Sec. 8-28. City exempt from fees.

The City of Providence, its departments, agencies, boards and commissions shall not be required to pay any fees, including appeal fees, to the housing court or the clerk thereof, provided however, that fees and charges authorized by law shall nevertheless be taxable as costs.
(Ord. 1993, ch. 93-7, § 1, 2-12-93)

Chapter 9

FIRE PREVENTION AND PROTECTION*

Article I. In General

Sec. 9-1. Rules and regulations of fire department.
Sec. 9-2. Powers of fire department officers at fire; assistance from inhabitants.
Sec. 9-3. Riding or climbing upon fire apparatus.
Sec. 9-4. Taking fire department property out of city.
Sec. 9-5. Parades.
Sec. 9-6. Injuring fire hose or apparatus.
Sec. 9-7. Obstructing fire escapes, passageways, doors, windows.
Sec. 9-8. Burning at dumping grounds.
Sec. 9-9. Burning in streets or highways.
Sec. 9-10. Refuse, rubbish, waste to be burned in covered receptacle.
Sec. 9-11. Fire drills in schools.
Secs. 9-12—9-15. Reserved.

Article I½. Fire Prevention Code

Sec. 9-16. Fire prevention code adopted, incorporated by reference.
Secs. 9-17—9-21. Reserved.

Article II. Bureau of Fire Prevention

Sec. 9-22. Establishment, control, operation and maintenance.
Sec. 9-23. Chief of bureau.
Sec. 9-24. Assistant inspectors.
Sec. 9-25. Duty to enforce laws, ordinances, regulations.

***Cross references—**Egress requirements of certain occupancies, § 5-2; convalescent and nursing homes and similar establishments, § 5-13 et seq.; placing combustible refuse on vacant land, etc., § 12-56; preparation of such refuse for collection, § 12-62; permit fees for bulk storage of petroleum products, § 14-8; motor vehicle repair business to meet applicable fire code and fire safety regulations, § 14-265; smoking on buses, § 16-14.

State law references—State fire laws, Chs. 23-28—23-30, 23-32, 23-35, 23-37, Gen. Laws 1956; state law giving council authority to make regulations for prevention of fire, § 45-6-1, Gen. Laws 1956; special act authorizing reimbursement of persons suffering damages caused by fire apparatus, P.L. 1912, Ch. 874; special act authorizing appointment of honorably discharged soldiers and sailors to fire department, P.L. 1920, Ch. 1929; state law as to regulations regarding manufacture, sale, storage and inspection of petroleum, and inflammable and explosive fluids, §§ 23-36-5—23-36-12, Gen. Laws 1956.

Sec. 9-26. Recommendation of ordinances for protection against fire.
Sec. 9-27. Chief of fire department to prepare instructions, forms for reports.
Sec. 9-28. Investigation of cause and origin of fires.
Sec. 9-29. City solicitor to assist inspectors.
Sec. 9-30. Report of fires to bureau; required, contents.
Sec. 9-31. Records and statistics as to fires.
Sec. 9-32. Annual report of bureau; required, contents.
Sec. 9-33. Inspection of hazardous processes, explosives and inflammables, other hazards.
Sec. 9-34. Inspections of buildings and premises.
Sec. 9-35. Inspection, report of hazards.
Sec. 9-36. Inspection of buildings, receptacles, places where inflammables stored.
Sec. 9-37. Inspection of dumping grounds and places where waste, rubbish is placed.
Sec. 9-38. Right of entry.
Sec. 9-39. Interfering with inspection.
Sec. 9-40. Order to remove waste accumulations.
Sec. 9-41. Effect of failure to remove waste, accumulations on order.
Sec. 9-42. Lien for cost of removal of waste, accumulations.
Sec. 9-43. Service of orders and notices.
Sec. 9-44. Emergency situations, unforeseen circumstances not covered by statutes, ordinances.
Sec. 9-45. Fire prevention inspection fees.
Secs. 9-46—9-53. Reserved.

Article III. Explosives and Inflammables

Sec. 9-54. License required for manufacturing.
Sec. 9-55. Conditions of license for manufacturing.
Sec. 9-56. Issuance, duration of license for manufacturing.
Sec. 9-57. License required for storage.
Sec. 9-58. Issuance, duration of license for storage.
Sec. 9-59. Conditions of license for storage.
Sec. 9-60. Storage limited to fifty pounds in first building district.
Sec. 9-61. Exception to storage restrictions for pharmacists and celluloid.
Sec. 9-62. Exception to storage requirements for dynamite for blasting.
Sec. 9-63. Increased danger from storage of explosive or inflammable wastes.
Sec. 9-64. Transportation of high explosives.
Sec. 9-65. Chemicals made dangerous by contact with heat, water, moisture or each other.
Sec. 9-66. Manufacture, use of acetylene.
Sec. 9-67. Naphtha, gasoline, benzine, benzol or other hydrocarbon—Storage, use.
Sec. 9-68. Same—Keeping vehicles using same.

Sec. 9-69. Same—Use in stationary engines, devices.
Sec. 9-70. Appeals from decisions of bureau of fire prevention under sections 9-67 and 9-68.
Sec. 9-71. Application of provisions to steamship and railroad agencies.
Sec. 9-72. Expiration of permits by limitation.
Sec. 9-73. Drainage of tanks abandoned by filling station.
Sec. 9-74. Permit required for blasting.
Sec. 9-75. Issuance of blasting permit.
Sec. 9-76. Revocation of blasting permit.
Sec. 9-77. Inspection of buildings in area where explosives are used in construction.
Sec. 9-78. Self-service motor fuel dispensing stations.
Sec. 9-79. Motor fuel dispensing stations.
Sec. 9-80. Definitions.
Sec. 9-81. Prohibition on sale and use of fireworks.
Sec. 9-82. Permits.
Sec. 9-83. Violations.
Sec. 9-84. Enforcement.
Secs. 9-85—9-90. Reserved.

Article IV. Connection of Private Alarm Systems with City System

Sec. 9-91. Application procedure.
Sec. 9-92. Yearly fee.
Sec. 9-93. City not liable for losses.
Sec. 9-94. Excessive avoidable false fire alarm fees.
Sec. 9-95. Disconnect/reconnect charge.
Secs. 9-96—9-100. Reserved.

Article V. Charges for Emergency Medical Services

Sec. 9-101. Fees.
Sec. 9-102. Billing.
Sec. 9-103. Administration.
Sec. 9-104. Severability.

ARTICLE I. IN GENERAL

Sec. 9-1. Rules and regulations of fire department.

The commissioner of public safety as head of the fire department shall make such rules and regulations for the government of the officers and members of the fire department as he may deem advisable, and may establish such penalties for the violation of any such rule or regulation as he may consider necessary and proper for the enforcement of discipline and the due subordination of the members of the department. He shall also make suitable regulations under which the officers and members shall be required to wear appropriate uniforms and badges as the exigencies of their duties may require, and by which, in case of fire, and at other times, the authority and relation of such officers and members shall be known. Every member of the department shall be furnished with a copy of such rules and regulations as are in force.

(Ord. 1914, ch. 21, § 5; Rev. Ords. 1946, ch. 12, § 1)

Editor's note—P.L. 1951, ch. 2723, § 12, abolished bureau of police and fire.

Sec. 9-2. Powers of fire department officers at fire; assistance from inhabitants.

The officers of the fire department on duty at a fire shall have the power to suppress any tumult or disorder, and to order all individuals or companies to leave the neighborhood of any fire, and to command from the inhabitants of the city all needful assistance in the suppression of fires, and in the preservation of property exposed to fire. It shall be unlawful for any person to neglect or refuse to render assistance when lawfully called upon to do so by any of said officers at a fire, or to refuse to obey any lawful order of any officer, or to insult, menace or interfere with any officer or man connected with the department while on duty at a fire.

(Ord. 1923, ch. 360, § 2; Rev. Ords. 1946, ch. 12, § 2)

State law reference—Police authority of officers of fire companies, §§ 23-37-1, 23-37-2, Gen. Laws 1956.

Sec. 9-3. Riding or climbing upon fire apparatus.

It shall be unlawful for any person other than the persons lawfully permitted, to ride or climb upon any fire apparatus belonging to the city and connected with the fire department, while the same shall be going to or returning from a fire, or an alarm of fire, or to climb or remain upon any fire apparatus belonging to the city and connected with the fire department, after being ordered to desist or remove therefrom, by the person in charge.

(Ord. 1914, ch. 21, § 9; Rev. Ords. 1946, ch. 12, § 3)

Sec. 9-4. Taking fire department property out of city.

No property connected with the fire department shall be taken out of the city, unless by order of the mayor, or one of the members of the department.
(Ord. 1914, ch. 21, § 11; Rev. Ords. 1946, ch. 12, § 4)

Sec. 9-5. Parades.

No public parade shall be made by the fire department or by any part or portion thereof, except with the consent of the commissioner of public safety as head of the fire department.
(Ord. 1914, ch. 21, § 11; Rev. Ords. 1946, ch. 12, § 4)

Sec. 9-6. Injuring fire hose or apparatus.

It shall be unlawful for any person wantonly or maliciously to cut or otherwise injure any fire hose or apparatus belonging to the city and connected with the fire department.
(Ord. 1914, ch. 21, § 7; Rev. Ords. 1946, ch. 12, § 30½)

Cross reference—Malicious injury, § 16-4 et seq.

Sec. 9-7. Obstructing fire escapes, passageways, doors, windows.

No person shall place or deposit or cause or permit to be placed or deposited any object or thing which, in any way, obstructs the free and easy passage of fire escapes, stairs, passageways, doors or windows or which will in any way interfere with the operations of the fire department or the egress of occupants in said building in case of fire.
(Ch. 12, § 30.16, added by Ord. 1947, ch. 1617, § 14)

Sec. 9-8. Burning at dumping grounds.

No owner, lessee, occupant or person in general charge of any dumping place or ground, shall burn or suffer to be burned thereon, and no person shall ignite or burn thereon, any dead leaves, grass, weeds, empty boxes, crates, barrels, branches, limbs of trees, clothing, refuse, rubbish or waste materials or substances of any kind whatsoever, without placing in charge thereof a person over eighteen (18) years of age, to guard and attend such fire.
(Ch. 12, § 30.20, added by Ord. 1947, ch. 1617, § 17)

Sec. 9-9. Burning in streets or highways.

No owner, lessee, occupant or person in charge of any building or dwelling shall burn or permit to be burned, and no person shall ignite or burn in any street or

highway within the limits of the city, any dead leaves, grass, weeds, empty boxes, crates, barrels, branches, limbs of trees, clothing, refuse, rubbish or waste materials or substances of any kind whatsoever.
(Ch. 12, § 30.21, added by Ord. 1947, ch. 1617, § 18)

Cross references—Lighting, building or making fire in parks, § 18-17; lighting, building or making fires, § 23-27.

Sec. 9-10. Refuse, rubbish, waste to be burned in covered receptacle.

No person shall burn or cause to be burned any refuse, rubbish or waste material.

Burning of clean cut firewood, or other clean burning fuel for personal enjoyment, is permitted in a safe, covered receptacle.

Special event burning such as water fire shall be permitted by permit.
(Ch. 12, § 30.22(b), added by Ord. 1947, ch. 1617, § 19; Ord. 1951, ch. 513, § 1; Ord. 2007, ch. 07-34, 7-19-07)

Sec. 9-11. Fire drills in schools.

It shall be the duty of private, public and parochial schools and educational institutions to have one fire drill each month and to keep all doors and exits unlocked during school hours.
(Ch. 12, § 30.25, added by Ord. 1947, ch. 1617, § 22)

Secs. 9-12—9-15. Reserved.

ARTICLE I½. FIRE PREVENTION CODE*

Sec. 9-16. Fire prevention code adopted, incorporated by reference.

The "Fire Prevention Code" incorporated herein by reference shall be and the same is hereby adopted.
(Ord. 1968, ch. 68-49, 7-18-68)

Editor's note—The fire prevention code is not included herein, but is published separately.

Secs. 9-17—9-21. Reserved.

***Editor's note—**Ch. 68-49, enacted July 18, 1968, did not expressly amend this Code nor the ordinances from which this Code is derived, hence codification of § 1 as Art. I½, § 9-16, was at the discretion of the editors. Sec. 2, the repealer, was deleted.

ARTICLE II. BUREAU OF FIRE PREVENTION*

Sec. 9-22. Establishment, control, operation and maintenance.

The commissioner of public safety shall be authorized to establish, control, operate and maintain a bureau of fire prevention, to be operated under the direct supervision of the chief of the fire department.
(Ch. 12, § 30.1, added by Ord. 1947, ch. 1617, § 1)

Sec. 9-23. Chief of bureau.

The commissioner of public safety shall designate an officer or member of the fire department as chief of the bureau of fire prevention, who shall hold this office at the pleasure of the commissioner of public safety.
(Ch. 12, § 30.2, added by Ord. 1947, ch. 1617, § 1)

Sec. 9-24. Assistant inspectors.

The chief of the fire department may detail such number of assistant inspectors as shall from time to time be authorized by the commissioner of public safety.
(Ch. 12, § 30.3, added by Ord. 1947, ch. 1617, § 1)

Sec. 9-25. Duty to enforce laws, ordinances, regulations.

(a) It shall be the duty of the bureau of fire prevention to enforce all laws of the state and ordinances of the city, and all regulations that have or shall be adopted by the commissioner of public safety covering the following:

(1) The prevention of fires.

***Editor's note—**Ord. 1947, Ch. 1617, from which this article is derived, provided in § 26 thereof that Ch. 12, §§ 9—30 of the Revised Ordinances of 1946, derived from Ord. 1944, Ch. 1286 and providing for a bureau of fire prevention, be repealed.

Cross references—Egress requirements of certain occupancies, § 5-2; fire department, personnel thereof, §§ 17-15, 17-16; overtime and callback pay in fire department, §§ 17-60—17-63; benefits payable for death of fireman in line of duty, § 17-67; entitlement of firemen to disability compensation, §§ 17-77—17-79; annual vacations, § 17-96; benefits for widows, § 17-128 et seq.

State law references—State law giving council authority to regulate for prevention of fire, § 45-6-1, Gen. Laws 1956; fire safety code, Ch. 23-28.1 et seq., Gen. Laws 1956.

(2) The storage of petroleum and petroleum products in bulk, the storage of dangerous chemicals, the storage and use of all other explosive and flammables of whatever name or nature, as provided by Chapter 1079, Ordinances of 1956, the building ordinance, as amended.*

(3) The installation and maintenance of automatic and other fire alarm systems, and fire extinguishing equipment.

(4) The condition and accessibility of exits in case of fire, from factories, schools, hotels, lodginghouses, asylums, hospitals, churches, halls, theatres, amphitheatres, and all other places in which numbers of persons work, live or congregate, from time to time, for any purpose.

(5) The investigation of the cause, origin, and circumstances of fires.

(b) The bureau of fire prevention shall have such other powers and perform such other duties as are set forth in other sections of this chapter and as may be conferred and imposed from time to time by law and regulations adopted by said commissioner of public safety. The chief of the fire department may delegate any of his powers or duties under this chapter to the chief of the bureau of fire prevention.
(Ch. 12, § 30.4, added by Ord. 1947, ch. 1617, § 2)

Sec. 9-26. Recommendation of ordinances for protection against fire.

It shall be the duty of the chief of the fire department to investigate the need of, and to recommend to the commissioner of public safety such additional ordinances, or amendments to existing ordinances or regulations, as he may deem necessary for safeguarding life and property against fire, and said commissioner of public safety shall make such recommendations to the city council or may adopt such regulations as he may deem in the interest of public safety.
(Ch. 12, § 30.5, added by Ord. 1947, ch. 1617, § 3)

Sec. 9-27. Chief of fire department to prepare instructions, forms for reports.

The chief of the fire department shall prepare instructions for the chief of the bureau of fire prevention and his assistants, and forms for their use in the reports required by this article.
(Ch. 12, § 30.6, added by Ord. 1947, ch. 1617, § 4)

***Editor's note—**The building ordinance is not included in this publication, but will be found on file in the office of the city clerk. See § 5-1, preserving the building ordinance from repeal.

Sec. 9-28. Investigation of cause and origin of fires.

(a) The bureau of fire prevention shall investigate the cause, origin and circumstances of every fire occurring in the city by which property has been destroyed or damaged and, so far as possible, shall determine whether the fire is the result of carelessness or design.

(1) Such investigations shall begin immediately upon the occurrence of such a fire, by the assistant inspector in whose district the fire occurs.

(2) If it appears to the assistant inspector making the investigation that the fire is of suspicious origin, the chief of the fire department shall be immediately notified of the fact; he shall take charge immediately of the physical evidence, shall notify the proper authorities designated by law to pursue the investigation of such matters, and shall further cooperate with the authorities in the collection of evidence and in the prosecution of the case.

(b) The Fire Chief of the City of Providence, or a designee, shall report any structure damaged by fire to the Director of Inspection and Standards, and furnish a fire report no later than twenty-four (24) hours following the extinguishment of the fire, accompanied by a recommendation with proposed measures to insure reasonable safety.

(c) Upon receipt of a report from the Fire Chief regarding a structure damaged by fire, the Director of Inspections and Standards, or a designee, shall inspect said structure no later than twenty-four (24) hours following the receipt of such a report.

(d) The Director of Inspections and Standards shall ensure that any structure classified as a public safety hazard and/or a general safety threat to the community is secured immediately following such a classification and/or determination.

(1) The burden of securing such a structure shall be placed upon the owner of the property.

(2) The owner of a property classified as a public safety hazard and/or general safety threat to the community shall secure the said property within seven (7) days of such a classification.

(3) In the event that an owner of a structure classified as a public safety hazard and/or general safety threat fails to secure such property, the Director of Inspections and Standards, or a designee, shall secure the structure and charge the owner of the aforementioned property with any and all applicable expenses necessary to secure the structure.

(Ch. 12, § 30.7, added by Ord. 1947, ch. 1617, § 5; Ord. 2008, ch. 08-47, § 1, 11-20-08)

Sec. 9-29. City solicitor to assist inspectors.

The city solicitor, upon request of the bureau of fire prevention, shall assist the inspectors in the investigation of any fire which, in their opinion, is of suspicious origin.
(Ch. 12, § 30.24, added by Ord. 1947, ch. 1617, § 21)

Cross reference—City solicitor, § 2-98 et seq.

Sec. 9-30. Report of fires to bureau; required, contents.

Every fire shall be reported in writing to the bureau of fire prevention within two (2) days after the occurrence of the same, by the assistant inspector in whose jurisdiction such fire has occurred. Such report shall be in such form as shall be prescribed by the chief of the fire department, and shall contain a statement of all facts relating to the cause, origin and circumstances of such fire, the extent of the damage thereof, if such property is insured, and such other information as may be required.
(Ch. 12, § 30.8, added by Ord. 1947, ch. 1617, § 5)

Sec. 9-31. Records and statistics as to fires.

The chief of the fire department shall keep, in the office of the bureau of fire prevention, a record of all fires and of all the facts concerning the same, including statistics as to the extent of such fires and the damage caused thereby, and whether such losses were covered by insurance. Such record shall be made daily from the reports made by the inspectors under the provisions of this chapter. All such records shall be public records.
(Ch. 12, § 30.26, added by Ord. 1947, ch. 1617, § 23)

Sec. 9-32. Annual report of bureau; required, contents.

The annual report of the bureau of fire prevention shall be made on or before the 31st day of January in each year, and transmitted to the commissioner of public safety. It shall contain all proceedings under this chapter with such statistics as the chief of the fire department may wish to include therein.
(Ch. 12, § 30.27, added by Ord. 1947, ch. 1617, § 24)

Sec. 9-33. Inspection of hazardous processes, explosives and inflammables, other hazards.

The chief of the fire department, chief of the bureau of fire prevention or assistant inspectors specially designated thereto shall inspect, as often as may be necessary, but not less than four (4) times a year, all hazardous manufacturing processes, storages or installations of acetylene or other gases, chemicals, oils, explosives and flammable materials, all interior fire alarms and automatic sprinkler systems, and such other

hazards or appliances as the chief of the fire department shall designate for the purpose of enforcing the laws and ordinances governing the same, and for safeguarding of life and property from fire.
(Ch. 12, § 30.9, added by Ord. 1947, ch. 1617, § 6)

Sec. 9-34. Inspections of buildings and premises.

It shall be the duty of the chief of the fire department to inspect, or cause to be inspected by the bureau of fire prevention, or by the fire department officers and members as often as may be necessary, but not less than twice a year in outlying districts and four (4) times a year in the closely built portions of the city all buildings and premises except the interiors of private dwellings for the purpose of ascertaining and causing to be corrected any conditions liable to cause fire or to increase danger to life or limb in case of fire, or any violations of the provisions or intent of any ordinance of the city or regulations adopted by the commissioner of public safety affecting the fire hazard, and the danger therefrom.
(Ch. 12, § 30.10(A), added by Ord. 1947, ch. 1617, § 7; Ord. 1949, ch. 217, § 1)

Sec. 9-35. Inspection, report of hazards.

The chief of the fire department, the chief of the bureau of fire prevention, or any inspector, upon the complaint of any person or whenever he or they shall deem it necessary, shall inspect all buildings and premises within their jurisdiction. Said officer or inspectors may enter any building or premises except the interior of private dwellings upon complaint or whenever he or they shall have cause to believe that a fire hazard exists or that the provisions of this chapter are being violated. Whenever any of said officers shall find any building or other structure which, for want of repairs, lack of sufficient fire escapes, or by reason of age or dilapidated condition, or from any other cause, is especially liable to fire and which is so situated as to endanger other property or the occupants thereof, a report of the hazardous conditions shall be submitted to the inspector of buildings for his consideration.
(Ch. 12, § 30.11, added by Ord. 1947, ch. 1617, § 8)

Sec. 9-36. Inspection of buildings, receptacles, places where inflammables stored.

Before licenses may be issued for the keeping, storage, use, manufacture, sale, handling, or other disposition of highly flammable or explosive materials and rubbish, crude petroleum or any of its products, the chief of the fire department, the chief of the bureau of fire prevention, or assistant inspectors shall inspect and approve the receptacles, vehicles, buildings or storage places to be used for any such purpose. Nothing herein contained shall be in conflict with Article II, Part B of the Building Ordinance of the city, Chapter 1079 of the Ordinances of 1956, as amended.
(Ch. 12, § 30.14, added by Ord. 1947, ch. 1617, § 11)

Editor's note—The building code is not included in this publication but will be found on file in the office of the city clerk. See § 5-1, preserving the building ordinance from repeal.

Sec. 9-37. Inspection of dumping grounds and places where waste, rubbish is placed.

The chief of the fire department or the chief of the bureau of fire prevention may cause to be inspected all dumping places or grounds within the limits of the city, where dead leaves, grass, weeds, branches or limbs of trees, old clothing, refuse, rubbish or waste materials of any kind are placed or deposited, and when said chief deems that said articles, rubbish or waste materials are so placed or deposited as to increase the danger of fire or the spreading of fire to adjacent property, said chief may order the owner, lessee, occupant or person having general charge of said premises to remove said articles, rubbish or waste materials.
(Ch. 12, § 30.22(a), added by Ord. 1947, ch. 1617, § 19; Ord. 1951, ch. 513, § 1)

Cross reference—Garbage, trash and refuse, § 12-46 et seq.

Sec. 9-38. Right of entry.

The chief of the fire department, the chief of the bureau of fire prevention, or any assistant inspector may, at all reasonable hours, enter any building or premises within his jurisdiction for the purpose of making any inspection or investigation which, under the provisions of this chapter, he or they may deem necessary to be made, except the interior of private dwellings used and occupied as homes.
(Ch. 12, § 30.12, added by Ord. 1947, ch. 1617, § 9)

Sec. 9-39. Interfering with inspection.

It shall be unlawful for any person to refuse to allow an inspection of the premises as aforesaid, or to hinder, obstruct or prevent the fire chief or his assistants from making such inspection as provided for herein.
(Ch. 12, § 30.13, added by Ord. 1947, ch. 1617, § 10)

Sec. 9-40. Order to remove waste accumulations.

The chief of the bureau of fire prevention may, in writing, order every owner, lessee, occupant or any person having charge of premises described in this article, to remove said materials, waste, or rubbish or accumulations thereof, from said premises within three (3) days from the receipt of said order. If any person shall fail, neglect or refuse to remove said materials, waste or rubbish in compliance with the order, said chief shall cause the same to be removed.
(Ch. 12, § 30.17, added by Ord. 1947, ch. 1617, § 15)

Cross reference—Garbage, trash and refuse, § 12-46 et seq.

Sec. 9-41. Effect of failure to remove waste, accumulations on order.

In case an inflammable, combustible or explosive material, waste or rubbish shall not be removed within three (3) days from the receipt of the order as provided in section 9-40 the chief shall cause the same to be removed from such premises, and he

shall thereupon cause notice in writing of the cost and expense of such removal to be given to such owner, lessee, occupant or person in charge of such premises, and he shall also certify the amount thereof to the city solicitor, and if such cost and expense shall not be paid by the person to whom said notice is directed within thirty (30) days, recovery of the same may be had in an action of the case brought by said city collector, against such owner, lessee, occupant or person in charge of the premises.
(Ch. 12, § 30.18, added by Ord. 1947, ch. 1617, § 16)

Cross reference—Garbage, trash and refuse, § 12-46 et seq.

Sec. 9-42. Lien for cost of removal of waste, accumulations.

The city shall have a lien on any materials caused to be removed as provided in section 9-41 until the cost and the expense of removing same shall be paid. If the same shall not be paid within six (6) months, then said materials may be sold by said city collector at public or private sale after first advertising at least once in any newspaper published in the city.
(Ch. 12, § 30.19, added by Ord. 1947, ch. 1617, § 16)

Cross reference—Garbage, trash and refuse, § 12-46 et seq.

Sec. 9-43. Service of orders and notices.

Service of any order authorized by this chapter shall be made upon either the owner, occupant or person in charge of the premises affected. Said notice may be served upon the owner, occupant or person in charge of the premises affected by personally serving the order upon the person to be served; or by leaving said order at the last known abode of the person to be served with some person living there; or by mailing said order to the last known address of the person to be served.
(Ch. 12, § 30.23, added by Ord. 1947, ch. 1617, § 20)

Sec. 9-44. Emergency situations, unforeseen circumstances not covered by statutes, ordinances.

Under emergency situations or under unanticipated contingencies or unforeseen circumstances, where life or fire safety may be involved and in lieu of no specific provision by state statute or city ordinance to govern a particular situation, it shall be deemed to be the right of the chief of the fire department and/or in his absence or inability the fire marshal, to rule on same, pending the adoption of specific statutes, ordinances or rules or regulations thereto.
(Ord. 1971, ch. 71-60, § 1, 10-26-71)

Editor's note—Ord. 1971, Ch. 71-60, § 1, is included herein as § 9-44 at the discretion of the editors.

Sec. 9-45. Fire prevention inspection fees.

The fire department shall assess an inspection fee of one hundred dollars ($100.00) per inspection for any inspection performed by the department pursuant to sections

9-33, 9-34, 9-35, 9-36 of the Providence Code of Ordinances or any provision of the state fire code including any rule or regulation of the state fire marshal. In the case of any commercial, industrial, manufacturing, educational, religious or governmental use, the fee shall be payable by the licensee of the property inspected if the occupant of the property inspected holds any license issued by the board of licenses, otherwise the fee shall be payable by the lessee of the property inspected or, if none, then by the owner of the property. In the case of any residential property, the fee shall payable by the owner of the property.

The fee shall be waived if, after inspection, no violation of any provision of the Providence Code of Ordinances or the state fire code including any rule or regulation of the state fire marshal has been found. Each subsequent reinspection shall constitute an inspection for which a separate fee of $100.00 shall be payable. The foregoing fee waiver provision shall not apply in the case of any inspection required for the board of licenses for the issuance or transfer of any license under its jurisdiction. No inspection fee shall be assessed against the city, or any department, board, or commission thereof.
(Ord. 2003, ch. 03-46, § 1, 8-1-03)

Secs. 9-46—9-53. Reserved.

ARTICLE III. EXPLOSIVES AND INFLAMMABLES*

Sec. 9-54. License required for manufacturing.

No person shall manufacture for sale, use or other purpose any gun cotton, dynamite, nitroglycerine, nitrogelatine, lyddite, cordite, fulminate or other high

*__Cross references—__Egress requirements of certain occupancies, § 5-2; permit fees for bulk storage of petroleum products, § 14-8; turning inflammables and hot water into sewers, § 25-1; depositing rubbish, other waste in sewers, § 25-2.

__State law references—__For law permitting council to make regulations as to explosives, etc., § 23-36-1, Gen. Laws 1956; further provisions as to licensing manufacture of explosives by councils, ch. 5-9, Gen. Laws 1956; fireworks and firecrackers, § 11-47-5 et seq., Gen. Laws 1956; special act regulating storage of petroleum, kerosene, gasoline, etc., in excess of twenty-one thousand gallons, P.L. 1920, ch. 1958, as amended by P.L. 1922, ch. 2251; special act relative to storage, safekeeping and transportation of gunpowder, Act of Oct. 30, 1821; special act relative to storage of cotton waste, Act of June 25, 1847; special act relative to fireworks, P.L. 1885, ch. 520; special act regulating storing of lime, Act of Feb. 26, 1805; state law as to regulations regarding manufacture, sale, storage and inspection of petroleum and inflammable and explosive fluids, §§ 23-36-5—23-36-12, Gen. Laws 1956; fire safety code, ch. 23-28.1 et seq., Gen. Laws 1956; authority of city to prohibit automatic dispensing of petroleum products, §§ 23-36-13—23-36-16, Gen. Laws 1956.

explosive or any substance a part of which shall be gun cotton, dynamite, nitroglycerine, nitrogelatine, picric acid, lyddite, cordite, fulminate, or other high explosive within the city, unless a license for the same shall be first obtained from the city council.
(Ord. 1914, ch. 19, § 1; Rev. Ords. 1946, ch. 11, § 1)

Annotations—In granting a license under this section the board of aldermen of the City of Providence was exercising the authority delegated to it by the state and were not acting as agents of the city. **Miller v. Clarke, 47 R. I. 13, 129 A. 606, 608.**

In empowering the City of Providence to prohibit the manufacture, storing, and keeping of high explosives within the limits of that municipality the General Assembly to that extent conferred upon the city a portion of the police power of the state. **Miller v. Clarke, 47 R. I. 13, 129 A. 606, 608.**

The exercise of the power and authority to prohibit conferred upon the city was entirely discretionary. In the exercise of this delegated discretionary or semi-judicial power, in the absence of an express provision to the contrary, the city is not subject to civil liability just as the sovereign is not. **Miller v. Clarke, 47 R. I. 13, 129 A. 606, 608.**

State law reference—Act regulating manufacture, sale, disposition, use and possession of explosives, ch. 5-9, Gen. Laws 1956.

Sec. 9-55. Conditions of license for manufacturing.

Each license for manufacturing issued hereunder shall be subject to such conditions and limitations as from time to time shall be prescribed by ordinance or by law, and may be revoked at any time at the pleasure of the city council.
(Ord. 1914, ch. 19, § 1; Rev. Ords. 1946, ch. 11, § 1)

Sec. 9-56. Issuance, duration of license for manufacturing.

Every license for manufacturing issued hereunder shall be signed by the clerk of the council and shall be for a term of one (1) year from the date thereof, unless sooner revoked by order of said city council.
(Ord. 1914, ch. 19, § 1; Rev. Ords. 1946, ch. 11, § 1)

Sec. 9-57. License required for storage.

No person, other than manufacturers licensed as aforesaid, shall store, keep or have in possession for any purpose or use, in any building or place within the city more than one pound of gun cotton, dynamite, nitroglycerine, nitrogelatine, lyddite, cordite, fulminate or other high explosive, or more than one pound of any compound or substance, a part of which is gun cotton, dynamite, nitroglycerine, nitrogelatine, picric acid, lyddite, cordite, fulminate or other high explosive, unless a license for the same shall be first obtained from the city council.
(Ord. 1914, ch. 19, § 2; Rev. Ords. 1946, ch. 11, § 2)

Sec. 9-58. Issuance, duration of license for storage.

Every license for storage issued hereunder shall be signed by the clerk of council and shall be for the term of one (1) year from the date thereof, unless sooner revoked by order of the city council.
(Ord. 1914, ch. 19, § 2; Rev. Ords. 1946, ch. 11, § 2)

Sec. 9-59. Conditions of license for storage.

Each license for storage issued hereunder shall be subject to such conditions and limitations as from time to time shall be prescribed by ordinance or by law, and may be revoked at any time at the pleasure of the city council.
(Ord. 1914, ch. 19, § 2; Rev. Ords. 1946, ch. 11, § 2)

Sec. 9-60. Storage limited to fifty pounds in first building district.

No person subject to the provisions of sections 9-54 to 9-59 shall store, keep or have in possession for any purpose or use more than fifty (50) pounds in the aggregate of any one or more of said substances within the first building district in the city.
(Ord. 1914, ch. 19, § 2; Rev. Ords. 1946, ch. 11, § 3)

Sec. 9-61. Exception to storage restrictions for pharmacists and celluloid.

The provisions of sections 9-57 to 9-59 hereof shall not apply to the storing, keeping or having in possession for any purpose or use of a ten per centum (10%) or weaker solution of nitroglycerine by pharmacists, or the combination of gun cotton or other explosive in what is known as celluloid.
(Ord. 1914, ch. 19, § 2; Rev. Ords. 1946, ch. 11, § 4)

Sec. 9-62. Exception to storage requirements for dynamite for blasting.

Sections 9-57 to 9-59 hereof shall not apply to the storing, keeping or having in possession of any dynamite or other explosive, while being used for blasting according to and in the manner prescribed by permission granted by the director of public works pursuant to sections 9-74 to 9-76 of this chapter, or in accordance with the requirements specified in any contract made by the director of public works, or permit issued by him, under authority of law.
(Ord. 1914, ch. 19, § 2; Rev. Ords. 1946, ch. 11, § 5)

Sec. 9-63. Increased danger from storage of explosive or inflammable wastes.

No person shall place or deposit or cause to be placed or deposited at, in or upon any premises, any inflammable, combustible or explosive materials, waste or rubbish or accumulations thereof which increase the danger of fire to the premises upon which they are placed or deposited or increase the danger of spread of fire to adjacent

property or to the occupants of the same, either by reason of the amount or quantity placed or deposited, or by reason of the manner and method in which they are placed or deposited.
(Ch. 12, § 30.15, added by Ord. 1947, ch. 1617, § 13)

Sec. 9-64. Transportation of high explosives.

No person shall transport any high explosives in, on or through any street within the city except in a vehicle with springs suitable for such purpose; and said licensee shall stamp or mark all packages of said high explosives sold by him so as to plainly indicate the dangerous nature of said package, and shall also instruct the purchaser or his agent of the dangerous nature of said package and of the requirements of this section as to transportation. No company or person shall carry any high explosive in any motor bus within the city limits.
(Ord. 1914, ch. 19, § 3; Rev. Ords. 1946, ch. 11, § 6)

Sec. 9-65. Chemicals made dangerous by contact with heat, water, moisture or each other.

No person shall store, keep or have in possession for any purpose or use in any building or place within the city, in any manner which shall be dangerous to the public safety, any chemicals which are made dangerous by contact with heat, water, moisture, or with each other. No quantity of sodium peroxide, calcium carbide or other chemicals, which are made dangerous by contact with water or moisture, shall be stored or kept below the ground floor of any building, nor shall any sodium peroxide or calcium carbide be stored or kept except in airtight metal cans.
(Ord. 1914, ch. 19, § 4; Rev. Ords. 1946, ch. 11, § 7)

Sec. 9-66. Manufacture, use of acetylene.

No person shall manufacture or use acetylene gas within the city, unless such person shall first notify the bureau of fire prevention of the city of the place or location where such manufacture or use is to be carried on, and unless the apparatus used and the method of installation shall comply with the requirements of the American Insurance Association, successor to the National Board of Fire Underwriters.
(Ord. 1914, ch. 19, § 5; Rev. Ords. 1946, ch. 11, § 8)

Sec. 9-67. Naphtha, gasoline, benzine, benzol or other hydrocarbon—Storage, use.

(a) No person shall store, keep or have in possession for any purpose or use, in any building or place within the city, more than five (5) gallons of naphtha, gasoline, benzine, benzol or other hydrocarbon that will flash or inflame at a less temperature than one hundred ten (110) degrees Fahrenheit, unless such person shall have first filed with the bureau of fire prevention a statement of the maximum quantity of the same to be kept, stored or had in possession, and of the place where and manner in

which the same is to be kept, stored or had in possession by such person, and unless said bureau, with regard to the public safety, shall have first approved in writing the maximum quantity, place where, and manner in which the same is to be stored, kept or had in possession, and the same shall not be stored, kept or had in possession by such person in any greater quantity, or in any other place or manner than as specified in said approval, but any such approval may be rescinded at any time at the pleasure of said bureau.

(b) Not more than five (5) barrels in the aggregate of any one or more of said substances shall be stored or kept in any building or place within the first building district of said city, except in a steel tank or tanks, which shall be located underground, the top of which if located in any building shall be below the level of the lowest floor or basement in the building containing the same, and all pipes of which shall be arranged to drain back into the supply tank; or if in the opinion of said bureau of fire prevention, the public safety will be as well or better protected by having said tank or tanks in any particular location, otherwise than underground, then in such other location as may be approved in writing by said bureau, but any such approval may be rescinded at any time at the pleasure of said bureau.

(c) Nothing in this section shall apply to the storing or keeping of naphtha, benzine, gasoline or other hydrocarbon in the tanks of vehicles using the same for fuel or motive power.

(Ord. 1915, ch. 101, § 1; Rev. Ords. 1946, ch. 11, § 9)

State law reference—By special act, P.L. 1920, ch. 1958, as amended by P.L. 1922, ch. 2251, storage of petroleum, kerosene, gasoline, etc., in excess of twenty-one thousand gallons is regulated.

Sec. 9-68. Same—Keeping vehicles using same.

No person shall have, store, or keep in any one building within said city more than three (3) vehicles using naphtha, benzine, gasoline or other product of petroleum that will flash or inflame at a less temperature than one hundred ten (110) degrees Fahrenheit, for fuel or motive power, unless such person shall have first filed with the bureau of fire prevention a statement of the number of such vehicles to be there had, stored or kept, the place where and the manner in which the same are to be there had, stored or kept, and unless said bureau, with regard to the public safety, shall have first approved in writing the place where and the manner in which the same are to be there had, stored or kept, and the same shall not be there had, stored or kept in any greater number, or in any other place or manner, than as specified in said approval, but any such approval at any time may be rescinded at the pleasure of said bureau.

(Ord. 1914, ch. 19, § 7; Rev. Ords. 1946, ch. 11, § 10)

Sec. 9-69. Same—Use in stationary engines, devices.

No stationary engine, motor or other stationary apparatus or device using naphtha, benzine, gasoline or other product of petroleum that will flash or inflame at a less

temperature than one hundred ten (110) degrees Fahrenheit, the supply tank of which contains more than two (2) gallons of the same, shall be installed, operated or used within the city unless the apparatus used and the method of installation shall comply with the requirements of the American Insurance Association, successor to the National Board of Fire Underwriters, and unless the bureau of fire prevention shall be notified in writing by the person installing, operating, or using the same of the place of the location of the same.
(Ord. 1914, ch. 19, § 8; Rev. Ords. 1946, ch. 11, § 11)

Sec. 9-70. Appeals from decisions of bureau of fire prevention under sections 9-67 and 9-68.

Before any decision of the bureau of fire prevention shall become final, either as to refusing or rescinding its approval under the provisions of sections 9-67 and 9-68 hereof, the person aggrieved may appeal to the city council by filing his reasons for appeal with the clerk of the council within seven (7) days from the time of notice to such person of the decision of said bureau of fire prevention, and the council, after giving such appellant an opportunity to be heard, shall approve or disapprove of the decision of said bureau; if approved, the same shall be final and binding upon such person from the date of such approval, and if disapproved, said bureau of fire prevention shall give its approval or cancel its action rescinding its approval.
(Ord. 1914, ch. 19, § 10; Rev. Ords. 1946, ch. 11, § 12)

Sec. 9-71. Application of provisions to steamship and railroad agencies.

The provisions of this article shall not apply to any of the articles or substances specified herein, while they are in the possession of railroad or steamship companies, except in motor buses as provided in section 9-64 hereof, for the purpose of transportation, unless the same shall be held voluntarily by them as warehousemen.
(Ord. 1914, ch. 19, § 12; Rev. Ords. 1946, ch. 11, § 13)

Sec. 9-72. Expiration of permits by limitation.

All permits granted for the erection, alteration or enlarging of any structure or part thereof to be used for the sale or storage of petroleum, kerosene, gasoline, coal tar or their products, compounds, or components at the end of six (6) months shall expire by limitation unless work thereunder shall be commenced within said period and prosecuted with reasonable diligence from the time such work is commenced.
(Ord. 1931, ch. 816, § 1; Rev. Ords. 1946, ch. 11, § 14)

Sec. 9-73. Drainage of tanks abandoned by filling station.

Whenever any tank located on the premises of a public gasoline filling station, and used for the storage of gasoline or other inflammable liquids, shall be abandoned or its use discontinued, the owner or operator of the premises shall thoroughly drain and

clean the tank in order to effectively remove its entire contents including any sediment therein. Such draining and cleaning shall be in a manner and by a process satisfactory to the inspector of buildings of the city.
(Ord. 1943, ch. 1197, § 1; Rev. Ords. 1946, ch. 11, § 15)

Sec. 9-74. Permit required for blasting.

No person shall use any powder, dynamite or other explosive for blasting within the limits of the city except upon permission therefor duly granted by the director of public works, in writing, and not revoked as hereinafter provided, upon application made to him for that purpose, setting forth the location at which it is proposed to do such blasting, and upon such terms, conditions and restrictions as shall be imposed by said director.
(Ord. 1914, ch. 49, § 19; Rev. Ords. 1946, ch. 11, § 16)

Sec. 9-75. Issuance of blasting permit.

The director of public works is hereby authorized to grant permission in writing to any person to use explosives for blasting at any place within the limits of the city, provided, in his opinion, such blasting can be done with safety to persons and property, upon such conditions and under such regulations and restrictions as he shall impose. Said director may require a bond in such amount and with such surety or sureties to his satisfaction as he shall deem sufficient, such bond to be given to said director for the benefit of any person who may suffer any damage by reason of the exercise of such permission to use explosives for blasting, conditioned to pay all damages and all costs of suits and losses and expenses of every name and nature which shall accrue to or be suffered by any person by reason of the exercise of such permission to engage in blasting, as aforesaid.
(Ord. 1914, ch. 49, § 20; Rev. Ords. 1946, ch. 11, § 17)

Sec. 9-76. Revocation of blasting permit.

The director of public works is hereby authorized at any time to revoke any permission by him theretofore granted for the use of explosives for blasting, whenever, in his opinion, the safety of persons or property shall require such revocation, or whenever permission so granted by him shall by any person thereby authorized have been exercised in violation of any rule, regulation or restriction imposed by said director.
(Ord. 1914, ch. 49, § 21; Rev. Ords. 1946, ch. 11, § 18)

Sec. 9-77. Inspection of buildings in area where explosives are used in construction.

Whenever in the course of the construction of highways or sewers or in the performance of other official duties, it becomes necessary for any city agency or department to use or supervise the use of explosives for blasting, the director of public

works shall, prior to the blasting, designate a representative from his department to inspect the buildings in the surrounding area for the purposes of ascertaining the condition of their foundations and the walls and ceilings therein, and to file with said director of public works a written report concerning the same.
(Ord. 1941, ch. 1060, § 1; Rev. Ords. 1946, ch. 11, § 19)

Sec. 9-78. Self-service motor fuel dispensing stations.

Definition; regulatory provisions. Self-service stations are defined as "that portion of property where flammable and combustible liquids used as motor fuels are stored, and subsequently dispensed from fixed equipment into the fuel tanks of motor vehicles by persons other than service station attendants, and shall include facilities available for the sale of other retail products," and the operation of such stations shall be subject to the following provisions:

(a) *Self-service dispensers:* A remote controlled dispensing device approved by the authority having jurisdiction. The coin and/or the card operated type are not acceptable in the City of Providence.

(b) *Attendant required:* All self-service stations shall have at least one qualified attendant on duty while the station is open to the public. During all times that class 1 liquids are actually being dispensed, the attendant's primary function shall be to supervise, observe and control the dispensing of said liquids. It shall be the responsibility of the attendant to prevent the dispensing of class 1 liquids into portable containers unless the container is constructed of metal or approved plastic, or is approved by the authority having jurisdiction, has a tight closure with screwed or spring cover, and is fitted with a spout or so designed that the contents can be poured without spilling. It shall also be the responsibility of the attendant to control sources of ignition, and to immediately handle accidental spills and fire extinguishers if needed. The attendant or supervisor on duty shall be capable of performing the functions and assuming the responsibilities covered in this section.

(c) *Attendant's control and supervision:* At self-service stations, the attendant shall be required to remain within arm's length distance of the remote controlled console, at all times while class 1 liquids are being dispensed. A "post-payment operation" is advocated to insure the attendant's compliance with the foregoing provision.

(d) *Emergency controls:*

(1) A main power shut-off switch or switches shall be installed at a location not more than fifteen (15) feet from the attendant's principal control location, and not more than one hundred (100) feet from the dispensers.

(2) A fixed fire extinguisher system suitable for the extinguishment of class B (flammable liquid) fires, acceptable to the authority having jurisdiction, and covering the entire gasoline dispensing area, shall be installed at each

self-service station. Said system shall be capable of being activated, either manually or automatically; however, if it is to be activated manually, the triggering device shall not be more than fifteen (15) feet from the attendant's principal control location and not more than one hundred (100) feet from the dispensers. Activation of the fixed fire protection system shall automatically shut off the power supply to the dispensing devices on the island involved.

"The entire gasoline dispensing area" referred to above is construed to mean the area encompassing the self-service island. If however, an adjacent attended island (normally serviced by a regular attendant dispensing motor fuel) is in too close proximity to the self-service island in the opinion of the authority having jurisdiction, then a fixed fire protection system may be required there also.

(e) *Operation instructions:* Instructions for the operation of the dispensers shall be conspicuously posted on either the dispenser or the dispenser island.

(f) *Emergency procedures:* A list of emergency procedures and instructions shall be conspicuously posted at the immediate vicinity of the attendant's principal control location.

(g) *Clear observation:* The dispensing operation shall at all times be in clear view of the attendant, and the placing or allowing of any obstacle to come between the dispensing operation and the attendant, so as to obstruct the attendant's view, is prohibited.

(h) *Delivery nozzles:* Hose nozzle valves used at self-service islands shall be an approved automatic closing type without a latch-open device.

(i) *Voice communication control:* A voice communication system, such as, but not limited to, an intercom system, so as to allow direct voice communication at all times between the person dispensing the fuel and the attendant, shall be required.

(j) *Warning sign:* On each and every dispenser island shall be conspicuously posted, the following words of warning:

(1) WARNING . . . IT IS UNLAWFUL TO DISPENSE GASOLINE INTO ANY PORTABLE CONTAINER UNLESS THE CONTAINER IS CONSTRUCTED OF METAL OR IS APPROVED BY THE FIRE DEPARTMENT.

(2) NO SMOKING.

(3) SHUT OFF MOTOR WHILE MOTOR FUEL IS BEING DISPENSED.

(Ord. 1971, ch. 71-59, § 1, 10-26-71)

Editor's note—Ord. 1971, ch. 71-59, § 1, did not expressly amend this Code, hence inclusion herein as § 9-78 was at the discretion of the editors.

Sec. 9-79. Motor fuel dispensing stations.

All motor fuel dispensing stations shall have on their premises, and available to all patrons of said station, regular patrons or other, whether making a purchase or not, facilities for dispensing of free air and/or water; and the same shall be in working order during hours of operation of said station.
(Ord. 1979, ch. 79-5, § 1, 2-22-79)

Sec. 9-80. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Fireworks means any of the following: (i) consumer fireworks, as they are defined in American Pyrotechnics Association Standard (APA) 87-1 2001 Edition section 2.7.1; and (ii) ground based and hand held sparkling devices (non-aerial fireworks) as defined in APA 87-1 2001 Edition section 3.1.1 and 3.5, including fountains, illuminating torches, wheels, ground spinners, flitter sparklers, sparkers; novelties, which are defined in the APA 87-1 2001 Edition section 3.2 and include party poppers, snappers, toy smoke devices, snakes, glow worms, wire sparklers, and dipped sticks; paper caps containing not more than twenty-fire hundredth (0.025) grains of explosive mixture ammunition to be consumed by weapons used for sporting and hunting purposes; and model rockets and model rocket engines designed, sold, and used for the purpose of propelling recoverable aero models. For purposes of this section, fireworks does not mean commercial fireworks or pyrotechnics, as those terms are defined by R.I.G.L. §§ 23-28.1-2 and 23-28.11-3.

Vendor means any business, person, or entity engaged in the sale or distribution of fireworks within the City of Providence.
(Ord. No. 2016-52, § 1, 12-12-16)

Sec. 9-81. Prohibition on sale and use of fireworks.

No person shall sell, offer for sale, use or explode, or display or cause to be exploded for exhibition or amusement, fireworks without first obtaining a permit pursuant to section 9-82.
(Ord. No. 2016-52, § 1, 12-12-16)

Sec. 9-82. Permits.

(a) *Vendor permit*. A vendor shall apply for a Providence Fireworks Vendor Permit pursuant to this section. The fee to obtain a Providence Fireworks Vendor Permit shall be fifty dollars ($50.00). An application for a Providence Fireworks Vendor Permit shall be submitted in writing to the office of the board of licenses and shall include the name of the applicant, the name of the applicant's business, and

the location of where the fireworks will be sold. A vendor must submit a separate application for each location where fireworks will be sold. A vendor permit is valid for one (1) year.

(b) *User permit*. Any person who wishes to use or explode, or display or cause to be exploded for exhibition or amusement, fireworks, shall apply for a Providence Fireworks User Permit pursuant to this section. The fee to obtain a Providence Fireworks User Permit shall be twenty-five dollars ($25.00). An application for a Providence Fireworks User Permit shall be submitted in writing to the office of the board of licenses, include the name of the applicant and include all locations where the fireworks will be used. A user permit is valid for twenty-four (24) hours.
(Ord. No. 2016-52, § 1, 12-12-16)

Sec. 9-83. Violations.

Anyone found to be in violation of the provisions of this section relating to the selling or offering for sale of fireworks shall be subject to a civil fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). Anyone found to be in violation of the provisions of this chapter relating to use or exploding, or displaying or causing to be exploded for exhibition or amusement, of fireworks shall be subject to a civil fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00).
(Ord. No. 2016-52, § 1, 12-12-16)

Sec. 9-84. Enforcement.

The authority to enforce this ordinance is vested in the Providence Police Department.
(Ord. No. 2016-52, § 1, 12-12-16)

Secs. 9-85—9-90. Reserved.

ARTICLE IV. CONNECTION OF PRIVATE ALARM SYSTEMS WITH CITY SYSTEM*

Sec. 9-91. Application procedure.

All firms, corporations, hospitals, churches or other qualified structures which wish to secure themselves better fire protection by connecting their privately owned

---

***Editor's note—**Ord. 1981, ch. 87-59, §§ 1, 2, 4—6, approved Nov. 27, 1981, did not expressly amend the Code; therefore, codification as Art. IV, §§ 9-91—9-95, has been at the discretion of the editor. Section 3, allowing previously connected premises thirty days to accept or reject continued service, has been omitted.

Cross reference—Department of communication, §§ 2-124—2-128, public service engineer's authority over fire alarm system, § 2-233.

master box fire alarm systems with the city's fire alarm system, and those who are required by the Rhode Island Fire Safety Code to connect, are currently connected to the city's fire alarm system without charge or obligation to them, shall hereafter be governed by the following uniform rules and regulations in regard to such matter:

(1) Any firm, corporation, etc., desiring to connect its privately owned master box fire alarm system with the city's fire alarm system shall make application for such service to the director of communications on an application form provided by the communications department office, and which shall generally provide the name of the applicant, type and location of the applicant's private fire alarm system, deposit of required yearly fee as provided below, agreement to pay all necessary costs which shall be thereafter estimated by the director of communications, agreement to make regular tests of the system and other regulations which the director of communications deems necessary according to standards governing such installations as required by the Rhode Island Fire Safety Code, and the City of Providence.

(2) After such application has been presented to the director of communications, he or one of his duly authorized representatives shall inspect the applicant's premises and his fire alarm system to assure compliance with standards set by the Rhode Island Fire Safety Code and the City of Providence. The representative shall determine a cost estimate of labor and materials necessary to connect the private system to the nearest usable municipal connection, this in turn will be presented to the applicant for payment. If payment is not made within ten (10) days of receipt of this estimate, his application shall be considered withdrawn.

(3) Detailed plans of the system must be submitted both to the communications department and to the electrical inspection department for approval, and necessary permits must be obtained prior to start of work. Any portion of the work that is necessary to effect the connection to the municipal circuits must be done by or under the direction of the communications department.

(Ord. 1981, ch. 81-59, § 1, 11-27-81)

Sec. 9-92. Yearly fee.

The applicant for this service shall attach to his or her application a check payable to the treasurer of the city, for the yearly fee required for each individual master box number in an applicant's system for the privilege of maintenance and connection to the city's fire alarm system. Such fee shall be due and payable in full on or before the first day of January of each year, but provided that if the service is applied for during the year, the applicant shall pay only that portion of the fee which the unexpired portion of the year bears to the full fee. The director of communications shall annually set the amount of this fee in an amount that recovers the cost to the city for the service rendered to the users, not to exceed five hundred dollars ($500.00). The

director of communications may also record a lien against the real property for any unpaid charges under this section, and the lien shall be enforced in the same manner provided or authorized by law for enforcement of common law liens on personal property. An exemption for financial hardship may be granted by either the commissioner of public safety or by a majority vote of the city council.
(Ord. 1981, ch. 81-59, § 2, 11-27-81; Ord. 2007, ch. 07-38, § 1, 7-25-07; Ord. 2011, ch. 2011-31, § 1, 7-19-11; Ord. 2014, ch. 2014-4, 3-13-14; Ord. 2014, ch. 2014-27, § 1, 7-14-14)

Sec. 9-93. City not liable for losses.

The City of Providence shall not be responsible or liable and no cause of action shall arise or be asserted against said city as a result of any losses, damages or injuries or any type whatsoever, to life or property, which may arise or occur to the applicant, his heirs, successors or assigns as a result of the failure of the applicant's fire alarm system to function properly or of the city's fire alarm system to function properly, whether considered jointly or severally and further the city shall in no way be held liable or responsible for any damages, losses or injuries to persons or property, which may be occasioned or arise by reason of the applicant's fire alarm system being connected to the city fire alarm system, and in any such event the city shall be held harmless.
(Ord. 1981, ch. 81-59, § 4, 11-27-81)

Sec. 9-94. Excessive avoidable false fire alarm fees.

(a) Findings.

(1) The city council finds that high incidence of false alarms and/or malfunctions causes a significant diversion of the manpower and resources of the fire department by causing the dispatch of units to the scene of a false alarm or alarm malfunction which renders them out of service and unavailable to respond to legitimate emergency situations.

(2) The city council finds that the continued high incidence of false alarms and/or malfunctions are a threat to the health, safety and welfare of the citizens of the city.

(3) The city council finds that a revision of the procedures to control excessive multiple false alarms and alarm malfunctions would serve the public health, safety and welfare.

(b) Definitions.

Avoidable false alarm means the activation of any alarm which results in the response of the fire department and is caused by the negligence or intentional misuse (including such activation caused by heat, smoke or fire) of the system by

the owner or his/her/its employees, servants, agents or guests or any other activation including activation caused by heat, smoke or fire, but shall exclude a false alarm malfunction as defined below.

Avoidable fire alarm malfunction means the activation of any alarm which results in the response of the fire department and such activation is caused by mechanical failure, malfunction, improper installation or lack of proper maintenance; and for any other response for which the fire department personnel are unable to gain access to the premises for any reason, or are unable to determine, after reasonable inquiry, the apparent cause of the alarm activation.

(c) The owner of any premises shall be responsible for any avoidable false alarms and avoidable false alarm malfunctions occurring at those premises. Incidents shall be cumulative for all realty held in that name, and fines for avoidable false alarms and avoidable false alarm malfunctions will be assessed to the owner of the premises according to the following fine schedule:

Incidents	*Fees*
0—3	$0.00
4—10	150.00
10—30	200.00 per incident
In excess of 50	300.00 per incident

(d) After three (3) avoidable false alarms or avoidable false alarm malfunctions in one (1) twelve-month period, the owner of the premises will be notified via first class mail that subsequent avoidable false alarms will cause the owner to be assessed fines according to the fine schedule included in this section.

(e) A grievance board will be formed consisting of two (2) members of the city police department designated by the chief of police, two (2) members of the city fire department designated by the fire chief, one (1) member of the city council designated by the president of the council, and two (2) members of the Alarm Association of Rhode Island designated by the alarm association, to review any appeals related to the enforcement of false alarms. If an alarm user has a grievance with the city police or fire departments, the user must have his or her alarm servicing company transmit a letter to the grievance board verifying that the alarm company is making every effort to resolve the false alarm problem. The board shall have the authority to promulgate rules and regulations as needed.

(f) The provisions of this section shall not apply to alarm systems owned and/or operated by any governmental agencies.

(Ord. 1997, ch. 97-75, § 1, 11-26-97; Ord. No. 2016-16, § 1, 4-29-16)

Editor's note—Ch. 97-75, § 1, approved November 26, 1997, amended the Code by repealing former § 9-94 and adding a new § 9-94. Former § 9-94 pertained to manual boxes, and derived from ch. 81-59, § 5, approved November 27, 1981.

Sec. 9-95. Disconnect/reconnect charge.

Any disconnects or reconnects will be done at a one hundred twenty-five dollar ($125.00) charge per request payable to the city treasurer.
(Ord. 1981, ch. 81-59, § 6, 11-27-81; Ord. 2003, ch. 03-47, § 1, 8-1-03)

Secs. 9-96—9-100. Reserved.

ARTICLE V. CHARGES FOR EMERGENCY MEDICAL SERVICES*

Sec. 9-101. Fees.

Each person receiving emergency medical services in the city shall be billed for the following services, if applicable:

(1a) Advanced Life Support Level One "ALS 1."

(1b) Advanced Life Support Level Two "ALS 2."

(2) Base Life Support "BLS."

(3) Cardiac monitoring.

(4) Reserved.

(5) Airways (non-endotracheal).

(6) I.V.

(7) Mast trousers.

(8) Oxygen.

(9) Mileage ALS.

(10) Mileage BLS.

(11) CPR (in the absence of ALS-2).

(12) Medication administration (in the absence of ALS-2).

(13) Rhythm EKG/without interruption and RE.

(14) Miscellaneous supplies.

***Editor's note—**Ord. 1994, ch. 94-4, approved on February 15, 1994, added provisions designated as Ch. 9, Art. III, §§ 9-37—9-40. To avoid duplicative article and section numbering, such provisions have been redesignated as Ch. 9, Art. V, §§ 9-101—9-104 at the discretion of the editor.

The rate charged for services shall be determined at least annually in July by the chief of the fire department in consultation with the city finance officer and shall be based upon prevailing insurance reimbursements and norms.
(Ord. 1994, ch. 94-4, § 1, 2-15-94; Ord. 1996, ch. 96-33, § 1, 9-30-96; Ord. 1999, ch. 99-26, § 1, 9-13-99; Ord. 2004, ch. 04-28, § 1, 6-14-04; Ord. 2005, ch. 05-25, § 1, 4-25-05; Ord. 2007, ch. 07-39, § 1, 7-25-07; Ord. 2010, ch. 2010-8, § 1, 5-6-10)

Sec. 9-102. Billing.

The City of Providence may either perform the billing tasks or contract for the services.
(Ord. 1994, ch. 94-4, § 1, 2-15-94)

Sec. 9-103. Administration.

The commissioner of public safety, as head of the fire department, shall make all rules, regulations and policies relative to the implementation of the administration of the billing procedure.
(Ord. 1994, ch. 94-4, § 1, 2-15-94)

Sec. 9-104. Severability.

The paragraphs, sentences, clauses and phrases of this section are severable, and if any phrase, clause, sentence, or paragraphs shall be declared unconstitutional by a valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, or paragraphs of this section, since the same would have been enacted by the city council without the incorporation of any such unconstitutional phrase, clause, sentence, or paragraph.
(Ord. 1994, ch. 94-4, § 1, 2-15-94)

Chapter 10

FOOD AND FOOD PRODUCTS*

Article I. In General

Sec. 10-1. Handling to comply with rules of health departments.
Sec. 10-2. Inspection, condemnation of unwholesome provisions.
Sec. 10-3. Right of entry for purpose of inspection.
Sec. 10-4. Standards for meat, meat products, meat food products.
Sec. 10-5. Transporting condemned meat.
Sec. 10-6. Contract for removal of condemned meat.
Sec. 10-7. Certificate required to prepare and serve food or drink.
Sec. 10-8. Examination of food handler for health certificate.
Sec. 10-9. Exhibit of health certificate upon request.
Sec. 10-10. Penalty for employing persons without health certificate.
Secs. 10-11—10-20. Reserved.

Article II. Food Establishments

Sec. 10-21. Definitions.
Sec. 10-22. Classification of restaurants.
Sec. 10-23. License to operate restaurant—Required.
Sec. 10-24. Same—Issuance, fee, posting.
Sec. 10-25. Same—Issuing and prorating licenses.
Sec. 10-26. Same—Suspension, revocation.
Sec. 10-27. Same—Notices, hearings on suspended or revoked licenses.
Sec. 10-28. Reinstatement of license.
Sec. 10-29. Operation without license prohibited.
Sec. 10-30. Licensing of mobile food establishments.
Sec. 10-31. Inspection of restaurants.
Sec. 10-32. Sanitation requirements for restaurants.
Sec. 10-33. Examination and condemnation of unwholesome or adulterated food or drink.
Sec. 10-34. Disease control; health of employees.
Sec. 10-35. Procedure when infection suspected.
Sec. 10-36. Enforcement interpretation.
Sec. 10-37. Copies of regulations to be furnished.
Sec. 10-38. Penalty for violation of article.
Secs. 10-39—10-48. Reserved.

***State law references—**Sanitary inspection, §§ 21-27-1—21-27-9, Gen. Laws 1956; adulteration and misbranding food, §§ 21-1-1—21-1-15, 21-17-11—21-17-15, 21-23-1—21-23-9, Gen. Laws 1956; kosher food, §§ 21-16-1—21-16-4, Gen. Laws 1956.

Article III. Milk and Milk Products

Sec. 10-49. Meaning of "cream".
Sec. 10-50. Foreign substance not to be added to cream.
Sec. 10-51. Containers for cream to state minimum per centum of butterfat.
Sec. 10-52. Labeling cream.
Sec. 10-53. Cream must be standard.
Sec. 10-54. Bacteria count of cream and milk.
Sec. 10-55. Milk or cream with a temperature above fifty degrees Fahrenheit.
Sec. 10-56. Increasing vitamin content of milk or cream.
Sec. 10-57. Handling pasteurized milk, milk products.
Sec. 10-58. Standards for raw milk.
Sec. 10-59. Standards for homogenized milk.
Sec. 10-60. Reports of inspector of milk.
Sec. 10-61. Inspector to give notice of violation; third offense.
Secs. 10-62—10-71. Reserved.

Article IV. Frozen Desserts

Sec. 10-72. Definitions.
Sec. 10-73. Scope of authority of bureau of licenses.
Sec. 10-74. Permits to handle frozen desserts or mix—Required.
Sec. 10-75. Same—Issuance, conditions.
Sec. 10-76. Same—Fees designated; proration of fees.
Sec. 10-77. Same—Suspension and revocation.
Sec. 10-78. Suspension, revocation of permit for violation of article.
Sec. 10-79. Labeling and placarding.
Sec. 10-80. Inspection of frozen desserts plants.
Sec. 10-81. Examination of frozen desserts and ingredients.
Sec. 10-82. Grading of frozen desserts plants.
Sec. 10-83. Only products of grade A or B plants to be sold.
Sec. 10-84. Sale of adulterated or misbranded frozen desserts or mix prohibited.
Sec. 10-85. Article not construed to prohibit ice-cream wagons.
Sec. 10-86. Suspension and reissuing of permit; supplementary regrading.
Sec. 10-87. Mix and frozen desserts from beyond limits of routine inspection.
Sec. 10-88. Future frozen desserts plants.
Sec. 10-89. Notification of disease.
Sec. 10-90. Procedure when infection suspected.
Sec. 10-91. Rules, regulations to enforce article.
Sec. 10-92. Copies of regulations for licensees.
Sec. 10-93. Penalties for violation of article.
Secs. 10-94—10-103. Reserved.

Article V. Slaughtering Poultry

Sec. 10-104. Floors of premises.
Sec. 10-105. Walls of premises.
Sec. 10-106. Supply of running water.
Sec. 10-107. Use of cans or troughs.
Sec. 10-108. Plucking or removing of feathers.
Sec. 10-109. Cleaning rooms.
Sec. 10-110. Provisions inapplicable to slaughtering for family use.

ARTICLE I. IN GENERAL

Sec. 10-1. Handling to comply with rules of health departments.

No food, food products or beverages for public consumption shall be kept, offered for sale, transported or handled except in accordance with the rules and regulations of the state and city health departments. The superintendent of health is authorized to make such rules and regulations as he may deem necessary to safeguard the public health in regard to the cleaning and sterilization of utensils used in the preparation, serving and handling of foods; and is also authorized to make such rules and regulations as he may deem necessary in regard to the sanitary requirements of premises where food or drink is prepared and sold for public consumption.
(Rev. Ords. 1946, ch. 14, § 1)

Sec. 10-2. Inspection, condemnation of unwholesome provisions.

It shall be the duty of the inspector of provisions to visit from time to time, and at frequent intervals, all places within the city where fruit, vegetables, meat, fish, or other provisions, liable to become decayed, diseased or unwholesome, shall be kept, offered or exposed for sale. If he shall find or be informed that any of said articles so kept, offered or exposed for sale are decayed, diseased or unwholesome, he shall forthwith carefully inspect the same, and if, in his opinion, the same are decayed, diseased or unwholesome, he may seize and destroy such decayed, diseased or unwholesome fruit, vegetables, meat or other provisions. He shall keep a record of such seizures in a book to be kept for that purpose in the office of the superintendent of health. It shall be the duty of the inspector of provisions to act under the direction of the superintendent of health in the discharge of his duties as such inspector, and to make report thereof to said superintendent of health as often as required by said superintendent.
(Rules of Bd. of Ald., ch. 1, r. 49; Rev. Ords. 1946, ch. 14, § 7)

State law reference—Special act relative to unwholesomeness, P.L. 1858, ch. 281.

Sec. 10-3. Right of entry for purpose of inspection.

The superintendent of health and any person appointed or employed by him for that purpose, is hereby authorized to enter and inspect all premises where food or drink is manufactured, prepared, sold or served for public consumption.
(Rev. Ords. 1946, ch. 14, § 8)

Sec. 10-4. Standards for meat, meat products, meat food products.

No meat, meat products, or meat food product shall be sold or offered for sale in the city unless the same are United States Government inspected according to regulations governing meat inspection of the Bureau of Animal Industry of the United States Department of Agriculture. If any meat food product is manufactured in the city which

is not United States Government inspected, the same shall nevertheless meet the requirements governing meat inspection of the Bureau of Animal Industry of the United States Department of Agriculture.
(Rules of Bd. of Ald., ch. 1, r. 49; Rev. Ords. 1946, ch. 14, § 7)

Sec. 10-5. Transporting condemned meat.

No person shall remove, carry or transport over, upon or through any street or highway of the city any diseased or putrid meat condemned by the superintendent of health, unless specially authorized so to do by said superintendent of health.
(Ord. 1914, ch. 1, § 6; Rev. Ords. 1946, ch. 15, § 19)

Sec. 10-6. Contract for removal of condemned meat.

The superintendent of health is hereby authorized and empowered, in his discretion, in the name and behalf of the city, from time to time, to contract for the faithful performance of the work of removing from the city, and through the streets thereof, such meat as shall have been condemned by him, with such party as he shall authorize to make such removal, and upon such terms and conditions as he shall approve, provided the terms of any such contract shall not exceed five (5) years.
(Ord. 1914, ch. 1, § 7; Rev. Ords. 1946, ch. 15, § 20)

Sec. 10-7. Certificate required to prepare and serve food or drink.

No person without the certificate hereinafter provided shall be engaged in the preparation or serving of food or drink in any licensed victualling house or tavern, or in any lunch stand, ice cream parlor, lunch wagon, soda water fountain or other public eating place where food or drink is provided in the city.
(Ord. 1929, ch. 712, § 1; Rev. Ords. 1946, ch. 14, § 2)

State law reference—Health certificates, §§ 21-27-3, 21-27-4, Gen. Laws 1956.

Sec. 10-8. Examination of food handler for health certificate.

Every person named in section 10-7 shall be examined by the superintendent of health or some physician or physicians designated by him to ascertain if such person is suffering from or infected with any contagious disease. After such examination, which shall be made at least semiannually and at such other periods as may be designated from time to time by the superintendent of health, the superintendent of health shall issue to such persons as shall have passed a satisfactory examination a certificate setting forth that fact, which certificate shall be retained by the person to whom it has been issued. If however any person referred to in section 10-7 hereof prefers to be examined by a physician selected and paid by said person, such physician may indicate upon a form to be obtained from the superintendent of health the conditions found, and when this form is returned to the superintendent of health he shall issue the required certificate provided the health of said person is satisfactory.
(Ord. 1929, ch. 712, § 1; Rev. Ords. 1946, ch. 14, § 3)

Sec. 10-9. Exhibit of health certificate upon request.

Every person to whom a certificate has been issued under the provisions of this chapter shall, when requested, exhibit the same to any health or police officer of the city.
(Ord. 1929, ch. 712, § 1; Rev. Ords. 1946, ch. 14, § 4)

Sec. 10-10. Penalty for employing persons without health certificate.

The owner, proprietor or manager of any licensed victualling house or tavern, lunch stand, ice cream parlor, lunch wagon, soda water fountain or other public eating place, who suffers or permits any person without a certificate as provided for in sections 10-7 and 10-8 hereof to be employed in the preparation or serving of food or drink in any such establishment, victualling house or tavern, lunch stand, ice cream parlor, lunch wagon, owned, controlled or managed by him, shall be deemed guilty of a violation of this Code.
(Ord. 1919, ch. 211, § 2; Rev. Ords. 1946, ch. 14, § 5)

Secs. 10-11—10-20. Reserved.

ARTICLE II. FOOD ESTABLISHMENTS*

Sec. 10-21. Definitions.

The following definitions shall apply in the interpretation and the enforcement of this article:

(a) *Restaurant.* The term "restaurant" shall mean restaurant, coffee shop, cafeteria, lunch cart, delicatessen, caterer, ice cream parlor, cafe, bar, luncheonette, tavern, sandwich stand, soda fountain, short order cafe, grill, tearoom, cocktail lounge, nightclub, roadside stand, industrial-feeding establishment, private, public or non-profit organization or institution routinely serving food, catering kitchen, and all other eating or drinking establishments, as well as kitchens or other places in which food or drink is prepared for sale or service on the premises or served elsewhere.

(b) *Itinerant restaurant.* The term "itinerant restaurant" shall mean one operating for a temporary period in connection with a fair, carnival, circus, public exhibition, or other similar gathering.

(c) *Traveling restaurant.* The term "traveling restaurant" shall mean one which moves from place to place to operate, dispensing sandwiches, frankfurts, box lunches, coffee, ice cream, etc.

***State law references—**Special act authorizing city to license, control and regulate victualling houses, P.L. 1948, ch. 2009; sanitary inspection of food business, §§ 21-27-1—21-27-9, Gen. Laws 1956.

(d) *Class "A" restaurant* shall mean a restaurant at a fixed location, in a building, where food or drink is served primarily for consumption on the premises.

Class "B" restaurant shall mean an itinerant or traveling restaurant.

(e) *Utensils.* "Utensils" shall include any kitchenware, tableware, glassware, cutlery, utensils, containers, or other equipment with which food or drink comes in contact during storage, preparation, or serving.

(f) *Lunch cart restaurant.* A "lunch cart restaurant" shall mean an eating establishment which is moved to a specific place daily or a restaurant on wheels with no cellar underneath.

(g) *Delicatessen restaurant.* A "delicatessen restaurant" shall mean a place or establishment whose primary business is the selling of and precooking of meats to be consumed off the premises or the making of sandwiches for consumption off the premises.

(h) *Caterers.* "Caterers" shall mean establishments set up to prepare meals that will be transported and served at parties or banquets held on or off the premises.

(i) *Employee.* The term "employee" shall mean any person who handles food or drink during its preparation or serving, or who comes in contact with any eating or cooking utensils, or who is employed in a room in which food or drink is prepared or served.

(j) *Health officer.* The term "health officer" shall mean the superintendent of health of the city, his deputies and inspectors.
(Ch. 14, § 33, added by Ord. 1948, ch. 187, § 1; Ord. 1964, ch. 1590, § 1)

Sec. 10-22. Classification of restaurants.

The type of license required hereunder for any establishment shall be determined by the superintendent of health, who shall also determine whether any establishment shall be required to take out more than one (1) type of restaurant license.
(Ch. 14, § 35, added by Ord. 1948, ch. 187, § 3)

Sec. 10-23. License to operate restaurant—Required.

It shall be unlawful for any person to operate any victualling house or restaurant, as defined herein, unless such person first shall have procured a license therefor from the bureau of licenses.
(Ch. 14, § 34, added by Ord. 1948, ch. 187, § 2; Ord. 1962, ch. 1515, § 1; Ord. 1964, ch. 1590, § 2; Ord. 1966, ch. 1793, § 1)

Sec. 10-24. Same—Issuance, fee, posting.

(a) The bureau of licenses shall issue licenses for all restaurants and shall collect the fees therefor.

(b) The annual fee for Class A Restaurants shall be fifty dollars ($50.00); for Class B Restaurants, twenty dollars ($20.00); for lunch carts, one hundred dollars ($100.00); for delicatessens, twenty dollars ($20.00); for caterers, one hundred dollars ($100.00). Restaurants operated by nonprofit organizations in public parochial or nonprofit private schools or hospitals not operated for profit shall be required to obtain a license but shall be exempt from the payment of the fees therefor. It shall be unlawful for any person to operate any victualling house or restaurant in the city without first having obtained a license for the conduct and operation of the same from the bureau of licenses and any such place which is operated without a license shall be closed forthwith by order of the bureau of licenses. Such licenses shall be posted in a conspicuous place on the premises.
(Ch. 14, § 34, added by Ord. 1948, ch. 187, § 2; Ord. 1962, ch. 1515, § 1; Ord. 1964, ch. 1590, § 2; Ord. 1966, ch. 1793, § 1; Ord. 1981, ch. 81-17, § 1, 3-26-81)

Sec. 10-25. Same—Issuing and prorating licenses.

The license year shall begin on the first day of February of every year after the enactment hereof.

License fees shall be prorated on a semiannual basis when issued at any time during the last half of the license year.
(Ch. 14, § 45, added by Ord. 1948, ch. 187, § 13)

Sec. 10-26. Same—Suspension, revocation.

(a) The bureau of licenses may at any time suspend any license for cause, for such time as it may deem necessary or reasonable under the circumstances, not exceeding ten (10) days.

(b) The bureau of licenses may revoke licenses issued by it after a hearing held before said bureau of licenses in accordance with the provisions of this article.
(Ch. 14, § 34, added by Ord. 1948, ch. 187, § 2; Ord. 1962, ch. 1515, § 1; Ord. 1966, ch. 1793, § 1)

Sec. 10-27. Same—Notices, hearings on suspended or revoked licenses.

(a) *Suspension.* Any licensee whose license has been suspended shall be notified in writing of the reason for such action. Upon making written request therefor, he shall have the right to a prompt hearing by the bureau of licenses upon the charges preferred against him and may be represented at any such hearing by counsel.

(b) *Revocation.* Notice of the proposed revocation of any license shall be given in writing to the licensee by the bureau of licenses setting forth the grounds therefor, the time and place of the hearing thereon, and informing the licensee of his right to be represented by counsel. Such hearing shall be held promptly and notice thereof shall be personally served or sent by registered mail to the licensee at his last and usual

place of abode, or to the location where the licensed business is located. Hearings shall not be had until at least seventy-two (72) hours from the mailing or delivery of said notice.
(Ch. 14, § 44, added by Ord. 1948, ch. 187, § 12; Ord. 1962, ch. 1515, § 3; Ord. 1966, ch. 1793, § 1; Ord. 1966, ch. 1800, § 1)

Sec. 10-28. Reinstatement of license.

A suspended license may be reinstated by the superintendent of health or his deputy, when satisfied that proper corrections have been made. A revoked license cannot be reinstated, but a new license may be issued in its stead.
(Ch. 14, § 40, added by Ord. 1948, ch. 187, § 8)

Sec. 10-29. Operation without license prohibited.

No restaurant within the city shall operate without first having obtained a license in accordance with this article.
(Ch. 14, § 39, added by Ord. 1948, ch. 187, § 7)

Sec. 10-30. Licensing of mobile food establishments.

The provisions of sections 24-2 through 24-20, shall be applicable to licensing mobile food establishments; for every license granted for vehicles used for such purpose the sum of fifty dollars ($50.00) shall be paid; provided however, that no such license shall be issued without the approval of the superintendent of health.
(Ord. 1921, ch. 304; Rev. Ords. 1946, ch. 14, § 6)

Sec. 10-31. Inspection of restaurants.

(a) At least once every three (3) months the superintendent of health shall cause to be inspected by such deputies or inspectors as he shall appoint for that purpose, every restaurant located within the city. One (1) copy of the inspector's report shall be left with the person in charge of the restaurant, which copy shall be made available to any and all patrons and shall not be disposed of or removed except by permission of the superintendent of health. Another copy of the inspector's report shall be kept on file with the records of the health department.

(b) In the event said superintendent of health or any of his deputies shall determine that a violation of the provisions of this article exists in any restaurant, he may allow the holder of said license to remedy the violations within such time as he shall order, and if said violation is not remedied at the end of such time, said license may immediately be suspended. All licensees shall notify the superintendent of health of any proposed changes in location, route or physical setup of the premises.

(c) The person operating the restaurant shall upon request of the health officer, permit access to all parts of the establishment.
(Ch. 14, § 37, added by Ord. 1948, ch. 187, § 5)

Sec. 10-32. Sanitation requirements for restaurants.

All restaurants shall comply with the following regulations of sanitation insofar as they are applicable to the type of restaurant involved:

Item 1. Floors.

In all class A restaurants, the floors of all rooms in which food or drink is stored, prepared, or served, or in which utensils are washed, shall be of such construction as to be easily cleaned, shall be smooth, and shall be kept clean and in good repair.

Item 2. Walls and ceilings.

Walls and ceilings of all rooms shall be kept clean and in good repair. All walls and ceilings of rooms in which food or drink is stored or prepared shall be finished in light color. The walls of all rooms in which food or drink is prepared, or utensils are washed shall have a smooth, washable surface up to the level reached by splash or spray.

Item 3. Doors and windows.

When flies are prevalent, all openings into the outer air shall be effectively screened and doors shall be self-closing, unless other effective means are provided to prevent the entrance of flies.

Item 4. Lighting.

All rooms in which food or drink is stored or prepared or in which utensils are washed shall be well lighted.

Item 5. Ventilation.

All rooms in which food or drink is stored, prepared or served, or in which utensils are washed, shall be well ventilated.

Item 6. Toilet facilities.

Every restaurant shall be provided with adequate and conveniently located toilet facilities for its employees, conforming with the ordinances of the city. Toilet rooms shall not open directly into any room in which food, drink, or utensils are handled or stored. The doors of all toilet rooms shall be self-closing. Toilet rooms shall be kept in a clean condition, in good repair, and well-lighted and ventilated. Hand-washing signs shall be posted in each toilet room used by employees. In restaurants hereafter constructed to seat fifty (50) or more persons at one (1) time, provision shall be made for toilet facilities for patrons; said toilets may be used by employees and the above regulations shall apply.

Item 7. Water supply.

All class A restaurants must be connected with the city water supply.

Item 8. Lavatory facilities.

Adequate and convenient hand-washing facilities shall be provided including hot and cold running water, soap, and approved sanitary towels. The use of a common towel is prohibited. No employee shall resume work after using the toilet room without first washing his hands.

Item 9. Construction of utensils and equipment.

All multiuse utensils and all show and display cases or windows, counters, shelves, tables, refrigerating equipment, sinks, and other equipment or utensils used in connection with the operation of a restaurant shall be so constructed as to be easily cleaned and shall be kept in good repair. Utensils containing or plated with cadmium or lead shall not be used; provided that solder containing lead may be used for jointing.

Item 10. Cleaning and bactericidal treatment of utensils and equipment.

All equipment, including display cases or windows, counters, shelves, tables, refrigerators, stoves, hoods, and sinks shall be kept clean and free from dust, dirt, insects, and other contaminating material. All cloths used by waiters, chefs, and other employees shall be clean. Single-service containers shall be used only once. Thermometers shall be kept readily available to show the temperature of the water in the sink where washing and sterilizing is accomplished. Automatic dishwashing and sanitizing equipment shall have built-in thermometers to show the temperature of the washing and sterilizing water. The health officer shall check the efficiency of said thermometers from time to time, at his discretion.

All multiuse eating and drinking utensils shall be thoroughly cleaned and effectively subjected to an approved bactericidal process after each usage. All multiuse utensils used in the preparation or serving of food and drink shall be thoroughly cleaned and effectively subjected to an approved bactericidal process immediately following the day's operation. Drying cloths, if used, shall be clean and shall be used for no other purpose.

No article, polish or other substance containing any cyanide preparation or other poisonous material shall be used for the cleansing or polishing of utensils. All class A restaurants must use heat sterilization for glassware and tableware.

Item 11. Storage and handling of utensils and equipment.

After bactericidal treatment utensils shall be stored in a clean, dry place protected from flies, dust, and other contamination, and shall be handled in such a manner as to prevent contamination as far as practicable. Single-service utensils shall be purchased only in sanitary containers, shall be stored therein in a clean, dry place until used, and shall be handled in a sanitary manner. If ultraviolet light is used maintaining sterility of glassware, etc., said light shall be kept in proper order and strength at all times.

Item 12. Disposal of wastes.

All wastes shall be properly disposed of, and all garbage and trash shall be kept in suitable receptacles, in such manner as not to become a nuisance.

Item 13. Refrigeration.

All readily perishable food and drink shall be kept at or below fifty (50) degrees Fahrenheit except when being prepared or served. Waste water from refrigeration equipment shall be properly disposed of. Refrigerators shall have thermometers to indicate the temperature therein.

Item 14. Wholesomeness of food and drink.

All food and drink shall be clean, wholesome, free from spoilage and so prepared as to be safe for human consumption. All milk, fluid milk products, ice cream and other frozen desserts served shall be from approved sources. Milk shall be served in the individual original containers in which it was received from the distributor; provided, that this requirement shall not apply to cream which may be served from the original bottle or from a dispenser approved for such service. All oysters, clams and mussels shall be from approved sources, and if shucked shall be kept until used in the containers in which they were placed at the shucking plant.

Item 15. Storage, display and serving of food and drink.

All food and drink shall be so stored, displayed, and served as to be protected from dust, flies, vermin, depredation and pollution by rodents, unnecessary handling, droplet infection, overhead leakage, and other contamination. No animals except cats and no fowl shall be kept or allowed in any room in which food or drink is prepared or stored or served. All class A restaurants shall be rodent proof and all flies, roaches and rodents shall be eliminated by methods approved by the superintendent of health.

Item 16. Cleanliness of employees.

All employees shall wear clean outer garments and shall keep their hands clean at all times while engaged in handling food, drink, utensils, or equipment. Employees shall not expectorate or use tobacco in any form in rooms in which food is prepared. Employees shall wear head coverings, caps, or hairnets to prevent falling hair from getting into food.

Item 17. Miscellaneous.

The premises of all restaurants shall be kept clean and free of litter or rubbish. None of the operations connected with a restaurant shall be conducted in any room used as living or sleeping quarters. Adequate lockers or dressing rooms shall be provided for employees' clothing and shall be kept clean. Soiled linens, coats, and aprons shall be kept in containers provided for this purpose.
(Ch. 14, § 38, added by Ord. 1948, ch. 187, § 6)

Sec. 10-33. Examination and condemnation of unwholesome or adulterated food or drink.

Samples of food, drink, and other substances may be taken and examined by the health officer as often as may be necessary for the detection of unwholesomeness or adulteration. The health officer may condemn and forbid the sale of, or cause to be removed or destroyed any food or drink which is unwholesome or adulterated.
(Ch. 14, § 36, added by Ord. 1948, ch. 187, § 4)

Sec. 10-34. Disease control; health of employees.

No person who is affected with any disease in a communicable form or who is a carrier of such disease shall work in any restaurant, and no restaurant shall employ any such person or any person suspected of being affected with any disease in a communicable form or of being a carrier of such disease. If any restaurant manager has reason to believe that any employee has contracted any disease in a communicable form or has become a carrier of such disease he shall notify the health officer immediately. A placard containing this section shall be posted in all toilet rooms.
(Ch. 14, § 41, added by Ord. 1948, ch. 187, § 9)

Sec. 10-35. Procedure when infection suspected.

When the superintendent of health shall have reason to believe that the transmission of infection is possible from any restaurant employee, the superintendent of health is hereby authorized to require any or all of the following measures:

(1) The immediate exclusion of the employee from all restaurants;

(2) The immediate closing of the restaurant concerned until no further danger of disease outbreak exists, in the opinion of the superintendent of health;

(3) Adequate medical examination of the employee and of his associates, with such laboratory examinations as may be indicated.

(Ch. 14, § 42, added by Ord. 1948, ch. 187, § 10)

Sec. 10-36. Enforcement interpretation.

The superintendent of health is hereby authorized to make such new and additional rules and regulations as he may deem necessary to more effectively enforce the provisions and intent of this article, and such rules and regulations shall have the same force and effect as the provisions of this article until changed by the city council by ordinance duly enacted.
(Ch. 14, § 43, added by Ord. 1948, ch. 187, § 11)

Sec. 10-37. Copies of regulations to be furnished.

Licensees shall receive a copy of this article and all rules and regulations supplementary thereto at the time of receiving their licenses for the first time, and thereafter they shall receive copies on request.
(Ch. 14, § 44, added by Ord. 1948, ch. 187, § 12; Ord. 1966, ch. 1793, § 1; Ord. 1966, ch. 1800, § 1)

Sec. 10-38. Penalty for violation of article.

Any person who shall violate any of the provisions of this article or any rule or regulation of the superintendent of health made in accordance with the provisions hereof shall be guilty of offense and shall be punished in accordance with section 1-10 of this Code of Ordinances.
(Ch. 14, § 43, added by Ord. 1948, ch. 187, § 11)

Secs. 10-39—10-48. Reserved.

ARTICLE III. MILK AND MILK PRODUCTS*

Sec. 10-49. Meaning of "cream".

The term "cream" for the purpose of this article shall mean that portion of milk which rises to the top of unagitated and unadulterated milk while standing, or is separated from unadulterated milk by centrifugal force, and which cream contains not less than eighteen (18) percent of butterfat, whether or not such cream had been condensed, evaporated, concentrated, powdered, dried or desiccated.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 2)

Sec. 10-50. Foreign substance not to be added to cream.

No cream shall be sold or offered for sale within the city, to which any foreign substance has been added.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 3)

Sec. 10-51. Containers for cream to state minimum per centum of butterfat.

All containers in which cream is sold or offered for sale within the city, shall be plainly marked with a cap, or label, stating in legible bold-faced letters not less than twelve-point plain Gothic type, the minimum per centum of butterfat contained in such cream, except that it shall be permissible to mark a cream "Light Cream" provided it contains not less than eighteen (18) percent of butterfat, or "Medium

*__State law references—__Sanitary inspection, §§ 21-27-1—21-27-9, Gen. Laws 1956; adulteration and misbranding, §§ 21-1-1—21-1-15, 21-17-11—21-17-15, 21-23-1—21-23-9, Gen. Laws 1956.

Cream" provided it contains not less than twenty-five (25) percent of butterfat, or "Heavy Cream" provided it contains not less than thirty-eight (38) percent of butterfat.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 4)

Sec. 10-52. Labeling cream.

Condensed, evaporated, concentrated, powdered, dried, desiccated, or sour cream when offered for sale within the city shall be plainly labeled as such. All other cream shall be offered for sale in containers plainly marked with a cap or label bearing one (1) and only one (1) of the following designations, in legible bold-faced letters not less than twelve-point plain Gothic type: "Certified," "Certified-Pasteurized," "Grade A Pasteurized," "Pasteurized," and cream marked with any one (1) of the above-named designations shall have been obtained only from milk of equal quality to that required for that grade as defined in R.I.G.L. ch. 216, § 22, as amended.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 5)

Sec. 10-53. Cream must be standard.

No cream that does not comply with the definition of cream in section 10-49 shall be sold, or offered for sale within the city under any of the grades designated in section 10-52.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 6)

Sec. 10-54. Bacteria count of cream and milk.

(a) No cream other than sour cream, shall be sold or offered for sale within the city that contains more than two hundred thousand (200,000) bacteria per cubic centimeter, nor that has a temperature of more than fifty (50) degrees Fahrenheit at any time before delivery to the consumer.

(b) No milk shall be sold or offered for sale within the city that contains more than twenty-five thousand (25,000) bacteria per cubic centimeter as determined by a logarithmic average of four (4) consecutive samples taken not less than twenty-four (24) hours apart, nor that has a temperature of more than fifty (50) degrees Fahrenheit at any time between pasteurization and delivery.

(c) No grade A milk shall be sold or offered for sale within the city that contains more than ten thousand (10,000) bacteria per cubic centimeter as determined by logarithmic average of four (4) consecutive samples taken not less than twenty-four (24) hours apart.

(d) If the inspector of milk finds that the average bacterial count of a grade A milk contains more than ten thousand (10,000) bacteria per cubic centimeter, he shall immediately notify the distributor of said milk and the proper state authorities, and said distributor may no longer sell his milk in the city as grade A milk, until such time

as four (4) additional consecutive samples taken not less than twenty-four (24) hours apart, between each sample, give an average logarithmic bacterial count that complies with the standard set for grade A milk, by this section.

(e) No milk, cream, milk product or frozen dessert shall be sold or offered for sale within the city that shows an excess of ten (10) colonies of lactose-fermenting bacteria per cubic centimeter when plated on desoxycholate agar described in the "Standard Methods for the Examination of Dairy Products" published by the American Public Health Association. Sampling for such tests shall be done only at the plant where the product is pasteurized and shall be done immediately after the process of pasteurization is completed.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 7; Ord. 1950, ch. 421, § 1)

Sec. 10-55. Milk or cream with a temperature above fifty degrees Fahrenheit.

It shall be the duty of the inspector of milk or his deputy or duly authorized agent to visit from time to time and at frequent intervals all places where milk or cream shall be kept for the purpose of pasteurization, sale, exchange or delivery in the city, and if he, his deputy or duly authorized agent shall find any such milk or cream with a temperature above fifty (50) degrees Fahrenheit he shall in the presence of a witness again determine such temperature and if it is above fifty (50) degrees Fahrenheit he shall forthwith seize, destroy or ship back to the producer such milk or cream and he shall keep a record of the time, temperature, and amount of such milk or cream in the office of the inspector of milk.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 9; Ord. 1950, ch. 421, § 1)

Sec. 10-56. Increasing vitamin content of milk or cream.

The sale in the city of fresh fluid milk or cream, the vitamin content of which has been artificially increased, is restricted to such milks as have their vitamin content increased by controlled additions to the diet of the cows producing such milk.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 10)

Sec. 10-57. Handling pasteurized milk, milk products.

(a) All pasteurized milk, cream, and milk products shall be placed in their final delivery containers in the plant in which they are pasteurized. Pasteurized milk and milk products sold in the distributor's containers in quantities less than one (1) gallon shall be delivered in standard milk bottles or in single-service containers. Hotels, soda fountains, restaurants, groceries and similar establishments shall not sell or serve any pasteurized milk, cream, or milk products except in the original container in which it was received from the distributor or from a bulk container equipped with a dispensing device each separate installation of which is approved by the inspector of

milk, provided that this requirement shall not apply to cream consumed on the premises, which may be served from the original bottle or from a dispenser approved for such service.

(b) All milk and cream sold or delivered in the city in returnable containers shall be provided with a closure cap completely covering the pouring lip in a manner satisfactory to the inspector of milk.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 11; Ord. 1950, ch. 421, § 1)

Sec. 10-58. Standards for raw milk.

No raw milk shall be sold, exchanged, delivered or offered for sale, exchange or delivery within the city, except milk sold, exchanged or delivered for the purpose of being pasteurized, unless such raw milk has a bacteria count of less than ten thousand (10,000) colonies per cubic centimeter as an average bacteria count of any four (4) consecutive samples examined by the inspector of milk using methods set forth in the current edition of "Standard Methods of Milk Analysis" of the American Public Health Association, and unless such raw milk be produced from cows that are certified to be free from Bang's disease, tuberculosis and mastitis by a licensed veterinarian at such intervals as the inspector of milk shall deem necessary for the protection of the milk consuming public.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 1; Ord. 1946, ch. 1503, § 1)

Sec. 10-59. Standards for homogenized milk.

All milk sold or offered for sale as "Homogenized Milk" within the city shall have first been clarified by a method approved by the inspector of milk and shall, subsequent to clarification, have been treated in such a manner as to insure breakup of the fat globules to such an extent that after forty-eight (48) hours' storage no visible cream separation occurs on the milk and the fat percentage of the top one hundred (100) c.c. of milk in a quart bottle, or of proportionate volumes in containers of other sizes, does not differ by more than ten (10) percent of itself from the fat percentage of the remaining milk as determined after thorough mixing.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 12)

Sec. 10-60. Reports of inspector of milk.

(a) The person charged as inspector of milk shall make in print, or by other duplicating process, quarterly reports to the city council in January, April, July and October, in each year, for the quarter of the calendar year next preceding, of the number of milk licenses issued, the number of samples of milk taken, the number of tests and analyses of milk made, and the names of any persons prosecuted for any alleged violations of the milk laws in the city, and the nature of the complaints against them, respectively, and such other information in regard to the operation of his office as may be desirable.

(b) Each such report shall include a statement of the names of all retail milk dealers, except proprietors of stores and restaurants, from whom samples have been taken and the averages of the results of these tests or analyses on samples taken from them and tested by employees or officers of the milk department.
(Rules of Bd. of Ald., ch. 3, r. 2; Rev. Ords. 1946, ch. 20, § 13)

Sec. 10-61. Inspector to give notice of violation; third offense.

The person charged as inspector of milk shall send written notice to any person violating any of the provisions of this article, and upon the third and each subsequent violation such person shall be deemed guilty of an offense, punishable as provided in section 1-10.
(Rules of Bd. of Ald., ch. 7; Rev. Ords. 1946, ch. 20, § 8)

Secs. 10-62—10-71. Reserved.

ARTICLE IV. FROZEN DESSERTS*

Sec. 10-72. Definitions.

The following definitions shall apply in the interpretation and the enforcement of this article:

(a) *Frozen desserts.* A frozen dessert is any clean frozen or partially frozen combination of two (2) or more of the following: Milk or milk products, eggs or egg products, sugars, water, fruit or fruit juices, candy, nutmeats, or other harmless and wholesome food products, flavors, color, or harmless stabilizer, and shall be deemed to include ice cream, frozen custard, ice milk, milk sherbet, ices, and other similar products.

(b) *Milk and milk products.* Milk and milk products used in mix or frozen desserts shall include milk, cream, frozen cream, plastic cream, fluid skim milk, butter, sweetened and unsweetened evaporated milk, sweetened and unsweetened evaporated skim milk, sweetened and unsweetened condensed milk, sweetened and unsweetened condensed skim milk, powdered whole milk, powdered skim milk, sweet cream buttermilk, sweet cream condensed buttermilk, and sweet cream powdered buttermilk, or any of these products from which lactose has been wholly or partially removed.

(c) *Mix.* Mix is the unfrozen combination of all ingredients of a frozen dessert with or without fruits, fruit juices, candy, nutmeats, flavor, or harmless color.

***State law references—**Sanitary inspection, §§ 21-27-1—21-27-9, Gen. Laws 1956; adulteration and misbranding, §§ 21-1-1—21-1-15, 21-17-11—21-17-15, 21-23-1—21-23-9, Gen. Laws 1956.

(d) *Pasteurization.* The terms "pasteurization," "pasteurized," and similar terms shall be taken to refer to the process of heating every particle of mix to at least one hundred fifty-five (155) degrees Fahrenheit and holding at such temperature for at least thirty (30) minutes in approved and properly operated equipment; provided that nothing contained in this definition shall be construed as disbarring any other process which has been demonstrated to be equally efficient and is approved by the state health authority or superintendent of health. A positive phosphatase test on the finished product shall be considered evidence of improper pasteurization.

(e) *Frozen desserts plant.* A frozen desserts plant is hereby defined as any place or premises where frozen desserts or mixes are manufactured, processed or frozen for distribution or sale.

(f) *Frozen desserts manufacturer.* A frozen desserts manufacturer is any person who manufactures, processes or freezes any mix or frozen desserts for distribution or sale.

(g) *Milk products plant.* A milk products plant shall mean any place or premises where milk or milk products are skimmed, condensed, evaporated, powdered, manufactured into butter, or otherwise processed for subsequent manufacture of mix or frozen desserts.

(h) *Receiving station.* A receiving station shall mean any place or premises where milk or milk products are received for subsequent delivery to milk products plants or frozen desserts plants.

(i) *Dairy farm.* A dairy farm is any place or premises where one (1) or more cows or goats are kept, a part or all of the milk or milk products from which is sold or offered for sale.

(j) *Health officer.* The term "health officer" shall mean the superintendent of health of the city, or his authorized representatives.

(k) *Average bacterial plate count, direct microscopic count, reduction time, and cooling temperature.* Average bacterial plate count and average direct microscopic count shall be taken to mean the logarithmic average of the respective results of the last four (4) consecutive samples, taken upon separate days, irrespective of the date of grading or regrading.

(l) *Adulterated or misbranded frozen desserts or mix.* Adulterated or misbranded frozen desserts or mix shall mean any frozen desserts or mix which contains any unwholesome substance, or which carries a grade label unless such grade label has been awarded by the health officer and not revoked shall be deemed adulterated and/or misbranded.

(m) *Grading period.* The grading period shall be taken to mean the interval between the public announcements of the grades of frozen desserts plants and shall in no case exceed six (6) months.
(Ch. 14, § 16(a)—(d), (f)—(m), (o), added by Ord. 1950, ch. 358, § 1)

Sec. 10-73. Scope of authority of bureau of licenses.

(a) The authority of the bureau of licenses, with respect to licenses or permits hereunder shall be limited to the issuance and revocation of the same but only upon the written recommendation of the health officer, and the collection of the fees therefor.

(b) Said authority to license shall not limit or detract from the authority and duties of the superintendent of health with respect to the enforcement of this article and the supervision of licensees hereunder including the right to suspend permits.
(Ord. 1950, ch. 358, § 3; Ord. 1962, ch. 1516, § 1)

Sec. 10-74. Permits to handle frozen desserts or mix—Required.

It shall be unlawful for any person who does not possess a permit from the bureau of licenses to directly or indirectly deliver into or receive into the city for sale, or to produce, sell or offer for sale therein, or to have in storage where mix or frozen desserts are sold or served, any mix or frozen dessert. Said permits shall be issued only upon the written recommendation of the superintendent of health.
(Ch. 14, § 18, added by Ord. 1950, ch. 358, § 3; Ord. 1962, ch. 1516, § 1)

Sec. 10-75. Same—Issuance, conditions.

Only a person who complies with the requirements of this article shall be entitled to receive and retain the permit required in section 10-74. All such permits shall be prominently posted. All permits shall expire annually on the last day of March.
(Ch. 14, § 19, added by Ord. 1950, ch. 358, § 3; Ord. 1962, ch. 1516, § 1)

Sec. 10-76. Same—Fees designated; proration of fees.

(a) Fees for permits hereunder shall be prorated on a quarterly basis.

(b) The annual fee for permits shall be as follows:

(1) Manufacturers, processing and pasteurization plants where the product is sold at wholesale or retail for resale off the premises: One hundred dollars ($100.00) each.

(2) Manufacturers, processing and pasteurization plants where the product is sold only at retail for consumption on the premises: Fifty dollars ($50.00) each.

(3) Ice cream wagons, ice cream parlors and similar places: Twenty dollars ($20.00) each, provided such fee shall not be required of holders of any type of victualling licenses except caterers.

(Ch. 14, § 20, added by Ord. 1950, ch. 358, § 3; Ord. 1962, ch. 1516, § 1; Ord. 1963, ch. 1533, § 1; Ord. 1981, ch. 81-16, § 1, 3-26-81)

Sec. 10-77. Same—Suspension and revocation.

(a) *Suspension.* The health officer may, at any time, suspend a permit hereunder for cause for such time as he may deem necessary or reasonable under the circumstances, not exceeding ten (10) days.

(b) *Notice, hearing on suspension.* Any licensee whose permit hereunder has been suspended shall be forthwith notified in writing of the reason for such action. Upon making written request therefor, he shall have the right to a prompt hearing before the health officer upon the charges preferred against him and may be represented at any such hearing by counsel.

(c) *Revocation.* Permits hereunder may be revoked by the bureau of licenses for cause upon the written recommendation of the health officer.

(d) *Notice, hearing on revocation.* Notice of the proposed revocation of any permit hereunder shall be given in writing to the licensee, setting forth the grounds therefor, the time and place of the hearing thereon, and informing the licensee of his right to be represented by counsel. Such hearing shall be held promptly and notice thereon shall be personally served or sent by registered mail to the licensee at his last and usual place of abode, or to the location where his place of business is located. Hearings shall not be had until at least seventy-two (72) hours from the mailing or delivery of said notice.
(Ch. 14, § 21, added by Ord. 1950, ch. 358, § 3; Ord. 1951, ch. 472, § 1; Ord. 1962, ch. 1516, § 1)

Sec. 10-78. Suspension, revocation of permit for violation of article.

Any person who shall violate any provision of this article may have his permit suspended or revoked for cause after reasonable notice of hearing and an opportunity to be heard and in addition he may be prosecuted under this article subject to the penalty in section 1-10 of this Code of Ordinances.
(Ch. 14, § 32, added by Ord. 1950, ch. 358, § 14)

Sec. 10-79. Labeling and placarding.

(a) All cans, packages and other containers enclosing mix, frozen desserts or their ingredients derived from milk, except those filled from labeled bulk containers in retail dispensing, shall be plainly labeled or marked with:

(1) The name of the contents;

(2) In the case of mix the word "pasteurized" if the contents have been pasteurized and the word "raw" if the contents have not been pasteurized; and

(3) The name and the street address, or the permit number, of the plant at which the contents were placed in the container.

A descriptive word or phrase indicating in more detail the composition or flavoring of the mix or frozen dessert, such as strawberry, chocolate, custard, lemon, etc., may be used on the label. The label or mark shall be in letters of a size and kind, approved by the health officer. Trade names and trademarks may be permitted. The label shall contain no marks or words which are misleading.

(b) No person, who manufactures, distributes, or dispenses frozen desserts or mix, may display or advertise any grade placard, sign or notice without the approval of the health officer.
(Ch. 14, § 22, added by Ord. 1950, ch. 358, § 4)

Sec. 10-80. Inspection of frozen desserts plants.

(a) At least once during each grading period the health officer shall inspect all frozen desserts plants the products of which are intended for consumption within the city. The health officer may in lieu of inspection by himself or his deputies accept a certificate of inspection by a qualified person, acceptable to said health officer, attesting to the fact of inspection in accordance with the provisions of this article. In case the health officer discovers a violation of any item of sanitation, he shall make a second inspection after a lapse of such time as he deems necessary for the defect to be remedied but not before the lapse of three (3) days, and the second inspection shall be used in determining compliance with the grade requirements of this article. Any violation of the same item of this article on two (2) consecutive inspections may result in immediate degrading or suspension of permit.

(b) One (1) copy of each inspection report shall be delivered to the owner of the premises inspected, or his agent, and shall be readily available at any time for a period of twelve (12) months. Another copy of the inspection report shall be filed with the records of the health department.
(Ch. 14, § 23, added by Ord. 1950, ch. 358, § 5)

Sec. 10-81. Examination of frozen desserts and ingredients.

(a) During each grading period at least four (4) samples of frozen desserts and pasteurized mix from each plant shall be tested by the health officer. Samples of mix or frozen desserts may be taken by the health officer at any time prior to final delivery. Samples of ingredients may be tested as often as the health officer may require. Samples of frozen desserts from stores, cafes, soda fountains, restaurants, and other places where frozen desserts are sold may be tested as often as the health officer may require. Bacterial plate counts and direct microscopic counts shall be made in conformity with regulation of the superintendent of health. Examinations may include such other chemical and physical determinations as the health officer may deem necessary for the detection of adulteration, these examinations to be made in conformity with regulations of the superintendent of health. All proprietors of plants,

stores, cafes, restaurants, soda fountains, and other similar places shall furnish the health officer, upon his request, with the names of all persons from whom their mix or frozen desserts are obtained.

(b) Whenever the average bacterial count, the average reduction time, or the average cooling temperature falls beyond the limit for the grade then held, the health officer shall send written notice thereof to the plant concerned, and shall take an additional sample, but not before the lapse of three (3) days, for determining a new average in accordance with section 10-72(k) of this article. Violation of the grade requirements by the new average or by a subsequent average during the remainder of the current grading period may result in immediate degrading or suspension of the permit, unless the last individual result is within the grade limit.
(Ch. 14, § 24, added by Ord. 1950, ch. 358, § 6)

Sec. 10-82. Grading of frozen desserts plants.

The health officer shall announce the grades of all frozen desserts plants the products of which are ultimately consumed within the City of Providence in the quarterly milk reports. Said grades shall be based upon the following standards:

(A) SANITATION REQUIREMENTS FOR GRADE A FROZEN DESSERTS PLANTS.

All grade A frozen desserts plants shall comply with the following items of sanitation:

Item 1p. Floors.

The floors of all rooms in which mix, frozen desserts or their ingredients are manufactured, frozen or stored, or in which containers and utensils are washed, shall be constructed of concrete or other equally impervious and easily cleaned material and shall be smooth, properly drained, provided with trapped drains and kept clean; provided that cold storage room need not be provided with drains; provided further, that the construction requirements of this shall be waived, in frozen desserts plants which freeze and sell only at retail on the premises, if the portion of the room in which the freezer is installed and the room in which containers or utensils are washed have impervious floors or solid floors covered with tight linoleum or other approved washable material.

Item 2p. Walls and ceilings.

Walls and ceilings of rooms in which mix, frozen desserts, or their ingredients are manufactured or frozen, or in which containers or utensils are washed, shall have a smooth, washable, light-colored surface, and shall be kept clean.

Item 3p. Doors and windows.

Unless other effective means are provided to prevent the access of flies, all openings to the outer air shall be effectively screened and doors shall be self-closing.

Item 4p. Lighting and ventilation.

All rooms shall be well lighted and ventilated.

Item 5p. Miscellaneous protection from contamination.

The various plant operations shall be so located and conducted as to prevent any contamination of the mix, frozen desserts, their ingredients, cleaned equipment or containers. Approved means necessary for the elimination of flies shall be used. Separate rooms shall be provided for (a) the pasteurizing, processing, cooling, freezing and packaging operations, and (b) the washing and bactericidal treatment of containers; provided that, requirement (a) shall be satisfied, in frozen desserts plants which freeze and sell only at retail on the premises, if all mixing, freezing, and packaging processes, but not necessarily the hardening and storage compartments are enclosed in a tight glass or other sanitary enclosure which is open only on the side farthest from the public, which has a dust-tight top extending over the entire freezer, and which is protected by a fan so installed and of such power as to prevent the entrance of flies. Containers of frozen desserts ingredients shall not be unloaded directly into the room or rooms used for pasteurization or subsequent processes. Pasteurized mix or frozen desserts shall not be permitted to come in contact with equipment with which pasteurized mix, frozen desserts, milk or milk products have been in contact, or with which mix or frozen desserts from a lower grade plant have been in contact, unless such equipment has first been thoroughly cleaned and subjected to bactericidal treatment. None of the operations connected with a frozen desserts plant shall be conducted in a room used for domestic purposes.

Item 6p. Toilet facilities.

There shall be provided toilet facilities conforming with the ordinances of the city and which are kept clean, well ventilated and in good repair. Toilet rooms shall not open directly into any room in which frozen desserts, their ingredients, equipment, or containers are handled or stored. The doors of all toilet rooms shall be self-closing.

Item 7p. Water supply.

The water supply shall be easily accessible, adequate, and of a safe, sanitary quality.

Item 8p. Hand-washing facilities.

Convenient hand-washing facilities shall be provided, including warm running water, soap and approved sanitary towels. The use of a common towel is prohibited. No employee shall resume work after using the toilet room without first washing his hands.

Item 9p. Sanitary piping.

All piping used to conduct ingredients, mix or frozen desserts shall be "sanitary milk piping" of a type which can be easily cleaned with a brush.

Item 10p. Construction and repair of containers and equipment.

All multiuse containers and equipment with which mix, frozen desserts, or their ingredients come in contact shall be constructed in such manner as to be easily cleaned and shall be kept in good repair.

Item 11p. Disposal of wastes.

All wastes shall be properly disposed of.

Item 12p. Cleaning and bactericidal treatment of containers and equipment.

All multiservice containers and equipment for mix, frozen desserts or their ingredients shall be thoroughly cleaned after each usage. All containers shall be subjected to an approved bactericidal process after each cleaning, and all equipment immediately before each usage. When empty and before being returned by a frozen desserts plant, each milk and milk products container shall be effectively cleaned and subjected to bactericidal treatment.

Item 13p. Storage of containers.

After bactericidal treatment all multiuse containers for mix, frozen desserts and their ingredients shall be stored in such manner as to be protected from contamination.

Item 14p. Handling of containers and equipment.

Between bactericidal treatment and usage, and during usage, containers and equipment shall not be handled or operated in such manner as to permit contamination of the frozen desserts, mix or their ingredients.

Item 15p. Storage and handling of single-service containers and utensils.

Caps, parchment papers, wrappers, can liners, single-service sticks, spoons and containers for frozen desserts, mix or their ingredients shall be purchased only in sanitary containers, shall be kept therein in a clean, dry place and shall be handled in a sanitary manner.

Item 16p. Pasteurization of mix.

All mix shall be pasteurized as described in section 10-72 (d) of this article.

Item 17p. Cooling and handling.

All milk and fluid milk products received at the frozen desserts plants for use in frozen desserts or mix shall immediately be cooled in approved equipment to fifty (50) degrees Fahrenheit or less and maintained at that temperature until pasteurized, unless they are to be pasteurized within two (2) hours after receipt and all pasteurized mix shall immediately be cooled in approved equipment to an average temperature of fifty (50) degrees Fahrenheit or less, as defined in section 10-72(k) of this article and maintained thereat until frozen.

All mix which is not frozen at that plant at which it was pasteurized shall be transported to the place of manufacturing or freezing in sealed properly labeled containers and the mix shall be handled in a sanitary manner. Dipping from containers of pasteurized mix is prohibited.

Item 18p. Packaging, etc.

Packaging, cutting, molding, dipping, freezing, hardening and other preparation of mix, frozen desserts or their ingredients shall be done in an approved manner. Containers shall be adequately covered immediately after filling. Caps or covers shall be handled in such manner as to prevent contamination of the packaged contents.

Item 19p. Overflow or spillage.

Product drip or overflow or spilled mix or frozen desserts or their ingredients, shall not be sold for human consumption.

Item 20p. Returns.

Mix or frozen desserts in broken and open containers may, after delivery, be returned to the plant for inspection, but shall not be used for making mix or frozen desserts.

Item 21p. Personnel, health.

The health officer or a physician authorized by him shall examine and take careful morbidity history of every person employed in frozen desserts plants, whose work brings him in contact with the production, handling or storage of mix or frozen desserts, containers, or equipment. If such examination suggests that such person may be a carrier of or infected with the organisms of typhoid or paratyphoid fever or other communicable diseases likely to be transmitted through frozen desserts, said health officer shall secure appropriate specimens of body discharges and cause them to be examined in a laboratory approved by him or by the state health authorities for such examinations and if the results justify, such person shall be barred from such employment.

Such person shall furnish such information, submit to such physical examinations and submit such laboratory specimens as the health officer may require for the purpose of determining freedom from infection including an X-ray examination taken by the city health department or other source approved by the superintendent of health.

Item 22p. Personnel, cleanliness.

All persons, coming in contact with mix, frozen desserts, their ingredients, containers or equipment shall wear clean outer garments and shall keep their hands clean at all times while thus engaged.

Item 23p. Miscellaneous.

All vehicles used for the transportation of mix, frozen desserts or their ingredients shall be so constructed and operated as to protect their contents from the sun and from contamination. Such vehicles shall be kept clean and no substance capable of contaminating mix, frozen desserts or their ingredients shall be transported therein as to permit contamination. All vehicles used for distribution of mix or frozen desserts shall have the name of the distributor prominently displayed thereon.

The immediate surroundings of all frozen desserts plants shall be kept in a neat, clean condition.

Item 24p. Bacterial plate count of pasteurized mix or frozen desserts.

The average bacterial plate count of the pasteurized mix or the frozen desserts shall at no time prior to delivery exceed fifty thousand (50,000) per gram as determined under sections 10-72(k) and 10-81 of this article.

Item 25p. Ingredients.

All mix and frozen desserts ingredients shall be clean, have a fresh wholesome flavor and odor and a normal appearance, be of satisfactory quality and shall be handled or processed in an approved manner.

Milk and milk products used as ingredients in the raw state shall have an average bacterial plate count not exceeding four hundred thousand (400,000) per cubic centimeter or per gram; and milk and milk products used as ingredients in the pasteurized, condensed, evaporated or dried state shall have an average bacterial plate count not exceeding fifty thousand (50,000) per cubic centimeter or per gram; provided, that these limits shall be doubled in the case of cream.

(B) GRADE B FROZEN DESSERTS PLANTS.

Grade B frozen desserts plants are those which conform with all of the requirements for grade A plants, except as follows:

(1) In item 1p floors may be of tight wood or linoleum surfacing instead of concrete, tile, etc., if they are smooth and kept clean; and floor drains are not required.

(2) In item 2p the requirements relative to the surfaces of walls and ceilings shall be waived if they are kept clean.

(3) In item 4p ventilation requirement and the requirement relative to the even distribution of light shall be waived.

(4) In item 24p the average bacterial plate count of the pasteurized mix or the frozen desserts shall at no time prior to delivery exceed one hundred thousand (100,000) per gram.

(5) In item 25p milk and milk products used as ingredients in the raw state shall have an average bacterial plate count not exceeding five hundred thousand

(500,000) per cubic centimeter or per gram; and milk and milk products used as ingredients in the pasteurized, condensed, evaporated or dried state shall have an average bacterial plate count not exceeding two hundred fifty thousand (250,000) per cubic centimeter or per gram; provided, that these limits shall be doubled in the case of cream.

(Ch. 14, § 25, added by Ord. 1950, ch. 358, § 7)

Sec. 10-83. Only products of grade A or B plants to be sold.

No mix or frozen desserts shall be sold for ultimate consumption within the city unless it has been manufactured and frozen in a plant conforming with the grade A or grade B requirements of this article.

(Ch. 14, § 26, added by Ord. 1950, ch. 358, § 8)

Sec. 10-84. Sale of adulterated or misbranded frozen desserts or mix prohibited.

No person shall within the city manufacture, freeze, sell, offer or expose for sale or have in possession with intent to sell, any mix or frozen dessert which is adulterated or misbranded or which has not been pasteurized in accordance with the definition in section 10-72(d) of this article.

(Ch. 14, § 17, added by Ord. 1950, ch. 358, § 2)

Sec. 10-85. Article not construed to prohibit ice-cream wagons.

This article shall not be construed to prohibit the sale of frozen desserts in unpackaged form, including cones and boxes of frozen desserts filled by scoops, by a person possessing a permit to operate an ice-cream wagon.

(Ch. 14, § 21.1, added by Ord. 1951, ch. 472, § 1)

Sec. 10-86. Suspension and reissuing of permit; supplementary regrading.

(a) If at any time between the regular announcements of the grades of frozen desserts plants, a lower grade or a suspension of the permit shall become justified in any case, the health officer shall, subject to the provisions of sections 10-74 to 10-82, inclusive, of this article, immediately lower the grade or suspend the permit of said frozen desserts plant.

(b) Any frozen desserts plant the grade of which has been lowered or the permit of which has been suspended by the health officer may at any time make application for regrading or the reissuing of the permit.

(c) Upon receipt of a satisfactory application, in case the lowered grade or the suspension of permit is the result of an unsatisfactory bacterial condition or cooling temperature, the health officer shall take further samples at the rate of not more than

two (2) samples per week. The health officer shall regrade the applicant upward or reissue the permit whenever the average of the last four (4) sample results indicates the necessary compliance.

(d) In case the lowered grade or the suspension of permit is due to the violation of any item or items of the specifications prescribed in section 10-82 other than bacterial condition or cooling temperature, the said application must be accompanied by a statement, signed by the applicant, to the effect that the violated item or items of the specifications have been conformed with. Within one (1) week of the receipt of such an application and statement the health officer shall make a reinspection and thereafter as many additional reinspections as he may deem necessary to assure himself that the applicant is again complying with the higher grade requirements and in case the findings indicate compliance, shall award the higher grade or reissue the permit.
(Ch. 14, § 27, added by Ord. 1950, ch. 358, § 9)

Sec. 10-87. Mix and frozen desserts from beyond limits of routine inspection.

Mix and frozen desserts from points beyond the limits of routine inspection of the city may not be sold in the city unless manufactured or controlled under provisions equivalent to the requirements of this article.
(Ch. 14, § 28, added by Ord. 1950, ch. 358, § 10)

Sec. 10-88. Future frozen desserts plants.

All frozen desserts plants from which mix or frozen desserts are supplied to the city, which are hereafter constructed, reconstructed or extensively altered, shall conform in their construction to the grade A requirements of this article. Properly prepared plans for all frozen desserts plants which are hereafter constructed, reconstructed, or extensively altered shall be submitted for approval before work is begun and signed approval shall be obtained from the health officer.
(Ch. 14, § 29, added by Ord. 1950, ch. 358, § 11)

Sec. 10-89. Notification of disease.

Notice shall be sent to the health officer immediately by any frozen desserts manufacturer or distributor among whose employees any infectious, contagious or communicable disease occurs.
(Ch. 14, § 30, added by Ord. 1950, ch. 358, § 12)

Sec. 10-90. Procedure when infection suspected.

When suspicion arises as to the possibility of transmission of infection from any person concerned with the handling of mix, frozen desserts or their ingredients, the health officer is authorized to require any or all of the following measures:

(a) The immediate exclusion of that person from handling mix, frozen desserts or their ingredients;

(b) The immediate exclusion of the supply concerned from distribution and use;

(c) Adequate medical and bacteriological examination of the person or his fellow workers and of his and their body discharges.

(Ch. 14, § 31, added by Ord. 1950, ch. 358, § 13)

Sec. 10-91. Rules, regulations to enforce article.

The health officer is hereby authorized to make such new and additional rules and regulations as he may deem necessary to more effectively enforce the provisions and intent of this article, and such rules and regulations shall have the same force and effect as the provisions of this article until changed by the city council by ordinance duly enacted.

(Ord. 1950, ch. 358, § 3; Ord. 1962, ch. 1516, § 1)

Sec. 10-92. Copies of regulations for licensees.

(a) Licensees shall receive a copy of this article and all rules and regulations supplementary thereto at the time of receiving their licenses for the first time, and thereafter they shall receive copies on request.

(b) Upon promulgation of a new rule or regulation by the health officer in accordance with the provisions hereof a copy thereof shall be mailed to each licensee at the address set forth in his application for a permit, and the health officer shall publish the same in the same manner as is now required for the publication of ordinances.

(Ord. 1950, ch. 358, § 3; Ord. 1962, ch. 1516, § 1)

Sec. 10-93. Penalties for violation of article.

Any person who shall violate any of the provisions of this article or any rules or regulation of the health officer made in accordance with the provisions hereof shall be guilty of an offense and shall be punished in accordance with section 1-10 of this Code of Ordinances.

(Ord. 1950, ch. 358, § 3; Ord. 1962, ch. 1516, § 1)

Secs. 10-94—10-103. Reserved.

ARTICLE V. SLAUGHTERING POULTRY*

Sec. 10-104. Floors of premises.

The floor of every place where poultry is slaughtered or plucked must be of cement or some other material impervious to water. Wooden floors shall not be used.

(Rules of Bd. of Ald., ch. 8, r. 1; Rev. Ords. 1946, ch. 14, § 9)

***Cross reference—**Keeping of fowl, § 4-4.

State law reference—Sanitary inspection, §§ 21-27-1—21-27-9, Gen. Laws 1956.

Sec. 10-105. Walls of premises.

The walls of every room or apartment where poultry is slaughtered or plucked shall be constructed of cement or covered with metal or some other substance satisfactory to the superintendent of health, to a height of five (5) feet from the floor.
(Rules of Bd. of Ald., ch. 8, r. 2; Rev. Ords. 1946, ch. 14, § 10)

Sec. 10-106. Supply of running water.

Every place where poultry is slaughtered or plucked must have an ample supply of running water.
(Rules of Bd. of Ald., ch. 8, r. 3; Rev. Ords. 1946, ch. 14, § 11)

Cross reference—Water and sewer services, § 25-1 et seq.

Sec. 10-107. Use of cans or troughs.

The slaughtering of poultry shall be done over cones, metal cans or troughs made of or lined with metal, and, if required by the superintendent of health, covered on the outside with metal.
(Rules of Bd. of Ald., ch. 8, r. 4; Rev. Ords. 1946, ch. 14, § 12)

Sec. 10-108. Plucking or removing of feathers.

Plucking or removal of feathers shall be done over troughs, bins or cans made of or lined with metal, and, if required by the superintendent of health, covered on the outside with metal.
(Rules of Bd. of Ald., ch. 8, r. 5; Rev. Ords. 1946, ch. 14, § 13)

Sec. 10-109. Cleaning rooms.

Every room or apartment where poultry is slaughtered or plucked shall be thoroughly cleaned to the satisfaction of the superintendent of health at least at the close of every day during which slaughtering or plucking is done. Such cleaning shall include the removal of all feathers, blood, manure and other refuse from the room or apartment and a thorough cleaning of all walls, floors and apparatus used in killing and plucking.
(Rules of Bd. of Ald., ch. 8, r. 6; Rev. Ords. 1946, ch. 14, § 14)

Sec. 10-110. Provisions inapplicable to slaughtering for family use.

The provisions of this article inclusive shall not apply to any person who slaughters or plucks poultry exclusively for his own or his family's use or to the premises where such slaughtering or plucking is done.
(Rules of Bd. of Ald., ch. 8, r. 7; Rev. Ords. 1946, ch. 14, § 15)

Chapter 11

HARBOR AND PORT*

Sec. 11-1. Harbormaster.
Sec. 11-1.1. Harbor moorings and anchorages.
Sec. 11-2. Harbor management commission—Establishment and authority.
Sec. 11-3. Same—Composition.
Sec. 11-4. Same—Ex-officio members.
Sec. 11-5. Same—Appointments.
Sec. 11-6. Same—Officers.
Sec. 11-7. Same—Compensation.
Sec. 11-8. Same—Additional powers and duties.
Sec. 11-9. Prohibited activities on and within the waters of the city.
Sec. 11-10. Port commission—Powers and responsibilities.
Sec. 11-11. Port commission—Advisory opinion.
Sec. 11-12. Port commission—Operation of the Port of Providence.
Sec. 11-13. Port commission—Staffing.
Sec. 11-14. Port district.

***Editor's note—**Ord. 2012, ch. 2012-21, approved May 5, 2012, amended Ch. 11 in its entirety to read as set out herein. Former Ch. 11, §§ 11-1—11-14, pertained to similar subject matter and derived from Ord. 2012, ch. 2012-5, § 1, approved Jan. 9, 2012.

Cross reference—Bridges, § 23-154 et seq.

State law references—Treatment of shipping and navigation under state law, chapters 46-1—46-11, Gen. Laws 1956; according to § 46-10-1, commissioner of wrecks and shipwrecked goods shall be appointed annually by council, but no such ordinance has been enacted; shore development, ch. 46-3, Gen. Laws 1956; harbors, harbor lines, ch. 46-4, Gen. Laws 1956; construction of port facilities, ch. 46-5, Gen. Laws 1956; obstructions to navigation, ch. 46-6, Gen. Laws 1956.

Special act relative to harbor and public waters of Town of Providence, see Digest of 1822, as amended by Act of Jan. 21, 1837, Act of Oct. 27, 1841, Act of May 9, 1845, and Act of May 4, 1888; special act establishing harbor line on westerly side of Providence River south of Fields Point and authorizing city to take riparian rights, P.L. 1940, c. 839; special act establishing harbor line between Fox Point and railroad bridge at India Point, P.L. 1865, c. 557, as amended by P.L. 1928, c. 1241; special act establishing harbor lines on easterly side of river from Crawford Street Bridge to Fox Point, P.L. 1879, c. 758, as amended by P.L. 1928, c. 1241; other special acts authorizing establishment of harbor lines, Acts of March 3, 1855; P.L. 1885, c. 476; P.L. 1890, c. 914; P.L. 1892, c. 1096; P.L. 1896, c. 424.

Sec. 11-1. Harbormaster.

(a) *Appointment.* In accordance with R.I.G.L. § 46-4-2, the city council shall appoint a harbormaster for the harbor of the city, defined as all the public waters westerly of the easterly sides of the ship channels in the Seekonk River, Providence River and Harbor and Narragansett Bay from the Pawtucket-Providence city line southerly to the point of intersection of the ship-channel side with a straight line drawn from Rumstick Point on the east shore to Rocky Point on the west shore, excluding that area subject to the jurisdiction of Cranston. The harbormaster shall report to the commissioner of public safety.

(b) *Powers and duties.* The powers and duties of the harbormaster shall include, but are not limited to, administering and enforcing the harbor management plan, enforcing all federal, state, and local laws pertaining to activity in the harbor, recommending rules, regulations, and ordinances pertaining to the harbor to the city council, serving as an ex-officio member of the harbor commission, and carrying out all other powers and duties authorized to the harbormaster under various state and federal marine laws.
(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-1.1. Harbor moorings and anchorages.

(a) *Harbor moorings and anchorages program.* There is hereby established a mooring and anchorages program for the harbor of the city, as defined in section 11-1(a) above, to be administered and supervised by the harbormaster.

(b) *Definitions.* For purposes of this section, the following definitions shall apply:

Allocation date means March 1 of each calendar year. The harbormaster may extend the allocation date if, and only if, any unallocated mooring permits remain as of the allocation date.

Anchorage or *transient anchorage* means that location and mooring tackle within the harbor available for use by transient boaters to moor vessels for up to three (3) consecutive days at a time.

Applicant means a person, whether an individual, partnership or corporation, seeking to obtain usage of a mooring or anchorage pursuant to this chapter. An applicant must own fifty (50) percent or greater of the vessel which would have use of the mooring or anchorage.

Application deadline means February 1 of each year.

Moor means to secure a vessel to the bottom of a waterbody by the use of mooring tackle.

Mooring or *permanent mooring* means that location within the harbor duly permitted by the city, by and through the harbormaster, and registered to the applicant.

Mooring permit means the official permit issued by the harbormaster to allow the use of a mooring in the harbor.

Mooring tackle means all hardware used to secure a vessel at a mooring.

Outhaul means a non-single-point anchoring device, for the purpose of securing a boat in tidal waters and retrieving it from shore.

Resident means any permanent, full-time inhabitant of the city. In order to enable the city to comply with state law governing assignment of moorings to residents and non-residents, proof of residence shall be required at the time of application for a mooring permit and shall be established by presentation of a driver's license or equivalent identification.

Vessel means every description of watercraft used or capable of being used as a means of transportation on water.

(c) *Allocation of moorings.* Moorings shall be allocated by the harbormaster through the allocation of mooring permits.

(1) The deadline for the harbormaster to allocate mooring permits each year is on the allocation date. Each permit will be valid for a three-year period from the allocation date, provided that:

   a. Moorings may be occupied only during the period March 1 through November 30 of any calendar year.

(2) All persons wishing to apply for a mooring permit shall file an application, on a form approved by the harbor management commission, and obtained from the harbormaster. Applications shall be filed by no later than the application deadline for the allocation date of any calendar year, and at any time after the allocation date only when unallocated mooring permits remain.

(3) All applications must be accompanied by a non-refundable application fee of twenty-five dollars ($25.00), payable to the City of Providence. The harbormaster shall not accept an application unless payment is rendered at the time the application is submitted.

(4) In the event the applications for mooring permits as of the application deadline, as defined in subsection 11-1.1(c)(2) exceed the number of moorings available, then mooring permits shall be assigned by a lottery system, operated by the harbormaster in accordance with the following guidelines.

   a. Between the application deadline and the allocation date, the harbormaster will conduct a lottery by which numbers will be randomly drawn to assign each applicant a position on a list. Moorings will be allocated according to the applicants' randomly drawn numbers, beginning with number one (1). After all available mooring are allocated, a wait list will be developed following the same randomly drawn numbers.

b. The lottery shall be held at a publicly noticed meeting of the harbor management commission. Notice shall be posted in accordance with the Open Meetings Act, including but not limited to posting in the office of the clerk and on the website of the secretary of state.

c. Moorings shall be allocated to both residents and non-residents of the city. In accordance with the regulations of the state coastal resources management council ("CRMC"), the ratio of resident permit holders to non-resident permit holders may not exceed 3:1.

d. Permits may not be transferred. If a permit holder does not wish to maintain a permit for the full three-year period, the permittee shall return the permit to the harbormaster, who shall re-assign the permit to the next on the wait list. Should there be no wait list remaining, a special lottery will be held to re-assign the permit.

(5) All permit holders must re-apply for a new three-year permit. Each year, the mooring allocation process set forth in this section shall be repeated for any moorings unallocated from the prior year and any moorings whose three-year permit has expired.

(d) *Forfeiture of mooring space.* Any permit holder shall be deemed to have forfeited his mooring space by reason of anyone one (1) of the following:

(1) Failure to comply with any of the requirements of this section 11-1.1; or

(2) Failure to respond to the harbormaster's notice that the mooring does not comply with the mooring tackle standards set forth in the harbor management plan, and any applicable state or federal regulations; or

(3) The mooring has been displaced or moved from its permitted location without approval; or

(4) Failure to display the mooring sticker on the mooring buoy; or

(5) Failure to resurface, repair or replace mooring tackle within sixty (60) days after being advised to do so by the harbormaster.

(e) *Occupancy of mooring.* No vessel shall occupy a mooring other than the one (1) for which it has been permitted. The harbormaster shall have the authority to move or cause to be moved any vessel violating the provisions of this section, at the expense and risk of the vessel owner.

(f) *Temporary guest use.* The holder of a mooring permit may allow temporary guest use of a mooring by a vessel other than the one (1) permitted, provided that the following conditions are met:

(1) The mooring owner, or his agent, must notify the harbormaster upon the vessel's arrival at the mooring.

(2) No guest may use a mooring for more than fourteen (14) days.

(g) *Transient anchorages.* The harbormaster shall assign city-owned transient anchorages to vessels on a first to arrive basis. The maximum length of stay on a transient anchorage is three (3) consecutive days.

(h) *Outhauls.* Any outhauls shall be subject to the regulatory jurisdiction of the CRMC.

(i) *Fees.* The following fees shall apply:

(1)	Application fee pursuant to section 11-11.1(c) above	$25.00
(2)	Annual fee for three-year mooring permit	350.00
(3)	Fee for use of a city-owned transient anchorage, per day (twenty-four-hour period)	75.00

All fees shall be payable to the City of Providence, and shall be submitted to the harbormaster. The mooring permit fee shall not be pro-rated if a permittee returns the permit to the harbormaster prior to the expiration of the permit, or vacates, abandons, or fails to utilize a mooring. Annual payment is due on or before issuance of a mooring permit.

(j) *Fines.* In addition to any other penalties provided for by law, the following violations shall be subject to fines for each day the violation occurs and continues:

(1)	Unauthorized use of a city-owned transient mooring (per day)	$150.00
(2)	Unauthorized use of a permitted annual-use "permanent" mooring (per day)	150.00

Fines shall be assessed by the harbormaster, and shall be paid to the City of Providence.

(k) *Establishment of fund.* All fees and fines due and payable under this section 11-1.1 shall be placed in a separate fund in the city treasury, which is hereby established. The fund shall be used for the implementation, operation and maintenance of the moorings and anchorages programs established by this section 11-1.1, subject to the supervision and approval of the harbor management commission. All expenditures and accountings shall be made in accordance with the provisions of the City's Home Rule Charter and Code of Ordinances.
(Ord. No. 2017-5, § 1, 2-22-17; Ord. No. 2019-49, § 1, 10-22-19)

Sec. 11-2. Harbor management commission—Establishment and authority.

There shall be a harbor management commission which shall:

(1) Be responsible for preparing a harbor management plan for the harbor of the city, as defined in section 11-1 of this chapter;

(2) Provide for annual review of the harbor management plan;

(3) Recommend any additions or modifications to the plan as may be deemed necessary;

(4) Assist in the evaluation of the city's harbor management operation;

(5) Hear appeals to actions of the city in execution of the plan;

(6) Initiate studies and other actions as may be necessary for proper management of the tidal waters of the city in accordance with the City Charter and state enabling legislation.

(7) Be responsible for the development and recommendation of additional policies, rules and regulations for the harbor management plan and subsequent ordinances, subject to approval of the city council and, where applicable, the coastal resources management council.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-3. Same—Composition.

The harbor management commission shall consist of seven (7) voting members appointed by the mayor and subject to approval by the city council. All appointed members of the commission must be residents of the city. The voting members of the commission shall elect a chairperson by simple majority vote. No current city employee or elected official shall be eligible for appointment to the harbor management commission as a voting member. Such commission shall, to the extent practicable, include a member of the conservation commission or the port commission.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-4. Same—Ex-officio members.

Each ex-officio member shall be a nonvoting member of the harbor management commission. The harbormaster, the commissioner of public safety, the superintendent of parks, and the mayor shall serve as ex-officio members of the commission.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-5. Same—Appointments.

Upon enactment of this section, two (2) appointees shall be appointed for a term of one (1) year (expiring December 31, 2012); two (2) appointees shall be appointed for a term of two (2) years (expiring December 31, 2013); three (3) appointees shall be appointed for a term of three (3) years (expiring December 31, 2014). Upon expiration of these initial terms, each subsequent appointee shall serve for a term of three (3) years. All such three-year terms shall expire at the end of their respective third calendar year (December 31) notwithstanding the actual date of appointment.

Vacancies shall be filled as necessary. Any person appointed to fill an unscheduled vacancy shall serve for the remainder of the unexpired term. The commission may also appoint subcommittees to address specific duties of the commission.
(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-6. Same—Officers.

A chairperson and vice-chairperson shall be elected by the members of the commission. Meetings shall be called by the chairperson or at the request of at least four (4) members of the commission. The commission shall meet monthly and shall conform to open meeting laws.
(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-7. Same—Compensation.

No voting member of the harbor management commission shall receive compensation for service to the commission.
(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-8. Same—Additional powers and duties.

The harbor management commission shall be the municipal advisory and appeal body authorized to prepare and to amend, subject to city council approval, a harbor

management plan, and to oversee the implementation and enforcement of such plan and subsequent implementing ordinances, regulations, and programs. The harbor management commission shall adopt rules of procedure and operation for its meetings and is authorized to:

(1) Recommend to the city council the adoption of rules, regulations and other amendments to the harbor management plan and its subsequent ordinances which may be necessary to fulfill the goals and objectives of the harbor management plan and meet the requirements of this chapter.

(2) Recommend, as necessary, additional authorities and duties for the harbormaster.

(3) Assist in the preparation of an annual budget for harbor management in accordance with the provisions of the City Charter.

(4) Recommend the expenditure of budgeted funds to acquire services or materials necessary for the implementation of the harbor management plan, subject to approval of the city council.

(5) Recommend fees and fines, subject to city council approval, for the implementation of the harbor management plan, including support of the harbormaster's payroll, improvement to moorings, anchorages, accessways, marine sanitation, surveys, studies, and other activities deemed necessary for carrying out the goals, policies, and implementation of the harbor management plan.

(6) Review and revise as necessary the harbor management plan and subsequent ordinances for city council and coastal resources management council approval. The harbor management plan and its ordinances shall be reviewed and revised at least once every five (5) years. Public participation and input shall be encouraged during each five-year review. Significant public notice, which shall include notice in the newspaper, shall be given by the commission for all meetings at which the review and revision of the harbor management plan will be discussed.

(7) Assist in the coordination of all public and private agencies, commissions and other organizations which have interest or jurisdiction with regard to the tidal waters of the city.

(8) Review for consistency with the harbor management plan any application for a local, state or federal permit for any water-based activity taking place within the jurisdiction of this article, and to respond in a timely fashion with recommendations to the regulating agencies.

(9) Review and make recommendations on proposed water use activities contiguous to the waterfront, and in the harbor as defined in section 11-1 of this chapter, within the jurisdiction of the city that are received for review by other municipal agencies.

(10) Advise the mayor and city council on the performance and/or the qualifications of the harbormaster.

(11) Coordinate and/or conduct a minimum of one (1) U.S. Coast Guard-approved boating safety class per year.

(12) Conduct, with the harbormaster, not less than one (1) meeting per month and one (1) or more public hearings per year. The dates and times are to be determined by the harbormaster and the harbor management commission and are designed to solicit public comments regarding all elements of the harbor management plan.

(13) Members of the public may suggest revisions to the harbor management plan at any meeting of the commission. Each suggested revision shall be noted in the minutes of the commission's meetings. The minutes shall also reflect the actions taken by the commission on the request. The commission shall also, on a semiannual basis, provide to the city council a report of all suggested revisions made by the public and a written statement as to how the commission acted upon the suggested revision.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-9. Prohibited activities on and within the waters of the city.

(a) *Prohibited activities.* It shall be unlawful for any person operating a motorboat or vessel on and within the waters of the City of Providence to:

(1) Operate an unregistered and/or unnumbered motorboat or vessel;

(2) Operate a motorboat or vessel within a water area which has been clearly marked by buoys or some other distinguishing device, as a bathing, swimming or otherwise restricted area; provided, however, that this section shall not apply in the case of an emergency, or to patrol or rescue craft;

(3) a. Operate a motorboat or vessel at a speed of greater than five (5) miles per hour no wake within areas designated by the port commission;

b. Operate a motorboat or vessel within nondesignated areas at a speed greater than forty-five (45) miles per hour during the hours from sunrise to sunset and twenty-five (25) miles per hour during periods of darkness or other periods of restricted visibility;

(4) Operate a motorboat or vessel in a manner which shall unreasonably or unnecessarily interfere with any other motorboat or vessel, or with the free and proper navigation of the waters of the city;

(5) Fail to stop and render assistance in the event of a collision, accident or other casualty, and/or fail to provide identification, in writing, to any person injured and to the owner of any property damaged in the collision, accident or other

casualty, so far as the operator of any motorboat or vessel involved in a collision, accident or other casualty can do so without serious danger to his or her own vessel, crew and passengers;

(6) Fail to report any accident, casualty, vandalism or theft to the department of environmental management or the police department where such accident, casualty, vandalism or theft involving a motorboat or vessel is in excess of five hundred dollars ($500.00);

(7) Operate a motorboat or vessel with improper:

a. Light installation;

b. Use of lights;

c. Sound-producing devices;

d. Personal flotation devices (PFD);

e. Fire extinguishers; and

f. Muffling devices as set forth in state law.

(8) Operate a motorboat or vessel, or manipulate water skis, surfboards or similar devices in a reckless manner so as to endanger the life, limb or property of another;

(9) Operate a motorboat or vessel, or manipulate water skis, surfboards or similar devices while intoxicated or under the influence of any narcotic drug, barbiturate or marijuana. A person arrested and charged with operating any motorboat or vessel, or manipulating any water skis, surfboard or similar device while under the influence of intoxicating liquor or narcotic or habit-forming drugs shall have the right to be examined at his or her own expense immediately after his or her arrest by a physician selected by him or her, and the officer so arresting or so charging that person shall immediately inform that person of this right and afford him or her a reasonable opportunity to exercise the same, and at the trial of that person, the prosecution must prove that he or she was so informed and was afforded such opportunity;

(10) Dock or otherwise make fast any motorboat or vessel to any pier, channel marker, buoy, wharf or other shore structure without the consent of the owner, except in the case of an emergency;

(11) Operate a motorboat or vessel on and within the waters of the city for towing a person or persons on water skis, or a surfboard or similar device unless there is in the motorboat or vessel:

a. A person at least twelve (12) years of age, in addition to the operator, in a position to observe the progress of the person or persons being towed;

b. At least one (1) personal flotation device (PFD) for each person being towed.

(12) Operate a motorboat or vessel on and within any waters of the city towing a person or persons on water skis, a surfboard or similar device beginning at one (1) hour after sunset and ending at one (1) hour before sunrise;

(13) Engage in water skiing, surfboarding, or similar activity at any time between the hours beginning at one (1) hour after sunset and ending at one (1) hour before sunrise, or within areas in which said activities are prohibited;

(14) Operate or manipulate any motorboat, vessel, tow rope or other device by which the direction or location of water skis, a surfboard, or similar device may be affected or controlled in such a way as to cause the water skis, surfboard, or similar device, or any person thereon, to collide with or strike against any object or person;

(15) Conduct a regatta, motorboat, or other boat race, marine parade, tournament, or exhibition, except on the terms and conditions specifically set forth by the port commission;

(16) Refuse to move or stop on oral command of the harbormaster, assistant harbormaster, or police officer operating from a patrol boat identified as such, and exercising the duties lawfully assigned to him or her;

(17) Engage in scuba diving, skin diving, or snorkeling in an area where power or motorboats are operated, unless the proper warning flags, as set forth in state law, are posted;

(18) Operate a motorboat or vessel within fifty (50) feet of any warning flag as set forth in state law;

(19) Construct and/or place a mooring without a permit issued by the port commission;

(20) Throw, dispose of, deposit, or cause to be thrown, disposed of, or deposited, bottles, glass crockery, cans, scrap metal, junk, paper, garbage, refuse or debris of any nature, or any noxious substance in or upon any of the waters within the city;

(21) Deposit or abandon a vessel or structure upon the shore, a public right-of-way or on and within the waters of the city. When any vessel or structure is deposited or abandoned in the waters of the city, the same may be removed by the police department, or its lawfully authorized agent.

a. *Notice of removal of vessel/harbor structures.* If the person who owns, has an interest in, or exercises any control over the vessel or structure, or otherwise is known, the chief of police, or the harbormaster, shall give written notice by certified mail to said person to remove the vessel or structure within a specified time.

b. *Removal of vessel/harbor structures.* If the vessel or structure is not removed within the time specified in the notice and in a manner and to a

place satisfactory to the chief of police, or the harbormaster, or if no such person is known to the chief of police, or his lawfully designated agent, upon whom the notice can be served, then the chief of police, or the harbormaster, may proceed to remove, or cause the vessel or structure to be removed, in a manner and to a place the chief of police, or his lawfully designated agent, shall deem appropriate.

c. *Liability.* In the event that such person identified in paragraph (1) above, shall allow a vessel or structure to be removed by the chief of police, the harbormaster, in accordance with this chapter, then such person shall be liable to pay the cost and expenses of the removal and storage, or to repay the same when paid by the city. The expense may be recovered in an action brought by the city solicitor against the owner(s). If the owner(s) are unknown or the vessel or structure is unclaimed within ninety (90) days of the removal, the city may sell the vessel or structure. The proceeds from the sale shall be used to defray the cost the city incurred in the removal and storage of the vessel or structure, and in the administration of this section.

(22) Engage in rafting on a single mooring or anchor, unless such rafting does not unreasonably interfere with any adjacent single moorings or anchorages. Motorboats and/or vessels in a raft shall be manned at all times;

(23) Operate a marine toilet at any time so as to cause or permit to pass or to be discharged into harbor waters, any untreated sewage, or other waste matter or contaminant of any kind, and/or dumping of holding tanks containing anything other than fresh water or sea water into harbor waters or no discharge zones;

(24) Moor or anchor a houseboat or floating business unless such mooring or anchoring is done within designated areas. In accordance with R.I.G.L. § 46-22-91, houseboats and floating businesses are prohibited from berthing or mooring in coastal ponds and in all CRMC designated Type 1 and Type 2 waters. Houseboats and floating businesses are also prohibited from mooring or anchoring in tidal waters unless within the bounds of a marina.

(25) Swim in any navigation fairways, city dock areas, or launch areas. In mooring fields and transient anchorage areas swimming is prohibited, with the exception of vessel owners or crews or persons contracted to do maintenance on the boat or its mooring tackle within a reasonable distance of said boat. Waterskiing shall be prohibited in all designated channels, fairways and mooring areas.

(b) *Miscellaneous provisions.* Any time the chief of police, or the harbormaster, directs that a motorboat or vessel be towed pursuant to this chapter, there shall be a fee assessed to the owner of said motorboat or vessel for said towing. Said fee shall be one hundred dollars ($100.00) and shall be subject to annual revision by the

commissioner of public safety, or his lawfully designated agent. Should the towing be performed by a commercial towing service, this fee shall be in addition to the towing fee charged by the towing service.

(c) *Definitions.* As used in this section, unless the context clearly requires a different meaning:

Houseboat means a building constructed on a float, raft, or barge that is used primarily for single- or multiple-family habitation; if used for transportation, this use is secondary.

Floating business means a building constructed on a raft or hull that is represented as a place of business, including, but not limited to, waterborne hotels, restaurants, marinas or marina-related businesses.

Motorboat means any vessel whether or not the vessel is propelled by machinery. For the purposes of this chapter, motorboat shall not include houseboats as defined in the General Laws of Rhode Island, any ferry, canoes and rowboats twelve (12) feet in length or less.

Operate means to navigate or otherwise use a motorboat or vessel.

Person means an individual, partnership, firm, corporation, association, or other entity.

Vessel means every description of watercraft, other than a seaplane on the water, used or capable of being used as a means of transportation on water.

(d) *Enforcement authority.*

(1) The city or the harbormaster shall have the authority to enforce the provisions of this section and in the exercise thereof, shall have the authority to stop and board any motorboat or vessel subject to this section.

(2) Such enforcement authority as set forth in subsection (1) above shall be concurrent with that possessed by the department of environmental management, pursuant to R.I.G.L. §§ 46-4-2 and 46-22-17.

(e) *Penalties for violation.*

(1) The general penalties provided for by section 1-10 of the Code of Ordinances shall apply to violations of this chapter, except that any person electing to appear before the clerk of the court, or in lieu of a personal appearance electing to enter an appearance by mail, and admitting the violations charged shall be punished by a fine as set forth for each violation as follows:

a. Any person who violates any provision of subsection (a)(3)a., (7) or (18) of this section shall be subject to a fine of fifty dollars ($50.00) for each violation.

b. Any person who violates any provision of subsection (a)(1), (5), (7), (15) or (16) of this section shall be subject to a fine of one hundred dollars ($100.00) for each violation.

c. Any person who violates any provision of subsection (a)(11), (12), (13) or (14) of this section shall be subject to a fine not to exceed two hundred dollars ($200.00) for each violation.

d. Any person who violates the provisions of subsection (a)(3)b. of this section shall be subject to the following fines:

MPH in Excess of Speed Limit	*Fine*
1—10	$ 25.00
11—15	50.00
16—20	75.00
21—25	100.00
26 and above	5.00 per mile in excess of speed limit

e. Any person who violates the provisions of subsection (a)(3)b. of this section shall be required to attend a boating safety course in addition to the payment of any fine. In the event a fine as set forth for each violation is not paid or a plea of not guilty is not entered by any person charged with any violation prior to the fourteenth day after the date of the violation, said fine shall be doubled.

In the event a fine as set forth for each violation is not paid or a plea of not guilty is not entered subsequent to the fourteenth day after the date of violation, said fine shall be tripled.

(2) Any person who violates any provision of subsection (a)(6), (19), (20), (21), (22) or (23) of this section shall be guilty of a petty misdemeanor and shall be subject to a fine not to exceed five hundred dollars ($500.00), or imprisonment not to exceed thirty (30) days, or both for each violation.

(3) Any person who violates any provision of subsection (a)(2), (4), (8), (9), (10) or (24) of this section shall be guilty of a misdemeanor and shall be subject to a fine not to exceed one thousand dollars ($1,000.00), or imprisonment not to exceed one (1) year, or both, for each violation.

(4) Any person charged with any violation set forth in subsection (a)(3)a., b., (5), (7), (11), (12), (13), (14), (15), (16), (17) or (18) of this section and notified in writing by a police officer to appear to answer such charge before the Providence Municipal Court may, in lieu of such appearance, elect to appear in person or by one duly authorized by him in writing, before the clerk of said court, admit the truth of said charge, and pay to said clerk the designated fine; provided that such appearance, admission and payment be made at the office

of said clerk during regular business office hours, within sixty (60) days of such notification, and failure to so appear shall be deemed a waiver of the right to dispose of such charge without personal appearance in court.

(5) In those cases where mail is used for payment of such fine, the payment shall be by check or by money order, and in those cases where payment is attempted with a check drawn against insufficient funds, an additional payment of twenty-five dollars ($25.00) shall be imposed against the violator to defray administrative costs.

(6) The payment of a fine to the clerk of the municipal court as herein provided for any violation set forth in subsections (a)(3)a., (5), (7), (11), (12), (13), (14), (15), (16), (17) and (18) shall operate as a final disposition of the charge.

(7) Notice of any violation set forth in subsections (a)(3)a., (5), (7), (11), (12), (13), (14), (15), (16), (17) and (18) shall indicate the offense charged, a schedule of fines for such violation, the time within which such fine by mail may be exercised, the place to which such fine may be mailed and such other information as will enable the person charged to take advantage of the provisions hereof.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-10. Port commission—Powers and responsibilities.

The port commission, established in accordance with section 1016 of the City Charter, shall have the following powers and responsibilities in addition to those granted by the Charter:

(1) To study and plan for the growth and expansion of the maritime trade in Providence and to file such studies and plans with the mayor, the city council, the harbor management commission, and the city plan commission for consideration;

(2) To seek federal, state, local or private grants for the development of port and working waterfront improvements;

(3) To raise public awareness of the port, working waterfront and industrial maritime activities;

(4) To promote and market the port and the working waterfront of Providence;

(5) To work to expand maritime trade and water-dependent development in the port and the working waterfront;

(6) To assist as needed in the expansion or reconfiguration of the port by leasing, buying and selling land;

(7) To buy, sell and lease equipment and materials as needed for port operations;

(8) To contract the planning and maintenance for any properties or materials that have been acquired;

(9) To maintain and reinvest any revenues generated by the port and the working waterfront, the operation of the commission or by activities that promote the mission of the commission.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-11. Port commission—Advisory opinion.

The port commission may offer advisory opinions to the mayor, the city council or any agency, board or commission on any development proposals, plans and regulations that are being proposed in the port district.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-12. Port commission—Operation of the Port of Providence.

In 1994, the operation and management of the Port of Providence was transferred and the port commission was relieved of all responsibilities spelled out in section 1016 of the City Charter relative to the operation of the port. When this transfer expires, the port commission shall resume the operation of the port.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-13. Port commission—Staffing.

The department of planning and development shall supply staff services to the port commission. The mayor may assign another department(s) to supply staff services if deemed appropriate.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Sec. 11-14. Port district.

The port district shall consist of the area bounded on the south by the Providence Cranston city line, on the west by Narragansett Boulevard, Ernest Street and Interstate 95, on the north by Interstate 195 and on the east by the Providence East Providence city line. The port district consists of the Port of Providence and the Fields Point area; portions of the Washington Park Neighborhood; the Allens Avenue Corridor; and Fox Point.

(Ord. 2012, ch. 2012-21, § 1, 5-5-12)

Chapter 12

HEALTH AND SANITATION*

Article I. In General

Sec. 12-1. Reports of superintendent of health.
Sec. 12-2. Appointment of director in charge of antituberculosis work.
Sec. 12-3. Appointment of supervisor of mosquito control.
Sec. 12-4. Powers of board of hospital commissioners.
Sec. 12-5. Maintenance of free clinics.
Sec. 12-6. Charges for hospital treatment.
Sec. 12-7. Receiving nonresidents as patients.
Sec. 12-8. Establishment of hospital quiet zones.
Sec. 12-9. Designation of hospital quiet zones.
Sec. 12-10. Unnecessary noise prohibited in hospital quiet zone.
Sec. 12-11. Sanitation rules for public lodginghouses.
Sec. 12-12. Wholesome water to be provided.
Sec. 12-13. Filling unwholesome wells.
Sec. 12-14. Separate toilets to be provided.
Sec. 12-15. Keeping disposal facilities in repair.
Sec. 12-16. Deposits in water closets, privies, cesspools, etc.
Sec. 12-17. Removal of poisonous weeds, ivy.
Sec. 12-18. Hazardous waste management treatment facility.
Sec. 12-19. Diesel emission reduction.
Sec. 12-20. Retail Plastic Bag Reduction Act.
Secs. 12-21—12-27. Reserved.

Article II. Relief of the Poor

Sec. 12-28. Annual, monthly reports of director of public welfare to city council.

***Cross references—**Keeping swine, § 4-3; bins for removal of manure and refuse, § 4-5; burying dead animals, § 4-6; removal of dead animals, §§ 4-7, 4-8; rabies control, § 4-19 et seq.; burning at dumping grounds, § 9-8; covered receptacle required to burn refuse, rubbish and waste, § 9-10; food and food products, § 10-1 et seq.; vaccination of pupils in public schools, § 22-10; deposits of offensive matter, § 23-20 et seq.

State law references—Full treatment of law of state as to public health, Title 23, Gen. Laws 1956; state law as to authority of council to make regulations as to nuisances resulting from unhealthy conditions, § 23-19-4, Gen. Laws 1956; special acts relative to duties of superintendent of health, P.L. 1889, ch. 780, P.L. 1909, ch. 467 as amended by P.L. 1932, ch. 1968, P.L. 1935, ch. 3336; special acts relative to appointment of deputies of superintendent of health, P.L. 1872, ch. 1002 as amended by P.L. 1914, ch. 1117, P.L. 1925, ch. 682.

Sec. 12-29. Temporary relief of persons residing in city.
Sec. 12-30. Temporary relief to transients.
Sec. 12-31. Maximum amount allowable for temporary relief; receipts for expenditures.
Sec. 12-32. Certification of accounts.
Sec. 12-33. Return to treasurer of monthly receipts.
Sec. 12-34. Dexter Donation—Meetings of free men of city.
Sec. 12-35. Same—Notice of meetings.
Secs. 12-36—12-45. Reserved.

Article III. Garbage, Trash and Refuse

Sec. 12-46. Definitions.
Sec. 12-47. Authority of council to make rules for removal of refuse, swill, garbage and house offal.
Sec. 12-48. Scope of authority of director of public works.
Sec. 12-49. Director of public works to have charge of collection, disposal.
Sec. 12-50. Director of public works to maintain and operate system of collection.
Secs. 12-51, 12-52. Reserved.
Sec. 12-53. Appointment, function of superintendent of garbage disposal.
Sec. 12-54. Permit to owner to use land as dumping ground.
Sec. 12-55. Permits, regulation of use of dumping grounds.
Sec. 12-56. Placing combustible refuse on vacant land, dumping ground.
Sec. 12-57. Littering.
Sec. 12-58. Deposits of decomposable animal, vegetable, other offensive matter.
Sec. 12-59. Depositing matter taken from catch basin.
Sec. 12-60. Deposits of coal, dust, soot, other matter in public places.
Sec. 12-61. Use of garbage receptacles.
Sec. 12-61.1. Use of dumpsters.
Sec. 12-61.2. Use of recyclable receptacles.
Sec. 12-62. Preparation of combustible rubbish or refuse for collection.
Sec. 12-63. Time to place waste for collection; duty to remove after collection.
Sec. 12-64. Frequency and method of removal of wastes.
Sec. 12-65. License to transport garbage, waste—Required.
Sec. 12-66. Same—Issuance.
Sec. 12-67. Same—Fee for license, renewal.
Sec. 12-68. Same—Expiration, renewal.
Sec. 12-69. Same—Revocation.
Sec. 12-70. Same—Transport to comply with rules and regulations of director of public works.
Sec. 12-70.1. Same—Transport/license to keep segregated recyclables separate from municipal solid waste.
Sec. 12-71. License for removal of swill, offal required.

Sec. 12-72. Restrictions upon appointments, licenses to remove swill, offal.
Sec. 12-73. Duration of appointment, license to remove swill, offal.
Sec. 12-74. Manner of removal of swill, offal; examination of receptacles.
Sec. 12-75. Marking vehicles for removal of swill, offal.
Sec. 12-76. Transport of bones, grease and fats.
Sec. 12-77. Transport of wastepaper.
Sec. 12-78. Transport of ashes, coal, sand and rubbish.
Sec. 12-79. Violations and penalties.
Sec. 12-80. Penalties for littering violations.
Sec. 12-81. Payment of fines—Generally.
Sec. 12-82. Same—Payment by mail.
Sec. 12-83. Same—Effect of payment.
Sec. 12-84. Same—Notice requirements.
Sec. 12-85. Effect of multiple violations relating to litter regulations.
Sec. 12-86. Failure to comply.
Sec. 12-87. Scavenging of household rubbish, garbage and recyclables.
Sec. 12-87.1. Release of gaseous or liquid substance from appliances.
Sec. 12-88. Fencing of vacant lots.
Sec. 12-89. Disposal of leaf and yard debris.
Sec. 12-89.2. Disposal of heavy litter other than at a solid waste management facility.
Sec. 12-89.3. Animal defecation.
Sec. 12-89.4. Premises to be free of animal excrement.

Article IV. Privies and Cesspools

Sec. 12-90. Duty when sewer connection not available.
Sec. 12-91. License for removal of contents; removal by owner on permit.
Sec. 12-92. Duration of license to remove contents.
Sec. 12-93. Fee for license to remove contents.
Sec. 12-94. Apparatus used to remove contents.
Sec. 12-95. Hours of cleaning.
Sec. 12-96. Entire contents to be removed.
Sec. 12-97. Height of contents.
Sec. 12-98. Deposit of contents.
Sec. 12-99. Disinfecting.
Secs. 12-100—12-109. Reserved.

Article V. Rat and Vermin Control

Sec. 12-110. Definitions.
Sec. 12-111. Keeping premises in rat-infested, vermin-infested condition.
Sec. 12-112. New buildings and buildings repaired or altered to be ratproofed.

Sec. 12-113. Buildings or property to be rat eradicated prior to demolition or grading.
Sec. 12-114. Inspection of premises; notice of infested conditions; service of notice.
Sec. 12-115. Duty of owner or occupant to remedy infested conditions.
Sec. 12-116. Injuring ratproofing construction.
Sec. 12-117. Throwing rat or vermin harborage on vacant lands, streets, lakes, other property prohibited—Enforcement against owners and tenants.
Sec. 12-117.1. Reserved.
Sec. 12-118. Feeding domesticated birds, fowl, animals.
Sec. 12-119. Feeding wild birds.
Sec. 12-120. Penalty for violation of article.
Secs. 12-121—12-130. Reserved.

Article VI. Stagnant Water

Sec. 12-131. Prohibition against the accumulation of stagnant water in swimming pools, spas, hot tubs, artificial ponds, and containers on private property.

ARTICLE I. IN GENERAL

Sec. 12-1. Reports of superintendent of health.

The superintendent of health as city registrar shall, on or before the first day of April, annually, prepare and present to the city council a report in print, or other duplicating process, of the number of births, marriages and deaths which occurred in the city during the year ending with the thirty-first day of December next preceding, with such other information and suggestions in relation thereto, as he may deem useful for the promotion of the public health and other interests of the city. Said superintendent may print such other annual reports as he may deem advisable.
(Ord. 1914, ch. 52, § 8; Rev. Ords. 1946, ch. 17, § 3)

State law reference—Registration of births, deaths and marriages, ch. 23-3, Gen. Laws 1956.

Sec. 12-2. Appointment of director in charge of antituberculosis work.

The superintendent of health is authorized and empowered to employ a physician as director in charge of antituberculosis work, whose appointment shall be subject to approval by the mayor, for full-time services to carry out the program of the department with respect to antituberculosis work, and to perform such other duties as the superintendent of health may prescribe.
(Ord. 1941, ch. 1072, § 1; Rev. Ords. 1946, ch. 17, § 1)

Sec. 12-3. Appointment of supervisor of mosquito control.

The superintendent of health is hereby authorized and directed to appoint and employ a supervisor of mosquito control who shall be charged with the performance of the operations and activities necessary and helpful to the eradication of mosquitoes and the elimination of the dangers therefrom. It shall be the duty of the said supervisor to act under the direction of the superintendent of health, or such deputy as said superintendent may designate, in the discharge of his duties, and to make a report thereof to said superintendent of health as often as required by said superintendent.
(Ord. 1943, ch. 1188, § 1; Rev. Ords. 1946, ch. 17, § 2)

State law reference—Suppression or extermination of mosquitoes, § 30-4-5, Gen. Laws 1956.

Sec. 12-4. Powers of board of hospital commissioners.

The board of hospital commissioners shall have all the rights and powers and shall be subject to all the duties and limitations specified in P.L. 1909, c. 467, as amended

by P.L. 1932, c. 1968 and P.L. 1935, c. 2226, and shall have such further powers and duties, not inconsistent with said acts, as may from time to time be prescribed by said city council.
(Ord. 1914, ch. 8, § 2; Rev. Ords. 1946, ch. 17, § 4)

State law references—Special act authorizing city to make gift to Providence Lying-in Hospital, P.L. 1942, c. 1172; special act exempting Hope Hospital from taxation, P.L. 1933, c. 2054.

Sec. 12-5. Maintenance of free clinics.

The board of hospital commissioners is hereby authorized to establish and maintain clinics or dispensaries for outpatients in such parts of the city as said board may determine.
(Ord. 1916, ch. 127, § 1; Rev. Ords. 1946, ch. 17, § 5)

Sec. 12-6. Charges for hospital treatment.

The board of hospital commissioners is authorized to charge and collect reasonable prices for maintenance, care and treatment, in any hospital, clinic or dispensary of the city under the care and management of said board. The charge may be made against patients, who are able to pay for such maintenance, care and treatment or it may be made against those responsible for the maintenance of such patients.
(Ord. 1916, ch. 127, § 2; Rev. Ords. 1946, ch. 17, § 6)

State law references—Special act relating to admission of nonresident patients to Charles V. Chapin Hospital, P.L. 1944, ch. 1504; special acts as to admission and treatment at psychopathic ward of city, P.L. 1929, ch. 1447.

Sec. 12-7. Receiving nonresidents as patients.

The board of hospital commissioners is authorized to receive in any hospital, clinic or dispensary of the city as pay patients persons not residents of the city, when without excluding residents of the city, there is sufficient accommodation therefor.
(Ord. 1916, ch. 127, § 2; Rev. Ords. 1946, ch. 17, § 7)

Sec. 12-8. Establishment of hospital quiet zones.

There is hereby created and established a zone of quiet in all territory within three hundred (300) feet of every hospital regularly maintaining beds for fifteen (15) or more patients in the city.
(Ord. 1916, ch. 141, § 1; Rev. Ords. 1946, ch. 17, § 8)

Sec. 12-9. Designation of hospital quiet zones.

The director of public works shall place and maintain at such conspicuous places as he shall determine within or immediately adjacent to hospital quiet zones a sign displaying the words: "Notice. Hospital, Quiet Zone."
(Ord. 1916, ch. 141, § 2; Rev. Ords. 1946, ch. 17, § 9)

Sec. 12-10. Unnecessary noise prohibited in hospital quiet zone.

No person shall make, cause to be made, or permit to be made by any person, animal or object under his control or authority any unnecessary noise within any hospital quiet zone.
(Ord. 1916, ch. 141, § 3; Rev. Ords. 1946, ch. 17, § 10)

Cross references—Noise generally, §§ 16-10—16-12; noise control, § 16-91 et seq.

Sec. 12-11. Sanitation rules for public lodginghouses.

The superintendent of health shall make sanitary rules and regulations in accordance with state law in regard to public lodginghouses in the city.
(Rev. Ords. 1946, ch. 17, § 14)

State law reference—Act to regulate public lodginghouses in city, see P.L. 1902, c. 1014.

Sec. 12-12. Wholesome water to be provided.

The owner, lessee or agent of any dwelling house, lodginghouse, tenement house, factory, shop, store, hall or public building, shall provide an adequate supply of wholesome drinking water therein, which shall, at all times, be available for the use of the persons therein.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 17, § 12)

Cross reference—Water and sewers generally, § 25-1 et seq.

State law reference—Law of state as to fresh drinking water in factories, §§ 28-21-6, 28-21-12, Gen. Laws 1956.

Sec. 12-13. Filling unwholesome wells.

Whenever, in the opinion of the superintendent of health, the water in any well or cistern is unwholesome, he shall order the owner of such well or cistern to fill the same with ashes, sand or gravel and such owner shall, within ten (10) days after receipt of such order, fill the same in manner aforesaid.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 17, § 13)

Sec. 12-14. Separate toilets to be provided.

The owner of any dwelling house, tenement house or apartment house, shall provide separate and easily accessible proper toilet facilities within each tenement or apartment.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 17, § 11)

Sec. 12-15. Keeping disposal facilities in repair.

The owner, lessee or agent of any land or building shall keep in such repair and sanitary condition as is satisfactory to the superintendent of health every water closet, urinal, privy, privy vault, cesspool, drain, waste pipe, soil pipe, and catch basin, situated on or in such land or building.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 28, § 12)

Sec. 12-16. Deposits in water closets, privies, cesspools, etc.

No person shall deposit, nor allow to be deposited, in any water closet, cesspool, privy vault, drain, waste pipe, or soil pipe, any ashes, swill, rubbish, or solid refuse matter other than fecal matter.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 28, § 8)

Sec. 12-17. Removal of poisonous weeds, ivy.

The owner or occupant of any land upon which there is any poisonous ivy, any Jamestown or jimsonweed, or other poisonous or dangerous weed, shall cause such ivy or weed to be removed within five (5) days after receiving notice so to do from the superintendent of health.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 15, § 17)

Sec. 12-18. Hazardous waste management treatment facility.

(a) Definitions for the purposes of this section:

(1) *Hazardous waste management treatment facility* means hazardous waste management facility as that term is defined for purposes of the Rhode Island Hazardous Waste Management Act of 1978, General Laws of Rhode Island, as amended.

(2) *Agreement* or *contract* means a contract or agreement negotiated between, binding upon, and enforceable against a corporation or individual or developer and the City of Providence.

(3) *Developer* means any person or corporation who proposes to site, construct, substantially alter or operate a hazardous waste management facility in the City of Providence.

(b) No agreement or contract negotiated by any person, corporation, officer, agency, board, department or committee, for the locating of any hazardous waste management treatment facilities in the City of Providence shall become effective unless and until ratified by the Providence City Council.
(Ord. 1983, ch. 83-24, §§ 1, 2, 5-3-83)

Editor's note—Inasmuch as Ch. 83-24 did not specifically amend the Code, codification of §§ 1 and 2 as § 12-18 has been at the editor's discretion.

Cross reference—Agreements for handling of excessive industrial waste, § 25-75(a).

Sec. 12-19. Diesel emission reduction.

(a) *Purpose.* The purpose of this section is to minimize the public health risks associated with exposure to diesel particulate emissions by establishing requirements relating to the use of ultra low sulfur diesel fuel and best available retrofit technology by nonroad and on-road diesel vehicles used in city construction projects, and by city owned, leased or operated diesel vehicles.

(b) *Definitions.*

Best available retrofit technology means technology verified by the United States Environmental Protection Agency (US EPA) or the California Air Resources Board that achieves reductions in particulate matter emissions at the highest classification level for diesel emission control strategies that is applicable to the particular engine and application. Such technology shall not result in a net increase in nitrogen oxides.

City means the City of Providence, its agencies, boards, commissions, and departments, including, but not limited to, the department of parks, the department of public works, and the water supply board.

Contract means a contract with the city for construction projects having a total cost of two million dollars ($2,000,000.00) or more, funded in whole or in part by state and federal monies, and involving the abatement, construction, demolition, rehabilitation, renovation, restoration, or repair of any building, structure, tunnel, excavation, roadway, park or bridge; or the preparation for such construction projects; or any final work involved in the completion of such projects.

Contractor means any entity or person that enters into an agreement or contract with the city, or any entity or person that enters into an agreement with such person or entity (including subcontractors and their subcontractors and suppliers), to perform work or provide goods or services related to such contract.

Director of public property means the city director of public property.

Energy and sustainability manager means the city energy and sustainability manager.

Goods and services mean labor, services, material and/or equipment provided to the city.

Level 1 control means a verified diesel emission control device that achieves a particulate matter (PM) reduction of twenty-five (25) percent or more compared to uncontrolled engine emissions levels.

Level 2 control means a verified diesel emission control device that achieves a particulate matter (PM) emission reduction of fifty (50) percent or more compared to uncontrolled engine emission levels.

Level 3 control means a verified diesel emission control device that achieves a particulate matter (PM) emission reduction of eighty-five (85) percent or more

compared to uncontrolled engine emission levels, or that reduces emissions to less than or equal to one one-hundredth (0.01) grams of (PM) per brake horsepower-hour. Level 3 control includes repowering or replacing the existing diesel engine with an engine meeting US EPA's 2007 Heavy-duty Highway Diesel Standards, published in the federal register at 66 Fed. Reg. 5001 (January 18, 2001), or in the case of a nonroad engine, an engine meeting the US EPA's Tier 4 Nonroad Diesel Standards, published in the federal register at 69 Fed. Reg. 38957 (June 29, 2004).

Nonroad engine means an internal combustion engine (including the fuel system) operating on diesel fuel not used in a motor vehicle or a vehicle used solely for competition or that is not a stationary source, except that this term shall apply to internal combustion engines used to power generators, compressors or similar equipment used in any construction project.

Nonroad vehicle means a vehicle that is powered by a nonroad diesel engine seventy-five (75) horsepower and greater, and that is not a motor vehicle or a vehicle used solely for competition, which shall include, but not be limited to, backhoes, bulldozers, compressors, cranes, excavators, generators, and similar equipment; nonroad vehicles do not include locomotives or marine vessels.

On-road vehicle means any self-propelled vehicle designed for transporting persons or property on a street or highway that operates on diesel fuel, and that has a gross vehicle weight rating of fourteen thousand (14,000) pounds or more.

Stationary generator means a nonmobile machine that uses diesel fuel to produce electrical energy.

Ultra low sulfur diesel fuel means diesel fuel that has a sulfur content of no more than fifteen (15) parts per million.

(c) *Use of ultra low sulfur diesel fuel and best available retrofit technology in nonroad and on-road vehicles.*

(1) Contingent upon the availability of city, state or federal funds to be utilized for purchasing and installing retrofit technology, any diesel-powered nonroad or on-road vehicle that is owned, leased, and/or operated by the city, on and after January 1, 2010, shall:

a. Be powered by ultra low sulfur diesel fuel; and

b. Utilize best available retrofit technology for reducing diesel particulate emissions, with the specification that if level 3 verified emissions control devices have not been verified for use on particular engines, level 2 verified devices must be required; if neither level 3 nor level 2 devices have been verified for use on particular engines, level 1 verified devices must be required.

(2) Any solicitation by the city for a contract for a construction project, and any contract entered into as a result of such solicitation, on or after January 1, 2010, shall include a specification that all contractors in the performance of such contract shall:

a. Use ultra low sulfur diesel in diesel-powered nonroad and on-road vehicles; and

b. Utilize the best available retrofit technology for reducing diesel particulate emissions on all nonroad vehicles and on-road vehicles used on the project site, with the specification that if level 3 verified emissions control devices have not been verified for use on particular engines, level 2 verified devices must be required; if neither level 3 nor level 2 devices have been verified for use on particular engines, level 1 verified devices must be required.

c. Prohibit the use on the project site of nonroad and on-road vehicles powered by a model year 1993 or older diesel engine, unless those vehicles have been upgraded to meet EPA Tier 1 standards for new on-road or nonroad diesel engines, as applicable, and retrofitted with Level 1 control; and

d. Prohibit the use on the project site of nonroad and on-road vehicles powered by a model year 1993 or older diesel engine on and after January 1, 2014.

(3) Upon provision by the contractor to the energy and sustainability manager of appropriate and sufficient documentary evidence, subsections (1)b., (2)b., (2)c. and (2)d. of this section shall not apply to:

a. Any diesel-powered nonroad or on-road vehicle on the project site working five (5) days or less over the life of the project;

b. Vehicles that are specially equipped and used for emergency response, as well as other vehicles that are operated under a contract for emergency response; and

c. Vehicles and equipment used exclusively for snow removal.

(d) *Funding.*

(1) With respect to each application by the city for funding from the State of Rhode Island and/or the Federal Government for a contract, the cost of the construction project(s) applied for shall include the full cost of the emissions reductions measures required in subsection (c)(1). Furthermore, the city shall make regulations which may apply a cap as the city deems appropriate to such reimbursement.

(2) All incremental equipment and installation costs incurred by a contractor for a specific project that are necessary to bring nonroad and on-road vehicles into compliance with the provisions of subsection (c)(2)b. shall be fully reimbursed from project funds, provided that:

a. The control technology is installed before the applicable vehicle is brought onto the project site;

b. The contractor submits documentation, including the technology type, EPA/CARB verification number/control level, manufacturer, make, model, serial number and installation date, proving by date that the technology was installed for this project and certifying that the expenditure for installation was not previously reimbursed by any public agency or public contract; and

c. The control technology is installed prior to January 1, 2014.

(3) Retrofits installed with funds from a construction program shall remain on the diesel-powered nonroad and on-road vehicle for the useful life of the emission control device or the equipment.

(4) Incremental equipment and installation costs incurred by a contractor that are reimbursable under subsection (d)(2) shall be included in the budget for the project and will not be considered in the contractor's bid.

(e) *Compliance.*

(1) Thirty (30) days before beginning work, the contractor shall submit to the energy and sustainability manager for approval a list of all diesel-powered nonroad and on-road vehicles, and stationary generators to be used on the project. The list shall include the following:

a. Contractor and subcontractor name and address, plus contact person responsible for the vehicles or equipment; and,

b. Equipment type, manufacturer, engine model year, engine certification ECM calibration, horsepower, plate, serial number, and expected fuel usage and/or hours of operation; and,

c. For the pollution control technology installed: technology type, serial number, make, model, manufacturer, EPA/CARB verification number/ level, and installation date.

(2) If the contractor subsequently needs utilize project site equipment not on the list, the contractor shall submit for prior approval written notification that attests the equipment complies with all contract conditions.

(3) During periods of inactivity, idling of diesel-powered nonroad and on-road vehicles shall be minimized and shall not exceed the time allowed under state and local laws.

(f) *Enforcement.*

(1) In the event of a violation of any provision of this article, except as provided in subsection (2) and (3) of this section, the contractor shall be liable to pay to the city a civil penalty in the amount of up to five thousand dollars ($5,000.00) for each violation, with each piece of noncomplying equipment and each day of noncompliance being a separate violation, not to exceed a total of twenty-five thousand dollars ($25,000.00) for any one (1) piece of equipment.

(2) No contractor shall make a false statement or claim with respect to any matter material to compliance with the provisions of this section to the city. Any contractor making such a false statement shall pay the city a civil penalty in the amount of up to ten thousand dollars ($10,000.00) for each such statement.

(3) In the event a retrofit installed with funds from a construction project is removed or swapped onto another vehicle, the contractor in violation shall pay to the city a civil penalty not to exceed to ten thousand dollars ($10,000.00) for each piece of noncomplying equipment.

(g) *Regulations.* Within six (6) months of the effective date of this section, the energy and sustainability manager shall promulgate regulations implementing the provisions of this section. In the event that the energy and sustainability manager position is not filled, all duties and responsibilities herein cited shall be carried out by the director of public property.
(Ord. 2009, ch. 09-43, § 1, 7-27-09)

Sec. 12-20. Retail Plastic Bag Reduction Act.

(a) *Purpose.* The purpose of this section is to reduce the number of plastic checkout bags used by retail establishments in the city, curb litter in the streets, protect marine environment, waterways, reduce greenhouse gas emissions, and solid waste by encouraging the use of reusable bags by retail establishments.

The production, use and disposal of plastic checkout bags have significant adverse impacts on the environment. The city desires to conserve resources, reduce greenhouse gas emissions, waste, and marine pollution, and to protect the public health and welfare of its residents. Plastic bags contribute to a significant burden on the city's solid waste disposal and single stream recycling systems.

(b) *Definitions.* As used in this chapter, the following terms shall have the meanings indicated:

Check out bag means any carryout bag provided by a store to a customer at the point of sale. Checkout bags shall not include:

(1) Bags, whether plastic or not, in which loose produce or products are placed by a consumer to deliver such items to the point of sale or check-out area of a retail establishment; or

(2) Laundry or dry-cleaner bags; or

(3) Newspaper bags; or

(4) Bags used to contain or wrap frozen foods, meat or fish, whether prepackaged or not, to prevent or contain moisture.

Recyclable paper bag means a paper bag that is one hundred (100) percent recyclable including the handles, contains at least forty (40) percent post-consumer paper content, and displays the words "recyclable" and "made from 40% post-consumer recycled content" (or other applicable amount) in a visible manner on the outside of the bag.

Retail establishment means any person, corporation, partnership, business venture, or vendor that sells or provides merchandise, goods, or materials directly to a customer, whether for or not for profit, including but not limited to restaurants pharmacies, convenience and grocery stores, liquor stores, seasonable and temporary businesses, jewelry stores, and household goods stores. "Retail establishment" does not include sales by residents at their homes.

Reusable bag means a bag specifically designed and manufactured for multiple reuse, with handles which are stitched and not heat-fused. The bag shall not be made of any non-recycled plastic.

(c) *Requirements.*

(1) If any retail establishment provides a checkout bag to customers, the bag shall comply with the requirements of being a reusable bag or a recyclable paper bag.

(2) The director of the office of sustainability may promulgate rules and regulations to implement this section.

(d) *Education, outreach, and enforcement.*

(1) This section shall be implemented, administered and enforced by the director of the office of sustainability or any other city department or division designated by the city.

a. In order to ensure that this section is properly implemented and enforced, and to ensure that residents and local businesses are properly informed of the provisions of this section, the director of the office of sustainability shall conduct a comprehensive public education and outreach program in collaboration with Providence Public Schools, Providence Community Library, Providence Public Library, Providence community organizations, business stakeholders, environmental advocacy organizations, and other entities such as but not limited to Rhode Island Resource Recovery Corporation and the city's private waste hauler.

b. No more than sixty (60) days after passage, the director of the office of sustainability shall develop and submit to the council, for approval, an implementation and enforcement plan. Additionally, once approved, this plan shall be posted and available to the public on the office of sustainability's website.

c. It shall be the duty of the director of the office of sustainability to submit quarterly reports to the city council. The quarterly reports shall describe in detail the city's efforts to implement, enforce, and educate the public about this section, along with measures of success in appropriate metric, data points, and an accounting of all fines assessed and collected.

1. Two (2) years after passage, reports shall cease to be quarterly and shall be submitted on an annual basis no later than January 31 of each calendar year.

(2) If it is determined that a violation has occurred the city shall issue a warning notice to the retail establishment for the initial violation.

(3) If an additional violation of this article has occurred within one (1) year after a warning notice has been issued for an initial violation, the city shall issue a notice of violation and shall impose a penalty against the retail establishment.

(4) The penalty for each violation that occurs after the issuance of the warning notice shall be no more than:

a. Fifty dollars ($50.00) for the first offense;

b. One hundred dollars ($100.00) for the second offense and all subsequent offenses. Payment of such fines may be enforced through civil action in the city municipal court.

All revenue collected as a result of violations of this section shall be deposited into a designated city fund for furthering community education and outreach on recycling matters.

(e) *Exempt retail establishments.*

(1) The director of the office of sustainability may exempt a retail establishment from the requirements of this chapter for a period of one (1) year upon a finding by the director of the office of sustainability that the requirements of this chapter would cause undue hardship to a retail establishment. An "undue hardship" shall be found only in:

a. Circumstances or situations unique to the particular retail establishment such that there are no reasonable alternatives to bags that are not recyclable paper bags, compostable plastic bags or reusable bags; or

b. Circumstances or situations unique to the retail establishment such that compliance with the requirements of this chapter would deprive a person of a legally protected right; or

c. Circumstances where a retail establishment requires additional time in order to draw down an existing inventory of single-use plastic check out bags. Any retail establishment receiving an exemption shall file with the chief monthly reports on inventory reduction and remaining stocks.

(2) Retail establishments shall apply for an exemption to the director of sustainability using forms provided by the office of sustainability, and shall allow the director of the office of sustainability, or his or her designee, access to all information supporting its application.

(3) The director of the office of sustainability may approve the exemption request, in whole or in part, with or without conditions.

(4) The director of the office of sustainability, by regulation, may establish a fee for exemption requests.

(Ord. No. 2019-16, § 1, 5-1-19)

Secs. 12-21—12-27. Reserved.

ARTICLE II. RELIEF OF THE POOR*

Sec. 12-28. Annual, monthly reports of director of public welfare to city council.

(a) The director of public welfare shall make an annual report to the city council on the first Monday in February, for the next preceding calendar year giving the number of persons assisted by him under the provisions of sections 12-29 and 12-30, together with their nationality and the total amount furnished.

(b) He shall also, on or before the second Thursday of each month, present to the council certified accounts of all necessary articles furnished by him to poor persons, and also of all supplies or materials furnished to, or for services rendered to, him during the preceding month, and also present to said council, at said time, a report, giving the name and residence of each person assisted by him, and the amount paid

*__State law references—__Law of state as to support and discipline of paupers, authorizing City of Providence to prescribe its mode of relief, ch. 40-8, Gen. Laws 1956; act relating to public assistance available to any person in Rhode Island who is in need, ch. 40-9, Gen. Laws 1956; special act authorizing city to contribute to support of orphan asylums, P.L. 1914, ch. 1109.

in cash orders and for articles furnished to each of said persons, and the whole amount received and expended by him for the month preceding the date of said report.
(Ord. 1914, ch. 45, § 4; Rev. Ords. 1946, ch. 27, § 4)

Sec. 12-29. Temporary relief of persons residing in city.

Whenever application for relief shall be made to the director of public welfare by any person residing in the city who shall be deemed by said director not a proper person to be sent to the Dexter Asylum or the State Infirmary, said director is authorized in his discretion to furnish relief to such person either in money or other necessary articles.
(Ord. 1924, ch. 393, § 1; Rev. Ords. 1946, ch. 27, § 1)

Sec. 12-30. Temporary relief to transients.

The director of public welfare may furnish temporary relief to persons transiently in the city as he shall deem to be proper recipients thereof to an amount not exceeding fifteen dollars ($15.00) in money or other necessary articles to any one (1) person in any month.
(Ord. 1924, ch. 393, § 2; Rev. Ords. 1946, ch. 27, § 2)

Sec. 12-31. Maximum amount allowable for temporary relief; receipts for expenditures.

The city controller is hereby authorized to draw upon the city treasurer from time to time, upon the requisition of and to the order of the director of public welfare, to an amount not exceeding five hundred dollars ($500.00) in any one month, as they shall deem necessary to be expended by said director of public welfare in furnishing temporary relief in money, as provided by sections 12-29 and 12-30. Receipts for money expended by the director of public welfare under said sections shall be taken by him and deposited with the city controller.
(Ord. 1939, ch. 978, § 1; Rev. Ords. 1946, ch. 27, § 5)

Sec. 12-32. Certification of accounts.

The director of public welfare shall certify to the city controller for payments thereof all accounts payable under the provisions of this article.
(Ord. 1924, ch. 393, § 3; Rev. Ords. 1946, ch. 27, § 3)

Cross reference—City controller, § 2-84 et seq.

Sec. 12-33. Return to treasurer of monthly receipts.

The director of public welfare shall, on or before the seventh day of each month, make a detailed return under oath to the city treasurer of all money received by him on account of sales or otherwise in his department during the preceding month, and shall at the same time pay the same to the city treasurer.
(Rules of Bd. of Ald., ch. 4, r. 3; Rev. Ords. 1946, ch. 27, § 8)

Cross reference—City treasurer, § 2-65 et seq.

Sec. 12-34. Dexter Donation—Meetings of free men of city.

A meeting of the free men of the city shall be held in the city council chamber, or any other convenient place in city hall, biennially on the fourth Thursday of October, in every even-numbered year at 2:00 o'clock p.m., eastern daylight saving time or eastern standard time, as may be in effect, for the transaction of business relating to the property and estate devised to the Town of Providence by the last will and testament of Ebenezer Knight Dexter, denominated the Dexter Donation and other city and town property connected therewith.
(Ord. 1928, ch. 641, § 1; Rev. Ords. 1946, ch. 27, § 9; Ord. 1959, ch. 1307, § 1)

Cross reference—Dexter Asylum grounds designated as public pound, § 4-1.

Sec. 12-35. Same—Notice of meetings.

Notice shall be given by the city clerk of every biennial meeting as provided for in section 12-34, which shall be published for and during one (1) week next before said meetings, in one (1) of the newspapers of said city.
(Ord. 1914, ch. 16, § 2; Rev. Ords. 1946, ch. 27, § 10; Ord. 1959, ch. 1307, § 2)

Secs. 12-36—12-45. Reserved.

ARTICLE III. GARBAGE, TRASH AND REFUSE*

Sec. 12-46. Definitions.

The following words, whenever used in this article, shall have the following meanings, unless the context clearly requires otherwise:

***Cross references—**Keeping fowl, § 4-4; bins for removal of manure and refuse, § 4-5; burying dead animals, § 4-6; removal of dead animals, §§ 4-7, 4-8; rabies control, § 4-19 et seq.; storage, disposition of waste and rubbish from convalescent homes and similar establishments, § 5-21; burning at dumping grounds, § 9-8; covered receptacle to burn refuse, rubbish and waste, § 9-10; inspection of dumping

(a) *Household rubbish* shall include all noncombustible refuse, incidental to the ordinary conduct of the household, including without limiting the generality of the foregoing, tin cans, tinware, bottles, glassware, earthenware, metal articles, ashes from coal, coke and other fuel and mineral substances, such as ordinarily accumulate in the maintenance of dwellings. Refuse incurred in the operation of an industrial or commercial establishment shall not be included within the meaning of this section.

(b) *Waste materials* shall be deemed to mean and include commercial refuse and garbage, combustible waste, noncombustible waste, ordinary waste, ordinary commercial waste or industrial waste.

(c) *Dwellings* shall mean a building arranged, intended or designated to be occupied by one (1) or more families living independently of each other and doing their cooking upon the premises, or occupied by one (1) or more individuals or groups of individuals as their home.

(d) *Litter* shall mean any discarded, used or unconsumed substance or waste. Litter may include, but is not limited to, any garbage, trash, refuse, debris, rubbish, grass clippings or other lawn or garden waste, magazines, glass, metal, plastic or paper containers or other packaging, construction material, motor vehicle parts, furniture, oil, carcass of dead animal, any nauseous or offensive matter of any kind, any object likely to injure any person or create a traffic hazard or anything else of an unsightly nature, which has been discarded, abandoned or otherwise disposed of improperly.

(e) *Dumpster* shall mean any bulk container with a capacity greater than one (1) cubic yard constructed and placed for use as a depository for refuse, trash or garbage.

(f) *Heavy debris/large items* shall include debris, goods and items weighing in excess of twenty-five (25) pounds; or stoves, washers, dryers, refrigerators, freezers, boilers, furnaces, water heaters, furniture, bedding, mattresses, tires, engines, transmissions, radiators, automobile or truck parts, including but not limited to, doors, roofs, fenders, bumpers and frames, construction debris including but not limited to wood, plaster, masonry and like items.

(g) *Recyclables* shall include those materials which are required to be removed and separated from the municipal solid waste at the source and placed in or on top of the set-out container, provided by the state, for transport to the nearest materials recovery facility (MRF) for recycling. Recyclable materials shall include glass, food

---

grounds and places where waste, rubbish is placed, § 9-37; order to remove waste and accumulations, § 9-40 et seq.; throwing or sweeping dirt on sidewalks, § 23-12; deposits of offensive matter, § 23-20 et seq.

State law references—Authority of council to cause removal of filthy or unhealthy conditions, § 23-19-4, Gen. Laws 1956; removal of harmful or injurious trees or plants, § 2-15-5, Gen. Laws 1956.

and beverage containers, newspaper, tin-coated steel cans, steel cans, aluminum, white goods (stoves, refrigerators, washers, dryers, plastic H.D.P.E. milk jug(s) type and plastic P.E.T. soft drink type beverage containers). Additional materials may be declared to be recyclables by the director of the Rhode Island Department of Environmental Management at a later date, pending new technology, economic conditions, waste stream characteristics, environmental effect, or mutual agreement between state and city.

(h) *Swill* or *garbage* shall mean any kitchen or market refuse of an organic nature, including but not limited to food waste.

(i) *Roll-off container* shall mean an open top dumpster characterized by a rectangular footprint, utilizing wheels to facilitate rolling the dumpster in place. The container is designed to be transported by special roll-off trucks.

(j) *Contained* shall mean placed in a city-approved, watertight covered container designed for the purpose of holding garbage, trash, or debris. Garbage, trash or debris placed only in a plastic bag or a bag of similar material is not contained-within the meaning of this section.

(k) *Garbage receptacle* shall refer to a container equipped with handles, tight fitting covers, and that has the capacity specified by the department of public works.
(Ch. 15, § 25, added by Ord. 1950, ch. 350, § 2; Ord. 1063, ch. 1559, § 5; Ord. 1980, ch. 80-41, § 1, 10-24-80; Ord. 1987, ch. 87-2, § 1, 2-23-87; Ord. 1989, ch. 89-3, § 1, 4-17-89; Ord. No. 2015-56, § 1, 10-23-15)

Sec. 12-47. Authority of council to make rules for removal of refuse, swill, garbage and house offal.

The city council is hereby authorized to make rules and regulations for the removal of refuse, swill, garbage and house offal from the city.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 15, § 1)

Sec. 12-48. Scope of authority of director of public works.

The director of public works is hereby authorized and directed to license persons engaged in collecting and transporting waste materials in the city whether for profit or not; to prepare and promulgate from time to time, rules and regulations governing the collection, conveyance and disposal of waste materials; and to establish a system of rates and fees for the disposal of wastes.
(Ord. 1963, ch. 1559, § 1; Ord. 1989, ch. 89-3, § 1, 4-17-89)

Cross reference—Department of public works, § 2-111 et seq.

Sec. 12-49. Director of public works to have charge of collection, disposal.

The director of public works, subject to rules of the city council, shall have full charge of the collection and disposal of garbage and combustible refuse in the city.
(Ord. 1927, ch. 568, § 1; Rev. Ords. 1946, ch. 15, § 2)

Cross reference—Department of public works, § 2-111 et seq.

Sec. 12-50. Director of public works to maintain and operate system of collection.

The director of public works is hereby authorized and directed to operate and maintain a system for the collection of household rubbish in the City of Providence and to prepare and promulgate from time to time, rules and regulations governing the collection of such rubbish.
(Ch. 15, § 26, added by Ord. 1950, ch. 350, § 1)

Cross reference—Department of public works, § 2-111 et seq.

Secs. 12-51, 12-52. Reserved.

Editor's note—Section 2 of ch. 89-3, approved April 17, 1989, deleted §§ 12-51 and 12-52 in their entirety. Formerly, said sections pertained to duty of director of public works to maintain, operate incinerator and similar plants, and to fix rates and charges for disposal, and were derived from Ord. 1927, ch. 568, § 1; Rev. Ords. 1946, ch. 15, § 3; and Ord. 1963, ch. 1559, § 1.

Sec. 12-53. Appointment, function of superintendent of garbage disposal.

The director of public works shall appoint a superintendent of garbage disposal and such other assistants and employees as may be necessary for the collection and disposal of garbage and combustible refuse.
(Ord. 1927, ch. 568, § 1; Rev. Ords. 1946, ch. 15, § 4)

State law reference—Special act authorizing removal of ashes and certain debris at city's expense, P.L. 1912, c. 866.

Sec. 12-54. Permit to owner to use land as dumping ground.

Whenever land is to be used as a dumping ground within the city, the owner of such ground or the agent of said owner shall first obtain a permit from the director of public works, which permit shall contain the rules and regulations under which said land may be used as a dumping ground. Said permit may be revoked by the director of public works at his pleasure and discretion.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 15, § 7; Ord. 1980, ch. 80-1, § 1, 1-7-80)

Sec. 12-55. Permits, regulation of use of dumping grounds.

The superintendent of health is hereby authorized to issue permits to property owners and persons employed on dumps or dumping grounds. Such persons shall

keep the dumps or dumping grounds under their supervision in as good order and as free from nuisance as possible, and shall have all offensive matter promptly covered with clean earth or ashes, and shall prevent all disposal of garbage or combustible materials on such dump, except under conditions and regulations as permitted by the superintendent of health. No person shall act as dump attendant without such permit.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 15, § 5)

Sec. 12-56. Placing combustible refuse on vacant land, dumping ground.

No person shall place or deposit, or cause to be placed or deposited, upon any vacant land or upon premises used as a dumping ground any mattress, bedding, wood shavings, excelsior, paper, cardboard, cartons, empty boxes, crates or barrels, or other similar combustible rubbish, except that when such combustible material is of value and can be salvaged and sold, it may be placed on the surface of the land in places provided for such purpose and approved by the director of public works and within a period of not more than three (3) days shall be moved into sheds or other building for storage until sold, and such residue therefrom as cannot be salvaged may be disposed of in such manner as not to cause a nuisance.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 15, § 16; Ord. 1969, ch. 69-6, § 1, 2-6-69; Ord. 1993, ch. 92-52, § 1, 12-28-92)

Sec. 12-57. Littering.

(a) *Littering on private property prohibited; exceptions.* No person shall dump, deposit, drop, throw, discard, leave, cause or permit the dumping, depositing, dropping, throwing, discarding or leaving of litter upon any public or private property in this city, or upon or into any river, lake, pond or other stream or body of water in this city unless:

(1) The property has been designated by the city for the disposal of litter;

(2) The litter is placed in a receptacle or other container intended by the owner or tenant of that property for the deposit of litter.

(b) *Littering on public ways or public property; improper use of public receptacles.* No person shall dump, deposit, drop, throw, discard or otherwise dispose of litter from any motor vehicle upon any public highway, upon any public or private property or upon or into any river, lake, pond, stream or body of water in this city except as permitted by law, nor shall any person transport by any means garbage or refuse from any dwelling, residence, place of business, farm or other site to and deposit such material in, around or on top of trash barrels or other receptacles placed along public streets or in public parks or in, around or on top of trash barrels or other receptacles of another person without the consent of the owner or person in control of such trash barrel or receptacle.

(c) *Owner to keep premises free of litter.* The owner or person in control of any property which is held out to the public as a place for assemblage, the transaction of business, recreation or as a public way and including but not limited to restaurants, shopping centers, fast-food outlets, convenience stores, stores, hotels, motels, industrial establishments, office buildings, apartment buildings, housing projects, construction sites, loading and unloading docks, gas stations, and hospitals and clinics shall take all reasonably necessary measures including daily cleanup of the premises to prevent litter from drifting or blowing to adjoining premises, and if necessary, to maintain receptacles for and to deposit properly such litter in receptacles.

(d) *Owner to provide litter receptacles.* The owner or person in control of any property which is held out to the public as a place for assemblage, for the transaction of business, for recreation or as a public way shall provide and conspicuously identify receptacles for the disposal of litter.

(e) *Litter to be disposed of in receptacles.* It shall be unlawful for any person going upon the premises of another to dispose of litter while on such premises except in receptacles provided for such purposes without the consent of the owner or person in control of such receptacle.

(f) *Litter on vacant land.* The owner or person in control of a vacant or unimproved land shall maintain said land reasonably free of litter, debris, or other offensive material.

(Ch. 15, § 27, added by Ord. 1950, ch. 350, § 3; Ord. 1980, ch. 80-41, § 1, 10-24-80; Ord. 1988, ch. 88-19, § 1, 6-2-88; Ord. 1992, ch. 92-52, § 1, 12-28-92)

Sec. 12-58. Deposits of decomposable animal, vegetable, other offensive matter.

(a) No person shall place or deposit, or cause or permit to be placed or deposited upon any premises anywhere within the limits of the city any decomposing or decomposable animal or vegetable matter or any other offensive matter or substance of any sort except by permission of the director of the department of public works or his designee, under such regulations as may be adopted by the director of public works. Every owner, lessee or occupant of such land, or any person hereafter placing or depositing, or causing or permitting to be placed or deposited, any such matter or substance as aforesaid, shall remove said matter or substance from said land.

(b) No person shall place or deposit, or cause or permit to be placed or deposited anywhere within the limits of the city any motor vehicle gasoline tank or diesel fuel tank or other container used for the storage of gasoline or other such combustible fluids unless such deposit is permitted by the director of the department of public works.

(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 15, § 6; Ord. 1988, ch. 88-19, § 1, 6-22-88; Ord. 1992, ch. 92-52, § 1, 12-28-92)

Sec. 12-59. Depositing matter taken from catch basin.

No person shall dump or deposit anywhere within the city any matter taken from a catch basin, without completely covering the same with earth or clean ashes immediately upon dumping or depositing the same and in accordance with the regulations of the superintendent of health.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 15, § 15)

Sec. 12-60. Deposits of coal, dust, soot, other matter in public places.

No person shall throw or deposit, nor cause to be thrown or deposited, in any street, highway or public place, any coal, dust, soot, ashes, cinders, shavings, paper, hair, shreds, manure, oyster, clam or lobster shells, or any animal or vegetable matter or substance whatever, or any rubbish of any kind.
(Ord. 1914, ch. 30, § 31; Rev. Ords. 1946, ch. 15, § 24)

Sec. 12-61. Use of garbage receptacles.

(a) *Required*. The owner of any premises or dwelling where garbage and refuse shall accumulate shall store or cause to be stored, said garbage and refuse in city-approved garbage receptacle(s). The owner shall provide at least one (1) garbage receptacle per unit for each dwelling unit, and shall be responsible for maintaining all garbage receptacles in a good, neat and sanitary condition at all times.

(b) *Use*. The owner of any dwelling shall be deemed to have allowed an unsanitary condition and a nuisance to exist whenever garbage, trash or debris at the owner's dwelling is not contained, with the exception of roll-off containers. This section shall not apply to the collection of yard waste, which shall continue according to regulations promulgated by the resource recovery corporation and the state.

(c) *Violations and penalties*. The owner of any dwelling who deposits or suffers the depositing or accumulation of less than one (1) cubic yard of uncontained trash, refuse or debris shall be deemed to have allowed an unsanitary condition and a nuisance to exist at those premises. "Suffer" occurs when an individual has knowledge of the existence of said garbage, trash or debris. Knowledge may be actual or may be inferred from the existence of trash, refuse or debris on the premises for two (2) consecutive days without removal. Each day the offense continues constitutes a separate offense. Any person who shall violate any provision of this section, or any provision of any rule or regulation adopted pursuant to the authority granted by this section, shall, upon conviction, be punished as provided in section 12-80 of this Code of Ordinance.

(d) *Enforcement*. The director of public works or his/her designee shall be responsible for issuing notices of violations of this section.
(Rules of Bd. of Ald., ch. 1, r. 23; Rev. Ords. 1946, ch. 15, § 8; Ord. 1988, ch. 88-19, § 1, 6-22-88; Ord. 1989, ch. 89-3, § 1, 4-17-89; Ord. 2002, ch. 02-3, §§ 2, 7a, 7b, 8, 2-13-02; Ord. No. 2015-56, § 2, 10-23-15)

Sec. 12-61.1. Use of dumpsters.

Any person engaged in the business of providing dumpsters to others shall, prior to placing a dumpster on public or private property for any period of time, shall first obtain a permit from the director of public works. Said permit shall specify the size and location of the dumpster and the length of time that said dumpster may be used on the said public property.

(1) *Minimum standards*. Any dumpster used in the city shall meet the following standards:

a. The dumpster shall be painted so as to be reasonably resistant to rust and corrosion.

b. The name and telephone number of the dumpster owner shall be clearly painted on at least two (2) sides of the dumpster.

c. Dumpsters less than twenty (20) cubic yards in size shall be capable of being closed on all sides, except when opened for deposit or servicing.

d. Dumpsters greater than twenty (20) cubic yards in size shall be capable of being secured so as to prevent the spillage of refuse, waste or garbage from the container.

e. No dumpster located within two hundred (200) feet of a residential property located in a zone in which dwellings are permitted, shall be serviced between the hours of 11:00 p.m. and 7:00 a.m.

(2) *Use*. Any dumpster used in the city shall be maintained and serviced with a frequency sufficient to prevent spillage from overflow, to prevent the buildup of offensive odors, and to prevent a public hazard. The responsibility for the maintenance and servicing of dumpsters shall rest with the owner of the dumpster. The maintenance of dumpsters shall include the cleanup and removal of all litter thrown or left on the dumpster premises to prevent litter from drifting or blowing on to adjacent premises. Any dumpster regularly used to contain decomposable matter or other odor-generating waste shall be steam cleaned with disinfectant on a monthly basis. Drain holes in dumpsters shall be maintained to prevent leakage of waste fluids and to prevent entry by rodents.

(3) *Illumination or reflectorization of trash containers*. All commercial garbage and/or trash containers or dumpsters so-called located within the city on any part or portion of the public right-of-way, that is, sidewalk, pedestrian footpath, or roadway shall be illuminated with flashing beacon lights affixed thereto or in the absence of beacons, sheeted/affixed with high intensity reflectorized orange and silver construction work-zone sheeting pursuant to regulations specified by the traffic engineer.

All dumpsters shall be illuminated or reflectorized twenty-four (24) hours daily. The traffic engineer shall cause to be printed and have available for inspection and distribution the aforecited regulations concerning specifications for beacon illumination or sheeting reflectorization.

(4) *Placement and screening on private property*. Dumpsters on private property shall not be placed within twenty (20) feet of the public right-of-way or city street line. All dumpsters shall be screened from public view on at least three (3) sides by a solid wall, opaque fence, or compact planting screen of at least five (5) feet in height if such area is not within an enclosed building or structure. Screening shall be constructed in a manner to allow inspection and shall be the responsibility of the property owner.

Provided, however, that upon permit from the director of public works or his/her designee, this requirement may be waived. In approving or rejecting said application, the director shall determine, based upon the totality of the circumstances, whether or not said permit shall be granted. Among the factors the director shall consider are (a) the proximity of the dumpster to the street line, (b) the availability of other space for on-site placement, (c) the impact, if any, such requirement will have on available on-site parking, and (d) the availability and proximity of alternative off-street, parking.

(5) *Violations and penalties*. Any person who shall violate any provision of this section, or any provisions of any rule or regulation adopted pursuant to authority granted by this section, shall upon conviction, be punished by a fine of one dollar ($1.00) up to and including five hundred dollars ($500.00). That upon determination by the director of public works or his/her designee, that the public health, safety and welfare would be better served, the director may give notice of such violation and abate said condition according to statute or give notice of said violation and petition the municipal court for an order to abate any such violation.

(6) *Enforcement*. The provisions of this section shall be enforced by the director of public works who shall promulgate such rules as they may be necessary to effect the purposes of this chapter. Additionally, said director shall take reasonable steps to notify residents and owners of the requirements of this chapter and the scheduled days of trash and of the scheduled days of trash and white goods collection.

(Ord. 1987, ch. 87-2, § 2, 2-23-87; Ord. 2002, ch. 02-3, § 16, 2-13-02; Ord. No. 2016-17, § 2, 4-29-16)

Sec. 12-61.2. Use of recyclable receptacles.

(a) *Required.* The owner or occupant of any premise or dwelling unit where recyclables shall accumulate shall store said recyclables in the state-provided special container/receptacle on said premises. Said owner or occupant shall deposit recyclables by placing them in or on top of the container.

(b) *Use.* Said owner or occupant shall not locate such container/receptacle in any place which is not satisfactory to the director of public works. No person shall deposit recyclables in any other place other than such a recyclable receptacle as herein prescribed. No person shall deposit nonrecyclable materials in the special state-provided container.

(c) *Violations and penalties.* Any person who shall violate any provision of this section, or any provision of any rule or regulation adopted pursuant to authority granted by this section, shall, upon conviction, be punished as provided in section 1-10 of this Code of Ordinances.

(d) *Enforcement.* The provisions of this section shall be enforced by the director of public works.
(Ord. 1989, ch. 89-3, § 3, 4-17-89)

Sec. 12-62. Preparation of combustible rubbish or refuse for collection.

All wastepaper, excelsior, rags, old clothes, bedding or other combustible rubbish or refuse which will scatter if loose shall be fastened together securely by tying or otherwise, and shall be so placed on premises as to be easily collected.
(Rules of Bd. of Ald., ch. 1, r. 23; Rev. Ords. 1946, ch. 15, § 8)

Sec. 12-63. Time to place waste for collection; duty to remove after collection.

(a) The owner of any dwelling shall be deemed to have allowed an unsanitary condition and a nuisance to exist whenever garbage, trash or debris at that dwelling is placed out early for municipal collection. "Early" shall mean prior to 4:00 p.m. on the day preceding the date of garbage collection.

(b) The owner of any dwelling shall be deemed to have allowed an unsanitary condition and a nuisance to exist whenever containers used for the deposit of garbage, trash or debris at that dwelling are not removed from the public way by midnight of the designated collection day for that particular area of the city.

(c) Except for the placement of containers on the public way for trash collection, an owner of any dwelling shall be deemed to have allowed an unsanitary condition and nuisance to exist at that dwelling whenever containers for the storage of garbage, trash or debris are not screened or are otherwise viewable from the street. This provision shall not apply to nonresidential uses.

(d) Upon the first violation of this article, the owner of the subject dwelling shall be issued a warning by public works director or his/her duly authorized agent notifying the owner of the violation. Penalties for violation of subsection (b) shall not be assessed at more than one thousand five hundred dollars ($1,500.00) cumulatively per calendar year for each individual dwelling. For all violations that occur after a warning is issued to a particular owner for a specific property: The penalty shall not exceed twenty-five dollars ($25.00) for the first violation, fifty dollars ($50.00) for the second violation, and one hundred dollars ($100.00) for all subsequent violations occurring within a calendar year. Occupants of non-owner-occupied dwellings shall be issued a notice that informs the dwelling's occupant of the violation.

(e) Chronic violators. Whoever shall be found in violation of the provisions of this article on four (4) or more occasions within the calendar year shall be deemed a chronic violator and shall be summoned to the City of Providence Municipal Court.
(Ord. 1950, ch. 350, § 4, added by Ord. 1962, ch. 1517, § 1; Ord. 1989, ch. 89-3, § 1, 4-17-89; Ord. 2002, ch. 02-3, §§ 3—5, 2-13-02; Ord. 2011, ch. 2011-36, § 1, 7-18-11; Ord. No. 2020-8, § 1, 2-27-20)

Sec. 12-64. Frequency and method of removal of wastes.

(a) All household rubbish, garbage and recyclables shall be removed from the curbside in front of or near such dwelling in accordance with the other sections of this article, and the department of public works shall only be required to pick up such household rubbish, garbage and recyclables as is placed on or near the curbside in front of or near each such dwelling.

(b) Such regular weekly removals and pickups by the department of public works or any private entity under contract with the city shall be carried out only on the days of Monday, Tuesday, Wednesday, Thursday and Friday of each week. When a holiday falls on the normally scheduled collection day for a given street or neighborhood, collection for that street or neighborhood shall occur on the following day. Each normally scheduled collection day thereafter in that week shall be postponed by one (1) day.

(c) Collection of household rubbish, garbage and recyclables by the department of public works or any private entity under contract with the city shall begin no earlier than 7:00 a.m. and shall be completed by 5:00 p.m. of the designated pickup day unless alternate collection times are authorized by contract as ratified by the city council. The provisions of section 12-64(c) shall be enforced by the director of public works who shall:

(1) Promulgate such rules as they may be necessary to effect the purposes of section 12-64(c); and

(2) Be empowered to assess fines up to five hundred dollars ($500.00) for each violation.

(d) The requirements of section 12-64 shall be included in the formal agreement between the city and any private entity contracted to conduct regular weekly removal and pickup of household rubbish, garbage, and recyclables.

(e) No person shall operate any trash, rubbish, garbage, or recycling collection activities within any residentially zoned district, within one thousand (1,000) feet of any residentially zoned district or within two hundred (200) feet of a residential structure between the hours of 11:00 p.m. and 7:00 a.m. unless alternate collection times are authorized by contract as ratified by the city council.
(Rules of Bd. of Ald., ch. 1, r. 25; Rev. Ords. 1946, ch. 15, § 9; Ord. 1981, ch. 81-23, § 1, 5-15-81; Ord. 1989, ch. 89-3, § 1, 4-17-89; Ord. No. 2016-17, § 1, 4-29-16)

Sec. 12-65. License to transport garbage, waste—Required.

It shall be unlawful for any person to transport garbage, combustible waste, noncombustible waste, ordinary waste, ordinary commercial waste or industrial waste on or over the streets or other public ways of the city without having first obtained a license from the director of public works for each vehicle so engaged.
(Ord. 1963, ch. 1559, § 2)

Sec. 12-66. Same—Issuance.

Application for a license to transport garbage, combustible waste, noncombustible waste, ordinary waste, ordinary commercial or industrial waste shall be made to the director of public works, who shall issue such license if he finds that the applicant has suitable equipment for transporting such waste and that the applicant has complied and indicated a willingness to comply with all applicable ordinances of the city and the rules and regulations of the director of public works.
(Ord. 1963, ch. 1559, § 2)

Sec. 12-67. Same—Fee for license, renewal.

The annual fee for a license to transport garbage, combustible waste, noncombustible waste, ordinary waste, ordinary commercial or industrial waste, or for a renewal of such license, shall be as follows:

(a) Where the licensee is transporting waste for profit, the annual fee for such license or renewal thereof shall be fifty dollars ($50.00) plus fifty dollars ($50.00) for each waste conveyance vehicle in excess of one operated pursuant to such license.

(b) If the licensee is not transporting for profit, the annual fee for such license, or renewal thereof, shall be ten dollars ($10.00) plus five dollars ($5.00) for each waste conveyance vehicle in excess of one operated pursuant to such license.

(Ord. 1963, ch. 1559, § 2; Ord. 1989, ch. 89-3, § 1, 4-17-89)

Sec. 12-68. Same—Expiration, renewal.

Any expired license issued pursuant to section 12-66 may be renewed under the same conditions applicable to the issuance of an original license. A license or renewal thereof shall expire on June 30 next following its issuance.
(Ord. 1963, ch. 1559, § 2; Ord. 1989, ch. 89-3, § 1, 4-17-89)

Sec. 12-69. Same—Revocation.

Any license or renewal thereof issued pursuant to section 12-66 or 12-68 may be revoked forthwith by the director of public works upon failure of the license holder to comply with all applicable ordinances of the city and the rules and regulations of the director of public works.
(Ord. 1963, ch. 1559, § 2)

Sec. 12-70. Same—Transport to comply with rules and regulations of director of public works.

It shall be unlawful for any person operating under a license to transport waste material, on or over the streets or other public ways of the city unless such waste materials are transported in vehicles conforming to the requirements set forth in the "Rules and Regulations Governing the Collection, Conveyance and Disposal of Waste Materials", promulgated by the director of public works.
(Ord. 1963, ch. 1559, § 3)

Sec. 12-70.1. Same—Transport/license to keep segregated recyclables separate from municipal solid waste.

Any person operating under a license to transport household rubbish or waste material pursuant to section 12-66 shall keep segregated recyclables separate from the municipal solid waste which they collect or haul; maintain any separated recyclables which are brought to state-owned recycling facilities to be delivered in processable condition; and, deliver to state-owned recycling facilities all separated recyclables which are designated by the director of public works to go to such facility. Failure to comply with this section 12-70.1 may result in revocation of license pursuant to section 12-69.
(Ord. 1989, ch. 89-3, § 3, 4-17-89)

Sec. 12-71. License for removal of swill, offal required.

No person, unless appointed and licensed so to do by the city council shall remove, carry or transport any swill or house offal from any house, market, building or premises, over, upon or through any street or highway in the city.
(Rules of Bd. of Ald., ch. 1, r. 24; Rev. Ords. 1946, ch. 15, § 10)

Sec. 12-72. Restrictions upon appointments, licenses to remove swill, offal.

Whenever any person shall be appointed and licensed to remove swill and house offal from the city, the designation and appointment shall state definitely the houses, buildings or districts from which such person so designated is to remove the swill and house offal. No person shall remove the swill and house offal from any other house, building or district than that from which he is appointed and licensed to remove it.
(Rules of Bd. of Ald., ch. 1, r. 28; Rev. Ords. 1946, ch. 15, § 13)

Sec. 12-73. Duration of appointment, license to remove swill, offal.

Any appointment and license to remove swill and house offal shall be for the current year ending on the first Monday of April next ensuing the date of the appointment, and shall expire on said first Monday of April, and may be revoked at any time by the city council.
(Rules of Bd. of Ald., ch. 1, r. 29; Rev. Ords. 1946, ch. 15, § 14)

Sec. 12-74. Manner of removal of swill, offal; examination of receptacles.

All swill and house offal shall be removed in or from the city in watertight closely covered vehicles or in watertight tubs, casks or cans with covers securely fastened, in order to make the tubs, casks or cans airtight; and all such vehicles, tubs, casks or cans so used, shall be kept clean and well painted on the outside. No vehicle, tub, cask or can shall be used for the removal of swill or house offal in or from the city, unless first examined and approved by the superintendent of health, and the covers of all such vehicles, tubs, casks and cans containing swill or house offal shall be kept tightly closed when they are being driven or carried through the streets of the city.
(Rules of Bd. of Ald., ch. 1, r. 26; Rev. Ords. 1946, ch. 15, § 11)

Sec. 12-75. Marking vehicles for removal of swill, offal.

All vehicles used to remove swill or house offal, or to transport tubs, casks or cans containing swill or house offal, shall have placed upon them such information as may be required by the director of public works.
(Rules of Bd. of Ald., ch. 1, r. 26; Rev. Ords. 1946, ch. 15, § 12; Ord. 1988, ch. 88-19, § 1, 6-22-88)

Sec. 12-76. Transport of bones, grease and fats.

No person shall carry or convey, nor cause to be carried or conveyed, in any street or park, any bones, grease, animal or soap fats, unless in covered cans, tubs or receptacles properly marked.
(Ord. 1914, ch. 30, § 8; Rev. Ords. 1946, ch. 15, § 21)

Sec. 12-77. Transport of wastepaper.

No person shall carry or convey through or in any street any wastepaper not so covered or protected as to prevent the escape of said paper into any street, and no person while loading or unloading a vehicle shall scatter or permit any wastepaper to be scattered in any street or highway, or where such wastepaper shall be blown onto any street or highway.
(Ord. 1914, ch. 30, § 7; Rev. Ords. 1946, ch. 15, § 22)

Sec. 12-78. Transport of ashes, coal, sand and rubbish.

No person shall carry or convey, nor cause to be carried or conveyed in any street, highway, square or park, any ashes, bituminous coal, sand or rubbish unless the receptacle or vehicle containing such ashes, bituminous coal, sand or rubbish shall be closely covered.
(Ord. 1914, ch. 30, § 9; Rev. Ords. 1946, ch. 15, § 23; Ord. 1947, ch. 1619, § 1)

Sec. 12-79. Violations and penalties.

Any person found guilty of violating the provisions of this article or the rules and regulations of the director of public works or the superintendent of health, as the case may be, promulgated hereunder, shall be punishable as provided in section 1-10 of the Code of Ordinances.

In addition to any fine imposed under this chapter, a person convicted of such a violation shall be ordered to remove and properly dispose of the litter and to fence the property on which the litter was located; and in the event such disposal is not accomplished within a reasonable period of time, the director of public works may cause such removal and fencing of the property and for such purpose may enter upon any real property necessary to cause the removal.

In the event that the director of public works is required to remove litter and to fence any real property, the city shall obtain a special lien against said real property for the cost of said litter removal and fencing which lien shall be removed only upon reimbursement of the cost of the litter removal and fencing by the owner of the property.

Said fence shall be at least six (6) feet in height and shall be chain link. Said fence shall remain in place and be maintained by the owner until a building permit has been obtained for the reuse of the property.
(Ch. 15, § 28, added by Ord. 1950, ch. 350, § 4; Ord. 1963, ch. 1559, § 6; Ord. 1980, ch. 80-41, § 1, 10-24-80; Ord. 1992, ch. 92-2, § 2, 1-10-92)

Sec. 12-80. Penalties for littering violations.

(a) Unless otherwise specified, the penalty for violation of any provision set forth herein shall be one dollar ($1.00) to five thousand dollars ($5,000.00), provided, however, that any individual electing to admit the violation charged and electing to appear before the clerk of the court or to mail notice of violation shall be penalized as follows:

Offense	*Fine*	*Code section*
Improper storage of residential trash	$50.00	Sec. 12-61
Early storage of residential trash	50.00	Sec. 12-63
Late removal of residential containers	See	Sec. 12-63(d)—(e)
Unscreened container(s)	50.00	Sec. 12-63
Trash hauling without license	200.00	Sec. 12-65
Violation of dumpster ordinance	150.00	Sec. 12-61.1
Litter less than one (1) cubic yard	250.00	Sec. 12-61
Litter greater than one (1) but less than two (2) cubic yards	500.00	Sec. 12-89.2

Offense	*Fine*	*Code section*
Litter between two (2) to (3) cubic yards	800.00	Sec. 12-89.2
Litter over three (3) cubic yards	1,000.00	Sec. 12-89.2
A person convicted of a second or subsequent violation of Sec. 12-89.2	5,000.00	Sec. 12-89.2
Littering	50.00	Sec. 12-57
Depositing garbage in container of another	50.00	Sec. 12-57(e)
Scavenging of certain white goods	150.00	Sec. 12-87.1
Violation of recycling ordinance	50.00	Sec. 12-61.2
Animal control	100.00	Secs. 12-89.3 or 12-89.4
Continuing public environmental nuisance	500.00	Sec. 12-85
Scavenging	50.00	Sec. 12-87
Commercial trash violation	250.00	Sec. 12-61.1

(b) In the event that any of the foregoing fines are not paid, or a plea of not guilty to the citation is not entered prior to the fourteenth day after the date the violation was postmarked, said fines shall be doubled. In the event that any of the foregoing stated fines are not paid, or a plea of not guilty to the citation is not entered subsequent to the fourteenth day and prior to the twenty-eighth day after the date of the violation, said fines shall be tripled.
(Ord. 1988, ch. 88-18, § 1, 6-22-88; Ord. 1989, ch. 89-3, § 1, 4-17-89; Ord. 1992, ch. 92-52, § 1, 12-28-92; Ord. 2002, ch. 02-3, § 16, 2-13-02; Ord. 2007, ch. 07-47, § 1, 7-27-07; Ord. 2011, ch. 2011-36, § 1, 7-18-11; Ord. No. 2015-57, § 1, 10-23-15; Ord. No. 2020-8, § 1, 2-27-20)

Sec. 12-81. Payment of fines—Generally.

A person charged with the violation of any litter regulation relating to this section and notified by the director of public works to appear to answer such charge before the Providence Municipal Court may, in lieu of such appearance, elect to appear in person or by one duly authorized by him in writing, before the clerk of said court, admit the truth of said charge, and pay to said clerk the designated fine; provided that such appearance admission and payment be made at the office of said clerk during regular business office hours, within sixty (60) days of such notification, and failure to so appear shall be deemed a waiver of the right to dispose of such charge without personal appearance in court.
(Ord. 1988, ch. 88-18, § 1, 6-22-88; Ord. 2007, ch. 07-47, § 1, 7-27-07)

Sec. 12-82. Same—Payment by mail.

(a) Any person charged with any violation relating to litter, except as otherwise provided, may elect to mail in said violation tag to the clerk of the Providence Municipal Court, accompanied by payment of the designated fine, and the name and

address of the violator. Such privilege of paying the fine by mail shall be exercised within sixty (60) days from the date of the offense by depositing the designated payment of such fine in a depository maintained by the United States Post Office Department for the collection mails and the postage cancellation shall be prima facie evidence of the time of deposit.

(b) In those cases where mail is used for payment of such fine, the payment may be in cash or by check or by money order, and in those cases where payment is attempted with a check drawn against insufficient funds, an additional payment of twenty-five dollars ($25.00) shall be imposed against the violator to defray administrative costs. In those cases where payment is by cash, it shall be at the risk of the sender and the record of the clerk of the municipal court shall be conclusive as to the receipt and amount of the same.
(Ord. 1988, ch. 88-18, § 1, 6-22-88; Ord. 2007, ch. 07-47, § 1, 7-27-07)

Sec. 12-83. Same—Effect of payment.

The payment of a fine to the clerk of the municipal court as herein provided, for the violation of a litter regulation relating to this section shall operate as a final disposition of the charge and such proceedings shall not be deemed criminal.
(Ord. 1988, ch. 88-18, § 1, 6-22-88)

Sec. 12-84. Same—Notice requirements.

Notice of any litter violation relating to this section shall indicate the offense charged, schedule of fines for such violation, the time within which the privilege of paying such fine by mail may be exercised, the place to which such fine may be mailed and such other information as will enable the person charged to take advantage of the provisions hereof.
(Ord. 1988, ch. 88-18, § 1, 6-22-88)

Sec. 12-85. Effect of multiple violations relating to litter regulations.

Notwithstanding anything herein contained, disposition of litter violation charge relating to this section without personal appearance in the municipal court may not be exercised by any person who in the consecutive period of twelve (12) months next preceding such charge has been three (3) times in the aggregate adjudged guilty by the municipal court of any violation of any regulation relating to this section or has admitted the truth of charges made against him under the provisions hereof.
(Ord. 1988, ch. 88-18, § 1, 6-22-88)

Sec. 12-86. Failure to comply.

Any person charged with the violation of any litter regulation relating to this section as outlined in section 12-80(a) of the Code of Ordinances, who fails to make payment within sixty (60) days as required, may, in the discretion of any justice of

Providence Municipal Court, be charged an additional sum of twenty-five dollars ($25.00) to cover administrative costs which shall be payable to the clerk of said court.
(Ord. 1988, ch. 88-18, § 1, 6-22-88; Ord. 2007, ch. 07-47, § 1, 7-27-07)

Sec. 12-87. Scavenging of household rubbish, garbage and recyclables.

No person shall scavenge household rubbish, garbage or recyclables within the city limits.
(Ord. 1989, ch. 89-3, § 3, 4-17-89)

Sec. 12-87.1. Release of gaseous or liquid substance from appliances.

Unless licensed to do so by the state, any person who, whether or not for profit, damages or parts out, or in any way permits the release of any gaseous or liquid substance from any refrigerator, freezer, air conditioner or other appliance normally and usually designed to contain freon, shall be deemed to have created an unsanitary condition and a nuisance.
(Ord. 2002, ch. 02-3 § 6, 2-13-02; Ord. 2007, ch. 07-47, § 1, 7-27-07)

Editor's note—Ch. 07-47, § 1, adopted July 27, 2007, amended the Code by renumbering former § 12-89.1 as a new § 12-87.1.

Sec. 12-88. Fencing of vacant lots.

Any vacant and unused lot in a residential or mixed use section of the city shall be fenced so that the lot does not become a dumping ground and a nuisance to the neighborhood. Said fence shall be at least six (6) feet in height and shall be chain link. Said fence shall remain in place and be maintained by the owner until a building permit has been obtained for the reuse of the property.

Said fence shall be locked in a manner that is sufficient to prevent unauthorized entry.

Vacant and unused shall mean any lot that is not used for a side yard and/or parking that is not in contravention with zoning requirements included in, but not limited to sections 704, 705 and 706 of chapter 27 of the Code of Ordinances, and kept free of litter. The director of public works shall enforce this regulation and within ninety (90) days of the adoption of this section shall establish rules and regulations for the placement of fences around vacant and unused lots. If the owner of a property does not install a fence in accordance with this section or the rules and regulations adopted, within twenty-one (21) days of the date of initial notification by the director of public works or his/her designee, the director of public works may cause such fence to be installed and for such purpose may enter upon any real property necessary to install such fence. In the event that the director of public works is required to fence said lot, the city shall obtain a special lien against said

real property for the cost of said fence and installation which lien shall be removed only upon reimbursement of the cost of the fence, and its installation by the owner of the property or successor.

Fences constructed pursuant to the rules and regulations adopted shall be exempt from that restriction on height stated in the first paragraph of this section.
(Ord. 1992, ch. 92-2, § 3, 1-10-92; Ord. 1999, ch. 99-15, § 1, 5-31-99; Ord. 2003, ch. 03-36, 6-16-03)

Sec. 12-89. Disposal of leaf and yard debris.

(a) *Disposal to be conducted in environmentally sound manner*. The city finds that disposal of leaf and yard debris should be conducted in an environmentally sound manner and wishes to institute a comprehensive plan for such disposal with as little negative environmental impact as practicable.

(b) *Definitions*.

Acceptable leaf/yard debris shall mean leaf/yard debris free of contamination by rubbish, trash, garbage, construction/demolition debris, tree limbs larger than four (4) inches in diameter, tree stumps or any other material that does not constitute leaf/yard debris.

Leaf/yard debris shall consist of leaves, grass, weeds, vegetable and flower garden herbaceous debris and remnants, plant trimmings, small brush and hedge clippings, chipped or shredded tree or shrubbery branches and other small landscape trimmings and cuttings.

(c) *Containers*. Acceptable yard/leaf debris shall be placed in municipally approved recyclable, reusable or disposable biodegradable containers for collection. Every person shall place yard debris at curbside. It shall be separate and apart from all other disposable and recyclable materials.

(d) *Plastic bags prohibited*. Acceptable leaf/yard debris shall not be placed for disposal in plastic bags of any nature.

(e) *Disposal onto sidewalks and streets prohibited*. No person shall cast, place, sweep, blow or deposit in any manner leaf/yard debris in or upon any street, sidewalk, alley, park, drain, sewer, gutter or receiving basin in the city.

(f) *Enforcement*. The director of the department of public works or his/her designee is hereby authorized to promulgate rules and regulations so as to effect the purpose of this section. Property owners will be held responsible for prohibited activity conducted by others who have been hired to maintain the owner's property.

(g) *Penalty*. Any violations of the provisions of this section shall be punishable as stated in section 12-61.2 of the Code of Ordinances of the city.
(Ord. 1993, ch. 93-59, § 1, 12-27-93; Ord. No. 2018-11, 4-16-18)

Editor's note—Ord. 1993, ch. 93-59, adopted December 27, 1993, did not specifically amend this Code; hence, inclusion as § 12-89 was at the discretion of the editor.

Sec. 12-89.2. Disposal of heavy litter other than at a solid waste management facility.

(a) Any person who shall dispose of heavy litter other than at a solid waste management facility licensed by the director of the department of environmental management of the state shall be deemed to have created an unsanitary condition and a nuisance.

The phrase "dispose of heavy litter," as prohibited herein, refers to the depositing, casting, throwing, leaving or abandoning of a quantity greater than one (1) cubic yard at any location other than a said waste management facility or at a location approved for such disposal by the city. Used asphalt, concrete, Portland concrete, tree stumps, and other solid waste held or stored in a vehicle or proper receptacle at a licensed place of business of a licensed solid waste hauler for a period not to exceed seventy-two (72) hours shall not be considered heavy litter for purposes of this act.

(b) Violations—Penalties.

A person convicted of a first violation of this section shall be subject to a fine five hundred dollars ($500.00) for litter greater than one (1) but less than two (2) cubic yards. Litter between two (2) to three (3) cubic yards will be fined eight hundred dollars ($800.00). Litter over three (3) cubic yards will be fined one thousand dollars ($1,000.00). A person convicted of a second or subsequent violation shall be fined five thousand dollars ($5000.00).
(Ord. 2002, ch. 02-3 § 11, 2-13-02; Ord. No. 2015-55, § 1, 10-23-15)

Sec. 12-89.3. Animal defecation.

Any person who shall allow any animal within his or her control to defecate in any private or public place without removing and disposing of same in a commercially available watertight, covered container suitable for said purpose shall be deemed to have created an unsanitary condition and a nuisance.
(Ord. 2002, ch. 02-3 § 12, 2-13-02)

Sec. 12-89.4. Premises to be free of animal excrement.

The owner of any premises who shall fail to maintain said premises free of animal excrement shall be deemed to have created an unsanitary condition and a nuisance by contributing to the propagation of rodents.
(Ord. 2002, ch. 02-3 § 13, 2-13-02)

ARTICLE IV. PRIVIES AND CESSPOOLS*

Sec. 12-90. Duty when sewer connection not available.

The owner of any dwelling house, unless such dwelling house is connected with a public sewer, shall provide, either within or adjacent to such house, at least one (1) suitable water closet or privy, properly ventilated and communicating directly with the open air and discharging into a cesspool or privy vault of such location and construction as shall be satisfactory to the superintendent of health.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 28, § 1)

Sec. 12-91. License for removal of contents; removal by owner on permit.

No person shall engage in the business of removing the contents of privy vaults and cesspools, or shall remove the contents of privy vaults or cesspools, without first obtaining a license from the city council; but nothing in this section shall be construed as forbidding the owner of a privy vault or cesspool from removing the contents therefrom, provided a permit be first obtained from the superintendent of health.
(Rules of Bd. of Ald., ch. 1, r. 50; Rev. Ords. 1946, ch. 28, § 2)

Sec. 12-92. Duration of license to remove contents.

Any license to remove the contents of privy vaults and cesspools shall be for the current year, ending on the first Monday of April next ensuing the date of the license, shall expire on said first Monday of April, and may be revoked at any time by the city council.
(Rules of Bd. of Ald., ch. 1, r. 51; Rev. Ords. 1946, ch. 28, § 3)

Sec. 12-93. Fee for license to remove contents.

The sum of one dollar ($1.00) shall be the annual charge for each license granted by the city council for the removal of the contents of cesspools and privy vaults.
(Rules of Bd. of Ald., ch. 2, r. 23; Rev. Ords. 1946, ch. 28, § 4)

Sec. 12-94. Apparatus used to remove contents.

All tanks, tank wagons, tubs or barrels must be kept airtight and free from leakage; and all apparatus used in the business must be kept clean and well painted, must have the name of the licensee upon it in plain letters, and must be approved by the superintendent of health. No wagons, tanks, tubs or other apparatus shall be allowed to stand in the street except while in use.
(Rules of Bd. of Ald., ch. 1, r. 53; Rev. Ords. 1946, ch. 28, § 5)

***Cross reference—**Water and sewers, § 25-1 et seq.

State law reference—Authority to regulate cesspools and privies, §§ 23-19-1—23-19-3, Gen. Laws 1956.

Sec. 12-95. Hours of cleaning.

No privy vault or cesspool shall be cleaned between the hours of sunset and sunrise, except as directed by the superintendent of health.
(Rules of Bd. of Ald., ch. 1, r. 54; Rev. Ords. 1946, ch. 28, § 6)

Sec. 12-96. Entire contents to be removed.

When any privy vault or any cesspool is cleaned, the entire contents thereof shall be removed.
(Rules of Bd. of Ald., ch. 1, r. 55; Rev. Ords. 1946, ch. 28, § 7)

Sec. 12-97. Height of contents.

No person shall allow the contents of any cesspool or privy vault to rise within one (1) foot of any part of the top, nor to become a nuisance or in any way offensive.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 28, § 9)

Sec. 12-98. Deposit of contents.

No person shall deposit within the city the contents of any privy vault or of any cesspool without permission of the superintendent of health.
(Rules of Bd. of Ald., ch. 1, r. 56; Rev. Ords. 1946, ch. 28, § 10)

Sec. 12-99. Disinfecting.

When required by the superintendent of health the owner of any cesspool or privy vault shall disinfect the same in such manner as may be required by said superintendent.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 28, § 11)

Secs. 12-100—12-109. Reserved.

ARTICLE V. RAT AND VERMIN CONTROL*

Sec. 12-110. Definitions.

For the purposes of this article the following definitions shall apply:

(a) *Buildings.* The term "buildings" shall mean any structure whether public or private, that is adapted for occupancy, for transaction of business, for rendering of professional services, for amusement, for the display, sale or storage of goods, wares or merchandise, or for the performance of work or labor, including hotels, apartment

*__Cross reference—__Building ordinance preserved, § 5-1.

__State law references—__Authority to make regulations as to nuisances resulting from unhealthy conditions, § 23-19-4, Gen. Laws 1956; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

buildings, tenement houses, rooming houses, office buildings, public buildings, stores, theatres, markets, restaurants, grain elevators, abattoirs, warehouses, workshops, factories and all outhouses, sheds, barns and other structures on premises used for business purposes.

(b) *Ratproofing.* The term "ratproofing" as used herein applies to a form of construction to prevent the ingress of rats into buildings from the exterior or from one (1) building or establishment to another. It consists essentially of treating all actual or potential openings in the exterior wall, grounds or first floors, basements, roof and foundations, that may be reached by rats from the ground by climbing or by burrowing, with material impervious to rat gnawing.

(c) *Rat harborage.* The term "rat harborage" shall mean any condition which provides shelter or protection for rats, thus favoring their multiplication and continued existence in, under or outside of a structure of any kind.

(d) *Rat eradication.* The term "rat eradication" means the elimination or extermination of rats within buildings so that the buildings are completely freed of rats or there is no evidence of rat infestation remaining, by any or all of the accepted measures, such as poisoning, fumigation, trapping, clubbing, etc.

(e) *Owner.* The term "owner" shall mean the actual owner of the business building, whether individual, partnership, or corporation, or the agent of the building, or other person having custody of the building or to whom rent is paid. In the case of business buildings leased with a clause in the lease specifying that the lessee is responsible for maintenance and repairs, the lessee will be considered in such cases as the "owner" for the purpose of this article.

(f) *Occupant.* The term "occupant" as used herein shall mean the individual, partnership, or corporation that has the use of or occupies any business building or part or fraction thereof, whether the actual owner or tenant. In the case of vacant business buildings or any vacant portion of a business building the owner, agent or other person having custody of the building shall have the responsibility of an occupant of a building.
(Ch. 17, § 31, added by Ord. 1948, ch. 60, § 1)

Sec. 12-111. Keeping premises in rat-infested, vermin-infested condition.

(a) Any owner who allows the overgrowth of land so as to permit the creation or continuation of harborage for vermin shall be deemed to have allowed an unsanitary condition and a nuisance and such overgrowth shall be deemed to be an unsanitary condition and a nuisance. "Overgrowth" shall mean the growth of weeds or of other ground cover to a height of twelve (12) inches or more and which is generally considered undesirable.

(b) The owner of any premises which allows said premises to be infested by rodents or other vermin shall be deemed to have created an unsanitary condition and a nuisance. Premises shall be rebuttably deemed to be "infested by rodents," whenever an inspection of the premises reveals rodent holes, droppings, carcasses or other evidence, that manifests based on the totality of the circumstances, the existence of rodent habitation as opposed to mere rodent trespass. Observations may be made by individuals who, based upon their training and experience, possess sufficient knowledge of animal behavior so as to discriminate between evidence of rodent infestation from evidence of activity by animals other than rodents. Upon determination that any such premises are rodent infested, the director of public works or his or her designee shall order the abatement of the same within seventy-two (72) hours. In the event that such abatement does not occur, or that the owner does not otherwise comply with the order of the director, the director shall abate the nuisance and shall lien the premises for the costs of said abatement. Provided, however, in order to facilitate the promotion of the public health, the director may design a program wherein, and upon the execution by the owner of a form of consent within seven (7) days of notification of said nuisance by the director, the director may, at the city's costs, provide required baiting. The director may provide baiting for not more than two (2) instances of rodent nuisance. For the purposes of such a program, execution of form of consent for the initial two (2) instances shall be presumptively deemed to be abatement of the determined nuisance.

(Ch. 17, § 32, added by Ord. 1948, ch. 60, § 2; Ord. 2002, ch. 02-3 § 9, 10, 2-13-02)

Sec. 12-112. New buildings and buildings repaired or altered to be ratproofed.

No building or structure shall be erected, repaired, altered or extended unless provision is made for ratproofing such structure.

(Ch. 17, § 33, added by Ord. 1948, ch. 60, § 3)

Sec. 12-113. Buildings or property to be rat eradicated prior to demolition or grading.

No building, structure or parcel shall hereafter be razed, demolished or graded, in accordance with chapter 5 of this Code, unless the owner of the site provides an invoice for rat abatement by a licensed pest control company no more than thirty (30) days prior to the commencement of said work.

(Ch. 17, § 33.1, added by Ord. 1954, ch. 914, § 1; Ord. No. 2023-52, § 1, 12-21-23)

Sec. 12-114. Inspection of premises; notice of infested conditions; service of notice.

(a) It shall be the duty of the superintendent of health to cause an inspection of any premises in the city which he has good reason to believe are not in a ratproof or verminproof condition.

(b) If such premises are found to be vermin or rat infested, a notice in writing bearing the date of issue and signed by the superintendent of health, or his duly authorized representative, shall be served upon such owner or occupant. Said notice shall state the conditions of such premises and the required corrections.

(c) Any such notice may be served by any employee of the department of health or police or may be served by depositing the same notice, enclosed in a postpaid envelope addressed to the person to be notified, in the post office of the city.
(Ch. 17, § 34, added by Ord. 1948, ch. 60, § 4)

Sec. 12-115. Duty of owner or occupant to remedy infested conditions.

After the owner or occupant of any premises has been notified by the superintendent of health or his duly authorized representative, that such premises are vermin or rat infested it shall be the duty of such owner or occupant to take immediate measures to remedy the said condition.
(Ch. 17, § 35, added by Ord. 1948, ch. 60, § 5)

Sec. 12-116. Injuring ratproofing construction.

It shall be unlawful for any person to remove, damage or destroy any part of any building or other appurtenance of improved real estate premises, intended to protect such premises against ingress of rats, or in any other way to create a condition by which ingress for rats is made possible; provided that this section shall not apply where the interference with the ratproofing is made necessary in connection with a lawful construction, promptly restored.
(Ch. 17, § 36, added by Ord. 1948, ch. 60, § 6)

Sec. 12-117. Throwing rat or vermin harborage on vacant lands, streets, lakes, other property prohibited—Enforcement against owners and tenants.

(a) No person shall throw, place or deposit or permit any tenant or person under his control or employment to throw, place or deposit any putrid substance, night soil, filth of any kind, garbage, rubbish, refuse, piles, old lumber or other rat or vermin harborage or any unwholesome material, in or upon any land, vacant land, alley, lane, sidewalk or street, canal, lake or river, or upon any private land or public land or park within the city without the consent of the director of public works.

(b) No person or persons shall allow any land, vacant land, alley, lane, sidewalk or street, canal, lake or river owned by them to become covered with any putrid substance, night soil, filth of any kind, garbage, rubbish, refuse piles, old lumber or other rat or vermin harborage or any unwholesome material which endangers the general health and welfare of the public.

(c) The director of public works shall cause to be examined all land, vacant land, alleys, lanes, sidewalks and streets, canals, lakes or rivers, private land and public lands or parks within the limits of the city. When said director finds any putrid substance, night soil, filth of any kind, garbage, rubbish, refuse piles, old lumber or other rat or vermin harborage or any unwholesome material placed or deposited upon any land, vacant land, alleys, lanes, sidewalks and streets, canals, lakes or rivers, private land and public lands or parks which endangers the general health and welfare of the public, he shall order the owner or owners or tenant or tenants to remove said materials, and if the said owner or owners or tenant or tenants refuse to remove said materials within three (3) days, said director may cause the same to be removed at the expense of the owner and/or tenant or tenants. Thereupon, said director shall place a lien upon the land for the cost of removing the materials.

(d) No owner or owners or tenant or tenants shall neglect or refuse to remove therefrom any materials, after being ordered to do so by the director of public works, or obstruct any member under the control of the director of public works in the discharge of their duties. Every day, in excess of three (3), that any such owner or owners or tenant or tenants shall neglect or refuse to remove therefrom any materials after being ordered to do so by the director of public works shall be deemed and regarded as a separate offense under this section.

(e) Service of any order authorized by this section shall be made upon the owner or owners in one (1) of the following manners:

(1) By leaving with said owner or owners personally a copy of said order;

(2) By leaving at the last-known abode of said owner or owners with a person of suitable age and discretion a copy of said order;

(3) By tacking or affixing to the front door of the last known abode of said owner or owners a copy of said order;

(4) By mailing to the owner or owners at his/her/their last known abode a copy of said order. Said mailing shall be by certified mail, return receipt requested, and by regular mail, postage prepaid; or

(5) By publication in a newspaper of general circulation in the city.

(f) Any order herein made shall be subject to appeal by the owner or owners within forty-eight (48) hours after service of the order. Said appeal shall be taken by filing a petition with the providence municipal court praying a review of such order and it shall be the duty of such court to hear the same within three (3) days from the time the petition is filed, and to make such order in the premises as right and justice may require. The party or parties appealing to the providence municipal court shall

file with said court within two (2) days of said appeal a bond in an amount to be fixed by the court, conditioned to pay all the costs of such appeal in case such appellant fails to sustain his appeal or the same be dismissed for cause.
(Ch. 17, § 37, added by Ord. 1948, Ch. 60, § 7; Ord. 1969, Ch. 69-5, § 1, 2-6-69; Ord. 1970, Ch. 70-7, § 1, 2-19-70; Ord. 1992, ch. 92-52, § 2, 12-28-92)

Sec. 12-117.1. Reserved.

Editor's note—Section 3 of ch. 92-52, approved December 28, 1992, repealed § 12-117.1 which pertained to enforcement against tenants and derived from Ord. 1970, ch. 70-7, § 2, approved February 19, 1970.

Sec. 12-118. Feeding domesticated birds, fowl, animals.

No person shall place food in the open for the feeding of any domesticated fowl, birds or animals except in such containers as will prevent the scattering of such food upon the ground. After such feeding, such food shall not be allowed to remain where it is accessible to rats.
(Ch. 17, § 39, added by Ord. 1948, ch. 60, § 9)
Cross reference—Animals and fowl generally, § 4-1 et seq.

Sec. 12-119. Feeding wild birds.

No person shall feed wild birds other than in suitable containers for the food, elevated at least forty-eight (48) inches above the ground level.
(Ch. 17, § 38, added by Ord. 1948, ch. 60, § 8)
Cross reference—Animals and fowl generally, § 4-1 et seq.

Sec. 12-120. Penalty for violation of article.

Whoever violates any provision of this article, or any order or regulation made in pursuance thereof, or obstructs or interferes with an execution of such order or willfully or illegally fails to obey such order, shall be guilty of an offense punishable as provided in section 1-10 of this Code of Ordinances.
(Ch. 17, § 40, added by Ord. 1948, ch. 60, § 10)

Secs. 12-121—12-130. Reserved.

ARTICLE VI. STAGNANT WATER

Sec. 12-131. Prohibition against the accumulation of stagnant water in swimming pools, spas, hot tubs, artificial ponds, and containers on private property.

(a) *Purpose.* The city council finds that the accumulation of stagnant water in swimming pools, spas, hot tubs, artificial ponds and other man-made containers and objects on private property constitutes a health hazard since such accumulations of

stagnant water serve as breeding grounds for mosquitoes which have been found to serve as conduits for serious and possibly fatal diseases such as Eastern Equine Encephalitis (EEE) and the West Nile Virus. The city council further finds that in the interest of the health, safety and welfare of the citizens of the city that accumulations of stagnant water in swimming pools, spas, hot tubs, artificial ponds and other man-made containers and objects on private property be declared a public nuisance and that the department of public works be empowered to issue citations for violations of this article, punishable in the municipal court, and that the city be empowered to abate said nuisance if not abated by the owner or occupier of land on which it exists.

(b) *Definitions.*

Artificial pond: Any body of water, which is located or placed on private property as a result of human labor or means and shall include any excavation, trench, hole, or manmade object intended to serve as an artificial fish or garden pond. Any wetland or body of water designated as wetlands by either the state department of environmental management or the state coastal resources management council is hereby exempted from the provisions of this article.

Container. Any manufactured or handmade vessel which has the capability of retaining more than one (1) inch of water, including, but not limited to, buckets, pails, tires and portable and/or storable swimming pools.

Director. The director of the department of public works, or any person acting in said capacity.

Hot tub. Any manufactured or handmade container designed to hold water in which one (1) or more persons bathe or soak, and shall include spas and whirlpools.

Private property: Any parcel of real property located either partly or entirely within the city which is owned, leased or occupied by any person, firm, corporation, trust, association or other entity other than the city, or any of its departments or agencies, the state, or any of its departments or agencies or of the United States, or any of its departments or agencies.

Spa. Any manufactured or handmade container designed to hold water in which one (1) or more persons bathe or soak, and shall include hot tubs and whirlpools.

Stagnant water. Any body of water, one (1) inch of depth or more, in any swimming pool, spa, hot tub, artificial pond, or container, which is not fully enclosed in a building, house or other structure and which is neither moving by artificial or natural means, nor chemically treated nor filtered so as to prevent the growth of mosquito larvae. Stagnant water as used in this article shall not include any body of water designated as wetlands by either the state department of environmental management or the state coastal resources management council.

Swimming pool. Any container or tank, whether constructed in ground or placed above ground, designed for one (1) or more persons to swim.

(c) *Stagnant water as a public nuisance; violations.* It is hereby declared by the city council that any accumulation of stagnant water in any swimming pool, spa, hot tub, artificial pond or other manufactured or handmade container, which is not fully enclosed in a building, house or other structure, for more than seven (7) consecutive days is a public nuisance and a public health hazard. It shall be unlawful for the owner, lessee or occupier of any parcel of real property to cause or to allow to exist said public nuisance on any parcel of real property he or she owns, leases or occupies. Any person found in violation of this section shall subject to a fine pursuant to section 1-10 of the Providence Code of Ordinances.

(d) *Notice of violation.* Upon a finding by the director, or his or her designee, that there exists stagnant water on a parcel of private property, a notice of violation shall be issued to the owner, lessee or occupant of the property by leaving same with any person of the age of majority in occupancy of said property, or if no person is available to receive notice, by posting same on any entry door to the primary structure which sits on said property, or if there is no structure, then by posting notice to any tree, pole or other object which sits upon said property. Notice shall also be mailed, by certified mail, return receipt requested, to the owner of record of said property according to the tax assessor's records. The notice shall contain the address of the property, notify the person receiving notice that the property is in violation of this article of the Code of Ordinances of the city describe generally, the nature of the violation and notify the recipient that he or she shall have five (5) days from the date of the notice within which to abate the nuisance. The notice shall also provide that if the nuisance is not abated within five (5) days of the mailing of the notice, then the department of building inspection may then forthwith proceed in the municipal court for imposition of fines and an order of abatement. The notice shall contain the date and time of the hearing, if any before the municipal court.

(e) *Order of abatement.* If, after the expiration of five (5) days following the date of issuance of a notice of violation pursuant to this article, the nuisance remains unabated, then the director, or his or her designee may proceed for imposition of fines and an order of abatement to issue from the municipal court. A photograph or video recording of the body of stagnant water, together with evidence of the address of the property, the name and address of the property owner, lessee or occupier and that said nuisance remains unabated on the date of hearing before the municipal court shall constitute prima facie evidence of the existence of the unabated nuisance. Upon a finding by a judge of the municipal court that the nuisance remains unabated, then the court may impose a fine pursuant to section 1-10 of the Providence Code of Ordinances for each day that the nuisance has existed and may issue an order of abatement after notice and opportunity for hearing has been given to the owner of the parcel according to the tax assessor's records and to the occupier of the land. Said order of abatement shall allow the director, or his or her designee,

to enter upon the property and take whatever steps are necessary to abate the nuisance including, but not limited to filling, draining, or removal of the body of stagnant water which is the subject of the order of abatement. The director is authorized to request assistance from other city departments or agencies in performing the work needed to abate the nuisance and to contract said work pursuant to municipal bidding requirements under state law, and the charter and ordinances of the city. All costs incurred by the city in abating the nuisance shall be reimbursed by the owner, lessee, or occupier of the land.

(f) *Lien for abatement costs and fines.* Any unpaid fines imposed pursuant to this article and costs incurred by the city in abating a stagnant water nuisance pursuant to subsection (e) shall constitute a lien on the property, which shall be recorded in the land evidence records of the city, and shall be discharged only upon payment of all fines and costs imposed pursuant to this article.
(Ord. 2008, ch. 08-37, § I, 7-28-08)

Chapter 13

HOUSING*

Article I. In General

Sec. 13-1. Title of chapter.
Sec. 13-2. Statement of policy.
Sec. 13-3. Purpose of chapter.
Sec. 13-4. Conflict of chapter with other ordinances.

Article II. Minimum Housing Standards

Sec. 13-5. Enforcement of Rhode Island Property Maintenance Code.
Sec. 13-6. Minimum housing standards division—Created, designated.
Sec. 13-7. Same—Administration of divisions and delegation of powers.
Sec. 13-8. Enforcement of minimum housing standards.
Sec. 13-9. Appointment and duties of chief inspector and other personnel.
Sec. 13-10. Appointment and duties of hearing officer.
Sec. 13-11. Personnel of division of minimum housing standards.
Sec. 13-12. Conflict of permits and licenses with chapter.
Sec. 13-13. Application to zoning board of review for variance, exception.
Sec. 13-14. Referral of housing violations not covered by chapter but by standards of other codes.
Sec. 13-15. Prosecution of existing violations.
Sec. 13-16. Violations and penalties.
Sec. 13-17. Recording notices and orders; liability of persons having notice of proceedings.

Article III. Affordable Housing Trust Fund

Sec. 13-18. Allocation system for the affordable housing trust fund.

***Editor's note—**Ord. 2013, ch. 2013-5, adopted March 18, 2013, amended Ch. 13 in its entirety to read as set out herein. Former Ch. 13, §§ 13-1—13-26, 13-35—13-49, 13-58—13-77, 13-88—13-102, 13-112—13-120, 13-131—13-136, 13-147—13-155, 13-166—13-171, 13-182—13-190, 13-200—13-211, 13-213—13—220, 13-222—13-243, 13-251—13-253, 13-261—13-263, 13-275—13-285, pertained to similar subject matter. See the Code Comparative Table for a complete derivation.

Cross references—Building ordinance, amendments preserved, § 5-1; egress requirements for certain occupancies, § 5-2; obstructing fire escapes, passageways, doors, windows, § 9-7; periodic inspections of buildings and premises, § 9-34; rat and vermin control, § 12-110 et seq.

Article IV. Residential Owner-Occupied Mortgage Foreclosure Intervention

Sec. 13-19. Definitions.
Sec. 13-20. Statement of policy.
Sec. 13-21. Purpose.
Sec. 13-22. Notice of intent to foreclose/mediation conference.
Sec. 13-23. Penalties and effective date.

Article V. Notice of Foreclosure to Bona Fide Tenants of Rental Residential Property

Sec. 13-24. Definitions.
Sec. 13-25. Notice to bona fide tenants.
Sec. 13-26. Penalties.

Article VI. Housing Board of Review

Sec. 13-27. Established; general powers and duties.
Sec. 13-28. Composition; appointment of members.
Sec. 13-29. Qualifications of members.
Sec. 13-30. Officers.
Sec. 13-31. Terms of members; filling vacancies.
Sec. 13-32. Compensation of board members.
Sec. 13-33. Disqualification of members from certain matters.
Sec. 13-34. Meetings.
Sec. 13-35. Right to appeal to board from compliance order.
Sec. 13-36. Grounds for appeal from compliance order.
Sec. 13-37. Filing appeal from compliance order.
Sec. 13-38. Schedule of appeal fees.
Sec. 13-39. Effect of filing appeal.
Sec. 13-40. Quorum for hearing appeal.
Sec. 13-41. Conduct of hearings on appeals.
Sec. 13-42. Administering oaths and compelling attendance of witnesses.
Sec. 13-43. Vote required to reverse, modify order, authorize variance.
Sec. 13-44. Minutes, records of proceedings, decisions.
Sec. 13-45. Review of proceedings of board.
Sec. 13-46. Judicial review of decisions of board.

Article VII. Abandoned Property Registration, Security and Maintenance

Sec. 13-47. Purpose.
Sec. 13-48. Definitions.
Sec. 13-49. Registration of properties.

Sec. 13-50. Registration fees.
Sec. 13-51. Maintenance.
Sec. 13-52. Enforcement.
Sec. 13-53. Removal from the vacant and abandoned property database.
Sec. 13-54. Reporting.
Sec. 13-55. Use of collected funds.
Sec. 13-56. Rules and regulations.

Article VIII. Security Housing Developments for Elderly Persons and Persons with Disabilities

Sec. 13-57. Definitions.
Sec. 13-58. Security requirements for elderly/disabled multi-family housing developments.
Sec. 13-59. Protection from rent increases.
Sec. 13-60. Enforcement.
Sec. 13-61. Non-liability of the city.
Sec. 13-62. Severability.

Article IX. Multi-Unit Dwellings

Sec. 13-63. Definitions.
Sec. 13-64. Applicability and exemptions.
Sec. 13-65. Local property manager required.
Sec. 13-66. Fines and fees.
Sec. 13-67. Use of collected funds.
Sec. 13-68. Rules and regulations.

ARTICLE I. IN GENERAL

Sec. 13-1. Title of chapter.

This chapter shall be known as "Housing."
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-2. Statement of policy.

It is hereby declared that there exists in the city numerous dwellings, and dwelling premises and structures which are substandard in one (1) or more important features of structural safety, sanitary facilities and maintenance, and healthful occupancy and hot water facilities; and that these conditions together with the inadequate provision for light and air, insufficient protection against fire, insanitary conditions, lack of proper heating, overcrowding of dwellings and structures, deterioration and disrepair of dwellings and structures and dwelling premises and the occupancy of unfit dwellings and structures, endanger the health, safety, morals, and general welfare of the community, and give impetus to the continuation, extension and aggravation of urban blight and decay. It is further declared that the establishment and enforcement of minimum standards for dwellings, dwelling premises and structures, and the rehabilitation of housing are essential to the public health, safety, and general welfare.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-3. Purpose of chapter.

The purpose of this chapter shall be to protect the public health, safety and welfare by establishing minimum standards governing the condition and maintenance of all dwellings, dwelling premises and structures; establishing minimum standards governing utilities and facilities and other physical things and conditions essential to make dwellings and structures safe, sanitary, and fit for human habitation; fixing certain responsibilities and duties of owners, operators, and occupants of dwellings, dwelling premises and structures; and fixing the conditions whereby certain dwellings and structures may be declared unfit for occupancy and condemned for human habitation; and fixing penalties for violations of the provisions of this chapter.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-4. Conflict of chapter with other ordinances.

In any case where a provision of this chapter or of any regulation adopted pursuant thereto is found to be in conflict with a provision of any zoning, building, fire, safety or health ordinance or any regulation adopted pursuant thereto, or any

other ordinance, code or regulation of the city, the provision which establishes the higher standard for the promotion of the health and safety of the people shall prevail.
(Ord. 2013, ch. 2013-5, 3-18-13)

ARTICLE II. MINIMUM HOUSING STANDARDS

Sec. 13-5. Enforcement of Rhode Island Property Maintenance Code.

The City of Providence shall follow and enforce the State of Rhode Island Property Maintenance Code codified by the Property Maintenance Code for the State of Rhode Island, hereinafter referred to as SBC-6, and administered by R.I.G.L. 1956 § 23-27.3-100 et seq.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-6. Minimum housing standards division—Created, designated.

There is hereby created within the executive department a division of minimum housing standards, hereinafter referred to as "the division," for the purposes of enforcing the provisions of this chapter and such other matters as may be appropriately assigned to it.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-7. Same—Administration of divisions and delegation of powers.

The division of minimum housing standards shall be operated under the general direction of the urban renewal coordinator, and under the immediate supervision and control of a director appointed by the mayor, subject to the approval of the city council, and to serve at the pleasure of the mayor. The director may delegate any of his powers or duties under the provisions of this chapter to any properly qualified employee of the division.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-8. Enforcement of minimum housing standards.

The code enforcement division is hereby transferred to and under the jurisdiction and control of the department of building inspection; and all the powers and duties of the said code enforcement division, including, but not by way of limitation, those vested under the minimum standards housing ordinance, so-called, (and which were heretofore vested in the director of the department of planning and urban development) are hereby transferred and vested in the director of the department of building inspection.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-9. Appointment and duties of chief inspector and other personnel.

The chief inspector of the division of minimum housing standards shall be appointed by the director subject to the approval of the mayor. The chief inspector shall be the responsible head of the inspection staff and shall exercise such authority as shall be delegated to him by the director. All other personnel of the division shall be appointed by the director, subject to the prior approval of the personnel director.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-10. Appointment and duties of hearing officer.

The director shall serve as the hearing officer of the division of minimum housing standards and as such shall be responsible for the scheduling, conduct and recording of hearings as provided for in sections 101.1 through 107.6 of the SBC - 6; except that the director may delegate these duties to the chief inspector or any other qualified employee of the division.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-11. Personnel of division of minimum housing standards.

The personnel of the division of minimum housing standards shall consist of a director, a chief inspector and such other inspectors, clerks and other personnel as may be necessary for the proper organization of the division and for the proper enforcement of this chapter.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-12. Conflict of permits and licenses with chapter.

All departments, officials and employees of the city which have the duty or authority to issue permits or licenses in regard to the construction, installation, repair, use or occupancy of structures, dwellings, dwelling premises or dwelling equipment or facilities shall conform to the provisions of this chapter, and no permit or license for any construction, installation, repair, use or occupancy shall be issued if such would be in conflict with the provisions of this chapter except as provided in [section] 13-4 of this chapter. Any permit or license issued in conflict with the provisions of this chapter, except as provided in section 13-4 of this chapter, shall be null and void.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-13. Application to zoning board of review for variance, exception.

Whenever a compliance order issued pursuant to the provisions of this chapter requires an extension of a building or structure into a required rear yard or side

yard, or the execution of any compliance order will result in any violation of the zoning ordinance, the director is authorized to apply to the zoning board of review for a variance or exception.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-14. Referral of housing violations not covered by chapter but by standards of other codes.

Whenever the director determines that the condition of a structure, dwelling or dwelling premises or any part thereof is in violation of any zoning, building, fire or health ordinance or regulation adopted pursuant thereto, or any other ordinance, or code or regulation of the city governing the condition and improvement of housing, which is not provided for by this chapter, or which is provided for by a higher standard of such other ordinance, code or regulation, according to section 13-4 of this chapter, he shall refer such violation to the appropriate authority.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-15. Prosecution of existing violations.

This chapter shall not affect violations of any other existing ordinance, code or regulation of the city, and such violations shall be governed and shall continue to be punishable to the full extent of the law under the provisions of those ordinances, codes or regulations in effect at the time the violation was committed.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-16. Violations and penalties.

(a) Any person who violates any provision of this chapter, or any provision of any rule or regulation adopted pursuant to authority granted by this chapter will be punished pursuant to SBC-6, R.I.G.L. 1956 § 23-27.3-100 et seq., and chapter 1, section 1-10 of the Providence Code of Ordinances

(b) The city solicitor shall, upon complaint of the director, institute injunction, abatement or other appropriate actions or proceedings at law or in equity to restrain, prevent, enjoin, abate, correct or remove such violations.

(c) The remedies provided for herein shall be cumulative and not exclusive and shall be in addition to any other remedies provided by law.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-17. Recording notices and orders; liability of persons having notice of proceedings.

Whenever a notice of violation or a compliance order has been issued for a violation of this chapter or any rule or regulation adopted pursuant thereto, the director may file in the office of the recorder of deeds a copy of the notice or order. Such notice or order shall be recorded in the same manner as "lis pendens" notices,

and such recording shall be constructive notice to any purchaser or encumbrancer of the real property affected thereby. Notwithstanding any other provisions of this chapter, any person purchasing or otherwise acquiring any interest in any real property and having actual or constructive notice of any proceedings instituted under the provisions of this chapter shall be immediately subject to and bound by any such proceedings and to any compliance order entered with respect to the real property.
(Ord. 2013, ch. 2013-5, 3-18-13)

ARTICLE III. AFFORDABLE HOUSING TRUST FUND

Sec. 13-18. Allocation system for the affordable housing trust fund.

(a) As used in this section, "affordable" means housing that costs no more than thirty (30) percent of a household's monthly income, including monthly rent, mortgage payments and utilities.

(b) Monies designated for or allocated by the Providence Housing Trust shall be used solely for the purpose of funding construction, development, or financing mechanisms of affordable low-and moderate-income housing. "Low-and moderate-income housing" means rental units affordable to households earning less than or equal to eighty (80) percent of the area median income, or homeownership units affordable to households earning up to one hundred twenty (120) percent of the area median income, as determined annually by the United States Department of Housing and Urban Development's income limits for the City of Providence.

Any funds obligated by resolution of the Providence Redevelopment Agency (PRA) board upon or prior to the date of passage of this ordinance shall be exempt from this section.

(c) All payments made to the city redevelopment agency for payment to the Providence Housing Trust under tax stabilization agreements shall be deposited in the Providence Housing Trust without exception. These payments shall be used in strict conformance with the rules and regulations of the Providence Housing Trust.

(d) Affordable housing projects financed, in part or in whole, by the Providence Housing Trust must result in units which remain affordable, as defined in subsection (a), for at least thirty (30) years.

(e) The director of the department of planning, or assignee, shall make a quarterly report on the activities and status of the Providence Housing Trust to the city council.
(Ord. No. 2024-16, 5-24-24)

ARTICLE IV. RESIDENTIAL OWNER-OCCUPIED MORTGAGE FORECLOSURE INTERVENTION

Sec. 13-19. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Good faith means that the mediation coordinator determines that the mortgagor and mortgagee deal honestly and fairly with each other and the mediation coordinator in an effort determine whether an alternative to foreclosure is economically feasible for the mortgagor and mortgagee, as evidenced by some or all of the following factors:

(1) Mortgagee provided notice as required by this article;

(2) Mortgagee designated an agent to participate in the mediation conference on its behalf, and with the authority to agree to a work-out agreement on its behalf;

(3) Mortgagee made reasonable efforts to respond in a timely manner to requests for information from the mediation coordinator, mortgagor, or counselor assisting the mortgagor;

(4) Mortgagee declines to offer the mortgagor an eligible work-out proposal, and the mortgagee provided a detailed statement, in writing, of its reasons for rejecting the proposal;

(5) Whether the mortgagee offers the mortgagor a work-out proposal that the mediation coordinator determines would result in net financial benefit to the mortgagor as compared to the terms of the mortgage, and /or is affordable to the mortgagor.

HUD means the United States Department of Housing and Urban Development.

Mortgagor means an individual who owns and resides in residential property located in the city and county which is subject to a mortgage securing funds advanced by a mortgagee.

Mortgagee means the holder of a mortgage recorded in the land evidence records of the city, including a mortgage servicer acting on behalf of a mortgagee.

Mediation coordinator means an individual employed by a Rhode Island-based, HUD-approved independent counseling agency certified by the city to serve as the unbiased, impartial and independent coordinator of the mediation conference, with no authority to impose a solution or otherwise act as a consumer advocate.

Mediation conference means a conference involving the mortgagee and mortgagor, coordinated and facilitated by a mediation coordinator whose purpose is to

determine whether an alternative to foreclosure is economically feasible to both the mortgagee and the mortgagor, and if it is determined that an alternative to foreclosure is economically feasible, to facilitate a loan workout or other solution in an effort to avoid foreclosure.

Residential property means real property, located within the city and county, that is (i) a single-family dwelling, (ii) a structure containing not more than four (4) residential units, (iii) a residential condominium unit, or (iv) a residential co-op unit, and which is occupied as a mortgagor's principal residence. Property deemed

abandoned or under order for demolition as a result of fire or other calamity by the city's department of inspection and standards is not considered owner-occupied for the purpose of this article.

Rules and regulations means any rules adopted by the city necessary for the proper enforcement of this article to interpret and secure its intent.

The city means the City of Providence.

The parties means the homeowner/mortgagor and the lender/mortgagee.
(Ord. 2013, ch. 2013-5, 3-18-13; Ord. No. 2018-38, § 1, 7-10-18)

Sec. 13-20. Statement of policy.

It is hereby declared that residential mortgage foreclosure actions, caused in part by an underperforming economy, rising interest rates, unemployment, and underemployment, have negatively impacted a substantial number of mortgagors in the city, creating a foreclosure crisis which endangers the economic stability of the city and the health and safety of its citizens. The prevalence of foreclosures lead to increases in unoccupied and unattended buildings in the city and give impetus to the continuation, extension and aggravation of urban blight and decay. More importantly, foreclosures cause the unnecessary and unwanted displacement of a considerable number of homeowners and tenants who desire to live and work in the city.
(Ord. 2013, ch. 2013-5, 3-18-13; Ord. No. 2018-38, § 1, 7-10-18)

Sec. 13-21. Purpose.

The city's purpose in sections 13-19 through 13-23, inclusive, is to protect the public health, safety and welfare by providing early, HUD-approved independent counseling agency-supervised intervention in residential owner-occupied mortgage foreclosure cases which will assure timely determination of eligibility under various federal, state and local programs established to facilitate loan workout and other solutions to permit residential homeowners, where possible, to retain their properties and permit lenders to move forward to auction/sale of the properties and recordation of a foreclosure deed upon conclusion of the process.
(Ord. 2013, ch. 2013-5, 3-18-13; Ord. No. 2018-38, § 1, 7-10-18)

Sec. 13-22. Notice of intent to foreclose/mediation conference.

Except as may be provided in this article, from and after the effective date of this article, a mortgagee initiating a non-judicial foreclosure must undertake each of the following actions:

(1) The mortgagee shall provide written notice to the mortgagor at the address of the residential property and, if different, at the address designated by the mortgagor by written notice to the mortgagee as the mortgagor's address for

receipt of notices, of its intent to foreclose on the subject residential property, and to participate in good faith in a mediation conference. The mortgagee shall deliver a copy of the notice to the recorder of deeds and the mediation coordinator at the same time it issues notice to the mortgagor. The notice to the recorder of deeds must include plat and lot information of the residential property.

(2) A form of written notice meeting the requirements of this article shall be developed by the city at least thirty (30) days prior to the effective date of this article, and shall be in English, Portuguese, and Spanish.

(3) Following the filing of such notice, the mediation conference shall take place in person, or over the phone, at a time and place deemed mutually convenient for the parties by an individual employed by a HUD-approved, independent counseling agency selected by the mortgagee to serve as a mediation coordinator. The mediation conference must be scheduled within sixty (60) days following receipt by the mediation coordinator of a completed notice of mediation, single point of contact information for the mortgagee, and payment by the mortgagee of applicable fees associated the mediation conference.

(4) The mediation conference shall be provided at no cost to the mortgagor. The HUD-approved counseling agency shall be compensated by the mortgagee at a rate not to exceed five hundred dollars ($500.00) per engagement.

(5) If after two (2) attempts by the mediation coordinator to contact the mortgagor, the mortgagor fails to respond to the mediation coordinator's request to appear for the mediation conference, or the mortgagor fails to cooperate in any respect with the requirements outlined in this article, the requirements of the section will be deemed to be satisfied upon verification by the HUD-approved independent counseling agency that the required notice was sent; and if so, a certificate will be issued immediately by the HUD-approved independent counseling agency certifying compliance with this article.

(6) Prior to the scheduled mediation conference, the homeowner/mortgagor will be assigned a loan counselor to be provided by a HUD-approved independent counseling agency. The mortgagor shall cooperate in all respects with the mediation coordinator and the counseling agency including, but not limited to, providing all necessary financial and employment information and completing all loan resolution proposals and applications deemed appropriate by the mediation coordinator and the counseling agency.

(7) The mediation coordinator will provide information required by subsection (6) to the representative of the mortgagee.

(8) If the mediation coordinator determines that, after a good faith effort made by the mortgagee at the mediation conference, the parties cannot come to an agreement to re-negotiate the terms of the loan in an effort to avoid foreclosure, such good faith effort by the mortgagee shall be deemed to satisfy the requirements of this article. A certificate certifying such good faith effort will be promptly issued by the HUD-approved independent counseling agency certifying compliance with this article. The certificate will be the form of a document to be filed along with all other relevant documents regarding the foreclosure with the recorder of deeds.

(9) Cases involving premises which are not owner-occupied or which are not residential are not subject to this article.

(10) Notwithstanding the foregoing, any mortgagee based within the state and which services its own mortgages shall be deemed to be in compliance with the requirements of this section provided that:

a. The mortgagee is headquartered in Rhode Island or maintains a physical office in Rhode Island from which office it carries out full-service mortgage operations regarding mortgages on residential property located in the city, including the acceptance and processing of mortgage payments and the provision of local customer service;

b. The mortgagee offers mortgagors a forbearance relief program that is consistent with the forbearance relief requirements applicable to FHA-insured mortgages, as set forth in chapter 8 of HUD Handbook 4330.1 Rev. 5, Administration of Insured Home Mortgages, as the same may be amended from time to time; and

c. The mortgage has Rhode Island-based staff with the authority to approve loan restructuring and other loss mitigation efforts; and

d. The deed offered by a mortgagee to be filed with the recorder of deeds as a result of a mortgage foreclosure action contains a certification that the provisions of this subsection have been satisfied.

(Ord. 2013, ch. 2013-5, 3-18-13; Ord. No. 2018-38, § 1, 7-10-18)

Sec. 13-23. Penalties and effective date.

(a) Where the mortgagee presents a foreclosure deed for recording in the land evidence records of the city, and recorder of deeds determines that the mortgagee has failed in any material respect to comply with the requirements and provisions of this article, the recorder of deeds shall assess a penalty of five hundred dollars ($500.00) in addition to any other penalties and fees that may be assessed prior to recording the foreclosure deed. The rights of the homeowner to any redress afforded under the law are not abridged by this article.

(b) This article shall have no effect unless and until the provisions of G.L. 1956, § 34-27-3.2 are repealed or expire.
(Ord. 2013, ch. 2013-5, 3-18-13; Ord. No. 2018-38, § 1, 7-10-18)

ARTICLE V. NOTICE OF FORECLOSURE TO BONA FIDE TENANTS OF RENTAL RESIDENTIAL PROPERTY

Sec. 13-24. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Bona fide tenant means a person who has entered into a written or oral rental agreement with a homeowner or landlord (mortgagor) with respect to a dwelling unit of a mortgaged residential premises no less than thirty (30) days prior to the foreclosure of the mortgagor's interest. Neither the mortgagor nor any member of his or her immediate family is a bona fide tenant. The protections afforded a bona fide tenant exist regardless whether the residential premises is or is not owner-occupied.

Rules and regulations means any rules adopted by the city necessary for the proper enforcement of this article to interpret and secure its intent.

The city means the City of Providence.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-25. Notice to bona fide tenants.

Effective upon passage of this article, no bona fide tenant legally occupying a rental residential property within the city shall be forced to vacate that property in the event of a mortgage foreclosure action upon that property unless and until the following series of actions are taken:

(1) Where any dwelling unit of a foreclosed mortgaged estate is occupied by a bona fide tenant, and where the foreclosed mortgagor had provided essential services including, without limitation, heat, running water, hot water, electric, sewer or gas to such tenant, any successor in interest to the foreclosed mortgagor shall continue to provide the same essential services under the same terms and conditions to the tenant.

(2) A successor in interest to a mortgagor shall provide notice to each bona fide tenant, as defined in section 13-24, by mailing an envelope addressed to "Resident of property previously subject to foreclosure sale" and by posting, in the same manner required for posting the notice of sale on the property to

be sold, a written notice in both English and Spanish stating the name and address of the successor in interest, and/or managing agent so that the tenant may know to whom the ongoing rental payments should be made.

(3) Where any dwelling unit of a foreclosed mortgaged estate is occupied by a bona fide tenant of the foreclosed mortgagor, the bona fide tenant assumes a month-to-month periodic tenancy governed by the provisions of R.I.G.L tit. 43, ch. 18, except in those instances in which the bona fide tenant has entered into a written rental agreement with a homeowner or landlord (mortgagor) with respect to a dwelling unit of a mortgaged residential premises. In such instances tenancy is assumed for the duration specified in the written agreement.

(4) The lender/mortgagee shall provide notice to each bona fide tenant, as defined in section 13-19, by mailing an envelope addressed to "Resident of property subject to foreclosure sale" and by posting, in the same manner required for posting the notice of sale on the property to be sold, at the same time notice is provided to the mortgagor, a written notice in both English and Spanish: (i) stating that the real estate is to be sold in foreclosure, which may affect the tenant's right to continue to live in the property; (ii) stating the date, time and place of sale; (iii) providing the address and telephone number of Rhode Island Legal Services; and (iv) providing the name, address and telephone number of HUD-approved counseling agencies in Rhode Island. Failure of the lender/mortgagor to provide notice as provided herein shall not affect the validity of the foreclosure; however, no successor in interest to the mortgagor shall be permitted to initiate an action for possession of the premises against such bona fide tenant until notice as required herein, in addition to the notice required in subsection (2), is provided.

(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-26. Penalties.

Any failure of a lender/mortgagee or successor in interest to a mortgagor to comply with the terms of this article will be penalized by a fine of not less than one thousand dollars ($1,000.00) per offense.

(Ord. 2013, ch. 2013-5, 3-18-13)

ARTICLE VI. HOUSING BOARD OF REVIEW

Sec. 13-27. Established; general powers and duties.

There shall be a housing board of review which is authorized to hear and decide appeals from compliance orders.

The board shall have the power to reverse or affirm wholly or partly or to modify any order of the director; and in specific cases to authorize such variance in the application of the terms of this chapter, where owing to unusual conditions a literal enforcement of the provisions of this chapter will result in unnecessary hardship, and so that the spirit of this chapter shall be observed and substantial justice done.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-28. Composition; appointment of members.

The housing board of review shall consist of five members appointed by the mayor of the city; subject to the approval of the city council.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-29. Qualifications of members.

Each member of the housing board of review shall be a resident of the city, and one member shall be a qualified builder, or a licensed architect, or a licensed professional engineer; and another shall be a qualified doctor of medicine or of public health. No member of the board shall serve on any other appointive board of the city; provided however, that the chairman of the housing board of review shall be a member of the mayor's housing advisory council whenever such council shall be appointed.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-30. Officers.

The mayor shall select one (1) of the members of the housing board of review to serve as chairman, and the board shall select one (1) of its members to serve as vice-chairman; and the mayor shall appoint subject to the approval of the city council a secretary of the board who shall keep a detailed record of its business and proceedings.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-31. Terms of members; filling vacancies.

One (1) member of the housing board of review first constituted shall be appointed for five (5) years, one (1) for four (4) years, one (1) for three (3) years, one (1) for two (2) years and one (1) to serve for one (1) year; each new member shall serve for five (5) years and until his successor has been appointed and qualified. The mayor with the approval of the council shall appoint a member of the board to fill any unexpired term if a vacancy occurs.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-32. Compensation of board members.

The compensation of the chairman of the housing board of review shall be sixty dollars ($60.00) per meeting, but not to exceed one thousand two hundred dollars

($1,200.00) per year, and the compensation for each of the other members shall be fifty dollars ($50.00) per meeting, but not to exceed one thousand dollars ($1,000.00) per year. Compensation for any meeting of the board shall be paid only for actual attendance.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-33. Disqualification of members from certain matters.

No member of the housing board of review shall pass on any matter in which he has a business or a personal interest.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-34. Meetings.

The housing board of review shall meet at least once a month and at other times upon the call of the chairman. Notice of the meeting to hear an appeal shall be given the appellant, the director, and the members of the board, at least ten (10) days before the holding of the meeting, except for a hearing on an appeal involving a restraining order at which time notice need not exceed forty-eight (48) hours. Upon receipt of notice of an appeal the director shall forward immediately to the secretary of the board all pertinent records.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-35. Right to appeal to board from compliance order.

Any person upon whom a compliance order has been served may appeal from the compliance order to the housing board of review.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-36. Grounds for appeal from compliance order.

Application for an appeal provided for in section 13-35 may be made whenever it is alleged that the compliance order does not conform with the true intent of this chapter or of the rules and regulations adopted pursuant thereto; that the compliance order is contrary to law; that the provision of this chapter do not fully apply; or that in unusual conditions, unnecessary hardship will result from the literal enforcement of the provisions of this chapter.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-37. Filing appeal from compliance order.

Any eligible person desiring to take an appeal shall file in the office of the housing board of review, within ten (10) days after service of the compliance order, a written

appeal including a brief statement of the reasons therefor, and a detailed statement of the facts supporting the appeal. A notice of the appeal shall be forwarded immediately to the director by the secretary of the board.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-38. Schedule of appeal fees.

An appeal fee, in accordance with the following schedule, shall be paid upon the filing of any application for appeal before the housing board of review:

(1) The appeal fee shall be five dollars ($5.00) whenever an appeal is taken from a compliance order issued as a result of hearing before the director;

(2) The appeal fee shall be ten dollars ($10.00) whenever an appeal is taken from a compliance order issued after failure to request a hearing before the director, or after failure to appear at such hearing.

Upon receipt of the appeal fee by the board, said fee shall be paid to the city collector.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-39. Effect of filing appeal.

An appeal to the housing board of review shall stay all proceedings under the compliance order from which such appeal has been taken, except that the director may certify to the board after receipt of the notice of the appeal, as provided in sections 13-36 and 13-37 of this chapter, that by reason of the facts stated in the certificate, any stay of proceedings would in his opinion cause a direct hazard or immediate peril to the health or safety of the occupants of a dwelling or structure or of the public, and in such event proceedings shall not be stayed except by restraining order granted by the chairman or the acting chairman of the board on application therefor by the appellant, upon notice to the director, and on due cause shown, or by a court of competent jurisdiction. Whenever a restraining order has been issued, the appeal shall be given priority over all other matters before the board, and shall be promptly heard and decided.

Sec. 13-40. Quorum for hearing appeal.

In order for the housing board of review to hear an appeal a quorum of three (3) members of the board must be present. When a quorum is not present, the hearing of the appeal shall be postponed until such time as a quorum is present. The board shall provide for a new date for the hearing of the appeal in accordance with the provisions of section 13-34 of this chapter.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-41. Conduct of hearings on appeals.

All hearings of appeals by the housing board of review shall be "de novo". All hearings shall be public, and the appellant, his representative, the director and any other person whose interests may be affected by the matter on appeal, and who files a written entry of appearance shall be given an opportunity to be heard. Written entry of appearance at such hearing shall fulfill the requirements for service of any notice or order by the director.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-42. Administering oaths and compelling attendance of witnesses.

The chairman of the housing board of review or in his absence, the acting chairman, may administer oaths and compel the attendance of witnesses.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-43. Vote required to reverse, modify order, authorize variance.

A concurring vote of a majority of the members of the housing board of review present at a hearing shall be necessary to reverse or modify any order or decision of the director, and to authorize a variance in the application of any of the provisions of this chapter as provided in section 13-27 of this chapter. In the event of a tie vote of the members of the board present at the hearing, the order or decision of the director shall be deemed to have been sustained.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-44. Minutes, records of proceedings, decisions.

All decisions of the housing board of review shall be in writing. The board shall keep clear and detailed minutes of all its proceedings including its decisions and the reasons therefor and the vote of each member participating therein and the absence of a member or his failure to vote. Such record, immediately following the board's decision, shall be filed in the office of the board and shall be a public record. Notice of the board's decision shall be promptly furnished to the appellant, his representative, any person who has filed a written entry of appearance, and to the director, and the director shall take immediate action in accordance with the decision of the board.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-45. Review of proceedings of board.

Proceedings of the housing board of review shall be conclusive with respect to questions of fact and may be reviewed only on questions of law by courts of competent jurisdiction as provided in section 13-46 of this chapter.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-46. Judicial review of decisions of board.

(a) Any person, including the director, aggrieved by any decision of the housing board of review may present to the supreme court a petition duly verified setting forth that such decision is illegal in whole or in part and specifying the grounds of the illegality. Such petition shall be presented to the court within thirty (30) days after the filing of the decision in the office of the board. Upon the presentation of such petition, the court may allow a writ of certiorari directed to the housing board of review to review such decision of the board and shall prescribe therein the time within which a return thereto must be made, which shall be not less than ten (10) days and may be extended by the court. The allowance of the writ shall not stay proceedings upon the decision appealed from, but the court may on application, upon notice to the board and on the due cause shown, grant a restraining order.

(b) The board shall not be required to return the original papers acted upon by it, but it shall be sufficient to return certified or sworn copies thereof or of such portions thereof as may be called for by such writ. The return shall concisely set forth such other facts as may be pertinent and material to show grounds of the decision appealed from and shall be verified.

(c) If upon the hearing it shall appear to the court that testimony is necessary for the proper disposition of the matter, it may take evidence or appoint a master to take such evidence as it may direct and report the same to the court with his findings of fact and conclusions of law, which shall constitute a part of the proceedings upon which the determination of the court shall be made.

(d) The court may reverse or affirm wholly or partly or may modify the decision brought up for review.
(Ord. 2013, ch. 2013-5, 3-18-13)

ARTICLE VII. ABANDONED PROPERTY REGISTRATION, SECURITY AND MAINTENANCE

Sec. 13-47. Purpose.

The purpose of this article is to protect residential neighborhoods from becoming blighted as a result of inadequate maintenance and lack of security at abandoned and vacant properties and to strengthen the city's ability to respond to nuisance and/or hazardous properties in order to protect the health, safety, welfare and property of city residents.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-48. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section:

Abandoned property means any residential property lacking lawful occupancy that the owner has manifested intent to abandon through some act or omission. The intent of the owner to abandon the property can be inferred from the surrounding facts and circumstances that include, but are not limited to:

(1) The existence of serious code violations that pose a health or safety hazard to the community and that have gone unrepaired for an unreasonable amount of time;

(2) Whether or not the grounds have been maintained;

(3) Whether or not the interior of the property has been maintained;

(4) Whether or not any vandalism to the property has gone unrepaired;

(5) Whether or not any rents have been collected by the owner for the use of the building;

(6) The length of time that any of the above conditions have existed.

Actively marketed means the good faith efforts by the owner of the property to obtain one (1) or more occupants of the property. These good faith efforts may include, without limitation, one (1) or more of the following:

(1) Making substantial financial expenditures in comparison with the value of the property;

(2) Listing the property for sale, lease or both, with one (1) or more real estate brokers, for a price and on terms that are realistic considering the fair market value or fair market rental value of the property; or

(3) Advertising, through physical signs on the property and/or other mediums, the availability of the property for sale or rental for a price and on terms that are realistic considering the fair market value or fair rental value of the property.

City means the City of Providence, Rhode Island.

Days means consecutive calendar days.

Development plan means a plan to rehabilitate a vacant and abandoned property within a set time frame for a use in conformance with the city's comprehensive plan and zoning ordinance.

Local agent means a person, firm, or corporation designated by the trustee, beneficiary, or owner of a property as responsible for the security and maintenance of said property. The local agent shall reside or be otherwise located within the State of Rhode Island.

New owner means any person who has purchased a property during the period subsequent to the notice of designation as abandoned.

Owner means the person, firm, or corporation holding the legal or recorded title to the property, provided that holders of tax title shall not be considered an owner until the right of redemption has been foreclosed.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-49. Registration of properties.

(a) Any owner of an abandoned property, as defined herein, shall annually register the property with the department of inspections and standards in a database heretofore referred to as the vacant and abandoned property database ("the database").

(b) Registration shall consist of the following information:

(1) Property owner;

(2) Street and mailing address of property owner;

The mailing address may not be a P.O. box. If such person or persons reside outside of the State of Rhode Island, such person or persons shall also provide the contact information, including street address, telephone number, and email address, of an individual or company within the State of Rhode Island, herein referred to as a "local agent," that will be responsible for its security and maintenance. Any change to the information contained in the registration must be reported within ten (10) days of such change.

(3) Telephone number of property owner;

(4) Email address of property owner;

(c) The owner is not obligated to register the property as abandoned if:

(1) The building is occupied on a seasonal basis but is otherwise secure and meets the maintenance standards described herein; or

(2) A building permit has been issued for the purpose of substantial construction, renovation, or rehabilitation of the property.

(d) The director of inspection and standards ("director") and/or his/her designee may add a property to the abandoned property database if he/she determines that it is an abandoned property. The director and/or his/her designee will make a good faith effort to verify the property is an abandoned property. This effort will include sending notice to the last known address of the owner of record thirty (30) days prior to registration and posting notice in at least two (2) visible public places on the property.

(e) Upon registration in the database, the city and/or its designee may inspect the property to assess its condition and ensure that it has been properly secured. Thereafter, the city and/or its designee may inspect abandoned properties for

compliance and to issue citations for any violations as it sees fit, but on a schedule not less than four (4) times yearly. The owner and/or local agent shall have the duty to provide access to the exterior and interior portions of the property as required for inspection purposes, upon reasonable notice. The city and/or its designee shall have the discretion to determine when and how such inspections are to be made, provided that such policies are reasonably calculated to ensure that this section is enforced.

(f) The owner and/or local agent shall post signage on the front of the property, made of durable, weather resistant material, not less than twenty-five (25) square inches in size and affixed to the building in a secure manner designed to withstand normal weather conditions, containing:

(1) The name and twenty-four-hour contact phone number of the owner and, if applicable, the local agent responsible for the maintenance and security of the property,

(2) Contact information for the Providence Police Department, and

(3) Contact information for the mayor's office of neighborhood services.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-50. Registration fees.

(a) Upon registration, the owner of any property in the database will immediately forego any and all property tax exemptions, waivers or abatements for that property unless the owner is a tax exempt entity under state law.

(b) A registration fee of one hundred dollars ($100.00) per property shall be charged to the owner and/or local agent upon initial registration.

(c) A fee of two hundred dollars ($200.00) shall be charged to the owner and/or local agent upon the first annual renewal of registration.

(d) A fee of three hundred dollars ($300.00) shall be charged to the owner and/or local agent upon the second annual renewal of registration and each annual renewal of registration thereafter.

(e) Failure to register an abandoned property in the process described in this article and pursuant to the rules and regulations promulgated by the director shall result in the director and/or his/her designee issuing a two hundred and fifty dollar ($250.00) fine to the owner or agent responsible for registering the property. Non-compliance shall be deemed to begin on the day immediately following the ninety-day period that a non-actively marketed property has lacked lawful occupancy.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-51. Maintenance.

(a) Abandoned properties shall be maintained in accordance with the following standards regarding exterior maintenance:

(1) *Landscaping.* The property's yards shall be maintained by watering, cutting, pruning, and mowing all lawns and vegetation. Grass shall be kept below eight (8) inches in height, and all dead or broken tree limbs or shrubbery shall be cut and removed from the premises. Yards and lawns shall be kept free of weeds.

(2) *Trash, debris and graffiti.* The property shall be kept free of trash and debris. Mail or flyers that have been delivered to the building shall not be permitted to accumulate on any portion of the exterior lot of the building. Graffiti shall be removed within forty-eight (48) hours of placement on property.

(3) *Vermin.* No portion of the lot nor any structure, vehicle, receptacle or object thereon shall be maintained or operated in any manner that causes or produces any health or safety hazard or permits the premises to become a rodent harborage or is conducive to rodent harborage.

(4) *Snow and ice.* The property shall be kept free of snow and ice in compliance with section 23-13 of the Code of Ordinances.

(5) *Lighting.* Entrances to the property, including doors, windows and other entry points, shall maintain exterior, motion activated lighting from dusk to dawn.

(b) Abandoned properties shall be maintained in accordance with the following standards regarding interior maintenance:

(1) *Security.* The property shall be secured against unauthorized entry and every exit door shall be secured with an internal deadbolt lock, or with a locking mechanism deemed equivalent or better by the director of inspections and standards and/or his/her designee and every such exit door shall be capable of being opened from the inside easily and without the use of a key or special knowledge. All windows and any other entry points that would allow access to the interior of the structure shall be secured. Boarding of doors and windows shall be permissible only if they may not be secured by other means.

(2) *Structural supports.* Foundations, roofs, walls, ceilings and other structural support shall be safe and capable of supporting the loads that normal use may cause to be placed thereon and shall be kept in sound condition and in good repair; floors and stairs shall be free of holes, grooves and cracks that could be potentially dangerous.

(3) *Winterization.* During winter months, plumbing fixtures shall be winterized by completely draining all plumbing and heating systems, or be heated to resist being frozen.

(4) *Vermin.* The property shall be kept free of insects, rodents or other vermin.

(5) *Trash, debris and graffiti.* The interior of the property shall be kept free of trash and debris, boxes, lumber, scrap metal, junk, vehicles or any other materials in such a manner that may produce any health, fire, or safety hazard or provide harborage for rodents or other animals on the premises.

(c) Abandoned properties shall adhere to all relevant sanitary codes, building codes, and other applicable regulations concerning maintenance, security, and upkeep of dwellings.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-52. Enforcement.

(a) The property owner or designated local agent shall:

(1) Provide a trespass authorization upon request of local law enforcement authorities if the property is unlawfully occupied,

(2) Conduct monthly inspections of the property to ensure it is properly secured and maintained in accordance with all the requirements of this article, and

(b) If the director and/or his/her designee determines that a property is not in compliance with the requirements of this article, the director and/or his/her designee will notify the owner and/or local agent of the violation(s), including potential penalties associated with non-compliance as described below. It shall be the burden of the owner and/or local agent to bring the property into compliance and inform the department of inspections and standards that the required changes and/or repairs were made no more than thirty (30) days after notification. If the specific code violation is determined not to have been brought into compliance at this re-inspection, the owner and/or local agent shall have five (5) additional days to bring the property into compliance. If, after this time, the owner and/or local agent has not rectified the violations in question, fines of up to five hundred dollars ($500.00) per violation will be imposed on the owner and/or local agent.

(c) Any person affected by any notice of violation which has been issued in connection with the enforcement of any provision of this article or any rule or regulation adopted pursuant thereto may request and shall be granted a hearing before the director after such person shall file in the office of the director a written request for such hearing, setting forth a brief statement of the grounds thereof, designating the person and his address upon whom any notices and orders may be served, and why such enforcement or compliance should not be effected. If this request is filed within ten (10) days after the service of the notice of violation, compliance with the notice shall not be required while the hearing is pending. On receipt of such request, the director shall set a time and place for such hearing, and shall give the applicant at least five (5) days' written notice thereof. At such hearing the applicant shall be given an opportunity to show cause why such notice of violation shall be modified or withdrawn.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-53. Removal from the vacant and abandoned property database.

(a) The property owner and/or local agent may remove abandoned property from the database by providing documentation to the director and/or his/her designee showing that the property is neither vacant nor abandoned. Acceptable documentation shall include, but not be limited to, the following:

(1) A signed affidavit affirming owner occupancy;

(2) A bill of sale showing that the property has transferred ownership to a new owner; or

(3) A copy of a signed lease, showing that a new permanent tenant is moving into the property.

(b) The director and/or his/her designee shall inspect the property and assess its condition prior to, and as a condition of, removal from the database. Properties shall not be removed from the database until the director and/or his/her designee has verified that the property is in compliance with the maintenance and security requirements of this article and meets all relevant city and state building codes and regulations.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-54. Reporting.

(a) The database shall be publicly accessible on the city's website.

(b) The department of inspections and standards shall, in coordination with the department of planning and development and other relevant offices and agencies, issue an annual report, informed by the information collected through the registration process outlined in this article, on the status of the city's housing stock, including, but not limited to:

(1) Indicators of new residential construction, including the number of new building permits issued, new certificates of occupancy issued; and

(2) Indicators of the scope of property abandonment and home foreclosure in the city; and

(3) Indicators of code compliance, including total code violations, disaggregated by category, neighborhood, referrals to housing court and outcome; and

(4) Indicators of environmental hazards such as lead paint and the city's progress in limiting exposure to them; and

(5) Other relevant indicators of the health and status of the city's housing stock as determined by the director of inspections and standards.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-55. Use of collected funds.

Monies collected through the provisions of this article shall be expended for purposes related to improving the physical condition of the city's housing stock, including, but not limited to, expanding the availability of affordable housing units, abating nuisance properties or other related purposes as determined by the director.
(Ord. 2013, ch. 2013-5, 3-18-13)

Sec. 13-56. Rules and regulations.

The director and/or his/her designee shall promulgate rules and regulations to implement the provisions of this article.
(Ord. 2013, ch. 2013-5, 3-18-13)

ARTICLE VIII. SECURITY HOUSING DEVELOPMENTS FOR ELDERLY PERSONS AND PERSONS WITH DISABILITIES

Sec. 13-57. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building entrance shall mean an entrance providing access from outside the building or from an entry vestibule to an interior corridor, lobby, or stairway which leads to an individual dwelling unit.

Building permit shall mean a permit granted by the department of inspection and standards for the construction of any building or for any substantial alteration or addition thereto, as provided under the Rhode Island Building Code.

Dwelling unit means a structure or part of a structure that is designed or intended to be used as a home, residence, or sleeping place by one (1) or more persons.

Elderly person shall mean any person who is at least sixty-two (62) years of age.

Elderly/disabled multi-family housing development shall mean any building, structure, development, or complex of ten (10) or more dwelling units under common ownership, rented or offered for rent for dwelling purposes within the city, which is specifically designed or designated for rental by elderly or disabled persons.

Landlord shall mean the individual who holds title to any elderly/disabled multi-family housing development including, without limitation, a partnership, corporation, or trust. For purposes of this section, the rights and duties of the landlord hereunder shall be the obligation of anyone who manages, controls, or customarily accepts rent on behalf of the landlord.

Person with a disability shall mean any person with any condition or characteristic whether physical or mental which renders them disabled as defined by 42 U.S.C. § 12102, commonly referred to as the "Americans with Disabilities Act of 1990."

Safety officer shall mean a police officer of the city, or a special police officer appointed pursuant to applicable law to protect persons or property in public or subsidized housing, or a person employed as a guard or investigator by a duly licensed watch, guard, or patrol agency.

Security plan shall mean a plan for providing security for the tenants of an elderly/disabled multi-family housing development, based upon a crime prevention survey, which meets the criteria set forth in section.

Tenant shall mean a tenant, subtenant, lessee, sublessee, or other person, entitled under the terms of a rental housing agreement to the use and occupancy of any dwelling unit in an elderly/disabled multi-family housing development.
(Ord. No. 2021-20, § 1, 6-1-21)

Sec. 13-58. Security requirements for elderly/disabled multi-family housing developments.

Every landlord of an elderly/disabled multi-family housing development shall maintain and implement a security plan for such housing development. Said security plan shall utilize best practices to provide security for the tenants of the development through the implementation of existing and/or new security measures including, but not limited to, lighting, locks on resident's doors (whether keyed or keyless), safety officers, security stations, security systems, or other equipment, personnel, or programs. The security plans for elderly/disabled multi-family housing developments shall be reviewed and updated by the landlord at least once every three (3) years. All such plans shall comply with the Rhode Island State Building Code, as amended from time to time.

A copy of the security plan for each elderly/disabled multi-family housing development shall be maintained at each development so as to be made available for inspection by the police department to ensure compliance with the provisions of this article. In addition, a copy of the security plan for each development shall be filed with the department of public safety.
(Ord. No. 2021-20, § 1, 6-1-21)

Sec. 13-59. Protection from rent increases.

Additional costs incurred by landlords in complying with the requirements of this article and implementing security measures additional to those already provided or required in such developments shall not be passed on to tenants of elderly/disabled multi-family housing developments unless the landlord has exhausted all reasonable alternatives to the passing on of such costs. In pursuing such alternatives, the landlord shall use best efforts to seek and obtain such funding, grants, or donations

of funds, equipment, or services, as may lessen or eliminate. The costs incurred in complying with the requirements of this section and implementing security measures additional to those already provided or required may be considered to be reasonable or necessary operating or capital expenses in any application for additional subsidy or financing from the United States, the State of Rhode Island, or any authority created under the laws thereof.
(Ord. No. 2021-20, § 1, 6-1-21)

Sec. 13-60. Enforcement.

The police department may perform inspection audits of the security plan and/or the elderly/disabled multi-family housing development at any time.

The police department shall annually perform random inspections for security plan compliance of no less than fifty (50) percent of the elderly/disabled multi-family housing developments located in the city.

If, upon inspection, the police department determines that a landlord has failed to comply with the provisions of this article by reason of:

(1) Failure to maintain a security plan for inspection;

(2) Non-compliance with the security plan requirements for the development; or

(3) Deficiency in the level of security provided by said plan;

The police department shall issue a written notice to the landlord outlining the basis for the finding of noncompliance along with an order mandating full compliance with this article within thirty (30) days. In the event a landlord wishes to appeal a determination of noncompliance by the police department, the landlord may file such an appeal with Providence Housing Court.

Upon the expiration of the thirty-day compliance period, the landlord of a housing development still in violation of the order shall be subject to a fine of one hundred fifty dollars ($150.00) per day, effective from the date of issuance of the notice of noncompliance. Tenants and/or tenant organizations of elderly/disabled multi-family housing developments shall have the right to request investigation by the police department if they believe that their landlords have failed to comply with the provisions of this article.
(Ord. No. 2021-20, § 1, 6-1-21)

Sec. 13-61. Non-liability of the city.

The provisions of this section shall not be construed to establish any duty on the part of the city and/or the police department and its members greater than the city's general public duty to protect its citizens' health, safety, security, and well-being. No determination by the police department as to the adequacy of a landlord's security measures shall be construed as a warranty or guarantee of such security, and the

sole responsibility for insuring that security measures are adequate to protect tenants from foreseeable harm or risk shall rest and remain with the owner of such property.
(Ord. No. 2021-20, § 1, 6-1-21)

Sec. 13-62. Severability.

Nothing herein shall be deemed to supersede federal law or rules and regulations concerning federally subsidized housing. The provisions of this section are severable and if any provision, or portion thereof, should be held to be unconstitutional or otherwise invalid by any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect the remaining provisions which shall remain in full force and effect.
(Ord. No. 2021-20, § 1, 6-1-21)

ARTICLE IX. MULTI-UNIT DWELLINGS

Sec. 13-63. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Local property manager shall mean a person, firm, or corporation designated by the trustee, beneficiary, or owner of a property as responsible for the security and maintenance of said property. The local property manager must be a Rhode Island resident or in the case of a business, maintain a physical office within the State of Rhode Island.

Property owner shall mean the person, firm, or corporation holding the legal or recorded title to the property.

Owner-occupied means a property in which its owner considers it his or her predominant and principal home and spends a majority of the calendar year occupying the property.

Multi-unit dwelling shall mean a building containing six (6) or more self-contained suites or apartments, or multiple buildings on adjacent lots held by the same owner.
(Ord. No. 2024-64, § 1, 11-13-24)

Sec. 13-64. Applicability and exemptions.

(a) The provisions of this article shall not apply to owner-occupied multi-unit dwellings.

(b) The provisions of this article shall not apply to hotels licensed under RIGL chapter 14 title 5; jails; convents; monasteries; licensed nursing homes; licensed board and care homes; parsonages; parish houses; manses and rectories; hospitals. (Ord. No. 2024-64, § 1, 11-13-24)

Sec. 13-65. Local property manager required.

(a) Any owner of a multi-unit dwelling, as defined herein, shall annually register the property with the department of inspections and standards.

(b) Registration shall consist of the following information:

(1) Property owner's address (which shall not be a P.O. Box), telephone number, and email address; and;

(2) In the event the property owner resides or is located outside of the state of Rhode Island, said property owner shall also provide the contact information, including street address, telephone number, and email address of an individual or company within the State of Rhode Island, herein referred to as a "local property manager," that will be responsible for its security and maintenance. Any change to the information contained in the registration must be reported within thirty (30) days of such change.

(Ord. No. 2024-64, § 1, 11-13-24)

Sec. 13-66. Fines and fees.

(a) If the director and/or his/her designee determines that a property is not in compliance with the requirements of this article, the director and/or his/her designee will notify the owner and/or local agent of the violation, including potential penalties associated with non-compliance. Fines of up to five hundred dollars ($500.00) per day may be imposed on the owner and/or local agent thirty (30) days after notification.

(b) Any person affected by any notice of violation which has been issued in connection with the enforcement of any provision of this article or any rule or regulation adopted pursuant thereto may request and shall be granted a hearing before the director after such person shall file in the office of the director a written request for such hearing, setting forth a brief statement of the grounds thereof, designating the person and his address upon whom any notices and orders may be served, and why such enforcement or compliance should not be effected. If this request is filed within ten (10) days after the service of the notice of violation, compliance with the notice shall not be required while the hearing is pending. On receipt of such request, the director shall set a time and place for such hearing and shall give the applicant at least five (5) days' written notice thereof. At such hearing the applicant shall be given an opportunity to show cause why such notice of violation shall be modified or withdrawn.

(Ord. No. 2024-64, § 1, 11-13-24)

Sec. 13-67. Use of collected funds.

Monies collected through the provisions of this article shall be expended for purposes related to improving the physical condition of the city's housing stock, including, but not limited to, expanding the availability of affordable housing units, abating nuisance properties or other related purposes as determined by the director.
(Ord. No. 2024-64, § 1, 11-13-24)

Sec. 13-68. Rules and regulations.

The director of inspections and standards and/or his/her designee shall promulgate rules and regulations to implement the provisions of this article.
(Ord. No. 2024-64, § 1, 11-13-24)

Chapter 14

LICENSES*

Article I. In General

Sec. 14-1. Closing hours; license fees, regulations for commercial establishments.
Sec. 14-2. Coupon sales—Regulated generally.
Sec. 14-3. Same—License, bond required.
Sec. 14-4. Same—Fee for license.
Sec. 14-5. Same—Duration of license; prorating.
Sec. 14-6. Laundry and dry-cleaning establishments—Duty to report identification marks.
Sec. 14-7. Same—Duty to preserve customer records.
Sec. 14-8. Petroleum products; permit fees for bulk storage.
Sec. 14-9. Ringing bells for sales.
Sec. 14-10. Soliciting in entrances and hallways of buildings.
Sec. 14-11. Soliciting for railroads and watercraft.
Sec. 14-12. Uniforms and badges of examiners or inspectors of private corporation.
Sec. 14-13. Garage or yard sales.
Sec. 14-14. Licensing of persons working as floor hosts.
Sec. 14-15. Posting by applicants.
Sec. 14-16. Displaced workers notification.
Sec. 14-17. Prohibited conduct.
Secs. 14-18, 14-19. Reserved.

***Cross references—**Duty, authority, etc., of superintendent of vehicles as to vehicles required to be licensed, § 2-220 et seq.; distribution of handbills, etc., § 3-1 et seq.; convalescent and nursing homes and similar establishments, § 5-13 et seq.; licensing manufacture of explosives and inflammables, § 9-54 et seq.; blasting permits, § 9-74 et seq.; food and food handlers, § 10-1 et seq.; food establishments, § 10-21 et seq.; milk and milk products, § 10-49 et seq.; frozen desserts, § 10-72 et seq.; slaughtering of poultry, § 10-104 et seq.; licensing transport of garbage and wastes, § 12-65 et seq.; licensing removal of swill, offal, § 12-71 et seq.; licensing persons in business of cleaning cesspools and privies, § 12-91 et seq.; licensing persons in business of storing dismantled, junked or abandoned vehicles, § 15-38; selling goods in parks, § 18-12; railroads regulated, § 19-1 et seq.; contracts, purchases and sales by and for city, § 21-36 et seq.; licensing persons in construction and repair of sidewalks, § 23-60 et seq.; vehicles for hire, § 24-1 et seq.; weighing, measuring loads, vehicles, merchandise, etc., § 26-7 et seq.

State law references—Special act authorizing city council to establish system of fees for granting or issuing licenses and permits, P.L. 1922, Ch. 2241; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Article II. Auctions and Auctioneers

Sec. 14-20. Election of auctioneer.
Sec. 14-21. Fee for license and commission.
Sec. 14-22. Record book to be kept.
Sec. 14-23. Assistants must be duly elected, appointed and qualified.
Sec. 14-24. Out-of-state assistants to obtain city permit, post bond, pay prescribed fee.
Sec. 14-25. Auction sales not to continue more than ten days.
Sec. 14-26. Written notice of sale to be given.
Sec. 14-27. Seller to have been in business in city, not to have sold at auction within one year.
Sec. 14-28. Inspection of premises.
Sec. 14-29. Prohibited hours of sales.
Sec. 14-30. False representations and substitutions.
Sec. 14-31. Cappers.
Sec. 14-32. Certain sales exempted.
Secs. 14-33—14-42. Reserved.

Article III. Bootblacks and Newsboys

Sec. 14-43. Permit required.
Sec. 14-44. Prerequisites to issuance of permit.
Sec. 14-45. Issuance of permits to persons over sixteen years of age.
Sec. 14-46. Issuance of permits to persons not over sixteen years of age.
Sec. 14-47. Renewal of permit.
Sec. 14-48. Badges.
Sec. 14-49. Deposit for badge.
Sec. 14-50. Badge to be worn.
Sec. 14-51. Record of permits, badges to be kept.
Sec. 14-52. Revocation of permit.
Sec. 14-53. Noise prohibited.
Secs. 14-54—14-63. Reserved.

Article IV. Commercial Parking Lots

Sec. 14-64. License required.
Sec. 14-65. License application.
Sec. 14-66. Security plan review.
Sec. 14-67. Security plan requirements.
Sec. 14-68. Signs required.
Sec. 14-69. Protection barriers to be erected on lots adjacent to dangerous conditions.

Sec. 14-70. Plans for protection barriers to be approved by inspector of buildings; permit to be issued.
Sec. 14-71. Inspection, alterations and repairs of protection barriers.
Sec. 14-72. Date of completion of protection barriers.
Sec. 14-73. Suspension and revocation of license.
Sec. 14-74. Report of vehicle left on premises more than twenty-four hours.
Sec. 14-75. Security guards required for multi-decked parking garage; violation.
Sec. 14-76. Tax exemption for certain structures.
Secs. 14-77—14-84. Reserved.

Article V. Engineers and Boiler Operators

Sec. 14-85. License required; horsepower rating.
Sec. 14-86. Stationary engineer license.
Sec. 14-87. Boiler operators license.
Sec. 14-88. Refrigeration machine operators license.
Sec. 14-89. Apprentice boilers operators permit.
Sec. 14-90. Licenses—Authority to issue.
Sec. 14-91. Same—Examinations.
Sec. 14-92. Same—Issuance.
Sec. 14-93. Same—Revocation.
Sec. 14-94. Same—Renewals upon application.
Sec. 14-95. Same—Fees.
Sec. 14-96. Same—Form.
Sec. 14-97. Same—Display.
Sec. 14-98. Operators required.
Sec. 14-99. Temporary boilers; portable type.
Sec. 14-100. Housekeeping air conditioning and refrigeration systems.
Sec. 14-101. Reserved.
Sec. 14-102. Availability for inspection.
Sec. 14-103. Criteria for authorization of computerized monitoring systems—Monitors and indicators.
Sec. 14-104. Alarm.
Sec. 14-105. Automatic shutdown.
Sec. 14-106. Manual reset.
Sec. 14-107. Miscellaneous provisions.
Sec. 14-108. Reserved.

Article VI. Intelligence Offices

Sec. 14-109. License required.
Sec. 14-110. License fee.
Sec. 14-111. Production of licenses.
Sec. 14-112. Signs required.

Sec. 14-113. Books to be kept.
Sec. 14-114. Office hours.
Sec. 14-115. Application fees.
Sec. 14-116. Inducing servant to leave employment prohibited.
Sec. 14-117. Revocation of license.
Secs. 14-118—14-126. Reserved.

Article VII. Junk and Secondhand Dealers

Sec. 14-127. License required.
Sec. 14-128. License application.
Sec. 14-129. Fees for licenses.
Sec. 14-130. Display of license.
Sec. 14-131. Expiration of license.
Sec. 14-132. Identification of seller of goods or merchandise.
Sec. 14-133. Conduct of business in premises used as dwelling, restricted.
Sec. 14-134. Records to be kept.
Sec. 14-135. Inspection of records and places of business.
Sec. 14-136. Holding period for property acquired by licensee.
Sec. 14-137. Acquisition of public property.
Sec. 14-138. Enforcement and penalties.
Secs. 14-139—14-154. Reserved.

Article VIII. Pawnbrokers

Sec. 14-155. License required.
Sec. 14-156. License fee.
Sec. 14-157. Posting and display of license.
Sec. 14-158. Transferability of license.
Sec. 14-159. Revocation of license.
Sec. 14-160. Books and records to be kept.
Sec. 14-161. Identification of seller of goods or merchandise.
Secs. 14-162—14-168. Reserved.

Article IX. Vendors

Sec. 14-169. Purpose.
Sec. 14-170. Definitions.
Sec. 14-171. Mobile vendor.
Sec. 14-172. Vendor market.
Sec. 14-173. License application and fees.
Sec. 14-174. Licensee to wear badge.
Sec. 14-175. Misuse of badge.
Sec. 14-176. Refusal to exhibit license and badge.

Sec. 14-177. Provisions not applicable to newspapers.
Sec. 14-178. Violation, penalties and revocation of license.
Sec. 14-179. Severability.
Secs. 14-180—14-192. Reserved.

Article X. Shows and Other Amusements

Division 1. License Required

Sec. 14-193. License required.
Sec. 14-194. Definitions.
Sec. 14-195. Entertainment license—Application and hearing required.
Sec. 14-196. Entertainment license conditions.
Sec. 14-197. Exception—Special event entertainment.
Sec. 14-198. Fees for designated licenses; additional charges and costs.
Sec. 14-199. License expiration.
Sec. 14-200. Reserved.
Sec. 14-201. Investigation of show or exhibition; report of investigation; action on report.

Division 2. Billiard Parlors, Poolrooms, Bowling Alleys, Shooting Galleries and Amusement Centers

Sec. 14-202. License required.
Sec. 14-202.1. Amusement centers and mechanical amusement devices—Definitions.
Sec. 14-202.2. Same—Distance of licensee from school.
Sec. 14-203. Application for license.
Sec. 14-204. Notice, opportunity to object to issuance of license to be afforded.
Sec. 14-205. Effect of objections to issuance of license.
Sec. 14-206. License fees for bagatelle, billiard, pool or sippio tables and amusement centers.
Sec. 14-207. License fees for bowling alleys, shooting galleries.
Sec. 14-208. License year; prorating license fees.
Sec. 14-209. Renewal of licenses.
Sec. 14-210. Posting and display of license.
Sec. 14-211. Transferability of license.
Sec. 14-212. Restrictions upon licenses.
Sec. 14-213. Revocation of license.
Sec. 14-214. Rules and regulations governing licensed premises.
Secs. 14-215—14-219. Reserved.

Division 3. Trampolines

Sec. 14-220. License required for operation.

Sec. 14-221. Application for license.
Sec. 14-222. Notice, opportunity to object to issuance of license to be afforded.
Sec. 14-223. Effect of objections to issuance of license.
Sec. 14-224. Fee for license; prorating fee.
Sec. 14-225. Expiration, renewal of license.
Sec. 14-226. Posting and display of license.
Sec. 14-227. Transferability of license.
Sec. 14-228. Revocation of license.
Sec. 14-229. Rules and regulations governing places used.

Division 4. Commercial Establishments Where Alcoholic Beverages are Offered for Sale

Sec. 14-230. Nudity on premises where alcoholic beverages are offered for sale.
Sec. 14-231. Minors prohibited in certain establishments.
Sec. 14-232. Restricting the presence of patrons under age of eighteen in class N liquor establishments when entertainment is offered.
Sec. 14-233. Event promoter licensing.
Secs. 14-234—14-235. Reserved.

Article XI. Registration and Licensing of Bicycles

Sec. 14-236. Purpose.
Sec. 14-236.5. Definitions.
Sec. 14-237. Permit requirement to operate pedicab.
Sec. 14-237.5. Application for operating permit.
Sec. 14-238. Pedicab operating permit fee.
Sec. 14-238.5. Duration of validity of operating permit.
Sec. 14-239. Denial of permit for failure to comply with article.
Sec. 14-239.5. Denial of pedicab operating permit, suspension or revocation.
Sec. 14-240. Identification badges issued to pedicab operators with a permit.
Sec. 14-240.5. Fare schedule.
Sec. 14-241. Pedicab decal.
Sec. 14-241.5. Application for pedicab decal.
Sec. 14-242. Pedicab decal fee.
Sec. 14-242.5. Duration of validity of pedicab decal.
Sec. 14-243. Denial of decal for failure to comply with article.
Sec. 14-243.5. Other laws applicable to pedicab owners and operators.
Sec. 14-244. Minimum age of pedicab operators.
Sec. 14-244.5. Driver's license requirement to operate a pedicab.
Sec. 14-245. Regulations for pedicab operations.
Sec. 14-245.5. Passenger seating requirements.
Sec. 14-246. Damage to public property.
Sec. 14-246.6. Insurance requirements.

Sec. 14-247. Suspension or revocation of operating permit or decal.
Sec. 14-247.5. Enforcement authority.
Secs. 14-248—14-250. Reserved.

Article XII. Body Works Services

Sec. 14-251. License required.
Sec. 14-252. Authority to promulgate rules.
Sec. 14-253. License required and fee; nontransferability.
Sec. 14-253.5. Expiration date of license.
Sec. 14-254. Definitions.
Sec. 14-254.5. Exceptions and exclusions.
Sec. 14-255. Display of licenses.
Sec. 14-255.5. Advertisement.
Sec. 14-256. Required records.
Sec. 14-256.6. Supervisor.
Sec. 14-257. Requirements for body works personnel licensure.
Sec. 14-257.5. Requirements for body works establishment licensure.
Sec. 14-258. Employee and independent contractor restrictions.
Sec. 14-258.5. Sanitation and decency code.
Sec. 14-259. Facilities.
Sec. 14-259.5. Enforcement.

Article XIII. Motor Vehicle Repair Business

Sec. 14-260. License required.
Sec. 14-261. Motor vehicle repair business defined.
Sec. 14-262. License application; fee.
Sec. 14-263. Hearing and notice.
Sec. 14-264. Zoning approval.
Sec. 14-265. Fire safety regulations.
Sec. 14-266. Criminal records.
Sec. 14-267. Requirements for license approval.
Sec. 14-268. Renewal of license.
Sec. 14-269. Disposal of tires.
Sec. 14-270. Display of license.
Sec. 14-271. Annual license fee.
Sec. 14-272. Suspension or revocation.
Sec. 14-273. Violation.
Sec. 14-274. Enforcement.
Sec. 14-275. Severability.
Secs. 14-276—14-284. Reserved.

Article XIV. Valet Parking

Sec. 14-285. Petition to board of licenses.
Sec. 14-286. Review of application.
Sec. 14-287. Creation of area for receiving and discharging of persons.
Sec. 14-288. Annual renewal.
Sec. 14-289. Permits subject to revocation.
Sec. 14-290. Cost.
Sec. 14-291. Stopping/standing in permitted valet parking area.
Sec. 14-292. Use of area for valet parking with permit.
Sec. 14-293. Obstruction of public way.
Secs. 14-294—14-299. Reserved.

Article XV. Tobacco Dealers

Sec. 14-300. Definitions.
Sec. 14-301. License required.
Sec. 14-302. License application.
Sec. 14-303. Prohibitions applicable to license holders, their employees and agents.
Sec. 14-304. Suspension or revocation of license—Fines and costs.
Sec. 14-305. Use of premises during license suspension.
Sec. 14-306. Vending machines.
Sec. 14-307. Severability.
Sec. 14-308. Definitions.
Sec. 14-309. Sale of flavored tobacco products prohibited.
Sec. 14-310. Enforcement and penalties.
Secs. 14-311—14-330. Reserved.

Article XVI. Management and Operations

Sec. 14-331. License administrator.
Sec. 14-332. Pre-hearing officer.
Sec. 14-333. Information technology specialist.
Sec. 14-334. Record of licensing proceedings.
Sec. 14-335. Required training of board members and staff.
Sec. 14-336. Annual report.
Sec. 14-337. Decorum and professional conduct.
Sec. 14-338. Rules of evidence.

Article XVII. Neighborhood Events

Sec. 14-339. Policy.
Sec. 14-340. Eligibility of neighborhood events.
Sec. 14-341. City services for neighborhood events.

Article XVIII. Short-Term Lenders

Sec. 14-342. Definitions.
Sec. 14-343. License required.
Sec. 14-344. License fee.
Sec. 14-345. Posting and display of license.
Sec. 14-346. Transferability of license.
Sec. 14-347. Books and records to be kept.
Sec. 14-348. Revocation of license.

ARTICLE I. IN GENERAL

Sec. 14-1. Closing hours; license fees, regulations for commercial establishments.

(a) *Generally.* No shops, stores, or other places of trade or entertainment shall be kept open between 1:00 a.m. and 4:00 a.m., except as hereinafter provided.

(b) *Licensing exceptions.* Licensed taverns, drugstores, hotels, motels, gasoline stations, self-service laundries, restaurants, and such other businesses as may be approved by the bureau of licenses, may keep open between the hours of 1:00 a.m. and 4:00 a.m., provided that a license therefor has been obtained from the bureau of licenses, and further provided that the operation of said businesses between said hours shall not cause or create a nuisance, or disturb or cause the disturbance of the peace and quiet of the neighborhood in which said businesses are located.

(c) *Fee for license.* The fee for permission to operate any one (1) of the aforesaid businesses between the aforesaid hours shall be fifty dollars ($50.00) per annum payable to the bureau of licenses on or before the issuance thereof and annually thereafter.

(d) *Rules, regulations applicable.* The bureau of licenses may establish rules and regulations governing nighttime operations of businesses licensed by it as aforesaid in order to avoid nuisances and disturbances of the peace.

(e) *Suspension, revocation of license.* The bureau of licenses may for good cause, and after reasonable notice and opportunity to be heard, suspend or revoke any license issued by it as aforesaid.

(f) *Responsibility for violation.* Every keeper of any shop, store or place of trade or entertainment, which shall be opened, or in which any article shall be sold, and every person opening any shop, store or place of trade or entertainment or selling any article contrary to the provisions of this section, shall be deemed guilty of a violation of this section.

(g) *Building and safety codes.* The board of licenses shall not issue, nor approve the transfer to any person or location of, nor approve the renewal of any license unless and until such applicant for license, relocation or renewal first obtains and delivers to the board of licenses written statements from the department of inspection and standards and the Providence fire department. Such statement shall indicate that the premises at which the license is to be held is in conformity with all requirements of the municipal building and fire codes. Any license issued without such written statement shall be null and void. Violations of this subsection shall be subject to the penalties as provided under section 1-10(a) of the Code of Ordinances.

(Ord. 1931, ch. 800, §§ 1, 2; Rev. Ords. 1946, ch. 23, § 16; Ord. 1966, ch. 1801, § 1; Ord. 1981, ch. 81-15, § 1, 3-26-81; Ord. 1984, ch. 84-74, § 1, 11-16-84)

Sec. 14-2. Coupon sales—Regulated generally.

Any person engaged in the business of offering for sale within the city merchandise under a contract, the terms of which provide that the title to or possession of such merchandise shall not pass to the vendee until coupons or similar devices referred to in said contract are sold and until the vendee thereof enters into a similar contract with said person, shall be subject to the provisions of this section and sections 14-3 and 14-4; and it shall be immaterial if said contract provides that it shall be optional with said purchaser or vendee either to sell such coupon or device or to pay the balance due on the purchase price of the merchandise.
(Ord. 1926, ch. 506, §§ 1—4; Rev. Ords. 1946, ch. 23, § 22)

Sec. 14-3. Same—License, bond required.

(a) Before any such person shall engage in the business described in section 14-2, said person shall first obtain a license therefor from the department of public safety and execute and deliver to the city treasurer a good and sufficient bond with some surety company as surety to be approved by the department of public safety of the city in the sum of ten thousand dollars ($10,000.00) to secure the performance of any and all contracts for the sale of merchandise as described in section 14-2. Said bond shall be made payable to the city but shall be for the benefit of any and all persons who may or shall suffer any damage, loss or injury by reason of the breach of any contract or contracts for the sale of merchandise included within the provisions hereof.

(b) No license shall be issued until said bond is executed and delivered as hereinbefore set forth.
(Ord. 1926, ch. 506, §§ 1—4; Rev. Ords. 1946, ch. 23, § 22)

Sec. 14-4. Same—Fee for license.

The fee for the license required in section 14-3 shall be fifty dollars ($50.00), which sum shall be paid in advance of issuance of the license.
(Ord. 1926, ch. 506, §§ 1—4; Rev. Ords. 1946, ch. 23, § 22)

Sec. 14-5. Same—Duration of license; prorating.

The license required in section 14-3 shall continue in effect for one (1) year from the date of its issuance, and shall not be prorated.
(Ord. 1926, ch. 506, §§ 1—4; Rev. Ords. 1946, ch. 23, § 22)

Sec. 14-6. Laundry and dry-cleaning establishments—Duty to report identification marks.

Each person conducting a laundry or dry-cleaning establishment, or offering as an independent contractor the services of such an establishment, shall report to the commissioner of public safety for the city, on forms supplied by the commissioner, the type and style of laundry or dry-cleaning identification marks which are attached to

or stamped on or written upon garments processed by such establishment when returned to the customer. Such report shall be accompanied by actual samples of the identification markings used. Each such person shall make such report immediately upon entering the business of laundry or dry cleaning. Any change in identification marking systems, either by eliminating such marking or changing the system of identification marking used, shall be reported to the commissioner immediately.
(Ch. 23, § 3.2, added by Ord. 1954, ch. 911, § 1)

State law reference—Special act authorizing city to require these reports, P.L. 1954, ch. 3376.

Sec. 14-7. Same—Duty to preserve customer records.

Each laundry, dry-cleaning establishment or independent contractor offering such services shall retain customer records for a period of not less than six (6) months from the time garments are delivered to the customer.
(Ch. 23, § 3.2, added by Ord. 1954, ch. 911, § 1)

Sec. 14-8. Petroleum products; permit fees for bulk storage.

Any person or other legal entity storing petroleum products in bulk shall pay to the bureau of licenses of the city the following annual fees for permits granted by the city council:

(a)	For premises with a storage capacity of 1 to 250 gallons	No fees
(b)	For premises with a storage capacity of 251 to 21,000 gallons	$10.00
(c)	For premises with a storage capacity of 21,001 to 50,000 gallons	50.00
(d)	For premises with a storage capacity of 50,001 to 100,000 gallons	150.00
(e)	For premises with a storage capacity of 100,001 to 1,000,000 gallons	250.00
(f)	For premises with a storage capacity of 1,000,001 to 5,000,000 gallons	500.00
(g)	For premises with a storage capacity of 5,000,001 gallons or over	1,000.00
(h)	Transfer of licenses, each	5.00
(i)	Products stored for own consumption and not for resale	No fees

(Ch. 2, § 200, added by Ord. 1957, ch. 1137, § 1; Ord. 1962, ch. 1461, § 1)

Cross reference—Explosives and inflammables, § 9-54 et seq.

Sec. 14-9. Ringing bells for sales.

No person shall ring or cause to be rung any bell, or use or cause to be used any horn or other instrument, for the purpose of giving notice of any public sale or auction, or of the exercise of any business or calling, or for the sale of any article.
(Ord. 1914, ch. 4, § 1; Rev. Ords. 1946, ch. 23, § 10)

Cross references—Noise prohibited generally, § 16-10; sounding of signal device from vehicle, § 16-11; sounding horn or signal device for unnecessary period, § 16-12; noise control, § 16-91 et seq.

Sec. 14-10. Soliciting in entrances and hallways of buildings.

No person shall stand in or upon any highway or in the entrance or hallway of any building in the city for the purpose of calling the attention of any person in the highway to goods, wares or merchandise displayed or on sale or to business conducted within any building.
(Ord. 1929, ch. 716, § 1; Rev. Ords. 1946, ch. 3, § 2)

Sec. 14-11. Soliciting for railroads and watercraft.

Except as otherwise provided, no person shall solicit any passenger for any railroad company or for any watercraft or for transportation upon any railroad or watercraft, in any of the streets, highways or public places within the city.
(Ord. 1914, ch. 30, § 13; Rev. Ords. 1946, ch. 3, § 3)

Cross reference—Railroads generally, § 19-1 et seq.

Sec. 14-12. Uniforms and badges of examiners or inspectors of private corporation.

Every person in the employ of any private corporation whose duty it shall be to visit private residences, buildings or premises for the purpose of making any examination or inspection, shall wear while making every such visit a uniform or a suitable badge or other distinguishing mark indicating his employment and authority.
(Ord. 1926, ch. 504, § 3; Rev. Ords. 1946, ch. 2, § 174)

Sec. 14-13. Garage or yard sales.

(a) The owner and/or tenant of any zoned residential (R-1 through R-5 inclusive) property within the City of Providence shall not conduct nor allow to be conducted any sale of the type commonly referred to as "yard sale," "garage sale," or any similar type sale at that dwelling or property unless prior thereto a license to be known as a yard sale license for the same is obtained from the board of licenses.

(b) "Yard sale," "garage sale" or any similar type sale when used in this section shall mean the display for sale of more than one (1) item commonly found in or about a residential dwelling or other property in a manner so as to attract the general public.

(c) Such license, the fee for which shall be five dollars ($5.00), shall be issued to the owner or tenant of such dwelling or property not more than a total of two (2) times within any one-year period and no license shall be valid for a period of more than two (2) consecutive days.

(d) Each license issued pursuant to this section shall be prominently displayed on the premises upon which such sale is conducted throughout the entire period of the licensed sale.

(e) Any violation of this section shall be punishable by those penalties enumerated in section 1-10 of the Code of Ordinances.
(Ord. 1984, Ch. 84-73, § 1, 11-16-84)

Editor's note—Ch. 84-73, approved Nov. 16, 1984, amended the Code but did not specify a section number to be assigned to its provisions; therefore, codification as § 14-13 has been at the editor's discretion.

Sec. 14-14. Licensing of persons working as floor hosts.

(a) As used in this section, "floor host" means a person who works at any retail establishment licensed to sell alcoholic beverages in the city as a watchman, guard, bodyguard, bouncer, security guard, private patrolman, door keeper, crowd controller, or under any title, for the purpose of protecting persons or real and personal property.

(b) It shall be unlawful for any person to work as a floor host without first obtaining a license therefor issued by the board of licenses.

(c) It shall be unlawful for any retail establishment licensed to sell alcoholic beverages in the city to employ a person as a floor host unless that person has first been licensed by the board of licenses. Any license granted hereunder shall be subject to the provisions of this article.

(d) Applicants for a floor host license shall submit an application to the board of licenses, pay the fee provided in subsection (h), and complete a criminal background check through the department of police. Notwithstanding the provisions of subsections (b) and (c), a person may immediately commence working as a floor host on an interim basis for not more than thirty (30) days following his or her compliance with this subsection, provided that the person maintains a copy of the complete dated application with stamped indicia of receipt by the board of licenses on his or her person at all times while working in this interim capacity.

(e) The department of police is empowered to enforce this section and shall process applicants' background checks within ten (10) days. The department of police may register an objection to the application with the board of licenses where the appearance of any item on applicant's background check gives rise to a public safety concern.

(f) The board of licenses is empowered to implement this section and shall, without limiting that general authority, promulgate such rules and regulations as may be necessary to carry out the provisions of this section, including but not limited to, a requirement that applicants complete a prescribed course of instruction reviewed and approved by the board of licenses. Such prescribed course of instruction shall consist of a comprehensive training program of not less than four (4) hours in duration for new applicants and a comprehensive training program of not less than two (2) hours in duration for renewal applicants.

(g) The applicable prescribed course of instruction required by the board of licenses must be completed within thirty (30) days of the submission of the application as required hereunder. Failure to complete the prescribed course of instruction, and to provide proof thereof to the board of licenses within thirty (30) days of submission of the application shall result in automatic denial of the license. The applicant may request one thirty (30) day extension from the board of licenses if there is no course available within the first thirty (30) days.

(h) The fee for a license issued under this section, for a period of two (2) years, shall be fifty dollars ($50.00), and the renewal fee shall be twenty-five dollars ($25.00), both payable to the City of Providence.

(i) The department of police may cite any retail establishment licensed to serve alcoholic beverages in the City of Providence or any individual for violations of any part of this section.

(j) The board of licenses shall hear evidence of any allegations of a violation of this section by the holder of any license issued by the board of licenses.

(k) Every floor host licensed under this section shall be provided a suitable identification badge with the applicant's name and photograph thereon. It shall be worn on the outside of his/her outside garment at all times while he/she is engaged in the work of a floor host.

(l) Every floor host licensed under this section shall be required to wear a uniform or t-shirt with the word "staff" or other easily recognized language or markings printed upon the uniform or t-shirt.

(m) An application occurring before March 1, 2013, (1) when in conjunction with a background check as provided in subsections (d), (e), and (f), and (2) when approved by the board of licenses on or before March 1, 2013, and (3) when also in conjunction with the completion of a prescribed course of instruction required by the board of licenses before or within thirty (30) days of the issuance of the license, shall constitute compliance with this section until two (2) years from the date of issue (six (6) months after the enactment). After said date, the individual must be licensed, as provided in this section, to work as a floor host.

(n) Any person who violates this section shall be punished by a fine.

(o) Any retail establishment licensed to sell alcoholic beverages in the city which violates this section shall be punished by a suspension or revocation of its licenses or by a fine or other penalty as determined by the board of licenses.

(p) Any fine issued by the board of licenses for a violation of this section shall be in an amount of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for a first offense and not less than five hundred dollars ($500.00) nor more than one thousand dollars ($1,000.00) for each subsequent offense.
(Ord. 1999, ch. 99-20, §§ 1—7, 7-12-99; Ord. 2009, ch. 09-40, § 1, 7-6-09; Ord. 2013, ch. 2013-12, § 1, 4-4-13)

Editor's note—Ord. 2009, ch. 09-40, § 1, approved July 6, 2009, amended § 14-14 title to read as herein set out. Former § 14-14 title pertained to registration of persons working as doorkeepers, bouncers, so-called, and crowd controllers.

Sec. 14-15. Posting by applicants.

(a) Any establishment applying for a liquor, adult entertainment, motor vehicle repair, second-hand automobile dealer, second-hand store, or junk license, or the transfer of such, or which is the subject of a hearing relating to such, must provide the general public with notice of its application by posting a twenty-four (24) inch by thirty-six (36) inch notice on its premises, in a manner clearly visible to the general public, at least thirty (30) days prior to the hearing date before the board, and at least thirty (30) days prior to hearings related to the license on appeal. If any hearing is scheduled to occur in less than thirty (30) days, the applicant or licensee must post this notice within three (3) business days after its receipt of notification of that hearing.

(b) Any establishment which has applied for a zoning change, major subdivision, or major land development project must provide the general public with notice of a required public hearing on its application by posting a notice on its premises, no smaller than twelve (12) inches by twenty-four (24) inches, in a manner clearly visible to the general public, at least seven (7) but no more than fourteen (14) days prior to the hearing. An establishment or applicant who fails to post the sign may have the application declared defective.

(c) Notices shall contain the name of the applicant and a description by street and number or other plain designation of the particular location involved. As to licenses, the notice shall state that remonstrants are entitled to be heard at the hearing on the license, and shall provide the time and place of that hearing. It shall also contain contact information for the relevant city agency regarding the license, zoning change, major subdivision, or major land development project.
(Ord. 2005, ch. 05-18, § 1, 3-3-05)

Sec. 14-16. Displaced workers notification.

(a) *Definitions.* The following definitions shall apply throughout this chapter:

(1) *Awarding authority* means any person that awards or otherwise enters into contracts for janitorial or building maintenance services performed within the city, including any subcontracts for these services. This section shall not apply to real properties containing five (5) or less residential units.

(2) *Contractor* means any person that enters into a service contract with the awarding authority and any sub-contractors to such service contract at any tier, who employs at least three (3) or more persons.

(3) *Employee* means any person employed to provide services pursuant to a service contract.

(4) *Person* means any individual, proprietorship, partnership, joint venture, corporation, limited liability company, trust, association, or other entity that may employ individuals or enter into other contracts.

(5) *Service contract* means a contract let to a contractor by the awarding authority for the furnishing of janitorial, or building maintenance service.

(6) *Successorship service contract* means a service contract with the awarding authority where substantially the same services to be performed have previously been rendered to the awarding authority as part of the same program or at the same facility under another service contract that recently has been terminated or has ended within the previous ninety (90) days.

(b) *Transition employment period.* All service contractors and awarding authorities who enter into service contracts to be performed within the city shall be subject to the following obligations:

(1) The awarding authority shall give advance notice to a service contractor, and any collective bargaining representative of any of the service contract employees, that a service contract will be terminated or ended and the name, telephone number and address of the successor contractor or contractors if known. The terminated or ending contractor shall, within three (3) days after receipt of such notice, provide to the successor contractor, the name, date of hire, and employment occupation classification of each employee employed at the site or sites covered by the predecessor contractor at the time of receiving said notice.

(2) On the date said contract ends, the terminating or ending contractor shall update the information previously provided to make it current to the actual termination date.

(3) If the terminating contractor is not notified of the identity of the successor contractor in the notice required by paragraph (1) of this section, the terminating contractor shall provide such information to the awarding authority within three (3) days of receipt of such notice. The awarding authority shall be responsible for providing such information to the successor contractor as soon as that contractor has been selected.

(4) A successor contractor or subcontractor shall retain, for a ninety-day transition employment period commencing with the onset of the successorship service contract, all employees who have been employed by the terminated contractor

or its subcontractor at the site or sites covered by the contract for at least the eight (8) months immediately preceding the date the predecessor contract is terminated.

In the event that the successorship service contract is terminated or ended prior to the expiration of the transition employment period, then any contractor or subcontractor awarded a subsequent successorship service contract shall be bound by the requirements set forth in this subsection to retain, for a new ninety-day transition employment period commencing with the onset of the subsequent successorship service contract, all employees who have been employed by any one (1) or a combination of the terminated or ending contractors at the site or sites covered by the contract for at least the eight (8) months immediately preceding the date of the most recently terminated or ended contract.

The successor contractor or subcontractor shall hand deliver a written offer of employment to each employee as required by this section in the employee's native language or another language in which the employee is fluent. Such offer shall state the time within which the employee must accept such offer but in no case may that time be less than ten (10) days from the date of the offer and in no case may the tenth day occur any later than five (5) days prior to the expiration of the predecessor contract.

The written offer required by this section shall be substantially in the form set forth in subsection (d) in a language in which each employee is fluent.

(5) If at any time a successor contractor determines that fewer employees are required to perform the new service contract than were required by the terminated contractor, the successor contractor shall be required to retain employees by seniority within each job classification.

(6) During the ninety-day transition employment period, the successor contractor shall maintain a preferential hiring list of employees eligible for retention under paragraph (4) of this section, not retained by the successor contractor from which the successor contractor shall hire additional employees.

(7) Except as provided under paragraph (6) of this section, during the transition employment period, the successor contractor shall not discharge without cause an employee retained pursuant to this chapter. Cause shall be based only on the performance or conduct of the particular employee.

(c) *Enforcement.*

(1) An employee displaced or terminated in violation of this chapter may bring an action in a court of competent jurisdiction against the awarding authority, the

terminated contractor and/or the successor contractor, jointly or severally, for violations of any obligations imposed under this chapter and may be awarded:

a. Back pay, including the value of benefits, for each day during which the violation continues, which shall be calculated at a rate of compensation not less than the higher of:

1. The average regular rate of pay received by the employee, during the last year of the employee's employment in the same job classification times average hours worked per work day over the past four (4) months; or

2. The final regular rate of pay received by the employee at the time of termination times the average hours worked per work day over the past four (4) months; and

b. Reinstatement to his or her former position at no less than the last wage rate, with benefits and hours worked per work day, that the employee received.

(2) If the employee is the prevailing party in any such legal action, the court shall award reasonable attorney's fees and costs to the employee as part of the costs recoverable.

(3) This section shall not be construed to limit an employee's right to bring common law cause of action for wrongful termination.

(4) Each day a violation continues shall constitute a separate violation.

(d) *Notice to displaced worker.*

(1) English language notice:

DATE:_____

TO: (name of employee)

IMPORTANT INFORMATION REGARDING YOUR EMPLOYMENT

We have received information that you are employed by (name of predecessor contractor) and are currently performing work at (address of worksite). (Name of predecessor contractor) has lost its contract with the owners of (address of worksite) and will no longer be providing janitorial or building maintenance services as of (last day of predecessor contract).

We are (name of successor contractor) and have been hired by the owners of (address of worksite) to provide the same (or janitorial or building maintenance) service. We are offering you a job with us for a 90 day probationary period starting (first day of successor contract) to perform the same type of work that you have already been doing for (name of predecessor contractor) under the following terms:

Pay rate (per hour): $ _____

Hours per shift: _____

Total Hours Per Week: _____

Benefits: _____

You must respond to this offer within the next ten (10) days. If you want to continue working at (address of worksite) you must let us know by (mm/dd/yyyy - no later than 5 days prior to the expiration of the predecessor contract or 10 days after the date of this letter if the predecessor contract has already expired). If we do not receive your response by the end of business that day, we will not hire you and you will lose your job. We can be reached at (successor contractor phone number).

The Protection of Displaced Contract Workers Ordinance, Chapter of the Providence Code gives you the following rights:

1. You have the right, with certain exceptions, to be hired by our company for the first ninety (90) days that we begin to provide services at (address of worksite).
2. During this 90 day period, you cannot be fired without just cause.
3. If you believe that you have been fired or laid off in violation of this Ordinance, you have the right to sue us and be awarded back pay, attorneys fees and court costs.

FROM: (Name of successor contractor)

(Address of successor contractor)

(Telephone # of successor contractor)

(2) Spanish language notice:

FECHA: _____

PARA: (nombre del trabajador)

INFORMACION IMPORTANCE SOBRE SU EMPLEO

Hemos recibido información que usted está empleado por (nombre de la Compañia anterior) y que actualmente está trabajando en (dirección del lugar de empleo). (Nombre de la compañia anterior) ha terminado el termino de su contrato con los dueños de (dirección del lugar de empleo) y no proveera más (servicios de o de limpieza o mantenimiento de edificio) servicios desde el (el ùltimo dìa de contrato de la compañia anterior).

Somos (nombre de la nueva compañia en contrato) y hemos sido contratados por los dueños de (direccìon del lugar de trabajo) para proveer el mismo (o de limpieza o mantenimiento de edificio) servicio. Le estamos ofreciendo un empleo con nosotros con

90 dias de periodo probatorio comenzando el (primer dìa de contrato de la compañia nueva) desempeñando el mismo tipo de trabajo que ha estado haciendo para (nombre de la compañia anterior) bajo los siguiente términos:

Salario (por hora): $_____

Horas por dias: _____

Total de horas por semana: _____

Beneficios: _____

Usted deberá de contestar nuestra oferta entre los próximos diez dìas. Si usted quiere continuar trabajando en (direccìon del lugar de trabajo) deberá de dejárnoslo saber no más tardar del (mes/dia/año) - a no más tardar de 5 dias antes de la expiracion del contrato de la compañia anterior o 10 dias después de haber recibido esta carta si el contrato de la compañia anterior ya está expirado). Si no recibimos su contestación ese dia al terminar el dia laboral no le contrataremos y usted perderá su empleo. Puede comunicarse con nosotros (nùmero telefónico de la compañia nueva).

La Ordenanza de Protección para Trabajadores Desempleados bajo Contrato, Capitulo 9-2300 del Código de Filadela le da los siguientes derechos:

1. Usted tiene el derecho, con ciertas excepciones, de ser contratado por nuestra compañia por los primeros 90 dias en que comencemos a dar serviios en (dirección del lugar de empleo).
2. Durante este periodo de 90 dias usted no puede ser despedido sin causa justificada.
3. Si usted cree que ha sido despedido o le han dado de baja en violació a esta Ordenanza usted tiene el derecho de demandarnos y recibir su salario, honorarios de abogado y costo de corte.

DE: (Nombre de la Compañia nueva bajo contrato)

(Dirección de la Compañia nueva bajo contrato)

(Teléfono # de la Compañia nueva bajo contrato)
(Ord. 2005, ch. 05-45, § 1, 9-1-05)

Sec. 14-17. Prohibited conduct.

(a) The following definitions shall apply to this section:

Worker means, describes, and pertains to any person who performs any service on the premises of a licensed business, on a full-time, part-time, or contract basis, regardless of whether the person is denominated an employee, independent contractor, agent, lessee, or otherwise. Worker does not include a person exclusively on the premises for repair or maintenance of the premises or for the delivery of goods to the premises.

Floor space means the floor area inside an establishment that is visible or accessible to patrons for any reason, excluding restrooms.

Licensee means a person in whose name a license has been issued by the City of Providence Board of Licenses, as well as the individual or individuals listed as an applicant on the application for the license, and all individuals with ownership of a financial interest of ten (10) percent or more of a licensed business or of any class of voting securities of a licensed business, and all individuals holding an office (e.g., president, vice-president, secretary, treasurer, managing member, managing director, etc.) in a legal entity in which name a license has been issued by the City of Providence.

Loitering for prostitution means the act of standing or wandering in or near any public highway or street, or any public or private place, and attempt to engage passersby in conversation, or stop or attempt to stop motor vehicles, for the purpose of prostitution or other commercial sexual activity (as defined in R.I.G.L. § 11-34.1-4).

Nude means the showing of the human male or female genitals, pubic area, vulva, or anus with less than a fully opaque covering, or the showing of the female breast with less than a fully opaque covering of any part of the nipple and areola.

Operator means any person on the premises of a licensed business who manages, supervises, or controls the business or a portion thereof, including, but not limited to, persons deemed to be a manager, supervisor, owner, part owner, or licensee of the business.

Pandering means the act of causing, inducing, persuading, or encouraging a person, by any promise or threat, by abuse of person, or by any other device or scheme, to become a prostitute or to come into this state or leave this state for the purpose of prostitution or the act of receiving or giving, or agreeing to receive or give, any money or thing of value for procuring or attempting to procure any person to become a prostitute or to come into this state or leave this state for the purpose of prostitution.

Person means an individual, proprietorship, partnership, corporation, association, or other legal entity.

Premises means the real property upon which the licensed business is located, and all appurtenances thereto and buildings thereon, including, but not limited to, the licensed business, the grounds, private walkways, and parking lots and/or parking garages adjacent thereto, under the ownership, control, or supervision of the licensee, as described in the license application.

Prostitution means the act of engaging, agreeing or offering to engage in sexual conduct (as defined in R.I.G.L. § 11-34.1-2) with another person in return for a fee.

Semi-nude means the showing of the female breast below a horizontal line across the top of the areola and extending across the width of the breast at that point, or the showing of the male or female buttocks. This definition shall include the lower portion

of the human female breast, but shall not include any portion of the cleavage of the human female breasts exhibited by a bikini, dress, blouse, shirt, leotard, or similar wearing apparel provided the areola is not exposed in whole or in part.

(b) Notwithstanding any provision in this chapter to the contrary, it shall be unlawful for a licensee, or any licensed business, or any worker of a licensee or licensed business to:

(1) Engage in or permit prostitution, loitering for prostitution, or pandering on the premises;

(2) Allow a person under the age of eighteen (18) years to be or remain on the premises of a licensed business where one (1) or more workers are permitted by the licensee or an operator thereof to appear semi-nude or nude on the premises.

(c) If, after a hearing before the board of licenses in accordance with its rules and regulations, a licensee or operator of a licensed business is found to have violated the regulations in this section or allowed a worker or any other person to violate the regulations in this section, if it is determined after hearing that such violations resulted from the gross negligence of the licensee or operator of a licensed business, in addition to any punishment or penalties that may be prescribed by statute for that offense, the board of licenses shall immediately revoke all licenses held by the licensee.
(Ord. 2014, ch. 2014-35, § 1, 8-14-14)

Secs. 14-18, 14-19. Reserved.

ARTICLE II. AUCTIONS AND AUCTIONEERS*

Sec. 14-20. Election of auctioneer.

The city council shall elect on the first Monday in January, quadrennially, commencing A.D. 1967, one (1) or more auctioneers.
(Ord. 1966, ch. 1802, § 1)

Sec. 14-21. Fee for license and commission.

The fee for license and commission as auctioneer is hereby established and fixed in the amount of two hundred dollars ($200.00).
(Ord. 1966, ch. 1802, § 2)

***State law references—**Auctioneers generally, chs. 44-21, 45-17, Gen. Laws 1956; power of city council to make regulations in addition to state provisions, § 45-17-9, Gen. Laws 1956.

Sec. 14-22. Record book to be kept.

(a) Each and every auctioneer now or hereafter elected or appointed and qualified in and for the city shall keep in a proper book a full and complete record in ink, and in the English language, of the following facts concerning any and all articles, goods, wares, merchandise or other personal property received or purchased by him for sale at public auction or sold by him at public auction:

(1) A description of every article and of all goods, wares, merchandise or other personal property so received, purchased or sold.

(2) The full name and residence of the persons from whom any of the same was received or purchased, or for whom any of the same was sold.

(3) The full name and residence of each person to whom any of the same was sold.

(4) The place and date of the receipt of purchase and of the sale of any of the same.

(5) The price at which any of the same was sold.

(b) Said record book of any such auctioneer shall be subject to inspection and examination by the chief, deputy chief, chief of inspectors or any captain of police of the city, or any person authorized by any of the same at any reasonable hour.

(c) A copy of said record shall be furnished by the auctioneer after public auction to any person or persons for whom goods, wares, merchandise or other personal property was sold.
(Ord. 1914, ch. 2, § 2; Rev. Ords. 1946, ch. 5, § 2; Ord. 1956, ch. 1008, § 1)

Sec. 14-23. Assistants must be duly elected, appointed and qualified.

Except as may be now or hereafter at any time otherwise provided by the laws of the state, or as especially authorized and empowered by some court of competent jurisdiction, no person, other than an auctioneer duly elected or appointed and qualified in and for the city, or some other town in this state, or a citizen of the city, or any auctioneer or representative of a firm of auctioneers resident or located in another state and duly licensed as an auctioneer by said state or any city or town therein shall act under any auctioneer in and for said city as an assistant, to cry the property to be sold or receive bids at any auction sale held in said city.
(Ord. 1914, ch. 2, § 1; Rev. Ords. 1946, ch. 5, § 1; Ord. 1949, ch. 253, § 1)

Sec. 14-24. Out-of-state assistants to obtain city permit, post bond, pay prescribed fee.

Any out-of-state auctioneers, before entering upon his duties as an assistant, as provided in section 14-23, shall obtain from the city clerk a permit therefor. Said permit shall not be issued unless a bond, in the sum of five thousand dollars ($5,000.00), with corporate surety and approved as to form by the city solicitor is on file in the office of the city clerk. A fee at the rate of fifty dollars ($50.00) for each day

in which said assistant shall expect to act as such shall be paid at the time of issuing each permit. No such out-of-state auctioneer shall act as such assistant on any day unless the fee therefor has been paid.
(Ch. 5, § 1.1, added by Ord. 1949, ch. 253, § 2)

Sec. 14-25. Auction sales not to continue more than ten days.

No auctioneer shall conduct any auction sale which shall continue more than ten (10) days from the day of beginning of said sale.
(Ord. 1930, ch. 791, § 1; Rev. Ords. 1946, ch. 5, § 6)

Sec. 14-26. Written notice of sale to be given.

No auctioneer shall conduct any auction sale without first giving the city clerk, in writing, at least five (5) days before said sale, the following information: The name of the owner of the merchandise to be sold and his address; the location, the date and time of day of said sale; the name and address of the auctioneer; and a general description of merchandise to be auctioned.
(Ch. 5, § 9, added by Ord. 1961, ch. 1405, § 1)

Sec. 14-27. Seller to have been in business in city, not to have sold at auction within one year.

No auctioneer shall hold any auction for a person who has not been in business continuously in the city at the same location at which said auction is contemplated for the period of one (1) year immediately preceding said auction, nor shall he conduct any auction for a person who has sold property at auction in the city during the period of one (1) year immediately preceding the contemplated auction.
(Ord. 1930, ch. 791, § 1; Rev. Ords. 1946, ch. 5, § 5)

Sec. 14-28. Inspection of premises.

The place of business of every auctioneer doing business pursuant to the provisions of this article shall be subject to inspection and examination by the chief, deputy chief, chief of inspectors, or any captain of police of the city, or by any other person authorized by any of the same, at any reasonable hour.
(Ord. 1914, ch. 2, § 2; Rev. Ords. 1946, ch. 5, § 2(6).

Sec. 14-29. Prohibited hours of sales.

No auctioneer shall hold any auction before the hour of 9:00 a.m. or after 10:00 p.m.
(Ord. 1930, ch. 791, § 1; Rev. Ords. 1946, ch. 5, § 4; Ord. 1968, ch. 68-39, § 1, 5-2-68)

Amendment note—Ch. 68-39, § 1, changed the closing hour from 6:00 p.m. to 10:00 p.m.

Sec. 14-30. False representations and substitutions.

No auctioneer shall make any false representation as to the character, quality, condition, value, or present or previous ownership of any property offered for sale, nor shall he substitute any other article for an article sold.
(Ord. 1930, ch. 791, § 1; Rev. Ords. 1946, ch. 5, § 3)

Sec. 14-31. Cappers.

No person shall act as an accomplice or capper for the purpose of making mock bids at any auction.
(Ord. 1930, ch. 791, § 1; Rev. Ords. 1946, ch. 5, § 7)

Sec. 14-32. Certain sales exempted.

The limitations contained in this article as to the times and duration of auction sales and the persons for whom auctions may be held, shall not apply to auction sales of real estate, livestock, perishable fruits and products, farming tools and implements, nor to the selling of eggs and poultry at auction within the city under the supervision of the bureau of markets and the department of agriculture and conservation of the state. Said provisions shall also not apply to the sale of goods, wares and merchandise in job lots or at wholesale, nor to receivers' or other judicial sales, sales by executors or administrators, by assignees under assignments for the benefit of creditors, by lienors or by public officers in the manner prescribed by law, nor to auction sales of used household furniture and effects purchased from or sold on account of a householder who has actually used such furniture and effects in his household in the city.
(Ord. 1930, ch. 791, § 1; Ord. 1936, ch. 930, § 1; Rev. Ords. 1946, ch. 5, § 8)

Secs. 14-33—14-42. Reserved.

ARTICLE III. BOOTBLACKS AND NEWSBOYS*

Sec. 14-43. Permit required.

No person known as a bootblack or as a newsboy shall ply his trade or business in any of the streets, avenues or other public places in the city without a permit from the bureau of licenses, issued as hereinafter provided.
(Rules of Bd. of Ald., ch. 2, r. 1; Rev. Ords. 1946, ch. 19, § 11)

***State law references—**Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; special act authorizing city council to establish system of fees for granting or issuing licenses or permits, P.L. 1922, ch. 2241.

Sec. 14-44. Prerequisites to issuance of permit.

No permit hereunder shall be issued to a bootblack or newsboy until the parent or guardian of the applicant for such permit, if the applicant is a minor, or some other person approved by the chief of police, if the applicant is an adult, shall give to the chief of police satisfactory assurance of the good character of such applicant.
(Rules of Bd. of Ald., ch. 2, r. 2; Rev. Ords. 1946, ch. 19, § 12)

Sec. 14-45. Issuance of permits to persons over sixteen years of age.

The bureau of licenses is hereby authorized to grant permits in writing to bootblacks and newsboys over the age of sixteen (16) years to ply their trade or business in the streets, avenues and other public places of the city.
(Rules of Bd. of Ald., ch. 2, r. 2; Rev. Ords. 1946, ch. 19, § 12)

Sec. 14-46. Issuance of permits to persons not over sixteen years of age.

The truant officer is hereby authorized to grant permits in writing to bootblacks and newsboys not exceeding the age of sixteen (16) years, to ply their trade or business in the streets, avenues and other public places of the city.

State law reference—By virtue of P.L. 1915, c. 1264, the truant officer issues permits for children sixteen and under.

Sec. 14-47. Renewal of permit.

All permits granted under this article shall be renewed annually.
(Rules of Bd. of Ald., ch. 2, r. 2; Rev. Ords. 1946, ch. 19, § 13)

Sec. 14-48. Badges.

The bureau of licenses shall deliver to each person receiving a permit, a numbered badge made of metal. Said badge shall be and remain the property of the city, and the person receiving the same shall return the same, or cause the same to be returned, to the bureau of licenses at the expiration of the time for which said permit was granted, or at the time of the revocation of said permit, if sooner revoked.
(Rules of Bd. of Ald., ch. 2, r. 3; Rev. Ords. 1946, ch. 19, § 14)

Sec. 14-49. Deposit for badge.

A deposit of fifty cents ($.50) shall be made upon the issue of a badge to the holder of a permit hereunder, which deposit shall be returned when the badge is surrendered or the permit is revoked.
(Rules of Bd. of Ald., ch. 2, r. 4; Rev. Ords. 1946, ch. 19, § 15)

Sec. 14-50. Badge to be worn.

Each person to whom a badge is issued under section 14-48 shall, while plying his trade or business, wear said badge on the front of his hat or cap in such manner that said badge may be plainly seen.
(Rules of Bd. of Ald., ch. 2, r. 4; Rev. Ords. 1946, ch. 19, § 15)

Sec. 14-51. Record of permits, badges to be kept.

The bureau of licenses shall endorse the number of the badge issued hereunder upon the permit issued hereunder, and shall keep a correct record of the name of each person to whom a permit is granted, together with his place of residence, the trade or business to be pursued under said permit, and the number of the badge delivered to the permit holder.
(Rules of Bd. of Ald., ch. 2, r. 3; Rev. Ords. 1946, ch. 19, § 14)

Sec. 14-52. Revocation of permit.

The bureau of licenses may in its discretion at any time revoke any permit granted as provided herein; and it shall be deemed sufficient cause for such revocation, that the person whose permit is revoked has been guilty of using indecent or profane language, or of violating any existing rule for regulating or restraining bootblacks or newsboys, or of committing any act of a disorderly or dishonest nature.
(Rules of Bd. of Ald., ch. 2, r. 5; Rev. Ords. 1946, ch. 19, § 16)

Sec. 14-53. Noise prohibited.

It shall be unlawful for any newsboy to hawk or make any noise on any street or other public place in the city on Sunday for the purpose of selling any newspaper or other article.
(Rules of Bd. of Ald., ch. 2, r. 7; Rev. Ords. 1946, ch. 19, § 17)

Cross reference—Noise prohibited, § 16-10 et seq.

Secs. 14-54—14-63. Reserved.

ARTICLE IV. COMMERCIAL PARKING LOTS*

Sec. 14-64. License required.

No person shall maintain or operate a commercial parking garage or parking lot within the limits of the city unless such person shall be duly licensed by the board of

*__Editor's note—__Ord. 2013, ch. 2013-56, approved Nov. 26, 2013, amended Art. IV in its entirety to read as set out herein. Former Art. IV, §§ 14-64—14-76, pertained to similar subject matter and derived from Ord. 2013, ch. 2013-13, § 1, adopted April 4, 2013.

licenses. A separate commercial parking license is required for each parking garage or parking lot. The said license shall be issued after due application, as described in this article, and payment of the prescribed fee. An application for license renewal must be submitted annually.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-65. License application.

A person submitting a commercial parking license application to maintain or operate a commercial parking garage or parking lot shall provide the following information:

(1) The applicant's business name and address, and the street address of the parking garage or parking lot for which the applicant seeks a license;

(2) The name, residence address, and business contact information of an individual the applicant has authorized to serve as the point of contact for the license;

(3) The names and residence addresses of every officer and partner of the applicant and every person with ten (10) percent or larger ownership interest in the applicant;

(4) The name and residence address of the individual whom the applicant has authorized to manage, direct, or control the operations of the parking garage or parking lot for which the applicant seeks a commercial parking license;

(5) For all individuals listed in subsections (2) through (4), a list of each conviction of or plea of guilty or no contest to a crime in the five (5) years preceding the application, including the nature of the offense and the place and date of the conviction or plea. The department of police may register an objection to the application with the board of licenses where such information gives rise to a public safety concern;

(6) If the applicant does not own the building, structure or space where the parking garage or parking lot for which the applicant seeks a commercial parking permit operates or will operate, the name, business address and contact information of the owner, and documentation demonstrating the nature of the applicant's interest in the building, structure or space;

(7) A copy of any appropriate filings with the Rhode Island Secretary of State;

(8) A copy of plans for the parking garage or parking lot for which the applicant seeks a license. The plans must include the name and business address of the applicant; the address of the parking garage or parking lot; the name and business address of the owner of the building, structure or space where the garage or lot is located, if the applicant is not the owner; all pedestrian and vehicular entrances and exits to the garage or lot; the dimensions and types of construction of all structures, fences or other improvements; and any features that may affect street traffic;

(9) The total motor vehicle capacity of the parking garage or parking lot for which the applicant seeks a license, including the number of designated spaces and the motor vehicle capacity of all undesignated areas the applicant could use for overflow parking;

(10) Certificates of insurance and endorsements evidencing insurance including the amounts and coverages, including theft and damage coverage, as specified under R.I.G.L. § 31-35-1;

(11) A security plan for the parking garage or parking lot. The security plan must specify the hours of operation for the parking garage or parking lot and meet the requirements set in section 14-66. The security plan shall include a certification from the applicant that the applicant shall operate the parking garage or parking lot in compliance with the security plan;

(12) The name and address of the person authorized to accept service of process for the applicant; and

(13) Any other information that the board of licenses finds reasonably necessary.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-66. Security plan review.

A security plan shall be included with the application for a commercial parking license.

(1) The department of police may recommend to the board of licenses alternate or additional security measures be included in the security plan submitted by the applicant. The department of police may object to a license application which security plan does not include measures to adequately address the safety of individuals and vehicles in the parking garage or parking lot and within twenty-five (25) feet of any pedestrian or vehicular entrance or exit to the parking garage or parking lot, notwithstanding the compliance of the proposed security plan with the minimum requirements of section 14-67. Additionally, the department of police may register with the board of licenses objections to an application based on a history of incidents resulting in police department response in the two (2) years before the date of the application, or any other public safety concern.

(2) The board of licenses may deny a commercial parking license for any parking garage or parking lot that does not submit a security plan; submits a security plan that does not meet the requirements of section 14-67; based on objections by the department of police; or for other factors as determined by the board of licenses.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-67. Security plan requirements.

(a) The security plan shall:

(1) Identify the number, type, and location of all light sources located on the premises including lighting located within pedestrian stairwells and entrances and provide for appropriate lighting as specified in the zoning code; and

(2) Provide for roving security guards and/or on-site monitoring of a surveillance system for self-service parking garages with multiple levels, as required under section 14-75.

(b) If any pedestrian or vehicular entrance or exit to the parking garage or parking lot is within one thousand (1,000) feet of any entrance or exit to a licensed class N establishment, the department of police may recommend, and/or the board of licenses may require the security plan to provide for an attendant, security guard or other individual retained by the licensee to remain on site until one (1) hour after such licensed class N establishments close. An attendant, security guard or other individual would not be required on site if all vehicular entrances and exits to the parking garage or parking lot are closed and secured so that vehicles may not enter or exit the garage or lot. The phrase "one thousand (1,000) feet" in this section shall mean one thousand (1,000) feet in all directions, including across a street, from any pedestrian or vehicular entrance or exit to the parking garage or parking lot;

(c) The security plan may include additional measures to protect the safety of individuals and vehicles in the parking garage or parking lot and within twenty-five (25) feet of any pedestrian or vehicular entrance or exit to the parking garage or parking lot, including, but not limited to, additional personnel, additional lighting, security cameras, emergency call boxes or phones, mirrors, barriers, and other physical improvements, or plans to close and secure one (1) or more pedestrian or vehicular entrances or exits to the parking garage or parking lot for certain hours of operation.

(d) The authority of the department of police to review and make recommendations for parking garages and parking lots shall not restrict in any way the authority of the board of licenses to place security requirements on any licensee.

(e) The licensed commercial parking garage or parking lot shall adhere to the security plan submitted with its application, as a condition of the license. Failure to comply with said security plan shall be punishable by a suspension or revocation of its license or by a fine or other penalty as determined by the board of licenses.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-68. Signs required.

Commercial parking lots and parking garages shall have a permanently affixed sign suitable to apprise persons using such parking lots and parking garages with the following information:

(1) The name of the owner, the street address of the lot or garage, the business phone number, the hours of the day or night during which such lot or garage is open for storing motor vehicles, the rates charged for parking and the closing hour of such place.

(2) Where more than one (1) rate is charged for parking in a parking lot or garage regulated herein, the figures for each rate shall be of the same size and dimensions, and shall be legible from a reasonable distance to a person of normal visual acuity.

(3) Where separate rates or charges are made by parking places regulated herein for day parking and night parking, notice thereof shall be posted on the signs described in this article.

(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-69. Protection barriers to be erected on lots adjacent to dangerous conditions.

Any person operating an automobile parking place as defined in Section 2 of Chapter 834 of the 1940 Public Laws of the state, which abuts upon or is adjacent to a body of water such as a waterway, harbor, river, lake, pond or the like, or to an embankment wherein the grade changes so abruptly as to cause a dangerous condition to exist, shall erect and maintain barriers of such type and construction as shall be determined by the inspector of buildings to protect the users of such lot.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-70. Plans for protection barriers to be approved by inspector of buildings; permit to be issued.

Before protection barriers, as provided in section 14-69, shall be erected, plans detailing the type and manner of construction of said barriers shall be filed with the inspector of buildings who shall issue a permit if the plans are approved by him.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-71. Inspection, alterations and repairs of protection barriers.

It shall be the duty of the inspector of buildings or his duly authorized assistants to inspect all protection barriers required herein at least once annually. The inspector of buildings shall order such repairs, alterations and/or replacements as may be deemed necessary to accomplish the purpose of sections 14-69 to 14-73 of this article.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-72. Date of completion of protection barriers.

All barriers required under the terms of sections 14-69 to 14-73 of this chapter shall be erected and completed not later than thirty (30) days after commencement of operations for which such barriers are required.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-73. Suspension and revocation of license.

Failure to comply with sections 14-64 to 14-67 shall be punishable by a suspension or revocation of the commercial parking lot license, or fine or other penalty, as determined by the board of licenses. Upon receiving notice, in writing, from the inspector of buildings to the effect that any licensee of an "automobile parking place" has failed to comply with the provisions of sections 14-69 to 14-73 of this article, the commissioner of public safety may suspend or revoke the license issued to such licensee.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-74. Report of vehicle left on premises more than twenty-four hours.

Operators of commercial parking lots and garages shall report to the commissioner of public safety any motor vehicle not known to the parking lot or parking garage operator which is left on the premises for more than twenty-four (24) hours continuously, within six (6) hours of the expiration of said twenty-four-hour period, and shall report the registration number of said motor vehicle and any other information required by the department of public safety.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-75. Security guards required for multi-decked parking garage; violation.

(a) All operators of self-service multi-decked parking garages shall, during hours of operation, provide roving security guards and/or on-site monitoring of a surveillance system which has been reviewed and approved as part of the security plan provided for under section 14-67.

(b) Violation of this section will cause immediate suspension of license by the license board until a hearing can be given by same and a ruling be handed down.
(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Sec. 14-76. Tax exemption for certain structures.

Any structure hereinafter constructed within the City of Providence, whether such structure be located above or under or upon the ground and used by the public for the parking of motor vehicles off the street or highway, shall be exempt from taxation provided:

(1) That such structure increase by no less than two hundred (200) percent the parking capacity of the premises as they existed prior to such construction.

(2) The owner(s) and/or operator(s) make(s) proper application for such exemption with the assessor of taxes upon a form and in a manner prescribed by him.

(3) That such application is approved by virtue of a resolution enacted by the city council and approved by the mayor.

(4) That any exemption from taxes shall be limited to that portion of the structure exclusively used for or devoted to the off-street parking of motor vehicles owned by the public.

(5) Should the structure cease to be used as parking facilities as described herein, within the period of said exemption, the owner and/or operator shall pay to the collector of taxes of the City of Providence any taxes together with any interest thereon at the regular rate and in the manner provided by law.

(6) No exemption shall extend beyond December 31, 1993.

(7) Any exemption shall become effective on the thirty-first day of December of the year in which said resolution is properly enacted; however, in no event shall any exemption be granted unless application for the same is made prior to May 18, 1985.

(Ord. 2013, ch. 2013-56, § 1, 11-26-13)

Secs. 14-77—14-84. Reserved.

ARTICLE V. ENGINEERS AND BOILER OPERATORS*

Sec. 14-85. License required; horsepower rating.

(a) It shall be unlawful for any person to operate or have direct charge of any stationary engine or prime mover, stationary steam or hot water boiler, refrigeration plant, air conditioning plant, diesel generator, gas generator, or steam turbine, without first obtaining a license in accordance with the provisions of this article.

(b) Provided, however, that the provisions set forth herein shall not apply to railroad boilers, hoisting engines of any pressure equipment, or any boiler used for the purpose of temporary heat in any building during construction, alterations or repairs.

(c) The horsepower rating of any steam boiler, steam generator, or other pressure vessel operated by any process where liquid or gas fuels are consumed or where electricity is used for the production of steam or hot water shall be determined in

*__Editor's note—__Ord. 1993, ch. 93-15, approved on April 20, 1993, amended ch. 14, Art. V, §§ 14-85—14-98 to read as herein set out. Former ch. 14, Art. V pertained to similar subject matter and derived from Ord. 1943, ch. 1196, §§ 1—14 and Rev. Ords. 1946, ch. 10, §§ 1—14.

accordance with the American Society of Medical Engineers (A.S.M.E.) or American Society of Heating, Refrigeration, and Air Conditioning Engineers (A.S.H.R.A.E.) standards. Boiler horsepower shall be calculated on B.T.U. input.
(Ord. 1993, ch. 93-15, § 1, 4-20-93)

Sec. 14-86. Stationary engineer license.

(a) In order to qualify for a stationary engineer license, an applicant shall meet the following minimum requirements:

(1) Shall have graduated from a high school or have a GED diploma; and

(2) Shall have been employed as a licensed boiler operator for five (5) years or have been an assistant to a licensed stationary engineer for at least three (3) years preceding the date of application, or shall have graduated as a mechanical engineer from an accredited engineering school; and

(3) Shall have received a passing grade in a written, oral or practical examination administered by the chief examiner, as defined in section 14-90.

(b) Holders of a stationary engineer license shall be eligible to operate the following equipment:

(1) Any stationary engine or prime mover of cumulative horsepower;

(2) Any refrigeration machinery;

(3) Steam or hot water boilers;

(4) Diesel generator;

(5) Air conditioning machinery;

(6) Hydraulics system;

(7) Gas generator;

(8) Steam turbine.
(Ord. 1993, ch. 93-15, § 2, 4-20-93)

Sec. 14-87. Boiler operators license.

(a) In order to qualify for a boilers operators license, an applicant shall meet the following minimum requirements:

(1) Shall have held an apprentice boiler operators permit in accordance in section 14-89 immediately prior to applying for a boiler operators license; and

(2) Shall have received a passing grade in a written, oral or practical examination administered by the chief examiner, as defined in section 14-90; and

(3) Shall be at least twenty-one (21) years old.

(b) Holders of a boiler operators license shall be eligible to operate any steam or hot water boiler not exceeding 100 H.P. If a boiler operator is on duty with a stationary engineer, he/she may operate, under the supervision of the stationary engineer, any equipment described in section 14-86(b).
(Ord. 1993, ch. 93-15, § 3, 4-20-93)

Sec. 14-88. Refrigeration machine operators license.

(a) *Requirements.* In order to qualify for a refrigeration machine operators license, an applicant shall meet the following requirements:

(1) Shall have graduated from a high school or have a GED diploma; and

(2) Shall have received a passing grade in a written, oral, or practical examination administered by the chief examiner as defined in section 14-90.

(b) *Equipment.* Upon receipt of a refrigeration machine operators license, the license holder shall be eligible to operate the following equipment:

(1) Refrigeration machinery of fifteen (15) tons capacity with Group 2 or Group 3 (Moderate or High Hazard Refrigerants).

(2) Refrigeration machinery of more than one hundred (100) tons capacity with Group 1 (Low Hazards Refrigerants).

(c) *Classifications of refrigerants.*

(1) *Group 1—Low Hazard* shall include but not be limited to: carbon dioxide, freon, methylene chloride, sulphur dioxide.

(2) *Group 2—Moderate Hazard* shall include but not be limited to: ammonia, ethyl chloride, methyl chloride, sulphur dioxide.

(3) *Group 3—High Hazard* shall include but not be limited to: butane, ethane, and propane.
(Ord. 1993, ch. 93-15, § 4, 4-20-93)

Sec. 14-89. Apprentice boilers operators permit.

(a) In order to qualify for an apprentice boiler operator permit, an applicant shall meet the following minimum requirements:

(1) Present a letter of introduction from an employer; and

(2) Shall be employed and working under the supervision of a licensed boiler operator or stationary engineer; and

(3) Shall have graduated from high school or have a GED diploma.

(b) An apprentice boiler operators permit shall be valid for a period of not more than six (6) months. Upon expiration of said term, a permit holder may apply for an operators license; or shall renew the apprentice boiler operators permit.
(Ord. 1993, ch. 93-15, § 5, 4-20-93)

Sec. 14-90. Licenses—Authority to issue.

The director of inspections and standards is hereby authorized and empowered to examine and license stationary engineers, boiler operators, refrigeration machine operator and apprentice boiler operator and promulgate suitable rules and regulations for such purposes. Such rules and regulations shall be issued in printed form. The director shall approve a chief examiner to carry out the provision of this article under the supervision of the chief of the division of mechanical installations. This examiner shall have a State of Rhode Island Master Mechanical License.
(Ord. 1993, ch. 93-15, § 6.0, 4-20-93)

Sec. 14-91. Same—Examinations.

Examinations may be written, oral, or practical as determined by the chief examiner. The purpose of the examination is to determine the qualifications and ability of the applicant. If the candidate fails to pass the examination, he or she may apply for re-examination at the expiration of a six-month period. Fees as designated in section 14-95 shall accompany the application and are not refundable. There shall be no charge for re-examination.
(Ord. 1993, ch. 93-15, § 6.1, 4-20-93)

Sec. 14-92. Same—Issuance.

If upon examination, the applicant for a license is found proficient in the operation of the necessary equipment by the director or chief examiner, a license shall be granted to the applicant allowing the applicant to be in direct charge of and operate such equipment up to the period ending June 30 after the date the license was issued. Apprentice license shall expire six (6) months from the date of issuance.
(Ord. 1993, ch. 93-15, § 6.2, 4-20-93)

Sec. 14-93. Same—Revocation.

The director shall investigate all complaints against any license holder. If after investigating a complaint, the director finds that there is sufficient evidence to indicate that a license holder has provided fraudulent information in order to obtain a license; has failed to carry out his/her responsibilities, thereby endangered the public health, safety or welfare; or has displayed an inability to carry out his or her duties; the director may suspend or revoke said license. A license holder shall have the right to a hearing before the director prior to any revocation or suspension. Any person aggrieved by a decision of the director may make an appeal to the municipal court.
(Ord. 1993, ch. 93-15, § 6.3, 4-20-93)

Sec. 14-94. Same—Renewals upon application.

Upon application, a person to whom a license has been issued under this article, shall be entitled to an annual license renewal, unless the director has revoked or suspended such license in accordance with section 14-93. A licensee that has not renewed a license for a period of two (2) years or more may be subject to re-examination at the discretion of the chief of mechanical inspections.
(Ord. 1993, ch. 93-15, § 6.4, 4-20-93)

Sec. 14-95. Same—Fees.

Each applicant for a stationary engineer, boiler operator, apprentice boiler operator, or refrigeration engineer license, and each application for renewal shall pay to the director, at the time of application, the following fee:

Bi-annual License	*Fee*
Stationary engineer	$100.00
Boiler operator	80.00
Apprentice boiler operator (six (6) month license only)	20.00
Refrigeration machine operator	80.00

(Ord. 1993, ch. 93-15, § 6.5, 4-20-93; Ord. 2007, ch. 07-41, § 1, 7-25-07; Ord. No. 2016-28, § 1, 7-29-16)

Sec. 14-96. Same—Form.

The director is authorized to develop a license in the form and substance satisfactory to carry out the provisions of this article.
(Ord. 1993, ch. 93-15, § 6.6, 4-20-93)

Sec. 14-97. Same—Display.

Each stationary engineer, boiler operator, refrigeration machine operator and apprentice boiler operator shall carry the respective license on their person whenever they are on duty. Failure to have their respective license on their person or inability to show the license to the director or his designees at their request shall be sufficient cause for the director to hold a hearing on suspension or revocation of the license in accordance with section 14-93.
(Ord. 1993, ch. 93-15, § 6.7, 4-20-93)

Sec. 14-98. Operators required.

Licensed operators are required under the following conditions:

(1) A boiler operator or stationary engineer shall be in charge of all boilers, stationary engines, prime movers, diesel engines, gas engines, and steam turbines from 30 H.P. to 100 H.P.

(2) A stationary engineer or a refrigeration machine operator shall be in charge of all refrigeration equipment and air conditioning equipment over one hundred (100) tons using Group 1 refrigerants; or refrigeration equipment of fifteen (15) tons or more using Group 2 and Group 3 refrigerants as defined in section 14-88(c).

(3) A stationary engineer shall be in charge of all boilers, stationary engines, prime movers, diesel engines, gas engines, and steam turbines over 100 H.P.

(4) A stationary engineer, boiler operator, or refrigeration machine operator shall be on duty at all times and shall be in the vicinity of the mechanical equipment room and shall not leave the building containing the equipment which they are assigned to watch. For equipment which is monitored by a computer system, refer to section 14-101.

(Ord. 1993, ch. 93-15, § 7, 4-20-93)

Sec. 14-99. Temporary boilers; portable type.

Portable type temporary boilers of more than one hundred (100) horsepower shall be maintained by a stationary engineer or a boiler operator under the supervision of a stationary engineer. Such operators shall keep a log book of the equipment operation. Entrees shall be made at least three (3) times during a twenty-four-hour period and shall include data as required by section 14-101(b).
(Ord. 1993, ch. 93-15, § 8, 4-20-93)

Sec. 14-100. Housekeeping air conditioning and refrigeration systems.

All air conditioning and refrigeration systems shall be maintained in a clean and orderly condition; free from accumulations of oily dust, waste, or other debris. All machinery and piping shall be kept readily accessible at all times for inspection and repair. Plenum chambers, ducts, cooling coils, and heating coils shall be kept clean, and unit filters shall be cleaned or renewed to insure adequate air flow in accordance with designed conditions.
(Ord. 1993, ch. 93-15, § 9, 4-20-93)

Sec. 14-101. Reserved.

Editor's note—Ord. No. 2016-28, § 2, adopted July 29, 2016, repealed § 14-101, which pertained to computer-operated equipment and derived from Ord. 1993, ch. 93-15, § 10, adopted April 20, 1993.

Sec. 14-102. Availability for inspection.

In the discharge of duties, the director or an authorized representative shall have the authority to enter at any reasonable hour, any building, to insure compliance with the requirements of this article.
(Ord. 1993, ch. 93-15, § 11, 4-20-93)

Sec. 14-103. Criteria for authorization of computerized monitoring systems—Monitors and indicators.

The director of inspections and standards is authorized to permit computerized monitoring systems under certain circumstances.

(1) For a boiler, a twenty-four-hour computerized monitoring system and automatic controls shall qualify if it meets the requirements of this section.

(2) For a boiler operating at thirty (30) to two hundred ninety-nine (299) horsepower, the system shall monitor and indicate:

a. Stack flue gas temperature;

b. Burner status, including "on" and "off" indicators;

c. Flame safety control status, including "normal" and "flame failure" indicators; and

d. One (1) of the following, as applicable:

1. For steam boilers:

(i) Pressure; and

(ii) Water level; or

2. For hot water boilers, temperature.

(3) For a boiler operating at three hundred (300) horsepower or more, the system shall monitor, indicate, and record:

a. Stack flue gas temperature;

b. Burner status, including "on" and "off" indicators;

c. Flame safety control status, including "normal" and "flame failure" indicators; and

d. One (1) of the following, as applicable:

1. For steam boilers:

(i) Pressure; and

(ii) Water level; or

2. For hot water boilers:

(i) Pressure; and

(ii) Temperature.

(Ord. No. 2016-28, § 3, 7-29-16)

Sec. 14-104. Alarm.

A computerized monitoring system shall be equipped with an alarm that will activate when:

(1) The stack flue gas reaches a high temperature;

(2) The burner status indicator indicates the burner is "off';

(3) The flame safety control status indicates a "flame failure"; and

(4) One (1) of the following occurs, as applicable:

a. For steam boilers, the:

1. Steam reaches low or high pressure; or

2. Water reaches low or high level;

b. For a hot water boiler operating at thirty (30) to two hundred ninety-nine (299) horsepower, the water reaches low or high temperature; or

c. For a hot water boiler operating at three hundred (300) or more horsepower the water reaches low or high:

1. Pressure;

2. Temperature; or

3. Level.

(Ord. No. 2016-28, § 3, 7-29-16)

Sec. 14-105. Automatic shutdown.

A computerized monitoring system shall be equipped with an automatic burner shutdown mechanism that will activate when:

(1) Stack flue gas reaches high temperature; and

(2) One (1) of the following occurs, as applicable:

a. For a steam boiler:

1. Steam reaches high pressure; or

2. Water reaches Low or high level;

b. For a hot water boiler operating at thirty (30) to two hundred ninety-nine (299) horsepower, water reaches high temperature; or

c. For a hot water boiler operating at three hundred (300) or more horsepower, water reaches:

1. High pressure;

2. High temperature; or

3. Low level.

(Ord. No. 2016-28, § 3, 7-29-16)

Sec. 14-106. Manual reset.

(a) Subject to section 14-106(b), manual reset following an automatic shutdown as set forth in this section requires that a licensee or the licensee's designee shall physically inspect the boiler and appurtenances prior to restart.

(b) Notwithstanding section 14-106(a), the licensee shall be responsible for the safe operation of a boiler at all times.
(Ord. No. 2016-28, § 3, 7-29-16)

Sec. 14-107. Miscellaneous provisions.

The director of inspections and standards may accept an alternate computerized monitoring system if the system is equipped with features that provide a comparable level of safety, monitoring, and control to those required by this ordinance, in the opinion of the director.
(Ord. No. 2016-28, § 3, 7-29-16)

Sec. 14-108. Reserved.

ARTICLE VI. INTELLIGENCE OFFICES*

Sec. 14-109. License required.

It shall be unlawful for any person in the city to keep or maintain an intelligence office unless he first shall have obtained a license therefor from the bureau of licenses.

Sec. 14-110. License fee.

The sum of one hundred dollars ($100.00) shall be the annual charge for each license granted by the bureau of licenses to keep and maintain an intelligence office.
(Rules of Bd. of Ald., ch. 2, r. 22; Rev. Ords. 1946, ch. 19, § 10; Ord. 1981, ch. 81-15, § 1, 3-26-81)

Sec. 14-111. Production of licenses.

All persons licensed to keep and maintain intelligence offices shall produce their licenses upon the demand of any person doing business with them.
(Rules of Bd. of Ald., ch. 2, r. 13; Rev. Ords. 1946, ch. 19, § 4)

Sec. 14-112. Signs required.

All persons licensed to keep and maintain intelligence offices shall keep, in some conspicuous place on the premises occupied by them, a sign with their name and the word "licensed" thereon.
(Rules of Bd. of Ald., ch. 2, r. 13; Rev. Ords. 1946, ch. 19, § 4)

***State law references—**Intelligence offices, §§ 5-7-1, 5-7-2, Gen. Laws 1956; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Sec. 14-113. Books to be kept.

A person licensed to keep and maintain an intelligence office shall keep a book in which shall be entered, at the time of application, the name and residence of any person who may apply for employment, and the name and residence of any person who may make application to be supplied with male or female domestics, servants, clerks, or other laborers; and also any and all sums of money which may be received of any person for such service. Such books shall at all times be open to the inspection of either the chief of police, deputy chief of police, or any person by them or either of them authorized.
(Rules of Bd. of Ald., ch. 2, r. 14; Rev. Ords. 1946, ch. 19, § 5)

Sec. 14-114. Office hours.

Intelligence offices shall be kept open for business between the hours of 8:00 a.m. and 8:00 p.m., Sunday excepted, and at no other hours.
(Rules of Bd. of Ald., ch. 2, r. 15; Rev. Ords. 1946, ch. 19, § 6)

Sec. 14-115. Application fees.

Every licensed keeper of an intelligence office shall be entitled to receive from each person at the time of application for employment, a sum not exceeding one dollar ($1.00), and from each person making application for a domestic, servant, clerk or other laborer, a sum not exceeding one dollar ($1.00), for which, in every case, a receipt shall be given at the time. In case no servant or place of employment is obtained within six (6) days from the date of payment, the money shall be refunded. In case no satisfactory servant or place of employment is obtained for the applicant therefor within six (6) days from the date of payment, the money shall be refunded to the applicant dissatisfied.
(Rules of Bd. of Ald., ch. 2, r. 16; Rev. Ords. 1946, ch. 19, § 7)

Sec. 14-116. Inducing servant to leave employment prohibited.

No licensed keeper of an intelligence office shall induce or attempt to induce any servant employed in any place to leave his employment.
(Rules of Bd. of Ald., ch. 2, r. 16; Rev. Ords. 1946, ch. 19, § 8)

Sec. 14-117. Revocation of license.

Any person licensed to keep an intelligence office, who shall violate any of the provisions of this article, shall suffer revocation of his license; in addition such license may be revoked at any time for causes other than those above specified. Said penalty shall be in addition to any other penalty which may be imposed as a result of violation of this Code of Ordinances.
(Rules of Bd. of Ald., ch. 2, r. 17; Rev. Ords. 1946, ch. 19, § 9)

Secs. 14-118—14-126. Reserved.

ARTICLE VII. JUNK AND SECONDHAND DEALERS*

Sec. 14-127. License required.

No person shall engage in the business of purchasing, selling, bartering or dealing in junk, old metals or secondhand articles, or of receiving the same for the purpose of melting the same or of converting the same into castings, unless such person shall be duly licensed by the board of licenses.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-128. License application.

(a) Every applicant for a license required pursuant to this article shall submit the following information, on a form provided by the board of licenses:

(1) Full name, including middle name, any aliases, address, date of birth, and Social Security Number of applicant and/or principals of any applicant corporation.

(2) Location of the proposed business.

(3) Radius map and property owner list identifying owners of property within a two-hundred-foot radius of the business as appears on the most current property tax list certified by the tax assessor of the city.

***Editor's note—**Ord. 2013, ch. 2013-2, § 1, approved Jan. 24, 2013, amended Art. VII in its entirety to read as set out herein. Former Art. VII, §§ 14-127—14-145, pertained to similar subject matter and derived from Ord. 1914, ch. 33, § 1; Rev. Ords. 1946, ch. 18, §§ 1—18; Ord. 1957, ch. 1149; Ord. 1981, ch. 81-15, § 1, approved March 26, 1981; Ord. 1985, ch. 85-37, §§ 1, 2, approved Feb. 22, 1985; Ord. 2012, ch. 2012-29, § 1, approved June 8, 2012.

(b) All applications shall be accompanied by an application fee of one hundred dollars ($100.00), plus the costs of advertising, posting and mailing as determined by the board of licenses.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-129. Fees for licenses.

The annual fees for the licenses required by section 14-127 hereof shall be one hundred dollars ($100.00), except for applicants seeking to receive old metals for the purpose of melting the same, or converting the same into castings, for which the fee shall be five dollars ($5.00).
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-130. Display of license.

Every licensee under this article shall display its license in a conspicuous place at the licensee's place of business.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-131. Expiration of license.

All licenses granted under the provisions of this article shall expire on the first day of May next succeeding the date of such license, and no rebate shall be made from the license fee for such license for any license term less than one (1) year.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-132. Identification of seller of goods or merchandise.

(a) Every person licensed as herein provided shall require the seller of any goods or merchandise to present a valid motor vehicle operator's license containing his or her photograph or other such suitable identification containing his or her photograph.

(b) The licensee shall maintain a record of the same, together with any other records required by law.

(c) Any person who violates any provision hereof, shall be subject to those penalties provided in section 14-145 of the Code of Ordinances.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-133. Conduct of business in premises used as dwelling, restricted.

No such business as defined in section 14-127 hereof shall be carried on in any building or premises of which any part is used as a residence.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-134. Records to be kept.

(a) Every person licensed under this article for the purpose of purchasing, selling, bartering or dealing in old metals shall record all transactions for which a license is required under this article. The licensee shall, upon request, send any records created pursuant to this section to the chief of police.

The record created pursuant to this section shall include the following:

(1) Date of the transactions;

(2) Name, address, telephone number, and signature of the person from whom the old or used metals are purchased or received, as well as a photocopy or digital image of the person's photo identification, as required under section 14-132;

(3) License plate number of the vehicle used to transport the old or used metals, whenever applicable;

(4) A description of the old or used metals;

(5) Price paid for the old or used metals.

(b) Nothing in this section shall be construed as requiring additional recordkeeping for junked automobiles or automobile parts beyond what is otherwise provided by law or except what is otherwise required by this section.

(c) Records created under this section shall be kept by the licensee for two (2) years from the date of the transaction. Nothing in this section shall be construed as to relieve any licensee of any record retention requirements otherwise required by law.

(d) The section shall not apply to the purchase of old metals from a person who is licensed to engage in the business of purchasing, selling, bartering or dealing in junk, old metals or secondhand articles, and who has previously recorded the contents of the load, pursuant to this section, and such person provides a written statement affirming such record at the time of the transaction.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13; Ord. No. 2022-13, § 1, 4-25-22)

Sec. 14-135. Inspection of records and places of business.

The record required in section 14-134, and every place of business of any person licensed hereunder shall be subject to the inspection and examination of law enforcement officials.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-136. Holding period for property acquired by licensee.

(a) Every person licensed hereunder shall keep for a period of ten (10) days, and shall immediately notify the police department of the following property purchased or received consisting of aluminum, brass, bronze, copper, cast iron, stainless steel, and/or wrought iron:

(1) Statues and sculptures;

(2) Weather vanes;

(3) Downspouts;

(4) Handrails;

(5) Decorative fencing (wrought iron only);

(6) Grave markers, sculptures, plaques and vases, the appearance of which suggest that the articles have been obtained from a cemetery;

(7) Beer kegs;

(8) Public property as defined in section 14-137(b).

(b) Every person licensed hereunder shall keep for a period of three (3) days, old metals not included in subsection (a) purchased or received in a single transaction.

(c) During said holding periods such property shall be kept separate and distinct and shall not be disfigured or treated in any way by which its identity may be destroyed or affected.

(d) Items purchased or sold under this article shall have no holding period if they are not included in subsection (a) and:

(1) The transaction is for loads weighing five hundred (500) pounds or more in weight; or

(2) The load is purchased from a municipality or governmental entity under contract with a licensee; or

(3) A photo identification system for transactions is utilized. For purposes of this section a photo identification system shall be defined as a system that captures digital images of each transaction, including the items contained in the transaction, the vehicle used to transport the items, and the vehicle license plate information. The record of each image also must contain the documentation required in sections 14-134(a)(1) through (5).

(Ord. 2013, ch. 2013-2, § 1, 1-24-13)

Sec. 14-137. Acquisition of public property.

(a) No person or entity licensed under sections 14-127, 14-260 or 15-37 shall purchase or otherwise accept or acquire a motor vehicle part known as a catalytic converter from another person or entity unless the seller or offeror presents proof of

identification in addition to a bill of sale or other legal document demonstrating ownership of said catalytic converter. The licensee shall retain photocopies or digital images of said documentation.

(b) In addition, every person or entity licensed under section 14-127, 14-260 or 15-37 shall record all transactions described in this section. The licensee shall, upon request, present any records created pursuant to this section to the chief of police or his or her designee. The records created pursuant to this section shall include the following:

(1) Date of transaction;

(2) Name, address, telephone number, and signature of the person from whom the catalytic converter was purchased or received;

(3) A photocopy or digital image of the person's photo identification, as is required under section 14-138(a);

(4) License plate number and vehicle identification number (VIN) of the vehicle used to transport the catalytic converter to the licensee, whenever applicable;

(5) A description of the catalytic converter;

(6) A photograph of the catalytic converter;

(7) Photocopies or digital images of the bill of sale or other legal document demonstrating ownership by the seller or offeror, as is required under section 14-138(a); and

(8) Price paid by the licensee for the catalytic converter.

Records created pursuant to this section shall be retained for a period of three (3) years from the date of acquisition of the property.

(c) Every person or entity licensed under section 14-127, 14-260 or 15-37 shall keep for a period of ten (10) days the catalytic converter received pursuant to section 14-138(a). During said holding period, the catalytic converter shall be kept separate and distinct from other property and shall not be disfigured or treated in any way by which its identity may be destroyed or affected.

(d) No person or entity licensed under section 14-127, 14-260 or 15-37 shall be permitted to acquire catalytic converters in exchange for cash.

(e) Penalties for violations of this section shall be in accordance with section 14-139 and/or section 1-10.

(f) The provisions of this section shall not apply to acquisitions or purchases by licensees of entire motor vehicles.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13; Ord. No. 2022-13, § 1, 4-25-22)

Sec. 14-138. Enforcement and penalties.

The police department shall enforce the provisions of this article. If an alleged violation occurs, the police department shall issue a citation that will require the license holder to appear for a show cause hearing before the board of licenses. If, after a hearing, the board finds a violation has occurred, the board shall impose a civil fine of one hundred twenty-five dollars ($125.00) for the first offense, two hundred and fifty dollars ($250.00) for the second offense, and five hundred dollars ($500.00) for any subsequent offense. Additionally, the board may suspend or revoke the license for any violations of the conditions or restrictions imposed upon the issuance of such license, or any rules and regulations governing the conduct of any such licensee, established by the board of licenses, or by the state; in addition, such license may be revoked at any time for causes other than those specified above, including violation of any other provision of the Code of Ordinances. If a license holder maintains the license for thirty-six (36) consecutive months without a violation, any new violation will be treated as a first offense.
(Ord. 2013, ch. 2013-2, § 1, 1-24-13; Ord. No. 2022-13, § 1, 4-25-22)

Secs. 14-139—14-154. Reserved.

ARTICLE VIII. PAWNBROKERS*

Sec. 14-155. License required.

It shall be unlawful for any person to engage in business as a pawnbroker in the city, unless he first shall have procured a license therefor from the bureau of licenses.

Sec. 14-156. License fee.

The sum of one hundred dollars ($100.00) shall be the annual charge for each pawnbroker's license.
(Rules of Bd. of Ald., ch. 2, r. 24; Rev. Ords. 1946, ch. 19, § 3)

Sec. 14-157. Posting and display of license.

Every person licensed under the provisions of this article shall display the license issued to him in a conspicuous place in the premises operated by him hereunder.

Sec. 14-158. Transferability of license.

No license to engage in business as a pawnbroker shall operate to authorize any person other than the person named therein to act thereunder, and no such license shall be transferable.

***State law reference—**Licensing and regulation of pawnbrokers, ch. 19-26, Gen. Laws 1956.

Sec. 14-159. Revocation of license.

Any person licensed to engage in business as a pawnbroker, who shall violate any of the conditions or restrictions imposed upon the issuance of such license or any rules and regulations governing the conduct of pawnbrokers, established by the bureau of licenses or by the state, shall suffer revocation of his license; in addition, such license may be revoked at any time for causes other than those above specified, including violation of any other provision of this Code of Ordinances. Said penalties shall be in addition to any other penalty which may be imposed as a result of violation of this Code of Ordinances.

Sec. 14-160. Books and records to be kept.

A person licensed as a pawnbroker shall keep and maintain appropriate books and records pertaining to the operation of such business, and such books and records at all times shall be open to the inspection of the chief of police, deputy chief of police, or any other person by them or either of them authorized.

Sec. 14-161. Identification of seller of goods or merchandise.

(a) Every person licensed as herein provided shall require the seller of any goods or merchandise to present a valid motor vehicle operator's license containing his or her photograph or such other suitable identification containing his or her photograph.

(b) Additionally, such licensee shall obtain a clear and identifiable print or impression of the seller's right thumb.

(c) The licensee shall maintain a record of the same, together with any other records required by law.

(d) Any person who violates any provision hereof, shall be subject to those penalties provided in section 1-10 and/or 14-159 of the Code of Ordinances.
(Ord. 1985, Ch. 85-37, § 2, 2-22-85)

Editor's note—Section 2 of Ch. 85-37, approved Feb. 22, 1985, added material to Art. VIII but did not specify a section number to be assigned; therefore, codification as § 14-161 has been at the editor's discretion.

Secs. 14-162—14-168. Reserved.

ARTICLE IX. VENDORS*

Sec. 14-169. Purpose.

The purpose of this article is to define types of vendors, to regulate their operation within the city, and to establish licensing requirements for anyone who wishes to sell or offer for sale any goods, wares, merchandise, food or beverages, from a temporary location on any private property, public property, or public right-of-way. The provisions contained herein are intended to protect the public health, safety and welfare, to ensure that vendors operate in an orderly manner, and to prevent congestion in public rights-of-way.
(Ord. No. 2015-26, § 1, 7-24-2015)

Sec. 14-170. Definitions.

For the purpose of this article, the following definitions shall apply:

Entertainment venue means Providence Performing Arts Center, the Providence Civic Center d/b/a Dunkin' Donuts Center, and Waterplace Park and River Walk zones, as recorded on a map adopted by the ordinance from which this article derives.

***Editor's note—**Ord. No. 2015-26, § 1, adopted July 24, 2015, repealed the former art. IX., §§ 14-169—14-186, and enacted a new art. IX as set out herein. The former art. IX pertained to peddlers and hawkers and derived from Ord. 2012, ch. 2012-38, § 1, adopted June 22, 2012.

Mobile vendor means any person, partnership or corporation, whether as owner, agent, employee or volunteer, licensed in accordance with this article, selling, or offering for sale, any goods, wares, merchandise, or food or beverages, and who conducts such a business from a mobile establishment, such as, but not limited to a motorized vehicle, pushcart, or other temporary facility (e.g. table) and also including lunch cart restaurants and traveling restaurants, as defined in section 10-21 et seq. of this Code.

Private property means all property that is not public property or public right-of-way.

Public property means any building, structure, property or premises owned by, occupied by as a lessee, or by reason of an easement, the City of Providence, the State of Rhode Island and the United States federal government, or an agency, board, or commission thereof.

Public right-of-way means any street, alley or sidewalk owned by, occupied by as a lessee, or by reason of an easement, the City of Providence, the State of Rhode Island and the United States federal government, or an agency, board, or commission thereof.

Vend / vending means the practice of selling, or offering for sale, any goods, wares, merchandise, food or beverages.

Vendor market means a collection of mobile vendors who locate in a designated place for a designated temporary amount of time, including, but not limited to, farmers' markets, "flea markets," and arts-and-crafts shows.
(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-171. Mobile vendor.

Any person, partnership or corporation who holds a mobile vendor license in accordance with this article, or a traveling restaurant or lunch cart license in accordance with section 10-21 et seq. of this Code, may vend in any location not otherwise restricted by this article, provided that:

(1) The mobile vendor shall not vend without a mobile vendor license;

(2) Any mobile establishment used for vending is legally registered, insured and inspected in accordance with all applicable laws;

(3) The mobile establishment is licensed by the Rhode Island Department of Health, if required;

(4) The mobile vendor shall not vend alcohol;

(5) The mobile vendor shall locate only upon public or private property where permitted by the Providence Zoning Ordinance as a temporary use, or public right-of-way within residential professional, commercial, downtown, industrial,

open space, public space, waterfront and institutional zoning districts. Within all other districts, the mobile vendor shall not stop to vend for more than five (5) minutes at a time;

(6) The mobile vendor shall not locate or vend on private or public property unless all permits required by the Providence Zoning Ordinance have been secured, and the vendor, as a condition of obtaining any license hereunder, has obtained written authorization of the property owner to locate and vend on the property;

(7) A mobile vendor vending in on-street parking areas, within the public right-of-way, may do so for no more than four (4) hours, which hours must be during the times parking is permitted, as posted on street signage. A mobile vendor may not vend in any area where parking is prohibited. If vending in an on-street parking area that is lined or metered, the mobile vendor's vehicle or establishment may not occupy more than two (2) lined or metered parking spaces. If vending in a metered parking area, the mobile vendor shall pay the posted meter fees for the duration of time occupying such space(s);

(8) An application for a license to vend on a sidewalk shall not be granted until the Department of Public Works reviews the proposed vending location to ensure that the proposed vending location does not interfere with public access to and along the sidewalk, and issues its approval of the proposed location;

(9) The mobile vendor vending within the public right-of-way shall not locate or vend within two hundred (200) feet of any outer edge of a vendor market, for the period beginning two (2) hours before the opening of the vendor market and ending two (2) hours following the close of the vendor market, unless such mobile vendor is licensed as part of the vendor market;

(10) The mobile vendor vending within the public right-of-way shall not locate or vend within two hundred (200) feet of the front door of any restaurant or institutional dining service while such facilities are open for business, unless the mobile vendor receives written permission from every restaurant or dining service with a front door within two hundred (200) feet of the proposed vending location, and presents such written permission to the board of licenses;

(11) The mobile vendor vending within the public right-of-way shall not locate or vend within three hundred (300) feet of an entertainment venue, as defined in section 14-170, for the period between two (2) hours prior to any event at such venue and two (2) hours following such event, unless as part of a licensed vendor market affiliated with the entertainment venue;

(12) The mobile vendor shall not obstruct the use of any street intersection or pedestrian crosswalk;

(13) The mobile vendor shall not impede the ingress or egress of any driveway;

(14) The mobile vendor shall allow the city the right to order the immediate relocation of the mobile vendor to a nearby location if the approved location needs to be used for emergency purposes, snow removal, construction, or other public benefit;

(15) The mobile vendor shall not vend between the hours of 2:00 a.m. and 6:00 a.m.;

(16) The mobile establishment shall not remain, attended or unattended, on public property or in the public right-of-way, when vending is not taking place, nor beyond the restricted hours of operation;

(17) The mobile vendor shall maintain the immediate area around the mobile establishment free and clear of litter and debris at all times;

(18) The mobile vendor shall clean all spills of food or food by-products and shall not dump gray water, grease, or any other food by-product or substance, on or in the public right-of-way, public property or private property;

(19) The mobile vendor shall provide and maintain his/her own trash receptacles, which shall be located within and adjacent to the mobile establishment, but which shall not block or otherwise obstruct pedestrian or vehicular traffic. The vendor shall contain and properly dispose of such refuse, trash, and litter in and adjacent to the mobile establishment, and shall not place it in any public trash container, or in any private container without proper permission;

(20) The mobile vendor shall not make or solicit any sales to occupants of vehicles or engage in any activities which impede vehicular traffic;

(21) The mobile vendor shall be current on all city taxes related to the vending operation. The mobile vendor shall also be current on all city taxes related to any restaurants owned or operated by the vendor.

(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-172. Vendor market.

Any individual or corporation who holds a vendor market license in accordance with this article may establish a vendor market provided that:

(1) Each vendor who does not cook food at the vendor market shall secure a vendor market license;

(2) Each vendor who cooks food at the vendor market shall secure a mobile vendor license and shall be subject to the requirements of section 14-171;

(3) The vendor market shall not locate or vend on private or public property unless all permits required by the Providence Zoning Ordinance have been secured, and unless written authorization has been given by the property owner, and provided to the board of licenses. Such written permission shall define by map the area of the property on which the vendor may operate;

(4) An application for a license to vend on a sidewalk within the public right-of-way shall have been reviewed by the department of public works, which shall approve the application only upon a determination the proposed vending location does not interfere with public access to and along the sidewalk.

(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-173. License application and fees.

All vendors shall obtain a license and badge from the board of licenses. Licenses issued by the board of licenses shall be valid from the date of issuance until the first date of May of the next calendar year. The board of licenses shall develop license application forms, and procedures, and shall ensure that the applications meet the requirements of this article. The annual vendor license fees are as follows:

(1) Mobile vendor license and badge—Sixty-seven dollars ($67.00).

a. An additional license fee is required for each of the following:

i. Food sales—One hundred dollars ($100.00).

ii. Frozen food sales only—Twenty dollars ($20.00).

iii. Vending on state holidays—One hundred dollars ($100.00).

b. Vendor market license—Ten dollars ($10.00); and

Each additional vendor in a vendor market—Ten dollars ($10.00) (unless the vendor is already a licensed mobile vendor)

Fees shall be waived for one (1) mobile establishment owned and operated by a licensed restaurant.

(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-174. Licensee to wear badge.

Every person licensed as herein provided, shall also obtain a badge from the board of licenses. The number on said badge shall correspond to the license number. All badges shall remain the property of the city.

(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-175. Misuse of badge.

No person shall wear or display any badge provided for in section 14-174 after the expiration or revocation of the license represented by it. No licensed person or entity

shall permit any badge issued to him/her/it to be used by another person for any purpose. No licensed person or entity shall make sales or offers to sell in a prohibited location. Vendors with goods, wares or merchandise, food or beverages, on display or exposed for sale shall be considered to be engaged in the sale of goods. Misused badges may be confiscated, recalled, or collected by the chief of police or his designee or by the board of licenses and its designee, and the licensee shall be subject to the penalties described in section 14-178.
(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-176. Refusal to exhibit license and badge.

Any person or entity who shall refuse, after lawful demand by any police officer to exhibit to him or her his/her/its license and/or badge, shall be deemed to be unlicensed for the purposes of this article.
(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-177. Provisions not applicable to newspapers.

Nothing herein contained shall apply to newspaper companies or vendors of newspapers.
(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-178. Violation, penalties and revocation of license.

Penalties for violations of any section of this article shall include, but not be limited to, the following:

(1) A seventy-two (72) hour confiscation of the vendor's license and badge;

(2) A fine of up to two hundred dollars ($200.00) for each offense; and

(3) Suspension or revocation of the vendor's license after notice and hearing before the board of licenses.

Every individual sale or offer for sale made contrary to the provisions of this article shall be deemed and construed as a distinct and separate offense. In the event a person or entity is not the holder of a license required by this article and is found to have violated this article, the person or entity shall not be eligible to obtain any license governed by this article for a period of one (1) year from the date of violation.
(Ord. No. 2015-26, § 1, 7-24-15)

Sec. 14-179. Severability.

In the event that any of the terms or provisions of this article are declared invalid or unenforceable by any court of competent jurisdiction or any federal or state

government agency having jurisdiction over the subject matter of this article, the remaining terms and provisions that are not affected thereby shall remain in full force and effect.
(Ord. No. 2015-26, § 1, 7-24-15)

Secs. 14-180—14-192. Reserved.

ARTICLE X. SHOWS AND OTHER AMUSEMENTS*

DIVISION 1. LICENSE REQUIRED

Sec. 14-193. License required.

No person, corporation or entity shall publicly or for pay, or for any profit or advantage, exhibit, promote, take part in, conduct, engage in or give any "entertainment event" without an entertainment license from the board of licenses.
(Ord. 2013, ch. 2013-58, 11-26-2013)

Sec. 14-194. Definitions.

For purposes of this article, the following definitions shall apply:

Entertainment event means any theatrical performance, or rope or wire dancing or other show or performance, wrestling, boxing, or sparring match or exhibition, public roller skating in rinks or halls, or any dance or ball.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-195. Entertainment license—Application, and hearing required.

(a) No entertainment license shall be granted by the board of licenses without first receiving an application therefor by the person, corporation, or entity seeking the license, and without first holding a hearing on such application. The license application for a new entertainment license shall be submitted to the board of licenses at least seven (7) days prior to the first time appointed for the initial exhibition of the performance, show or exhibition. In determining the seven-day period herein set forth, Saturdays, Sundays and legal holidays shall not be counted. The license application shall include the following information:

(1) The applicant's business name and address, and the address of the venue for which the applicant seeks an entertainment license;

***Editor's note—**Ord. 2013, ch. 2013-58, § 1, approved Nov. 26, 2013, amended Art. X in its entirety to read as set out herein. Former Art. X, §§ 14-193—14-199, 14-201—14-216, 14-220—14-233, pertained to similar subject matter and derived from Ord. 2013, ch. 2013-11, approved April 4, 2013.

(2) The name, residence address, and business contact information of an individual the applicant has authorized to serve as the point of contact for the license;

(3) The names and residence addresses of every officer and partner of the applicant and every person with ten (10) percent or larger ownership interest in the applicant;

[The next page is CD14:57]

(4) The name and residence address of the individual(s) whom the applicant has authorized to manage, direct, or control the operations of the venue for which the applicant seeks an entertainment license;

(5) For all individuals listed in subsections (1) through (4), a completed criminal background check through the department of police. The department of police may register an objection to the application with the board of licenses where such information gives rise to a public safety concern. Applicants for entertainment licenses that are class "F" licenses holders, and/or applicants for one-day entertainment event licenses for events on private property shall be exempted from this requirement.

(6) If the applicant does not own the premises for which the applicant seeks an entertainment license, the name, business address and contact information of the owner, and documentation demonstrating the nature of the applicant's interest in the premises;

(7) A copy of all permits and approvals from all necessary city divisions and departments including fire, inspection and standards, traffic engineering, and zoning;

(8) A copy of any business filings with the Rhode Island Secretary of State;

(9) A copy of the floor plan for the venue, allowable occupancy according to the fire marshal, and location and number of parking spots to be utilized by patrons of the venue;

(10) A copy of the business plan describing the nature of the proposed business to be conducted at the venue for which the applicant seeks an entertainment license;

(11) Certificates of workers' compensation insurance, where required by the General Laws of the State of Rhode Island, and endorsements evidencing insurance including the amounts and coverages;

(12) A copy of the security plan for the event;

(13) The address, date, time, and anticipated number of attendees at the event;

(14) A description of the type and nature of entertainment intended during the event;

(15) The name and address of the person authorized to accept service of process for the applicant; and

(16) Any other information that the board of licenses finds reasonably necessary.

(b) Notwithstanding any other provision in this section, the application for an entertainment license renewal shall be submitted to the board of licenses at least forty-eight (48) hours prior to the first time appointed for the initial exhibition of the performance, show or exhibition. In determining the forty-eight-hour period herein

set forth, Saturdays, Sundays and legal holidays shall not be counted. The entertainment license renewal application shall include an affirmation that the information provided in connection with the licensee's original entertainment application, in accordance with the enumerated items in subsection (a) of this section 14-195, remains unchanged at the time of renewal. The licensee shall be required to supplement any information which has changed since the original application was approved. The entertainment license renewal application must be submitted no later than seven (7) days following the expiration of the licensee's current entertainment license.

(c) The first entertainment license application received from any applicant following the effective date of this ordinance shall be considered a new entertainment license application, notwithstanding whether the applicant was the holder of an entertainment license prior to the effective date of this article. Subsequent applications received by the same applicant for the following months shall be considered renewal applications, subject to the provisions in subsection (b) of section 14-195.

(d) Any material misrepresentation of information on an entertainment license application shall cause the rescission of an entertainment license issued in connection with such application.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-196. Entertainment license conditions.

The board of licenses, pursuant to Title 5, Chapter 22, of the General Laws of Rhode Island, may place reasonable conditions on the issuance of an entertainment license having due regard for the public convenience, welfare and safety of its residents.

(1) *Entertainment description.* Any application for an entertainment license shall identify the specific types and nature of entertainment intended, as well as specifically delineating and defining through an attached plan, the location of the proposed entertainment. The approval of an entertainment license shall allow for those specific types of entertainment for which an application has been completed, and no other.

(2) *Hours of entertainment.* If an entertainment license is granted to the holder of a victualing license or alcoholic beverage license, the license granted hereunder shall not permit such entertainment event to extend beyond the authorized serving time of such victualing or alcoholic beverage license. In all other instances where an entertainment license is issued, the hours of entertainment to be held shall be as determined by the board of licenses, having due regard for the public convenience, welfare, health and safety.

(3) *Noise.* The board of licenses may specifically require the use of sound-buffering and sound-modification equipment, including audio speakers with short throw symmetrical coverage unidirectional patterns and baffling to contain and mitigate the dispersion of amplified sound as a condition to the issuance or

renewal of an entertainment license. Entertainment license holders shall comply with the regulations prescribed in chapter 16, article III of the Code of Ordinances entitled "Noise Control," including, but not limited to, the sound limits set forth in subsection 16-93(3), and the use of amplified sound as set forth in section 16-105; and

(4) *[Conditions.]* The following conditions shall apply to entertainment licenses for establishments licensed to sell alcohol for consumption on the premises:

a. The establishment shall implement a security plan that includes, but is not limited to, the use of security cameras, and a description of type and number of security staffing, and shall provide a copy of such plan to the board of licenses;

b. The establishment shall use only those event promoters who possess an event promoter's license issued by the board of licenses;

c. The entertainment venue shall implement a "code of conduct" for its employees and patrons, and submit a copy of such to the board of licenses; and

d. Any other such conditions the board of licenses deems necessary for the public convenience, welfare, health, and safety.

(5) *Police and fire detail.* Whenever an entertainment license is granted by the board of licenses, it shall be the duty of the board, with the recommendation of the commissioner of public safety or his or her designee, to determine whether or not the assignment of detail police officer(s) or detail firefighter(s) is needed. Upon receipt of an application for an entertainment license, the license administrator shall also notify the department of public safety.

(6) *Operation in accordance with law.* Full compliance with all federal and state laws, municipal ordinances, and all applicable rules and regulations shall be an express condition of every entertainment license issued by the board of licenses. It is the responsibility of the license applicant to determine whether the applicant's intended use of the premises is permissible under the zoning ordinance. In no event shall an entertainment license permit the occurrence of any nonconforming use.

(7) *[Safeguards required.]* No performance in any hall, theater, or building, used as a place of exhibition, shall be permitted upon any rope, wire or trapeze, strung or suspended in the auditorium of such place of exhibition, unless a net shall be placed under such rope, wire or trapeze, or other suitable provisions be made to protect the audience from danger of falling bodies. The commissioner of public safety, the chief of police, or any member of the police force, are hereby authorized and directed to cause any such exhibition to be suspended until such safeguard shall be provided.

(Ord. 2013, ch. 2013-58, § 1, 11-26-13; Ord. 2014, ch. 2014-9, § 1, 5-21-14)

Sec. 14-197. Exception—Special event entertainment.

(a) No entertainment license shall be approved for special events, as described in section 23-36 of the Code of Ordinances, unless the applicant has followed the city's guidelines for special events, and has filed a special event application. The board of licenses shall establish application requirements and license conditions for special event entertainment licenses distinct from those required in section 14-195 and section 14-196, respectively.

(b) Notwithstanding the provisions of this division, no entertainment event held or promoted by a public, private, or parochial primary or secondary school shall require an entertainment license in accordance with this division.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-198. Fees for designated licenses; additional charges and costs.

(a) *Fees.* The following fees are established for the issuance of licenses:

(1) Shooting galleries: Ten dollars ($10.00) per day.

(2) Show and dance: Ten dollars ($10.00) per day.

(3) Athletic exhibitions on Sundays:

Amateur: One dollar ($1.00) per day.

Professional: Ten dollars ($10.00) per day.

Athletic exhibitions on week days:

Amateur or professional: Two dollars ($2.00) per day.

(4) Motion pictures: Ten dollars ($10.00) per day.

(5) Circus, rodeo, closed-circuit television, traveling shows, special events and other shows, performances and exhibitions: The fee shall be determined by the board of licenses upon application, and shall not exceed the sum of one hundred dollars ($100.00).

(6) Notwithstanding any other provision in this section, the fee for the issuance of a new entertainment license for four (4) or fewer events shall be fifty dollars ($50.00) for the month.

(b) *Charges.* All charges and costs with respect to reviewing circuses, rodeos, traveling shows, special events, and other shows, performances and exhibitions, including motion pictures, shall be borne by the applicant.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-199. License expiration.

Any entertainment license issued in accordance with the provisions of this division shall expire on the last day of the month, and shall be renewed by the licensee subject to a completed application and the payment of the appropriate fee as established by ordinance.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-200. Reserved.

Sec. 14-201. Investigation of show or exhibition; report of investigation; action on report.

(a) The members of the bureau of licenses shall cause a preliminary investigation to be made by the amusement inspector of the City of Providence to determine the legitimacy pursuant to the General Laws of Rhode Island of said show or exhibition and shall cause a report to be made by the amusement inspector forthwith.

(b) Said investigation by the amusement inspector of the City of Providence shall consist of:

(1) Review of the applicants;

(2) Review of the title of the show or exhibition;

(3) Said investigation of the show or exhibition shall be made by a review of the available theatrical trade papers, theatrical trade periodicals, and theatrical publications not respecting those of any religious group.

(c) Said amusement inspector shall upon completion of his investigation forward to the bureau of licenses a report containing the compilation of critical review from various theatrical critics. In the event that said report reflects said show or exhibition to be controversial with regard to obscenity, or if the report indicates that the show or exhibition has not been reviewed and there is no available information relating to the content of said show or exhibition, said bureau of licenses may cause a view of said performance, show or exhibition prior to its licensing.

(d) A view of said questionable performance, show or exhibition shall be made by the commissioners of the bureau of licenses, the amusement inspector, and an attorney of the law department of the said City of Providence.

(e) Said members of the bureau of licenses shall determine whether or not there is a probable cause of obscenity. Said determination of probable cause of obscenity shall be based upon whether to the average person applying contemporary community standards, the dominant theme of the material taken as a whole appeals to the prurient interest and has no social redeeming value.

(f) In the event that the said members of the bureau of licenses are of the opinion that the said license should not be granted on the ground that the said performance, show or exhibition is obscene, the bureau of licenses shall within forty-eight (48) hours of the filing of such application commence an action in the Superior Court for Providence and Bristol Counties pursuant to the provisions of R.I.G.L. § 5-22-5, as amended.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

DIVISION 2. BILLIARD PARLORS, POOLROOMS, BOWLING ALLEYS, SHOOTING GALLERIES AND AMUSEMENT CENTERS

Sec. 14-202. License required.

No person shall engage in the business of an amusement center or the keeping of bagatelle, billiards, pool or sippio tables or any mechanical amusement device as defined in section 14-202.1 for public hire, or in the business of keeping such persons shall be duly licensed by the bureau of licenses.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-202.1. Amusement centers and mechanical amusement devices—Definitions.

For the purposes of section 14-202, the following definitions of mechanical amusement device and amusement center shall apply:

Amusement center means any place having two (2) or more mechanical amusement devices for public hire.

Mechanical amusement devices means any machine, which upon the insertion of a coin, slug, token plate or disc, may be operated by the public generally for use as a game or amusement whether or not registering a score and whether its operation demands skill or chance or both. It shall include but not be limited to such devices as marble machines, mechanical pool tables, pinball machines, skill ball, mechanical grab machines, video or computer-type games, electronically operated or displayed games, air games such as air hockey, and all games, operations or transactions similar thereto under whatever name they may be called.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-202.2. Same—Distance of licensee from school.

No license for either an amusement center or a mechanical amusement device shall be issued to any premises any point of which is within one thousand two hundred (1,200) feet of any point on the property of any school, public or private, unless said license provides that said center or device may not be operated until 4:00 p.m. on days

in which any school within said one thousand two hundred-foot area is in session; provided, however, that any establishment having a B, C, D, or J liquor license issued by the bureau of licenses shall not be subject to this section.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-203. Application for license.

Every applicant for a license required in section 14-202 shall set forth, upon a form to be furnished by the bureau of licenses, his name and address, and the address where the business for which a license is being sought is to be operated, and any other pertinent information required by the bureau of licenses.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-204. Notice, opportunity to object to issuance of license to be afforded.

The bureau of licenses, before granting a license required in section 14-202, shall give notice of application therefor by advertising once a week for at least two (2) successive weeks in some newspaper published in the city. The advertisement so published shall contain the name of the applicant and a description by street and number or other designation of the particular location for which the license is requested. Said notice shall state that remonstrants are entitled to be heard before granting of such license, and shall name the time and place of hearing. At such time and place a fair opportunity shall be granted the remonstrants to make their objections before acting upon said application.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-205. Effect of objections to issuance of license.

A license to engage in a business for which a license is required by this division shall not be issued to an applicant where the owners of the greater part of the land within two hundred (200) feet of the premises sought to be licensed shall file with the bureau of licenses their objections to the granting of such license.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-206. License fees for bagatelle, billiard, pool or sippio tables and amusement centers.

The annual fees for licenses to keep bagatelle, billiard, pool or sippio tables or an amusement center shall be as follows:

(1)	For one such table	$50.00
(2)	For each additional table in the same premises	30.00
(3)	For amusement centers	400.00

(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-207. License fees for bowling alleys, shooting galleries.

The annual fees for licenses to keep bowling alleys or shooting galleries for public hire shall be ten dollars ($10.00).
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-208. License year; prorating license fees.

Licenses issued as provided in this division shall expire on June 30 next following the date of their issue, and license fees payable therefor shall be prorated to the year ending on said date.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-209. Renewal of licenses.

Licenses issued as provided in this division shall be renewable beginning July 1 in each year, under the same restrictions and requirements as apply to an original application for license.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-210. Posting and display of license.

Every person licensed under the provisions of this division shall display the license issued to him in a conspicuous place in the premises operated hereunder.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-211. Transferability of license.

No license to engage in a business for which a license is required under the provisions of this division, shall operate to authorize any person other than the person named therein to act thereunder, and no such license shall be transferable.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-212. Restrictions upon licenses.

Licenses issued pursuant to this division shall be granted subject to the condition that the licensed premises shall be open to the inspection of the police department at all times during business hours, and subject to the provisions of R.I.G.L. ch. 363 and any act in amendment thereof or in addition thereto.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-213. Revocation of license.

Any person licensed under the provisions of this division, who shall violate any of the conditions or restrictions imposed upon the issuance of such license, or any rules and regulations pertaining thereto which have been established by the bureau of licenses, shall suffer revocation of his license; in addition such license may be revoked at any time for causes other than those above specified, including violation of any

other provision of this Code of Ordinances. Said penalties shall be in addition to any other penalty which may be imposed as a result of violation of this Code of Ordinances.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-214. Rules and regulations governing licensed premises.

The bureau of licenses shall establish rules and regulations for the operation and maintenance of premises used for the businesses for which a license is required under the provisions of this division.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Secs. 14-215—14-219. Reserved.

DIVISION 3. TRAMPOLINES

Sec. 14-220. License required for operation.

No person shall engage in the business of operating trampolines unless such person shall be duly licensed by the bureau of licenses.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-221. Application for license.

Every applicant for a license required in section 14-220 shall set forth, upon a form to be furnished by the bureau of licenses, his name and address, and the address where the business of operating trampolines is sought to be located, and any other needful information as required by the bureau of licenses. A fee of ten dollars ($10.00) shall be paid by the applicant upon the filing of such application.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-222. Notice, opportunity to object to issuance of license to be afforded.

The bureau of licenses, before granting a license required in section 14-220 shall give notice by advertising once a week for at least two (2) successive weeks in some newspaper published in the city. The advertisement so published shall contain the name of the applicant and a description by street and number or other plain designation of the particular location for which the license is requested. Said notice shall state that remonstrants are entitled to be heard before the granting of such license, and shall name the time and place of hearing. At such time and place a fair opportunity shall be granted the remonstrants to make their objections before acting upon said application.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-223. Effect of objections to issuance of license.

A license to engage in the business of operating trampolines shall not be issued to an applicant where the owners of the greater part of the land within two hundred (200) feet of the place shall file with the bureau of licenses their objection to the granting of such license.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-224. Fee for license; prorating fee.

The annual fee for a license hereunder shall be twenty-five dollars ($25.00). Such fee shall be prorated to the year ending June 30 in each calendar year.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-225. Expiration, renewal of license.

A license granted to an applicant hereunder shall be in effect for the period ending June 30 and shall be renewable each year beginning July 1 under the same requirements as an original application.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-226. Posting and display of license.

Every person licensed under the provisions of this division shall display the license issued to him in a conspicuous place in the premises operated hereunder.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-227. Transferability of license.

No license issued under the provisions of this division shall operate to authorize any person other than the person named therein, to act thereunder, and no such license shall be transferable.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-228. Revocation of license.

Any person licensed under the provisions of this division who shall violate any of the conditions or restrictions imposed upon the issuance of such license, or any rules and regulations pertaining thereto which have been established by the bureau of licenses, shall suffer revocation of his license; in addition such license may be revoked at any time for causes other than those above specified, including violation of any other provision of this Code of Ordinances. Said penalties shall be in addition to any other penalty which may be imposed as a result of violation of this Code of Ordinances.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-229. Rules and regulations governing places used.

The bureau of licenses shall establish rules and regulations for the operation and maintenance of places used for the business of operating trampolines.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

DIVISION 4. COMMERCIAL ESTABLISHMENTS WHERE ALCOHOLIC BEVERAGES ARE OFFERED FOR SALE

Sec. 14-230. Nudity on premises where alcoholic beverages are offered for sale.

(a) It shall be unlawful for any person maintaining, owning, or operating any commercial eating and/or drinking establishment, whether or not entertainment is provided, and at which alcoholic beverages are offered for sale for consumption on the premises to suffer or permit:

(1) Any female person, while on the premises of the commercial establishment, to expose to the public view that area of the human breast at or below the areola thereof.

(2) Any female person, while on the premises of the commercial establishment, to employ any device or covering which is intended to give the appearance of or simulate such portions of the human female breast as described in subsection (a)(1) above.

(3) Any person, while on the premises of the commercial establishment, to expose to public view his or her genitals, pubic area, anus or anal cleft.

(4) Any person while on the premises of the commercial establishment, to employ any device or covering which is intended to give the appearance of or simulate the genitals, pubic area, buttocks, anus or anal cleft.

(b) If shall be unlawful for any female person, while on the premises of any commercial eating and/or drinking establishment, whether or not entertainment is provided, and which alcoholic beverages are offered for sale for consumption on the premises, to expose to the public view that area of the human female breast at or below the areola thereof, or to employ any device or covering which is intended to give the appearance of or simulate such areas of the female breast as described herein.

(c) It shall be unlawful for any person, while on the premises of any commercial eating and/or drinking establishment, whether or not entertainment is provided, at which alcoholic beverages are offered for sale for consumption on the premises, to expose to public view his or her genitals, pubic area, anus or anal cleft or buttocks, or to employ any device or covering which is intended to give the appearance or simulate the genitals, pubic area, buttocks, anus or anal cleft.

(d) Any person who shall violate any provision of this section shall be guilty of an offense against the city punishable as provided in section 1-10 of this Code, and by a fine of not less than five hundred dollars ($500.00) for each offense or by imprisonment of not less than thirty (30) days. The provisions of this section shall be enforced by the city police department.

(e) Any "adult entertainment" establishment, as provided for and defined in the city zoning ordinance, as amended, which was lawfully existing prior to the passage of this section, is exempt from the provisions of this section.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-231. Minors prohibited in certain establishments.

(a) It shall be unlawful for any licensee, establishment, or employee of a licensee or establishment:

(1) To allow a minor to provide entertainment or to serve food or beverages at any establishment or business that provides adult entertainment as defined in the zoning ordinance, chapter 27, article X, section 1000.8.

(2) To allow a minor to provide entertainment or to serve food or beverages at any establishment or business, whether or not alcoholic beverages are served, that features any of the following:

a. Persons who appear in a state of nudity or a state of dress in which opaque clothing covers not more than the genitals, public region, and nipple of the female breast, as well as portions of the body covered by supporting straps or devices; or

b. Live performances that are characterized by the exposure of the cleft of the buttocks, anus, male or female genitals, or the female breast, or by sex acts, actual or simulated, including intercourse, oral copulation, masturbation, or sodomy.

(b) A minor commits an offense if the minor provides entertainment or serves food or beverages at any establishment or business referenced in subsection (a).

(c) Any person who shall violate any provision of this section shall be guilty of an offense against the city, punishable, for each offense, as provided in section 1-10. The provisions of this subsection shall be enforced by the police department.

(d) Any licensee who violates any provision of this section shall be punished by a fine not to exceed five hundred dollars ($500.00) for the first offense and not to exceed one thousand dollars ($1,000.00) for each subsequent offense. The provisions of this subsection shall be enforced by the board of licenses.
(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-232. Restricting the presence of patrons under age of eighteen (18) in class N liquor establishments when entertainment is offered.

(a) No person or legal entity possessing a class N liquor license shall permit any patron below the age of eighteen (18) years on the licensed premises while alcoholic beverages are being served with entertainment being offered. Any class N liquor license wishing to provide entertainment while alcoholic beverages are being served must:

(1) Before entertainment shall commence, the license holder or license holder's agent must check the age of patrons already within the licensed premises to ensure that all are eighteen (18) years or older.

(2) Once entertainment commences, the license holder or license holder's agent shall post an employee at the entrance of the licensed premises to check the identification of any patron wishing to enter. The employee present at the entrance of the licensed premises must be a registered doorkeeper pursuant to section 14-14 and must have completed training on detecting fraudulent identification.

(b) The board of licenses may, after reasonable notice and opportunity to be heard, fine the license holder a minimum of one hundred dollars ($100.00), suspend or revoke the license for violations of this section.

(c) The board of licenses shall maintain a list of "live music" concert venues within the city.

(1) The board of licenses shall have the authority to determine what establishments qualify as "live music" concert venues and shall establish a protocol for holding concerts at which patrons below the age of eighteen (18) may be in attendance.

(2) The board of licenses shall have discretion to waive the requirements of this section for such "live music" concert venues provided that the licensee provide a minimum of forty-eight (48) hours notice to the board of licenses before each scheduled concert date at which patrons below the age of eighteen (18) may be in attendance.

(3) Notification by a "live music" concert venue shall include agreement by licensee to follow protocol established by the board of licenses with regard to patrons below the age of eighteen (18).

(4) The board of licenses shall, after reasonable notice and opportunity to be heard, fine the license holder a minimum of one hundred ($100.00) dollars for the first violation of this subsection. The board of licenses, upon subsequent violations by the license holder, may fine, suspend the license holder for a period of up to thirty (30) days or revoke the license.

(Ord. 2013, ch. 2013-58, § 1, 11-26-13)

Sec. 14-233. Event promoter licensing.

(a) *Purpose.* The purpose of this section is to promote the general welfare of residents and visitors of the City of Providence, and to set guidelines regarding the safe enjoyment of promoted events at which alcohol is sold for consumption on the premises.

(b) *Definitions.* [The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Event means activity at a location licensed to sell alcohol for consumption on the premises, provided all of the following conditions are met:

(1) Some portion of the event takes place between the hours of 9:00 p.m. to 2:00 a.m.;

(2) The event is not a bona fide fundraiser. A bona fide fundraiser is held to raise funds for a charitable, political, religious, or similar purpose, and none of the proceeds can be used for any other purpose, except to cover costs incurred in holding the fundraiser, provided, however, that no proceeds of the fundraiser may inure to the benefit of the person promoting the event; and

(3) The event is not one in which the city has a management role, either exclusively or in concert or partnership with a private individual or entity.

Publicize an event means to take action to encourage attendance at the event, including, but not limited to, the following activities:

(1) Advertising or publicizing the event to members of the public;

(2) Soliciting members of the public to attend the event; or

(3) Organizing and/or arranging the commercial transportation of twenty-five (25) or more patrons via any chauffeured bus or limousine service to or from the event.

Event promoter means any person who publicly or for pay or for any profit or advantage to himself or herself publicizes an event but does not include the following:

(1) A liquor license holder, when the event is held at the licensed premises;

(2) A print, broadcast, or internet medium that is paid solely for page space or broadcast time to advertise an event, but exercises no other responsibilities in connection with the event;

(3) A ticket seller who sells admission tickets to an event from its own place of business, not at the site of the event and in advance of the event, but exercises no other responsibilities in connection with the event;

(4) An entertainer or performer who advertises only his or her own performance, provided that such advertisement may include the venue location and time of

performance, but shall not reference other information related to the venue, including, but not limited to, special cover charges, and food or drink specials; and

(5) An agent, official, or employee of the city acting in the course of his or her position as an agent, official, or employee.

(c) *Event promoter license required.* No person shall operate as an event promoter in the city without first obtaining a license from the board of licenses. The license shall be renewed annually. The fee for the license issued under this section shall be one hundred dollars ($100.00).

(d) *License application.* A person submitting an event promoter license application shall provide the following information:

(1) The applicant's full name, residence address, business address, business e-mail address, business telephone number and cell phone number;

(2) Proof that the applicant is at least eighteen (18) years of age;

(3) A copy of any business filings with the Secretary of State;

(4) A list of every jurisdiction and name under which the applicant, within the last five (5) years, has done business as an event promoter;

(5) A statement that the applicant will comply with all state and local laws; and

(6) Any other information that the board of licenses may require.

(e) *Event promoter's contract—required.*

(1) No promoted event shall be presented at any location where alcohol is licensed to be sold for consumption on the premises, except pursuant to a written contract between the event promoter and the owner, lessee or manager of the establishment presenting such promoted event. Such contract shall include the following information:

a. A copy of the event promoter's license;

b. If any other license or permit is required for the promoted event, copies of the applicable license or permit;

c. The maximum capacity of the building, premises, room, floor or other area where the promoted event will be presented;

d. The estimated number of anticipated patrons that will be in attendance at the promoted event;

e. The name, address, and contact information of any chauffeured bus or limousine service that will be used in conjunction with the promotion of the event to transport patrons to and from the event;

f. The name and cell phone number of the event promoter's on-site representative(s);

g. The number of security personnel that will be present, if any, during the promoted event and the name of the employer of such security personnel;

h. The respective responsibilities, functions, duties and rights of the parties to the contract required by this section; and

i. The date or dates, and location and hours of operation, of the promoted event.

(2) A copy of the contract required by this section shall be kept at the site of the promoted event throughout the duration of such event.

(3) If the establishment presenting the event requires any other license or permit, a copy of the contract shall also be kept, for a period of not less than seven (7) days before and thirty (30) days after the event is presented, in the possession of the holder of such required license or permit, and in the possession of any person managing or directing the day-to-day operations of the establishment. Upon request, a copy of the contract required by this section shall be made available for inspection by any authorized city official.

(f) *License—suspension or revocation.* Any violator of any provision of this chapter shall be subject to a fine, license suspension or license revocation in accordance with the powers and duties of the board of licenses.

(g) *Regulations.* The board of licenses shall have the authority to promulgate rules and regulations necessary to implement the requirements of this section.
(Ord. 2013, ch. 2013-57, §§ 1—7, 11-26-13)

Secs. 14-234—14-235. Reserved.

ARTICLE XI. REGISTRATION AND LICENSING OF BICYCLES*

Sec. 14-236. Purpose.

The purpose of this article is to encourage the development of alternative public transportation that is environmentally friendly, such as pedicabs as defined herein, and to provide uniform regulation thereof for the health, safety, and welfare of the public.
(Ord. 2012, ch. 2012-68, § 1(14-241), 12-6-12)

***Editor's note—**Ord. 2012, ch. 2012-68, § 1, approved Dec. 6, 2012, set out provisions for §§ 14-241—14-264. At the direction of the city, these provisions have been redesignated as 14-236—14-247.5 thus superseding Art. XI in its entirety. Former Art. XI, §§ 14-236—14-240, pertained to similar subject matter and derived from Ord. 1974, ch. 74-11, §§ 1—5, adopted April 10, 1974.

Cross reference—Other provisions relative to bicycles, §§ 15-70—15-75.

Sec. 14-236.5. Definitions.

Whenever in this article the following terms are used they shall have the meanings as ascribed to them in this section:

Bicycle means any device upon which a person may ride, which is propelled by human power through a system of belts, chains, or gears, and which has wheels at least twenty-two (22) inches in diameter and a frame size of at least twenty (20) inches.

Darkness means any time from one-half (½) hour after sunset to one-half (½) hour before sunrise and any time when visibility is not sufficient to render clearly discernible any person or vehicle on the highway at a distance of one thousand (1,000) feet.

Decal means the numbered decal issued by the board of licenses to a pedicab owner for display on the pedicab to indicate that the pedicab is permitted to operate.

Operating permit means a written permit in the form of a badge and including a color passport-size photo, issued by the board of licenses authorizing a person to operate a pedicab as a business. An operating permit shall also be known as a pedicab operator "identification badge."

Operator means any individual who operates a pedicab within the City of Providence.

Owner means any person who owns a pedicab.

Pedicab means a bicycle that has three (3) or more wheels, or that is a trailer connected to any bicycle, that transports, or is capable of transporting, passengers on seats attached to the bicycle or trailer that is operated by an individual and that is used for transporting passengers for hire.
(Ord. 2012, ch. 2012-68, § 1(14-242), 12-6-12)

Sec. 14-237. Permit requirement to operate pedicab.

It is unlawful for any individual to operate a pedicab within the city without first having obtained an operating permit issued by the board of licenses pursuant to this section.
(Ord. 2012, ch. 2012-68, § 1(14-243), 12-6-12)

Sec. 14-237.5. Application for operating permit.

(a) Before operating a pedicab, an individual shall apply for a pedicab operating permit.

(b) The pedicab operating permit application form shall be prescribed by the license administrator.

(c) In addition to a completed operating permit application, the applicant shall provide:

(1) Proof that the applicant is eighteen (18) years or older;

(2) Proof of ability to drive lawfully in the United States;

(3) Two recent color passport-sized photographs; and

(4) Such other material as the city may require.

(d) Pedicab operators shall be subject to any and all licensing regulations promulgated by the board of licenses.
(Ord. 2012, ch. 2012-68, § 1(14-244), 12-6-12)

Sec. 14-238. Pedicab operating permit fee.

The city's board of licenses may charge a nonrefundable fee to recover the cost of activities associated with the administration, regulation, and issuance of pedicab operating permits. The fee schedule shall be filed in the city clerk's office.
(Ord. 2012, ch. 2012-68, § 1(14-245), 12-6-12)

Sec. 14-238.5. Duration of validity of operating permit.

Operating permits shall be valid for a period of one (1) year, from April 1 through March 31.

Operating permits shall be valid for a period of one (1) year from the date of issuance thereof.
(Ord. 2012, ch. 2012-68, § 1(14-246), 12-6-12)

Sec. 14-239. Denial of permit for failure to comply with article.

The board of licenses may deny issuance of a pedicab operating permit if the applicant fails to comply with the requirements of this article.
(Ord. 2012, ch. 2012-68, § 1(14-247), 12-6-12)

Sec. 14-239.5. Denial of pedicab operating permit, suspension or revocation.

The board of licenses may deny issuance of a pedicab operating permit if the applicant misrepresents facts relevant to the fitness of the applicant to be granted a pedicab operating permit. If such misrepresentation becomes known after an operating permit has been issued, the operating permit may be suspended or revoked.
(Ord. 2012, ch. 2012-68, § 1(14-248), 12-6-12)

Sec. 14-240. Identification badges issued to pedicab operators with a permit.

(a) While the pedicab is in operation, the pedicab operator shall wear the operating permit as the pedicab operator's identification badge at all times, in a manner clearly visible to the public.

(b) It is unlawful for a pedicab operator to fail to wear the operating permit as an identification badge in a manner clearly visible to the public, while operating a pedicab.
(Ord. 2012, ch. 2012-68, § 1(14-249), 12-6-12)

Sec. 14-240.5. Fare schedule.

(a) Pedicab operators shall post a fare schedule in a manner clearly visible to the public at all times while operating a pedicab. Pedicab operators offering tours must have the fee schedule for such tours clearly visible to the public at all times.

(b) It is unlawful for any pedicab operator to demand from a passenger a fare or tour fee greater than that contained in the posted schedule.

(c) Subsection (b) does not apply to fares for special tours, provided that the fare for the special tour is agreed upon between the passenger and the pedicab operator prior to the beginning of the tour.

(d) Pedicab operators that waive a fee schedule and operate on gratuities only must post notice to that effect in a manner clearly visible to the public at all times while operating the pedicab.
(Ord. 2012, ch. 2012-68, § 1(14-250), 12-6-12)

Sec. 14-241. Pedicab decal.

It is unlawful for any owner to lease, rent, or allow a pedicab to be operated for hire within the city without first having obtained a decal issued pursuant to this article. The decal shall be affixed to the rear of the pedicab and be clearly visible and unobstructed at all times.
(Ord. 2012, ch. 2012-68, § 1(14-251), 12-6-12)

Sec. 14-241.5. Application for pedicab decal.

(a) Before allowing a pedicab to be operated for hire, owners shall obtain a pedicab decal.

(b) The pedicab decal application form shall be prescribed by the license administrator.

(c) The applicant shall provide the following information to complete the application:

(1) The full name and address of the applicant;

(2) The name and address of each of the principal officers of the corporation, if the applicant is a corporation. If the applicant is not a corporation, the names and addresses of the partners, trustees, owners, managers, members or other persons controlling the entity shall be given;

(3) A description of the vehicle, including trade name, if any, serial number and body style;

(4) A map of the City of Providence, or the applicable detailed portion thereof, showing locations of all proposed routes or methods of operation and showing locations of all proposed stations, places to keep vehicles, stands or pick-up points;

(5) Proof of insurance in accordance with the provisions of this chapter in an amount not less than one million dollars ($1,000,000.00) per occurrence;

(6) Written affirmation that the pedicab is equipped with a battery-operated headlight capable of projecting a beam of white light for a distance of three hundred (300) feet; and

(7) Written affirmation that the pedicab is equipped with battery-operated taillights mounted on the right and the left respectively, at the same level on the rear exterior of the passenger compartment. Taillights shall be plainly visible from all distances within five hundred (500) feet to the rear of the pedicab.

(Ord. 2012, ch. 2012-68, § 1(14-252), 12-6-12)

Sec. 14-242. Pedicab decal fee.

The license administrator may charge a nonrefundable fee to recover the cost of activities associated with the administration, regulation, and issuance of pedicab decals. The fee schedule shall be filed in the city clerk's office.

(Ord. 2012, ch. 2012-68, § 1(14-253), 12-6-12)

Sec. 14-242.5. Duration of validity of pedicab decal.

Pedicab decals shall be valid for a period of one (1) year, from April 1 through March 31. Pedicab decals shall be valid for a period of one (1) year from the date of issuance thereof.

(Ord. 2012, ch. 2012-68, § 1(14-254), 12-6-12)

Sec. 14-243. Denial of decal for failure to comply with article.

The city may deny issuance of a pedicab decal if the city determines that the pedicab does not meet the requirements of this article, other city ordinances or regulations, and state law.

(Ord. 2012, ch. 2012-68, § 1(14-255), 12-6-12)

Sec. 14-243.5. Other laws applicable to pedicab owners and operators.

Pedicab operators are subject to all applicable laws, rules and regulations of the City of Providence and State of Rhode Island Motor Vehicle Code pertaining to the operation of bicycles upon streets, except those provisions that by their very nature can have no application.

(Ord. 2012, ch. 2012-68, § 1(14-256), 12-6-12)

Sec. 14-244. Minimum age of pedicab operators.

It is unlawful for any individual under the age of eighteen (18) to operate a pedicab as a business.
(Ord. 2012, ch. 2012-68, § 1(14-257), 12-6-12)

Sec. 14-244.5. Driver's license requirement to operate a pedicab.

It is unlawful for any individual without a motor vehicle driver's license valid in the United States to operate a pedicab within the City of Providence.
(Ord. 2012, ch. 2012-68, § 1(14-258), 12-6-12)

Sec. 14-245. Regulations for pedicab operations.

(a) It is unlawful for any person to operate, or cause to be operated, a pedicab during the hours of darkness, without using a headlight capable of projecting a beam of white light for a distance of three hundred (300) feet.

(b) It is unlawful for any person to operate, or cause to be operated, a pedicab during the hours of darkness, without using battery-operated taillights mounted on the right and left respectively, at the same level on the rear exterior of the passenger compartment. Taillights shall be visible from all distances within five hundred (500) feet to the rear of the pedicab.

(c) It is unlawful for any person to operate, or cause to be operated, a pedicab in an unsafe condition.

(d) No driver shall stop to [pick up], or off-load passengers in any location, which would disrupt the flow of traffic.

(e) The operation will not appear to be designed to defraud any person.

(f) There will be notices in each vehicle stating the charges and routes or methods of operation.

(g) No drivers shall park in any restricted zones identified for other vehicles.
(Ord. 2012, ch. 2012-68, § 1(14-259), 12-6-12)

Sec. 14-245.5. Passenger seating requirements.

It is unlawful for any person to operate a pedicab while carrying a number of passengers that exceeds the number of available seats.
(Ord. 2012, ch. 2012-68, § 1(14-260), 12-6-12)

Sec. 14-246. Damage to public property.

It is unlawful for any person to operate a pedicab in a manner that results in damage to public property.
(Ord. 2012, ch. 2012-68, § 1(14-261), 12-6-12)

Sec. 14-246.6. Insurance requirements.

(a) It is unlawful for any person to operate a pedicab within the City of Providence, unless at the time of such operation the pedicab owner has, in effect, a valid policy of commercial general liability coverage with a pedicab endorsement on the vehicle.

(b) The insurance policy required to be issued shall be executed and delivered by a company with a rating of "A" in Best's Key Rating, the financial responsibility of which company has been approved by the city. The terms of the policy shall provide that the insurance company assumes financial responsibility in an amount not less than one million dollars ($1,000,000.00) per occurrence for bodily injuries and personal injuries or property damage caused by the operation of the pedicab, including, but not limited to, pedicabs operated by the officers, employees, agents, or lessees of the pedicab owner.

(c) A valid certificate of insurance issued by a company providing the required insurance policy shall be available for inspection at the owner's principal place of business. A certificate of insurance shall provide that the insurer will notify the license administrator of any cancellation of the owner's insurance policy and that the cancellation notice shall be in writing and such notice shall be sent by registered mail at least thirty (30) days before cancellation of the policy. The certificate shall include all of the following:

(1) The full name of the insurer;

(2) The name and address of the insured;

(3) The insurance policy number;

(4) The type and limits of coverage;

(5) The specific vehicles insured;

(6) The effective dates of the insurance policy; and

(7) The certificate issue date.

(Ord. 2012, ch. 2012-68, § 1(14-262), 12-6-12)

Sec. 14-247. Suspension or revocation of operating permit or decal.

Pedicab operating permits and pedicab decals may be suspended or revoked by the board of licenses at any time based upon any of the following grounds:

(1) The pedicab operator has failed to comply with the applicable provisions of this article, or the rules and regulations prescribed by the city council;

(2) The pedicab operator has been convicted of assaults; battery; resisting arrest; any felony involving force and violence; any misdemeanor or felony reckless driving or driving under the influence offense; or any crime reasonably related to the qualifications, functions, or duties of the passenger transport business or

the ability of the pedicab operator to safely transport passengers, unless five (5) years has elapsed from the date of discharge from a penal institution, or the successful completion of probation for such conviction;

(3) The pedicab operator has knowingly made a false statement or material fact, or knowingly failed to state a material fact in the application process for the pedicab operating permit or decal;

(4) The pedicab operator's ability to drive lawfully in Rhode Island has expired or has been suspended or revoked;

(5) When the police chief, and/or his/her designee, in the case of an operating permit or pedicab decal determines that the pedicab operator has engaged in criminal activity or any activity that constitutes a threat to public health, safety or welfare, a pedicab operating permit or decal may be summarily suspended or revoked.

(Ord. 2012, ch. 2012-68, § 1(14-263), 12-6-12)

Sec. 14-247.5. Enforcement authority.

The board of licenses is authorized to administer and enforce the provisions of this article, and may promulgate and enforce rules and regulations with respect thereto. In the interest of public safety, the commissioner of public safety and/or his/her designee may at any time cancel, alter, or limit any and all pedicab licenses based upon a determination that the pedicab operation creates a public safety risk or hazard, and that the changes imposed serve to reduce such risk or hazard and generally serve the public interest.

(Ord. 2012, ch. 2012-68, § 1(14-264), 12-6-12)

Secs. 14-248—14-250. Reserved.

ARTICLE XII. BODY WORKS SERVICES*

Sec. 14-251. License required.

(a) *Body works personnel license.* All personnel must obtain a body works personnel license issued by the board of licenses before performing or offering to perform any body works services for hire, compensation, or reward; before being compensated for any services or work in any establishment; and before conducting any type of business for reward, hire, or compensation within any establishment.

***Editor's note—**Ord. 2014, ch. 2014-55, approved Dec. 11, 2014, amended Art. XII in its entirety to read as set out herein. Former Art. XII, §§ 14-251—14-259, pertained to massage parlors and health clubs and derived from Ord. 1976, ch. 76-7, §§ 1—9, approved March 12, 1976.

(b) *Body works establishment license.* All persons, firms, corporations, or other entities who own, operate, conduct, or manage a location used to provide body works services or that holds themselves out as being engaged in the practice of body works services at any location in the City of Providence must obtain a body works establishment license for that location from the board of licenses before offering, engaging in, providing, or allowing body works services for hire, reward, or compensation at that location.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-252. Authority to promulgate rules.

The city council and the board of licenses is hereby authorized to formulate rules and regulations governing body work personnel and body work establishments and to establish fees for the issuance of licenses thereunder.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-253. License required and fee; nontransferability.

(a) *Body works personnel license.* The fee to obtain a body works personnel license and any renewal thereof shall be sixty dollars ($60.00). Said license is not transferable.

(b) *Body works establishment license.* The fee to obtain a body works establishment license and any renewal thereof shall be one hundred dollars ($100.00). Said license is not transferable.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-253.5. Expiration date of license.

Body works personnel licenses and body works establishment licenses shall automatically expire on the first day of July of each year. Applications for renewal must be submitted at least thirty (30) days prior to expiration date.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-254. Definitions.

For the purpose of this article:

Applicant means any person who applies for a license as required by this article. In the event the applicant is a nonnatural person (e.g., a corporation), the term applicant shall also include a natural person legally authorized to act on behalf of the applicant and the person submitting the application to the board of licenses pursuant to this article.

Approved means approved by the Providence Board of Licenses in accordance with accepted standards.

City means the City of Providence.

Board of licenses means the board of licenses for the City of Providence.

Body rubs and *body stimulations* mean the manipulation or conditioning of part or parts of the body by any means not regulated by R.I.G.L. § 23-20.8.

Body works and *body works services* shall encompass body rubs, body stimulations, spa services, and spa treatments.

Body works establishment license and *establishment license* mean the license required by subsection 14-251(b) of this article.

Body works personnel license and *personnel license* mean the license required by subsection 14-251(a) of this article.

City inspector means, but is not limited to, agents of the board of licenses, employees of the Providence Police Department and employees of any fire protection district or jurisdiction.

Establishment means the office, place of business, premises, or location where body works are offered or provided for hire, reward, or compensation.

Personnel means any person who performs body works services for hire, compensation, or reward or any person who is employed by or otherwise compensated by any establishment as defined herein or any person who is permitted by an establishment to conduct any type of business for reward, hire, or compensation within said establishment.

Spa services and *spa treatments* mean any service or treatment not regulated by R.I.G.L. § 23-20.8 provided to treat the skin or body for remedial, hygienic, relaxation, or other purposes, including, but not limited to, vapor, pool, baths, saunas, dry saunas, towel treatments, showers, body scrubs, and body showers.

Specified anatomical areas means human genitals, pubic regions, buttocks, or female breasts below a point immediately above the top of the areola.

Supervisor means the person or persons designated by an establishment to ensure compliance with this article.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-254.5. Exceptions and exclusions.

(a) *Persons excepted.* Physicians, nurses, physical therapists, school athletic trainers, chiropodists, chiropractors, massage therapist, barbers, hairdressers, manicurist, and estheticians duly licensed by the State of Rhode Island are exempt from the license requirements of subsection 14-251(a) of this chapter.

(b) *Establishment exceptions.* Hospitals, nursing and convalescent homes and other similar licensed institutions where massage and baths may be given are exempt from the license requirements of subsection 14-251(b) of this chapter. Also, any facility conducting services of a hospital, nursing and convalescent home, or other similar

institutions as determined by the Providence Board of Licenses, but due to some limiting factor is not subject to licensing, shall be similarly exempt from the license requirements of subsection 14-251(b) of this chapter. Additionally, any commercial establishment or business engaged in adult entertainment as defined by chapter 27, article X, section 1000 of Providence Code of Ordinances shall be exempt from the license requirements of subsection 14-251(b) of this chapter.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-255. Display of licenses.

(a) *Body works personnel license.* Every licensee shall carry his or her original personnel license at all times when on the premises of an establishment during the hours of operation. Additionally, every licensee shall display his or her original personnel license in a conspicuous manner whenever practicing or providing body works for hire, reward, or compensation.

(b) *Body works establishment license.* The body works establishment license shall be conspicuously displayed in a public area of the body works establishment at all times.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-255.5. Advertisement.

(a) No person, firm, partnership or corporation shall advertise any body works services unless such services are to be performed by a licensed body works personnel and said advertisement includes the body works personnel license number of the person or persons offering to provide the body works services.

(b) No person, firm, partnership or corporation shall advertise any body works establishment unless the advertisement includes the body works establishment license number.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-256. Required records.

Each body works establishment shall maintain records on the premises of all personnel. Said records shall be subject to inspection upon request by any city inspector. The records shall include the following:

(1) Each personnel's full legal name, date of birth, home address, and telephone number, employment position, date first employed, and, if applicable, date terminated.

(2) Each personnel's body works personnel license number and the expiration date of said license.

(3) All current personnel records and records of all personnel associated with the establishment for the previous one (1) year.

(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-256.5. Supervisor.

Each body works establishment shall designate at least one (1) supervisor who is responsible for the body work establishment's compliance with this article. Said supervisor shall agree to be on the premises of any body works establishment whenever the establishment is open to the public and shall agree to be responsible for cooperating with inspections or investigations conducted by the board of licenses, its agents, or any other person or persons authorized to inspect the establishment pursuant to this chapter or any other applicable section or chapter of the Providence Code of Ordinances or the Rhode Island General Laws. Upon the request of any authorized city inspector, the supervisor shall immediately provide personnel records that are required by this article to be maintained on the premises.

(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-257. Requirements for body works personnel licensure.

Before performing or offering to perform body works services for hire, compensation, or reward or conducting any type of business for hire, compensation, or reward within any establishment, all personnel shall submit an application to the board of licenses that includes the following information:

(1) The full legal name and any other names used by the applicant.

(2) The current residential address and telephone number of the applicant, and the two (2) previous residential addresses and business addresses, if any.

(3) The applicant's height, weight, eye color, and hair color.

(4) Written proof to the satisfaction of the board of licenses that the applicant is at least eighteen (18) years of age.

(5) The applicant's business, occupation, or employment history for the five (5) years immediately preceding the date of the application.

(6) The body works personnel or similar license history of the applicant; including whether such person, in previously operating in this city or another city, county or state under a license or permit, has had such license or permit revoked or suspended; the reasons and dates for the revocation or suspension.

(7) All criminal convictions, except minor traffic violations.

(8) The name(s) of the establishment at which the applicant plans to be employed or whether the applicant intends to provide body works services off site. If the

applicant intends to work at multiple businesses, he or she shall designate a primary address for receiving all correspondence related to his or her permit renewal.

(9) Such other identification and information as may be required by the board of licenses to verify the truth of the matters specified in this section, or any additional information required to show that the applicant has met the minimum qualifications to be licensed pursuant of this article.

(10) An application is deemed complete and validly filed when the board of licenses has received all information required by this code, the results of the department of justice criminal background check, and any fees associated with the application.

(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-257.5. Requirements for body works establishment licensure.

Before conducting any type of business for reward, hire, or compensation within any establishment, all persons, firms, corporations, or other entities who own, operate, or conduct said establishment shall first submit applications to the board of licensing that includes the following information:

(1) The full legal name and any other names used by the applicant. If the applicant is:

a. An individual, the individual shall state his/her full legal name;

b. A partnership, the name of the partnership shall be set forth exactly as shown in its partnership agreement, and the information required by this section shall be furnished for the responsible person;

c. A corporation, the name of the corporation shall be set forth exactly as shown in its articles of incorporation and the information required by this section shall be furnished for the responsible person.

(2) The current residential address and the telephone number of the applicant, and the two (2) previous residential addresses and business addresses, if any.

(3) Written proof to the satisfaction of the board of licenses that the applicant is at least eighteen (18) years of age.

(4) The applicant's occupation or employment history for the five (5) years immediately preceding the date of the application.

(5) If the applicant intends to practice body works at the proposed establishment, a copy of his or her body works personnel license.

(6) The body works establishment or similar business license history of the applicant; including whether such person, in previously operating in this city

or another city, county or state under a license or permit, has had such license or permit revoked or suspended; the reasons and dates for any such revocation or suspension.

(7) All criminal convictions, except minor traffic violations.

(8) A statement of how many personnel the applicant intends to employ at the establishment.

(9) The full name, address, telephone number of every Personnel who will be associated with the proposed establishment and a copy of every proposed personnel's body works personnel license.

(10) The full name, address, telephone number of each personnel who will be designated as the supervisor for the proposed establishment and a copy of each proposed supervisor's body works personnel license.

(11) A statement as to whether the applicant intends to provide body works services off site.

(12) Information demonstrating that the proposed establishment is consistent with the applicable land use designation and city zoning code.

(13) Written proof that the proposed establishment is compliant with all applicable health, safety, building, fire safety, and sanitary standards under the Providence Code of Ordinances and the Rhode Island General Laws.

(14) Where a building permit is necessary as a prerequisite to occupancy of a building, the body works establishment license application is not complete and validly filed until proof of submittal of the building permit application is provided.

(15) Such other identification and information as may be required by the board of licenses to verify the truth of the matters specified in this section, or any additional information required to show that the applicant has met the minimum qualifications to be licensed pursuant of this article.

(16) An application is deemed complete and validly filed when the board of licenses has received all information required by this code, the results of the department of justice criminal background check, and any fees associated with the application.

(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-258. Employee and independent contractor restrictions.

It is a violation of this article for any person, partnership, corporation, establishment, owner, or other entity to employ any person not holding a personnel license for the purpose of providing body works; to employ any person not holding a personnel

license to work in an establishment in any capacity; or to allow any person not holding a personnel license to provide or offer to provide body works services or otherwise conduct business in the establishment.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-258.5. Sanitation and decency code.

(a) All personnel who are engaged in the practice of body works shall wear garments which cover the entire body, exclusive of the head, neck, arms, legs, hands and feet. All personnel must be fully covered from a point not more than four (4) inches above the center of the kneecap to the base of the neck, excluding the arms. Such garments shall not be transparent and must be maintained in clean and sanitary condition.

(b) It is unlawful for any personnel to directly or indirectly touch or offer to touch a customer's specified anatomical areas.

(c) All customer's specified anatomical areas must be fully draped at all times while any personnel is in the same cubicle or room.

(d) No instruments or devices designed or used for direct application to the skin shall be applied directly to the skin unless sterilized. The part of the body being treated shall be covered with a clean towel or else the instrument shall be covered in a similar manner.

(e) Cleaning of hands. All personnel shall thoroughly cleanse his or her hands by washing with soap and hot water immediately before providing body works services.

(f) Working hours. No establishment shall offer or provide body works services between the hours of 10:00 p.m. and 8:00 a.m.

(g) Designation of name. No licensed person shall operate under any name or conduct his or her business under any designation not specified in his or her license.

(h) It is a violation of this article for any person, partnership, corporation, establishment, owner, or any other entity to conduct, cause to be conducted, or allow to be conducted any activity prohibited by R.I.G.L. tit. 11, chs. 11-1 et seq. in any establishment.

(i) Change of address. Every licensee shall notify the board of licenses not longer than ten (10) days after any change of address, home or business, or name. Any new license or amendment to an existing license required because of the foregoing shall be issued with a set fee charge at the discretion of the board of licenses.

(j) Inspections. City investigators may at any time with or without prior notice inspect an establishment and investigate the manner of the operation of the establishment to insure that it is operating in compliance with this article.

(k) Devices which can be utilized as an early warning system to alert personnel, supervisors, owners, or any other persons to the presence of law enforcement or local authorities on the premises are prohibited in establishments. Such prohibited devices include, but are not limited to, light or music dimmers, electronic detection devices, external or internal video equipment and alarm systems other than those used for fire alarms.

(l) Invalidation. If any section, paragraph, sentence, clause or phrase of these rules and regulations shall be decided invalid for any reason whatsoever, such decisions shall not affect the remaining portions of these regulations which shall remain in full force and effect, and to this end the provisions of these regulations are hereby declared severable.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-259. Facilities.

Every establishment shall meet the following standards:

(1) It shall be connected to the public sewerage system, or an approved private sanitary sewage system in the event public sewerage is not available.

(2) It shall be well lighted, well ventilated and properly heated when seasonally indicated.

(3) No room used by personnel or an establishment to provide body works may be used as a residence or sleeping quarters.

(4) There shall be an adequate supply of hot and cold running water at all times.

(5) There shall be approved toilet and washing facilities within the premises, readily available to the patrons and affording sufficient privacy.

(6) Adequate dressing rooms, toilets and washing facilities shall be provided.

(7) All rooms and furniture and equipment therein shall be kept clean at all times.

(8) There shall be installed a heat and smoke detecting system approved by the fire marshal of the fire department of Providence.

(9) There shall be adequate facilities for the cleaning and sterilizing to prevent infectious organisms.

(10) All rooms shall be arranged so as to afford adequate fire protection and shall have satisfactory means of egress in case of fire as approved by the building inspector and fire marshal.

(11) All equipment, instruments, devices, robes, sheets, blankets, pillow cases, wearing apparel, towels and other materials which may come in direct contact with the body shall be properly cleaned and sterilized.
(Ord. 2014, ch. 2014-55, 12-11-14)

Sec. 14-259.5. Enforcement.

(a) *Revocation of license.* Every license issued under the provisions of this article shall be subject to suspension or revocation by the board of licenses for the breach by the holder thereof of any provision of this article, any rules and regulations pertaining thereto which have been established by the board of licenses, or for any violation of any other provision of this Code of Ordinances, of the Rhode Island General Laws, or of any other applicable municipal, state, or federal rule or regulation. Revocation shall be in addition to any other penalty which may be imposed as a result of a violation.

(b) *Separate offense for each day.* Any person, firm, corporation, or other entity who violates any provision of this article shall be guilty of a separate offense for each and every day during any portion of which any such entity commits, continues, permits, or causes a violation thereof.

(c) *Public nuisance.* Any use or condition caused or permitted to exist in violation of any of the provisions in this article shall be and is hereby declared a public nuisance and shall, at the discretion of the city, be a cause of action pursuant to R.I.G.L. §§ 10-1-1 et seq.

(d) *Criminal penalties.* In addition to any applicable provision of this article or of the Rhode Island General Laws, any violation of this article may be prosecuted as a misdemeanor and punishable as follows: upon a first conviction, by a fine not exceeding one hundred dollars ($100.00); upon the second conviction within one (1) year of a prior conviction, by a fine not exceeding two hundred dollars ($200.00) and by imprisonment not exceeding thirty (30) consecutive days; and upon any subsequent conviction within one (1) year of two (2) prior convictions, by a fine not exceeding five hundred dollars ($500.00) and by imprisonment not exceeding one (1) year.

(e) *Civil injunction.* The violation of any provision of this article shall be and is hereby declared to be contrary to the public interest and shall, at the discretion of the city, create cause for injunctive relief.
(Ord. 2014, ch. 2014-55, 12-11-14)

ARTICLE XIII. MOTOR VEHICLE REPAIR BUSINESS*

Sec. 14-260. License required.

No person shall engage in the business of motor vehicle repair within the City of Providence unless such person shall be so licensed by the board of licenses of the city.
(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-261. Motor vehicle repair business defined.

Motor vehicle repair business shall be any place, establishment, garage, outdoor work area or work area enclosed within a building, including a used automobile dealership, where repairs are made or caused to be made to motor vehicles, including engines, carburetors, brakes, transmissions, muffler systems, electrical systems and general running gear of motor vehicles including auto body repairs, as well as the repair and/or replacement of motor vehicle tires. Motor vehicle repair business shall not include a new automobile dealership.
(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-262. License application; fee.

(a) Every applicant for a license required pursuant to section 14-260 above shall submit the following information, on a form provided by the board of licenses:

(1) Full name, including middle name, any aliases, address, date of birth, and social security number of applicant and/or principals of any applicant corporation.

(2) Location of the proposed motor vehicle repair business.

(3) Radius map and property owner list identifying owners of property within a two-hundred-foot radius of the motor vehicle repair business as appears on the most current property tax list certified by the tax assessor of the city.

(b) All applications shall be accompanied by an application fee of one hundred dollars ($100.00), plus the costs of advertising, posting and mailing as determined by the board of licenses.
(Ord. No. 2021-3, § 1, 3-11-21)

***Editor's note—**Ord. No. 2021-3, § 1, adopted March 11, 2021, repealed the former art. XIII, §§ 14-260—14-268, 14-270—14-275, and enacted a new art. XIII as set out herein. The former art. XIII pertained to similar subject matter and derived from Ord. 1992, ch. 92-42, § 1, adopted Nov. 12, 1992.

Sec. 14-263. Hearing and notice.

The board of licenses shall hold a public hearing on any application for a motor vehicle repair business license;

(1) Notice of such hearing shall be published in a newspaper of general circulation in the city once a week for at least two (2) weeks prior to the public hearing.

(2) Notice of said hearing shall also be mailed to all owners of property within a two-hundred-foot radius of the proposed site of the motor vehicle repair business as listed on the most current property tax list certified by the tax assessor of the city.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-264. Zoning approval.

Prior to holding a public hearing on applicant's license, the board of licenses shall submit the application for review to the director of the department of inspection and standards. The director of inspection and standards shall report to the board of licenses whether or not a motor vehicle repair business is allowed in the proposed location pursuant to the zoning ordinance of the city.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-265. Fire safety regulations.

Prior to holding a public hearing on applicant's license, the board of licenses shall submit the application for review to the chief of the fire department. The chief of the fire department shall report to the board of licenses whether or not the proposed motor vehicle repair business meets all applicable fire code and fire safety regulations.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-266. Criminal records.

Prior to holding a hearing on applicant's license, the board of licenses shall submit the application to the chief of police for review. The chief of police shall report to the board of licenses whether or not the applicant or any principals of the applicant's corporation have a criminal record.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-267. Requirements for license approval.

No license shall be granted for a motor vehicle repair business unless the following conditions are met:

(1) The motor vehicle repair business must be allowed in the proposed location pursuant to the zoning ordinances of the city.

(2) The motor vehicle repair business must be substantially operated within a building.

(3) The motor vehicle repair business must meet all applicable fire code and fire safety regulations.

(4) The motor vehicle repair business must be operated in a lawful manner, in conformity with all applicable federal, state and municipal laws, statutes, ordinances and regulations.

(5) The criminal record(s) of the applicant(s) and/or principal(s) of the applicant corporation shall be considered.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-268. Renewal of license.

All licenses to engage in a motor vehicle repair business must be renewed annually.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-269. Disposal of tires.

Any licensed motor vehicle repair business shall dispose of all used motor vehicle tires handled by the business by delivering said tires to a facility operated by the Rhode Island Resource Recovery Corporation designated for that purpose, or to a privately operated tire storage or tire recycling or recovery facility licensed by the director of environmental management for that purpose, or by delivery for transportation to an out-of-state recycling facility as required by R.I.G.L. § 23-63-2. All licensed motor vehicle repair businesses shall, upon request, provide receipts for the prior twelve (12) months from the date of the request that evidence the proper disposal of all used motor vehicle tires in compliance with this section 14-269.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-270. Display of license.

All licenses granted under the provisions of this article shall be kept on display in a conspicuous place within the motor vehicle repair business so licensed.

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-271. Annual license fee.

The annual fee for all licenses required by section 14-260 shall be one hundred dollars ($100.00).

(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-272. Suspension or revocation.

Any person licensed to engage in or operate a motor vehicle repair business who shall violate any of the conditions or restrictions imposed upon the issuance of such license, or who shall have submitted false information in the application to obtain such license, or who shall violate any applicable federal, state or municipal laws, statutes, ordinances or regulations in the operation of such motor vehicle repair business, shall suffer suspension or revocation of said license; in addition, said license may be revoked at any time for just cause other than those specified above, including violation of other provisions of the Code of Ordinances and/or any federal or state laws.
(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-273. Violation.

Any person engaging in or operating a motor vehicle repair business without first obtaining a license pursuant to this article shall be subjected to a fine of five hundred dollars ($500.00) or imprisonment not exceeding six (6) months for each offense.
(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-274. Enforcement.

The provisions of this article shall be enforced by the police department and the Rhode Island State Police.
(Ord. No. 2021-3, § 1, 3-11-21)

Sec. 14-275. Severability.

If any provision of this article, or application thereof to any person or circumstances, is held unconstitutional, illegal, or otherwise invalid, the remaining provisions of this chapter and the application of such provisions to other persons or circumstances, other than those to which it is held invalid, shall not be affected thereby.
(Ord. No. 2021-3, § 1, 3-11-21)

Secs. 14-276—14-284. Reserved.

ARTICLE XIV. VALET PARKING

Sec. 14-285. Petition to board of licenses.

Any business operating in the city which determines that "valet" style parking is in its interest, may petition to the board of licenses (the "board") for valet parking. The board shall notify the traffic engineer and the commissioner of public safety or his or her designee of the pendency of the petition. Upon receipt of said application,

the traffic engineer and the commissioner of public safety shall review the available curbside parking adjacent to and in the general vicinity of the applicant's premises and shall, based upon that review, forward a recommendation to the board.
(Ord. 2003, ch. 03-22, § 1, 3-24-03)

Sec. 14-286. Review of application.

The board shall thereupon review the application and shall consider the totality of the circumstances surrounding said petition. The review shall include, but shall not be limited to:

(1) The recommendations of the traffic engineer and the police chief;

(2) The current and anticipated parking conditions in the immediate vicinity of the applicant;

(3) The availability of curbside parking immediately adjacent to the premises;

(4) The availability of curbside parking to the public in general;

(5) The number of public curbside parking spaces which will be lost should such application be granted; and

(6) Such other factors that the board shall deem significant in making this assessment and in promoting the public safety and the efficacious flow of pedestrian and vehicular traffic.

(Ord. 2003, ch. 03-22, § 2, 3-24-03)

Sec. 14-287. Creation of area for receiving and discharging of persons.

Upon approval by the board, there shall be created a separate area for the receiving and discharging of persons a long the section of roadway adjacent to the petitioner's curb. Parking shall be prohibited in this area, and vehicles remaining in the area for a period longer than is reasonably necessary to receive or discharge passengers, shall be issued a violation and towed by the police department. This area shall be used by the applicant only in the manner contemplated herein. This area shall be clearly marked and signed by the traffic engineer.
(Ord. 2003, ch. 03-22, § 3, 3-24-03)

Sec. 14-288. Annual renewal.

The permit created herein, if granted, shall be valid for one (1) year from the date of its issuance, but may be renewed annually at a fee of fifty ($50.00) dollars.
(Ord. 2003, ch. 03-22, § 4, 3-24-03)

Sec. 14-289. Permits subject to revocation.

Any permit granted or renewed hereunder shall, after hearing, be subject to revocation by the board, either by complaint or upon its own motion, in the event that:

(1) The board determines that the grantee has made any misrepresentation in the application for the same;

(2) The grantee has misused or allowed the misuse of the permit granted;

(3) Continued, use of the permit constitutes a public nuisance; and

(4) Upon the whole of the circumstances the public health, safety and welfare would be advanced by the revocation.

(Ord. 2003, ch. 03-22, § 5, 3-24-03)

Sec. 14-290. Cost.

The cost to petition herein shall be fifty dollars ($50.00).
(Ord. 2003, ch. 03-22, § 6, 3-24-03)

Sec. 14-291. Stopping/standing in permitted valet parking area.

No person shall stop or stand his/her motor vehicle at any permitted valet style parking area except for the receipt and/or discharge of passengers in association with the business of the permittee.

Any person found guilty of a violation of this section shall be punished with a fine of not less than fifty dollars ($50.00) and the vehicle shall be towed.
(Ord. 2003, ch. 03-22, § 7, 3-24-03)

Sec. 14-292. Use of area for valet parking with permit.

No person shall attempt to utilize any area in the public way as valet-style parking without first having obtained a permit for the same.

Any person found guilty of a violation of this section shall be punished with a fine of not less than one hundred dollars ($100.00).
(Ord. 2003, ch. 03-22, § 8, 3-24-03)

Sec. 14-293. Obstruction of public way.

No person shall, whether or not a permit has been obtained, block or obstruct the public way by placement of any sign, board, or traffic control device.

Any person found guilty of a violation of this section shall be punished with a fine of not less than one hundred dollars ($100.00).
(Ord. 2003, ch. 03-22, § 9, 3-24-03)

Secs. 14-294—14-299. Reserved.

ARTICLE XV. TOBACCO DEALERS

Sec. 14-300. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Board of licenses shall mean the Providence Board of Licenses as established by section 1102 of the Providence Home Rule Charter of 1980.

Cigarette means any product that contains nicotine, is intended to be burned or heated under ordinary conditions of use, and consists of or contains:

(1) Any roll of tobacco wrapped in paper or in any substance not containing tobacco;

(2) Tobacco, in any form, that is functional in the product, which, because of its appearance, the type of tobacco used in the filler, or its packaging and labeling, is likely to be offered to, or purchased by, consumers as a cigarette; or

(3) Any roll of tobacco wrapped in any substance containing tobacco which, because of its appearance, the type of tobacco used in the filler, or its packaging and labeling, is likely to be offered to or purchased by consumers as a cigarette described in clause (1) of this definition.

Compliance check violation means any sale of tobacco products to a person who is less than eighteen (18) years of age.

Coupon means any card, paper, note, form, statement, ticket or other issue distributed for commercial or promotional purposes to be later surrendered by the bearer so as to receive an article, service or accommodation without charge or at a discount price.

Listed or nondiscounted price shall mean the higher of the price listed for a tobacco product on its package or the price listed on any related shelving, posting, advertising or display at the place where the tobacco product is sold or offered for sale plus all applicable taxes if such taxes are not included in the stated price, and before the application of any discounts or coupons.

Tobacco products shall mean any substance containing tobacco leaf, including, but not limited to, cigarettes, cigars, pipe tobacco, snuff, chewing tobacco, dipping tobacco, orbs, sticks, dissolvable tobacco products, and electronic cigarette cartridges; pro-

vided, however, that tobacco products shall not include any product that has been approved by the United States Food and Drug Administration for use as a medical treatment to reduce and eliminate nicotine or tobacco dependence.

Vending machines means any mechanical, electric or electronic self-service device which, upon insertion of money, tokens, or any other form of payment, dispenses tobacco products.
(Ord. 2011, ch. 2011-13, § 1, 4-13-11; Ord. 2012-7, ch. 2012-7, § 1, 1-9-12; Ord. 2012, ch. 2012-14, § 1, 2-20-12)

Sec. 14-301. License required.

It shall be unlawful to sell, distribute, deliver, offer for sale, or give away, or to possess with the intention of selling, distributing, delivering, offering for sale, or giving away tobacco products within the city without having first obtained a tobacco dealer's license pursuant to this article. Such license shall be in addition to any other license required by state and/or federal law. Failure to obtain a license shall result in a fine of five hundred dollars ($500.00). Fee for the city license shall be one hundred dollars ($100.00) per year. All licenses granted under the provisions of this article shall be displayed in a conspicuous place within the business so licensed.
(Ord. 2011, ch. 2011-13, § 1, 4-13-11)

Sec. 14-302. License application.

A Providence tobacco dealer's license shall be made in writing to the board of licenses together with an application fee of one hundred dollars ($100.00). Any license issued pursuant to this article shall be issued by the board of licenses for up to twelve (12) months. All tobacco dealer's licenses shall expire together on the last day of December. Any individual, corporation, partnership, retailer, or any other organization shall obtain a valid state tobacco license and provide proof thereof prior to approval for a Providence tobacco dealer's license.
(Ord. 2011, ch. 2011-13, § 1, 4-13-11)

Sec. 14-303. Prohibitions applicable to license holders, their employees and agents.

A person who holds a license issued under this article, or any employee or agent of same, is prohibited from selling, distributing, delivering, offering for sale, or giving away, or possessing with the intention of selling, distributing, delivering, offering for sale, or giving away tobacco products within the city to any individual that is under eighteen (18) years of age, whether said tobacco is sold, distributed or delivered in person or via vending machine.

A person who holds a license issued under this article, or any employee or agent of same, is prohibited from selling as a single cigarette sale, or as a sale of cigarettes by the individual piece, known as "loosies."

No person who holds a license issued under this article, nor any employee or agent of same, shall:

(1) Accept or redeem, offer to accept or redeem, or cause or hire any person to accept or redeem or offer to accept or redeem any coupon that provides any tobacco products without charge or for less than the listed or nondiscounted price; or

(2) Accept or redeem, offer to accept or redeem, or cause or hire any person to accept or redeem or offer to accept or redeem any coupon that provides any cigarettes without charge or for less than the listed or nondiscounted price; or

(3) Sell tobacco products to consumers through any multi-pack discounts (e.g., "buy-two-get-one-free") or otherwise provide or distribute to consumers any tobacco products without charge or for less than the listed or nondiscounted price in exchange for the purchase of any other tobacco product; or

(4) Sell cigarettes to consumers through any multi-pack discounts (e.g., "buy-two-get-one-free") or otherwise provide or distribute to consumers any cigarette without charge or for less than the listed or nondiscounted price in exchange for the purchase of any other cigarette.

(Ord. 2011, ch. 2011-13, § 1, 4-13-11; Ord. 2012, ch. 2012-7, § 2, 1-9-12; Ord. 2012, ch. 2012-14, § 2, 2-20-12)

Sec. 14-304. Suspension or revocation of license—Fines and costs.

The Providence Police Department shall enforce the provisions of this article. All tobacco dealer's license holders shall be subject to a compliance check at least twice a year with violators being checked more frequently until two (2) consecutive checks are completed without a violation.

If an alleged violation occurs, the Providence Police Department shall issue a citation that will require the tobacco dealer's license holder to appear in for a show cause hearing before the board of licenses. If, after a hearing, the board finds that a violation has occurred, the board shall impose a civil fine of two hundred fifty dollars ($250.00) for the first offense, three hundred fifty dollars ($350.00) for the second offense, and five hundred dollars ($500.00) for any subsequent offense. Additionally, the board may suspend or revoke the license. If a holder of a tobacco dealer's license maintains said license for thirty-six (36) consecutive months without a violation, any new violation will be treated as a first offense.

It is the intent of this legislation that all fines collected by the city hereunder shall be used by the board of licenses and the police department for the purpose of conducting tobacco compliance checks.

(Ord. 2011, ch. 2011-13, § 1, 4-13-11)

Sec. 14-305. Use of premises during license suspension.

During the period of any suspension of a tobacco dealer's license, the holder of the tobacco dealer's license shall remove all tobacco products from the retail display area of the location and secure them in a locked area for the duration of the suspension. If, at any time during the suspension period, the license holder is found to be selling, distributing, or delivering any tobacco products, the license shall be revoked.
(Ord. 2011, ch. 2011-13, § 1, 4-13-11)

Sec. 14-306. Vending machines.

Businesses which have vending machines shall be subject to the same fines and penalties as described in section 14-304 of this article. In the event that a tobacco dealer's license is suspended or revoked, then the vending machine shall be removed from the licensed location for the period of suspension or revocation.
(Ord. 2011, ch. 2011-13, § 1, 4-13-11)

Sec. 14-307. Severability.

If any provision of this article, or application thereof to any person or circumstances, is held unconstitutional, illegal, or otherwise invalid, the remaining provisions of this article and the application of such provisions to other persons or circumstances, other than those to which it is held invalid, shall not be affected thereby.
(Ord. 2011, ch. 2011-13, § 1, 4-13-11)

Sec. 14-308. Definitions.

Whenever used in this article, the following terms shall be defined as follows:

Cigarette means any product that contains nicotine, is intended to be burned or heated under ordinary conditions of use, and consists of or contains:

(1) Any roll of tobacco wrapped in paper or in any substance not containing tobacco;

(2) Tobacco, in any form, that is functional in the product, which, because of its appearance, the type of tobacco used in the filler, or its packaging and labeling, is likely to be offered to, or purchased by, consumers as a cigarette; or

(3) Any roll of tobacco wrapped in any substance containing tobacco which, because of its appearance, the type of tobacco used in the filler, or its packaging and labeling, is likely to be offered to or purchased by, consumers as a cigarette described in clause (1) of this definition.

Characterizing flavor means a distinguishable taste or aroma, other than the taste or aroma of tobacco, menthol, mint or wintergreen, imparted either prior to or during consumption of a tobacco product or component part thereof, including, but not limited to, tastes or aromas relating to any fruit, chocolate, vanilla, honey, candy,

cocoa, dessert, alcoholic beverage, herb or spice and concepts such as spicy, arctic, ice, cool, warm, hot, mellow, fresh, and breeze; provided, however, that no tobacco product shall be determined to have a characterizing flavor solely because of the use of additives or flavorings or the provision of ingredient information.

Component part means any element of a tobacco product, including, but not limited to, the tobacco, filter and paper, but not including any constituent.

Constituent means any ingredient, substance, chemical or compound, other than tobacco, water or reconstituted tobacco sheet, that is added by the manufacturer to a tobacco product during the processing, manufacture or packing of the tobacco product. Such term shall include a smoke constituent.

Flavored tobacco product means any tobacco product or any component part thereof that contains a constituent that imparts a characterizing flavor. A public statement or claim made or disseminated by the manufacturer of a tobacco product, or by any person authorized or permitted by the manufacturer to make or disseminate public statements concerning such tobacco product, that such tobacco product has or produces a characterizing flavor shall constitute presumptive evidence that the tobacco product is a flavored tobacco product.

Person means any natural person, partnership, firm, joint stock company, corporation, or employee thereof, or other legal entity.

Smoke constituent means any chemical or chemical compound in mainstream or sidestream tobacco smoke that either transfers from any component of the tobacco product to the smoke or that is formed by the combustion or heating of tobacco, additives or other component of the tobacco product.

Smoking bar has the meaning as such term is defined in R.I.G.L. § 23-20.10-2(15).

Tobacco product means any product containing tobacco or nicotine, including, but not limited to, cigars, pipe tobacco, snuff, chewing tobacco, dipping tobacco, bidis, snus, dissolvable tobacco products, and electronic cigarette cartridges; provided, however, that such term shall not include:

(1) Cigarettes, including those cigarettes subject to the special rule for cigarettes relating to characterizing flavors of the Federal Family Smoking and Tobacco Prevention Act; and

(2) Any product that has been approved by the U.S. Food and Drug Administration, pursuant to its authority over drugs.

(Ord. 2012, ch. 2012-6, § 1, 1-9-12; Ord. 2012, ch. 2012-13, 2-20-12)

Sec. 14-309. Sale of flavored tobacco products prohibited.

It shall be unlawful for any person to sell or offer for sale any flavored tobacco product to a consumer, except in a smoking bar.

(Ord. 2012, ch. 2012-6, § 1, 1-9-12; Ord. 2012, ch. 2012-13, 2-20-12)

Sec. 14-310. Enforcement and penalties.

The Providence Police Department shall enforce the provisions of this article. If an alleged violation occurs, the Providence Police Department shall issue a citation that will require the tobacco dealer's license holder to appear for a show cause hearing before the board of licenses. If, after a hearing, the board finds that a violation has occurred, the board shall impose a civil fine of two hundred fifty dollars ($250.00) for the first offense, three hundred fifty dollars ($350.00) for the second offense, and five hundred dollars ($500.00) for any subsequent offense. Additionally, the board may suspend or revoke the license. If a holder of a tobacco dealer's license maintains said license for thirty-six (36) consecutive months without a violation, any new violation will be treated as a first offense.

It is the intent of this legislation that all fines collected by the city hereunder shall be used by the board of licenses and the police department for the purpose of conducting tobacco compliance checks.
(Ord. 2012, ch. 2012-6, § 1, 1-9-12; Ord. 2012, ch. 2012-13, 2-20-12)

Secs. 14-311—14-330. Reserved.

ARTICLE XVI. MANAGEMENT AND OPERATIONS*

Sec. 14-331. License administrator.

There shall exist a license administrator, appointed by the mayor and who shall serve at the pleasure of the mayor. The license administrator shall have the status of a department head and shall manage the office of the board of licenses, direct licensing staff in their day-to-day duties, ensure that license application procedures maintain compliance with applicable laws, maintain a record of license violations, schedule pre-hearing conferences, coordinate the operation of the office of the board of licenses with other city departments, fully prepare the board for all matters which appear on the agenda, consult with the pre-hearing officer, oversee the enforcement of penalties and collection of fines, implement all changes to city ordinances and/or regulations, ensure compliance with the State of Rhode Island's Open Meetings Act, and perform any other duty which may from time to time be delegated to the license administrator by the board of licenses provided, however, that the license administrator does not become involved in the substantive decision-making of the board of licenses.
(Ord. No. 2017-4, § 1, 2-10-17)

*__Editor's note—__Ord. No. 2017-4, § 1, adopted Feb. 10, 2017, enacted provisions set out as §§ 14-311—14-318, however, to allow for reserved sections preceding this article, said provisions have been redesignated as §§ 14-331—14-338, at the discretion of the editor.

Sec. 14-332. Pre-hearing officer.

There shall exist in the office of the board of licenses a pre-hearing officer who shall report to the license administrator. The pre-hearing officer shall be responsible for matters that do not require a full hearing before the board of licenses and shall schedule a pre-hearing conference prior to a show cause hearing, unless good cause exists or unless it is impractical to schedule a pre-hearing conference prior to the show cause hearing. Nothing in this section shall be construed to prevent the board of licenses from acting on such matters brought to a pre-hearing conference or from having final decision-making authority over matters brought to a pre-hearing conference.
(Ord. No. 2017-4, § 1, 2-10-17)

Sec. 14-333. Information technology specialist.

There shall exist in the office of the board of licenses an information technology specialist who shall report to the license administrator. The information technology specialist shall oversee and be responsible for all website, database, and public information tasks in the office of the board of licenses, including but not limited to updating and maintaining a user-friendly website for the board of licenses.
(Ord. No. 2017-4, § 1, 2-10-17)

Sec. 14-334. Record of licensing proceedings.

All board of licenses hearings shall have a full and accurate record of the proceedings, whether by stenographic means or recording. All records of the proceedings shall be accessible to the public either through the office of the board of licenses or online immediately following the conclusion of a hearing. Additionally, a complete, accurate, and up-to-date record of the history of a licensee's violations, fines, penalties, and decisions before the board of licenses and department of business regulation shall be available to the board of licenses and the public prior to any hearing or meeting in which said licensee appears on the agenda.
(Ord. No. 2017-4, § 1, 2-10-17)

Sec. 14-335. Required training of board members and staff.

(a) *New members of the board*. Any new member of the board of licenses shall be required to receive professional certified training on all relevant state statutes, city ordinances, and relevant rules and regulations, as well as ethics training and training on the board of licenses' operations and procedures manual prior to their first meeting as a member of the board.

(b) *Mandatory annual training*. All members of the board of licenses and all paid staff of the office of the board of licenses shall be required to receive annual training in ethics and all relevant policies, procedures, laws, and ordinances.
(Ord. No. 2017-4, § 1, 2-10-17)

Sec. 14-336. Annual report.

It shall be the duty of the chair of the board of licenses to submit an annual report to the mayor and the city council no later than January 31 of each calendar year. The annual report shall include, but shall not be limited to:

(1) A breakdown of all licenses applications, approvals, transfers, and revocations from the past calendar year.

(2) A breakdown of all complaints, violations, fines, and penalties issued in the past calendar year by licensee.

(3) A breakdown of all appeals of board of licenses decisions, including outcomes.

(4) All agendas from board of licenses meetings and hearings from the past calendar year.

(5) A breakdown of any changes made to the board of licenses' operations and procedures manual, with explanations, during the last calendar year.

(6) An accounting of all fees and fines collected in the past calendar year, including any outstanding or unpaid fees and fines.

(7) Any suggested changes to state statutes or city ordinances the members of the board feel would improve the operations of the board of licenses or the office of the board of licenses.

Additionally, annual reports shall be available to the public online and through the office of the board of licenses.
(Ord. No. 2017-4, § 1, 2-10-17)

Sec. 14-337. Decorum and professional conduct.

All parties, attorneys, witnesses, and other persons at a hearing shall conduct themselves in a manner consistent with the standards of decorum commonly observed in any courtroom. Where such decorum is not observed, the board chair may take appropriate action, including ejectment or adjournment, if necessary.
(Ord. No. 2017-4, § 1, 2-10-17)

Sec. 14-338. Rules of evidence.

The Superior Court rules of evidence for civil cases, as interpreted and employed by the department of business regulation in administrative hearings, shall be followed, and shall be implemented by the chair of board of licenses in consultation with the legal counsel to the board of licenses, who shall be in attendance at all hearings to provide legal advice and guidance.
(Ord. No. 2017-4, § 1, 2-10-17)

ARTICLE XVII. NEIGHBORHOOD EVENTS

Sec. 14-339. Policy.

The COVID-19 pandemic has had a devastating impact on the hospitality industry in the city. As the city begins to climb out from the pandemic it is imperative that the city work with local neighborhood businesses and organizations to provide avenues for rebuilding our local economy. The purpose of this article is to assist local event series by standardizing the delivery of city services and committing all city departments to a spirit of cooperation with local events that are integral to the social and economic fabric of our city's neighborhoods.
(Ord. No. 2022-31, § 1, 6-27-22)

Sec. 14-340. Eligibility of neighborhood events.

Any non-profit community or neighborhood organization located within the city may petition the board of licenses for a determination of eligibility of their event(s) to receive city services as outlined in section 14-341. The petition shall include an approval letter issued by the department of arts, culture, and tourism as well as an anticipated list of all city services that may be necessitated by such event(s).

Upon receipt of a complete petition, the board of licenses may make the finding that the organization is eligible to receive the services as outlined in section 14-341, provided that such finding is made during a public meeting in compliance with the state's open meetings laws.
(Ord. No. 2022-31, § 1, 6-27-22)

Sec. 14-341. City services for neighborhood events.

All neighborhood events approved pursuant to this article shall receive the following city services:

(1) Police and fire details as necessitated by the approved petition, shall be provided with no charge to the applicant outside of the administrative costs of providing such services;

(2) The assistance of the department of public works in street closures for the event dates and times as outlined in the approved petition;

(3) The full cooperation of all other city departments as necessitated by the approved petition at no charge to the applicant outside of the administrative costs of providing such services.

The reduced costs outlined in this section shall only apply to the services outlined in the petition approved by the board of licenses. All changes made subsequent to board approval shall require additional authorization or will be charged at full cost.
(Ord. No. 2022-31, § 1, 6-27-22)

ARTICLE XVIII. SHORT-TERM LENDERS

Sec. 14-342. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Short-term lender means an individual or entity engaged in the business of making or arranging short-term loans, other than a state or federally chartered bank, savings bank, or credit union.

Short-term loan means a loan to a borrower which has a principal amount, or an advance on a credit limit, of five hundred dollars ($500.00) or less and requires a minimum repayment within sixty (60) days of loan origination or credit advance of more than twenty-five (25) percent of the principal balance or credit advance.
(Ord. No. 2024-25, § 1, 5-24-24)

Sec. 14-343. License required.

It shall be unlawful for any person to engage in business as a short-term lender in the city, unless that person shall have procured a license therefor from the bureau of licenses.
(Ord. No. 2024-25, § 1, 5-24-24)

Sec. 14-344. License fee.

The sum of two hundred fifty dollars ($250.00) shall be the annual charge for each short-term lender license.
(Ord. No. 2024-25, § 1, 5-24-24)

Sec. 14-345. Posting and display of license.

Every person licensed under the provisions of this article shall display the license in a conspicuous place in the operated premises.
(Ord. No. 2024-25, § 1, 5-24-24)

Sec. 14-346. Transferability of license.

No license to engage in business as a short-term lender shall operate to authorize any person other than the person named therein to act thereunder, and no such license shall be transferable.
(Ord. No. 2024-25, § 1, 5-24-24)

Sec. 14-347. Books and records to be kept.

A person licensed as a short-term lender shall keep and maintain appropriate books and records pertaining to the operation of such business, and such books and records at all times shall be open to the inspection of the chief of police, deputy chief of police, or any other person by them or either of them authorized.
(Ord. No. 2024-25, § 1, 5-24-24)

Sec. 14-348. Revocation of license.

Any person licensed to engage in business as a short-term lender, who shall violate any of the conditions or restrictions imposed upon the issuance of such license or any rules and regulations governing the conduct of short-tern lenders, established by the bureau of licenses or by the state, shall suffer revocation; in addition, such license may be revoked at any time for causes other than those above specified, including violation of any other provision of this Code of Ordinances. Said penalties shall be in addition to any other penalty which may be imposed as a result of violation of this Code of Ordinances.
(Ord. No. 2024-25, § 1, 5-24-24)

Chapter 15

MOTOR VEHICLES AND TRAFFIC*

Article I. In General

Sec. 15-1. City vehicles to carry name of city.
Sec. 15-2. Penalties for traffic violations.
Sec. 15-3. Payment of fines—Generally.
Sec. 15-4. Same—Payment by mail.
Sec. 15-5. Same—Effect of payment.
Sec. 15-6. Same—Notice requirements.
Sec. 15-7. Effect of multiple violations relating to stopping, standing, parking or operation.
Sec. 15-8. Failure to comply.
Sec. 15-9. Notification of the administrative adjudication division of the State of Rhode Island.
Sec. 15-10. Liability insurance for bus shelters.
Sec. 15-11. Residential parking/standing of certain commercial vehicles.
Sec. 15-12. Issuance of parking permits on city streets.
Sec. 15-13. Parking meters—Hours and rates.
Sec. 15-14. Parking meters—Multi-space parking meters and spaces.
Sec. 15-15. Special parking areas for motorcycles.
Sec. 15-16. Blocking intersections and crosswalks.
Sec. 15-17. Designation of intersections subject to section 31-15-12.2 of Rhode Island General Laws.
Sec. 15-17.1. Reserved.

Article II. Impoundment of Vehicles

Sec. 15-18. Removal or impounding of illegally parked vehicles.
Sec. 15-19. Removal of disabled or abandoned vehicles on public highway.
Sec. 15-20. Moving, altering, repairing motor vehicle removed from highway.

***Cross references—**Traffic engineering department, § 2-151 et seq.; transporting dead animals, § 4-7; transportation of high explosives, § 9-64; keeping vehicles using naphtha, gasoline, other hydrocarbons, § 9-68; establishment, designations of hospital quiet zones, §§ 12-8, 12-9; regulation of commercial parking lots, § 14-64 et seq.; sounding horn or signal device on vehicles, § 16-11; riding and driving in parks, § 18-4 et seq.; operation of railroads, § 19-1 et seq.; bridges, § 23-154 et seq.; regulation of vehicles for hire generally, § 24-1 et seq.; regulation of sound trucks, § 24-97 et seq.

State law references—Scope of ordinances which may be enacted § 45-6-1 Gen. Laws 1956; regulation of motor and other vehicles, Title 31, Gen. Laws 1956.

Sec. 15-21. Duty to regain possession of vehicle.
Sec. 15-22. Reserved.
Sec. 15-23. Use of towing service companies by police department.
Sec. 15-24. Violations by towing service company, owner or operator of premises to which vehicle is removed.
Sec. 15-25. Rules and regulations to implement article.
Sec. 15-26. Towing, or impoundment or immobilization of vehicles of scofflaws.
Sec. 15-27. Post-seizure hearings for towed or impounded vehicles applicable to other sections of the Code of Ordinances.
Sec. 15-28. Accident-chasing by tow companies, auto body or auto repair companies.
Secs. 15-29—15-35. Reserved.

Article III. Storage of Dismantled, Junked or Abandoned Vehicles

Sec. 15-36. Definitions.
Sec. 15-37. Storage license required.
Sec. 15-38. Determination of violation.
Sec. 15-39. Action upon determination of violation.
Sec. 15-40. Failure to remove upon proper notice.
Sec. 15-41. Redemption of vehicle required.
Sec. 15-42. Records required.
Sec. 15-43. Arrangement of junked or salvaged vehicles.
Secs. 15-44—15-53. Reserved.

Article IV. Bus Lanes

Sec. 15-54. Purpose of provisions.
Sec. 15-55. Establishment on portion of Washington Street.
Sec. 15-56. Establishment on portion of Weybosset Street.
Sec. 15-57. Establishment on portion of Empire Street.
Sec. 15-58. Signs, markings, other devices to designate lanes.
Sec. 15-59. Removal of vehicles parked, standing in violation of article.
Secs. 15-60—15-69. Reserved.

Article V. Bicycles

Sec. 15-70. Speed of bicycles.
Sec. 15-71. Operating bicycles abreast.
Sec. 15-72. Mode of riding bicycles.
Sec. 15-73. Carrying passenger on bicycle.
Sec. 15-74. Signal bells on bicycles.
Sec. 15-75. Renting bicycles to minors.
Secs. 15-76—15-85. Reserved.

Article VI. Municipal Garage

Sec. 15-86. General authority of director of public property.
Sec. 15-87. Vehicles stored in municipal garage.
Sec. 15-88. Maintenance of vehicles; accounting; charging department with expense items.
Sec. 15-89. Municipal garage revolving fund; approval, purpose.
Sec. 15-90. Action upon charges for labor, material, supplies and services.
Sec. 15-91. Reimbursement of municipal garage revolving fund.
Sec. 15-92. Statement of value of material on hand.
Secs. 15-93—15-100. Reserved.

Article VII. Snowmobiles and Recreational Off-Road Vehicles

Sec. 15-101. Definitions.
Sec. 15-102. Registration.
Sec. 15-103. Operations.
Sec. 15-104. Enforcement.
Sec. 15-105. Penalty.
Secs. 15-106, 15-107. Reserved.

Article VIII. Reasonable Speeds

Sec. 15-108. Reasonable and prudent speeds.
Sec. 15-109. Conditions requiring reduced speed.
Secs. 15-110—15-117. Reserved.

Article IX. Fire Lanes

Sec. 15-118. Designation of fire lanes on private property.
Secs. 15-119, 15-120. Reserved.

Article X. Automated Red Light Enforcement

Sec. 15-121. Definitions.
Sec. 15-122. Penalty.
Sec. 15-123. Proof; certificate.
Sec. 15-124. Penalty; effect of a conviction.
Sec. 15-125. Summons.
Sec. 15-126. Private entities.
Sec. 15-127. Installation and signage.
Sec. 15-128. Baseline and warning period; monitoring.
Sec. 15-129. Requirements for traffic-control signals.
Sec. 15-130. Security of records.

Article XI. Motorized Vehicles

Sec. 15-131. Motorized devices.
Sec. 15-132. Low speed vehicles.
Sec. 15-133. Definition of terms.
Secs. 15-134—15-140. Reserved.

Article XII. Weight Limits

Sec. 15-141. Weight of vehicles on bridges.
Sec. 15-142. Weight of trucks on certain streets.

ARTICLE I. IN GENERAL

Sec. 15-1. City vehicles to carry name of city.

All carriages, wagons, trucks, automobiles and other vehicles owned by the city, except the automobile used by the mayor, shall have painted or marked on the outside surface of both sides thereof in block letters not less than one and one-half (1½) inches high, in such place and manner as to be plainly visible, appropriate words to designate and show that the same are owned by the city.
(Ord. 1914, ch. 47, § 9; Rev. Ords. 1946, ch. 29, § 4)

Sec. 15-2. Penalties for traffic violations.

(a) *Generally.* The general penalties provided for by section 1-10 of this Code of Ordinances shall apply to violations of this chapter or any regulations made there under except that any person electing to appear before the clerk of court, or mailing the same, in lieu of a personal appearance before the Providence Municipal Court and admitting the violation charged, shall be punished by a fine as hereinafter respectively set forth:

Offense	*fine*
Parking from 2:00 a.m. to 5:00 a.m.*	$20.00
Overtime parking from 5:00 a.m. to 2:00 a.m.	20.00
Parking without permit in a residential zone	15.00
Parking at expired meter	25.00
Parking during an emergency	100.00
Parking so as to obstruct the flow of traffic	75.00
Parking in prohibited area (no parking)	30.00
Parking within eight (8) feet of fire hydrant	100.00
Parking in loading zone	30.00
Parking in taxi stand	30.00
Parking within twenty-five (25) feet of corner	30.00
Parking to obstruct driveway	30.00
Parking within twelve (12) inches of a driveway as measured by a line running along the curb in either direction	30.00
Parking on sidewalk	100.00
Parking in a bicycle lane	100.00**
Standing in prohibited areas	30.00
Double parking (more than three (3) feet from curb)	30.00

Parking in marked bus stop	100.00**
Parking in excess of one (1) foot, but not more than three (3) feet from curb	30.00
Parking with left wheels to curb	30.00
Angle parking	30.00
Parking on marked crosswalk or within intersection	100.00**
Stopping bus away from curb	30.00
Parking in a tow zone	100.00
Violation of moving vehicle traffic regulation	75.00
Violation of street or bridge weight limits	200.00

* Except in those areas designated as resident permit parking areas (which allow for residential permit parking only between the hours of 2:00 a.m. and 5:00 a.m.).

** The city shall contribute any increase in revenue generated from the increase in fine amounts to smart growth initiatives.

In the event any of the foregoing stated fines are not paid or a plea of not guilty to the citation is entered prior to the fourteenth day after date of violation, said fines shall be doubled.

In the event any of the foregoing stated fines are not paid or a plea of not guilty to the citation is entered subsequent to the fourteenth day and prior to the twenty-eighth day after date of violations, said fines shall be tripled.

(b) *Meter violations.* Where the violation occurs in a metered space it shall be a separate violation for vehicles remained parked in said space for each consecutive unit of time beyond the first unit of time, up to a maximum of two (2) violations.
(Ch. 2, 197, added by Ord. 1948, ch. 163, § 9; Ord. 1956, ch. 1033, § 1; Ord. 1961, ch. 1443, § 1; Ord. 1965, ch. 1699, § 1; Ord. 1969, ch. 69-18, § 1, 5-1-69; Ord. 1971, ch. 71-36, §§ 1, 2, 6-7-71; Ord. 1981, ch. 81-33, § 1, 7-8-81; Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84; Ord. 1987, ch. 87-28, § 1, 9-10-87; Ord. 1990, ch. 90-20, § 1, 7-3-90; Ord. 1993, ch. 93-57, § 1, 12-27-93; Ord. 1994, ch. 94-5, § 1, 2-25-94; Ord. 2003, ch. 03-51, 8-1-03; Ord. 2006, ch. 06-22, § 1, 4-20-06; Ord. 2007, ch. 07-35, § 1, 7-19-07; Ord. 2007, ch. 07-37, § 1, 7-25-07; Ord. 2008, ch. 2008-45, § 1, 10-16-08; Ord. 2010, ch. 2010-30, § 1, 7-26-10; Ord. 2012, ch. 2012-3, 1-5-12; Ord. No. 2021-29, § 2, 7-27-21; Ord. No. 2023-49, § 2, 12-21-23; Ord. No. 2024-11, § 3, 4-5-24)

Sec. 15-3. Payment of fines—Generally.

A person charged with the violation of any traffic regulation relating to stopping, standing, parking or operation of vehicles and notified in writing by a police officer to appear to answer such charge before the Providence Municipal Court may, in lieu

of such appearance, elect to appear in person or by one duly authorized by him in writing, before the clerk of said court, admit the truth of said charge, and pay to said clerk the designated fine; provided that such appearance, admission and payment be made at the office of said clerk during regular business office hours, within sixty (60) days of such notification, and failure to so appear shall be deemed a waiver of the right to dispose of such charge without personal appearance in court.
(Ch. 2, § 198, added by Ord. 1956, ch. 1033, § 2; Ord. 1962, ch. 1456, § 1; Ord. 1965, ch. 1699, § 1; Ord. 1971, ch. 71-36, § 3, 6-7-71; Ord. 1981, ch. 81-44, § 1, 9-9-81; Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84)

Sec. 15-4. Same—Payment by mail.

(a) Any person charged with any violation relating to stopping, standing, parking, or operation of vehicles, except as otherwise provided, may elect to mail in said violation tag to the clerk of the Providence Municipal Court, accompanied by payment of the designated fine, and the name and address of the violator. Such privilege of paying the fine by mail shall be exercised within sixty (60) days from the date of the offense by depositing the designated payment of such fine in a depository maintained by the United States Post Office Department for the collection of mails and the postage cancellation shall be prima facie evidence of the time of deposit.

(b) In those cases where mail is used for payment of such fine, the payment may be in cash or by check or by money order, and in those cases where payment is attempted with a check drawn against insufficient funds, an additional payment of ten dollars ($10.00) shall be imposed against the violator to defray administrative costs. In those cases where payment is by cash, it shall be at the risk of the sender and the record of the clerk of the municipal court shall be conclusive as to receipt and amount of the same.
(Ch. 2, § 198, added by Ord. 1956, ch. 1033, § 2; Ord. 1962, ch. 1456, § 1; Ord. 1965, ch. 1699, § 1; Ord. 1971, ch. 71-36, § 4, 6-7-71; Ord. 1981, ch. 81-44, § 2, 9-9-81; Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84)

Sec. 15-5. Same—Effect of payment.

The payment of a fine to the clerk of the municipal court as herein provided, for the violation of a traffic regulation pertaining to stopping, standing, parking or operation of vehicles, shall operate as a final disposition of the charge and such proceedings shall not be deemed criminal.
(Ch. 2, § 198, added by Ord. 1956, ch. 1033, § 2; Ord. 1962, ch. 1456, § 1; Ord. 1965, ch. 1699, § 1; Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84)

Sec. 15-6. Same—Notice requirements.

Notice of any traffic violation relating to stopping, standing, parking or operation of vehicles shall indicate the offense charged, a schedule of fines for such violation,

the time within which the privilege of paying such fine by mail may be exercised, the place to which such fine may be mailed and such other information as will enable the person charged to take advantage of the provisions hereof.
(Ch. 2, § 198, added by Ord. 1956, ch. 1033, § 2; Ord. 1962, ch. 1456, § 1; Ord. 1965, ch. 1699, § 1; Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84)

Sec. 15-7. Effect of multiple violations relating to stopping, standing, parking or operation.

(a) Notwithstanding anything herein contained, disposition of a traffic violation charge relating to stopping, standing, parking, or operation of vehicles without personal appearance in the municipal court may not be exercised by any person who in the consecutive period of twelve (12) months next preceding such charge has been three (3) times in the aggregate adjudged guilty by the municipal court of any violation of any regulation relating to stopping, standing, or parking, or operation of vehicles, or has admitted the truth of charges made against him under the provisions hereof.

(b) Further, notwithstanding anything herein contained, no person shall dispose of or answer to a traffic violation charge relating to the operation of a motor vehicle except by a personal appearance in the municipal court in those cases where such a citation is issued for a violation relating to and preceding an accident which results in injury to a person or property damage. In all such cases, a personal appearance must be made before a judge of the municipal court, who upon a plea or finding of guilty may impose any penalty authorized by ordinance or law.
(Ch. 2, § 198, added by Ord. 1956, ch. 1033, § 2; Ord. 1962, ch. 1456, § 1; Ord. 1965, ch. 1699, § 1; Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84)

Sec. 15-8. Failure to comply.

Any person charged with the violation of any traffic regulation relating to stopping, standing, parking, or operation of vehicles as outlined in section 15-2(a) of the Code of Ordinances, who fails to make payment within sixty (60) days as required, may in the discretion of any justice of the Providence Municipal Court, be charged an additional sum of ten dollars ($10.00) to cover administrative costs which shall be payable to the clerk of said court.
(Ord. 1971, ch. 71-36, § 5, 6-7-71; Ord. 1981, ch. 81-44, § 3, 9-9-81; Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84)

Sec. 15-9. Notification of the administrative adjudication division of the State of Rhode Island.

Notice of the final disposition of all traffic violation charges relating to the operation of vehicles shall be transmitted to the administrative adjudication division of the State of Rhode Island on a regular basis as may be required by the administrative adjudication division.

(Ord. 1984, ch. 84-9, § 1, 2-10-84; Ord. 1984, ch. 84-20, § 1, 3-23-84)

Editor's note—Section 15-9 formerly pertained to lighting of parking lots, derived from ch. 71-71, §§ 1, 2, approved Nov. 29, 1971.

Sec. 15-10. Liability insurance for bus shelters.

The Rhode Island Public Transit Authority shall provide liability insurance coverage for bodily injury and property damage on the bus shelters it has placed and may cause to be placed on any public way in the City of Providence, indemnifying the said city against any claims of injuries and damages resulting from such placement of said shelters; the limits of liability for such bodily injury and property damage shall be not less than three hundred thousand dollars ($300,000.00) for each occurrence and three hundred thousand dollars ($300,000.00) in the aggregate, and be approved as to form, by the acting city solicitor.

(Ord. 1977, ch. 77-39, § 1, 10-14-77)

Editor's note—Ord. No. 1977, Ch. 77-39, § 1, did not specifically amend the Code. Codification herein as § 15-10 was, therefore, at the discretion of the editor.

Sec. 15-11. Residential parking/standing of certain commercial vehicles.

(a) For the purpose of this article, a commercial vehicle shall be defined as any vehicle in excess of twenty (20) feet in length and/or any vehicle over six thousand five hundred (6,500) pounds gross vehicle weight.

(b) No commercial vehicle shall park or stand, unless engaged in the loading or off-loading of materials, for more than one (1) hour, on any part of any street, way, highway, road, or parkway under the control of the city.

(c) No vehicle shall park off-street in any front-yard area of any dwelling house unless the same shall have been approved for the parking of such vehicles by the appropriate municipal agency.

(d) No operator of any vehicle shall, while in said vehicle, cross the sidewalk portion of the roadway except at permitted driveway openings to gain access to off-street parking.

(e) Any person found in violation of any of these sections shall be subject to the penalties enumerated in section 1-10 herein, but in no case shall any person found in violation hereof be fined less than fifty dollars ($50.00).

(f) (1) Any commercial vehicle otherwise in violation of this section and having an engine idling shall be deemed to be a hazard to the quality of life.

(2) Any commercial vehicle otherwise in violation of this section and in any way limiting, restricting or blocking the access of public safety vehicles in the course of their operation shall be deemed to be a hazard to public safety.

(3) Any commercial vehicle which, under this section, is deemed to be a hazard to the quality of life or a hazard to public safety shall be towed and the person violating subsection (f)(1) or (2) of this section shall be subject to a fine of not less than one hundred dollars ($100.00).

(Ord. 2000, ch. 00-22, §§ 1—5, 8-11-00; Ord. 2002, ch. 02-11, §§ 1—6, 4-11-02; Ord. No. 2020-26, 9-14-20; Ord. No. 2023-51, 12-21-23)

Sec. 15-12. Issuance of parking permits on city streets.

The traffic bureau of the police department shall have authority to issue permits for parking of motor vehicles on city streets when engaged in construction, maintenance or refurbishment of an adjacent property. Any motor vehicle which displays a legal permit shall be exempt from the penalties imposed by section 15-2 of the code of ordinances with the exception of the following: parking during an emergency; parking so as to obstruct the flow of traffic; parking within eight (8) feet of a fire hydrant; parking within twenty-five (25) feet of a corner; parking to obstruct driveway; parking in a marked bus stop; angle parking; and parking on marked crosswalk or within intersection.

The traffic bureau shall develop an appropriate application to be completed by any person requesting the permit. The minimum required information contained in the application shall be:

(1) Name, address and telephone number of the person requesting the permit. If the permit is sought on behalf of any firm, corporation, partnership, company, other business entity, educational institution or governmental unit, the name address and telephone number of a contact person shall also be provided;

(2) The name, address and telephone number of the registered owner, if different from the requesting party;

(3) The registration state and number of the vehicle;

(4) The vehicle identification number;

(5) The year, make, model, color and vehicle type; and

(6) The location and hours of the effectiveness of the requested.

No permit shall be effective for any time or location other than indicated in the permit, and no permit shall be issued for a period in excess of ninety (90) days. The permit issued shall be effective only for the vehicle which is indicated on the

application. No more than one (1) permit may be issued per application; however, any party requesting multiple permits may do so for more than one (1) vehicle and more than one (1) location by submitting an application for each vehicle and/or location.

In issuing any permit under this division, the traffic bureau shall verify the number of permits currently in effect in and around the requested location and shall not issue the requested permit if the issuance of the permit will, in the opinion of the commanding officer of the traffic bureau, result in obstruction of traffic, excessive traffic congestion or any other condition detrimental to the health, safety and welfare of the surrounding property owners, or of pedestrians or motorists who utilize the sidewalks and roadways adjacent to the requested location for the permit.

No permit shall issue to any applicant who has, at the time of the application, any outstanding traffic violation fines or costs due and payable to the city municipal court. For the purposes of this ordinance, "outstanding traffic violation fines or costs" shall be any fines or costs assessed by the municipal court for the person's failure to pay to pay a traffic violation fine or enter a plea of not guilty in response to a traffic offense summons issued pursuant to section 15-2 of the Providence Code of Ordinances, and shall also include any costs assessed by the municipal court arising from said summons.

The fee for each permit issued shall be ten dollars ($10.00) per day for each day of the effectiveness of the permit and shall be due and payable prior to the issuance of the permit, by check or money order payable to the city collector. Should any check be returned unpaid, then the permit shall be null and void and the permittee shall be assessed a returned check fee of twenty-five dollars ($25.00).

Any permits issued by the department of traffic engineering or any other department or agency of the city shall be null and void thirty (30) days following the date of passage of this section.
(Ord. 2003, ch. 03-50, § 1, 8-1-03)

Sec. 15-13. Parking meters—Hours and rates.

The fees for parking at meters placed by the city department of traffic engineering shall not exceed two dollars ($2.00) per hour. Meters fees may vary by location and by time of day consistent with the goal of promoting parking availability. Said meter fees may be in effect from Mondays through Saturdays, between the hours of 8:00 a.m. and 11:00 p.m. The traffic engineer in conjunction with the traffic bureau of the police department shall adopt regulations appropriate to carry out the mandates of this section, said regulations to be filed with the city clerk.
(Ord. 2003, ch. 03-49, § 1, 8-1-03; Ord. 2007, ch. 07-42, § 1, 7-25-07)

Sec. 15-14. Parking meters—Multi-space parking meters and spaces.

(a) A multi-space meter is a device installed by the city for acceptance of required parking fees for more than one (1) parking space. A multi-space meter may regulate multiple parking spaces on-street (curbside or angled spaces) or off-street (parking lots or garages.) Use of a multi-space meter may require a motorist to display a receipt on the curbside window or curbside dashboard of their vehicle, or may require a motorist to enter a space number in conjunction with making a payment. Multi-space meters may accept a variety of payment options, which may include coins, credit cards or stored value cards, such as smart cards. At all times, payment in advance is required at any single meter or multi-space meter.

(b) Multi-space meter spaces are defined as any parking space, designated or not, where at least one (1) posted sign states requirement for payment at a multi-space meter. Multi-space meter spaces may not be adjacent to a multi-space meter, but shall be in close proximity to the parking space.

(c) Multi-space meters shall operate in one (1) of the following ways: for street parking, the motorist shall park their vehicle, proceed to the nearest meter, pay the required parking fee, then return to their vehicle to affix and display the paid receipt at the curbside window of the vehicle; for off street parking in garages and lots, the motorist shall park their vehicle, proceed to the nearest meter, enter their space number and then pay the required fee. Depending on the type of configuration, a receipt may or may not be issued.

(d) No operator of a vehicle, upon entering a multi-space meter regulated space, shall fail to immediately deposit the required fee for regulated parking, and return to display the receipt.

(e) When parking on a block regulated by multi-space meters and the nearest meter is out of order or cannot issue a receipt, payment shall be made at the next available multi-space meter on the block.
(Ord. 2005, ch. 05-28, § 1, 5-5-05)

Sec. 15-15. Special parking areas for motorcycles.

No person shall park or stand any vehicle having fewer than four (4) wheels at or in a parking space which is designated by a sign or by notice posted on or near the parking space as restricted to parking a four-wheel automobile only. No person shall park or stand any vehicle other than a motorcycle at or in a parking space which is designated by a sign or by notice posted on or near the parking space as restricted to parking of motorcycles only.
(Ord. 2007, ch. 07-23, § 1, 4-19-07; Ord. 2007, ch. 07-32, § 1, 7-5-07)

Sec. 15-16. Blocking intersections and crosswalks.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.
(Ord. 2008, ch. 08-22, 4-3-08)

Sec. 15-17. Designation of intersections subject to section 31-15-12.2 of Rhode Island General Laws.

(a) *Designations*. Pursuant to R.I.G.L. § 31-15-12.2, the following intersections are hereby designated as intersections to which the provisions of § 31-15-12.2 apply:

(1) Dave Gavitt Way and Broadway.

(2) Memorial Boulevard and Exchange Street.

(3) Cranston Street and Potters Avenue.

(b) *Enforcement*. The police chief shall begin enforcing R.I.G.L. § 31-15-12.2 at a designated intersection upon the latter of (1) two (2) weeks after the completion of the posting of signs and marking of the intersection; and (2) the effective date of the ordinance from which this section derives. The police chief shall cease enforcement of the intersections designated in (a) on December 31, 2017.

(c) *[Report.]* A report from the director of the department of public works shall be presented to the city council by January 31, 2018.
(Ord. No. 2017-13, § 1, 6-2-17)

Sec. 15-17.1. Reserved.

Editor's note—Ord. No. 2019-33, § 1, adopted Sept. 30, 2019, repealed § 15-17.1, which pertained to traffic on certain streets and derived from Ord. No. 2018-12, § 1, adopted April 16, 2018.

ARTICLE II. IMPOUNDMENT OF VEHICLES*

Sec. 15-18. Removal or impounding of illegally parked vehicles.

(a) *Generally.* Any police officer may remove and impound or cause to be removed or impounded any vehicle illegally parked upon any street or highway, in such violation of any parking regulation or ordinance (other than overtime parking), as to

---

***Editor's note—**Ord. 2013, chapter 2013-27, § 1, approved July 26, 2013, amended Art. II in its entirety to read as set out herein. Former Art. II, §§ 15-18—15-28, pertained to similar subject matter and derived from Ch. 2, § 199; added by Ord. 1956, ch. 1033, § 2; Ord. 1960, ch. 1343, §§ 1—3; Ord. 1961, ch. 1443, § 1; Ord. 1967, ch. 1885, § 1, approved Dec. 21, 1967; Ord. 1968, ch. 68-71, § 1, approved Nov. 21, 1968; Ord. 1978, ch. 78-29, § 1, approved Dec. 21, 1978; Ord. 1983, ch. 83-12, §§ 1, 3, approved March 4, 1983; Ord. 1983, ch. 83-25, §§ 1—4, approved May 3, 1983; Ord. 1984, ch. 84-13, § 1, approved Feb. 21, 1984; Ord. 1984,

constitute an obstruction to traffic or as to create an unsafe condition, thus jeopardizing public safety; provided nevertheless, that the police department shall, within forty-eight (48) hours, notify the vehicle owner of the said removal or impoundment; of the opportunity for a hearing before a "neutral official," in which the owner may contest the towing (or the deprivation of said vehicle), and the payment of costs or charges accompanying the towing or impoundment; all substantially in accordance with the procedure set forth in subsection (b) of this section.

(b) *Post-seizure hearings for towed or impounded vehicles.*

(1) *Notice and request for hearing.* As to any vehicle towed or impounded pursuant to this section 15-18 by or at the request of the City of Providence, its agents or employees, a person who has a legal entitlement to possession of the vehicle has a right to a post-seizure administrative hearing to determine whether there was probable cause to impound the vehicle if such person files a written demand, on forms so provided for such a hearing, with the police department within ten (10) days after such person has learned such vehicle has been impounded or within ten (10) days after the mailing of the date set in the notice of stored vehicle, whichever occurs first. The notice of stored vehicle shall be sent in the mail to the legal and registered owner or their agent and to the garage where the vehicle is stored within forty-eight (48) hours, excluding weekends and holidays, after impounding and storage of the vehicle.

(2) *Conduct of hearing.* A hearing shall be conducted before judge of the municipal court within forty-eight (48) hours of receipt of a written demand therefor from the person seeking the hearing unless such person waives the right to a speedy hearing. Saturdays, Sundays, and city holidays are to be excluded from the calculation of the forty-eight-hour period. The sole issue before the hearing shall be whether there was probable cause to impound the vehicle in question.

Probable cause to impound means such a state of facts as would lead a person of ordinary care and prudence to believe that there was sufficient breach of local, state or federal law to grant legal authority for the removal of the vehicle.

The person demanding the hearing shall carry the burden of establishing that such person has the right to possession of the vehicle. The police department shall carry the burden of establishing that there was probable

---

ch. 84-52, § 10, approved July 16, 1984; Ord. 1986, ch. 86-9, § 1, approved March 13, 1986; Ord. 1988, ch. 88-1, § 1, approved Jan. 12, 1988; Ord. 2007, ch. 07-31, § 1, approved July 5, 2007.

Cross references—Traffic engineering department, § 2-151 et seq.; report of vehicle left on commercial parking lot more than twenty-four hours, § 14-74.

cause to impound the vehicle in question. The judge's decision in no way affects any criminal proceeding in connection with the impound in question and that any criminal charges involved in such proceeding may only be challenged in the appropriate court. Failure of the registered or legal owner, or his or her agent to request or attend a scheduled post-seizure hearing shall be deemed a waiver of the right to such hearing.

(3) *Decisions and their effect.* In the event that the judge determines that there was no probable cause, the official police garage having custody of the vehicle shall release the vehicle to its possessor. Upon a finding of no probable cause, towing and storage fees shall be paid by the city in accordance with arrangements made between the city and the authorized garages. If the possessor fails to recover the vehicle within twenty-four (24) hours of its receipt, excluding such days when the said garage is not open for business, the possessor shall assume liability for all subsequent storage charges.

(c) *Payment of charges.* For charges in connection with the towing, winching, storage of a vehicle impounded under this section and for associated labor in connection with any action related to the seizure of a vehicle, refer to the individual carrier's tariff on file with the state department of public utilities; for placement of a boot a charge of one hundred dollars ($100.00) and an additional fee to compensate for the replacement value of the boot if the boot is damaged or not returned within a reasonable time to the city; all fees shall be paid to the agent for the city in the usual business manner before any such vehicle shall be released except for vehicles towed during periods when emergency regulations controlling parking and traffic movements during storm periods are in effect. The payment of such towing and storage charges shall not release the operator or owner of the vehicle from any penalty imposed for violation of any traffic regulations.
(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-19. Removal of disabled or abandoned vehicles on public highway.

(a) *Order to remove.* Whenever any vehicle is disabled by reason of accident or for any other reason, or abandoned upon a public street or highway of the city, and such disabled or abandoned vehicle constitutes an obstruction to the normal flow of

pedestrian or vehicular traffic upon the said highway which cannot be readily removed, the police department or any officer thereof shall direct the owner or operator to remove said vehicle and give him or her a reasonable opportunity so to do.

(b) *Use of towing service.* If the owner or operator of a disabled or abandoned motor vehicle is unable or unwilling to remove said motor vehicle by his or her own efforts or resources within a reasonable time as directed by said police department, he or she shall be directed to call or designate a towing service of his or her own choice to remove said vehicle. If such owner or operator refuses, fails is unable or is not readily available to call or select a towing service, as aforesaid, the police department shall call upon an approved towing service as herein provided, and direct that said motor vehicle be removed to a suitable place within the city.
(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-20. Moving, altering, repairing motor vehicle removed from highway.

Any motor vehicle disabled or abandoned and removed from a public highway or street, as provided in section 15-19, shall not be further moved, altered or repaired in any manner or form without the written consent of the owner or operator thereof, or of an agent of the owner or operator duly authorized in writing.
(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-21. Duty to regain possession of vehicle.

The owner or operator or duly designated agent of the owner or operator shall regain immediate possession of any motor vehicle removed, as aforesaid, from said towing service company or the person to whom or the place to which it may have been delivered by said towing service upon payment of charges as set out in this article.
(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-22. Reserved.

Sec. 15-23. Use of towing service companies by police department.

(a) *Agreement required.* The police department shall call only upon towing service companies which have indicated by a writing deposited with the commissioner of public safety their agreement to abide by the provisions of this article and the rules and regulations promulgated hereunder, and have further agreed to remove vehicles as provided herein, for storage if other than the premises of or under direct control of said towing service companies only to suitable places in the city whose owners or operators have also indicated by a writing deposited, as aforesaid, their willingness to abide by the provisions hereof and the rules and regulations promulgated hereunder. Towing service companies will be required to release towed vehicles only during normal daylight hours of 8:00 a.m. to 6:00 p.m. for seven (7) days a week.

(b) *Listing to be followed.* Towing service companies registered as aforesaid, with the commissioner of public safety shall be listed in alphabetical order and shall be called upon for their services by said police department to the greatest possible extent in the order of their appearance on said list.
(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-24. Violations by towing service company, owner or operator of premises to which vehicle is removed.

Violations of any portions of this article by any towing service company or by the owner or operator of the premises to which a vehicle may have been removed pursuant to the provisions hereof, shall be punishable by fine or imprisonment or by both as provided in section 1-10 of this Code of Ordinances and/or by being removed from the approved list of eligible towing service companies or suitable repositories for removed cars. No person shall be removed from such list as aforesaid, except after a hearing before the commissioner of public safety after due notice thereof, at which the person concerned may be represented by an attorney. Any person removed as aforesaid may apply for reinstatement.
(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-25. Rules and regulations to implement article.

The commissioner of public safety may make further rules and regulations not inconsistent herewith to implement the provisions of this article.
(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-26. Towing, or impoundment or immobilization of vehicles of scofflaws.

(a) The municipal court of the city shall adhere to the procedure set forth in subsection (b) of this section, in the enforcement of vehicle violations in the event that impoundment or immobilization of vehicles should become necessary. Any police officer, agent, or parking enforcement officer of the city shall have the authority to impound or seize (or cause the same to be done) any vehicle, whether by towing or by immobilization otherwise (such as by use of a boot) if three (3) or more parking tickets or citations for violations of the traffic ordinances or regulations of the city have been issued against it and which remain outstanding and delinquent for more than fifteen (15) days.

(b) The procedure to be followed in the enforcement of the preceding subsection (a) shall be as follows:

(1) Prior to any such vehicle being ordered to be towed, seized, immobilized or impounded, a warning notice of noncompliance and an order to respond to the

municipal court to answer to the traffic violations shall be forwarded to the owner of record by mail or by tacking to the windshield of the vehicle in question following the issuance of the third vehicle violation.

(2) Said notice and order shall state that the registrant may appear before the municipal court at any session during the following fourteen (14) days, and request a hearing as to whether the vehicle should be towed or seized and impounded for said violations.

(3) If, after twenty-one (21) days from the date of mailing said notice the matters remain unresolved and at least three (3) violations remain outstanding and delinquent, the municipal court shall list the vehicle as eligible for the city police department to tow (or immobilize by use of a boot) and impound said vehicle for satisfaction or adjudication of all fines, fees and penalties associated therewith.

(4) Upon any appeal to the municipal court contesting the booting fee or the right of the police department to tow or immobilize the vehicle, evidence of the city's compliance with this section shall establish probable cause for the towing or immobilization of the vehicle and such probable cause shall be independent of any judicial ruling regarding traffic tickets and violations. Payment of the booting fee may only be waived by the court upon a finding of a lack of probable cause to immobilize or tow the vehicle.

(5) Upon such a vehicle being thus towed or seized and impounded or immobilized, the city police department shall maintain a record of same, and upon inquiry by the registrant or other authorized person, notify same:

a. That they may appear at the next regular session of the municipal court, for the purpose of securing a hearing as to the towing or impoundment or immobilization of vehicle, liability for any charges arising there from, and for arraignment on the outstanding violations; or

b. That the registrant (or other authorized person) may either pay the outstanding traffic or parking fines together with all fees in connection with the seizure of the vehicle.

(6) Upon such a vehicle being thus duly towed and impounded in a convenient and safe place within the city, or immobilized by use of a boot at the place where it was located, the charge as set forth in section 15-18(c) shall be paid by the registrant of such vehicle or other authorized person, firm or corporation designated by said registrant before any such vehicle shall be released.

(7) No vehicle thus towed and/or impounded or immobilized under this section may be released by the city police department unless issued written notice to do so by the clerk of the municipal court.

(8) No vehicle thus towed and impounded or immobilized under this section shall be disposed of or sold by any person, company or organization having

possession or custody of same, nor by the police department, the city or any of its agents, except by written order of the municipal court (or the clerk thereof) obtained pursuant to applicable state law, if any; and if there be no applicable state law, then the following procedure shall govern and apply: If such property remains unclaimed in the possession of the police department, an officer or agent thereof, or an authorized towing company or garage for one (1) month and the owner thereof or his or her place of abode or business is unknown, or if the owner and his or her place of abode or business are known and the owner, after receipt by registered mail of a written notice from such department or member to take possession of said property, refuses or fails for a period of ten (10) days following said receipt so to do, such department may sell the same by public auction, notice of the time and place of sale, with a description of the property to be sold, first being given by publishing the same once in each of three (3) successive weeks in a newspaper published in the city.

(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-27. Post-seizure hearings for towed or impounded vehicles applicable to other sections of the Code of Ordinances.

The procedure for post-seizure hearings for towed or impounded vehicles shall also apply to sections 15-19 of article II.

(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Sec. 15-28. Accident-chasing by tow companies, auto body or auto repair companies.

(a) No person, firm or corporation shall in any manner solicit or attempt to solicit on behalf of any tow, auto body, or auto repair enterprise from the owner or operator of, or any passenger in a motor vehicle involved in any collision resulting in personal injury or property damage until such time as the investigating police department has concluded his/her investigation at the scene of such collision.

(b) Any person found guilty of violating the provisions of this section shall be fined not exceeding one hundred dollars ($100.00) for the first offense, and for any subsequent offense shall be fined not exceeding two hundred dollars ($200.00).

(Ord. 2013, ch. 2013-27, § 1, 7-26-13)

Secs. 15-29—15-35. Reserved.

ARTICLE III. STORAGE OF DISMANTLED, JUNKED OR ABANDONED VEHICLES*

Sec. 15-36. Definitions.

Auto processing business shall mean an individual engaged in the short-term (fewer than fourteen (14) days) storage of dismantled motor vehicles, which are sold in that dismantled condition.

Auto salvage business shall mean an individual engaged in the long-term (fourteen (14) days or more) storage of motor vehicles from which parts are sold or given away.

Dismantled, junked, or inoperable vehicles shall mean vehicles legally or physically incapable of being operated or which have not been duly registered according to law, or which do not have legal evidence of said lawful registration affixed thereto, or which lack to a substantial degree the equipment in good operating condition as required by laws to enable them to be registered, and further shall be deemed to include major parts thereof including bodies, engines, transmissions, rear ends, and the like.

Premises shall include public or private property.

Public property shall include property owned or otherwise legally or equitably held by the city.
(Ord. 1984, ch. 84-52, § 3, 7-16-84; Ord. 2000, ch. 00-2, § 2, 3-10-00)

Sec. 15-37. Storage license required.

No person, firm or corporation shall deposit, store, keep or permit to be deposited, stored or kept in the open upon public or private property a dismantled, junked or inoperable vehicle, unless a license for such storage has theretofore been obtained from a proper authority.
(Ord. 1984, ch. 84-52, § 4, 7-16-84)

Sec. 15-38. Determination of violation.

Upon observation by the director of the department of public works, or his designee, of any vehicle which reasonably appears to be in violation of this article:

(1) The director or his designee shall enter upon the premises, and determine the presence of a violation of this section.

***Editor's note—**Section 2 of Ord. 1984, ch. 84-52, approved July 16, 1984, repealed §§ 15-36—15-43, as derived from Ord. 1965, ch. 1695 and Ord. 1967, ch. 1867, approved Sept. 7, 1967. At the discretion of the editor, §§ 3—9 of ch. 84-52 have been included as new §§ 15-36—15-42.

Cross references—Traffic engineering department, § 2-151 et seq.; report of vehicle left on commercial parking lot more than twenty-four hours, § 14-74.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; regulation of motor and other vehicles, Title 31, Gen. Laws 1956.

(2) The director or his designee shall determine the vehicle identification number of the vehicle, and shall furnish that number to the Providence Police Department for a determination as to whether or not the vehicle is stolen, and for a determination as to the current registered owner, if any.

(3) A vehicle which is determined to be stolen shall be turned over to the custody of the Providence Police Department.

(Ord. 1984, ch. 84-52, § 5, 7-16-84)

Sec. 15-39. Action upon determination of violation.

(a) A vehicle which is determined to be in violation of this article shall have affixed thereto notice indicating that the vehicle is in violation of the law and is to be removed within seven (7) days of the notice. The notice will further indicate that should the vehicle not be removed within seven (7) days, it will be removed by the department of public works, or an authorized agent thereof. The notice shall further indicate an opportunity for the owner to request a hearing before the director of the department of public works, or his designee, to protest the aforesaid determination of violation, which hearing shall be afforded prior to any further action taken under this article. The notice shall also indicate that the costs of removal shall be borne by the owner, and that the vehicle may be redeemed by payment.

(b) If a structure is located within or upon the premises at which the vehicle is located, a notice of similar content will be left at that structure. If the name and address of the current registered owner can be determined through a police department check, a notice of similar content shall be sent from the department of public works, by regular mail, postage prepaid, to the address of record of the owner.

(Ord. 1984, ch. 84-52, § 6, 7-16-84)

Sec. 15-40. Failure to remove upon proper notice.

If said vehicle is not removed, within seven (7) days, the department of public works, through a licensed towing company, shall have the vehicle towed to the place of business and/or storage of the tow company. At that time, if a structure is located within or upon the premises at which the vehicle was located, a notice shall be left at that structure, substantially consistent with section 15-39 of this article. And if the name and address of the current registered owner has been determined, similar notice shall be sent by regular mail, postage prepaid, to that owner, both of which notices shall indicate the location at which the vehicle shall be redeemed within seven (7) days.

(Ord. 1984, ch. 84-52, § 7, 7-16-84)

Sec. 15-41. Redemption of vehicle required.

(a) The owner of any vehicle removed under the terms of this article shall within seven (7) days after removal redeem the said vehicle from the tow company authorized by the department of public works. The costs of said removal shall be calculated at a

rate for transport and storage in according with tariffs on file with the public utilities commission by the said tow company, and other conduct of the licensed tow company shall be consistent with the rules and regulations of the said commission, and other existing law.

(b) Failure to redeem a vehicle as provided within this article shall be punishable as indicated in section 1-10 of this Code of Ordinances.
(Ord. 1984, ch. 84-52, § 8, 7-16-84)

Sec. 15-42. Records required.

Each authorized tow company shall file a monthly report with the director of the department of public works, showing an accounting of vehicles towed, vehicles released, and fees collected.
(Ord. 1984, ch. 84-52, § 9, 7-16-84)

Sec. 15-43. Arrangement of junked or salvaged vehicles.

(a) Any licensed dealer in junked or salvaged motor vehicles who operates an auto salvage business as defined in section 15-36 shall arrange any junked or salvaged vehicles in such a manner so as to allow the entrance, exit and free passage of public safety vehicles. Lanes for the free passage of emergency vehicles shall be clearly marked and shall not be less than fifteen (15) feet in width. In no circumstances shall two (2) or more junked or salvaged vehicles be stacked one (1) upon the other.

(b) Any licensed dealer found to be in violation of this section shall be punished by the imposition of a fine up to and including five hundred dollars ($500.00). Additionally any licensed dealer found in violation of this section two (2) times in any calendar year shall be reported to the department of business regulation of the state.
(Ord. 2000, ch. 00-2, §§ 3, 4, 3-10-00)

Secs. 15-44—15-53. Reserved.

ARTICLE IV. BUS LANES*

Sec. 15-54. Purpose of provisions.

The city council, acting under authority of subsection (f), Section 2 of Article III of Chapter 176 of the Public Laws of Rhode Island, 1962, entitled "An Act Authorizing the Conversion of Certain Streets of the City of Providence into Pedestrian Malls," approved April 20, 1963, hereby determines that in order for the flow of vehicular

*__Cross references—__Traffic engineering department, § 2-151 et seq.; superintendent of vehicles, § 2-219 et seq.; motor bus regulations, § 24-47 et seq.

__State law references—__Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; regulation of motor and other vehicles, Title 31, Gen. Laws 1956.

traffic and in particular intrastate buses to be efficient and not cause unnecessary traffic congestion within the downtown area and in particular Washington, Empire and Weybosset Street, that there be established during certain hours bus lanes for the exclusive use of the intrastate buses serving the city.
(Ord. 1963, ch. 1576, § 1)

Sec. 15-55. Establishment on portion of Washington Street.

There is hereby established on that portion of Washington Street, beginning at the intersection of Eddy Street and running to the intersection of Empire Street on the right-hand side, a lane not less than ten (10) feet wide nor more than twelve (12) feet wide measured from the curbline of said Washington Street, which shall be for the exclusive use of intrastate buses and vehicles making right turns during the periods from 7:00 a.m. to 10:00 a.m., inclusive, and from 1:00 p.m. to 10:00 p.m., inclusive, on weekdays.
(Ord. 1963, ch. 1576, § 2)

Sec. 15-56. Establishment on portion of Weybosset Street.

There is hereby established on that portion of Weybosset Street, beginning at the intersection of Empire Street and running to the intersection of Eddy Street on the right-hand side, a lane not less than ten (10) feet wide nor more than twelve (12) feet wide measured from the curbline of said Weybosset Street, which shall be for the exclusive use of intrastate buses and vehicles making right turns during the periods from 7:00 a.m. to 10:00 a.m., inclusive, and from 1:00 p.m. to 10:00 p.m., inclusive, on weekdays.
(Ord. 1963, ch. 1576, § 3)

Sec. 15-57. Establishment on portion of Empire Street.

There is hereby established on that portion of Empire Street, beginning at the intersection of Washington Street and running to the intersection of Weybosset and Broad Streets on the right-hand side, a lane not less than ten (10) feet wide nor more than twelve (12) feet wide measured from the curbline of said Empire Street, which shall be for the exclusive use of intrastate buses and vehicles making right turns during the periods from 7:00 a.m. to 10:00 a.m., inclusive, and from 1:00 p.m. to 10:00 p.m., inclusive, on weekdays.
(Ord. 1963, ch. 1576, § 4)

Sec. 15-58. Signs, markings, other devices to designate lanes.

The traffic engineer of the city is hereby directed to appropriately mark by erected signs, pavement markings, and/or other means those bus lanes established by this article.
(Ord. 1963, ch. 1576, § 5)

Sec. 15-59. Removal of vehicles parked, standing in violation of article.

Any vehicle either parked or left standing in violation of the regulations established by this article may be towed away by any authorized towing agency at the expense of the owner, fees chargeable therefor to be the same as set forth in section 15-22.
(Ord. 1963, ch. 15-76, § 7)

Secs. 15-60—15-69. Reserved.

ARTICLE V. BICYCLES*

Sec. 15-70. Speed of bicycles.

No person using any bicycle, tricycle, tandem bicycle, or other such vehicle, shall ride or drive the same at a speed faster than a common traveling pace in any portion of the city.
(Ord. 1926, ch. 521, § 1; Rev. Ords. 1946, ch. 6, § 2)

Sec. 15-71. Operating bicycles abreast.

Not more than two (2) bicycles, tricycles, tandem bicycles, or other such vehicle, shall be operated abreast of each other.
(Ord. 1926, ch. 521, § 1; Rev. Ords. 1946, ch. 6, § 2)

Sec. 15-72. Mode of riding bicycles.

No person riding any bicycle, tricycle, tandem bicycle, or other such vehicle shall remove his feet from the pedals, except in case of accident or for the purpose of braking or dismounting. Every person riding any such vehicle shall at all times keep at least one (1) hand upon the handlebar, and, except as aforesaid, both feet upon the pedals, in order to retain complete control of such vehicle.
(Ord. 1926, ch. 521, § 1; Rev. Ords. 1946, ch. 6, § 2)

Sec. 15-73. Carrying passenger on bicycle.

No person while riding any bicycle shall allow any other person to be carried upon any part of such bicycle.
(Ord. 1926, ch. 521, § 1; Rev. Ords. 1946, ch. 6, § 2)

Sec. 15-74. Signal bells on bicycles.

Every person propelling any bicycle, tricycle, tandem bicycle, or other such vehicle, in any public highway or in any public park, square or street in the city, shall cause a signal bell to be attached thereto and shall use the same for the purpose of giving

*__Cross references—__Traffic engineering department, § 2-151 et seq.; riding and driving in parks, §§ 18-4—18-6.

warning of its approach. Such signal bell shall be capable of being heard a distance of not less than two hundred and fifty (250) feet, and shall be so attached to the handlebar that it can be positively and directly operated by the fingers of one (1) hand of the rider without removing such hand from the handlebar. Such signal bell shall always be sounded with several rapid strokes whenever the rider is approaching any person or any vehicle, and shall be used in all cases where there is any danger of collision.
(Ord. 1914, ch. 30, § 16; Rev. Ords. 1946, ch. 6, § 1)

Cross references—Noise generally, § 16-10 et seq.; noise control, § 16-91 et seq.

State law reference—Use of sirens prohibited, § 31-23-9, Gen. Laws 1956.

Sec. 15-75. Renting bicycles to minors.

No person engaged in the business of renting bicycles for hire in the city shall rent the same to any minor under the age of sixteen (16) years without the written consent of either parent or the legal guardian of such minor, and every such person engaged in said business who rents a bicycle to any minor under the age of sixteen (16) years shall keep on file for the inspection of any police officer in the city said written consent.
(Ord. 1938, ch. 954, § 1; Rev. Ords. 1946, ch. 6, § 3)

Secs. 15-76—15-85. Reserved.

ARTICLE VI. MUNICIPAL GARAGE*

Sec. 15-86. General authority of director of public property.

The director of public property shall control and manage the municipal garage, located at the city yard, and the operation thereof. He may employ a superintendent, such mechanics, clerks and assistants as may be necessary for the care, maintenance and operation thereof. He shall make rules regarding the use of such garage, the assignment of cars to the various departments of the city government for the uses of said departments and to the municipal garage for general use and the control of chauffeurs who operate cars housed in said garage. Such rules shall be posted in a conspicuous place in said garage.
(Ord. 1942, ch. 1158, § 1; Rev. Ords. 1946, ch. 22, § 1; Ord. 1968, ch. 68-74, § 1, 12-19-68)

***Editor's note—**Ch. 68-74, § 1 of the 1968 ordinances, enacted Dec. 19, 1968, amended Ch. 22, 1946 Revised Ordinances, §§ 15-86—15-92 herein, by substituting "director of public property" for "purchasing agent".

Cross references—Traffic engineering department, § 2-151 et seq.; regulation of commercial parking lots, § 14-64 et seq.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; regulation of motor and other vehicles, Title 31, Gen. Laws 1956.

Sec. 15-87. Vehicles stored in municipal garage.

All motor vehicles belonging to the city, except vehicles used by the Dexter Donation, city hospital, fire department, North Burial Ground, park department, police department and such motor vehicles of the water supply board as are ordinarily stored at Scituate, shall be stored and kept in the municipal garage except when in necessary use on business of the city; provided however, that the director of public property may permit in special cases motor vehicles required by the provisions hereof to be stored in the municipal garage to be stored and kept in other designated garages.
(Ord. 1942, ch. 1158, § 2; Rev. Ords. 1946, ch. 22, § 2; Ord. 1968, ch. 68-74, § 1, 12-19-68)

Sec. 15-88. Maintenance of vehicles; accounting; charging department with expense items.

The director of public property shall keep all motor vehicles stored or kept in said municipal garage in as good condition and repair as is possible and shall provide everything necessary to do so, including parts and tires, and shall also furnish all gasoline, oil, grease or other substances necessary for operation of said motor vehicles. Said director of public property, under the direction of the city controller, shall install and maintain a proper system of accounting therefor. Any department using or storing vehicles in said garage shall be charged with all proper items of expense arising out of the storage, use or upkeep of any vehicle or vehicles assigned to it, and suitable charges shall be made to the various departments using cars otherwise assigned.
(Ord. 1942, ch. 1158, § 3; Rev. Ords. 1946, ch. 22, § 3; Ord. 1968, ch. 68-74, § 1, 12-19-68)

Sec. 15-89. Municipal garage revolving fund; approval, purpose.

The municipal garage revolving fund established by Resolution 360, approved December 23, 1941, is hereby ratified and approved. Said fund shall be permanently held and maintained by the city treasurer as a separate fund of the city for the purpose of financing all proper charges against the several departments for storage, maintenance and upkeep of motor vehicles.
(Ord. 1942, ch. 1158, § 4; Rev. Ords. 1946, ch. 22, § 4)

Sec. 15-90. Action upon charges for labor, material, supplies and services.

Each month the superintendent of the municipal garage shall make out appropriate charges for labor, material, supplies and services rendered to the different departments based upon proper requisition or order and submit these bills to the director of public property for action. The director of public property shall review the

charges and upon approval by him he shall submit same to the city controller and send a copy of the approved charges to the department against which the said charges have been made.
(Ord. 1942, ch. 1158, § 5; Rev. Ords. 1946, ch. 22, § 5; Ord. 1968, ch. 68-74, § 1, 12-19-68)

Sec. 15-91. Reimbursement of municipal garage revolving fund.

Upon receipt of charges approved by the director of public property as provided in section 15-90, the city controller is directed to take appropriate action forthwith to reimburse the municipal garage revolving fund from the proper accounts of the departments against which said charges have been made with the amounts approved by said director of public property.
(Ord. 1942, ch. 1158, § 6; Rev. Ords. 1946, ch. 22, § 6; Ord. 1968, ch. 68-74, § 1, 12-19-68)

Sec. 15-92. Statement of value of material on hand.

At the close of the fiscal year the director of public property shall file with the city controller a statement of the value of the materials on hand and of work performed and materials furnished for which payment is due as of September 30.
(Ord. 1942, ch. 1158, § 7; Rev. Ords. 1946, ch. 22, § 7; Ord. 1968, ch. 68-74, § 1, 12-19-68)

Secs. 15-93—15-100. Reserved.

ARTICLE VII. SNOWMOBILES AND RECREATIONAL OFF-ROAD VEHICLES*

Sec. 15-101. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Operate. To control the operation of a snowmobile or recreational off-road vehicle.

Operator. A person who operates or is in actual control of a snowmobile or recreational off-road vehicle.

Recreational off-road vehicle. A motorized or electronic vehicle designed to travel over unimproved terrain including but not limited to minibikes, dirt bikes,

*__Editor's note—__**Editor's note—**Ord. No. 2017-9, § 1, May 5, 2017, amended Art. VII in its entirety to read as herein set out. Former Art. VII, §§ 15-101—15-103, 15-104, 15-105, pertained to similar subject matter, and derived from Ord. No. 2015-5, § 1, adopted April 13, 2015.

all-terrain vehicles, and any other three (3) or four (4) wheel vehicle regardless of type or design. This shall not be construed to include golf mobiles or golf carts, riding lawn mowers, or garden tractors, which are not registered as farm vehicles.

Register. The act of registering a snow mobile or recreational off-road vehicle, as defined in this section, in accordance with R.I.G.L. § 31-3-2.2.

Snowmobile. A vehicle designed for travel on snow or ice in a natural terrain steered by wheels, skis or runners.
(Ord. No. 2017-9, § 1, 5-5-17)

Sec. 15-102. Registration.

(a) All snowmobiles and recreational off-road vehicles must be registered with the Rhode Island Department of Environmental Management as provided by state statute.

(b) No person shall place, store, or keep any snowmobiles or recreational off-road vehicles, that are not registered in accordance with state law, upon public or private land, including any buildings thereon, zoned, or used for residential purposes.
(Ord. No. 2017-9, § 1, 5-5-17)

Sec. 15-103. Operations.

It shall be unlawful for any person to operate a snowmobile or recreational off-road vehicle within the city limits of the City of Providence, except on private property totaling at least two and one-half (2½) acres in area and with the express permission to do so by the owner or occupant of said private property.
(Ord. No. 2017-9, § 1, 5-5-17)

Sec. 15-104. Enforcement.

(a) The Providence Police Department shall have the authority to enforce the provisions of this article and to promulgate rules and regulations necessary to implement and enforce this article.

(b) The Providence Police Department shall have the authority to impound any snowmobile or recreational off-road vehicle found to be in violation of this ordinance.

(c) No impounded snowmobile or recreational off-road vehicle shall be released until final disposition of all criminal and/or civil charges relating to the operation or storage of any recreational off-road vehicle, nor until proof of ownership and proper registration according to state statute is verified and applicable towing and storage charges are paid. Additionally, the city solicitor shall have the authority to commence forfeiture proceedings, as described in section 15-105.
(Ord. No. 2017-9, § 1, 5-5-17)

Sec. 15-105. Penalty.

The penalty for a violation of this article, shall be forfeiture of the snowmobile or recreational off-road vehicle; or if the defendant does not own the vehicle and the owner did not know and could not reasonably have known that the vehicle would be used in violation of this article and it is the first time that a snowmobile or recreational off-road vehicle belonging to the owner has been found to be in violation of this article, a civil penalty of five hundred dollars ($500.00) in addition to any and all other fines and/or penalties associated with the illegal operation of such vehicle shall be imposed upon the operator and/or owner. The Providence Police Department shall be empowered to seize, and impound snowmobiles and recreational vehicles in order to enforce this article.

(1) *Commencement of forfeiture proceeding and notice*.

a. The city solicitor shall bring an action for forfeiture by filing a complaint in the Providence Municipal Court.

b. The city solicitor shall instruct the department of public safety to give notice of the forfeiture proceeding by mailing a copy of the complaint and a notice for hearing to each person whose right, title, or interest is of record in the division of motor vehicles or any other department or agency of the state, or in any other state or federal agency or department in which the property is required to be registered. Such person or persons are hereinafter referred to as the "owner."

c. The owner of the property shall, within thirty (30) days after the mailing of the complaint and notice, file a verified answer to the complaint. The owner shall also appear at the hearing on the action for forfeiture.

(2) *Forfeiture hearing*.

a. If the owner shall fail to appear at the forfeiture hearing, the court will enter an order of forfeiture by default.

b. If the owner appears at the forfeiture hearing, the city solicitor shall show, by a preponderance of the evidence, that the property was used in violation of chapter 15 article VII of the Code of Ordinances of the City of Providence.

c. If the city solicitor has not made the showing required in (b)(2) of this section, the court shall order the property released to the owner.

d. If the court finds that the city solicitor has made the showing required, the owner may offer evidence that the owner was not using the property at the time of the violation that the owner did not know, or have reason to know, that the property was used or possessed, or was to be used or possessed, in any manner that violates chapter 15 article VII. For the purposes of this article, an owner shall be deemed to have knowledge of the provisions of chapter 15, article VII.

e. If the owner rebuts the city solicitor's showing, by a preponderance of the evidence, as set forth in (b)(4) of this section, then the complaint for forfeiture shall be denied and dismissed. The court will determine, based on the circumstances presented, whether the owner shall be responsible for any fines or costs.

f. Where the city solicitor has made the required showing, and the owner has not rebutted that showing by a preponderance of the evidence, or where the court enters forfeiture by default, the court may order:

1. That the property be destroyed by the agency which seized it or by some other municipal agency designated by the court, or
2. That the property be delivered to and retained for use by the agency which seized it, or to some other municipal agency designated by the court, or
3. That the property be sold at public auction by an agency designated by the court.

g. Proceeds from sale at public auction, after payment of all reasonable charges and expenses for storage and public auction, shall be used by the Providence Police Department to enforce chapter 15 article VII.

(Ord. No. 2017-9, § 1, 5-5-17)

Secs. 15-106, 15-107. Reserved.

ARTICLE VIII. REASONABLE SPEEDS

Sec. 15-108. Reasonable and prudent speeds.

No person shall drive a vehicle on a highway at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing in every event, speed shall be so controlled as may be necessary to avoid colliding with any person, vehicle, or other conveyance on or entering the highway in compliance with legal requirements and the duty of all persons to use due care.

(Ord. 1990, ch. 90-6, § 1, 3-16-90)

Sec. 15-109. Conditions requiring reduced speed.

The driver of every vehicle shall, consistent with the requirements of section 15-108, drive at an appropriate reduced speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding roadway and when special hazard exists with respect to pedestrians or other traffic or by reason of weather or highway conditions.

(Ord. 1990, ch. 90-6, § 1, 3-16-90)

Secs. 15-110—15-117. Reserved.

ARTICLE IX. FIRE LANES

Sec. 15-118. Designation of fire lanes on private property.

(a) The marking of fire lanes on private property devoted to public use shall be designated by the traffic engineer and the chief of the fire department. Fire lanes shall mean any area appurtenant to entrances or exits of a building which the traffic engineer and chief of the fire department have established should remain free and clear of parked vehicles for access to such buildings in case of fire or other emergency. Such area may include sidewalks, driveways, portions of parking lots, and other areas adjacent to or near such building entrances or exits, or any fire hydrant.

(b) The designation by the traffic engineer and the chief of the fire department or his designated representative of such fire lanes shall never be held to make the city responsible for maintenance of such fire lanes but the owner of such property shall continue to be responsible for the maintenance of such area.

(c) Parking of motor vehicles or otherwise obstructing fire lanes shall be prohibited at all times.

(d) Upon the designation of a fire lane, the traffic engineer shall give notice of such designation to the owner of such area directing the owner to cause signs to be posted at the expense of the owner at designated locations lettered "Fire Lane—No Parking Anytime." Such signs shall be of a standard size and color of standard lettering and mounting conforming to specifications established by the traffic engineer.

(e) The official record of the designation and location of fire lanes shall be kept in the office of the chief of the fire department.

(f) It shall be the duty of the Providence Police Department to enforce the provisions of this article.

(g) Whenever a person shall be charged with obstructing a fire lane, such person shall be notified in writing in accordance with the provisions of applicable section of the ordinances of the city.

(Ord. 1991, ch. 91-13, § 1, 4-12-91)

Editor's note—Ord. 1991, ch. 91-13, § 1, adopted April 12, 1991, amended Art. VIII by adding § 15-108 thereto. For purposes of classification and to avoid duplication of existing section numbers, the editor has included the provisions as Art. IX, § 15-118.

Secs. 15-119, 15-120. Reserved.

ARTICLE X. AUTOMATED RED LIGHT ENFORCEMENT

Sec. 15-121. Definitions.

In operation means operating in good working condition.

Operator shall mean any individual driving and/or in possession of a motor vehicle.

Owner means the registrant of a motor vehicle or a lessee, except that such term shall not include a motor vehicle rental or leasing company when a motor vehicle registered by such company is being operated by another person under a rental agreement or lease contract with such company.

Recorded images means images recorded by a traffic-control signal monitoring device.

(1) On:

a. Not less than two (2) photographs; or

b. Not less than two (2) microphotographs; or

c. Not less than two (2) electronic images; or

d. Videotape.

(2) Showing a traffic-control signal displaying a circular red or red arrow signal along with the rear of a motor vehicle apparently operated in disregard or disobedience of such signal and, on at least one (1) image or portion of tape, clearly revealing the number or other identifying designation of the license plate displayed on the motor vehicle.

Signature means any manual or facsimile of a person's signature.

System location is the approach to an intersection toward which a photographic, video, digital or electronic camera is directed and is in operation.

Traffic-control signal monitoring device means a device with one (1) or more motor vehicle sensors working in conjunction with a traffic-control signal to produce recorded images of motor vehicles being operated in disregard or disobedience of a circular red or red arrow signal.
(Ord. 2003, ch. 03-44, § 1, 8-1-03)

Sec. 15-122. Penalty.

The owner of a motor vehicle shall be liable for a civil monetary penalty imposed pursuant to this section if such motor vehicle is found, as evidenced by information obtained from a traffic-control signal monitoring device lawfully installed within the city, to have failed to comply with R.I.G.L. sec. 31-13-6. The penalty imposed shall be designated by R.I.G.L. sec. 31-41.1-4.
(Ord. 2003, ch. 03-44, § 1, 8-1-03)

Sec. 15-123. Proof; certificate.

(a) Proof that a particular vehicle violated R.I.G.L. § 31-13-6, as detected by a traffic-control signal monitoring device, together with proof that the particular vehicle is registered with the state division of motor vehicles (or any other state or local vehicle registration office) in the charged person's name, shall raise the evidentiary presumption and constitute prima facie evidence in any prosecution of a violation of that section that the charged person was the person driving the vehicle depicted in the recorded image.

(b) A certificate, sworn to or affirmed by a trained law enforcement officer or a technician employed by the city police department, or a copy thereof, based on inspection of recorded images produced by a traffic-control signal monitoring device shall be considered prima facie evidence of the facts contained therein.

(c) Recorded images made for the purpose of this subsection shall not be a public record.

(d) The provisions of this section shall not limit law enforcement agencies to the use of traffic-control signal monitoring devices in enforcing R.I.G.L. § 31-13-6; and, when there is evidence obtained from another source or sources which constitutes a prima facie case of a violation of R.I.G.L. § 31-13-6, such violation may be prosecuted as otherwise provide by law in lieu of, but not in addition to, enforcement under this section.

(e) Such presumption may be rebutted if the owner, or lessee of the vehicle files a sworn notarized statement with the clerk of the municipal court prior to the return date established on the citation identifying the name and address of the operator of the vehicle at the time of the alleged violation. Upon review of the notarized statement by the city solicitor, or his or her designee, a hearing may be set for prosecution of the alleged violation or the city solicitor may issue a citation to the person that the evidence indicates was the operator of the vehicle at the time of violation. A citation issued under this paragraph shall be mailed no later than two (2) weeks after the review by the city solicitor of the notarized statement.

(f) Such presumption may be rebutted if the owner, or lessee of the vehicle testifies under oath in open court that he or she was not the operator of the vehicle at the time of alleged violation.

(g) Such presumption may be rebutted if a certified copy of a police report, showing that the vehicle or the license plate had been reported to the police as stolen prior to the time of the alleged violation, is presented, prior to the return date established on the citation issued pursuant to this section, to the municipal court. Upon review of the notarized statement by the city solicitor, or his or her designee, a hearing may be set for prosecution of the alleged violation.

(h) Such presumption may be rebutted if the recorded image depicts the vehicle passed through the intersection in violation of R.I.G.L. § 31-13-6 as part of a funeral procession.

(i) Such presumption may be rebutted if the recorded image depicts the vehicle passed through the intersection in violation of R.I.G.L. § 31-13-6 in order to avoid impeding the efforts of an emergency vehicle to pass through the intersection.
(Ord. 2003, ch. 03-44, § 1, 8-1-03)

Sec. 15-124. Penalty; effect of a conviction.

(a) Imposition of a penalty pursuant to this section shall not be deemed a criminal conviction as an operator and shall not be made a part of the operating record of the person upon whom such liability is imposed nor shall it be used for insurance purposes in the provision of motor vehicle insurance coverage. The civil monetary penalty imposed by this section for each violation shall be no greater than imposed by R.I.G.L. § 31-41.1-4.

(b) Upon a failure to respond to or contest any notice of violation by the prescribed date, the municipal court shall request the state motor vehicle administrator to suspend the registration of the motor vehicle as provided by R.I.G.L. § 31-13.1-9.
(Ord. 2003, ch. 03-44, § 1, 8-1-03)

Sec. 15-125. Summons.

(a) A summons for a violation of this section may be executed by the city police and sending by first-class mail a copy thereof to the address of the owner or lessee of the vehicle as shown, in the case of vehicle owners, in the records of the state division of motor vehicles (or any other state vehicle registration office) or, in the case of vehicle lessees or renters, in the records of the lessor. Said summons shall be postmarked not later than twenty-eight (28) days after the date of the alleged violation.

(b) No proceedings for contempt or arrest shall be instituted for failure to appear on the return date of the summons.
(Ord. 2003, ch. 03-44, § 1, 8-1-03; Ord. No. 2017-34, § 1, 9-15-17)

Sec. 15-126. Private entities.

(a) A private entity may enter into an agreement with the city to be compensated for providing the traffic light signal violation monitoring system or equipment, and all related support services, to include consulting, operations and administration, pursuant to all bidding and contract award statutes of the state as well as all provisions of the Home Rule Charter and the Code of Ordinances relating to award

of contracts. However, only a trained law enforcement officer or a technician employed by the city police department may swear to or affirm the certificate required by section 15-123(b) of this article.

(b) Compensation to the manufacturer or vendor shall be based on the value of such equipment and shall not be based on the number of traffic citations issued.
(Ord. 2003, ch. 03-44, § 1, 8-1-03)

Sec. 15-127. Installation and signage.

(a) A sign shall be erected by the city department of traffic engineering on each public highway on the approach to the next traffic-control signal for such highway when a traffic-control signal-monitoring device is monitoring such next signal for such highway.

(b) Such signs shall be at least thirty (30) inches by thirty (30) inches in measurement and shall warn motorists that traffic-control signal monitoring devices are being employed.

(c) Such signage shall remain in place so long as there is an operational traffic-control signal-monitoring device at the relevant intersection.

(d) Not more than forty-five (45) intersections shall be equipped with operational traffic-control signal monitoring devices at any one (1) time.
(Ord. 2003, ch. 03-44, § 1, 8-1-03; Ord. No. 2017-34, § 2, 9-15-17)

Sec. 15-128. Baseline and warning period; monitoring.

(a) Prior to the installation of any traffic-control signal monitoring device or signage therefor, a study shall be done to document the baseline of red-light running at each intersection, so that the efficacy of the installation can be demonstrated. The study shall include, but not limited to, a review of any existing crash data, citizen complaints; and an engineering evaluation of intersection equipment at the designated intersections. Under all circumstances, engineering solutions to problem intersections shall be investigated, and implemented if financially viable, prior to the installation of traffic-control signal-monitoring devices.

(b) Only warning notices and not citations shall be sent during the thirty-day period commencing with installation of each traffic-control signal monitoring device.

(c) Following the installation of traffic-control signal monitoring devices, the city council will monitor their performance as follows:

(1) Every six (6) months, the entity responsible for issuing violations shall provide to the city council a count of the number of violations recorded at each location, by month.

(2) Every six (6) months, the municipal court shall provide to the city council a count of the number of paid violations recorded at each location, by month.

(3) The police department shall provide to the city council a count of the number of accidents which occur at each location.

(Ord. 2003, ch. 03-44, § 1, 8-1-03)

Sec. 15-129. Requirements for traffic-control signals.

Whether or not an intersection has a traffic-control signal monitoring device installed, if there is a traffic-control signal controlling an intersection, it shall:

(1) Incorporate standardized yellow-light timing, pursuant to the equation provided by Caltrans in conformance with the laws set for in the Uniform Vehicle Code and national standards set forth in the Federal Highway Administration's Manual on Uniform Traffic Control Devices. Upon being installed, the vendor shall supply a yearly summary of signal timing, speed, signal cycles and yellow change intervals at photo-enforced intersections.

(2) Employ an all-red interval in which the red signal indication is displayed to all traffic.

(3) If the traffic-light signals or the camera mechanism are found to be defective, i.e., are noncompliant with the yellow-light interval required by section 15-129(1), all citations issued at the relevant intersection(s) during the period of non-compliance which are as yet unpaid, will be dismissed.

(Ord. 2003, ch. 03-44, § 1, 8-1-03)

Sec. 15-130. Security of records.

(a) The videotapes and still photographs recorded by traffic-control signal monitoring devices shall not be deemed "public records" subject to disclosure pursuant to R.I.G.L. § 38-2-2(4)(i).

(b) All videotapes and still photographs recorded which do not identify a violation shall be destroyed immediately after the police department has determined that there is no violation.

(c) All videotapes and still photographs recorded which identify a violation shall be destroyed immediately after the matter is resolved through disposition of the citation.

(d) The manufacturer or vendor shall not release or sell any aggregated data collected, except with prior approval of the city council.

(Ord. 2003, ch. 03-44, § 1, 8-1-03)

ARTICLE XI. MOTORIZED VEHICLES

Sec. 15-131. Motorized devices.

It shall be unlawful for any person to operate a motorized device on any public sidewalk or street, or on any property owned and/or operated by the Providence

Parks Department or the City of Providence. For the purposes of this section, a "motorized device" means a device which may be propelled by human power or helper power or by both, with a motor rated not more than one and one-half (1½) brake horsepower or two (2) (S.A.E.) horsepower, which is capable of a maximum speed of not more than thirty (30) miles per hour, except vehicles moved exclusively by human power, electric personal assistive mobility devices, including Segways, motorized wheelchairs and motorized scooters designed for individuals with disabilities, or any other vehicle utilized by a disabled person as his or her only practicable means of transportation.

For the purposes of this section, a "motorized device" shall not include any such device being operated by members of the Providence Police Department, or any employee of the parks department, or their designees, or any employee of the City of Providence operating the vehicle in an official capacity, or any authorized agent of the city.

For the purpose of this section, the terms *disabled* and *disabilities* refer to an impairment which prevents or impedes walking, which shall include but not be limited to:

(1) An impairment which prevents walking and requires use of a wheelchair;

(2) An impairment which involuntarily causes difficulty or insecurity in walking or climbing stairs with or without the need to use braces, crutches, canes or artificial support;

(3) An impairment caused by amputation, arthritis, or an orthopedic condition;

(4) An impairment in respiratory, circulatory, or neurological health which limits the person's walking capability; or

(5) An impairment caused by the taking of medication that prohibits a person from holding a driver's license.

When a minor operates a motorized device, the minor's legal guardian is liable and legally responsible for all injuries and damages caused by the minor's operation of the motorized device, and for the minor's violation of this section.

Any motorized device being operated in violation of this section shall be confiscated by the Providence Police Department, and removed by towing or other means. Such devices shall be recovered only upon payment of applicable fines or completion of community service, if any.

Any person convicted of willfully violating this section shall be guilty of an infraction punishable by a fine not to exceed one hundred dollars ($100.00) and/or a requirement to perform community service for a total time not to exceed twenty (20) hours over a period not to exceed thirty (30) days, during times other then his or her hours of school attendance and employment. Each violation of this section mentioned section shall be a separate infraction.

A second violation of this section shall be punishable by a fine not to exceed two hundred fifty dollars ($250.00) and/or a requirement to perform community service for a total time not to exceed twenty (20) hours over a period not to exceed thirty (30) days, during times other then his or her hours of school attendance and employment. Any third-time violator shall forfeit the motorized device, in addition to payment of a fine not to exceed three hundred dollars ($300.00) and community service as provided for a second-time offender.
(Ord. 2004, ch. 04-27, § 1, 6-4-04; Ord. 2004, ch. 04-52, § 1, 12-7-04; Ord. 2009, ch. 09-50, § 1, 8-6-09)

Sec. 15-132. Low speed vehicles.

(a) For the purposes of this chapter, a low speed vehicle means a self-propelled, electrically or gas powered motor vehicle which: is designed to carry four (4) or fewer persons; is designed to be, and is, operated at speeds of twenty-five (25) miles per hour or less.

(b) Notwithstanding the provisions of section 15-131, the following organizations are authorized to operate low speed vehicles upon public streets and incidentally upon sidewalks if those vehicles meet the requirements of this section: The Omni Group; Providence Downtown Improvement District; Rhode Island Convention Center Authority; Providence Neighborhood Planting Program; the Dunkin' Donuts Center, or any other organization approved by the chief of police.

(c) Each person operating a low speed vehicle on a public sidewalk or street shall possess a valid driver's license issued pursuant to R.I.G.L. § 31-10-1.

(d) Every operator of a low speed vehicle shall maintain financial responsibility on such low speed vehicle if the low speed vehicle is to be operated upon public streets.

(e) The operator of a low speed vehicle shall observe all traffic laws and local ordinances regarding the rules of the road. A low speed vehicle shall not be operated on a street or a highway with a posted speed limit greater than twenty-five (25) miles per hour. The provisions of this subsection shall not prohibit a low speed vehicle from crossing a street or highway with a posted speed limit greater than thirty-five (35) miles per hour.

(f) No person shall operate a low speed vehicle: (1) in any careless way as to endanger the person or property of another; or (2) while under the influence of alcohol or any controlled substance.
(Ord. No. 2015-19, § 1, 6-29-15; Ord. No. 2015-64, § 1, 12-28-15)

Sec. 15-133. Definition of terms.

As used in this article, the following words shall, unless the context clearly requires otherwise, have the following meanings:

Association means any association of homeowners, community association, condominium association, cooperative or any other nongovernmental entity with

covenants, bylaws and administrative provisions with which a homeowner's compliance is required, including but not limited to an association as defined by G.L. 1956, § 34-36.1-3.01.

Dedicated parking spot means a parking spot that is:

(1) located within an owner's separate interest; and

(2) in a common area, but subject to exclusive use rights of an owner, including, but not limited to, a deeded parking space, a garage space, a carport or a parking space that is specifically designated for use by a particular owner.

Electric vehicle charging system means a system that is designed in compliance with The National Electrical Code® (NEC®) Article 625 and delivers electricity from a source outside an electric vehicle into 1 or more electric vehicles; provided, however, that an electric vehicle charging system may include several charge points simultaneously connecting several electric vehicles to the system.

Owner means a person who owns a separate lot, unit, or interest, along with an undivided interest or membership interest in the common area of the entire project, including but not limited to condominiums, planned unit developments, and parcels subject to a homeowners' association.

Reasonable restrictions mean restrictions that do not significantly increase the cost of the station, significantly decrease its efficiency or specified performance, or effectively prohibit the installation altogether.

Separate interest means a separate lot, unit, or interest to which an owner has exclusive rights of ownership.

(1) An association shall not prohibit or unreasonably restrict an owner from installing an electric vehicle charging station:

a. On or in areas subject to the owner's separate interest;

b. On or in areas to which the owner has exclusive use; or

c. On a common element; provided, however, that the common element is within a reasonable distance of the dedicated parking spot. Nothing in this subsection shall be construed to prohibit an association from making reasonable restrictions, as defined in this section.

(2) Installation of an electric vehicle charging station shall be subject to the following:

a. The electric vehicle charging station shall be installed at the owner's expense;

b. The electric vehicle charging station shall be installed by a licensed contractor or electrician upon proper acquisition of a building permit for the installation;

c. An electric vehicle charging station shall conform to: (A) all applicable health and safety standards and requirements imposed by national, state and local authorities; and (B) all other applicable zoning, land use or other ordinances or land use permits.

(3) An association may require an owner to submit an application before installing an electric vehicle charging station, pursuant to the following provisions:

a. If an association requires such an application, the application shall be processed and approved by the association in the same manner as an application for approval of all other alterations to the property, and shall not be willfully avoided or delayed;

b. The association shall approve the application if the owner complies with all other standards of the association for alterations to the property and this section;

c. The approval or denial of an application shall be in writing;

d. If an application is not denied in writing within sixty (60) days from the date of receipt of the application, the application shall be deemed approved, unless that delay is the result of a reasonable request for additional information;

e. An association may not assess or charge an owner a fee for the placement of an electric vehicle charging station, except a reasonable fee for processing the application; provided, however, that such a fee exists for all other applications for approval of alterations to the property.

(4) An owner of a separate interest or an owner who has exclusive rights to an area where an electric vehicle charging system is installed shall be responsible for:

a. Disclosing to prospective buyers the existence of a charging station of the owner and the related responsibilities of the owner pursuant to this section;

b. Disclosing to prospective buyers whether the electric vehicle charging station is removable and whether the owner intends to remove the station in order to install it at the owner's new place of residence;

c. Costs of the maintenance, repair and replacement of the electric vehicle charging station until the charging station is removed, and for restoration of the common area after removal;

d. Costs for damage to the electric vehicle charging station, common area, exclusive common area or a separate interest resulting from the installation, maintenance, repair, removal or replacement of the charging station;

e. The cost of electricity associated with the electric vehicle charging station; provided however, that the owner shall connect the electric vehicle charging station to the owner's electricity utility account unless the licensed contractor performing the installation deems that to be impossible; provided further, that if the connection is deemed impossible, the association shall allow the owner to connect the electric vehicle charging station to the common electricity account, but may require reimbursement by the owner to the association for the electricity costs, per the owner's responsibility for such costs; and

f. Removing the electric vehicle charging station if reasonably necessary for the repair, maintenance or replacement of any property of the association or separate interests.

(5) An association may install an electric vehicle charging station in the common area for the use of all members of the association and, in that case, the association shall develop appropriate terms of use for the charging station.

(Ord. No. 2022-67, § 1, 12-15-2022)

Secs. 15-134—15-140. Reserved.

ARTICLE XII. WEIGHT LIMITS

Sec. 15-141. Weight of vehicles on bridges.

No person shall drive or cause to be driven any vehicle upon or across any existing bridge in the city, the gross vehicle weight rating (GVWR) of which vehicle including the load exceeds fifteen (15) tons. This article does not exempt trucks holding a valid overweight permit issued by the State of Rhode Island.

(Ord. No. 2024-11, § 1, 4-5-24)

Sec. 15-142. Weight of trucks on certain streets.

(a) *Definitions.* Within this section:

Truck means every vehicle falling within any definition in Rhode Island General Laws §§ 31-1-4 and 31-1-5.

Weight means gross vehicle weight.

(b) *Weight limits.* Trucks exceeding the listed weight are prohibited from operating on the following streets between the listed extents:

Street	Extents of Weight Limit	Weight Limit
Angell Street	Benefit Street to Wayland Avenue	15 tons
South Angell Street	Wayland Avenue to Butler Avenue	15 tons

Street	Extents of Weight Limit	Weight Limit
Waterman Street	Benefit Street to Butler Avenue	15 tons
Gano Street	Angell Street to Trenton Street	15 tons
Medway Street	Butler Avenue to Gano Street	15 tons
Butler Avenue	Angell Street to South Angell Street	15 tons
Butler Avenue	Waterman Street to Pitman Street	15 tons

(c) *This section shall not apply to:*

(1) Vehicles that are statutorily exempt under R.I.G.L. § 31-25-2;

(2) School buses, as defined by R.I.G.L. § 31-1-3(aa);

(3) Vehicles designed and used for the hauling of refuse when hauling refuse;

(4) Vehicles whose origin or destination abuts the restricted roadway; and

(5) Vehicles performing maintenance, utility work, cleaning, snow removal, or de-icing in, on, above, and along the restricted roadway.

(6) Vehicles owned and operated by the State of Rhode Island and City of Providence or vendors contracted by the State of Rhode Island and the City of Providence and being used as a vendor at the time they are traveling on the restricted roadway.

(Ord. No. 2024-11, § 1, 4-5-24)

Chapter 16

OFFENSES AND MISCELLANEOUS PROVISIONS*

Article I. In General

Sec. 16-1. Abandoned or unattended refrigerators, other receptacles.
Sec. 16-2. Assemblages, demonstrations at War Memorial monument.
Sec. 16-3. Disorderly and indecent conduct.
Sec. 16-4. Malicious injury—Fences, posts, trees.
Sec. 16-5. Same—Reward for apprehension of person maliciously damaging city property.
Sec. 16-6. Same—Lights.
Sec. 16-7. Same—Drinking fountains and urinals.
Sec. 16-8. Minors—Sale of cigarettes, tobacco, restricted; notice required.
Sec. 16-9. Same—Sale, delivery of model airplane glue prohibited.
Sec. 16-10. Noise—Prohibited generally.
Sec. 16-11. Same—Sounding of horn or signal device of vehicle.
Sec. 16-12. Same—Sounding horn, signal device for unnecessary period.
Sec. 16-13. Obstruction of public ways.
Sec. 16-13.1. Residential picketing.
Sec. 16-13.2. Obstruction or disturbance of public school session.
Sec. 16-14. Smoking on buses.
Sec. 16-14.1. Smoking or possessing drugs in civic center.
Sec. 16-14.2. Throwing litter or foreign objects upon playing or performance area in civic center.
Sec. 16-15. Spitting.
Sec. 16-16. Swimming or bathing—Proper attire required.
Sec. 16-17. Same—Prohibited in certain waters.
Sec. 16-18. Gambling on public conveyances, in public places, or while in trespass.
Sec. 16-19. Possession and use of laser pointers.

***Cross references—**Closing hours for commercial establishments, § 14-1; regulations of auctions and auctioneers, 14-20 et seq.; bootblacks and newsboys, § 14-43 et seq.; commercial parking lots, § 14-64 et seq.; engineers and boiler operators, § 14-85 et seq.; intelligence offices, § 14-109 et seq.; junk and second hand dealers, § 14-127 et seq.; pawn brokers, § 14-155 et seq.; peddlers and hawkers, § 14-169 et seq.; shows and other amusements, § 14-193 et seq.; expulsion of disorderly persons from bathhouses, etc., § 23-48; trees, ch. 23½; acceptance of P.L. 1912, Ch. 807, "Act to provide for abatement of smoke in cities of twenty thousand or more inhabitants," Ord. of 1914, Ch. 32.

State law references—Special act authorizing certain police officers to give personal recognizance upon complaint for criminal offenses, P.L. 1929, Ch. 1437; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Sec. 16-20. Prohibition against certain forms of aggressive solicitation.
Sec. 16-21. Loud or unruly gatherings—Public nuisance.
Sec. 16-22. Chronic nuisance properties.
Sec. 16-23. Reserved.
Sec. 16-24. Reserved.
Sec. 16-25. Prohibition against unlicensed establishments charging patrons fees related to the consumption of alcohol.
Sec. 16-26. Loitering on bus line property.
Sec. 16-27. Failure to pay city fees.
Secs. 16-28—16-50. Reserved.

Article II. Discrimination

Sec. 16-51. Findings of the council.
Sec. 16-52. Public policy.
Sec. 16-53. Exercise of police power.
Sec. 16-54. Definition of term.
Sec. 16-55. Unlawful housing practices.
Sec. 16-56. Unlawful education practices.
Sec. 16-57. Unlawful employment practices.
Sec. 16-58. Unlawful credit practices.
Sec. 16-59. Unlawful public accommodation practice.
Sec. 16-60. Exercise of privilege; exemption.
Sec. 16-61. Time limit for filing charges.
Sec. 16-62. Commission established.
Sec. 16-63. Function and duties of commission.
Sec. 16-64. Powers of commission.
Sec. 16-65. Certification of bona fide qualification.
Sec. 16-66. Power to prevent unlawful practices; preference for informal methods.
Sec. 16-67. Extraordinary relief.
Sec. 16-68. Conciliation of charges of unlawful practices.
Sec. 16-69. Complaint and notice of hearing.
Sec. 16-70. Amendment of complaint and answer; participation by commissioner assigned to preliminary determination.
Sec. 16-71. Answer to complaint; respondent's right at hearing.
Sec. 16-72. Rules of evidence.
Sec. 16-73. Evidence of patterns of discrimination.
Sec. 16-74. Testimony at hearing.
Sec. 16-75. Order dismissing charge or complaint.
Sec. 16-76. Order and compliance.
Sec. 16-77. Modification of findings of orders.
Sec. 16-78. Right to judicial review or enforcement.
Sec. 16-79. Modification of commission's findings and orders on additional evidence.

Sec. 16-80. Exclusive jurisdiction of court; appeal to supreme court.
Sec. 16-81. Commission's copy of testimony; hearing on transcript.
Sec. 16-82. Commission's attorneys.
Sec. 16-83. Decree for enforcement of commission's order.
Sec. 16-84. Posting of statutory provisions.
Sec. 16-85. Equal pay task force.
Sec. 16-86. Affirmative action plan.
Sec. 16-87—16-90. Reserved.

Article III. Noise Control

Sec. 16-91. Declaration of policy and scope.
Sec. 16-92. Definitions.
Sec. 16-93. Unnecessary, excessive or offensive noise prohibited.
Sec. 16-94. Hawkers and peddlers, shouting.
Sec. 16-95. Disorderly house.
Sec. 16-96. Schools, hospitals and churches.
Sec. 16-97. Machinery, equipment, fans, air conditioning, leaf blowers.
Sec. 16-98. Construction and repairs.
Sec. 16-99. Motor vehicles.
Secs. 16-100—16-104. Reserved.
Sec. 16-105. Amplified sound—Regulations.
Sec. 16-106. Violations—Penalty.
Sec. 16-107. Same—Public nuisance; injunctions.
Sec. 16-108. Reserved.
Sec. 16-109. Complaints.
Secs. 16-110—16-120. Reserved.

Article IV. Security Alarm Systems

Sec. 16-121. Declaration of policy.
Sec. 16-122. Definitions.
Sec. 16-123. Alarm permits.
Sec. 16-124. Duties of alarm user.
Sec. 16-125. Duties of alarm company.
Sec. 16-126. Prohibited acts.
Sec. 16-127. Enforcement.
Sec. 16-127.1. Alarm user awareness class.
Sec. 16-128. Appeals.
Sec. 16-129. Confidentiality.
Sec. 16-130. Government immunity.
Sec. 16-131. Severability.
Secs. 16-132—16-140. Reserved.

Article V. Graffiti

Sec. 16-141. Definitions.
Sec. 16-142. Prohibited acts—Defacement.
Sec. 16-143. Violation; penalty.
Sec. 16-144. Sale of graffiti materials to minors.
Sec. 16-145. Graffiti as nuisance.

ARTICLE I. IN GENERAL

Sec. 16-1. Abandoned or unattended refrigerators, other receptacles.

It shall be unlawful for any person, firm or corporation to leave outside of any building or dwelling in a place accessible to children any abandoned, unattended or discarded icebox, refrigerator or any other container of any kind which has an airtight door, snap lock or other locking device thereon without first removing the said door, snap lock or lock from said icebox, refrigerator or container.
(Ch. 23, § 3.1, added by Ord. 1953, ch. 794, § 1)

Sec. 16-2. Assemblages, demonstrations at War Memorial monument.

No group of persons shall assemble on any part of the World War Memorial monument in Memorial Square or on the sidewalk surrounding the same for the purposes of making or participating in a demonstration or public exercises of any kind and no person shall address any such group or gathering from any part of said monument or the sidewalk surrounding the same; provided however, that memorial or patriotic exercises intimately associated with the purpose for which the monument was erected, may be held at any time at said monument upon the written approval of the mayor.
(Ord. 1930, ch. 772, § 1; Rev. Ords. 1946, ch. 23, § 21)

Sec. 16-3. Disorderly and indecent conduct.

Any person who engages in conduct which violates any of the following subsections thereby commits disorderly conduct:

(a) Any person who shall act in a threatening, violent or tumultuous manner toward another whereby any person is placed in fear of safety of his life, limb or health or the property of any person is placed in danger of being destroyed or damaged; or

(b) Any person who shall, in a public place or near a private residence that he has no right to occupy, disturb any person by making loud and unreasonable noise which under the circumstances would disturb a person of average sensibilities; or

(c) Any person who shall in a public place use "fighting words" or offensive language or words which by their very utterance inflict injury or are likely to provoke a violent reaction on the part of the average person so addressed; or

(d) Any person, who alone or in concert with others, obstructs any place ordinarily used for the passage of persons, vehicles or conveyances or otherwise engages in conduct with obstructs or interferes physically with a lawful meeting, procession or gathering; or

(e) Any person who shall assemble or congregate with another or others for the purpose of causing, provoking, or engaging or who shall cause, provoke or engage in any fight or other riotous conduct whereby the life, limb, health or property of another is endangered; or

(f) Any person who shall throw any stone or other missile upon or at any person, vehicle, building, tree, sign or other public private property; or

(g) Any person who shall urinate or defecate on or from any public street, alley, sidewalk or floor of any public building or building where the public gathers or has access, or who enters upon the private property of another and shall urinate or defecate on such private property; or

(h) Any person who enters upon the private property of another and looks into an occupied building structure located thereon without visible or lawful business with the owner or occupant thereof.

Any person found guilty of any violation of this section shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by imprisonment of not fewer than three (3) days nor more than thirty (30) days or by not less than ten (10) days nor more than thirty (30) days of voluntary community service.
(Ord. 1914, ch. 54, § 1; Rev. Ords. 1946, ch. 23, §1; Ord. 1982, ch. 82-27, § 1, 6-6-82; 1989, ch. 89-24, § 1, 11-6-89; Ord. 1995, ch. 95-3, § 1, 3-21-95)

State law references—Offenses against decency, §§ 11-2-1, 11-3-4, 11-6-1—11-6-4, 11-9-11—11-9-15, 11-10-1, 11-11-15, 11-11-16, 11-20-1, 11-20-2, 11-34-1—11-34-7, Chs. 11-40, 11-45, Gen. Laws 1956; offenses against public peace, §§ 11-11-1, 11-11-3, 11-11-4, 11-38-1—11-38-4, 11-44-12—11-44-14, 11-44-21, 11-47-21, 11-47-21, 11-47-37, 11-47-38, 45-15-13—45-15-15, Gen. Laws 1956.

Sec. 16-4. Malicious injury—Fences, posts, trees.

It shall be unlawful for any person maliciously, wantonly or carelessly to daub with paint, cut, break, or otherwise injure, or by scratching or writing with paint, blacking, chalk, or in any other way or manner, to deface any post, lamppost, fence, tree, tree box, house or other building situate in or upon any street, highway, bridge, wharf or public place or ground set apart for public purposes in the city, or any ornament or appurtenance of such post, lamppost, fence, tree, tree box, house or other building.
(Ord. 1914, ch. 35, § 2; Rev. Ords. 1946, ch. 23, § 3)

Cross references—Injury to monuments, trees, etc., in North Burial Ground, § 6-35; injuring fire hose or apparatus, § 9-6; lying on or overturning park seats, tampering with park property, throwing stones, etc., in parks, § 8-14 et seq.

State law reference—Maliciously injuring plants, buildings, fences, etc., § 11-44-2, Gen. Laws 1956.

Sec. 16-5. Same—reward for apprehension of person maliciously damaging city property.

(a) *Authorized.* The mayor of the city is hereby authorized to offer a suitable reward, not to exceed the sum of five hundred dollars ($500.00) in any case, for any information leading to the detection, apprehension and conviction of any offender, or offenders who maliciously destroy or deface public or private property.

(b) *Payment.* Said reward shall be paid by the city treasurer upon the order of the city controller, and said city controller shall draw said order for payment whenever he shall receive a certificate of final conviction from the justice or clerk of the court before which said offender or offenders were tried.
(Ord. 1914, ch. 35, § 2; Rev. Ords. 1946, ch. 23, § 3; Ord. 1966, ch. 1778, § 1; Ord. 1968, ch. 68-47, § 1, 7-8-68; Ord. 2006, ch. 06-34, § 1, 6-12-06)

Editor's note—Ord. 1968, Ch. 68-47, § 1, enacted July 8, 1968, amended Ch. 23, § 3, 1946 Revised Ordinances, included herein as §§ 16-4 and 16-5, by increasing the reward provided for in § 16-5(a).

Cross references—Rewards for information as to persons injuring, destroying wildlife in parks, § 18-19; as to persons damaging property in parks, § 18-20.

Sec. 16-6. Same—Lights.

It shall be unlawful for any person maliciously, wantonly or carelessly, to break, throw down, extinguish or otherwise injure any light, erected for the purpose of lighting any street, highway, bridge, wharf or public place or ground set apart for public purposes in the city, whether the same shall have been erected by the city or any other corporation or by any individual.
(Ord. 1914, ch. 35, § 1; Rev. Ords. 1946, ch. 23, § 4)

Sec. 16-7. Same—Drinking fountains and urinals.

It shall be unlawful for any person to deface or defile, or in any way wilfully injure or damage, any public drinking fountain, or watering trough, or any public urinal, in the city, or any appurtenances thereof, or any pipes leading thereto or therefrom, or to waste the water supplied thereto.
(Ord. 1914, ch. 35, § 3; Rev. Ords. 1946, ch. 23, § 2)

Sec. 16-8. Minors—Sale of cigarettes, tobacco, restricted; notice required.

(a) *Vending machines.* The owner, lessor, lessee or custodian of any cigarette vending machine now or hereafter located in any place within the city for the purpose of dispensing cigarettes shall prominently display on the front there a copy of Chapters 11-9-13 and 11-9-14 in a type size of not less than twelve (12) point.

(b) *Dealers.* The owner, lessor, lessee, operator or any person selling cigarettes and tobacco products, shall prominently display or cause to be displayed in or upon the tobacco counter where cigarette or tobacco products are kept or sold or, if there be no counter at the place where such products are dispensed, a copy of Chapters 11-9-13 and 11-9-14 in a type size of not less than twelve (12) point.
(Ord. 1964, ch. 1591, §§ 1, 2)

Cross references—Permits to minors over sixteen years of age, under sixteen years of age, to act as bootblacks and newsboys, §§ 14-45, 14-46; junk dealers doing business with minors, § 14-141; renting bicycles to minors, § 15-75.

Sec. 16-9. Same—Sale, delivery of model airplane glue prohibited.

(a) No person shall sell or otherwise deliver or cause to be sold or delivered to any person under the age of twenty-one (21) years any model airplane glue.

(b) No person having possession of any model airplane glue shall deliver possession thereof to any person under the age of twenty-one (21) years knowing or having reasonable cause to believe that the same will be used as an inhalant.
(Ord. 1962, ch. 1499, §§ 1, 2)

Cross references—Junk dealers doing business with minors, § 14-141; renting bicycles to minors, § 15-75.

Sec. 16-10. Noise—Prohibited generally.

It is hereby declared to be a nuisance and it shall be unlawful for any person to make, cause or suffer or permit to be made or caused upon any premises owned, occupied or controlled by him, or upon any public street, alley or thoroughfare in the city unnecessary noises or sounds by means of the human voice, or by any other means or methods which are physically annoying to persons, or which are so harsh, or so prolonged or unnatural, or unusual in their use, time and place as to occasion physical discomfort, or which are injurious to the lives, health, peace and comfort of the inhabitants of the city.
(Ord. 1942, ch. 1122, § 1; Rev. Ords. 1946, ch. 23, § 5; Ord. 1969, ch. 69-2, 1-2-69)

Cross references—Unnecessary noise in hospital quiet zone, § 12-10; ringing bells for sales, § 14-9; hawking and shouting by hawkers and peddlers, §§ 14-178, 14-179; signal bells on bicycles, § 15-74.

Sec. 16-11. Same—Sounding of horn or signal device of vehicle.

The sounding of any horn or signal device on any automobile, motorcycle, bus, streetcar, or other vehicle while not in motion is declared to be a loud, disturbing and unnecessary noise and is prohibited, except when such horn or signal device is sounded as a danger signal if another vehicle is approaching apparently out of control.
(Ord. 1942, ch. 1122, § 2; Rev. Ords. 1946, ch. 23, § 6)

Cross references—Unnecessary noise in hospital quiet zones, § 12-10; ringing bells for sales, § 14-9; signal bells on bicycles, § 15-74.

Sec. 16-12. Same—Sounding horn, signal device for unnecessary period.

The creation by means of any horn or signal device of any unreasonable or harsh sound and the sounding of such device for an unnecessary or unreasonable period of time is hereby declared to be a loud, disturbing and unnecessary noise in violation of section 16-10 hereof.
(Ord. 1942, ch. 1122, § 3; Rev. Ords. 1946, ch. 23, § 7)

Cross references—Unnecessary noise in hospital quiet zones, § 12-10; ringing bells for sales, § 14-9; signal bells on bicycles, § 15-74.

Sec. 16-13. Obstruction of public ways.

(a) No person shall stand on any footwalk, sidewalk, parking lot, doorstep or in any doorway in this city as to obstruct a free passage for foot passengers; nor place sports equipment or other obstructions within any street or sidewalk within the city so as to impede the flow of vehicular or pedestrian traffic; or to hinder or delay passers-by or persons residing or doing business in the vicinity thereof.

(b) Any person obstructing any footwalk, sidewalk, parking lot, step or doorway, or utilizing sports equipment or other obstructions within any street or sidewalk within the city, shall move, or remove the equipment or other obstruction, immediately when requested to do so by a police officer.

(c) The preceding paragraphs shall not apply to individuals who are exercising a right to protest; however, in no event shall there be less than three (3) feet of unobstructed sidewalk access at all times.

(d) The director of public works, or his designee, is hereby authorized to remove sports equipment or any other obstructions from any street or sidewalk within the city at the request of a police officer.
(Ord. 1914, ch. 30, § 11; Rev. Ords. 1946, ch. 23, § 8; Ord. 1969, ch. 69-1, 1-2-69; Ord. 1971, ch. 71-55, § 1, 10-21-71; Ord. 1971, ch. 71-56, § 1, 10-21-71; Ord. 1971, ch. 71-72, § 1, 11-19-71; Ord. 1973, ch. 73-13, § 1, 3-9-73; Ord. 2005, ch. 05-61, § 1, 12-15-05)

Sec. 16-13.1. Residential picketing.

(a) Declaration. It is hereby declared that the protection and preservation of the home is the keystone of democratic government; that the public health and welfare and the good order of the community require that members of the community enjoy in their homes and dwellings a feeling of well-being, tranquility, and privacy, and when absent from their homes and dwellings, carry with them the sense of security inherent in the assurance that they may return to the enjoyment of their homes and dwellings; that the practice of picketing before or about residences and dwellings causes emotional disturbance and distress to the occupants; obstructs and interferes with the free use of public sidewalks and public ways of travel; that such practice has as its object the harassing of such occupants; and without resort to such practice full opportunity exists, and under the terms and provisions of this ordinance will continue

to exist for the exercise of freedom of speech and other constitutional rights; and that the provisions hereinafter enacted are necessary for the public interest to avoid the detrimental results herein set forth.

(b) It shall be unlawful for any person to engage in picketing before or about the residence or dwelling of any individual.
(Ord. 1971, ch. 71-55, § 2, 10-21-71; Ord. 1971, ch. 71-56, § 2, 10-21-71; Ord. 1971, ch. 71-72, § 2, 11-19-71; Ord. 1973, ch. 73-13, § 2, 3-9-73)

Sec. 16-13.2. Obstruction or disturbance of public school session.

(a) It shall be unlawful for any person who is not a member of the school staff or student body to obstruct, interrupt, or disturb any public session on or about any school building or grounds, [and any person who does so] shall be guilty of disorderly conduct.

(b) "Any person" shall also include a student who has been duly suspended, reassigned, or expelled.

(c) Penalty. Any person violating this section shall be subject to the provisions of section 1-10 of the Code of Ordinances of the City of Providence.

(d) This section shall take effect upon its passage.
(Ord. 1974, ch. 74-8, 2-26-74)

Sec. 16-14. Smoking on buses.

No person shall enter into or ride upon any bus in the city, operated for the transportation of passengers, smoking or carrying any lighted or smoldering pipe, cigar or cigarette except upon a chartered or private bus.
(Ord. 1943, ch. 1199, § 1; Rev. Ords. 1946, ch. 23, § 14)

Sec. 16-14.1. Smoking or possessing drugs in civic center.

Smoking shall be prohibited in the arena portion of the Providence Civic Center and the possession and use of drugs in any form shall be prohibited in all portions of the Providence Civic Center.
(Ord. 1974, ch. 74-27, § 1, 9-9-74)

Editor's note—Ord. 1974, Ch. 74-27, § 1, enacted Sept. 9, 1974, did not specifically amend this Code, hence inclusion as § 16-14.1 was at the discretion of the editors.

Sec. 16-14.2. Throwing litter or foreign objects upon playing or performance area in civic center.

(a) The throwing, casting or depositing of litter or foreign objects on the playing or performance area is prohibited. It shall be unlawful for any person, in person or by his agent, employee or servant, to cast, throw or deposit any litter or foreign object

whatsoever, either liquid or solid, in or upon the playing or performance area within the Providence Civic Center. Provided, this section shall not apply to the deposit of materials under the authority of the Providence Civic Center.

(b) Penalty. Any person violating any provision of this section shall be fined not less than ten dollars ($10.00) or not more than two hundred dollars ($200.00) for each offense; and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues.
(Ord. 1974, ch. 74-36, § 2, 11-11-74)

Editor's note—Ord. 1974, Ch. 74-36, §§ 1, 2, being nonamendatory of this Code, has been included herein as § 16-14.2 at the discretion of the editors.

Sec. 16-15. Spitting.

No person shall spit on any sidewalk, or in any church, theatre, grocery, market, store or building frequented by the public, and no person shall spit upon or in any railway station, public building, vessel, railway car, bus terminal, bus or licensed vehicle.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 23, § 15)

State law reference—Spitting in public places, §§ 23-9-15, 23-9-16, Gen. Laws 1956.

Sec. 16-16. Swimming or bathing—Proper attire required.

No person shall, for the purpose of swimming or bathing, unless properly clothed, enter into any of the waters of the harbor, rivers, ponds, public swimming pools, or other waters lying within the limits of the city.
(Ord. 1914, ch. 3, § 1; Rev. Ords. 1946, ch. 23, § 17)

Cross reference—Parks and recreation, § 18-1 et seq.

State law reference—Power of city to prohibit indecent exposure of bathers, § 45-6-1, Gen. Laws 1956.

Sec. 16-17. Same—Prohibited in certain waters.

No person shall, for the purpose of swimming or bathing, enter into the waters of the harbor between Crawford Street Bridge and Fox Point, nor into any of the waters of any park.
(Ord. 1941, ch. 3, § 2; Rev. Ords. 1946, ch. 23, §18)

Sec. 16-18. Gambling on public conveyances, in public places, or while in trespass.

(a) Whoever, in a public conveyance or public place, or in a private place upon which he or she is trespassing, participates in games of chance, including but not limited to cards or dice, for money or other property, or places bets or wagers upon the outcome of such games, shall be punished by a fine of not more than two hundred dollars ($200.00), or by imprisonment for not more than thirty (30) days or both.

(b) Whoever shall conduct or allow or suffer such a game to be conducted upon his or her property shall be subject to a fine of not more than two hundred dollars ($200.00) or imprisonment for not more than thirty (30) days, or both.
(Ord. 1983, ch. 83-15, § 1, 4-22-83)

Editor's note—Nonamendatory ch. 83-15, approved April 22, 1983, has been codified as § 16-18 at the editor's discretion.

Sec. 16-19. Possession and use of laser pointers.

(a) *Definition.* For purposes of this chapter, "laser pointing device" means any hand-held device which emits light amplified by the stimulated emission of radiation which is visible to the human eye.

(b) *Pointing or focusing of laser beam at person or animal prohibited.* It shall be unlawful for any person to focus, point or shine a laser beam directly or indirectly on another person or animal.

(c) *Prohibited sale to minors.* No person, firm or corporation within the city shall sell any laser pointing device to a consumer under the age of eighteen (18) years.

(d) *Prohibited display for sale.* No person, firm or corporation within the city engaged in the sale of laser pointing devices shall store or display for sale any laser pointing devices unless such items are contained within a sealed and locked case, or are located behind a service counter, or in some manner which restricts access to laser pointing devices by their customers and/or the general public.

(e) *Penalty for violation.* Any person who violates any provision of this chapter shall be punished by a fine not to exceed one hundred dollars ($100.00).
(Ord. 2002, ch. 02-2 §§ 1—5, 1-8-02)

Sec. 16-20. Prohibition against certain forms of aggressive solicitation.

(a) For purposes of this section:

Aggressive manner shall mean:

(1) Approaching or speaking to a person(s), or following a person(s) before, during, or after soliciting, if that conduct is intended or is likely to cause a reasonable person to fear bodily harm to oneself or to another, or damage to or loss of property;

(2) Following the person being solicited, with the intent of asking that person for money or other things of value;

(3) Intentionally touching or causing physical contact with another person without the person's consent in the course of soliciting;

(4) Intentionally blocking or interfering with the safe or free passage of a pedestrian or vehicle by any means, including unreasonably causing a pedestrian or vehicle operator to take evasive action to avoid physical contact;

(5) Using violent or threatening gestures toward a person solicited;

(6) Continuing to solicit from a person after the person has given a negative response to such soliciting;

(7) Speaking in a volume unreasonably loud under the circumstances;

(8) Soliciting money from anyone who is waiting in line for entry to a building or for another purpose.

(9) Entering or occupying a roadway or intersection for purpose of soliciting the occupant(s) of a vehicle.

Soliciting shall mean asking for money or objects of value, with the intention that the money or object be transferred at that time, and at that place. Soliciting shall include using the spoken, written or printed word, bodily gestures, signs or any other means of communication with the purpose of obtaining an immediate donation of money or other thing of value.

Public place shall mean a place to which a governmental entity has title, to which the public has access, including but not limited to any street, highway, parking lot, plaza, transportation facility, school, place of amusement, park or playground.

(b) No person shall solicit in an aggressive manner in a public place.

(c) Violations of these sections shall be punishable by the penalties listed in section 1-10 of the Code of Ordinances.
(Ord. 2002, ch. 02-14 §§ 1—3, 4-25-02; Ord. 2011, ch. 2011-15, § 1, 5-5-11)

Sec. 16-21. Loud or unruly gatherings—Public nuisance.

(a) *Defined.* It shall be a public nuisance to conduct a gathering of five (5) or more persons on any private property in a manner which constitutes a substantial disturbance of the quiet enjoyment of private or public property in a significant segment of a neighborhood, as a result of conduct constituting a violation of law. Illustrative of such unlawful conduct are excessive noise or traffic, obstruction of public streets by crowds or vehicles, illegal parking, public drunkenness, public urination, the service of alcohol to minors, fights, disturbances of the peace, and litter.

(b) *Notice via posting.* When the police department intervenes at a gathering which constitutes a nuisance under this ordinance, law enforcement shall post a notice on the premises at which such nuisance occurred. The posted notice shall state: a) that police intervention has been required as a result of a public nuisance under this section caused by an event at the premises; b) the date of the police intervention; and c) that if within a six-month period from the date of the notice any subsequent event on the same premises requires police intervention, such subsequent event shall result in the joint and several liability of any guests causing a public nuisance, or any persons who own or are residents of the property at which the

public nuisance occurred, or any persons who sponsored the event constituting the public nuisance as more fully set forth below. The residents and owner(s) of such property shall be jointly responsible for ensuring that such notice is not removed or defaced, but in the case of an owner, said owner shall not be responsible until fourteen (14) days after notice is mailed pursuant to section (c) below. It shall be an ordinance violation carrying a penalty of a minimum, mandatory one hundred dollar ($100.00) fine in addition to any other penalties which may be due under this section if such notice is removed or defaced, provided, however, that the residents of the premises or sponsor of the event, if present, shall be consulted as to the location in which such notice is posted in order to achieve both the security of the notice and its prominent display.

(c) *Notice via mailing.* Notice of the intervention shall also be mailed to any property owner on the city property tax assessment records to advise the property owner that any subsequent such intervention within six (6) months on the same premises shall result in liability of the property owner for all penalties associated with such intervention. In addition, such notices shall state that any removal or defacement of said notice from the property shall be an ordinance violation subject to fines pursuant to section (b) of this ordinance.

(d) *Enforcement.* Every time that the police department is required to respond to a gathering constituting a public nuisance on the premises within six (6) months of the posting of the notice of police intervention, the following persons shall be jointly and severally liable for a mandatory minimum five hundred dollar ($500.00) fine.

(1) The person, persons, or entities that own the property where the gathering constituting the public nuisance took place, provided that notice has been mailed to the owner of the property as set forth herein and the gathering occurs at least fourteen (14) days after the mailing of such notice.

(2) The person or persons residing on or otherwise in control of the property where such a gathering took place.

(3) The person or persons who organized or sponsored such gathering.

(4) All persons attending such gatherings who engage in any activity resulting in the public nuisance.

(5) Nothing in this section shall be construed to impose liability on the resident or owners of the premises or sponsor of the gathering for the conduct of persons who are present without the express or implied consent of the resident or sponsor, as long as the resident and sponsor have taken all steps reasonably necessary to exclude such uninvited participants from the premises, including landlords who are actively attempting to evict a tenant from the premises. Where an invited guest engages in conduct which the sponsor or resident could not reasonably foresee and the conduct is an isolated instance of a guest at the event violating the law which the sponsor

is unable to reasonably control without the intervention of the police, the unlawful conduct of the individual guest shall not be attributable to the sponsor or resident for the purposes of determining whether the event constitutes a public nuisance under this section.

(6) Proceeds from these fines shall be deposited in a restricted receipts account designated for nuisance abatement in the city.

(Ord. 2006, ch. 06-32, § 2, 6-1-06; Ord. 2012, ch. 2012-63, § 1, 11-19-12; Ord. No. 2022-42, § 1, 10-12-2022)

Sec. 16-22. Chronic nuisance properties.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the following meanings ascribed to them, except where the context clearly indicates a different meaning:

Abate means to repair, replace, remove, destroy, or otherwise remedy a condition which constitutes a violation of this chapter by such means and in such a manner and to such an extent as the chief of police determines is necessary in the interest of the general health, safety and welfare of the community.

Chief of police means the chief of police or his or her designees.

Chronic nuisance property means:

(1) A property on which two (2) or more nuisance activities exist or have occurred during any six-month period; or

(2) A property on which a search warrant has been issued and/or executed two (2) or more times within a twenty-four-month period related to the illegal possession, manufacture or delivery of a controlled substance or related offenses as defined in R.I.G.L. 1956 § 21-28.

Control means the power or ability to direct or determine conditions, conduct, or events occurring on a property.

Nuisance activity includes the following:

(1) Any homicide pursuant to R.I.G.L. 1956 § 11-23;

(2) Any illegal possession, manufacturing or delivery of a controlled substance or related offense pursuant to R.I.G.L. 1956 § 21-28;

(3) Any prostitution, permitting prostitution, or promoting, advancing or profiting from prostitution pursuant to R.I.G.L. 1956 § 11-34.1;

(4) Any weapons violations pursuant to R.I.G.L. 1956 § 11-47;

(5) Any organized criminal gambling pursuant to R.I.G.L. 1956 § 11-51; or

(6) Criminal activity directly relating to domestic violence, dating violence, or stalking, engaged in by a member of a person's household or any guest or

other individual under the person's control, shall not be considered "nuisance activity" for the purpose of declaring a property a "chronic nuisance property," if the person or immediate member of the person's family is a victim of that domestic violence, dating violence, or stalking.

Owner means any person who, alone or with others, has title or interest in any property.

Person means an individual, group of individuals, corporation, partnership, association, club, company, business trust, joint venture, organization, or any other legal or commercial entity or the manager, lessee, agent, officer or employee of any of them.

Person in charge of a property means the owner and, if different than the owner, any other person in actual or constructive possession of a property, including, but not limited to, a lessee, tenant, occupant, agent, or manager of a property under his or her control.

Property means any land and that which is affixed, incidental or appurtenant to land, including, but not limited to, any business or residence, parking area, loading area, landscaping, building or structure or any separate part, unit or portion thereof.

(b) *Violation.* Any property within the City of Providence that is a chronic nuisance property is in violation of this section and subject to its remedies. Owners and other persons in charge who permit property to be a chronic nuisance property shall be in violation of this section and subject to its remedies. Any owner who fails to comply with subsection (d) is in violation of this section and is subject to penalties pursuant to subsection (f).

(c) *Declaration of chronic nuisance property and procedure.*

(1) The chief of police may declare that a property is a chronic nuisance property, as defined in this section. The chief of police will provide written notice of this declaration to the person in charge of the property. The notice shall be sent by first-class mail or personally served, and a copy shall be sent by certified mail. The notice will contain the following:

a. The street address or a legal description sufficient for identification of the property; and

b. A declaration that the chief of police has determined the property has become a chronic nuisance property with a concise description of the nuisance activities that exist or that have occurred; and

c. A notice that the persons in charge of the property are subject to monetary penalties as set forth in subsection (f); and

d. A demand that the owner and other persons in charge respond to the chief of police within seven (7) days of service of the notice to discuss a course of action to correct the nuisance; and

e. A notice that, if the person in charge does not respond to the chief of police as required in this section, or if the matter is not voluntarily corrected to the satisfaction of the chief of police, the city may file an action to abate the property as a chronic nuisance property pursuant to subsection (g) and/or take other action against the property or person in charge.

(2) When a notice is issued pursuant to this section to a person in charge, other than an owner or an owner's agent, who has permitted a property to become a chronic nuisance property, a copy of such notice shall also be sent by first-class mail or personally served on the owner of the property, and a copy shall be sent by certified mail.

(3) If the owner or person in charge responds as required by the notice and agrees to a course of action to abate the nuisance activities, a written correction agreement conforming to the requirements of subsection (e) shall be executed.

(4) If the agreed course of action does not result in the abatement of nuisance activities to the satisfaction of the chief of police within thirty (30) days of issuance of the notice, or within such longer period as permitted by the chief of police in writing or the person in charge fails to respond as required by the notice, the chief of police may refer the matter to the city solicitor's office for initiation of proceedings pursuant to subsection (g).

(d) *Owner cooperation.* An owner who receives a copy of a notice pursuant to subsection (c) shall promptly take all reasonable steps requested in writing by the chief of police to assist in abatement of the nuisance property. Such reasonable steps may include the owner taking all acts and pursuing all remedies, including pursuing eviction of the person in charge, that are (1) available to the owner pursuant to any lease or other agreement, and (2) consistent with state and local laws.

(e) *Corrections agreement.* A correction agreement is a contract between the City of Providence and the owner and/or person in charge of the chronic nuisance property in which the owner and/or person in charge agree(s) to promptly take all lawful and reasonable actions, which shall be set forth in the agreement to abate the nuisance activities within a specified time and according to specified conditions. The agreement will be signed by the person in charge and, if different, the owner. The agreement will include the following:

(1) The name and address of the owner and/or person in charge of the property;

(2) The street address or a description sufficient for identification of the property, building, structure, or land upon or within which the nuisance is occurring;

(3) A description of the nuisance activities;

(4) The necessary corrective action to be taken, and a date or time by which correction must be completed;

(5) An agreement by the owner and/or person in charge that the city may inspect the property as may be necessary to determine compliance with the correction agreement;

(6) An agreement by the owner and/or person in charge that the city may abate the nuisance and recover its costs and expenses and monetary penalties pursuant to this section from the person in charge for the nuisance if the terms of the correction agreement are not met; and

(7) When a person in charge, other than an owner or an owner's agent, has permitted a property to be a chronic nuisance property, an agreement by the owner to promptly take all acts and pursue all remedies requested by the chief of police pursuant to subsection (d).

(f) *Fines.* Except as provided in this section, in addition to any other sanction or remedial procedure that may be available, from the time that notice is issued pursuant to subsection (c)(1), the person in charge will be subject to a penalty for the violation of this section of up to five hundred dollars ($500.00). Each and every day subsequent to the notice issued pursuant to subsection (c)(1) will constitute a new violation of this section until the chief of police confirms that the property is no longer a chronic nuisance. If the agreed course of action results in the abatement of nuisance activities to the satisfaction of the chief of police within thirty (30) days of the notice issued pursuant to subsection (c)(1), or such longer period allowed by the chief of police pursuant to subsection (c)(4), the matter will not be referred to the city solicitor's office and the person in charge will not be subject to any penalty pursuant to this section. An owner who fails to comply with subsection (d) is subject to a civil penalty of up to twenty-five thousand dollars ($25,000.00). All parties found to be in violation of this section shall be jointly and severally liable for all monetary penalties and/or fines. Proceeds from these fines shall be deposited in a restricted receipts account designated for nuisance abatement in the city.

(g) *Enforcement.* Upon referral pursuant to subsection (c), the city solicitor may initiate an action in any court of competent jurisdiction to abate a chronic nuisance property, to impose penalties pursuant to this section, to seek alternative remedies under city or state laws and seek any other relief authorized by law.

(h) *Burden of proof.* In an action against a person in charge to abate a chronic nuisance property or to recover penalties authorized by this section, the city will have the burden of proof to show by a preponderance of the evidence that the property is a chronic nuisance property pursuant to this section. In an action against an owner or person in charge to recover penalties authorized by subsection (f), the city will have the additional burden to prove by a preponderance of the evidence that the owner failed to comply with subsection (d). Copies of police incident reports and reports of other city departments documenting nuisance activities shall be admissible in such actions. Additionally, evidence of a property's general reputation and the reputation of persons residing in or frequenting the property shall be admissible in such actions.

(i) *Remedies.* If the court determines a property is a chronic nuisance property pursuant to this section, the court will order the person in charge to immediately abate nuisance activity from occurring on the property. The order may include

damages as provided in this section and may include any of the following: Any order that will reasonably abate nuisance activities from occurring on the property, including authorizing the city to take action to abate nuisance activities from occurring upon the property if other court orders are not complied with or do not abate nuisance activity on the property and providing that the costs of such city action are to be paid for by the person in charge of the property; ordering the owner to make reasonable expenditures upon the property, including the installation of secure locks, hiring private security personnel, increasing lighting in common areas, and using videotaped surveillance of the property and adjacent alleys, sidewalks, or parking lots; ordering all rental income from the property to be placed in an escrow account with the court for up to ninety (90) days or until the chronic nuisance is abated; ordering the property transferred to a receiver, to be appointed by the court, who will be empowered to use the rental income to make reasonable expenditures related to the property in order to abate the chronic nuisance; ordering the property vacated, sealed, or demolished; ordering that the chief of police shall have the right to inspect the property to determine if the court's orders have been complied with; or any other appropriate remedy. The following damages may be included in order to effectuate the equitable remedy of abatement. A penalty for the violation of this section of up to five hundred dollars ($500.00) for each and every day subsequent to the notice issued pursuant to subsection (c)(1) until the chief of police confirms that the property is no longer a chronic nuisance. If the court finds that an owner failed to take all reasonable steps requested in writing pursuant to subsection (d), the court may impose a civil penalty up to twenty-five thousand dollars ($25,000.00). Assessment of reasonable attorney fees and costs to the City of Providence.

(j) *Additional remedies.* In addition to the remedies authorized by subsection (i), if, as part of its order abating a chronic nuisance property, the court orders a person in charge to cease renting or leasing a property, the court may order the person in charge to pay relocation assistance not to exceed three thousand three hundred dollars ($3,300.00) to any tenant (1) who must relocate because of the order of abatement, and (2) the court finds not to have caused or participated in nuisance activities at the property.

(k) *Suspension of business license.* In addition to any other remedy that is authorized by this section or other laws, upon the finding by a court that a property is a chronic nuisance property pursuant to this article, the person in charge is subject to the suspension or revocation of a business license or other license at such property issued by the City of Providence.

(Ord. 2012, ch. 2012-63, § 1, 11-19-12; Ord. 2013, ch. 2013-6, § 1, 3-18-13)

Editor's note—Ord. 2012, ch. 2012-63, § 1, adopted Nov. 19, 2012, amended § 16-21 in its entirety to read as set out herein. Former § 16-21 pertained to notice of unruly gathering—posting; mailing, and derived from Ord. 2006, ch. 06-32, § 2, adopted June 1, 2006.

Sec. 16-23. Reserved.

Editor's note—Ord. 2012, ch. 2012-63, § 1, adopted Nov. 19, 2012, repealed § 16-23 in its entirety, which pertained to mailing of notice to property owner, and derived from Ord. 2006, ch. 06-32, § 2, adopted June 1, 2006.

Sec. 16-24. Reserved.

Editor's note—Ord. 2012, ch. 2012-63, § 1, adopted Nov. 19, 2012, repealed § 16-24 in its entirety, which pertained to persons liable for a subsequent response to a gathering constituting a public nuisance, and derived from Ord. 2006, ch. 06-32, § 2, adopted June 1, 2006.

Sec. 16-25. Prohibition against unlicensed establishments charging patrons fees related to the consumption of alcohol.

Any establishment without an alcoholic beverage retail license allowing patrons to consume alcoholic beverages is prohibited from charging patrons fees related to the consumption of alcoholic beverages, including, but not limited to, a corkage charge, pouring fee, or charge for glassware.
(Ord. 2006, ch. 06-41, § 1, 8-3-06)

Sec. 16-26. Loitering on bus line property.

Any person who shall loiter or remain about in any bus terminal or platform, or at bus stops designated by Rhode Island Public Transit Authority (RIPTA), or on the grounds adjoining any bus stop terminal, after being requested to leave by any officer or agent of the company operating or using the facilities, shall be guilty of loitering and shall be fined not less than five dollars ($5.00) nor more than one hundred dollars ($100.00).
(Ord. 2008, ch. 08-36, § 1, 7-28-08)

Sec. 16-27. Failure to pay city fees.

(a) Any individual, organization, or other entity, except a city department, including the water supply board, (hereinafter "entity") with an outstanding balance of more than sixty (60) days after payment was due for police and fire details, or other city services shall be prohibited from obtaining any permits, licenses, licenses renewals, police details, or fire details until the balance is paid in full, and payment has been verified by the city controller.

(b) Notwithstanding the language of subsection (a), the city controller may offer payment terms to an entity with an outstanding balance more than 60 (sixty) days past due. If the entity agrees to and accepts said terms, the prohibitions contained in subsection (a) shall not apply for as long as the entity acts in compliance with said terms. Payment terms for any such entity shall be as follows:

(1) Payment to the city controller of 50 (fifty) percent of total balance more than 60 (sixty) days past due shall be submitted at the time the entry agrees to and accepts the payment terms.

a. Nonprofit corporations, charitable organizations, and small businesses shall submit twenty-five (25) percent of the total balance more than sixty (60) days past due, and the entity shall pay the balance through payment terms offered by the city controller.

i. "Nonprofit corporations, charitable organizations, and small business" is defined as a business that has its principal office located in Providence and employs twenty-five (25) or fewer full-time employees. The location of the "principal office" is the location identified as such in the annual filings submitted by that business to the Rhode Island Department of State.

(2) Monthly payment installments on the remaining past due balance shall be made in an amount determined by the city controller.

(3) The city controller, subject to the approval of the finance director, is hereby authorized and empowered to comprise interest which may be due on all unpaid city fees that are more than thirty (30) calendar days overdue. The authority hereby vested in the city controller shall apply to interest on fees already assessed or to be assessed from time to time. Interest on unpaid city fees shall accrue at the same rate as the annually established interest rate for unpaid real estate, personal estate, and excise taxes.

(4) The city controller may, in his/her discretion submit the names of entities seeking forbearance on unpaid fees and interest assessed to the city council whenever doing so appears to be in the interests of the city. The city council may, at any time, review requests of entities seeking forbearance on unpaid fees and interest assessed.

(5) New police and/or fire detail charges must be paid in full prior to being approved such services.

(6) Proof of payment and compliance with payment terms shall be provided to the entity by the city controller and such documentation shall be required prior to the entity being approved for new police and/or fire detail services.

(c) Entities that entered into and are in compliance with payment terms with the city for past due balances prior to the effective date of the ordinance from which this section derives shall not be subject to subsections (a) and (b).
(Ord. 2011, ch. 2011-35, § 1, 7-18-11; Ord. 2011, ch. 2011-47, § 1, 11-22-11; Ord. No. 2015-22, § 1, 7-6-15; Ord. No. 2018-27, § 1, 6-22-18)

Secs. 16-28—16-50. Reserved.

ARTICLE II. DISCRIMINATION*

Sec. 16-51. Findings of the council.

The practice or policy of discrimination against individuals because of race, color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age or country of ancestral origin, is a matter of grave public concern. Such discrimination foments domestic strife and unrest, threatens the rights and privileges of our people and undermines the foundations of a free democratic state. The denial of equal opportunities because of such discrimination deprives large segments of the population of the City of Providence of the ability to maintain decent standards of living and intensifies group conflicts, thereby resulting in grave injury to the public safety, health and welfare.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-52. Public policy.

It is hereby declared to be the public policy of the City of Providence to foster the equal opportunities of all individuals in the city in accordance with their fullest capacities and abilities, regardless of their race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age or country of ancestral origin, and to safeguard their right to be free from such discrimination in housing, education, employment, credit and public accommodation.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-53. Exercise of police power.

This article shall be deemed an exercise of the police power of the said city for the protection of public welfare, prosperity, health and peace of its people.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

***Editor's note—**Ord. 2014, ch. 2014-33, § 1, approved Aug. 8, 2014, amended Art. II in its entirety to read as set out herein. Former Art. II, §§ 16-51—16-84, pertained to similar subject matter and derived from Ord. 1979, ch. 79-1, §§ 1, 4—34, approved Jan. 22, 1979; Ord. 1985, ch. 85-77, §§ 1—34 approved Sept. 5, 1985; Ord. 1995, ch. 95-20, approved Aug. 27, 1995; and Ord. 2014, ch. 2014-10, § 1, approved May 21, 2014.

Sec. 16-54. Definition of terms.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Bona fide qualifications refers to a valid consideration of race and color, sex, sexual orientation, religion, marital status, disability, age or country of ancestral origin which has been certified as such by the commission or by the Rhode Island Commission on Human Rights.

Charge is that which is brought by a complainant alleging an unlawful practice or that which is filed by the commission following an investigation.

Commission means the Providence Human Relations Commission, its agents and employees.

Complaint means that which is issued by the commission on its own behalf or in the behalf of the complainant and subsequent to a probable cause determination.

Disability means any condition or characteristic whether physical or mental which renders a person disabled as defined by 42 USC 1202(2), commonly referred to as the "Americans With Disabilities Act of 1990", as amended.

Discounts means any reduction of the normal charge for products or services. Includes those offered on a free basis.

Discrimination includes any policy or practice which by design or effect segregate, separates or has a disproportionate impact according to race or color, sex, sexual orientation, religion, marital status, disability, age or country of ancestral origin or because of the race or color, sex, sexual orientation, religion, marital status, disability, age or country of ancestral origin of any person with whom they are or may wish to be associated, and which is not required by business necessity. Discrimination shall further include any policy or practice which by design or effect separates or has a disproportionate impact based upon an individual's hair texture, hair type, or protective hairstyle that is commonly or historically associated with race, including such hairstyles as braids, locs, twists, tight coils or curls, cornrows, bantu knots, afros, and headwraps.

Employment agency includes any person undertaking with or without compensation to procure opportunities to work, or to procure, recruit, refer, or place employees.

Employee does not include any person employed by his or her parents, spouse or child.

Employer includes the city and all its departments and authorities, and all persons employing seven (7) or more individuals within the City of Providence, or any person acting as the agent of an employer either directly or indirectly. The term

does not apply to a religious corporation, religious association, religious educational institution, or religious society with respect to the employment of individuals of its religion to perform work connected with the carrying on of its religious activities.

Educational facilities means any public or private institution of learning.

Gender identity or expression means a person's actual or perceived gender, as well as a person's gender identity, gender-related self-image, gender-related appearance, or gender-related expression; whether or not that gender identity, gender-related self-image, gender-related appearance, or gender-related expression is different from that traditionally associated with the person's sex at birth.

Housing accommodation includes any building or structure or portion thereof, or any parcel of land, developed or undeveloped, which is occupied, or intended, designed, or arranged to be occupied, or to be developed for occupancy, as the home, residence, or commercial business of one (1) or more persons, but excludes any dwelling unit which, under the provisions of state fair housing laws, are exempt by virtue of their location in an owner-occupied building.

Labor organization includes any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or of other mutual aid or protection in relation to employment.

Public accommodation refers to any public resort, accommodation, assemblage, amusement, business, or establishment that provides a service or function, personal, or otherwise licensed, or unlicensed, including but not limited to inns, taverns, bars, roadhouses, hotels, motels, trailer parks, camp sites, restaurants, diners, or any place where food or beverage is sold, retail stores and establishments, dispensaries, clinics, hospitals, rest homes, nursing homes, rest rooms, bathhouses, barber shops, beauty parlors, trade schools or vocational establishments, theaters, motion picture houses, music halls, race courses, skating rinks, amusement and recreation parks, fairs, bowling alleys, golf courses, gymnasiums, shooting galleries, billiard and pool parlors, swimming pools, athletic or recreational facilities, seashore accommodations, public libraries, garages, all public conveyances operated on land, water, in the air or underground, as well as the stations and terminals thereof, public halls and rooms and public stairs and elevators of buildings or other public accommodations, public housing projects, clubs, societies, fraternities, sororities, associations, or other organizations that are public or quasi-public, banks, finance companies, insurance companies, building and construction companies, other businesses; traffic and other courts, and licensing and regulating bodies and all public policies, programs, and activities. Nothing herein contained shall be construed to include, or apply to, any place of accommodation which is by its nature distinctly private; provided, that where public use is permitted, that use shall be covered by this article.

Sexual discrimination shall be deemed to include situations where an individual, acting independently, is discriminated against because of gender.

Sexual orientation means a person's actual or perceived heterosexuality, bisexuality, or homosexuality.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14; Ord. No. 2021-2, § 1, 2-26-21; Ord. No. 2023-3, § 1, 4-10-2023)

Sec. 16-55. Unlawful housing practices.

(a) It shall be an unlawful housing practice:

(1) For any owner, lessee, sub-lessee, assignee, managing agent, real estate agent, or other person having the right to sell, rent, lease, or manage a housing accommodation or an agent of any of those:

a. To discriminate or directly or indirectly make or cause to be made any written or oral inquiry concerning race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin of any prospective purchaser, occupant, or tenant of such housing accommodation;

b. To discriminate or directly or indirectly to refuse to sell, rent, lease, let or otherwise deny to or withhold from any individual, such housing accommodation because of the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or lawful source of income of such individual;

c. To discriminate or directly or indirectly print or publish or cause to be printed or published, circulated, broadcasted, issued, used, displayed, posted, or mailed any written, printed or painted or oral communication, notice or advertisement relating to the sale, rental, lease or let of such housing accommodation which indicates any preference, denial, limitation, specification, qualification, or discrimination, based upon race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or lawful source of income;

d. To directly or indirectly discriminate against any person because of his or her race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or lawful source of income in the terms, conditions, or privileges of the sale, rental, lease, or let of any such housing accommodation or in the furnishing of facilities or services in connection therewith.

(2) For any person to whom application is made for a loan or other form of financial assistance for the acquisition, construction, rehabilitation, repair or maintenance of any housing accommodation, whether secured or unsecured:

a. To discriminate or to directly or indirectly make or cause to be made any written or oral inquiry concerning the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin of any individual seeking such financial assistance, or of existing or prospective occupants or tenants of such housing accommodation, nor shall any such person to whom such application is made, directly or indirectly discriminate in the terms, conditions or privileges relating to the obtaining or use of any such financial assistance against any applicant because of race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age or country of ancestral origin of such applicant, or of the existing or prospective occupants or tenants thereof;

b. To discriminate or to directly or indirectly deny or limit such application for financial assistance on the basis of an appraiser's, whether independent or not, evaluation of the property or neighborhood under consideration, when such evaluation is based on discriminatory criteria.

(3) For any person, agent, firm, corporation or association, whether or not acting for monetary gain, to directly or indirectly induce, attempt to induce, prevent or attempt to prevent the sale, purchase, rental, or letting of any housing accommodation by:

a. Implicit or explicit representations regarding the existing or potential proximity of real property owned, used, or occupied by persons of any particular race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or lawful source of income;

b. Implicit or explicit representations regarding the effects or consequences of any such existing or potential proximity, including but not limited to the lowering of property values, an increase in criminal or antisocial behavior, or a decline in the quality of schools or other facilities;

c. Implicit or explicit false representations regarding the availability of suitable housing within a particular neighborhood or area, or failure to disclose or offer to show all properties listed or held for sale, rent, lease, or let within a requested price range, regardless of location, so as to promote the continuance or maintenance of segregated housing or so to retard, obstruct, or discourage integrated housing on or in any street, block, or neighborhood.

(4) Except where based on a valid affirmative action program or recordkeeping or reporting requirements:

a. For any person, agent, manager, owner, or developer of any apartment or housing unit, complex, or development, whether commercial or residential to directly or indirectly make or keep a record of any applicant's, prospective tenant's, or tenant's race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

b. To use any form of housing or loan application which contain questions or entries directly or indirectly pertaining to race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

c. Establish, announce, or follow a pattern, practice, or policy of denying, excluding or limiting by any means whatsoever housing accommodations to any group because of the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or lawful source of income of such group.

(5) For any person to discriminate in any manner against any individual, or deny that individual because he or she has opposed any practice forbidden by this article, or because he or she has made a charge, testified, or assisted in any manner in any investigation, proceeding, or hearing under this article.

(6) For any person, whether or not acting for monetary gain, to aid, abet, incite, compel or coerce the doing of any act declared by this section to be unlawful housing practice, or to obstruct or prevent any person from complying with the provisions of this article or any regulations or issued thereunder, or to attempt directly or indirectly to commit any act declared by this section to be an unlawful housing practice.

(b) Nothing contained in this section shall be construed to:

(1) Prevent the operation or establishment of housing facilities designed for the exclusive use of the aged or elderly and/or disabled, nor to prohibit the establishment of programs assigned to meet the needs of circumstances of handicapped disabled persons; or

(2) Prohibit any oral or written inquiry as to whether the prospective tenant is eighteen (18) years of age or older; or

(3) Confirm the source, amount and expected duration of the lawful source of income of a prospective purchaser or tenant; or

(4) Prohibit an owner of a housing accommodation from refusing to rent to a person based on their lawful source of income if the housing accommodation is three (3) units or less, one (1) of which is occupied by the owner.

(c) If an owner, lessee, sub-lessee, assignee, managing agent, real estate agent, or other person having the right to sell, rent, lease, or manage a housing accommodation or an agent of any of those requires that a prospective or current tenant have a certain minimum level of income, the standard for assessing eligibility shall be based only on the portion of the rent to be paid by the tenant, taking into account the value of any lawful source of income.

(d) Private enforcement actions:

(1) An individual aggrieved by an unlawful housing practice in violation of this chapter may bring a civil action in a court of competent jurisdiction for appropriate relief.

(2) As used in subsection (1), "appropriate relief" means damages for injury or loss caused by each violation of this chapter, including, but not limited to permanent or temporary injunction, punitive damages, costs, reasonable attorney fees, and the types of relief described in section 16-76.

(3) Any action taken by the city or commission does not preclude any private individual from seeking a private right of action under this section.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14; Ord. No. 2021-2, § 2, 2-26-21)

Sec. 16-56. Unlawful education practices.

It shall be an unlawful education practice:

(1) For any school, educational institution or facility:

a. To discriminate or to directly or indirectly fail or refuse to admit or grant entrance, or provide, furnish, or make available, equal educational services, materials, or opportunities to any person because of race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

b. To discriminate or to directly or indirectly print or publish or cause to be printed or published, circulated, broadcast, issued, used, displayed, posted, or mailed any written, printed or painted or oral communication, notice or advertisement relating to education indicating any preference, denial, limitation, specification, qualification, practice, or discrimination based on race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

c. To establish, announce, or follow, a pattern, practice, or policy of denying, excluding or limiting educational services, materials, or opportunities to any group because of the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin of such group.

(2) For any person to discriminate in any manner against any individual or deny that individual because he or she has opposed any practice forbidden by this article or because he or she has made a charge, testified, or assisted in any manner in any investigation, proceeding, or hearing under this article;

(3) For any person, whether or not acting for monetary gain, to aid, abet, incite, compel or coerce the doing of any act declared by this section to be an unlawful education practice, or to obstruct or prevent any person from complying with the provision of this article, or any regulation or order issued thereunder, or to attempt directly or indirectly to commit any act declared by this section to be an unlawful education practice.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-57. Unlawful employment practices.

(a) *Findings and intent*. It is the intent of the city to combat pregnancy discrimination by requiring employers to provide reasonable accommodations to pregnant women and those with conditions related to pregnancy and childbirth. Such a reasonable accommodation may include more frequent or longer breaks, time off to recover from childbirth, acquisition or modification of equipment, seating, temporary transfer to a less strenuous or hazardous position, job restructuring, light duty, break time and private nonbathroom space for expressing breast milk, assistance with manual labor, or modified work schedules, among other things. It is not the intent of the city to require such accommodations if this provision would cause an undue hardship in the conduct of an employer's business.

(b) *For the purposes of this section:*

(1) The term "reasonably accommodate" shall mean providing reasonable accommodations, including, but not limited to: more frequent or longer breaks, time off to recover from childbirth, acquisition or modification of equipment, seating, temporary transfer to a less strenuous or hazardous position, job restructuring, light duty, break time and private nonbathroom space for expressing breast milk, assistance with manual labor, or modified work schedules, provided that:

a. No employer shall be required by this subsection to create additional employment that the employer would not otherwise have created, unless the employer does so or would do so for other classes of employees who need accommodation, such as those who are injured on-the-job or those with disabilities and;

b. The employer shall not be required to discharge any employee, transfer any employee with more seniority, or promote any employee who is not qualified to perform the job, unless the employer does so or would do so to accommodate other classes of employees who need it, such as those who are injured on the job or those with disabilities.

c. Nothing in this article shall be construed to require an individual with a need related to pregnancy, childbirth, or a related medical condition to accept an accommodation which such individual chooses not to accept.

(2) The term "related conditions" includes, but is not limited to, lactation or the need to express breast milk for a nursing child.

(3) The term "undue hardship" means an action requiring significant difficulty or expense, when considered in light of the factors set forth in subsection 16-57(b)(1).

a. The employer shall have the burden of proving undue hardship. In making a determination of undue hardship, the factors that may be considered include, but shall not be limited to:

1. The nature and cost of the accommodation;

2. The overall financial resources of the employer; the overall size of the business of the employer with respect to the number of employees, and the number, type, and location of its facilities; and

3. The effect on expenses and resources or the impact otherwise of such accommodation upon the operation of the employer.

b. The fact that the employer provides or would be required to provide a similar accommodation to other classes of employees who need it, such as those who are injured on the job or those with disabilities, shall create a rebuttable presumption that the accommodation does not impose an undue hardship on the employer.

(4) The term "employer" includes any contractor hired by the city.

(5) The term "employer" shall mean any person located in whole or in part in the city employing four (4) or more individuals, and any person acting in the interest of an employer directly or indirectly.

(c) *It shall be an unlawful employment practice:*

(1) For any employer:

a. To fail or refuse to hire any applicant for employment or otherwise discriminate because of race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin; or

b. Because of such reasons, to discharge an employee or discriminate against him or her with respect to hire, tenure, compensation, promotion, terms, conditions, or privileges of employment, or any other matter directly or indirectly related to employment; or

c. In the recruiting of individuals for employment or in hiring them, to utilize any employment agency, placement service, training school or center, labor organization, or any other employee referring source which such employer knows, or has reasonable cause to know, discriminates against individuals because of their race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

d. To treat disabilities caused or contributed to by pregnancy, miscarriage, childbirth or recovery therefrom, differently than other temporary disabilities under any health or temporary disability insurance, or sick leave plan available in connection with employment. Pay, tenure, benefits, seniority, and reinstatement shall be afforded in the same manner for medically necessary pregnancy-related absences as they are for other medically necessary absences.

e. To refuse to reasonably accommodate an employee's or prospective employee's condition related to pregnancy, childbirth, or a related medical condition, including, but not limited to, the need to express breast milk for a nursing child, if she so requests; unless the employer can demonstrate that the accommodation would pose an undue hardship on the employer's program, enterprise, or business.

f. To require an employee to take leave if another reasonable accommodation can be provided to an employee's condition related to the pregnancy, childbirth, or a related medical condition.

g. To deny employment opportunities to an employee or prospective employee, if such denial is based on the refusal of the employer to reasonably accommodate an employee's or prospective employee's condition related to pregnancy, childbirth, or a related medical condition.

(2) For any employment agency:

a. To discriminate or to fail or refuse to classify properly or refer for employment or otherwise discriminate against any individual because of his or her race or color, sex, sexual orientation, gender identity or expression, religion, marital status, handicap, disability, age, or country of ancestral origin; or

b. For any employment agency, placement service, training school or center, labor organization, or any other employee referring source to discriminate or to comply with an employer's request for the referral of

job applicants if such request indicates either directly or indirectly that such employer will not afford full and equal employment opportunities to individuals regardless of their race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin.

(3) For any labor organization:

a. To discriminate against or deny full and equal membership rights to any applicant for membership because of his or her race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin; or

b. Because of such reasons, to deny a member full and equal membership rights, expel him or her from membership, or otherwise discriminate in any manner with respect to hire, tenure compensation, terms, conditions, or privileges of employment, or any other matter directly or indirectly related to membership or employment, whether or not authorized or required by the constitution or bylaws of such labor organization, or by a collective labor agreement or other contract; or

c. To fail or refuse to classify properly or refer for employment, or otherwise to discriminate against any member because of his or her race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

d. To treat disabilities caused or contributed to by pregnancy, miscarriage, childbirth or recovery therefrom differently than any other temporary disabilities under any health or temporary disability insurance or sick leave plan available in connection with employment. Pay, tenure, benefits, seniority, and reinstatement shall be afforded in the same manner for medically necessary pregnancy-related absences as they are for other medically necessary absences.

(4) Except where based on a bona fide occupational qualification which has been certified by the commission, for any person, employer, employment agency, labor organization, placement service, training school or center, or any other employee referring source prior to employment or admission to membership of any individual, to:

a. To discriminate or elicit or attempt to elicit any information directly or indirectly pertaining to the individual's race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

b. Except where based on a valid affirmative action program or record keeping or reporting requirements to make or keep a record of the

individual's race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

c. Use any form of application or membership blank which contains questions or entries directly or indirectly pertaining to race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

d. Conduct any interview in person or otherwise where information is elicited pertaining to race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

e. To discriminate or to directly or indirectly print or publish or cause to be printed or published, circulated, broadcasted, issued, used, displayed, posted or mailed any written, printed, painted or oral communication, notice, or advertisement relating to employment or membership indicating any preference, denial, limitation, specification, qualification, or discrimination based upon race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

f. Establish, announce, or follow a pattern, practice, or policy of denying, under-utilizing or limiting, through a quota system or otherwise, employment or membership opportunities of any group because of the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin of such group.

(5) For any person, employer, employment agency, labor organization, placement service, training school or center, or any other employee referring source to discriminate in any manner against any individual or deny that individual because he or she has opposed any practice forbidden by this article, or because he or she has made a charge, testified, or assisted in any manner in an investigation, proceeding, or hearing under this article;

(6) For any person, whether or not an employer, employment agency, labor organization, placement, service training school or center, or employee, to aid, abet, incite, compel, or coerce the doing of any act declared by this section to be an unlawful employment practice, or to obstruct or prevent any person from complying with the provisions of this article or any regulation or order issued hereunder, or to attempt directly or indirectly to commit any act declared by this section to be an unlawful employment practice.

(7) For any employer:

a. To inquire about a prospective employee's compensation history, unless the compensation information is a public record, require disclosure of

compensation history, or condition employment or consideration for an interview for employment on disclosure of compensation history, or retaliate against a prospective employee for failing to comply with any compensation history inquiry;

b. To rely on the compensation history of a prospective employee from any current or former employer of the individual in determining the compensation for such individual at any stage in the employment process, including the negotiation or drafting of any employment contract, unless such applicant voluntarily disclosed his or her compensation history to the employer, employment agency, or agent thereof.

c. Enforcement. Any employer that violates this section, shall be liable to the individual affected for damages incurred. Action to recover such liability may be maintained in any court of competent jurisdiction by one (1) or more individuals for and on their own behalf. Violators shall be responsible for all court costs associated with such legal action.

d. Section 16-57(c)(7) shall not apply to any actions taken by an employer, employment agency, or employee or agent thereof, pursuant to any federal, state, or local law that specifically authorizes or requires the disclosure or verification of compensation history for employment purposes, nor to applicants for internal transfer or promotion with their current employer. For the purposes of section 16-57(c)(7), "to inquire" shall mean to ask, request, or research verbally, in writing, or otherwise, and "compensation" shall mean all earnings of an individual, regardless of whether determined on the basis of time, task, piece, commission, or other method of calculation, and including fringe benefits, compensation supplements, or other compensation whether payable by the employer from employer funds or from amounts withheld from the employee's pay by the employer.

(d) *Notice of rights*. An employer shall provide written notice of the right to be free from discrimination in relation to pregnancy, childbirth, and related medical conditions pursuant to subsections 16-57(a), (b) and (c) to new employees at the commencement of employment, and to existing employees within one hundred twenty (120) days after the effective date of the ordinance amending section 16-57. Such notice may also be conspicuously posted at an employer's place of business in an area accessible to employees.

(e) Subsections 16-57(a), (b) and (c) shall not be construed to affect any other provision of law relating to sex discrimination or pregnancy, or to preempt, limit, diminish or otherwise affect any other law that provides greater protection or specific benefits with respect to pregnancy, childbirth or medical conditions related to childbirth.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14; Ord. No. 2018-3, § 1, 2-9-18)

Sec. 16-58. Unlawful credit practices.

It shall be unlawful credit or loan practice:

(1) Any financial organization governed by the provisions of R.I.G.L. tit. 19 entitled "Financial Institutions", or any other credit granting, reporting, appraising, or approving institution, agency, business or association:

a. To discriminate in the granting, reporting, approval, or extension of any form of loan or credit, or of the privileges or capacity to obtain any form of loan or credit, on the basis of the applicant's race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

b. To directly or indirectly print or publish or cause to be printed or published, circulated, broadcasted, issued, used, displayed, posted, or mailed any written, printed or painted oral communication, notice, or advertising relating to loans or the extension of credit indicating any preference, denial, limitation, specification, qualification, or discrimination based upon race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

c. To discriminate or to use any form of loan or credit application which contains questions or entries directly or indirectly pertaining to race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

d. To establish, announce or follow a pattern, practice, or policy of denying, excluding, or limiting the extension of loans or credit to any group because of the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin of such group.

(2) For any person to discriminate in any manner against any individual or deny that individual because he or she has opposed any practice forbidden by this article, or because he or she has made a charge, testified, or assisted in any manner in any investigation, proceeding or hearing under this article;

(3) For any person, whether or not acting for monetary gain, to aid, abet, incite, compel or coerce the doing of any act declared by this section to be an unlawful credit or loan practice, or to obstruct or prevent any person from complying with the provisions of this article, or any regulation or order issued thereunder, or to attempt directly or indirectly to commit any act declared by this section to be an unlawful credit or loan practice.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-59. Unlawful public accommodation practice.

It shall be an unlawful public accommodation practice:

(1) For any person, owner, lessee, proprietor, manager, director, superintendent, agent, employee, committee, officer, or board of any place of public accommodation;

a. To discriminate or to directly or indirectly refuse, withhold from or deny to any person on account of race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin any of the accommodations, advantages, facilities, or privileges thereof;

b. To discriminate or to directly or indirectly print or publish or cause to be printed or published, circulated, broadcasted, issued, used, displayed, posted, or mailed any written, printed or painted or oral communication, notice, or advertisement relating to public accommodations indicating any preference, denial, limitation, specification, qualification, or discrimination based upon race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

c. To discriminate or to directly or indirectly elicit or attempt to elicit any information regarding an individual's race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin; or, to use, any form of application which contains questions or entries directly or indirectly pertaining to such information;

d. To establish, announce, or follow a pattern, practice, or policy of denying, excluding, or limiting services or membership to any group because the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin of such group.

(2) For any person to discriminate in any manner against any individual, or deny that individual because he or she has opposed any practice forbidden by this article or because he or she has made a charge, testified, or assisted in any manner in any investigation, proceeding, or hearing under this article;

(3) For any person, whether or not acting for monetary gain, to aid, abet, incite, compel, or coerce the doing of any act declared by this section to be unlawful accommodation practices, or to obstruct or prevent any person from complying with the provisions of this article or any regulation or order issued thereunder, or to attempt directly or indirectly to commit any act declared by this section to be an unlawful public accommodation practice.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-60. Exercise of privilege; exemption.

(a) Nothing in this article contained shall be construed in any manner to prohibit or limit the exercise of the privilege of every person to establish standards and preferences and set terms, conditions, limitations, or specifications in any manner herein discussed which are not based on the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age; or country of ancestral origin of the individual or the race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin of any person with whom the individual is or may wish to be associated; nor shall this article be construed to apply to any religious organization nor to render any otherwise unlawful conduct lawful, nor to create or to grant classification, status, or class protections to any person or persons not otherwise granted such classification, status or class protections.

(b) Notwithstanding anything herein contained the following practices shall not be violations of this article:

(1) For a religious organization or institution to restrict any of its facilities of housing or accommodation which are operated as a direct part of religious activities to persons of the denomination involved, or to restrict employment opportunities for officers, religious instructors and clergy to persons of that denomination.

(2) For the owner of a housing facility devoted entirely to the housing of individuals of one (1) sex, to restrict occupancy and use on the basis of sex.

(3) To refuse employment to any person under eighteen (18) years of age, or refuse admission to or provision of the services of a public accommodation or financial institution to persons under eighteen (18) years of age, or any other age established by law.

(4) To provide discounts on products or services to minors and the aged, elderly and/or disabled.

(5) To restrict use of lavatories and locker room facilities on the basis of sex.

(6) For a religious or denominational educational institution to select its pupils exclusively or primarily from members of such religion or denomination, or to give preference to such selection so as to promote the religious principle for which it was established.

(7) For a public or private preschool, elementary school or secondary school (except where such schools are vocational) to discriminate on the basis of sex in relation to admissions only.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-61. Time limit for filing charges.

Any charge under this article must be filed within one hundred eighty (180) days after the alleged act of discrimination.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-62. Commission established.

There is hereby established a Providence Human Relations Commission, which shall consist of thirteen (13) members appointed by the mayor, with the approval of the city council, to serve without compensation, except for reasonable expenses incurred on commission business. Those incumbent members of the human relations commission on the effective date of this article [August 8, 2014] shall continue to serve throughout the terms to which they have previously been appointed. Thereafter, all appointments to the commission shall be for a term of three (3) years. In the event of the death or resignation of any member, his successor shall be appointed to serve for the unexpired period of the term for which such member has been appointed.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-63. Function and duties of commission.

(a) The commission shall act in a policy and advisory capacity, and its functions and duties shall be to further amicable relations among various segments of the population which together comprise the city; to help make it possible for each citizen, regardless of race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or other bases of discrimination prohibited by ordinance, to develop talents and abilities without limitation, to aid in permitting the community to benefit from the fullest realization of its human resources, and to preserve and further the good name of Providence and its people for tolerance and fair play, and promote better relations among all people.

(b) In order to accomplish the objectives herein set out, the commission shall advise the mayor, city council and other offices of the city on problems affecting human and intergroup relations; make studies, surveys and investigations to provide accurate information and data for orderly and constructive community development, and to recommend such measures as are deemed necessary to carry out the objectives for which the commission has been created; consult with, obtain cooperation and coordinated effort on the part of all agencies, both public and private, which function in the field of human relations, including schools, law enforcement agencies, welfare, youth, and other similar organizations; utilize the resources of individuals and groups toward the improvement of inter group relations, to combat those misconceptions and prejudices which set group against group, and to eliminate discriminatory practices and policies.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14; Ord. No. 2021-2, § 3, 2-26-21)

Sec. 16-64. Powers of commission.

The commission is hereby empowered:

(1) To provide for execution within its jurisdiction of the policies embodied in this article;

(2) To safeguard all individuals within its jurisdiction from discrimination because of race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or other bases of discrimination prohibited by ordinance;

(3) To receive, initiate, investigate, hear and determine charges of violations of the provisions of this article forbidding discrimination;

(4) Compel the attendance of witnesses and the production of evidence relevant to the matter in question for investigatory and determinative purposes by subpoena issued by the city council upon request in writing by said commission, and obtain enforcement of said subpoena in superior court;

(5) Issue remedial orders after notice and hearing, requiring cessation of violations;

(6) Employ an executive director, hearing examiners, clerks, agents and employees;

(7) Accept grants, gifts or bequests, public or private, to help finance its activities;

(8) Enter into deferral [referral] or other cooperative working agreements with the United States Equal Employment Opportunity Commission created by Title VII of the Federal Civil Rights Act of 1964 and with the Rhode Island Commission on Human Rights, and with any federal or state agency in order to achieve the purposes of this article;

(9) To enact by majority vote of its members such rules and regulations as it may deem necessary and in the public interest to carry out the terms and conditions set out in this article. Such rules and regulations shall be signed by the chairperson of the commission and attested to by the executive director, and a copy shall be filed with the city clerk;

(10) To elect a chairperson and other officers, and establish committees and advisory councils as it shall deem appropriate for the purposes of this article;

(11) To render each year to the mayor and city council a full written report of all its activities and of its recommendations.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14; Ord. No. 2021-2, § 4, 2-26-21)

Sec. 16-65. Certification of bona fide qualification.

Upon the filing of a petition by any interested person, the commission may determine whether a bona fide qualification should be certified for any position, housing, or public accommodation, credit or loan eligibility or education practice based on race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, country of ancestral origin, or other bases of discrimination prohibited by ordinance.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14; Ord. No. 2021-2, § 5, 2-26-21)

Sec. 16-66. Power to prevent unlawful practices; preference for informal methods.

The commission is empowered and directed, as hereinafter provided, to prevent any person from engaging in unlawful practices; provided, that before instituting a formal hearing, it shall attempt by informal methods of conference, persuasion, and conciliation, to induce voluntary compliance with this article.

(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-67. Extraordinary relief.

The commission may, after preliminary investigation and upon determination that it is probable that an unlawful practice has been or is being engaged in, file a complaint in the superior court in Providence County seeking injunctive relief, including a temporary restraining order, against such respondent. No preliminary injunction shall be effective for more than thirty (30) days; provided, that if the respondent has sought judicial review of an order of the commission issued pursuant to this article, or if the commission has sought a decree of the court for the enforcement of such order, the preliminary injunction shall remain in full force and effect until such time as judicial review, or the commission's petition, or the decree

of enforcement is finally heard and determined. The application by the commission for injunctive relief shall not prevent the commission from continuing to prosecute the proceeding before it, out of which the application arises.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-68. Conciliation of charges of unlawful practices.

Upon the commission's own initiative, or whenever an aggrieved individual or an organization or group whose purposes include the combating of discrimination or racism, or of safeguarding civil liberties, or of promoting full, free, or equal opportunities, such individual, group, or organization being hereafter referred to as the complainant, makes a charge to the commission that any person, hereinafter referred to as the respondent, has engaged or is engaging in unlawful practices, the commission may initiate a preliminary investigation, and if it shall determine after such investigation that it is probable that unlawful practices have been or are being engaged in, it shall endeavor to eliminate such unlawful practices by informal methods of conference, conciliation, and persuasion, including a conciliation agreement. The terms of such conciliation agreement shall include provisions requiring the respondent to refrain from unlawful discriminatory practices in the future, and may contain such further provisions as may be included in an award under section 16-76 or as may be agreed upon by the commission and the respondent, including a provision for the entry in superior court of a consent decree embodying the terms of the conciliation agreement.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-69. Complaint and notice of hearing.

If the commission fails to effect the elimination of such unlawful practices and to obtain voluntary compliance with this article, or, if the circumstances warrant, in advance of any such preliminary investigation or endeavors, the commission shall have the power to issue and cause to be served upon any person or respondent a complaint stating the charge in that respect. The commission shall then serve upon the respondent a notice of hearing before the commission, a member thereof, or a hearing examiner at a place therein fixed, to be held not less than ten (10) days after the service of such notice.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-70. Amendment of complaint and answer; participation by commissioner assigned to preliminary determination.

The commission, a member thereof, or hearing examiner conducting the hearing shall have the power reasonably and fairly to amend any written complaint at any time prior to the issuance of an order based thereon. The respondent shall have like power to amend its answer to the original or amended complaint at any time prior to the issuance of such order. The commissioner assigned to the preliminary

determination of any charge before the commission shall take no part in the final hearing, except as a witness upon competent matters, and will have no part in the determination or decision of the case after hearing.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-71. Answer to complaint; respondent's right at hearing.

The respondent shall have the right to file an answer to such complaint, and shall appear at such hearing in person, or otherwise, with or without counsel, to present evidence to examine and cross-examine witnesses.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-72. Rules of evidence.

In any such proceeding the commission, its members, or its agent, shall not be bound by the rules of evidence prevailing in the courts of law or equity.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-73. Evidence of patterns of discrimination.

The commission may, in ascertaining the practices followed by the respondent, take into account all evidence, statistical or otherwise, which may tend to prove the existence of a pattern of discrimination; provided that nothing in this section contained shall be construed to authorize or require any person to act in accordance with any criterion other than the individual qualifications of the applicant.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-74. Testimony at hearing.

The testimony taken at the hearing shall be under oath and shall be reduced to writing and filed with the commission. Thereafter, in its discretion, the commission upon notice may take further testimony or hear argument.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-75. Order dismissing charge or complaint.

(a) If a preliminary investigating commissioner shall find that no probable cause exists for crediting the charge, a notice shall be served upon the complainant dismissing the charge as to such respondent. The complainant may present additional evidence to that commissioner for reconsideration of the ruling, or may request a review by the commission of the preliminary finding. A quorum of the commission may overrule the preliminary investigating commissioner or may affirm the earlier decision and issue an order dismissing the charge. Judicial review of the commission's final order may be obtained in accordance with this article.

(b) If upon all the evidence at hearing, the commission shall find that the respondent has not engaged in unlawful practices, the commission shall issue and cause to be served on the complainant an order dismissing the said complaint as to such respondent. The complainant may present additional evidence to the commission for reconsideration of its order. Judicial review of the commission's final order may be obtained.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-76. Order and compliance.

(a) If upon all the testimony taken, the commission shall determine that the respondent has engaged in or is engaging in unlawful practices, the commission shall issue and cause to be served upon such respondent an order requiring such respondent to cease and desist from such unlawful practices, and to take such further affirmative and other action as will effectuate the purposes of this article, including compliance reports; provided only, that any such order establishing remedial ratios shall be limited in time and scope to that which is required to eliminate or correct the effects of practices forbidden by this article, and that in no case shall the commission require the employment of a person or persons not otherwise qualified. The commission in its discretion may award the complainant for:

(1) All damages sustained as a result of the unlawful act, including damages sustained through pain, humiliation and mental suffering;

(2) Payment of cost, including all reasonable attorney fees incurred at any time as a result of the unlawful act;

(3) Punitive damages;

(4) Other specific or equitable relief, such as access to the dwelling at issue (or a comparable dwelling); and

(5) Any other provisions to vindicate the public interest, including apologies; educational and training efforts; and affirmative activities to remediate past discriminatory practices, or prevent future ones.

(b) Upon submission of the reports of compliance the commission, if satisfied therewith, may issue a finding that the respondent has ceased to engage in unlawful practices.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14; Ord. No. 2021-2, § 6, 2-26-21)

Sec. 16-77. Modification of findings of orders.

Until a transcript of the record in a case shall be filed in a court, as hereinafter provided, the commission may at any time, upon reasonable notice, and in such manner as it shall deem proper, modify or set aside, in whole or in part, any of its findings or order.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-78. Right to judicial review or enforcement.

(a) Any complainant, intervener, or respondent claiming to be aggrieved by a final order of the commission, may obtain judicial review thereof and the commission may obtain an order of the court for its enforcement. Such proceeding shall be brought in the superior court of Providence County, or wherein any respondent required in the order to cease and desist from unfair practices or to remedy or take other affirmative action, resides or transacts business.

(b) Such proceeding shall be initiated by the filing of a petition in such court, together with a transcript of the record upon the hearing before the commission, and the service of a copy of the said petition upon the commission and upon all parties who appeared before the commission. Thereupon the court shall have jurisdiction of the proceeding and of the questions determined therein, and shall have power to grant such temporary relief or restraining order as it deems just and proper, and to make and enter upon the pleadings, testimony and proceedings set forth in such transcript an order enforcing, modifying and enforcing as so modified, or setting aside in whole or in part the order of the commission.

(c) An objection that has not been under or before the commission, its members or agent, shall not be considered by the court, unless failure or neglect to urge such objection shall be excused because of extraordinary circumstances.

(d) If either party shall apply to the court for leave to adduce additional evidence, and shall show to the satisfaction of the court that such additional evidence is material and that there were reasonable grounds for the failure to adduce such evidence in the hearing before the commission, its members or agent, the court may order such additional evidence to be taken before the commission, its members or agent, and to be made a part of the transcript.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-79. Modification of commission's findings and orders on additional evidence.

The commission may modify its findings as to the facts, or make new findings by reason of additional evidence so taken and filed. The commission shall file such modified or new findings and its recommendations, if any, for the modification or setting aside of its original order.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-80. Exclusive jurisdiction of court; appeal to supreme court.

The jurisdiction of the court shall be exclusive and its judgment and order shall be, when necessary, subject to review by the supreme court as provided by law, to which court appeal from such judgment and order may be made as provided by law.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-81. Commission's copy of testimony; hearing on transcript.

The commission's copy of the testimony shall be available at all reasonable times to all parties without cost for examination, and for the purposes of judicial review of the order of the commission. The petition shall be heard on the transcript of the record without requirement of printing.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-82. Commission's attorneys.

The commission may appear in court and be represented by the law department of the city or its own attorneys.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-83. Decree for enforcement of commission's order.

If no proceeding to obtain judicial review is instituted by the complainant, intervener or respondent within thirty (30) days from the service of an order of the commission, the commission may obtain a decree of the court for the enforcement of such order upon showing that respondent is subject to the commission's jurisdiction, and resides or transacts business within the county in which the petition for enforcement is brought.
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-84. Posting of statutory provisions.

Every employer, employment agency and labor union subject to this article shall post in a conspicuous place or places on his premises a notice to be prepared or approved by the commission, which shall set forth excerpts of this article and such other relevant information which the commission deems necessary to explain this article. Any person refusing to comply with the provisions of this section shall be punished by a fine of not less than twenty-five dollars ($25.00) nor more than fifty dollars ($50.00).
(Ord. 2014, ch. 2014-33, § 1, 8-8-14)

Sec. 16-85. Equal pay task force.

(a) There is hereby established within the Providence Human Relations Commission, an equal pay task force, whose charge shall be to promote equal pay for equal work through activities including but not limited to studying best practices from other municipalities, collecting data from city contractors and departments, and making policy recommendations to the mayor and the city council.

(1) The task force shall consist of the following: seven (7) members: the Chair and Vice Chair of the Providence Human Relations Commission or their designees, the city solicitor or designee, two (2) members appointed by the city council, and two (2) members appointed by the mayor.

(2) Members of the task force shall serve three-year terms, except that of the members first appointed:

The first members appointed by the city council and mayor shall serve two-year terms.

The second members appointed by the city council and mayor shall serve three-year terms.

(3) The equal pay task force shall serve without compensation, except for reasonable expenses incurred on task force business.

(4) The task force, in its first meeting, shall elect a chairperson and such other officers as it may deem necessary from among its members.

(5) The task force may adopt rules of procedure for the conduct of its business not inconsistent with the provisions of this section or of the Providence Home Rule Charter.

(6) The task force shall meet at least quarterly and shall hold special meetings upon the request of the chairperson.

(b) *Powers and duties:* The powers and duties of the task force shall include, without limitation, the following:

(1) Analyze and recommend the best method or methods of data collection to identify the following, as they may exist among the city's contractors or subcontractors:

a. Wage disparities by gender, among individuals performing same or similar job functions;

b. Wage disparities by race, among individuals performing same or similar job functions; and

c. Wage disparities by race and gender, among individuals performing same or similar job functions.

In determining the best method or methods, the task force will minimize the burden on city contractors and subcontractors providing the data.

(2) Analyze and recommend criteria that will aid in the analysis of wage disparities, including but not limited to educational level achieved, years of work experience, and specialized skills.

(3) Recommend legislation, if necessary or desirable to implement its recommendations.

(4) Create and submit a finalized report of its activities, findings, and recommendations to the Providence Human Relations Commission, City Council, and Mayor, no later than December 31, 2017, and annually thereafter.

(Ord. No. 2017-16, § 1, 6-6-17)

Sec. 16-86. Affirmative action plan.

The affirmative action officer shall, on August 30 of each year, present to the city council a plan detailing the city's efforts to ensure equal employment opportunities for all of the citizens of the city within the city government. This plan shall be prepared in accordance with the criteria set forth by the city's affirmative action office, in cooperation with the director of personnel.
(Ord. No. 2019-12, § 1, 3-39-19)

Sec. 16-87—16-90. Reserved.

ARTICLE III. NOISE CONTROL*

Sec. 16-91. Declaration of policy and scope.

(a) It is hereby declared to be the policy of the city to prohibit unnecessary, excessive, and offensive noise from all sources subject to its police power for the sole purpose of securing and promoting the public health, comfort, safety, and welfare of the citizenry. While recognizing that the use of sound is protected by the constitutional rights of freedom of speech and assembly, unnecessary, excessive, and offensive noises threatens the correlative constitutional rights of the citizens of the community to privacy and freedom from public nuisance and is detrimental to the health, comfort, safety, and welfare of the citizenry. It is with all due consideration of these competing interests that the city council herein regulates the time, place, and manner of the use of sound.

***Editor's note—**Ord. 2014, ch. 2014-6, § 1, approved March 28, 2014, amended Art. III in its entirety to read as set out herein. Former Art. III, §§ 16-91—16-109, pertained to similar subject matter and derived from Ord. 1988, ch. 88-2, §§ 1—17, adopted Jan. 26, 1988; Ord. 1989, ch. 89-6, § 1, approved April 24, 1989; Ord. 1992, ch. 92-1, § 1, approved Jan. 10, 1992; Ord. 1999, ch. 99-18, § 1, approved July 12, 1999; Ord. 2003, ch. 03-58, approved Oct. 23, 2003; Ord. 2004, ch. 04-29, § 1, approved June 14, 2004

Cross references—Ringing bells for sales, § 14-9; signal bells on bicycles, § 15-74; noise regulations, §§ 16-10—16-12.

(b) This article shall apply to the control of all noise originating within the limits of the city or originating from properties lying outside of the limits of the city, owned or controlled by the city, except where either:

(1) A state or federal agency has adopted a different standard or rule than that prescribed in this article which standard or rule preempts the regulation of noise from a particular source as to render this article inapplicable thereto; or

(2) The city council has determined, by reason of public acceptance of the activity producing a particular noise, such noise is deemed acceptable to the residents of the city.

(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-92. Definitions.

Unless the context clearly indicates otherwise, the words and phrases used in this article shall have the following meanings:

Ambient noise: The all-encompassing noise associated with a given environment, being a composite of sounds from many sources, near and far. For the purpose of this article, ambient noise level is the average decibel level over five (5) minutes excluding random or intermittent noises and the alleged offensive noise at the location and time of day at which a comparison with an alleged offensive noise is to be made.

Decibels (dBA): The decibel is a unit of measure of sound (noise) level relative to a standard reference sound on a logarithmic scale. The decibel level of a given sound is determined as twenty (20) times the logarithm to the base 10 of the ratio of the pressure in micronewtons per square meter of the sound being measured to the standard reference sound pressure of twenty (20) micronewtons per square meter (0.0002 microbar). Decibels shall be measured on the A-weighted scale of a sound level meter properly calibrated to comply with the provisions of the American National Standards Institute, "Specifications for Sound Level Meters (ANSI S1.4 1971)."

Motor vehicles: Shall include, but not be limited to, automobiles, trucks, SUVs, vans, buses, motorcycles, mini-bikes, scooters, and go-carts.

Person: A person means any individual, including the owner of premises or tenant of premises, operator of a vehicle, firm, association, partnership, joint venture, corporation, or any entity, public or private in nature.

Receiving land use: The use or occupancy of the property, or the actual real property, which receives the transmission of sound.

Sound amplifying equipment: Any machine or device for the amplification of the human voice, music, or any other sound. "Sound amplifying equipment" shall not include standard motor vehicle radios when used and heard only by the occupants of

the vehicle in which the motor vehicle radio is installed. "Sound amplifying equipment" shall not include warning devices on any motor vehicle used only for traffic safety purposes.

Unnecessary, excessive, or offensive noise: Any sound or noise conflicting with the criteria, standards, or levels set forth in this article for permissible noises. In the absence of specific maximum noise levels, a noise level which exceeds the ambient noise level by ten (10) dBA or more, when measured at or within the real property boundary of a receiving land use or, in the case of multiple-family residential buildings, when measured anywhere in one (1) dwelling unit with respect to a noise emanating from another dwelling unit or from common space in the same building, or noise audible to a person of reasonably sensitive hearing at a distance of two hundred (200) feet from its source, shall be deemed a prima facie violation of this article.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-93. Unnecessary, excessive or offensive noise prohibited.

(a) Except as permitted, it shall be unlawful for any person to make, continue, permit or cause to be made or continued any unnecessary, excessive, or offensive noise as defined in this article. Unnecessary, excessive, or offensive noise shall include but not be limited to sound that exceeds the permissible standards provided in subsection (3) of this provision when measured at or within the real property boundary of a receiving land use or noise audible to a person of reasonably sensitive hearing at a distance of two hundred (200) feet from its source.

(b) For any violation of this provision, the receiving land use involved may include real property contiguous to, or bounding the real property containing the source of the sound.

(c) With the exception of sound levels or standards specifically authorized or prohibited in this article, the following are the maximum permissible sound levels allowed at or within the real property boundary of a receiving land use or two hundred (200) feet from its source:

Sounds Levels by Receiving Land Use

Zoning District	*Time*	*Sound Limit dBA*
Residential	7:00 a.m. to 9:59 p.m. 10:00 p.m. to 6:59 a.m.	65 dBA 55 dBA
Downtown	2:00 a.m. to 7:00 a.m. All other times	55 dBA 75 dBA
Commercial/Industrial	2:00 a.m. to 7:00 a.m. All other times	55 dBA 75 dBA
Open Spaces	2:00 a.m. to 7:00 a.m. All other times	55 dBA 75 dBA

Zoning District	*Time*	*Sound Limit dBA*
Waterfront	2:00 a.m. to 7:00 a.m.	55 dBA

(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-94. Hawkers and peddlers, shouting.

(a) It shall be unlawful for any person within the city to sell anything by outcry within any area of the city zoned for residential uses. The provisions of this section shall not be construed to prohibit the selling by outcry of merchandise, food, and beverages at licensed sporting events, parades, fairs, circuses, or other similar licensed public entertainment events.

(b) No person shall yell, laugh, hoot, holler, scream, sing, or otherwise amplify their vocals in a residential zone of the city between the hours of 10:00 p.m. and 7:00 a.m. at such a volume that it is plainly audible at a distance of one hundred (100) feet from its source for a duration of longer than ten (10) seconds. However, nothing in this provision or this article shall apply to vocalization or the emission of sound for the purpose of alerting persons to the existence of an emergency.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-95. Disorderly house.

(a) No person shall keep a disorderly house or place of public resort whereby the peace, comfort, or decency of a neighbor is habitually disturbed, or being the owner of, or in control of such premises, intentionally permit them to be so used.

(b) For purposes of this provision, a disorderly house is defined as a residence or dwelling in which two or more noise violations resulting in a conviction or convictions in the municipal court have occurred within a three-year period.

(c) Notice of noise violation convictions shall be mailed to any property owner on the city property tax assessment records to advise the property owner(s) that any subsequent such violation(s) within three (3) years on the same premises shall result in liability of the property owner for any and all penalties associated with such intervention.

(d) The owner of such residence or dwelling may assert as a defense reasonable efforts to take action against the perpetrators of the violation of this article, including the initiation of eviction proceedings pursuant to Rhode Island General Laws.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-96. Schools, hospitals and churches.

It shall be unlawful for any person to create any unnecessary, excessive or offensive noise, as defined herein, on any street, sidewalk, or public place adjacent to any school, institution of learning, hospital or church while the same is in use, provided conspicuous signs are displayed in such street, sidewalk, or public places indicating

the presence of a school, hospital or church. For purposes of this provision, unnecessary, excessive or offensive noise shall include but not be limited to sound that exceeds sixty-five (65) decibels (dBA) measured at the property boundary of the school, institution of learning, hospital or church or when the same is audible to a person of reasonably sensitive hearing at a distance of two hundred (200) feet from its source.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-97. Machinery, equipment, fans, air conditioning, leaf blowers.

It shall be unlawful for any person to operate any machinery, equipment, pump, fan, air conditioning apparatus, leaf-blowing equipment, or similar mechanical device in any residential zone of the city so as to exceed fifty-five (55) dBA between the hours of 8:00 p.m. and 7:00 a.m. or so as to exceed sixty-five (65) dBA between the hours of 7:00 a.m. and 8:00 p.m. measured at or within the real property boundary of a receiving land use, or at any hour when the same is audible to a person of reasonably sensitive hearing at a distance of two hundred (200) feet from its source.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-98. Construction and repairs.

It shall be unlawful for any person to operate equipment or perform any construction or repair work on buildings, structures, or projects or to operate any pile driver, power shovel, pneumatic hammer, derrick, power hoist, or any other construction type device between the hours of 8:00 p.m. and 7:00 a.m. so as to create unnecessary, excessive or offensive noise as defined herein, unless beforehand a special permit therefor has been duly obtained from the director of public works. For purposes of this provision, unnecessary, excessive or offensive noise shall include, but not be limited to, sound that exceeds sixty-five (65) decibels (dBA) or when the same is audible to a person of reasonably sensitive hearing at a distance of two hundred (200) feet from its source. No special permit shall be required to perform emergency work, defined as work necessary to restore property to a safe condition following a public calamity or work required to protect persons or property from an imminent exposure to danger or work by private or public utilities when restoring utility service.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-99. Motor vehicles.

No person shall remove or render inoperative, or cause to be removed or rendered inoperative, other than for purposes of maintenance, repair, or replacement, any muffler or sound dissipative device on any motor vehicle.

It shall be unlawful for any person to repair, rebuild, or test any motor vehicle in any residential zone of the city between the hours of 8:00 p.m. and 7:00 a.m. so as to create unnecessary, excessive or offensive noise, which shall include, but is not limited to, sound that exceeds fifty-five (55) decibels (dBA) measured at or within the real

property boundary of a receiving land use or when the same is audible to a person of reasonably sensitive hearing at a distance of two hundred (200) feet from its source. (Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-100. Reserved.

Editor's note—Ord. 2014, ch. 2014-6, § 1, approved March 28, 2014, repealed § 16-100 in its entirety. Former § 16-100 pertained to amplified sound—purpose of legislation and derived from Ord. 1988, ch. 88-2, § 10, approved Jan. 26, 1988.

Sec. 16-101. Reserved.

Editor's note—Ord. 2014, ch. 2014-6, § 1, approved March 28, 2014, repealed § 16-101 in its entirety. Former § 16-101 pertained to same—registration required and derived from Ord. 1988, ch. 88-2, § 11, approved Jan. 26, 1988.

Sec. 16-102. Reserved.

Editor's note—Ord. 2014, ch. 2014-6, § 1, approved March 28, 2014, repealed § 16-102 in its entirety. Former § 16-102 pertained to same—registration requirements and duties and derived from Ord. 1988, ch. 88-2, § 12, approved Jan. 26, 1988.

Sec. 16-103. Reserved.

Editor's note—Ord. 2014, ch. 2014-6, § 1, approved March 28, 2014, repealed § 16-103 in its entirety. Former § 16-103 pertained to same—appeals and derived from Ord. 1988, ch. 88-2, § 13, approved Jan. 26, 1988.

Sec. 16-104. Reserved.

Editor's note—Ord. 2014, ch. 2014-6, § 1, approved March 28, 2014, repealed § 16-104 in its entirety. Former § 16-104 pertained to same—fees and derived from Ord. 1988, ch. 88-2, § 14, approved Jan. 26, 1988.

Sec. 16-105. Amplified sound—Regulations.

The commercial and noncommercial use of sound amplifying equipment shall conform to the regulations set forth in section 16-93(c), and be subject to the following regulations:

(1) The volume of sound shall be controlled so that it will not be audible for a distance in excess of two hundred (200) feet from its source, except as provided herein.

(2) No sound amplifying equipment shall be operated so as to exceed seventy-five (75) decibels, except as provided herein.

(3) In order to use sound amplifying equipment outside of the regulations provided herein, the prospective user of sound amplifying equipment shall file a

registration statement with the police department not less than five (5) days prior to the date on which the sound amplifying equipment is intended to be used. Each registration statement shall contain:

a. The name, address, and telephone number of the user of the sound amplifying equipment;

b. The date, time, and place of the intended use of the sound amplifying equipment;

c. A general description of the sound amplifying equipment which is to be used;

d. The maximum sound producing power of the sound amplifying equipment, including the wattage to be used, the volume in decibels of sound which will be produced, and the approximate distance for which sound will be audible from the sound amplifying equipment;

e. The license plate number and registration of a sound truck if one is to be used; and

f. Whether the sound amplifying equipment will be used for commercial purposes.

If the use of the sound amplifying equipment is for commercial purposes, a fee in the amount of ten dollars ($10.00) per day of use shall be paid to the city at the time of filing the registration statement. The police department shall, within forty-eight (48) hours of the filing of the registration statement, return to the applicant an approved certified copy of the registration statement unless it finds that, in the opinion of the chief of police, the use of the sound amplifying equipment would constitute a detriment to public safety and welfare. In the event of disapproval, the chief of police shall endorse the registration statement with the specific reasons for disapproval. Any person aggrieved by disapproval of a registration statement may appeal within five (5) days to the commissioner of public safety.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-106. Violations—Penalty.

Any person found guilty of violating, disobeying, neglecting, or refusing to comply with the provisions of this article, shall upon conviction be punished by a fine of not more than five hundred dollars ($500.00), for any one (1) offense, except that any person electing to appear before the clerk of municipal court and admitting the violation charged, or in lieu of personally appearing before the clerk of the court, electing to admit the violation by mail to the clerk of court, shall be punished by a fine of two hundred dollars ($200.00). Provided, however, that for a second violation and any subsequent violation a person electing to appear before the clerk of the municipal

court and admitting the violation charged or, in lieu of personally appearing before the clerk of the court, electing to admit the violation by mail to the clerk of court shall be punished by a fine of three hundred dollars ($300.00).
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-107. Violations—Public nuisance; injunctions.

Any violation of any provision of this shall be deemed, and is declared to be, a public nuisance and may be subject to abatement summarily by a restraining order or injunction issued by a court of competent jurisdiction.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Sec. 16-108. Reserved.

Editor's note—Ord. 2014, ch. 2014-6, § 1, approved March 28, 2014, repealed § 16-108 in its entirety. Former § 16-108 pertained to general noise regulations; motor vehicles and derived from Ord. 1989, ch. 89-6, § 1, approved April 24, 1989; and Ord. 2004, ch. 04-29, § 1, approved June 14, 2004.

Sec. 16-109. Complaints.

Any person, including a police officer, may be a complainant for the purpose of instituting action for any violation of this article.
(Ord. 2014, ch. 2014-6, § 1, 3-28-14)

Secs. 16-110—16-120. Reserved.

ARTICLE IV. SECURITY ALARM SYSTEMS*

Sec. 16-121. Declaration of policy.

Excessive false alarms unduly burden the Providence Police Department's limited law enforcement resources. Therefore, the purpose of this article is to establish reasonable expectations of alarm users and to ensure that alarm users are held responsible for their use of alarm systems.
(Ord. No. 2017-14, § 1, 6-2-17)

*__Editor's note—__Ord. No. 2017-14, § 1, adopted June 2, 2017, amended Art. IV in its entirety to read as herein set out. Former Art. IV, §§ 16-121—16-124, 16-128, 16-129, pertained to similar subject matter, and derived from Ord. 1993, ch. 93-31, §§ 1—4, 8, 9, adopted Sept. 24, 1993; Ord. 2003, chs. 03-53(§ 1) 03-54(§ 1), adopted Aug. 18, 2003; Ord. 2004, chs. 04-37(§ 1), 04-38(§ 1), 04-38(§ 1), adopted Sept. 13, 2004; Ord. No. 16-129, § 1, adopted April 29, 2016.

Sec. 16-122. Definitions.

Unless the context clearly indicates otherwise, the words and phrases used in this chapter shall have the following meanings:

Alarm administrator means a person or persons designated by the city to administer, control and review false alarm reduction efforts and administer the provisions of this article.

Alarm company means a person subject to the licensing requirements, and/or a company engaged in selling, leasing, installing, servicing or monitoring alarm systems.

Alarm signal means a detectable signal; audible or visual, generated by an alarm system, to which law enforcement is requested to respond.

Alarm system means any single device or assembly of equipment designed to signal the occurrence of an illegal or unauthorized entry or other illegal activity requiring immediate attention and to which law enforcement is requested to respond, but does not include motor vehicle or boat alarms, fire alarms, domestic violence alarms, or alarms designed to elicit a medical response.

Alarm user means any person, corporation, partnership, proprietorship, governmental or educational entity or any other entity owning, leasing or operating an alarm system, or on whose premises an alarm system is maintained for the protection of such premises.

Alarm user awareness class means a class conducted for the purpose of educating alarm users about the responsible use, operation, and maintenance of alarm systems and the problems created by false alarms.

Automatic dial protection device means an automatic dialing device or an automatic telephone dialing alarm system and shall include any system which, upon being activated, automatically initiates to the Providence Police Department a recorded message or code signal indicating a need for law enforcement response.

Cancellation means the process where response is terminated when the alarm company (designated by the alarm user) notifies the Providence Police Department that there is not an existing situation at the alarm site requiring police response after an alarm dispatch request. If cancellation occurs prior to police arriving at the scene, this is not a false alarm for the purpose of a civil penalty, and no penalty will be assessed.

City means the City of Providence or its agent.

False alarm means the activation of an alarm system through mechanical or electronic failure, malfunction, improper installation, or the negligence of the alarm user, his/her employees or agents, and signals activated to summon law enforcement personnel unless law enforcement response was cancelled by the user's alarm

company before law enforcement personnel arrive at the alarm location. An alarm is false within the meaning of this article when, upon inspection by the Providence Police Department, evidence indicates that no unauthorized entry, robbery, or other such crime was committed or attempted in or on the premises which would have activated a properly functioning alarm system. Notwithstanding the foregoing, a false alarm shall not include an alarm which can reasonably be determined to have been caused or activated by unusually violent conditions of nature nor does it include other extraordinary circumstances not reasonably subject to control by the alarm user.

Local alarm means an alarm system that emits a signal at an alarm site that is audible or visible from the exterior of a structure and is not monitored by a remote monitoring facility, whether installed by an alarm company or user.

Permit year means a twelve-month period beginning on the day and month on which an alarm permit is issued.

Runaway alarm means an alarm system that produces repeated alarm signals that do not appear to be caused by separate human action. The Providence Police Department may in its discretion discontinue police responses to alarm signals from what appears to be a runaway alarm.

SIA Control Panel Standard CP-01 means the American National Standard Institute (ANSI) approved security industry association (SIA) CP-01 control panel standard, as may be updated from time to time, that details recommended design features for security system control panels and their associated arming and disarming devices to reduce false alarms. Control panels built and tested to this standard by a nationally recognized testing organization, will be marked to state: "Design evaluated in accordance with SIA CP-01 control panel standard features for false alarm reduction".

Verify means an attempt by the monitoring company, or its representative, to contact the alarm site and/or alarm user by telephone and/or other electronic means, whether or not actual contact with a person is made, to attempt to determine whether an alarm signal is valid before requesting law enforcement dispatch, in an attempt to avoid an unnecessary alarm dispatch request. For the purpose of this ordinance, telephone verification shall require, as a minimum that a second call be made to a different number if the first attempt fails to reach an alarm user who can properly identify themselves to attempt to determine whether an alarm signal is valid before requesting law enforcement dispatch.
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-123. Alarm permits.

(a) *Permit required*. No person shall use an alarm system without first obtaining a permit for such alarm system from the city. A fee may be required for the initial registration and annual renewals. Each alarm permit shall be assigned a unique permit number, and the user shall provide the permit number to facilitate law enforcement dispatch.

(b) *Application*. The permit shall be requested on an application form provided by the city. An alarm user has the duty to obtain an application from the city.

(c) *Transfer of possession*. When the possession of the premises at which an alarm system is maintained is transferred, the person (user) obtaining possession of the property shall file an application for an alarm permit within thirty (30) days of obtaining possession of the property. Alarm permits are not transferable.

(d) *Reporting updated information*. Whenever the information provided on the alarm permit application changes, the alarm user shall provide correct information to the city within thirty (30) days of the change. In addition, each year after the issuance of the permit, permit holders will receive from the city a form requesting updated information. The permit holder shall complete and return this form to the city whether or not any of the requested information has changed; failure to comply will constitute a violation and may result in a civil penalty.

(e) *Multiple alarm systems*. If an alarm user has one (1) or more alarm systems protecting two (2) or more separate structures having different addresses and/or tenants, a separate permit shall be required for each structure and/or tenant.
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-124. Duties of alarm user.

(a) Maintain the premises and the alarm system in a method that will reduce or eliminate false alarms; and

(b) Provide the alarm company the permit number, (the number must be provided to the communications center by the alarm company to facilitate dispatch).

(c) Must respond or cause a representative to respond to the alarm system's location within a reasonable amount of time when notified by the Providence Police Department.

(d) Not manually activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report.

(e) An alarm user must obtain a new permit and pay any associated fees if there is a change in address or ownership of a business or residence.
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-125. Duties of alarm company.

(a) Any person engaged in the alarm business in the city, shall comply with the following:

(1) Obtain and maintain the required state and/or city license(s).

(2) Provide name, address, and telephone number of the user or a designee, who can be called in an emergency, twenty-four (24) hours a day; and contact a key holder or other emergency contact who will respond immediately.

(3) Provide the most current contact information for the alarm user.

(b) Ninety (90) days after enactment of this article the alarm installation companies shall, on all new and up-graded installations, use only alarm control panel(s) which meet SIA control panel standard CP-01.

(c) Prior to activation of the alarm system, the alarm company must provide instructions explaining the proper operation of the alarm system to the alarm user.

(d) Provide written information of how to obtain service from the alarm company for the alarm system.

(e) An alarm company performing monitoring services shall:

(1) Attempt to verify, by calling the alarm site and/or alarm user by telephone, to determine whether an alarm signal is valid before requesting dispatch. Telephone verification shall require, as a minimum that a second call be made to a different number, if the first attempt fails to reach an alarm user who can properly identify themselves to attempt to determine whether an alarm signal is valid, except in the case of a panic or robbery-in-progress alarm, or in cases where a crime-in-progress has been verified by video and/or audible means.

(2) Provide alarm user registration number, when available, to the communications center to facilitate dispatch and/or cancellations.

(3) Communicate any available information about the location of the alarm.

(4) Communicate a cancellation to the law enforcement communications center as soon as possible following a determination that response is unnecessary.

(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-126. Prohibited acts.

(a) It shall be unlawful to activate an alarm system for the purpose of summoning law enforcement when no burglary, robbery, or other crime dangerous to life or property is being committed or attempted on the premises, or otherwise to cause a false alarm.

(b) It shall be unlawful to install, maintain, or use an audible alarm system which can sound continually for more than fifteen (15) minutes.

(c) It shall be unlawful to install, maintain, or use an automatic dial protection device that reports, or causes to be reported, any recorded message to the Providence Police Department.

(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-127. Enforcement.

(a) *Excessive false alarms/failure to register*. It is hereby found and determined that three (3) or more false alarms within a permit year is excessive, constitutes a public nuisance, and shall be unlawful. Civil penalties for false alarms within a permit year may be assessed against an alarm user as follows:

Third false alarm	$100.00
Fourth false alarm	200.00
Fifth false alarm	400.00
Sixth and over false alarms	500.00
Failure to register	100.00

(b) *Other civil penalty(ies)*. Violations will be enforced through the assessment of civil penalty(ies) in the amount of one hundred dollars ($100.00) per violation.

(c) *Payment of civil penalty(ies)*. Civil penalty(ies) shall be paid within (30) days from the date of the invoice.

(d) *Discontinuance of law enforcement response*. The failure of an alarm user to make payment of any civil penalty(ies) assessed under this article within thirty (30) days from the date of the invoice shall result in discontinuance of law enforcement response to alarm signals that may occur at the premises described in the alarm user's permit until payment is received.

(e) *Civil non-criminal violation*. A violation of any of the provisions of this ordinance shall be a civil violation and shall not constitute a misdemeanor or infraction.
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-127. Alarm user awareness class.

The city may create and implement an alarm user awareness class and may request the assistance of the area alarm companies to assist in developing and implementing the class. The class shall inform alarm users of the problems created by false alarms and instruct alarm users how to help reduce false alarms. The city may grant the option of attending a class in lieu of paying one (1) assessed fine, not to exceed one hundred dollars ($100.00).
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-128. Appeals.

(a) *Appeals process*. Assessments of civil penalty(ies) and other enforcement decisions made under this ordinance may be appealed by filing a written notice of appeal with the Providence Police Department within ten (10) days after the date of notification of the assessment of civil penalty(ies) or other enforcement decision.

The failure to give notice of appeal within this time period shall constitute a waiver of the right to contest the assessment of penalty(ies) or other enforcement decision. Appeals shall be heard through an administrative process established by the city. The hearing officer's decision is subject to review in the district court by proceedings in the nature of certiorari.

(b) *Appeal standard*. The hearing officer shall review an appeal from the assessment of civil penalty(ies) or other enforcement decisions using a preponderance of the evidence standard. Notwithstanding a determination that the preponderance of the evidence supports the assessment of civil penalty(ies) or other enforcement decision, the hearing officer shall have the discretion to dismiss or reduce civil penalty(ies) or reverse any other enforcement decision where warranted.
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-129. Confidentiality.

In the interest of public safety, all information contained in and gathered through the alarm registration applications, no response records, applications for appeals and any other alarm records shall be held in confidence by all employees and/or representatives of the city.
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-130. Government immunity.

Alarm registration is not intended to, nor will it, create a contract, duty or obligation, either expressed or implied, of response. Any and all liability and consequential damage resulting from the failure to respond to a notification is hereby disclaimed and governmental immunity as provided by law is retained. By applying for an alarm registration, the alarm user acknowledges that the Providence Police Department response may be influenced by factors such as: the availability of police units, priority of calls, weather conditions, traffic conditions, emergency conditions, staffing levels and prior response history.
(Ord. No. 2017-14, § 1, 6-2-17)

Sec. 16-131. Severability.

The provisions of this article are severable. If a court determines that a word, phrase, clause, sentence, paragraph, subsection, section, or other provision is invalid or that the application of any part of the provision to any person or circumstance is invalid, the remaining provisions and the application of those provisions to other persons or circumstances are not affected by that decision.
(Ord. No. 2017-14, § 1, 6-2-17)

Secs. 16-132—16-140. Reserved.

Editor's note—Ord. 2004, ch. 04-55, § 1, adopted December 23, 2004, amended the Code by repealing former §§ 16-130 and 16-131 in their entirety. Former § 16-130 pertained to the appeals procedure. Former § 16-131 pertained to the establishment of the false alarm monitoring program advisory committee. Both sections derived from Ord. 1993, ch. 93-31, adopted September 24, 1993.

ARTICLE V. GRAFFITI*

Sec. 16-141. Definitions.

Abate means to effectively remove.

Aerosol paint container means any aerosol container that is adapted or made for the purpose of applying spray paint or other substance capable of defacing property.

Broad-tipped marker means any felt tip indelible marker or similar implement with a flat or angled writing surface that, at its broadest width, is greater than one-fourth (¼) of an inch, containing ink or other pigmented liquid that is not water soluble.

Etching equipment means any tools, device, acid or cream manufactured or sold for the specific purpose of etching glass, metal, stone or other natural or man-made surface.

Graffiti means any unauthorized inscription, word, figure, painting or other defacement that is written, marked, etched, scratched, sprayed, drawn, painted, or engraved on or otherwise affixed to any surface of public or private property by any graffiti implement, to the extent that the graffiti was not authorized in advance by the owner or occupant of the property, or, despite advance authorization, is otherwise deemed a public nuisance.

Graffiti implement means any aerosol paint container, a broad-tipped marker, paint stick or graffiti stick, or etching equipment.

Paint stick or *graffiti stick* means any device containing a solid form of paint, epoxy, or other similar substance capable of being applied to a surface by pressure and leaving a mark thereon, which cannot be removed with soap and water.

Person means any individual, partnership, cooperative association, private corporation, personal representative, receiver, trustee, assignee, or any other legal entity.

***Editor's note—**Ord. 2006, ch. 06-34, § 2, approved June 12, 2006, amended the Code by, in effect, repealing former art. V, §§ 16-141 and 16-142, and adding a new art. V. Former art. V pertained to similar subject matter, and derived from Ord. 1993, ch. 93-58, approved December 27, 1993.

Public or private property shall include any building, bridge fence or other structure, any street, alley, sidewalk, or other vehicular or pedestrian right-of-way, any article of street furniture, lamppost, bus shelter, newspaper box, or trash receptacle, any tree, rock, or other natural fixture, any utility or public service equipment, or any other personal property located outdoors, whether publicly or privately owned.
(Ord. 2006, ch. 06-34, § 2, 6-23-06; Ord. 2007, ch. 07-13, § 1, 12-21-06)

Sec. 16-142. Prohibited acts—Defacement.

It shall be unlawful for any person to apply graffiti to any natural or man-made surface on any city-owned property or on any non city-owned property.
(Ord. 2006, ch. 06-34, § 2, 6-23-06)

Sec. 16-143. Violation; penalty.

Any person violating this article shall be punished in the following manner:

(1) *Fines.* A fine not to exceed one thousand dollars ($1,000.00) for any offense.

a. In case of a minor, the parents or legal guardian shall be jointly and severally liable with the minor for the payment of all fines.

b. Failure of the parents or legal guardian to make payment will result in the filing of a lien on the parent's or legal guardian's property that includes the fine and administrative costs.

c. Upon an application and finding of indigence. the court may decline to order fines against the minor, parents or guardian.

(2) *Restitution.* A court shall order any violator to make restitution to the victim for damages or loss caused directly or indirectly by the violator's offense in the amount or manner determined by the court. In the case of a minor, the parents or legal guardian shall be ordered jointly and severally liable with the minor to make the restitution.

(3) *Community service.* A minor or adult shall be required to perform community service as described by the court based on the following minimum requirements:

a. The minor or adult shall perform up to one hundred (100) hours of community service for a first offense. A second or subsequent offense shall require up to two hundred (200) hours of public community restitution work.

b. At least one (1) parent or guardian of the minor shall be in attendance a minimum of fifty (50) percent of the period of assigned community service.

c. The entire period of community service shall be performed under the supervision of a community service provider approved by the chief of police or the probation department of the court.

d. Reasonable effort shall be made to assign the minor or adult to a type of community service that is reasonably expected to have the most rehabilitative effect on the minor or adult, including community service that involves graffiti removal.

(Ord. 2006, ch. 06-34, § 2, 6-23-06)

Sec. 16-144. Sale of graffiti materials to minors.

(a) It shall be unlawful for any person, other than a parent or legal guardian, to sell, exchange, give, loan, otherwise furnish, cause, or permit to be exchanged, given, loaned, or otherwise furnished, any aerosol paint container, broad-tipped marker, etching equipment, paint stick or graffiti stick to any person under the age of eighteen (18) years without the written consent of the parents or guardian of the person.

(b) For purposes of this section, bona fide evidence of majority, identity of majority and identity of the person is a document issued by a federal, state, country, or municipal government, or subdivision or agency of them, including, but not limited to, a motor vehicle operator's license, a registration certificate issued under the federal Selective Service Act, 50 App. U.S.C. § 451 et seq., or an identification card issued to a member of the armed forces.

(c) Proof that the defendant, or his employee or agent, demanded, was shown and acted in reliance upon bona fide evidence in any sale transaction forbidden by this article, shall be a defense to any criminal prosecution for that violation.

(d) Any person who owns, manages or operates a place of business where aerosol containers of paint capable of defacing property are sold shall conspicuously post notice of this law in the place of business in letters at least three-eighths (3/8) of an inch high.

(e) Any person who owns, manages or operates a place of business where graffiti implements (as defined in section 16-141) are sold shall display these items either:

(1) In an area continuously observable, through direct visual observation or surveillance equipment, by employees of the retail establishment during the regular course of business; or

(2) In an area not accessible to the public in the regular course of business without employee assistance.

(f) *Penalties.*

(1) Any person who sells, displays or stores, or permits the sale, display or storage of any graffiti implements in violation of the provisions of this article shall be fined not more than one hundred dollars ($100.00) for each offense.

(2) Any person who sells, displays or stores, or permits the sale, display or storage of these products in violation of the provisions of this article shall be personally liable for all costs, including attorney's fees and court costs, incurred by any party in connection with the removal of graffiti, the repair of any property containing graffiti, or such party's prosecution of a civil claim for reimbursement or damages resulting from such graffiti removal or property repair, arising from the use by any person of such implements in violation of the provisions of this article, provided that possession of the graffiti implement used is proven to be the result of a specific sale, display or storage violation. Such liability shall not exceed one thousand five hundred dollars ($1,500.00).

(g) The severability provision is intended to permit a court to strike a portion of this article that is over broad, vague or otherwise unconstitutional, while upholding the remainder of the article. Severability is intended throughout and within the provisions of this article. If any section. subsection, sentence, clause, phrase or portion of this article is held to be invalid or unconstitutional by a court of competent jurisdiction than that decision shall not affect the validity of the remaining portions of this article.

(Ord. 2006, ch. 06-34, § 2, 6-23-06; Ord. 2007, ch. 07-13, § 1, 12-21-06)

Sec. 16-145. Graffiti as nuisance.

(a) *Prohibited.*

(1) The existence of graffiti on public or private property in violation of this article is expressly declared to be a public nuisance and, therefore, is subject to the removal and abatement provisions specified in this article.

(2) It is the duty of both the owner of the property to which the graffiti has been applied and any other person who may be in possession or who has the right to possess such property to at all times keep the property clear of graffiti.

(b) *Removal of graffiti by perpetrator.* Any person applying graffiti on public or private property shall have the duty to remove the graffiti within twenty-four (24) hours after notice by the city or private owner of the property involved. Such removal shall be done in a manner prescribed by the chief of police, the director of the department of public property, or any additional city department head, as authorized by the city. Any person applying graffiti shall be responsible for the removal or for the payment of the removal. Failure of any person to remove graffiti or pay for the removal shall constitute an additional violation of this article. Where graffiti is applied by an unemancipated minor, the parents or legal guardian shall also be responsible for such removal or for the payment of such removal.

(c) *Removal of graffiti by property owner or city.* If graffiti is not removed by the perpetrator according to this chapter, graffiti shall be removed pursuant to the following provisions:

(1) *Property owner responsibility.* It is unlawful for any person who is the owner or who has primary responsibility for control of property or for repair or

maintenance of property in the city to permit property that is defaced with graffiti to remain defaced for a period of ten (10) days after receiving notification by the city of the defacement. Such notice shall be provided in a manner prescribed by the chief of police, the director of the department of public property, or any additional city department head, as authorized by the city.

(2) *Exceptions to property owner responsibility.* The removal requirements above shall not apply if the property owner or responsible party can demonstrate that:

a. The property owner or responsible party lacks the financial ability to remove the defacing or graffiti; or

b. The property owner or responsible party has an active program for the removal of graffiti and has scheduled the removal of the graffiti as part of that program, in which case it shall be unlawful to permit such property to remain defaced with graffiti for a period of fifteen (15) days after receiving notification of the defacement.

(d) *Right of city to remove.*

(1) *Use of public and/or trust funds.* Whenever the city becomes aware or is notified and determines that graffiti is located on publicly or privately owned property viewable from a public or quasi-public place, the city shall be authorized to use public and/or trust funds for the removal of the graffiti, but shall not authorize or undertake to provide for the painting or repair of any more extensive an area that that where the graffiti is located, unless the city determines in writing that a more extensive area is required to be repainted or repaired in order to avoid an aesthetic disfigurement to the neighborhood or community, or unless the property owner or responsible party agrees to pay for the costs of repainting or repairing the more extensive area.

(2) *Right of entry on private property.* Prior to entering upon private property or property owned by a public entity other than the city for the purpose of graffiti removal the city shall attempt to secure the consent of the property owner or responsible party and a release of the city from liability for property damage or personal injury.

(e) *Abatement and cost recovery.* If the property owner or responsible party fails to remove the offending graffiti within the time specified by this article, or if the city has requested consent to remove or paint over the offending graffiti and the property owner or responsible party has refused consent for entry on terms acceptable to the city and consistent with the terms of this section, the city may enter and abate the graffiti. If all or any portion of the eradication charges remain unpaid after thirty (30) days, the portion thereof that remains unpaid shall constitute a lien on the property that was the subject of the eradication effort.

(f) The severability provision is intended to permit a court to strike a portion of this article that is over broad, vague or otherwise unconstitutional, while upholding the remainder of this article. Severability is intended throughout and within the provisions of this article. If any section, subsection, sentence, clause, phrase or portion of this article is held to be invalid or unconstitutional by a court of competent jurisdiction than that decision shall not affect the validity of the remaining portions of this article.

(Ord. 2006, ch. 06-34, § 2, 6-23-06)

Chapter 17

OFFICERS AND EMPLOYEES*

Article I. In General

Sec. 17-1. Enumeration and terms of office.
Sec. 17-2. Commissions issued by city clerk.
Sec. 17-3. Fees for licenses and commissions.
Sec. 17-4. Collection of fees for licenses, commissions.
Sec. 17-5. Qualifying and giving bond.
Sec. 17-6. Heads of departments to keep lists of employees.
Sec. 17-7. Employees to be residents; exceptions.
Sec. 17-8. Restriction on employment of persons drawing city pension.
Sec. 17-9. Veterans of armed forces, return to city employment.
Sec. 17-10. Departments may establish five-day week.
Sec. 17-11. Establishment of basic workweek in certain departments.
Sec. 17-12. Workweek—Prescribed.
Sec. 17-13. Same—Standard hours and days of work per week prescribed.
Sec. 17-14. Same—Distribution of hours as to days.
Sec. 17-15. Day and night force for fire department.

***Cross references—**Prohibited interests of councilmen, officers, employees, § 2-4; salary of mayor, § 2-22; salaries of councilmen, § 2-23; deputies and assistants, § 2-53; traffic engineer, § 2-153 et seq.; city sergeant and city messenger, § 2-170 et seq.; superintendent of public buildings, § 2-194 et seq.; superintendent of weights and measures, § 2-206 et seq.; superintendent of vehicles, § 2-219 et seq.; public service engineer, § 2-233 et seq.; city plan commission, § 2-240 et seq.; city plan director, assistants, employees, § 2-246 et seq.; inspection of payroll lists, § 2-286 et seq.; appointment, duties, etc., of superintendent of North Burial Ground, § 6-20; clerk, assistant clerk to superintendent, § 6-21; employment of workmen at North Burial Ground, § 6-23; civilian defense council, § 7-1 et seq.; shelter managers for civil defense organization, § 7-7 et seq.; bureau of fire prevention, § 9-22 et seq.; harbormaster, § 11-1 et seq.; superintendent of health, other officer performing duties in relation to public health, § 12-1 et seq.; superintendent of garbage disposal, § 12-53; urban renewal coordinator, § 13-7; technical steering committee for housing code, § 13-8; minimum housing standards division, § 13-5 et seq.; housing board of review, § 13-27 et seq.; board of park commissioners, § 18-29 et seq.; department of recreation, § 18-50 et seq.; assistants to board of tax assessment review, § 21-15; superintendent of school teachers, § 22-2; employment on public works, § 23-40.

State law references—Full treatment of law of state as to city officials, chs. 45-4—45-8, 45-16, 45-17, 13-5, 29-4-4—29-4-8, Gen. Laws 1956; special act relative to retirement of employees of city, P.L. 1923, ch. 489, as amended by P.L. 1926, ch. 873.

Sec. 17-16. Firemen not to engage in other employment.
Sec. 17-17. Grant of leave of absence without pay.
Sec. 17-18. Leave of absence for educational training.
Sec. 17-19. Leave of absence for veterans' conventions.
Sec. 17-20. Uniform identification card—Required.
Sec. 17-21. Same—Size, color, contents.
Sec. 17-22. Same—Record to be kept by personnel director.
Sec. 17-23. Same—Application to members of police, fire departments.
Sec. 17-24. Same—Counterfeiting, tampering, misusing cards.
Sec. 17-25. Duties of inspector of provisions.
Sec. 17-26. Grounds for revocation of appointment of constables.
Sec. 17-27. Ratification of collective bargaining agreements.
Sec. 17-28. Assignment of police officers to construction projects.
Sec. 17-29. Examinations.
Sec. 17-30. Reserved.
Sec. 17-31. Mailing of paychecks.
Sec. 17-32. Cooperation with law enforcement agencies.
Sec. 17-33. Code of ethics.
Sec. 17-34. Lines of authority for financial officers.
Sec. 17-35. Providence public school graduates.

Article II. Bonds

Sec. 17-36. Enumeration and amount.
Sec. 17-37. City to provide bond; cost.
Sec. 17-38. Termination.
Sec. 17-39. Form and condition; approval by city solicitor, council.
Sec. 17-40. Condition in bond against personal interest of officers making contracts, purchases or sales.
Sec. 17-41. Conditions of bond of superintendent of public buildings.
Sec. 17-42. Custody of city controller.
Sec. 17-43. Bonding assistants in offices handling money.
Secs. 17-44—17-53. Reserved.

Article III. Compensation and Other Benefits

Division 1. In General

Sec. 17-54. Compensation of certain city officers for services.
Sec. 17-55. Establishment of compensation in certain departments.
Sec. 17-56. Employees entering armed forces, continuance on payroll.
Sec. 17-57. Holidays and holiday pay.
Sec. 17-58. Holiday pay for policemen and firemen.

Sec. 17-59. Overtime pay.
Sec. 17-60. Overtime and call-back pay in fire department—Generally.
Sec. 17-61. Same—Overtime allowance.
Sec. 17-62. Same—Call-back pay allowance.
Sec. 17-63. Same—Hourly rate of overtime pay.
Sec. 17-64. Overtime and call-back pay in police department—Generally.
Sec. 17-65. Same—Call-back pay allowance.
Sec. 17-66. Same—Hourly rate of call-back pay.
Sec. 17-67. Benefits payable for death of policeman, fireman in line of duty.
Sec. 17-68. Restriction on amounts allowed under section 17-67.
Sec. 17-69. Salary of fence viewer.
Secs. 17-70—17-74. Reserved.

Division 2. Disability Compensation

Sec. 17-75. Commission for relief of injured employees—Organized, function.
Sec. 17-76. Same—Payments to injured employees.
Sec. 17-77. Entitlement of policemen, firemen to disability compensation.
Sec. 17-78. Restriction on amounts allowed under section 17-77.
Sec. 17-79. Amount, duration of disability pay for temporary absence of fireman.
Sec. 17-80. Blue Cross and Physicians Service coverage for disabled employees—Allowance.
Sec. 17-81. Same—Allowance to persons receiving accident death benefits.
Sec. 17-82. Same—Effect of other coverage.
Sec. 17-83. Same—Authority to provide family coverage at expense of city.
Sec. 17-84. Same—Rules and regulations to implement provisions.
Sec. 17-85. Payment for cost of hospitalization, related benefits.
Secs. 17-86—17-90. Reserved.

Division 3. Vacations with Pay

Sec. 17-91. Establishment, amount.
Sec. 17-92. Rules and regulations of finance director; maximum accumulation.
Sec. 17-93. Accrual.
Sec. 17-94. Provisions inapplicable to certain employees.
Sec. 17-95. Application to persons on military training.
Sec. 17-96. Annual vacation for firemen.
Secs. 17-97—17-101. Reserved.

Division 4. Sick Leave

Sec. 17-102. Sick leave with full pay established.
Sec. 17-103. Leaves to be granted for certain defined reasons only.
Sec. 17-104. Maximum days allowed; accrual.
Sec. 17-105. Time allowed employees for prior service.

Sec. 17-106. Time not to accrue during layoff or leave of absence.
Sec. 17-107. Pregnancy, dissipation, immoral conduct not basis for leave.
Sec. 17-108. Authority to require medical certification of illness.
Sec. 17-109. Violations, false claims or reports.
Sec. 17-110. Payment by commission for relief of certain injured employees prohibited during leave.
Sec. 17-111. Right of recovery, termination of rights for unused sick leave.
Sec. 17-112. Rules and regulations, decisions of finance director.
Secs. 17-113—17-117. Reserved.

Division 5. Additional Payments to Retired Employees

Sec. 17-118. Established; amount, scope.
Sec. 17-119. Duration, termination upon death, transferability.
Sec. 17-120. Basis for determining payments.
Sec. 17-121. Monthly information return—Required of eligible employees.
Sec. 17-122. Same—Effect of false statements in returns.
Sec. 17-123. Authority to reduce, terminate payments.
Sec. 17-124. Payment of termination benefits.
Sec. 17-125. Purchase of service credit in the retirement system.
Sec. 17-126. Purchase of service into the retirement system.
Sec. 17-127. Reserved.

Division 6. Annuities for Widows of Policemen and Firemen

Sec. 17-128. Eligibility; amount.
Sec. 17-129. Duties of finance committee and city controller.
Sec. 17-130. Limitations upon amounts payable.
Sec. 17-131. Monthly information return—Required.
Sec. 17-132. Same—Effect of misstatements in return.
Sec. 17-133. Appropriations by city to pay annuities.

Division 7. Presumptive Cancer Benefit and Wellness Incentive for Firefighters

Sec. 17-134. Definitions.
Sec. 17-135. Presumption; requirements.
Sec. 17-136. Exceptions.
Sec. 17-137. Powers of city.
Sec. 17-138. Affidavit required.
Sec. 17-138.1. Firefighter disabled by cancer entitled to accidental disability pension.
Sec. 17-138.2. Application for accidental disability pension.

Article IV. Suggestion Award Program

Sec. 17-139. Adoption.

Sec. 17-140. Suggestion award committee.
Sec. 17-141. Regulations governing participation in program.
Sec. 17-142. Procedure for making and consideration of suggestions.
Secs. 17-143—17-147. Reserved.

Article V. Police Reserve

Sec. 17-148. Establishment, function.
Sec. 17-149. Rules and regulations applicable.
Sec. 17-150. Oath as special police constables.
Sec. 17-151. Prerequisites to swearing in member.
Sec. 17-152. Compensation, status of members; hospital, medical expenses of injured member.
Sec. 17-153. Authority to call members to active duty.
Sec. 17-154. Police authority of members on active duty.
Sec. 17-155. Police authority of members not on active duty.
Sec. 17-156. "Active duty," term defined.
Secs. 17-157—17-180. Reserved.

Article VI. Retirement System

Sec. 17-181.1 Purpose.
Sec. 17-181.2 Legislative findings.
Sec. 17-181.3 Definitions.
Sec. 17-182. Name and date of establishment.
Sec. 17-183. Retirement system.
Sec. 17-184. Investment of funds.
Sec. 17-185. Method of financing.
Sec. 17-186. Guarantee by city.
Sec. 17-187. Membership of retirement system.
Sec. 17-188. Service creditable—Generally.
Sec. 17-188.1. Same—Purchase of service credit.
Sec. 17-189. Benefits payable.
Sec. 17-189.1. Revocation or reduction of retirement benefits of employees for dishonorable service.
Sec. 17-190. Options.
Sec. 17-191. Pensions offset by compensation benefits.
Sec. 17-192. Elective officers.
Sec. 17-193. Protection against fraud.
Sec. 17-194. Cost of living adjustment.
Sec. 17-195. Limits on post-retirement benefits.
Sec. 17-196. Pensions not to exceed one hundred fifty percent of state median household income.
Sec. 17-197. Conflicts with other laws.

Sec. 17-198. Severability—Indispensable party.
Sec. 17-199. Effective date.

ARTICLE I. IN GENERAL

Sec. 17-1. Enumeration and terms of office.

The city council shall elect on the first Monday in January biennially, in every odd-numbered year, the following officers, namely: One (1) or more viewers of fences; a poundkeeper at the Dexter Asylum, and a poundkeeper at Roger Williams Park; three (3) or more port wardens; one (1) or more packers of fish; a public administrator; an inspector of saleratus, bicarbonate of soda and cream of tartar; an inspector of chain cables; an inspector of beef and pork; a sealer of leather; one (1) or more inspectors of hoops; one (1) or more surveyors and corders of wood; one (1) or more surveyors and measurers of stone; one (1) or more inspectors and measurers of carpenters', masons' and painters' work; two (2) or more measurers of grain, meal, salt and sea coal; one (1) or more weighers of cotton; one (1) or more appraisers of damage under the dog law; one (1) or more auctioneers; a fire marshal; a superintendent of the burial of deceased soldiers and sailors; six (6) or more cattle weighers; one (1) or more weighers of coal and other articles of merchandise.
(Ord. 1914, ch. 38, § 4; Rev. Ords. 1946, ch. 2, § 157)

Sec. 17-2. Commissions issued by city clerk.

A commission shall be issued by the city clerk to any person elected to any of the offices enumerated in this article.
(Ord. 1914, ch. 38, § 6; Rev. Ords. 1946, ch. 2, § 158)

Sec. 17-3. Fees for licenses and commissions.

The following fees are hereby established and fixed to be paid quadrenially for licenses and commissions issued to the following officers elected by the city council, viz.:

Auctioneers, each, two hundred dollars ($200.00).

Appraisers of damage under the dog law, each, two dollars ($2.00).

Deputy surveyors of lumber, each, four dollars ($4.00).

Inspector of beef and pork, two dollars ($2.00).

Inspector of chain cables, two dollars ($2.00).

Inspector of pot and pearl ashes, two dollars ($2.00).

Inspector of saleratus, bicarbonate of soda and cream of tartar, two dollars ($2.00).

Inspectors and measurers of carpenters', masons' and painters' work, each, two dollars ($2.00).

Measurers of grain, salt and sea coal, each, two dollars ($2.00).

Measurers and surveyors of stone, each, two dollars ($2.00).

Packers of fish, each, two dollars ($2.00).

Port wardens, each, two dollars ($2.00).

Poundkeepers, each, two dollars ($2.00).

Public administrator, ten dollars ($10.00).

Sealer of leather, two dollars ($2.00).

Surveyor of lumber, ten dollars ($10.00).

Surveyors and corders of wood, each, two dollars ($2.00).

Viewers of fences, each, two dollars ($2.00).

Viewer of hoops, two dollars ($2.00).

Weighers of cotton, each, two dollars ($2.00).

Weighers of coal and other merchandise, each, two dollars ($2.00).

(Ord. 1914, ch. 34, § 1; Rules of Bd. of Ald., ch. 2, r. 18; Rev. Ords. 1946, ch. 2, § 159)

State law reference—Authority to charge and collect for licenses and commissions issued to officers, § 45-5-10, Gen. Laws 1956.

Sec. 17-4. Collection of fees for licenses, commissions.

The city collector is hereby directed to charge and collect the fees prescribed in section 17-3 of each officer named in the list therein. Upon the presentation of the receipt of the city collector showing that such fees have been paid by said officers, the city clerk shall forthwith issue to such officer named in said receipt the license or commission to which he shall be entitled.

(Ord. 1914, ch. 34, § 2; Rev. Ords. 1946, ch. 2, § 160)

Sec. 17-5. Qualifying and giving bond.

Every officer of the city elected or appointed by the city council or whose appointment is subject to approval or confirmation by the city council shall, except as otherwise expressly provided by law, duly qualify by taking his engagement and giving any required bond within thirty (30) days from and after the date of his election or appointment or the date of such approval or confirmation, and in case he shall fail to qualify as aforesaid, his election or appointment, upon the expiration of said thirty (30) days, shall be null and void.

(Ord. 1914, ch. 38, § 9; Rev. Ords. 1946, ch. 2, § 161)

Cross reference—Bonds generally, § 17-36 et seq.

Sec. 17-6. Heads of departments to keep lists of employees.

The head of each and every department of the city government is hereby required to prepare and keep on file in his office a list of the names and addresses of all persons in his department engaged in the employ of the city.
(Ord. 1933, ch. 860, § 1; Rev. Ords. 1946, ch. 2, § 169)

Sec. 17-7. Employees to be residents; exceptions.

(a) *Requirements.* All officers of the city, as defined in section 1207, and all employees of the city and any and all agencies and instrumentalities thereof, including all employees of the school department and the department of public safety, shall be residents of the city during such employment; provided, however, that any person exempted from such residency under the Home Rule Charter or other relevant and applicable provision shall be likewise exempted hereunder.

Persons not residents of the city may be appointed or engaged for employment on the condition that within six (6) months of such appointment or engagement they shall become residents of the city.

Any officer or employee of the city who, during employment ceases to be a resident and who is not exempt shall forfeit his or her position in the employ of the city. It shall be the duty of the director of personnel to monitor this residency requirement regularly and to report timely any violations to the mayor and city council for appropriate action. Violations may also be reported directly to the residency commission for investigation as provided for in section (e).

Police officers and firefighters shall become residents of the city within six (6) months after he/she has been sworn into his/her position.

The residency requirement shall apply to all full and part-time employees of the city but shall not apply to temporary and seasonal employees, as defined herein.

(b) *Notification.* Every employee shall be furnished a copy of the residency ordinance and a copy of the City Charter provision when hired and annually thereafter. Failure to do so, however, shall not be held to excuse any noncompliance.

(c) *Affidavit.* Every employee shall sign a notarized affidavit averring that he/she is a resident of the city.

(d) *Commission.* There shall be a commission of five (5) members, which shall enforce the residency requirement, as set forth above. All violations reported to the mayor and/or city council shall then be reported to the commission for investigation and the commission shall report to the mayor and the city council all findings together with a recommended action. All violations reported directly to the commission may be investigated and the commission shall report to the mayor and the city council all findings together with a recommended action.

The commission shall consist of five (5) members, three (3) of whom shall be council members, appointed by the council president and two (2) of whom shall be appointed by the mayor. Each member shall serve a term concurrent with the appointing authority.

(e) *Reporting.* The personnel director shall monthly report any and all violations of the residency requirement to the mayor and the city council. The executive director of the civic center and the superintendent of schools shall report any and all violations by persons under their supervision to the personnel director on a monthly basis.

(f) *Definitions.*

Domiciled shall mean that place where a person has his or her true, fixed, and permanent home and principal establishment, and to which, whenever he or she is absent has the intention of returning.

Part-time shall mean an employee who is hired for fewer than thirty-five (35) hours per week.

Residence shall mean domiciled in the City of Providence.

Seasonal shall mean an employee who is employed only during the months of June through September and who performs primarily recreation or recreation-related work.

Temporary shall mean an individual who is hired for a limited period of time or an individual employed to replace an employee on authorized leave for the period of such leave.

(g) *Indicia of residency.* All employees shall sign a release of state tax information relative to residency when hired. The address indicated on such state tax records shall be the primary indicia of residency.

In addition, the following shall be considered evidence of permanent and principal legal residence. An employee shall provide three (3) of the same unless the employee is not entitled to or does not qualify for such three (3). In such case, the director of personnel may use the best available evidence to determine the employee's residence. Provided, however, that upon qualifying and obtaining such documents, the same shall be tendered forthwith to the director of personnel.

(1) The address furnished to the registry of motor vehicles for the employee's operator's license;

(2) The address from which the employee's motor vehicle is registered;

(3) The address furnished by the employee to the tax collector and/or assessor in those communities where the employee owns taxable real or personal property for the purpose of notification to such employee;

(4) The residence address furnished by the employee to the insurance companies with which the employee maintains policies.

(5) The address furnished by the employee to any business, profession, union, or fraternal organization of which he or she is a member;

(6) The address furnished by the employee to governmental agencies with which the employee has contact;

(7) The address furnished by the employee to the United States postal service on a change of address form as verified by the United States postal service; and

(8) The address at which the employee is certified by the board of canvassers as an elector and resident of the city.

In all cases, the director of personnel shall conduct an appropriate hearing.

(h) *Violation.* Any officer or employee of the city who, during the term of employment, ceases to be a resident shall forfeit his or her position in the employ of the city. An officer or employee who does not reside in the city on the day after the six-month period subsequent to hiring, and is required to do so, shall forfeit his or her employ in the city.

(i) *Exemption.* Upon certification by the mayor that after diligent search no person with proper qualifications can be found to fill a particular position among residents of the city, the city council may exempt a nonresident employee from the provisions of this section.

If any individual wishes to apply to the city council for an extension of the six-month period, he/she shall make such application prior to the expiration of the six-month period and shall show just cause as to why the period should be extended. Whether or not a reason is "just cause" exists for an extension shall be solely in the discretion of the city council.
(Ord. 1931, ch. 801, § 1; Rev. Ords. 1946, ch. 2, § 167; Ord. 1947, ch. 1582, § 1; Ord. 1996, ch. 96-36, § 1—10, 10-15-96; Ord. 1997, ch. 97-60, § 1, 9-29-97)

Sec. 17-8. Restriction on employment of persons drawing city pension.

(a) No person receiving a pension from the city or from any pension fund to which the city contributes, shall be regularly employed in or by any department of the city, with pay or compensation for his work or services payable from the city treasury, unless he/she first shall waive in writing his/her right to receive such pension or part thereof accruing for or during the period of such employment, and shall file such waiver or a copy thereof in the office of the city controller, provided, however;

(1) any member who has retired may be re-employed by the city for a period of not more than seventy-five (75) working days or one hundred fifty (150) half-days with half-day pay in any one (1) calendar year without any forfeiture of or reduction of any retirement benefits and allowances said member is receiving or may receive as a retired worker; and

(2) any retired member of the Providence Police Department who is deemed eligible pursuant to the police department's policy and the collective bargaining agreement by and between the city and the Fraternal Order of Police, Lodge #3 to be re-employed by the city to work construction details and/or special event details, may be re-employed by the city for such purpose for a period of not more than one hundred fifty (150) working days or three hundred (300) half-days with half-day pay in any one (1) calendar year without any forfeiture of or reduction of any retirement benefits and allowances said member is receiving or may receive as a retired worker.

Pension payments shall be suspended whenever either of these periods are exceeded. No additional contributions shall be taken and no additional service credits shall be granted for this service.

(b) In the event that a member returns to full time active service while the member's pension payments are suspended, upon cessation of service, and after proper notification to the retirement board, the member will receive retirement benefits based upon the member's total accrued service reduced by the amounts already received. Said amount shall not be reduced to an amount less than what the accrued service benefit had been provided to the member.

Notice of such employment shall be sent monthly to the retirement board by the employer and by the retired worker.
(Ord. 1915, ch. 68, § 1; Rev. Ords. 1946, ch. 2, § 168; Ord. 1987, ch. 87-11, § 1, 5-11-87; Ord. No. 2015-49, § 1, 9-18-15; Ord. No. 2023-9, § 1, 5-22-2023)

Sec. 17-9. Veterans of armed forces, return to city employment.

(a) *Generally.* Any person who is or was regularly employed by the city at the time of his induction or enlistment in the armed forces of the United States, who in the judgment of those in authority over him while in said forces, satisfactorily completes his period of training and service, and receives a certificate or statement to that effect, shall at his request be restored to his said employment or to a position of like seniority status and pay. Said employee shall make his request for such restoration of employment within forty (40) days after he is relieved from such training and service.

(b) *Reserves.* Any person regularly employed by the city who is a member of any reserve component of the armed forces of the United States, and is or has been assigned to active duty, who in the judgment of those in authority over him while in said active duty, satisfactorily completes such active duty and receives a certificate or statement to that effect, shall at his request be restored to his said employment or to a position of like seniority status and pay. Said employee shall make his request for such restoration of employment within forty (40) days after he is relieved from such training and service.
(Ch. 2, § 176.1, added by Ord. 1950, ch. 419, §§ 1, 2)

Sec. 17-10. Departments may establish five-day week.

The heads of the several city departments are hereby permitted to establish a five (5) day week for the officers and employees in their several departments.
(Ord. 1938, ch. 963, § 1; Rev. Ords. 1946, ch. 2, § 163)

Sec. 17-11. Establishment of basic workweek in certain departments.

The director of public works, the superintendent of public buildings and the board of park commissioners are hereby authorized to establish a basic workweek for all employees in their respective departments who are not classified employees.
(Ord. 1937, ch. 943, § 2; Rev. Ords. 1946, ch. 2, § 162)

Sec. 17-12. Workweek—Prescribed.

For the purposes of this chapter a workweek shall constitute that seven-day period beginning at 12:00 midnight Sunday and ending at 12:00 midnight one hundred

sixty-eight (168) hours later, except that the workweek for the garbage collection and disposal units shall begin at 11:00 p.m. Saturday and end at 11:00 p.m. one hundred sixty-eight (168) hours later.
(Ch. 2, § 162.1, added by Ord. 1947, ch. 1711, § 1)

Sec. 17-13. Same—Standard hours and days of work per week prescribed.

(a) *Hourly pay.* The standard hours of employment in any one (1) workweek for all permanent employees of the city, except watchmen and school department employees, whose pay is established on an hourly basis in the city compensation plan, and except as otherwise provided in said plan, shall be forty (40) hours.

(b) *Daily pay.* The standard workweek of employment in any one (1) workweek for all permanent employees of the city whose pay is established on a daily basis in the city compensation plan shall be five (5) days and the five (5) day workweek may be any five (5) days of the seven (7) day week as may be determined by the heads of the individual departments.
(Ch. 2, § 162.2, added by Ord. 1947, ch. 1711, § 2; Ord. 1953, ch. 764, § 1; Ord. 1955, ch. 932, § 1; Ord. 1960, ch. 1355, § 1)

Sec. 17-14. Same—Distribution of hours as to days.

The periods of time defined in section 17-13 as standard hours of employment in any one (1) workweek may be distributed over five, (5), six (6) or seven (7) days of the workweek at the discretion of the heads of the individual departments.
(Ch. 2, § 162.3, added by Ord. 1947, ch. 1711, § 3)

Sec. 17-15. Day and night force for fire department.

(a) The officers and members of the uniform fire-fighting force of the city shall be divided by the commissioner of public safety into platoons, which shall be designated as a day force and a night force, and said day force and night force shall alternate on tours of duty every third day.

(b) The hours of duty of the day force shall be from 8:00 a.m. to 6:00 p.m. and the hours of duty of the night force shall be from 6:00 p.m. to 8:00 a.m. of the following day; provided, that on every third day, for the purpose of alternating the day force with the night force and vice versa, the number of hours of duty herein stated shall be increased to twenty-four (24), but one (1) force shall be at liberty at all times except as otherwise herein provided. Members of such fire-fighting force off duty shall be required to report for duty with their respective companies whenever a third or subsequent alarm is sounded.

(c) The commissioner of public safety may require members of the off-shift force to perform such work in connection with cleaning fire hydrants of snow and ice due to severe weather conditions as in his opinion may be necessary.
(Ord. 1923, ch. 360, § 4; Rev. Ords. 1946, ch. 12, § 7)

State law reference—P.L. 1914, c. 1110, provided for one day off out of every five days for department members, but this chapter was amended by P.L. 1923, c. 2369, so that it would not apply in Providence during time two platoon or two shift system is in effect.

Sec. 17-16. Firemen not to engage in other employment.

The commissioner of public safety as head of the fire department shall make suitable rules and regulations prohibiting the members of the firefighting force from accepting employment in any other gainful occupation.
(Ord. 1923, ch. 360, § 4; Rev. Ords. 1946, ch. 12, § 8)

Sec. 17-17. Grant of leave of absence without pay.

The heads of the several departments, subject to the approval of the committee on finance, may grant to employees in their respective departments extended leave of absence without pay without affecting the standing of the employees. During the absence of such employees on leave of absence, the heads of departments may employ temporary assistants to fill the positions thus vacated.
(Ord. 1921, ch. 288, § 1; Rev. Ords. 1946, ch. 2, § 166)

Sec. 17-18. Leave of absence for educational training.

(a) *Generally.* The city council committee on finance may authorize an educational leave of absence at one-half (½) pay to any regular full-time employee of the city (except school department employees) who has been so employed for at least two (2) years and who is engaged in specialized or technical work. Such educational leave shall be for the purpose of receiving specialized advanced training in the field of his employment with the city, so that he may perform his duties to the greater advantage of the city. The period of such educational leave shall not exceed nine (9) months and no more than one (1) employee may be on educational leave from the same department at the same time. Such educational leave shall be granted only when a qualified person with the required special training is not otherwise readily available. During such leave, said employee shall be continued on the payroll of his department with all rights and privileges except disability benefits. Department heads may employ temporary help to perform the duties of the individual on leave.

(b) *Approval required.* Requests for educational leaves of absence shall be granted only if the department head of the applicant approves the application, certifies as to his eligibility hereunder and such application is approved by the mayor.

(c) *Bond required.* Prior to authorization of any such leave of absence for educational purposes, the employee shall furnish to the city in such manner and form as the city solicitor shall require a bond or other satisfactory written assurance that upon termination of his leave, he will return to and continue employment with the city for at least two (2) years immediately after such termination of leave, or that he will reimburse the city for any moneys paid to him during such educational leave.

(d) *Rules and regulations.* Except as hereinabove provided, the finance committee shall establish all rules and regulations governing such educational leaves of absence and its decision on all matters pertaining to the same shall be final.
(Ch. 2, § 176.4, added by Ord. 1959, ch. 1293, §§ 1, 2)

Sec. 17-19. Leave of absence for veterans' conventions.

(a) *Authorized.* All departmental heads of the city are authorized to permit leaves of absence, without loss of salary or other authorized benefits, for employees within their respective departments, who served in the armed forces of the United States of America and have been honorably discharged, are members in good standing of veterans' organizations chartered by the Congress of the United States of America, and who desire to attend one (1) of their respective national conventions.

(b) *Regulated.* There shall be a special committee consisting of three (3) members of the city council, its members to be appointed by the president of the city council, for the purpose of verifying the service, honorable discharge and membership in good standing in said veterans' organizations and to further determine and to grant reasonable travel time to and from the respective cities wherein said national conventions are scheduled to be held.
(Res. No. 178, 3-22-66)

Sec. 17-20. Uniform identification card—Required.

Every officer or employee of the city whose duty it shall be to visit private residences, buildings and/or premises for the purposes of making any inspection or examination or for any official reason in which the city has any interest shall be provided by the personnel director with a uniform identification card.
(Ord. 126, ch. 504, § 1; Rev. Ords. 1946, ch. 2, § 172; Ord. 1961, ch. 1406, § 1)

Sec. 17-21. Same—Size, color, contents.

(a) The official identification card provided for in section 17-20 shall be three and three-quarters (3¾) inches long; two and one-half (2½) inches wide, of a light blue color, upon the face of which shall be imprinted, in a darker blue color, the facsimile of the seal of the city as provided in section 2-335 of this Code of Ordinances.

(b) Within a space of one and one-eighth (1⅛) inches long by one and one-half (1½) inches wide of the upper left side of the face of said card shall be placed a recent photograph of the said officer or employee, and in an orderly arrangement, in a darker color, in order to make distinguishable, the following shall be imprinted:

CITY OF PROVIDENCE, No.
RHODE ISLAND

_____

WHOSE IDENTIFICATION IS AFFIXED
HERETO IS AN EMPLOYEE OF THE
CITY OF PROVIDENCE, RHODE ISLAND

_____ _____

Office Department Head

(c) The backside of the card shall be designed as follows: The left side shall bear a vertical line over the word "signature" with sufficient space between said line and the left edge of card for the affixation of the bearer's signature which shall be affixed thereunto. Within a space one and one-quarter (1¼) inches square at the lower right portion shall be placed the imprint of the right thumb of the bearer and said card shall contain the following additional information:

HEIGHT WEIGHT
EYES HAIR
ISSUED AT

_____

_____
Date

_____
Signature

(d) Each such official identification card shall bear a numeral assigned by the personnel director on the right upper side of the face of said card; and when completed as herein provided, shall be sealed by a lamination process.
(Ord. 1926, ch. 504, § 2; Rev. Ords. 1946, ch. 2, § 173; Ord. 1961, ch. 1406, § 1)

Sec. 17-22. Same—Record to be kept by personnel director.

The personnel director shall maintain within his office a record book which shall be available for public inspection, upon demand, during regular business hours. Said record book shall contain an alphabetical index for posting of last names, first names, and middle initials, if any, and a numerical system which shall correspond with a numeral assigned and marked on the identification card required in section 17-20.
(Ord. 1926, ch. 504, § 1; Rev. Ords. 1946, ch. 2, § 172; Ord. 1961, ch. 1406, § 1)

Sec. 17-23. Same—Application to members of police, fire departments.

The provisions of sections 17-20 through 17-22 shall not abridge the privilege of the members of the police and of the fire departments from displaying badges issued by the commissioner of public safety, but said commissioner may comply with said provisions if he deems it is to the best interest of the police and fire departments.
(Ch. 2, § 173.1, added by Ord. 1961, ch. 1406, § 1)

Sec. 17-24. Same—Counterfeiting, tampering, misusing cards.

It shall be unlawful for any person falsely to engrave, make, alter, forge, or counterfeit or procure to be falsely engraved, made, or altered, forged or counterfeited

any uniform identification card as required in section 17-20 with intent to defraud, or knowingly to possess any such engraved, altered, forged or counterfeited uniform identification card or to use any such identification card whether genuine, engraved, altered, forged or counterfeited for an illegal purpose or with intent to defraud.
(Ch. 2, § 173.2, added by Ord. 1961, ch. 1406, § 1)

Sec. 17-25. Duties of inspector of provisions.

The duties of the inspector of provisions shall be such as are or may be at any time prescribed by rules and regulations of the council acting as a board of health, not repugnant to any law of the state or ordinance of the city.
(Ord. 1914, ch. 38, § 26; Rev. Ords. 1946, ch. 2, § 154)

Sec. 17-26. Grounds for revocation of appointment of constables.

Any of the acts enumerated below will be good cause for the revocation of the appointment of the constables found guilty thereof:

(a) Soliciting or taking, for himself or others, bills, accounts or other debts for collection, or in anywise, other than by the service of legal process, engaging in the business of collecting.

(b) Making or having any engagement with any lawyer, for participating or sharing with them in any fee for the collection of any debt.

(c) Charging or taking for the service of any legal process less or greater fees than the fees fixed by statute therefor.

(d) The violation of the provisions of the statutes in relation to the duties of constables.

(Rules of Bd. of Ald., ch. 3, r. 1; Rev. Ords. 1946, ch. 2, § 156)

Sec. 17-27. Ratification of collective bargaining agreements.

(a) No collective bargaining agreement between the City of Providence and any labor organization shall become effective unless and until ratified by the Providence city council.

(b) Each contract, before submission to the city council, shall contain a fiscal note.

(c) At least one (1) public hearing shall be held prior to city council ratification of any contract.
(Ord. 1981, ch. 81-32, § 1, 7-2-81; Ord. 1982, ch. 82-44, § 68, 7-7-82)

Cross reference—Fiscal notes, § 2-2.1.

Sec. 17-28. Assignment of police officers to construction projects.

The chief of police, or his designee, shall have the power and authority to assign police officers to any road construction projects or any other assignment at the request of any person, business or corporation within the City of Providence when it is determined by him that such an assignment is necessary for the public safety.

The officers so assigned will be paid for such duty by the contractor in accordance with the schedule of charges in effect by the City of Providence. Further, the contractor shall, in addition, be responsible to pay to the City of Providence, any administrative charges directly related to the expenses incurred by the City of Providence in providing the officer to the contractor.

All contractors and other parties requesting police details shall be required to comply with standard commercial credit procedures prior to receiving a police detail. Unless approved for credit, all parties will have to post one hundred (100) percent cash down payment, use a credit card or other measure, as approved by the finance director, prior to receiving a detail assignment. All parties requesting credit shall have to personally guarantee any amount granted as credit.
(Ord. 1983, ch. 83-28, § 1, 6-3-83; Ord. 1990, ch. 90-19, § 1, 7-3-90; Ord. 1996, ch. 96-34, § 1, 9-30-96)

Editor's note—As originally enacted, the provisions of § 17-28 were numbered 17-70; however, for purposes of classification, the editor has redesignated the provisions as § 17-28, inasmuch as they concern more than compensation.

Sec. 17-29. Examinations.

(a) Examination for entrance into the police or fire departments shall be held at the time and place as the commissioner of public safety may direct, and the identity of persons taking the written tests shall be concealed by the use of identification numbers instead of names on all test papers.

(b) The commissioner of public safety shall add ten (10) points to the score of a resident-candidate of the city who has passed the examination for police and fire candidates for entrance into the police or fire departments.

(c) Residency shall be determined at the time the application is filed. For purposes of this section only, a person's residence is his or her fixed or established domicile. The determinant of one's domicile is that person's actual physical presence in the city on a regular basis incorporating an intention to reside for an indefinite period. This domicile is the place to which, upon temporary absence, he or she has the intention of returning. Once acquired, this domicile continues until another domicile is established. A person can have only one (1) domicile.

(d) Upon application for an entrance examination, the applicant shall provide to the commissioner of public safety, for purposes of establishing residence for this section, three (3) of the following documents: voter registration, a state driver's

license, a motor vehicle registration certificate, state and federal income tax returns, a document establishing the address furnished to the tax collector and/or assessor in those communities where the applicant owns taxable real or personal property for the purpose of notifying the applicant, a document establishing the address furnished to insurance companies with which the applicant maintains policies, a document establishing the address furnished to their present employer, document establishing the address furnished to any business, professional, union or fraternal organization to which the applicant is a member and a document establishing the address furnished by the applicant to governmental agencies with which the applicant has contact.
(Ord. 2009, ch. 09-22, § 1, 3-11-09)

Editor's note—Ch. 09-22, § 1, adopted Mar. 11, 2009, did not specifically amend the Code; therefore, these provisions have been included as § 17-29, at the editor's discretion.

Sec. 17-30. Reserved.

Editor's note—Ch. 85-1, approved Jan. 4, 1985, repealed Ch. 84-39, approved June 18, 1984, codified as § 17-30, "Statements regarding crimes and arrests." Ch. 85-2, also approved Jan. 4, 1985, repealed Ch. 84-33, approved May 24, 1984, codified as § 17-29, "Statements of other employment."

Sec. 17-31. Mailing of paychecks.

(a) At least three (3) times during each fiscal year of the City of Providence commencing with the fiscal year ending June 30, 1985, all employees and officers of the City of Providence shall receive their weekly paychecks by United States mail, proper postage prepaid, addressed to their respective residence addresses on file with the City of Providence. At least once each fiscal year of the City of Providence, all officers and employees of the City of Providence receiving pay on a monthly basis shall receive said paychecks by United States Mail, proper postage prepaid, addressed to their respective residence addresses on file with the City of Providence.

(b) The finance director shall select in his discretion the weekly or monthly paychecks to be provided to employees by United States mail without prior public notice to employees.
(Ord. 1984, ch. 84-40, § 1, 6-18-84)

Sec. 17-32. Cooperation with law enforcement agencies.

No officer or employee of the City of Providence shall in any way discriminate against or take adverse action against any other officer or employee of the City of Providence solely on account of the latter's cooperation with or assistance to any federal, state or local law enforcement agency in connection with any matters affecting the City of Providence, any investigation thereof or any proceedings

arising therefrom. If any officer or employee of the City of Providence violates this section of the Code of Ordinances, he or she shall be guilty of an offense punishable pursuant to section 1-10 of this Code of Ordinances.
(Ord. 1984, ch. 84-41, § 1, 6-18-84)

Sec. 17-33. Code of ethics.

(a) *Legislative intent and declaration of policy*. It is declared to be the policy of the city that all officers and employees of the city are public servants of the people and hold their positions for the benefit of the public. These public servants shall fulfill conscientiously, according to the Providence Home Rule Charter, the Code of Ordinances of the city and all applicable laws, their duties and shall prove themselves in their behavior worthy of the esteem which their position requires. In all official activity, such officers and employees shall strive to meet the highest standards of ethics consistent with this code and state law, regardless of personal considerations, recognizing that maintaining the respect of the people must be their foremost concern.

In enacting this code of ethics the city recognizes that the state code of ethics applies to all city employees and officials. Accordingly, the purpose of the city's ethics code is not to replicate the prohibitions and regulations which already govern municipal employees. Rather, the goal of this ethics code is to address issues and conduct not covered by the state ethics code and in so doing to hold the city's employees and officials to the highest possible standards of ethics.

(b) *Definitions*. For purposes of this section:

(1) *Business associate* means a person joined together with another person to achieve a common financial objective.

(2) *City* means the City of Providence.

(3) *City facility* means an structure or building owned, operated or managed by the city or a municipal agency.

(4) *Elected official* means any individual elected to an office created by the charter of the city.

(5) *Employee* means any individual other than an elected official or an independent contractor, receiving compensation for services performed for the city.

(6) *Family member* means an individual who is related to a person as father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half-brother, half-sister, grandparent, great grandparent, grandchild, great grandchild, step-grandparent, step-great grandparent, step-grandchild, step-great grandchild, person who is engaged to be married to the public officer or employee or who otherwise holds himself or herself out

as or is generally known as the person whom the public officer or employee intends to marry or with whom the public officer or employee intends to form a household.

(7) *Municipal agency* means any department, bureau, commission, board, or authority, of the city or quasi-public authority of the city. It shall also include any group of persons, corporations, organizations, or other entities, however created, which exercise governmental functions of the city, other than in an advisory nature, and expend public funds in excess of ten thousand dollars ($10,000.00) annually.

(8) *Official* shall mean the same as that term is defined in section 1207 of the Home Rule Charter of the City of Providence.

(9) A person "represents" another person before a municipal agency if he or she is authorized by that other person to act, and does in fact act, as the other person's attorney-at-law or his or her attorney-in-fact in the presentation of evidence or arguments before that agency for the purpose of influencing the judgment of the agency in favor of that other person.

(10) A person "represents" himself or herself before a municipal agency if he or she participates in the presentation of evidence or arguments before that agency for the purpose of influencing the judgment of the agency in his or her favor.

(c) *Prohibited conduct relating to employment*.

(1) *Coercion for trading with a particular business*. It is unlawful for any official or employee of the city or a municipal agency to discharge, threaten to discharge, discipline, threaten to discipline or otherwise discriminate against any other officer or employee for trading or not trading as a customer or patron with any particular business.

(2) *Use of public property*. It is unlawful for an official or employee of the city or a municipal agency to knowingly use property owned by the city or an independent agency, including but not limited to vehicles, for his or her personal benefit, convenience or profit, except in accordance with policies promulgated by the council or by the governing body of the municipal agency owning the property.

(3) *City seal*. It is unlawful for any person to fraudulently affix or impress the seal to or upon any certificate, instrument, commission, document or paper or with knowledge of its fraudulent character to use, buy, procure, sell or transfer to another any certificate, instrument, commission, document or paper, to or upon which the seal has been fraudulently affixed.

(4) *Activities relating to promotion or appointment*. It shall be unlawful for any person seeking employment or promotion in the city or a municipal agency to either directly or indirectly give, promise, or pay any money, service of other

thing of value for, or on account of, in connection with or for the purpose of influencing or affecting their test, appointment, proposed appointment, promotion or proposed promotion.

(5) *Misuse of position*. It is unlawful for an official or employee of the city or municipal agency to intentionally use his or her official position to secure a special privilege or exemption for himself, herself or any other person.

(6) *Misuse of information*. It is unlawful for an official or employee of the city or a municipal agency to willfully or knowingly disclose any confidential or privileged information acquired by reason of the officer or employee's position, unless authorized or required by law to do so. Provided that nothing herein shall prohibit an officer or employee from engaging in conduct protected by R.I.G.L. Ch. 28-50, and the Rhode Island Whistle Blower's Protection Act.

(7) *No show jobs*. It is unlawful for an official or employee of the city or a municipal agency to knowingly employ a person with public funds who does not perform tasks which contribute substantially to the work of the government of the city or a municipal agency or whose tasks are grossly disproportionate to the compensation received.

(8) *Outside work during business hours*. No city employee shall engage in any outside business or commercial activity during regular business hours of his or her city position. All city employees are assumed to be full time, unless their personnel record or applicable personnel policies indicate otherwise.

(9) *Representing persons*. It shall be unlawful for any official or employee of the city or a municipal agency to act as agent or attorney for, or otherwise represent any person (except the city or the municipal agency) before any court, or before any state, federal, or local agency, or any officer or employee thereof in connection with a particular matter:

a. In which the city or a municipal agency is a party or has a direct and substantial interest; and

b. In which the employee or official participated personally and substantially as a city official or employee; and

c. Which involved a specific party or parties at the time of such participation; and

d. Which is the same matter in which the official or employee participated as a city official or employee.

(10) *Advising or consulting*. It shall be unlawful for any official or employee of the city or a municipal agency to aid, advise, counsel, consult or assist another person (except the city or municipal agency) in connection with a particular matter:

a. In which the city or a municipal agency is a party or has a direct and substantial interest; and

b. In which the employee or official participated personally and substantially as a city official or employee; and

c. Which involved a specific party or parties at the time of such participation; and

d. Which is the same matter in which the official or employee participated as a city official or employee.

(d) *Former employees/officials*.

(1) *Representing persons*. It shall be unlawful for any person who was an official or employee of the city or an municipal agency, for a period of one (1) year after he or she has separated from the city, to act as agent or attorney for, or otherwise represent any person (except the city or the municipal agency) before any court, or before any state, federal, or local agency, or any officer or employee thereof in connection with a particular matter:

a. In which the city or a municipal agency is a party or has a direct and substantial interest; and

b. In which the former employee or official participated personally and substantially as a city official or employee; and

c. Which involved a specific party or parties at the time of such participation; and

d. Which is the same matter in which the official or employee participated as a city official or employee.

(2) *Advising or consulting*. It shall be unlawful for any person who was an official or employee of the city or a municipal agency, for a period of one (1) year after he or she has separated from the city, to aid, advise, counsel, consult or assist another person (except the city or municipal agency) in connection with a particular matter:

a. In which the city or a municipal agency is a party or has a direct and substantial interest; and

b. In which the former employee or official participated personally and substantially as a city official or employee; and

c. Which involved a specific party or parties at the time of such participation; and

d. Which is the same matter in which the official or employee participated as a city official or employee.

(3) *Contracts, grants and subsidies*. It shall be unlawful for any former employee or official of the city or a municipal agency who participated personally and substantially in the negotiation of a municipal contract, grant or, subsidy, including but not limited to a tax stabilization agreement or a tax increment

financing arrangement valued at one hundred thousand dollars ($100,000.00) or more, or who supervised the negotiation or award of such a contract to accept employment with a party to the contract (except the city or municipal agency) or with the recipient of the grant or subsidy for a period of one (1) year after such contract is signed or the grant or subsidy is awarded.

(4) *Confidential information*. It shall be unlawful for any former employee or official of the city or a municipal agency to disclose confidential or privileged information acquired during service as employee or official, unless authorized or required by law to do so.

(5) *Revolving door*.

a. It shall be unlawful for an elected official, while holding office and for a period of one (1) year after leaving office, to seek or accept employment with any municipal agency, other than employment which was held at the time of the official's election or at the time of the enactment of this section, except as provided herein.

b. Nothing contained herein shall prohibit the mayor or the city council from appointing any elected official to a senior policy making, discretionary, or confidential position on the mayor or the council's staff, and in the case of the mayor, to a position as a department director or deputy director.

c. Nothing contained herein shall be construed to prohibit an elected official from seeking or being elected to any other elective office.

d. This subsection shall expire and be deemed repealed in the event the state makes the conduct described in subparagraph a. hereof punishable as a crime, misdemeanor or offense.

(e) *Campaign ethics*.

(1) *Political activities while on duty*. It is unlawful for an employee of the city or an independent agency to take any active part in political management or in political campaigns during duty hours; provided that this section shall not be construed to prohibit an officer or employee from voting as he or she may choose and from expressing his or her opinion on a political subject or candidate.

(2) *Restrictions on campaigning by city employees*. It is unlawful for any employee of the city or a municipal agency while wearing a uniform required for his or her employment to:

a. Request, in person, that any individual contribute any time, money or other thing of value to any candidate, political party or political committee; or

b. Solicit, in person, support or votes for any candidate, political party or political measure.

(3) *Soliciting contributions from city employees*. It is unlawful for any person to solicit political contributions from employees of the city or a municipal agency during the employee's hours of employment.

(4) *Soliciting contributions in city facilities*. It is unlawful for a person to make, solicit, or knowingly accept any campaign contribution in a city facility.

(f) *Aiding and abetting*. No person shall knowingly and intentionally provide assistance to or otherwise aid or abet any other person in violating any provision of this article.

(g) *Suspension or dismissal for felonies related to employment*. Upon indictment, information or complaint and/or arraignment for a felony directly related to his or her employment, any city employee may be suspended with or without pay, or transferred to another position. Upon conviction of or plea of nolo contendere to a felony related to his or her employment, a city employee shall be dismissed immediately.

(h) *Penalties and enforcement*.

(1) *Criminal penalties*. Any person who knowingly and willfully violates the provisions of this article shall be guilty of a misdemeanor, punishable by a fine of not more than five hundred dollars ($500.00) for each violation and/or imprisonment of not more than thirty (30) days.

(2) *Civil penalties*. Any person who intentionally or negligently violates the provisions of this article shall be liable in a civil action brought by the city solicitor in the municipal court for an amount up to two hundred fifty dollars ($250.00) for each violation as well as the pecuniary value of any unjust enrichment realized by the violator, a family member of the violator or a business association of the violator as the result of his or her violation of this article.

(3) *Statute of limitations*. No complaint may be made under this article except within five (5) years after the violation alleged in the complaint has been committed.

(4) *Enforcement*. The provisions of this ordinance shall be enforced in compliance with collective bargaining agreements, the Law Enforcement Officers' Bill of Rights (R.I.G.L. § 42-28.6-1 et seq.), and all pertinent employment and labor laws.

(i) *Providence ethics commission*. There is hereby created the city ethics commission, the purpose of which is to provide a local forum for consideration and investigation of ethical problems and issues.

(1) *Membership, terms and appointment*.

a. The ethics commission shall be composed of seven (7) members. The city council shall appoint three (3) members. The mayor shall appoint three

(3) members. The remaining member, who shall serve as the chairperson of the commission, shall be appointed by majority vote of the commission. In the absence of a majority vote, the mayor shall, with council approval, appoint the chairperson.

b. Members of the commission shall serve four-year terms, except that of the members first appointed:

•The first member appointed by the mayor shall serve a two-year term.

•The first member appointed by the council shall serve a two-year term.

•The second member appointed by the mayor shall serve a three-year term.

•The second member appointed by the council shall serve a three-year term.

c. For the appointment of the ethics commission, authorities shall nominate individuals who have demonstrated the highest level of ethics standards in connection with their business, professional, occupational, financial or community commitments, and who possess the following qualifications: integrity, familiarity with government ethics issues, objectivity, common sense and compassion.

d. No person shall serve more than two (2) consecutive full four-year terms.

e. No member shall be an elected or appointed official of the city or a municipal agency, or hold or campaign for any elected office within the state, or have held an elected office within the state within two (2) years of his or her appointment.

f. No member shall hold office in any political party or political committee.

g. No member shall participate in or contribute to any political campaign for an elected office created by the charter for the city.

h. Any vacancy on the ethics commission occurring for any reason prior the expiration of the member's term shall be filled for the unexpired term by the appointing authority in the same manner as the original appointment.

i. All vacancies on the ethics commission shall be filled within thirty (30) days of the vacancy occurring.

j. A majority vote shall be required for action of the ethics commission.

k. Four (4) members of the ethics commission shall constitute a quorum.

l. Ethics commission members shall not be compensated.

m. The city shall provide suitable quarters for the ethics commission.

n. The city solicitor shall be the chief legal advisor to the ethics commission and shall attend or designate a solicitor to attend all meetings of the commission.

(2) *Duties and powers*.

a. *Advisory opinions*. Every official or employee when in doubt as to the application or interpretation of the city ethics code to himself or herself in a particular context, may submit in writing the facts of the situation to the ethics commission for an advisory opinion to establish the standard for public duty. An advisory opinion shall be rendered by the ethics commission, and each such opinion (with identifying information redacted), shall be numbered, dated and published. Any advisory opinion rendered by the commission, until amended or revoked by a majority vote of the commission, shall be binding on the city in any subsequent proceedings concerning the person who requested the opinion and who acted in reliance on it in good faith, unless material facts were omitted or misstated by the person in the request for the opinion.

b. *Investigation*. The ethics commission shall investigate any circumstance or situation of which the ethics commission may become aware that appears to violate or may potentially violate the city ethics code. In furtherance of any such investigation the commission shall have the power to compel attendance of witnesses and require the production of evidence. The ethics commission shall create a written report setting for the results of any investigation. If following an investigation, the ethics commission concludes that it is probable that a violation of the city ethics code has occurred the ethics commission shall refer the matter to the city solicitor for review and potential prosecution in the city municipal court. In the case of matters involving employees within the personnel system established by article IX of the Charter, the ethics commission shall also refer the matter to the department of human resources for appropriate disciplinary action. In the case of matters involving sworn personnel of the public safety department, the ethics commission shall refer the matter to the commissioner of public safety, for appropriate disciplinary action. In the case of matters involving employees or officials (other than sworn personnel of the public safety department) not subject to the personnel system established by article IX of the Charter, the ethics commission shall also refer the matter to the appointing authority, for appropriate disciplinary action.

c. *Conduct prohibited by the state ethics code*. If the ethics commission becomes aware of any circumstance or situation which appears to violate or may potentially violate the state code of ethics, R.I.G.L. 36-14-1 et seq., the ethics commission shall report the matter to the state ethics

commission. In the case of matters involving employees within the personnel system established by article IX of the Charter, the ethics commission shall also refer the matter to the department of human resources for appropriate disciplinary action. In the case of matters involving sworn personnel of the public safety department, the ethics commission shall refer the matter to the commissioner of public safety, for appropriate disciplinary action. In the case of matters involving employees or officials (other than sworn personnel of the public safety department) not subject to the personnel system established by article IX of the Charter, the ethics commission shall also refer the matter to the appointing authority, for appropriate disciplinary action.

d. *Unlawful conduct*. If the ethics commission becomes aware of any circumstance or situation which appears to constitute a crime under the laws of the state, the ethics commission shall report the matter to the city solicitor who shall determine necessary referral to appropriate entities, including but not limited to the attorney general's office, the commissioner of public safety, and/or other appointing authority, for appropriate disciplinary action.

e. *Rules and regulations*. The commission shall promulgate rules and regulations as may be necessary to carry out the provisions of this article with advice from the city solicitor's office and consent from the city council.

f. *Education*. The commission shall assist the municipal integrity officer in the preparation of written materials, including a "plain English" Providence Code of Ethics Handbook, and programs designed to educate persons as to their obligations under and assist persons in complying with the city ethics code and the state's ethics code.

g. *Hotline*. The ethics commission shall in conjunction with the municipal integrity officer establish and monitor a toll free telephone hotline, whereby members of the public may report any circumstance or situation involving an employee or official of the city or a municipal agency which appears to violate or may potentially violate the city ethics code or the code of ethics of the state.

h. *Recommendations to council*. If as the result of its work, the ethics commission determines the need for remedial or preventive legislation, the ethics commission may make such recommendations to the council as it deems appropriate.

i. *Report to council*. It shall be the duty of the ethics commission to submit to the council and the mayor an annual report of its work.

(3) *Assistance from branches of city government*. The commission is authorized to call upon appropriate agencies and branches of city government for such

assistance as may be needed in the discharge of its duties. In the event that the solicitor's office has a conflict precluding its representation, it shall take appropriate steps to assure such representation for the commission.

(j) *Municipal integrity officer*. The position of municipal integrity officer is hereby established.

(1) *Appointment*. The municipal integrity officer is to be appointed by the mayor with the advice and consent of the council, for a term concurrent with the appointing mayor.

(2) *Credentials*. The municipal integrity officer shall be a person holding at least a bachelor's degree from an accredited college or university with a minimum five (5) years' experience serving as an ethics advisor for a municipality, state agency, or corporation or as an investigator or as a lawyer, or the equivalent experience.

(3) *Mission*. The mission of the municipal integrity officer is to encourage each of the officials and employees of the city and municipal agencies to act in an ethical manner. This mission requires that the municipal integrity officer encourage employees and officials not only to comply with various laws, but more importantly, to adhere to the highest standards of ethical behavior.

(4) *Duties*. In pursuing the above referenced mission, the duties of the municipal integrity officer include, but are not limited to the following:

a. *Education and training*. Develop training and education programs in coordination with the city ethics commission and the state ethics commission and in so doing encourage compliance with both the letter and the spirit of ethics laws. An introductory program will be required for all employees and officials. This program will be offered on a regular basis for new employees.

b. *Written materials*. The municipal integrity officer will in conjunction with the city ethics commission publish a "plain English" Providence Ethics Handbook which addresses the requirements of the city ethics code and the code of ethics of the state. The municipal integrity officer will also develop fliers, pamphlets and other printed materials to educate employees, appointed and elected officials and the public regarding ethical conduct.

c. *Hotline*. Establish and monitor in conjunction with the city ethics commission a telephone hotline whereby members of the public may report any circumstance or situation involving an employee or official of the city or a municipal agency which appears to violate or may potentially violate the city ethics code or the code of ethics of the state.

d. *Website*. The municipal integrity officer will develop and publish a website related to city ethics. The website will contain readable and downloadable copies of the city ethics code and the code of ethics of the state.

e. *Information advice*. The municipal integrity officer will be available on a confidential basis to all employees and officials to answer questions regarding ethics and may provide informal advice regarding issues relating to the city code of ethics. The municipal integrity officer will also assist employees and officials in seeking guidance from the state ethics commission relative to the code of ethics of the state.

f. *Review and recommend*. Review periodically this code and other applicable laws and recommend to the ethics commission appropriate changes to the code.

g. *Liaison with ethics commission*. Serve as a liaison between the ethics commission and the officials and employees of the city.

h. *Liaison with state ethics commission*. The municipal integrity officer will maintain liaison with executive director and the education coordinator of the state ethics commission on a regular basis to remain attuned to the requirements of the state code to engender cooperation with the state ethics commission.

i. *Personnel and legal liaison*. The municipal integrity officer will maintain liaison with the director of human resources and the city solicitor.

j. *[Municipal integrity officer.]* The municipal integrity officer may seek formal opinions from the ethics commission on interpretation of his or her formal duties or this code.

(k) *Severability*. If any word, phrase, clause, or subsection of this section is for any reason held unconstitutional or invalid by a court of competent jurisdiction, the invalidity thereof shall not affect the validity of any remaining portions of the section.

(Ord. 1984, ch. 84-44, § 1, 6-27-84; Ord. 2006, ch. 06-28, § 1, 4-20-06; Ord. 2006, ch. 06-42, 8-9-06; Ord. No. 2015-8, § 1, 5-15-15)

Sec. 17-34. Lines of authority for financial officers.

(a) The chief financial officer or staff member of any department, agency, board, commission or authority or any other organization, whose operating results are included in the city's general purpose financial statements, will have reporting responsibilities directly to the city finance director, as well as to the head of their respective department, agency, board, commission, authority of other organization.

(b) Failure to respond to written requests or direction from the finance director in a timely manner shall be cause for disciplinary action, which shall be enforced by the respective department, agency, board, commission or authority at the financial directors request.
(Ord. 1993, ch. 93-29, § 1, 9-24-93)

Sec. 17-35. Providence public school graduates.

(a) *Definition:* The term "Providence Public School graduate" shall mean any student who has graduated with a high school degree issued by the Providence Public School District.

(b) *Obligation to interview:* Prior to extending an offer of employment for any open job position in the City of Providence the hiring manager who oversees said position, shall be required to conduct an interview of at least one (1) minimally qualified Providence Public School graduate who applies for the open position, should there be a qualified candidate.

(c) *Exception:* The obligation to interview shall not apply for any job posting that has been advertised for more than seven (7) days, does not receive an application from any Providence Public School graduates, or where such applicants do not meet the minimal qualifications as defined by the job posting and/or description.

(d) *Tracking and reporting:* The human resources department shall be required to track the number of Providence Public School graduates who apply for open positions within the city as well as the number of Providence Public School graduates employed by the city when provided by the applicant.

(e) *Reporting:* The human resources department shall report annually describing the data collected pursuant to this section, as well as recommendations for how the city can increase employment opportunities for Providence Public School graduates.

Nothing contained herein shall impinge on any existing collective bargaining obligation or agreement and does not apply to sworn members of the Providence Police Department or the Providence Fire Department.
(Ord. No. 2024-18, § 1, 5-24-24)

ARTICLE II. BONDS*

Sec. 17-36. Enumeration and amount.

The several city officers and employees hereinafter named shall give bond to the city in the penal sums following, to wit:

Chief of police	$ 3,000.00
City clerk	5,000.00
First deputy city clerk	1,000.00
Second deputy city clerk	1,000.00
City collector	60,000.00
Assistant city collector	40,000.00
City controller	5,000.00
First deputy city controller	5,000.00
Second deputy city controller	5,000.00
City registrar	2,500.00
City sergeant	1,000.00
Deputy city sergeant	1,000.00
City treasurer	25,000.00
Deputy city treasurer	10,000.00
Clerk of the municipal court	3,000.00
Deputy clerk of the municipal court	1,000.00
Director of public aid	2,000.00
Deputy director of public aid	2,000.00
Director of public works	10,000.00
Deputy director of public works	10,000.00
Finance director	10,000.00
Inspector of buildings	1,000.00
Justices of the police court, each	5,000.00
Clerk of the police court	5,000.00
Deputy clerk of the police court	5,000.00

*__Cross references—__Member of city government not to act as surety, § 2-5; bond of superintendent of North Burial Ground, § 6-22.

__State law reference—__Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Recorder of deeds	3,000.00
Deputy recorder of deeds	3,000.00
Revenue administrator	10,000.00
Superintendent of city hospital	2,500.00
Superintendent of North Burial Ground	2,500.00
Superintendent of public buildings	5,000.00
Superintendent of public parks	1,000.00
Superintendent of weights and measures	5,000.00
First deputy city weigher	1,000.00
Second deputy city weigher	1,000.00
First deputy sealer of weights and measures	1,000.00
Second deputy sealer of weights and measures	1,000.00

(Ord. 1914, ch. 37, § 1; Ord. 1929, ch. 713, § 1; Ord. 1945, ch. 1364, § 1; Ord. 1945, ch. 1401, § 1; Rev. Ords. 1946, ch. 2, § 180; Ord. 1947, ch. 1583, § 1)

Sec. 17-37. City to provide bond; cost.

The city shall bond the officers designated in section 17-36 in surety companies authorized to transact business in this state. It shall be the duty of the board of contract and supply to agree with such surety companies upon the cost of such bonds, and the cost of each bond shall be charged to the appropriation from which the salary of the officer bonded is paid.
(Ord. 1914, ch. 9, § 2; Rev. Ords. 1946, ch. 2, § 181)

Sec. 17-38. Termination.

If within the period of two (2) years from the expiration of the period for which a bond required in section 17-36 was given no claim or demand, nor notice of any claim or demand, shall be made upon the surety upon such bond, then such bond shall, as against such surety, become null and void.
(Ord. 1914, ch. 9, § 3; Rev. Ords. 1946, ch. 2, § 182)

Sec. 17-39. Form and condition; approval by city solicitor, council.

The form and conditions of the bond given for each officer designated in section 17-36 shall correspond with, and be applicable to the duties to be performed by such officer, and shall be such as the city solicitor or other law officer of the city shall approve, and the bond itself shall be approved by the city council.
(Ord. 1914, ch. 9, § 4; Rev. Ords. 1946, ch. 2, § 183)

Sec. 17-40. Condition in bond against personal interest of officers making contracts, purchases or sales.

In the bond of any officers designated in section 17-36, whose duty requires him to make contracts, purchases or sales in behalf of the city, there shall be a condition inserted in substance that he will not, directly or indirectly, for himself or others, or by others in trust for him or on his account, have any personal interest or concern in any contract or agreement or purchase or sale made by him in behalf of the city.
(Ord. 1914, ch. 9, § 5; Rev. Ords. 1946, ch. 2, § 184)

Sec. 17-41. Conditions of bond of superintendent of public buildings.

In the bond of the superintendent of public buildings there shall be inserted the condition that he will not in behalf of the city make any contract or agreement with, or any purchase or sale from or to any copartnership, corporation or joint company, in which he is interested as a partner, stockholder or in any other manner, except any public service company or corporation which is allowed to contract for work with and to furnish supplies to the city without competitive bids and the prices of the services or commodities of which are regulated or subject to regulation by law; and that he will not, directly or indirectly, for himself or others, or by others in trust for him or on his account, have any personal interest or concern in any contract or agreement for improving, erecting, installing, altering or repairing any land or building of the city, or any fixture or appurtenance thereof, or in any purchase, sale or lease made by the city.
(Ord. 1914, ch. 9, § 5; Rev. Ords. 1946, ch. 2, § 185)

Sec. 17-42. Custody of city controller.

All the bonds herein required shall be kept in the custody of the city controller.
(Ord. 1929, ch. 748, § 1; Rev. Ords. 1946, ch. 2, § 186)

Sec. 17-43. Bonding assistants in offices handling money.

Every city officer whose duties require him to receive or have the custody of money belonging to the city, may bond such subordinates and assistants in his office, and in such penal sums as he may deem necessary, in a surety company, subject however, to

the approval of the board of contract and supply. The expense thereof shall be charged to the appropriation from which the salaries of such subordinates and assistants are paid.
(Ord. 1914, ch. 9, § 7; Rev. Ords. 1946, ch. 2, § 187)

Secs. 17-44—17-53. Reserved.

ARTICLE III. COMPENSATION AND OTHER BENEFITS*

DIVISION 1. IN GENERAL

Sec. 17-54. Compensation of certain city officers for services.

The compensation of the clerk of the probate court and his assistants, of the superintendent of health and his assistants, the city registrar and his assistants, the city clerk and his assistants, and of all other city officers, shall be in full payment for their services as such city officers.
(Ord. 1914, ch. 55, § 5; Rev. Ords. 1946, ch. 2, § 78)

Sec. 17-55. Establishment of compensation in certain departments.

The director of public works, the superintendent of public buildings and the board of park commissioners are hereby authorized to fix the rate of compensation which shall be paid the employees in their respective departments. Said department heads are further authorized, subject to the approval of the committee on finance, to adjust any wage schedules showing hourly wage rates which have been filed with the committee on finance or the budget director as provided by the classification ordinance. Any adjustment of wages or hours that may be effected shall not provide for the payment of any compensation in excess of the amount appropriated by the city council.
(Ord. 1937, ch. 943, § 2; Rev. Ords. 1946, ch. 2, § 162)

***Cross references—**Salaries and expenses of city solicitor, § 2-100; salary, fees of superintendent of weights and measures, § 2-206; inspection of payroll lists, § 2-286 et seq.; compensation of fence viewer, § 5-53; compensation of superintendent of North Burial Ground, § 6-22; compensation of members of housing board of review, § 13-63; employment, compensation of superintendent of schools, teachers, § 22-2.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; relief of injured and deceased firemen and policemen, ch. 45-19, Gen. Laws 1956; retirement of municipal employees, ch. 45-21, Gen. Laws 1956.

Sec. 17-56. Employees entering armed forces, continuance on payroll.

(a) The several heads of the departments, bureaus and boards of the city are hereby directed to continue on the payroll for a period of four (4) weeks, all regular officers and employees who are inducted into or enlist in the military or naval service of the United States, provided said officers and employees have been employed by the city for the six (6) months' period immediately preceding said induction or enlistment.

(b) Said department heads are authorized to employ during the period of the said four (4) weeks, temporary assistants to perform the duties of such absent officers or employees who are continued on the payrolls of their respective departments in accordance with the provisions of this section, said temporary assistants to be paid a compensation not to exceed the salary or wages paid to the absent officer or employee at the time of induction or enlistment.
(Ch. 2, § 176.2, added by Ord. 1950, ch. 418, §§ 1, 2)

Sec. 17-57. Holidays and holiday pay.

(a) All permanent employees of the city paid on an hourly or per diem basis shall be entitled to and shall receive pay as established by ordinance for the following holidays: New Year's Day, Memorial Day, Independence Day, V-J Day, Labor Day, Columbus Day, Election Day, Armistice Day, Thanksgiving Day and Christmas Day; provided that such holiday occurs on a day when such employee normally renders services; and further provided, that such employees shall receive such pay only when they have worked on the last working day before each holiday and have worked on the next working day following each holiday.

(b) All work performed on such holiday shall be paid at the rate of one hundred fifty (150) percent of the employee's regular hourly rate pay for the actual time worked in addition to the regular pay allowed for the holiday, but the period of such work shall not be credited as part of his workweek in computing overtime pay, as provided in section 17-59. Whenever such holiday occurs on a day when a permanent hourly paid employee normally renders services, the holiday shall be considered as part of his workweek for the purposes of computing overtime.

(c) The provisions of this section shall not deprive any department head of the right to require city employees to work on any legal holiday when such work in the opinion of said department head is necessary to the general welfare and safety.
(Ch. 2, § 165.1, added by Ord. 1947, ch. 1711, § 5; Ord. 1948, ch. 97, § 1; Ord. 1964, ch. 1676, § 1; Ord. 1965, ch. 1684, § 1)

Sec. 17-58. Holiday pay for policemen and firemen.

Policemen and firemen whether on duty or not, shall be entitled to and shall receive one (1) extra day's pay for the following holidays, said pay to be computed on a basis of one-fifth (1/5) of a full week's pay, viz.:

New Year's Day.

Independence Day.

Labor Day.

Columbus Day.

Armistice Day.

Thanksgiving Day.

Christmas Day.

Memorial Day.

In addition thereto policemen and firemen shall be entitled to Washington's Birthday on the same terms and conditions as hereinbefore set forth.
(Ch. 2, § 165.2, added by Ord. 1956, ch. 1057, § 1; Ord. 1960, ch. 1358, § 1; Ord. 1964, ch. 1596, § 1; Ord. 1964, ch. 1602, § 1; Ord. 1965, ch. 1719, § 1)

Sec. 17-59. Overtime pay.

(a) *Hourly basis of pay.* Any permanent employee of the city, except school department employees and watchmen whose pay is established on an hourly basis in the city compensation plan shall be entitled to and shall be paid overtime pay at the rate of one hundred fifty (150) percent of the rate of payment established in the city compensation plan for the particular position which he holds, for each full hour or part of an hour of employment in excess of the standard hours of employment worked or credited in any one (1) workweek.

(b) *Daily basis of pay.* Any permanent employee of the city whose pay is established on a daily basis in the city compensation plan shall be entitled to and shall be paid overtime pay at the rate of one hundred fifty (150) percent of the rate of payment established in the city compensation plan for the particular position which he holds, for each full day or part of day in excess of the standard days of employment worked or credited in any one (1) workweek.

(c) *Exceptions.* No employee of the city, or any municipal department, board, bureau or agency (except the employees of the department of public safety) shall receive overtime compensation except:

(1) Bargaining unit members in the event the payment of such overtime is required under the terms and conditions of any collective bargaining agreement;

(2) The personnel listed in this subsection when those individuals meet either of the circumstances specified in subsections a. or b. below:

Parks department:

Director - grounds maintenance services

Assistant director - grounds

Deputy director - grounds

Cultural affairs coordinator

Facilities coordinator

Public works department

Highway superintendent

Deputy superintendent

Operations manager

Assistant director, general services

Superintendent, sewer construction

Supervisor, environmental services

Maintenance planner

Rodent vermin control officer

City recycling coordinator

Emergency management department

Operation, planning, training and publicity officer

Recreation department

Recreation center directors

a. In the event that an emergency such as, but not limited to, a snow storm, a hurricane, a major fire, or chemical spill requires a response from the city and an immediate response is necessary.

b. In the event of a planned public gathering such as, but not limited to, a public festival or outing which requires individuals with supervisory responsibilities to participate in either:

   1. The preparation for, or
   2. The monitoring during, or
   3. The closure subsequent to such gathering.

(3) Upon the occurrence of either a. or b. above, payment of overtime shall be limited to above-referenced personnel who participated and who have direct supervisory responsibilities for bargaining unit employees or who have specifically defined duties and responsibilities that are necessary for city-directed efforts.

(4) Payment at an overtime rate shall be at one and one-half (1½) the hourly rate for any hours in excess of regularly scheduled work week.

(5) Time paid (i.e. vacation and sick time) shall be considered "time worked" for the purposes of overtime compensation.

(6) Department directors and deputy directors are specifically excluded from these provisions and are not eligible for overtime payments. Each department director shall implement this policy.

(7) Each department director or department head shall forward to the council committee on finance a report containing a listing of any and all payments made hereunder on a quarterly basis.

(8) It shall be the responsibility of each department director or department head to implement this section.

(Ch. 2, § 162.4, added by Ord. 1947, ch. 1711, § 4; Ord. 1960, ch. 1356, § 1; Ord. 1960, ch. 1383, § 1; Ord. 1983, ch. 83-51, § 1, 11-10-83; Ord. 1988, ch. 88-7, § 1, 2-11-88; Ord. 1997, ch. 97-69, § 1, 11-3-97)

Sec. 17-60. Overtime and call-back pay in fire department—Generally.

The following members of the fire department namely:

Fire battalion chief;

Fire alarm superintendent;

Assistant fire alarm superintendent;

Fire equipment superintendent II;

Fire equipment superintendent I;

Fire captain;

Fire lieutenant;

Fire fighter, Grade 1;

Fire fighter, Grade 2;

Fire fighter, Grade 3;

Fire fighter, Grade 4; and

Radio engineer

shall be entitled to overtime and call-back pay in accordance with the provisions of sections 17-16 through 17-63.

(Ord. 1964, ch. 1594, § 1; Ord. 1964, ch. 1623, § 1)

Sec. 17-61. Same—Overtime allowance.

All hours worked by any of the persons enumerated in section 17-60 in excess of ten (10) hours on any day tour, or fourteen (14) hours on any night tour, shall be compensated for at the overtime rate of pay set forth in section 17-63; provided however, that members of other divisions who normally work shorter tours, shall be

compensated for hours worked in excess of a normal tour at an overtime rate of pay as set forth in section 17-63; and provided further, that overtime shall not be paid where men are held over at a fire already in progress while waiting for relief.
(Ord. 1964, ch. 1594, § 2)

Sec. 17-62. Same—Call-back pay allowance.

Those employees enumerated in section 17-60 called back for multiple fire alarms shall be compensated for at least four (4) hours, in the event the overtime actually worked is less than four (4) hours, at the overtime rate of pay set forth in section 17-63.
(Ord. 1964, ch. 1594, § 3)

Sec. 17-63. Same—Hourly rate of overtime pay.

The hourly rate of overtime pay for those persons designated in section 17-60 and entitled thereto, shall be equal to one fifty-sixth (1/56) the employee's weekly salary.
(Ord. 1964, ch. 1594, § 4)

Sec. 17-64. Overtime and call-back pay in police department—Generally.

The following members of the police department, namely:

Police commander;

Police captain;

Police lieutenant;

Police sergeant;

Police dog specialist;

Police patrolman, grade 1;

Police patrolman, grade 2;

Police patrolman, grade 3;

Police patrolman, grade 4;

Policewoman, grade 1;

Policewoman, grade 2;

Policewoman, grade 3;

Policewoman, grade 4; and

Police equipment superintendent

shall be entitled to call-back pay in accordance with the provisions of sections 17-65 and 17-66.
(Ord. 1964, ch. 1616, § 1)

Sec. 17-65. Same—Call-back pay allowance.

Those officers designated in section 17-64 called back to duty except members regularly assigned to plainclothes duty as detectives or members of the so-called C-Squad shall be compensated for at least four (4) hours in the event the overtime actually worked is less than four (4) hours, at the rate of pay set forth in section 17-66.
(Ord. 1964, ch. 1616, § 2)

Sec. 17-66. Same—Hourly rate of call-back pay.

The hourly rate of call-back pay for those persons designated in section 17-64 and entitled thereto, shall be equal to one-fortieth (1/40) the employee's weekly salary.
(Ord. 1964, ch. 1616, § 3)

Sec. 17-67. Benefits payable for death of policeman, fireman in line of duty.

(a) Should any member of the fire or police departments be killed, or die from the effect of injuries received while in the actual performance of his duty, or from any disease contracted, while in the performance of his duty, leaving a widow and children, or either a widow or children, dependent in whole or in part upon the services of such deceased fireman or policeman for support, such widow or children, or both, may, in the discretion of the committee for the relief of disabled firemen and policemen, and upon due application therefor, be allowed a sum not exceeding four hundred dollars ($400.00) per annum, to be paid to such widow and children, or either of them, in such manner and in such sum or sums as said committee may from time to time adjudge to be proper.

(b) In no event shall the widow of any deceased fireman or policeman be entitled to an allowance under the provisions of this section after remarriage.
(Ord. 1941, ch. 1073, § 1; Rev. Ords. 1946, ch. 2, § 12)

Cross reference—Annuities for widows of policemen and firemen, § 17-128 et seq.

Sec. 17-68. Restriction on amounts allowed under section 17-67.

The aggregate amount allowed for relief under section 17-67 hereof shall not exceed any sum authorized by the General Assembly.
(Ord. 1941, ch. 1073, § 1; Rev. Ords. 1946, ch. 2, § 13)

Sec. 17-69. Salary of fence viewer.

The fence viewer shall receive a salary of five hundred dollars ($500.00) per annum.
(Ord. 1964, ch. 1673, § 10)

Secs. 17-70—17-74. Reserved.

DIVISION 2. DISABILITY COMPENSATION*

Sec. 17-75. Commission for relief of injured employees—Organized, function.

The mayor, the director of public works, the personnel director and the finance director are hereby created a commission with authority to provide for the relief of such employees of the various departments of the city, excluding policemen and firemen and employees otherwise provided for who shall be injured or disabled while in the actual discharge of their duties as such employees and as a result thereof, in accordance with and subject to the conditions prescribed in section 17-76.
(Ord. 1914, ch. 776, §§ 1, 2; Rev. Ords. 1946, ch. 2, § 170; Ord. 1951, ch. 549, § 1; Ord. 1955, ch. 970, § 1; Ord. 1957, ch. 1087, § 1; Ord. 1970, ch. 70-17, § 1, 4-20-70)

State law references—Special act authorizing city to appropriate money for relief of injured and disabled employees of department of public works, P. L. 1928, ch. 1239; relief of injured and deceased firemen and policemen, ch. 45-19, Gen. Laws 1956.

Sec. 17-76. Same—Payments to injured employees.

When any employee provided for in section 17-75 shall be injured or disabled while in the actual discharge of his duties as such employee, as a result thereof, the commission described in section 17-75, in its discretion, may order that such employee be paid such sum of money, at such time or times or for such period, as it may determine to be just and proper; and said sums shall be charged to the appropriation for the department in which such employee is employed. Except as otherwise provided, such allowance shall not exceed the sum of two thousand five hundred dollars ($2,500.00) in all to any one (1) person during the continuance of his injury or disability.
(Ord. No. 1930, ch. 776, § 1; Rev. Ords. 1946, ch. 2, § 171; Ord. 1955, ch. 970, § 1; Ord. 1957, ch. 1087, § 1; Ord. 1977, ch. 77-3, § 1, 1-14-77)

Sec. 17-77. Entitlement of policemen, firemen to disability compensation.

When any member of the fire or police departments of the city, while in the actual performance of his duty as a member thereof, has become or shall hereafter become permanently disabled, he shall be entitled to and paid such sum or sums as the committee for the relief of disabled firemen and policemen may in its discretion, and after hearing, upon any application for relief for the cause aforesaid, determine to be just and proper; and said committee is hereby further authorized to draw its order

*__State law references—__Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; relief of injured and deceased firemen and policemen, ch. 45-19, Gen. Laws 1956; retirement of municipal employees, ch. 45-21, Gen. Laws 1956.

upon the city treasurer for such amount, which order shall be charged to the special appropriation hereinafter named. In no case shall such allowance exceed the sum provided in section 17-76.
(Ord. 1941, ch. 1073, § 1; Rev. Ords. 1946, ch. 2, § 11)

Sec. 17-78. Restriction on amounts allowed under section 17-77.

The aggregate amount allowed for relief under section 17-77 hereof shall not exceed any sum authorized by the General Assembly.
(Ord. 1941, ch. 1073, § 1; Rev. Ords. 1946, ch. 2, § 13)

Sec. 17-79. Amount, duration of disability pay for temporary absence of fireman.

The commissioner of public safety as head of the fire department is hereby authorized to allow to any member of the fire department, temporarily absent from duty on account of disability incurred while engaged in actual fire service such sums during the continuance of his disability as the commissioner may in each case determine, provided however, that in no case shall the amount allowed weekly to any disabled member exceed the regular weekly compensation of such member.
(Ord. 1914, ch. 21, § 13; Rev. Ords. 1946, ch. 12, § 6)

State law references—Pensions and relief fund for firemen, ch. 45-19, Gen. Laws 1956; special act relative to police and firemen's pension funds, P. L. 1901, ch. 930, as amended by P. L. 1917, ch. 1551; P. L. 1921, ch. 2107; P. L. 1938, ch. 2561; employees' retirement system, P. L. 1923, ch. 489; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Sec. 17-80. Blue Cross and Physicians Service coverage for disabled employees—Allowance.

Any person who is presently receiving or who hereafter receives retirement benefits from the city as a result of a permanent disability arising out of the performance of his duties as an employee of the city, shall while such benefits are being paid receive Blue Cross and Physicians Service coverage provided by the city in the same manner as a regular employee. Said person shall have the right to include his spouse and infant unemancipated members of his family living at his home as parties insured under said coverage upon payment to the city of any additional premium required.
(Ord. 1964, ch. 1667, § 1)

Sec. 17-81. Same—Allowance to persons receiving accident death benefits.

Any person who is presently receiving or who hereafter receives accident death benefits from the city as a result of the accidental death of an employee of the city arising out of the performance of his duties for said city shall, while such benefits are being paid, receive Blue Cross and Physicians Service coverage provided by the city in the same manner as a regular employee. Said person shall have the right to include

infant unemancipated members of his family living at his home as parties insured under said coverage upon payment to the city of any additional premium required therefor.
(Ord. 1964, ch. 1667, § 2)

Sec. 17-82. Same—Effect of other coverage.

Notwithstanding the provisions of sections 17-80 and 17-81 the city shall not provide the coverage set forth in said sections if the persons entitled thereunder, their respective spouses or infant children are receiving or are entitled to receive the same or similar coverage without charge therefor from any other person, association, corporation or governmental agency.
(Ord. 1964, ch. 1667, § 3; Ord. 1965, ch. 1685, § 1)

Sec. 17-83. Same—Authority to provide family coverage at expense of city.

Notwithstanding the provisions of sections 17-80 through 17-82, the finance director with the written consent of the mayor may provide at the expense of the city such coverage for the benefit of the spouse and unemancipated infant children of a disabled or accidentally deceased employee living at his home if it is made to appear to his satisfaction that there is need for said coverage and the providing thereof out of personal funds would create a hardship, so long as said hardship shall continue.
(Ord. 1964, ch. 1667, § 4)

Sec. 17-84. Same—Rules and regulations to implement provisions.

The finance director shall be authorized to establish rules and regulations to carry out the provisions of sections 17-80 through 17-83.
(Ord. 1964, ch. 1667, § 5)

Sec. 17-85. Payment for cost of hospitalization, related benefits.

(a) Active employees shall be provided with an individual or family health care benefit, as applicable to each employee's marital or family status, equivalent to Blue Cross Healthmate 2000, so-called, or a health care benefit with essentially similar provisions; and in the event that an active employee shall elect a health care benefit equivalent to Blue Cross Classic Blue, so-called, or a health care benefit with essentially similar provisions, he/she shall pay the city the additional cost for his/her election. In the alternative, an active employee, at his/her option, shall be provided with an individual or family membership, as applicable to each employee's marital or family status, in Harvard Community Health Plan or a health care benefit with essentially similar provisions.

(b) Class A and class B employees as defined in section 17-181 of the Code of Ordinances and teachers as defined in General Laws, section 16-16-1, who retire from active service after September 2, 1995, and who are not eligible for Medicare, shall be provided with solely an individual health care benefit as is provided for active employees in subsection (a) hereinabove.

(c) Class A and class B employees as defined in section 17-181 of the Code of Ordinances and teachers as defined in General Laws, section 16-6-1, who retire from active service after September 2, 1995, and who, upon retirement or any time thereafter, become enrolled in Medicare, shall thereupon be provided with an individual Medicare health care benefit.
(Ord. 1995, ch. 95-18, §§ 2—5, 8-1-95)

Secs. 17-86—17-90. Reserved.

DIVISION 3. VACATIONS WITH PAY

Sec. 17-91. Establishment, amount.

All officers and permanent employees of the city who have been in the employ of the city for at least one (1) year shall be entitled to an annual vacation of two (2) calendar weeks with pay during each succeeding year of their employment, except that as of January 1, 1957, and as of January 1 in each year thereafter, all officers and employees who have been in the employ of the city for ten (10) years or more, shall be entitled to three (3) calendar weeks with pay during each ensuing year of their employment. All officers and permanent employees of the city who have been in the employ of the city for at least twenty (20) years, shall be entitled to an annual vacation of four (4) calendar weeks with pay during each succeeding year of their employment, commencing January 1, 1972, and each year thereafter. Vacation pay shall be based upon the number of hours or days actually worked in a normal calendar week, and exclusive of any overtime.
(Ch. 2, § 163.1, added by Ord. 1949, ch. 274, § 1; Ord. 1956, ch. 1056, § 1; Ord. 1957, ch. 1088, § 1; Ord. 1960, ch. 1384, § 1; Ord. 1972, ch. 72-10, § 1, 1-25-72)

Amendment note—Ord. 1972, ch. 72-10, § 1, amended § 17-91 by deleting the word "continuously" from the first sentence and by adding the second sentence to read as herein set out.

Sec. 17-92. Rules and regulations of finance director; maximum accumulation.

The finance director shall establish rules and regulations governing annual vacations provided that vacation periods may not be so accumulated as to exceed six (6) calendar weeks.
(Ch. 2, § 163.2, added by Ord. 1949, ch. 274, § 2; Ord. 1961, ch. 1398, § 1)

Sec. 17-93. Accrual.

The right to an annual vacation, as set forth in section 17-91 of this chapter, shall accrue upon the anniversary date of continuous employment of officers' or permanent employees' date of hiring; and officers and employees separating themselves from the service of the city, except when discharged for cause, shall be granted their accrued annual vacation leave; provided that employees and officers terminating their service through absence without leave, or who fail to give at least one (1) week's notice of their intention to quit shall forfeit all rights to accrued vacation leave.
(Ch. 2, § 163.4, added by Ord. 1949, ch. 274, § 3; Ord. 1965, ch. 1729, § 1)

Sec. 17-94. Provisions inapplicable to certain employees.

The provisions of sections 17-91, 17-92, 17-93 and 17-95 shall not apply to employees of the school department or employees of the city hired on a contractual basis, and the provisions of section 17-92 shall furthermore not apply to members of the police and fire departments.
(Ch. 2, § 163.3, added by Ord. 1949, ch. 274, § 4; Ord. 1956, ch. 1056, § 1; Ord. 1962, ch. 1457, § 1)

Sec. 17-95. Application to persons on military training.

Officers and full-time employees who have been continuously employed for at least six (6) months and who by reason of membership in the active reserve forces of the United States or as members of the Rhode Island National Guard are ordered by the appropriate authority to full-time active duty and to attend full-time training activities shall be entitled to leaves of absence with pay during the actual duration of such activity but not to exceed fifteen (15) days in any one (1) year. Notwithstanding, after the completion of the aforementioned fifteen (15) days of paid military duty leave, and for as long as the employee is required by the appropriate authority to remain on full-time military duty leave, the city shall pay to the employee on a weekly basis an amount equivalent to the actual difference between the employee's then-current regular city salary (including, if applicable, all longevity pay benefits; and including any applicable salary increases that may take effect during the employee's military duty leave) and the amount of pay received by the employee for his/her military service, if said regular city salary is higher than the employee's military pay. Military leave shall not be deemed vacation leave.
(Ch. 2, § 163.5, added by Ord. 1949, ch. 274, § 5; Ord. 1962, ch. 1457, § 1; Ord. 2004, ch. 04-31, § 1, 7-9-04)

Sec. 17-96. Annual vacation for firemen.

The commissioner of public safety as head of the fire department is hereby authorized to grant to each member of the fire department an annual vacation of fourteen (14) days without loss of pay, to be taken at such times as the commissioner shall determine.
(Ord. 1923, ch. 360, § 3; Rev. Ords. 1946, ch. 12, § 5)

Secs. 17-97—17-101. Reserved.

DIVISION 4. SICK LEAVE*

Sec. 17-102. Sick leave with full pay established.

Officers and permanent employees, including hourly paid employees of the city, regularly employed in their positions continuously for at least one (1) month, except members of the police and fire departments, members of the school department, employees of the city who are paid on a per diem basis, and employees paid on a contractual basis, shall be entitled to sick leave with full pay subject to the provisions of this division and the rules and regulations established by the finance director in accordance therewith.
(Ch. 2, § 187.1, added by Ord. 1951, ch. 455, § 1; Ord. 1952, ch. 572)

Sec. 17-103. Leaves to be granted for certain defined reasons only.

A leave of absence granted under this division shall be known as "sick leave" and shall be granted for the following reasons only:

(a) Personal illness or physical incapacity to such an extent as to be rendered thereby unable to perform the duties of his or her position.

(b) Attendance upon members of the family within the household of the employee, whose illness requires the care of such employee, provided that not more than seven (7) working days with pay shall be granted to employee for this purpose in any one (1) calendar year.

(c) Enforced quarantine when established and declared by the department of health or other competent authority for the period of such quarantine only.

(d) Death of a mother, father, husband, wife, child, brother, sister, or grandchild or other member of the immediate household, provided that in such cases the leave shall not extend more than one (1) day beyond the date of burial of said deceased person, and provided further, that in the case of employees of the Jewish faith said leave shall be for the actual period of mourning observed but not to exceed seven (7) days from the day of burial.

(e) Death of other relative, provided that in such cases the leave with pay shall be for not more than one (1) day to permit attendance at the funeral of said person.

(Ch. 2, § 187.2, added by Ord. 1951, ch. 455, § 2; Ord. 1962, ch. 1450, § 1)

***State law references—**Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; relief of injured and deceased firemen and policemen, ch. 45-19, Gen. Laws 1956; retirement of municipal employees, ch. 45-21, Gen. Laws 1956.

Sec. 17-104. Maximum days allowed; accrual.

Sick leave with full pay for officers and permanent employees subject to the provisions of this division shall be one (1) working days per month. Such annual sick leave of twelve (12) working days with pay, when not used, shall be cumulative, but the accumulated and unused portion of such sick leave shall not exceed one hundred twenty (120) days at any one (1) time; provided however, any employee with at least five (5) years of continuous service who contracts a serious illness may be granted, with the approval of the personnel director, the finance director and the mayor, a further leave not to exceed ninety (90) days in addition to his accumulated sick leave as of the date said illness occurs.
(Ch. 2, § 187.3, added by Ord. 1951, ch. 455, § 3; Ord. 1955, ch. 934, § 1; Ord. 1967, ch. 1875, § 1, 9-21-67; Ord. 1977, ch. 77-2, § 1, 1-14-77; Ord. No. 2016-31, § 1, 8-3-16)

Sec. 17-105. Time allowed employees for prior service.

Officers and permanent employees who are presently in the service of the city may receive an accumulation of nine (9) working days for each full year of prior service until the maximum of ninety (90) working days' accumulation has been reached.
(Ch. 2, § 187.4, added by Ord. 1951, ch. 455, § 4)

Sec. 17-106. Time not to accrue during lay-off or leave of absence.

Employees heretofore or hereafter laid off for reasons not discreditable to them and re-hired within twelve (12) months, and employees granted leave of absence without pay, excepting personnel who have left for service in the armed forces of the United States since June 1, 1950, and who return to city employment within sixty (60) days of their discharge from service, shall not accrue sick leave during said lay-off or leave of absence, but upon resumption of active employment shall have available the sick leave accrued at the time of such lay-off or leave of absence.
(Ch. 2, § 187.5, added by Ord. 1951, ch. 455, § 1; Ord. 1952, ch. 575, § 1)

Sec. 17-107. Pregnancy, dissipation, immoral conduct, not basis for leave.

Sick leave with pay shall not be allowed to any employee by reason of pregnancy or related illnesses nor shall absence caused by dissipation or immoral conduct be made the basis of any sick leave.
(Ch. 2, § 187.6, added by Ord. 1951, ch. 455, § 6)

Sec. 17-108. Authority to require medical certification of illness.

In any case of sick leave with pay the finance director at his discretion may require a certification of illness from the employee's personal physician and/or a physician representing the city.
(Ch. 2, § 187.7, added by Ord. 1951, ch. 455, § 7)

Sec. 17-109. Violations, false claims or reports.

Wilful violation of this division or of any of the rules and regulations promulgated hereunder or the wilful making of any false report regarding sickness or the making of false claim for sick leave shall subject the employee chargeable therewith liable to disciplinary action and shall be sufficient cause for discharge or suspension.
(Ch. 2, § 187.8, added by Ord. 1951, ch. 455, § 8)

Sec. 17-110. Payment by commission for relief of certain injured employees prohibited during sick leave.

The commission for the relief of certain injured employees shall make no payments to any employee while said employee is on sick leave with pay.
(Ch. 2, § 187.9, added by Ord. 1951, ch. 455, § 9)

Sec. 17-111. Right of recovery, termination of rights for unused sick leave.

No right of action shall accrue to any officer or employee as a basis for recovery of pay for any unused sick leave. Death or separation from service or repeal of these provisions shall terminate any and all rights under this division for any such unused sick leave.
(Ch. 2, § 187.11, added by Ord. 1951, ch. 455, § 11)

Sec. 17-112. Rules and regulations, decisions of finance director.

The finance director shall establish rules and regulations governing sick leave with pay. The decision of the finance director on the interpretation of rules and regulations made by him shall be final.
(Ch. 2, § 187.10, added by Ord. 1951, ch. 455, § 10)

Secs. 17-113—17-117. Reserved.

DIVISION 5. ADDITIONAL PAYMENTS TO RETIRED EMPLOYEES*

Sec. 17-118. Established; amount, scope.

Every retired employee of the City of Providence who served the city for at least twenty-five (25) years, or is now or hereafter receiving a retirement allowance from a

---

***Editor's note—**Section 7 of Ord. 1972, Ch. 72-66, adopted Dec. 28, 1972, repealed Ord. 1967, Ch. 1860, adopted July 6, 1967, from which Div. 5, §§ 17-118—17-123, was formerly derived. Sections 1—6 of said Ord. 1972, Ch. 72-66, enacted the provisions included herein as a new Div. 5, §§ 17-118—17-123, dealing with the same subject matter formerly set out in Div. 5.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; relief of injured and deceased firemen and policemen, Ch. 45-19, Gen. Laws 1956; retirement of municipal employees, Ch. 45-21, Gen. Laws 1956.

city retirement system after at least twenty-five (25) years' membership in such system prior to retirement or who was retired by a city retirement system because of a disability incurred as the result of an accident while in the performance of duty, shall receive from the city an additional sum of money which when added to all personal service income received by such retired employee from any source whatsoever, and to any retirement, pension or social security allowance, shall assure to such employee, the sum of two hundred forty dollars ($240.00) per month. In the determination of the years of membership in a retirement system required by this section full credit shall accrue for any service prior to January 1, 1925; provided however, the employee joined the city retirement system prior to January 5, 1926. Any employee, regardless of service, who was paid as of the date of retirement, a lump sum settlement in lieu of a retirement allowance, shall not be eligible for this grant.
(Ord. 1972, ch. 72-66, § 1, 12-28-72)

Sec. 17-119. Duration, termination upon death; transferability.

Amounts payable under the terms and provisions of this division shall be payable only to a retired employee during his lifetime, shall not survive the death of such employee and shall not be assignable, attachable or transferable.
(Ord. 1972, ch. 72-66, § 2, 12-28-72)

Sec. 17-120. Basis for determining payments.

For the purposes of this division the retirement allowance paid to such employee under any pension plan of the city shall be deemed the maximum service retirement allowance to which such employee would have been entitled, and not any elected optional retirement allowance.
(Ord. 1972, ch. 72-66, § 3, 12-28-72)

Sec. 17-121. Monthly information return—Required of eligible employees.

Each retired employee eligible for payments under the terms of this division shall file monthly with the city controller on or before a designated date, an information return in such form and detail as the controller may require. No monthly benefits shall be paid until receipt of such return.
(Ord. 1972, ch. 72-66, § 4, 12-28-72)

Sec. 17-122. Same—Effect of false statements in returns.

Any wilful or material misstatement in the information return may render the person filing the same permanently or temporarily ineligible for benefits as the city controller in his discretion may determine.
(Ord. 1972, ch. 72-66, § 5, 12-28-72)

Sec. 17-123. Authority to reduce, terminate payments.

The payments herein provided are purely voluntary and may be reduced or terminated at any time as to any or all persons receiving the same.
(Ord. 1972, ch. 72-66, § 6, 12-28-72)

Sec. 17-124. Payment of termination benefits.

Whenever an employee terminates his or her employment with the city by retirement (mandatory, voluntary or involuntary) or death, said employee shall only be entitled to, payment for unused vacation or sick time (collectively, "termination benefits"), if said employee is otherwise eligible to receive retirement benefits pursuant to the retirement act. Any and all payments of termination benefits shall be subject to the following terms and conditions, notwithstanding any law or policy to the contrary:

(1) Any member of a union who accepts a position out of the union and who, at the time of said promotion, is eligible to receive retirement benefits pursuant to the Retirement Act, shall be entitled to payment for any sick days accrued as of the date of said promotion pursuant to the terms of the union contract in effect at the date of said promotion, and shall thereafter accrue sick days for use, but shall not be entitled to receive compensation for unused sick days or to accrue sick days for termination benefits purposes.

(2) a. Non-union, uniformed employees of the police department who are eligible to receive retirement benefits pursuant to the Retirement Act shall be entitled to payment for any sick days accrued as of the effective date of this amended section pursuant to the terms of the contract with the Providence Police Lodge No. 3, Fraternal Order of Police, and shall thereafter accrue sick days for use, but shall not be entitled to receive compensation for unused sick days or to accrue sick days for terminal benefits purposes; and

b. Non-union, non-uniformed employees of the police department who are eligible to receive retirement benefits pursuant to the Retirement Act shall be entitled to payment for any sick days accrued as of the effective date of this amended section pursuant to the terms of the contract with the Rhode Island Laborers' District Council on the behalf of the Public Service Employees, Local 1033, and shall thereafter accrue sick days for use, but shall not be entitled to receive compensation for unused sick days or to accrue sick days for terminal benefits purposes.

(3) a. Non-union, uniformed employees of the fire department who are eligible to receive retirement benefits pursuant to the Retirement Act shall be entitled to payment for any sick days accrued as of the effective date of this amended section pursuant to the terms of the contract with Providence Firefighters Local 799, International Association of Firefighters,

and shall thereafter accrue sick days for use, but shall not be entitled to receive compensation for unused sick days or to accrue sick days for terminal benefits purposes; and

b. Non-union, non-uniformed employees of the fire department who are eligible to receive retirement benefits pursuant to the Retirement Act shall be entitled to payment for any sick days accrued as of the effective date of this amended section pursuant to the terms of the contract with Rhode Island Laborers' District Council on the behalf of the Public Service Employees, Local 1033, and shall thereafter accrue sick days for use, but shall not be entitled to receive compensation for unused sick days or to accrue sick days for terminal benefits purposes.

(4) All compensation for sick days referenced in subsections (1) through (3), above, shall be made in three (3) annual installments of equal amount, with the first payment to be made in the pay period immediately following the termination of employment, and said payments shall not include interest.

(5) Employees of the school department are governed by policies adopted by the Providence School Board and are not covered by this amended section.

(6) All other non-union employees who are eligible to receive retirement benefits pursuant to the Retirement Act shall be entitled to payment for any sick days accrued as of the effective date of this amended section pursuant to the terms of the contract with Rhode Island Laborers' District Council on the behalf of the Public Service Employees, Local 1033, and shall thereafter accrue sick days for use, but shall not be entitled to receive compensation for unused sick days or to accrue sick days for terminal benefits purposes.

(Ord. 2013, ch. 2013-26, § 1, 7-26-13)

Editor's note—Ord. 2013, ch. 2013-26, § 1, approved July 26, 2013, amended § 17-124 in its entirety to read as set out herein. Former § 17-124 pertained to council to approve payments of severance pay to retiring employees and derived from Ord. 1977, ch. 77-36, § 1, approved 9-22-1977.

Sec. 17-125. Purchase of service credit in the retirement system.

No person shall be permitted to purchase credit in the retirement system for any period of service unless permitted pursuant to section 17-188.1, provided however, that this section shall not apply to eligible Class B - Providence Lodge #3 Fraternal Order of Police Bargaining Unit Members and Non-Bargaining Unit Police Majors retiring from October 14, 2011, to October 31, 2011, who are part of the accepted group of individuals that avail themselves of the retirement incentive set forth in section 17-196 and section 17-197 of the Code of Ordinances.

(Ord. 1986, ch. 86-1, § 1, 2-12-86; Ord. 1986, ch. 86-38, § 1, 6-26-86; Ord. 1993, ch. 93-28, § 1, 9-24-93; Ord. 2011, ch. 2011-38, § 1, 10-3-11)

Sec. 17-126. Purchase of service into the retirement system.

The city council, or the administration of this city shall not pass, or cause to have passed, any legislation, ordinance, or regulation which would allow any individual to purchase time within the Providence Retirement System for a contribution which is less than the full actuarial value, based on the assumptions then in use in the annual actuarial valuation of the retirement system, of years and fractions thereof which they seek to acquire, provided however, that this section shall not apply to eligible Class B - Providence Lodge #3 Fraternal Order of Police Bargaining Unit Members and Non-Bargaining Unit Police Majors retiring from October 14, 2011 to October 31, 2011, who are part of the accepted group of individuals that avail themselves of the retirement incentive set forth in section 17-196 and section 17-197 of the Code of Ordinances.

(Ord. 1986, ch. 86-25, § 1, 5-9-86; Ord. 2011, ch. 2011-39, § 1, 10-3-11)

Editor's note—Section 1 of Ord. 1986, Ch. 86-25, approved May 9, 1986, added § 17-125 to Art. III of Ch. 17. Inasmuch as § 17-125 had previously been added to Art. III, the provisions added by Ch. 86-25 have been included as § 17-126 herein, at the discretion of the editor.

Sec. 17-127. Reserved.

DIVISION 6. ANNUITIES FOR WIDOWS OF POLICEMEN AND FIREMEN*

Sec. 17-128. Eligibility; amount.

Each unremarried widow of a policeman or fireman who was a member of the police or fire department of the city prior to October 1, 1923, and whose death occurred, or hereafter may occur while in service, or after retirement on pension, shall receive from the city upon application duly made, an amount which, when added to all net income received by such unremarried widow from any source whatsoever, including any retirement payments or Social Security allowance, shall assure to such unremarried widow a sum not to exceed one hundred twenty dollars ($120.00) per month and not to exceed a total of one thousand four hundred forty dollars ($1,440.00) per year; but the annuities provided hereunder shall be considered as grants for additional support, and shall not be considered as vested rights in any annuitant.

(Ch. 2, § 187.20, added by Ord. 1958, ch. 1210, § 1; Ord. 1972, ch. 72-74, § 1, 12-28-72)

*__Cross references—__Committee on relief of firemen and policemen, § 2-34; benefits payable for death of policemen, firemen in line of duty, § 17-67.

State law references—Authority of city to pay annuities to widows of policemen and firemen, P. L. 1958, Ch. 88; relief of injured and deceased firemen and policemen, Ch. 45-19, Gen. Laws 1956; retirement of municipal employees, Ch. 45-21, Gen. Laws 1956; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Sec. 17-129. Duties of finance committee and city controller.

The finance committee of the city council shall from time to time determine the amount of each annuity provided for in section 17-128, and the city controller, under the advice and direction of the finance committee, shall administer the payment of such annuities through the city treasurer. The finance committee shall establish such rules and regulations as it deems necessary and advisable for the guidance of the city controller with respect to such annuities.
(Ch. 2, § 187.21, added by Ord. 1958, ch. 1210, § 2; Ord. 1972, ch. 72-74, § 2, 12-28-72)

Sec. 17-130. Limitations upon amounts payable.

Amounts payable under the terms and provisions of this division shall accrue and be payable only to an unremarried widow during her lifetime; shall not survive her death; shall not be assignable, transferable, or subject to attachment; nor shall such payments be retroactive for more than one (1) month; and payments may be terminated at any time by vote of the finance committee after hearing for cause.
(Ch. 2, § 187.22, added by Ord. 1958, ch. 1210, § 3; Ord. 1972, ch. 72-74, § 3, 12-28-72)

Sec. 17-131. Monthly information return—Required.

Each person eligible for payments under the terms of this division shall file monthly with the city controller on or before such date as designated by him an information return in such form and detail as he may require. No monthly benefits shall be paid until receipt of such return.
(Ch. 2, § 187.23, added by Ord. 1958, ch. 1210, § 4; Ord. 1972, ch. 72-74, § 4, 12-28-72)

Sec. 17-132. Same—Effect of misstatements in return.

Any misstatement in the information return may render the person filing the same ineligible for benefits for such period as the city controller, in his discretion, may determine.
(Ch. 2, § 187.24, added by Ord. 1958, ch. 1210, § 5; Ord. 1972, ch. 72-74, § 5, 12-28-72)

Sec. 17-133. Appropriations by city to pay annuities.

The city council shall by ordinance appropriate annually a sum sufficient to pay all annuities provided for under the provisions of this division.
(Ch. 2, § 187.25, added by Ord. 1958, ch. 1210, § 6; Ord. 1972, ch. 72-74, § 6, 12-28-72)

DIVISION 7. PRESUMPTIVE CANCER BENEFIT AND WELLNESS INCENTIVE FOR FIREFIGHTERS

Sec. 17-134. Definitions.

Alcohol means an alcoholic beverages, including but not limited to beer, wine, liqueurs, spirits, and other distilled and fermented beverages.

Controlled substance means an illegal drug or prescribed medication.

Firefighter means a class B member employed by the city fire department.

Health and wellness program means a program established to improve and promote the health and wellness of firefighters by requiring annual physical examinations and annual health and wellness evaluations administered by a professional.

Illegal drug means any drug which is unlawful to distribute or possess including but not limited to cocaine, ecstasy, heroin, marijuana, and methamphetamine.

Physical examination means an exam performed by a licensed physician that includes a cancer screening as part of the standard medical examination.

Tobacco means any tobacco product, including but not limited to cigarettes, cigars, chewing tobacco, smokeless tobacco, and snuff.
(Ord. 2008, ch. 08-27, § 1, 5-1-08)

Sec. 17-135. Presumption; requirements.

There shall exist a presumption that a firefighter employed by the city who suffers from cancer including, but not limited to, cancer of the hematological system, lungs, lymphatic system, or skin, resulting in total or partial disability, developed the cancer during the course and scope of employment with the city as a firefighter, if the following requirements are met and maintained:

(1) Prior to entering service with the city fire department as a firefighter, the individual shall submit to a physical examination by a physician engaged by the director of human resources or the fire department that fails to reveal evidence of cancer.

(2) The individual shall submit to annual physical exams administered by a physician engaged by the director of human resources or the fire department, the results of which shall be sent to the human resources department and added to the individual's personnel file maintained within the fire department.

(3) The individual must have been employed by the city for one (1) or more years as a firefighter before being diagnosed with cancer.

(4) The individual, while employed as a firefighter by the city, must have responded on the scene to fires, emergencies or hazardous materials incidents involving the release of radiation or a known or suspected carcinogen as defined by the International Agency for Research on Cancer.

(5) Upon application for disability benefits in accordance with section 17-189(5), accidental disability retirement, the individual's cancer must be diagnosed and confirmed by three (3) licensed and practicing oncologists engaged by the director of human resources, with the following stipulations:

a. The cancer must be diagnosed while the individual is employed by the city as a firefighter.

b. If the individual has retired or otherwise ceased employment with the city as a firefighter, the cancer must be diagnosed within three (3) years of the last date on which the individual actively served as a firefighter for the city.

(Ord. 2008, ch. 08-27, § 2, 5-1-08)

Sec. 17-136. Exceptions.

Notwithstanding any other law, the presumption established in section 17-135 shall not apply if:

(1) The firefighter uses or has ever used tobacco, illegal drugs, or controlled substances in a manner other than prescribed by a medical professional, with the following exception:

If the firefighter was hired prior to the effective date of this division and has used any of the substances as described in subsection (1) above prior to the effective date of the ordinance from which this section derives. However, this exception shall not apply if said firefighter, subsequent to the effective date of the ordinance from which this section derives, uses any of the substances as described in subsection (1) above.

(2) The firefighter declines to participate in any health and wellness program developed by the fire department, with the following stipulations:

a. Whether the fire department's health and wellness program is mandatory or voluntary, only firefighters who participate in the program shall be eligible for the presumption defined in this division; and

b. Notwithstanding participation in an established fire department health and wellness program, only firefighters who adhere to the annual physical examination requirement as proscribed in section 17-135(2) shall be eligible for the presumption defined in this division.

(3) The type of cancer for which benefits or compensation is sought is known to be caused by the abuse of alcohol and the physicians diagnosing the cancer are of the opinion that abuse of alcohol by the firefighter was a contributing factor in the manifestation of the malignancy.

(4) The firefighter, during the course of employment, volunteer, or recreational activities outside the city fire department, has been exposed or continues to be exposed on a regular basis to heat, smoke, radiation, or a known or suspected carcinogen as identified by the International Agency for Research on Cancer, with the following exceptions:

a. This subsection shall not apply to firefighters hired prior to the effective date of the ordinance from which this section derives if the firefighter

ceases employment, volunteer or recreational activities as described in subsection (4) above, subsequent to adoption of the ordinance from which this section derives.

b. Firefighters who served or are currently serving in any branch of the United States Armed Forces.

(Ord. 2008, ch. 08-27, § 3, 5-1-08)

Sec. 17-137. Powers of city.

The city shall have the power to:

(1) Rebut the presumption established in section 17-135 with evidence that the primary site of the cancer has been established and that the carcinogen to which the member has demonstrated exposure while employed as a firefighter by the city is not reasonably linked to the disabling cancer.

(2) Rescind the benefits granted under this division to any individuals who fail to annually provide certification of their continued disability from a physician engaged by the director of human resources, in accordance with section 17-189(7) of the Code of Ordinances, re-examination of members retired on account of disability.

(Ord. 2008, ch. 08-27, § 4, 5-1-08)

Sec. 17-138. Affidavit required.

Any firefighter submitting an application to the city retirement board for an accidental disability retirement under this division shall also submit an affidavit stating that the firefighter has complied with the provisions of this division.

(Ord. 2008, ch. 08-27, § 5, 5-1-08)

Sec. 17-138.1. Firefighter disabled by cancer entitled to accidental disability pension.

Notwithstanding anything herein to the contrary, any firefighter who is found to be disabled by reason of cancer according to the provisions of this division shall be entitled to an accidental disability pension.

(Ord. 2008, ch. 08-27, § 6, 5-1-08)

Sec. 17-138.2. Application for accidental disability pension.

Firefighters applying for an accidental disability pension under the provisions of this division shall not be required to:

(1) Certify the definite time, place, and conditions of such duty performed by said member resulting in such alleged disability;

(2) Provide that such alleged disability is not the result of age or length of service; or

(3) File their application for an accidental disability pension within any time frame, other than that defined in section 17-135(5)b.

(Ord. 2008, ch. 08-27, § 7, 5-1-08)

ARTICLE IV. SUGGESTION AWARD PROGRAM*

Sec. 17-139. Adoption.

The city hereby adopts the following program of money awards to stimulate and reward the making of suggestions by employees which will benefit the city.

(Ch. 2, § 187.17, added by Ord. 1953, ch. 737, § 1)

Sec. 17-140. Suggestion award committee.

(a) *Created, function.* The administration of the suggestion award program provided for in section 17-139 shall be vested in the city suggestion award committee of five (5) members, which is hereby created.

(b) *Members, chairman.* Said committee shall consist of the personnel director, the finance director, and three (3) members of the city council to be appointed by the president of the council. The committee shall elect its own chairman.

(c) *Terms of members.* Their terms of office shall run until the first Monday of January following a general election.

(d) *Clerk.* The city clerk shall be the clerk of the committee and shall keep minutes of committee meetings and such other records as may be required.

(Ch. 2, § 187.18, added by Ord. 1953, ch. 737, § 2)

Sec. 17-141. Regulations governing participation in program.

Participation in the suggestion award program provided for in section 17-139 shall be limited to those employees of the city who submit a suggestion, in accordance with the following regulations:

(a) To be eligible for a cash award a suggestion must have been adopted and made possible an extension of public service or an elimination or reduction of city expenditures without substantially impairing such service.

(b) The suggestion must propose a change which is outside the scope of the normal job responsibilities of the employee making the suggestion. Employees shall not be eligible for an award for suggestions pertaining to subjects assigned for research or development or to problems assigned for solution or which employees would normally be expected to offer in line of duty.

***State law reference—**Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

(c) The suggestion must propose a change which is not currently under active consideration by the city department affected, and which can be accomplished legally under the laws of the state and the city.

(d) If duplicate suggestions are submitted, only the first received shall be eligible for an award.

(e) A suggestion which has been put into effect by the city department concerned must be submitted for award consideration within sixty (60) days of its adoption.

(f) Each suggestor shall execute the following agreement and attach same to his suggestion:

> In consideration of my participation in the Suggestion Award Program, I hereby agree that the use by the City of Providence of my suggestion concerning _____ shall not be the basis of a claim of any nature against the City of Providence by me, my heirs, executors or assigns.

(g) Appropriate commendation of an employee whose adopted suggestion does not merit a cash award may be authorized.

(h) The cash awards by the committee shall range from twenty-five dollars ($25.00) minimum to two hundred fifty dollars ($250.00) maximum, but the committee may recommend to the city council awards in excess of the maximum, and if approved by the city council, such greater amount shall be paid, but in no event shall a total award exceed five hundred dollars ($500.00).

(Ch. 2, § 187.17, added by Ord. 1953, ch. 737, § 1)

Sec. 17-142. Procedure for making and consideration of suggestions.

The following procedure for making and consideration of suggestions is hereby established:

(a) Suggestions must be submitted in writing to the committee on forms to be provided by the committee.

(b) Suggestions must be signed but the suggestor's name may, at his written request, remain undisclosed until consideration of the suggestion has been completed.

(c) The committee shall receive, record and acknowledge receipt of suggestions, and shall notify the suggestor of action taken as soon as final consideration has been had.

(d) If a suggestion rejected by the committee is subsequently adopted, the suggestor may request the committee in writing, to reconsider the same for an award. Other rejected suggestions may be resubmitted to the committee in regular manner, but not more than twice during a calendar year.

(Ch. 2, § 187.19, added by Ord. 1953, ch. 737, § 3)

Secs. 17-143—17-147. Reserved.

ARTICLE V. POLICE RESERVE*

Sec. 17-148. Establishment, function.

The commissioner of public safety is hereby authorized to establish, train and maintain a police reserve, composed of persons who volunteer their services to aid the police department in the performance of its duties.
(Ord. 1965, ch. 1711, § 1)

Sec. 17-149. Rules and regulations applicable.

The rules and regulations of the police department to the extent that they may be applicable to volunteers, shall govern the appointment, conduct and discipline of the members of the police reserve provided for herein. The commissioner of public safety may promulgate rules and regulations governing said police reserve not inconsistent with the provisions hereof.
(Ord. 1965, ch. 1711, § 3)

Sec. 17-150. Oath as special police constables.

Members of the police reserve provided for herein shall be sworn in as special police constables by the commissioner of public safety upon the written recommendation of the chief of police certifying as to their character, physical condition and qualifications to perform the duties of members of the police reserve.
(Ord. 1965, ch. 1711, § 2)

Sec. 17-151. Prerequisites to swearing in member.

Before any person shall be sworn in as a member of the police reserve, the commissioner of public safety shall make clear to him his rights and liabilities as a member of such reserve, the fact that as a volunteer he will receive no compensation for his services or any other compensation or benefit from the city except as herein provided. Said person shall be required to sign a statement indicating his understanding and his consent to the foregoing before being sworn in by the commissioner as aforesaid.
(Ord. 1965, ch. 1711, § 7)

Sec. 17-152. Compensation, status of members; hospital, medical expenses of injured member.

Members of the police reserve provided for herein shall receive no compensation from the city for their services; they shall not be considered municipal employees in

*__State law reference—__Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

any way or entitled to any benefits which the city may provide to its employees; provided however, if any member of such police reserve is injured while on active duty, the city shall furnish all necessary hospital and medical expenses of such injured member during the period of his disability and inability to return to gainful employment.
(Ord. 1965, ch. 1711, § 4)

Sec. 17-153. Authority to call members to active duty.

With the approval of the commissioner of public safety, the chief of police may call members of the police reserve to active duty during emergencies and upon special occasions when their services are deemed to be necessary.
(Ord. 1965, ch. 1711, § 5)

Sec. 17-154. Police authority of members on active duty.

When on active duty, members of the police reserve provided for herein shall be clothed with all the powers of permanent police officers except as otherwise limited by rules and regulations established by the commissioner of public safety or as herein otherwise provided. Members of said police reserve shall not, on any occasion, bear firearms unless specifically authorized so to do by the commissioner of public safety.
(Ord. 1965, ch. 1711, § 6)

Sec. 17-155. Police authority of members not on active duty.

When not on active duty, members of the police reserve provided for herein shall have no police power other than that exercisable by any private citizen.
(Ord. 1965, ch. 1711, § 6)

Sec. 17-156. "Active duty", term defined.

"Active duty" as herein used shall mean assignment under proper authority and while actively and actually engaged in police or civilian defense duties.
(Ord. 1965, ch. 1711, § 8)

Secs. 17-157—17-180. Reserved.

ARTICLE VI. RETIREMENT SYSTEM*

Sec. 17-181.1 Purpose.

Pursuant to the benefits and rights of self-government prescribed in the Providence Home Rule Charter and guaranteed by the Constitution of the State of Rhode Island, the purpose of this chapter is to preserve the health, safety and welfare of the citizens of Providence and their property and to ensure the sustainability of the employee retirement system of the city of Providence for current and retired employees by promoting the sustainability and longevity of the employees' retirement system of the City of Providence.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-181.2 Legislative findings.

It is the intention of the city council to ensure the sustainability of the employees' retirement system of the City of Providence and to advance and maintain the long-term stability of said plan. In thoroughly reviewing the condition of said plan and assessing the need for comprehensive reform thereof, including, but not limited to, the April 19, 2012 Report and Recommendations of the City Council Subcommittee on Pension Sustainability, the city council finds and declares the following:

(1) The City of Providence currently faces massive and growing structural budget deficits that are placing enormous strains on the city's finances.

(2) The city's pension system is severely underfunded, with the unfunded liability at or approaching nine hundred million dollars ($900,000,000.00), and its ever-increasing annual costs are contributing significantly to the city's structural deficits and acute cash shortage.

(3) The city has funded less than thirty-one (31) percent of its total pension liability, substantially below the seventy (70) to eighty (80) percent suggested funding rate for most private businesses and governmental entities. Currently, the city's unfunded pension liability is nine hundred million dollars ($900,000,000.00) and the pension plan will not be fully funded for another twenty-eight (28) years. As a consequence, the auditor general of the State of Rhode Island has labeled the city's pension as one (1) of the highest risk plans in the State of Rhode Island.

***Editor's note—**Ord. No. 2015-50, § 1, adopted Sept. 17, 2015, repealed the former art. VI, §§ 17-181—17-203, and enacted a new art. VI as set out herein. The former art. VI pertained to similar subject matter and derived from Ord. 2013-9, ch. 2013-9, § 1, adopted April 9, 2013; Ord. 2013, ch. 2013-35, §§ 1(17-181.1—17-181.3, 17-182—17-188, 17-188.1, 17-189, 17-189.1, 17-190—17-199), adopted July 31, 2013.

(4) The annual required contribution (the "ARC") for the city pension system and the annual payment for the city's other post-employment benefits ("OPEB"), including retiree healthcare benefits, together total over fifty (50) percent of the city's annual tax levy, leaving less than half of the city's tax levy to fund critical and essential city services.

(5) According to the city's internal auditor, the city's projected budget deficit for the current fiscal year has been estimated at between twenty-three million dollars ($23,000,000.00) to thirty million dollars ($30,000,000.00). The projected deficit for the next fiscal year is thirty-one million dollars ($31,000,000.00). Over the succeeding years, the deficit is projected by the internal auditor to grow dramatically to as high as sixty-seven million dollars ($67,000,000.00) in 2017. During that same time, the ARC is projected to grow steadily, such that the payment, which is over fifty-five million dollars ($55,000,000.00) this year, will increase to almost seventy-five million dollars ($75,000,000.00) in 2017. The ARC will continue to increase each year until it reaches a maximum of two hundred seven million dollars ($207,000,000.00) in 2039, thereby consuming an ever growing and greater percentage of the city's budget. The projected ARC assumes an eight and one-fourth (8¼) percent rate of return on the pension investments; if the rate of return is lower, the annual projected ARC will be even higher and will further deplete the city's finances.

(6) The city's mounting deficits and pension costs will outpace any income that could be raised by an increase in the city's tax levy. According to the city's internal auditor and its outside fiscal adviser, Gary Sasse, if the city increased its tax levy for fiscal year 2014 to the maximum extent permitted by law (four (4) percent), the resulting revenue of thirteen million dollars ($13,000,000.00) would be less than one-third (⅓) of what would be needed to close the projected structural deficit of fifty million dollars ($50,000,000.00). Further, the increased ARC for 2014 would consume twenty-five (25) percent of the increased tax levy, leaving only seventy-five (75) percent of the increase to fund the deficit and other needs.

(7) The annual percentage limits on additional tax revenue and the ever-increasing ARC prevent the city from making any capital improvements such as school improvements or purchasing new equipment. Further, simply raising taxes each year to fund an ever-increasing ARC would prevent the city from attracting new business and citizens that would, in turn, grow the tax base. Finally, if left unaddressed, the persistent structural deficits, unfunded pension and OPEB liabilities, and the ever-increasing ARC, will ultimately result in the city running out of cash to pay its bills and leaving it with little choice other than to terminate employees, close schools, eliminate fire stations, deny even the most basic services to its citizens, and, ultimately, file for bankruptcy.

(8) The city has already implemented a number of cost-savings and revenue generating steps towards closing its structural budget deficits and making its pension system more sustainable. These measures have allowed the city to reduce its budget deficit for the current fiscal year from one hundred ten million dollars ($110,000,000.00) to somewhere between twenty-three million dollars ($23,000,000.00) and thirty million dollars ($30,000,000.00). The city's pension obligations are, as aforesaid, a major contributor to the city's fiscal crisis. A major cost driver of the city's pension system is, in turn, the annual cost-of-living adjustments ("COLAs") enjoyed by hundreds of city retirees. More specifically, many of the retiree's pensions compound at rates ranging from as high as three (3) percent to six (6) percent. Approximately one-fourth (¼) of retirees are currently receiving annual COLAs of five (5) percent to six (6) percent. A pension with a six (6) percent compounding COLA doubles approximately every twelve (12) to thirteen (13) years and a pension with a five (5) percent compounding COLA doubles approximately every ten (10) years.

(9) Suspension of the COLAs until the pension system attains a more secure level of funding of seventy (70) percent would result in significant and desperately needed cost savings for the pension system and the city. This measure would immediately increase the funding of the system from its current rate of thirty-one (31) percent to almost forty (40) percent. Further, the measure would result in a two hundred forty million dollars ($240,000,000.00) reduction of the unfunded pension liability from nine hundred million dollars ($900,000,000.00) to six hundred fifty-nine million dollars ($659,000,000.00). The measure would also reduce the ARC and result in one hundred (100) percent funding of the pension system several years ahead of the current amortization schedule.

(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-181.3 Definitions.

The following words and phrases as used in this article, unless a different meaning is plainly required by the context, shall have the following meanings:

Accumulated contributions shall mean the sum of all regular and excess amounts deducted from the compensation of a member, or credited to his/her individual account in the annuity savings fund, together with regular interest thereon.

Actuary shall mean an actuary selected from time to time by the city council.

Annual actuarial valuation shall mean the report issued by the actuary to the retirement board on or before the first Monday in January showing the fiscal transactions of the system for the fiscal period of the city next preceding, the amount

of the accumulated cash and securities of the system and a copy of the last balance sheet showing the financial condition of the system by means of an actuarial valuation of its assets and liabilities.

Annual required contribution shall mean that amount of money required to be contributed on an annual basis, as determined by the actuary, to fund the employees' retirement system for the City of Providence.

Annuity shall mean payments for life derived from the accumulated contributions of a member. All annuities shall be paid in equal monthly installments. Notwithstanding the foregoing, for the purposes of paragraphs (2) and (3) of subsections (b) and (d) of section 17-189 of this article, "annuity" shall mean the payments for life provided by the member's accumulated contributions attributable to his/her required regular deductions, including special contributions or deductions under the provisions of section 17-188 of this article and including the amount by which his/her required regular deductions would have increased had he/she elected to increase his/her deductions as provided in subsection (1) of section 17-185 of this article, if he/she did not do so.

Annuity reserve shall mean the present value of all payments to be made on account of any annuity or benefit in lieu of any annuity granted under the provisions of this ordinance, computed upon the basis of such mortality tables as shall be adopted by the retirement board with regular interest.

Beneficiary shall mean any person in receipt of a pension, an annuity, a retirement allowance, or other benefit as provided by this article.

Board of investment commissioners shall mean the board of investment commissioners as set forth and defined in section 815 of the Providence Home Rule Charter of 1980.

Class A employees shall mean general employees, including laborers, mechanics, and clerical, administrative, professional and technical workers of the City of Providence.

Class B employees shall mean members of the fire department and the police department of the City of Providence.

Critical status shall mean that, as determined by its actuary, as of the beginning of the plan year, the funded percentage of the employees' retirement system for said plan year is less than or equal to sixty (60) percent.

Employee shall mean any regular and permanent employee or officer of the City of Providence. The director of personnel shall determine who are employees within the meaning of this article.

Final compensation shall mean the average of the highest four (4) consecutive years of compensation, excluding payments made for overtime or payments made for temporary or extra duties beyond the normal or regular work day.

Funded percentage shall mean the percentage equal to a fraction; the numerator of which is the actuarial value of the plan's assets, as determined by the actuary, and the denominator of which is the accrued liability of the plan, as determined by the actuary.

Members shall mean any person included in the membership of the retirement system as provided in section 17-187 of this article.

Pension shall mean annual payments for life derived from appropriations provided by the City of Providence under the provisions of this article.

Pension reserve shall mean the present value of all payments to be made on account of any pension or benefit in lieu of any pension computed upon the basis of such mortality tables as shall be adopted by the retirement board with regular interest.

Regular interest shall mean at four (4) percent per annum, compounded annually or interest at such lower rate or rates as may be set by the retirement board but not less than three (3) percent per annum.

Retirement board shall mean the board as set forth and defined in section 908 of the Providence Home Rule Charter of 1980.

Retirement system shall mean the employees' retirement system of the City of Providence as defined in section 17-182 of this article.

Service shall mean service as an employee of the City of Providence as described in subsection (2) of section 17-188 of this article.

Total service shall mean service creditable pursuant to section 17-188 of this article.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-182. Name and date of establishment.

The retirement system created by Public Laws 1923, Chapter 489, approved May 14, 1923, implemented by Providence Home Rule Charter of 1980, adopted November, 1980, and chapter 1991-5 of the ordinances of the city, approved February 8, 1991, was established for the purpose of providing retirement allowances for employees of the city under the management of the retirement board. It shall be known as the "Employee Retirement System of the City of Providence" and by such name shall its functions be carried out as set forth in this article.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-183. Retirement system.

(a) The general administration and the responsibility for the proper operation of the retirement system and for making effective the provisions of this article are hereby vested in a retirement board. The retirement board shall from time to time

establish rules and regulations for the administration and transaction of the business of the retirement system, and shall perform such other functions as are required for the execution of this article.

(b) The membership of the retirement board shall consist of the city treasurer, the chairperson of the city council committee on budgetary matters, or a designee appointed by the chairperson of the city council on budgetary matters, and the finance director, ex officio; two (2) members who shall not be officers or employees of the city who shall be elected by the city council; and two (2) members who shall not be officers or employees of the city appointed by the mayor and representatives of the present and retired employees of the city. The employee representatives shall be chosen from the two (2) classes of employees designated for retirement purposes, to wit, class A employees, who are all employees covered by the retirement system not otherwise designated, and class B employees, who are police officers and firefighters, otherwise known as the sworn personnel of the department of public safety. Two (2) class A employees shall be elected by the members of the system who are class A employees; one (1) class B employee shall be elected by the members of the system who are class B employees of the city fire department; one (1) class B employee shall be elected by the members of the system who are class B employees of the city police department; one (1) retired class A employee shall be elected by the retired members of the system who were class A employees; and one (1) retired class B employee shall be elected by retired members of the system who were class B employees. The election by the members shall be in accordance with such rules as the board shall adopt to govern such elections. The regular terms of elected members shall be four (4) years. Vacancies among the elected members of the board shall be filled for the unexpired term in the manner provided for the original election. The members of the retirement board shall serve without compensation.

(c) The retirement board shall report annually in detail to the city council on or before the first Monday in January, showing the fiscal transactions of the system for the fiscal period of the city next preceding, the amount of the accumulated cash and securities of the system and a copy of the last balance sheet showing the financial condition of the system by means of an actuarial valuation of the assets and liabilities.

(d) The city solicitor shall be the legal advisor and attorney for the retirement board. The city treasurer shall be the custodian of the funds and the treasurer thereof. The city clerk shall be the clerk of the board.

(e) The city controller shall be charged with the establishment and maintenance of such accounts and statistical records as the retirement board may require and he shall employ such clerical assistance as shall be necessary to carry out properly the provisions of this article; the city council, from time to time, shall provide by appropriations sufficient sums to pay the cost of such services.

The city council shall secure the services of an actuary who shall be the actuarial advisor for the purpose of making the actuarial computations and valuations for the retirement system as required by this article. The director of personnel shall secure the services of such physicians or legal nurse consultants as shall be necessary to provide for the medical examinations as required by this article. The city council, from time to time, shall provide by appropriation sufficient sums to pay the cost of such services.

(f) The retirement board shall collect and keep in convenient form such data as shall be necessary for the preparation of the mortality and service tables, the investment rate of return and for the compilation of such other information as shall be required for the actuarial valuation of the assets and liabilities of the retirement system.

(g) In the three-year period beginning the first day of April, 2012 and in every three-year period thereafter, the actuary shall make an actuarial investigation into the mortality, service and compensation experience of the members and beneficiaries of the retirement system and make a recommendation for the investment rate of return. Taking into account the result of such investigation, the retirement board shall adopt for the retirement system such mortality, service and other tables as shall be deemed necessary and shall adopt the investment rate of return recommended by the actuary.

(h) On the basis of such tables as the retirement board shall adopt, the actuary shall make an annual valuation of the assets and liabilities of the funds of the system created by this article.

(i) In the event the retirement board takes any action(s) contrary to the recommendation(s) of the actuary, the board shall within thirty (30) days, provide notice of such action(s) to all plan members, the mayor and the city council. The notice shall also be posted electronically on the retirement board's website.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-184. Investment of funds.

(a) All monies not immediately required for the payment of retirement allowances or other benefits shall be invested by the board of investment commissioners for the benefit of the retirement system. The board of investment commissioners is authorized and empowered to execute the disposition and investment of the funds which are within its control in any securities and investments as would be acquired by prudent persons of discretion and intelligence in these matters, who are seeking a reasonable income and the preservation of their capital. The prudent person standard shall be that standard of care employed solely in the interest of the members and beneficiaries of the retirement system and:

(1) For the exclusive purpose of:

a. Providing benefits to members and their beneficiaries; and

b. Defraying reasonable expenses of administering the funds of the retirement system;

(2) With the care, skill, prudence and diligence under the circumstances then prevailing that a prudent person acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims;

(3) By diversifying the investments of the fund so as to minimize the risk of large losses, unless under the circumstances it is clearly prudent not to do so. The board of investment commissioners shall adopt a statement of investment objectives and policies consistent with the prudent person standard as hereinabove defined.

(b) The city controller is hereby authorized and directed to draw his/her orders upon the city treasurer for the purchase of investments, upon receipt by him/her of properly authenticated vouchers signed by the chairperson of the board of investment commissioners or by the vice-chairperson in the event of the chairperson's absence or illness. The proceeds from the sale of investments shall be paid to the city treasurer for the benefit of the funds of the retirement system.

(c) The board of investment commissioners shall annually allow regular interest on the average amount for the preceding year to the credit of the various funds of the retirement system from the interest and dividends earned from investments. Any excess earnings over the amount so credited shall be used in reducing the amount of contributions required by the city. Any deficiency shall be paid by the city.

(d) Except as herein provided, no member of the board of investment commissioners and no employee of said board shall have any interest, direct or indirect, in the gains or profits of any investment made by the said board, nor as such, directly or indirectly, receive any pay or emolument for his/her services. And no member of the board of investment commissioners or employee of said board shall, directly or indirectly, for himself/herself or as an agent, in any manner use the same, except to make such current and necessary payments as are authorized by the board of investment commissioners; nor shall any member or employee of the board of investment commissioners become an endorser or surety or become in any manner an obligor for moneys loaned or borrowed from the funds of the retirement system.

(e) The board of investment commissioners shall report annually in detail to the city council on or before the first Monday in October of each year showing the investment transactions made by the board of investment commissioners on behalf of the employee retirement system and the prior year's investment rate of return as well as the investment rate of return for the prior fifteen (15) years.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-185. Method of financing.

The funds hereby created are the annuity savings fund, the annuity reserve fund, the pension accumulation fund and the pension reserve fund.

(1) *Annuity savings fund*. The annuity savings fund shall be a fund in which shall be accumulated contributions from the compensation of members to provide for their annuities and their withdrawal allowances. Upon the basis of such tables as the retirement board shall adopt and regular interest, the actuary of the retirement system shall determine for each class A member the proportion of the compensation which, when deducted from each payment of prospective earnable annual compensation prior to eligibility for service retirement and accumulated at regular interest until attainment of the minimum age of service retirement within the member's group, shall be computed to provide at that time an annuity equal to the pension provided on account of service as a member. Such proportion of compensation shall be computed to remain constant. In the event that the provisions of this article for the determination of the amount of the pension of a class A employee on account of the employee's service as a member shall at any time, be amended, the retirement board shall adopt, as of the effective date of such amendment, rates of contribution for class A employees computed on the basis of such amendment and such contribution rates shall apply to all members who become class A employees after said effective date at the age attained upon entrance into such class. No increase in percentage contribution rates shall be required of members who are so classified on said effective date, but any such members may elect prior to said date to contribute at the rate as so amended applicable to the member's age attained on said date and thereafter deductions shall be made from the member's compensation at such amended rate. The retirement board shall adopt as of July 1, 1989, for employees in class B who are members of the police department, a percentage contribution rate of eight (8) per centum on a pre-tax basis and as of July 1, 1990 for employees in class B who are members of the fire department, a percentage contribution rate of eight (8) percent and an additional one and one-half (1½) percent to be set aside in an OPEB trust fund to be administered by the city, both contributions shall be on a pre-tax basis and thereafter deductions shall be made from the compensation of all members so classified at this rate, anything to the contrary in this article notwithstanding. The retirement board shall adopt as of July 1, 1974, for employees in class A, a percentage contribution rate of eight (8) percent, and thereafter deductions shall be made from the compensation of all members so classified at this rate, anything to the contrary in this article notwithstanding. The pension contribution rate for all class B members of the fire department hired on or after July 1, 2011 shall be set at nine (9) percent of their base pay and

longevity; and an additional one and one-half (1½) percent of their base pay and longevity to be set aside in an OPEB trust fund to be administered by the city. Both contributions shall be on a pre-tax basis.

The city controller shall certify the proportion of earnable compensation of each member so computed, and he or she shall deduct such proportion from the compensation of each member on each and every payroll of each department for each and every payroll period but the city controller shall not make any deductions for annuity purposes from the annual compensation of a member who elects not to contribute, if the member has completed twenty-five (25) years of creditable service and the member no longer receives pension service credits. If the member has completed twenty-five (25) years of creditable service, the controller shall continue to make deductions for annuity purposes from the annual compensation of the member if the member continues to accrue creditable service. In determining the amount earnable by members in a payroll period, the retirement board may consider the rate of annual compensation payable to such members on the first day of the payroll period as continuing throughout such payroll period and it may omit deductions from compensation for any period less than a full payroll period if an employee was not a member on the first day of the payroll period; and to facilitate the making of deductions it may modify the deduction required by any member by such an amount as shall not exceed one-tenth (1/10) of one (1) percent of the annual compensation upon the basis of which said deduction is to be made. The deductions provided for herein shall be made notwithstanding that the minimum compensation provided for by law for any member shall be reduced thereby. Every member shall be deemed to consent and agree to the deductions made and provided for herein and shall receipt for the member's full salary or compensation; and payment of salary or compensation less said deduction shall be a full and complete discharge and acquittance of all claims and demands whatsoever for the services rendered by such person during the period covered by such payment except as to the benefits provided under this article. Said amounts shall be deducted and when deducted shall be paid into said annuity savings fund, and shall be credited, together with regular interest, to an individual account of the member from whose compensation said deduction was made.

Notwithstanding anything to the contrary, pursuant to the provisions of section 414(h)(2) of the United States Internal Revenue Code, the City of Providence shall assume and pay the contributions which would be payable by the employees as members. Such contributions, although designated as employee contributions, shall be paid by the City of Providence in lieu of contributions by the employee. No employee shall have the option of choosing to receive such contributed amounts directly instead of having them paid by

the City of Providence. The contributions so assumed shall be treated and identified, without limitation, as member contributions for all purposes of the retirement system.

Employee contributions assumed pursuant to this subsection shall be paid from the same source of funds used for the payment of compensation to an employee. A deduction shall be made from the employees' compensation equal to the amounts of the employees' contributions assumed by the City of Providence. These deductions, however, shall not reduce the employees' compensation for purposes of computing benefits under the retirement system pursuant to this ordinance or for purposes of determining any other member benefits.

Assumed contributions shall be transferred to the retirement system and be credited to a separate subaccount within the employees' account in order that the amounts contributed prior to the effective date of the assumption of employee contributions shall be distinguished from the amounts contributed on or after the date on which the City of Providence assumes the employees' contributions.

In addition to the contributions deducted from compensation hereinbefore provided, any member may redeposit in the annuity savings fund by a single payment or by an increased rate of contribution an amount equal to the total amount which the member withdrew previously therefrom as provided in this article, or any member may deposit therein by a single payment or by an increased rate of contribution an amount to be used to provide an additional annuity. Such additional amounts so deposited shall become a part of the member's accumulated contributions except in the case of retirement, when they shall be treated as excess contributions returnable to the member in the same manner and form as the member's normal accumulated contributions. The accumulated contributions of a member, withdrawn by the member or paid to the member's estate or to the member's designated beneficiary in the event of the member's death as provided in this article, shall be paid from the annuity savings fund. Upon retirement of a member, the member's accumulated contributions shall be transferred from the annuity savings fund to the annuity reserve fund. Subject to such rules and regulations as the retirement board may provide, any members who has have at least three (3) years of total service may borrow from their account in the annuity savings fund for the following purposes:

a. Medical expenses, including dental and hospital expenses.

b. Funeral expenses.

c. Down payment on the purchase of real estate to be used in whole or in part as the member's home, or to be used for home improvements of member's home (primary residence).

d. Educational expenses limited to member, member's spouse, member's domestic partner, member's children and/or dependent(s).

e. The aggregate amount of loans outstanding to any member shall never exceed the lesser of the following amounts:

i. Fifty (50) percent of the amount of the member's accumulated contributions.

ii. An amount, together with interest thereon, which must be repaid within ten (10) years by additional deductions from the member's compensation.

iii. No loan shall be issued for less than one thousand dollars ($1,000.00).

f. Prior to approval the member shall sign a sworn affidavit which specifically states the purpose for the loan.

The rate of interest payable on the unpaid balance of such loans shall be fixed at the date of commencement of the loan at the rate established by the pension system's investment rate of return on the investment portfolio, plus one (1) percent. The principal amount, together with interest thereon, shall be repaid to the retirement system in equal installments in such amounts as the board shall approve, and shall be deducted from the compensation of the member at the same time and in the same manner as the member's contributions to the retirement system are deducted. Such installments shall be at least equal to five (5) percent of the member's compensation.

All payments of principal and regular interest made by a borrowing member shall be credited to the member's account in the annuity savings fund. The excess of the interest paid by the member over the regular interest creditable to the account of the member shall be credited to the pension accumulation fund. The amount of any benefit which becomes payable under the provisions of this article shall be determined on the basis of the member's accumulated contributions less the outstanding balance of such loan, and the pension shall be determined as if such loan had not been made. Should a beneficiary be restored to active service, the member's annuity reserve shall be transferred from the accumulation fund to the member's credit in the annuity savings fund.

(2) *Annuity reserve fund*. The annuity reserve fund shall be the fund from which shall be paid all annuities and all benefits in lieu of annuities, payable as provided in this article. Should a beneficiary retired on account of disability be restored to active service, his or her annuity shall cease and his or her annuity reserve shall be transferred to his or her credit in the annuity savings fund.

(3) *Pension accumulation fund*. The pension accumulation fund shall be the fund in which shall be accumulated all reserves for the payment of all pensions

and other benefits payable from contributions made by the City of Providence and from which such pensions and other benefits shall be paid to or on account of beneficiaries credited with prior service. Contributions to and payments from the pension accumulation fund shall be made as follows:

a. On account of each member there shall be paid annually into the pension accumulation fund by the City of Providence for the preceding fiscal period, a certain percentage of the earnable compensation of each member to be known as the "normal contribution," and an additional percentage of the earnable compensation to be known as the "deficiency contribution." The rates per centum of such contributions shall be fixed on the basis of the liabilities of the retirement system as shown by actuarial valuations. Until the first valuation, the normal contribution shall be two and sixty-seven one-hundredths ($2^{67}/_{100}$) percent and the deficiency contribution shall be two and forty-five one-hundredths ($2^{45}/_{100}$) percent of the salaries of all members.

b. On the basis of regular interest and of such mortality and other tables as shall be adopted by the retirement board, the actuary engaged by the city council to make each valuation required by this article during the period over which the deficiency contribution is payable, immediately after making such valuation, shall determine the uniform and constant percentage of the earnable compensation of the average new entrant, which, if contributed on the basis of compensation throughout the entire period of active service would be sufficient to provide at the time of retirement the total amount of the member's pension reserve. The rate per centum so determined shall be known as the "normal contribution" rate. After the deficiency contribution has ceased to be payable, the normal contribution shall be the rate per centum of the earnable salary of all members obtained by deducting from the total liabilities of the pension accumulation fund the amount of the funds in hand to the credit of that fund and dividing the remainder by one (1) percent of the present value of the prospective future salaries of all members as computed on the basis of the mortality and service tables adopted by the retirement board and regular interest. The normal rate of contribution shall be determined by the actuary after each mortality and service investigation and shall continue in force until a new investigation and certification.

c. Immediately succeeding the first valuation, the actuary engaged by the city council shall compute the rate per centum of the total compensation of all members during the preceding fiscal year which is equivalent to four (4) percent of the amount of the total pension liability on account of all members and beneficiaries not dischargeable by the aforesaid normal contribution made on account of such members during the remainder of their active service. The rate per centum originally so determined shall

be known as the "deficiency contribution rate." On the basis of the first actuarial valuation following the first day of April, 1965, the deficiency contribution rate shall be revised to provide for the liquidation of the deficiency then existing.

d. The total amount payable in each year to the pension accumulation fund shall not be less than the sum of the rates per centum known as the normal contribution rate and the deficiency contribution rate of the total compensation earnable by all members during the preceding fiscal period; provided, however, the sum of such rates per centum need not exceed the rate per centum of the earnable salary of all members obtained by deducting from seventy (70) percent of the total liabilities of all funds except the annuity savings fund the amount of the funds in hand to the credit of such funds and dividing the remainder by one (1) percent of the present value of the prospective future salaries of all members as computed on the basis of the mortality and service tables adopted by the retirement board and regular interest. The aggregate payment by the city into the pension accumulation fund shall be sufficient, when combined with the amount in the fund, to provide the pension payable out of the fund during the year then current.

e. The deficiency contribution shall be discontinued as soon as the accumulated reserve in the pension accumulation fund shall equal the present value, as actuarially computed and approved by the city council, of the total liability of such fund less the present value, computed on the basis of the normal contribution rate then in force, of the normal contributions to be received on account of persons who are at that time members.

f. All pensions with the exception of those payable on account of members who received no prior service allowance shall be paid from the pension accumulation fund.

g. Upon the retirement of a member not entitled to prior service allowance, an amount equal to the member's pension reserve shall be transferred from the pension accumulation fund to the pension reserve fund.

(4) *Pension reserve fund*. The pension reserve fund shall be the fund from which shall be paid the pensions to members not entitled to a prior service allowance. Should any disability pension payable from said fund be canceled, the pension reserve thereon shall thereupon be transferred from the pension reserve fund to the pension accumulation fund. Should the pension of a disability beneficiary be reduced as a result of an increase in the beneficiary's earning capacity, the amount of the annual reduction in the beneficiary's pension shall be paid annually into the pension accumulation fund during the period of such reduction.

(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-186. Guarantee by city.

Regular interest charges payable, the creation and maintenance of reserves in the pension accumulation fund and the maintenance of annuity reserves and pension reserves as provided for in this article are hereby guaranteed by the city. All income, interest and dividends derived from the deposits and investments authorized by this article shall be used as provided in this article for the payment of regular interest charges and any surplus shall be credited against the contributions required of the city and any deficit in the regular interest requirements shall be added to the city's contribution and paid by the city. Upon the basis of each actuarial valuation and appraisal provided for in this article, the finance director shall prepare and submit to the standing committee on finance of the city council on or before the first day of May in each year an itemized statement of the amounts necessary to be appropriated by the city to the various funds during the ensuing fiscal period. The city council shall make an appropriation, which the city council shall deem to be sufficient to provide for the contributions required of the city under this article and the amount so appropriated shall be included in the annual appropriation ordinance and shall be paid by the city treasury to the various funds of the system created by this article.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-187. Membership of retirement system.

(a) All employees as defined in this article shall, upon their option in the case of elected officials and officials appointed for a fixed term, or under contract of their employment in the case of other such employees, become members of the retirement system, and shall receive no pension or retirement allowance from any other pension or retirement system supported wholly or in part by the city, nor shall they be required to make contributions under any other pension or retirement system of said city, anything to the contrary notwithstanding.

(b) It shall be the duty of the director of personnel to submit to the retirement board a statement showing the name, title, compensation, duties, date of birth and length of service of each member, and such other information as the retirement board may require. The retirement board shall then classify each member as either a class A employee or a class B employee.

Notwithstanding the foregoing, for the purpose of the adoption of service and mortality tables pursuant to subsection (g) of section 17-183 of this article, the retirement board may classify the members in class A or in class B as may be recommended by the actuary on the basis of the service and mortality experience and approved by the retirement board.

The board shall certify to the member the class in which he is placed and the date of his/her admission to membership therein. When the duties of a member so require, the retirement board may reclassify him in another class and shall

thereupon certify to him the class to which he/she has been transferred, provided that no member having fifteen (15) or more years of service creditable to him as a member of one (1) class may be so reclassified.

Should the service of any member in any period of ten (10) consecutive years after last becoming a member amount to less than five (5) years, or should he withdraw his/her accumulated contributions or should he become a beneficiary or die, he shall thereupon cease to be a member.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-188. Service creditable—Generally.

(a) The retirement board shall fix and determine by appropriate rules and regulations how much service in any year is equivalent to a year of service, but in computing such service or in computing the compensation, it shall credit no period of more than a month's duration in which a member was absent without pay nor shall more than one (1) year of service be credited on account of all service in one (1) calendar year.

(b) At retirement, the total service credited a member shall consist of the service rendered by the member as an employee since last becoming a member and any additional service hereinafter provided. In no event shall the total service credited to a class B member exceed thirty-two (32) years and six (6) months; provided, however, that service rendered by such member after minimum retirement age shall not be considered as credited service unless the member has continued to make his/her required contributions after the attainment of such age.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-188.1. Same—Purchase of service credit.

(a) The city controller, shall be responsible for the determination, establishment and fixing of service creditable for previous service, federal service, or military service and the cost of the purchase thereof as set forth in subsections (b), (c), (d) and (e) of this section for active members with a period of continuous service of at least one (1) year's duration. The city controller shall make a report monthly to the employee retirement board and the city council of all purchases of service credit made by any members.

(b) Any active member of the retirement system who was on active duty in the armed services of the United States or in the merchant marine service of the United States during and period of one (1) year or more, may, by written notice filed with the city controller, pay into the retirement system within five (5) years of his/her first becoming a member, a contribution equal to ten (10) percent of his/her compensation earnable in his/her first year of credible service multiplied by the number of years and fraction thereof in such armed service up to a maximum of four (4) years provided that he or she has received an honorable discharge. Upon such

payment, anything to the contrary notwithstanding, such amount shall become part of such member's accumulated contributions and the period of service in the armed forces or merchant marines on account of which such payment was made shall be added to his/her period of service since last becoming a member. The crediting of such service shall be for the purpose of computing the amount of pension which may become payable under this article. There will be no interest charged provided that the member makes said purchase during his or her first five (5) years of first becoming a member of the retirement system, if purchased after completing five (5) years of membership, said member will be charged regular interest to date of purchase from date of enrollment into the retirement system calculated equal to the assumed investment return on the assets of the pension trust used by the actuary in the most recent actuarial valuation, compounded annually. Any active member of the retirement system prior to (date of passage), with seven (7) years or more of membership in said system, who failed to purchase creditable military service as outlined above, shall be permitted to purchase said time and said member will be charged regular interest to date of purchase from date of enrollment into the retirement system calculated equal to the assumed investment return on the assets of the pension trust used by the actuary in the most recent actuarial valuation, compounded annually. In accordance with this section, if an eligible employee who was a member terminates employment and subsequently becomes an eligible employee again, the date of first becoming a member of the retirement system shall be used to determine the applicable five (5) years of membership.

(c) Any member who has rendered service as a member prior to his/her last becoming a member and terminated such previous service may, by written notice filed with the city controller, elect to repay into the annuity savings fund an amount equal to the amount of such member's accumulated contributions which were withdrawn by such member on account of such member's last termination of membership, together with eight (8) percent interest compounded annually thereon from his/her last termination of membership, to the date of repayment. Upon such repayment, anything to the contrary notwithstanding, such amount shall become part of such member's accumulated contributions and the period of service on account of which such payment was made shall be added to his/her period of service since last becoming a member. The crediting of such service shall be both for the purpose of computing the amount of pension which may become payable under this article and for the purpose of determining such member's eligibility for the benefits payable hereunder and the rights of any beneficiary claiming through him.

(d) Any employee or elected officer who is an active class A member who returns to employment following a period of leave to which he is entitled under federal or state law or a period of disability for which workers' compensation or similar payments are made, may, by written notice filed with the city controller, elect to pay into the annuity savings fund an amount equal to eight (8) percent of the base compensation which the employee or elected officer would have paid had such

employee or elected officer not taken such period of leave or disability. Should said payment be made within twenty-four (24) months of the employee's return from leave to active employment, said payment shall fulfill all requirements. Any such payment made subsequent to twenty-four (24) months of the employee's return from leave to active employment shall include a eight (8) percent interest compounded annually thereon from the date of the commencement of his/her period of leave or disability, to the date of repayment. Upon such payment, anything to the contrary notwithstanding, such amount shall become part of such member's accumulated contributions.

(e) Any employee or elected officer who is an active class B member who returns to employment following a period of leave to which he is entitled under federal or state law or a period of disability for which workers' compensation or similar payments are made, may, by written notice filed with the city controller, elect to pay into the annuity savings fund an amount equal to nine and one-half (9½) percent of the base compensation which the employee or elected officer would have been paid had such employee or elected officer not taken such period of leave or disability together with eight (8) percent interest compounded annually thereon from the date of the commencement of his/her period of leave or disability, to the date of repayment. Upon such payment, anything to the contrary notwithstanding, such amount shall become part of such member's accumulated contributions and the period of service on account of which such payment was made shall be added to his/her period of service since last becoming a member. The crediting of such service shall be both for the purpose of computing the amount of pension which may become payable under this article and for the purpose of determining such member's eligibility for the benefits payable hereunder and the rights of any beneficiary claiming through him.

(f) Any other employee or elected officer who is an active member and who had a period of continuous full time service of at least six (6) months' duration prior to his/her date of membership as a temporary city employee, or a CETA-financed city employee, may by, written notice filed with the city controller, elect to pay into the annuity savings fund and the pension accumulation fund an amount equal to the full actuarial value of the benefits payable under this article as of the date of payment, as computed by the actuarial advisor of the board, assuming such member shall retire on his/her normal retirement date based upon the assumptions used in the plan's actuarial valuation. Upon such payment, anything to the contrary notwithstanding, such amount paid into the annuity savings account shall become part of such member's accumulated contributions and the period of service on account of which such payment was made shall be added to his/her period of service since last becoming a member. The crediting of such service shall be both for the purpose of computing the amount of pension which may become payable under this article and for the purpose of determining such member's eligibility for the benefits payable hereunder and the rights of any beneficiary claiming through him.

(g) The city controller shall not permit the purchase of service credits in the retirement system for any period of employment as a seasonal or part-time employee or for service as a member on any part-time board or commission.

(h) In reference to any interest payment in this section, members in active service of the retirement system, who make application for purchase of service shall be notified by the city controller as to the calculation of interest and said member shall have a maximum of thirty (30) days in which to effectuate said purchase. If the payment is not received within thirty (30) days of notification by the city controller and payments are made per pay period, interest shall accrue equal to the assumed investment return on the assets of the pension trust used by the actuary in the most recent actuarial valuation, compounded annually on the balance of payments. Members may purchase service credit by an installment plan by payroll deduction not to exceed five (5) years, provided that all purchases and payments must be made prior to retirement.

(i) Credit at full cost for federal employment. Notwithstanding anything herein to the contrary, any active member, upon the completion of one (1) year of membership service, may purchase full time creditable service up to a maximum of five (5) years in the aggregate of federal employment, provided that the member is not receiving any retirement or disability payments resulting from this federal employment. The member shall purchase this service by making a lump sum amount equal to the full actuarial cost of that credit as certified by the city controller. Additional creditable service purchased under this subsection shall not be used as creditable service for the purpose of vesting.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-189. Benefits payable.

(a) *Service retirement*. Retirement of a member on a service retirement allowance shall be made by the retirement board as follows:

(1) Any member may retire upon his/her written application to the retirement board setting forth at what time, not less than thirty (30) nor more than ninety (90) days subsequent to the execution and filing thereof, he/she desires to be retired, provided that the said member at the time so specified for his/her retirement shall have attained the minimum age requirement for his/her class and notwithstanding that, during such period of notification, he/she may have separated from service. The minimum ages for service retirement for employees who became members on or before June 30, 1995 shall be as follows:

Class A employees: Fifty-five (55) or the age at which twenty-five (25) years of service is completed if prior thereto.

Class B employees: Fifty-five (55) or the age at which twenty (20) years of service is completed if prior thereto.

The minimum age for service retirement for employees who become members on or after July 1, 1995 shall be as follows:

Class A employees: Fifty-five (55) or the age at which thirty (30) years of service is completed if prior thereto.

Class B employees: Fifty-five (55) or the age at which twenty (20) years of service is completed if prior thereto.

(2) Notwithstanding anything herein to the contrary, the minimum age for service retirement for class B employees with less than five (5) years of total service on the effective date of enactment of this amendment shall be fifty-five (55) or at the age at which twenty three (23) years of service.

The minimum age for service retirement for class A employees who become members on or after July 1, 2004 shall be sixty (60) years of age and have completed at least ten (10) years of total service or thirty (30) years of total service. For members that have attained age fifty-five (55) years of age and have completed at least ten (10) but not thirty (30) years of total service, the allowance on service retirement shall be reduced five-twelfths (5/12) percent per month for each month between retirement commencement and the age of sixty (60).

The minimum age for service retirement for class A employees who become members on or after July 1, 2009 shall be sixty-two (62) years of age and has completed at least ten (10) years of total service or thirty (30) years of total service. For members that have attained age fifty-five (55) years of age and have completed at least ten (10) but not thirty (30) years of total service, the allowance on service retirement shall be reduced five-twelfths (5/12) percent per month for each month between retirement commencement and the age of sixty-two (62).

This subsection (1)(b) shall not apply to members who vested with ten (10) years or more of contributing service as of June 25, 2009.

(3) Each class B member who is a member of the police department and who has attained the age of sixty-three (63) and each class B member who is a member of the police department and who attains the age of sixty-three (63), shall be retired forthwith, or on the first day of the calendar month next succeeding that in which the member shall have attained the age of sixty-three (63) years, unless said individual holds the rank of police chief, deputy police chief, or police major at the time he/she has attained, or attains the age of sixty-seven (67) years.

Each class B member who is a member of the fire department and who has attained the age of sixty (60) and each class B member who is a member of the fire department and who attains the age of sixty (60), shall be retired forthwith, or on the first day of the calendar month next succession that in

which the member shall have attained the age of sixty (60) years, unless said class B member of the fire department that holds the rank of assistant fire chief of operations and assistant fire chief of administration at the time he/she has attained, or attains, the age of sixty-three (63) years, or class B member of the fire department that holds the rank of fire chief of department at the time that he/she has attained, or attains, the age of sixty-seven (67) years.

(4) Class B members of the police department hired on or after July 1, 2011 shall receive the following pension benefits: retirement eligibility at the earlier of twenty-five (25) years of total service or fifty-five (55) years of age; pension benefits of fifty (50) percent of retirement-eligible pay at twenty-five (25) years of total service, with a maximum of seventy-five (75) percent after thirty-five (35) years of total service.

Class B members of the fire department hired on or after July 1, 2012, who elect to retire after his/her twentieth and before his/her twenty-fifth anniversary date of hire will receive the percentage of pension benefit calculation attributable to the member's years of service but shall not begin to receive payment of any pension benefit until the member's twenty-fifth anniversary date of membership in the retirement system; twenty-fifth anniversary date to be counted from the member's original date of hire, but excluding any breaks in service or purchased time. Further, a member who retires and is subject to this provision will receive any cost of living adjustment payment that he/she may be entitled to in the January of the year following his/her third anniversary of receiving pension benefit payments in accordance with this section.

Eligible years of service:	*Designated percentage:*	*Payment begins:*
20 years of service	50%	25th ann. date of membership in the retirement system
21 years of service	52%	
22 years of service	54%	
23 years of service	56%	
24 years of service	58%	
25 years of service	60%	

(5) No member is eligible for pension benefits under this section unless the member has been a contributing member of the retirement system for at least ten (10) years except as provided in section 17-189(f). This subsection (a)(5) shall apply to employees joining the retirement system on or after February 16, 2009.

(b) *Allowance on service retirement*. Upon retirement for service a member shall receive a retirement allowance which shall consist of:

(1) An annuity which shall be the actuarial equivalent of his/her accumulated contributions at the time of his/her retirement; and

(2) If the member is a class A employee who first becomes a member prior to July 1, 1996, a pension which together with his/her normal annuity, exclusive of any excess annuity, shall be equal to one-fortieth (1/40) of his/her final compensation multiplied by the first twenty (20) years of his/her total service credited and equal to one-fiftieth (1/50) of his/her final compensation multiplied by the number of years of his/her total service credited in excess of twenty

(20) years; and, in addition, an excess annuity which shall be the actuarial equivalent of his/her accumulated excess contributions at the time of his/her retirement. If the member is a class A employee who first becomes a member on or after July 1, 1996, a pension which together with his/her normal annuity, exclusive of any excess annuity, shall be equal to one-fiftieth (1/50) of his final compensation multiplied by the number of years of his/her total service credited; and, in addition, an excess annuity which shall be the actuarial equivalent of his/her accumulated excess contributions at the time of his/her retirement, provided, however, that no class A employee shall receive a service retirement allowance, exclusive of any excess annuity, in excess of one hundred (100) percent of his/her final compensation.

(3) If the member is a class B employee, a pension which together with his/her normal annuity, exclusive of any excess annuity, shall be equal to one-fortieth (1/40) of his/her final compensation multiplied by the first twenty (20) years of his/her total service credited, and equal to one-fiftieth (1/50) of his/her final compensation multiplied by the number of years of his/her total service credited in excess of twenty (20) years; and, in addition, an excess annuity which shall be the actuarial equivalent of his/her accumulated excess contributions at the time of his/her retirement, provided, however, that no class B employee shall receive a service retirement allowance, exclusive of any excess annuity, in excess of seventy-five (75) percent of his/her final compensation.

(c) *Disability application process*. Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award to the contrary:

(1) Members will have sixty (60) days from the date of application, in which to file with the pension administrator/retirement office a complete application. A completed application shall include the following: (1) disability application, (2) a statement from a physician stating that the member is physically or mentally incapacitated for the performance of duty and he or she shall be retired, (3) a copy of a birth certificate, passport, or other documentation to establish date of birth. If applying for an accidental disability benefits, the applicant must provide an injury report of the incident. If after thirty (30) days, the board has not received a completed application, the board shall send by registered mail, a notice to the member indicating that the outstanding documentation needed in order to complete the application and that after thirty (30) additional days an incomplete application will be returned and that the board shall not consider that member's request for a disability benefit. Any member unable to submit a complete application within the sixty (60) day period may request additional time to complete an application and said request shall be granted provided there is good cause for the request and the timeframe is reasonable. The disability subcommittee may approve the continuation of all such incomplete applications. A member

may re-apply for disability benefits as long as the application is complete and submitted in its entirety to the pension administrator/retirement office within the time period as prescribed by this Act.

(2) Upon receipt of such completed application, the pension administrator shall schedule medical examinations for said applicant with a physician certified in the field reasonably related to the pensioner's alleged injury. Said medical examinations shall be made and reports of the same filed with the pension administrator. During said period the pension administrator shall compile such other documents or evidence as he or she shall deem appropriate in order that the board shall have available all reasonably pertinent information so as to review said application.

(3) The board shall approve or deny said application within sixty (60) days of receipt of the completed application. Once the application has been submitted to the board, said application may be continued for an additional thirty (30) days provided good cause is shown for the request. In no event shall the application be continued beyond ninety (90) days of the board's receipt of the completed application. In the event that the board does not approve said application within ninety (90) days of its receipt of the completed application, the application shall be automatically be deemed denied without prejudice.

(4) Additional time shall be granted and the application shall appear on the retirement board agenda every thirty (30) days for a status report until additional information has been provided to complete said application for, but not limited to, the following: all cases of delayed medical reports, or where subsequent amendment of the issues is necessary, or where re-examination of said applicant is determined through no fault of the applicant.

(d) *Ordinary disability retirement*. Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award to the contrary, medical examination of a member for ordinary disability shall be made upon application of the head of the department in which said member is employed, or upon the application of said member or of a person acting in his/her behalf, stating that said member is physically or mentally incapacitated for the performance of duty and that he ought to be retired, provided that the member has had ten (10) or more years of total service. A medical examination of the member shall be made by three (3) physicians with a physician certified in the field reasonably related to the pensioner's alleged injury engaged by the director of personnel for this purpose, and should such medical examination show that said member is physically or mentally incapacitated for the performance of duty and ought to be retired, the physicians shall so report and certify to the retirement board and the retirement board shall retire the member for ordinary disability forthwith.

(e) *Allowance upon ordinary disability retirement*. Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award to the contrary, upon retirement for ordinary disability a member shall receive a retirement allowance, which shall consist of:

(1) An annuity which shall be the actuarial equivalent of his/her accumulated contributions at the time of his/her retirement; and

(2) If the member is a class A employee, a pension which together with his/her normal annuity, exclusive of any excess annuity, shall be equal to nine-tenths (1/10) of one-fiftieth (1/50) of his/her final compensation multiplied by the number of years of the total service which would have been credited at minimum retirement age had he remained in service to such age; and in addition, an excess annuity which shall be the actuarial equivalent of his/her accumulated excess contributions at the time of his/her retirement; provided, however that no class A employee shall receive an ordinary disability retirement allowance, exclusive of any excess annuity, in excess of forty-five (45) percent of his/her final compensation.

(3) If the member is a class B employee, a pension which together with his/her normal annuity, exclusive of any excess annuity, shall be equal to nine-tenths (9/10) of one-fortieth (1/40) of his/her final compensation multiplied by the number of years of total service which would have been credited at minimum retirement age had he remained in service at such age; and, in addition, an excess annuity which shall be the actuarial equivalent of his/her accumulated excess contributions at the time of his/her retirement, provided, however, that no class B employee shall receive an ordinary disability retirement allowance, exclusive of any excess annuity, in excess of forty-five (45) percent of his/her final compensation.

(f) *Accidental disability retirement*. Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award to the contrary, medical examination of a member for accidental disability and investigation of all statements and certifications by said member or in his or her behalf in connection therewith shall be made upon the application of the head of the department in which such member is employed, or upon the application of the member, or of a person acting in his or her behalf, stating that such member is physically or mentally incapacitated for, the performance of the duties the member was performing at the time of the accident, as a natural and proximate result of an accident while in the performance of duty, and certifying the definite time, place and conditions of such duty performed by said member resulting in such alleged disability and that such alleged disability is not the result of willful negligence or misconduct on the part of said member and is not the result of age or length of service and that said member should, therefore, be retired. If a medical examination conducted by three (3) physicians certified in the field reasonably related to the member's alleged injury

engaged by the director of personnel and such investigation as the director of personnel may desire to make shall show that said member is physically or mentally incapacitated for the performance of service any as a natural and proximate result of an accident, while in the performance of duty, and that such disability is not the result of willful negligence or misconduct on the part of said member and is not the result of age or length of service, and that such member should be retired, and the physicians who conducted the examination shall so certify to the retirement board stating the time, place and conditions of such service performed by said member resulting in such disability, the retirement board shall retire the said member for accidental disability. The application to accomplish such retirement must be filed within eighteen (18) months of the date of the accident, unless a waiver is granted through a resolution approved by a majority of the city council. Notwithstanding any provision hereof, the director of personnel may use a physician who was engaged by the department to conduct an independent medical examination of the applicant provided that the physician is authorized to conduct independent medical examinations for injured on duty (IOD) for class B members and/or approved by the medical advisory board as an impartial medical examiner in the workers' compensation court for class A members.

(g) *Allowance on accidental disability retirement*. Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award to the contrary, upon retirement for accidental disability a member shall receive a retirement allowance, which shall consist of:

(1) An annuity which shall be the actuarial equivalent of his/her accumulated contributions at the time of his/her retirement, and

(2) A pension, in addition to the annuity, of sixty-six and two-thirds (66⅔) percent of his/her final compensation, or a pension equal to the amount of retirement allowance provided in subsection (b) of this section, whichever is greater.

(3) Any member who retires pursuant to section 17-189(f) accidental disability retirement, in light of said member's receipt of an unreduced pension in the amount of sixty-six and two-thirds (66⅔) percent of retirement pay, said member shall not be entitled to his/her accumulated pension contributions, with interest, in any form, including but not limited to a lump sum or an actuarially calculated annuity.

(4) Upon the death of a member within five (5) years after accidental disability retirement, provided that evidence shall be submitted to the retirement board proving that the death of such member was the natural and proximate result of an accident while in the performance of duty at some definite time and place, and that such death was not the result of willful negligence on

his/her part, and upon application by or on behalf of the dependents of such deceased member the retirement board shall grant a pension of one-half (½) the final compensation of such member:

a. To his/her widow/widower, to continue during his/her widowerhood/ widowhood; or

b. If there be no widow/widower, or if the widow/widower dies or remarries before any child dependent of such deceased member shall have attained the age of nineteen (19) years, then to his/her child or children under said age, divided in such manner as the retirement board in its discretion, shall determine, to continue as a joint and survivor pension of one-half (½) of his/her final compensation until every such child dies or attains said age; or

c. If there be no widow/widower or child under the age of nineteen (19) years surviving such deceased member, then to his/her dependent father or mother, as the deceased member shall have nominated by written designation, duly acknowledged and filed with the retirement board; or if there be no such nomination, then to his/her dependent father or to his/her dependent mother, as the retirement board in its discretion shall direct, to continue for life.

(h) *Re-examination of members retired on account of disability*. Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award to the contrary:

(1) Re-examination of members retired on account of disability. Once each year the director of personnel may require all pensioners to undergo a medical examination, such examination to be made at the place of residence of the pensioner or other place mutually agreed upon, by a physician or physicians engaged by the director of personnel. In accordance with this section, each pensioner shall annually provide certification from a physician of their disability. Should any such pensioner refuse to submit to such examination his or her pension shall be discontinued until his or her withdrawal of such refusal, and should his or her refusal continue for a year, all his or her rights in and to such pension shall be revoked by the retirement board. If the said examination indicates that the disability of the pensioner has been removed and said pensioner has attained the age of service retirement said pension will be converted to the normal retirement benefit as if he or she had not been disabled. If the examination indicates that the disability of the pensioner has been removed and said pensioner is under the age of service retirement, his or her name shall be placed on such appropriate lists of candidates as are prepared for appointment to a position in his department for which he is stated to be qualified in a salary grade comparable to that from which he or she was last retired. Upon reinstatement to active service at a salary grade

comparable to that from which he or she was last retired, he or she shall be reinstated as a member and participate in the benefits of the retirement system with credit for service rendered prior to disability retirement, and for the period during which he received the disability retirement allowance, provided that he or she did not refuse to accept such reinstatement when it was first offered to him or her; in the event of such refusal, the pension shall be discontinued and any rights to further benefits under the retirement system shall be based solely on his or her service rendered prior to his or her disability retirement.

(i) *Accidental death benefit*. Upon the accidental death of a member before retirement, provided that evidence shall be submitted to the retirement board providing that the death of such member was the natural and proximate result of an accident while in the performance of duty at some definite time and place and that such death was not the result of willful negligence on his part, his accumulated contributions shall be paid to his estate, or to such person having an insurable interest in his life as he shall have nominated by written designation, duly executed and filed with the retirement board; and upon application by or on behalf of the dependents of such deceased member the retirement board shall grant a pension of one-half (½) the final compensation of such member:

(1) To his/her widow/widower, to continue during his/her widower hood/ widowhood; or

(2) If there be no widow/widower, or if the widow/widower dies or remarries before any child of such deceased member shall have attained the age of nineteen (19) years, then to his child or children under said age, divided in such manner as the retirement board in its discretion, shall determine, to continue as a joint and survivor pension of one-half (½) of his final compensation until every such child dies or attains said age; or

(3) If there be no widow/widower or child under the age of nineteen (19) years surviving such deceased member, then to his dependent father or mother, as the deceased member shall have nominated by written designation, duly acknowledged and filed with the retirement board; or if there be no such nomination, then to his dependent father or to his dependent mother, as the retirement board in its discretion shall direct, to continue for life.

(j) *Deferred retirement benefit*. Any employee who has ten (10) or more years of total service may retire upon his written application to the retirement board setting forth at what time, not less than thirty (30) nor more than ninety (90) days subsequent to the execution and filing thereof, he desires to be retired, provided that the member, at the time so specified for his retirement, shall have fulfilled the above service requirement and notwithstanding that, during such period of notification, he may have separated from service.

(k) *Allowance upon deferred retirement*. Upon deferred retirement a member shall receive a deferred retirement allowance commencing at minimum retirement age calculated in the same manner as provided in subsection (2) of this section.

(l) *Restoration to service*. Should a beneficiary retired on a service retirement allowance or a deferred retirement benefit be restored to service the individual shall again become a member and any election of an optional benefit shall be null and void. If payment of his retirement allowance has commenced, such allowance shall cease. Upon subsequent retirement, if the individual has completed one (1) year of service following his restoration, the individual shall receive a retirement allowance based on the individual's total service before and after the individual's restoration to service; otherwise, the individual's retirement allowance shall be equal to the sum of the retirement allowance computed as of the date of the individual's previous retirement and the retirement allowance computed on the basis of the individual's service subsequent to restoration.

(m) *Withdrawal and ordinary death benefit*. Benefits upon withdrawal and ordinary death shall be payable as follows:

(1) A member who withdraws from service or ceases to be a member for any reason other than death or retirement shall be paid on demand the accumulated contributions standing to the credit of his individual account in the annuity savings fund which were credited prior to the effective date of City of Providence's assumption of the employee's contributions pursuant to section 17-185(1). A member retired on a deferred retirement benefit may elect, prior to the date upon which the first payment on account of his retirement allowance becomes normally due, to receive in lieu of his retirement allowance the amount of the accumulated contributions standing to the credit of his individual account in the annuity savings fund which were credited prior to the effective date of City of Providence's assumption of the employee's contributions pursuant to section 17-185(1). Payment of such amount shall constitute a full and complete discharge of any further claim by him or any beneficiary claiming through him for benefits under this article. In either instance, a member may withdraw the accumulated contributions standing to the credit of his individual account in the annuity fund which were credited on or following the effective date of City of Providence's assumption of the employee's contributions pursuant to section 17-185(1), but as to such funds, the employee will be liable for any taxable consequences including penalties for such a withdrawal.

(2) Should a member die before retirement or should a retired member die within thirty (30) days after the date upon which the first payment on account of his retirement allowance becomes normally due, his accumulated contributions less the amount of any retirement allowance payments he may

have received, shall be paid to his estate, or to such person as he shall have nominated by written designation, duly executed and filed with the retirement board.

(3) Should a member who has attained minimum retirement age and who dies before retirement without his having made an election under the provisions of section 17-190 of this article be survived by a spouse, such spouse shall be entitled, in lieu of return of the member's accumulated contributions as provided under paragraph (2) of this subsection, to a benefit determined in the same manner as it would have been determined had the member retired from service on the date of his death and made an effective election of a reduced retirement allowance in accordance with option 2 under section 17-190 of this article and nominated his spouse as his designated beneficiary.

(4) Upon the death of a retired member who has not made an optional selection as provided in section 17-190 of this article or upon the death of the survivor of a retired member and the beneficiary under an optional selection as provided in section 17-190 of this article, if such optional selection has been made and become effective, a payment shall be made to the estate of the retired member, or to the estate of the survivor as the case may be, or to such person as the retired member shall have nominated by written designation duly executed and filed with the retirement board in an amount equal to the excess, if any, of the retired member's normal accumulated contributions at retirement over the sum of the payment made on account of his pension and normal annuity, plus the excess, if any, of the retired member's excess accumulated contributions at retirement over the payments made on account of his excess annuity.

(5) Upon the death of any class B member who at the time of his death was eligible to retire from service, if no accidental death benefit is payable and if an effective election of an optional benefit has not been made under section 17-190, a retirement allowance equal to sixty-seven and one-half (67½) percent of the retirement allowance, exclusive of any excess annuity, that would have been paid to such member had he retired shall be paid to his surviving spouse for her lifetime until she remarries, or if there be no surviving spouse or the surviving spouse remarries, then to his dependent children until they attain eighteen (18) years of age. The benefit provided under this this subsection (m)(3) shall be in lieu of any benefit under this subsection (m)(3) and shall be payable only if it exceeds the benefit otherwise provided under this subsection (m)(3).

(6) Upon the death of any class B member who has retired from service, if no pension is payable pursuant to this subsection 17-189(g)(3) of this section, a pension equal to sixty-seven and one-half (67½) percent of the retirement allowance, exclusive of any excess annuity, paid to such retired member shall

be paid to his surviving spouse, for her lifetime until she remarries, or if there be no surviving spouse or the surviving spouse remarries, then to his dependent children until they attain the age of eighteen (18).

(n) *Eligibility for an allowance*. The eligibility for a retirement allowance and the amount of such allowance shall be determined in accordance with the provisions of the ordinance to provide for the retirement of employees of the city as in effect on the last day of a member's employment.

(o) *Additional benefits for retired class A employees and their beneficiaries*. Effective January 1, 1993, the benefits for any retired class A employee who retired prior to January 1, 1993 or his beneficiary shall be adjusted to provide a minimum monthly retirement allowance of six hundred eighteen dollars ($618.00); provided, however, if the member elected to receive a reduced retirement allowance in accordance with the available options, said six hundred eighteen dollar ($618.00) minimum monthly allowance shall be reduced to reflect the option elected. In the event the retired class A employee has completed less than twenty-five (25) years of service, he or his beneficiary shall be entitled to receive one-twenty-fifth (1/25) of the minimum monthly retirement allowance for each year of his service.

(p) *Additional benefits for retired class B employees and their beneficiaries*. Effective January 1, 1993, the benefit for any retired class B employee who retired prior to January 1, 1993 or his beneficiary shall be adjusted to provide a minimum monthly retirement allowance of six hundred thirty dollars ($630.00); provided, however, if the member elected to receive a reduced retirement allowance in accordance with the available options, said six hundred-thirty dollar ($630.00) minimum monthly allowance shall be reduced to reflect the option elected. In the event the retired class B employee has completed less than twenty-five (25) years of service, he or his beneficiary shall be entitled to receive one-twenty-fifth (1/25) of the minimum monthly retirement allowance for each year of his service.
(Ord. No. 2015-50, § 1, 9-17-15; Ord. No. 2018-51, § 1, 10-25-18; Ord. No. 2019-56, § 1, 12-27-19)

Sec. 17-189.1. Revocation or reduction of retirement benefits of employees for dishonorable service.

(a) Payment of retirement allowance or annuity or other benefit or payments as provided in chapter 17 shall be for "honorable service" only.

(b) Definitions. For purposes of this section:

(1) *Board* shall mean the retirement board of the employees' retirement system of the City of Providence;

(2) *Crime related to his or her public employment* shall constitute "dishonorable service," and shall include any of the following conduct, whether or not the conduct results in a criminal conviction:

a. Committing or aiding or abetting the commission of embezzlement of public funds;

b. Committing or aiding or abetting the commission of any felonious theft by a public employee from his or her employer;

c. Committing or aiding or abetting the commission of bribery in connection with, or involving, a public employee;

d. Committing or aiding or abetting the commission of any felony by a public employee who willfully, and with the intent to defraud, realizes or obtains, or attempts to realize or obtain, a profit, gain, or advantage for himself or herself or for some other person through the use or attempted use of power, rights, privileges, duties, or position of his or her public office or employment; and

e. Any other misconduct or crime which the board, by a majority vote, determines is "dishonorable service," after weighing and balancing the following factors:

i. The employee's length of service;

ii. The basis for retirement i.e., age service, disability, etc.;

iii. The extent to which the employee's pension has vested;

iv. The duties of the particular employment;

v. The employee's public employment history and record;

vi. The employee's other public employment and service;

vii. The nature of the misconduct or crime, whether it involved an isolated act or multiple acts, and its gravity or substantiality;

viii. The relationship between the misconduct or crime and the employee's public duties;

ix. The quality of moral turpitude or the degree of guilt and culpability, including the employee's motives and reasons, personal gain, and the like;

x. The availability and adequacy of penal sanctions; and

xi. Other personal circumstances relating to the employee bearing upon the justness of forfeiture.

(3) *Employee* shall mean any current or former city elected official, or any appointed official or employee of the city, or of a city board, commission or agency, who is otherwise entitled to receive a pension.

(4) *Pension* shall include an employee's retirement allowance or annuity or other benefit or payment as provided in chapter 17.

(c) Mandatory board action. Notwithstanding any other provision of law, a pension shall be revoked or reduced by the board under this section if an employee is convicted of, or pleads guilty or nolo contendere, to any crime related to his or her public employment. Any such conviction or plea shall be deemed to be "dishonorable

service" and a breach of the employee's contract with his or her employer; however, for purposes of this section, "pleads guilty or nolo contendere " shall not include any plea of guilty or nolo contendere which does not result in a conviction by virtue of R.I.G.L. 1956, § 12-10-12 or § 12-18-3, as amended.

(d) Permissive board action. Notwithstanding any other provision of law, a pension may be revoked or reduced by the board under this section if a majority of the board determines by a preponderance of the evidence that an employee has engaged in "dishonorable service" after weighing and balancing the factors set forth in section (b)(2) e.

(e) Due process. If a majority of the members of the board vote to consider any action to revoke or reduce any pension, the board, before taking any such action, shall:

(1) Conduct a meeting with the involved employees and inform the employee of the alleged conduct forming the basis of the contemplated board action; and thereafter,

(2) Provide the employee, and his or her spouse or domestic partner, dependents and/or designated beneficiaries, with ample notice of the relevant alleged conduct and an opportunity to be heard.

(f) Balancing test—Calculations. This section is intended to be equitable, rather than penal, in nature. Thus, when deciding to revoke or reduce a pension, the board shall weigh and balance the factors set forth in section (b)(2) e. In addition:

(1) The board need not compare an employee's periods of dishonorable service with periods of allegedly honorable service, other than as may be required to determine the legitimate interest of an innocent spouse, domestic partner, dependent, and/or designated beneficiary, and the board may revoke or reduce a pension even if the evidence of "dishonorable service" is limited to an isolated act by an employee who had separate periods of city employment;

(2) The board shall decide whether the revocation or reduction shall take effect (and be calculated) from the date: (A) of the dishonorable service; or (B) the date notice was provided under section (e)(2); or (C) the date of the board's decision under section (g); and

(3) If the board determines to revoke or reduce a pension, the employee's contribution to the pension system shall be refunded, without interest; however, if, as of the date of the board decision, the employee: (A) has not made full restitution for any loss proximately caused by his or her dishonorable service (including, but not limited, to, the fees and costs incurred by the board), and/or (B) has already received pension payments, the amount of the unreimbursed loss and/or the pension payments received shall be deducted from any such refund.

(g) Appeal and standard of review.

(1) If the board determines by a majority vote that revocation or reduction of a pension is warranted, it shall make specific factual findings in support thereof and shall render a written decision, which shall be appealable to the Superior Court as long as such an appeal is filed within twenty (20) calendar days from the date the board decision was rendered. Such appeals shall be decided by the superior court sitting without a jury, and there shall be no automatic stay pending appeal.

(2) When reviewing a board decision, the superior court shall not substitute its judgment for that of the board as to the weight of evidence on questions of fact. The court may affirm the decision of the board, or alternatively, may remand the case for further proceedings or reverse or modify the decision, if the substantial rights of the employee have been prejudiced because of findings, inferences, conclusions, or decisions of the board which are:

a. In violation of constitutional, statutory or ordinance provisions;

b. In excess of the authority granted to the board by ordinance;

c. Made upon unlawful procedure;

d. Affected by other error of law;

e. Clearly erroneous in view of the reliable, probative and substantial evidence of the whole record; or

f. Arbitrary or capricious or characterized by abuse of discretion or clearly unwarranted exercise of discretion.

(h) Separability. The unconstitutionality or invalidity of any section or part of this ordinance shall not invalidate or impair the validity, force or effect of any other section or part thereof, which shall remain in full force and effect.

(i) Effective date. This amended ordinance shall apply to all applications for pension benefits made on or after January 1, 2011.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-190. Options.

Until the first payment on account of a retirement allowance becomes normally due, any member may elect to convert the retirement allowance, otherwise payable on his account after retirement, into a retirement allowance of equivalent actuarial value of one (1) of the optional forms named below. However, an election of an optional benefit shall not be effective until sixty (60) days after the date of the filing of the election thereof with the retirement board, or until thirty (30) days after the date upon which the first payment on account of his retirement allowance becomes normally due, whichever is the later, and should the member die before such election

becomes effective, the benefits payable on his account shall be the same as though his election had not been filed and he had not been retired. Such optional retirement allowances shall be payable throughout life with the provisions that:

(1) *Option 1*. If he dies before he has received in payments the present value of his retirement allowance as it was at the time of his retirement, the balance shall be paid to his legal representatives, or such person having an insurable interest in his life, as he, his spouse, or his guardian so electing shall nominate by written designation duly acknowledged and filed with the retirement board.

(2) *Option 2*. Upon his death, his lesser retirement allowance shall be continued throughout the life of and paid to such person having an insurable interest in his life, as he, his spouse, or his guardian so electing shall nominate by written designation duly acknowledged and filed with the retirement board at the time of his retirement.

(3) *Option 3*. Upon his death, one-half (½) of his lesser retirement allowance shall be continued throughout the life of and paid to such person having an insurable interest in his life, as he, his spouse, or his guardian so electing shall nominate by written designation duly acknowledged and filed with the retirement board at the time of his retirement.

(4) *Option 4*. Some other benefit or benefits shall be paid to either the beneficiary or to such person or persons as he, his spouse, or his guardian, so electing, shall nominate, provided such other benefit or benefits together with such lesser retirement allowance, shall be certified by the actuary of the retirement system to be of equivalent actuarial value to his benefit and shall be approved by the retirement board.

Notwithstanding the foregoing provisions of this section, any member who has attained minimum retirement age may elect, in accordance with option 2, 3, or 4 above, a reduced retirement allowance with provision for benefits to his spouse or to a person having an insurable interest in his life other than his spouse. Such benefits shall be determined as of the date of his death or retirement, if prior thereto, in accordance with the provisions of the option elected and shall be in lieu of the return of the member's accumulated contributions as provided under subsection (m)(2) of section 17-189 of this article. In the event of death prior to retirement, the benefit payable to the designated beneficiary shall be determined in the same manner as it would have been determined had the member retired from service on the date of his death. However, such election of an optional benefit shall not be effective until sixty (60) days after the date of the filing of the election thereof with the retirement board. After such election shall have become effective it shall be irrevocable except in the event that the designated beneficiary predeceases the member prior to his retirement.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-191. Pensions offset by compensation benefits.

Any amounts paid or payable under the provisions of any worker's compensation law, or as the result of any action for damages for personal injuries against the city, on account of death or disability of a member, shall be offset against and payable in lieu of any benefits payable out of funds provided by the city under the provisions of this article on account of the death or disability of the member. If the value of the total commuted benefits under any such worker's compensation law or action is less than the present value on an actuarial basis of the benefits otherwise payable under this article, then the difference shall be payable under the provisions of this article. (Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-192. Elective officers.

(a) Subject to the limitations of section 9, persons who have served as mayor, or as a city council member, for at least eight (8) full legislative years since hereinafter collectively referred to as elective officers, and who have reached the age of fifty-two (52), or have served twenty (20) consecutive years as an elective officer of the city prior to reaching such age, or have become totally and permanently disabled prior to reaching such age, shall be entitled to a retirement allowance as provided in this section.

(b) Said retirement allowance shall be computed at the rate of three hundred fifty dollars ($350.00) per annum for each year, or fraction thereof, as an elective officer of the city, and since any withdrawal of the elective officer's contributions as provided in subsection (f) of this section; provided, however, that the total number of full years of service for which an allowance shall be paid shall not exceed twenty (20) years. Said retirement allowance shall include credit for each year or portion of any year served by said elective officer on active duty with the United States Armed Forces which credit shall be computed at the rate of three hundred fifty dollars ($350.00) per annum for each full year or portion thereof of said military service.

(c) Said retirement allowance shall not be paid to any elective officer otherwise entitled thereto while the elective officer is receiving compensation from the city or any of its agencies, commissions or boards, except to the extent that said retirement allowance may exceed such compensation.

(d) Said retirement allowance shall not be paid to any elective officer who has been removed from office pursuant to the provisions of the Providence Home Rule Charter of 1980 or who, while receiving said retirement allowance is finally convicted of a felony or other crime involving moral turpitude.

(e) Eligibility for and the continuance of any benefit payable under this section on account of total and permanent disability shall be subject to medical examinations in accordance with the provisions of subsections (c), (e) and (g) of section 17-189 of this article.

(f) Each elective officer of the city shall contribute three hundred fifty dollars ($350.00) per annum of the elective officer's compensation toward the cost of the benefits provided hereunder. Such contributions with accumulated interest may be withdrawn at any time prior to the commencement of payments hereunder, provided that upon such withdrawal all rights accrued under this section with respect to any service rendered prior to the date of such withdrawal shall terminate. Should a former elective officer elect not to withdraw such contributions with interest as above provided, no interest shall be credited to the elective officer's contributions after four (4) years shall have elapsed since the elective officer ceased to be an elective officer. Required contributions hereunder from elective officers shall cease after twenty (20) years of service.

(g) Contributions under this section of:

(1) An elective officer who dies before retirement allowance payments commence as provided hereunder, shall be repaid with accumulated interest to the elective officer's estate or designated beneficiary. Upon the death after retirement of an elective officer who has not made an optional selection as provided in subsection (i) of this section or upon the death of the survivor of a retired elective officer and the beneficiary under an optional selection as provided in said subsection (i) of this section, if such optional selection has been made and become effective, a payment shall be made to the estate of the retired elective officer, or to the estate of the survivor as the case may be, or to such person as the retired elective officer shall have nominated by written designation duly executed and filed with the retirement board in an amount equal to the excess, if any, of the retired elective officer's contributions as an elective officer with interest accumulated to the date of commencement of the elective officer's retirement allowance over the retirement allowance payments made in accordance with the provisions of this section.

(2) In the event a person who was an elective officer shall be deceased and who:

a. Served the required number of years necessary for benefits as an elective officer under this article but had not yet attained the age of fifty-two (52) years; or

b. Was collecting benefits under the provisions of this act; then and in such events, upon the date of the elective officer's death, a benefit of one-half (½) of that amount to which said person should have been entitled under the provisions hereof had the elective officer survived or the elective officer was collecting, will be paid to the elective officer's surviving widow/widower so long as said surviving widow/widower shall remain sole and unmarried and said benefits shall cease immediately upon the death or remarriage of surviving widow/widower.

(h) An elective officer may make an optional selection under the same terms and conditions as provided in section 17-190 of this article in respect to the retirement allowance otherwise payable to him in accordance with the provisions of this section.

(i) Elective officers shall no longer be entitled to the retirement allowance provided for in this section, except as provided for as follows:

(1) Elective officers holding office prior to January 2015 shall be eligible to receive said allowance, in accordance with subsection (b) of this section, and shall be permitted to continue making contributions as provided for in subsection (f) of this section.

(2) Retired elective officers whose term ended January 2015 or earlier, and who have served at least eight (8) full legislative years as of January 2015, shall be entitled to receive said retirement allowance, as provided for in this section.

(j) The provisions of this section are in addition to and supplemental to the benefits provided under any other sections of this article and nothing contained in this section shall adversely affect any present or future rights arising out of membership in any city or state retirement system including that provided in this article. Any conflict or inconsistency between this section and any other sections of this article shall be resolved in favor of accomplishing the intention of this section and said conflict or inconsistent provisions shall be waived or superseded insofar as the other sections of this article are concerned.

(k) The city council of the City of Providence shall, from time to time, upon the advice of the finance director, appropriate such sums as may be necessary to carry out the provisions of this section. Any such sums thus appropriated shall be separately administered for the payment of the retirement allowances provided in this section.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-193. Protection against fraud.

Every person who knowingly or willfully makes or presents or in any way procures the making or presentation of any false or fraudulent affidavit or affirmation concerning any claim for a service pension, an ordinary disability pension or an accidental disability pension or payment thereof, shall in every case forfeit a sum not exceeding two thousand five hundred dollars ($2,500.00), to be sued and recovered by and in the name of the city on behalf of the employee retirement system, and when recovered, paid over to and thereupon become a part of the funds of the retirement system.
(Ord. No. 2015-50, § 1, 9-17-2015)

Sec. 17-194. Cost of living adjustment.

(a) Any retired class B employee and any beneficiary of such employee who receives any service or any ordinary disability retirement allowance or any accidental disability retirement allowance pursuant to the provisions of this article shall, on the first day of January next following the third anniversary date of his/her retirement, receive a cost-of-living adjustment, in addition to the retirement allowance, in an amount equal to three (3) percent of his/her monthly retirement allowance, not compounded, on up to the first one thousand dollars ($1,000.00) of said retirement allowance. For the purpose of said computation, credit shall be given for a full calendar year, regardless of the effective date of said retirement allowance. In each succeeding year thereafter, on the first day of January, the monthly retirement allowance shall be increased by three (3) percent, not compounded, on up to the first one thousand dollars ($1,000.00) of the said retirement allowance, to be continued during the lifetime of said retired employee or beneficiary.

(b) Any cost-of-living adjustment granted to a retired employee or any beneficiary of said employee under this section shall be considered a voluntary gratuity. The payment of such voluntary gratuity may be reduced or suspended by ordinance at any time.

(c) Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award, all retired employees and any beneficiary of such employee who receives any service or any ordinary disability retirement allowance or any accidental disability retirement allowance pursuant to the provisions of this article, except for retirement allowances provided for in sections 17-189(g)(4) and 17-189(i), shall have their cost-of-living adjustment suspended as of December 31 following the plan year in which the actuary's annual valuation determines the retirement system to be in critical status. Suspension of the annual cost of living adjustment shall continue until such time as the actuary determines in the annual actuarial valuation study that the plan's funded percentage is greater than or equal to seventy (70) percent. Within thirty (30) days of the actuary reporting in the annual actuarial valuation study that the plan's funded percentage is greater than or equal to seventy (70) percent, written notice shall be provided to all members that the cost-of-living adjustment shall be restored on the following January 1.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-195. Limits on post-retirement benefits.

Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award:

(1) As a condition of receiving or continuing to receive retirement payments and health benefits, all retired individuals and spouses of retired individuals

shall enroll in Medicare immediately upon eligibility. Any health benefits provided by the city to Medicare-eligible individuals shall be secondary to the Medicare benefits.

(2) With the exception of Medicare supplement or gap coverage, the city shall not provide Medicare-eligible retirees or Medicare-eligible spouses of retirees with health care benefits. The cost of said Medicare supplement or gap coverage shall be paid by the city and/or retiree as otherwise provided by ordinance or contract.

(3) Nothing contained in this section shall be construed to confer healthcare benefits on a retiree or retiree's spouse, which are not otherwise provided by ordinance or contract.

(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-196. Pensions not to exceed one hundred fifty percent of state median household income.

Notwithstanding any other ordinance, prior collective bargaining agreement, or prior interest arbitration award:

(1) For all employees retiring on or after June 30, 2012, there shall be no pensions awarded in an amount greater than one hundred and fifty (150) percent of the state median household income as determined by the American Community Survey, administered annually by the U.S. Census Bureau. The retirement board shall post annually on its website the amount equaling one hundred and fifty (150) percent of the state median household income.

(2) All retired employees and any beneficiary of such employee who receives any service or any ordinary disability retirement allowance or any accidental disability retirement allowance pursuant to the provisions of this article, except for retirement allowances provided for in sections 17-189(g)(4) and 17-189(i), shall have their cost-of-living adjustment suspended as of December 31 if their cost-of-living adjustment would increase their pension compensation to be greater than one hundred fifty (150) percent of the state median household income as determined by the retirement board based on data from the American Community Survey, administered annually by the U.S. Census Bureau.

(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-197. Conflicts with other laws.

Notwithstanding any general or special law to the contrary, unless otherwise specified, the provisions of this chapter shall supersede any conflicting provisions in ordinance, prior collective bargaining agreement or prior interest arbitration award.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-198. Severability—Indispensable party.

The holding of any section or sections or parts hereof to be void, ineffective, or unconstitutional for any cause shall not be deemed to affect any other section or part hereof. The city shall be an indispensable party in any action contesting the validity of this chapter.
(Ord. No. 2015-50, § 1, 9-17-15)

Sec. 17-199. Effective date.

The amendments to this chapter shall take effect upon passage.
(Ord. No. 2015-50, § 1, 9-17-15)

Chapter 18

PARKS AND RECREATION*

Article I. In General

Sec. 18-1. Firewood, timber, other material, animals, vehicles in Dexter training ground.
Sec. 18-2. Hours Roger Williams Park to be open.
Sec. 18-3. Operating canoes in Roger Williams Park.
Sec. 18-3.1. Fee for use of tennis courts in Roger Williams Park.
Sec. 18-4. Riding and driving in parks.
Sec. 18-5. Riding and driving on turf in parks.
Sec. 18-6. Driving teams, swill carts, business vehicles into parks.
Sec. 18-7. Addressing political or religious meetings.
Sec. 18-8. Domestic animals in parks.
Sec. 18-9. Bathing and fishing, disturbing fish, waterfowl and animals.
Sec. 18-10. Affixing notices, other papers in parks.
Sec. 18-11. Distributing circulars in parks.
Sec. 18-12. Selling goods, etc., in parks.
Sec. 18-13. Duty to keep off grass.
Sec. 18-14. Lying on or overturning park seat.
Sec. 18-15. Injuring, tampering with property in parks.

***Cross references—**Control of Hopkins Burial Ground by board of park commissioners and superintendent, § 6-5; duties of board of park commissioners, etc., § 6-17 et seq.; operation of snowmobiles, § 15-101 et seq.; swimming or bathing restricted, §§ 16-16, 16-17.

State law references—Council permitted to pass ordinances regulating care, management and use of parks and public squares, § 32-3-1, Gen. Laws 1956; jurisdiction of state chief of division of forests, parks and parkways in cities, §§ 32-2-1, 32-2-2, 32-2-4, 32-2-5, Gen. Laws 1956; special act defining power and duties of board of recreation, P. L. 1913, Ch. 980, which powers are conferred on park commissioners by charter, § 5.52; special act authorizing abandonment of portion of Blackstone Park, P. L. 1945, Ch. 1630; special act authorizing city to convey portion of Valley Street Playground, P. L. 1945, Ch. 1616; special act as to authority to convey Davis Park to United States for hospital for disabled veterans, P. L. 1945, Ch. 1548; special act authorizing Roger Williams Memorial Association to convey land to city as parkway approach to Roger Williams monument, P. L. 1941, Ch. 1034; special acts authorizing abandonment of land bound by Woonasquatucket River, Railroad Street and Gaspee Street as public park, P. L. 1917, Ch. 1561, and P. L. 1919, Ch. 1806; special act creating Metropolitan Marine Park, P. L. 1916, Ch. 1372; special act authorizing admission fees to public golf courses and contracts for tournaments, P. L. 1941, Ch. 1092.

Sec. 18-16. Littering parks, etc.
Sec. 18-17. Lighting, building or making fires in parks.
Sec. 18-18. Application of provisions to portions of Pleasant Valley Parkway.
Sec. 18-19. Reward for information as to persons injuring, destroying wildlife.
Sec. 18-20. Reward for information as to persons damaging property.
Sec. 18-21. Sale, use, possession of alcoholic beverages in parks, etc.
Sec. 18-22. Sale or use of tobacco and cannabis products in parks.
Secs. 18-23—18-28. Reserved.

Article II. Board of Park Commissioners

Sec. 18-29. Powers and duties.
Sec. 18-29.1. Authority to close parks to public during certain hours.
Sec. 18-30. Authority to use of school property and other property.
Sec. 18-31. Authority over Dexter training ground.
Sec. 18-32. Management and regulation of public playgrounds.
Sec. 18-33. Rules and regulations as to playgrounds.
Sec. 18-34. Employment of superintendents, supervisors, other personnel for playgrounds.
Sec. 18-35. Duty not to violate terms of gift or trust as to playgrounds.
Sec. 18-36. Authority to direct expenditures, approve and certify accounts.
Sec. 18-37. Duty not to incur indebtedness in excess of appropriations.
Sec. 18-38. Office and office hours.
Sec. 18-39. Records and reports required.
Secs. 18-40—18-49. Reserved.

Article III. Department of Recreation

Sec. 18-50. Establishment of department of recreation.
Sec. 18-51. Appointment, term of director of recreation.
Sec. 18-52. Qualifications of director of recreation.
Sec. 18-53. Salary of director of recreation.
Sec. 18-54. Deputies, assistants and employees of department of recreation.
Sec. 18-55. General duties of director of recreation.
Sec. 18-56. Duties of director of recreation as to playgrounds, sports, etc.
Sec. 18-57. Authority of director of recreation to use school property.
Sec. 18-58. Authority of director of recreation to use public, private property.
Sec. 18-59. Effect of provisions on board of park commissioners, other boards.
Sec. 18-60. Appointment of advisory committee to director of recreation.
Sec. 18-61. Expiration of terms of office, vacancies in advisory committee.
Sec. 18-62. Organization of advisory committee.
Sec. 18-63. Compensation of members of advisory committee.
Sec. 18-64. Advisory committee's function.

ARTICLE I. IN GENERAL

Sec. 18-1. Firewood, timber, other material, animals, vehicles in Dexter training ground.

No person shall, except for training purposes, place, put or deposit, or suffer to be placed, put or deposited, upon the Dexter training ground, or any sidewalk or street adjoining the same, any firewood, timber, stone, building or other materials, or cross the same, except that portion thereof used for streets, with any horses, cattle, swine, carriages, carts or other vehicles.
(Ord. 1914, ch. 17, § 2; Rev. Ords. 1946, ch. 24, § 12)

Sec. 18-2. Hours Roger Williams Park to be open.

Roger Williams Park shall be opened to the public from 7:00 a.m. to 9:00 p.m.

No person shall enter or be within limits of said park except by the regular hours and vehicular traffic traveling through said park without written permission from the board of park commissioners or the superintendent of parks.
(Ord. 1914, ch. 40, § 6; Rev. Ords. 1946, ch. 24, § 13; Ord. 1970, ch. 71-44, § 1, 7-6-71)

Sec. 18-3. Operating canoes in Roger Williams Park.

(a) *Registration required.* Every person owning or having the control of a canoe shall before using the same upon any of the lakes in Roger Williams Park file in the office of the superintendent of parks on a blank to be furnished by the board of park commissioners a statement of his name, residence and post office address. The said board upon receipt of a fee of one dollar ($1.00) shall then register each such canoe, assigning to it a distinguishing mark or number, and shall thereupon issue to the owner or person having control thereof a proper certificate of registration and two (2) number plates.

(b) *Duration of registration.* All certificates herein provided for shall expire by limitation on the thirty-first day of December of the year in which they are issued, said board of park commissioners reserving the right to revoke in its discretion any certificate of registration so issued.

(c) *Display of registration numbers.* Every canoe shall at all times, while being used upon the said lakes, have displayed in a conspicuous place and manner on each side of the bow the number plates provided by said board of park commissioners entirely unobscured and securely fastened, with the registry number assigned to said canoe thereon.

(d) *Compliance with rules.* The occupants of such canoe shall comply with all park rules regulating the use of canoes.

(e) *Violations.* Every person placing or using a canoe upon said lakes without such certificate of registration or failing to properly display the registration number as required shall be deemed guilty of an offense, punishable as provided in section 1-10 of this Code.
(Ord. 1915, ch. 100, § 2; Rev. Ords. 1946, ch. 24, § 21)

Sec. 18-3.1. Fee for use of tennis courts in Roger Williams Park.

The director of recreation of the City of Providence is hereby authorized to impose an hourly rate not to exceed sixty cents ($0.60) per hour for the use of tennis facilities located in the Roger Williams Park.
(Ord. 1979, ch. 79-25, § 1, 5-22-79)

Editor's note—Ord. 1979, ch. 79-25, § 1, approved May 22, 1979, did not expressly amend the Code; thus, codification as § 18-3.1 has been at the editor's discretion.

Sec. 18-4. Riding and driving in parks.

No person shall ride or drive within any park at a rate of speed exceeding fifteen (15) miles per hour. No person shall ride or drive any animal, bicycle or other vehicle except upon the driveways, nor coast with a bicycle or other vehicle down any hill, nor ride or drive any animal, bicycle or vehicle upon other than the right-hand side of the driveways, except to cross such driveways or to turn out for some obstruction, or for some animal, bicycle or other vehicle proceeding in the same direction.
(Ord. 1914, ch. 40, § 10; Rev. Ords. 1946, ch. 24, § 16)

State law reference—Regulation of speed, etc., in parks, §§ 31-14-5—31-14-8, Gen. Laws 1956.

Sec. 18-5. Riding and driving on turf in parks.

No person shall ride or drive any horses, teams, automobiles or vehicles of any kind over or upon any turfed portion of any park, or land owned or controlled by the City of Providence, and no person shall ride or drive a snowmobile over or upon any such areas unless permission for same is first obtained in writing from the appropriate municipal authority having jurisdiction thereover.
(Ord. 1916, ch. 129, § 1; Rev. Ords. 1946, ch. 24, § 17; Ord. 1972, ch. 72-11, § 1, 2-7-72)

Sec. 18-6. Driving teams, swill carts, business vehicles into parks.

No person shall drive any heavy team, nor any swill or residuum cart, nor any team, carriage or other vehicle for the purpose of business, into any park, without permission from the board of park commissioners or the superintendent of parks.
(Ord. 1914, ch. 40, § 8; Rev. Ords. 1946, ch. 24, § 15)

Sec. 18-7. Addressing political or religious meetings.

No person shall address any political or religious meeting in any public park; but this section shall not be construed to prohibit any political or religious club or society from visiting any public park in a body, provided that no public address shall be made under the auspices of such club or society in such park.
(Ord. 1914, ch. 40, § 11; Rev. Ords. 1946, ch. 24, § 18)

Sec. 18-8. Domestic animals in parks.

No person, being the owner or having the charge or custody of any cat, fowl, goat, swine or neat cattle, shall allow such cat, fowl, goat, swine or neat cattle to enter any public park or to remain therein. Dog owners who have obtained a permit pursuant to section 4-20 may walk their dogs in city parks designated for such purposes by the board of parks commissioners.
(Ord. 1914, ch. 40, § 12; Rev. Ords. 1946, ch. 24, § 19; Ord. 2012, ch. 2012-41, § 2, 6-21-12)

Cross reference—Animals and fowl generally, § 4-1 et seq.

Sec. 18-9. Bathing and fishing, disturbing fish, waterfowl and animals.

No person shall bathe or fish in, nor go into, nor send any animal into, any of the waters of any park, nor disturb any of the fish, birds, waterfowl or animals in any park, nor throw or place any article or thing in said waters; provided however, that fishing in any such waters from boats owned by the city may be allowed by the board of park commissioners at such time and under such regulations and upon payment of such fees as said commissioners may from time to time prescribe and determine.
(Ord. 1925, ch. 475, § 1; Rev. Ords. 1946, ch. 24, § 20)

Sec. 18-10. Affixing notices, other papers in parks.

No person shall post or otherwise affix any bill, notice or other paper upon any structure or thing within any park, nor upon any of the gates or enclosures thereof.
(Ord. 1914, ch. 40, § 14; Rev. Ords. 1946, ch. 24, § 22)

Cross reference—Advertising, § 3-1 et seq.

Sec. 18-11. Distributing circulars in parks.

No person shall give away or distribute any circulars in any park, except as may be authorized by the superintendent of parks or the board of park commissioners.
(Ord. 1914, ch. 40, § 14; Rev. Ords. 1946, ch. 24, § 22)

Sec. 18-12. Selling goods, etc., in parks.

No person shall sell or expose for sale any goods, wares or merchandise in any park, except as may be authorized by the superintendent of parks or the board of park commissioners.
(Ord. 1914, ch. 40, § 14; Rev. Ords. 1946, ch. 24, § 22)

Sec. 18-13. Duty to keep off grass.

No person shall stand, lie, sit or walk on any grass growing upon any public land set apart and designated as and for public parks.
(Ord. 1914, ch. 40, § 15; Rev. Ords. 1946, ch. 24, § 23)

Sec. 18-14. Lying on or overturning park seat.

No person shall sleep or lie upon or overturn any seat in any park.
(Ord. 1914, ch. 40, § 15; Rev. Ords. 1946, ch. 24, § 23)

Cross reference—Malicious injury, § 16-4 et seq.

Sec. 18-15. Injuring, tampering with property in parks.

No person shall take, pluck, injure, destroy, cut, mark or deface any flower, root, plant, shrub, tree, building, fence, monument or other property in any park.
(Ord. 1914, ch. 40, § 16; Rev. Ords. 1946, ch. 24, § 24)

Cross reference—Malicious injury, § 16-4 et seq.

Sec. 18-16. Littering parks, etc.

No person shall cast litter in and upon any portion of any park, playground or recreational area in the City of Providence.
(Ord. 1914, ch. 40, § 16; Rev. Ords. 1964, ch. 24, § 24; Ord. 1971, ch. 71-57, § 1, 10-26-71)

Editor's note—Prior to amendment by Ord. 1971, ch. 71-57, § 1, § 18-16 prohibited the throwing of stones or missiles in or into parks.

Cross reference—Malicious injury, § 16-4 et seq.

Sec. 18-17. Lighting, building or making fires in parks.

No person, except one in the employ of the board of park commissioners or superintendent of parks, shall light, build or make any fire in any park.
(Ord. 1914, ch. 40, § 17; Rev. Ords. 1946, ch. 24, § 25)

Sec. 18-18. Application of provisions to portions of Pleasant Valley Parkway.

Sections 18-3 to 18-17 of this chapter shall apply also to that portion of the "Pleasant Valley Parkway," between Oakland Avenue and Academy Avenue, and the lands and roadways included therein acquired for public parks and parkway purposes.
(Ord. 1914, ch. 40, § 19; Rev. Ords. 1946, ch. 24, § 26)

State law reference—Special act authorizing abandonment of portions of Pleasant Valley Parkway, P. L. 1942, Chs. 1178, 1179.

Sec. 18-19. Reward for information as to persons injuring, destroying wildlife.

(a) The mayor of the City of Providence is hereby authorized to offer a suitable reward not to exceed the sum of two hundred fifty dollars ($250.00) in any one (1) case, for information leading to the detection, apprehension, and conviction of any person or persons who shall willfully and maliciously or mischievously injure or destroy any of the fish, birds, waterfowl, animals or reptiles in any of the parks of the City of Providence.

(b) Said reward shall be paid by the city treasurer upon the order of the city controller which order shall first be approved by the mayor and the city council.
(Ord. 1967, ch. 1839, § 1, 3-2-67)

Editor's note—Ch. 1839 of the 1967 ordinances did not expressly amend this Code or the ordinances from which this Code is derived, hence codification of §§ 1 and 2 as §§ 18-19 and 18-20 was at the discretion of the editors.

Cross reference—Rewards for information as to persons maliciously injuring property, § 16-4.

Sec. 18-20. Reward for information as to persons damaging property.

The mayor of the City of Providence is hereby authorized to offer a suitable reward not to exceed the sum of two hundred dollars ($200.00) in any one (1) case, for information leading to the detection, apprehension, and conviction of any person or persons who shall willfully and maliciously or mischievously damage or cause to be damaged any property in any of the parks of the City of Providence.

Said reward shall be paid by the city treasurer upon the order of the city controller which order shall first be approved by the mayor and the city council.
(Ord. 1967, ch. 1839, § 2, 3-2-67)

Editor's note—See the editor's note following § 18-19.

Cross reference—Reward for information as to persons maliciously injuring property, § 16-4.

Sec. 18-21. Sale, use, possession of alcoholic beverages in parks, etc.

No alcoholic beverages shall be sold, possessed or used within or upon any park, playground or recreational facility owned by the City of Providence unless granted specific permission, in writing, by the appropriate authority.
(Ord. No. 1971, ch. 71-58, § 1, 10-26-71)

Sec. 18-22. Sale or use of tobacco and cannabis products in parks.

(a) For the purposes of this section, "tobacco product" means any product containing tobacco or nicotine, including but not limited to cigars, pipe tobacco, snuff, chewing tobacco, dipping tobacco, bidis, snus, dissolvable tobacco products, and electronic cigarettes; provided, however, that such term shall not include any

product that has been approved by the U.S. Food and Drug Administration as a tobacco cessation product. For the purposes of this section, "cannabis product" means any product that has been manufactured and contains cannabis or an extract from cannabis, including concentrated forms of cannabis and products composed of cannabis and other ingredients that are intended for use or consumption, including edible products, beverages, topical products, ointments, oils and tinctures.

(b) The sale and use of any and all tobacco and cannabis products is prohibited in all parks, playgrounds, and recreational centers owned by the City of Providence, unless a permit is granted in writing by the superintendent of parks for the sale and/or use of tobacco or cannabis products at a particular site for a specific time frame.

(c) The prohibition on use of tobacco products does not apply to individuals traveling in a vehicle on any public road that runs through a city park.

(d) The use of cannabis products that do not produce smoke or vapors does not apply to persons licensed by the department of health to use cannabis for medical needs.

(e) Any violation of this section is hereby declared to be a public nuisance punishable by a civil fine of fifty dollars ($50.00). Each sale and/or use shall be deemed a separate violation, and each shall be subject to a separate fine.
(Ord. 2014, ch. 2014-56, § 1, 12-11-14; Ord. No. 2022-41, § 1, 10-12-2022)

Secs. 18-23—18-28. Reserved.

ARTICLE II. BOARD OF PARK COMMISSIONERS*

Sec. 18-29. Powers and duties.

(a) *Generally.* The board of park commissioners shall superintend the maintenance and control of the public parks under their jurisdiction within the city and shall also perform all duties that may from time to time be prescribed by the city council. They shall see that all laws of the state and all ordinances, resolutions and orders of the city council in relation to the public parks under their jurisdiction are duly enforced. They shall do all acts necessary and proper for the care, management, improvement, maintenance and protection of the public parks under their jurisdiction, the

*__Cross references—__Control of North Burial Ground by board of park commissioners and superintendent, § 6-17 et seq.; approval of board of appointment of clerk and assistant clerk to superintendent of North Burial Ground, § 6-21.

__State law references—__Council authority to pass ordinances regulating care, management and use of parks and public squares, § 32-3-1, Gen. Laws 1956; jurisdiction of state chief of division of forests, parks and parkways in cities, §§ 32-2-1, 32-2-2, 32-2-4, 32-2-5, Gen. Laws, 1956.

avenues, fences, animals, and all other property thereon or therein, and the buildings except public bathhouses in said public parks, which are hereby placed under the supervision and control of the superintendent of public buildings of the city.*

*__Editor's note—__Sec. 76 of the charter act, P. L. 1940, ch. 832, providing for a superintendent of public buildings, was repealed by P. L. 1949, ch. 2308, § 5.

(b) *Purchases.* They shall be authorized to purchase, from time to time, such horses, cattle and other animals and such birds, fowl and fish, and such boats, swings, carts and other vehicles, and all such tools, apparatus, implements and other articles as they may deem necessary for the proper care, use and management of the public parks under their jurisdiction, the museum at Roger Williams Park, and the Commodore Esek Hopkins homestead estate but subject to the conditions of the deed of gift of said homestead estate.

(c) *Sales, displays.* They shall be authorized to display, offer for sale and sell in the public parks within the city souvenirs, postcards, booklets, sodas, cigars, tobacco, ice cream, peanuts, confectionery and such other refreshments as said board shall determine. The net proceeds from the sale of such articles after deducting the cost thereof and the expenses of selling the same shall be credited to general funds; provided however, that the net proceeds of all such articles sold within the portions of Roger Williams Park devised to the city under the will of Betsy Williams shall be credited to Roger Williams Park Credit Account and disposed of in accordance with the terms of said will. They may dispose by sale or otherwise of all unserviceable personal property connected with the park department.

(d) *Gifts, devises, bequests.* They shall be authorized from time to time in their discretion and in the name and behalf of the city to accept any gifts of money for general or special park purposes. All such gifts shall be deposited with the city treasurer in a special account to be drawn upon by the board of park commissioners and audited in the same manner as other accounts. They shall be also authorized, from time to time in their discretion, and in the name and behalf of the city, to accept any gifts, bequests or loans of articles or things that may be made to said city in trust, or otherwise, for the use and benefit of any parks under their jurisdiction, said museum, or said homestead estate, but subject to the conditions of the deed of gift of said homestead estate, and provided that no such acceptance shall make the city in any manner legally or equitably liable to any person relative to the care and preservation of any such property, unless the city council in each case shall take such action as shall assume such liability. They shall be authorized to make suitable provision for the proper care, use and exhibition of any such gifts, bequests or loans. They shall be authorized in their discretion, from time to time, to exchange or temporarily loan for exhibition purposes elsewhere any articles or things contained in said museum or homestead, unless inconsistent with the conditions of any gift or loan of the same.

(e) *Personnel.* They shall be authorized to employ such workmen as they may deem necessary in the general care and conduct of the public parks under their jurisdiction and to fix their compensation. They may appoint a superintendent of parks and employ a head gardener, a clerk, and a curator of the museum of Roger Williams Park, and fix their respective salaries or compensation, but not exceeding in any case any limit fixed by the city council. All of said employees shall perform such duties as said board shall require.

(f) *Rules and regulations.* Said board shall be authorized and empowered to make all such rules and regulations as they may deem necessary for the proper conduct of any and all sports and amusements in Roger Williams Park, and in other public parks and playgrounds under their jurisdiction. They shall cause any such rules or regulations to be printed and posted upon the premises at or near the place or places of such sports or amusements.
(Ord. 1931, ch. 824, § 1; Rev. Ords. 1946, ch. 24, § 5)

Sec. 18-29.1. Authority to close parks to public during certain hours.

The board of park commissioners is hereby authorized to cause all city owned parks, as it may deem necessary, to be closed to the public from the hours of 9:00 p.m. to 7:00 a.m., and post notices accordingly.
(Ord. 1973, ch. 73-14, § 1, 3-9-73)

Editor's note—Ord. 1973, ch. 73-14, § 1, did not expressly amend this Code, hence inclusion herein as § 18-29.1 was at the discretion of the editors.

Sec. 18-30. Authority to use of school property and other property.

The board of park commissioners may use for public playground purposes or recreation activities any public school yards, buildings and properties or parts thereof of the city, as from time to time and for such period of time as permitted by the school committee of the city, and any public grounds, recreation places, buildings and apparatus in the city, the use of which is permitted by any municipal or state board, commission or officer, to any extent that the same may be legally authorized to permit the use of such grounds or property for public playground or recreation activities. Said board of park commissioners may use for any such purposes any grounds, places, buildings or apparatus in said city which any person may permit the use of for public playground purposes or recreation activities. During the period of any such permission the board may relative thereto exercise the powers specified in section 18-32 hereof.
(Ord. 1914, ch. 7, § 3; Rev. Ords. 1946, ch. 24, § 8)

Sec. 18-31. Authority over Dexter training ground.

The board of park commissioners, by and with the assent of the commissioners of the Dexter Donation, shall take charge of the Dexter training ground and keep the same in proper condition as one (1) of the parks of the city. Said board of park commissioners shall do nothing to said property which shall in any way interfere with its use as a training field.
(Ord. 1914, ch. 17, § 1; Rev. Ords. 1946, ch. 24, § 11)

Sec. 18-32. Management and regulation of public playgrounds.

The board of park commissioners shall manage and regulate the public playgrounds and places used for recreation activities of the city in Roger Williams Park and in

other parks under their jurisdiction, and conduct and promote thereon such forms of play, sport, physical and industrial education and recreation activities as said board of park commissioners in their discretion may from time to time determine, and have the care and use of all the equipment and facilities thereof or pertaining to such grounds and places.
(Ord. 1941, ch. 7, § 2; Rev. Ords. 1946, ch. 24, § 7)

Sec. 18-33. Rules and regulations as to playgrounds.

The board of park commissioners shall prescribe suitable rules and regulations pertaining to the use of all such playgrounds or places in Roger Williams Park and in other parks under their jurisdiction, generally or severally, under which such play, sport, physical and industrial education and recreation activities shall be carried on, and shall cause such rules and regulations to be printed and posted upon the premises at or near the place or places where the same are carried on. Any person violating any such rule or regulation may be expelled from such premises, or may be deprived of any right to engage in the same for a period not exceeding thirty (30) days, by order of said board of park commissioners or any person by it duly authorized. Such rules and regulations in their application to any and all such playgrounds shall be consistent with all laws of the state and ordinances of the city for the protection and preservation of public parks and parkways and the maintenance of due order therein.
(Ord. 1914, ch. 7, § 4; Rev. Ords. 1946, ch. 24, § 9)

Sec. 18-34. Employment of superintendents, supervisors, other personnel for playgrounds.

The board of park commissioners shall employ a superintendent and an assistant superintendent, and such subordinate supervisors, directors, attendants, caretakers, or other employees as may be necessary, with such powers and duties respectively relative to the supervision and care of playgrounds and places in Roger Williams Park and in other parks under the jurisdiction of said board, and the conducting thereon of play, sport, physical and industrial education and recreation activities, as said board of park commissioners from time to time may prescribe, and said board of park commissioners shall fix the compensation of the same, provided it shall not make any contract of employment to continue for a longer period than two (2) years.
(Ord. 1914, ch. 7, § 5; Rev. Ords. 1946, ch. 24, § 10)

Sec. 18-35. Duty not to violate terms of gift or trust as to playgrounds.

Nothing herein shall authorize the board of park commissioners to violate or do any act inconsistent with the terms or conditions of any trust or deed of gift, under which any playgrounds or places have been acquired by the city.
(Ord. 1914, ch. 7, § 7; Rev. Ords. 1946, ch. 24, § 6)

Sec. 18-36. Authority to direct expenditures, approve and certify accounts.

The board of park commissioners shall direct the expenditure of all money appropriated for public parks under their jurisdiction and for Roger Williams Park, and, unless otherwise provided, the receipts and income from said parks. They shall approve all accounts for payment, except that the weekly payroll may be approved by the chairman or other authorized member, and the chairman, or other authorized member, shall certify all accounts to the city controller for payment when approved.
(Ord. 1914, ch. 40, § 2; Rev. Ords. 1946, ch. 24, § 3)

Sec. 18-37. Duty not to incur indebtedness in excess of appropriations.

The board of park commissioners shall at no time incur any indebtedness in excess of the amount appropriated by the city council.
(Ord. 1914, ch. 40, § 2; Rev. Ords. 1946, ch. 24, § 4)

Sec. 18-38. Office and office hours.

The board of park commissioners shall have an office at Roger Williams Park, which shall be open for business during such hours as they shall determine.
(Ord. 1914, ch. 40, § 2; Rev. Ords. 1946, ch. 24, § 1)

Sec. 18-39. Records and reports required.

The board of park commissioners shall cause a record to be kept of all business transacted by them, and shall annually, in the month of January, make a report to the city council of the condition of the city parks under its jurisdiction, which report shall contain an accurate detailed account of all moneys received and expended by said commissioners in pursuance of authority granted by this chapter, or by the city council, and the general purposes of such expenditures, and also such other information as they shall deem expedient.
(Ord. 1914, ch. 40, § 2; Rev. Ords. 1946, ch. 24, § 2)

Secs. 18-40—18-49. Reserved.

ARTICLE III. DEPARTMENT OF RECREATION*

Sec. 18-50. Establishment of department of recreation.

There is hereby established a department of recreation of the city.
(Ch. 24, § 7.1, added by Ord. 1947, ch. 1621, § 1)

***State law references—**Authority of city to establish department of recreation, P. L. 1947, ch. 1856; council authority to pass ordinances regulating care, management and use of parks and public squares, § 32-3-1, Gen. Laws 1956; jurisdiction of state chief of division of forests, parks and parkways in cities, §§ 32-2-1, 32-2-2, 32-2-4, 32-2-5, Gen. Laws 1956.

Sec. 18-51. Appointment, term of director of recreation.

The mayor shall appoint, subject to the approval of the council, a qualified person to serve as director of recreation. Said director shall hold office until the first Monday in January, 1972, or until his successor is elected and qualified. On the first Monday in January, 1972, or as soon thereafter as may be convenient and every fifth year thereafter, the mayor shall appoint said director for a term of five (5) years. Any vacancy occurring in the office of director of recreation shall be filled in like manner by appointment by the mayor, subject to the approval of the council.
(Ch. 24, § 7.2, added by Ord. 1947, ch. 1621, § 1; Ord. 1947, ch. 74-57, § 1, 12-20-74)

Sec. 18-52. Qualifications of director of recreation.

The director of recreation shall be at least thirty (30) years of age, shall have a thorough knowledge of the recreational field, its philosophy and its techniques, shall have administrative ability and some skill in public relations, and a minimum of four (4) years' experience in the recreational field.
(Ch. 24, § 7.3, added by Ord. 1947, ch. 1621, § 2; Ord. 1973, ch. 73-17, § 1, 3-19-73)

Sec. 18-53. Salary of director of recreation.

The salary to be paid the director of recreation shall be at the rate per annum provided by the compensation plan of the city, or by ordinance.
(Ch. 24, § 7.4, added by Ord. 1947, ch. 1621, § 3)

Sec. 18-54. Deputies, assistants and employees of department of recreation.

The director of recreation shall appoint such deputies, assistants and employees under his supervision and control as the city council may deem necessary and for whose compensation appropriation has been made. The city council shall prescribe their powers and duties, fix their compensation and establish their classification.
(Ch. 24, § 7.5, added by Ord. 1947, ch. 1621, § 4; Ord. 1974, ch. 74-57, § 2, 12-20-74)

Sec. 18-55. General duties of director of recreation.

The director of recreation shall have the status of a department head with all the powers and duties appertaining thereto, and shall be subject to all the provisions of the charter relating to department heads. He shall be charged with the administration of the department of recreation and authorized to develop playgrounds, play fields, neighborhood parks and play lots in the city in such manner as the city council may by ordinance, resolution, rule or regulation determine.
(Ch. 24, § 7.6, added by Ord. 1947, ch. 1621, § 5)

Sec. 18-56. Duties of director of recreation as to playgrounds, sports, etc.

The director of recreation shall have such care, management and control over the use and operation of all public playgrounds and places used for recreation activities,

and the equipment and facilities thereof, of the city, and the conducting and the promotion thereon and therewith of play, sport, physical and industrial education and recreation activities and managing and regulating the same, and relative to any other matters within the purview of this article as the city council of said city from time to time by ordinance may prescribe.
(Ch. 24, § 7.7, added by Ord. 1947, ch. 1621, § 5)

Sec. 18-57. Authority of director of recreation to use school property.

The director of recreation, from time to time, with the consent of the school committee or other body now or hereafter controlling the school properties of the city, may use any public school yards, buildings and properties or parts thereof of the city for any recreational purposes provided for in this article, during any period or periods of time which would not interfere with the regular use of the same for school purposes, or any work of repair or otherwise pertaining to the same. The school committee or other such body may, at any time, withdraw any such consent.
(Ch. 24, § 7.8, added by 1947, ch. 1621, § 6)

Sec. 18-58. Authority of director of recreation to use public, private property.

The director of recreation may use any public grounds, recreation places, buildings and apparatus in the city, the use of which is permitted by the board of park commissioners of the city, or any other board, commission or officer, to any extent that the same may be legally authorized to permit the use of such grounds or property for public playground purposes or recreation activities. Any such permit may at any time be withdrawn. Said director of recreation may also, in his discretion, take charge of and use any grounds, places, buildings or apparatus, which any person or persons may offer or permit the use of for public playground purposes or recreation activities in said city.
(Ch. 24, § 7.9, added by Ord. 1947, ch. 1621, § 7)

Sec. 18-59. Effect of provisions on board of park commissioners, other boards.

Nothing contained in this article shall be construed to take away from the city council or the city or the park commissioners of the city, or any board, commission or officer, any powers of control or management of any public park or parkways, except that, with reference to any parts thereof which are used by the director of recreation for public playgrounds or recreation activities, the director of recreation shall have the unrestricted use of all equipment and facilities thereof or therefor, and shall exclusively prescribe the rules and regulations under which such play, sport, physical education and recreation activities shall be carried on, but such rules and regulations

shall be made subject to all laws of the state and ordinances of the city for the protection and preservation of public parks and parkways and the maintenance of due order therein.
(Ch. 24, § 7.10, added by Ord. 1947, ch. 1621, § 8)

Sec. 18-60. Appointment of advisory committee to director of recreation.

(a) The mayor shall appoint, without the necessity of any approval or confirmation by any other person or body, seven (7) qualified electors of the city to serve seven (7) year terms as a representative advisory committee to the director of recreation; provided however, that the terms of each member shall expire in successive years. In January of each year, the mayor shall appoint one (1) member of said committee to succeed the member whose term then expires, and said appointee shall thereafter hold office for a term of seven (7) years.

(b) The mayor shall be a member of said committee, ex officio.
(Ch. 24, § 7.11, added by Ord. 1947, ch. 1621, § 9)

Sec. 18-61. Expiration of terms of office, vacancies in advisory committee.

All members appointed by the mayor to the advisory committee provided for in section 18-60 shall serve until their respective successors have been appointed, and shall have qualified. Any vacancy occurring among the members of the committee shall be filled for the unexpired term in the same manner as the original appointment.
(Ch. 24, § 7.12, added by Ord. 1947, ch. 1621, § 9)

Sec. 18-62. Organization of advisory committee.

As soon as practicable after each annual appointment, the advisory committee provided for in section 18-60 shall organize by electing from its own members a chairman and a secretary.
(Ch. 24, § 7.12, added by Ord. 1947, ch. 1621, § 9)

Sec. 18-63. Compensation of members of advisory committee.

No member of the advisory committee provided for in section 18-60 shall receive any compensation for its services rendered to the committee.
(Ch. 24, § 7.12, added by Ord. 1947, ch. 1621, § 9)

Sec. 18-64. Advisory committee's function.

The advisory committee provided for in section 18-60 shall function entirely in an advisory capacity to the director of recreation.
(Ch. 24, § 7.12, added by Ord. 1947, ch. 1621, § 9)

Chapter 18½

POLICE

Sec. 18½-1. Emergency police details for certain establishments.
Sec. 18½-2. Providence External Review Authority (PERA).
Sec. 18½-3. Community notification of sexual offenders.
Sec. 18½-4. Providence Community-Police Relations Act.

Sec. 18½-1. Emergency police details for certain establishments.

(a) The commissioner of public safety shall receive weekly reports from the board of licenses. Those reports shall contain the name and address of any establishment to which public safety personnel were summoned for any loud or disturbing or violent conduct on the part of patrons or establishment personnel. The report shall also include any complaints of such conduct filed with the board of licenses whether or not public safety personnel were dispatched to the premises.

(b) The public safety commissioner shall, on a weekly basis, review such reports together with any other reliable information available to him or her concerning the premises. After such review, he or she shall determine whether the public safety of the patrons or employees or general public require the placement of detail police officers at the premises.

(c) From the whole of the circumstances surrounding said incident(s) the commissioner shall review and decide upon the necessity of police detail officers. Among the factors included in that review, the commissioner shall consider:

(1) The nature and scope of the incident;

(2) Whether or not physical harm was occasioned by the incident and the seriousness of that harm;

(3) The record of said premises and owners/managers with respect to incidents of like character; and

(4) The benefit to the public good occasioned by the imposition of police details.

If, after such review, the commissioner so decides, the owner/manager of the premises shall be required at the establishment's own cost to place detail police officer(s) in a number determined by the commissioner. Said placement shall be for not more than three (3) weeks. After said period, the commissioner shall again review any additional information available to him/her and may revise the number of detail police officers required or may eliminate such detail.

The commissioner shall continue this three-week review cycle until such time as he/she determines that no further details are necessary.

(d) Prior to any order by the commissioner, he or she shall notify the owner/operator of the premises under review of the same and shall offer the owner-operator an opportunity to present any evidence which he or she believes to affect the commissioner's decision.

(e) Failure of any premises to abide by the decision and order of the commissioner shall be punishable by the penalties listed in section 1-10 in this Code and the commissioner shall report such failure to the chairman of the board of licenses for appropriate action.
(Ord. 2002, ch. 02-6 §§ 1—5, 3-12-02)

Sec. 18½-2. Providence External Review Authority (PERA).

(a) *Established*. There is hereby created a Providence External Review Authority ("PERA" or "authority"). The authority shall create and implement community outreach programs, review policies and procedures of the city police department and review allegations of misconduct on the part of sworn officers of the city police department, including investigating the same, conducting hearings and making findings of fact with respect to those allegations. The authority by a majority of all its members shall appoint, subject to the approval of the city council, an executive director for a term of two (2) years, who shall be an attorney-at-law and/or has substantial experience with public administration. The executive director shall hire administrative and investigative staffs. Investigators hired shall be civilians who have appropriate prior experience or training. "Civilian," for the purpose of this section, is a person who is not now a sworn officer of a law enforcement agency.

(b) *Scope of authority*. The authority shall:

(1) Create and implement community outreach programs;

(2) Review police department policies and training procedures and make recommendations or change; and

(3) Receive complaints that allege misconduct by a police officer or officers, including, but not limited to, the following:

Discrimination. Discrimination in the provision of police services or other discriminatory conduct on the basis of race, color, creed, religion, ancestry, national origin, sex, sexual or gender orientation, disability, age, gender, or economic status.

Harassment. "Harassment" shall mean repeated, unwarranted verbal or physical annoyances, or abuse (whether physical or verbal) threats of demands.

Inappropriate language or conduct. "Inappropriate language or conduct" shall mean harsh, violent, profane, or derogatory verbal or nonverbal language or any action that demeans the dignity of an individual, including, but not limited to profanity, racial, ethnic, sexist or racial slurs.

Theft. "Theft" shall mean the taking or concealing of any item or thing of value without the consent of the rightful owner and with the intent to deprive the rightful owner of that item or thing.

Use of excessive force. "Excessive force" shall mean the use of greater physical force than reasonably necessary to repel an attacker or terminate resistance, it does not include force that is reasonably necessary to effect a lawful purpose.

(4) Perform such other functions as authorized in Section 18 ½-3 of this Chapter, entitled the "Providence Community-Police Relations Act," in accordance with the provisions thereof.

(c) *Composition*. The authority shall be comprised of nine (9) members. Of the nine (9) members, one (1) shall be appointed by the mayor, and eight (8) shall be elected by a majority of the members of the city council. In order to establish staggered terms, upon enactment of this section, the mayoral appointee, and two (2) council appointees shall be appointed for a term of one (1) year (expiring December 31, 2018); three (3) council appointees shall be appointed for a term of two (2) years (expiring December 31, 2019); three (3) council appointees shall be appointed for a term of three (3) years (expiring December 31, 2020). Upon expiration of these initial terms each subsequent mayoral and council appointee shall serve for a term of three (3) years. All such three-year terms shall expire at the end of their respective third calendar year (December 31) notwithstanding the actual date of appointment.

There shall be not more than two (2) former law enforcement officers appointed to the authority and not more than one (1) former law enforcement officer shall serve on any hearing panel. No person holding an elective office shall serve as an authority member. No person currently employed as a law enforcement officer nor any member of his or her immediate family may serve as authority members.

The authority shall elect one (1) member to serve as chairperson and one (1) member to serve as vice-chairperson each to serve for a term of two (2) years.

(d) *Compensation*. Each member shall be reimbursed for reasonable expenses incurred in the performance of his/her duties, however, no member shall be compensated for services performed.

(e) *Duties*.

(1) *Rulemaking notice and hearings*. The authority shall adopt rules governing its operation. All rules, and any amendments thereto, shall be promulgated after a public hearing, at which interested persons may present written and oral comments on the proposed rules. The authority shall, at least thirty (30) days prior to the date set for the hearing, give notice of its intention to adopt rules by publishing a notice of its intention to promulgate or amend rules in a newspaper of general circulation and by making copies of the proposed rules/changes available to the public.

(f) *Meetings*. All meetings of the authority, any subcommittees and hearing panels shall be held in accordance with applicable law governing open meetings.

(g) *Removal*. Any member of the authority may be removed for incompetence, neglect of duty, misconduct or malfeasance by resolution of the city council. Any vacancy occasioned by resignation, death, or removal of a member shall be filled for the balance of the unexpired term of appointment by the previously denominated appointing authority.

(h) *Executive director*.

(1) The executive director shall have the discretion to actively monitor any internal police department investigation of any citizen complaint alleging misconduct as defined in subsection (b)(3).

(2) The executive director shall also have the discretion to monitor any internal investigation by the police department as to which the executive director believes it is in the city's best interest for PERA to be involved.

(3) Staff of the executive director shall be hired by the executive director and shall serve at the pleasure of the executive director.

(i) *Budget*. The funding of executive director and all administrative staff and all other portions of PERA budget shall be administered as part of the city council budget.

(j) *Bi-annual reports*. The authority shall submit to the mayor and the city council a report of its activities not fewer than two (2) times per year. The report shall include, among other topics, data and analysis of complaints and complaint trends and shall be open to the public. It shall further detail all of the authority's expenditures.

(k) *Policy review*. Upon its own initiative or upon request of the mayor, a member of the city council or the executive director; the authority may initiate an examination of police policies, trends, or practices and issue recommendation for change.

(l) *Outreach*. Authority shall conduct such outreach activities as necessary to inform the public of the authority and its practices. Any outreach shall be conducted with sensitivity to the diversity of languages and cultures present in the city.

(m) *Complaint filing*. Any person, including, but not limited to:

(1) An alleged victim;

(2) A witness;

(3) A parent, legal guardian, or immediate family of a victim having personal knowledge of alleged misconduct of a city police officer may file a written complaint with the authority by submitting said complaint at a location designated by the authority. Additionally, upon probable cause, the authority may initiate its own investigation into the alleged misconduct of a police officer.

(n) *Preliminary review*. Within thirty (30) days of the date on which the complaint is filed the executive director shall review such complaint and recommend to the authority:

(1) The complaint be dismissed;

(2) The complaint be forwarded to mediation or to the police department's division of internal investigations and inspections;

(3) The complaint be held in abeyance pending the outcome of any ongoing police department internal investigation; or

(4) The complaint be transmitted for full investigation.

The authority shall promulgate guidelines delineating those factors to be assessed in making such recommendation.

All complaints shall be kept on file without regard to subsequent action of the executive director and the authority and shall be available to the public; provided that the name of the complainant and/or respondent shall be kept confidential to the extent required by law.

(o) *Dismissal*. Upon dismissal of a complaint the executive director shall file written reasons for the same.

(p) *Mediation*. The authority shall provide an informal mediation process to resolve those complaints of a more minor nature.

(q) *Investigation*. Upon determination that a full investigation is warranted, the complaint shall be transmitted to an authority investigator. An investigation shall be completed within one hundred twenty (120) days of the date that the complaint was filed. The executive director may upon request of the investigator, extend this deadline by not more than sixty (60) days. The application of this deadline may be held in abeyance during such time as the executive director determines that an investigation might impede or harm a related criminal investigation.

(r) *Evidentiary hearings*. Upon completion of such investigation, the executive director, may request a dismissal from the authority and the chair shall hold a hearing for the proposed dismissal (and in such event the executive director shall file a written statement providing reasons for such proposed dismissal) or forward the same to full hearing. The authority shall randomly select a three (3) person panel from its members to consider the matter and the chairperson shall designate a foreperson of the panel. At such evidentiary hearing, the authority shall weigh and consider all reliable and credible evidence. The panel shall make all reasonable efforts to complete evidentiary hearings and render a written decision within sixty (60) days of the completion of the investigation. In those instances in which the complainant is otherwise unrepresented by counsel, the authority legal counsel shall present evidence to the panel on behalf of the complainant. The police officer may be represented by counsel and union representatives, may present evidence and conduct cross-examination of witnesses.

(s) *Subpoena power*. At the request of legal counsel for either party, the executive director shall compel the presence of witnesses and/or documents at evidentiary hearings by applying to the city council for the issuance of subpoenas and where appropriate may seek that the city council request the appropriate court sanctions against anyone who fails to comply with any subpoena so issued.

(t) *Cooperation*. All municipal board, bureaus, commissions, department and employees shall respond promptly to any and all lawful requests for municipal information sought for such evidentiary hearings, and for access to data and records for the purpose of enabling the authority to carry out its responsibilities under this chapter. The failure of any official or employee to respond to lawful requests for such information and data shall be deemed an act of misconduct.

(u) *Findings of fact and determination*. Within thirty (30) days of the completion of an evidentiary hearing, the hearing panel shall issue a written report containing findings of fact; a determination of whether or not the complaint has been sustained by a preponderance of the evidence; if applicable the level of violation described in the disciplinary matrix developed by PERA and the chief of police, and a recommendation of discipline. When a complaint is sustained, the findings of fact and the determination shall be submitted to the chief of police. The chief shall impose discipline based upon the level of violation as found in the disciplinary matrix to be promulgated by the authority in accordance with subsection (e)(1). The chief of police shall, also provide the authority, the city council, and the mayor with a written explanation of the reason(s) for his/her disciplinary decision. The hearing panel report and the police chiefs explanation for his/her decision shall be available to the public provided that the name of the complainant and/or respondent shall be kept.

(v) *Notice to parties*. The authority shall notify the complainant(s) and police officer(s) in a timely fashion of the status or disposition of the complaint.

(w) *Period of limitation*. No complaint filed more than one (1) year subsequent to the events complained of therein shall be timely.

(x) If any provision of this section, or its application to any person or circumstances, is held unconstitutional or otherwise invalid, the remaining provisions of this section and the application of the provisions to other persons or circumstances, other than those to which it is held invalid, shall not be affected by the invalidity.
(Ord. 2002, ch. 02-39 §§ 1—21, 11-8-02; Ord. 2005, ch. 05-62, §§ 1—21, 12-15-05; Ord. 2010, ch. 2010-3, § 1, 2-4-10; Ord. No. 2018-2, § 1, 1-23-18)

Sec. 18½-3. Community notification of sexual offenders.

(a) The commissioner of public safety or the city police department shall follow the procedures set forth herein regarding sex offender community notification.

(b) In accordance with the requirements set forth in R.I.G.L. § 11-37.1-1 et seq., and the sexual offender community notification guidelines established by the state parole board, the commissioner of public safety or the city police department shall establish a sexual offender community notification plan for the city including, but not limited the following provisions:

(1) On a monthly basis, the commissioner of public safety or the city police department shall obtain from the sex offender community notification unit of

the state parole board a copy of all notices of level I, level II and level III offenders who will be residing in the city and jurisdictions that abut city neighborhoods, including, but not limited to the cities of Cranston, East Providence, and Pawtucket and the towns of Johnston and North Providence.

(2) On a monthly basis, the commissioner of public safety or the city police department shall obtain any current offender fact sheets from the primary law enforcement agency in the municipalities of the cities of Cranston, East Providence, and Pawtucket and the towns of Johnston and North Providence.

(3) Upon the commissioner of public safety or the city police department obtaining information that a level II or level III offender will be residing in the city and/or jurisdictions that abut city neighborhoods, as listed in subsection (1) the commissioner of public safety or the city police department may notify the following organizations, as outlined in the state parole board's sexual offender notification guidelines, including, but not limited to:

a. Educational institutions including nursery schools, pre-kindergarten, kindergarten, elementary schools, middle schools, and secondary schools;

b. Post-secondary public and private educational institutions;

c. Day care establishments;

d. Home day care providers; and

e. Additional establishments and organizations, including, but not limited to:

1. Sports leagues;
2. Religious personnel and organizations;
3. Boy and Girl Scouts groups;
4. Boys and girls clubs;
5. Community centers;
6. Recreation centers;
7. All volunteer and community organizations;
8. Mall and department stores;
9. Local merchant associations;
10. Sports facilities;
11. Entertainment facilities;
12. Public meeting facilities; and
13. Libraries.

(4) Upon the commissioner of public safety or the city police department obtaining information that a level III offender will be residing in the city and/or jurisdictions that abut city neighborhoods, as listed in subsection (1) the commissioner of public safety or the city police department shall follow

the notification requirements according to state parole board's sexual offender notification guidelines, which includes notification of the institutions listed in subsections (b)(3)e.1—13. Additionally, the department may notify community members and residents in the identified city neighborhood through, but not limited to, the following:

a. Distribution of fliers in the neighborhood where the offender will be residing and city neighborhoods that abut the area where the offender will be residing.

b. News releases.

c. Advertisements in local newspapers.

(5) The commissioner of public safety or the city police department shall establish and maintain a sex offender community notification bulletin board(s) for the purpose of public viewing. Such bulletin board(s) may be located at the city police department headquarters; city community police substations; city recreation centers; the school department; and city hall. Additionally, the commissioner of public safety or the city police department may establish and maintain a virtual bulletin board on the internet, located on the city police department website and/or the city website.

(Ord. 2007, ch. 07-24, §§ I, II, 5-3-07)

Sec. 18½-4. Providence Community-Police Relations Act.

(a) *Definitions*. For the purposes of this section, the following terms shall be defined as follows:

Electronic data collection means a report produced from computer-aided dispatch (CAD), electronic documentation, or any other police-generated report, in accordance with R.I.G.L. § 31-21.2-5(c), and shall include all the following information:

(1) The date, time and general location of the stop;

(2) The race or ethnicity, gender, and approximate age of the individual(s) stopped; provided that the identification of these characteristics shall be based on the observation and perception of the police officer making the stop and the information shall not be requested of the person(s) stopped;

(3) In the law enforcement officer's own words, the reasonable suspicion and/or probable cause, if such exists, giving rise to the stop;

(4) Whether a search was executed as a result of the stop;

(5) The scope of any search conducted;

(6) Whether the search was conducted pursuant to probable cause and/or reasonable suspicion, and what the probable cause and/or reasonable suspicion prompting the search was in the officer's own words;

(7) Whether any contraband, including money, was seized in the course of the search, and if so, the nature of the contraband;

(8) Whether any warning or citation was issued as a result of the stop;

(9) Whether an arrest was made as a result of either the stop or the search;

(10) The approximate duration of the stop; and

(11) The federal identification number of the officer.

Investigatory activity means any traffic stop, pedestrian stop, interview, interrogation, detention, frisk, pat-down, Terry frisk, Terry pat-down, or any search of a person or property.

Law enforcement officer, or *police officer* means any member of the Providence Police Department, duly sworn and vested with police power.

Limited English Proficient individual means any person whose primary language is not English and/or who does not have the ability to adequately understand or communicate effectively in English.

Qualified interpreter means an individual who is able to interpret simultaneously and consecutively and sight translate from English into a foreign language and from said language into English, in accordance with R.I.G.L. § 8-19-2.

Racial and other forms of discriminatory profiling is defined as the reliance on race, ethnicity, color, national origin, use of a foreign language, gender, gender identity and/or expression, sexual orientation, political affiliation, religion, housing status, physical or mental disability, or serious medical condition as a basis, in whole or in part, for suspecting that a person has committed or is about to commit a crime or is about to commit a crime, unless the officer's decision is based on a specific and reliable suspect description as well.

Transgender is an umbrella term that describes individuals whose gender identity is different from their assigned sex at birth.

(b) *Prohibition on racial and other forms of discriminatory profiling*. When conducting any investigatory activity, law enforcement shall not rely on race, ethnicity, color, national origin, use of a foreign language, limited English proficiency, gender, gender identity and/or expression, sexual orientation, political affiliation, religion, housing status, physical or mental disability, or serious medical condition as a basis, in whole or in part, for suspecting that a person has committed or is about to commit a crime, unless the officer's decision is based on a specific and reliable suspect description that includes not just these characteristics, but other identifying characteristics or information as well.

(c) *Documentation*.

(1) *Electronic data collection report*.

a. An officer completing an electronic data collection report shall record the information identified in subsection (a)(3) of this section.

b. The Providence Police Department shall establish policies clearly outlining the definition of "stop" and shall require the completion of an electronic data collection report the completion of all stops. Said policies shall be public documents and shall be made available on the police department website. The Providence External Review Authority shall be notified of any changes to this policy and shall have the power to review and make recommendations for improving the policy.

c. The subject of a traffic or pedestrian stop shall be able to request and receive, at the police station, a physical copy of the report which includes all of the data elements identified in subsection (a)(3) within seventy-two (72) hours of the stop.

d. No later than one (1) year after the passage of this ordinance, it shall be required that, at every stop, the officer shall provide the subject with information regarding the stop including a reference number to access their report, the officer's federal identification number, and the contact information for the Providence External Review Authority.

(2) *Video and audio recording*.

a. The Providence Police Department shall adopt written policies regarding the use of video and/or audio recording devices such as, but not limited to, dashboard cameras, body cameras, and digital audio recorders, should the department utilize these devices. These policies shall be public records and shall include, without limitation, the following standards:

1. Standards setting forth when the device is required to be activated and when the device must not be activated.

2. The subject of a stop shall be advised by the officer that the encounter is being recorded when practicable and consistent with ensuring officer safety and the safety of others.

3. A chain of custody record of the recordings shall be maintained.

4. Once a video/audio recording of a stop has been preserved by the police department for further investigation beyond the minimum retention period established by policy, the subject of said stop shall be notified by the police department of this action and shall be informed that they, and or their legal counsel, shall have the right to request to view and listen to the recording involving them at a

reasonable time and location within ten (10) business days of the request provided that such notification does not adversely impact imminent law enforcement action.

5. The policy shall establish a minimum period of retention for such recordings of no less than sixty (60) days, and procedures to ensure that the recording equipment is in proper working order, and shall bar the destruction of any recording related to an incident that is the subject of a pending complaint, misconduct investigation or civil or criminal proceeding. Such recordings shall be retained for a minimum of ten (10) days after the final resolution of such investigation or proceeding, including the time for any appeal;

6. The policy shall explicitly prohibit any violation of these requirements, including any attempts to disengage or tamper with the video/audio surveillance equipment or to otherwise fail to record stops as specified in the policy;

b. While on duty and in interactions with the public, police shall be prohibited from using personal audio or video recording devices. Only devices subject to the policy outlined above shall be permitted.

c. Police shall not interfere with, harass, demand identification from, or otherwise intimidate members of the public making video or audio recordings of police activity in any place the individual who is recording has a legal right to be present. Law enforcement officers shall not intentionally block or obstruct cameras or other recording devices. Law enforcement officers shall not damage or destroy recording devices or cameras, and deleting and/or altering recordings or photographs under any circumstances shall be prohibited. However, nothing contained within this section shall limit the ability of an officer to take appropriate action, if the actions of those recording interfere with the officer's official duties or with the safety of the officer or others.

(d) *Traffic stops*.

(1) Prior to asking the subject of a vehicle stop for their license, a law enforcement officer must, when practicable and consistent with ensuring officer safety or the safety of others, describe to the subject the suspected violation that prompted the stop.

(2) No operator of a motor vehicle shall be requested to provide any documentation or identification other than a driver's license or a form of identification listed in subsection (f)(7), motor vehicle registration, and/or proof of insurance when the motor vehicle has been stopped solely for a traffic violation, unless there exists reasonable suspicion and/or probable cause of criminal

activity, or the operator has failed to produce a valid driver's license, or the particular type of vehicle stopped requires other types of documentation specified under R.I.G.L. Tit. 31 or under Federal Law.

(3) No passenger of a motor vehicle shall be requested to provide identification or any other documentation by a law enforcement officer when the motor vehicle has been stopped solely for a traffic violation, unless there exists reasonable suspicion and/or probable cause of criminal activity.

(4) Unless there exists reasonable suspicion and/or probable cause of criminal activity, no motor vehicle stopped for a traffic violation shall be detained beyond the time needed to address the violation.

(5) When an individual is cited for driving without a valid license under R.I.G.L. § 31-11-18—18.1 and this constitutes the only criminal charge resulting from the traffic stop, the individual may be issued a court summons but may not be arrested, provided that the individual can show identification including alternative forms of identification as described in subsection (f)(7). However, in accordance with R.I.G.L. § 31-11-18.1(a) nothing in this section shall prohibit the arrest of individuals cited for driving when their license to operate is suspended, revoked, or cancelled for:

a. Operating under the influence of a narcotic drug or intoxicating liquor;

b. Refusing to submit to a chemical test; reckless driving;

c. Manslaughter from the operation of a motor vehicle or operating so as to endanger resulting in death; or

d. Three (3) moving violations within a one-year period.

(e) *Searches*.

(1) Any individual requested to consent to a search by a law enforcement officer of their motor vehicle, person, or belongings shall be informed by the officer of their right to refuse consent to the search. An individual's choice not to consent to a search shall not be deemed reasonable suspicion to conduct a search.

(2) When practicable and consistent with ensuring officer safety or the safety of others, searches shall be performed by an officer of the same gender identity as the individual being searched. If an officer of the individual's gender identity is not present at the time, one (1) will be called to the scene as soon as possible so as not to unnecessarily delay the time required to perform the search. Individuals who identify as transgender or gender non-conforming have the right to indicate their preference to be searched by either a male or female officer. If the individual's gender request can be reasonably and expeditiously accommodated without risk to officer safety, the request should be granted. The Providence Police Department shall develop and maintain

policies and protocols for how officers shall conduct searches of transgender and gender non-conforming individuals. Said policies shall be public documents, available on the police department website, and shall be subject to review by the Providence External Review Authority.

(f) *Surveillance and privacy*.

(1) Providence Police Department shall not engage in targeted electronic surveillance to collect or retain information about the lawful activities of targeted individuals or groups without reasonable suspicion that such activities relate to criminal activity or a judicial warrant specific to the time, place, and target of such surveillance.

(2) Police may not engage in an undercover capacity with groups in non-public places based solely on those groups' participation in First Amendment protected activities.

(3) Police may not consider an individual's lack of proof of identification or failure to respond to a request for identifying information as probable cause or reasonable suspicion of criminal activity, unless the police have a lawful reason to require identification.

(4) When attempting to determine the identity of a person appearing to be under eighteen (18) years of age, police or their representatives must accept any statement of that youth that they do not have any form of identification in their possession and may not repeat a request for the same form of identification once a juvenile has stated that they do not have that form of identification.

(5) Police may not photograph individuals confirmed to be under eighteen (18) years of age or, in the event that age identification cannot be confirmed, individuals who appear to be under eighteen (18) years of age, in accordance with subsection (f)(4), except:

a. As part of formal booking procedures;

b. To document evidence of a crime;

c. When there is reasonable suspicion and/or probable cause to believe that the juvenile is engaged in criminal activity;

d. Pursuant to a court order;

c. During large scale public events;

d. Via video or audio recording equipment used in compliance with subsection (c)(2); or

e. For the specific purpose of documenting injury sustained by the juvenile.

However any photographs taken of juveniles shall be destroyed within ninety (90) days, unless otherwise prohibited by law, or unless a specific investigation pertaining to the juvenile remains open or specific charges against the juvenile have been filed and a case remains pending against the juvenile.

(6) Police may not inquire about an individual's immigration status.

(7) Any valid identification issued by a foreign government including but not limited to consular identification, foreign driver's license, or passport, shall be considered acceptable identification to the same extent as identification issued by a domestic government agency.

(8) No police officer shall identify any individual as a member of a gang in any list or database maintained by any law enforcement agency, nor in any reports, memoranda or other document, unless the individual meets the criteria for inclusion on a so-called "gang list" or "gang database." No Police Department official authorized to enter information into the gang database shall identify any individual as a gang member in written notes unless the individual meet the criteria for inclusion on the so-called "gang list" or "gang database. The list of criteria used to determine inclusion on the "gang list" or "gang database" shall be public information, shall be subject to review by the Providence External Review Authority, and shall not include:

a. Association with other people identified as gang members or any substantially equivalent factor;

b. Race;

c. Location of domicile; nor

d. Location of encounter.

(9) Gang list/database notification.

a. Any individual shall have the ability to inquire whether he or she has been included on a "gang list" or "gang database." If such disclosure does not adversely impact imminent law enforcement action, the individual shall be informed if he or she is in the database by written notice no later than ten (10) business days after the inquiry is received. Additionally, the written notice shall explain the right to appeal and the process to appeal the individual's inclusion on the "gang list" or "gang database" as prescribed in this ordinance. The fact that an individual inquired about their inclusion on the "gang list" or "gang database" shall not be considered evidence that the individual is a member or associate of a gang, nor shall it be included in the criteria for inclusion on the "gang list" or "gang database."

b. Prior to adding any individual under eighteen (18) years of age to the "gang list" or "gang database," the Providence Police Department shall provide written notice, pursuant to the aforementioned policies, of the

designation and the basis for the designation by notarized letter delivered via certified mail to the person and their parent or guardian, unless such disclosure would adversely impact imminent law enforcement action,. Additionally, the written notice shall explain the right to appeal and the process to appeal the individual's inclusion on the "gang list" or "gang database" as prescribed in this section.

c. The police department shall establish policies governing the handling of the requests and notifications set forth in (f)(9)(i) and (ii), and for ensuring the safety of the individuals notified. Such policies shall be public documents, available on the police department website, and subject to review by the Providence External Review Authority.

(10) Gang list/gang database appeals.

a. The police department shall establish policies allowing for the administrative removal of individuals from the gang list or gang database in the event that an individual and the police department mutually agree that said individual was added to the gang list or gang database in error. Such policies shall be public documents, available on the police department website, and subject to review by the Providence External Review Authority.

b. Upon request, an individual whose name has been included on a gang list or gang database may challenge that designation through a formal appeal to the Providence External Review Authority. A hearing shall be scheduled within thirty (30) days at which the police department shall establish that the inclusion of the challenging individual on the gang list or gang database was consistent with the established police department policy. If a simple majority of the Providence External Review Authority (PERA) finds that the inclusion of the challenging individual on the gang list or gang database was not consistent with established police department policy, the challenging individual shall be removed from the gang list or gang database. Such hearings shall not be open meetings and under no circumstances shall evidence or information related to ongoing investigations presented at such hearings be shared with any individual beyond the members of PERA, necessary PERA staff, the appellant, and the appellant's legal counsel.

(11) In the event that an appeal is not successful, a notation will be made in the file and in any transmission of the information concerning that individual, that the person denies the allegation of gang membership or association. The appellant in an unsuccessful appeal shall not be permitted to appeal again for at least one (1) calendar year.

(12) No information related to on-going appeals or successfully contested allegations of gang membership or association shall be shared with any third party unless required by law.

(13) If an individual has no convictions within a two-year period after their name has been placed on the "gang list," and no new evidence meeting the criteria for inclusion on the "gang list" has been found, the name shall be removed and all related records destroyed. A letter confirming that the individual's name has been removed from the gang list shall be sent to the person at their last known address. However, the two-year period shall not include any time the individual spent incarcerated or serving a suspended sentence.

(14) Each year, the Providence Police Department shall produce a report providing the total number of individuals whose names are included on the "gang list," with demographic detail including age, race, ethnicity, and gender, and a total of how many of those individuals have challenged their inclusion on the "gang list."

(15) Each year, the Providence Police Department shall engage an independent auditor, selected by PERA, the city solicitor, and the commissioner of public safety, to audit the "gang list," identify any errors, and make recommendations for improving the operations and use the "gang list." A full report of the results of the audit shall be provided to the commissioner of public safety, the chief of police, and to PERA for its review. In the auditor's report, the names of individuals on the "gang list" shall not be included and shall, instead, be replaced with unique identifying numbers. The identity of the auditor shall remain confidential.

(g) *Language access for Limited English Proficient (LEP) individuals*.

(1) The police department shall maintain a language access hotline to connect police officials in the field with qualified interpreters in a timely manner. Officers who wish to question an LEP individual for any reason and are not fluent in a language spoken proficiently by that individual, shall not question that individual without the aid of the aforementioned language access hotline or without a qualified interpreter is present, except in emergency situations. Police shall not use family members, friends or bystanders as interpreters, except when the aforementioned language access hotline is unavailable or in emergency situations and/or for the purposes of explaining to an individual that they are securing an interpreter or the language access hotline.

(2) The police department shall establish and maintain policies for the use of the language access hotline, setting standards for determining language fluency among officers, and clearly defining emergency situations. Such policies shall be public documents, available on the police department website, and subject to review by the Providence External Review Authority.

(3) All custodial interrogations in police stations or substations involving LEP individuals must be recorded and such recording shall be made available to the interrogated individual and/or their attorneys. Whenever an officer equipped with a body camera conducts a custodial interrogation of an LEP individual in the field, that interrogation shall be recorded. Recordings made pursuant to this subsection shall be made available to the interrogated individuals and/or their attorneys, unless doing so would impede an ongoing investigation.

(4) Miranda Warnings, and all other vital written materials, will be available in the five (5) most commonly spoken languages in Providence, according to the most recent Census data. In the case of a language into which forms have not been translated and in the case of illiteracy, forms will be read to a suspect or witness in their primary language using the contracted interpretation services.

(5) At each police building with direct public access, signs shall be posted in the five (5) most commonly spoken languages in Providence, according to the most recent Census data, at each public access point or lobby stating that a language access hotline will be provided free of charge to LEP individuals.

(h) *Collaboration with other law enforcement agencies*.

(1) Any formal agreements addressing cooperation and mutual assistance between Providence Police and other law enforcement agencies shall be deemed public documents, subject to the Access to Public Records Act, R.I.G.L. § 38-2-1 et seq., and posted on the city's website unless it adversely impacts investigatory activities.

(2) A law enforcement officer shall not detain an individual on the basis of a request from another agency or pursuant to an administrative warrant, after the individual is eligible for release from custody, unless the agency has a criminal warrant, issued by a judicial officer, for the individual, or the detention is otherwise constitutional.

(3) Providence Police are not permitted to comply with requests by other agencies to support or assist in operations conducted solely for the purpose of enforcing federal civil immigration law, including but not limited to requests to establish traffic perimeters related solely to immigration enforcement.

(4) Nothing in this chapter prohibits or restricts any official from sending to, or receiving from federal immigration authorities, information regarding the citizenship or immigration status, lawful or unlawful, of an individual pursuant to Sections 1373 and 1644 of Title 8 of the United States Code.

(5) All joint activities undertaken between Providence Police Department and other law enforcement agencies not governed by formal agreements as covered in this section shall publicly report as soon as practicable upon completion of the operation.

(6) The Providence Police Department shall abide by the provisions of this ordinance at all times, including when working in collaboration with outside law enforcement agencies.

(i) *Accountability and enforcement*.

(1) Generally.

a. When conducting a stop or search, a police officer must provide their federal identification number.

b. Any subject of a stop or search may ask an on-duty law enforcement officer for a business card containing the officer's federal identification number. The officer must comply with the request, when practicable and consistent with ensuring officer safety and the safety of others. Such requests shall not be deemed reasonable suspicion of criminal activity. When in uniform, Providence Police officers must wear their federal identification number on their uniform.

(2) An individual subjected to any violation of this ordinance, other than a violation of subsection (i)(5), may file a civil action for injunctive and declaratory relief, as well as compensatory damages against:

a. Any governmental body that employs any law enforcement officer who has engaged, is engaging, or continues to engage in violations of any section of this ordinance; and

b. Any law enforcement officer who has engaged, is engaging, or continues to engage in knowing and willful violations of any section of this ordinance.

(3) Preservation of rights. This section shall be in addition to all rights, procedures, and remedies available under the United States Constitution, Section 1983 of Title 42 of the United States Code, the Constitution of the State of Rhode Island and all other federal law, state law, municipal law and all preexisting civil remedies, including monetary damages, created by statute, ordinance, regulation or common law.

(4) The chief of police shall prepare and make available on the city's website, as well as to the Providence External Review Authority, the city council and the public, a quarterly report commencing with the city's fiscal year containing the following information:

a. Compilation of the data collected pursuant to subsection (c)(1), providing at a minimum statistical descriptions of individuals stopped, results of the stop, analyzed by direct and cross-tabulation of race, ethnicity, gender, and age (as perceived by the officer initiating the stop).

b. Maps or other graphic representations providing approximate geographical locations of aggregate stops.

c. Complaints received by the office of professional responsibility involving alleged violations of one (1) or more provisions of this section.

d. A summary of all pending civil and criminal litigation against the Providence Police Department or any of its employees, or the City of Providence, alleging violations of any provision of this section.

e. Copies of any new policies or revisions to existing policies enacted during the report period.

(5) The Providence External Review Authority, upon review of all data described in subsection (i)(5)(i), may recommend diversionary reinvestments that would, if implemented, reallocate city funding from the Police Department Budget as a whole, and from the funds specifically allocated to the office of public safety commissioner, to municipal recreation, youth programming and employment opportunities.

a. A written description of these recommendations shall be submitted to the mayor and the city council no later than the last day of January.

b. The mayor and or the public safety commissioner shall provide a written response to the recommendations no later than twenty (20) days after receiving them.

c. The finance committee of the city council, or any other committee within the city council most responsible for preparing a budget proposal to be considered by the council as a whole, shall review and respond to the recommendations during its budget deliberations. It shall conduct a public hearing at which members of the public may present their responses to the recommendations. For any city department potentially affected by a diversionary reinvestment, the director or their designee must attend the public hearing described in this subsection.

(6) The Providence External Review Authority shall be authorized to review proposed labor agreements between the City of Providence and any labor union representing sworn officers employed by the city at the time tentative signed agreements are submitted to the city council, and to make recommendations to either or both parties negotiating the labor contract.

(7) The Providence External Review Authority shall be specifically authorized to accept complaints relating to any violation of the Community Safety Act, as well as complaints about improper or inappropriate use of canines.

(j) *[Evidence suppression.]* No provision or violation of this ordinance shall be used as an independent basis to suppress evidence in a criminal proceeding.

(k) *[Funding.]* Appropriate funding shall be made available to implement the provisions of this chapter.

(l) *Severability*. The provisions of this section shall be severable. If any phrase, clause, sentence or provision of this section is declared by a court of competent jurisdiction to be invalid, the validity of the remainder of the section and its applicability to any other agency, person or circumstances shall not be affected.

(m) *[Implementation report.]* No later than six (6) months from the enactment of this section, the commissioner of public safety and the chairperson of PERA, shall issue to the city council a report on the implementation of this section.
(Ord. No. 2017-18, § 1, 6-6-17, eff. 1-1-18)

Chapter 19

RAILROADS*

Sec. 19-1. Permits of certain companies continued.
Sec. 19-2. Rights reserved to city.
Sec. 19-3. Conformance to rules, regulations.
Sec. 19-4. Public service engineer to have supervision of railroads, fixtures.
Sec. 19-5. Public service engineer to inspect cars, fixtures, appurtenances.
Sec. 19-6. Public service engineer to check delays, installation of signs, cleanliness; to enforce compliance with rules.
Sec. 19-7. Public service engineer to investigate overcrowding.
Sec. 19-8. Request to public service engineer to make investigation.
Sec. 19-9. Records of operations to be kept by public service engineer.
Sec. 19-10. Public service engineer to keep records, make reports of his work concerning railroads.
Sec. 19-11. Right to run on tracks on India Street and Allen's Avenue.
Sec. 19-12. Abandonment of grants and privileges by companies.
Sec. 19-13. Tracks to conform to surveys, grades and regulations.
Sec. 19-14. Location, routes, etc., to conform to surveys and plans.
Sec. 19-15. Duty to keep streets in good repair, pave between rails.
Sec. 19-16. Tracks to be laid on cement concrete subbase.
Sec. 19-17. Director of public works to supervise railroad work on streets.
Sec. 19-18. Rails at curves.
Sec. 19-19. Alteration in sewerage or drainage system.
Sec. 19-20. Railways not to interfere with public work of city.
Sec. 19-21. Paving, repaving or repairing at option of city.
Sec. 19-22. Removal of snow and ice.
Sec. 19-23. Use of salt for melting snow and ice.
Sec. 19-24. Distance between cars traveling in same direction.
Sec. 19-25. Freight cars on tracks in street.
Sec. 19-26. Lights on boxcars.
Sec. 19-27. Companies to indemnify city from damages, costs and expenses.

***Cross references—**Public service engineer, § 2-233 et seq.; soliciting for railroads and watercraft, § 14-11.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; provisions pertaining to railroads, chapters 39-7, 39-8, Gen. Laws 1956.

Sec. 19-1. Permits of certain companies continued.

(a) The permission heretofore granted to the Union Railroad Company, the Providence Cable Tramway Company, the Union Railroad Company (The Rhode Island Company, lessee), The Rhode Island Company, and to the following companies, respectively, which by acts of the General Assembly were consolidated with said Union Railroad Company, namely, the Providence and Pawtuxet Railroad Company, the Providence and Cranston Railroad Company, the Elmwood Horse Railroad Company, the Broadway and Providence Railroad Company, the South Main Street Horse Railroad Company, and the Providence, Pawtucket and Central Falls Railroad Company, to locate and operate, with passenger and freight cars, railroad tracks within the city in certain streets, as the same are now located and operated therein, is hereby continued to said companies, respectively, subject to the provisions of this chapter.

(b) The permission heretofore granted to the Boston and Providence Railroad Company, the Providence, Warren and Bristol Railroad Company, the Old Colony Railroad Company, the New York, Providence and Boston Railroad Company, and the New York, New Haven and Hartford Railroad Company, respectively, to locate and operate railroad tracks in India Street and Allen's Avenue, is hereby continued to said companies respectively; and said permission so granted and continued is granted and continued subject to all of the provisions of this chapter and also upon the express terms and conditions herein named.
(Ord. 1914, ch. 51, §§ 6, 23; Rev. Ords. 1946, ch. 30, § 11)

Sec. 19-2. Rights reserved to city.

(a) *Scope of order.* The city council hereby reserves the right, in the exercise of its powers for the time being, at any time and from time to time existing, to amend, alter or annul any provision of this chapter, and the terms and conditions upon which permission is hereby granted or continued to railroad companies, or any of them, to locate, continue or operate railroads within the city, and also the right to order such railroads and the rails or any part thereof to be taken up, and the streets through which the same are laid to be restored to their original grade and condition, and to be put in good and complete order and repair, so that the same may be safe and convenient for traveling with their teams, carts and vehicles at all seasons of the year. The same shall be done at the expense of such company, under the superintendence and to the satisfaction of the director of public works, and in case the same is not done by such company within the time limited therefor, then the city council may cause the same to be done, and the expense thereof shall be paid by such company, and the city shall have a lien upon the road hereby authorized, for the payment thereof.

(b) *Time to comply.* Said city council shall give at least ninety (90) days' notice to any company of its intentions to alter, annul or amend the terms and conditions of the permission hereby granted or continued, or of its intention to require the rails to be

taken up; and whenever said terms and conditions shall be altered, amended or annulled, or any company shall be required to remove its rails, they shall have at least the period of ninety (90) days from the passage of the order making said alteration or requirement to comply with the same.
(Ord. 1914, ch. 51, § 26; Rev. Ords. 1946, ch. 30, § 26)

Sec. 19-3. Conformance to rules, regulations.

Every railroad company regulated herein shall at all times conform to all such reasonable rules and regulations as from time to time may be made by the city council.
(Ord. 1914, ch. 51, § 20; Rev. Ords. 1946, ch. 30, § 22)

Sec. 19-4. Public service engineer to have supervision of railroads, fixtures.

The public service engineer shall have general supervision of all railroads in the streets of the city, including all railroad fixtures in such streets and all passenger, freight and other cars operated therein for any purpose, and general supervision of the operation of all such cars in the city.
(Ord. 1914, ch. 51, § 27; Ord. 1915, ch. 106, § 8; Rev. Ords. 1946, ch. 30, § 27)

Sec. 19-5. Public service engineer to inspect cars, fixtures, appurtenances.

The public service engineer shall inspect and see that all railroad fixtures, cars and appurtenances, now or hereafter located, placed, constructed, maintained, used or operated in, on, over, across or under the streets and other public places in the city, are located, placed, constructed, maintained, used and operated in a proper and safe manner and condition, and in accordance with the terms and conditions of the grants or permissions for the same, and of any agreements or contracts with the city relative thereto, and of this chapter and all ordinances in amendment thereof or in addition thereto, and of all laws, ordinances, rules and regulations pertaining thereto. In case of any failure by any public service company, corporation or person to so locate, place, construct, maintain, use and operate the same, he shall forthwith make report thereof to the parties concerned, and if the latter do not promptly observe and perform all such laws, ordinances, rules, regulations, terms and conditions, and all requirements to locate, place, construct, maintain, use and operate the same in proper and safe manner and condition, said engineer shall, in any case of sufficient importance, make report thereof to the city council.
(Ord. 1914, ch. 51, § 27; Ord. 1915, ch. 106, § 8; Rev. Ords. 1946, ch. 30, § 28)

Sec. 19-6. Public service engineer to check delays, installation of signs, cleanliness; to enforce compliance with rules.

The public service engineer shall observe and note any delays in railroad car operation and the reason therefor, including any delays caused by other street travel or slow-moving vehicles keeping the track against the right-of-way of cars, whether signs on the cars are installed and maintained as required by law or any agreement

or regulation, whether a first-class standard of keeping passenger cars clean is maintained, and in case of any uncleanliness of any cars, the cause thereof. He shall also observe and note any failure by any public service company, corporation or persons owning or operating any such railroad, to comply with any law, ordinance, rule or regulation relative to any such railroad or the operation thereof, including any negligence or improper conduct on the part of any employee of any such railroad.
(Ord. 1914, ch. 51, § 28; Rev. Ords. 1946, ch. 30, § 31)

Sec. 19-7. Public service engineer to investigate overcrowding.

The public service engineer shall investigate the cause of any excessive crowding of passenger cars and shall promptly give notice thereof and of the cause as ascertained by him, to the public service company, corporation or person, owning or operating such cars.
(Ord. 1914, ch. 51, § 28; Rev. Ords. 1946, ch. 30, § 30)

Sec. 19-8. Request to public service engineer to make investigation.

The public service engineer, upon request of the committee on public works of the city council, shall investigate any matter pending relative to any railroad referred to him by said committee, and report to it his findings and recommendations relative thereto.
(Ord. 1915, ch. 106, § 9; Rev. Ords. 1946, ch. 30, § 32)

Sec. 19-9. Records of operations to be kept by public service engineer.

The public service engineer shall make and keep or cause to be made and kept, accurate and complete records of the operation of each and all railroads subject to the provisions of this chapter, including the number of cars operated on and the car mileage of each route, the time schedules of the operation thereof, the observance or failure to conform with such schedules, and the number of passengers carried.
(Ord. 1914, ch. 51, § 28; Rev. Ords. 1946, ch. 30, § 29)

Sec. 19-10. Public service engineer to keep records, make reports of his work concerning railroads.

In addition to other required records, the public service engineer shall make and keep or cause to be made and kept in books of the city, an accurate and complete record of all his general work concerning railroads and the operation thereof in, over and across the city streets and public places, and each year in January for the next preceding calendar year he shall make report thereof in writing to the city council, and at any time, when he deems it necessary or advisable may make a special report to the city council. In any such report, he may include any findings made by him, and may make recommendations looking to the betterment of service.
(Ord. 1915, ch. 106, § 9; Rev. Ords. 1946, ch. 30, § 32)

Sec. 19-11. Right to run on tracks on India Street and Allen's Avenue.

The city council shall have the right to permit any railroad company to run its cars over tracks on India Street and Allen's Avenue upon the payment of such compensation, and upon such terms and conditions, as may be agreed on by the companies concerned; or in default of such agreement, then upon such terms, conditions and compensation as said city council may prescribe.
(Ord. 1914, ch. 51, § 24; Rev. Ords. 1946, ch. 30, § 24)

Sec. 19-12. Abandonment of grants and privileges by companies.

Each railroad company subject to the provisions of this chapter shall have the right to give notice to the city council, at any time, that such company will no longer use or enjoy the grant or privilege herein made or continued to such company, as to all or any portion of the streets occupied by its rails; and shall thereupon, within ninety (90) days after such notice, remove their railroad track and fixtures from such streets or portions thereof, and restore the same to their original condition, and in as good order and repair as the same may then be, and to the satisfaction of the city council.
(Ord. 1914, ch. 51, § 25; Rev. Ords. 1946, ch. 30, § 25)

Sec. 19-13. Tracks to conform to surveys, grades and regulations.

In locating, continuing and using tracks for railroads in streets, the company owning or operating said tracks shall conform at all times to the surveys, grades and regulations of any and all of the streets occupied by the tracks of such company, as the same now are or may hereafter be established by law.
(Ord. 1914, ch. 51, § 11; Rev. Ords. 1946, ch. 30, § 12)

Sec. 19-14. Location, routes, etc., to conform to surveys and plans.

The location of the roadways of railroads occupying portions of or crossing city streets, the several routes thereof, the distance of the rails from the curbstone, the method of laying and securing the rails and roadbed, the location of the turnouts and the profile of the grade of said roads, respectively, shall conform to the surveys and plans thereof respectively as the same have been or may be approved by the city council.
(Ord. 1914, ch. 51, § 11; Rev. Ords. 1946, ch. 30, § 13)

Sec. 19-15. Duty to keep streets in good repair, pave between rails.

Each company subject to the provisions of this chapter shall keep and maintain in good order and condition, by paving, repaving and repairing wherever and whenever necessary, that portion of the streets that may be occupied by its railroad tracks, so that the said streets may be safe and convenient for travelers at all times; and in all streets, the said company or party shall pave between its rails and one and one-half (1½) feet outside of each rail, and the pavement, repairs and work shall conform with

the directions and specifications made from time to time by the director of public works. Cobble pavement shall not be used on any new or renewal work, unless the director of public works shall relieve the company of observing this prohibition as to any particular street or part thereof.
(Ord. 1914, ch. 51, § 12; Rev. Ords. 1946, ch. 30, § 14)

Sec. 19-16. Tracks to be laid on cement concrete subbase.

Only railway tracks on Portland cement concrete subbase shall be constructed in all new or renewal work on lines within any street, or parts thereof, which are paved with a subbase of such concrete, unless the director of public works shall modify or relieve the company of observing their obligation as to any particular line or lines or part or parts thereof. In all other streets only railway tracks on concrete subbase or its equivalent shall be constructed in all new or renewal work on lines within any street, unless the director of public works shall modify or relieve the company of observing this obligation as to any particular line or part thereof. Six (6) inches of broken stone three-quarters (¾) inch size and less under and between the ties with granite blocks grouted with either cement or tar and gravel shall constitute such an equivalent.
(Ord. 1914, ch. 51, § 13; Rev. Ords. 1946, ch. 30, § 15)

Sec. 19-17. Director of public works to supervise railroad work on streets.

All work at any time done on any street in the city by any railroad company shall be done under the supervision and subject to the approval of the director of public works, and every railroad company shall mend, repair, pave and repave the streets occupied by their rails as herein provided, and remove all obstructions therefrom whenever required to do so by said director. Should they neglect or refuse so to do for a period of ten (10) days after notice that they are so required, the city council may forbid the use of such tracks on such streets, or any of them, until such requirement is complied with, and the work may be done by the director of public works, and the expense thereof shall be paid by the company so refusing or neglecting to perform.
(Ord. 1914, ch. 51, § 15; Rev. Ords. 1946, ch. 30, § 17)

Sec. 19-18. Rails at curves.

A company subject to the provisions of this chapter shall maintain proper rails at curves and in proper condition, in order to avoid unnecessary and unreasonable noise.
(Ord. 1914, ch. 51, § 14; Rev. Ords. 1946, ch. 30, § 16)

Sec. 19-19. Alteration in sewerage or drainage system.

Any alteration in the sewerage or drainage system or any subsurface or surface structures in the streets, required on account of the construction or operation of any railroad shall be made at the sole cost of such company, but shall not be made without the prior approval of the director of public works, and the city reserves the right at its

option as exercised by said director to do or cause the work to be done, and in such case such company shall pay the cost to the city not later than thirty (30) days after demand therefor.
(Ord. 1914, ch. 51, § 16; Rev. Ords. 1946, ch. 30, § 18)

Sec. 19-20. Railways not to interfere with public work of city.

(a) No right to maintain or to operate any railway shall be in preference or hindrance of public work of the city, and should any railway in any way interfere with the construction, alteration or repair of any public work in any street, whether done by the city directly or by any contractor for the city, such company shall at its own expense protect or move the track and appurtenances, or discontinue the operation thereof for the time being, as directed by the director of public works, without the city being liable for any damages suffered by the company thereby.

(b) In case it shall be obliged to remove any tracks on account of sewer or other highway work as aforesaid, the pavement shall be relaid at the expense of the city or the contractor or party performing the work necessitating the removal of the track. Sewer connections, so far as practicable shall be made without interfering with railway traffic.

(c) The city shall notify the company, a reasonable time in advance, of any public work which will interfere with any of its railways or the operation thereof.
(Ord. 1914, ch. 51, § 17; Rev. Ords. 1946, ch. 30, § 19)

Sec. 19-21. Paving, repaving or repairing at option of city.

In every case where paving, repaving or repairing of any street is required to be done by any railroad company, the city reserves to itself the right to do the same at its option, and the expense thereof shall be paid by the company of whom such work was required. If such company shall neglect or refuse to pay such expense within ten (10) days after demand therefor, the city council may forbid the running of any car upon any portion of the tracks of such company until the same is paid, and may have a lien upon the railroad of such company within its limits for the payment of all expenses.
(Ord. 1914, ch. 51, § 18; Rev. Ords. 1946, ch. 30, § 20)

Sec. 19-22. Removal of snow and ice.

A company subject to the provisions of this chapter shall promptly cause snow and ice to be removed to the extent necessary for convenient travel from the portions of the streets between its rails and to the extent of eighteen (18) inches beyond the outer rails by its snowplows or sweepers, the snow so removed to be carried to a place wholly out of such highways, and the same not to be deposited in any street, or on any public land without the prior consent of the department or officer in charge of such public land; provided that the director of public works from time to time may direct that the company, instead of removing snow and ice from said portions of such streets, shall as

equivalent and substituted work, remove snow and ice from the whole of the roadways of such streets as may from time to time be agreed upon by said director and the company.
(Ord. 1914, ch. 51, § 19; Rev. Ords. 1946, ch. 30, § 21)

Cross reference—Removal of snow and ice generally, § 23-13 et seq.

Sec. 19-23. Use of salt for melting snow and ice.

The use of salt or other material by any railroad company for the purpose of melting snow or ice shall be limited to switches, turnouts, curves and heavy grades, except in cases of heavy snow or sleet storms, when the use of salt or other material is necessary to keep railway tracks clear; and in all such cases salt or other material shall be used only in such quantities as shall be actually required by existing conditions, the same to be applied in all such cases under the direction of the director of public works.
(Ord. 1914, ch. 51, § 2; Rev. Ords. 1946, ch. 30, § 8)

Sec. 19-24. Distance between cars traveling in same direction.

Railroad cars of railroads proceeding in the same direction shall not approach each other within a distance of thirty (30) feet, except in the approaches to the passenger station and at turnouts; or except in case of accident, or to prevent injury to persons or property, or to avoid blockading a street, or when two cars are coupled together.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 1)

Sec. 19-25. Freight cars on tracks in street.

No railroad car used for the transportation of freight or merchandise shall be allowed to remain upon the main track of any railroad in any street for any longer time than is actually necessary to load or unload such car; and in case any such car while remaining on any street, loaded or unloaded or in process of being loaded or unloaded, shall at any time materially obstruct any main line of travel in such street, either the director of public works or the public service engineer may order the same to be removed or to be temporarily removed to another location, and it shall be the duty of every person in charge of the operation of such car in such street to comply with such order.
(Ord. 1915, ch. 106, § 7; Rev. Ords. 1946, ch. 30, § 9)

Sec. 19-26. Lights on boxcars.

Every box freight car of a railroad when operated singly or as the head car in double or more operation at night, in addition to the headlight shall be lighted by two (2) front lights located at or near the top of the car.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 10)

Sec. 19-27. Companies to indemnify city from damages, costs and expenses.

Every railroad company subject to the provisions of this chapter shall at all times indemnify and save harmless and defend the city of and from all damages, costs and expenses to which said city may be subjected or made liable by any proceedings at law or in equity or otherwise, growing out of the grant or continuance of the permission and privileges granted to such company by this chapter, or out of the exercise and enjoyment of the same by such company.
(Ord. 1914, ch. 51, § 21; Rev. Ords. 1946, ch. 30, § 23)

Chapter 20

REDEVELOPMENT AREAS*

Sec. 20-1. Authority; designation of areas.
Sec. 20-2. Area 1.
Sec. 20-3. Area 2.
Sec. 20-4. Area 3.
Sec. 20-5. Area 4.

***Editor's note—**Ch. 96-24, approved May 23, 1996, amended the Code by repealing Ch. 20, §§ 20-1—20-20, in its entirety, and adding a new Ch. 20, §§ 20-1—20-5. Former Ch. 20 pertained to similar subject matter, and derived from Ch. 30A, added by Ord. 1948, ch. 103; Ord. 1957, Ch. 1159; Ord. 1960, ch. 1367; Ord. 1960, ch. 1387; Ord. 1966, ch. 1798; Ord. 1968, ch. 68-13, approved March 7, 1968; Ord. 1969, ch. 69-44, approved November 20, 1969; Ord. 1969, ch. 69-47, approved November 20, 1969; Ord. 1980, ch. 80-28, approved May 3, 1980; Ord. 1982, ch. 82-17, approved March 26, 1982; Ord. 1982, ch. 82-48, approved July 8, 1982; Ord. 1982, ch. 82-50, approved July 8, 1982; Ord. 1983, ch. 83-5, approved February 18, 1983; Ord. 1984, ch. 84-10, approved February 10, 1984; Ord. 1984, ch. 84-24, approved March 23, 1984; Ord. 1984, ch. 84-25, approved March 28, 1984; Ord. 1986, ch. 86-53, approved October 23, 1986; and Ord. 1995, ch. 95-14, approved June 9, 1995.

Cross references—Appointment, authority of urban renewal coordinator, § 13-7; listing of redevelopment areas, App. B.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; redevelopment agencies, ch. 45-31, Gen. Laws 1956; redevelopment projects, ch. 45-32, Gen. Laws 1956; redevelopment financing, ch. 45-33, Gen. Laws 1956.

Sec. 20-1. Authority; designation of areas.

The city council of the city hereby designates, in accordance with R.I.G.L. § 45-32-4, the redevelopment areas as set forth in this chapter.
(Ord. 1996, ch. 96-24, § 1, 5-23-96)

Sec. 20-2. Area 1.

The following area in the city shall be designated as Area 1:

Beginning at a point at the centerline intersection of Interstate Route 146 and the North Providence town line;

Thence turning and running southerly along Interstate Route 146 to its intersection with Interstate Route 95;

Thence turning and running southerly along Interstate Route 95 to its intersection with Interstate Route 6;

Thence turning and running westerly along Interstate Route 6 to its intersection with the Johnston town line;

Thence turning and running northerly along the Johnston town line and Providence city line to its intersection with the North Providence town line;

Thence turning and running along the city line and the North Providence town line to its intersection with the westerly side of Mt. Pleasant Avenue;

Thence southerly along the westerly side of Mt. Pleasant Avenue to its intersection with Canonchet Street;

Thence westerly along the westerly side of Canonchet Street to its intersection with Winthrop Avenue;

Thence southerly along the westerly side of Winthrop Avenue to its intersection with the southerly side of Chalkstone Avenue;

Thence westerly along the southerly side of Chalkstone Avenue to its intersection with Leah Street;

Thence southerly along the westerly side of Leah Street to its intersection with the southerly side of Atwells Avenue;

Thence easterly along the southerly side of Atwells Avenue to its intersection with the easterly side of Academy Avenue;

Thence northerly along the easterly side of Academy Avenue to its intersection with the southerly side of Newark Street;

Thence easterly along the southerly side of Newark Street to its intersection with the easterly side of Cutler Street;

Thence northerly along the easterly side of Cutler Street to its intersection with the southerly side of Cliff Street;

Thence easterly along the southerly side of Cliff Street to its intersection with the easterly side of Allston Street;

Thence easterly along the southerly side of Allston Street to its intersection with the westerly side of Wolcott Street;

Thence southerly along the westerly side of Wolcott Street to the rear lot line of Lot 437 on A.P. 66;

Thence easterly along the northerly lot line of Lot 437 to the easterly lot line of Lot 437;

Thence southerly along the easterly lot line of Lot 437 to its intersection with the northerly lot line of Lot 216 on A.P. 66;

Thence easterly along the northerly lot line of Lots 216, 217, and 220 on A.P. 66;

Thence southerly along the easterly lot line of Lot 220 to its intersection with the northerly side of Valley Street;

Thence easterly along the northerly side of Valley Street to its intersection with the westerly side of Raymond Street;

Thence northerly along the westerly side of Raymond Street to its intersection with the southerly side of Smith Street;

Thence westerly along the southerly side of Smith Street to its intersection with the westerly side of Huxley Avenue;

Thence northerly along the westerly side of Huxley Avenue to its intersection with the southerly side of Admiral Street;

Thence westerly along the southerly side of Admiral Street to its intersection with the westerly side of Sharon Street;

Thence southerly along the westerly side of Sharon Street to its intersection with the northerly side of Naples Avenue;

Thence southerly along the northerly side of Naples Avenue to the easterly intersection with Enfield Avenue;

Thence northerly along the easterly side of Enfield Avenue to its intersection with the southerly side of Isabella Avenue;

Thence westerly along the southerly side of Isabella Avenue to its intersection with the easterly side of Longwood Avenue;

Thence southerly along the easterly side of Longwood Avenue to its intersection with the northerly side of Smith Street;

Thence southerly along the northerly side of Smith Street to its intersection with the southwesterly side of Cathedral Avenue;

Thence southerly along the southwesterly side of Cathedral Avenue to its intersection with the easterly side of Mt. Pleasant Avenue;

Thence northerly along the easterly side of Mt. Pleasant Avenue to its intersection with the North Providence town line;

Thence northerly along the North Providence town line to the point and place of beginning.
(Ord. 1996, ch. 96-24, § 1, 5-23-96; Ord. 1997, ch. 97-16, § 1, 2-26-97)

Sec. 20-3. Area 2.

Beginning at a point of the centerline of Interstate Route 146 and its intersection with the North Providence town line;

Thence turning and running in a southerly direction along Interstate Route 146 to its intersection with Interstate Route 95;

Thence [turning] and running in a northerly direction along Interstate Route 95 to its intersection with the southerly side of Industrial Drive;

Thence turning and running in an easterly direction along the southerly side of Industrial Drive to its intersection with the westerly side of North Main Street;

Thence turning and running in a southerly direction along the westerly side of North Main Street to the intersection with the westerly side of Canal St.

Thence turning and running southeasterly along Canal Street to the point where Canal Street intersections with the centerline of Memorial Boulevard;

Thence turning and running in a southeasterly direction along said centerline to its intersection with the westerly harbor line of the Providence River;

Thence turning and running southeasterly along said harborline approximately 4,000 feet;

Thence turning and running northeasterly approximately 800 feet to its intersection with the easterly harbor line of the Providence River and Seekonk River;

Thence turning and running along said harbor lines of the Providence River and Seekonk River to its intersection with the Amtrak right-of-way;

Thence in a generally northwesterly direction approximately 1,200 feet to its intersection with the westerly side of Gano Street;

Thence northerly along the westerly side of Gano Street to its intersection with the southerly side of East George Street;

Thence westerly along the southerly side of East George Street to its intersection with the easterly side of Governor Street;

Thence southerly along the easterly side of Governor Street to its intersection with the southerly side of Power Street;

Thence westerly along the southerly side of Power Street to its intersection with the easterly side of Thayer Street;

Thence southerly alone the easterly side of Thayer Street to its intersection with the southerly side of John Street;

Thence westerly along the southerly side of John Street to its intersection with the westerly side of Benefit Street;

Thence northerly along the westerly side of Benefit Street to its intersection with the southerly side of Angell Street;

Thence easterly along the southerly side of Angell Street to its intersection with the easterly side of DeFoe Place;

Thence northerly along the westerly side of the extended easterly side of DeFoe Place to its intersection with the southerly side of Meeting Street;

Thence westerly along the southerly side of Meeting Street to its intersection with the easterly side of Congdon Street;

Thence northerly along the easterly side Congdon Street to its intersection with the southerly side of Halsey Street;

Thence easterly along the southerly side of Halsey Street to its intersection with the westerly side of Brown Street;

Thence northerly along the westerly side of Brown Street to its intersection with the southerly side of Olney Street;

Thence easterly along the southerly side of Olney Street to its intersection with the westerly side of Hope Street;

Thence northerly along the westerly side of Hope Street to its intersection with the southerly side of Doyle Avenue;

Thence westerly along the southerly side of Doyle Avenue to its intersection with the westerly side of Camp Street;

Thence northerly along the westerly side of Camp Street to its intersection with the southerly side of Rochambeau Avenue;

Thence westerly along the southerly side of Rochambeau Avenue to its intersection with the westerly side of North Main Street;

Thence northerly along the westerly side of North Main Street to its intersection with the easterly side of Cemetery Street;

Thence northerly along the easterly side of Cemetery Street to its intersection with the westerly side of Nashua Street;

Thence northerly along the westerly side of Nashua Street to its intersection with the city line;

Thence turning and running in a westerly direction along the city line to the point and place of beginning.
(Ord. 1996, ch. 96-24, § 1, 5-23-96; Ord. 1997, ch. 97-16, § 1, 2-26-97)

Sec. 20-4. Area 3.

Beginning at the southwesterly intersection of Interstate Route 146 and Interstate Route 95;

Thence turning and running along Interstate Route 95 in a southerly direction to a point opposite the westerly side of Henderson Street;

Thence turning and running easterly along the southerly side of Henderson Street to its termination at the harbor line;

Thence turning and running northerly along the harbor line to its southwesterly intersection with the Crawford Street Bridge;

Thence turning and running northeasterly along the southeasterly side of Crawford Street to its intersection with South Water Street;

Thence turning and running northerly along South Water Street to the point where South Water Street becomes Canal Street;

Thence turning and running northerly along Canal Street to its intersection with the westerly side of North Main Street;

Thence turning and running northerly along the westerly side of North Main Street to its intersection with the southerly side of Industrial Drive;

Thence turning and running westerly along the southerly side of Industrial Drive to its intersection with Interstate Route 95;

Thence turning and running southerly along Interstate Route 95 to the point and place of beginning.
(Ord. 1996, ch. 96-24, § 1, 5-23-96)

Sec. 20-5. Area 4.

Beginning at the intersection of the centerlines of the Town of Johnston and the Woonasquatucket River;

Thence turning and running westerly along the Johnston Town Line and the Providence city line;

Thence turning and running southerly along the Providence city line and the Johnston town line to its intersection with Sunset Avenue;

Thence turning and running southeasterly along the southerly side of Sunset Avenue to its intersection with Killingly Street;

Thence turning and running southeasterly along the southerly side of Killingly Street to its intersection with Duxbury Street;

Thence turning and running southerly along the westerly side of Duxbury Street to its intersection with Plainfield Street;

Thence turning and running southerly along the westerly side of Plainfield Street to its intersection with the Cranston city line;

Thence turning and running easterly along the Cranston and Providence city line;

Thence turning and running along the Cranston and Providence city line to its intersection with the harbor line;

Thence turning and running northerly along the harbor line to its intersection with Henderson Street;

Thence turning and running westerly along the southerly side of Henderson Street to its intersection with Interstate Route 95;

Thence turning and running northerly along Interstate Route 95 to its intersection with Interstate Route 6;

Thence turning and running westerly along Interstate Route 6 to its intersection with the Woonasquatucket River;

Thence turning and running northerly along the Woonasquatucket River to the point and place of beginning.
(Ord. 1996, ch. 96-24, § 1, 5-23-96)

Chapter 21

REVENUE AND FINANCE*

Article I. In General

Sec. 21-1. Fiscal year established, effect; payment of taxes regulated.
Sec. 21-2. Deduction of abated taxes.
Sec. 21-3. Payment of remitted taxes.
Sec. 21-4. Authority to compromise interest on overdue taxes, assessments.
Sec. 21-5. Acceptance of money derived from real property purchased at tax sales.
Sec. 21-6. Authority to employ collection attorneys.
Sec. 21-6.1. Attorneys' fees and court costs in collection of delinquent taxes, fees, etc..
Sec. 21-7. Exchange of coupon bonds for registered bonds.
Sec. 21-8. Exchange of registered bonds for coupon bonds.

***Cross references—**Expenditures by committees of council, § 2-28; committee on finance, § 2-32 et seq.; city council internal auditor, § 2-42; copy of vote or council requiring expenditures, § 2-49; copies of proposals and ordinances relating to finance, § 2-50; duties of city treasurer, § 2-65 et seq.; regulating urban renewal expenditures, § 2-71.1; city controller, § 2-84 et seq.; monthly report of expenditures, obligations of city messenger, § 2-183; account for superintendent of weights and measures, § 2-207; city plan commission to cooperate with finance director as to capital improvements, § 2-253; payment of primary and election officials, § 2-298 et seq.; fees, accounts of superintendent of North Burial Ground, § 6-26, 6-27; funds received from North Burial Ground, § 6-34; fines, costs, fees in police court, § 8-2; relief of the poor, § 12-28 et seq.; maintenance of municipal garage, fund therefore, § 15-86 et seq.; compensation and other benefits for officers and employees, § 17-55 et seq.; board of park commissioners to direct expenditures, approve and certify accounts, § 18-36; not to incur debts in excess of appropriations, § 18-37; appropriations for schools, § 22-1; report of street work to be accompanied by cost estimate, § 23-11.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; audit of accounts and installation of accounting systems, Ch. 45-10, Gen. Laws 1956; establishment, use of reserve funds, Ch. 45-11, Gen. Laws 1956; indebtedness of towns and cities, Ch. 45-12, Gen. Laws 1956; housing authority bonds, obligations, Ch. 45-27, Gen. Laws 1956; redevelopment financing, Ch. 45-33, Gen. Laws 1956; duty to furnish information to chief of division of state taxation, §§ 44-1-5, 44-1-6, Gen. Laws 1956; duty of assessor to deliver copies of tax assessment to board of canvassers and registration, Gen. Laws, Ch. 312, § 19, as amended by P.L. 1940, Ch. 819, § 2, which however, have been impliedly repealed by Art. 29 of the State Constitution.

Sec. 21-9. Disposition of fees collected by city officers.
Sec. 21-10. Report of fees, financial reports to be furnished controller.
Sec. 21-11. Certificate of bills and licenses to be filed with controller.
Sec. 21-12. Cancellation of uncollectible bills.
Sec. 21-13. Filing fee for petition to abandon public highway.
Sec. 21-14. Filing fee for petition to amend zoning ordinance, map.
Sec. 21-15. Board of tax assessment review to appoint executive secretary and other assistants.
Sec. 21-15.1. Board of tax assessment review to hear appeals on excise tax.
Sec. 21-16. Projection of revenues and expenditures.
Sec. 21-16.1. Schedule of purchase requests on agenda.
Sec. 21-17. Limitation on amount of tax anticipation notes outstanding.
Sec. 21-18. Authority of department heads to compromise certain municipal claims.
Sec. 21-19. Capital equipment budget.
Sec. 21-20. Designation of agent for the purpose of receiving process.
Sec. 21-21. Annual budget and oversight.
Sec. 21-22. Annual audit.
Sec. 21-23. Notification of external audits.
Sec. 21-24. Providence Public School Department Capital Improvement Revolving Fund.
Sec. 21-25. Reserved.

Article II. Contracts, Purchases and Sales

Sec. 21-26. Necessity for appropriation for contract, purchase.
Sec. 21-26.1. Scheduling of purchase requests on agenda.
Sec. 21-27. Competitive bidding.
Sec. 21-28. Division of purchase orders.
Sec. 21-28.1. Qualifications of parties doing business with the city.
Sec. 21-29. Emergencies.
Sec. 21-30. Duty to furnish plans and specifications for work, materials.
Sec. 21-31. Sealed bids to be submitted—Generally.
Sec. 21-31.1. Same—Leasing of property.
Sec. 21-32. Check or bond accompanying bid may be required; presentation of bids and bonds.
Sec. 21-33. Opening bids.
Sec. 21-34. Authority to reject bids.
Sec. 21-35. Duty to preserve abstract of bids.
Sec. 21-36. Form of contracts and purchases entered into.
Sec. 21-37. Authority to require performance bond to accompany contract.
Sec. 21-38. Crediting payment for labor, materials to appropriation from which money expended.

Sec. 21-38.1. Mailing of checks to vendors.
Sec. 21-39. Leases to be furnished controller.
Sec. 21-39.1. Acquisition of titles of tax-reverted properties for resale as dwellings.
Sec. 21-40. City assessor ex officio member of board for purchase of real estate.
Sec. 21-41. Purchase of real estate—Duty of board of contract and supply.
Sec. 21-42. Same—Duty to submit information, obtain approval.
Sec. 21-43. Form of agreement for purchase of land.
Sec. 21-44. Agreements arising out of condemnation of city's land.
Sec. 21-45. Employment of experts for purchase, condemnation of real property.
Sec. 21-46. Vendors to submit claims to controller.
Sec. 21-47. Form and manner of submission of claims by vendors.
Sec. 21-48. Contracts for storage of city's automobiles.
Sec. 21-49. Sale of unclaimed property by purchasing agent.
Sec. 21-50. Article not applicable to appointment, compensation of officers.
Sec. 21-51. Article not applicable to certain work of city employees.
Sec. 21-52. Minority and women business enterprises.
Sec. 21-53. Regulation of assignments or sale of tax titles in bulk by the collector.
Sec. 21-54. Sole source verification.
Secs. 21-55—21-62. Reserved.

Article III. Funds

Division 1. In General

Sec. 21-63. Investment of general fund cash and short-term securities and certificate of indebtedness.
Sec. 21-63.1. The city investment policy.
Sec. 21-64. Fire insurance fund.
Sec. 21-65. Waterworks depreciation and extension fund.
Sec. 21-66. Automobile accident fund.
Sec. 21-67. School fund.
Sec. 21-68. Housing authority fund.
Sec. 21-69. Henry B. Anthony fund for memorial fountain; use regulated.
Sec. 21-70. Refund of collections account.
Sec. 21-71. Fire uniform allotment account.
Sec. 21-72. Police uniform allotment account.
Sec. 21-73. Retention of cash by departments for making change.
Sec. 21-74. Animal care center fund.
Sec. 21-75. [Reserve funds.]
Sec. 21-76. Youth sports fund and grant program.
Sec. 21-77. Reserved.

Division 2. Sinking Funds

Sec. 21-78. Chairman, secretary, treasurer designated.

Sec. 21-79. Duty to keep record of meetings, proceedings.
Sec. 21-80. Quarterly report to council required.
Sec. 21-81. Examination, report of investment securities in sinking funds.
Sec. 21-82. Custody of securities and books of account.
Sec. 21-83. Control and management, investment of sinking funds.
Sec. 21-84. Preference to bonds and notes of city.
Sec. 21-85. Form of securities purchased; negotiability.
Sec. 21-86. Percentage of indebtedness to valuation limiting investment by board.
Sec. 21-87. Vote required on investment or change of investment.
Sec. 21-88. Deposits in sinking fund for redemption of water bonds.
Sec. 21-89. Custody of perpetual care fund of North Burial Ground.
Sec. 21-90. Payments to board from sales of real estate for application to city debt.

Article III½. First Source Agreements

Sec. 21-91. Applicability.
Sec. 21-91.1. Legislative findings.
Sec. 21-91.2. Covered employers.
Sec. 21-92. Covered jobs.
Sec. 21-93. Nature of first source applicability.
Sec. 21-94. First source oversight.
Sec. 21-95. Funding.
Sec. 21-96. Enforcement.
Sec. 21-96.1 Rules and regulations.
Sec. 21-96.2 Severance provision.

Article IV. Relocation Payments

Sec. 21-97. Definitions.
Sec. 21-98. Authority to make payments for moving expenses and property losses.
Sec. 21-99. Determination of amounts to be paid.
Sec. 21-100. Limits on amounts of payments.
Sec. 21-101. Rules, regulations applicable to payments.
Secs. 21-102—21-110. Reserved.

Article V. Real Property Tax Exemption for Elderly

Sec. 21-111. Exemption granted; conditions.
Sec. 21-112. Filing of application; proof of right to exemption.
Sec. 21-113. Termination of exemptions.
Secs. 21-114—21-120. Reserved.

Article V½. Real Property Tax Exemption for the Disabled

Sec. 21-121. Authority of council to grant; qualifications.

Sec. 21-122. Filing of application; proof of right to exemption.
Sec. 21-123. Termination of exemption.

Article V6/10. Real Property Tax Exemption for Persons Aged Sixty-Two Through Sixty-Four Years of Age Receiving Social Security Old Age Insurance Benefits

Sec. 21-124. City assessor to grant; qualification.
Sec. 21-125. Filing of application; proof of right to exemption.

Article V7/10. Increases in the Amount of Various Real Property Tax Exemptions

Sec. 21-126. Increase in real property tax exemptions.

Article V8/10. Real Property Relief for Owner-Occupied Residential Real Estate Wherein Household Income is Not Greater Than Seventeen Thousand Five Hundred Dollars Per Annum

Sec. 21-127. Residential real property tax relief; qualification.
Sec. 21-128. Filing of application; proof of right to relief.

Article V9/10. Real Property Tax Exemption for Former Prisoners of War and Veterans of Enumerated Conflicts

Sec. 21-128.1. Exemption granted.
Sec. 21-128.2. Filing of application; qualifications.

Article VI. Tax Abatement on Rehabilitated Property

Sec. 21-129. Definitions.
Sec. 21-130. Reserved.
Sec. 21-131. Requirements for qualification.
Sec. 21-132. Application; documentation.
Sec. 21-133. Prohibited tax sale; effect of prior sale.
Sec. 21-134. Requirements for final approval by city collector.
Sec. 21-135. Time limit for council approval.
Sec. 21-136. Lien to be placed on deed.
Secs. 21-137—21-140. Reserved.

Article VII. Providence Review Commission

Sec. 21-141. Declaration of policy.
Sec. 21-142. Creation of review commission.

Sec. 21-143. Authority of the commission.
Sec. 21-144. Cooperation.
Sec. 21-145. Operation of the commission.
Sec. 21-146. Reports by the commission.
Secs. 21-147. Prohibitions; penalties, disciplinary action, etc.
Secs. 21-148—21-159. Reserved.

Article VIII. Tax Stabilization for Industrial Property

Sec. 21-160. Declaration of policy.
Sec. 21-161. Eligible property.
Sec. 21-162. Procedure.
Sec. 21-163. Exemption.
Sec. 21-164. Forms and administration.
Sec. 21-165. Limited scope.
Sec. 21-166. Abatement not available for intrastate relocations.
Sec. 21-167. Transfers of exempt property.
Sec. 21-168. Revocation.
Sec. 21-169. Tax stabilization for certain commercial, industrial and residential property.
Sec. 21-170. Tax stabilization for certain exterior lighting.
Sec. 21-171. Downcity tax district.
Sec. 21-172. Property taxes for designated properties.

Article IX. Motor Vehicle Tax Exemption for the Handicapped

Sec. 21-173. Authorized; amount.
Sec. 21-174. Basis for exemption.
Sec. 21-175. Application.
Sec. 21-176. Scope.
Secs. 21-177—21-180. Reserved.

Article X. Property Tax Classification for the City

Sec. 21-181. Property tax classification.
Sec. 21-182. Apportionment of taxes.
Sec. 21-183. Reserved.
Secs. 21-184—21-190. Reserved.

Article XI. Tax Exemption for Computer and Telephone Equipment

Sec. 21-191. Declaration of policy.
Sec. 21-192. Eligible property.
Sec. 21-193. Procedure.

Sec. 21-194. Exemption.
Sec. 21-195. Forms and administration.
Sec. 21-196. Limited scope.
Sec. 21-197. Abatement not available for intrastate relocation.
Sec. 21-198. Transfers of exempt property.
Sec. 21-199. Relocation of company.
Sec. 21-200. Revocation.
Sec. 21-201. Job creation—Providence residents.
Secs. 21-202—21-210. Reserved.

Article XII. Tax Exemption for Certain Property Owned by the Providence Redevelopment Agency

Sec. 21-211. Tax-exempt property acquired for the development of the MET School and the development of the public safety facility.
Sec. 21-212. Generally—Tax exempt property.

Article XIII. Business Improvement Districts

Sec. 21-213. Definitions and construction.
Sec. 21-214. Creation of district or subdistrict.
Sec. 21-215. Public hearing on petition.
Sec. 21-216. Creation of authority.
Sec. 21-217. The authority.
Sec. 21-218. Purposes of authority.
Sec. 21-219. Powers of authority.
Sec. 21-220. Bylaws.
Sec. 21-221. Governing board.
Sec. 21-222. Officers.
Sec. 21-223. Annual budget.
Sec. 21-224. Special tax assessments.
Sec. 21-225. Limit on assessments.
Sec. 21-226. Collection of assessments.
Sec. 21-227. Petition for relief from assessment.
Sec. 21-228. Agreements with the city.
Sec. 21-229. Amendment.
Sec. 21-230. Dissolution.
Sec. 21-231. Exemption from taxation.
Sec. 21-232. Credit of city not pledged.
Sec. 21-233. Exemption from liability.
Sec. 21-234. Notice of creation of district; actions to contest.
Sec. 21-235. Property taxes for designated historic properties.
Secs. 21-236—21-240. Reserved.

Article XIV. Industrial and Commercial Building District Tenant Relocation Program

Sec. 22-241. Purpose and intent.
Sec. 21-242. Definitions.
Sec. 21-243. Administration.
Sec. 21-244. Program.
Secs. 21-245—21-250. Reserved.

Article XV. Real Estate Non-Utilization Tax

Sec. 21-251. Authority.
Sec. 21-252. Definitions.
Sec. 21-253. Notice of designation as vacant and abandoned.
Sec. 21-254. Imposition.
Sec. 21-255. Exceptions.
Sec. 21-256. Abatement of tax.
Sec. 21-257. Appeals.
Sec. 21-258. Use of collected taxes.
Sec. 21-259. Reserved.

Article XVI. Tax Predictability for Commercial and Multi-Family Residential Property

Sec. 21-260. Authorization and purpose.
Sec. 21-261. Eligible properties.
Sec. 21-262. Criteria.
Sec. 21-263. Tax considerations and stabilization period.
Sec. 21-264. Transfer of exempt or stabilized property.
Sec. 21-265. Forms and procedures.
Sec. 21-266. Employment and contracts.
Sec. 21-267. Revocation.
Sec. 21-268. [Appeals.]
Sec. 21-269. Severability.
Sec. 21-270. Applicable law.

Article XVII. Providence Neighborhood Revitalization Act for Commercial and Multi-Family Residential Property

Sec. 21-271. Authorization and purpose.
Sec. 21-272. Eligible properties.
Sec. 21-273. Definitions.
Sec. 21-274. Criteria.
Sec. 21-275. Tax considerations.
Sec. 21-276. Transfer of exempt or stabilized property.

Sec. 21-277. Forms and procedures.
Sec. 21-278. Employment and contracts.
Sec. 21-279. Ineligible properties.
Sec. 21-280. Revocation.
Sec. 21-281. [Appeals.]
Sec. 21-282. Severability.
Sec. 21-283. Applicable law.
Secs. 21-284—21-300. Reserved.

Article XVII. Providence Tax Stabilization Investment Act

Sec. 21-301. Scope.
Sec. 21-302. Definitions.
Sec. 21-303. Eligible project.
Sec. 21-304. Tax stabilization.
Sec. 21-305. Application procedure, approval, and drafting.
Sec. 21-306. Additional requirements for stabilized projects.
Sec. 21-307. Transfer of property.
Sec. 21-308. Annual progress report.
Sec. 21-309. Severability.
Sec. 21-310. Applicable law.
Sec. 21-311. Default notice and cure.
Sec. 21-312. Tax amnesty.

ARTICLE I. IN GENERAL

Sec. 21-1. Fiscal year established, effect; payment of taxes regulated.

The 1969-1970 fiscal year of the city government shall begin on the first day of October, 1969 and shall end on the thirtieth day of June, 1970 and thereafter the fiscal year of the city shall begin on the first day of July and shall end on the thirtieth day of June. Such fiscal year shall constitute the budget and accounting year. As used herein, the term "budget year" shall mean any fiscal year for which any particular budget is administered. Taxes shall be due and payable on a day fixed by resolution but not later than the thirtieth day following the beginning of each fiscal year. The council shall also determine by resolution the installments in which taxes may be paid, the dates on which penalties for nonpayment shall apply, and the rate of such penalties.
(Ord. 1914, ch. 20, § 1; Rev. Ords. 1946, ch. 1, § 8; Ord. 1969, ch. 69-25, § 1, 7-2-69)

Sec. 21-2. Deduction of abated taxes.

Whenever any tax or portion of a tax assessed against any person, which has not been paid into the city treasury shall be abated by the city council, the city collector shall deduct the amount so abated from the tax of the person assessed, and credit himself with the amount abated, for which he was charged. Such abatement shall also be entered on the records of the city treasurer.
(Ord. 1914, ch. 20, § 53; Rev. Ords. 1946, ch. 2, § 83)

Sec. 21-3. Payment of remitted taxes.

Whenever any tax or portion of a tax assessed against any person, which has been paid into the city treasury, shall be ordered remitted by the city council, the amount so remitted shall be paid to the person entitled to receive it in the same manner as other bills or claims against the city are paid.
(Ord. 1914, ch. 20, § 53; Rev. Ords. 1946, ch. 2, § 82)

Sec. 21-4. Authority to compromise interest on overdue taxes, assessments.

(a) The city collector, subject to the approval of the finance director, is hereby authorized and empowered in his or her discretion to comprise interest which may be due on overdue and unpaid taxes or other assessments whenever such action appears to be in the best interests of the city. The authority hereby vested in the city collector shall apply to interest on taxes already assessed or to be assessed from time to time. Such action by the city collector shall not be deemed to be inconsistent with the provisions of the annual ordinance ordering the assessment and collection of taxes in the city, nor with providing penalties in accordance with R.I.G.L. Ch. 44, § 5.7.

(b) There shall be a grace period, from the due date for quarterly tax payments set forth in the municipal levy ordinance to the end of that calendar month. If a quarterly payment is made within that grace period, the city collector shall waive any interest or penalties for overdue payment. Such action by the city collector shall not be deemed to be inconsistent with the provisions of the annual ordinance ordering the assessment and collection of taxes in the city, nor with providing penalties in accordance with R.I.G.L. Ch. 44, § 5.7.
(Ord. 1945, ch. 1386, § 1; Rev. Ords. 1946, ch. 2, § 84; Ord. No. 2015-21, § 1, 7-7-15)

Sec. 21-5. Acceptance of money derived from real property purchased at tax sale.

The city treasurer is hereby authorized to accept for and in behalf of the city all money payable to the city for and on account of real estate purchased by the city at any tax sale authorized by R.I.G.L. 1938, ch. 32, §§ 41 to 48 as amended by P.L. 1939, c. 695 and by P.L. 1946, and redeemable under the provisions of R.I.G.L. 1938, ch. 32, § 17, as amended by P.L. 1939, c. 695 and P.L. 1946.
(Ord. 1936, ch. 931, § 1; Rev. Ords. 1946, ch. 2, § 80)

Cross reference—Execution of quitclaim deed when property sold for taxes redeemed, § 2-73.

Sec. 21-6. Authority to employ collection attorneys.

The city collector, with the approval of the finance director and the city solicitor, is hereby authorized and directed to employ attorneys-at-law to aid in the collection of delinquent accounts receivable due and payable to the city. The terms and conditions of employment, including compensation, shall be determined by the finance director. The city council shall appropriate such sum of money as may be deemed necessary to pay for such services and for all other expenses to be reasonably incurred in connection therewith. Payments shall be made upon vouchers duly approved by the city collector and the finance director.
(Ch. 2, § 84.1, added by Ord. 1959, ch. 1244, § 1; Ord. 1966, ch. 1780, § 1, 8-16-66)

Sec. 21-6.1. Attorneys' fees and court costs in collection of delinquent taxes, fees, etc.

(a) Any person (as defined in R.I.G.L. § 44-7-1) who is delinquent for more than thirty (30) days in the payment of any tax, fee, or assessment of whatever nature due and payable to the City of Providence, Rhode Island, shall be liable for the assessment and payment of reasonable attorneys' fees and court costs incurred by the city in the collection of the said delinquent taxes, fees or assessments.

(b) The said attorneys' fees and court costs shall be assessed in addition to any other penalty or charge allowed by law, including but not limited to legal interest.

(c) The provisions of this section shall be in addition to and not in lieu of or in derogation of any authority or power provided to the city or the city collector under existing laws or ordinances.
(Ord. 1984, Ch. 84-71, §§ 1—3, 10-23-84)

Editor's note—At the discretion of the editor, §§ 1—3 of Ch. 84-71, approved Oct. 23, 1984, have been codified as § 21-6.1.

Sec. 21-7. Exchange of coupon bonds for registered bonds.

Whenever any holder of any of the coupon bonds of the city shall surrender such bonds to the city treasurer with the unpaid coupons affixed, accompanied by a request

for registered bonds in like value, said city treasurer is empowered to make such exchange and he shall make such entry in a book kept for that purpose that will identify the complete transaction of exchange.
(Rev. Ord. 1946, ch. 2, § 77; Ord. 1968, ch. 68-15, § 1, 3-7-68)

Cross reference—Duties as to register of notes, bonds, other obligations, § 2-72.

Sec. 21-8. Exchange of registered bonds for coupon bonds.

(a) The city treasurer may from time to time and upon request of the holders of registered bonds, issue coupon bonds payable to bearer, or cause them to be issued, in exchange for a like principal amount of such registered bonds of the city.

(b) Whenever registered bonds are issued in exchange for coupon bonds, the committee on finance and the city treasurer shall report to the city council their proceedings under this section.
(Ord. 1944, ch. 1248, § 1; Rev. Ords. 1946, ch. 2, §§ 77, 79; Ord. 1968, ch. 68-14, § 1, 3-7-68)

Cross reference—Duty of treasurer to register notes, bonds and other obligations, § 2-72.

Sec. 21-9. Disposition of fees collected by city officers.

All fees and moneys received by the clerk of the probate court and his assistants, the superintendent of health and his assistants, the city registrar and his assistants, and any other city officer for any certificates, or making any copies of any documents, instruments, papers or records in their custody or on file in their several departments, or other act or thing incident to the performance of their duties, or in any manner related to or dependent upon their office or employment, shall be turned into the city treasury.
(Ord. 1914, ch. 55, § 5; Rev. Ords. 1946, ch. 2, § 78)

Cross references—Disposition of fines, costs, fees in police court, § 8-2; certification, payment of fees to witnesses in police court, § 8-3.

Sec. 21-10. Report of fees, financial reports to be furnished controller.

All officers and departments required by law to pay fees or money received by them to the city collector shall make such financial reports to the city controller as he may from time to time request.
(Ord. 1918, ch. 204, § 1; Rev. Ords. 1946, ch. 2, § 177)

Cross reference—Provisions pertaining to city controller, § 2-84 et seq.

Sec. 21-11. Certificates of bills and licenses to be filed with controller.

All officers and departments required to deposit bills with the city collector for collection or to issue licenses upon the payment of fees to the city collector, shall file

with the city controller a certificate of the total amount of all bills so deposited and of licenses so issued, with a statement of the accounts to which the same should be credited when paid.
(Ord. 1914, ch. 20, § 22; Rev. Ords. 1946, ch. 2, § 179)

Cross reference—City controller, § 2-84 et seq.

Sec. 21-12. Cancellation of uncollectible bills.

It shall be the duty of the officer having charge of any department in which any indebtedness to the city shall accrue, to make out and leave at the office of the city collector accounts thereof within one month, and to send to the person so indebted copies thereof, with notices that said accounts are due and payable as aforesaid. If any such indebtedness has not been collected within a period of three (3) years, the city collector shall refer the same to the city solicitor for an opinion as to whether or not said indebtedness is uncollectible, and if the city solicitor shall certify that in his opinion any such indebtedness is uncollectible, the collector may withdraw and cancel said accounts.
(Ord. 1937, ch. 945, § 1; Rev. Ords. 1946, ch. 2, § 84½)

Cross reference—Statement by controller of accounts deposited with collector for collection, § 2-86.

Sec. 21-13. Filing fee for petition to abandon public highway.

No petition for an abandonment of a public highway shall be accepted by the clerk of the city council, unless accompanied by a filing fee of seventy-five dollars ($75.00) which shall be deposited with the city clerk, and no part of which shall be returnable to the petitioner.
(Ord. 1965, ch. 1706, § 1; Ord. 1981, ch. 81-1, § 1, 1-8-81)

Sec. 21-14. Reserved.

Editor's note—Ord. 1994, ch. 94-17, approved June 13, 1994, repealed § 21-14, which pertained to filing fee for petition to amend zoning ordinance and derived from Ord. 1965, ch. 1706, § 1; Ord. 1967, ch. 1876, § 1, approved September 21, 1967; Ord. 1970, ch. 70-10, § 1, approved March 15, 1970; Ord. 1972, ch. 72-17, § 1, approved March 10, 1972 and Ord. 1981, ch. 81-5, § 1, adopted February 26, 1981.

Sec. 21-15. Board of tax assessment review to appoint executive secretary and other assistants.

(a) The board of tax assessment review shall appoint, without the necessity of any approval or confirmation by any other person or body, an executive secretary who shall serve at the pleasure of the board and who shall exercise and perform such powers and duties as may be prescribed by the board. Said secretary shall receive such compensation as may be fixed by the city council.

(b) Said board of tax assessment review may also appoint and discharge, and prescribe the powers and duties of such clerks, assistants, subordinates and other persons or officers serving under their supervision whose employment may be authorized by law, resolution or ordinance.
(Ord. 1945, ch. 1372, §§ 1, 2; Rev. Ords. 1946, ch. 2, § 149) ;percent; Board of tax assessment review, § 6.11 et seq.

Sec. 21-15.1. Board of tax assessment review to hear appeals on excise tax.

The board of tax assessment review shall have the power to hear, review and act upon appeals of the assessment of vehicles for purposes of determining excise tax in the same manner as it acts upon real estate assessments.
(Ord. No. 1981, ch. 81-45, § 1, 9-17-81)

Editor's note—Ord. 1981, ch. 81-45, § 1, effective Sept. 17, 1981, added § 21-16 to the Code; in order to avoid duplicate section numbers, the editor has redesignated said section as § 21-15.1.

Sec. 21-16. Projection of revenues and expenditures.

[When] the finance director, mayor, or member of the city council submits an appropriation ordinance and/or amendment thereof to the city council of the City of Providence, [said ordinance or amendment] shall be null and void unless it is in compliance with the hereinafter-prescribed formula:

(a) *Property and excise taxes in lieu of machinery equipment and inventory tax, water fund, sewer rentals.* The estimated receipts of such taxes or levies shall be based on a projected collection rate to be no higher than one (1) percent more of collection than that which was the actual collection for the last full year for which final receipts are available.

(b) *Business and nonbusiness licenses* shall be estimated at no more than the amount received in the last full year for which final receipts are available, excepting therefrom any new category and increases of fees of licenses, said new categories to be listed separately in the first year of collection only.

(c) *General departments and fines.* Estimated receipts from general departments and fines shall be no higher than the amount received in the last full year for which final receipts are available, excepting therefrom any new category or receipts, which shall be listed separately in the first year of collection only.

(d) *State and federal revenue sharing, state and federal grants and aid to education* shall be estimated at a rate no more than the amounts actually committed to the city under existing federal and state formulas.

(e) *Rents and interest.* Rents shall be estimated no higher than those amounts currently being collected from leases in effect; provided, however, any escalation in rents called for pursuant to existing leases or new leases which have

been approved by the committee on city property shall be listed separately in the first year of collection only. Interest shall be estimated at a rate no higher than that collected.

(f) *Collection of delinquent taxes, rents, sales of city-owned real estate, escheats and forfeitures* shall not be included in any estimated collection of revenues unless said amounts have been collected or a written agreement evidencing the intent to pay said delinquent amounts or sums certain has been signed by the person or persons owing said delinquent amount or sums certain.

(g) *Collection of prior year's taxes* shall be estimated to be no higher than the actual collections for the last full year for which figures are available.

(h) *Estimate of expenditures* for the City of Providence shall not be based at a rate higher than one hundred two and five-tenths (102.5) percent of the previously approved budget for the said city.

(Ord. 1981, ch. 81-18, § 1, 3-26-81)

Cross references—Fiscal notes to accompany ordinances, § 2-2.1; city council internal auditor, § 2-42; duty of city clerk to furnish copies of proposals and ordinances relating to finance, § 2-50.

Sec. 21-17. Limitation upon amount of tax anticipation notes outstanding.

No notes may be issued by the city in anticipation of taxes unless the amount of such notes, together with the amount of any other tax anticipation notes then outstanding, shall not exceed in the aggregate seventy (70) percent of the revenue receipts estimated in the appropriation ordinance for the fiscal year in which such notes are issued, other than for water bills and other earnings of the water supply board, remaining uncollected at the time said notes are issued. The limit set by this section shall be in addition to the limits set forth in section 45-12-4 of the General Laws and Section 26 of Chapter 1665 of the Public Laws of 1945, as amended.

(Ord. No. 1982, ch. 82-51, § 1, 8-6-82)

Editor's note—Ch. 82-51, § 1, approved Aug. 6, 1982, did not expressly amend the Code; therefore, inclusion as § 21-17 has been at the discretion of the editor.

Sec. 21-18. Authority of department heads to compromise certain municipal claims.

(a) Definitions:

(1) *Department head:* Shall mean those individuals categorized as such in the Home Rule Charter of the City of Providence.

(2) *Claim:* A claim arising out of the operation of law or contract of the City of Providence subrogated through an employee of the city.

(3) *Compromise:* To agree to accept less than the full value of the claim.

(b) Each department head may, with the advise and consent of the department of law and the city council committee on claims and pending suits, compromise claims of said department.
(Ord. 1988, ch. 88-17, § 1, 6-22-88)

Editor's note—Ch. 88-17, § 1, approved June 22, 1988, added provisions to Ch. 21, but did not specify manner of inclusion. At the discretion of the editor, therefore, said provisions have been included as § 21-18 herein.

Cross reference—Authority delegated to city solicitor to settle small claims against city, § 2-99.

Sec. 21-19. Capital equipment budget.

(a) *Definitions.* In this section:

Financing lease is any arrangement with vendor or financial institutions which involves the commitment of city funds from more than one (1) fiscal year.

(b) *Capital equipment ordinance.* As part of the annual budget submission, the mayor shall present to the city council a capital equipment ordinance detailing a budget for those items to be financed through financing leases in the upcoming year. Such ordinance shall list the items to be purchased for each department and the estimated cost of each item, and the payments to be made for each item in the future fiscal years. This ordinance may contain a line items for miscellaneous/emergency items, not to exceed one hundred thousand dollars ($100,000.00) which shall be used to fund emergency purchases of equipment and absorb costs which exceed the original estimates.

(c) *Purchase of items under lease-financing arrangements.* The agenda for the board of contract and supply shall indicate any items being purchased under lease-financing arrangements, and the city controller shall certify that there are sufficient uncommitted funds from the capital equipment budget to purchase the item. No purchase order shall be issued in the absence of such certification.

(d) *Listing of payments.* The capital equipment budget shall also include a listing, by department, of the payments under financing lease arrangements from previous years which are included in the operating budget.
(Ord. 1991, ch. 91-2, § 1, 1-4-91)

Sec. 21-20. Designation of agent for the purpose of receiving process.

Subsequent to the effective date of this section, any person who does not have his or her principal residence in the State of Rhode Island and who shall acquire any interest in real estate located in the city and any corporation, partnership, association or other entity which does not have its principal place of business in the State of Rhode Island and which shall acquire any interest in real estate located in the city shall designate an agent for the purpose of receiving process. Said agent shall have his or her principal resident or principal place or business located in the State of Rhode

Island. In the event any person or entity subject to the provisions of this section shall fail to designate an agent qualified hereunder, the recorder of deeds shall be deemed to be said agent.
(Ord. 1994, ch. 94-59, § 1, 12-27-94)

Editor's note—Nonamendatory Ord. 1994, ch. 94-59, § 1, approved Dec. 27, 1994, has been included herein as section 21-20 at the discretion of the editor.

Sec. 21-21. Annual budget and oversight.

(a) *Purpose.* The purpose of this section is to ensure the annual budget of the City of Providence is submitted in accordance with the requirements prescribed in the Providence Home Rule Charter and to establish proper oversight of the city's financial system.

(b) *Budget submission.*

(1) In accordance with Section 803 of the Providence Home Rule Charter, it shall be the duty of the mayor to frame and submit to the city council not later than sixty (60) days prior to the start of each fiscal year an operating budget for the ensuing fiscal year containing:

a. An estimate of the amount of any general fund surplus in the current fiscal year available for appropriation in the ensuing fiscal year;

b. An estimate of receipts for the ensuing fiscal year from taxes on real estate and tangible and intangible personal property;

c. An estimate of other receipts for the ensuing fiscal year itemized by sources;

d. Debt service requirements for the ensuing fiscal year;

e. An estimate of any deficit from the operations of the current fiscal year and any other charge or obligation required by the Providence Home Rule Charter or by law to be paid in the ensuing fiscal year;

f. An estimate of the expenditures recommended by the mayor as necessary or desirable for the purpose of carrying on the work of the several departments, offices and agencies of the city for the ensuing fiscal year itemized by activities and objects and related to the performance goals and objectives of each department, office and agency of the city under guidelines established by the finance director;

g. An overall statement of the financial condition of the city at the end of the last completed fiscal year, the estimated financial condition at the end of the current fiscal year, and an estimate showing what the financial condition at the end of the ensuing fiscal year would be in the event that the financial proposals contained in the budget should be adopted.

The operating budget shall further be arranged to show in parallel columns comparative figures for receipts and expenditures as estimated for the current fiscal year and the ensuing two (2) fiscal years and actual receipts and expenditures for the preceding two (2) fiscal years. The total of estimated expenditures listed in the operating budget shall not exceed the total receipts estimated therein, taking into account any general fund surplus or deficit estimated to be carried over from the current fiscal year and the estimated receipts from proposed new revenue measures within the authority of the city council to enact.

(2) Additionally, the mayor shall submit the following items at the time of the submission of the annual budget:

a. An itemized listing of any new revenue initiatives included in the proposed budget and a narrative detailing the same;

b. An itemized listing of non-recurring revenue sources greater than five thousand dollars ($5,000.00) in the proposed budget and a narrative detailing the same;

c. A narrative of each department and expenditure category highlighting any material changes in the financial or overall operations of the department or category;

d. An analysis of personnel costs including across-the-board salary increases, a listing of newly-established or eliminated positions, salary increases beyond scheduled step increases, and changes in fringe benefits;

e. An analysis of the healthcare budget, including detailed breakdown of the proposed budget, assumptions made for the upcoming fiscal year, and a year-to-date projection for the current fiscal year.

(c) *Submission of five-year financial plan.* In accordance with Section 813 of the Providence Home Rule Charter, the finance director shall develop a five-year financial plan for the city which shall be deposited by the mayor with the city clerk to be open for public inspection. The plan shall include projections of anticipated revenues and general estimates of expenditures during the five (5) fiscal years next ensuing, with appropriate supporting information, arranged so as to identify the planning goals, planning objectives and anticipated programs of city government for the ensuing five (5) years. The plan shall be revised annually and submitted to the council by December 31 of each year.

(d) *Capital budget submission.* In accordance with Section 812 of the Providence Home Rule Charter, at the same time that the mayor submits the operating budget to the city council, the mayor based upon estimates and recommendations of the city plan commission as provided for in Section 1013 of the Providence Home Rule Charter, shall prepare and submit to the city council a capital budget for the ensuing fiscal year and the next four (4) fiscal years thereafter. Said capital budget shall

embody the mayor's estimates of cost and recommendations of means of financing each project contained with the capital improvement program, provided that no project shall be included in said budget which has not been favorably considered by the city council. In acting on the capital budget, the city council may accept, reject or modify the projects described therein or the proposed methods of financing the same.

(e) *Reporting requirements.*

(1) In accordance with R.I.G.L. § 45-12-22.2, the finance director shall be required to submit to the city council and the internal auditor an operating statement on a monthly basis. The monthly reports shall be in a format prescribed by the division of property valuation and the state auditor general. This analysis shall be submitted within thirty (30) days of the end of the subsequent month and shall include, but is not limited to:

a. Year-to-date expenditures and revenues of all city departments, including the school department;

b. Year-end budget projections and variances.

(2) In accordance with R.I.G.L. § 45-12-22.2, the finance director shall be required to submit to quarterly financial reports to the city council and the internal auditor within thirty (30) days of the first day of January, April, and October. The quarterly reports shall be in a format prescribed by the division of property valuation and the state auditor general. This analysis shall include, but is not limited to:

a. Estimates of the revenue and expenses in the categories provided in the budget ordinance effective for three (3) months preceding its issuance and for the year-to-date, showing the variance of those items to the budgeted amounts;

b. Current month and year-to-date information on revenues and expenditures as well as comparison to the prior year.

(3) The finance director shall be required to submit a cash-flow analysis to the city council and internal auditor on a monthly basis. This analysis should be submitted within fifteen (15) days of the close of the previous month and shall include an analysis of all funds.

(4) The finance director and the director of administration shall be required to sign all monthly, quarterly, and cash-flow reports submitted to the city council and internal auditor to attest to the accuracy of said reports.

(f) *Severability.* If any word, phrase, clause, subsection, or section of this section is for any reason held unconstitutional or invalid by a court of competent jurisdiction, the invalidity thereof shall not affect the validity of any remaining portions of the section.

(Ord. 2011, ch. 2011-22, § 1, 7-7-11)

Sec. 21-22. Annual audit.

(a) *Purpose.* The purpose of this section is to improve the city's ability to efficiently and effectively monitor its financial system and ensure the highest standards of transparency in the annual audit.

(b) *Audit committee.*

(1) *Composition.* There shall be an audit committee which shall consist of five (5) members appointed by the city council, four (4) who shall be certified public accountants (CPAs), each to serve three-year terms, except that of the members initially appointed, two (2) shall serve a term of one (1) year, two (2) shall serve a term of two (2) years, and one (1) shall serve a term of three (3) years. The CPA members must hold professional qualifications in public finance. Members shall not be officers or employees of the City of Providence or of any quasi-city agencies or organizations.

(2) *Mission.* The audit committee shall oversee financial reporting practices, internal control procedures, assure compliance with laws and regulations relating to financial controls and related matters with the goal of improving financial transparency, improving the city council's oversight of city finances, and providing the public with a better understanding of the city's financial situation.

(3) *Authority and responsibilities.* The audit committee shall work with the office of the internal auditor and the city's independent external auditor to ensure audits are completed on time, that information and financial data is provided on a timely basis, and that independence is maintained between the independent external auditor and those responsible for the management of the city. The audit committee shall have the authority to obtain records from the director of finance, director of administration, and the independent external auditor. The committee shall issue an annual report to the city council with recommendations on ways to improve financial practices and reporting, to protect against fraud, to enhance the internal and external audit functions, and achieve reforms. It shall also review the city's accounting procedures manual.

(c) *Annual management letter.* As part of the annual audit conducted in accordance with Section 817 of the Providence Home Rule Charter, the independent external auditor shall issue an annual management letter. The annual management letter shall contain, but is not limited to, the auditor's conclusions regarding the city's accounting policies and procedures, internal controls, and operating policies. The annual management letter shall be issued within thirty (30) days after the release of the annual audit report.

(d) *Accounting procedures manual.* It shall be the duty of the director of finance to develop a comprehensive accounting procedures manual.
(Ord. 2011, ch. 2011-23, § 1, 7-7-11)

Sec. 21-23. Notification of external audits.

(a) *Preamble.* External audits from federal and state agencies have posed actual or potential impacts on the fiscal integrity and/or financial condition of the city, effecting subsequent annual budget appropriations or requiring mid-fiscal year appropriations.

(b) *Definitions.* "External agency" shall mean federal or state agency or an agency separate and apart from the city, or of any of its departments, agencies, boards, or commissions, imbued with regulatory, oversight, or auditing authority by federal or state law.

(c) *Notification.* Within seven (7) days of receipt of an external agency's notice of intent to audit a city department, agency, board or commission, it shall be the responsibility of the director of the respective department, agency, or quasi city agency to send a copy of the letter of intent to the internal auditor. Upon completion of the draft audit, copies of the draft shall be submitted to the internal auditor.

(d) *Confidential information.* When an audit emanates from confidential information, notice to any employee of the intent to audit does not render the specific confidential information public.
(Ord. No. 2019-17, § 1, 5-1-19)

Sec. 21-24. Providence Public School Department Capital Improvement Revolving Fund.

(a) Definitions.

Capital improvement projects means repairs or construction on a facility or facilities that enhance the facilities' condition, prolong its useful life, or adapt it to new uses. Capital improvement projects must be approved by the Rhode Island Department of Education, pursuant to R.I.G.L. § 16-7-36(2).

Housing aid payments shall mean those payment received through the Rhode Island Department of Education, which are customarily received annually on September 15 and March 15.

The revolving fund shall mean the Providence Public School Department Capital Improvement Revolving Fund established by this section.

(b) Consistent with the needs identified in the 2017 Statewide Facility Assessment identifying over six hundred million dollars ($600,000,000.00) in needed building infrastructure investment to address deficiencies in Providence public schools, the city seeks to further its support of safe and healthy schools by, among

other things, establishing and maintaining a fund designated as a revolving fund to be known as the "Providence Public School Department Capital Improvement Fund." The purpose of the revolving fund shall be to pursue and provide funding for additional capital improvement projects in Providence Public Schools.

(c) Initial funding.

(1) The city shall transfer a total initial investment of three million three hundred forty-six thousand seven hundred eleven dollars ($3,346,711.00) to the Providence Public School Department. The city's initial investment shall be obtained through the allocation of bond premiums for capital projects.

(2) The Providence Public School Department shall designate and provide a total initial funding investment of five million dollars ($5,000,000.00) from pandemic-related operational savings.

(3) For the fiscal year 2022, the initial investment of eight million three hundred forty-six thousand seven hundred eleven dollars ($8,346,711.00) (the "initial invested funds") shall be managed by the Providence Public Schools Department.

(d) Management of revolving fund.

(1) Any unspent funds remaining from the initial fund investments at the end of fiscal year 2022 shall be transferred to the revolving fund. Any reimbursement of funds via housing aid payments received through the Rhode Island Department of Education from the total collective initial fund investments, or any reimbursed funds, shall be reinvested in the revolving fund.

(2) Once established, the revolving fund shall be managed by the City of Providence Department of Public Property, in accordance with processes and procedures required by the city controller and city treasurer.

(3) Throughout the duration of the existence of the revolving fund, the City of Providence Department of Public Property shall furnish the city's finance department, the city treasurer and the Providence Public School Finance Department with a monthly report of all disbursements from the revolving fund.

(e) All initial invested funds, as described in subparagraph (c) above, and all any state housing aid provided as reimbursement for school capital improvement projects shall be utilized exclusively for capital improvements to be approved pursuant to R.I.G.L. § 16-2-9.

(f) In addition to the initial funding set forth in subparagraph (c), the Providence Public School Department and/or the city finance department, with approval of the city council may, in their discretion, contribute additional monies to the revolving fund.

(g) Capital improvement projects.

(1) Capital improvement projects shall be selected on the basis of available funding and the public school department strategic priorities.

(2) The public school department shall provide the department of public property with an initial list of projects by September 1 of each year.

(3) The department of public property shall be responsible for the submission of housing aid forms necessary for revolving fund reimbursement.

(4) Subsequent to the initial investment and project selection, the city's department of public property shall be responsible for procurement, vendor selection, contract management, and payment for all design work and construction services.

(h) Beginning in fiscal year 2023, either the city finance department or the public school department may end its participation in the revolving fund. Upon such occurrence, the funds remaining in the revolving fund shall be distributed to the city finance department and the public school department according to their percentage of contributions to the initial fund, plus any subsequent investments. Either the city finance department, with approval of the city council, or the public school department shall be permitted to establish a separate capital improvement revolving fund. Any subsequent reimbursement based on state housing aid will be provided to the entity (city or school department) obligating funds and performing public school capital improvement projects.
(Ord. No. 2022-4, § 1, 4-15-22)

Editor's note—Ord. No. 2022-4, § 1, adopted April 15, 2022, set out provisions intended for use as § 21-23. Inasmuch as there were already provisions so designated, said section has been codified herein as § 21-24 at the discretion of the editor.

Sec. 21-25. Reserved.

ARTICLE II. CONTRACTS, PURCHASES AND SALES*

Sec. 21-26. Necessity for appropriation for contract, purchase.

(a) The cost, price or consideration of each contract or purchase provided for in this article shall be charged to and paid from any special appropriation therefor, or, if none, the appropriate appropriation for the department for which the work is to be done or the materials or supplies furnished. The board of contract and supply shall not make any such contract or purchase, unless there is a sufficient appropriation for the purpose available to defray the cost thereof.

(b) Any and all contracts entered into by the City of Providence, including the water supply board and school department, must be first approved by the Providence City Council in any of the following circumstances:

(1) Any and all contracts for more than five hundred thousand dollars ($500,000.00) including materials, or for a duration of more than one (1) year, excluding contracts for accountancy and/or legal.

(2) Any contract for which there is a purported "sole source" vendor award.

(3) Any leases entered into by the City of Providence for an amount of more than two hundred thousand dollars ($200,000.00) or duration of more than one (1) year.

(4) Any change order constituting an increase of twenty (20) percent or more over the original bid amount or one hundred thousand dollars ($100,000.00), whichever is the lesser.

***Cross references—**Personnel, supplies, materials for public celebrations in city, § 2-11; expenditures by committees of council, § 2-28; inspection of payroll lists, § 2-286 et seq.; purchases for North Burial Ground, § 6-22; general authority of purchasing agent with reference to municipal garage, § 15-86; action upon charges for labor, material, etc., in connection with municipal garage, § 15-90; board of park commissioners not to incur debt in excess of appropriations, § 18-37; report of street work to be accompanied by cost estimate, § 23-11.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; audit of accounts and installation of accounting systems, Ch. 45-10, Gen. Laws 1956.

(5) Any extension of any contract beyond a year or one hundred thousand dollars ($100,000.00).

(Ord. 1914, ch. 6, § 6; Rev. Ords. 1946, ch. 2, § 34; Ord. 2010, ch. 2010-28, 7-15-10)

Sec. 21-26.1. Scheduling of purchase requests on agenda.

The city clerk shall transmit to each member of the board of contract and supply an agenda containing all matters to be acted upon, four (4) days prior to each scheduled meeting.

All department heads requiring matters to be reviewed by the board shall submit their requests to the purchasing agent seven (7) days in advance of each meeting and said purchasing agent shall immediately transmit the requests to the finance director, who shall submit the approved communications to the city clerk for placement on the agenda.

No matter shall be considered that does not appear on the printed docket unless the board has nine (9) votes approving the request.

(Ord. 1983, ch. 83-59, § 1, 11-10-83)

Sec. 21-27. Competitive bidding.

All contracts for purchase of materials, supplies, services, equipment and property on behalf of the city, the price of consideration of which shall exceed five hundred dollars ($500.00) but amount to less than five thousand dollars ($5,000.00) shall be made by the director of public property on the basis of three (3) or more informal competitive bids, which may be solicited without advertising, but which must be submitted in writing. Upon receipt of said informal bids any such contract shall be awarded to the lowest responsible bidder among them. All such contracts made on behalf of the city, the price or consideration of which shall exceed five thousand dollars ($5,000.00) shall be made by the board of contract and supply on the basis of sealed bids solicited through public advertisement in a newspaper of general circulation in Providence and in such other newspapers published outside the city as said board in its discretion may determine, such bids to be submitted, opened and considered in accordance with rules and regulations approved by the board. All purchases made on behalf of the city, the price or consideration of which shall be five hundred dollars ($500.00) or less, shall be made by the department or agency requiring the materials, supplies, services, equipment or property involved, in accordance with rules and regulations established by the director of public property.

(Ord. 1984, ch. 84-65, § 1, 9-27-84; Ord. 1997, ch. 1997-20, § 3, 3-13-97)

Editor's note—Prior to amendment by ch. 84-65, §§ 21-27 and 21-28 pertained to authority as to contracts in excess of five hundred dollars and duty to let contract by advertisement and bid, respectively. The prior sections derived from Ord. 1914, ch. 6, § 2, and Rev. Ords. 1946, ch. 2, §§ 18 and 19.

Sec. 21-28. Division of purchase orders.

No purchase request which is essentially a unit shall be divided for the purpose of evading the requirement of solicitation of competitive bids set forth in section 21-27 of article II hereof.
(Ord. 1984, ch. 84-65, § 1, 9-27-84)

Note—See the editor's note for § 21-27.

Sec. 21-28.1. Qualifications of parties doing business with the city.

(a) In awarding bids for purchase of materials or services by the City of Providence, the Board of Contract and Supply and the Purchasing Department of the City of Providence shall take into consideration, among other factors, the background and reputation for honesty and integrity of the parties who have bid on the particular materials or services.

(b) No contract shall be awarded to any party who is not current with all taxes which have been levied against that party by the city, including, but not be limited to, property, excise and tangible taxes; provided, however, that this section shall not apply to any party who has disputed the taxes assessed pursuant to provisions of the State of Rhode Island, nor to any party who, while delinquent, has entered into an agreement with the city collector for the payment of its taxes and is current in that agreement. All bidders shall submit with each bid a certificate from the city tax collector certifying that there are no outstanding taxes due and owing to the city, or that any tax delinquency is subject to a properly filed tax dispute.

(c) In order to assist the board of contract and supply and other departments of the City of Providence in considering the foregoing, the mayor, the finance director or the chairperson of the finance committee of the city council may request the chief of the Providence Police Department to conduct a background check on any party bidding or submitting bids for sale of services or materials to the City of Providence and/or any owner, officer or director of any such party. Upon receipt of any such request, the chief of police shall conduct such an investigation including, without limitation, to determine whether any such bidding party or any officer, director or owner thereof has been convicted of any criminal offense and shall report his findings to the party requesting such information and to the board of contract and supply. The results of any such investigations shall be public records of the City of Providence.

(d) Any construction project subject to subsection (a) that is or is budgeted to be one hundred thousand dollars ($100,000.00) or more shall:

(1) Contain a provision requiring all contractors and subcontractors have or be affiliated with a state registered apprenticeship program as defined in 29 C.F.R. § 29 et seq.

(2) Require that not less than fifteen (15) percent of the total hours worked by the contractors' and subcontractors' employees on any one (1) project are completed by apprentices registered in state registered apprenticeship programs as defined.

(3) Subsequent to the city's award of the contract and prior to commencement of work, the prime contractor may petition the awarding agency to adjust the apprenticeship work hours requirements in subsection (2). The awarding agency may lower the fifteen (15) percent requirement only if it determines in writing that compliance is not feasible or that it would be unduly cost prohibitive to the project.

(4) Contain the following enforcement provisions:

a. All contractors and subcontractors shall submit written reports documenting compliance with their apprenticeship obligations prior to approval and issuance of any periodic and/or final payments being made by the contracting party.

b. Any contracting governmental subdivision or agency or its designee shall have the power to impose sanctions on any contractor or subcontractor found not to be in compliance with its obligations under this section. Such sanctions shall include, but not be limited to:

1. Termination of contract.

2. Debarment from future city projects.

3. Recovery of any benefits which accrued to the business during the period of violation.

4. Referral for civil sanctions and/or prosecution under the False Claims Act.

(5) Any and all bidders shall certify in writing, as a condition precedent for bidding on any City of Providence-sponsored project worth in excess of fifty thousand dollars ($50,000.00), that the bidder shall comply with the following. ("Bidder" shall include all construction managers, contractors, and subcontractors bidding on a construction, repair, or demolition contract).

a. All bidders shall adhere to air quality protocols outlined in the Green During Construction initiative. These refer specifically to:

1. The implementation of dust controls - especially silica control measures - during construction;

2. The substitution of all gasoline, propane, and diesel-powered construction equipment - either stationary and mobile - with equipment designed to reduce toxic emissions, either through engine modification, the use of alternative fuels, or the implementation of electric or hybrid power systems; and

3. The prohibition of idling motors on gasoline and diesel vehicles as published by the Rhode Island Committee on Occupational Safety and Health.

b. All bidders who are awarded or otherwise obtain contracts with the City of Providence shall comply with all obligations set forth in paragraph a. for the entire duration of the contract. Any bidder performing work pursuant to this initiative shall be obligated to immediately notify the City of Providence regarding any material changes relating to concurrence with this initiative. Failure to notify the city of any material change shall be considered a submission of false information and the city shall have the discretion to impose any and all sanctions authorized by this section.

c. Any bidder who negligently or willfully fails or refuses to comply with any of the obligations set forth in paragraph a., above, for any period of time, shall be subject to sanctions at the discretion of the City of Providence, which may or may not include one (1) or more of the following:

1. Cessation of work on the project until compliance is obtained;
2. Withholding of payment due under any contract or subcontract until compliance is obtained;
3. Permanent removal from any further work on the project;
4. Debarment from eligibility to contract with the City of Providence;
5. Declaration of any contract held by the bidder null and void.

d. Each bidder shall be responsible for, and shall ensure that any and all subcontractors to the bidder shall comply with all the requirements of the section, and each bidder shall certify the compliance of any and all subcontractors with the provisions of this section in the manner provided in paragraph b. above.

(6) In the performance of any contract with the City of Providence or an agency or department thereof, all contractors or subcontractors shall agree as follows. The contractor or subcontractor shall not:

a. Refuse to hire any applicant for employment or otherwise discriminate because of race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin; or

b. Because of such reasons, to discharge an employee or discriminate against him or her with respect to hire, tenure, compensation, promotion, terms, conditions, or privileges of employment, or any other matter directly or indirectly related to employment; or

c. In the recruiting of individuals for employment or in hiring them, to utilize any employment agency, placement service, training school or

center, labor organization, or any other employee referring source which such employer knows, or has reasonable cause to know, discriminates against individuals because of their race or color, sex, sexual orientation, gender identity or expression, religion, marital status, disability, age, or country of ancestral origin;

d. To treat disabilities caused or contributed to by pregnancy, miscarriage, childbirth or recovery therefrom, differently than other temporary disabilities under any health or temporary disability insurance, or sick leave plan available in connection with employment. Pay, tenure, benefits, seniority, and reinstatement shall be afforded in the same manner for medically necessary pregnancy-related absences as they are for other medically necessary absences.

(7) A contractor or subcontractor shall be deemed to have breached the nondiscrimination provisions of this section upon a finding by the director of public property that the contractor or subcontractor has willfully violated such nondiscrimination provisions. Upon such finding by the director of public property, the awarding authority shall notify the contractor or subcontractor that unless the contractor or subcontractor demonstrates to the satisfaction of the director within a reasonable period of time that the violation has been corrected, the breach of contract shall be the basis for sanctions, including, but not limited to:

a. Termination of contract.

b. Debarment of future city projects.

c. Recovery of any benefits which accrued to the business during the period of violation.

(8) Nothing contained in this section shall be construed in any manner so as to prevent the city from pursuing any other remedies that may be available at law, equity or under any contract.

(e) As part of any bid to provide services or goods of one hundred thousand dollars ($100,000.00) or greater for any City of Providence-sponsored project, the bidder (referred to below as "the business") shall submit a "bidder's affidavit" which shall contain "reportable contributions" (as defined below) for "business contributors" (as defined below) covering the twelve-month period immediately preceding the date on which the bid is submitted ("reporting period"):

(1) For the purpose of this subsection, the term "city contribution" shall mean all campaign contributions to:

a. Members of the Providence City Council;

b. Candidates for election or reelection to the Providence City Council;

c. The Mayor of Providence;

d. Candidates for election or reelection to the office of Mayor of Providence.

(2) For the purposes of this subsection, the term "executive officer" means any person who is appointed or elected as an officer of a business entity by either the incorporators, stockholders, or directors of the business entity who is in charge of a principal business unit, division, or function of the business entity, or participates or has authority to participate other than in the capacity of a director in major policymaking functions of the business entity or who is actively engaged in soliciting business from the state or conducting, other than in a ministerial capacity, business with the city; provided, that officers of the business entity who are located outside the state of Rhode Island, are not residents of the state, and do not participate in the business of the business entity within this state shall be exempted from the requirements of this section;

(3) For the purpose of this subsection, the term "business" shall mean any business as defined by R.I.G.L. § 36-14-2.

(4) For the purpose of this subsection, the term "business contributors" shall be defined to include contributions made by the following:

a. The business;

b. Any political action committee whose name includes the name of the business;

c. All persons holding a ten (10) percent or greater equity interest or five thousand dollars ($5,000.00) or greater cash value interest in the business at any time during the reporting period;

d. All executive officers of the business;

e. Any spouse or dependent child of any individual identified in subsections a. through d. above.

(5) For the purpose of this subsection, the term "reportable contributions" shall mean all city contributions (as defined above) named by business contributors.

(6) The affidavit described shall identify each and all reportable contributions, including in the description of each contribution:

a. The date and amount of the contribution;

b. The recipient of the contribution; and

c. The name and address of the business contributor and the basis on which the contributor qualifies as a business contributor.

(7) The affidavit shall include a certification by the chief executive officer of the business's or other individual authorized to act on the business's behalf that all

of the information in the affidavit is substantially true and accurate, and a material failure to comply with this requirement provides grounds for termination of the contract.

(8) The affidavit shall be a public record.

(9) Prior to executing any contract with the City of Providence to provide goods or services of a value of one hundred thousand dollars ($100,000.00) or greater, and as a condition for entering into such a contract, all prospective vendors will submit a "vendor's affidavit" supplementing the information set forth in subsection (d) for the period between the time of the submission of the initial certificate and the execution of the contract.

(Ord. 1984, ch. 84-31, § 1, 6-18-84; Ord. 1992, ch. 92-50, § 1, 12-13-92; Ord. 2010, ch. 2010-35, 9-16-10; Ord. 2011, ch. 2011-10, § 1, 3-11-11; Ord. 2014, ch. 2014-11, § 2, 6-12-14; Ord. 2014, ch. 2014-34, § 1, 8-8-14)

Editor's note—Ord. 1984, ch. 84-37, § 1, approved June 18, 1984, added § 21-28 to ch. 21 of the Code; to avoid duplicate section numbers, the director has numbered the new provisions as § 21-28.1.

Sec. 21-29. Emergencies.

Said requirements for competitive bidding set forth in section 21-27 of article II hereof may be dispensed with to allow emergency purchases upon the recommendation of the director of public property with the approval of a majority of all the members of the board of contract and supply. Emergency shall be defined for the purposes of section 21-27 of article II hereof as an unforeseen situation, requiring immediate attention in order to safeguard the welfare of the people of the city, and one which renders the process of competitive bidding impractical or impossible.

(Ord. 1914, ch. 6, § 2; Rev. Ords. 1946, ch. 2, § 20; Ord. 1984, ch. 84-65, § 1, 9-27-84)

Sec. 21-30. Duty to furnish plans and specifications for work, materials.

Specifications for the performance of any work or the furnishing of any materials or supplies under the provisions of this article shall be prepared and set forth by the board of contract and supply with sufficient detail to inform all persons proposing to bid therefor of the nature of the work to be done and of the materials and supplies to be furnished, and written or printed copies thereof shall be delivered to all applicants therefor. When plans are requisite, the same shall be prepared and exhibited to prospective bidders. In case of any work on improving, erecting, installing, altering or repairing any land or building or the fixtures or appurtenances thereof, at a cost exceeding the sum of five hundred dollars ($500.00), the committee on city property shall cause requisite plans and specifications thereof to be prepared, and shall deliver the same to the board before said board shall advertise for bids therefor. All other

requisite plans and specifications for work, materials or supplies shall be prepared by the department for which the same is to be done or furnished, and shall be delivered to the board before it advertises for bids therefor.
(Ord. 1914, ch. 6, § 3; Rev. Ords. 1946, ch. 2, § 21)

Sec. 21-31. Sealed bids to be submitted—Generally.

All bids for work on materials, submitted pursuant to the provisions of this article, shall be submitted to the board of contract and supply in sealed envelopes or wrappers, which shall have endorsed thereon the title of the work, materials or supplies to which such bids relate, and further said bids shall have contained thereon, the written amount of the item bid, as well as the corresponding Arabic numerals and the signature of the owner or owners of the firm submitting said proposal.

Any bid submitted not in accordance with the above format shall be rejected by the board of contract and supply.
(Ord. 1914, ch. 6, § 4; Rev. Ords. 1946, ch. 2, § 22; Ord. 1981, ch. 81-53, § 1, 11-27-81)

Sec. 21-31.1. Same—Leasing of property.

It shall be the duty of the director of the department of public property to request the board of contract and supply that an advertisement be placed in the newspaper, upon receipt of a communication from any city department requiring to lease property not owned by the City of Providence.

The specifications shall incorporate the area of space to be leased, shall be publicly opened by the board of contract and supply and awarded to the low bidder meeting specifications and requirements.

No contract for the leasing of property by the City of Providence shall be entered into except in accordance with this section.
(Ord. 1983, ch. 83-44, § 1, 8-29-83)

Editor's note—To preserve Code format, the editor has included as § 21-31.1 the provisions originally enacted by ch. 83-44 as § 21-31(a).

Sec. 21-32. Check or bond accompanying bid may be required; presentation of bids and bonds.

The board of contract and supply, by giving notice thereof in an advertisement for bids pursuant to this article, may require every bidder to furnish with his bid a certified check or a satisfactory bond of a specified amount to secure the execution and delivery by him of his contract in writing in due form and any relevant bond required, if his bid is accepted by said board. All such bids with any such checks or bonds required shall be presented to said board at the place and time of their meeting as advertised for the receipt of the same, or may be therefore filed with such person at such place as authorized by said board in its advertisement.
(Ord. 1914, ch. 6, § 4; Rev. Ords. 1946, ch. 2, § 23)

Sec. 21-33. Opening bids.

At the time and place specified in its advertisement for holding the meeting mentioned in section 21-32 it shall be the duty of the board of contract and supply to be present, and such meeting for the reception and opening of bids shall be promptly held at the advertised time, whether or not a majority of said board is present, and shall be open to the public. The time for presenting bids shall end at the expiration of fifteen (15) minutes after such stated time of such meeting, and thereupon the bids shall be opened by some member of said board or its clerk in the presence of the bidders and other persons there present, and publicly read.
(Ord. 1914, ch. 6, § 4; Rev. Ords. 1946, ch. 2, § 24)

Sec. 21-34. Authority to reject bids.

The board of contract and supply may reject any or all bids or proposals for work or materials, submitted as required in this article.
(Ord. 1914, ch. 6, § 4; Rev. Ords. 1946, ch. 2, § 25)

Sec. 21-35. Duty to preserve abstract of bids.

An abstract of all bids with the prices, submitted pursuant to this article, shall be made and preserved by the board of contract and supply in a book to be kept for that purpose.
(Ord. 1914, ch. 6, § 4; Rev. Ords. 1946, ch. 2, § 26)

Sec. 21-36. Form of contracts and purchases entered into.

All contracts and purchases made by the board of contract and supply shall be made or evidenced in writing, and in such form as shall be approved by the city solicitor.
(Ord. 1914, ch. 6, § 4; Rev. Ords. 1946, ch. 2, § 27)

Cross reference—City solicitor, § 2-98 et seq.

Sec. 21-37. Authority to require performance bond to accompany contract.

When required by the board of contract and supply, each contract for materials or services regulated by this article shall be accompanied by a bond of such amount and with such surety or security as is satisfactory to said board, to secure the performance of the contract and to contain such other provisions as shall be satisfactory to said board and the city solicitor.
(Ord. 1914, ch. 6, § 4; Rev. Ords. 1946, ch. 2, § 28)

Sec. 21-38. Crediting payment for labor, materials to appropriation from which money expended.

Whenever any labor is done or material furnished which is charged to the account of capital fund appropriations and for which any persons or departments are

required to pay, the city controller is hereby authorized and directed to credit all receipts on account of the same to the appropriation from which the money was expended.
(Ord. 1937, ch. 938, § 1; Rev. Ords. 1946, ch. 2, § 87)

Sec. 21-38.1. Mailing of checks to vendors.

All parties providing materials and/or services to the City of Providence who are entitled to payment of money by the City of Providence on account thereof shall receive all such payments by United States mail, proper postage prepaid, addressed to their respective business addresses on file with the City of Providence. Should a vendor wish to receive payment via electronic transfer they may do so by registering with the City of Providence in compliance with all rules to be promulgated by the city treasurer.
(Ord. 1984, ch. 84-38, § 1, 6-18-84; Ord. No. 2022-62, § 1, 12-8-2022)

Editor's note—Ord. 1984, ch. 84-38, approved June 18, 1984, added § 21-38(A) to the Code; to preserve Code format, the editor has numbered this material as § 21-38.1.

Sec. 21-39. Leases to be furnished controller.

All officers and committees authorized to lease any property, except the property of the Dexter Donation, shall immediately upon leasing the same furnish the city controller with the lease, or a statement of the property leased, with the rates and times of payment and the rent of the same, and all such leases shall be retained in the controller's office.
(Ord. 1914, ch. 20, § 15; Rev. Ords. 1946, ch. 2, § 178)

Cross reference—Leases to be accompanied by statement for collector, § 2-41.

Sec. 21-39.1. Acquisition of titles of tax-reverted properties for resale as dwellings.

(a) The city solicitor shall, from time to time, compile a list of parcels of property from the appropriate departments of city government meeting the following criteria:

(1) The legal ownership of said parcels shall have been vested in the City of Providence for nonpayment of taxes at a city collector's sale held under the provisions of Rhode Island General Law.

(2) Said parcels shall contain dwelling houses which, in the opinion of the city solicitor, have been abandoned by the holder of the equity of redemption of the tax title and which are or could be brought into compliance with the housing code of the City of Providence.

(b) The city solicitor shall, at his discretion commence petitions or civil actions in superior court of the State of Rhode Island to foreclose the equity of redemption of tax title of the said parcels in conformance with the provisions of Rhode Island General Laws, and endeavor to obtain perfected and marketable title in the City of Providence.

(c) Upon perfection of said titles, the city solicitor shall notify the chairman of the properties committee of the city council that perfected title has been vested in the City of Providence and the amount of legal costs incurred in perfecting each title.

(d) The properties committee shall then entertain offers to purchase said parcels and shall make recommendations for the sale of said parcels. Preference shall be given to persons who declare, as part of their offer, that they intend to reside on the premises, and who have an ability to keep or bring the premises into compliance with the housing code of the City of Providence.

(e) The properties committee shall recommend that the sale prices of said parcels be equal to the amount of legal costs incurred for perfecting the title plus ten (10) percent. However, the properties committee may recommend a lower price should it conclude that this amount exceeds the fair market value of said parcel.

(f) Upon receiving the recommendation of the properties committee, the city council may authorize the sale of said parcels.

(g) All revenues obtained from the sale of said parcels shall be made available for use by the city solicitor for the purpose of perfecting other titles under this section and placed in an appropriate account to be used for this purpose only.
(Ord. 1982, ch. 82-53, §§ 2—8, 8-12-82)

Editor's note—The title of ch. 82-53, approved Aug. 12, 1982, provided for inclusion as part of Art. VI of ch. 2; however, for purposes of classification, the editor has codified §§ 2—8 as § 21-39.1.

Cross references—Redemption of land sold for nonpayment of taxes, § 2-73; assignment of tax title, § 2-74; foreclosure of right of redemption, § 2-75; holding and disposition of land foreclosed by city, § 2-76; city solicitor, §§ 2-98—2-100; housing code, ch. 13; acceptance of money derived from real property purchased at tax sale, § 21-5.

Sec. 21-40. City assessor ex officio member of board for purchase of real estate.

For the purposes of sections 21-41 to 21-43 the city assessor shall be ex officio a member of the board of contract and supply.
(Ord. 1921, ch. 313, § 1; Rev. Ords. 1946, ch. 2, § 29)

Sec. 21-41. Purchase of real estate—Duty of board of contract and supply.

It shall be the duty of the board of contract and supply to make all purchases of land or real estate for the city, which are authorized by the city council.
(Ord. 1914, ch. 6, § 5; Rev. Ords. 1946, ch. 2, § 30) ;percent; Board of contract and supply, §§ 5.48, 5.49.

Sec. 21-42. Same—Duty to submit information, obtain approval.

In case the city council authorizes the purchase of land or real estate, and does not designate the particular land or real estate to be purchased, the board of contract and supply shall submit to the city council a general description of the land or real estate proposed to be purchased, the price at which the same can be purchased and the name of the owner thereof, and the city council shall approve such purchase before any purchase of the same shall be made.
(Ord. 1914, ch. 6, § 5; Rev. Ords. 1946, ch. 2, § 31)

Sec. 21-43. Form of agreement for purchase of land.

No agreement or obligatory writing relative to any purchase of land provided for in sections 21-41 and 21-42 shall be made or given by the board of contract and supply except in such form as shall be first approved by the city solicitor. Any such agreement or writing not bearing on its face the approval of the city solicitor shall not be binding upon the city.
(Ord. 1914, ch. 6, § 5; Rev. Ords. 1946, ch. 2, § 32)

Cross reference—City solicitor, § 2-98 et seq.

Sec. 21-44. Agreements arising out of condemnation of city's land.

The board of contract and supply is hereby authorized to enter into agreements with the State of Rhode Island or the United States of America, the Providence Redevelopment Agency, the Providence Housing Authority or any other public body having authority to condemn property of the city with respect to the value of land owned by the city and taken by any of said agencies; and the mayor shall be authorized to execute such deeds, releases and other documents as may be required by the condemnor or arising out of such condemnation.
(Ch. 2, § 31.1, added by Ord. 1955, ch. 935, § 1)

Sec. 21-45. Employment of experts for purchase, condemnation of real property.

The board of contract and supply shall be authorized from time to time to employ such experts as it shall deem necessary to assist said board in relation to the purchase of real estate or the settlement of damages growing out of the condemnation by the city of real estate, and to charge the fees and expenses of such experts to any appropriation available for the payment for such purchase or the payment for such damages, and in the event that no such appropriation exists, to charge the same to the appropriation for contingencies; provided however, that said fees and expenses shall not exceed the sum of five thousand dollars ($5,000.00) in any one purchase or condemnation.
(Ord. 1921, ch. 296, § 1; Rev. Ords. 1946, ch. 2, § 33)

Sec. 21-46. Vendors to submit claims to controller.

All claims for supplies, materials, equipment, and contractual services, delivered or rendered to any and all departments, boards, bureaus, commissions and other agencies of the city shall be submitted directly to the city controller by vendors in triplicate on standard invoice forms.
(Ch. 2, § 17.1, added by Ord. 1946, ch. 1526, § 1)

Sec. 21-47. Form and manner of submission of claims by vendors.

The following procedures must be performed in conjunction with all services purchased by the City of Providence which are emergency orders and/or items not contracted through the advertisement and sealed bid procedure outlined in Charter Laws 6.6:

(1) Vendors must submit itemized invoices for payment. The following items will be specifically enumerated on the invoices:

a. Manhours worked.

b. Hourly labor charge.

c. Materials used.

d. Cost of each material.

e. Any other charge.

(2) Department directors, or their designees shall monitor the vendor's work and provide the finance director/city controller and internal auditor with an estimate of manhours worked by the vendor. Estimates of the manhours worked shall be submitted within two (2) working days of the completion of the job.

(Ch. 2, § 17.2, added by Ord. 1946, ch. 1526, § 2; Ord. 1981, ch. 81-48, § 1, 9-25-81)

Sec. 21-48. Contracts for storage of city's automobiles.

(a) The board of contract and supply shall annually in the month of January, in the name and behalf of the city, contract with a public garage in the city for the storage of all of the city's automobiles that are not provided with storage in the city's buildings. No officer of the city shall have any authority to contract in behalf of the city for any automobile storage of any kind.

(b) The board in its discretion may authorize any officer of the city to store the city's automobiles used by his department in any garage other than that under contract with the city for the storage of the city's automobiles.
(Ord. 1915, ch. 94, § 1; Rev. Ords. 1946, ch. 2, § 35)

Sec. 21-49. Sale of unclaimed property by purchasing agent.

The purchasing agent is hereby authorized and empowered to sell at public auction annually in September any lost or stolen property, or property recovered or found by, or which has otherwise come into the possession, charge or control of, the police force of this city, which has not been claimed by the owners thereof within two (2) years prior to the first day of September in any year. The purchasing agent shall first give notice of said proposed sale by advertisement thereof, at least once each week for two (2) successive weeks prior to the time of the sale, in one of the public newspapers published in the city. The proceeds of the sale, after the payment of the expenses thereof, shall be paid into the treasury of the city.
(Ord. 1914, ch. 20, § 56; Rev. Ords. 1946, ch. 2, § 155)

Sec. 21-50. Article not applicable to appointment, compensation of officers.

This article shall not be construed to apply to the appointment or employment of any officers, agents or servants required in any department of the city, or to the fixing of their compensation.
(Ord. 1914, ch. 6, § 9; Rev. Ords. 1946, ch. 2, § 36)

Sec. 21-51. Article not applicable to certain work of city employees.

This article shall not apply to any work in the construction, grading, paving, curbing, maintenance, repair, cleaning or care of streets, roads, sidewalks, paths, bridges, drains or sewers, or in the repair of buildings belonging to the city, or in the ordinary extension of street water mains or pipes, if done by employees of the city and not by contract.
(Ord. 1914, ch. 6, § 9; Rev. Ords. 1946, ch. 2, § 37)

Sec. 21-52. Minority and women business enterprises.

(a) *Purpose.* The purpose of this section is to carry out the city's policy of supporting the fullest possible participation of firms owned and controlled by minorities (MBEs) or women (WBEs) in city funded and directed public construction programs and projects in municipal purchases of goods and services. This includes assisting MBEs and WBEs throughout the life of contracts in which they participate.

(b) *Summary of factual findings.* Upon full consideration of all relevant facts, the city council finds that:

Based upon the records supplied by the purchasing director/controller that the City of Providence has purchased, in the two (2) previous fiscal years (87-88, 88-89) and the current fiscal year (89-90) less than one (1) percent of its goods and services from firms owned or controlled by minorities or women; that based upon the testimony and evidence provided during the public hearings, individuals, minorities and women as well as businesses owned by minorities and women have been discriminated against by other businesses not owned or controlled by minorities or women in the City of

Providence and the State of Rhode Island; that there was no evidence that there is not discrimination against women and minorities in acquiring business within the City of Providence from other sources despite the public hearings and the opportunity to introduce any evidence; it is in the best interest of the city to promote the equitable utilization of MBEs and WBEs in city contracting; that the requirements of this chapter are necessary to overcome the present effects of discrimination and are designed to achieve the goal of equitable utilization of MBEs and WBEs while at the same time maintaining a high quality of goods and services provided to the city through competitive bidding as required by City Charter.

(c) *Policy.* It is the policy of the City of Providence that minority business enterprises (MBEs) and women business enterprises (WBEs) shall have the maximum opportunity to participate in the performance of procurements and projects as prime contractors and vendors as outlined in subsection (d), below. In addition, prime contractors shall utilize MBEs and WBEs so as to enable the city, its purchasing department, and all its contracting departments to meet or exceed the goals set forth in this section. The utilization of MBEs and WBEs as subcontractors and/or suppliers to the prime contractor, and/or the use of minority and women laborers, will be considered in determining the lowest possible bidder.

(d) *Applicability.* This section shall apply to any and all city purchasing, including, but not limited to, the procurement of goods and services and construction projects or contracts funded in whole or in part by city funds, or funds which, in accordance with federal grant or otherwise, the city expends or administers or in which the city is a signatory to the construction contract.

(e) *Definitions.*

Affirmative action means taking specific steps to eliminate discrimination and its effects, to ensure nondiscriminatory results and practices in the future, and to involve minority business enterprises and women business enterprises fully in contracts and programs funded by the city.

Compliance means the condition existing when a contractor or vendor has met and implemented the requirements of this section.

Contract means a mutually binding legal relationship or any modification thereof obligating the seller to furnish supplies or services, including construction, and the buyer to pay for them. For the purpose of this section, a lease is a contract.

Contractor or *vendor* means one who participates, through a contract or subcontract, in any procurement or program covered by this section, and includes lessees and material supplies.

Minority means a person who is a citizen or lawful permanent resident of the United States and who is:

(1) Black (a person having origins in any of the black racial groups of Africa);

(2) Hispanic (a person of Mexican, Puerto Rican, Cuban, Central or South American or other Spanish culture or origin, regardless of race);

(3) American Indian (a person having origins in any of the original peoples of North America);

(4) Members of other groups, or other individuals, found to be economically and socially disadvantaged by the Small Business Administration under Section 8(a) of the Small Business Act, as amended (15 USC Section 637(2)).

Minority business enterprise or *MBE* means a small business concern, as defined pursuant to Section 3 of the Federal Small Business Act (15 USC Section 632) and implementing regulations, which is owned and controlled by one or more minorities.

Women business enterprise or *WBE* means a small business concern, as defined pursuant to Section 3 of the Federal Small Business Act (15 USC Section 632) and implementing regulations, which is owned and controlled by one or more women.

For the purpose of this section, "owned or controlled" means a business:

(1) Which is at least fifty-one (51) percent owned by one (1) or more minorities or women in the case of a publicly owned business, at least fifty-one (51) percent of the stock of which is owned by one (1) or more minorities or women, and;

(2) Whose management and daily business operations are controlled by one or more such individuals.

Noncompliance means the condition existing when a recipient or contractor has failed to implement the requirements of this section.

(f) *Discrimination prohibited.* No person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against in connection with the award and performance of any project or contract covered by this chapter, on the grounds of race, color, national origin or sex.

(g) *Minority business enterprises.* MBEs shall be included in all requests for procurements under this chapter and the city shall strive to achieve each of the goals hereinafter established. Upon passage of this section, the city shall utilize the goal of ten (10) percent which is presently being used by the State of Rhode Island as found in P.L. 1986, Ch. 493, Section 1, as amended R.I.G.L. § 37-14.1 et seq. and the "Regulations Governing Participation by Minority Business Enterprises in State Funded and Directed Public Construction Projects, Construction Contracts and Procurement Contracts for Goods and Services" promulgated by the State of Rhode Island Department of Administration, where not inconsistent with this section. Upon completion of the so-called "predicate study" which will be undertaken, the goals for MBEs will be readjusted based upon the findings contained in said "predicate study" for the first year immediately following submission and acceptance of the said "predicate study" by the city council, increasing annually in each successive year by

the recommended percentage contained in the said "predicate study" until either the final goal of participation of MBEs in all procurements for goods and services has been achieved or that the program created by this section terminates.

(h) *Women business enterprises.* WBEs shall be included in all requests for procurements under this chapter and the city shall strive to achieve each of the goals hereinafter established. Upon passage of this section, the city shall utilize the goal of ten (10) percent which is presently being used by the State of Rhode Island as found in P.L. 1986, Ch. 493, Section 1, as amended R.I.G.L. § 37-14.1 et seq. and the "Regulations Governing Participation by Minority Business Enterprises in State Funded and Directed Public Construction Projects. Construction Contracts and Procurement Contracts for Goods and Services" promulgated by the State of Rhode Island Department of Administration, where not inconsistent with this section. Upon completion of the so-called "predicate study" which will be undertaken, the goals for WBEs will be readjusted based upon the findings contained in said "predicate study" for the first year immediately following submission and acceptance of the said "predicate study" by the city council, increasing annually in each successive year by the recommended percentage contained in the said "predicate study" until either the final goal of participation of WBEs in all procurements for goods and services has been achieved or that the program created by this section terminates.

(i) *Review.* This section shall be reviewed by the city council during the calendar year 1995 and again during the calendar year 2000 to ascertain the need for adjustments and/or termination of the program if its goals are being consistently met. The provisions of this section may only be waived upon certification to the board of contract and supply by the purchasing agent that no MBEs or WBEs provide the required goods and/or services or that they are so expensive as to be prohibitive to utilizing an MBE or WBE.

(j) *Sanctions.* The board of contract and supply shall have the power to impose sanctions upon contractors or vendors not in compliance with this section and shall include but not be limited to (1) suspension of payment; (2) termination of the contract; (3) recovery by the city of ten (10) percent of the contract award price as liquidated damages; and (4) denial of right to participate in future projects for up to three (3) years.

(k) *Rules and regulations.* It shall be the duty of the board of contract and supply to adopt reasonable rules, regulations and procedures to ensure compliance with this section.

(l) *Advisory commission.* Within ninety (90) days of enactment, the mayor and city council will convene a special nine-person advisory group whose name shall be "The Providence Commission on Minority and Women Business Development". The mayor shall appoint five (5) persons to the advisory group and four (4) persons shall be elected by the city council.

Said commission shall be concerned with the programs development (i.e., procedures, standards, general requirements, special contract language, supportive services, etc.) and monthly monitoring, the identification of MBE/WBE publications for the dissemination of bid notices and program announcements, coordination with other MBE/WBE small business advisory groups, the submission of annual reports to the mayor and city council on the progress of the program, and the examination of national, regional, and local demographic/economic trends and their effects on the local MBE/WBE community.

The city council shall provide by ordinance sufficient funds to carry out these and other relevant responsibilities, and shall provide for a program administrator within the classification ordinance to administer this program.
(Ord. 1990, ch. 90-7, § 1, 5-9-90)

Sec. 21-53. Regulation of assignments or sale of tax titles in bulk by the collector.

(a) *Definitions.*

Bulk or *in bulk* shall mean multiple tax titles assigned together as a single unit.

Tax title shall mean that interest on real estate conveyed by a collector's deed pursuant to R.I.G.L. § 44-9-12.

Uncollectable factors shall mean any of the following, either alone or in combination.

(1) The failure of a lien to be purchased by an entity other than the city at tax sale when offered.

(2) The failure of a lien to be individually assigned for a period of one (1) year followed being offered at tax sale.

(3) The failure of the fair market value of the real estate to exceed at least one hundred fifty (150) percent of the total of all taxes, interest and charges levied against the subject property.

(b) *General provisions.*

(1) The collector may offer, assign and transfer the tax titles, individually or in bulk, with other tax titles, either by public auction to the highest bidder or by direct sale, provided that the minimum sum paid for the assignment is not less than the total amount necessary for the redemption of each individual tax title assigned or at a rate which may be discounted to reflect uncollectable factors.

(2) The collector is authorized to execute and deliver on behalf of the city any instrument necessary thereof and accept on behalf of the city appropriate consideration.

(3) The assignee or assignees of the liens or tax titles shall have and possess the same powers and rights at law and in equity as the city collector would have if the liens had not been assigned with regards to the precedence and priority of the lien, the accord of interest, and the fees and expenses of collections.

(4) The assignee shall have the same rights to enforce the liens as any private party holding a lien on real property.

(5) The collector shall send notice of the intended assignment to the owner of record at the owner's last-known address, by registered or certified mail, at least ten (10) days prior to the assignment, but failure to receive the notice shall not affect the validity of the assignment.

(6) The instrument of assignment shall be recorded within sixty (60) days from the date and, if needed, shall be prima facie evidence of all facts essential to its validity.

(7) Neither the city nor any of its officers, agents or employees shall be liable or accountable to the owner or to any other person having an interest in the land for failure to collect rent or other income from the land.

(8) Neither the city nor any of its agents, officers or employees shall be liable for injury or damage caused by the assessor of land or to the person or property of any person.

(9) The assignment or sale of tax titles is absolute and irrevocable and the city shall retain no interest, reversionary or otherwise, in said tax liens that are assigned or sold.

(10) Nothing in this ordinance shall impair the authority of the treasurer to assign title pursuant to R.I.G.L. § 44-9-18.

(Ord. 2000, 00-34, § 1, 10-13-00)

Sec. 21-54. Sole source verification.

Prior to the submission of any contract for which there is a purported "sole source" vendor award to the city council for approval, as stipulated in section 21-26(b)(2), the director of purchasing shall verify by certification that the vendor holds a unique set of skills or expertise that make it impossible for any other vendor to do the work or that the goods are not available from another source.

(Ord. No. 2017-2, § 1, 1-19-17)

Secs. 21-55—21-62. Reserved.

ARTICLE III. FUNDS*

DIVISION 1. IN GENERAL

Sec. 21-63. Investment of general fund cash and short-term securities and certificates of indebtedness.

The city treasurer, with the advice and approval of the finance director, is hereby authorized to invest, from time to time, in certificates of indebtedness issued by the United States Government, state and local governments, or agencies thereof, or certificates of indebtedness issued by banks chartered under the laws of the United States or the several states thereof, such sums of money in the general fund of the city as may be deemed in excess of the amount required for the payments of current obligations of the city; provided, however, that any such investment in securities or certificates of indebtedness from said fund, with a maturity in excess of six (6) months, shall be made only with the approval of the city council finance committee. (Ord. 1964, ch. 1624, § 1; Ord. 1969, ch. 69-54, § 1, 11-20-69)

Amendment note—Ch. 69-54, § 1, amended § 21-63 by substituting certificates of indebtedness for securities and certificates of deposit.

Sec. 21-63.1. The city investment policy.

(a) *Introduction.* The City of Providence (the "city") is a political sub-division of the State of Rhode Island governed by a Home Rule Charter (the "Charter"), Rhode Island General Laws, and the City's Ordinances. Pursuant to the Charter, the city's affairs are governed by an elected legislature (the "city council" or "council"), and an elected chief executive officer (the "mayor"). The management of the city's finances is set forth in the Charter, which assigns certain authority to a treasurer, to be elected by the city council, and others to the city's finance department, the head of which is the finance director appointed by the mayor.

The purpose of this policy is to establish guidelines for the investment of such sums of money described in the city ordinances, section 21-63, as fully described below.

***Cross reference—**City clerk to furnish copies of proposals and ordinances relating to finance, § 2-50.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; audit of accounts and installation of accounting systems, Ch. 45-10, Gen. Laws 1956; establishment, use of reserve funds, Ch. 45-11, Gen. Laws 1956; indebtedness of towns and cities, Ch. 45-12, Gen. Laws 1956; housing authority bonds, obligations, Ch. 45-27, Gen. Laws 1956; redevelopment financing, Ch. 45-33, Gen. Laws 1956.

(b) *Governing authority.* In accordance with Article VI of the Charter, the treasurer has the powers and duties to, among other things, maintain certain records; have custody of all public funds belonging to or under the control of the city; deposit municipal funds in an in an institution chosen from a list of depositories approved by the finance director; and have custody of all investments and invested funds.

Pursuant to Article VIII, Section 813 of the Charter, the finance director serves as the chief fiscal officer of the city, responsible to the mayor for the sound and prudent financial direction of the city. The finance director, with the approval of the board of investment commissioners, determines an approved list of financial institutions with which the city's funds may be deposited.

Section 21-63 makes provisions for the city's investment of general funds that are in excess of the amounts required for payment of the city's current obligations. More specifically, section 21-63 states as follows:

> "The city treasurer, with the advice and approval of the finance director, is hereby authorized to invest, from time to time, in certificates of indebtedness issued by the United States Government, state and local governments, or agencies thereof, or certificates of indebtedness issued by banks chartered under the laws of the United States or the several states thereof, such sums of money in the general fund of the city as may be deemed in excess of the amount required for the payments of current obligations of the city; provided, however, that any such investment in securities or certificates of indebtedness from said fund, with a maturity in excess of six (6) months, shall be made only with the approval of the city council finance committee."

(The funds described by section 21-63 are hereinafter referred to as the "excess general funds.")

In addition, the Rhode Island General Laws further governs the manner in which its political subdivisions may invest certain funds.

No authority or procedure herein supersedes those established by the Charter, any Rhode Island General Law that applies to investments by cities and towns, or any existing city ordinance. Rather, this policy shall be deemed to be consistent with, and to complement, existing laws. The policy further intends to adopt the State of Rhode Island's guidelines for the state's investments of state and/or municipal funds, as reflected in the general laws, including but not limited to R.I.G.L. §§ 35-10.1, 35-10.2, 35-10-5, and 35-10-11.

(c) *Scope.* This policy shall cover the "excess general funds" provided to the treasurer in accordance with the Charter and ordinances, as defined in section II above and section 21-63. The policy shall not apply to funds covered by any trust indenture or bond covenants, or pension or retirement funds.

(d) *Objectives.* The primary objectives, in priority order, of the city's investment activities shall be:

(1) *Legality.* Investments shall be made in accordance with applicable laws and this investment policy.

(2) *Safety.* Safety of principal is the foremost objective of investments. The city's investments shall be undertaken in a manner that seeks to ensure preservation of capital.

(3) *Liquidity.* The city's investments will remain sufficiently liquid to enable the city to meet its cash flow requirements. Investments shall be managed and aligned to the city's long term planning needs.

(4) *Return on investment.* The city's investments shall be made with the objective of attaining a market rate of return on its investments, consistent with the constraints imposed by its safety objective and liquidity considerations.

(e) *Investment officers.* In accordance with the Charter and ordinances, the treasurer shall coordinate with the city's finance director with respect to the investment of the funds governed by this policy. The treasurer and the finance director (together the "investment officers") shall abide by any written procedures and internal controls for the operation of any investment program governed by this policy.

The investment officers shall act responsibly as custodians of the public trust, with their primary duty to the city, and in accordance with the standard of care defined by Rhode Island law for a municipal treasurer and finance director, or persons having the duties set forth in the Charter. In performing their roles as investment officers, neither the treasurer nor the finance director shall act outside the scope of their respective duties set forth in the Charter, the general laws or the ordinances. If the investment officers use standard care, they shall be indemnified for all awards and costs against all actions brought against them.

(f) *Investment advisor.* The city may engage the services of an investment advisor to exercise and implement investment decision-making on behalf of the city. Such advisor must be registered with, and act in compliance with the provisions of the Investment Advisors Act of 1940. The investment advisor shall be required to execute a contract with the city, which shall incorporate this policy.

No investment advisor shall be utilized unless the investment officers reasonably believe that an investment advisor can realize a net financial gain to the city, after payment of fees and expenses to the investment advisor(s), greater than that which would be realized if the investment officers, on behalf of the city, themselves directed the investment of the excess general funds.

If applicable, the award of any contract to engage the services of an investment advisor shall be made pursuant to and in accordance with sections 21-26 and/or 21-27 ("appropriation for contract" and "competitive bidding"), and subject to subsection (g) below.

(g) *Ethics and conflict of interest.* The investment officers shall refrain from personal business activities that could conflict with proper execution of the investments, or which could impair their ability to make impartial decisions. The investment officers, any city officers and employees involved with the investment decisions and executions, and any and all investment advisors shall disclose to the city ethics commission any material interests in financial institutions with which they conduct business. Such disclosures shall be made both prior to and during the existence of the investment process. Furthermore, the investment officers, and any and all other city officers and employees are subject to the provisions of the Rhode Island Code of Ethics and the City of Providence Code of Ethics (section 17-33), including but not limited to section 17-33(d) relating to persons leaving the employment of the city.

(h) *Internal controls.* The city controller shall establish a set of internal controls which shall be documented in writing. The internal controls will be overseen by the investment officers. The goal of the internal controls is to improve the efficiency and effectiveness of financial operations, to contribute to the safeguarding of city assets, and to identify and discourage irregularities, such as questionable or illegal payments and practices, conflict of interest activities and other diversions of the city assets.

(i) *Permitted investments.* Pursuant to R.I.G.L. § 35-10-11, the investment officers are authorized to invest city funds not subject to sinking fund or bond indenture requirements in certain "authorized investments." Such authorized investments are limited to instruments explicitly permitted by the Rhode Island General Laws and city ordinances, including the following:

(1) Obligations issued by the U.S. Government and its agencies or instrumentalities which carry the full faith and credit guarantee of the United States of America.

(2) Obligations issued by U.S. Government agencies and instrumentalities, including:

   a. Debt obligations, participations or other instruments issued or fully guaranteed by any U.S. Federal agency, instrumentality or government-sponsored enterprise (GSE).

   b. U.S. dollar denominated debt obligations of a multilateral organization of governments (Supranationals).

   c. Mortgage-backed securities (MBS), backed by residential, multi-family or commercial mortgages, that are issued or fully guaranteed as to

principal and interest, by a U.S. Federal agency or government sponsored enterprise, including pass-throughs, collateralized mortgage obligations (CMOs) and REMICs.

(3) Municipal securities issued by a state or political subdivision thereof provided the following conditions are satisfied:

a. The interest on such securities is exempt from federal income taxation; and

b. As required by R.I.G.L. § 35-10-11(3)(ii)(D), at the time of the investment, the security has a credit rating, as determined by a national rating agency, that is equal to or higher than the most recent credit rating of that same national rating agency applicable to general obligations of the State of Rhode Island.

c. However, the investment of any funds governed by this investment policy in any obligations issued by the city and/or any city related agencies is strictly prohibited without approval of the city council.

(4) Repurchase agreements provided the following conditions are satisfied:

a. The agreement is fully collateralized by obligations issued by the U.S. Treasury, U.S. Government agencies and instrumentalities, and/or municipal securities listed in paragraphs (1), (2), and (3) above having a market value at all times of at least one hundred two percent (102%) of the amount of the contract;

b. A master repurchase agreement or specific written repurchase agreement governs the transaction;

c. The securities are free and clear of any lien and held by an independent third party custodian acting solely as agent for the city, provided such third party is not the seller under the repurchase agreement;

d. A perfected first security interest under the Uniform Commercial Code in accordance with book entry procedures prescribed at 31 C.F.R. 306.1 et seq. or 31 C.F.R. 350.0 et seq. in such securities is created for the benefit of the city;

e. For repurchase agreements with terms to maturity of greater than one (1) day, the collateral securities will be valued daily. If additional collateral is required, then that collateral must be delivered within one (1) business day (if a collateral deficiency is not corrected within this time frame, the collateral securities will be liquidated);

f. The counterparty is a:

1. Primary government securities dealer who reports daily to the Federal Reserve Bank of New York, or

2. A bank, savings and loan association, or diversified securities broker-dealer having at least five billion dollars ($5,000,000,000.00) in assets and five hundred million dollars ($500,000,000.00) in capital and subject to regulation of capital standards by any state or federal regulatory agency; and

g. The counterparty meets the following criteria:

1. A short-term credit rating of at least A-1 from Standard & Poor's or P-1 from Moody's or the equivalent from a nationally recognized statistical rating organization (NRSRO), and

2. Has been in operation for at least five (5) years.

(5) Shares of an investment company registered under the Investment Company Act of 1940, whose shares are registered under the Securities Act of 1933, if the only investments of that company are in the authorized investments for city funds listed in paragraphs (1) through (4) above.

(6) Local government investment pools, either state-administered or developed through intergovernmental agreement legislation, provided the local government investment pool restricts investments to those listed in paragraphs (1) through (4) above.

(7) The Ocean State Investment Pool ("OSIP") and similar investment pools authorized under and defined in R.I.G.L. §§ 35-10.2-1—35-10.2-11.

(8) Certificates of deposit arranged by and invested through a financial institution as defined in R.I.G.L. § 19-1-1(8) or chapter 19-1. The certificates of deposit must be provided by a federally insured bank or savings and loan association the principal and accrued interest of which is fully insured by the Federal Deposit Insurance Corporation.

(9) Deposits in banks, savings, banks, national banks, or trust companies, loan and investment companies, credit unions and in shares of building-loan associations provided the following conditions are satisfied:

a. The institution maintains an office or a deposit-taking facility within the State of Rhode Island;

b. Such deposits are insured by the Federal Deposit Insurance Corporation or the Federal Savings and Loan Insurance Fund to the extent that such accounts are so insured;

c. To the extent that such deposits described in this paragraph (9) exceed amounts covered by federal deposit insurance, approved collateral shall satisfy the requirements set forth in the Rhode Island Collateralization of Public Deposits Act, as defined in R.I.G.L. §§ 35-10.1-1—35-10.1-11.

(10) Any other investments expressly permitted by State of Rhode Island Law as well as any future amendments to applicable Rhode Island Laws.

Any authorized investments shall further be limited by, and subject to, any and all statutes, ordinances, resolutions or similar statements restricting, discouraging or prohibiting investments in certain entities, countries, types of businesses, or the like.

(j) *Investment parameters.* Unless otherwise specifically permitted by the city, an investment must also comply with the restrictions listed on exhibit A*, attached hereto and incorporated herein.

(k) *Investment of federally tax-exempt bond proceeds.* The city shall comply with all applicable sections of the Internal Revenue Code as they relate to Arbitrage Rebate and the investment of bond proceeds. The investment officers or investment advisor shall maintain all investment records to ensure compliance with all regulations.

(l) *Safekeeping and custody.* All investment securities purchased with funds governed by this policy shall be held in the name of the city by a third-party custodial agent that may not otherwise be counterparty to the investment transaction and will be free and clear of any lien. Further, all investment transactions will be conducted on a delivery-vs-payment basis. The custodial agent shall issue a safekeeping receipt to the city listing the specific instrument, rate, maturity, and other pertinent information. On a monthly basis, the custodial agent will provide reports that list all securities held for the city and the value of such securities as of month-end.

City officials and representatives of the custodial agent responsible for, or in any manner involved with, the safekeeping and custody process of the city's investments, shall be bonded in such a manner as to protect the city from losses from malfeasance and misfeasance.

Original copies of non-negotiable certificates of deposit and confirming copies of all other investment transactions must be delivered to and maintained by the treasurer.

(m) *Reporting requirements.* Investment reports shall be submitted by the investment officers in accordance with the Charter and the ordinances, and at any other time requested by the finance department or the city council. The submitted investment reports must include acknowledgements by the investment officers that investments are in compliance with this policy.

---

*Exhibit A has not been set out in this Code; it can be found on file in the offices of the city.

If the city engages an investment advisor to manage the city's funds, the investment advisor shall provide monthly reports to the investment officers for all funds under the management of the investment advisor, and certify that all investments are in compliance with this policy.

(n) *Performance standards.* The city's investments shall be managed with the objective of obtaining a market rate of return throughout budgetary and economic cycles, commensurate with the investment risk constraints and cash flow needs of the city's investment portfolios. Investments and/or specific investment portfolios shall be compared to an index of U.S. Treasury securities having a similar duration or other appropriate benchmarks.

(o) *Investment advisors.* Any investment advisors contracted by the city shall verify in writing that they have received a copy of this policy. Such written statement shall indicate that they have read and understand this policy and all applicable laws relating to the city's investments, and their intent to comply fully with these requirements. Investment advisors will be required to submit reports in accordance with the terms to be set forth in the contract to be awarded through the city's bidding process.

The city shall require all investment advisors to submit any and all of the following prior to engagement by the city and upon request:

(1) Audited financial statements.

(2) Proof of Financial Industry Regulatory National Association (FINRA) certification.

(3) Proof of state registration.

(4) SEC Form ADV Part II (for investment advisors).

(5) Any and all other documents requested by a bid or request for proposal duly advertised by the city.

(p) *Authorized financial institutions, depositories, and broker/dealers.* The investment officers will maintain a list of approved financial institutions and depositories, which shall be reviewed and updated at least every twenty-four (24) months.

If the city hires an investment advisor, the investment advisor will maintain a list of approved security broker/dealers selected, pursuant to the terms set forth in the contract to be awarded through the article's bidding process. For the purpose of this section, the term "broker" means a broker-dealer, broker, or agent of a government entity, who transfers, purchases, sells, or obtains securities for, or on behalf of, a government entity. These may include primary dealers or regional dealers that qualify under Securities and Exchange Commission (SEC) Rule 15c3-1 (uniform net capital rule).

(q) *Amendment and effective date.* This investment policy shall be updated on a continuing basis by incorporation of substantive changes made to applicable laws. Any changes shall be made as soon as practicable, in writing, and submitted for approval by the city council. Notwithstanding, any substantive changes to applicable laws shall be deemed incorporated herein, effective as of the date of the applicable law.
(Ord. No. 2019-1, §§ 1, 2, 1-22-19)

Sec. 21-64. Fire insurance fund.

(a) *Established.* A special fund to be known as "Fire Insurance Fund" is hereby established in the following amount and for the following purposes.

(b) *Amount.* Said fund shall be created by an appropriation of five thousand dollars ($5,000.00) annually, to be included in the resolution making appropriations for the support of the city government, until said fund shall amount to fifty thousand dollars ($50,000.00), and thereafter when said fund becomes reduced to an amount less than fifty thousand dollars ($50,000.00), provision shall be made for restoring the same by appropriating annually five thousand dollars ($5,000.00), or so much thereof as may be necessary, until the amount to the credit of said fund shall be fifty thousand dollars ($50,000.00); and any earnings of said fund shall be added thereto. Said fund and all appropriations therefor shall be paid to and held by the board of commissioners of sinking funds as a separate fund of the city, with full power to control, manage, invest and reinvest the same, and said board shall pay to the city treasurer such portions of said fund as the city council shall from time to time direct.

(c) *Use.* Said fund shall be expended as ordered by the city council for rebuilding, repairing or replacing public buildings, fixtures, machinery or furnishing therein belonging to the city, other than buildings or property included in the waterworks, which shall be destroyed or damaged by fire.
(Ord. 1914, ch. 20, § 59; Rev. Ords. 1946, ch. 2, § 38)

Sec. 21-65. Waterworks depreciation and extension fund.

(a) *Established.* A special fund to be known as "Water Works Depreciation and Extension Fund" is hereby established in the following amount and for the following purposes.

(b) *Amount.* The city controller shall, on the last business day of every fiscal year transfer to the board of commissioners of sinking funds for credit to the waterworks depreciation and extension fund such sum as shall be determined by the committee on finance and shall charge the same to "water rents." The board of commissioners of sinking funds shall hold said fund and all appropriations thereto and earnings

thereof as a separate fund of the city, with full power to control, manage, invest and reinvest and the same, and said board shall pay to the city treasurer such portions of said fund as the city council shall from time to time direct.

(c) *Use.* Said fund shall be used and expended under the direction of the water supply board only as ordered by the city council, for replacing buildings or machinery included in the waterworks which may become unserviceable, for any expense of extending the waterworks system, for the purpose of increasing or improving the source of supply, and for replacing such other unserviceable property included in the waterworks as said city council may direct. Further, said fund may be used and expended under the direction of the department of public works as ordered by the city council, for the maintenance, cleaning, repairing, restoring, replacing and construction of catch basins and sewerage lines, pipes and systems, as well as the paving of roads required in connection with such work.
(Ord. 1914, ch. 20, § 60; Ord. 1937, ch. 946, § 1; Rev. Ords. 1946, ch. 2, § 39; Ord. 2009, ch. 09-24, § 1, 3-20-09)

Sec. 21-66. Automobile accident fund.

(a) *Amount.* The special fund known as "Automobile Accident Insurance Fund" shall be maintained at a minimum sum of twenty-five thousand dollars ($25,000.00). Whenever said fund becomes reduced to an amount less than twenty-five thousand dollars ($25,000.00), provision shall be made for restoring the same by appropriating annually four thousand dollars ($4,000.00), or so much thereof as may be necessary, until the amount to the credit of said fund shall be twenty-five thousand dollars ($25,000.00); and any earnings of said fund shall be added thereto. Said fund and all appropriations therefor shall be held by the city treasurer as a separate fund of that city, and may be invested and reinvested by the city treasurer with the approval of the board of commissioners of sinking funds.

(b) *Use.* Said fund shall be expended in the regular course of city business to satisfy claims and executions against the city on account of automobile accidents.
(Ord. 1928, ch. 622, § 1; Rev. Ords. 1946, ch. 2, § 42)

Sec. 21-67. School fund.

(a) *Designation, use.* The special fund known as "School Fund" shall be maintained as a separate permanent fund of the city to be held by the city treasurer. The city controller shall draw orders on this fund upon presentation by the school committee of vouchers authorized in accordance with any law, ordinance, rule or regulation relative thereto.

(b) *Source.* In each fiscal year, all payments made by the state or federal government to the city for the support of public schools, all poll taxes collected and the balance of all dog license fees, together with tuition fees earned by the school department, shall be paid over and credited to the school fund by the city treasurer,

in accordance with the provisions of law. In addition, all miscellaneous receipts of the school department available to that department for expenditure, in accordance with the provisions of law, shall be credited to the school fund; and, all money appropriated by the city council from the general tax levy for the support of public schools, in accordance with the provisions of Chapter 680 of the Public Laws of 1925, shall be available for credit to the school fund.

(c) *Deposits.* The city controller from time to time shall draw an order upon the city treasurer, payable to the school fund in such amounts as are agreeable to the school committee and the city treasurer; provided, however, that no more than fifty (50) percent of the total amount appropriated from the general tax levy for the support of public schools shall be paid over to the school fund at any one time. The total amount appropriated by the city council for said support of public schools shall be paid over to the school fund before the last day of each fiscal year of the city.
(Ord. 1944, ch. 1293, §§ 1—4; Rev. Ords. 1946, ch. 2, § 43)

Sec. 21-68. Housing authority fund.

A trust and special fund shall be maintained as a separate fund to be held by the city treasurer for receipts from the Providence Housing Authority representing income from the Valley View Veterans' Rental Housing Development in excess of current needs for the retirement of debt incurred in connection with the Valley View Veterans' Rental Housing Development; and the board of sinking fund commissioners shall have control and management of said fund and shall invest the same in accordance with the provisions of section 21-83 of this chapter.
(Ch. 2, § 43.3, added by Ord. 1952, ch. 675, § 1)

Sec. 21-69. Henry B. Anthony Fund for memorial fountain, use regulated.

All income now or hereafter held by the city in the Henry B. Anthony Public Foundation Fund shall be applied to the costs of such materials and labor as shall be deemed necessary by the board of park commissioners of the city for the repairing, maintenance and improvement of the Henry B. Anthony Memorial Fountain. The expenditures from said fund shall be made under contracts which shall first be authorized and approved by the board of contract and supply.
(Ord. 1966, ch. 1782, § 1)

Sec. 21-70. Refund of collections account.

(a) *Procedure prescribed.* If any money, except money for taxes or other assessments, should be collected through an error, or if any money, except money for taxes or other assessments, though properly collected, ought to be refunded under the law to the person paying the same, the head of the department responsible for such collection shall certify the facts to the city controller, stating what part of said money so collected should be refunded, and thereupon the city controller, if he is satisfied that said refund ought to be made, shall certify a bill for such refund payable in the

ordinary course of payments by the city according to the ordinances governing such payments; except that refunds at the Charles V. Chapin Hospital may be made from an imprest fund to be established for that purpose, upon the approval of the superintendent of the hospital or someone designated in writing by him and approved by the city controller.

(b) *Funds established.* All refunds, including reimbursements for Charles V. Chapin Hospital imprest fund, shall be charged to an account to be set up and designated as "Refund of Collections—Current Year" if said receipt was collected during the current year, and to an account to be set up and designated as "Refund of Collections—Prior Years" if such receipt was collected during a prior year. Any balance existing in the above accounts as determined at periods from time to time by the city controller, shall be closed into the account or accounts affected by the original receipt.

(c) *Scope of section.* If any money for taxes or other assessments should be collected through an error, or if any money for taxes or other assessments, though properly collected, ought to be refunded under the law to the person paying the same, said refund shall be authorized by the city council and shall be handled in the manner provided for above.
(Ord. 1944, ch. 1234, § 1; Rev. Ords. 1946, ch. 2, § 40; Ord. 1949, ch. 324, § 1)

Sec. 21-71. Fire uniform allotment account.

(a) *Established, purpose.* In order to provide a fund for the purpose of compensating members of the fire department for personal expenses involved in the purchase and replacement of fire uniforms, the city controller is hereby authorized and directed to establish in the accounts of the city a special account to be known as "Fire Uniform Allotment Account".

(b) *Payments to new firemen.* The city controller is hereby requested and authorized to pay out of fire uniform allotment account the sum of one hundred and thirty dollars ($130.00) to each newly appointed fireman upon his appointment as compensation to him for his uniform and equipment costs.

(c) *Payment after one year's service.* Subsequent to his first full year of service, each fireman shall be entitled to receive seventy-five dollars ($75.00) from said fund each year; provided however, that each fireman regularly required to wear dress uniform during his hours of duty shall be entitled to receive one hundred five dollars ($105.00) from said fund each year. Said sums shall be paid at such times and upon such terms and conditions as may be prescribed by rule or regulation adopted by the commissioner of public safety and approved by the city controller.
(Ch. 2, § 43.1, added by Ord. 1951, ch. 457, §§ 1—3; Ord. 1960, ch. 1357, § 1; Ord. 1962, ch. 1506, § 1; Ord. 1964, ch. 1595, § 1)

Sec. 21-72. Police uniform allotment account.

(a) *Established, purpose.* In order to provide a fund for the purposes of compensating members of the police department for personal expenses involved in the purchase and replacement of police uniforms, the city controller is hereby authorized and directed to establish in the accounts of the city a special account to be known as "Police Uniform Allotment Account".

(b) *Payments to new policemen.* The city controller is hereby requested and authorized to pay out of police uniform allotment account the sum of one hundred eighty-five dollars ($185.00) to each newly appointed police officer upon his appointment as compensation to him for his uniform and equipment costs.

(c) *Payments after one (1) year's service.* Subsequent to his first full year of service each uniformed police officer, detective and police driver shall be entitled to receive one hundred five dollars ($105.00) each year, except that mounted motorcycle men shall receive an additional fifty dollars ($50.00) each year. Said sums shall be paid at such times and upon such terms and conditions as may be prescribed by rule or regulation adopted by commissioner of public safety and approved by the city controller.

(Ch. 2, § 43.2, added by Ord. 1951, ch. 456, §§ 1—3; Ord. 1960, ch. 1357, § 2; Ord. 1962, ch. 1506, § 2; Ord. 1964, ch. 1603, § 1; Ord. 1964, ch. 1614, § 1)

Sec. 21-73. Retention of cash by departments for making change.

Each department of the city government which receives money and therefore requires cash for the purpose of making change may retain in its offices such sum as the city controller may deem sufficient for said purpose, and the city controller is hereby authorized to allow for payment properly approved vouchers, approved by the committee on finance for said sums, to be charged to the appropriation for contingencies; provided however, that the sum authorized to be held by the city collector shall not exceed three thousand dollars ($3,000.00), and that the sum authorized to be held by any other department shall not exceed three hundred dollars ($300.00). The city controller is hereby authorized and may at any time request that the amount so charged, or any part of it, shall be returned to the city treasurer, said refund to be credited to any appropriation for contingencies. The city controller shall in his annual report set forth a record of the amounts so held.

(Ord. 1921, ch. 297, § 1; Rev. Ords. 1946, ch. 2, § 41)

Sec. 21-74. Animal care center fund.

(a) *Established.* A special fund to be known as "Animal Care Center Fund" is hereby established in the following amount and for the following purposes.

(b) *Amount.* A gift in the amount of two hundred twenty-three thousand six hundred seventy thousand dollars and fifty-eight cents ($223,670.58) having been received from the Estate of Robert Joseph Genereux, said fund is created in said

amount. Said fund and all earnings thereon shall be paid to and held by the board of investment commissioners as a separate fund of the city, with full power to control, manage, invest and reinvest the same, and said board shall pay to the city treasurer such portions of said fund, whether as principal and/or interest, as the animal control officer and the finance director shall from time to time direct for its use as set forth in subsection (c) hereof.

(c) *Use.* Said fund shall be expended as ordered by animal control officer and the finance director for the rebuilding, repairing, replacing and/or expansion of the animal care center, so-called, together with fixtures and equipment for the care of the animals housed at said facility.
(Ord. 2010, ch. 2010-43, 12-2-10)

Sec. 21-75. [Reserve funds.]

(a) *Purpose.* The purpose of this section is to implement sound fiscal practices with regard to the administration of reserve funds in the City of Providence. This section establishes requirements for the city to maintain adequate levels of cash balances in order to mitigate the impact of fiscal events such as unanticipated revenue shortfalls and emergency induced spending, as well as to provide predictability in long-range financial planning for the city.

(b) *Definitions.*

Undesignated general fund surplus ("rainy day" fund). The undesignated fund surplus or balance is generated when annual general fund assets are greater than annual general fund liabilities. Such undesignated funds can be authorized to replace unanticipated declines in revenue and emergencies.

Capital assets fund. The reserve fund that holds the net proceeds from the sale of city-owned property, including the capital assets fund—Fund 856.

Continuing appropriation fund. The reserve fund that consists of portions of annual operating surpluses and grant funds that are to be used for capital and special projects, including the continuing appropriation account—Fund 657.

(c) *Administration and reporting of reserve fund accounts.* The city shall implement policies regarding the administration, oversight, and reporting of all transactions involving reserve fund accounts, including the undesignated general fund surplus ("rainy day" fund), the capital assets fund, and the continuing appropriation fund, as follows:

(1) The mayor's office shall prepare and submit to the city council a "Reserve Funds Policy and Procedure Manual," to include the administration, oversight, and reporting of all reserve funds under the control of the city.

(2) The director of finance shall submit to the mayor and the city council annually by January 31, a "Reserve Level Status Report." Such report shall

identify all activity during the most recent three-year period in the undesignated surplus ("rainy day" fund), the capital assets fund, and the continuing appropriation fund. The report shall detail transactions, and provide documentation of city council approval for transfers from these accounts where required, and reasons for use of funds.

(3) No transfers of funds out of any account designated as either the undesignated general fund surplus ("rainy day" fund) or the capital assets fund shall be made prior to:

a. Written request by the mayor to the city council, which shall include an explanation for the transfer and proposed use of the funds,

b. Approval by majority vote of the city council; and

c. Authorization by the city treasurer.

(d) *Undesignated general fund surplus.* The following criteria, policies, and procedures shall apply to the undesignated general fund surplus ("rainy day" fund):

(1) A minimum reserve balance shall be maintained in the "rainy day" fund of not less than five (5) percent, with a fully-funded target of ten (10) percent of the total budget expenditures for the current fiscal year.

(2) A "replenishment of reserves" policy shall be strictly adhered to whenever the "rainy day" fund balance falls below the levels mandated in subsection (d)(1). The "replenishment of reserves" policy shall require the following:

a. Should the fund fall below the five-percent minimum, the budget for the ensuing fiscal year shall include an appropriation in the amount necessary to restore the fund to the minimum level.

b. Should the fund fall below the ten-percent level, the budgets for the ensuing three (3) fiscal years shall include appropriations in the amount necessary to restore the fund balance to ten (10) percent.

- Use of funds from the "rainy day" reserve shall be limited to replacing unanticipated declines in revenues and other emergencies as determined by the city council.

(3) Notwithstanding the foregoing, upon passage of the ordinance from which this section derives, the reserves balances for the years set forth shall be:

Fiscal Year 2013	1% of total budget expenditures
Fiscal Year 2014	3% of total budget expenditures
Fiscal Year 2015	5% of total budget expenditures

(e) *Capital assets fund.* The following criteria, policies, and procedures shall apply to the capital assets fund:

(1) Use of funds from capital assets funds shall be limited to paying the principal on existing debt, or to finance capital projects in excess of one hundred thousand dollars ($100,000.00.)

(2) The mayor shall submit, at the time of the annual budget submission for the ensuing fiscal year, a comprehensive annual capital assets reserve plan for the use of any funds contained within the capital assets account, or any funds that the mayor expects will be added to the capital assets account during the ensuing fiscal year. The plan shall limit the proposed use of funds to those in subsection (e)(1) and shall include:

a. Specific sources of and purposes for the allocation of all capital assets account funds; and

b. Capital expenditures planned for the ensuing fiscal year utilizing capital assets account funds.

(3) The director of finance, no later than September 1 of each year, shall provide the mayor and the city council with a capital asset account report that compares the activity in the capital asset reserve account with the comprehensive annual capital assets reserve plan that was submitted for the previous fiscal year, as required by subsection (e)(2).

(f) *Severability.* If any word, phrase, clause, subsection, or section of the ordinance from which this section derives is for any reason held unconstitutional or invalid by a court of competent jurisdiction, the invalidity thereof shall not affect the validity of any remaining portions of the ordinance.
(Ord. 2011, ch. 2011-21, § 1(1—6), 7-7-11)

Editor's note—Ord. 2011, ch. 2011-21, § 1, adopted July 7, 2011, added provisions to the Code but did not specify manner of inclusion. Therefore, at the discretion of the editor, said provisions have been included as § 21-75 herein.

Sec. 21-76. Youth sports fund and grant program.

(a) Established. A special fund to be known as "youth sports fund and grant program" shall be maintained as a separate permanent fund of the city to be held in trust by the city treasurer. The recreational advisory board shall grant funding to providence based local nonprofit youth sports organizations (organization) and the fund is hereby established with the following guidelines, conditions and purposes.

(b) Amount. Said fund shall be created by an appropriation by the city of forty thousand dollars ($40,000.00) annually. Said fund shall be paid by the city treasurer as required by the recreation advisory board through a certified vote transmitted to the city treasurer. Designation, use. Grant applications from organizations will be

made available for submission for funding related to equipment and costs associated with travel to compete and participate in sports-related activities. No organization shall receive more than five (5) percent of the annual appropriation by the city.

(c) It is required that any acceptance of funding from this program shall prohibit the organization from panhandling or soliciting for money on or around any roadway or situations where automobile traffic is present.

(d) Any violation of the terms of this grant agreement shall disqualify the grant recipient from future funding for a minimum of two (2) years.
(Ord. No. 2020-2, § 1, 3-2-20)

Sec. 21-77. Reserved.

DIVISION 2. SINKING FUNDS*

Sec. 21-78. Chairman, secretary, treasurer designated.

The mayor shall be chairman of the board of commissioners of sinking funds hereinafter also referred to as "the board", the city controller shall be secretary and shall keep a full record of the meetings, and the city treasurer shall be treasurer and shall keep the accounts of said board.
(Ord. 1914, ch. 61, § 2; Rev. Ords. 1946, ch. 2, § 44)

Sec. 21-79. Duty to keep record of meetings, proceedings.

The board of commissioners of sinking funds shall keep a full record of its meetings and proceedings, which record shall be kept in the vault in the office of the city controller.
(Ord. 1945, ch. 1335, § 1; Rev. Ords. 1946, ch. 2, § 45)

Sec. 21-80. Quarterly report to council required.

In the months of January, April, July and October of each year, the board of commissioners of sinking funds shall render a report to the city council, showing the changes, if any, in the several sinking funds.
(Ord. 1945, ch. 1335, § 1; Rev. Ords. 1946, ch. 2, § 46)

***Cross reference—**Municipal garage revolving fund, § 15-89 et seq.

State law references—Duty of board, Gen. Laws, ch. 329, § 21 et seq.; special act defining powers and duties of sinking fund commissioners, P. L. 1944, ch. 1433; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; establishment, use of reserve funds, ch. 45-11, Gen. Laws 1956; housing authority bonds, obligations, ch. 45-27, Gen. Laws 1956; redevelopment financing, ch. 45-33, Gen. Laws 1956.

and certify the results of such examination to the board of commissioners of sinking funds. The said board shall thereupon annually in the month of January render to the mayor a detailed report in writing of the condition and manner of investments as of the close of the last preceding fiscal year. A copy of such report shall be furnished each member of the council and the city clerk. In such report the said board shall certify that the various investment securities in the sinking funds have been examined by the city controller.
(Ord. 1945, ch. 1335, § 1; Rev. Ords. 1946, ch. 2, § 47)

Sec. 21-82. Custody of securities and books of account.

(a) The treasurer of the board of commissioners of sinking funds shall have custody of and shall deposit all securities of said board in a bank or trust company approved by the finance committee of the city council.

(b) The treasurer shall obtain at least quarterly from said bank or trust company a statement of all such securities so deposited, together with a list of all securities purchased or sold since the previous statement.
(Ord. 1914, ch. 2, § 48; Rev. Ords. 1946, ch. 2, § 48; Ord. 1960, ch. 1327, § 1)

Sec. 21-83. Control and management, investment of sinking funds.

The board of commissioners of sinking funds shall have the control and management of all sinking funds established for the redemption of any bonds or notes heretofore issued by the city, or which may hereafter be issued by the city, or for the redemption of any bonds now held or which may hereafter be held by the city, and shall promptly invest all moneys received by them from any source in bonds or notes of the city; in bonds of the State of Rhode Island, or of the United States; in bonds of any of the New England states; in bonds or notes of any city in the state; or in any other bonds that may be approved for investment by savings banks in the state.
(Ord. 1914, ch. 61, § 6; Rev. Ords. 1946, ch. 2, § 49)

Sec. 21-84. Preference to bonds and notes of city.

The board of commissioners of sinking funds shall give preference to the bonds and notes of the city, and shall, immediately upon the purchase thereof, cancel all such bonds so purchased by them, together with the coupons attached thereto, provided the same may be lawfully cancelled, in such manner as effectually to prevent their reissue or negotiation; provided however, that such bonds bought as an investment shall be reissued in registered form.
(Ord. 1914, ch. 61, § 6; Rev. Ords. 1946, ch. 2, § 50)

Sec. 21-85. Form of securities purchased; negotiability.

All securities which shall be purchased by the board of commissioners of sinking funds may be in either registered or bearer form. Such securities shall not be sold, exchanged or redeemed except by order of said board.
(Ord. 1914, ch. 61, § 6; Rev. Ords. 1946, ch. 2, § 51; Ord. 1960, ch. 1327, § 1)

Sec. 21-86. Percentage of indebtedness to valuation limiting investment by board.

If at any time the indebtedness of any state or city except the City of Providence, less its water debt and sinking fund, shall exceed seven (7) percent of its valuation for purposes of taxation, the board of commissioners of sinking funds shall forthwith sell the bonds and notes of said cities, and until such indebtedness shall be reduced to seven (7) percent of the valuation for purposes of taxation, shall cease to invest its moneys in said bonds or notes.
(Ord. 1914, ch. 61, § 6; Rev. Ords. 1946, ch. 2, § 52)

Sec. 21-87. Vote required on investment or change of investment.

No investment or change of investment in securities shall be made, except by vote of a majority of the board, and the members of the board shall, by their signatures upon the record, express their approval or disapproval of such vote.
(Ord. 1914, ch. 61, § 7; Rev. Ords. 1946, ch. 2, § 53)

Sec. 21-88. Deposits in sinking fund for redemption of water bonds.

All sums of money remaining in the hands of the board, after applying sinking funds thereto as by law required, and all excess of receipts from water rents over and above the necessary expenses of managing the waterworks, the interest on loans and bonds issued on account of the waterworks, and the amounts transferred to the waterworks depreciation and extension fund, shall be applied to a sinking fund for the redemption of water bonds as they become due.
(Ord. 1914, ch. 61, § 8; Rev. Ords. 1946, ch. 2, § 54) ;percent; Application of revenue of water system, § 6.27.

Sec. 21-89. Custody of perpetual care fund of North Burial Ground.

The board of commissioners of sinking funds is authorized to hold in trust for the park commission the perpetual care funds of the North Burial Ground, and any additions thereto, according to the terms and provisions of P. L. 1889, c. 781.
(Ord. 1914, ch. 61, § 9; Rev. Ords. 1946, ch. 2, § 55)

Sec. 21-90. Payments to board from sales of real estate for application to city debt.

All receipts in money on account of the sale of real estate or buildings of any description now belonging to or which may hereafter belong to the city, except the real

estate now or hereafter included in the North Burial Ground or in Roger Williams Park, shall be paid to the commissioners of sinking funds. The sinking fund commissioners shall hold the same as a separate fund to be appropriated by them to payment or purchase of the city debt.
(Ord. 1914, ch. 20, § 57; Rev. Ords. 1946, ch. 2, § 56)

ARTICLE III½. FIRST-SOURCE AGREEMENTS*

Sec. 21-91. Applicability.

The provisions of this article shall apply to any and all businesses in the City of Providence who shall receive aid in cash or in-kind from the City of Providence above and beyond the normal services provided to all businesses and residents in the city. This shall include tax concessions, and/or abatements, other than adjustments made by the tax assessor or the board of tax assessment review; grants-in-aid, grants from the office of community development, office of economic development, or other federal aid programs administered by the City of Providence, U.D.A.G.'s, H.O.D.A.G.'s or any program requiring authorization by resolution of the city council unless specifically exempted by ordinance. In addition, this shall include any project funded in whole or in part by city funds, or funds which, in accordance with a federal grant or otherwise the city expends or administers, or which the city is a signatory to the construction contract. This requirement shall not apply, however, to businesses of four (4) employees or less.
(Ord. 1985, ch. 85-62, § 1, 6-14-85)

Sec. 21-91.1. Legislative findings.

It is the intention of the city council to preserve the health, safety and welfare of the citizens of Providence and their property by ensuring that all significant public investments of taxpayer dollars require that employers utilize the Providence First Source List for jobs created as a result of the public investment. In thoroughly reviewing the state and condition of the Providence First Source List, including, but not limited to, the September 6, 2011 report and recommendations of the city council commission to study and evaluate the city's first source ordinance, the city council finds and declares the following:

(1) Unemployment and underemployment remain serious and important problems facing the residents of Providence with the February 2012 unemployment rate reaching 13.5 percent signifying that ten thousand eight hundred sixty-seven (10,867) Providence residents are out of work.

***Editor's note—**Ord. 2012, ch. 2012-27, § 1, adopted June 7, 2012, amended Art. III½ in its entirety, with the exclusion of § 21-91, to read as set out herein. Former Art. III½, §§ 21-92—21-96, pertained to similar subject matter and derived from Ord. 1985, ch. 85-62, §§ 1—6, adopted June 14, 1985.

(2) The City of Providence faces significant economic and social hardship with a structural budget deficit of seventy million dollars ($70,000,000.00) in fiscal year 2011 and one hundred ten million dollars ($110,000,000.00) in fiscal year 2012 and a local economy devastated by the dual impacts of an economic and foreclosure crisis.

(3) The City of Providence's extremely high unemployment rate has significantly impacted the ability of our citizens to pay rent and/or mortgages for the dwellings in which they live. The result has been hundreds of foreclosures in recent years causing a decline in property values for all city residents and property owners.

(4) As a result of the high unemployment and foreclosure rates, declining property values, and a tax base severely limited by tax-exempt property holdings, the city cannot raise any substantial monies to fund much needed public works projects and provide grants and loans for essential social programs.

(5) The cost of public works projects, grants and loans to non-profits, as well as tax stabilization agreements, incentives, discounts, and credits that are provided to the private sector to induce economic development are borne by the residents and business owners who pay the full property tax rate.

(6) The high rates of unemployment and foreclosure have caused increases in property crimes - crimes steeped in the conditions of a stagnant economy. These crimes have a direct and deleterious effect upon all the neighborhoods and areas of the city, resulting in vandalism, crime, and the physical deterioration of neighborhoods and areas.

(7) In order to adequately fund these projects, the city needs to maintain adequate property values; and in order to maintain property values, the city needs to provide access to gainful employment for its citizens.

(8) Unless the city's citizens are provided with an opportunity to be hired on projects that their tax dollars fund, unemployment will remain high, property values will further decline, foreclosures will increase, crime will also increase, and the city will not be able to pay for or provide essential public works projects, social programs, and incentives to the private sector that will induce economic activity.

(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-91.2. Covered employers.

The provisions of this article shall apply to any and all employers, entities, and/or businesses that receive any of the following forms of aid from the City of Providence above and beyond the normal services provided to all businesses and residents in the city in an amount that exceeds more than twenty-five thousand dollars ($25,000.00) over the course of one (1) calendar year.

(1) Tax concessions, and/or abatements, other than adjustments made by the tax assessor or the board of tax assessment review, tax stabilization agreements, tax incremental financing agreements.

(2) Grants, grants-in-aid, and/or loans from the office of community development, office of planning and development, or other federal aid programs administered by the City of Providence, or any program requiring authorization by resolution of the city council unless specifically exempted by ordinance.

(3) Projects funded in whole or in part by city funds, or funds which, in accordance with a federal grant or otherwise the city expends or administers, or which the city is a signatory to the construction contract.

This section shall not apply, however, to entities of four (4) employees or less. Should a previously exempted employer, entity and/or businesses grow to five (5) employees or more, the provisions of this section shall apply.
(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-92. Covered jobs.

Jobs covered by this section shall include all positions created as a result of internal promotions, terminations, and expansion of the employer's workforce, except those filled by internal promotion from within the employer's local workforce for the term that the employer, entity and/or business receives aid from the city as defined in section 21-91. Jobs covered by this section shall also include all contractors, subcontractors, tenants and subleasees that do business on, work at, or are located at the site or locus where aid from the city is received for any and all new employees needed to work at the site or locus of the subject premises for the term that the site receives aid from the city as defined in section 21-91.
(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-93. Nature of first source applicability.

(a) Any employer, entity and/or business subject to section 21-91 shall, as a condition of the receipt of such aid, hire any and all employees for all jobs covered by section 21-92 and in accordance with section 21-94 for the term of such aid.

(b) Any project that receives aid from or through the city as defined by section 21-91 shall, as a condition of the receipt of such aid, hire any and all employees for all jobs covered by section 21-92 and in accordance with section 21-94 for the duration of the project.

(c) All city agencies and/or departments issuing applications, requests for proposals, contracts, loans, and/or bid specifications shall include a notice of first source obligations for covered employers pursuant to section 21-91 and covered jobs pursuant to section 21-92 and require any recipient of any aid as defined in section 21-91 to affirmatively acknowledge their, and any of their subcontractor's obligations to comply with this section.

(d) Any employer, entity and/or business subject to section 21-91 shall, as a condition of the receipt of such aid, identify in all relevant advertising and job applications that they are a first source covered employer and allow the city or its designee to periodically audit relevant records of their entity reasonably related to the employer's, entity's, and/or business's compliance with this section.

(e) Covered employers shall comply with federal equal employment opportunity policies on non-discrimination for those with prison records. Whenever an employer is in receipt of information which is part of an employment applicant's or employee's criminal history record information file, he or she may use that information for the purpose of deciding whether or not to hire the applicant or fire the employee, only in accordance with this section, unless such denial of employment or termination is required by municipal, state or federal law.

(1) Convictions should only be considered by the employer to the extent that they reasonably relate to the applicant's suitability for employment in the position for which they have applied or in which they are in, that is, where there is a justified business necessity. In determining whether a justified business necessity exists, the employer must consider:

   a. The gravity of the offense or offenses;

   b. The time that has passed since the conviction and/or completion of the sentence; and

   c. The nature of the job held or sought.

(2) Process. In the case when an individual is being denied employment as a result of a business necessity as described above, the employer is required to give written notification to the individual being denied or fired, explaining the reasons why he/she was denied employment, and informing him/her of the right to appeal to the director or his/her designee.

(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-94. First source oversight.

(a) There shall be a first source director "director" who shall either maintain or contract with a third party to maintain a first source list.

(b) The list shall consist of any bona fide Providence resident seeking employment who wishes to register with said agency.

(c) This list shall also include with the names and addresses of such job seekers any special skills, training or education which the job seeker may have.

(d) The director, in conjunction with other appropriate government agencies, shall be responsible for recruiting, training, and advertising no less frequently than once every three (3) months the existence of said list and the method by which a person may be included on such list. Advertising shall be in a newspaper of general

circulation or on the city website as well as any other method deemed appropriate by the first source director and shall also include notification of any and all public job placement and referral agencies in the City of Providence.

(e) All covered employers subject to section 21-91 shall notify the director or his/her designee of job openings for jobs covered pursuant to section 21-92 prior to advertising applicable job opening(s) to the public.

(1) Within ten (10) days of being notified by the entity or employer, the director or his/her designee shall refer appropriately trained and qualified persons from the first source list or any other source to said employer until the employer has filled such jobs from the first source list or with bona fide City of Providence residents, giving preference to the length of time residents have been on the list.

(2) In the event that the director does not notify the entity or employer within the ten-day period, or the entity or employer is unable to find qualified employees after exhausting all of the appropriately trained and qualified persons to, the employer shall notify the director or his/her designee that it wishes to seek outside employees.

(3) The director or his/her designee shall have ten (10) days to meet with the employer after the employer notifies the director. If the director or his/her designee does not meet with the employer within ten (10) days of being notified, the employer may hire individuals not included on the list. If they meet and, after conference, the employer and director or his/her designee agree that the director or his/her designee, is unable to provide suitable employees for said positions, the director or his/her designee shall permit the covered employer in writing to hire workers not found on the first source list or who are not bona fide City of Providence residents.

(4) If the employer and director or his/her designee do not agree that the director or his/her designee is able to find suitable employees, the director or his/her designee shall be given an additional ten (10) days to recruit employees for such positions. If at the end of ten (10) days the director or his/her designee is unable to find suitable employees, the director or his/her designee shall permit the covered employer in writing to hire workers not found on the first source list or who are not bona fide City of Providence residents.

(5) At the sole discretion of the director or his/her designee, an employer may be exempted from the provisions of this article if the employer has an emergency hiring requirement, or if the employer can certify that it has otherwise hired a bona fide City of Providence resident or a person on the first source list for a job covered in section 21-92 that should have been subject to the process in section 21-94.

(f) The director may also develop targeted career and industry pathways for residents on the first source list and establish training and referral programs for such persons and notify all persons on the first source list of such programs. Selection for such training programs shall be in accordance with the following guidelines: the director or his/her designee shall strive to place a proportionate share of women, minorities and persons with disabilities in all training and job opportunities. The goals will be fifty (50) percent women, fifty (50) percent minorities, and five (5) percent persons with disabilities.

(g) Training and referral programs may be established at regular intervals and may be in the following areas:

(1) Any area in which a covered employer who expects to be hiring has expressed a need exists.

(2) Any area in which, in the determination of the director, a need exists in the general work force but there are not sufficient training opportunities specifically for Providence residents.

(3) Basic training in the skills and work habits necessary for successful and continued employment for any person on the first source list whom the agency identifies as lacking such skills.

(h) The director shall prepare and make available on the city's website, as well as to the internal auditor, the city council and to the public, a quarterly report containing the following information commencing with the city's fiscal year on July 1:

(1) The names of entities that receive aid, as defined in section 21-91; the aid they received from the city; the number of job vacancies they have; the number of hires they make for jobs covered in section 21-92; the number of new hires they made from the first source list; and, the number of new hires they make that are bona fide city residents, and the number of new hires they make that are non-residents of the city.

(2) Total number of people hired due to first source obligations and the percentage of those hired who were people of color, women, and people with disabilities.

(3) The names of the entities that developed job training programs through the funds allocated by the city, number of residents from the city who have participated and completed in these programs, and where they were placed for jobs; and percentages of these residents who are people of color, women, and people with disabilities.

(4) In addition to their above reporting requirements, the director or his/her designee shall provide the number of recipients that were required to comply with this article but did not, and what, if any, sanctions they received; challenges in ensuring compliance from covered employers, information on any

employers who are non-compliant, and names of all entities that received job training funds from the first source trust fund and the amount of funds received.

(i) The director shall promulgate a citizen complaint form with which any person on the first source list or bona fide Providence resident may register a complaint against any employer, entity and/or business alleged to be in violation of this article. The director shall provide a written response to the citizen complaint within ninety (90) days stating whether the complaint lacks merit or will be pursued pursuant to section 21-96.
(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-95. Funding.

(a) For purposes of maintaining an adequate first source list to meet the needs of covered employers and for adequately training individuals on such list the city shall appropriate annually no less than two hundred fifty thousand dollars ($250,000.00) to implement, monitor and enforce the provisions of this article. If allocated sums of funds are not used by the end of the fiscal year, the monies shall remain in a dedicated first source trust fund "fund" to implement the provisions of this article in the next fiscal year.

(b) This fund shall be under the administration of the director but may include funds from workforce investment, community development, or any other source. The city shall be authorized when the appropriate state and local provisions are fulfilled to issue the necessary bonds for such funding. If the city is unable to fulfill the funding provision of this article from any other source, the funds shall be provided from the city's general fund.

(c) All tax stabilization agreements and/or tax incremental financing agreements shall require at least one (1) percent of the total amount of discounted taxes to be directed to the fund and shall be used to implement, monitor and enforce the provisions of this article.
(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-96. Enforcement.

(a) The director and/or his/her designee shall monitor compliance of any employer subject to section 21-91 as well as any city department that has obligations under this section. The director shall request to the law department in writing that the city impose sanctions on any employer subject to section 21-91 that violates its obligations under this article. Such violations shall include, but not be limited to:

(1) Failure to file reports within required timeframes.

(2) Failure to notify the director and/or his designee about job openings defined in section 21-92 within required timeframes.

(3) Failure to notify the director and/or his designee about job openings defined in section 21-92 prior to advertising them to the public.

(4) Failure to allow access to relevant records and/or cooperate with the city in an audit.

(5) Failure to comply with section 21-93.

(b) Sanctions for violations shall include, but not be limited to:

(1) Termination and/or suspension of aid or funding.

(2) Termination and/or suspension of contract.

(3) Recovery of any public benefit which accrued to the business during the period of violation.

(4) Withholding a percent of all future payments under the involved eligible project until compliance with first source obligations is achieved.

(5) Suspension or termination from doing business with or receiving aid from the city for a period of not less than two (2) years.

(c) Any firm, company, or entity or representative thereof found to have made an intentionally false or fraudulent representation in connection with their obligations under this article shall cause:

(1) The entity's contract with the city to terminate immediately.

(2) The entity to be terminated from doing business with or receiving aid from the city for a reasonable period of time as determined by the city solicitor.

(3) The city to impose a claim for any damages or costs incurred as a result of misrepresentation against all responsible parties.

(4) Termination shall extend to successor entities that any person who was found to have violated this section is an owner, member, partner, principal, or director of.

(5) Court costs to be paid by the entity for any legal appeal in which the city prevails.

(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-96.1 Rules and regulations.

The director shall promulgate rules and regulations to implement the provisions of this article; emphasizing that these statutory requirements are the minimum requirements for those entities who wish to utilize public dollars.

(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

Sec. 21-96.2 Severance provision.

If any one (1) or more subsections of this article shall for any reason be adjudged unconstitutional or otherwise invalid, the determination shall not affect, impair, or invalidate the remaining subsections of this article and ordinance.
(Ord. 2012, ch. 2012-27, § 1, 6-7-12)

ARTICLE IV. RELOCATION PAYMENTS*

Sec. 21-97. Definitions.

The following definitions shall apply in the interpretation and enforcement of this article and any rules and regulations adopted pursuant thereto:

Business concern. "Business concern" shall include a corporation, firm, partnership, individual or other entity engaged in some type of business or profession necessitating fixtures, equipment, stock in trade or other tangible property for the carrying on of the business or profession. Nonprofit organizations and institutions such as churches and hospitals shall be included.

Eligible individual or family. "Eligible individual or family" shall mean an individual or family owning furniture in housing accommodations.

Family. "Family" shall mean a group of two (2) or more persons living together and related by blood, marriage or adoption or two (2) or more single persons not related by blood, marriage or adoption, who are living together in a single housekeeping unit.

Individual. "Individual" shall mean a person who is not a member of a family as defined herein.

Occupied room. "Occupied room" shall include all furnished rooms except bathrooms, hallways and closets.

Relocation payments. "Relocation payments" shall mean payments to transients, eligible individuals or families and business concerns, for their reasonable and necessary moving expenses and for any actual direct losses of personal property to business concerns, except goodwill or profit, resulting from their displacement by any municipal project.

Transient. "Transient" shall mean a displaced individual or family not owning furniture but occupying housing accommodations.
(Ord. 1962, ch. 1473, § 1)

***Cross reference—**Division of relocation, §§ 2-119, 2-120.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; establishment, use of reserve funds, ch. 45-11, Gen. Laws 1956.

Sec. 21-98. Authority to make payments for moving expenses and property losses.

Upon presentation of satisfactory evidence of the fact of relocation, the family and business relocation service administrator is hereby authorized and directed to make relocation payments to transients or eligible individuals, families and business concerns for moving expenses and property losses resulting from their displacement by any municipal project undertaken by the city after January 1, 1961, or any project sponsored by the Federal Public Housing Administration which otherwise makes no provision for such relocation payments.
(Ord. 1962, ch. 1473, § 2; Ord. 1964, ch. 1631, § 1)

Sec. 21-99. Determination of amounts to be paid.

The sum of money to be paid to each individual, transient or family as provided in section 21-98 shall be in accordance with a schedule of payments adopted by the administrator of family and business relocation, and shall be based upon the number of occupied rooms. The sum to be paid to business concerns shall be based upon the actual necessary moving expenses incurred, and upon any direct losses sustained to personal property, but not upon goods kept for sale, goodwill or profit.
(Ord. 1962, ch. 1473, § 3)

Sec. 21-100. Limits on amounts of payments.

Payments made pursuant to the provisions of this article shall not exceed two hundred dollars ($200.00) in the case of each transient individual or family, and three thousand dollars ($3,000.00) in the case of each business concern.
(Ord. 1962, ch. 1473, § 4)

Sec. 21-101. Rules, regulations applicable to payments.

All payments made pursuant to this article shall be made subject to rules and regulations prescribed by the administrator of family and business relocation, and such payments and the rules and regulations shall at all times be subject to the approval of the finance director of the city.
(Ord. 1962, ch. 1473, § 4)

Secs. 21-102—21-110. Reserved.

ARTICLE V. REAL PROPERTY TAX EXEMPTION FOR ELDERLY*

Sec. 21-111. Exemption granted; conditions.

A real property exemption from assessed value taxation is granted to any person sixty-five (65) years of age or over, who owns and occupies residential property located in the city, as qualified in section 21-182 of article X of this Code, provided, however, that only one (1) such exemption shall be granted to co-tenants, joint tenants and tenants by the entirety who are sixty-five (65) years of age or over. Such exemption shall be granted upon proof of the following:

(1) Age;

(2) Ownership of said residential property;

(3) Occupancy of same;

(4) That said taxpayer is legally domiciled in the city.

Such proof shall conform to the provisions of section 21-112 of this article. Nothing contained herein shall abrogate or affect the authority conferred upon the city assessor by the provisions of R.I.G.L. 1956 § 44-3-3(16), as amended.
(Ord. 2013, ch. 2013-25, § 1, 6-20-13; Ord. No. 2021-15, § 1, 6-1-21)

Sec. 21-112. Filing of application; proof of right to exemption.

No person shall be entitled to any exemption herein authorized without first filing an application with the city assessor on forms furnished by the assessor. Each application shall be sworn to by the applicant or applicants under penalty of perjury. Proof of age, ownership, occupancy and legal domicile shall be furnished in the following manner:

(1) *Proof of age.* Age may be proved by furnishing to the city assessor either a birth certificate, certificate of citizenship, baptismal certificate, affidavit of a third party or by such other means as may be approved by the assessor.

(2) *Ownership.* Ownership may be established by furnishing the city assessor with the date of purchase and land record citation of same by the applicant of the residential property involved.

(3) *Occupancy.* Occupancy of the residential property may be proved by incorporating such fact in the sworn application for exemption. Applicants who are temporarily domiciled elsewhere may be asked for documents supporting their claim of residency, i.e., hospital or nursing home documentation of a temporary stay, insurance documents in the case of fire displacement, etc.

***Editor's note—**Ord. 2013, ch. 2013-25, § 1, approved June 20, 2013, amended Art. V in its entirety to read as set out herein. Former Art. V, §§ 21-111—21-113, pertained to similar subject matter and derived from Ord. 1986, ch. 86-55, §§ 1—3, approved Dec. 5, 1986; Ord. 1988, ch. 88-28, § 2, approved July 1, 1988.

(4) *Legal domicile.* Legal domicile may be established by the production of (1) voter's registration certificate or (2) by the production of a license to operate a motor vehicle, or a registration certificate or by such other means as the assessor may reasonably require.

(5) *Other forms of proof.* An application may provide proof of right to exemption if the above specified methods are not available to him or her by furnishing military records, passports, certificate of citizenship or by such other evidence of proof as may be required by the city assessor.

(6) *Residential property defined.* Residential property shall be defined as not more than a three-family dwelling unit.

In the event that the applicants for exemption are co-tenants, joint tenants or tenants by the entirety, the proof enumerated above by any one (1) of the applicants shall be sufficient to be entitled to the exemption.
(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

Sec. 21-113. Termination of exemptions.

All exemptions shall terminate upon the conveyance of the subject property, death of the person or persons exempted or the moving of such person or persons from the City of Providence.
(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

Secs. 21-114—21-120. Reserved.

ARTICLE V½. REAL PROPERTY TAX EXEMPTION FOR THE DISABLED*

Sec. 21-121. Authority of council to grant; qualifications.

The city council of the City of Providence is hereby authorized to grant a nine thousand dollar ($9,000.00) real property exemption from taxation to any person who

---

***Editor's note—**Ord. 2013, ch. 2013-25, § 1, approved June 20, 2013, amended Art. V½ in its entirety to read as set out herein. Former Art. V½, §§ 21-121—21-123, pertained to similar subject matter and derived from Ord. 1980, ch. 80-14, §§ 1—3, approved April 25, 1980; Ord. 1988, ch. 88-28, § 1, approved July 1, 1988.

State law reference—Disabled persons' tax exemption, Gen. Laws 1976, § 44-3-15.

is one hundred (100) percent disabled and who owns and occupies residential property located in the City of Providence. Such exemption shall be granted upon proof of the following:

(a) Ownership of said residential property for a period of three (3) years next prior to the filing of an application for taxation;

(b) Occupancy of same;

(c) That said taxpayer is legally domiciled in the City of Providence. Nothing contained herein shall abrogate or affect the authority conferred upon the city assessor by the provisions of R.I.G.L. § 44-3-3.16, as amended.

(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

Sec. 21-122. Filing of application; proof of right to exemption.

No person shall be entitled to any exemption herein authorized in any year without first filing an application with the city assessor on forms furnished by assessor. Each application shall be sworn to by the applicant under penalty of perjury and may be verified by the authority granting such disability payments. Such verification shall be at the discretion of the assessor. Proof of such disability shall be as designated in Title II and Title XVI of the Social Security Acts, as amended. However, those certain individuals being one hundred (100) percent disabled and receiving disability payments from sources other than Social Security, such as employees of the railroad, federal civil service, postal service and Providence police department, shall also be entitled to apply and receive exemption under this article. Proof of such disability, ownership, occupancy and legal domicile shall be furnished in the following manner:

(1) *Proof of disability.* Any person who is certified to be one hundred (100) percent disabled.

(2) *Ownership*. Ownership shall be established by furnishing the city assessor with the date of purchase and land record citation of same, by the applicant, of the residential property involved.

(3) *Occupancy.* Occupancy of the residential property may be proved by incorporating such fact in the sworn application for exemption. Applicants who are temporarily residing elsewhere may be asked for documents supporting their claim of residency, i.e., hospital or nursing home documentation of a temporary stay, insurance documents in the case of fire displacement, etc.

(4) *Legal domicile.* Domicile may be established by the production of a voter's registration certificate and/or by the production of a license to operate vehicle, or a registration certificate, or by such other means as the city assessor may reasonably require.

(5) *Other forms of proof.* An applicant may provide proof of right to exemption, if the above specified methods are not available to him or her, by furnishing military records, passports, certificate of citizenship or by such other evidence of proof as may be required by the city assessor.

(6) *[Residential property defined.]* Residential property shall be defined as not more than a three-family dwelling unit with no commercial or office space involved.

In the event that the applicant for exemption is a co-tenant, joint tenant or tenant by the entirety, proof enumerated by any one (1) of the applicant owners shall be sufficient to entitle the individual to the exemption; however meaning and intending that only one (1) exemption shall be allowed under this article to any one (1) household whether one (1) individual owner or all the owners are receiving benefits under one (1) or more of the disability provisions.

Further, those individuals already receiving special exemption benefits as being so-called "service-related disabled" under the veterans' exemption program shall be allowed to file under this provision and be allowed to claim a maximum nine thousand dollars ($9,000.00) exemption as a disabled individual, but shall not be entitled to claim both such exemption benefits separately.
(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

Sec. 21-123. Termination of exemption.

All exemptions shall terminate upon:

(1) The conveyance of the subject property;

(2) Death of the person exempted;

(3) The moving of such person from the City of Providence on a permanent basis with the intention to establish residency elsewhere;

(4) The termination of such disability benefits;

(5) Upon the age of sixty-five (65), when all disability benefits are converted to retirement benefits and the individuals exempted must then apply for continued exemption under the senior citizens' exemption program.
(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

ARTICLE V6/10. REAL PROPERTY TAX EXEMPTION FOR PERSONS AGED SIXTY-TWO THROUGH SIXTY-FOUR YEARS OF AGE RECEIVING SOCIAL SECURITY OLD AGE INSURANCE BENEFITS*

Sec. 21-124. City assessor to grant; qualification.

The City Assessor of the City of Providence shall grant a ten thousand dollar ($10,000.00) real property exemption from taxation to any person sixty-two (62) through sixty-four (64) years of age who is receiving Federal Social Security old age insurance benefits and who owns and occupies residential property located in the City of Providence, as qualified in section 21-182 of article X of this Code. Only one (1) such exemption shall be granted to co-tenants, joint tenants or tenants by the entirety even though more than one (1) or all of such co-tenants, joint tenants or tenants by the entirety qualify for such exemption. Such exemption shall be granted upon proof of the following:

(1) Ownership of said residential property on the date as of which the taxes are levied;

(2) Occupancy of the said residential real property as the principal residence of the person claiming such exemption. Applicants who are temporarily domiciled elsewhere may be asked for documents supporting their claim of residency, i.e., hospital or nursing home documentation of a temporary stay, insurance documents in the case of fire displacement, etc.

(3) That the person claiming such exemption is legally domiciled in the City of Providence;

(4) That the person claiming such exemption is between the ages of sixty-two (62) through sixty-four (64) on the date as of which the taxes are levied.

(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

Sec. 21-125. Filing of application; proof of right to exemption.

No person shall be entitled to any exemption herein authorized in any year without first filing an application with the city assessor in such form and with such supporting proof as the city assessor may require. Such application must be filed on or before March 15 of the year for which such exemption is claimed.

In the event that the applicant for exemption is a co-tenant, joint tenant or tenant by the entirety, proof enumerated by any one (1) of the owners shall be sufficient to entitle the individual to the exemption; however meaning and intending that only one (1) exemption shall be allowed under this article to any one (1) household whether one

---

***Editor's note—**Ord. 2013, ch. 2013-25, § 1, approved June 20, 2013, amended Art. V6/10 in its entirety to read as set out herein. Former Art. V6/10, §§ 21-124—21-125, pertained to similar subject matter and derived from Ord. 1988, ch. 88-30, § 1, approved July 1, 1988.

(1) individual owner or all of the owners are receiving Federal Social Security old age insurance benefits. For any years in which any cotenant, joint tenant or tenant by the entirety received a real property exemption under the foregoing section 21-124, an exemption for the disabled under the provisions of sections 21-121 through 21-123 of the Code of Ordinances of the City of Providence shall not be granted to any co-tenant, joint tenant or tenant by the entirety of such real property.
(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

ARTICLE V7/10. INCREASES IN THE AMOUNT OF VARIOUS REAL PROPERTY TAX EXEMPTIONS*

Sec. 21-126. Increase in real property tax exemptions.

The amount of the following exemptions with respect to the assessed value from local taxation on taxable property is fixed as follows:

(1) Veterans as defined in R.I.G.L. § 44-3-4 and the un-remarried widow or widower of such veterans at seven thousand nine hundred sixty-nine dollars and eighty-seven cents ($7,969.87)

(2) Blind persons as defined in R.I.G.L. § 44-3-12 at forty-seven thousand eight hundred nineteen dollars and twenty-two cents ($47,819.22).

(3) Veterans who are totally disabled as defined in R.I.G.L. § 44-3-4 at fifteen thousand nine hundred thirty-nine dollars and seventy-four cents ($15,939.74).

(4) Gold Star parents as defined in R.I.G.L. § 44-3-5 at twenty-three thousand nine hundred nine dollars and sixty-one cents ($23,909.61).

(5) Specially adapted housing for paraplegic veterans as defined in R.I.G.L. § 44-3-4 at seventy-nine thousand six hundred ninety-eight dollars and seventy cents ($79,698.70).

(6) For any person sixty-five (65) years of age or over at twenty-six thousand five hundred sixty-six dollars and twenty-three cents ($26,566.23).

(7) For persons who are one hundred (100) percent disabled as determined pursuant to Title II and Title XVI of the Social Security Act, 42 U.S.C. § 401 et seq., and 42 U.S.C. § 1381 et seq., as amended, or who, by reason of their being one hundred (100) percent disabled, are receiving disability payments from sources other than the Social Security Administration (such as employees of

---

***Editor's note—**Ord. 2013, ch. 2013-25, § 1, approved June 20, 2013, amended Art. V7/10 in its entirety to read as set out herein. Former Art. V7/10, § 21-126, pertained to similar subject matter and derived from Ord. 1988, ch. 88-29, § 1, approved July 1, 1988; Ord. 2009, ch. 09-44, § 5, approved July 30, 2009; Ord. 2010, ch. 2010-31, § 5, approved July 28, 2010; Ord. 2011, ch. 2011-24, § 5, approved July 18, 2011; Ord. 2013, ch. 2013-17, § 5, approved June 13, 2013.

the railroad, federal civil service, postal service, and the Providence police and fire departments) at twenty-five thousand nine hundred two dollars and eight cents ($25,902.08).

(8) For any person sixty-two (62) through sixty-four (64) years of age, who is receiving Social Security benefits, twenty-three thousand nine hundred nine dollars and sixty-one cents ($23,909.61).

(9) Prisoners of war who are veterans of military or naval service of the United States of America, as defined in R.I.G.L. § 44-3-4(e) and the unmarried widow or widower of such prisoner of war at thirty-nine thousand eight hundred forty-nine dollars and thirty-five cents ($39,849.35).

(10) If a taxpayer is eligible for the owner-occupied residential real estate tax rate as in section 21-182 above but does not apply until after March 15, 2013, the taxpayer will pay a late fee equal to one (1) percent of his or her tax bill as issued if the application is filed within one (1) month of the March 15 deadline for the applicable tax year, plus an additional one (1) percent of his or her tax bill as issued for each month (or portion of a month) after March 15 of the applicable tax year the application is filed, provided that the application is made within twelve (12) months of the March 15 deadline. The fee will be charged only if the application qualifies for the owner-occupied residential real estate tax rate.

(11) If a taxpayer is paying the nonowner-occupied residential real estate tax rate for the current or immediately preceding tax year, was eligible for the owner-occupied residential real estate tax rate during that year(s) but failed to apply, then the homeowner can apply after the fact for a retroactive reduction in the prior year's or years' bill(s). If the assessor determines that the applicant was eligible for the owner-occupied residential real estate tax rate, the assessor will issue a credit on the homeowner's tax bill going forward in an amount equal to the difference between the amount of taxes paid and the amount due at the owner-occupied residential real estate tax rate, minus an application fee of twelve (12) percent of the prior year's or years' tax bill.

Provided, however, that any such increase in exemption provided for herein over the amount heretofore provided by general or special law shall apply only to real property.

(Ord. 2013, ch. 2013-25, § 1, 6-20-13; Ord. 2013, ch. 2013-33, § 5, 7-31-13; Ord. 2013, ch. 2013-36, § 5, 9-19-13; Ord. 2014, ch. 2014-1, § 1, 1-16-14)

ARTICLE V8/10. REAL PROPERTY RELIEF FOR OWNER-OCCUPIED RESIDENTIAL REAL ESTATE WHEREIN HOUSEHOLD INCOME IS NOT GREATER THAN SEVENTEEN THOUSAND FIVE HUNDRED DOLLARS PER ANNUM*

Sec. 21-127. Residential real property tax relief; qualification.

(a) Property taxes on owner-occupied residential real estate are hereby frozen, for 1988 at 105.5 percent of the amount of the property taxes levied for 1987 upon the assessed valuation as of December 31, 1986 (plus any property tax attributable to additions to the property between December 31, 1986 and December 31, 1987); and in subsequent years, at the amount of the property tax for the next prior year increased by the percentage increase in the tax rate for real estate (plus any increase in taxes due to any additions to the property between the date as of which the taxes are levied and the date as of which the taxes for the next prior year were levied) provided the household income is not greater than seventeen thousand five hundred dollars ($17,500.00) during the calendar year of the date of assessment of the valuations.

(b) For the purposes of this article, owner-occupied residential real estate is defined as real property from one (1) to three (3) families owned and occupied by the owner or owners and having not more than three (3) dwelling units, one (1) of the units of which constitutes the principal residence of the owner or owners; such property includes accessory land, buildings and improvements incidental to such habitation and used exclusively by the owners of the property or their guests or tenants.

(c) Household income, for the purpose of this article, means all monies received by the owner or owners, the spouse of any owner and any other person over eighteen (18) years of age occupying the dwelling unit occupied by the owner or owners, from whatever source derived, including, but not limited to, capital gains, dividends, interest, wages, pensions, annuities, retirement and Social Security benefits, workers' compensation benefits, cash public assistance and relief and any and all other monies received.

(d) Such relief shall be granted upon proof of the following:

(1) Ownership of said residential real estate on the date as of which the taxes are levied;

(2) Occupancy of the said residential real estate as the principal residence of the owners of said residential real estate. Applicants who are temporarily domi-

---

***Editor's note—**Ord. 2013, ch. 2013-25, § 1, approved June 20, 2013, amended Art. V8/10 in its entirety to read as set out herein. Former Art. V8/10, §§ 21-127, 21-128, pertained to similar subject matter and derived from Ord. 1988, ch. 88-31, § 1, approved July 1, 1988.

ciled elsewhere may be asked for documents supporting their claim of residency, i.e., hospital or nursing home documentation of a temporary stay, insurance documents in the case of fire displacement, etc.

(3) That the owners of said residential real estate are legally domiciled in the City of Providence;

(4) That said residential real estate contains not more than three (3) dwelling units;

(5) That household income is not greater than seventeen thousand five hundred dollars ($17,500.00) during the calendar year of the date of assessment of the valuations.

(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

Sec. 21-128. Filing of application; proof of right to relief.

No person shall be entitled to the relief herein authorized in any year without first filing an application with the city assessor in such form and with such supporting proof as the city assessor may require. A detailed financial statement shall be submitted with the application in such form and containing such financial data to show household income as the city assessor may require, together with a copy of all Federal Income Tax returns filed by the owners, spouse or any owner and any other person over eighteen (18) years of age occupying the dwelling unit occupied by the owner or owners and such other evidence of household income as the city assessor may require. Such application must be filed on or before March 15 of the year for which such relief is claimed.

The city assessor may inspect the owner-occupied residential real estate with respect to which an application is filed for conformity with the terms and conditions contained in this article.

(Ord. 2013, ch. 2013-25, § 1, 6-20-13)

ARTICLE V9/10. REAL PROPERTY TAX EXEMPTION FOR FORMER PRISONERS OF WAR AND VETERANS OF ENUMERATED CONFLICTS*

Sec. 21-128.1. Exemption granted.

Pursuant to provisions of R.I.G.L. §§ 44-3-4(e) and 44-3-4.2, the city assessor is hereby authorized to grant an exemption from taxation in the amount of fifteen thousand dollars ($15,000.00) for real or personal property situated in the city and owned by any veteran of military or naval service of the United States or the unmarried widow or widower of such person as well as one who has been or who shall

*__Editor's note—__Ord. 2006, ch. 06-23, § 1, adopted April 20, 2006, amended the Code by adding the words "and veterans of enumerated conflicts" to the title of art. V.

be classified as, or determined to be, a prisoner of war by the Veterans' Administration of the United States. As to residential real property, such exemption shall be granted upon proof of the following:

(a) Ownership of said residential property on the date as of which the taxes are levied;

(b) Occupancy of the said residential real property as the principal residence of the person claiming such exemption; and

(c) That the person claiming such exemption is legally domiciled in the city.

(Ord. 1998, ch. 98-30, § 1, 7-10-98; Ord. 2006, ch. 06-23, § 1, 4-20-06)

Sec. 21-128.2. Filing of application; qualifications.

No person shall be entitled to the exemption herein authorized without first filing an application with the city assessor on forms furnished by the city assessor. Each application shall be sworn to by the applicant under penalty of perjury. Certification from the Veterans' Administration of the United States that such person was a prisoner of war or a veteran of one (1) of the conflicts enumerated in R.I.G.L. § 44-3-4.2 shall be furnished to the city assessor by the applicant.

(Ord. 1998, ch. 98-30, § 1, 7-10-98; Ord. 2006, ch. 06-23, § 1, 4-20-06)

ARTICLE VI. TAX ABATEMENT ON REHABILITATED PROPERTY*

Sec. 21-129. Definitions.

(a) *Qualifying homesteader* shall mean any individual(s) or nonprofit organization as presently defined in Section 501(c)(3) of the United States Internal Revenue Code, who have purchased an abandoned building and hold a recorded deed, and who shall rehabilitate.

(b) *Abatements* shall include all real estate taxes and any other municipal liens attached to the property including costs of acquisition by the City of Providence, up to the date of purchase by qualifying homesteader.

(c) *Abandoned building* shall mean any structure which (1) has been completely vacant over ninety (90) days and (2) has been boarded up or has been scheduled to be boarded up by the department of building inspection or division of code enforcement as determined by Section 124.713-40 of the housing code of the City of Providence, and Section 124.7 of the building code of the City of Providence.

(Ord. 1978, ch. 78-15, § 1, 6-6-78; Ord. 1992, ch. 92-49, § 1, 12-11-92)

***Editor's note—**Ord. 1978, ch. 78-15, §§ 1—7, approved June 6, 1978, did not specifically amend the Code. Codification herein as Art. VI, §§ 21-129—21-135 was, therefore, at the discretion of the editor.

Sec. 21-130. Reserved.

Editor's note—Section 1 of ch. 92-49, approved Dec. 11, 1992, repealed § 21-130 which pertained to consideration on individual basis and derived from Ord. 1978, ch. 78-15, § 2, approved June 6, 1978.

Sec. 21-131. Requirements for qualification.

The categories of property which qualify for abatement shall be:

(1) Abandoned buildings with back taxes owing that are required to be paid by qualifying homesteaders;

(2) Vacant property which formerly was the situs of an abandoned building; and

(3) Upon which back taxes are owed; provided said back taxes are owed at least in part from the above-referenced building and for which a rehabilitation plan has been proposed and is deemed for the property.

The city council shall determine the eligibility of each applicant.
(Ord. 1978, 78-15, § 3, 6-6-78; Ord. 1992, ch. 92-49, § 1, 12-11-92; Ord. 1997, ch. 97-71, § 1, 11-3-97)

Sec. 21-132. Application; documentation.

Applications for abatement shall be made with the city collector and shall provide him or her with all necessary documentation. The necessary documentation shall be determined by the city collector's office.
(Ord. 1978, ch. 78-15, § 4, 6-6-78; Ord. 1992, ch. 92-49, § 1, 12-11-92)

Sec. 21-133. Prohibited tax sale; effect of prior sale.

All property where an application for abatement is pending and is deemed as bona fide by the city collector, shall not be offered for tax sale. Also, while an application for abatement is pending, the city treasurer shall not assign or transfer the property. No current tax payment shall be applied for satisfaction of back taxes due and owing.
(Ord. 1978-15, ch. 78-15, § 5, 6-6-78; Ord. 1992, ch. 92-49, § 1, 12-11-92)

Sec. 21-134. Requirements for final approval by city collector.

The final approval of abatement of back taxes may be granted after the city collector has received the following:

(a) Sworn affidavit of tax title.

(b) Certification of building inspector that required building permits have been applied for and complied with.

(c) Certification from the division of minimum housing that the property is in compliance with the Providence Minimum Housing Standards.

(d) A certificate of clear title, but for municipal liens.

(e) A sworn statement delineating a proper method of financing, the feasibility of which shall be determined by the city collector.

(Ord. 1978, ch. 78-15, § 6, 6-6-78; Ord. 1992, ch. 92-49, § 1, 12-11-92)

Sec. 21-135. Time limit for council approval.

Upon presentation of the foregoing documents, the city collector shall recommend to the city council, the abatement of all taxes due and owing on acquisition by qualifying homesteader. Final approval of abatement may be granted no later than three (3) years from date of initial application.

(Ord. 1978, ch. 78-15, § 7, 6-6-78; Ord. 1992, ch. 92-49, § 1, 12-11-92)

Sec. 21-136. Lien to be placed on deed.

(a) The city solicitor shall cause a lien to be placed on the deed of the property to be conveyed in the total amount of the taxes abated. Said lien shall remain on the property for five (5) years.

(b) If said property is sold within the five (5) year period, the lien must be paid out of the proceeds of the sale. This section shall not apply to nonprofit organizations transferring property to owner occupants. However, if said owner occupant transfers the property within a five-year period, the lien must be paid out of the proceeds of the sale.

(c) Prior to any lien expiring, the director of inspection and standards shall certify that the building has been brought up to all appropriate codes.

(Ord. 1989, ch. 89-1, § 1, 2-9-89; Ord. 1992, ch. 92-49, § 1, 12-11-92)

Secs. 21-137—21-140. Reserved.

ARTICLE VII. PROVIDENCE REVIEW COMMISSION*

Sec. 21-141. Declaration of policy.

The city council finds that it is in the interest of the residents of the City of Providence (hereinafter sometimes called the "city," "City of Providence" or "Providence") to establish the Providence Review Commission to help:

(1) Ensuring the fiscal solvency of the City of Providence through the improvement of local financial management and the avoidance of financial obligations that exceed the capacity of the city;

***Editor's note—**Ord. 1995, ch. 95-26, §§ 1, 2, approved Nov. 27, 1995, repealed former Art. VII, §§ 21-141—21-149, in its entirety and enacted new provisions as herein set out. Former Art. VII pertained to similar subject matter and derived from Ord. 1981, ch. 81-10, 3-10-81; Ord. 1981, ch. 81-21, §§ 1, 2, 4-24-81; Ord. 1995, ch. 95-15, §§ 1, 2, 6-21-95)

Cross references—City council internal auditor, § 2-42; city clerk to furnish copies of proposals, ordinances having fiscal effect, § 2-50.

(2) Ensuring effective management and spending controls on Providence city government;

(3) Reviewing and recommending correction of any deficiencies in said city's fiscal management.

(Ord. 1995, ch. 95-26 §§ 1, 2, 11-27-95)

Sec. 21-142. Creation of review commission.

(a) The city council hereby creates the Providence Review Commission (hereinafter referred to as the "commission") for the purpose of monitoring the management of the financial affairs of the City of Providence.

(b) The commission shall be composed of thirteen (13) members having the qualifications and/or offices set forth below and selected in the following manner: Eight (8) members to be selected by the city council on the recommendation of the finance committee of the city council. Of the eight (8) members so appointed by the city council, three (3) shall serve for a term of one (1) year, three (3) will serve for a term of two (2) years, and two (2) will serve for a term of three (3) years.

(c) All subsequent appointments or reappointments made by the city council shall be for a term of three (3) years. Of the eight (8) members of the commission appointed by the city council, one (1) member shall be a practicing attorney; one (1) member an independent certified public accountant; one (1) member shall be engaged in business, banking or finance; one (1) member shall be a member of a labor union; one (1) member shall have experience in the study of or a profession related to governmental finance; and three (3) members shall be a representative of the general public. None of the members of the commission so appointed shall be an elected or appointed officer or an employee or paid consultant of the City of Providence, or any of its departments, boards, agencies or commissions other than as a member of the Providence Review Commission.

(d) The remaining five (5) members shall serve at the pleasure of the appointing officer and shall be selected as follows: One (1) member to be selected by the mayor of the City of Providence; one (1) member to be selected by the Governor of the State of Rhode Island; one (1) member to be selected by the speaker of the Rhode Island House of Representatives; one (1) member to be selected by the majority leader of the Rhode Island Senate; and the Auditor General of the State of Rhode Island, who shall serve as a member, ex officio.

(e) Each member of the commission, other than the auditor general, shall be a qualified elector and resident of the City of Providence.

(f) The chairperson of the commission shall be selected by the commission from its membership, and the commission shall adopt by-laws and rules of procedure consistent with the Providence Home Rule Charter and the Code of Ordinances.

(Ord. No. 1995, ch. 95-26, §§ 1, 2, 11-27-95)

Sec. 21-143. Authority of the commission.

The commission is hereby authorized and empowered to take any of the following actions with respect to the City of Providence:

(1) To make an analysis of all factors and circumstances contributing to the financial condition of the city and to recommend steps to be taken to correct any deficiencies in such conditions.

(2) To monitor and review expenditures against the total amount of appropriations of any fiscal year.

(3) To monitor the estimates of revenues to fund any fiscal year operating budgets of the city and to monitor the receipt and collection of those revenues.

(4) To require and prescribe the form of special reports to be made by the city finance director, internal auditor, city collector, city controller and any department directors or other officers or employees of the city to keep the commission continually informed of the financial affairs of the city.

(5) To review and make recommendations regarding:

(a) Bidding or purchasing procedures and decisions;

(b) Investments, loans or borrowings by the city or any of its departments or agencies; and

(c) City accounts and methods of administration of such accounts;

(d) Personnel staffing levels;

(e) Contracts by and between any third part and the city; and

(f) Any collective bargaining agreement between any union and the city.

(6) The coordinate its activities with any management, reorganization or efficiency studies of all or any portion of the city's operations which may be conducted at the request of or under the sponsorship of the mayor, finance committee of the city council, the city council or the finance director. In the event that the mayor, the city council, the finance committee of the city council or any city department director proposes or requests a reorganization of any city department or operation or any efficiency, cost-saving or management study of any city operations within its, his or her jurisdiction, the commission shall assist in carrying out such study and shall report its evaluation of the proposed reorganization or management efficiency or cost-saving measures.

The commission may recommend that the city council investigate, pursuant to the authority set out in Sections 402 and 403 of the Providence Home Rule Charter of 1980, as amended, any alleged violation of law brought to the attention of the city council by the commission.
(Ord. No. 1995, ch. 95-15, §§ 1, 2, 6-21-95)

Sec. 21-144. Cooperation.

All departments, employees, agencies, and elected and appointed officers of the city shall cooperate with the commission. The commission shall have access to all records and books of account of the city. The commission may recommend that the city council conduct an investigation pursuant to sections 402 and 403 of the Providence Home Rule Charter of 1980.
(Ord. No. 1995, ch. 95-15, §§ 1, 2, 6-21-95)

Sec. 21-145. Operation of the commission.

The members of the commission shall receive no salary, but may receive such per diem allowance as may be appropriated by the city council and shall be reimbursed for their ordinary and necessary expenses incurred in carrying out their duties as members of the commission provided such members are not, at the time such expenses are incurred, public employees otherwise entitled to such reimbursement. Such reimbursement shall also be subject to the commission's rules and city payment and fiscal procedures. The commission is authorized to employ such consultants, experts, legal counsel and other persons subject to the prior approval of the city council. The finance director, city treasurer and internal auditor shall assist the commission in carrying out its responsibilities by providing services and facilities for the commission; provided, however, that provision of said services and facilities by the finance director, city treasurer and internal auditor shall be subject to the performance of other duties as set forth in said Providence Home Rule Charter of 1980, as amended.
(Ord. No. 1995, ch. 95-15, §§ 1, 2, 6-21-95)

Sec. 21-146. Reports by the commission.

The commission shall make a semiannual report to the general assembly, governor, the city council, finance director, mayor and members of the commission on or before each January 31 and July 31 of each year regarding its findings and recommendations for the six-month period ending thirty-one (31) days before each such date. All actions of the commission shall be advisory only and shall be consistent with the provisions of the Providence Home Rule Charter of 1980, as amended, and the Providence Code of Ordinances, and no action of the mayor, the city council or any city officer, employee, board or commission shall be made void by any action of the commission.
(Ord. No. 1995, ch. 95-15, §§ 1, 2, 6-21-95)

Sec. 21-147. Prohibitions; penalties, disciplinary action, etc.

Any city employee or officer who willfully violates or fails to comply with any request of the commission which is within the commission's authority and any city employee or officer who willfully prepares, presents or certifies any document, instrument, agreement or information, including without limitation any projections or estimates of revenue or expenditure requested by the commission or any agent or

employee of the commission, knowing the same to be false or misleading or knowing that same omits to state a material fact or if any such person, upon learning that any such document, instrument, agreement or information is false, misleading or omits to state a material fact, fails promptly to advise the commission thereof, shall be reported to the city council.
(Ord. No. 1995, ch. 95-15, §§ 1, 2, 6-21-95)

Secs. 21-148—21-159. Reserved.

ARTICLE VIII. TAX STABILIZATION FOR INDUSTRIAL PROPERTY*

Sec. 21-160. Declaration of policy.

The city council has the authority, pursuant to Section 44-3-9 of the General Laws of the State of Rhode Island, as amended, to exempt property used for industrial purposes from the payment of property tax if the granting of an exemption will:

(1) Cause an industrial concern to locate in the city, or

(2) Cause an industrial concern to replace, reconstruct, expand or remodel existing buildings and facilities, and thereby increase the tax base in the city, or

(3) Cause an industrial concern to construct new buildings or facilities and thereby increase employment opportunities in the city.

The city council finds that it is in the interest of the residents of the City of Providence to adopt a plan for the granting of such exemptions.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-161. Eligible property.

The provisions of this article shall apply to industrial property which is defined to mean buildings, structures, and other improvements thereto, the primary purpose and use of which is the manufacture of goods and materials. "Industrial property" shall include facilities related to a manufacturing operation including but not limited to office, engineering, research and development, warehousing or parts distribution facilities, but shall not include land.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

***Editor's note—**Section 2 of ch. 83-23, which ordinance added Art. VIII to Ch. 21 of the Code provides as follows: "This ordinance shall take effect upon its passage and shall continue in effect, unless otherwise amended or repealed, with respect to applications filed on or before December 31, 1987."

Sec. 21-162. Procedure.

(a) No person shall be entitled to any exemption herein authorized without first filing an application for a tax stabilization with the office of the city assessor. The application shall include the program of building, alterations and/or improvements to be made and, in the case of a new facility, must contain a statement by the applicant of how the facility will increase employment in the city. No application shall be considered unless: (i) the application is filed prior to the issuance of a building permit with respect to the property, and (ii) the estimated cost of new construction exceeds twenty (20) percent of the assessed value of the industrial property or one hundred thousand dollars ($100,000.00), whichever is less. The city assessor shall promptly forward a copy of any application to the building inspector and notify the city collector of the pendency of the exemption application.

(b) The building inspector shall review the application to determine whether any violations of the provisions of the building code of the city ordinances exist with respect to the property of the applicant and any other property in the city owned by the applicant. If no violations exist, he shall certify that fact to the city assessor within thirty (30) days. If violations do exist, he shall forward a statement stating the nature and extent of the violations. No exemption granted hereunder shall be effective unless and until any and all such violations have been cured.

(c) The city collector shall review the city tax records to determine whether all taxes (together with interest and penalties) which are due and owing to the city with respect to the property to which the exemption applies, and all other property in the city owned by the applicant, have been paid. If no deficiency exists, the city collector shall certify that fact to the city assessor within thirty (30) days. If a deficiency or deficiencies do exist, the city collector should forward a statement of the amounts due and the properties involved. No exemption granted hereunder shall be effective unless and until any and all taxes together with interest and penalties remaining unpaid and due and owing to the city assessed on any such property and/or previous improvements upon any such property have been paid in full to the city.

(d) Within thirty (30) days following the receipt of the statements from the building inspector and the city collector, the city assessor will review the application and, if the building inspector and the city collector have certified that no violations or deficiencies which did exist have been cured, he will forward the application to the city council together with his comments and recommendations for action by the city council.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-163. Exemption.

Upon receipt from the city assessor of an application for abatement under this article, the city council may grant the exemption provided for herein or any such lesser exemption as the city council may in its complete discretion deem beneficial,

upon its finding that the granting of such exemption will benefit the city for any of the reasons set forth in section 21-160 above. All industrial property which is exempt hereunder shall be assessed as follows:

(a) For the first year in which the industrial property is subject to abatement hereunder, the abatement shall be to the extent of fifty (50) percent of the assessed valuation of the property attributable to new construction.

(b) In subsequent years the abatement shall be to the extent of the percentages set forth in the following schedule:

Year	*Percentage Abated*
2	45
3	40
4	35
5	30
6	25
7	20
8	15
9	10
10	5
11	0

The city assessor shall determine the increase in the assessed valuation of the industrial property attributable to new construction based upon the estimated assessed value of the industrial property assuming new construction is completed according to the plans and specifications submitted in the application for tax stabilization filed hereunder and the increase in the assessed valuation so determined shall be used in all subsequent years notwithstanding any subsequent revaluation of such industrial property.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-164. Forms and administration.

The city assessor shall develop such forms and procedures as he or she deems necessary or proper for any application for exemption.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-165. Limited scope.

This article shall not limit or otherwise preclude the city council from exempting or stabilizing taxes on properties used for manufacturing or commercial purposes which would otherwise be permitted by Section 44-3-9 of the General Laws of the State of Rhode Island, as amended.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-166. Abatement not available for intrastate relocations.

The city council shall not grant any abatement to any industrial concern which is relocating from one (1) city or town within the state to the City of Providence.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-167. Transfers of exempt property.

If property for which an exemption has been granted is transferred during the exemption period, the exemption shall run with the property and benefit the transferee so long as the property continues to be used for industrial purposes and the transferee could otherwise qualify for an exemption if the transferee had filed the original application.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-168. Revocation.

The city council may terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application filed hereunder.
(Ord. 1983, ch. 83-23, § 1, 5-3-83)

Sec. 21-169. Tax stabilization for certain commercial, industrial and residential property.

(a) *Declaration of policy.* The city council has the authority, pursuant to Section 44-3-9 of the General Laws of the State of Rhode Island, as amended, to exempt property used for commercial, industrial or residential purposes from the payment of property tax if the granting of an exemption will:

(1) Cause a commercial or industrial concern to locate in the city; or

(2) Cause a commercial or industrial concern to replace, reconstruct, expand or remodel existing buildings and facilities, and thereby increase the tax base in the city; or

(3) Cause a commercial or industrial concern to construct new buildings or facilities and thereby increase employment opportunities in the city; or

(4) Cause a building formerly utilized for commercial, manufacturing or residential purposes to be utilized for residential purposes.

The city council finds that it is in the interest of the residents of the city to adopt a plan for the granting of such exemptions.

(b) *Eligible property.* The provisions of this article shall apply to commercial, industrial or residential property, which is defined to mean land, buildings, structures, and other improvements thereto, and personal property located therein or

thereon or employed in connection therewith (but excluding inventory held for sale in the ordinary course) used essentially for offices, commercial or industrial enterprises or residential use, but shall not include unimproved or vacant land.

(1) *Procedure.*

a. No person shall be entitled to any exemption herein authorized without first filing an application for a tax stabilization with the office of the city assessor. The application shall include the program of building, alterations and/or improvements to be made and, in the case of a new facility, must contain a statement by the applicant of how the facility will increase employment in the city. No application shall be considered unless:

1. The application is filed prior to the issuance of a certificate of occupancy;

2. The estimated cost of new construction exceeds one hundred thousand dollars ($100,000.00) and

3. A nonrefundable application fee in the amount of 0.001 percent of the estimated cost of the project is paid to the city. The city assessor shall promptly forward a copy of any application to the building inspector and notify the city collector of the pendency of the exemption application.

b. The building inspector shall review the application to determine whether any violations of the provisions of the building code of the city ordinance exist with respect to the property of the applicant and any other property in the city owned by the applicant. If no violations exist, he shall certify that fact to the city assessor within thirty (30) days. If violations do exist, he shall forward a statement stating the nature and extent of the violations. No exemptions granted hereunder shall be effective unless and until any and all such violations have been cured.

c. The city collector shall review the city tax records to determine whether all taxes (together with interest and penalties) which are due and owing to the city with respect to the property to which the exemption applies, and all other property in the city owned by the applicant, have been paid. If no deficiency exists, the city collector shall certify that fact to the city assessor within thirty (30) days. If a deficiency or deficiencies do exist, the city collector shall forward a statement of the amounts due and the properties involved. No exemption granted hereunder shall be effective unless and until any and all taxes together with interest and penalties remaining unpaid and due and owing to the city assessed on such property have been paid in full to the city.

d. Within thirty (30) days following the receipt of the statements from the building inspector and the city collector, the assessor will review the application and, if the building inspector and city collector have certified

that no violations or deficiencies which did exist have been cured, he will forward the application to the city council together with his comments and recommendations for action by the city council. The city council shall review the project in its entirety, including, but not limited, the amount of public funds utilized in the project in determining whether or not a project shall be approved. Approval by the council shall be by resolution.

(c) *Exemption.* Upon receipt from the city assessor or an application for abatement under this article, the city council may grant the exemption provided for herein or any such lesser or greater exemption as the city council may in its complete discretion deem beneficial, upon its finding that the granting of such exemption will benefit the city for any of the reasons set forth in subsection (a) above. The commercial, industrial or residential property which is exempt hereunder shall be assessed as follows:

(1) There shall be no change in assessment during the period of construction provided such construction is completed within a reasonable period of time.

(2) For the first year in which the commercial, industrial or residential property is subject to abatement hereunder, the abatement shall be no greater than ninety (90) percent of the assessed valuation of the property attributable to new construction.

(3) In subsequent years the abatement shall be to the extent of the percentage set forth in the following schedule.

Year	*Percentage Abated*
1	90
2	80
3	70
4	60
5	50
6	40
7	30
8	20
9	10
10	0

The city assessor shall determine the increase in the assessed valuation of the commercial property attributable to new construction. The increase in the assessed valuation so determined shall be used in all subsequent years notwithstanding any subsequent revaluation of such commercial property, and/or additional renovations, alterations, additions.

(d) *Forms and administration.* The city assessor shall develop such forms and procedures as he or she deems necessary or proper for application for exemption.

(e) *Limited scope.* The article shall not limit or otherwise preclude the city council from exempting or stabilizing taxes on properties used for manufacturing, commercial or industrial purposes which would otherwise be permitted by section 44-3-9 of the General Laws of Rhode Island, as amended.

(f) *Transfer of exempt property.* If property for which an exemption has been granted is transferred during the exemption period, the exemption shall run with the property and benefit the transferee so long as the property continues to be used for commercial or industrial purposes and the transferee could otherwise qualify for an exemption if the transferee had filed the original application.

(g) *Revocation.* The city council may terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application filed hereunder.
(Ord. 1990, ch. 90-3, § 1, 1-11-90; Ord. 1997, ch. 97-19, § 1, 2-26-97)

Sec. 21-170. Tax stabilization for certain exterior lighting.

(a) *Declaration of policy.* Pursuant to 44-3-9 of the General Laws of Rhode Island as amended, the City Council may grant the exemption or stabilization of taxes will inure to the benefit of the town by reason of the willingness of a manufacturing or commercial or residential firm or property owner to construct new or to replace reconstruct, convert, expand, retain or remodel existing buildings, facilities, machinery, or equipment with modern buildings, facilities, fixtures, machinery, or equipment resulting in an increase or maintenance in plant, residential housing or commercial building investment by the firm or property owned in the town.

The city council finds that it is in the interest of the residents of the city to adopt a plan for the granting of certain such exemptions. It is the purpose of this section to encourage the installation of exterior lighting in the city, for public streets as well as for private property, that will enhance architectural and landscape features, compliment the city's historic character, improve the overall visual quality of the city, and provide adequate illumination for both vehicles and pedestrians, while minimizing glare, providing uniform lighting color and intensity, maintaining a safe environment, and facilitating a regular maintenance program. Exterior lighting shall be designed to enhance the proposed project, to provide adequate illumination for the project and the surrounding area, including streets and sidewalks, to minimize glare and the trespass of light onto surrounding areas.

(b) *Eligible property.* The provisions of this article shall apply to commercial, industrial or residential property which is defined to mean land, buildings, structures, and other improvements thereto, but shall not include unimproved or vacant land.

(1) *Procedure.*

a. The applicant shall submit to the city sufficient information in the form of a plan which is detailed enough to enable the city, through the building

inspector, to determine that the plan meets the general requirements required by this section. The site plan shall show buildings, landscaping, parking areas and all proposed and existing lighting fixtures. It shall also indicate the proposed mounting and the height of the exterior lighting structures. Drawings should also show all relevant building elevations and the location of all existing and proposed lighting fixtures, the portions of the property to be illuminated, the materials and illuminance level and the aiming points for any remote lighting fixtures. Wherever practicable, conduit, ballasts, transformers and other equipment shall not be exposed to view. Items exposed to view shall be painted to blend with the background materials of the building or the site. Upon installation of updated or replacement lighting, obsolete or abandoned fixtures and equipment shall be removed.

b. In addition to these requirements, installations must meet all criteria required by law in historic districts or areas governed by design criteria, especially as it relates to the design of the proposed fixture and related equipment exposed to view, dimensions, finish color, hardware and methods of mounting.

c. In open spaces or open parking lots, lighting shall be designed to provide the minimum lighting necessary to ensure adequate vision, safety and comfort in parking areas and not to cause glare, deep shadows or direct illumination on adjacent properties or streets. In enclosed parking structures, lighting fixtures shall be designed and shielded so that light is not radiated directly through wall openings, windows, entrances and exits causing glare and negatively impacting surrounding streets and properties. Lighting fixtures in open spaces or open parking lots shall utilize metal halide and/or fluorescent bulbs.

d. The use of general floodlighting fixtures for security purposes shall be discouraged and shall not qualify for the tax stabilization.

e. In order to apply for the tax stabilization, the building inspector must approve the lighting plan and find that the illumination adds to the overall design of the building or site, that it does not obscure, damage or detract from significant architectural or landscape features, that it adds to the visual quality of the surrounding neighborhood and that it does not produce dangerous or annoying glare or unwanted illumination of nearby properties and that the lighting is sufficient in color and intensity to provide adequate illumination for vehicles and pedestrians while minimizing glare. A permit shall be required for installation of exterior lighting fixtures.

f. No person shall be entitled to any exemption herein authorized without first filing an application for such exemption with the office of the city

assessor. The fee for such application shall be one hundred dollars ($100.00). The application shall include the program of building, alterations and/or improvements to be made. The city assessor shall promptly forward a copy of any application to the building inspector and notify the city collector of the pendency of the exemption application.

g. The building inspector shall review the application to determine whether any violations of the provisions of the building code of the city ordinance exist with respect to the property of the applicant and any other property in the city owned by the applicant. If no violations exist, he shall certify that fact to the city assessor within fifteen (15) days. If violations do exist, he shall forward a statement stating the nature and extent of the violations. No exemption granted thereunder shall be effective unless and until any and all such violations have been cured.

h. The city collector shall review the city tax records to determine whether all taxes (together with interest and penalties) which are due and owing to the city with respect to the property to which the exemption applies, and all other property in the city owned by the applicant, have been paid. If no deficiency exists, the city collector shall certify that fact to the city assessor within fifteen (15) days. If a deficiency or deficiencies do exist, the city collector shall forward a statement of the amounts due and the properties involved. No exemption granted hereunder shall be effective unless and until any and all taxes together with interest and penalties remaining unpaid and due and owing to the city assessed on such property have been paid in full to the city.

i. Within thirty (30) days following the receipt of the statements from the building inspector and the city collector, the assessor will review the application and, if the building inspector and city collector have certified that no violations or deficiencies or any which did exist have been cured, he/she will forward the application to the board of tax assessment review, which will review the application and if the building inspector and city collector have certified that no violations or deficiencies exist, it shall forward to the city council together with its comments and recommendations for action by the city council. The city council shall review the project in its entirety, including but not limited to, the amount of public funds utilized in the project in determining whether or not a project shall be approved. Approval by the council shall be by resolution.

(c) *Exemption.* Upon receipt from the city assessor of an application for abatement under this article, the city council may grant the exemption provided for herein or any such lessor or greater exemption, upon its finding that the granting of such exemption will benefit the city for any of the reasons set forth in subsection (a) above. The commercial, industrial or residential property that is exempt shall be assessed as follows: An exemption shall be granted in the amount of fifty (50) percent of the cost

of prospective projects, including design and installation, not to exceed seventy-five thousand dollars ($75,000.00). Said exemption shall be allowed pro-rata over a seven-year period. Said lighting improvements shall not increase the assessment of the building by the amount of the lighting. Provided, however, seasonal and holiday lighting shall not be included. Additionally, in no event shall the exemption exceed fifteen (15) percent of the total assessed value of the property if said property is residential nor ten (10) percent of the total assessed value of the property if said property is commercial or industrial.

Additionally, the grant of any exemption hereunder shall benefit public safety through illumination of city rights-of-way and shall be specifically predicated upon the applicant agreeing that:

(1) The lighting be designed and installed to illuminate the project and specifically the whole of the streetside facade of the subject building, and

(2) Any erection refurbishment of on-street illumination shall, in order to qualify for any such exemption shall:

   a. Meet all code requirements for the installation of such devices.

   b. Be engaged not later than one-half hour past sundown to not earlier than 3:00 a.m.

   c. Be at the property owner's sole expense maintained in good working order.

   d. Shall comply with all of the requirements set forth in this section.

(3) *Forms and administration.* The city assessor shall develop such forms and procedures as he or she deems necessary or proper for application for exemption.

(4) *Limited scope.* This article shall not limit or otherwise preclude the city council from exempting or stabilizing taxes on properties used for manufacturing, commercial or industrial purposes which would otherwise be permitted by General Laws, section 44-3-9, as amended.

(5) *Transfer of exempt property.* If property for which an exemption has been granted is transferred during the exemption period, the exemption shall run with the property and benefit the transferee so long as the property continues to be used for commercial or industrial or residential purposes and the transferee could otherwise qualify for an exemption if the transferee had filed the original application.

(6) *Revocation.* The city council may terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application filed hereunder on in the event said owner otherwise fails to comply with the requirements hereof.

(7) No exemption hereunder shall be granted to any application submitted fully in compliance with the requirements hereof after 31 December 2003.

(Ord. 2001, ch. 01-20, 5-10-01)

Sec. 21-171. Downcity tax district.

(a) *Authority.* The city council has the authority under the General Laws to create a Downcity tax district to provide special tax considerations for designated properties within the district, as defined below. Private investment is needed to rehabilitate and construct buildings as well as to introduce economically viable uses to the area, but investment has been insufficient because of the high cost of renovation and difficulty in obtaining commercial tenants. It is therefore in the public interest to provide property tax incentives for owners of under-utilized property in the Downcity district in order that there may be substantial rehabilitation of the properties and attract new residential, commercial and institutional uses. It is also in the public interest to offer these incentives for a limited duration.

(b) *Eligible property.* Eligible properties shall be taxable properties located within the area bounded by Dorrance, Pine, Empire and Sabin Streets within the city; and shall have been more than fifty (50) percent vacant as of December 31, 1999 or, although more than fifty (50) percent occupied, shall be eligible if certified by the city building inspector as in need of substantial rehabilitation.

Buildings demolished after December 31, 1999 shall be ineligible. Properties already vacant as of this date shall be eligible if the owners construct new structures, including parking garages.

Property taxes levied on eligible properties as of December 31, 2000 shall reflect the adopted tax considerations. Owners of eligible properties are required to begin renovations by December 31, 2003 in order to qualify for continued tax considerations. Properties that fail to meet this deadline will be required retroactively to pay the difference between their actual tax payments and what they would have paid if ineligible for the specified tax considerations.

Substantial rehabilitation shall mean rehabilitation that adheres to the applicable building and fire codes, extends to all occupiable floors of the building, and equals at least, fifty (50) percent of the current replacement value of the structure, as certified by the city building inspector.

(c) *Tax considerations.* The city shall provide tax considerations for a period beginning with the assessments of December 31, 2000 up to and including December 31, 2010. During this period, eligible properties shall pay annual taxes on land and buildings in an amount equal to the tax assessed as of December 31, 1998. This tax shall be fixed regardless of changes in the tax rate, or of changes in valuation resulting from periodic revaluation. During this period of eligibility, the tax shall be fixed regardless of increased property value resulting form substantial rehabilitation.

During the period of eligibility, the city shall also use special considerations in taxing tangible property located in businesses in eligible properties. This tax consideration shall not be available for any business relocating from another area of the city unless that business has been involuntarily relocated or has been relocated as a result of a catastrophic occurrence. This shall apply, however, to expansion projects by businesses already located within this area. For the ten-year period, the rate of thirty-three dollars and forty-four cents ($33.44) shall be applied annually to tangible property value as it is determined and any change from year to year. This consideration shall apply to all taxable businesses occupying eligible properties during the period of eligibility, regardless of when they first occupied the property.

(d) *Transfer of exempt or stabilized property.* Tax benefits for eligible properties shall be transferable to new owners or tenants, but the life of the tax consideration shall not be extended.

(e) *Other considerations.* This section shall not diminish the authority of any body to review and approve the construction plans for overall appearance or historical preservation standards. This section shall not limit or otherwise preclude the city council from also exempting or stabilizing taxes on properties which would otherwise be permitted by the General Laws or by this Code of Ordinances, including but not limited to section 21-169. In the event another exemption or stabilization program is applied to the eligible property, the annual taxes on land and buildings would be the amount equal to the tax assessed as of December 31, 1998 and that will serve as the assessed valuation of the property from which the abatement shall be computed.

(f) *Forms and procedure.* The city assessor shall develop forms and procedures as he or she deems necessary and proper. The procedure for eligible properties under this section shall be the same as in section 21-169(b)(1).

(g) *Revocation.* The city council shall terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application. (Ord. 2001, ch. 01-1, § 1, 1-12-01)

Editor's note—Ch. 01-1, § 1, adopted January 12, 2001, amended the Code by adding a new § 21-170. In order to prevent duplication of section numbers, the provisions have been redesignated as § 21-171 at the direction of the city.

Sec. 21-172. Property taxes for designated properties.

(a) *Authorization.* The city council has the authority under the General Laws of the State of Rhode Island to provide special tax considerations for designated projects, as defined below. Private investment is needed to rehabilitate buildings as well as to introduce economically viable uses for these buildings, but investment has been insufficient because of the high cost of renovation and difficulty in obtaining commercial tenants. It is therefore in the public interest to provide property tax incentives for owners of designated properties on the landmark list, as defined below, as part of the

mill restoration program and in the arts and entertainment district in order that there may be substantial rehabilitation of the properties and attract residential, commercial and institutional uses. It is also in the public interest to offer these incentives for a limited duration.

(b) *Eligible property.* Eligible properties shall be properties designated on the landmark list as part of the mill restoration program and in the arts and entertainment district in the city as approved by the city council and shall be eligible if certified by the city building inspector as in need of substantial rehabilitation. "Substantial rehabilitation" shall mean rehabilitation that adheres to the applicable building and fire codes, extends to all occupiable floors of the building, and equals at least fifty (50) percent of the current replacement value of the structure, as certified by the city building inspector. Upon enactment, property taxes levied on eligible properties as of December 31, 2000 shall reflect the adopted tax considerations. Owners of eligible properties are required to begin renovations by December 31, 2005 in order to qualify for continued tax considerations. Properties that fail to meet this deadline will be required retroactively to pay the difference between their actual tax payments and what they would have paid if ineligible for the specified tax considerations.

(c) *Tax considerations.* The city shall provide tax considerations for a period beginning with the assessments of December 31, 2001 up to and including December 31, 2011. During this period, eligible properties shall pay annual taxes on land and buildings in an amount equal to the tax assessed as of December 31, 2000. This tax shall be fixed regardless of changes in the tax rate, or of changes in valuation resulting from periodic revaluation. During this period of eligibility, the tax shall be fixed regardless of increased property value resulting form substantial rehabilitation. During the period of eligibility, the city shall also use special considerations in taxing tangible property located in businesses in eligible properties. This tax consideration shall not be available for any business relocating from another area of the city unless that business has been involuntarily relocated or has been relocated as a result of a catastrophic occurrence. This shall apply, however, to expansion projects by businesses already located within this area. For the ten-year period, the rate of thirty-three dollars and forty-four cents ($33.44) shall be applied annually to tangible property value as it is determined and any change from year to year. This consideration shall apply to all taxable businesses occupying eligible properties during the period of eligibility, regardless of when they first occupied the property.

(d) *Transfer of exempt or stabilized property.* Tax benefits for eligible properties shall be transferable to new owners or tenants, but the life of the tax consideration shall not be extended.

(e) *Other considerations.* This section shall not diminish the authority of any body to review and approve the construction plans for overall appearance or historical preservation standards. This section shall not limit or otherwise preclude the city council from also exempting or stabilizing taxes on properties which would otherwise

be permitted by the General Laws of the State of Rhode Island or by this code of ordinances, including but not limited to section 21-169. In the event another exemption or stabilization program is applied to the eligible property, the annual taxes on land and buildings would be the amount equal to the tax assessed as of December 31, 1998 and that will serve as the assessed valuation of the property from which the abatement shall be computed.

(f) *Forms and procedure.* The city assessor shall develop forms and procedures as he or she deems necessary and proper. The procedure for eligible properties under this section shall be the same as in section 21-169(b)(1).

(g) *Revocation.* The city council shall terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application.
(Ord. 2002, ch. 02-37, § 1, 10-18-02)

Editor's note—Ch. 02-37, § 1, adopted October 18, 2002, amended the Code by adding new provisions to be numbered § 21-170. In order to prevent duplication of section numbers, the editor has redesignated the provisions as a new § 21-172 at the direction of the city.

ARTICLE IX. MOTOR VEHICLE TAX EXEMPTION FOR THE HANDICAPPED*

Sec. 21-173. Authorized; amount.

The city council of the City of Providence is hereby authorized to grant an exemption of three thousand dollars ($3,000.00) from the excise tax on motor vehicles to any person who owns a motor vehicle which has been specially equipped for use by handicapped persons.
(Ord. 1983, ch. 83-43, § 1(a), 8-26-83)

Sec. 21-174. Basis for exemption.

Such exemption shall be granted upon the submission of an affidavit from the applicant's physician that he or she is a paraplegic or suffers from paraplegia.
(Ord. 1983, ch. 83-43, § 1(b), 8-26-83)

Sec. 21-175. Application.

No person shall be entitled to any such exemption in any year unless he or she shall have completed an application form to be provided by the city assessor. Each application shall be sworn to by the applicant under penalty of perjury.
(Ord. 1983, ch. 83-43, § 1(c), 8-26-83)

***Editor's note—**Inclusion of ch. 83-43, approved Aug. 26, 1983, as Art. IX, §§ 21-173—21-176, has been at the editor's discretion and the direction of the city.

Sec. 21-176. Scope.

This exemption shall apply only to drivers with so-called "E" driver's license in whose name the exempted automobile shall be registered and no more than one (1) exemption shall be granted to any individual.
(Ord. 1983, ch. 83-43, § 1(d), 8-26-83)

Secs. 21-177—21-180. Reserved.

ARTICLE X. PROPERTY TAX CLASSIFICATION FOR THE CITY

Sec. 21-181. Property tax classification.

The city hereby adopts a system of classification of taxable property in conformity with the provisions of R.I.G.L. § 44-5-11.8 effective for taxes assessed as of December 31, 2000. The system of classification of taxable property and homestead exemption adopted in accordance with [R.I.G.L.] § 44-5-11.8 shall continue until terminated by ordinance adopted by the city council.
(Ord. 1988, ch. 88-27, § 1, 7-1-88; Ord. 2001, ch. 01-25, § 1, 7-24-01; Ord. 2002, ch. 02-8, § 1, 3-12-02; Ord. 2002, ch. 02-24, § 1, 7-31-02)

Sec. 21-182. Apportionment of taxes.

(a) *Limited adoption.* The tax classification plan is hereby adopted with the following limitations:

(1) The designated classes of property shall be limited to the four (4) classes as defined in subsection (b) hereof.

(2) The tax rate for class 2 shall not exceed the tax rate of class 1 by more than two hundred (200) percent, without regard to the owner-occupied status; the tax rate applicable to class 3 shall not exceed the nonowner-occupied tax rate of class 1 by more than two hundred (200) percent.

(3) Effective fiscal year 2016, the rate for the nonowner-occupied properties of class 1 type (b) nonowner-occupied shall not exceed the owner-occupied tax rate of class 1 type (a) owner-occupied by more than sixty (60) percent.

(4) Notwithstanding subsection (a)(2) hereof, the tax rate applicable to wholesale and retail inventory within class 3 as defined in subsection (b) hereof, are governed by R.I.G.L. § 44-3-19.1.

(5) Notwithstanding subsection (a)(2) hereof, tax rates applicable to motor vehicles within class 4 as defined in subsection (b) hereof, are governed by R.I.G.L. § 44-34.1-1.

(6) The provisions of R.I.G.L. ch. 35 of tit. 44 relating to property tax and fiscal disclosure applies to the reporting of and compliance with these classifications.

(b) *Classes of property.*

(1) *Class 1.* Residential real estate consisting of no more than five (5) dwelling units, land classified as open space, and dwellings on leased land including mobile homes. This class may also include residential properties containing partial commercial or business uses with no more than five (5) dwelling units. For the properties with both residential and commercial or business uses, the residential tax rate will be applied to the residential portion and the commercial tax rate will be applied to the commercial portion. This class shall be further subdivided into (a) owner-occupied and (b) non-owner occupied properties.

The granting of an application for an owner-occupied or nonowner-occupied rate as referenced above as type (a) or (b) is subject to the following limitations:

a. To be eligible for a type (a) or (b) rate, effective as to the assessment date of December 31 at midnight, an applicant must file with the city assessor no later than March 15 a homestead application, together with a declaration, and present evidence, under oath, as to the owner-occupied or nonowner-occupied status together with any other proof of residency or ownership and the ownership of all motor vehicles registered either with the State of Rhode Island or with any foreign state, and to provide that information in any manner which may be required by the city assessor; except, that in the case of new construction of, or renovation of no less than thirty (30) percent of the prior year's assessment of improvements, as certified by the Providence building official, of foreclosed upon existing structures for affordable owner-occupied residential property, eligibility for the owner-occupied rate shall be determined upon application on or after the date of the execution of a purchase and sales agreement for a specific property, but no later than sixty (60) days of its sale, applied on a pro rata basis for the remainder of the current tax year as if the owner-occupied rate had been granted as of the prior December 31 assessment date. "Affordable residential property" shall mean property determined to be affordable under the rules and regulations of the department of planning and development. For good cause, the city assessor may, with advice of the board of tax assessment review, accept applications for owner-occupied status after the filing deadline for the current or previous year's taxes only.

b. Only natural person(s) are qualified to receive a type (a) owner-occupied residential real estate rate. Real property which is partially or wholly owned by a business, an institution, a nonprofit organization, a financial institution that has foreclosed on real estate, including, without limitation, HUD and Rhode Island Housing and Mortgage Finance Corporation, or any other such public or private entity, do not qualify for a type (a) owner-occupied real estate rate; provided, however, that with respect to

the application of the owner-occupied real estate rate to taxes assessed as of December 31, 2012, the city assessor may, with the advice of the board of tax assessment review, accept an application and grant a type (a) owner-occupied real estate rate to an entity and its shareholder(s)/member(s)/owner(s), as the case may be, upon receiving a sworn declaration from said person(s) that he/she/they primarily resided in the subject real estate as of December 31, 2012, and that the ownership of the subject property is in said entity's name solely for estate purposes.

c. Applicants may qualify only for one (1) type (a) owner-occupied real estate rate in the city at any one (1) point in time. In addition, an owner of real estate in the City of Providence must meet all of the following requirements in order to qualify for a type (a) owner-occupied rate:

1. Neither the owner-occupied rate applicant nor the applicant's spouse is receiving an owner-occupied rate for another piece of real property, located elsewhere in the State of Rhode Island, or in any other state of the United States, for the same period of time the owner is seeking the owner-occupied rate for property owned in Providence, unless during that time the owner is either legally separated or divorced from the spouse during some or all of the period in which they are claiming more than one (1) owner-occupied rate;
2. The owner-occupied rate applicant, and the owner-occupied rate applicant's spouse, is paying the Providence excise tax due on each and every motor vehicle owned by either one when that vehicle is garaged more than thirty (30) days in the State of Rhode Island, unless (a) the vehicle is registered in the name of the applicant's spouse, and (b) the owner-occupied-rate applicant and the spouse are either legally separated or divorced;
3. The owner-occupied rate applicant has filed with the Providence Tax Assessor a current listing of all motor vehicles with foreign registrations that the applicant owns as required by R.I.G.L. § 31-7-1. If a homeowner currently receiving the owner-occupied rate has at least one (1) motor vehicle registered to the same address as the property receiving the rate, then the tax collector shall presume that these requirements have been complied with; however, the tax collector shall have the authority to investigate whether other circumstances (such as the ownership of additional motor vehicles registered elsewhere) indicate noncompliance that overcomes this presumption. If a homeowner currently receiving the owner-occupied rate does not have any motor vehicles registered to the same address, the tax collector may take appropriate action to ascertain compliance with these requirements and to revoke the owner-occupied rate, both prospectively and retroactively as necessary to the enactment of this section.

4. The rate, either type (a) or (b), attaches to the owner(s) of the real property not to the real property itself.
5. The city assessor shall deny an application for the owner-occupied rate if the city assessor determines that an execution of record based upon a judgment of the housing court for a real estate code violation(s) against the applicant remains unsatisfied.
6. Upon purchase of a residence, a homeowner may apply for a type (a) owner-occupied real estate tax rate effective as of the date of purchase for the current tax year, notwithstanding the fact that applicant did not own the property as of December 31 of the prior year. The exemption will be granted pro rata for the number of days the applicant owns the property during the fiscal year in which the home is purchased. In the event the property granted an owner-occupied rate is sold or transferred during the year for which the owner-occupied rate is claimed, the applicable rate is void for that portion of the year following the sale or transfer should the new buyer not qualify for the owner-occupied rate. The buyer or transferee shall be liable to the city for any tax benefit received after the date of sale or transfer.
7. If the taxpayer knowingly gives misinformation as to ownership and/or occupancy of the real estate and/or ownership of motor vehicles on his/her application for an owner-occupied rate, the city assessor may, in such event, remove the owner-occupied rate and apply the non-owner occupied rate and recalculate the tax for the period in question and in addition charge the taxpayer the maximum interest permitted by law. If the taxpayer provides incorrect information, knowingly or not, the city assessor may remove the owner-occupied rate and apply the non-owner occupied rate and may impose back taxes up to the full amount owed for the period in question.
8. The city assessor is empowered to promulgate any further rules and regulations which he/she deems necessary to carry out the intent and purpose of this section as it relates to the owner-occupied and non-owner occupied rates.

(2) *Class 2.* Commercial and industrial real estate, residential properties containing partial commercial or business uses and residential real estate of more than five (5) dwelling units. Properties containing partial commercial or business uses and residential real estate of more than five (5) dwelling units shall be included in class 2.

(3) *Class 3.* All ratable tangible personal property.

(4) *Class 4.* Motor vehicles and trailers subject to the excise tax created by General Laws, Chapter 34 of Title 44. For FY 2013, the motor vehicle tax exemption

shall be one thousand dollars ($1,000.00). The rate of taxation shall be sixty dollars ($60.00) per thousand of assessed value less any applicable reductions.

(c) The city, pursuant to Rhode Island General Laws 44-5-11.8(c), as amended, adopts a tax rate for class 2 which shall exceed the tax rate of class 1; the tax rate applicable to class 3 shall not exceed the non-owner occupied tax rate of class 1 by more than two hundred (200) percent.
(Ord. 1988, ch. 88-27, § 1, 7-1-88; Ord. 2001, ch. 01-25, § 2, 7-24-01; Ord. 2002, ch. 02-8, § 2, 3-12-02; Ord. 2002, ch. 02-24, § 2, 7-31-02; Ord. 2009, ch. 09-44, § 4, 7-30-09; Ord. 2009, ch. 09-60, § 1, 12-12-09; Ord. 2010, ch. 2010-31, § 4, 7-28-10; Ord. 2011, ch. 2011-24, § 4, 7-18-11; Ord. 2011, ch. 2011-28, § 1, 7-18-11; Ord. 2013, ch. 2013-17, § 4, 6-13-13; Ord. 2013, ch. 2013-33, § 4, 7-31-13; Ord. 2013, ch. 2013-36, § 5, 9-9-13; Ord. 2013, ch. 2013-59, § 1, 11-26-13; Ord. 2014, CH. 2014-29, § 1, 7-14-14)

Sec. 21-183. Reserved.

Editor's note—Ord. 2001, ch. 01-25, § 3, approved July 24, 2001, amended the Code by repealing former § 21-183. Former § 21-183 pertained to apportionment of levies; and derived from Ord. 1988, ch. 88-27, § 1, approved July 1, 1988.

Secs. 21-184—21-190. Reserved.

ARTICLE XI. TAX EXEMPTION FOR COMPUTER AND TELEPHONE EQUIPMENT

Sec. 21-191. Declaration of policy.

(a) The granting of a tax exemption as provided herein shall:

(1) Cause a new office company to locate to the city which results in an increase in the overall tax base in the city;

(2) Cause an existing Providence office company to expand operations or replace, reconstruct, expand or remodel existing buildings and facilities, resulting in an increase in the overall tax base in the city; or

(3) Cause an existing Providence office company to construct new buildings or facilities and thereby increase the overall tax base in the city.

(b) Furthermore, the granting of said exemption shall:

(1) Result in the creation of at least one (1) new permanent job per seventy-five thousand dollars ($75,000.00) of assessed value of property exempted under this article by each office company who locates to the city. For the purpose of

this provision, a new permanent job shall include all present employees of the office company who are transferred to the city location and either become or are a Rhode Island resident.

The required new jobs to be created under this article shall be created within twelve (12) months from the date of the approvals of said exemption. Should the employment level of the new jobs created deviate by less than fifteen (15) percent of the required number, as provided herein, the exemption shall immediately become null and void and the business shall be taxed thereafter without regard to the exemption provided herein; or

(2) Result in the retention of at least the present level of existing jobs for existing Providence office companies during the term of the exemption.

Should the employment level of retained jobs deviate by less than fifteen (15) percent of the required number of the jobs retained, as provided herein, the exemption shall immediately become null and void and the business shall be taxed thereafter without regard to the exemption provided herein.

(Ord. 1997, ch. 97-17, § 1, 2-26-97)

Sec. 21-192. Eligible property.

The provisions of this article shall only apply to computers and telephone equipment, including all necessary wiring needed to make said equipment operational.

For the purpose of this article, an "office company" shall be defined as a company whose operations consist of at least eighty-five (85) percent office space. Office companies shall not include wholesaling, retailing, manufacturing, research and development operation or any part thereof.

Real or personal property can be either owned or leased by the applicant.

(Ord. 1997, ch. 97-17, § 2, 2-26-97)

Sec. 21-193. Procedure.

(a) No office company shall be entitled to any exemption herein authorized without first filing an application for said exemption with the office of the city assessor. The application shall include the description of the construction, replacement, reconstruction, expansion, or remodeling to be made in connection with said exemption, the initial list of new and/or existing personal property owned or leased by the company and must contain a statement by the applicant of how the proposed activity will increase the tax base of the city. The office company shall pay to the city a one-time application fee of two hundred ($200.00) dollars for the cost of administering the tax exemption program and the preparation of any and all agreements.

No application shall be considered unless (i) the application is filed prior to the issuance of a building permit, if required, with respect to the property, and (ii) for firms existing in the city, applicant's existing taxes shall increase by at least ten (10)

percent after construction completion and the inclusion of the tax exemption provided hereunder. For firms existing in the city, existing taxes shall mean the current taxes or the average taxes paid over the last three (3) years, whichever is greater.

The city assessor shall promptly forward a copy of any application to the building inspector, when applicable, and notify the city collector of the pending exemption application.

(b) If applicable, the building inspector shall review the application to determine whether any violations of the provisions of the building code of the city ordinances exists with respect to the property of the applicant or with respect to leased real property, the real property of the lessor and any other property in the city owned by the applicant. If no violations exist, he shall certify that fact to the city assessor within thirty (30) days. If violations do exist, he shall forward a statement stating the nature and extent of the violations of the applicant. No exemption granted hereunder shall be effective unless and until any and all such violations have been cured.

(c) The city collector shall review the city tax records to determine whether all taxes and fees (together with interest and penalties) which are due and owing to the city by the applicant, regardless of the location of the property within the city, have been paid; and with respect to personal property leased by the applicant, all taxes on said personal property have been paid. If no deficiency exists, the city collector shall certify that fact to the city assessor within thirty (30) days. If taxes are owed or deficiencies do exist, the city collector shall forward a statement of the amounts due and the properties involved. No exemption hereunder shall be effective unless and until any and all taxes and fees together with interest and penalties remaining unpaid and due and owing the city, as identified herein have been paid in full to the city or all payments have been made in accordance with a tax payment plan approved by the city collector.

(d) The application and all supporting documentation shall be presented to the city council by the director of planning and development, along with his/her recommendations for final approval. The city council approval shall be by resolution.
(Ord. 1997, ch. 97-17, § 3, 2-26-97)

Sec. 21-194. Exemption.

The applicant shall notify the tax assessor upon project completion and shall submit sworn statements as to the actual increases in city tax base. The tax assessor may verify this information by a review of assessed valuation records and payroll records. If the tax collector determines that the actual increase in the tax base materially conforms to the application submitted under section 21-193(a), the tax assessor will issue a ruling that the computers and telephone equipment shall be exempt from taxation and assesses as follows:

(1) As permitted by state law, the assessed valuation of computers and telephone equipment qualifying under this article, shall be exempt from taxation for a ten-year period.

(2) Any exempt computers and telephone equipment under this article can be replaced with new telephone and computer equipment and any such replacement thereof shall be exempt from taxation for the time period remaining on the original ten-year exemption period.

(3) Any additional computer and telephone equipment which is purchased or leased by any firm previously qualifying and exempted under this article which will also be exempt from taxation for the time period remaining on the original ten-year exemption period.

(4) In order to continue to qualify for the exemption, the applicant must continue to pay in full all taxes and fees owed to the city. If the applicant is in arrears on taxes and fees, the city shall notify the applicant by registered mail and the applicant shall have thirty (30) days to pay the taxes and fees that are in arrears or have a tax payment plan approved by the city collector. If such arrearage is not paid within thirty (30) days or an approved payment plan is not in place within thirty (30) days, upon written notice of the city assessor, the exemption granted under this article shall be immediately null and void and the business shall be taxed, thereafter, without regard to the exemption provided under this article.

(5) For subsections (2) and (3) of this section to apply, the applicant must submit sworn statements that at a minimum, the net tax revenue increases listed in the application, submitted under section 21-193(a), remain in effect.

(Ord. 1997, ch. 97-17, § 4, 2-26-97)

Sec. 21-195. Forms and administration.

The city collector shall develop such forms and procedures as he or she deems necessary and proper to administer applications for exemption as permitted herein.
(Ord. 1997, ch. 97-17, § 5, 2-26-97)

Sec. 21-196. Limited scope.

This article shall not limit or otherwise preclude the city council from exempting or stabilizing taxes on properties used for manufacturing or commercial purposes which would otherwise be permitted by the General Laws of the State of Rhode Island.
(Ord. 1997, ch. 97-17, § 6, 2-26-97)

Sec. 21-197. Abatement not available for intrastate relocation.

As provided under the R.I. General Laws, the city council shall not grant any abatement to any office concern which is relocating from one (1) city or town within the state to the City of Providence.
(Ord. 1997, ch. 97-17, § 7, 2-26-97)

Sec. 21-198. Transfers of exempt property.

If ownership of a company owning or leasing property for which an exemption has been granted is transferred, in whole or the transferee had filed the original application.
(Ord. 1997, ch. 97-17, § 8, 2-26-97)

Sec. 21-199. Relocation of company.

Owning or leasing exempt property. If the company owning or leasing property for which an exemption has been granted, relocates within the City of Providence, the exemption shall run with the personal property and benefit the company so long as the company would otherwise continue to qualify for an exemption under this article.
(Ord. 1997, ch. 97-17, § 9, 2-26-97)

Sec. 21-200. Revocation.

The city council may terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application filed in connection with this article.
(Ord. 1997, ch. 97-17, § 10, 2-26-97)

Sec. 21-201. Job creation—Providence residents.

Any office company that is granted a tax exemption as provided herein shall as a condition of the receipt of such tax exemption enter into an agreement covering the hiring of any and all employees as required under this article including, but not limited to, an annual reporting requirement to the city council relative to compliance with the conditions of said exemption. Said employment agreement shall be for the term of the tax exemption and require that each office company first give preference to any qualified Providence resident for all available employment positions. The employment agreement shall require that the office company provide equal opportunity without regard to race, color, religion, national origin, sex, age or handicap and make a good faith effort to hire a proportionate share, reflective of Providence's population, of women, minorities and handicap persons.
(Ord. 1997, ch. 97-17, § 11, 2-26-97)

Secs. 21-202—21-210. Reserved.

ARTICLE XII. TAX EXEMPTION FOR CERTAIN PROPERTY OWNED BY THE PROVIDENCE REDEVELOPMENT AGENCY

Sec. 21-211. Tax-exempt property acquired for the development of the MET School and the development of the public safety facility.

The following real property shall be exempt from taxation, pursuant to R.I.G.L. § 45-32-40, as amended:

(1) Certain real property acquired and owned by the Providence Redevelopment Agency which has been acquired for the development of the MET School; those certain properties identified as Plat 45 Lots 90, 418, 750, 636, 641, 652, 97, 95, 96, 830, 99, 426, 749, 432, 862, 37, 92, 319, 430, 431, 78, 130, 131, 838, 407, 408, 98, 99, 94, 101, 93, 650, 119, 127, 128, 129, 134, 135, 136, 137, 337, 346, 409, 410, 411, 412, 413, 416, 417, 419, 420, 421, 423, 424, 427, 428, 429, 779, 422; Plat 46 Lots 198, 275, 276, 278, 280, 482, 601, 277.

(2) Certain real property acquired and owned by the Providence Redevelopment Agency which has been acquired for development of the new public safety facility; those certain properties identified as: Plat 25 Lots 380, 387, 53, 54, 55, 56, 66, 67, 68, 69, 70, 71, 72, 75, 76, 218, 79, 222, 227, 224, 223; Plat 29 Lots 113, 112, 444, 115 also included are the following:

FHE Parcel #7 Portion of Cottage St.

FHE Parcel #8 Portion of Interstate 95 Service Road #7-Per condemnation map

FHE Parcel #18 Portion Fountain St.-Per attached map

(Ord. 2000, ch. 00-30, 9-29-00; Ord. No. 2019-48, § 3, 10-11-19; Ord. No. 2020-32, § 3, 10-8-20)

Editor's note—Ord. 2000, ch. 00-30, approved September 29, 2000, has been treated by the editor as amending the Code by repealing former §§ 21-211 and 21-212, and adding a new § 21-211. Former §§ 21-211 and 21-212 pertained to similar subject matter, and derived from Ord. 1999, ch. 99-13, approved May 14, 1999.

Editor's note—The maps referenced above have not been set out in this Code, they can be found on file in the offices of the city.

Sec. 21-212. Generally—Tax exempt property.

(a) In addition to section 21-211 above, and subject to the exceptions found in subsection (b) below, all real property owned by the Providence Redevelopment Agency shall be exempt from taxation throughout the entire period of ownership, pursuant to R.I.G.L. § 45-32-40, as amended.

(b) Notwithstanding subsection (a) above, the exemption from real property taxation shall apply under the following conditions:

(1) The exemption shall not operate to abate, cancel, or remove taxes already due and owing on any given real property prior to the Providence Redevelopment Agency's acquisition and ownership. The exemption is personal to the Providence Redevelopment Agency and the ability to abate, cancel, or remove taxes pursuant to the exemption must be exercised by the agency in writing to the office of the tax collector;

(2) The exemption shall not operate to make the real property acquired and owned by the Providence Redevelopment Agency tax exempt at any point in time after the Providence Redevelopment Agency disposes of the property. Regardless of the agency's ownership of any given property on the date of assessment prior to its disposition of the property, said property will become taxable based on that prior assessment value and the remaining apportionment of taxes shall be due and owing from the individual or entity who receives the disposition of that property from the agency from the date of transfer. The agency shall notify the tax assessor and tax collector of said disposition to ensure corrected tax bills are sent to the new owner; and

(3) The Providence Redevelopment Agency may elect to disregard its exemption status and declare certain property taxable by notice to the tax assessor, tax collector, and city treasurer in order to effectuate the redevelopment of said property which it may acquire and own from time to time.

(Ord. 2000, ch. 00-33, 10-13-00; Ord. No. 2019-48, § 3, 10-11-19; Ord. No. 2020-32, § 3, 10-8-20)

ARTICLE XIII. BUSINESS IMPROVEMENT DISTRICTS

Sec. 21-213. Definitions and construction.

(a) As used in this article, unless the context otherwise requires, the term:

(1) *Chief elected officer* means the mayor, who exercises day-to-day executive authority over the municipality's affairs.

(2) *District management authority* means a district management authority established pursuant to the provisions of this article.

(3) *Fiscal year* means the fiscal year of the municipality within which the management district is located; "first fiscal year" means the first full fiscal year after the fiscal year during which the management district is created; subsequent fiscal years are referred to in like manner.

(4) *Management district* means a management district established pursuant to the provisions of this article and, as the context may require, includes any subdistrict within the management district.

(5) *Municipality* means the City of Providence.

(6) *Real property* means land and buildings or structures located on the land but does not include lines, mains, poles, easements and rights-of-way owned by public utilities.

(7) *State* means the State of Rhode Island.

(b) References in this article to owners or tenants of real property located within a management district or residents of a management district, or managers of real property located within the management district will be construed to include shareholders, members, partners, directors, officers, employees or agents thereof. (Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-214. Creation of district or subdistrict.

A management district may be created by adoption of an ordinance by the city council, upon the written petition of persons owning real property located within the proposed district as provided in this article. A management district may contain one (1) or more subdistricts. A subdistrict may be created within an existing district by compliance with the provisions of section 21-215, solely with respect to the proposed subdistrict. Any subdistrict will be managed by the district management authority having management authority over the district in which the subdistrict is located. (Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-215. Public hearing on petition.

(a) The city council shall, no later than ninety (90) days after the receipt of the petition, hold a public hearing for the purpose of receiving comments from all interested persons on the approval of the petition and the creation of a management district and a district management authority pursuant to the petition. Notice of the public hearing will be given by publication in a newspaper of general circulation within the municipality at least once a week for three (3) successive weeks prior to the date of the hearing. The notice will state the date, time and place of the hearing and contain a description of the boundaries of the proposed district, sufficient to reasonably identify the boundaries of the proposed district, a statement to the effect that it is proposed to create a management district and a district management authority which will have the power to provide services within the management district and apportion the cost of services among the owners of real property located in the district by means of a special tax assessment, and the office where a copy of the petition may be examined. No notice to the owners of property within the proposed district is required, other than the notice by publication referred to in this section. The boundaries of a district may be described by reference to streets or highways.

(b) At any time prior to the passage of the ordinance, the petition may be modified or amended by the petitioners or by persons authorized to act on their behalf without further advertising, provided, however, that in the event such modification or amendment to the petition would:

(1) Enlarge or add additional real property to the proposed district; or

(2) Enlarge the purpose of the proposed district management authority; or

(3) Lessen any limitation on the powers of the district management authority,

a new public hearing will be held in accordance with the provisions of subsection (a) of this section.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-216. Creation of authority.

(a) After the hearing, the city council may approve the petition by ordinance, which will contain a finding to the effect that:

(1) The petition has been submitted by persons who own real property located within the proposed district, and in any proposed subdistrict, constituting in the aggregate sixty (60) percent of the aggregate assessed valuation of all real property not exempt from taxation by law; and

(2) A majority of the area of the land located within the proposed district is devoted to commercial and retail uses.

(b) For purposes of the finding required by subsection (a)(1) of this section, the city council may conclusively rely on the records of the city assessor to determine the ownership of real property located within the proposed district (barring actual notice to the contrary).

(c) Upon the approval of the petition by the city council, a management district and a district management authority will thereby be created. The city council may approve or disapprove the petition; it will have no authority to create a management district or district management authority which differs from that sought by the petition.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-217. The authority.

The district management authority thus created will be a body corporate and politic and an instrumentality and agency of the municipality within which the management district is located but having a distinct legal existence from the municipality. It is hereby declared that in exercising the powers granted to it by this article, the district

management authority will exercise public and essential governmental functions of the municipality. No part of the net earnings of the district management authority will be distributable to, or inure to the benefit of, any private person.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-218. Purposes of authority.

(a) Except as its purposes may be limited by the petition, the management district commission authority will have the following purposes within the management district:

(1) To provide for the cleaning of the public streets and sidewalks and the removal of snow;

(2) To provide for security; however, nothing contained in this section shall bestow or authorize any police powers on any security force established by this provision;

(3) To install, repair and maintain public streets and sidewalks and lighting for public streets and sidewalks;

(4) To install, repair and maintain street signs;

(5) To provide for landscaping and the repair and maintenance of public spaces;

(6) To provide for refuse collection and removal;

(7) To provide for motor vehicle parking;

(8) To sponsor and promote recreational, cultural and retail activities;

(9) To promote the development of the management district including collecting and disseminating information;

(10) To construct public facilities; and

(11) To provide such other services and facilities within the management district as may be beneficial to the management district and the property owners, tenants and other occupants in the district; and

(12) Any other purposes granted by the Rhode Island General Assembly.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-219. Powers of authority.

Except as its powers may be limited by the petition, the district management authority will have the power:

(1) To have perpetual succession unless a limited period of duration is stated in the petition;

(2) To sue and be sued, complain and defend, in its corporate name;

(3) To have a corporate seal which may be altered at pleasure, and to use the seal by causing it, or a facsimile of the seal, to be impressed or affixed or in any other manner reproduced;

(4) To purchase, take, receive, lease, take by gift, devise or bequest, or otherwise acquire, own, hold, improve, use and otherwise deal in and with real or personal property or any interest in property, wherever situated, and without restriction as to amount;

(5) To sell, convey, mortgage, pledge, lease, exchange, transfer and otherwise dispose of all or any part of its property and assets;

(6) To purchase, take, receive, subscribe for, or otherwise acquire, own, hold, vote, use, employ, sell, mortgage, lend, pledge or otherwise dispose of, and otherwise use and deal in and with, shares or other interests in, or obligations of domestic or foreign corporations, whether for profit or not for profit, limited liability companies, associations, partnerships or individuals, or direct or indirect obligations of the United States, or of any other government, state, territory, governmental district or municipality or of any instrumentality thereof;

(7) To make contracts and guarantees and incur liabilities, borrow money, for periods of three (3) years or less, at such rates of interest as the district management authority may determine, issue its notes and other obligations, guarantee debts and secure any of its obligations by mortgage or pledge of all or any of its property, assets and income;

(8) To lend money for its purposes, invest and reinvest its funds, and to take and hold real and personal property as security for the payments of funds so loaned or invested;

(9) To elect or appoint officers and agents of the district management authority and to define their duties;

(10) To make and alter bylaws, not inconsistent with the petition or with the laws of this state, for the administration and regulation of the affairs of the district management authority;

(11) To accept grants or funds from the state and from nonprofit corporations;

(12) To have and exercise all other powers necessary or convenient to effect any or all of the purposes for which the district management authority is created.

(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-220. Bylaws.

The board of directors of the district management authority may adopt bylaws containing provisions for the regulation and management of the activities of the district management authority.

(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-221. Governing board.

(a) The activities of the district management authority will be managed by a board of directors which will consist of nine (9) members.

(b) All of the directors will be owners or tenants of real property (not exempt from taxation by law) located within the management district or residents of the management district, or managers of real property (not exempt from taxation by law) located within the management district except for:

(1) The mayor or his or her designee;

(2) Owners of real property located within the management district which is exempt from taxation by law who are voluntarily contributing to the costs of operating the management district.

(c) Two (2) of the directors will be appointed by the mayor, one (1) of whom may be the chief elected officer of the municipality or his or her designee and the other will be an owner of real property (not exempt from taxation by law) located within the management district. Seven (7) of the directors will be appointed by the organization which was designated in the petition; four (4) of the seven (7) directors so appointed will be owners of real property (not exempt from taxation by law) located within the management district or owners of real property located within the management district which is exempt from taxation by law who are voluntarily contributing to the costs of operating the management district. One (1) of the directors appointed by the organization shall be a domiciliary of the management district.

(d) Terms for the directors will be as follows:

(1) The mayor will assign to the persons initially appointed by him or her terms of one (1) and two (2) years so that the terms of the directors so appointed will expire on the last days of the first and second fiscal years respectively.

(2) The business organization designated in the petition will assign to the seven (7) persons initially appointed by it, terms of one (1) year (as to two (2) of them), two (2) years (as to two (2) of them), and three (3) years (as to three (3) of them) so that the terms of the directors so appointed will expire on the last days of the first, second and third fiscal years respectively.

(3) Beginning on the last day of the first fiscal year and on the last day of each succeeding fiscal year, the appointing authorities will appoint directors to succeed the directors whose terms are then expiring, which successor directors will serve for terms of three (3) years and thereafter until their successors are appointed and will have qualified.

(e) Directors will receive no compensation for the performance of their duties but may be reimbursed for their reasonable expenses in carrying out such duties.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-222. Officers.

(a) The officers of a district management authority will consist of a chairperson, a treasurer and a secretary, each of whom will be elected by the board of directors. Such other officers and assistant officers and agents as may be deemed necessary may be elected or appointed by the board of directors at any time and in any manner that may be prescribed by the bylaws. Any two (2) or more offices may be held by the same person.

(b) All officers and agents of the district management authority will have such authority and perform such duties in the management of the district management authority as may be provided in the bylaws, or as may be determined by resolution or vote of the board of directors, subject to any limitations on such authority contained in the bylaws.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-223. Annual budget.

(a) Not later than sixty (60) days prior to the beginning of each fiscal year, the district management authority will annually prepare an operating budget containing:

(1) An estimate of surplus from its current fiscal year available for expenditure in the ensuing fiscal year;

(2) An estimate of receipts for the ensuing fiscal year from the special tax assessment provided for in this article;

(3) An estimate of receipts for the ensuing fiscal year from all other sources; and

(4) An estimate of expenditures for the ensuing fiscal year for the carrying on of the district management authority's activities including debt service, if any.

(b) Prior to the adoption of the budget, the district management authority will hold a public hearing thereon at which all interested persons may be heard. Notice of the public hearing will be given by publication in a newspaper of general circulation within the municipality at least once a week for three (3) successive weeks prior to the date of the hearing.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-224. Special tax assessments.

Each district management authority will have the power to apportion the annual operating expenses of the district management authority by a special tax assessment amongst the owners of ratable real property, not otherwise exempt by law, located within the management district. The special tax assessment will be based on the factors set forth in the petition approved by the city council. The rate of the special tax assessment with respect to any subdistrict may vary in the amount from the rate of the special tax assessment generally applicable to the owners of ratable real property

within the management district. The special tax assessments made by a district management authority will not be considered to be a tax of the municipality for purposes of determining the maximum levy under R.I.G.L. § 44-5-2.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-225. Limit on assessments.

The total of the special tax assessments levied on the ratable real property within the management district will not exceed ten (10) percent of the total of the real property taxes levied on the ratable real property within the management district, not exempt from taxation by law, for the fiscal year of the municipality that ends within or with the fiscal year of the district management authority. Individual district management authorities may opt to set a lower special tax assessment rate.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-226. Collection of assessments.

The assessments made by any district management authority will be collected by the city collector for the account of the district management authority. The assessments so collected will not be commingled with funds of the municipality and forthwith upon their collection will be remitted to the district management authority. Assessments will be a lien on the real property of the persons against whom the assessments are made in the same manner as taxes assessed by the city, pursuant to R.I.G.L. § 44-9-1. The city collector may assign, by mutual consent, any and all of the collection process to the district management authority. Said assignment shall be defined by an agreement between the city and the district management authority.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-227. Petition for relief from assessment.

Any person aggrieved on any ground whatsoever by any assessment against him or her by a district management authority may, within three (3) months after the last day appointed for the payment without penalty of the assessment, or the first installment of the payment, if the assessment is payable in installments, file a notice of appeal with the district management authority, and within thirty (30) days thereafter, file a petition in the county superior court for relief from the assessment, to which petition the district management authority will be made a party respondent.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-228. Agreements with the city.

The services provided by a district management authority will be supplemental to the services otherwise provided by the city within the management district.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-229. Amendment.

At any time after the approval of a petition and the creation of a district management authority, the boundaries of the management district and the purposes and powers of the district management authority may be amended by the filing of a petition for amendment. The petition will set forth the amendments sought; it will be signed either:

(1) By not less than two-thirds (⅔) of the members of the district management authority board of directors, or

(2) In the event that additional property is to be included within the district, by persons who own real property located within the additional property which is to be included within the revised boundary of the district and who constitute in the aggregate, sixty (60) percent of the aggregate assessed valuation of all real property, not exempt from taxation by law, of such additional real property.

The petition will be heard and acted upon by the city council in the same manner as petitions are required to be heard and acted upon pursuant to sections 21-215 and 21-216. Upon the approval of the petition for amendment by the city council, the boundaries of the management district and the purposes and powers of the district management authority will be as set forth in the petition for amendment.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-230. Dissolution.

(a) Any district management authority may be dissolved and the designation of a management district terminated by ordinance of the city council after public hearing as provided in R.I.G.L. § 45-59-6.

(b) Any district management authority must be dissolved and the designation of a business district terminated by resolution of the city council upon the receipt of a written petition for dissolution signed by persons who own real property located within the district constituting, in the aggregate, not less than sixty (60) percent of the aggregate valuation of all real property, not exempt from taxation by law, located within the district.

(c) Any district management authority will be automatically dissolved and the designation of a management district will be automatically terminated at the end of the third full fiscal year after its creation and designation and after it has actually commenced providing services unless the continuance of the existence of the district management authority and the designation of the district is approved in writings which are filed with the city clerk and are signed by persons who own real property located within the district and within any subdistrict constituting, in the aggregate, not less than sixty (60) percent of the aggregated assessed valuation of all real property, not exempt from taxation by law.

(d) Any such dissolution and termination occurring under the provisions of subsections (a) and (b) of this section will be effective as of the end of the fiscal year within which the resolution of the city council is enacted except that the district management authority's existence will continue for the limited purpose provided for in subsection (e) of this section. Any such dissolution occurring under the provisions of subsection (c) of this section will be effective at the time provided in subsection (c) except that the district management authority's existence will continue for the limited purpose provided for in subsection (e) of this section.

(e) Upon its dissolution, the district management authority will discontinue its operations and proceed to wind up its affairs. Notwithstanding its dissolution, the district management authority will continue in existence for the limited purpose of paying any indebtedness which it has incurred prior to its dissolution and it may continue to make special tax assessments for that purpose. After all of the indebtedness of the district management authority has been paid or its payment provided for, the remaining property and assets of the district management authority will be paid over to the municipality unless another disposition of the property and assets, benefiting the management district, has been directed by the district management authority's board of directors.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-231. Exemption from taxation.

(a) Any notes or other obligations issued by any district management authority, their transfer and the income from the notes or obligations (including any profits made on the sale of the notes or obligations), will at all times be free from taxation by the state or any political subdivision or other instrumentality of the state.

(b) The exercise of the powers granted by this article will be in all respects for the benefit of the people of this state and of the City of Providence which the district management authorities will undertake their activities, the increase of their commerce, welfare and prosperity and for the improvement of their health and living conditions and will constitute the performance of essential governmental functions and the district management authorities will not be required to pay any real or personal property taxes or assessments upon or in respect of any property owned by them levied by any municipality or other political subdivision of the state.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-232. Credit of city not pledged.

Notes and other obligations of a district management authority will not be deemed to constitute the debt or a pledge of the faith and credit of the city.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-233. Exemption from liability.

No member of the board of directors of a district management authority and no officer of an authority will be held civilly liable for any breach of his or her duties as such member or officer except for liability for acts or omissions not in good faith or which involve intentional misconduct or knowing violation of law; or for any transaction from which such member or officer derived an improper personal benefit; or for any malicious, willful or wanton act.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-234. Notice of creation of district; actions to contest.

Notice of the creation of a management district and a district management authority will be given by publication in a newspaper of general circulation within the municipality at some time subsequent to the approval of the petition by the city council as provided in section 21-216. Actions to contest the validity of the proceedings for the creation of the management district and the district management authority must be commenced within sixty (60) days after the date of the notice and no action thereafter commenced will raise any question concerning the validity of the proceedings and the creation of the management district and the district management authority. After the expiration of the sixty-day period, the validity of the proceedings and the creation of the management district and the district management authority will be conclusively presumed.
(Ord. 2004, ch. 04-35, § 1, 8-13-04)

Sec. 21-235. Property taxes for designated historic properties.

(a) *Authorization.* The city council has the authority under R.I.G.L. § 44-3-9 to exempt from tax payment, in whole or in part, real and personal property which has undergone environmental remediation, is historically preserved, or is used for affordable housing, manufacturing, commercial, or residential purposes, or to determine a stabilized amount of taxes to be paid on account of the property, notwithstanding the valuation of the property or the rate of tax.

(b) *Purpose.* For the city to grow economically, it is essential that the many historic commercial and industrial buildings be returned to productive use. The high cost of rehabilitating these buildings for productive use is prohibitively expensive and cannot be achieved with private investment alone. It is therefore in the public interest to provide property tax incentives for owners of designated properties in order that there may be substantial rehabilitation of the properties for residential, commercial and institutional uses. The result being an improvement of the physical plant of the city which will result in a long-term economic benefit to the city.

(c) *Eligible properties.* Eligible properties shall include any building listed on the Providence Industrial and Commercial Buildings District, a local historic district (as approved by the city council), the jewelry manufacturing district, a national historic

district, and any building located in the arts and entertainment district defined, for the purposes of this section, as that area bounded by Empire Street to Sabin Street to Exchange Terrace to Memorial Boulevard to Friendship Street.

(d) *Criteria.* For a property to be eligible for this tax stabilization program, the property must be in need of substantial rehabilitation. "Substantial rehabilitation" shall mean rehabilitation that adheres to the applicable building and fire codes, extends to all occupiable floors of the building, and equals at least fifty (50) percent of the current replacement value of the structure. The director of department of inspections and standards shall make the determination whether the subject property will involve substantial rehabilitation, in accordance with subsection (h)(2) below. Owners of eligible properties are required to begin renovations within twelve (12) months of the execution of the subject stabilization agreement and to obtain a certificate of occupancy for such renovations within thirty-six (36) months of the commencement of the renovation. For the purposes of the foregoing sentence, a temporary certificate of occupancy shall be sufficient. Owners of properties that fail to meet any of these deadlines will be required retroactively to pay the difference between their actual stabilized tax payments and what they would have paid if ineligible for the specified tax considerations (unless an extension of such applicable deadline is approved by the city council).

(e) *Stabilization period.* In order to allow sufficient time for construction and project stabilization, following approval of an eligible property for tax stabilization in accordance with this section, the stabilization shall last for a period of twelve (12) years from the date the subject stabilization agreement is executed.

(f) *Tax considerations.* Upon enactment, property taxes levied on eligible properties approved for special tax consideration shall be in an amount equal to the lower of: (i) thirty-five cents ($0.35) per square foot, or (ii) the tax assessed as of December 31, 2010. During the stabilization period, the annual taxes on the subject land and buildings shall be fixed regardless of changes in: the tax rate; valuation resulting from periodic revaluation; or increased property value resulting from substantial rehabilitation.

(g) *Transfer of exempt or stabilized property.* Tax benefits for eligible properties shall be transferable to new owners or tenants, but the duration of the tax consideration period shall not be extended (unless otherwise approved by the city council). In the event that the tax stabilized property becomes exempt from real estate taxes during the term of tax stabilization through conveyance, or otherwise, to a real estate tax exempt entity, the tax stabilization agreement shall be void ab initio with owners of tax stabilized properties being liable for full taxes retroactively to the execution date of the tax stabilization agreement.

(h) *Forms and procedure.* The city assessor, together with the director of the department of planning and development, shall develop forms and additional procedures consistent with this section, as they deem necessary and proper to effectuate the terms and provisions of this section. The procedure for eligible properties under this section shall be as follows:

(1) No person shall be entitled to any exemption herein authorized without first filing an application for tax stabilization with the office of the city assessor. The application shall include the program of building, alterations and/or improvements to be made. The applicant shall include a statement outlining measures to comply with the city's First Source Agreements Ordinance, article III½ of chapter 21 of the Code of Ordinances, and a statement regarding the hiring of minority and women business enterprises (MBE/WBE) pursuant to section 21-52 of the Code of Ordinances. No application shall be considered unless:

a. The application is filed prior to the issuance of a certificate of occupancy;

b. The applicant certifies that the project will involve a substantial rehabilitation of an eligible property;

c. The proposed rehabilitation has received any necessary approvals from the historic district commission, the downcity design review committee, or the capital center commission (as applicable);

d. A nonrefundable application fee in the amount of 0.001 percent of the estimated cost of the project is paid to the city; and

e. The application shall not include a hotel or a parking garage with over one hundred (100) spaces, unless specifically approved by the city council.

Within fifteen (15) days of receipt of a completed application (together with the application fee), the city assessor shall forward a copy of such application to the director of department of inspections and standards, city collector, and director of the department of planning and development for their respective review.

(2) The director of department of inspections and standards shall review the application to determine whether any violations of the provisions of the building code of the city ordinances exist with respect to the subject property of the applicant and any other property in the city owned by the applicant. If no violations exist, he or she shall certify that fact to the city assessor within thirty (30) days. If violations do exist, within said thirty (30) days, he or she shall forward a statement to the city assessor and the applicant specifying the nature and extent of the violations. No exemptions granted hereunder shall be effective unless and until any and all such violations have been cured. Within the same thirty-day period, the director of department of inspections and standards shall issue a letter to the city assessor (with a copy to the applicant) stating whether the project will involve the substantial rehabilitation of an

eligible property, and whether the proposed rehabilitation has received the necessary approvals from the historic district commission, the downcity design review committee, or the capital center commission (as applicable).

The applicant shall have thirty (30) days from its receipt of written notice (or copy of notice to the city assessor) to cure any outstanding violations or other matters which serve as a valid basis (in accordance with this subsection (2)) for the building official not approving the subject application. Failure by the applicant to effectuate such cure(s) within said thirty-day period shall result in the city assessor removing the subject application from the assessor's list (as more specifically set forth in subsection (j) below) as an incomplete application. Subject to the limitation set forth in subsection (j) below, nothing shall prohibit the subject property owner from reapplying for tax consideration.

(3) The city collector shall review the city tax records to determine whether all taxes (together with interest and penalties) which are due and owing to the city with respect to the property to which the exemption may apply, and all other property in the city owned by the applicant, have been paid. If no deficiency exists, the city collector shall certify that fact to the city assessor within thirty (30) days. If a deficiency or deficiencies do exist, the city collector, within said thirty (30) days, shall forward a statement of the amounts due and the properties involved to the city assessor and the applicant. No exemption granted hereunder shall be effective unless and until any and all taxes together with interest and penalties remaining unpaid and due and owing to the city assessed on such property have been paid in full to the city.

The applicant shall have thirty (30) days from its receipt of written notice (or copy of notice to the city assessor) of a deficiency or deficiencies to pay any and all amounts due to the city. Failure by the applicant to make such payment(s) within said thirty-day period shall result in the city assessor removing the subject application from the assessor's list (as more specifically set forth in subsection (j) below) as an incomplete application. Subject to the limitation set forth in subsection (j) below, nothing shall prohibit the subject property owner from reapplying for tax consideration.

(4) The director of the department of planning and development shall review the application to determine whether it satisfactorily addresses the city's First Source Agreements Ordinance and MBE/WBE Ordinance. If no material deficiency exists, the director of the department of planning and development shall certify that fact to the city assessor within thirty (30) days. If a material deficiency exists, the director of the department of planning and development, within said thirty (30) days, shall forward a statement to the city assessor and the applicant specifying the nature and extent of the material deficiency.

The applicant shall have thirty (30) days from its receipt of written notice (or copy of notice to the city assessor) to cure any material deficiency noted by the

director if the department of planning and development. Failure by the applicant to resolve such material deficiency within said thirty-day period shall result in the city assessor removing the subject application from the assessor's list (as more specifically set forth in subsection (j) below) as an incomplete application. Subject to the limitation set forth in subsection (j) below, nothing shall prohibit the subject property owner from reapplying for tax consideration.

NOTE: Steps (2), (3) and (4) shall be performed concurrently.

(5) Within fifteen (15) days following the receipt of the statements from the director of department of inspections and standards, city collector, and director of the department of planning and development, the assessor will review the application and, if the foregoing requirements set forth in subsections (h)(1)—(4) have been met (as evidenced by the required certifications and determinations of the assessor, director of department of inspections and standards, city collector and director of department of planning and development, as more particularly set forth above), the assessor shall enter into a tax stabilization agreement with the applicant pursuant to, and upon the terms set forth in this section. Promptly following the enactment of this section, the city assessor will prepare a form tax stabilization agreement to be used in connection with the program set forth in this section, and to be executed by the city assessor upon the approval of an eligible property.

(i) *Revocation.* The city council shall terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application.

(j) *Number of projects.* The number of tax stabilization agreements issued in connection with this section shall be limited to ten (10). Applications shall be considered on a first-come, first-served basis (considering only those applications that are deemed complete by the city assessor). The city assessor shall keep a list of all applications filed, and shall remove from such list all applications that are deemed incomplete (whether initially by the city assessor, or as a result of the processes set forth in subsection (h) above). Upon removal from the city assessor's list, the city assessor shall provide the applicant with notice of such action. The applicant shall not be prejudiced from reapplying for tax consideration. The foregoing number may be increased by approval of the city council.
(Ord. 2011, ch. 2011-1, § 1, 1-29-11)

Secs. 21-236—21-240. Reserved.

ARTICLE XIV. INDUSTRIAL AND COMMERCIAL BUILDING DISTRICT TENANT RELOCATION PROGRAM

Sec. 22-241. Purpose and intent.

(a) Small businesses and the creative community are a distinct asset to the city and its long term economic growth.

(b) A survey of industrial buildings indicates that approximately one thousand (1,000) businesses employing approximately fifteen thousand (15,000) workers are located in buildings subject to the zoning regulations of the industrial and commercial buildings district (ICBD).

(c) Small businesses are moving to other cities due to the lack of affordable commercial space in the city.

(d) Federal, state and municipal subsidies such as historic tax credits, tax increment financing, and tax stabilization have succeeded in attracting real estate investment.

(e) Major redevelopment of ICBD buildings has occurred accounting for the dislocation of hundreds of small businesses.

(f) To insure a balance between the long term economic growth that small businesses provide and the growth of the city's tax and job base that new development brings there is established the ICBD tenant relocation program.
(Ord. 2008, ch. 08-21, § 1, 4-3-08)

Sec. 21-242. Definitions.

For the administration of the ICBD tenant relocation program, the defined words shall have the following meaning:

Agreement to rent means all agreements, written or oral, and rules and regulations embodying the terms and conditions concerning the use and occupancy of a unit and premises, and also includes any terms required by law and shall mean any form of renting space whether expressed or implied where by a business pays a rent in cash, in kind or in exchange for use of space in an eligible building.

Building owner shall mean the owner on record of an eligible building at the time when eligible businesses are being given notice of termination of their agreement to rent in order to enable redevelopment.

Business shall mean any corporation, partnership, sole proprietorship or other business entity which can document that it has operated for at least one (1) year prior to the date of eviction, sale, or the issuance of a building permit for an eligible building.

City assistance shall mean any tax stabilization, tax agreement, tax incremental financing, tax abatement or grants, whether federal state or municipal that are administered by the city.

Eligible building shall mean a building now or hereafter in the ICBD.

Eligible business shall mean any business that has an agreement to rent space in an eligible building that: is required to relocate because the building is being rehabilitated; has an agreement to rent space twelve (12) months prior to a sale of the building for redevelopment and is required to relocate prior to the sale of the property; or, has rented space twelve (12) months prior to the issuance of a building permit for redevelopment and is required to relocate. The purpose of this is to prevent owners from evicting tenants before they move forward with redevelopment plans, and thus circumventing the intention of this article.

Full-time employee shall mean an employee who works in the building to be redeveloped who has been employed by the same eligible business for twelve (12) consecutive months and the owner or owners of such business, who will have averaged at least thirty (30) hours per week of work prior to the date of eviction, sale, or the issuance of a building permit for an eligible building.

ICBD shall mean the overlay historic district known as the industrial and commercial buildings district created in the city zoning ordinance (Ordinance 2002-7) as now or hereafter amended.

Payment shall mean cash or in kind payment such as forgiveness of rental payments, payment of moving expenses or other services as established in the program rules.

Redevelopment shall mean the renovation of an eligible building where the construction budget (hard costs) exceeds fifty (50) percent of the assessed value of the eligible building as determined by the most recent city property assessment.
(Ord. 2008, ch. 08-21, § 2, 4-3-08)

Sec. 21-243. Administration.

The department of planning and development shall monitor compliance with the requirements of the ICBD tenant relocation program. The department shall:

(1) Prepare and maintain a list by street address and assessor's plat and lot of all eligible buildings in the ICBD. This list shall be updated at least annual and shall identify the present use of the property and whether or not the property has been rehabilitated in the past ten (10) years.

(2) Forward the list of eligible buildings to the department of inspection and standards and other departments or individuals in city government who may review applications for building rehabilitation.

(3) Review applications for federal, state or municipal assistance for any eligible building to insure compliance with this article.

(4) Establish rules for the implementation and enforcement of this article. Said rules shall include requirements for notice of businesses by building owners as well as reporting requirements for building owners and businesses who receive relocation payments.

(5) Record a notice in the land evidence records indicating that a building owner has decided to rehabilitate the building and not comply with the provisions of this article.

(Ord. 2008, ch. 08-21, § 3, 4-3-08)

Sec. 21-244. Program.

(a) *Applicability.* All eligible buildings shall comply with this article.

(b) *Notice.* When the sale or redevelopment of a building in the ICBD results in the relocation of eligible businesses, the building owner shall provide 90 days notice of termination of the agreement to rent to all eligible businesses. Said notice shall also be filed with the department of planning and development along with a list of all eligible businesses that must relocate along with a contact for the eligible business.

(c) *Relocation assistance.* The building owner shall provide a one (1) time relocation payment or in kind payment directly to all eligible businesses which are required to relocate as follows:

1—2 full-time employees	$ 2,500.00
3—5 full-time employees:	5,000.00
6—9 full-time employees:	7,500.00
10+ full-time employees:	10,000.00

(d) *Eligibility for assistance.* In order to receive relocation assistance, eligible businesses shall be current with their agreement to rent.

(e) *Waiver of claims.* In order to receive the assistance, eligible businesses shall file a waiver of claims against the eligible building owner. By filing said waiver, the eligible business acknowledges that it will file no claims or damages against the building owner. Prior to the signing of a waiver of claims, building owners are required to provide a notice of rights by certified mail to eligible businesses. A copy of such waiver of claims and notice of rights shall be provided by and filed with the department of planning and development.

(f) *Penalty.* Compliance with the relocation assistance requirements of this article is voluntary; however, if the owner of an eligible building does not comply with the notice or relocation assistance provisions of this article, the eligible building and any land associated with such building shall not be eligible for any city assistance. It is the burden of the eligible building owner to prove compliance with the provisions of this article.
(Ord. 2008, ch. 08-21, § 4, 4-3-08)

Secs. 21-245—21-250. Reserved.

ARTICLE XV. REAL ESTATE NON-UTILIZATION TAX

Sec. 21-251. Authority.

In accordance with the express enabling authority granted by the General Assembly in G.L. 1956, § 44-5.1 there is hereby established in the city a real estate non-utilization tax.
(Ord. 2008, ch. 08-32, § 1, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-252. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section:

Abutter means a neighbor whose property touches the property in question.

Actively marketed means the good faith efforts by the owner of the property to obtain one (1) or more occupants of the property. These good faith efforts may include, without limitation, one (1) or more of the following:

(1) Making substantial financial expenditures in comparison with the value of the property;

(2) Listing the property for sale or lease, or both, with one (1) or more real estate brokers, for a price and on terms, or for a rental that is realistic considering the fair market value or fair market rental value of the property; or

(3) Advertising, using one (1) or more signs on the property and at least one (1) other medium, the availability of the property for sale or rental for a price and on terms, or at a rental that is realistic considering the fair market value or fair rental value of the property. Sporadic attempts to sell or lease the property during the privilege year may be viewed as not constituting a good-faith marketing effort.

Continuously unoccupied means any property which is listed during the entire privilege year as vacant in the records of the department of inspection and standards.

Development plan means a plan to rehabilitate a vacant and abandoned property within a set time frame for a use in conformance with the city's comprehensive plan and zoning ordinance.

New owner means any person who has purchased the vacant and abandoned property during the period subsequent to the notice of designation as vacant and abandoned.

Nonprofit housing organization means any organization exempt from taxation pursuant to § 501(c)(3) of the Internal Revenue Code (26 U.S.C. § 501(c)(3)) whose exempt purposes include the provision of affordable housing to low and moderate income households.

Privilege year means the twelve-month period corresponding to the calendar year.

Reviewing entity means the administrative officer, designated in accordance with G.L. 1956, § 45-23-55; if no administrative officer has been so designated, then the city planning commission.

RI Housing means Rhode Island Housing and Mortgage Finance Corporation, a public corporation created under G.L. 1956, tit. 42, ch. 55.

Vacant and abandoned property means any property which is:

(1) A structure that has been determined to be continuously unoccupied by the department of inspection and standards during the privilege year; and

   a. Has been under continuous citation by the department of inspection and standards; or

   b. Has not been maintained as evidenced by the exterior condition of the structure.

(2) A lot with no existing structure that is littered with trash and obviously abandoned.

(Ord. 2008, ch. 08-32, § 2, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-253. Notice of designation as vacant and abandoned.

(a) The department of inspections and standards shall, upon designation of a property as vacant and abandoned, notify the owner in writing of the date of designation of the property as vacant and abandoned and the date upon which the non-utilization tax shall be imposed and said notice shall be immediately sent to the city assessor. The department of inspections and standards shall file the notice of designation as vacant and abandoned with the recorder of deeds.

(b) Any person or entity who, through foreclosure or otherwise, vacates or maintain vacant property shall notify the department of inspections and standards.

(Ord. 2008, ch. 08-32, § 3, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-254. Imposition.

(a) The city imposes a tax upon the privilege of utilizing property as vacant and abandoned property within the city during any privilege year commencing with the privilege year beginning January 1, 1984, and every year thereafter. The tax shall be in addition to any other taxes authorized by the general or public laws.

(b) The city shall, through the office of the city assessor, annually impose upon any property which is vacant and abandoned, as determined by the department of inspections and standards, a non-utilization tax measured by the assessed value of the real estate at the rate of ten dollars ($10.00) for each one hundred dollars ($100.00) of assessed value of the real estate as most recently returned by the tax assessor of the city.

(c) The tax imposed under authority of this chapter shall be due and payable in the same manner as other municipal taxes are due in the city.
(Ord. 2008, ch. 08-32, § 4, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-255. Exceptions.

(a) The non-utilization tax authorized by this article shall not be imposed on property.

(1) Owned by an abutter, a new owner, or a nonprofit housing organization if:

a. The abutter, new owner, or nonprofit housing organization submits a proposed development plan to the administrative officer, designated in accordance with G.L. 1956, § 45-23-55; if no administrative officer has been so designated, then to the city planning commission;

b. The administrative officer, in accordance with G.L. 1956, § 45-23-55, or if no administrative officer, then the city planning commission, determines that the proposed development plan contains a reasonable timetable for the development or reuse of the property;

c. The administrative officer, in accordance with G.L. 1956, § 45-23-55, or if no administrative officer, then the city planning commission, determines that the abutter, new owner, or nonprofit housing organization has obtained adequate funding for the development plan; and

d. The administrative officer, in accordance with G.L. 1956, § 45-23-55, or if no administrative officer, then the city planning commission determines that the proposed development plan is in accordance with the approved comprehensive plan and zoning ordinances of the city and approves it.

(2) The administrative officer, in accordance with G.L. 1956, § 45-23-55, or if no administrative officer, then the city planning commission, shall deliver a copy of the approved development plan to the tax assessor who shall certify the property as exempt from the non-utilization tax.

(3) Failure of the nonprofit housing organization, new owner or abutter, without good cause, to carry out the development or refuse of the property in accordance with the timetable set forth in the approved development plan shall result in the property being subject to the non-utilization tax as of the first date of assessment following the expiration of the timetable in the approved development plan.

(4) The decision of the administrative officer, or the city planning commission, denying approval of a development plan may be appealed as provided in section 21-257 of this article.

(b) The non-utilization tax authorized by this article shall not be imposed on property for which RI Housing:

(1) Holds an interest on the property pursuant to G.L. 1956, § 44-9-8.3;

(2) Holds a first mortgage on the property, which mortgage is insured under any federally sponsored mortgage insurance program, including, without limitation, programs sponsored by the Federal Housing Administration (FHA), the Federal Home Loan Mortgage Administration (Freddie Mac) or the Government National Mortgage Association (Ginnie Mae); or

(3) Owns the property under the RI Housing land bank program, which property is intended for development into housing for low- or moderate-income households.

(Ord. 2008, ch. 08-32, § 5, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-256. Abatement of tax.

The tax assessor is empowered to abate the non-utilization tax if it is imposed in error.

(Ord. 2008, ch. 08-32, § 6, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-257. Appeals.

(a) In any appeal from the imposition of the tax set forth in this article, the board of tax assessment review shall find in favor of an appellant who shows that the property assessed:

(1) Was actively marketed during the privilege year; or

(2) Was occupied for substantial portions of the privilege year, notwithstanding its designation by the department of inspection and standards.

(3) Was exempt pursuant to section 21-255 of this article from the imposition of the tax as set forth in that section.

(b) Nothing contained in this article shall be deemed to enlarge or diminish any other right of appeal that an appellant may possess pursuant to the general or public laws or city ordinances.
(Ord. 2008, ch. 08-32, § 7, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-258. Use of collected taxes.

One-half (½) of all taxes collected under the provisions of this article shall be allocated to the affordable housing trust in accordance with section 13-18 of the Code of Ordinances.
(Ord. 2008, ch. 08-32, § 8, 6-19-08; Ord. No. 2018-48, § 1, 10-9-18)

Sec. 21-259. Reserved.

Editor's note—Ord. No. 2018-48, § 1, adopted Oct. 9, 2018, repealed § 21-259, which pertained to sunset provision and derived from Ord. 2008, ch. 08-32, § 9, adopted June 19, 2008.

ARTICLE XVI. TAX PREDICTABILITY FOR COMMERCIAL AND MULTI-FAMILY RESIDENTIAL PROPERTY*

Sec. 21-260. Authorization and purpose.

(a) *Authorization*. The city council has the authority, under R.I.G.L. § 44-3-9, as amended, to exempt from tax payment, in whole or in part, real and personal property which has undergone environmental remediation, is historically preserved, or is used for affordable housing, manufacturing, commercial, or residential purposes, or to determine a stabilized amount of taxes to be paid on account of the property, notwithstanding the valuation of the property or the rate of tax.

(b) *Purpose*. In order to increase the pace of economic development, and thereby increase the city's tax base, it is vital that city provide property developers, entrepreneurs and investors with a predictable tax phase-in plan that will encourage investment in Providence. It is therefore in the public interest to develop a set of clear criteria for eligibility for tax stabilization, as well as a defined long-term plan to bring a project to full taxation.
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-261. Eligible properties.

Eligible properties shall:

(1) Be located on land as defined in R.I.G.L. 37-5-8 and 42-64.14-4 ("I-195 redevelopment district") and may include properties that directly abut and are contiguous with I-195 redevelopment land, as defined in R.I.G.L. 42-64.14-15; or

(2) Be located on undeveloped land within the Capital Center special development district, as defined in chapter 2, article XXIII, section 2-362 of the Code of Ordinances of the City of Providence; and

(3) Include new construction (excluding land acquisition costs) with a construction valuation of at least ten million dollars ($10,000,000.00); or the rehabilitation of commercial or multi-family residential property with a cost of construction of at least ten million dollars ($10,000,000.00).
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-262. Criteria.

The director of department of inspections and standards shall make the determination whether the subject property or project meets the minimum requirements in

*__Editor's note—__Ord. No. 2015-28, § 1, adopted July 23, 2015, repealed the former art. XVI, §§ 21-271—21-274, and enacted a new art. XVI as set out herein. The former art. XVI pertained to affordable housing tax rate and derived from Ord. 2014, ch. 2014-3, §§ 1(21-260—21-262), adopted March 4, 2014.

accordance with section 21-261. Owners of eligible properties and projects are required to begin construction within twelve (12) months and complete construction within three (3) years of the effective date of the subject stabilization. For the purposes of the foregoing sentence, a temporary certificate of occupancy shall be sufficient. Owners of properties and projects that fail to meet any of these deadlines will be required retroactively to pay the difference between their actual stabilized tax payments and what they would have paid if ineligible for the specified tax considerations. The owner may, twelve (12) months prior to the applicable deadline, submit a request to the city council for approval of an extension to such applicable deadline.
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-263. Tax considerations and stabilization period.

(a) *Commercial and residential projects—Standard*. The tax assessor shall determine the land valuation at project site, prior to commencement of the stabilization period. The tax assessor will then establish the "base land tax" based on the valuation. Should a project or portion of a project site be subject to property taxes prior to the commencement of the stabilization period, that tax amount shall be considered as the "base tax." Assessed tax payments upon enactment of the base land tax will begin in year two (2) of the stabilization period and be frozen for three (3) years. The assessor shall issue a bill beginning in the fifth tax year after the commencement date, based upon the property's valuation at that time. Tax payments will be calculated as a percentage of the total tax at the annual tax rate, with a phased-in schedule, as shown below. Projects described in this subsection shall require a signed agreement, between the applicant and the city. Upon issuance of a certificate of occupancy by the department of inspection and standards, the city assessor shall assess the project, and the project shall be reassessed according to the city's regular revaluation cycle. In order to allow sufficient time for construction and project stabilization, following approval of an eligible property for tax stabilization in accordance with this ordinance, the stabilization shall last for a period of fifteen (15) years from the date the subject stabilization agreement is executed. Stabilized annual property tax payments on properties defined in section 21-261(a) that are outside the I-195 redevelopment district shall be calculated by the tax assessor and may not be less than the annual real property taxes paid in any of the three (3) years prior to the commencement of the stabilization period.

Year	*Schedule*
1	$0/Base tax (if applicable)
2	Base tax and/or base land tax
3	Base tax and/or base land tax
4	Base tax and/or base land tax

Year	*Schedule*
5	Base tax and/or base land tax + 5% of increase to assessed valuation
6	Base tax and/or base land tax + 10% of increase to assessed valuation
7	Base tax and/or base land tax + 20% of increase to assessed valuation
8	Base tax and/or base land tax + 30% of increase to assessed valuation
9	Base tax and/or base land tax + 40% of increase to assessed valuation
10	Base tax and/or base land tax + 50% of increase to assessed valuation
11	Base tax and/or base land tax + 60% of increase to assessed valuation
12	Base tax and/or base land tax + 70% of increase to assessed valuation
13	Base tax and/or base land tax + 80% of increase to assessed valuation
14	Base tax and/or base land tax + 90% of increase to assessed valuation
15	Full taxation

(b) *Commercial projects—Job creation*. New construction of commercial property on land in the I-195 redevelopment district with a cost of construction of at least fifty million dollars ($50,000,000.00), may be eligible for a tax stabilization period of twenty (20) years under the following criteria:

(1) The first five (5) projects authorized by the I-195 redevelopment district commission with a construction cost of fifty million dollars ($50,000,000.00) or greater shall be eligible for a tax stabilization period of twenty (20) years through an application process that requires no approvals by the city council or mayor.

(2) Subsequent projects after the initial five (5) may be eligible for up to twenty (20) years, the terms of which shall be subject to approval by ordinance by the city council and mayor. Projects with an estimated creation of one hundred fifty (150) or more permanent jobs, will be preferred.

(3) The tax assessor shall determine the land valuation at project site, prior to commencement of the stabilization period, for the purpose of establishing a base tax or base land tax, whichever is greater. Upon issuance of a certificate of occupancy by the department of inspection and standards, the tax assessor shall assess the project, and the project shall be reassessed according to the city's regular revaluation cycle.

Tax payments will be calculated as a percentage of the total tax at the annual tax rate, with a phased-in schedule, as shown below.

Year	*Schedule*
1	$0/Base tax (if applicable)
2	$0/Base tax (if applicable)
3	$0/Base tax (if applicable)
4	Base and/or base land tax
5	Base and/or base land tax
6	Base and/or base land tax + 6.5%
7	Base and/or base land tax + 13.0%
8	Base and/or base land tax + 19.5%
9	Base and/or base land tax + 26.0%
10	Base and/or base land tax + 32.5%
11	Base and/or base land tax + 39.0%
12	Base and/or base land tax + 45.5%
13	Base and/or base land tax + 52.0%
14	Base and/or base land tax + 58.5%
15	Base and/or base land tax + 65.0%
16	Base and/or base land tax + 71.5%
17	Base and/or base land tax + 78.0%
18	Base and/or base land tax + 84.5%
19	Base and/or base land tax + 91.0%
20	Full taxation

(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-264. Transfer of exempt or stabilized property.

Tax benefits for eligible properties shall be transferable to new owners or tenants, but the duration of the tax consideration period shall not be extended (unless otherwise approved by the city council). In the event that the tax stabilized property becomes exempt from real estate taxes during the term of tax stabilization through conveyance, or otherwise, to a real estate tax exempt entity, the tax stabilization agreement shall be void ab initio with owners of tax stabilized properties being liable for full taxes retroactively to the execution date of the tax stabilization agreement.

In the event that a project owner transfers a project site to a tax exempt entity within the five-year period immediately following the expiration of the agreement, the project owner agrees to pay a percentage of the sale price to the city as follows: five (5) percent of the sale price if the project site is sold to a tax exempt entity in the first year following expiration; four (4) percent of the sale price if sold to a tax exempt entity in the second year; three (3) percent of the sale price if sold to a tax

exempt entity in the third year; two (2) percent of the sale price if sold to a tax exempt entity in the fourth year; one (1) percent of the sale price if sold to a tax exempt entity in the fifth year.
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-265. Forms and procedures.

The city assessor, together with the director of the department of planning and development, shall develop standardized forms and additional procedures consistent with this article, as they deem necessary and proper to effectuate the terms and provisions of this article. The executive director of the I-195 redevelopment district commission, or his or her designee, shall participate in the formulation of and periodic review over the implementation of the conditions set forth in section 21-266. Further, on-going compliance and monitoring shall be the responsibility of the city, but any ongoing reporting shall be shared with the 1-195 redevelopment district commission at regular intervals.

The procedure for eligible properties under this section shall be as follows:

(1) No person shall be entitled to any exemption herein authorized without first filing an application for tax stabilization with the office of the city assessor. The application shall include the program of building, alterations and/or improvements to be made. The applicant shall include a statement outlining measures to comply with the code of ordinances, and a statement regarding the hiring of minority and women business enterprises (MBE/WBE) pursuant to section 21-52 of the Code of Ordinances. No application shall be considered unless:

   a. The application is filed prior to the issuance of the certificate of occupancy;

   b. The applicant certifies that the investment of new construction (excluding land acquisition costs) meets the minimum required value of ten million dollars ($10,000,000.00) or that the rehabilitation of commercial or multi-family residential meets the minimum cost of construction of ten million dollars ($10,000,000.00);

   c. The application includes a compliance plan demonstrating how the applicant will fulfill each of its community benefit responsibilities as outlined in section 21-266.

   d. A fiscal note prepared by the department of finance or the internal auditor is attached to the application, comparing the proposed project's "true tax" and the estimated tax to be paid under the terms of the tax stabilization agreement.

   e. A nonrefundable application fee in the amount of 0.1 percent of the estimated cost of the project is to be paid to the city; and

f. For projects applying for a stabilization under [subsection] 21-263(b), a detailed business plan, including revenue projections and estimated number of permanent employees at project site.

(2) Within fifteen (15) days of receipt of a completed application (together with the application fee), the city assessor shall forward a copy of such application to the director of department of inspections and standards, city collector, and director of the department of planning and development for their respective review, as follows:

a. The director of department of inspection and standards shall review the application to determine whether any violations of the provisions of the building code of the city exist with respect to the subject property of the applicant and any other property in the city owned by the applicant. If no violations exist, he or she shall certify the fact to the city assessor within fifteen (15) days. If violations do exist, within said fifteen (15) days, he or she shall forward a statement to the city assessor and the applicant specifying the nature and extent of the violations. No exemptions granted hereunder shall be effective unless and until any and all such violations have been cured. Within the same fifteen (15) day period, the director of department of inspections and standards shall issue a letter to the city assessor (with a copy to the applicant) stating whether the project will involve the substantial rehabilitation of an eligible property.

The applicant shall have thirty (30) days from its receipt of written notice (or copy of notice to the city assessor) to cure any outstanding violations or other matters which serve as a valid basis (in accordance with this subsection (2) for the building official not approving the subject application. Failure by the applicant to effectuate such cure(s) within said thirty (30) day period shall result in the city assessor removing the subject application from the assessor's list as an incomplete application. Nothing shall prohibit the subject property owner from re-applying for tax consideration.

b. The city collector shall review the city tax records to determine whether all taxes (together with interest and penalties) which are due and owed to the city with respect to the property to which the exemption may apply, and all other property in the city owned by the applicant, have been paid. If no deficiency exists, the city collector shall certify that fact to the city assessor within fifteen (15) days. If deficiencies do exist, within said fifteen (15) days, he or she shall forward a statement of the amounts due and the properties involved to the city assessor and the applicant. No exemption granted hereunder shall be effective unless and until any and all taxes together with interest and penalties remaining

unpaid and due and owed to the city assessed on such property have been paid in full to the city, or the applicant enters into a written payment agreement with the city.

The applicant shall have thirty (30) days from its receipt of written notice (of copy of notice to the city assessor) of a deficiency or deficiencies to pay any and all amounts due to the city. Failure by the applicant to make such payment(s) within said thirty (30) day period shall result in the city assessor removing the subject application from the assessor's list as an incomplete application. Nothing shall prohibit the subject property owner from re-applying for tax consideration.

Should, during the duration of the tax consideration period, tax payments established by the terms of this agreement become delinquent, the city collector shall—if the property owner is eligible—to secure a tax payment plan with the property owner that will bring all taxes and interest current within twelve (12) months in duration. Should the property owner not agree to said payment plan or adhere to the schedule and requirements of the payment plan, the tax stabilization agreement will be suspended and the property will revert to full taxation for the period in which the taxes are delinquent.

The applicant shall be current with all taxes and fees due to the State of Rhode Island. No exemption granted hereunder shall be effective unless and until any and all taxes and fees together with interest and penalties remaining unpaid and due and owed to the state have been paid in full or the applicant enters into a written payment agreement with the state.

c. The director of the department of planning and development shall review the application to determine whether:

   i. It satisfactorily addresses the requirements in section 21-266; and

   ii. The applicant is the recipient of other forms of financial assistance from the city, and if so, whether the applicant is current with loan payments and/or other financial obligations to the city as a result of such assistance.

   If no material deficiency exists, the director of the department of planning and development shall certify that fact to the city assessor within fifteen (15) days. If a material deficiency exists, the director of the department of planning and development, within said fifteen (15) days, shall forward a statement to the city assessor and the applicant specifying the nature and extent of the material deficiency. The director of the department of planning and development shall confirm that the applicant is not the recipient of other forms of financial assistance from the city.

The applicant shall have thirty (30) days from its receipt of written notice (or copy of notice to the city assessor) to cure any material deficiency noted by the director of the department of planning and development. Failure by the applicant to resolve such material deficiency within said thirty (30) day period shall result in the city assessor removing the subject application from the assessor's list as an incomplete application. Nothing shall prohibit the subject property owner from re-applying for tax consideration.

NOTE: Steps (a), (b) and (c) may be performed concurrently.

(3) Within fifteen (15) days following the receipt of the statements from the director of department of inspections and standards, city collector, and director of department of planning and development, the assessor will review the application and, if the foregoing requirements set forth in subsections 21-265(1), (2) have been met (as evidenced by the required certifications and determinations of the assessor, director of department of inspections and standards, city collector, and director of department of planning and development, as more particularly set forth above), the assessor shall forward documentation to the city solicitor.

(4) The city solicitor shall prepare a tax stabilization agreement with the applicant pursuant to, and upon the terms set forth in this ordinance. Within fifteen (15) days following the receipt of documentation from the assessor, the city solicitor shall submit the stabilization agreement and application, along with all documents, forms, and statements required in (1), (2), and (3) of this subsection, to the city council, for review as to form only. Review and official receipt by the city council shall be completed within thirty (30) days of city solicitor's transmittal to the city council, unless the city council finds a material deficiency in the application or associated documents.

In the case of a project applying for a tax stabilization under section 21-263(2)b., the city solicitor shall prepare an ordinance outlining the provisions of the tax stabilization agreement with the applicant pursuant to, and upon the terms set forth in this section. Said tax stabilization agreement ordinance shall be subject to approval of the city council.

(5) All tax stabilization agreements shall contain a provision providing that the receipt of the tax stabilization benefits shall be contingent upon the project receiving the necessary approvals from the historic district commission, the downtown design review committee, the capital center commission, the city plan commission, the zoning board of review, or the I-195 redevelopment commission acting as any or all of these boards or commissions (as applicable). The director of the department of planning and development shall provide to the city solicitor confirmation of approval, and any and all benefits shall be withheld under such approvals are granted.

(6) All tax stabilization agreements shall include a monitoring/compliance fee in the amount of 0.01 percent of the cost of the project is to be paid annually for the term of the agreement to the city.

(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-266. Employment and contracts.

(a) *Construction*.

(1) *MBE/WBE*. The project site owner shall make a good faith effort to award to minority business enterprises as defined in R.I.G.L. § 31-14.1 ("MBE Act") no less than ten (10) percent of the dollar value of the construction costs for the project (as determined in accordance with the rules and regulations promulgated pursuant to MBE Act). The project site owner shall make a good faith effort to award to women business enterprises (WBEs) no less than ten (10) percent of the dollar value of the construction costs for the project (as determined in accordance with section 21-52 of the Code of Ordinances of the City of Providence). The project site owner will request the city's MBE/WBE office to establish a list of qualified MBE/WBE companies in order to satisfy its MBE/WBE construction goals. In this manner, the city will assist the project site owner in meeting said goals. The process of participating with the MBE/WBE office shall begin upon passage in order to develop a designated MBE/WBE subcontractor list which will encourage MBE/WBE participation and joint ventures with other members with the construction industry.

(2) *Apprenticeship*. The developer or project owner shall ensure that one hundred (100) percent of the hours worked on the project shall be performed by trade construction subcontractors who have or are affiliated with an apprenticeship program as defined in 29 C.F.R. § 29 et seq. Up to twenty (20) percent of the hourly requirement may be waived if replaced with hours worked by qualified MBE/WBE companies registered in the State of Rhode Island. Certification of this waiver shall be reviewed and signed by the designated MBE/WBE coordinator within the department of purchasing.

The developer or project owner shall make a requirement in the contracts between its construction manager and general contractor and their subcontractors who have apprenticeship programs as defined in 29 C.F.R. § 29 that not less than ten (10) percent of the total hours worked by the subcontractors' employees on the project are completed by apprentices registered in the aforementioned apprenticeship programs.

The developer or project owner shall as part of its contracts between its construction manager and general contractor and their subcontractors require that the subcontractors submit to the department of planning and development quarterly verification reports to ensure compliance with this section.

The developer or project owner, its construction manager or general contractor or other authorized person/entity may petition the city department of planning and development to adjust the apprenticeship work hour requirements to a lower percentage upon a showing that:

a. Compliance is not feasible because a trade or field does not have an apprenticeship program or cannot produce members from its program capable of performing the scope of work within the contract; or

b. Compliance is not feasible because it would involve a risk or danger to human health and safety or the public at large; or

c. Compliance is not feasible because it would create a significant economic hardship; or

d. Compliance is not feasible for any other reason which is justifiable and demonstrates good cause.

(3) *Internal Revenue Service reporting*. Except as provided under R.I.G.L. § 28-42-8, any person performing services at the project site shall annually receive either a W-2 statement or an IRS form 1099.

(4) *First source list*. Pursuant to chapter 21-93 of the code of ordinances of the city, the project site owner shall enter into a first source agreement covering the hiring of employees necessary to complete the proposed project and throughout the term of the tax stabilization agreement. The project site owner shall work in conjunction with the first source director to develop the first source agreement. The owner shall also make a good faith effort to employ Rhode Island and Providence residents for any and all positions not included in its first source obligations, as well as ensure that any general contractor/construction manager and all subcontractors utilized also make good faith efforts to employ Rhode Island and Providence residents for any and all positions not included in their first source obligations.

(5) *"Buy Providence" initiative*. The project site owner will use good faith efforts to ensure that construction materials are purchased from economically competitive and qualified vendors located in the city of Providence. In furtherance of this effort, the project site owner will work with the city to develop a list of Providence vendors and subcontractors in order to create a preferred vendor list of qualified and economically competitive vendors for the construction of the project. Furthermore, once the project site owner constructs the development, the project site owner will use good faith efforts to conduct ongoing business with and provide preference to economically competitive and qualified Providence businesses.

(6) In the event that there shall be a failure to comply with this subsection 21-266(a), the department of planning and development shall have standing to seek enforcement of this provision of the ordinance in the Rhode Island

Superior Court. The department shall also have the ability to impose a fine of five hundred dollars ($500.00) per day for each day of non-compliance with this section.

(b) *Permanent employment*. In conjunction with its efforts pursuant to this section and its ongoing efforts to provide equal employment opportunity without regard to race, color, religion, natural origin, sex, age or handicap, the project site owner shall liaise with the city and with the director of first source to assist in the recruitment of qualified minority, women, and handicap applicants as well as those on the first source list for all of its employment positions.

(c) *Reporting*. The project site owner, the director of planning and development, the director of first source, and the a representative of the third party entity monitoring apprenticeship requirements shall annually report to the city council on progress in complying with the provisions of this ordinance, including but not limited to, section 21-266.
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-267. Revocation.

The city council shall terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application.
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-268. [Appeals.]

The project site owner and the city agree that the project site owner retains the right to appeal the valuation or calculation of the taxes assessed from time to time.
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-269. Severability.

If any one (1) section of this ordinance is found to be unenforceable, then the other provisions herein shall continue to have the same force and effect as if the unenforceable provision were not passed as part of this article.
(Ord. No. 2015-28, § 1, 7-23-15)

Sec. 21-270. Applicable law.

This agreement shall be construed under the laws of the State of Rhode Island.
(Ord. No. 2015-28, § 1, 7-23-15)

ARTICLE XVII. PROVIDENCE NEIGHBORHOOD REVITALIZATION ACT FOR COMMERCIAL AND MULTI-FAMILY RESIDENTIAL PROPERTY*

Sec. 21-271. Authorization and purpose.

(a) *Authorization*. The city council has the authority, under R.I.G.L. § 44-3-9, as amended, to exempt from tax payment, in whole or in part, real and personal property which has undergone environmental remediation, is historically preserved, or is used for affordable housing, manufacturing, commercial, or residential purposes, or to determine a stabilized amount of taxes to be paid on account of the property, notwithstanding the valuation of the property or the rate of tax.

(b) *Purpose*. The city recognizes that in order to stabilize neighborhoods, vacant, and/or underutilized properties must be returned to productive use. The purpose of this article is to provide the city with a tool to promote and encourage the use of vacant and/or underutilized property through new construction or rehabilitation of qualifying properties for residential and commercial purposes. In order to advance investment in identified neighborhoods, it is vital that the city provide property developers, entrepreneurs and investors with a predictable tax phase-in plan. It is therefore in the public interest to develop a set of clear criteria for eligibility for a neighborhood revitalization tax stabilization incentive, as well as a defined plan to bring a project to full taxation.
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-272. Eligible properties.

Eligible properties shall include new construction (excluding land acquisition costs) or the rehabilitation of commercial, mixed-use, or multi-family residential property of between two hundred fifty thousand dollars ($250,000.00) and three million dollars ($3,000,000.00) in an opportunity neighborhood.

Eligible properties shall include properties located in commercial corridors that abut or are contiguous with opportunity neighborhoods.

Abutting and contiguous properties within an opportunity neighborhood may be considered a single project for purposes of qualifying for a tax stabilization under this article.
(Ord. No. 2016-1, § 1, 1-3-16)

***Editor's note—**Ord. No. 2016-1, § 1, adopted Jan. 13, 2016, amended Art. XVII in its entirety to read as herein set out. Former Art. XVII, §§ 21-271—21-283, pertained to similar subject matter, and derived from Ord. No. 2015-29, § 1, adopted July 23, 2015.

It should be noted that § 2 of said ordinance states that this ordinance shall sunset 30 months from the date of passage.

Sec. 21-273. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Commercial corridor means C-1, C-2, C-3, or RP zones, as depicted on the official zoning map.

Opportunity neighborhood means the following neighborhoods, with boundaries as indicated on the map attached hereto as Exhibit A: Charles, Elmwood, Federal Hill, Fox Point, Hartford, Lower South Providence, Manton, Mount Hope, Mount Pleasant, Olneyville, Reservoir, Silver Lake, Smith Hill, South Elmwood, Upper South Providence, Valley, Wanskuck, Washington Park, West End.
(Ord. No. 2016-1, § 1, 1-3-16)

Editor's note—Exhibit A, as referenced above, has not been set out in this Code and can be found on file in the offices of the city.

Sec. 21-274. Criteria.

The director of department of inspections and standards and the director of the department of planning and development shall determine whether the subject properties or projects meet the minimum eligibility requirements in accordance with sections 21-271, 21-272, and section 21-275. Owners of eligible properties and projects are required to begin construction within twelve (12) months and to complete construction within twenty-four (24) months of the effective date of the subject stabilization agreement. For the purposes of the foregoing sentence, a temporary certificate of occupancy shall be sufficient. Owners of properties and projects that fail to meet any of these deadlines will be required retroactively to pay the difference between their actual stabilized tax payments and what they would have paid if ineligible for the specified tax considerations (unless an extension of such applicable deadline is approved by the city council).
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-275. Tax considerations.

The assessed tax payments and stabilization period upon the date of enactment of a project's stabilization agreement shall be according to the following options.

(1) New construction of at least two hundred fifty thousand dollars ($250,000.00), or the rehabilitation of commercial or residential property with a cost of construction the greater of (1) Two hundred fifty thousand dollars ($250,000.00) or (2) Fifty (50) percent of the assessed property valuation prior to construction. Total cost of project, whether new construction or rehabilitation shall not exceed three million dollars ($3,000,000.00). The assessed tax payments upon enactment will be frozen at the base tax for the first year of the term. The assessor shall issue a bill beginning in the second tax year after the

commencement date, based upon the property's valuation at that time. Tax payments will be calculated as a percentage of the total tax at the annual tax rate, with a phased-in schedule, as shown below. The city assessor shall assess the project upon issuance of a certificate of occupancy by the department of inspection and standards.

Year	*Schedule*
1	Base tax
2	Base tax + 20% of increase to assessed valuation
3	Base tax + 40% of increase to assessed valuation
4	Base tax + 60% of increase to assessed valuation
5	Base tax + 80% of increase to assessed valuation
6	Full taxation

(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-276. Transfer of exempt or stabilized property.

Tax benefits for eligible properties shall be transferable to new owners or tenants, but the duration of the tax consideration period shall not be extended (unless otherwise approved by the city council). In the event that the tax stabilized property becomes exempt from real estate taxes during the term of tax stabilization through conveyance, or otherwise, to a real estate tax exempt entity, the tax stabilization agreement shall be void ab initio with owners of tax stabilized properties being liable for full taxes retroactively to the execution date of the tax stabilization agreement.

In the event that a project owner transfers a project site to a tax exempt entity within the five (5) year period immediately following the expiration of this article, the project owner agrees to pay a percentage of the sale price to the City of Providence as follows: five (5) percent of the sale price if the project site is sold to a tax exempt entity in the first year following expiration; four (4) percent of the sale price if sold to a tax exempt entity in the second year; three (3) percent of the sale price if sold to a tax exempt entity in the third year; two (2) percent of the sale price if sold to a tax exempt entity in the fourth year; one (1) percent of the sale price if sold to a tax exempt entity in the fifth year.
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-277. Forms and procedures.

The city assessor, together with the director of the department of planning and development, shall develop standardized forms and additional procedures consistent with this article, as they deem necessary and proper to effectuate the terms and provisions of this article. The procedure for eligible properties under this section shall be as follows:

(1) No person shall be entitled to any exemption herein authorized without first filing an application for tax stabilization with the office of the city assessor.

The application shall include the program of building, alterations and/or improvements to be made. The applicant shall include a statement outlining measures to comply with the Code of Ordinances, and a statement regarding the hiring of Minority and Women Business Enterprises (MBE/WBE) pursuant to section 21-52 of the Code of Ordinances. No application shall be considered unless:

a. The application is filed prior to the issuance of the certificate of occupancy;

b. The applicant certifies that the investment of new construction (excluding land acquisition costs) meets the minimum required value of two hundred fifty thousand dollars ($250,000.00) or that the rehabilitation of commercial or multi-family residential meets the minimum cost of construction the greater of a) two hundred fifty thousand dollars ($250,000.00) or b) fifty (50) percent of the assessed property valuation prior to construction;

c. The application includes a compliance plan demonstrating how the applicant will fulfill each of its community benefit responsibilities as outlined in section 21-278;

d. A fiscal note prepared by the department of finance or the internal auditor is attached to the application, comparing the proposed project's "true tax" and the estimated tax to be paid under the terms of the tax stabilization agreement;

e. A nonrefundable application fee in the amount of 0.1 percent of the estimated cost of the project is to be paid to the city.

(2) Within fifteen (15) days of receipt of a completed application (together with the application fee), the city assessor shall forward a copy of such application to the director of department of inspections and standards, city collector, and director of the department of planning and development for their respective review; and

(3) The director of department of inspection and standards shall review the application to determine whether any violations of the provisions of the building code of the city exist with respect to the subject property of the applicant and any other property in the city owned by the applicant. If no violations exist, he or she shall certify the fact to the city assessor within fifteen (15) days. If violations do exist, within said fifteen (15) days, he or she shall forward a statement to the city assessor and the applicant specifying the nature and extent of the violations. No exemptions granted hereunder shall be effective unless and until any and all such violations have been cured. Within the same fifteen-day period, the director of department of inspections and standards shall issue a letter to the city assessor (with a copy to the applicant) stating whether the project will involve the substantial

rehabilitation of an eligible property, and whether the proposed construction has received the necessary approvals from the Historic District, the Downcity Design Review Committee, the Capital Center Commission, the City Plan Commission or the Zoning Board of Review (as applicable).

The applicant shall have thirty (30) days from its receipt of written notice (or copy of notice to the city assessor) to cure any outstanding violations or other matters which serve as a valid basis (in accordance with this subsection (b) for the building official not approving the subject application. Failure by the applicant to effectuate such cure(s) within said thirty (30) day period shall result in the city assessor removing the subject application from the assessor's list as an incomplete application. Nothing shall prohibit the subject property owner from re-applying for tax consideration.

(4) The city collector shall review the city tax records to determine whether all taxes (together with interest and penalties) which are due and owed to the city with respect to the property to which the exemption may apply, and all other property in the city owned by the applicant, have been paid. If no deficiency exists, the city collector shall certify that fact to the city assessor within fifteen (15) days. If deficiencies do exist, within said fifteen (15) days, he or she shall forward a statement of the amounts due and the properties involved to the city assessor and the applicant. No exemption granted hereunder shall be effective unless and until any and all taxes together with interest and penalties remaining unpaid and due and owed to the city assessed on such property have been paid in full to the city.

The applicant shall have thirty (30) days from its receipt of written notice (of copy of notice to the city assessor) of a deficiency or deficiencies to pay any and all amounts due to the city. Failure by the applicant to make such payment(s) within said thirty (30) day period shall result in the city assessor removing the subject application from the assessor's list as an incomplete application. Nothing shall prohibit the subject property owner from re-applying for tax consideration.

Should, during the duration of the tax consideration period, tax payments established by the terms of this agreement become delinquent, the city collector shall — if the property owner is eligible - to secure a tax payment plan with the property owner that will bring all taxes and interest current within twelve (12) months in duration. Should the property owner not agree to said payment plan or adhere to the schedule and requirements of the payment plan, the tax stabilization agreement will be suspended and the property will revert to full taxation for the period in which the taxes are delinquent.

(5) The director of the department of planning and development shall review the application to determine whether it satisfactorily addresses the require-

ments in section 21-278. If no material deficiency exists, the director of the department of planning and development shall certify that fact to the city assessor within fifteen (15) days. If a material deficiency exists, the director of the department of planning and development, within said fifteen (15) days, shall forward a statement to the city assessor and the applicant specifying the nature and extent of the material deficiency.

The applicant shall have thirty (30) days from its receipt of written notice (or copy of notice to the city assessor) to cure any material deficiency noted by the director of the department of planning and development. Failure by the applicant to resolve such material deficiency within said thirty (30) day period shall result in the city assessor removing the subject application from the assessor's list as an incomplete application. Nothing shall prohibit the subject property owner from re-applying for tax consideration.

The director of the department of planning and development shall confirm that the applicant is not the recipient of other forms of financial assistance from the city.

NOTE: Steps (b), (c), (d), and (e) shall be performed concurrently.

(6) Within fifteen (15) days following the receipt of the statements from the director of department of inspections and standards, city collector, and director of department of planning and development, the assessor will review the application and, if the foregoing requirements set forth in subsections 21-277(1)—(4) have been met (as evidenced by the required certifications and determinations of the assessor, director of department of inspections and standards, city collector, and director of department of planning and development, as more particularly set forth above).

(7) The city solicitor shall prepare a tax stabilization agreement with the applicant pursuant to, and upon the terms set forth in this ordinance. Within fifteen (15) days following the receipt of documentation from the assessor, the city solicitor shall submit the stabilization agreement and application, along with all documents, forms, and statements required in (a), (b), and (c) of this subsection, to the city council, for review as to form only. Review and official receipt by the city council shall be completed within thirty (30) days of city solicitor's transmittal to the city council, unless the city council finds a material deficiency in the application or associated documents.

(8) All tax stabilization agreements shall contain a provision providing that the receipt of the tax stabilization benefits shall be contingent upon the project receiving the necessary approvals from the Historic District Commission, the City Plan Commission, the Zoning Board of Review, or the I-195 Redevelopment Commission acting as any or all of these boards or commissions (as

applicable). The director of the department of planning and development shall provide to the city solicitor confirmation of approval, and any and all benefits shall be withheld under such approvals are granted.

(9) All tax stabilization agreements shall include a monitoring/compliance fee in the amount of 0.01 percent of the cost of the project is to be paid annually for the term of the agreement to the city.

(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-278. Employment and contracts.

(a) *Construction*.

(1) *MBE/WBE*. The project site owner shall make a good faith effort to award to minority business enterprises as defined in R.I.G.L. § 31- 14.1 ("MBE Act") no less than ten (10) percent of the dollar value of the construction costs for the project (as determined in accordance with the rules and regulations promulgated pursuant to MBE Act). The project site owner shall make a good faith effort to award to Women Business Enterprises (WBEs) no less than ten (10) percent of the dollar value of the construction costs for the project (as determined in accordance with section 21-52 of the Code of Ordinances of the City of Providence). The project site owner will request the city MBE/WBE office to establish a list of qualified MBE/WBE companies in order to satisfy its MBE/WBE construction goals. In this manner, the city will assist the project site owner in meeting said goals. The process of participating with the MBE/WBE office shall begin upon passage in order to develop a designated MBE/WBE subcontractor list which will encourage MBE/WBE participation and joint ventures with other members with the construction industry.

(2) *Internal Revenue Service reporting*. Except as provided under R.I.G.L. § 28-42-8, any person performing services at the project site shall annually receive either a W-2 statement or an IRS Form 1099.

(3) *First source list*. Pursuant to the City of Providence First Source Ordinance, the project site owner shall enter into a first source agreement covering the hiring of employees necessary to complete the proposed project and throughout the term of the tax stabilization agreement. The project site owner shall work in conjunction with the director of first source providence to develop the first source agreement. The owner shall also make a good faith effort to employ Rhode Island and Providence residents for any and all positions not included in its First source obligations, as well as ensure that any general contractor/construction manager and all subcontractors utilized also make good faith efforts to employ Rhode Island and Providence residents for any and all positions not included in their first source obligations.

(4) *"Buy Providence" initiative*. The project site owner will use good faith efforts to ensure that construction materials are purchased from economically

competitive and qualified vendors located in the City of Providence. In furtherance of this effort, the project site owner will work with the city to develop a list of Providence vendors and subcontractors in order to create a preferred vendor list of qualified and economically competitive vendors for the construction of the project. Furthermore, once the project site owner constructs the development, the project site owner will use good faith efforts to conduct ongoing business with and provide preference to economically competitive and qualified Providence businesses.

(5) *[Failure to comply.]* In the event that there shall be a failure to comply with this section 21-278(1), the department of planning and development shall have standing to seek enforcement of this provision of the ordinance in the Rhode Island Superior Court. The department shall also have the ability to impose a fine of five hundred dollars ($500.00) per day for each day of non-compliance with this section.

[(b)] *Permanent employment*. In conjunction with its efforts pursuant to this section and its ongoing efforts to provide equal employment opportunity without regard to race, color, religion, natural origin, sex, age or handicap, the project site owner shall liaise with the city and with the Director of First Source Providence to assist in the recruitment of qualified minority, women, and handicap applicants as well as those on the first source list for all of its employment positions.

[(c)] *Reporting*. The project site owner shall annually report to the city council on its progress in complying with the provisions of this article, including but not limited to, section 21-278.
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-279. Ineligible properties.

(a) Any property or project that includes a use prohibited by chapter 27, "Zoning," of the Code of Ordinances shall be ineligible for a tax stabilization. Additionally, any property or project that has any of the following uses, as defined by chapter 27, "Zoning," of the Providence Code of Ordinances, shall be ineligible under this ordinance:

(1) Adult use, including adult bookstore/retail, adult arcade, adult cabaret, adult motion picture theater, and adult hotel/motel;

(2) Amusement/entertainment/sports facility—Indoor (pool hall);

(3) Apartment dormitory;

(4) Bar;

(5) Compassion center/cultivation center;

(6) Contractor storage yard;

(7) Fraternity/sorority;

(8) Landfill;

(9) Live entertainment—Ancillary use;

(10) Live performance venue;

(11) Materials processing;

(12) Nightclub;

(13) Retail sales of alcohol;

(14) Storage yard—Outdoor.

(b) Any property or project that includes a businesses-holding a "check casher" license under R.I.G.L. Ch. 19-14.4, shall be ineligible under this article.
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-280. Revocation.

The city council shall terminate an exemption granted hereunder prior to the expiration thereof in the event of fraud or misrepresentation by an applicant regarding any statements or representations contained in the application.
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-281. [Appeals.]

The project site owner and the City of Providence agree that the project site owner retains the right to appeal the valuation or calculation of the taxes assessed from time to time.
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-282. Severability.

If any one (1) section of this article is found to be unenforceable, then the other provisions herein shall continue to have the same force and effect as if the unenforceable provision were not passed as part of this article.
(Ord. No. 2016-1, § 1, 1-3-16)

Sec. 21-283. Applicable law.

This agreement shall be construed under the laws of the State of Rhode Island.
(Ord. No. 2016-1, § 1, 1-3-16)

Secs. 21-284—21-300. Reserved.

ARTICLE XVIII. PROVIDENCE TAX STABILIZATION INVESTMENT ACT

Sec. 21-301. Scope.

As of the effective date of this article, except for category IV projects as defined in section 21-303(2)4. below, all tax stabilization agreements granted in the city shall be formed in accordance with the terms herein.
(Ord. No. 2021-21, § 1, 6-1-21)

Sec. 21-302. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant shall mean the property owner at the time an application is filed with the tax assessor's office in accordance with section 21-305 of this article, or the property owner's respective past, present and future subsidiaries, affiliates, officers, directors, shareholders, members, principals, trustees, agents, employees, servants and representatives, and the past, present and future subsidiaries, affiliates, officers, directors, shareholders, members, principals, trustees, agents, employees, servants and representatives, heirs, personal representatives, successors and assigns of any and all of the foregoing.

City of Providence or *city* shall mean that municipal corporation established and organized pursuant to the General Laws of the State of Rhode Island and the City of Providence Home Rule Charter of 1980, as amended in accordance with Article XIII of the Rhode Island Constitution.

Effective date shall mean the date upon which a tax stabilization agreement is executed in contract form and ratified by a resolution of the city council.

Eligible property shall mean all real property together with any and all buildings, structures, and/or improvements now or in the future located in the city and which are subject to a qualifying new construction or rehabilitation project as outlined in section 21-303 below.

Event of default shall mean any occurrence after the effective date (defined below) of non-compliance or violation of the terms and provisions of this article, whether affirmative or by omission, negligent or willful, for any or no reason. Technical default or substantive default shall be handle in the same matter.

Property owner shall mean any entity with a recorded legal or equitable right and/or interest in and/or to the property, including any and all successors and assigns.

Providence City Council or *city council* shall mean the legislative body of the City of Providence (defined above) established pursuant to Article IV of the City of Providence Home Rule Charter of 1980, as amended.
(Ord. No. 2021-21, § 2, 6-1-21)

Sec. 21-303. Eligible project.

(a) *Grant.* The city council may grant a real property tax stabilization program for eligible properties where granting the stabilization will inure to the benefit of the city by reason of:

(1) The willingness of a manufacturing or commercial concern to locate in the city; or

(2) The willingness of a manufacturing firm to expand facilities with an increase in employment or the willingness of a commercial or manufacturing concern to retain or expand its facility in the city and not substantially reduce its work force in the city; or

(3) An improvement of the physical plant of the city which will result in a long-term economic benefit to the city and state; or

(4) An improvement which converts or makes available land or facility that would otherwise be not developable or difficult to develop without substantial environmental remediation; or

(5) The willingness of a manufacturing or commercial or residential firm or property owner to construct new or to replace, reconstruct, convert, expand, retain or remodel existing buildings, facilities, machinery, or equipment with modern buildings, facilities, fixtures, machinery, or equipment resulting in an increase or maintenance in plant, residential housing or commercial building investment by the firm or property owner in the city.

Notwithstanding anything contained in this article, or anything other law, a tax stabilization agreement authorized under R.I.G.L. § 44-3-9 and formed pursuant to this article shall be afforded only to eligible property who pay the commercial tax rate.

(b) *Qualifying new construction or rehabilitation.* New construction or rehabilitation projects must first meet the conditions set forth in sections 21-303(a) and 21-303(b) above, and in addition fall into one (1) of the following categories:

(1) Category I—Certified project development costs for construction or rehabilitation are more than two hundred fifty thousand dollars ($250,000.00) and less than or equal to three million dollars ($3,000,000.00).

(2) Category II—Certified project development costs for construction or rehabilitation are more than three million dollars ($3,000,000.00) and less than or equal to ten million dollars ($10,000,000.00).

(3) Category III—Certified project development costs for construction or rehabilitation are more than ten million dollars ($10,000,000.00) and less than or equal to fifty million dollars ($50,000,000.00).

(4) Category IV—Certified project development costs for construction or rehabilitation are more than fifty million dollars ($50,000,000.00).

(Ord. No. 2021-21, § 3, 6-1-21)

Sec. 21-304. Tax stabilization.

(a) *Stabilization terms and plans.* Under no circumstances shall the amount of tax to be paid under an agreement formed pursuant to this article in year one (1) of any stabilization term be less than the amount of taxes paid for that property in the year before the agreement becomes effective. For each category of eligible projects, as defined in section 21-303(b) above, the city council establishes corresponding stabilization terms and plans as follows:

(1) For category I projects, a five-year stabilization term is established. During the tax stabilization term, the stabilized amount of taxes to be paid by the property owner with respect to the property, notwithstanding the valuation of the property or the then-current rate of tax, is as follows: For the first tax year of the stabilization term, the property owner shall make a tax payment equal to the then-current assessment value set by the tax assessor ("base assessment") multiplied by the then-current tax rate (hereinafter the "base assessment tax"). For each tax year thereafter, the property owner will pay the base assessment tax plus a percentage of the taxes due and owing on the difference between the base assessment and then-current assessed value of the property multiplied by the then-current rate. See "category I tax stabilization plan" incorporated herein as if fully reproduced and attached hereto and as Appendix A.

(2) For category II projects, a ten-year stabilization term is established. During the tax stabilization term, the stabilized amount of taxes to be paid by the property owner with respect to the property, notwithstanding the valuation of the property or the then-current rate of tax as follows: For the first two (2) tax years of the stabilization term, the property owner shall make a tax payment equal the then-current assessment value set by the tax assessor ("base assessment") multiplied by the then-current tax rate (hereinafter the "base assessment tax"). For each tax year thereafter, the property owner will pay the base assessment tax plus a percentage of the taxes due and owing on the difference between the base assessment and then-current assessed value of the property multiplied by the then-current rate. See "category II tax stabilization plan" incorporated herein as if fully reproduced and attached hereto and as Appendix B.

(3) For category III projects, a fifteen-year stabilization term is established. During the tax stabilization term, the stabilized amount of taxes to be paid by the property owner with respect to the property, notwithstanding the valuation of the property or the then-current rate of tax as follows: For the first three (3) tax years of the stabilization term, the property owner shall make a tax payment equal to the then-current assessment value set by the tax assessor ("base assessment") multiplied by the then-current tax rate (hereinafter the "base assessment tax"). For each tax year thereafter, the property owner will pay the base assessment tax plus a percentage of the taxes due and owing on the difference between the base assessment and then-current assessed value of the property multiplied by the then-current rate. See "category III tax stabilization plan" incorporated herein as if fully reproduced and attached hereto and as Appendix C.

(4) For category IV projects, a twenty-year stabilization term is established. During the tax stabilization term, the stabilized amount of taxes to be paid by the property owner with respect to the property, notwithstanding the valuation of the property or the then-current rate of tax as follows: For the first five (5) tax years of the stabilization term, the property owner shall make a tax payment equal to the then-current assessment value set by the tax assessor ("base assessment") multiplied by the then-current tax rate (hereinafter the "base assessment tax"). For each tax year thereafter, the property owner will pay the base assessment tax plus a percentage of the taxes due and owing on the difference between the base assessment and then-current assessed value of the property multiplied by the then-current rate. See "category IV tax stabilization plan" incorporated herein as if fully reproduced and attached hereto and as Appendix D. Applicants may submit an application in accordance with section 21-305 of this article and such agreement will be subject to the terms and conditions of this article as it would otherwise apply to category IV projects. Alternatively, applicants with a category IV project may file an application with the tax assessor's office for a "special legislative tax stabilization agreement" and said agreement's terms will be ordained by a separate ordinance of the city council in accordance with R.I.G.L. § 44-3-9.

(5) The city council shall have the sole discretion to increase the number of base assessment years in each category found in this section by one (1) year and therefore decreasing the number of years over which the taxes will increase towards full taxation following the stabilization term in each category established herein; however, this sub-section in no way intends to extend any of the stabilization terms of any category.

(6) Notwithstanding anything mentioned in this article, the Providence Code of Ordinances, as amended, or any other provision of law, the stabilization terms found in this section 21-304(a) shall not be extended for any reason

whatsoever, and a property owner's execution of an agreement formed under this article is evidence of assent thereto. This section 21-304(1)e. shall in no way preclude either the property owner or the property from obtaining additional tax stabilization agreements formed pursuant to this article, if a new project for rehabilitation or new construction is proposed for such further tax stabilization agreement.

(b) *Stabilization plan requirements applicable to all category projects.* The following provisions shall apply to all stabilization plans regardless of the category project for which it is granted:

(1) *Payment deadlines.* During the tax stabilization terms as defined in section 21-304(1) above and in accordance with the tax stabilization plan outlined therein, stabilized tax payments shall be made in either a lump sum during the first quarter of the applicable tax year or in equal quarterly installments at the discretion of the property owner. If the property owner elects to make quarterly installments, each quarterly installment shall be due on the same date that quarterly taxes are due for all other taxpayers in the city.

(2) *Obligation of property owner to make payment.* During the tax stabilization term as defined in section 21-304(1) above and in accordance with the tax stabilization plan outlined therein, stabilized tax payments shall be an obligation of the property owner.

(3) *Non-receipt of stabilized tax bill.* Failure by the city to send or failure by the property owner to receive a stabilized tax bill does not excuse the nonpayment of the stabilized tax nor affect its validity or any action or proceeding for the collection of the tax in accordance with this article, an agreement formed hereunder, or otherwise.

(4) *Recording of agreement, running with land.* Upon the execution of an agreement formed hereunder, the property owner shall cause said agreement (or a notice thereof) to be recorded at its expense in the city's official public land evidence records. This recording shall be construed to provide a complete additional alternative method under contract law for the securitization of payments due and owing under such an agreement and shall be regarded as supplemental and in addition to the powers conferred by other state and local laws.

(Ord. No. 2021-21, § 4, 6-1-21)

Sec. 21-305. Application procedure, approval, and drafting.

(a) *Application.* Every person or entity shall file an application for stabilization with the office of the city tax assessor and the providence city clerk's office. Said form applications shall be provided by the tax assessor. Applications shall include the following items before they can be considered complete or reviewed:

(1) An affidavit disclosing all related individuals or entities of the property owner which could constitute those individuals or entities referenced in the definition of applicant under section 21-302 of this article;

(2) Completed conceptual plans approved by the department of planning and development evidencing the construction or rehabilitation;

(3) Explanation of the short-term and long-term benefits to the city from the eligible project;

(4) Statement on the increase in employment in the city as a result of the eligible project;

(5) Affidavit that no building permits related to the eligible project have been pulled as of the date on which the application is submitted (demolition permits may be pulled prior to applying for an agreement under this article);

(6) Executed affidavit from prime/general contractor or CPA certifying the construction or rehabilitation costs showing that the eligible project fits into one (1) of the categories as defined in section 21-303(b); and

(7) A non-refundable filing fee of one-tenth and two-hundredths of one percent (0.12%) of the estimated project development costs.

Notwithstanding anything contained herein section 21-305(a), the city council may request additional or supplemental information prior to ratifying an agreement formed in accordance with this article.

(b) *City-wide departmental review.* The office of the city tax assessor, after in receipt of a completed application, shall forward copies of the application to the following departments: Planning and development, public works, inspection and standards, tax collector, and licensing. Copies shall also be sent to the city council, the office of the mayor, and the city solicitor's office.

(1) *Inspection and standards.* Within ten (10) business days of receipt of a completed application from the tax assessor's office, the director of inspection and standards shall certify in writing to the tax assessor that neither the eligible property nor the applicant are subject to any open code, building, or zoning violations nor do they have any outstanding fines or liens for any such violations.

(2) *Public works.* Within ten (10) business days of receipt of a completed application from the tax assessor's office, the director of public works shall certify in writing to the tax assessor that neither the eligible property nor the applicant are subject to any open violations nor do they have any outstanding fines or liens for any such violations.

(3) *Planning and development.* Within ten (10) business days of receipt of a completed application from the tax assessor's office, the director of planning and development shall certify in writing to the tax assessor whether or not the applicant is the recipient of other forms of financial assistance from the city, and if so, whether the applicant is current with loan payments and/or

other financial obligations to the city as a result of such assistance. Any deficiencies identified herein must be resolved prior to the granting of a stabilization plan hereunder.

(4) *Tax collector.* Within ten (10) business days of receipt of a completed application from the tax assessor's office, the city tax collector shall certify in writing to the tax assessor that neither the eligible property nor the applicant are deficient in any taxes due and owing to the city. Also, the tax collector must request from the applicant and forward with its certification a confirmation from the Rhode Island State Department of Revenue that neither the eligible property nor the applicant are deficient in any taxes due and owing to the state. Any deficiencies identified herein must be resolved prior to the granting of a stabilization plan hereunder.

(5) *Licensing.* Within ten (10) business days of receipt of a completed application from the tax assessor's office, the director of licensing shall certify in writing to the tax assessor that neither the eligible property nor the applicant are subject to any outstanding judgments, fines, or fees handed out by either the board of licensing or the department of licensing. Any outstanding obligations identified herein must be resolved prior to the granting of a stabilization plan hereunder. Furthermore, approval under this subsection or the execution of an agreement formed pursuant to this article shall in no way guarantee that the property owner or a tenant of the property will be approved for a license from the department of licensing or the board of licensing. Said licenses shall be afforded pursuant to chapter 14 of the Providence Code of Ordinances, as amended.

(6) *City solicitor.* Within ten (10) business days of receipt of a completed application from the tax assessor's office, the office of the city solicitor shall certify in writing to the tax assessor that neither the eligible property nor the applicant are involved in adverse litigation with the city nor that they have a legal demand directed toward the city.

Should any of the departments mentioned in section 21-305(b) fail to certify in writing within ten (10) business days their approval or disapproval of the application submitted to the tax assessor, it shall be deemed approved. The city council, prior to ratification, may seek certification from said department who failed to certify during the initial time period outlined herein section 21-305(b).

(c) *Approval of application and setting base assessment.* Upon receipt of all writing certifications from the departments mentioned in section 21-305(b) above, and after resolution of all deficiencies and outstanding obligations as identified therein, the tax assessor shall set the base assessment of the eligible property seeking a stabilization plan. Under no circumstances, shall the base assessment be less than the then-current assessment of the eligible property at the time of the submission of the application. Once the base assessment is set, the tax assessor

shall forward a copy of the application, all certifications, comments, a fiscal note indicating the approximate amount of tax that the city will forego during the term of the tax stabilization agreement, and his/her certification that the application is complete to the office of the city solicitor.

(d) *Drafting of agreement.* Within fifteen (15) days of receipt of all documents from the tax assessor as mentioned in section 21-305(c) above, the office of the city solicitor shall draft an agreement outlining a stabilization plan in accordance with this article and the terms of the application as approved.

(e) *Council review.* Upon completion of drafting, the office of the city solicitor shall forward the agreement (in contract form) accompanied by a resolution authorizing and adopting the same to the city council president or his/her designee for introduction. Notwithstanding anything in this article, should a department fail to act within the time limits prescribed in subsection 21-305(b)—(d), any member of the city council may submit a copy of said application, an agreement based on said application, and a resolution ratifying the agreement to the city council for introduction.

Notwithstanding anything mentioned in this article, the first five (5) agreements formed hereunder where new construction or rehabilitation project development costs are more than fifty million dollars ($50,000,000.00) and which project is located in the I-195 District or the Capital Center District shall not require approval of the city council or mayor.
(Ord. No. 2021-21, § 5, 6-1-21)

Sec. 21-306. Additional requirements for stabilized projects.

(a) *Commencement of performance.* Unless otherwise provided for in an agreement executed pursuant to this article, construction or rehabilitation shall commence within twelve (12) months and shall obtain a certificate of occupancy from the department of inspections and standards within thirty-six (36) months of the effective date of said agreement. Property owner/applicants who fail to meet either of these deadlines will be required to retroactively pay the difference between their actual stabilized tax payments and what they would have paid if ineligible for the specified tax considerations. The owner may, twelve (12) months prior to the applicable deadline, submit a request to the city council for approval of an extension to such applicable deadline.

(b) *Permits and certificates of occupancy.* Property owner/applicant shall obtain all permits and certificates of occupancy as required by state and local law in connection with any and all intended construction or rehabilitation.

(c) *MBE/WBE.* Where found to be applicable and for any of the terms of the stabilization period as defined in section 21-304(a) above, the property owner afforded the stabilization of taxes as described herein shall comply with any and all requirements under section 21-52 of the Providence Code of Ordinances as it pertains to minority and women business enterprises.

(d) *Internal revenue service reporting.* Except as provided under R.I.G.L. § 28-42-8, any person performing services at the eligible property shall annually receive either a W-2 statement or an IRS Form 1099.

(e) *First source.* Where found to be applicable and for any of the terms of the stabilization period as defined in section 21-304(a) above, the property owner afforded the stabilization of taxes as described herein shall enter into a first source agreement with the director of first source providence in accordance with chapter 21, article III½ of the Providence Code of Ordinances, including at least one (1) percent of the total amount of discounted taxes to be directed to the first source trust fund, per section 21-95.

(f) *Equal employment.* Where found to be applicable and for any of the terms of the stabilization period as defined in section 21-304(a) above, the property owner afforded the stabilization of taxes as described herein shall work with the city's office of human resources, division of equal employment opportunity to ensure the city's goals to prohibit discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities, and prohibit discrimination against all individuals based on their race, color, religion, sex, sexual orientation, gender identity or national origin are met. Moreover, the property owner will take affirmative action to employ and advance in employment individuals without regard to race, color, religion, sex, sexual orientation, gender identity, national origin, protected veteran status or disability.

(g) *"Buy Providence" initiative.* Where found to be applicable and for any of the terms of the stabilization period as defined in section 21-304(a) above, the property owner afforded the stabilization of taxes as described herein shall use best efforts to ensure that construction materials are purchased from economically competitive and qualified vendors located in the city. In furtherance of this effort, the project site owner will work with the city to develop a list of Providence vendors and subcontractors in order to create a preferred vendor list of qualified and economically competitive vendors for the construction of the project. Furthermore, once the project site owner constructs the development, the project site owner will use good faith efforts to conduct ongoing business with and provide preference to economically competitive and qualified Providence businesses.

(h) *Apprenticeship.*

(1) *Requirement.* Except for category I projects, as defined in section 21-303(b)(1), the property owner shall ensure that one hundred (100) percent of the hours worked on the project shall be performed by all trade construction contractors and subcontractors who have or are affiliated with an apprenticeship program as defined in 29 C.F.R. § 29 et seq. for craft employed. Additionally, the property owner shall ensure that all bidding documents for the work to be performed on the eligible project includes express and conspicuous language evidencing the requirement found in this sub-section. As part of [the]

contract with the construction manager and/or general contractor, the property owner shall require that not less than ten (10) percent of the total hours worked by the contractors' and subcontractors' employees on the project are completed by apprentices registered in the aforementioned apprenticeship programs.

As part of it contract with the construction manager and/or general contractor, the property owner shall, require that all contractors and subcontractors submit to the city quarterly verification reports to ensure compliance with this section.

Failure to comply with or meet the requirements of this subsection shall be a material violation of the owner's obligations under this chapter.

(2) *Exemptions.* The property owner, its prime contractor, or any other person/entity authorized by the property owner, may petition the city's director of planning and development, or his/her designee to adjust the requirements found herein this section 21-306(h) to a lower percentage upon a showing that:

a. A trade or field does not have an apprenticeship program or cannot produce members from its program capable of performing the scope of work within the contract; or

b. The size and scope of the work will not allow for the contractor to comply with apprenticeship ratio requirements for the craft affected; or

c. For any other non-economic justifiable reason that demonstrates good cause.

Accompanying the petition mentioned in this sub-section, the petitioning entity must provide contemporary evidence of the efforts taken to comply with this section, including but not limited to the bidding and responsive documents for the scopes of work for which the petitioning entity is seeking an exemption.

(i) *Project compliance.* Any and all tax stabilization agreements granted pursuant to this article shall in no way confer that the underlying project (construction or rehabilitation) is either compliant with the Providence Zoning Ordinance or has received the necessary approvals from the historic district commission, the downtown design review committee, the capital center commission, the city plan commission, the zoning board of review, or the I-195 Redevelopment Commission (as applicable). Default under an agreement executed pursuant to this article for failure to receive one (1) or more of the above-mentioned approvals shall not entitle an applicant to a refund of their application fee.

(j) *Prohibited and restricted uses.*

(1) *Prohibited uses.* Notwithstanding the eligibility requirements found in section 21-303 of this article, nor any other provision in the Providence Code

of Ordinances or the Rhode Island General Laws to the contrary, the following uses, as defined by chapter 27 of the Providence Code of Ordinances, shall not be permitted a tax stabilization agreement formed pursuant to this article:

a. Adult use, including adult bookstore/retail, adult arcade, adult cabaret, adult motion picture theater, and adult hotel/motel;

b. Compassion center/cultivation center;

c. Contractor storage yard;

d. Fraternity/sorority;

e. Landfill;

f. Materials processing of scrap metal;

g. Storage yard-outdoor; and

h. The following retail uses:

1. Gun stores.

2. Payday lending.

3. Check-cashing operations.

(2) *Restricted uses.* Notwithstanding the eligibility requirements found in section 21-303 of this article, nor any other provision in the Providence Code of Ordinances or the Rhode Island General Laws to the contrary, if any the following uses, as defined by chapter 27 of the Providence Code of Ordinances, exceeds twenty-five (25) percent of the usable square footage of the project, then a tax stabilization agreement formed pursuant to this article shall not be permitted:

a. Bar;

b. Nightclub; and

c. Retail sales of alcohol.

(k) *City of Providence Parks and Recreation Trust Fund.* Upon passage of this article by the Providence City Council, the Property Owner party to each tax stabilization agreement formed pursuant to this article shall contribute to a trust fund established by the city, of which the treasurer shall be the trustee. The fund shall be identified as the "City of Providence Parks and Recreation Trust Fund." The board of park commissioners shall establish regulations pertaining to the disbursement of funds.

(1) *Payments to the fund.* The property owner shall make annual payments to the fund in the amount of seven (7) percent of the estimated total of taxes abated (as shown in the tax assessor's fiscal note in section 21-305(c)) amortized over the term of the tax stabilization agreement. Notwithstanding anything mentioned in this sub-section, the property owner shall pay the

following amounts in the fund annually in the tax years in which the property owner pays a base assessment tax: (1) for category II projects property owners shall pay one thousand dollars ($1,000.00) each tax year; (2) for category III projects property owners shall pay one thousand five hundred dollars ($1,500.00) each tax year; and (3) for category IV projects property owners shall pay two thousand five hundred dollars ($2,500.00) each tax year. Said annual payments will be payable within thirty (30) days of receipt of an invoice for the same from the office of the tax assessor. If, for any reason, this article is retroactively revoked, payments to the fund shall remain and will not be forfeited due to a default.

(2) *Investment and distribution of the fund.* The trust fund will be invested by the board of investment, and an annual distribution of the investment shall be used to provide funds to the department of parks and to the department of recreation for capital improvements in neighborhood parks and recreation centers. Said annual distribution shall not supplant any funds that are provided to the department of parks and the department of recreation through the operating budget. The aggregate amount of the distribution in any individual year shall not exceed four (4) percent. Distributions may never exceed the earnings in the year of distribution or reduce the corpus of the fund. The first distribution from the fund shall not occur until the fifth year after the first payment to the fund has been made.

(l) *Affordable housing trust.* Pursuant to City of Providence Ordinance Chapter 2019-91 No. 355, as amended (the "trust ordinance"), ten (10) percent of revenues collected annually from all tax stabilization agreements shall be transferred and deposited into the Providence Housing Trust Fund.

(m) *Payment of area standard wages.* All construction workers shall be paid in accordance with the wages and benefits required by R.I.G.L. § 37-13-1 et seq. and all contractors and subcontractors shall file certified payrolls on a monthly basis to the department of planning with the same information required by R.I.G.L. § 37-13-1 et seq. Not paying any worker in accordance with this section shall constitute a material violation of this article and/or a material breach of the developer's agreement with the city and the city or city council shall have the discretion to initiate the default notice and cure provisions outlined in section 21-311 of this article. This section shall not apply to category I and category II projects.

(n) *Post construction jobs.* Applicants for any tax stabilization agreement under this article shall be eligible for tax relief provided in the agreement, provided that the applicant commits that, effective one hundred eighty (180) days following the issuance of a certificate of occupancy, the applicant will maintain a wage for all employees at the project subject to tax stabilization of at least twice the United States Department of Health and Human Services Federal Poverty Guideline for a family of three (3), divided into an hourly wage at forty (40) hours per week, fifty-two

(52) weeks per year, provided that up to five dollars ($5.00) per hour of this wage requirement may be offset dollar-for-dollar by any payments the employer makes to fund the employee's health care or retirement, and provided further that any provision of this subsection may be waived by a clear and unmistakable waiver in an unexpired collective-bargaining agreement. This section shall not apply to category I and category II projects.
(Ord. No. 2021-21, § 6, 6-1-21)

Sec. 21-307. Transfer of property.

(a) *Transfer generally.* Stabilized tax payments shall be an obligation of the property owner during any of the tax stabilization terms as defined in section 21-304(a) above and in accordance with the tax stabilization plan outlined therein, without regard to any transfer of the property. Additionally, in accordance with section 21-304(b)(4), the burdens and benefits of this agreement will run with the land, and as for payment of taxes shall run in favor of the city regardless of any transfer of ownership. The property owner must provide prior written notice to the city before any transfer of the property so that the city may make a determination, in its sole discretion, as to whether or not a stabilization agreement formed pursuant to this article will continue.

(b) *Transfer to tax exempt entities.* In the event that the property owner transfers the property to a tax-exempt entity, any stabilization agreement formed pursuant to this article shall be void ab initio and any entity holding an equitable or legal interest in the eligible property on or after the effective date of any such agreement shall be jointly and severally liable for the full taxes due and owning from said effective date forward.

(c) *Post-expiration transfers.* In the event that any property owner transfers a stabilized eligible property to a tax-exempt entity within five (5) years from the end of any tax stabilization term, as defined in section 21-304(a) above, any and all property owners will pay the following: five (5) percent of the sale price in said transfer if sold to a tax-exempt entity in the first year following the end of the term; four (4) percent of the sale price in said transfer if sold to a tax-exempt entity in the second year following the end of the term; three (3) percent of the sale price in said transfer if sold to a tax-exempt entity in the third year following the end of the term; two (2) percent of the sale price in said transfer if sold to a tax-exempt entity in the fourth year following the end of the term; and one (1) percent of the sale price in said transfer if sold to a tax-exempt entity in the fifth year following the end of the term.
(Ord. No. 2021-21, § 7, 6-1-21)

Sec. 21-308. Annual progress report.

(a) *Reporting generally.* The property owner shall provide monthly reports to the city council, or the council's designee, and in such instance that the property subject to the agreement formed hereunder is within the jurisdiction of the I-195 Commission then the commission as well, on its progress in complying with the provisions of any agreement formed pursuant to this article.

(b) *Reporting requirements.* The reporting format shall be determined and provided by the city council in its sole discretion to document construction-based employment information and demographics related to the terms of this article. If the property owner, its developer and/or other person/entity authorized by the property owner, does not timely submit their monthly reports to the city council, or its designee, the city council or its designee shall notify the property owner. The property owner shall have ten (10) days thereafter to provide the information to the city or its designee. The project site owner, the director of planning and development, the director of first source, and a representative of the third-party entity monitoring apprenticeship requirements shall annually report to the city council on progress in complying with the provisions of this ordinance, including but not limited to, sections 21-304 and 21-306.

Specifically, its report shall include a performance report on construction or rehabilitation with evidence of final construction costs, status of stabilized tax payments, and evidence of compliance with section 21-306 above. Upon receipt and review, the city council may require and request additional information.
(Ord. No. 2021-21, § 8, 6-1-21)

Sec. 21-309. Severability.

If any one (1) or more subsections of this article shall for any reason be adjudged unconstitutional or otherwise invalid, the judgment shall not affect, impair, or invalidate the remaining sections or subsections.
(Ord. No. 2021-21, § 9, 6-1-21)

Sec. 21-310. Applicable law.

This stabilization program established herein and any agreements formed pursuant to this article shall be construed under the laws of the State of Rhode Island, the City of Providence Home Rule Charter, and the City of Providence Code of Ordinances, as amended.
(Ord. No. 2021-21, § 10, 6-1-21)

Sec. 21-311. Default notice and cure.

Upon presentation of evidence suggesting a possible event of default (as defined in section 21-302 above), the city solicitor shall provide written notice to the property owner of such potential event of default ("first notice") and notify the property owner that it shall have sixty (60) days, from the date the notice herein is sent by the city solicitor, to cure any event of default under an agreement formed pursuant to this ordinance ("initial cure period"). If said event of default is not cured within the initial cure period, then the city solicitor shall notify the property owner in writing ("second notice") that the agreement is terminated and that a bill will be sent out by the tax assessor sixty (60) days from the date of the second notice. Said bill will be

for the abated taxes to date and those amounts including, but not limited to, any amounts of taxes due and owing but not paid, interest, penalties, assessments, and fees associated therewith ("delinquency bill").

The property owner may petition the city council in writing for additional time beyond the initial cure period in order to cure any alleged event of default ("extended cure period"). Once filed with the city clerk, a petition requesting an extended cure period will toll the time period between the second notice and the issuance of the delinquency bill until the petition is either approved, denied, or withdrawn. An indefinite continuance shall constitute a denial. Notwithstanding, anything contain herein, in the event that the city solicitor does not issue the first notice and upon presentation of evidence suggesting a possible event of default, pursuant to Article IV Section 401(d) of the City of Providence Home Rule Charter of 1980, as amended the city council hereby authorizes the city council president or his/her designee to hire outside counsel to proceed on behalf of the city under this section 21-311.
(Ord. No. 2021-21, § 11, 6-1-21)

Sec. 21-312. Tax amnesty.

(a) As authorized in R.I. Gen. Laws § 44-5-88, the tax collector is hereby authorized to waive interest and penalties on overdue tangible personal property taxes and motor vehicle taxes during two (2) separate sixty (60) day periods in fiscal year 2024. Any request for a waiver of interest and penalties must be made in writing, signed and dated by the taxpayer and submitted to the tax collector within the waiver periods outlined in subsection (e) below. The tax collector shall provide the form requesting a waiver for interest and penalties on overdue tangible taxes and motor vehicle taxes.

(b) The decision of the tax collector shall be rendered in writing and contain a notice to the city council. The tax collector may only approve an application for a waiver of interest and penalties in cases where the taxpayer/applicant has paid in full the principle amount of taxes owed prior to or at the time of the application, providing that they meet the requirements as determined by the tax collector.

(c) If the taxpayer receives an adverse decision from the tax collector, the taxpayer/applicant shall immediately pay the interest and penalties owed which are the subject of the claim and may within ten (10) business days from the date of the decision, file a claim for reimbursement with the city council. No such claim shall be granted unless the taxpayer has paid all interest and penalties on overdue tangible taxes and motor vehicle taxes.

(d) Any request for reimbursement for interest and penalties made to the city council pursuant to subsection (c) and that is in compliance with the criteria outlined in subsections (a), (b) and (c) above may be granted by the city council.

(e) The first fiscal year 2024 sixty-day period shall run from May 1, 2024, through and including June 30, 2024.

(f) No waivers of interest and penalties for any taxes owed in fiscal year 2024 shall be granted.

(Ord. No. 2024-10, § 1, 4-5-24)

Chapter 22

SCHOOLS*

Sec. 22-1. Control of appropriations; general power of school committee.
Sec. 22-2. Employment, compensation of superintendent and teachers.
Sec. 22-3. Records as to teachers; accounts of books, stationery, supplies, bills.
Sec. 22-4. Payment of salaries to teachers.
Sec. 22-5. Persons disqualified to act as teachers.
Sec. 22-6. Purchase of books, stationery and supplies.
Sec. 22-7. Prohibited financial interest of school committee personnel.
Sec. 22-8. Free instruction to be furnished pupils.
Sec. 22-9. Payments by nonresident pupils required.
Sec. 22-10. Vaccination of pupils required.
Sec. 22-11. Medals for composition, original address, essay and reading.
Sec. 22-12. Senator Anthony Fund—Character of prizes awarded from fund.
Sec. 22-13. Same—Power and duty of school committee.
Sec. 22-14. Agreement with School of Design.
Sec. 22-15. Use of public school property for election purposes.

***Cross references—**Authority of board of park commissioners to use school property, § 18-30; authority of director of recreation to use school property, § 18-57; use of city buildings by school committee as annexes, § 23-44; fire drills in schools, § 9-11.

State law references—Education generally, Title 16, Gen. Laws 1956; powers of school committee in Providence, § 16-2-25, Gen. Laws 1956; powers of city generally as to schools, §§ 16-2-2—16-2-5, 16-9-1—16-9-3, Gen. Laws 1956; "Strayer Act", §§ 16-2-5, 17-6-4, 17-17-1, Gen. Laws 1956; special act permitting use of school premises for election purposes, P. L. 1918, ch. 1681, as amended by P. L. 1931, ch. 1814; special act authorizing use of school property for lectures, libraries, meetings, etc., P. L. 1916, ch. 1414; special act as to teachers' retirement fund, P. L. 1897, ch. 485.

Sec. 22-1. Control of appropriations; general power of school committee.

All money appropriated for the support of public schools shall be subject to the exclusive control of the school committee, who shall have full power to cause the same or any part thereof to be expended in any manner which they may deem most advisable for the benefit and welfare of the schools, except so much thereof as will be, from time to time, required for the payment of the salaries of the officers and teachers. Said committee shall have and exercise a general discretionary power in all matters and things relating to the public schools, which are not specially provided for by this chapter, or by the laws of the state, and may make regulations not repugnant to said laws or to the ordinances of the city.
(Ord. 1914, ch. 56, § 7; Rev. Ords. 1946, ch. 31, § 6)

Sec. 22-2. Employment, compensation of superintendent and teachers.

The school committee shall employ a superintendent of the public schools, and such teachers as they may deem expedient, who shall perform such duties as said committee may from time to time prescribe. The superintendent of public schools and the teachers therein shall receive such compensation for their services, respectively, as the school committee shall from time to time determine; provided such compensation, together with all other expenses lawfully incurred, shall not, in the aggregate, exceed the amount appropriated by the city council for the support of the public schools; and provided said appointments shall not be contrary to the provisions of this chapter.
(Ord. 1914, ch. 56, § 3; Rev. Ords. 1946, ch. 31, § 1)

State law reference—Power of committee to employ superintendent and teachers, § 16-2-25, Gen. Laws 1956.

Sec. 22-3. Records as to teachers; accounts of books, stationery, supplies, bills.

The secretary of the school committee shall keep in his office a record of the date of employment and discharge of all teachers, and also a record of their respective positions, promotions and salaries, the date of employment and discharge, and the rate of compensation of all substitutes, and shall keep an account of all books, apparatus and stationery, and all fuel and supplies of every kind purchased for the use of the schools, and the disposition thereof. He shall examine and certify to the city controller all bills against the city for the public schools, including the payroll of the teachers of said schools. He shall give notice to the city controller of the appointment of a teacher, or the employment of a substitute, with the full name of the person appointed or employed, and the date on which such person enters upon duty. He shall also give notice of the resignation of a teacher. He shall immediately notify the city clerk of all changes in the membership of the school committee.
(Ord. 1914, ch. 56, § 4; Rev. Ords. 1946, ch. 31, § 3)

Sec. 22-4. Payment of salaries to teachers.

The annual salaries of the teachers in the public schools, as hereafter fixed, from year to year, by the school committee, shall be paid to such teachers in ten (10) installments; one (1) installment, equal to one-tenth (1/10) of the annual salary, to be paid to each of said teachers on or before the fifteenth day of each month, from October to July inclusive. Said salaries shall be paid out of the appropriation for the support of the public schools for the school year in which said salaries shall be payable, and no part of the amount which will be necessary to pay said salaries shall be used for any other purpose.
(Ord. 1914, ch. 56, § 5; Rev. Ords. 1946, ch. 31, § 4)

Sec. 22-5. Persons disqualified to act as teachers.

No teacher shall be appointed to any school, who is a member of the school committee or to whom any member of the school committee, or any school officer entitled to act upon the question of the appointment of such teacher, is related by either blood or marriage, as husband, wife, father, mother, son, brother, uncle, aunt, nephew, niece or first cousin.
(Ord. 1914, ch. 56, § 6; Rev. Ords. 1946, ch. 31, § 5)

Sec. 22-6. Purchase of books, stationery and supplies.

All books, stationery and supplies required in the schools shall be purchased by such person as the school committee shall designate, who shall keep such records as may be required by the school committee.
(Ord. 1914, ch. 56, § 4; Rev. Ords. 1946, ch. 31, § 2)

State law reference—Textbooks and supplies, §§ 16-9-9, 16-23-1, 16-23-2, Gen. Laws 1956.

Sec. 22-7. Prohibited financial interest of school committee personnel.

No member of the school committee, school officer, or teacher, shall be directly or indirectly interested in the furnishing of any supplies or materials, nor in the doing of any work or labor, nor in the sale or leasing of any real estate, nor in any proposal, agreement or contract for any of these purposes, in any case in which the price or consideration is to be paid in whole or in part, or directly or indirectly, out of any school moneys, nor shall receive from any source whatever any commission or compensation in connection with any of the matters aforesaid; provided, that school officers and teachers may respectively receive their salaries.
(Ord. 1914, ch. 56, § 8; Rev. Ords. 1946, ch. 31, § 7)

Sec. 22-8. Free instruction to be furnished pupils.

Free instruction shall be given in the public schools to the children of all the inhabitants of the city who shall see fit to avail themselves of the benefits thereof, the pupils to be subject to such rules and regulations as the school committee may from time to time prescribe.
(Ord. 1914, ch. 56, § 2; Rev. Ords. 1946, ch. 31, § 14)

Sec. 22-9. Payments by nonresident pupils required.

No pupils from without the city shall be permitted to attend the public schools in the city, except upon the payment for each of such pupils of such charges as the school committee may determine.
(Ord. 1914, ch. 56, § 9; Rev. Ords. 1946, ch. 31, § 8)

Sec. 22-10. Vaccination of pupils required.

No person shall be permitted to attend any public school in the city, as a pupil, unless such person shall furnish to the teacher of such school, or to the superintendent of public schools in said city, the certificate of some practicing physician that such person has been protected from smallpox by vaccination.
(Ord. 1914, ch. 56, § 10; Rev. Ords. 1946, ch. 31, § 9)

Sec. 22-11. Medals for composition, original address, essay and reading.

There may be offered annually for the competition of the pupils of the graduating classes of the high schools in each four (4) years' course, two (2) silver medals, one (1) to the girls and one (1) to the boys, for excellence in the composition and delivery of original addresses or essays. There may also be offered annually not more than two (2) silver medals for the competition of the pupils in such classes of the public schools as the school committee may determine, for pupils surpassing all others in their class in excellence in reading.
(Ord. 1914, ch. 56, § 14; Rev. Ords. 1946, ch. 31, § 13)

Sec. 22-12. Senator Anthony Fund—Character of prizes awarded from fund.

The accrued income of the Senator Anthony prize fund for excellence in the public schools, or so much thereof as in any year may be necessary, shall be distributed annually for prizes in the form of silver medals, to be awarded for excellence in composition, declamation and reading. Prizes of books may likewise be awarded if the income of said fund will permit, and the judgment of the committee in charge of the distribution of the income of said fund shall approve.
(Ord. 1914, ch. 56, § 12; Rev. Ords. 1946, ch. 31, § 11)

Sec. 22-13. Same—Power and duty of school committee.

The distribution of prizes provided for in section 22-12 shall be in charge of the school committee, who may from time to time, but not oftener than once in five (5) years, procure designs and dies for the medals provided for in section 22-12, and shall provide the medals to be distributed annually. The school committee shall have power to make all needed rules in reference to the awarding of these medals, and may appoint judges to assist in making the awards. It shall likewise be in the power of the committee to withhold any award from a class in which no pupil exhibits a satisfactory degree of excellence, and it may omit from competition any graduating class on account of its smallness, or for other sufficient reasons.
(Ord. 1914, ch. 56, § 13; Rev. Ords. 1946, ch. 31, § 12)

Sec. 22-14. Agreement with School of Design.

The agreement between the Rhode Island School of Design and the city, for the teaching of drawing to such pupils in the public schools as may be recommended by the superintendent of public schools, at an annual expense not exceeding one thousand dollars ($1,000.00), to be charged to the appropriation for public schools, shall continue in effect on the part of the city until further order of the city council.
(Ord. 1914, ch. 56, § 11; Rev. Ords. 1946, ch. 31, § 10)

Sec. 22-15. Use of public school property for election purposes.

Upon application of the board of canvassers, the school committee shall allow said board to make use of any public school, building, or property or part thereof, as the board may deem necessary for the conduct of any general, special, primary or referendum election. Upon such application, the school committee shall designate reasonable space within the above-mentioned locales as the board of canvassers may deem necessary.
(Ord. 1982, ch. 82-56, § 1, 9-10-82)

Chapter 23

STREETS, SIDEWALKS AND PUBLIC PLACES*

Article I. In General

Sec. 23-1. Names of streets.
Sec. 23-2. Numbering, renumbering of streets, buildings.
Sec. 23-3. Reserved.
Sec. 23-4. Erection of fences and buildings on building lines; encroachments.
Sec. 23-5. Barbed wire fences.
Sec. 23-6. Opening, excavating, etc., on, in, across or under public roadway or sidewalk.

***Cross references—**Department of public works, § 2-111 et seq.; city engineer, § 2-131 et seq.; public service engineer, § 2-233 et seq.; general duties and records of superintendent of public buildings, § 2-194; flags and colors of city, § 2-308 et seq.; distribution of handbills, etc., § 3-1; display of bills, posters, signs, etc., on highway, § 3-5; animals running at large, § 4-2; dogs prohibited at large in event of danger of rabies, § 4-2; erection of fences, regulated, restricted, § 5-46 et seq.; cemeteries, § 6-1 et seq.; parades by fire department, § 9-5; burning in streets or highways, § 9-9; blasting permits, § 9-74 et seq.; operation of harbor, harbor lines, etc., § 11-1 et seq.; placing garbage, refuse in streets and public places, § 12-57 et seq.; transport of ashes, coal, sand and rubbish, § 12-78; throwing rat or vermin harborage on vacant lots, streets, etc., § 12-117; impoundment of vehicles, § 15-18 et seq.; storage of dismantled, junked or abandoned vehicles, § 15-36 et seq.; bus lanes, § 15-54 et seq.; bicycles, § 15-70 et seq.; operation of snowmobiles, § 15-101 et seq.; assemblages, demonstrations at War Memorial Monument, § 16-2; operation of parks generally, § 18-1 et seq.; permits of certain railroad companies continued § 19-1; operation of railroads, § 19-11 et seq.; filing fee for petition to abandon public highway, § 21-13.

State law references—Highways, chapters 24-1—24-3, 24-6, Gen. Laws 1956; state law giving authority to council to lay out, alter or repair sidewalks, ch. 24-7, Gen. Laws 1956; offenses on highways, §§ 11-22-9—11-22-11, Gen. Laws 1956; special act relative to storage and sale of merchandise in public streets, P. L. 1909, ch. 468, as amended by P. L. 1940, ch. 840; special act authorizing city to assess abutting owners for cost of bringing streets to grade, P. L. 1930, ch. 1624; special act authorizing certain construction under sidewalks, P. L. 1909, ch. 472, as amended by P. L. 1915, ch. 1276 and P. L. 1916, ch. 1417; special act concerning establishment of platted streets, P. L. 1917, ch. 1549; special act providing for laying out streets and highways in city, P. L. 1886, ch. 587; special act relating to laying out, enlarging, straightening or altering streets, Act of Feb. 22, 1854, as amended by P. L. 1871, ch. 921, P. L. 1872, ch. 991, P. L. 1873, ch. 317, P. L. 1882, ch. 288, P. L. 1896, ch. 369; special acts as to establishment of highways, Act of Jan. 12, 1843, as amended by P. L. 1862, ch. 406, P. L. 1915, ch. 1271, P. L. 1916, ch. 1415, and P. L. 1938, ch. 2663.

Sec. 23-7. Warning signs required at excavation, obstruction.
Sec. 23-8. Warning lights required at excavation, obstruction.
Sec. 23-9. Filling up and repairing excavation.
Sec. 23-10. Authority to pave gutters and improve streets.
Sec. 23-11. Report of street work to be accompanied by estimate of costs and plats.
Sec. 23-12. Throwing or sweeping dirt, sand on sidewalks.
Sec. 23-13. Removal of snow and ice—Required.
Sec. 23-14. Same—Deposit restricted.
Sec. 23-15. Depositing snow on highway.
Sec. 23-16. Removal of ice from sidewalks, required.
Sec. 23-17. Removal of snow and ice on sidewalks adjoining city property.
Sec. 23-18. Throwing water on sidewalks.
Sec. 23-19. Permitting water to run from land upon street.
Sec. 23-20. Deposits of unhealthy effluvia and dirty water.
Sec. 23-21. Removal of injurious oil, vitriol or other liquid.
Sec. 23-22. Throwing slippery fruit skins, similar substances.
Sec. 23-23. Stores to post copy of sections 23-22 and 23-23.
Sec. 23-24. Obstruction of public right-of-way.
Sec. 23-25. Hoisting or lowering merchandise over street.
Sec. 23-26. Cutting firewood or breaking up coal on sidewalk.
Sec. 23-27. Lighting, building or making fires.
Sec. 23-28. Ground cover on public streets and sidewalks; maintenance; removal.
Sec. 23-29. Duty to keep off grass.
Sec. 23-30. Playing ball, throwing missiles, sliding and skating.
Sec. 23-31. Use of skate boards on street, highway, sidewalk, pedestrian mall.
Sec. 23-32. Consumption of alcoholic beverages on any public street, sidewalk, way or grounds owned by city or on licensed parking lot or land.
Sec. 23-33. Utility services.
Sec. 23-34. Enforcement of interior placement obligations.
Sec. 23-35. Utility permits.
Sec. 23-36. Special event permits.
Sec. 23-37. The use of tobacco products in the public way.
Secs. 23-38, 23-39. Reserved.

Article II. Public Works

Sec. 23-40. Employment on public works.
Sec. 23-41. Section 23-40 part of contracts for public works.
Sec. 23-42. Enlargements, alterations of city buildings; plans required.
Sec. 23-43. New city buildings; plans required.
Sec. 23-44. Use of city buildings by school committee as annexes.
Sec. 23-45. Care and management of bathhouses and comfort stations.
Sec. 23-46. Authority of superintendent of buildings as to bathhouses, comfort stations.

Sec. 23-47. Rules for bathhouses and comfort stations.
Sec. 23-48. Expulsion of disorderly persons from bathhouses and comfort stations.
Secs. 23-49—23-58. Reserved.

Article III. Construction and Repair of Sidewalks

Sec. 23-59. Reserved.
Sec. 23-60. License required from director of public works.
Sec. 23-61. Issuance of license.
Sec. 23-62. Reserved.
Sec. 23-63. Place of business prerequisite to licensing.
Sec. 23-64. Fee for license.
Sec. 23-65. Duration of license.
Sec. 23-66. Notice of sidewalk construction, alteration required.
Sec. 23-67. Effect of noncompliance with time limit for construction, repair.
Sec. 23-68. Width of sidewalk.
Sec. 23-69. Curb cuts; permit required.
Sec. 23-70. By whom application is made.
Secs. 23-71—23-78. Reserved.

Article IV. Westminster Pedestrian Mall

Secs. 23-79—23-82. Reserved.
Sec. 23-83. Projecting signs—Erection prohibited.
Sec. 23-84. Same—Continuance of existing signs.
Sec. 23-85. Same—Discontinuance of existing signs.
Sec. 23-86. Same—Definitions applicable.
Sec. 23-87. Interpretation of provisions, reservation of rights to city.
Secs. 23-88—23-92. Reserved.

Article IV½. Market Square Pedestrian Mall

Sec. 23-93. Established; limits fixed.
Sec. 23-94. Operation of vehicular traffic.
Sec. 23-95. Towing of unlawfully parked or standing vehicles.
Sec. 23-96. Interpretation of provisions; reservations of rights to city.
Sec. 23-97. Maintenance responsibilities.

Art. IV¾. Fulton Street Pedestrian Mall

Sec. 23-97.1. Established; limits fixed.
Sec. 23-97.2. Operation of vehicular traffic.
Sec. 23-97.3. Penalties.
Sec. 23-97.4. Towing of unlawfully parked or standing vehicles.

Sec. 23-97.5. Reservation of rights to city.

Article V. Poles, Wires and Conduits

Sec. 23-98. Locations, installations to comply with article, state acts, contracts.
Sec. 23-99. Permission of council required for installations; exception.
Secs. 23-100—23-106. Reserved.
Sec. 23-107. Public work of city to take precedence over installations.
Sec. 23-108. Precedence of wires, apparatus of city signal service.
Sec. 23-109. Indemnity of city against claims arising out of electrical installations.
Sec. 23-110. Information as to installations to be furnished public service engineer.
Sec. 23-111. Approval of poles for fire alarm and police signal wire.
Sec. 23-112. Approval of location of wires aboveground required.
Sec. 23-113. Changes in location of poles, structures supporting wires.
Sec. 23-114. Removal of poles in case of emergency.
Sec. 23-115. Renewing, resetting or relocating poles.
Sec. 23-116. Marking and painting poles.
Sec. 23-117. Installation of high-tension wires.
Sec. 23-118. Insulation of high-tension wires.
Sec. 23-119. Insulation of machinery; tests of circuits.
Sec. 23-120. Clearance of arc lamps over sidewalks.
Sec. 23-121. Clearance of wires over buildings.
Sec. 23-122. Safety device required on low-tension wires entering buildings.
Sec. 23-123. Lines, poles, fixtures, appurtenances to be kept in repair.
Sec. 23-124. Duty to keep installations in safe repair and condition.
Sec. 23-125. Inspection of apparatus, equipment, use thereof; notice, report of irregularities.
Sec. 23-126. Investigation, report of complaints to council.
Sec. 23-127. Refusal, neglect to comply with orders, directions of public service engineer.
Sec. 23-128. Installation of underground conduits.
Sec. 23-129. Service connections for underground conduits, distribution ducts.
Sec. 23-130. Restoration of streets and sidewalks, other ways.
Sec. 23-131. Protection of city property from electrolysis.
Sec. 23-132. Examinations, tests and reports as to electrolysis.
Sec. 23-133. Tests and examinations of character of product of public service companies.
Sec. 23-134. Tests and examinations of safety of installations.
Sec. 23-135. Authority to order electric current to be shut off.
Sec. 23-136. Authority of public service engineer over city lights.
Sec. 23-137. Causing city lights to be set up.
Sec. 23-138. Schedule for lighting, extinguishing city lights.
Sec. 23-139. Duty as to city lights found not burning.

Sec. 23-140. Certifying bills for city.
Sec. 23-141. Identification of persons erecting or repairing wires, appurtenances.
Sec. 23-142. Public service engineer to keep maps showing locations of installations.
Sec. 23-143. Public service engineer to keep records of examinations, tests, orders, work; reports.
Sec. 23-144. Eruv.
Secs. 23-145—23-153. Reserved.

Article VI. Bridges

Sec. 23-154. Reserved.
Sec. 23-155. Speed on bridges.
Secs. 23-156—166. Reserved.

Article VII. Street and Sidewalk Sweeping

Sec. 23-167. Street sweeping.
Sec. 23-168. Sidewalk sweeping.
Sec. 23-169. Notice of street and sidewalk sweeping.
Sec. 23-170. Parking bans.
Secs. 23-171—23-190. Reserved.

Article VIII. Green and Complete Streets

Sec. 23-191. Vision and purpose.
Sec. 23-192. Definition.
Sec. 23-193. Scope of applicability.
Sec. 23-194. Green and complete streets advisory council.
Sec. 23-195. Implementation.
Sec. 23-196. Exceptions.
Sec. 23-197. Performance measures and reporting.

ARTICLE I. IN GENERAL

Sec. 23-1. Names of streets.

The several streets in the city shall continue to be called and known by the names heretofore given to them unless and until they are altered by the city council.
(Ord. 1914, ch. 30, § 1; Rev. Ords. 1946, ch. 33, § 10)

Sec. 23-2. Numbering, renumbering of streets, buildings.

The city council may order the buildings on any street to be numbered or may order any street to be renumbered, and the director of public works shall then require the number designated for each building to be affixed thereto or inscribed thereon. Any owner or occupant of a building who, for more than fifteen (15) days after notice from the director of public works, neglects or refuses to affix to or inscribe on such building the street number lawfully designated therefor, or who affixes or causes to be affixed to such building, or inscribes or causes to be inscribed thereon, or retain thereon, for more than fifteen (15) days after notice from the director of public works, a street number other than the one so designated, shall be deemed guilty of a violation of this section punishable as provided in section 1-10.
(Ord. 1914, ch. 30, § 2; Rev. Ords. 1946, ch. 33, § 11)

Sec. 23-3. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-3, which pertained to obstructing streets leading to, adjoining harbor or river and derived from Ord. 1914, ch. 30, § 30; and Rev. Ords. 1946, ch. 33, § 40.

Sec. 23-4. Erection of fences and buildings on building lines; encroachments.

Whenever the director of public works or any person about to erect any fence or building on any line of any street or highway, shall request the city council to examine into, ascertain and show to such director of public works or person so requesting, the line of such street or highway, the city council shall ascertain and point out such line. In case any person shall erect any fence or building so as to encroach on any street or highway, the city council shall proceed in the premises as the interest of the city in its opinion may require.
(Ord. 1914, ch. 30, § 5; Rev. Ords. 1946, ch. 33, § 5)

Cross reference—Fences, § 5-46 et seq.

Sec. 23-5. Barbed wire fences.

No fence constructed in whole or in part of barbed wire, so-called, shall hereafter be built, erected, used or maintained upon any public street or highway of this city, or

along the side thereof, or of any sidewalk forming a part thereof, nor shall any such fence be built, erected, used or maintained as a barrier between such street, highway or sidewalk, and any land or premises belonging to private parties.
(Ord. 1914, ch. 30, § 34; Rev. Ords. 1946, ch. 33, § 47)

Cross reference—Fences, § 5-46 et seq.

Sec. 23-6. Opening, excavating, etc., on, in, across or under public roadway or sidewalk.

(a) Preamble. The public safety and convenience require both the installation and maintenance of utility services and the maintenance of safe and aesthetically pleasing roadways and sidewalks. These requirements, unfortunately are sometimes in tension. Safe streets and sidewalks are unquestionably necessary and aesthetically pleasing highways are highly desirable. The public, though, has the right to expect the availability and delivery of both existing and improved or new utility services. Such delivery and availability are to be provided, but must be provided in a safe and sound manner.

The city seeks to allow the delivery of the expected services yet ensure public safety and the quality of life to which the city's citizenry is entitled. That goal requires the balancing of two (2) important dynamics. The city seeks to promote the prompt and safe delivery of old and new services without sacrificing the peoples' safety and convenience.

(b) No person, firm or corporation shall in any manner make any opening or excavation on, in, upon or under nor lay any pipe, wire, line or conduit, cable or the like, on, in, across or under any public roadway or sidewalk in the city nor upon any public lands (the jurisdiction over which is not legally reserved to another municipal department) without the prior written consent of the director of public works or his or her designee.

(c) No person, firm or corporation shall in any manner place or cause to be placed any sign, equipment, tables, chairs nor any structure, post or footing on, in, upon or under any roadway or sidewalk in the city, nor on, in, upon or under any public land (the jurisdiction over which is not legally reserved to another municipal department) without the prior written approval of the director of public works or his or her designee.

(d) The director shall promulgate such rules and regulations as may be necessary to effect the purpose of this article. The director shall also provide suitable documents to give effect to this article.

(e) Sidewalk excavation permits shall be issued only to the record owner of that real estate abutting the sidewalk to be repaired or replaced. Permits required for such intrusion onto the sidewalk shall also be issued only in the name of the record owner of the real estate abutting the sidewalk at which the requested intrusion shall take

place; provided, however that the occupant of the realty abutting said sidewalk may be issued such permit in the event that the record owner of the realty grants said abutter authority to apply for such permit.

Permits for the installation of any pipe, wire, line, conduit, cable or the like under any roadway or sidewalk shall be issued only to the owner of said wire, line, conduit, cable or the like. Said permits are distinct from roadway excavation permits. Permits for roadway excavation for the installation of any pipe, wire line, conduit, cable or the like shall likewise be issued in the owner's name only.

(f) No permit shall be issued without payment of the following:

Administrative and Engineering Fee

50 square feet or less excavations	$40.00
Over 50 foot excavations	40.00 + X($0.25/sq. ft.) Where "X" is the total square feet above 50 feet
Sidewalks only	$40.00

Pavement Degradation Index Fee

Streets 1 year old or less	$1.00/sq. ft.
Streets 2 years old or less	0.75/sq. ft.
Streets 3 years old or less	0.50/sq. ft.
Streets over 3 years old	0.25/sq. ft.

Note that each administration and engineering fee and the pavement degradation fee shall be assessed for each pavement excavation permit while only the administration and engineering fee will be assessed for sidewalk permits.

(g) Every applicant for a sidewalk or roadway opening permit or for the placement of any item or object on, in or under any sidewalk or roadway shall provide appropriate maps and/or sketches in the manner the director may designate, and shall in writing affirm his/her compliance with applicable federal, state and local law, ordinance, rule and regulation.

(h) Any appreciable deviation from the plans approved by the director or his designee shall operate to cancel said permit. In the event that such deviation occurs, the director may issue an immediate cease and desist order. The director shall, upon issuance of such order, schedule a hearing, if one is sought by the permittee, within forty-eight (48) hours. Such cease-and-desist order shall be deemed effective when the same is delivered to the "site foreman" or, there being no site foreman, to any individual engaged in the work at the site. The director shall, by telephone or fax,

notify the contact person listed as such on permittee's application. Any person who fails to comply immediately with such an order shall be in violation of this Code and if found guilty, shall be punished under section 1-10.

(i) Every police officer detailed to an excavation under this chapter shall, upon his/her arrival at such location, ascertain or confirm the existence of a roadway or sidewalk opening permit. In the event no such permit exists, the officer shall notify the department of public works, division of engineering, and shall assist to effect any cease-and-desist order which may issue.

(j) Any excavation undertaken in or upon any public highway shall be designed and signed consistent with National Highway Traffic Safety rules and regulations. Each applicant shall, in his/her/its application, designate such precautions and any failure to meet said standards shall operate to terminate any permit. In such event, a hearing substantially similar to that required under subsection (h) shall be provided upon request.

(k) No person shall be issued a road or sidewalk opening permit until such time as applicant or his/her/its contractor shall post a performance bond in an amount not less than one hundred thousand dollars ($100,000.00) or in such greater or lesser amount as the director may require based upon all relevant circumstances.

(l) So-called "keyhole" cutting, while permitted, shall require reconstruction as if the same were a trench cut.

(m) No person shall be issued a road or sidewalk opening permit unless he or she or his or her contractor has secured a general liability policy in an amount not less than five hundred thousand dollars ($500,000.00). Such policy shall contain an endorsement extending such coverage to the city, its officers, employees and servants.

(n) The director or his/her designee shall review all applications for the installation or laying of any pipe, wire, line, conduit, cable or the like in or under any sidewalk or roadway. The director shall, in the exercise of his judgment, allow or disallow such application. The director's determination shall be based upon a consideration of the totality of the circumstances surrounding such proposal. He or she shall assign significant weight to the fact that such wire, pipe, conduit, etc. is already in place. The director shall confirm that all rules, regulations, ordinances and laws are complied with. He or she shall also especially weigh and seek to ensure that:

(1) The public safety is met;

(2) Inconvenience to the public is minimized in all reasonable manner;

(3) Both the structural integrity or roadways and sidewalks is maximized; and

(4) Installations are made in an orderly manner so as to allow the safe and ready maintenance of such installations.

(o) Whenever any sidewalk is repaired or replaced, it shall be repaired or replaced with in-kind material. Provided, however, that in the event that no paved sidewalk exists, the director shall specify the "like" material to be used (depending upon the material excavated) and provided further that any sidewalk composed of asphalt, macadam or the like may be replaced by the applicant with cement or concrete.

(p) When the public safety convenience and convenience so requires, the department of public works may institute moratoriums of limited duration on road excavation, cold and hot patching, installation of cables, conduit wire, etc. and the issuance of permits of any kind.
(Ord. 1997, ch. 97-64, §§ 1—17, 11-3-97)

Editor's note—Ord. 1997, ch. 97-64, §§ 1—17, approved November 3, 1997, amended the Code by specifically repealing former § 23-6, and adding new provisions which have been numbered as a new § 23-6, at the editor's discretion. Former § 23-6 pertained to fee, notice and examination prior to making excavation in street or highway, and derived from Ord. 1914, ch. 30, § 6; Revised Ords. of 1946, ch. 33, § 6; and Ord. 1974, ch. 74-35, § 1, approved November 11, 1974.

Sec. 23-7. Warning signs required at excavation, obstruction.

Whenever any excavation is made or any obstruction exists in any street or highway, the person having charge of such excavation, or causing such obstruction, shall cause signs to be placed across such street or highway, on each side of the excavation or obstruction, with the words "no passing through" painted thereon in dark letters, not less than two and one-half (2½) inches in length, upon a light ground.
(Ord. 1914, ch. 30, § 6; Rev. Ords. 1946, ch. 33, § 8)

Sec. 23-8. Warning lights required at excavation, obstruction.

Whenever any excavation or obstruction in a street or highway must of necessity remain after dark in such street or highway, the person making such excavation or obstruction or employing anyone so to do, shall cause such excavation or obstruction and the space around the same to be sufficiently lighted from sunset to sunrise in order to give notice thereof to all persons passing in or through such street or highway.
(Ord. 1914, ch. 30, § 6; Rev. Ords. 1946, ch. 33, § 9; Ord. 1951, ch. 550, § 1)

Sec. 23-9. Filling up and repairing excavation.

If any person, for six (6) hours of daylight after the completion of the work for which an opening was made as provided in section 23-6, shall omit to fill up or repair such street or highway to the satisfaction of the director of public works, said director shall fill up or repair the same in a proper manner, and deliver to the city

collector a statement of the cost, which reasonable charges for superintendence of the same, and the city collector shall cause the amount to be collected of the person causing such street or highway to be opened.
(Ord. 1914, ch. 30, § 6; Rev. Ords. 1946, ch. 33, § 7)

Sec. 23-10. Authority to pave gutters and improve streets.

Whenever the owners of the land on both sides of any street, or of any section of a street, belonging to the city, which section shall not be less than two hundred (200) feet long, the grade and width of the sidewalk of which has been established and recorded, shall furnish the curbing and build the sidewalks thereof, the director of public works may pave the gutters and build such street, or section of a street, at the expense of the city, provided such expense shall not exceed the sum of three hundred dollars ($300.00).
(Ord. 1914, ch. 30, § 4; Rev. Ords. 1946, ch. 2, § 100)

Sec. 23-11. Report of street work to be accompanied by estimate of costs and plats.

The report of the director of public works on all applications for the laying out of new streets, or alterations of streets already existing, or for paving, grading, or setting curbing and paving gutters, referred to him, shall be accompanied by full and accurate estimates of the probable cost of the work applied for, and, when practicable, with plats of the same.
(Ord. 1914, ch. 49, § 13; Rev. Ords. 1946, ch. 2, § 93)

Sec. 23-12. Throwing or sweeping dirt, sand on sidewalks.

No person shall place, throw or deposit, or cause to be placed, thrown or deposited, any dirt or sweepings upon any sidewalk or in the gutters in the city, and no person shall sweep, or cause to be swept, any sidewalk in the city between the hours of 10:00 a.m. and 6:00 p.m. Nothing in this section contained shall be construed as forbidding the placing of sand or other proper substances on sidewalks encumbered by ice, or the removing of snow from sidewalks at any time.
(Ord. 1944, ch. 1281, § 1; Rev. Ords. 1946, ch. 33, § 33)

Cross reference—Garbage, trash and refuse generally, § 12-46 et seq.

Sec. 23-13. Removal of snow and ice—Required.

(a) All owners or persons having care of any property bordering any street, highway or public place within the city, shall, within the first eight (8) hours of daylight after the end of any snowfall, or the fall or deposit of snow or ice on the sidewalk of said property, from any cause whatsoever:

(1) Remove or cause to be removed all snow or ice from a path not less than three (3) feet in width the length of the sidewalk of the entire border in or on said

street, highway, or public place, including from any pedestrian access ramps cut into street curbs bordering said property and, for corner lots, from the portion(s) of the sidewalk extending past the property to and including the street curb, and provide for the treatment of any snow or ice remaining on any shoveled sidewalk, with sand, salt or other suitable material;

(2) Remove or cause to be removed all snow or ice from around any fire hydrant on the sidewalk bordering said property; and

(3) Remove or cause to be removed all snow or ice from the opening of any catch basin bordering the sidewalk of said property.

(b) Any person found guilty of violating this section shall be fined not less than twenty-five dollars ($25.00), nor more than five hundred dollars ($500.00), for each calendar day upon which such snow or ice is not removed or treated as herein provided. The police department and/or an inspector or supervisor of the public works department shall be authorized to enforce the provisions of this article. Failure to pay the fine within thirty (30) days will result in the creation of a special lien against the property, which lien shall be removed only upon payment of the fine in addition to an administrative penalty of one hundred dollars ($100.00). The imposition of such fine and/or administrative penalty may be appealed to municipal court within ten (10) days of the issuance of a written citation for the violation.

Upon the issuance of a violation by the police or public works department, the department of public works may, in its discretion, remove or cause such snow or ice to be removed or treated. The owner shall reimburse the city for the expenses incurred for such removal or treatment, in addition to any fine or administrative penalty imposed hereunder. The city may also impose a municipal charges lien on the property.

(c) The city shall devise a policy to inform property owners of their responsibilities under section 23-13, and to inform the public of the importance of clearing sidewalks for pedestrian access, and safe travel for pedestrians, especially children walking to school, the elderly, and persons with disabilities. The city also shall make every effort to create and/or support programs to provide assistance to elderly property owners, and property owners with disabilities in meeting the requirements of section 23-13.

(Ord. 1914, ch. 30, § 24; Rev. Ords. 1946, ch. 33, § 38; Ord. 1961, ch. 1422, § 1; Ord. 1994, 94-56, § 1, 12-27-94; Ord. 2003, ch. 03-37, 6-16-03; Ord. 2009, ch. 09-63, § 1, 12-10-09; Ord. No. 2016-3, § 1, 2-11-16)

Editor's note—Ord. No. 2016-3, § 1, adopted Feb. 11, 2016, changed the title of § 23-13 from "Removal of snow—Required" to read as herein set out.

Cross reference—Removal of snow and ice by railroad, § 19-22.

State law reference—Power of council to regulate removal of snow and ice from sidewalks, § 24-7-1, Gen. Laws 1956.

Sec. 23-14. Same—Deposit restricted.

Snow removed as provided in section 23-13 or from any lot shall not be thrown or deposited on any portion of a street, highway or public place which has theretofore been plowed or cleared of snow, provided that the director of public works may whenever public convenience or necessity, or physical conditions so require or extreme hardship may result, modify the provisions hereof.

Any person found guilty of violating this section shall be fined not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00). The enforcement of the above shall be done by the city police department and/or an inspector or supervisor of the city public works department. The imposition of such fine and other charges may be appealed to municipal court within ten (10) days of the issuance of a written citation.
(Ord. 1914, ch. 30, § 24; Rev. Ords. 1946, ch. 33, § 38; Ord. 1961, ch. 1422, § 2; Ord. 2009, ch. 09-63, § 2, 12-10-09)

State law reference—Power of council to regulate removal of snow and ice from sidewalks, § 24-7-1, Gen. Laws 1956.

Sec. 23-15. Depositing snow on highway.

No owner, lessee or occupant of any premises, any person cleaning or removing snow there from, shall deposit or cause to be deposited any snow from said premises upon any highway except with the permission of the director of public works.

Any person found guilty of violating this section shall be fined not less than twenty-five dollars ($25.00) nor more than five hundred dollars ($500.00). The enforcement of the above shall be done by the city police department and/or an inspector or supervisor of the city public works department. The imposition of such fine and other charges may be appealed to municipal court within ten (10) days of the issuance of a written citation.
(Ch. 33, § 49, added by Ord. 1958, ch. 1183, § 1; Ord. 2009, ch. 09-63, § 3, 12-10-09)

Sec. 23-16. Removal of ice from sidewalks, required.

Whenever the sidewalk or any part thereof adjoining any building or lot of land on any street shall be encumbered with ice, it shall be the duty of the owner, occupant or any person having the care of such building or lot, to cause such sidewalk to be made safe and convenient by removing the ice therefrom, or by covering the same with sand or some other suitable substance.
(Ord. 1914, ch. 30, § 25; Rev. Ords. 1946, ch. 33, § 39)

State law reference—Power of council to regulate removal of snow and ice from sidewalks, § 24-7-1, Gen. Laws, 1956.

Sec. 23-17. Removal of snow and ice on sidewalks adjoining city property.

(a) Sidewalks adjoining property belonging to or occupied by the city shall be cleared of snow under the direction of the department, committee or officer of the city having by ordinance or statute the care, custody or use of such property. Whenever the sidewalk or any part thereof adjoining any property belonging to or occupied by the city shall be encumbered with ice, the department, committee or officer of the city having by ordinance or statute the care, custody or use of such property, shall cause such sidewalk to be made safe and convenient by removing the ice therefrom or by covering the same with sand, salt or some other suitable substance. For corner lots, this requirement will include the portion(s) of the sidewalk extending past the building or lot to and including the street curb.

(b) The expense of any such work shall be paid from the appropriation for the support of such department. In case any such department, committee or officer has no janitors or employees available to do said work, the superintendent of public buildings may, upon request of such department, committee or officer, cause said work to be done, the expense thereof to be charged to the appropriation for such department, committee or officer.
(Ord. 1914, ch. 47, § 8; Rev. Ords. 1946, ch. 33, § 40; Ord. No. 2016-3, § 2, 2-11-16)

Sec. 23-18. Throwing water on sidewalks.

No person shall place, throw, pour or spatter, or cause to be placed, thrown, poured or spattered, any water upon any sidewalk in the city between the hours of 7:30 a.m. and 7:00 p.m.
(Ord. 1914, ch. 30, § 18; Rev. Ords. 1946, ch. 33, § 34)

Sec. 23-19. Permitting water to run from land upon street.

No water upon any land adjoining a public street or highway which is paved or which is graded, and the gutters thereof paved, shall be permitted to run from any such land upon such street or highway, excepting spring water, the natural run of which may be upon such street or highway, and rainwater. No owner or occupant of any land shall permit any water to run from the land owned or occupied by him upon any street or highway, after two (2) days' notice in writing by the chief of police to prevent the same.
(Ord. 1914, ch. 30, § 23; Rev. Ords. 1946, ch. 33, § 37)

Sec. 23-20. Deposits of unhealthy effluvia and dirty water.

No person shall throw or deposit, or cause to be thrown or deposited, nor suffer to flow into or upon any street, highway, gangway or public place, any water or other liquid which causes any noxious or unhealthful effluvia, nor any filthy or dirty water or liquid.
(Ord. 1914, ch. 30, § 21; Rev. Ords. 1946, ch. 33, § 35)

Cross reference—Garbage, trash and refuse, § 12-46 et seq.

Sec. 23-21. Removal of injurious oil, vitriol or other liquid.

Whenever from accident or casualty any oil of vitriol or other liquid which may injure man or beast by contact therewith shall be spilled, or which may render travel unsafe to man or beast shall be thrown or deposited in any street, the person in whose charge and control such liquid was, at the time of such accident or casualty, shall, as soon as reasonably may be, by removal of the same or otherwise, restore the street to a condition reasonably safe for travel of man or beast.
(Ord. 1914, ch. 30, § 22; Rev. Ords. 1946, ch. 33, § 36)

Sec. 23-22. Throwing slippery fruit skins, similar substances.

No person shall cast, throw, place or deposit on any sidewalk or crosswalk in any street or public place within the corporate limits of the city, any part or portion of any fruit or vegetable or other substances which, when stepped upon by any person, is liable to cause or does cause such person to slip or fall.
(Ord. 1914, ch. 30, § 26; Rev. Ords. 1946, ch. 33, § 41)

Cross reference—Garbage, trash and refuse, § 12-46 et seq.

Sec. 23-23. Stores to post copy of sections 23-22 and 23-23.

The proprietor of every store or other place where fruit, vegetable or other substances mentioned in section 23-22 of this chapter are sold or kept for sale, shall keep suspended therein or posted thereon in some conspicuous place, constantly, a copy of section 23-22 and this section of this chapter, printed in large type, so that persons purchasing any fruit, vegetable or other substances, may become aware of

their provisions, and every proprietor refusing or neglecting to comply with the provisions of this section shall be deemed guilty of a violation of this section, punishable as provided in section 1-10.
(Ord. 1914, ch. 30, § 27; Rev. Ords. 1946, ch. 33, § 42)

Sec. 23-24. Obstruction of public right-of-way.

No person shall in any manner obstruct the public right-of-way, except for legally parked or standing motor vehicles or upon the filing of a petition and a finding by the director of public works that the proposed obstruction does not unduly hinder the free flow of pedestrian and vehicular traffic. The director is authorized to order the removal of any obstructions, including roadside memorials. "Roadside memorials" are defined as materials placed as a tribute to commemorate a person who died in a tragic event on a public street, sidewalk, or right-of-way. The department of police may at any time, or upon request, remove any roadside memorial that partially or wholly obstructs a public right-of-way, encroaches on private property, and/or creates a public safety concern.

The director is authorized to promulgate regulations to effect the intent hereof.
(Ord. 1993, ch. 93-14, § 2, 4-20-93; Ord. 2014, ch. 2014-7, § 1, 3-20-14)

Editor's note—Section 1 of ch. 93-14, approved April 20, 1993, repealed § 23-24, which pertained to goods, wares, firewood, coal, other items on street or sidewalk and derived from Ord. 1914, ch. 30, § 28 and Rev. Ords. 1946, ch. 33, § 43. Section 2 of ch 93-14 was included as § 23-24 at the discretion of the editor.

Sec. 23-25. Hoisting or lowering merchandise over street.

No merchandise shall be hoisted or lowered into or out of any building over any street, where the director of public works shall have adjudged such hoisting or lowering dangerous to travelers in such street.
(Ord. 1914, ch. 30, § 38; Rev. Ords. 1946, ch. 33, § 48)

Sec. 23-26. Cutting firewood or breaking up coal on sidewalk.

No person shall saw, split or cut any firewood or lumber, nor break up any coal, on any sidewalk.
(Ord. 1914, ch. 30, § 29; Rev. Ords. 1946, ch. 33, § 45)

Sec. 23-27. Lighting, building or making fires.

No person, except one in the employ of the board of park commissioners or superintendent of parks, shall light, build or make any fire in any public square or public grounds.
(Ord. 1914, ch. 40, § 17; Rev. Ords. 1946, ch. 24, § 25)

Sec. 23-28. Ground cover on public streets and sidewalks; maintenance; removal.

(a) It shall be unlawful for the owner of undeveloped property to allow ground cover to extend in any public street, sidewalk or other public place. All ground cover shall be maintained at a height not to exceed twelve (12) inches from the ground.

The owner shall cause such ground cover to be removed in compliance with this section within five (5) days of receiving notice from the City of Providence.

(b) Any person or corporation violating any provision of subsection (a) shall be fined not less than ten dollars ($10.00), nor more than five hundred dollars ($500.00), for each offense and a separate offense shall be deemed committed on each day on which a violation continues to occur.
(Ord. 1986, ch. 86-56, §§ 1, 2, 12-19-86)

Editor's note—Ord. 1986, ch. 86-56, §§ 1, 2, approved Dec. 19, 1986, being nonamendatory of the Code, has been included as § 23-28 herein, at the discretion of the editor.

Sec. 23-29. Duty to keep off grass.

No person shall stand, lie, wait or walk on any grass growing upon any public land set apart and designated as and for public squares and grounds.
(Ord. 1914, ch. 40, § 15; Rev. Ords. 1946, ch. 24, § 23)

Sec. 23-30. Playing ball, throwing missiles, sliding and skating.

No person shall play ball or throw any stones or other missiles, or slide on any sled or machine or in any vehicle whatever, for amusement, in, upon or across any of the streets or highways. No person shall skate on roller or other skates of any kind in or upon any roadway or any street or highway.
(Ord. 1915, ch. 92, § 1; Rev. Ords. 1946, ch. 33, § 32)

Sec. 23-31. Use of skate boards on street, highway, sidewalk, pedestrian mall.

(a) The use of skate boards shall be permitted in all areas, and in such manner, as permitted for the operation of a bicycle unless further restricted under this section 23-31.

(b) No person shall ride a skateboard within:

(1) Waterplace Park;

(2) Memorial Park;

(3) The Providence River Pedestrian Bridge; and

(4) Such other locations as the city council may from time to time designate through the installation of street signs that clearly identify the area within which skateboarding is prohibited.

(Ord. 1965, ch. 1709, § 1; Ord. No. 2020-20, § 1, 6-26-20)

Sec. 23-32. Consumption of alcoholic beverages on any public street, sidewalk, way or grounds owned by city or on licensed parking lot or land.

It shall be unlawful for any person to possess, consume from and/or transport an open container of alcoholic beverages on any public street, public sidewalk, or public way or on any grounds owned by the city or on any licensed parking lot or land, within the limits of the city, except that it shall not be unlawful to so possess, consume from and/or transport such an open container at any event or festival duly licensed by the bureau of licenses which permits such possession, and/or consumption and/or by any restaurant, and/or licensed establishment patron while on the premises covered by said license, where said restaurant or other licensed establishment has obtained the proper permits as required and/or as prescribed by the City Charter of the City of Providence and/or the ordinances of the City of Providence and/or the General Laws of the State of Rhode Island. Any person found guilty of any violation of this section shall be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) or by imprisonment of not fewer than three (3) days nor more than thirty (30) days or by not less than ten (10) days nor more than thirty (30) days of voluntary community service.

(Ord. 1979, ch. 79-38, § 1, 12-28-79; Ord. 2009, ch. 09-33, § 1, 6-15-09)

Sec. 23-33. Utility services.

No utility company or affiliated company shall install any meter, meter equipment or regulator anywhere on the exterior of any residential structure without the prior signed and/or written consent of the property owner. Such consent cannot be presumed from the property owner's acceptance of gas, electrical, water, telecommunications or other utility services.

(Ord. 2008, ch. 08-48, § 1, 12-4-08)

Sec. 23-34. Enforcement of interior placement obligations.

Any utility company or affiliated company which shall install a meter, meter equipment or regulator anywhere on the exterior of any residential structure without the prior signed and/or written consent of the property owner may be required to appear in the city housing court upon a citation issued by the city department of inspections and standards. The housing court shall have jurisdiction and authority to impose a fine of up to two hundred fifty dollars ($250.00) per residential structure, in addition to requiring the utility company or affiliated company to restore any damage to the property, including damage to landscaping.

(Ord. 2008, ch. 08-48, § 1, 12-4-08)

Sec. 23-35. Utility permits.

Prior to any utility company or affiliated company applying for or receiving a permit to alter, install, or upgrade equipment located upon or under any public street or sidewalk, or upon or under any private property, the utility company or affiliated company must submit a project plan as follows:

(1) For projects located within historic areas, defined as National Register historic districts or local historic districts, a plan must be submitted to the department

of planning and development for review. Such plan must include a detailed description of the proposed work and must adhere to standards set forth by the department based on its historic preservation design guidelines.

(2) For projects located outside historic areas, a plan must be submitted to the department of planning and development for review. Such plan must include a detailed description of the proposed work and must adhere to the guidelines set forth in the comprehensive plan.

(3) The department of planning and development shall submit its recommendations to the city council no later than thirty (30) days of receipt of such plan. The city council shall act upon the plan no later than thirty (30) days of receipt of the department's recommendations.

(4) The provisions of this section shall apply whenever a utility company or affiliated company seeks to initiate construction in an area that includes multiple properties, for instance, a street or section of a street, a block or section of a block, or multiple streets and/or blocks.

(5) Upon approval by the city council of the submitted plan, the city council shall notify the department of public works of such approval.

(6) The provisions of section 23-35 shall not apply in the case of a utility emergency.

(Ord. 2008, ch. 08-48, § 1, 12-4-08)

Sec. 23-36. Special event permits.

(a) Events including, but not limited to, parades, performances, athletic competitions, community or charitable events, block parties, or fairs, which take place, in whole or in part, on public property require a special event permit. A special event permit may be issued according to the following requirements:

(1) Applications for events with five hundred (500) or fewer participants must be filed at least sixty (60) calendar days before the date of the event, and require a special event permit fee of fifty dollars ($50.00). Applications received fewer than sixty (60) calendar days before the date of the event shall accrue an additional fee of ten dollars ($10.00) per day (for example, applications received fifty-nine (59) days before the date of the event shall accrue an additional ten dollars ($10.00) fee.) Applications for events with one hundred (100) or fewer participants may apply for an expedited application as established by regulation for a fee of twenty-five dollars ($25.00).

(2) Applications for events with more than five hundred (500) participants must be filed at least ninety (90) calendar days before the date of the event, and require a special event permit fee of seventy-five dollars ($75.00). Applications received fewer than ninety (90) calendar days before the date of the

event shall accrue an additional fee of ten dollars ($10.00) per day (for example, applications received eighty-nine (89) days prior to the date of the event shall accrue an additional ten dollars ($10.00) fee.).

(3) Proof of liability insurance shall be required prior to the issuance of a special event permit.

a. Events with fewer than five thousand (5,000) participants shall require one million dollars ($1,000,000.00) in liability insurance; and

b. Events with more than five thousand (5,000) participants shall require five million dollars ($5,000,000.00) in liability insurance.

c. The liability insurance policy shall name the City of Providence as an additional insured.

(4) Additional fees shall be assessed for street closures, traffic control, police or fire detail, or other services from city departments that are necessary to carry out the special event.

(5) The department of arts, culture, and tourism, or any other department as may be designated by the mayor, shall develop special event guidelines in accordance with this section. The department shall accept and review applications for special event permits, and will inform the applicant of additional requirements including services, permits, and licenses. The department will refer the applicant to the appropriate departments to comply with such requirements.

(6) Events to be held in city parks. In addition to the requirements provided in this section, an event to be held in a city park or parks shall require a park permit. The superintendent of parks shall review and act upon park permit applications. Park permit applications must be approved by the superintendent prior to the issuance of a special use permit by the department of arts, culture, and tourism.

(b) A special event permit shall be denied under the following circumstances:

(1) The location of the event is already reserved for use on the date and approximate time requested in the application. In such case, the city will attempt to provide the applicant with an alternate site, route, time, or date for the special event.

(2) The activity is to be held for the primary purpose of advertising products or goods, and/or is designed to be held for commercial profit.

(3) The superintendent of parks or the director of arts, culture and tourism determines that the proposed attendance, duration, and/or usage of sound amplification equipment would constitute a disturbance of the surrounding neighborhood, and would violate the noise control regulations of the city

ordinance or of state law. If the applicant's request is denied, the superintendent and/or director will make reasonable efforts to offer an alternative location acceptable to the applicant.

(4) The applicant and/or its principal or affiliate is more than 60 (sixty) days delinquent in payments to the city for police and fire details, or other city services, as provided for in section 16-27.

(Ord. 2012, ch. 2012-4, § 1, 1-5-12; Ord. 2012, ch. 2012-40, § 1, 6-21-12; Ord. No. 2015-6, § 1, 4-13-15)

Sec. 23-37. The use of tobacco products in the public way.

(a) *Purpose*.

(1) The use of tobacco for smoking purposes is being found to be increasingly dangerous, not only to the person smoking but also to the nonsmoking person who is required to breathe the contaminated air. A pervasive intrusion of the nonsmoker's rights to unpolluted air space is the uncontrolled smoking in downtown Providence.

(2) The City of Providence is committed to keeping its downtown clean, safe, healthy and pleasant for everyone.

a. Smoking is hazardous to health and numerous studies have shown that secondhand smoke is a significant public health hazard;

b. Smoking in public places endangers children and others by exposing them to secondhand smoke;

c. The United States Environmental Protection Agency has classified secondhand smoke as a group A carcinogen, the most dangerous class of carcinogen;

d. The United States Centers for Disease Control and Prevention (CDC) has found that secondhand smoke causes children to suffer from lower respiratory tract illnesses, such as bronchitis and pneumonia, exacerbates childhood asthma and increases the risk of chronic middle ear infection in children;

e. Discarding cigarette butts, cigar butts and tobacco waste on sidewalks and streets is unsightly, unclean and particularly hazardous to small children who handle and sometimes ingest them;

f. Cigarette butts do not biodegrade and they contain two hundred (200) known poisons, sixty-three (63) of which are known to cause cancer;

g. Whereas the area described in subsection (c) of this ordinance includes a public park, a public skating rink, a major bus station, and multiple businesses.

h. Whereas the area described in subsection (c) of this ordinance is an area experiencing high pedestrian traffic in a concentrated area.

i. Prohibiting smoking and the improper disposal of tobacco products in the area described in subsection (c) of this ordinance is necessary to protect the public health, safety and welfare of all residents and visitors. The City of Providence intends, by the enactment of this chapter, to protect the health and atmospheric environment of the nonsmoker by regulating smoking in downtown Providence.

(b) *Definitions*.

(1) For the purposes of this section, *tobacco product* means any product containing tobacco or nicotine, including but not limited to cigars, pipe tobacco, snuff, chewing tobacco, dipping tobacco, bidis, snus, dissolvable tobacco products, and electronic smoking devices; provided, however, that such term shall not include any product that has been approved by the U.S. Food and Drug Administration as a tobacco cessation product.

(2) *Electronic smoking devices* means any electronic oral device such as one (1) composed of heating element, battery and/or electronic circuit which provides a vapor of nicotine, vapor of a solution including nicotine, or aerosol of a solution including nicotine or any other substance for inhalation. This term shall include every variation and type of such devices whether they are manufactured, distributed, marketed, or sold as an electronic cigarette, an electronic cigar, an electronic cigarillo, an electronic pen, an electronic pipe or an electronic hookah or any other name or descriptor. The term "electronic smoking device" does not include any device specifically approved by the United States Food and Drug Administration for use in reducing, treating or eliminating nicotine or tobacco dependence, or for any other medical purposes, when such a device is being marketed and sold solely for such approved purpose.

(c) *[Locations where the use of tobacco is prohibited.]* The use of any and all tobacco products is prohibited on all non-enclosed sidewalks and other pedestrian areas, including alleys, accessible to the public anywhere inside the boundary lines contained in paragraph (c) of this section. Where the boundary lines contained in paragraph (c) of this section coincide with streets, highways, expressways, easements, or waterways, the boundary lines are construed to be the centerline of the right-of-way.

(1) Beginning at the intersection of Francis Street and Exchange Terrace, running easterly along Exchange Terrace to the intersection of Exchange Terrace and Exchange Street.

(2) From the intersection of Exchange Terrace and Exchange Street, running northerly along Exchange Street to the intersection of Exchange Street and Memorial Boulevard.

(3) From the intersection of Exchange Street and Memorial Boulevard, running easterly along Memorial Boulevard to the intersection of Memorial Boulevard and Westminster Street.

(4) From the intersection of Memorial Boulevard and Westminster Street, running southerly along Westminster Street to the intersection of Westminster Street and Dorrance Street.

(5) From the intersection of Westminster Street and Dorrance Street, running westerly along Dorrance Street to the intersection of Dorrance Street and Francis Street.

(6) From the intersection of Dorrance Street and Francis Street, running northerly along Francis Street to the point and place of beginning.

(d) *Locations where the use of tobacco products is permitted*. The use of tobacco products is permitted in private residences and in private vehicles. The use of tobacco products is permitted on private property unless the owner prohibits the use of tobacco products on that private property.

(e) *Posting of signs*. The mayor or his or her designee shall post signs that adequately inform the public of the restrictions created by this section.

(f) *Penalties*. For the first offense, the violator will receive a warning. All subsequent offenses are hereby declared to be public nuisances punishable by a civil fine of fifty dollars ($50.00) per violation. Each violation shall be deemed a separate violation, and each violation shall be subject to a separate fine.
(Ord. No. 2017-19, § 1, 6-15-17)

Secs. 23-38, 23-39. Reserved.

ARTICLE II. PUBLIC WORKS*

Sec. 23-40. Employment on public works.

***Cross references—**Director of public works to report on highway matters, § 2-112; to superintend work on streets and sidewalks, § 2-113; to superintend numbering of streets and placing of signs, § 2-114; city engineer to be consulted on matters of public improvement, § 2-132; authority as to structures and public works, § 2-133; duties in relation to streets, § 2-135; duties of city messenger as to care of city hall and offices, § 2-181; superintendent of public buildings, § 2-194 et seq.; city plan commission to cooperate with finance director as to capital improvements, § 2-253; installation of sockets in sidewalks for display for flags, §§ 2-317, 2-318; cemeteries, § 6-1 et seq.; railways not to interfere with public work of city, § 19-20.

(a) *Preference of citizens.* In the employment of mechanics, teamsters and laborers by any contractor or subcontractor in the construction of public works for the city, preference shall first be given to citizens of the city who are qualified to perform the work to which the employment relates; and if they cannot be obtained in sufficient numbers, then to citizens of the United States.

(b) *Wages.* The wages for a day's work paid to mechanics, teamsters and laborers heretofore mentioned shall be not less than the customary and prevailing rate of wages for a day's work in the same trade or occupation in the localities where such public works are constructed. In case of any dispute as to such customary and prevailing rate of wages, a committee composed of the president of the city council, the chairman of the committee on city property, the superintendent of public buildings and the director of public works, shall investigate the wages paid in the trade or occupation in the locality where such public works are under construction and decide what rate of wages shall be paid, and the decision of this committee shall be conclusive on all parties concerned.
(Ord. 1931, ch. 825, §§ 1, 2; Rev. Ords. 1946, ch. 29, § 5)

Sec. 23-41. Section 23-40 part of contracts for public works.

Every contract for the construction of public works shall contain the provisions of section 23-40 as one (1) of its provisions.
(Ord. 1931, ch. 825, § 3; Rev. Ords. 1946, ch. 29, § 6)

Sec. 23-42. Enlargements, alterations of city buildings; plans required.

Except as otherwise may be expressly provided by ordinance or resolution of the city council, whenever there is need to enlarge any building of the city by building an addition thereto or otherwise, or to make any alteration of any such building, for the use of any department of the city, the cost of which may exceed the sum of five hundred dollars ($500.00), the department, or the committee representing the department, shall submit to the city council its request therefor with a general description of what is needed, but without plans or specifications thereof, which request and description shall, if approved by the city council, be referred to the committee on city property; and said committee on city property shall thereupon cause any necessary plans of the same to be prepared as nearly as may be in accordance with said request and description, and shall report said plans and the estimated cost of the work to the city council.
(Ord. 1914, ch. 47, § 2; Rev. Ords. 1946, ch. 29, § 1)

Cross reference—Building ordinance, amendments thereto preserved, § 5-1.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; offenses relative to poles and wires, §§ 11-35-1, 11-35-4, 11-35-5, Gen. Laws 1956; special act authorizing certain construction under sidewalks, P. L. 1909, ch. 472, as amended by P. L. 1915, ch. 1276 and P. L. 1916, ch. 1417.

Sec. 23-43. New city buildings; plans required.

Except as otherwise may be expressly provided by ordinance or resolution of the city council, whenever a new building is required for the use of the city, the department, or the committee representing the department for which the building is desired, shall submit to the city council in writing a request for the building required by such department, accompanied with a general description of said building but without plans or specifications thereof, which request and description shall, if approved by the city council, be referred to the committee on city property; and said committee on city property shall thereupon cause plans for said building to be prepared as nearly as may be in accordance with said request and description, and shall report said plans and the estimated cost of said proposed building to the city council.

(Ord. 1914, ch. 47, § 1; Rev. Ords. 1946, ch. 29, § 2)

Cross reference—Building ordinance, amendments preserved, § 5-1.

Sec. 23-44. Use of city buildings by school committee as annexes.

Whenever requested in writing by the school committee, the superintendent of public buildings shall allow said school committee to use, for such time as said superintendent may approve, such buildings or parts of buildings belonging to the city as are not required for other city purposes, as annexes to the public schools, provided said school committee shall supply the school furniture and other necessary school appurtenances, and the janitors for the care of the buildings or parts thereof so occupied as public school annexes.

(Ord. 1914, ch. 47, § 7; Rev. Ords. 1946, ch. 29, § 3)

Sec. 23-45. Care and management of bathhouses and comfort stations.

All public comfort stations of the city, except such as are located in any parks or parkways, and all public bathhouses shall be under the care and management of the superintendent of public buildings, subject to the direction of the director of public works.

(Ord. 1914, ch. 13, § 1; Ord. 1917, ch. 175, § 1; Rev. Ords. 1946, ch. 29, § 7)

State law reference—Special act authorizing establishment of comfort stations, P. L. 1906, ch. 1376.

Sec. 23-46. Authority of superintendent of buildings as to bathhouses, comfort stations.

The superintendent of public buildings shall do or cause to be done all things necessary for the proper care, maintenance, management and control of public bathhouses and comfort stations, and shall employ such number of persons, men and women, as necessary for the care and operation thereof, and for controlling the use thereof by the public, and may discontinue the employment of any of them at any time.

(Ord. 1914, ch. 13, § 1; Ord. 1917, ch. 175, § 1; Rev. Ords. 1946, ch. 29, § 8)

Sec. 23-47. Rules for bathhouses and comfort stations.

The superintendent of public buildings shall make rules regulating the use of public bathhouses and comfort stations by the public. Such rules shall be printed and posted in conspicuous places in each such house or station.

(Ord. 1914, ch. 13, § 1; Ord. 1917, ch. 175, § 1; Rev. Ords. 1946, ch. 29, § 9)

Sec. 23-48. Expulsion of disorderly persons from bathhouses and comfort stations.

Any attendant in charge or police officer may exclude or expel from any public bathhouse or comfort station any person conducting himself in a disorderly manner or violating any rules provided for in section 23-47, in any particular.

(Ord. 1914, ch. 13, § 1; Ord. 1917, ch. 175, § 1; Rev. Ords. 1946, ch. 29, § 10)

Secs. 23-49—23-58. Reserved.

ARTICLE III. CONSTRUCTION AND REPAIR OF SIDEWALKS*

Sec. 23-59. Reserved.

Editor's note—Ord. 1997, ch. 97-64, § 17, approved November 3, 1997, amended the Code by repealing former § 23-59. Former § 23-59 pertained to the power and authority of the director of public works, and derived from Ord. 1914, ch. 49, § 14 and Revised Ords. of 1946, ch. 2, § 94.

***Cross references—**Department of public works, § 2-111 et seq.; director of public works to report on highway matters, § 2-112; to superintend work on streets and sidewalks, § 2-113; to superintend numbering of streets and placing of signs, § 2-114;

Sec. 23-60. License required from director of public works.

No person shall carry on the business of building and altering sidewalks in the city unless he shall be first duly licensed by the director of public works.
(Ord. 1929, ch. 727, § 1; Rev. Ords. 1946, ch. 33, § 1)

Sec. 23-61. Issuance of license.

The director of public works may license any suitable person to carry on the business of building and altering sidewalks in the city, but no such license shall be issued until the fee therefor shall have been paid to the city collector.
(Ord. 1929, ch. 727, § 1; Rev. Ords. 1946, ch. 33, § 2)

Sec. 23-62. Reserved.

Editor's note—Ord. 1997, ch. 97-64, § 17, approved November 3, 1997, amended the Code by repealing former § 23-62. Former § 23-59 pertained to the bond to accompany license applications, and derived from Ord. 1929, ch. 727, § 1; Revised Ords. of 1946, ch. 33, § 3; and Ord. 1952, ch. 585, § 1.

Sec. 23-63. Place of business prerequisite to licensing.

No license to carry on the business of building or altering sidewalks in the city shall be granted to any person unless he shall have a place of business in the State of Rhode Island.
(Ord. 1929, ch. 727, § 1; Rev. Ords. 1946, ch. 33, § 1; Ord. 1987, ch. 87-13, § 1, 6-12-87)

Sec. 23-64. Fee for license.

The fee for issuing a license to carry on the business of building and altering sidewalks in the city shall be one hundred dollars ($100.00).
(Ord. 1929, ch. 727, § 1; Rev. Ords. 1946, ch. 33, § 2; Ord. 1987, ch. 87-13, § 2, 6-12-87)

Sec. 23-65. Duration of license.

All licenses to carry on the business of building and altering sidewalks in the city shall be for a term ending on the thirty-first day of December next following the date of their issuance.
(Ord. 1929, ch. 727, § 1; Rev. Ords. 1946, ch. 33, § 2)

---

city engineer to be consulted on matters of public improvement, § 2-132; authority as to structures and public works, § 2-133; installation of sockets in sidewalks for display for flags, §§ 2-317, 2-318.

State law references—Authority of council to lay out, alter or repair sidewalks, ch. 24-7, Gen. Laws 1956; special act authorizing certain construction under sidewalks, P. L. 1909, ch. 472, as amended by P. L. 1915, ch. 1276 and P. L. 1916, ch. 1417; special act authorizing council to establish system of fees for granting or issuing licenses or permits, P. L. 1922, ch. 2241.

Sec. 23-66. Notice of sidewalk construction, alteration required.

Whenever the director of public works shall have determined in what manner, of what materials, and within what time any sidewalks shall be built or altered, he shall cause written or printed notice thereof to be personally given to the owner of the adjacent lot, if residing within the city, particularly describing the materials, width, height and manner in which the sidewalk shall be built, or the alteration to be made; but if the owner shall not reside in the city, then the notice shall be given to the tenants in possession; but if no tenant shall be in possession, then the same shall be published in the newspapers employed to do the city advertising once a week for three (3) successive weeks.

(Ord. 1914, ch. 49, § 14; Rev. Ords. 1946, ch. 2, § 95)

Annotation—In **Manton v. Clark, 45 R. I. 170, 121A, 116, 117,** it was said: "If any notice relative to either of said orders (two orders issued pursuant to the preceding section) was given to the plaintiff, the defendant was unable to prove the contents of the notice; no copies were retained, and no record describing said contents was made. As the defendant failed to overcome the prima facie case, established by the plaintiff, by proving that notice in accordance with the provisions of said ordinance (this section) was given to plaintiff before the work in question was performed by said commissioner, the plaintiff's exception to the refusal of the trial court to direct a verdict in her favor must be sustained."

Sec. 23-67. Effect of noncompliance with time limit for construction, repair.

At the expiration of the time limited by the director of public works as provided in section 23-66; if the work shall not have been prosecuted according to his directions, he shall, in his discretion, proceed at the expense of the city and execute the directions so given to the owner by him. When the same shall be accomplished, it shall be the duty of the director to certify the expense thereof to the assessors of taxes of the city, together with ten (10) percent in addition thereto, to cover the interest, cost of assessing and collecting. Said sum so certified shall be by the assessors added to the tax of the owner of such adjacent lot so neglecting as aforesaid, which proceeding shall be conclusive, and the said owner with his estate shall be responsible therefor in the same manner as for other taxes. In case any society which is exempt from taxation shall be owner of said land, the proceedings shall be the same, and notice shall be given to the treasurer of said society, and the cost of such alteration, with the ten (10) percent additional, shall be collected of such society in the same manner as is prescribed by law for the collection of taxes.

(Ord. 1914, ch. 49, § 14; Rev. Ords. 1946, ch. 2, § 96)

Sec. 23-68. Width of sidewalk.

Unless otherwise authorized by the written permit of the director of public works, all sidewalks hereafter constructed, reconstructed or altered in any public highway in

the city shall be constructed or rebuilt by laying the concrete, brick, stone or other form of pavement used for such sidewalks the entire width from the street line to the curb.
(Ord. 1918, ch. 186, § 1; Rev. Ords. 1946, ch. 33, § 4)

Sec. 23-69. Curb cuts; permit required.

No person, firm or corporation shall engage in the alteration of any curb without first filing an application with the director of public works in writing and obtaining a permit therefor. Said permits shall be subject to the approval of the engineer. The fee for said permit shall be fifty dollars ($50.00) for residential property and one hundred fifty dollars ($150.00) for commercial or industrial property.
(Ord. 1987, ch. 87-13, § 3, 6-12-87)

Sec. 23-70. By whom application is made.

Application for a permit shall be made by the licensed person, firm or corporation employed in connection with the proposed work. It shall be accompanied by a duly verified affidavit by the owner or the qualified person making the application that the proposed work is authorized. The full names and addresses of the owner, lessee, applicant, and of the responsible officers, if the owner or lessee is a corporate body, shall be stated in the application.
(Ord. 1987, ch. 87-13, § 3, 6-12-87)

Secs. 23-71—23-78. Reserved.

ARTICLE IV. WESTMINSTER PEDESTRIAN MALL*

Secs. 23-79—23-82. Reserved.

Editor's note—Section 1 of Ord. 1994, ch. 94-3, adopted January 10, 1994, repealed §§ 23-79—23-82, which pertained to the former Westminster Pedestrian Mall and derived from Ord. 1963, ch. 1563, §§ 1—3, 5; Ord. 1964, ch. 1672, § 2 and Ord. 1965, ch. 1733, § 1.

***Cross references—**Director of public works to report on highway matter, § 2-112; to superintend work on streets and sidewalks, § 2-113; to superintend numbering of streets and placing of signs, § 2-114; provisions pertaining to public service engineer, § 2-233 et seq.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; authority of council to lay out, alter, repair sidewalks, ch. 24-7, Gen. Laws 1956.

Sec. 23-83. Projecting signs—Erection prohibited.

No projecting sign shall be permitted to be erected on the former Westminster Pedestrian Mall.
(Ord. 1965, ch. 1736, § 1; Ord. 1994, ch. 94-3, § 2, 1-10-94)

Sec. 23-84. Same—Continuance of existing signs.

Any projecting sign which lawfully exists on November 22, 1965, may be continued, but shall not be enlarged or altered in any way except for routine maintenance.
(Ord. 1965, ch. 1736, § 1)

Sec. 23-85. Same—Discontinuance of existing signs.

If a projecting sign which lawfully exists on November 22, 1965, shall have been damaged by fire, explosion or other catastrophe to such an extent that the cost of restoration would be greater than sixty (60) percent of its entire replacement value, it shall be permanently removed. Where any use of a building upon which there exists a projecting sign is discontinued, said projecting sign pertaining to said discontinued use shall be removed forthwith.
(Ord. 1965, ch. 1736, § 3)

Sec. 23-86. Same—Definitions applicable.

The following definitions shall apply in the interpretation and enforcement of this article and any rules and regulations adopted pursuant thereto:

Projecting sign. "Projecting sign" shall mean a sign erected perpendicular to or approximately perpendicular to the facade of the building or structure on which it is mounted and projecting into the right-of-way of the former Westminster Pedestrian Mall. A projecting sign shall also include a sign suspended from the ceiling of a marquee or mounted on a marquee in any manner.

Sign. "Sign" shall mean any permanent or temporary structure, device, letter, word, model, banner, pennant, insignia, flag or representation used to communicate, or in any other way to attract the eye or any sense, and shall include any marquee.
(Ord. 1965, ch. 1736, § 5(1), (2); Ord. 1994, ch. 94-3, § 2, 1-10-94)

Sec. 23-87. Interpretation of provisions, reservation of rights to city.

The city and the city council thereof shall retain its police powers and other rights and powers relating to the city streets constituting a part of the former pedestrian mall. No action taken herein shall be interpreted or construed to be a vacation or abandonment, in whole or in part, of any city street or any right therein, it being intended that the establishment of a pedestrian mall pursuant to Chapter 176 of the Public Laws of Rhode Island, 1962, be a matter of regulation. Nothing in this article

shall be interpreted or construed to prevent the city and city council, at any time, from changing the extent of the former pedestrian mall, or from changing or repealing any of the rules and regulations pertaining to the former pedestrian mall.
(Ord. 1963, ch. 1563, § 6; Ord. 1994, ch. 94-3, § 2, 1-10-94)

Secs. 23-88—23-92. Reserved.

ARTICLE IV½. MARKET SQUARE PEDESTRIAN MALL*

Sec. 23-93. Established; limits fixed.

The city council hereby establishes, under the authority of Chapter 176, Public Laws of Rhode Island of 1962, a pedestrian mall within the central business district of the city as shown on the map entitled, "Market Square Pedestrian Mall, Limits of Construction," filed in the department of city clerk, and as hereinafter generally described:

(a) *Street.* That portion of Westminster Street, beginning at the intersection of South Main Street, thence westerly to the intersection of South Water Street and continuing from the intersection of South Water Street and the Providence River to include the three (3) traffic islands over the Providence River.

(b) *Intersections.* The mall intersections and intersecting streets as indicated on the aforementioned map.

(Ord. 1977, ch. 77-38, § 1, 10-14-77)

Sec. 23-94. Operation of vehicular traffic.

Vehicular traffic shall be prohibited, in whole, on the pedestrian mall, with the sole exception of emergency vehicles.
(Ord. 1977, ch. 77-38, § 1, 10-14-77)

Sec. 23-95. Towing of unlawfully parked or standing vehicles.

Any vehicle either parked or left standing in violation of the city ordinances shall be towed away by any authorized towing agency at the expense of the owner. Fees chargeable shall be as set forth in section 15-22 of this Code of Ordinances.
(Ord. 1977, ch. 77-38, § 1, 10-14-77)

***Editor's note—**Ord. No. 1977, ch. 77-38, specifically amended the Code by adding §§ 23-88—23-92. In order to conform to the existing style of classification, and at the discretion of the editor, said sections have been redesignated Art. IV½, §§ 23-93—23-97.

Sec. 23-96. Interpretation of provisions; reservations of rights to city.

The city, and the city council thereof, shall retain its police powers and other rights and powers relating to the city streets constituting a part of the pedestrian mall. No action taken herein shall be interpreted or construed to be a vacation or abandonment, in whole or in part, of any city street or right therein, it being intended that the establishment of a pedestrian mall pursuant to Chapter 176 of the Public Laws of Rhode Island, 1962, be a matter of regulation. Nothing in this article shall be interpreted or construed to prevent the city and city council, at any time, from changing the extent of this pedestrian mall, or from changing or repealing any of the rules and regulations pertaining to this pedestrian mall.
(Ord. 1977, ch. 77-38, § 1, 10-14-77)

Sec. 23-97. Maintenance responsibilities.

The city council authorizes the board of park commissioners to be responsible for all necessary care and maintenance requirements of the mall, and to enter into agreements with the Rhode Island School of Design for the programming and maintenance of the mall.
(Ord. 1977, ch. 77-38, § 1, 10-14-77)

ARTICLE IV¾. FULTON STREET PEDESTRIAN MALL

Sec. 23-97.1. Established; limits fixed.

The city council of the city hereby establishes under authority of Chapter 176, Public Laws of Rhode Island 1962, a pedestrian mall as shown on the map entitled "Fulton Street Pedestrian Mall, Limits of Construction" filed in the office of the clerk and as hereinafter generally described:

(a) That portion of Fulton Street beginning at its intersection with Eddy Street and running southwesterly to its intersection with Union Street as indicated on the aforementioned map.

(Ord. 1999, ch. 99-1, § 2, 1-19-99)

Sec. 23-97.2. Operation of vehicular traffic.

Vehicular traffic shall be prohibited, in whole or in part, on the aforementioned pedestrian mall as follows:

(a) All emergency vehicles shall be permitted on all streets and pedestrian malls.

(b) Fulton Street — all vehicular traffic is prohibited provided that service vehicles may load or unload from 6:00 p.m. to 8:00 a.m. weekdays.

(c) Other than as incidental to the purposes posited in subsections (a) and (b) of this section, no parking shall be permitted on the pedestrian mall.

(Ord. 1999, ch. 99-1, § 3, 1-19-99)

Sec. 23-97.3. Penalties.

Any person violating the regulations established by this article shall be subject to a fine or imprisonment as prescribed in section 1-10 of the Ordinances of the city as amended.
(Ord. 1999, ch. 99-1, § 4, 1-19-99)

Sec. 23-97.4. Towing of unlawfully parked or standing vehicles.

Any vehicle either parked or left standing in violation of the regulations established by this article shall be subject to towing by the city at the expense of the owner and in the manner provided by law.
(Ord. 1999, ch. 99-1, § 5, 1-19-99)

Sec. 23-97.5. Reservation of rights to city.

The adoption of this article notwithstanding, the city and the city council thereof shall retain its police powers and other rights and powers relating to the city streets constituting a part of the pedestrian mall. No action taken herein shall be interpreted or construed to be a vacation or abandonment in whole or in part, of any city street or any right therein, it being intended that the establishment of a pedestrian mall pursuant to Chapter 176 of the Public Laws of Rhode Island, 1962, be a matter of regulation. Nothing in the article shall be interpreted or construed to prevent the city and city council, at any time subsequent to the adoption of this article from changing the extent of the pedestrian mall, or from changing or repealing any of the rules and regulations pertaining to the pedestrian mall.
(Ord. 1999, ch. 99-1, § 6, 1-19-99)

ARTICLE V. POLES, WIRES AND CONDUITS

Sec. 23-98. Locations, installations to comply with article, state acts, contracts.

All poles, conduits, subways, manholes, pipes, wires, cables, fixtures and appurtenances hereafter installed in the city for the purpose of conducting or furnishing electricity or gas for light, heat or power, or for telegraphic, telephonic or signal purposes, shall be located, placed, constructed, used and maintained in accordance with the provisions of this article, subject and supplementary, however, to the conditions of the several acts passed by the General Assembly, whereby authority has been granted to telegraph, telephone, signal, light, heat, power and railroad companies to do business in said city or to any corporation or person to locate, place, construct, use or maintain the same therein, and to the several grants, permissions, consents and contracts heretofore or hereafter lawfully made or given by said city or the city council to or with any public service company, or any corporation or person,

and so subject to any extent that any right thereunder is inconsistent with and limits the power of the city council in the premises, during any period that such right thereunder remains in force.
(Ord. 1914, ch. 64, § 4; Rev. Ords. 1946, ch. 26, § 8)

Sec. 23-99. Permission of council required for installations; exception.

No poles, conduits, subways, manholes, pipes, wires, cables or other electrical or gas fixtures or appurtenances subject to the provisions of this article shall be placed or maintained in, on, over, across or under any street or other public place in the city without permission of the public service engineer, but this provision shall not be construed to apply to placing or maintaining any underground conduits, wires, cables, pipes or other underground electric or gas fixtures or appurtenances of any public service company in any such streets, ways or places, in which such company previously has been lawfully granted and has the right to place and maintain the same, but none of the same shall be located in any such street, way or place by any such company, until a plan of the streets, ways and places in which it is proposed to place and maintain the same and of the proposed location of any conduits, distribution ducts and pipes therein shall be filed with the director of public works and until he shall be informed in writing of the size of the proposed conduits, ducts and pipes, nor shall any of the same be placed in any such street, way or place except in such particular locations therein as shall be designated by said director.
(Ord. 1914, ch. 64, § 5; Rev. Ords. 1946, ch. 26, § 9)

Secs. 23-100—23-106. Reserved.

Editor's note—Ord. 1997, ch. 97-64, § 17, approved November 3, 1997, amended the Code by repealing former §§ 23-100—23-106. Former § 23-100 pertained to the submission of application for installation, and derived from Ord. 1914, ch. 64, § 6; and Revised Ords. of 1946, ch. 26, § 10. Former § 23-101 pertained to public hearing on applications for installation, and derived from Ord. 1914, ch. 64, § 6; and Revised Ords. of 1946, ch. 26, § 11. Former § 23-102 pertained to approval of specifications and contracts, and derived from Ord. 1915, ch. 106, § 2; and Revised Ords. of 1946, ch. 26, § 4. Former § 23-103 pertained to the director of public works duties in respect to applications for underground installations, and derived from Ord. 1914, ch. 64, § 6; and Revised Ords. of 1946, ch. 26, § 12. Former § 23-104 pertained to grant or permission for installation specifying location, and derived from Ord. 1914, ch. 64, § 6; and Revised Ords. of 1946, ch. 26, § 13. Former § 23-105 pertained to time limit for exercising privilege for installation, and derived from Ord. 1914, ch. 64, § 7; and Revised Ords. of 1946, ch. 26, § 14. Former § 23-106 pertained to revocation of permission for installation, and derived from Ord. 1914, ch. 64, § 9; and Revised Ords. of 1946, ch. 26, § 16.

Sec. 23-107. Public work of city to take precedence over installations.

No right of any person to maintain, use or operate any poles, wires, cables, conduits, ducts, pipes, manholes, handholes or other appliances or appurtenances in any street or other traveled way in the city, shall be in preference or hindrance of public work in the city, and should any of the same in any way interfere with the construction, alteration or repair of public work in any such street or way, whether done by the city directly or by any contractor for the city, such person shall at his own expense protect, alter or move any of the same so interfering to some other location in such street or way, or discontinue the use and operation thereof for the time being, as directed by the director of public works, without the city being liable for any damages suffered by such person thereby. The city shall notify such person a reasonable time in advance of any public work, which will interfere with any of the same or the use or operation thereof. In case such person shall fail to comply with any such direction of said director, the city may protect, alter or move the same, and recover the cost thereof from such person.
(Ord. 1914, ch. 64, § 29; Rev. Ords. 1946, ch. 26, § 38)

Sec. 23-108. Precedence of wires, apparatus of city signal service.

The wires, poles, posts, structures and supports of the telephone, fire alarm and police signal service maintained by the city shall at all times take precedence and right-of-way as to all other wires, poles, posts, structures and supports maintained or erected in the city; and no lineman or other person, either in erecting wires, poles, posts, structures or supports in any way whatsoever shall interfere with, or disturb, disarrange or change any wires maintained by the city, or any appurtenance thereof; and in every instance of removal of any of said wires, poles, posts, structures or supports for the accommodation of any other corporation or party, or to place the same beyond danger from the electric current of any other corporation or party, the expense incident to said removal shall be paid immediately by such other corporation or party.
(Ord. 1914, ch. 64, § 8; Rev. Ords. 1946, ch. 26, § 15)

Sec. 23-109. Indemnity of city against claims arising out of electrical installations.

Every person erecting, maintaining or using electric wires or poles, fixtures or structures, for the support or conducting of the same shall indemnify and save harmless the city, its officers, agents and servants, from and against all lawful claims and demands for injuries to persons or property occasioned by the existence of such poles, wires, fixtures or structures, or the transmission of electric current by means thereof, or by the digging up, opening or keeping open of any street, highway, traveled way, public place or part thereof, which shall be or has been opened for the purpose of installing, constructing or repairing any underground conduit, duct, structure, appliance or appurtenance by or for such person, or by any failure of such person to restore and keep in sound and safe condition for the required time any ground opened

or dug up in the prosecution of any of its work in any street, way or place. The city, city council, or the officers, agents or servants of the city, exercising the rights, powers or permission, and subject to the restrictions, respectively given and reserved herein, shall not be held liable by such person or corporation on account thereof, or by reason of any injury or damage caused thereby.
(Ord. 1914, ch. 64, § 10; Rev. Ords. 1946, ch. 26, § 18)

Sec. 23-110. Information as to installations to be furnished public service engineer.

Every public service company, corporation or person owning, using or operating any poles, conduits, subways, manholes, pipes, wires, cables or other electrical or gas fixtures or appurtenances, now or hereafter installed in, on, over, across or under any street or other public way or place in the city or over any building therein, shall within a reasonable time after being requested by the public service engineer therefor, furnish him with such information and in such form, as will substantially give or show the location of such poles, the number of crossarms thereto affixed, and the number of wires and cables thereto attached, and the location and size of such conduits, subways, manholes, pipes and other electrical or gas fixtures and appurtenances, the locations where service is rendered and the kinds of service rendered at such locations respectively, and such other information as to the same and the operation thereof as said engineer may need properly to perform his duties.
(Ord. 1914, ch. 64, § 32; Rev. Ords. 1946, ch. 26, § 41)

Cross reference—Public service engineer, § 2-233.

Sec. 23-111. Approval of poles for fire alarm and police signal wire.

No poles to carry any fire alarm or police signal wire shall be erected in any street or other public way or place in the city, until the type and location thereof shall have been first approved by said engineer.
(Ord. 1915, ch. 106, § 2; Rev. Ords. 1946, ch. 26, § 5)

Sec. 23-112. Approval of location of wires aboveground required.

All wires hereafter erected, when placed above the surface of the ground, shall be located upon such portion of the highway and suspended from such supports and attachments as shall be approved by the public service engineer.
(Ord. 1914, ch. 64, § 11; Rev. Ords. 1946, ch. 26, § 19)

Sec. 23-113. Changes in location of poles, structures supporting wires.

Changes in the location of any pole or other fixture or structure supporting electric wires, if for public necessity, shall be made from time to time at the expense of the person owning the same, when directed by the public service engineer.
(Ord. 1914, ch. 64, § 11; Rev. Ords. 1946, ch. 26, § 20)

Sec. 23-114. Removal of poles in case of emergency.

Any poles, wires and cables erected or maintained pursuant to the authority of this article in case of public necessity by reason of fire, may be cut and removed by the officers, agents or servants of the city acting in the performance of their duty, without notice and without any claim for damages therefor on the part of the company, corporation or person owning or using such poles, wires or cables.
(Ord. 1914, ch. 64, § 9; Rev. Ords. 1946, ch. 26, § 17)

Sec. 23-115. Renewing, resetting or relocating poles.

Except in cases of accident or emergency reasonably requiring immediate action, no pole shall be renewed, reset or relocated by any public service company, corporation or person, in any street or other public place in the city, until after notice thereof shall have been given to the public service engineer, and the location thereof or any proposed new location thereof shall have been inspected by said engineer on the ground, and until after said engineer shall have approved the renewing, resetting or relocating the same as reasonably required for the purpose of the same, and also the then location or the proposed new location thereof. In case he shall approve renewing or resetting the same but not in the proposed existing location, he shall designate a place for a new location thereof.
(Ord. 1914, ch. 64, § 12; Rev. Ords. 1946, ch. 26, § 22)

Sec. 23-116. Marking and painting poles.

All poles used for supporting or carrying electric wires, cables, or fixtures, now or hereafter erected in any street or other public place in the city, shall be branded or otherwise marked and kept branded or marked in a legible manner, with the name or name initials of the public service company, corporation or person owning the same, to the satisfaction of the public service engineer. All such poles and all brackets attached thereto when erected in any such street, way or place shall be painted with at least two (2) coats of paint of such particular color or colors as shall be first approved by said engineer; and all such poles and brackets now or hereafter erected therein shall at all times be kept properly painted to the satisfaction of said engineer, and upon the repainting of any such poles and brackets the same shall be painted with paint of such particular color or colors as shall be first approved by said engineer.
(Ord. 1914, ch. 64, § 12; Rev. Ords. 1946, ch. 26, § 21)

Sec. 23-117. Installation of high-tension wires.

All main electric light, heat and power wires, when placed above the surface of the ground, shall be suspended from poles provided and maintained by the person or corporation using the same. Such poles shall not exceed thirty (30) feet in height from the ground, except where otherwise permitted by the public service engineer; and the lowest line of wire thereon shall be suspended not less than twenty (20) feet from the ground, except where otherwise permitted by said engineer. The poles shall be so

placed that the wires shall cross streets at right angles, wherever practicable. In power circuits for railroad purposes, absolute and approved cutout boxes and cutout switches shall be put in and maintained at such points thereon as may be designated by said engineer.
(Ord. 1914, ch. 64, § 13; Rev. Ords. 1946, ch. 26, § 23)

Sec. 23-118. Insulation of high-tension wires.

All high-tension wires, when attached to the exterior walls of buildings, shall be supported on glass or porcelain insulators on iron brackets, and insulated to keep the wires well apart and safe from contact with wood, brick, metal or other parts of buildings.
(Ord. 1914, ch. 64, § 14; Rev. Ords. 1946, ch. 26, § 24)

Sec. 23-119. Insulation of machinery; tests of circuits.

A machine generating electric current to be used for light or heat shall be insulated from electrical communication with the earth, and the wires shall be covered with proper insulating material throughout their entire length. Tests shall be made on each circuit operated to detect defects; and a record thereof shall be made by all persons operating such circuits, which record shall be open to the inspection of the public service engineer.
(Ord. 1914, ch. 64, § 15; Rev. Ords. 1946, ch. 26, § 25)

Sec. 23-120. Clearance of arc lamps over sidewalks.

All arc lamps overhanging sidewalks must be so placed as to leave a space of eight (8) feet clear between the lamp and sidewalk, unless specially insulated in a manner approved by the public service engineer.
(Ord. 1914, ch. 64, § 16; Rev. Ords. 1946, ch. 26, § 26)

Sec. 23-121. Clearance of wires over buildings.

All wires for conducting currents of electricity, when carried over buildings, shall be placed at least seven (7) feet above the highest point of flat main roofs, and eight (8) inches above the ridge of pitch roofs.
(Ord. 1914, ch. 64, § 19; Rev. Ords. 1946, ch. 26, § 27)

Sec. 23-122. Safety device required on low-tension wires entering buildings.

All telegraph, telephone, signal, district messenger and other low-tension wires entering buildings, shall be provided with a suitable safety device, satisfactory to the public service engineer, that will prevent the passage over them of a current of electricity greater than the service, for which such wires are used, demands. Such

device shall be located at such point in the circuit as the public service engineer shall direct, and, if possible, it shall be placed where the wires enter and leave the building.
(Ord. 1914, ch. 64, § 20; Rev. Ords. 1946, ch. 26, § 28)

Sec. 23-123. Lines, poles, fixtures, appurtenances to be kept in repair.

Every line, pole, fixture and its appurtenances, must be kept in thorough order and repair, and in conformity with this article.
(Ord. 1914, ch. 64, § 23; Rev. Ords. 1946, ch. 26, § 31)

Sec. 23-124. Duty to keep installations in safe repair and condition.

Every public service company, corporation or person placing, constructing, using or maintaining any poles, conduits, subways, manholes, pipes, wires, cables or other electrical or gas fixtures or appurtenances in, on, over, across or under any street or other public place, on any estate or building in the city, or suffering or permitting the same to be so placed, constructed, used or maintained, shall cause the same to be kept in proper and safe repair and condition. Whenever any of the same are defective for any reason or out of repair, or when the use thereof has been abandoned, or when otherwise unsafe in any particular or dangerous to persons or property, the public service engineer upon having knowledge thereof shall order any person responsible therefor as aforesaid to forthwith make such repairs, renewals or changes of the same as will put the same in proper and safe condition, or to remove the same when the use thereof has been abandoned.
(Ord. 1914, ch. 64, § 21; Rev. Ords. 1946, ch. 26, § 29)

Sec. 23-125. Inspection of apparatus, equipment, use thereof; notice, report of irregularities.

It shall be the duty of the public service engineer to inspect and see, or cause to be inspected and seen, that all poles, wires, cables, conduits, subways, manholes, pipes and other electrical and gas fixtures, apparatus, appliances and appurtenances, now or hereafter located, placed, constructed, used or maintained in, on, over, across or under the streets and other public places in the city, are located, placed, constructed, used and maintained in a proper and safe manner and condition, and in accordance with the terms and conditions of the grants or permissions for the same, and of any agreement or contracts with the city relative thereto, and of the provisions of this article, and of all laws, ordinances, rules and regulations pertaining thereto. In case of any failure by any public service company, corporation, or person to so locate, place, construct, use and maintain the same, he shall forthwith give notice thereof to the party concerned, and if the latter does not within a reasonable time observe and perform all such laws, ordinances, rules, regulations, terms and conditions, and all requirements to locate, place, construct, use and maintain the same in proper and safe manner and condition, said engineer shall make report thereof to the city council.
(Ord. 1915, ch. 106, § 3; Rev. Ords. 1946, ch. 26, § 6)

Sec. 23-126. Investigation, report of complaints to council.

It shall be the duty of the public service engineer to investigate any and all complaints or other matters referred to him by the city council or any committee thereof, particularly relative to any public service companies or any agreements or contracts of any public service companies with the city and the manner of the observance or performance of the terms or conditions thereof by such companies respectively, and to report thereon to the city council or such committee; and without such reference in his discretion he may investigate as to any complaints received by him relative thereto, and may in any case deemed by him of sufficient importance, report thereon to the city council or any appropriate committee thereof. In general he shall inspect and see or cause to be inspected and seen whether the public service companies, corporations and persons, having any fixtures or property located in any streets of the city are observing and performing the terms, conditions and obligations of or incident to their respective grants or franchises, their respective agreements or contracts with the city, the provisions of this article and all laws, ordinances, rules and regulations pertaining thereto, and in case of any failure to comply therewith he shall forthwith give notice thereof to the parties concerned, and if the latter do not within a reasonable time observe and perform the same, he shall make report thereof to the city council or any appropriate committee thereof.
(Ord. 1915, ch. 106, § 3; Rev. Ords. 1946, ch. 26, § 7)

Sec. 23-127. Refusal, neglect to comply with orders, directions of public service engineer.

In case any person after forty-eight (48) hours' notice, shall refuse or neglect to comply with any order or direction of the public service engineer, made under the provisions of this article, or to furnish information in relation to the wires or appurtenances of such person when requested, then said engineer shall cause any such wires or appurtenances that are defective or out of repair, or the use of which has been abandoned, or which are otherwise unsafe in any particular, or dangerous to persons or property, to be forthwith removed. Said engineer shall certify the amount of the expense of any such removal to the city solicitor, who shall take any proper legal action in behalf of said city to collect said expense from the person or corporation which refused or neglected to comply with such order.
(Ord. 1914, ch. 64, § 22; Rev. Ords. 1946, ch. 26, § 30)

Sec. 23-128. Installation of underground conduits.

(a) *Opening, encumbering street, way.* Relative to the installation of any line of underground conduits in any street or other traveled way in the city, no greater length of such street or way shall be opened and left dug up in the prosecution of the work than is approved in each case by the director of public works. Any person in

prosecuting such work shall not use or encumber any greater width of any such street or way to the detriment of public travel therein than is necessary, nor greater than is approved by said director in each case.

(b) *Barriers and safeguards.* Such person shall take all necessary precautions and install all necessary barriers and safeguards, and such as may be ordered by said director to be taken or installed, to guard against accidents and to protect the public in using any parts of such street or way not included in the place of the work.

(c) *Location.* All conduits and other underground work in any such street or way shall not be for any reason located in any other places therein than designated by said director, and if in the prosecution of the work any obstruction shall be met or practical difficulty shall arise as to so locating the same, notice thereof shall be at once given by such person to said director, and his further direction as to the location thereof shall be observed.
(Ord. 1914, ch. 64, § 26; Rev. Ords. 1946, ch. 26, § 34)

Sec. 23-129. Service connections for underground conduits, distribution ducts.

All service connections with underground conduits and distribution ducts shall be made from underground.
(Ord. 1914, ch. 64, § 26; Rev. Ords. 1946, ch. 26, § 35)

Sec. 23-130. Restoration of streets and sidewalks, other ways.

(a) *Duty.* All roadways and sidewalks in any streets or other traveled ways in the city, or any part thereof, which shall be opened or dug up by any person in the prosecution of any of his work, including inspection work, performed pursuant to the provisions of this article, shall be restored by such person at his expense to at least as good repair and condition as the same were when so opened or dug up, and in every case to sound and safe condition, and to the satisfaction of the public service engineer and director of public works. Every such restoration intended to be permanent shall be done as soon as it can be properly done, and in any case as soon as practicable after direction of said engineer or said director to permanently restore the same. Every place so opened or dug up, where the ground shall settle or the surface or pavement shall become broken or disintegrated, shall be further repaired and restored and maintained in sound and safe condition for a period of five (5) years from the time such ground was opened or dug up, to the satisfaction of said engineer and said director.

(b) *Effect of noncompliance.* If in any case such person shall not do so, said director, after giving such person five (5) days' notice in writing so to do, may cause any such work not then done to his satisfaction to be done, and shall charge the expense thereof to such person, and such person shall pay the same to the city within thirty (30) days after written notice of the amount of such expense shall be given such person by said director. Said director may cause any such work of opening or restoring the ground to

be supervised or inspected by any servants or agents of the city, and such person shall pay the city the cost of any such supervision or inspection within thirty (30) days after written notice of the amount of such cost shall be given such person by said director.
(Ord. 1914, ch. 64, § 25; Rev. Ords. 1946, ch. 26, § 33)

Sec. 23-131. Protection of city property from electrolysis.

Reasonable provision shall be made and maintained by every person conducting electricity by means of any wires or rails in any streets in the city to protect the pipes, conduits and other property in the streets belonging to the city from any damage by electrolysis caused by the current of electricity of such person; and such person shall pay to the city the amounts of all damages suffered by it from electrolysis caused as aforesaid, but this provision for payment shall not prejudice any legal or equitable rights or defenses of the city or such person.
(Ord. 1914, ch. 64, § 27; Rev. Ords. 1946, ch. 26, § 36)

Sec. 23-132. Examinations, tests and reports as to electrolysis.

The public service engineer is hereby empowered to make, and shall from time to time, and whenever requested by the director of public works, make examinations and tests to determine whether any pipes, conduits or other property of the city in the streets or other public ways or places are being damaged by electrolysis, and if so the source of the current causing the damage. Upon determining any such damage or the source thereof, he shall forthwith make report of the same to the director of public works, and give notice thereof to any public service company, corporation or person concerned. If he shall at any time discover that any rails or return ground wires are so deficient in continuity or conductivity as to cause or to be liable to cause damage by electrolysis to any fixture or property in any street or other public way or place, he shall forthwith make report and give notice thereof as aforesaid.
(Ord. 1914, ch. 64, § 28; Rev. Ords. 1946, ch. 26, § 37)

Sec. 23-133. Tests and examinations of character of product of public service companies.

(a) *Duty.* The public service engineer is hereby empowered to make, and from time to time shall make, examinations and tests to determine, and shall determine the quality, pressure, voltage and character of the product furnished in the city by public service companies supplying currents of electricity or gas for light, heat or power.

(b) *Right of access.* He and any assistant authorized by him shall have access at any reasonable time or times to any and all buildings, conduits, manholes, subways, poles, lamps, wires, pipes, apparatus and machinery in the city of any public service company for the purpose of making any examination or test of the same to determine the safety thereof or the service rendered by means thereof, or in the discharge of any other of his official duties, and in such manner as not unreasonably to interfere with the proper and safe operation of such equipment, apparatus or appliances, provided

he or such assistant before entering any such manhole, conduit or subway of any such company shall notify it of such intention, in order that a representative of such company may be present.
(Ord. 1914, ch. 64, § 30; Rev. Ords. 1946, ch. 26, § 39)

Sec. 23-134. Tests and examinations of safety of installations.

The public service engineer shall have access at any reasonable time or times to all subways, conduits and manholes in or under any street or traveled way in the city, and to the wires, cables, pipes, fixtures and appurtenances therein of any person, for the purpose of making any examination or test of the same to determine the safety thereof, and for the purposes hereof, the provisions of section 23-133 shall apply.
(Ord. 1914, ch. 64, § 30; Rev. Ords. 1946, ch. 26, § 39)

Sec. 23-135. Authority to order electric current to be shut off.

The public service engineer shall have authority at any time, when in his opinion the public safety requires it, to require any public service company, corporation or person owning, operating or using any wire within the city to shut off the electric current therefrom for such period of time as he may deem necessary, without such engineer or the city being liable for any damage caused to any such company, corporation or person thereby.
(Ord. 1914, ch. 64, § 31; Rev. Ords. 1946, ch. 26, § 40)

Sec. 23-136. Authority of public service engineer over city lights.

The public service engineer, acting under the advice and direction of the committee on public works, shall have the general control and supervision of all public lights used by the city for illuminating its streets, highways, parks and public places. He shall keep himself acquainted with the condition of all public lights, cause the same to be regularly inspected and keep such a record relating to the public lights as shall be prescribed by said committee.
(Ord. 1914, ch. 49, § 16; Rev. Ords. 1946, ch. 26, § 44)

Sec. 23-137. Causing city lights to be set up.

The public service engineer, subject to the approval of the committee on public works, shall cause to be set up such and so many lights in the streets, highways, parks and public places in the city, for the purpose of lighting the same as the committee shall, from time to time, determine to be necessary.
(Ord. 1914, ch. 49, § 18; Rev. Ords. 1946, ch. 26, § 48)

Sec. 23-138. Schedule for lighting, extinguishing city lights.

The public service engineer shall prepare a time schedule for lighting and extinguishing the public lights of the city, see that such schedule is enforced and

perform or cause to be performed such duties in connection with superintending the work of lighting the streets, highways, parks and public places in the city as shall, from time to time, be prescribed by the committee on public works or by the city council.
(Ord. 1914, ch. 49, § 16; Rev. Ords. 1946, ch. 26, § 45)

Sec. 23-139. Duty as to city lights found not burning.

The chief of police is hereby directed to cause the daily report of city street lights found "out" with the hour and location of such "outs," to be forwarded to the office of the public service engineer daily, and said public service engineer shall deduct or cause to be deducted from the bills for street lighting the number of hours of outages of public lights, so reported by the police department, from the monthly bills for public lights before the same are presented to said committee on public works for approval.
(Ord. 1914, ch. 49, § 17; Rev. Ords. 1946, ch. 26, § 46)

Sec. 23-140. Certifying bills for city.

It shall be the duty of the public service engineer to certify all bills incurred for lighting the city streets, highways, parks and public places, on or before the fifteenth day of each calendar month to said committee on public works, and it shall be the duty of said committee to meet on or before the fifteenth day of each month for the approval or disapproval of said bills for such lighting.
(Ord. 1914, ch. 49, § 17; Rev. Ords. 1946, ch. 26, § 47)

Sec. 23-141. Identification of persons erecting or repairing wires, appurtenances.

No person shall labor upon the work of erecting or repairing any electrical wires or appurtenances, without having conspicuously attached to his dress a medal or badge on which shall be legibly inscribed the name of the owner thereof, by whom he is employed, and a number by which he can be readily identified; and no person shall labor upon any electrical wires or appurtenances for any person under the protection of a badge issued to him as an employee of any other corporation.
(Ord. 1914, ch. 64, § 24; Rev. Ords. 1946, ch. 26, § 32)

Sec. 23-142. Public service engineer to keep maps showing locations of installations.

The public service engineer shall keep in his office a map accurately showing the location of all poles, conduits, subways, manholes and pipes, indicating or stating thereon or on papers annexed thereto the general if not particular locations and substantially the number of all wires and cables, in, over, across or under the streets

and other public ways and places in the city, including parks and playgrounds of the city, and of all such wires and cables over buildings in the city, and also a record of the names of the owners of each and all of the same.
(Ord. 1914, ch. 64, § 33; Rev. Ords. 1946, ch. 26, § 42)

Sec. 23-143. Public service engineer to keep records of examinations, tests, orders, work; reports.

The public service engineer shall, in books of the city to be kept in his office, make a record of all examinations, tests and determinations made by him, of all orders given by him and of his general work and doings, and shall make such reports thereof in writing to the director of public works as may be requested by the director.
(Ord. 1915, ch. 106, § 4; Rev. Ords. 1946, ch. 26, § 43)

Sec. 23-144. Eruv.

(a) Preamble. An "eruv" is a physical boundary-made out of wire and connected to preexisting overhead utility poles, streetlights, and other vertical posts, as required-that, in Jewish law, signifies the boundary within which activities usually forbidden to be done in public on the Jewish Sabbath-such as carrying keys and pushing a baby stroller-are permitted. The city currently contains an eruv (the "Eruv"). The Eruv is installed and maintained by the Providence Eruv Corporation (the "PEC"), a 501(c)(3) organization incorporated in the state. The Eruv presently covers part of the city and part of the City of Pawtucket. As part of the boundary, the Eruv sometimes requires the use of public property to hang wires that will also extend across the public way.

(b) To the extent permissible by law, the city allows the PEC to maintain, operate, replace, or remove the Eruv already in place to the extent that the PEC uses any city property (including, but not limited to, city buildings and poles) as part of the Eruv or has portions of the Eruv occupying the public way, subject to the following limitations:

(1) *Compliance with the law*. The PEC shall comply with all applicable federal, state, and local laws, ordinances, rules, and regulations, in the installation, maintenance, removal, and any other matter relating to the Eruv. This includes, but is not limited to, ensuring no obstruction to public rights of way, ensuring no disruption in utility or city services, and seeking permission of any and all other entities which may own or use the property that is used as part of the Eruv.

(2) *Eruv maintenance*. The PEC shall be solely responsible for the installation, maintenance, removal, costs associated therewith, and any other matters relating to the Eruv. Furthermore, the PEC shall install, maintain, remove, and otherwise operate the Eruv in such a way so as not to interfere with the

structural integrity or the proper functioning of any of the city's property, as well as in such a way so as to not pose any danger to any of the city's employees or contractors, or the general public.

(3) *City's right to maintain its property*. Nothing in this section limits the right of the city, its employees, contractors, and servants to install, remove, maintain, repair, or otherwise care for its property, including property upon which the Eruv is affixed, as it deems fit. The city shall not be responsible for providing notice to the PEC of any such activity, nor shall it be responsible for providing notice of any interruption to the Eruv as a result of any such activity.

(4) *Damage or theft*. The city shall not be responsible for any damage, theft, or interruption of any kind relating to the Eruv. The city shall not be responsible for providing notice to the corporation of any such damage, theft, or interruption of any kind.

(5) *Insurance coverage*. The PEC, shall secure a general liability policy, at its own expense, in an amount not less than one million dollars ($1,000,000.00). Such policy shall name the city, its officers, employees, and servants as additional insureds and contain an endorsement extending coverage to the city, its officers, employees, and servants. Within thirty (30) days of obtaining such a policy, the PEC shall provide the city clerk with a copy of the operative document showing that the city, its officers, employees, and servants are covered under the policy. At least thirty (30) days prior to the expiration of such policy, the PEC shall provide written notice to the city that the PEC and the city, its officers, employees, and servants will be insured for at least an additional six (6) months from the date of expiration of the policy. Such written notice shall include a copy of the new operative document showing that that the city, its officers, employees, and servants are covered under the policy.

(6) *Release*. The PEC shall release, defend, and indemnify the city, its officers, employees, contractors, and servants from any and all liability relating to installation, maintenance, removal, and any other matter relating to the Eruv. The PEC further shall release, defend, and indemnify the city and its officers, employees, contractors, and servants from any and all liability relating to actions, causes of action, claims, demands, damages, costs, loss of services, expenses, compensation, third-party actions, suits at law or in equity, including claims or suits for contribution and/or indemnity, of whatever nature, and all consequential damages that are brought or may be brought against the city concerning the Eruv, as well as any actions or occurrences, whether negligent, intentional, or criminal, on or with respect to the Eruv, including, but not limited to, any claims for property damage, personal injuries, and damages or injuries of any kind. The corporation

further represents that all persons participating in the installation, maintenance, and/or removal of the Eruv assume the risk of any and all damages resulting from such actions, including any and all risks posed by city property.

(7) *Revocation*. The city's director of public works, or his or her designee, may revoke permission granted under this ordinance for any reason, at any time, with or without cause. Upon providing notice to the PEC of such revocation, the PEC shall, within twenty-four (24) hours, remove, or have removed, the Eruv, or any portion thereof, hanging in the public way, using city property, or necessitating removal. The city's director of public works, or his or her designee, may nullify his or her revocation at any time, allowing the Eruv to continue as it existed prior to the revocation by the director, or his or her designee.

(c) Modification/expansion. If the PEC intends to modify or expand the Eruv in any way, plans for that modification must be approved by the city's director of public works before implementation.
(Ord. No. 2018-70, § 1, 11-20-18)

Secs. 23-145—23-153. Reserved.

ARTICLE VI. BRIDGES*

Sec. 23-154. Reserved.

Editor's note—Ord. No. 2024-11, § 2, adopted April 5, 2024, repealed § 23-154, which pertained to weight of vehicles on bridges and derived from Ord. 1927, ch. 579, § 1; Rev. Ords. 1946, ch. 33, §§ 24, 30, 31. The user's attention is directed to § 15-141.

***Cross reference—**Regulation of harbor, harbor lines, etc., § 11-1 et seq.

State law references—Special act authorizing city to build bridge across Providence River, P. L. 1868, ch. 772, as amended by P. L. 1870, ch. 880; regulation of bridges generally, ch. 24-8, Gen. Laws 1956; provisions exempting Red Bridge from operation of ch. 24-8, Gen. Laws 1956, which regulates bridges generally, § 24-8-30, Gen. Laws 1956; special act authorizing construction of bridge upon site of "Red Bridge," P. L. 1894, ch. 1332; special act authorizing construction of bridge near site of Providence Washington Bridge, P. L. 1883, ch. 349.

Sec. 23-155. Speed on bridges.

No person shall drive or conduct, or suffer to be driven or conducted, while under his care or control, any horse or other animal, automobile or other vehicle over any portion of the draw of any existing bridge in the city at a rate faster than that fixed by the director of public works.
(Ord. 1914, ch. 10, §§ 1, 13; Rev. Ords. 1946, ch. 33, §§ 12, 25)

State law reference—Council authorized to regulate speed of driving animals over bridges, § 45-6-1, Gen. Laws 1956.

Sec. 23-156. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-156, which pertained to use of horn, siren to indicate opening and closing draw and derived from Ord. 1914, ch. 10, § 2 and Rev. Ords. 1946, ch. 33, § 13.

Sec. 23-157. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-157, which pertained to driving on bridge after signal for opening and derived from Ord. 1914, ch. 10, §§ 3, 14 and Rev. Ords. 1946, ch. 33, §§ 14, 26.

Sec. 23-158. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 231-58, which pertained to remaining on bridge unnecessarily and derived from Ord. 1914, ch. 10, §§ 4, 15 and Rev. Ords. 1946, ch. 33, §§ 15, 27.

Sec. 23-159. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 231-59, which pertained to signal required when draw cannot be opened and derived from Ord. 1914, ch. 10, § 11 and Rev. Ords. 1946, ch. 33, § 22.

Sec. 23-160. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-160, which pertained to signals to be given by vessels and derived from Ord. 1914, ch. 10, § 5 and Rev. Ords. 1946, ch. 33, § 16.

Sec. 23-161. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-161, which pertained to vessels to take right-hand passage through draw of bridge and derived from Ord. 1914, ch. 10, § 6 and Rev. Ords. 1946, ch. 33, § 17.

Sec. 23-162. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-162, which pertained to vessels not to pass abreast through draw-opening and derived from Ord. 1914, ch. 10, §§ 7, 16 and Rev. Ords. 1946, ch. 33, §§ 18, 28.

Sec. 23-163. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-163, which pertained to speed of vessels through draw-opening and derived from Ord. 1914, ch. 10, § 8 and Rev. Ords. 1946, ch. 33, § 19.

Sec. 23-164. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-164, which pertained to opening bridge for licensed vessels only and derived from Ord. 1914, ch. 10, § 9 and Rev. Ords. 1946, ch. 33, § 20.

Sec. 23-165. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-165, which pertained to sailing vessels permitted ten minutes to pass through draw and derived from Ord. 1914, ch. 10, § 10 and Rev. Ords. 1946, ch. 33, § 21.

Sec. 23-166. Reserved.

Editor's note—Ord. 2010, ch. 2010-34, § 2, adopted Sept. 16, 2010, repealed § 23-166, which pertained to obstructing persons in charge; injuring or defacing, making fast to bridge and derived from Ord. 1914, ch. 10, §§ 12, 17 and Rev. Ords. 1946, ch. 33, §§ 23, 29.

ARTICLE VII. STREET AND SIDEWALK SWEEPING*

Sec. 23-167. Street sweeping.

(a) The department of public works shall be required to sweep every street within the city at a minimum of six (6) times per year.

(b) The director of the department of public works shall maintain a street sweeping calendar that clearly identifies a recurring schedule that each street shall be swept.
(Ord. No. 2022-14, § 1, 4-25-22)

*__Editor's note—__**Ord. No. 2022-14, § 1, adopted April 25, 2022, repealed the former art. VII, §§ 23-167—23-169, and enacted a new art. VII as set out herein. The former art. VII pertained to similar subject matter and derived from Ord. No. 2020-48, § 1, adopted Oct. 26, 2020.

Sec. 23-168. Sidewalk sweeping.

(a) The department of public works shall be required to sweep the sidewalks along all principal arterials, minor arterials, major collectors, and minor collectors as classified by the State of Rhode Island Division of Statewide Planning within the city at a minimum of three (3) times per year.

(b) The director of public works shall maintain and post electronically for public viewing a street sweeping calendar that clearly identifies the recurring schedule that each sidewalk shall be swept.
(Ord. No. 2022-14, § 1, 4-25-22)

Sec. 23-169. Notice of street and sidewalk sweeping.

(a) The department of public works shall provide notice to the public forty-eight (48) hours in advance of any street or sidewalk sweeping.

(b) The department of public works shall post signs along the route to be swept that clearly identify the day and time for sweeping, as well as requesting that all vehicles be removed from the street for the duration of the sweeping process.
(Ord. No. 2022-14, § 1, 4-25-22)

Sec. 23-170. Parking bans.

The director of public works may declare either a full or partial parking ban (parking on one (1) side of the street only) to cause motor vehicles to be removed from the streets in order to assist with the street sweeping efforts outlined in this article. Any parking ban implemented pursuant to this section shall require advance notice to be posted along the impacted street(s) in compliance with section 23-169.

The director of public works may promulgate such additional rules and regulations as may be deemed necessary to implement such a parking ban.
(Ord. No. 2022-14, § 1, 4-25-22)

Secs. 23-171—23-190. Reserved.

ARTICLE VIII. GREEN AND COMPLETE STREETS*

Sec. 23-191. Vision and purpose.

Streets and sidewalks in the City of Providence carry not only people and goods, but also various utilities, including stormwater runoff. City streets also represent a

*__Editor's note—__Ord. No. 2021-29, § 1, adopted July 27, 2021, set out provisions intended for use as art. VII, §§ 23-167—23-173. Inasmuch as there were already provisions so designated, said sections have been codified herein as art. VIII, §§ 23-191—23-197 at the discretion of the editor.

sizeable portion of the city's overall land use and its publicly managed trees, and serve as windows into the city for visitors and residents alike. City streets and sidewalks serve people of all ages and abilities, while creating more mobility and independence for young people, seniors, and people with disabilities. They serve motorists and non-motorists, residents in wheelchairs, parents pushing strollers, kids biking and walking to school, and people who can't afford or don't want motor vehicles.

The city shall develop a safe, reliable, equitable, efficient, inviting, integrated and connected multimodal transportation system that will promote access, mobility and health of all kinds for all users and abutters, including people with mobility aids, and that will improve environmental quality and reduce polluted stormwater runoff. The goal of the city is to create a connected network of right-of-way facilities accommodating all modes of travel to the maximum practical extent and to promote the walkability and bikeability of the city's streets and sidewalks, along with good access to public transportation, beautification and shade from right-of-way trees, parks, schools, healthy food retail establishments, and responsible reduction and treatment of polluted stormwater.
(Ord. No. 2021-29, § 1, 7-27-21; Ord. No. 2023-49, § 1, 12-21-23)

Sec. 23-192. Definition.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Environmental justice areas shall mean any areas of the city identified through a current local, state, or federal mapping effort and validated by residents of those areas to prioritize improvements to environmental sustainability and health such that no group of people bear a disproportionate share of the negative environmental consequences resulting from industrial, governmental, and commercial operations or the execution of federal, state, and local programs and policies.

Green and complete streets means streets that are designed and operated to enable safe equitable access for all users, in that pedestrians, bicyclists, motorists and public transportation users of all ages and abilities are able to safely move along and across a street, provide for visual pleasure, including exposure to natural elements, promote cooling via robust tree canopy, and improve environmental quality by providing for reduction, accommodation, and on-site pretreatment of stormwater prior to eventual release into local waterways and the Narragansett Bay as part of a comprehensive stormwater management system.

Significant construction or *repair projects* shall mean any project that changes the curb line, curb cuts, or traffic geometry, any project that includes restriping of traffic geometry, any removal of complete streets features, or any new construction or improvement of off-road bicycle paths or multi-use trails, that is located on any

streets, paths, or intersections designated as needing improvements in the city's great streets plan, any street categorized as an arterial or collector road, or any such construction or repair project within three hundred (300) feet of a school or city recreation center.

Vulnerable road users shall mean any person walking; person bicycling; police officer or emergency worker on duty when outside of a vehicle; road worker performing duties outside of a vehicle; person riding on or driving a wheelchair, motorized or not; person riding on a scooter, motorized or not; person using a skateboard, inline skate, or roller skates.
(Ord. No. 2021-29, § 1, 7-27-21; Ord. No. 2023-49, § 1, 12-21-23)

Sec. 23-193. Scope of applicability.

(a) All publicly-owned transportation facilities in the public right-of-way including, but not limited to, streets and all other connecting pathways, as well as parking lots on publicly-owned land, shall be designed and constructed in conformance with the policy that users of all ages and abilities can travel safely and independently, residents and visitors experience pleasantly-designed urban streetscapes that incorporate greenery and shade trees, and stormwater is both reduced and treated on-site prior to entering the city's combined stormwater and wastewater conveyance system.

(b) The city shall make good faith efforts to foster partnerships with the State of Rhode Island and neighboring communities to develop facilities and accommodations that further the goals presented in both the Providence Great Streets Master Plan as well as the city's green and complete streets policy, as set forth in this article, and continue such infrastructure beyond the city's borders.

(c) The city shall approach every transportation improvement and project phase as an opportunity to create safer, more accessible, and more equitable streets for all users that are more attractive and that better manage stormwater. The design of new, rehabilitated, restored, resurfaced, or reconstructed facilities shall prioritize the safety and wellbeing of vulnerable road users and those living in environmental justice areas, and should anticipate likely future demand for bicycling, walking, transit, and motorist use, beautification elements, mitigation of urban heat island effect and stormwater runoff through increased tree canopy and other green infrastructure, and should not preclude the provision of future improvements. These phases include, but are not limited to: planning, programming, design, right-of-way acquisition, construction, construction engineering, reconstruction, operation and maintenance. Other changes to transportation facilities on streets and rights-of-way, including capital improvements, re-channelization projects and major maintenance, must also be included.

(d) This article shall apply to all persons and entities that apply for and receive permits from the department of public works to perform construction, improvements and/or repairs on public roadways in the city, in accordance with rules and regulations promulgated by the department of public works.

(e) The city shall utilize the performance measures as described in section 23-173 to identify improvement projects to be included in the city's capital improvement plan and/or street pavement plan. The projects shall be identified based on their ability to address design issues on city-owned transportation facilities, such as improved safety and ease of use.

(f) All transportation infrastructure and street design projects in the city shall adhere to the requirements of this Article and Rhode Island General Law §24-16-2 titled "Complete Street Design."

(g) All projects initiated by the city council through the use of neighborhood infrastructure funds (NIF) and community development block grant (CDBG) funding shall be exempt from the requirements of this article.
(Ord. No. 2021-29, § 1, 7-27-21; Ord. No. 2023-49, § 1, 12-21-23)

Sec. 23-194. Green and complete streets advisory council.

(a) There is hereby created a Green and Complete Streets Advisory Council. The advisory council shall be comprised of the following members:

(1) The director of public works or his/her designee who shall serve as a non-voting ex-officio member,

(2) The director of planning and development or his/her designee who shall serve as a non-voting ex-officio member,

(3) The commissioner of public safety or his/her designee who shall serve as a non-voting ex-officio member,

(4) The director of the office of sustainability or his/her designee who shall serve as a non- voting ex-officio member,

(5) The city forester or his/her designee who shall serve as a non-voting ex-officio member,

(6) Three (3) members appointed by the mayor,

(7) Four (4) members appointed by the city council,

(8) Two (2) alternate members, one (1) appointed by the mayor and one (1) appointed by the city council. Where a regular member is unable to serve, the first alternate member may vote in his/her absence; the second alternate shall vote if two (2) regular members are unable to serve.

(b) All appointed members shall be residents or domiciliaries of the city and shall each serve for terms of two (2) years. None of the appointed members shall be an elected officer or employee of the city. Vacancies shall be filled for the unexpired term. Members shall serve beyond the date of expiration of the term to which they are appointed unless reappointed or until a replacement is appointed. At the first meeting of the advisory council the voting members shall elect a chairperson by a simple majority vote.

(c) In appointing members to the Green and Complete Streets Advisory Council, the mayor and city council shall give due consideration to appointing members with expertise in the following areas: civil engineering, architecture, city planning, and environmental sustainability. In addition to the above described areas of expertise, the mayor and city council shall also give due consideration to appoint members who represent the diverse communities of the city.

(d) The Green and Complete Streets Advisory Council shall include at least one (1) representative of the aging community and a minimum of one (1) member representing the disability community. One (1) of the representatives mentioned in this subsection shall be appointed by the mayor and one (1) shall be appointed by the city council such that each community identified in this subsection is represented.

(e) All meetings of the Green and Complete Streets Advisory Council shall be subject to the provisions of the Rhode Island Open Meetings Act.

(f) The department of planning and development shall staff the Green and Complete Streets Advisory Council, with the department of the city clerk providing administrative support.

(g) A quorum of the Green and Complete Streets Advisory Council shall be at least three (3) voting members.
(Ord. No. 2021-29, § 1, 7-27-21; Ord. No. 2023-49, § 1, 12-21-23)

Sec. 23-195. Implementation.

(a) The city shall follow accepted or adopted design standards and use the best and latest design standards available. These standards include, but are not limited to designing walkable urban thoroughfares: A Context Sensitive Approach, NACTO's Urban Street Design Guide, and the Rhode Island Department of Environmental Management's Low Impact Design (LID) standards as reflected in its Stormwater Design Manual (2015) and LID Guide (2011). Links to these design standards shall be made publicly available on the city's website. In recognition of context sensitivity, public input and the needs of many users, a flexible, innovative and balanced approach that follows other appropriate design standards may be considered, provided that it provides a comparable level of safety for all users.

(b) All significant construction or repair projects subject to this article shall be presented to the Green and Complete Streets Advisory Council by the sponsoring public agency for review during both the project's initial scoping phase and preliminary design phase.

(1) The advisory council's role in reviewing projects shall be advisory only.

(2) As part of its review, the advisory council members shall consider the project's level of compliance with this article, and whether it implements the elements of the city's great streets plan and other planning and policy documents adopted by the city, where applicable.

(3) The sponsoring public agency shall supply the Green and Complete Streets Advisory Council with all documents and plans at least fourteen (14) calendar days in advance of the regularly scheduled advisory council meeting at which the project is intended to be reviewed. Documents and plans shall be submitted to the staff of the advisory council in an electronic format and all submissions shall be accompanied by all documentation reasonably necessary to evaluate the project.

(4) Once documents and plans for a project have been received by the advisory council, the advisory council shall either review the project or decline to review the project within forty-five (45) calendar days of receipt of the documents and plans. Failure of the advisory council to act within the prescribed period shall constitute a declination to review the project and a letter documenting this decline shall be issued from the staff of the advisory council to the director of the department of public works.

(5) All decisions relating to recommendations regarding projects by the advisory council shall be made available in writing to the director of department of public works and the director of planning and development no more than twenty-one (21) calendar days from the date of the advisory council meeting at which the decision was made.

(6) The director of public works shall document and communicate to staff for the advisory council the reasons that a project will deviate from the advisory council's written recommendations.

(c) Traffic calming improvements shall be evaluated as follows:

(1) The traffic engineer shall conduct traffic studies each month, prioritizing obtaining traffic data on:

a. Streets with the most collisions in the preceding three (3) years that have not yet been studied by the traffic engineer, especially those with high levels of collisions involving people walking or bicycling,

b. Streets included in the great streets plan,

c. Streets with at least two (2) individuals requesting for traffic calming improvements,

d. Streets the city plans to resurface within the next twelve (12) months,

e. Streets throughout the city, such that each ward contains at least one (1) street studied for traffic calming improvements every six (6) months.

(2) Based on the conducted studies, streets that are found to exceed at least one (1) of the following quantitative thresholds shall automatically and immediately be granted preliminary approval by the traffic engineer for traffic calming improvements:

a. Fifteen (15) percent of motor vehicles traveling faster than thirty (30) mph over the study period,

b. Twenty (20) percent of motor vehicles traveling faster than thirty-five (35) mph for consecutive two-hour periods on two (2) days within the study period,

c. Ten (10) percent of motor vehicles traveling faster than twenty (20) mph over the study period on a street narrower than eighteen (18) feet,

d. Three thousand (3,000) motor vehicles average daily traffic on a local road,

(3) The Green and Complete Streets Advisory Council may recommend that additional streets be granted preliminary approval for traffic calming improvements by the traffic engineer. Streets that are eligible for this discussion must meet one (1) of the following quantitative thresholds:

a. Five (5) percent of motor vehicles traveling faster than thirty (30) mph over the study period on a local or collector road.

b. Two thousand (2,000) motor vehicles average daily traffic on a local or collector road.

c. Fifty (50) collisions per million vehicle miles over a three-year period.

d. Twenty (20) persons injured per million vehicle miles over a three-year period.

(4) All streets receiving preliminary approval____for traffic calming improvements shall be prioritized for installation first by the number of injuries recorded over a three-year period and then by their ninety-fifth percentile speeds.

(5) In consultation with staff from the police department, fire department, department of planning and development, and the city council, the traffic engineer shall evaluate the most appropriate design for improvement. This design must be completed within six (6) months of the advisory council's recommendation, unless the advisory council shall issue a waiver of the six-month period.

(6) The director of planning and development shall review for final approval plans prepared by the traffic engineer for streets preliminarily approved for traffic calming improvements.

(7) The department of public works shall install traffic calming improvements upon final approval in the prioritized order determined in subsection (5).

(8) During the three (3) months following installation of traffic calming improvements, the traffic engineer shall conduct a second traffic study for each installed location to evaluate the effectiveness of the improvements. If this traffic study still qualifies the location for preliminary approval under subsections (2) or (3), additional improvements shall be evaluated by the traffic engineer according to the above process.

(9) All advisory opinions rendered by the advisory council shall be published on the city's website within fourteen (14) calendar days of issuance.

(d) The Green and Complete Streets Advisory Council shall review on an annual basis all existing plans, manuals, checklists, decision-trees, rules, regulations, and programs of city departments as appropriate (including, but not limited to any short-term, medium-term, and long-term capital plans) for compliance with green and complete streets principles. The advisory council shall annually provide a written report to the city council and administration outlining all suggested changes to such land use policies, zoning ordinances, etc. that will better align with green and complete streets principals.

(e) The Green and Complete Streets Advisory Council shall review all current street and sidewalk design standards to ensure that they reflect the best available design standards and guidelines, and effectively implement green and complete streets, where feasible.

(f) The Green and Complete Streets Advisory Council shall ensure equitable and inclusive community engagement for all project phases from planning to implementation.

(g) When available, the city shall make good faith efforts to encourage staff professional development and training on non-motorized transportation issues and best practices of right-of-way green infrastructure through attending conferences, classes, seminars, and workshops.

(h) City staff shall make good faith efforts to identify all current and potential future sources of funding for street improvements and recommend improvements to the project selection criteria to support the green and complete streets projects.

(i) The city shall create plans and set goals to ensure the successful implementation of this article in environmental justice areas and shall prioritize environmental justice areas for improvements.

(j) Projects developed under this article shall improve ease of travel, comfort and safety for people with disabilities and the elderly.

(k) The city shall promote inter-departmental project coordination among city departments with an interest in the activities that occur within the public right-of-way in order to better use fiscal resources. All city boards and commissions may seek the advisory opinion of the Green and Complete Streets Advisory Council on matters pertinent to this article. The act of seeking an advisory opinion shall not prevent a board or commission in fulfilling obligations outlined by law, including compliance with review timelines.

(l) The city shall make good faith efforts to include an educational component to ensure that all users of the transportation system understand and can safely utilize green and complete streets project elements.

(m) The city shall make good faith efforts to encourage improved access to public transit, parks, schools, and healthy food retail establishments, in all development plans reviewed and approved by the city.
(Ord. No. 2021-29, § 1, 7-27-21; Ord. No. 2023-49, § 1, 12-21-23)

Sec. 23-196. Exceptions.

(a) Applications for waivers or exceptions shall be reviewed and approved by the Green and Complete Streets Advisory Council based on the following criteria:

(1) An affected roadway prohibits, by law, use by specified users, in which case a greater effort shall be made to accommodate those specified users elsewhere, including on roadways that cross, run parallel to, or otherwise intersect with the affected roadway;

(2) The activities are ordinary maintenance activities designed to keep assets in serviceable condition (including, but not limited to, mowing, cleaning, sweeping, spot repair and surface treatments such as chip seal or interim measures);

(3) The director of planning and development issues a recommendation that the application of this article is unnecessary or unduly cost prohibitive, based upon all reasonable alternatives commensurate to the project scope of work being exhausted and documented, in which case a greater effort shall be made to accommodate those specified users elsewhere, including on roadways that cross or otherwise intersect with the affected roadway.

(4) Other available means or factors indicate an absence of need, including future need.

(b) Notwithstanding the provisions of subsection (a), the commissioner of public safety may issue a waiver or an exception in the form of an executive order if application of this article would be contrary to public safety, with notice given to the Green and Complete Streets Advisory Council within two (2) business days from the date of the commissioner's decision regarding said application.

(c) All documentation regarding any waiver or exception application shall be publicly available.

(d) All proposed exceptions must be mode-specific, specifying which complete streets principles should be exempted. Infeasibility of one (1) mode of transportation should not exempt a project from incorporating other complete streets principles.

(e) Significant changes to projects that had project plans reviewed by the Green and Complete Streets Advisory Council during the preliminary design phase must also utilize the waiver procedure in this section if the safety of the improvements would be diminished compared to the reviewed plans.
(Ord. No. 2021-29, § 1, 7-27-21; Ord. No. 2023-49, § 1, 12-21-23)

Sec. 23-197. Performance measures and reporting.

A report shall be submitted annually to the city council and placed on the city's website by the director of public works and the director of planning. The annual report shall document the annual increase or decrease for each of the following.

(1) Assessment of linear feet of sidewalk in need of repair or construction to be performed on an annual basis;

(2) Replacement of non-ADA compliant curb ramps;

(3) Number of intersection legs without crosswalks;

(4) Total miles of bike lanes;

(5) Number of street trees;

(6) Maintenance activities of existing green and complete streets facilities;

(7) Number of traffic complaints and calming requests by street name;

(8) Number and severity of traffic violations and crashes by mode;

(9) Total dollar amount spent on green and complete streets activities;

(10) Number of new stormwater management improvements in the city;

(11) Number of traffic calming devices installed, as well as those evaluated and approved for installation;

(12) Number of crosswalk and intersection improvements installed;

(13) Number of people biking on a representative sample of streets and trails;

(14) Number of people riding Rhode Island Public Transit Authority buses within the city;

(15) Number of applications and waivers requested and granted, along with the justification for any waivers granted;

(16) Opportunities for community stakeholders in environmental justice areas to influence how these improvements are prioritized;

(17) Number of green and complete streets improvements made in environmental justice areas.

(Ord. No. 2021-29, § 1, 7-27-21; Ord. No. 2023-49, § 1, 12-21-23)

Chapter 23½

TREES*

Article I. In General

Sec. 23½-1. Short title.
Sec. 23½-2. Value of urban trees.
Sec. 23½-3. Violation and penalty.
Sec. 23½-4. Definitions.
Sec. 23½-5. Interference with city forester.
Sec. 23½-6. Waiver for emergencies.
Sec. 23½-7. Moving large objects.
Sec. 23½-8. Nonapplicability to one- and two-family residences.
Secs. 23½-9—23½-20. Reserved.

Article II. Administration

Sec. 23½-21. Authority and responsibility of board of park commissioners.
Sec. 23½-22. Appeals.
Sec. 23½-23. Mary Elizabeth Sharpe Street Tree Advisory Committee.
Sec. 23½-24. City forester—Appointment and qualifications.
Sec. 23½-25. Same—Duties, generally.
Sec. 23½-26. Same—Authority and responsibility.
Sec. 23½-27. Permits.
Sec. 23½-28. Registration of tree experts.
Secs. 23½-29—23½-40. Reserved.

Article III. Standards for Planting and Maintenance

Sec. 23½-41. Protection.
Sec. 23½-42. Pruning.
Sec. 23½-43. Proposed development on public land.

***Cross references—**Injury to trees in cemetery, § 6-35; malicious injury to trees, generally, § 16-4.

ARTICLE I. IN GENERAL

Sec. 23½-1. Short title.

This chapter be known and may be cited as the "City Tree Ordinance of the City of Providence, County of Providence, State of Rhode Island."
(Ord. 1985, ch. 85-59, § 2, 5-21-85)

Sec. 23½-2. Value of urban trees.

Trees are economically beneficial in attracting new industry, residents and visitors. Healthy trees of the right size and species, growing in the right places enhance the value and marketability of property and promote the stability of desirable neighborhoods, thus helping to prevent the emergence of blighted areas and slum conditions. Providence, Rhode Island is situated in an area covered with a variety of trees and shrubs that are a vital part of the heritage passed to us by nature and our forefathers. However, there is much concern over the recent indiscriminate destruction of trees in both public and private places.

Trees are recognized as a valued asset, providing a healthier and more beautiful environment in which to live. They provide oxygen, shade, esthetics, and a priceless psychological counterpart to the manmade, urban setting. Trees aid in preventing erosion, siltation of streams and reservoirs, flash flooding, and air, noise, and visual pollution.
(Ord. 1985, ch. 85-59, § 1, 5-21-85)

Sec. 23½-3. Violation and penalty.

Any person violating or failing to complying with any of the provisions of this chapter shall be subject to court action and upon conviction thereof, shall be subject to the penalties contained in section 1-10 of the Code of Ordinances of the City of Providence.

In addition, the person shall replace the tree and/or repair damage with a size and species permitted by the city forester.

Each tree affected by noncompliance with this chapter shall constitute a separate violation.

Violation of the chapter shall be the basis of withholding a final inspection permit until such violation is corrected to the satisfaction of the city forester, board of park commissioners.
(Ord. 1985, ch. 85-59, § 18, 5-21-95)

Sec. 23½-4. Definitions.

For the purpose of this chapter the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the

context, words used in the present tense include the future, words in the plural include the singular, and words in the singular include the plural. The word "shall" is mandatory and not merely directory.

(a) *City* is the city, municipality, town, village, subdivision, or otherwise designated political jurisdiction of Providence, County of Providence, State of Rhode Island.

(b) *Board of park commissioners* is the board, commission, or otherwise designated governing body of department of public parks.

(c) *Department of public parks, division of grounds maintenance services* is the department of "parks and street trees," "parks and forestry," "forestry street trees" or other designated department of the city under whose jurisdiction all city park and/or street trees fall.

(d) *City forester* is the municipal arborist, city forester horticulturist, landscape architect, director, division of grounds maintenance services, supervisor urban forestry operations or other qualified designated official of the city assigned to carry out the enforcement of this chapter.

(e) *Person* is any person, firm, partnership, association, corporation, company or organization of any kind, including public utility and city department.

(f) *Street* or *highway* is the entire width of every public way or right-of-way when any part thereof is open to the use of the public, as a matter of right, for purposes of vehicular and pedestrian traffic.

(g) *Parks* shall include any city public spaces designated for recreation and/or conservation.

(h) *Public place* shall include any other ground owned by the city but not to include property under the management and jurisdiction of the water supply board.

(i) *Property line* shall mean the boundary between private and city-owned land.

(j) *Tree lawn* is that part of a street or highway not covered by sidewalk or other paving, lying between the property line and that portion of the street or highway usually used for vehicular traffic.

(k) *Tree:*

(1) Any living woody plant with needle or scale type leaf that has a well defined stem(s) with a caliper of at least six (6) inches (15.24 cm) at five (5) feet (1.6 cm) from the ground level.

(2) Any living, self-supporting woody broadleaf plant that has a well defined stem(s) with a caliper of at least two (2) inches (5.08 cm) at five (5) feet (1.52 m) from the ground level.

(l) *Public trees* shall include all trees now or hereafter growing on any street, park, or any other public place.

(m) *Property owner* shall mean the person owning such property as shown by the records of the recorder of deeds of the City of Providence.

(n) *Tree removal* includes any act that will cause a tree to die within a three-year period.

(o) *Tree well opening* is the ground area surrounding the base of the tree trunk not covered by sidewalk and paving. Tree well openings shall have a minimum pit size of three (3) feet by three (3) feet.

(Ord. 1985, ch. 85-59, § 3, 5-21-85; Ord. 1985, ch. 85-82, § 1, 10-9-85)

Sec. 23½-5. Interference with city forester.

No person shall hinder, prevent, delay, or interfere with the city forester or any of his assistants while engaged in carrying out the implementation of this chapter; provided, however, that nothing herein shall be construed as an attempt to prohibit the pursuit of any remedy, legal or equitable, in any court of competent jurisdiction for the protection of property rights by the owner of any property within the city.
(Ord. 1985, ch. 85-59, § 16, 5-21-85)

Sec. 23½-6. Waiver for emergencies.

In the case of officially declared emergencies, such as windstorms, ice storms, or other disasters, the requirements shall be waived so that the requirements of this chapter would in no way hinder private or public work to restore order in the city. This work shall follow maintenance standards as outlined by the city forester.
(Ord. 1985, ch. 85-59, § 12, 5-21-85)

Sec. 23½-7. Moving large objects.

No person shall move any building or other large objects that may injure public trees, or parts thereof, without first obtaining the approval of the city forester and agreeing to conform to his/her requirements.
(Ord. 1985, ch. 85-59, § 13, 5-21-85)

Sec. 23½-8. Nonapplicability to one- and two-family residences.

Except for sections 23½-6 and 23½-7, this chapter in no way regulates protection, maintenance, removal or planting of trees on the property of a one or two-family dwelling, where the owner of the property resides thereon.
(Ord. 1985, ch. 85-59, § 20, 5-21-85)

Secs. 23½-9—23½-20. Reserved.

ARTICLE II. ADMINISTRATION

Sec. 23½-21. Authority and responsibility of board of park commissioners.

(a) The board of park commissioners shall have the authority to regulate and enforce the operations of the department of public parks, division of grounds maintenance services, as provided for in Providence Home Rule Charter, 1980, Section 1003. The board of park commissioners shall have jurisdiction over all greenspaces of the city and all forestry functions including the setting out, care and removal of trees, shrubs and other plants on the streets of the city as well as on the properties for which it is responsible. They shall do all acts necessary and proper for the care, management, improvement, maintenance and protection of the public parks and street trees under their jurisdiction.

(b) The duties of said board of park commissioners shall be interpreted to include but not be limited to the protection, maintenance removal and planting of trees on public property, and to make such recommendations from time to time to the city council as to desirable legislation concerning the tree program and activities for the city [and] to hear appeals as set forth in section 23½-22.
(Ord. 1985, ch. 85-59, § 4, 5-21-85)

Sec. 23½-22. Appeals.

Any adjustment of the standards required by this chapter or an appeal of a decision of the city forester shall be taken to the board of park commissioners. The board of park commissioners upon receipt of such request, on forms provided by the city forester, shall have the authority and duty to consider and act upon the request. This application shall clearly and in detail state what adjustments or requirements are being requested, reasons such adjustments are warranted, and shall be accompanied with such supplementary data as is deemed necessary to substantiate the adjustment. The board of park commissioners may approve, modify, or deny the requested adjustment, based upon protection of public interest, preservation of the intent of this chapter and possible unreasonable and unnecessary hardships involved in the case.

The board of park commissioners shall act on the application as expeditiously as possible and shall notify the applicant in writing within five (5) days of the action taken.
(Ord. 1985, ch. 85-59, § 17, 5-21-85)

Sec. 23½-23. Mary Elizabeth Sharpe Street Tree Advisory Committee.

It shall also be the duty of the city forester to work in conjunction with the Providence Street Tree Advisory Committee to define street tree policies and priorities and to administer "Mary Elizabeth Sharpe Street Tree funds."
(Ord. 1985, ch. 85-59, § 7, 5-21-85)

Sec. 23½-24. City forester—Appointment and qualifications.

The city forester shall be appointed or selected from candidates recommended by an appropriately constituted search committee of the board of park commissioners who base their recommendations on a personal interview, education, experience, general qualifications and references.

He or she shall be a person holding at least a bachelor's degree from an accredited college or university in arboriculture or a related field or the equivalent in training or experience.
(Ord. 1985, ch. 85-59, § 5, 5-21-85)

Sec. 23½-25. Same—Duties, generally.

The city forester shall affirm the rules and regulations of the arboricultural specifications and standards of practice governing the protection, maintenance, removal, planting of trees on the streets, parks, public places, and other tree protection zones in the city. He or she shall plan, direct, regulate, and control the protection maintenance, removal, and planting of all trees growing now or hereafter in the streets, parks, public places, and other tree protection zones of the city. He or she is further charged with keeping informed of environmental and technical changes that could affect the trees of the city. He or she shall also cooperate and communicate with other park department personnel, mayor's office of community development, planning and urban development, Providence Redevelopment Agency and all other city, state and federal agencies, lastly the city forester shall cause the provisions of the chapter to be enforced.
(Ord. 1985, ch. 85-59, § 6, 5-21-85)

Sec. 23½-26. Same—Authority and responsibility.

The city forester shall have the authority and jurisdiction of regulating the protection, maintenance, removal, and planting of trees on streets, parks, and public places, such as the grounds of public buildings, schools, libraries where trees may exist or be planted. This section shall not be interpreted to prohibit the removal as determined by the city forester of:

(1) Dead, dying, diseased, insect-infested, or hazardous trees.

(2) Unwanted weed species.

(3) The necessary minimum amount of trees and limbs by survey parties.

(b) *Enforcement.* The police department shall enforce this chapter and insure that provisions of this chapter are not violated including, but not limited to, the issuance of citations for the violation of any provision of this chapter upon request of the city forester.

(c) *Supervision.* The city forester shall have the authority and it shall be his/her duty to supervise or inspect all work done under a permit issued in accordance with the terms of this chapter.

(d) *Condition of permit.* The city forester shall promulgate needful regulations to effectuate the intent of this chapter.

(e) *Master street tree plan:* The city forester shall also have the authority to formulate a master street tree plan with the advice and approval of the board of park commissioners. The master street tree plan shall include the inventory of existing trees and shall specify the species of trees to be protected, maintained, removed, and/or planted on each of the streets, parks and other public places of the city. This plan shall be reviewed and updated every two (2) to five (5) years. All tree work shall conform thereto.

(f) *Inventory of existing trees.* The city forester shall have the responsibility to inventory (and classify as to location, species, size, condition, and evaluation) the existing trees on streets, parks, and other public places, as an integral part of the master street tree plan. This inventory shall be periodically updated.

(g) *Public organizations.* The city forester shall work in conjunction with the Providence Street Tree Committee and all other civic and public interest groups devoted to tree care and preservation.

(h) *Factors for consideration.* The city forester shall consider all existing and proposed buildings and utilities and environmental factors when recommending the planting of a tree species or other work for each of the streets, parks and other public places of the city.
(Ord. 1985, ch. 85-59, § 8, 5-21-85)

Sec. 23½-27. Permits.

(a) A permit shall be a written document that authorized the bearer thereof to perform the proposed work as outlined on such permit. The permit shall be issued only by the city forester or his/her representative.

(b) A permit shall be obtained by filling out an application in the division of grounds maintenance services, Carriage House, Roger Williams Park. Upon approving the application, the city forester or his/her representative shall issue said permit.

(c) A permit shall be required for planting, spraying, pruning, cutting above ground, removing, or otherwise disturbing any tree on any street, park, or other public place.

(d) The city forester shall issue any permit provided for herein if the proposed method and workmanship shall be of a satisfactory nature and the project shall be consistent with this chapter. Any permit granted shall contain a definite date of expiration and the work shall be completed in the time allowed on the permit and in the manner as therein described. Any permit shall be void if its terms are violated.

(e) The city forester shall be notified by the bearer of said permit upon satisfactory completion of designated work.

(f) Planting:

(1) The application required herein shall state the number of trees to be set out or planted in public places, the location, grade, species, cultivar or variety of each tree, the method of planting, and such other information as the city forester shall find reasonably necessary to a fair determination of whether a permit should be issued.

(2) The city forester shall have the right to make the final determination as to location, species, cultivar or variety of each tree and the method of planting before issuing said permit.

(g) Maintenance. The application required herein shall state the number and kinds of trees to be sprayed, fertilized, pruned, or otherwise preserved; the kind of treatment to be administered; the composition of the spray material to be applied; and such other information as the city forester shall find reasonably necessary to a fair determination of whether a permit should be issued.

(h) Removal, replanting and replacement;

(1) Wherever it is necessary to remove a tree in connection with the paving of a sidewalk, or the widening of the portion of a street or highway, the city shall replant the tree or replace it. This requirement will be satisfied in an equivalent number of trees of the same size and species as provided in the arboricultural specifications and standards of practice are planted within one-fourth (¼) mile of the original tree location.

(2) No person shall remove a public tree for the purpose of construction or any other reason, without first filing an application and procuring a permit from the city forester. The city forester may require replacement of a removed tree as a condition to the issuance of a permit. Such replacement shall meet the standards of size, species and placement as provided for in a permit issued by the city forester. The person or property owner shall bear the cost of removal and replacement of all trees removed.

(Ord. 1985, ch. 85-59, § 14, 5-21-85)

Sec. 23½-28. Registration of tree experts.

To protect the public, the city shall require any person who removes or maintains trees on public property as a business to be:

(a) Properly licensed to perform such work.

(b) Certified by State of Rhode Island or any other agency that regulates arboricultural practices.

(c) Covered by workman's compensation to the extent required by Rhode Island law and public liability and personal property insurance, in minimum amounts hereinafter mentioned adequate to cover and save harmless the City of Providence and its agents from all suits, claims, or actions of every class and nature for or on persons, or property damage caused or claimed to be caused, directly or indirectly by the conduct of work contemplated, or by or in by acts of strangers, or any conditions due to the elements or any defects or insufficiencies in any method, material ways, machinery, equipment or apparatus used in connection with the work. Public liability insurance with limits of not less than five hundred thousand dollars ($500,000.00) shall be carried.

(d) Bonded.

(e) Insured (medical).

(Ord. 1985, ch. 85-59, § 15, 5-21-85)

Secs. 23½-29—23½-40. Reserved.

ARTICLE III. STANDARDS FOR PLANTING AND MAINTENANCE

Sec. 23½-41. Protection.

(a) During development, redevelopment, razing or renovating, no trees shall be cut, damaged, destroyed or removed except by specified permit.

All trees removed, destroyed or severely damaged shall be replaced at the expense of the permittee. The total caliper of all trees planted in the course of restoration shall in no event be less than the total caliper of all trees removed. Replacement shall be made with two and one-half (2½) to six-inch caliper trees and/or as directed by the city forester.

If sufficient tree planting locations are unavailable within the contract area, the replacement trees shall be planted within one-fourth mile of the contract area as determined by the city forester except by special permit of the city forester.

(b) All trees within thirty (30) feet (9.1 m) of any excavation or construction of any building, structure, or street work shall be guarded through the length of the project with a good substantial fence, frame or box not less than four (4) feet (1.2 m) high and eight (8) feet (2.4 m) square, or equivalent. All equipment, building materials, chemicals, dirt, or other debris shall be kept outside the barrier at all times.

(c) No person shall intentionally damage, cut, carve or transplant any tree; attach any rope, wire, nails, advertising posters, or other contrivance to any tree; allow any gaseous, liquid, chemical, or solid substance that is harmful to such trees to come in contact with them; or set fire or permit any fire to burn when such fire or the heat thereof will injure any portion of any tree without first obtaining a written permit from the city forester.

(d) No person shall deposit, place, store, or maintain any stone, brick, sand, fill dirt, concrete, or other materials that may impede the free passage of water, air, and fertilizer to the roots of any tree growing therein, except by written permit of the city forester.

(e) No person shall install steel grate or any facsimile or like substance within the confines of the ground area surrounding the base of the tree trunk.

(f) No person shall preclude or inhibit the percolation of water, nutrients and gaseous exchange necessary to a tree's survival by placement of any material which so precludes or inhibits within the tree well opening.
(Ord. 1985, ch. 85-59, § 9, 5-21-85; Ord. 1994, ch. 94-15, § 1, 5-30-94)

Sec. 23½-42. Pruning.

It shall be the duty of any person or persons owning or occupying real property bordering on any street, upon which property there may be trees, to prune such trees in such manner that they will not obstruct or shade the street lights, obstruct the passage of pedestrians on sidewalks, obstruct vision of traffic signs, or obstruct the view of any street or alley intersection. The minimum clearance of any overhanging portion thereof shall be eight (8) feet (2.4 m) over sidewalks, and twelve (12) feet (3.66 M) over all streets except truck thoroughfares, which shall have a clearance of eighteen (18) feet (5.49 m) and/or at the discretion of the city forester.

(a) *Notice to prune.* Should any person or persons owning real property bordering on any street fail to prune trees as herein above provided, the city forester shall order such person or persons, within three (3) weeks after receipt of written notice, to so prune such trees.

(b) *Order required.* The order required herein shall be served by certified mail to the last known address of the property owner.

(c) *Failure to comply.* When a person to whom an order is directed shall fail to comply within the specified time, it shall be lawful for the city to prune such trees and assess the property owner for the cost of services rendered.
(Ord. 1985, ch. 85-59, § 11, 5-21-85)

Sec. 23½-43. Proposed development on public land.

(a) The site plan for proposed development or improvement of any tract or parcel of land on which there are public trees shall be evaluated and approved by the city forester before a building permit can be issued. The city forester may inspect the site before approving or disapproving the site plan and at any time during the development, redevelopment, renovating or razing thereafter.

(b) The site plan shall include the following:

(1) An accurate scale drawing detailing curb cuts, utility installations, paving, grade changes, existing trees, tree wells, proposed buildings.

(2) Approximate location, size and species of all existing trees, trees to be maintained and trees to be removed.

(3) Specification documents for:

a. Protection of existing trees during the development, redevelopment, renovating, or razing.

b. Grade changes or other work within a tree's drip line.

c. Disposal of trees to be removed. All debris shall be discarded by the contractor and the area made safe prior to the end of the working day.

(4) Any new planting and/or tree replacement, specifying the location, species, size, and a completion date for the proposed work.

(Ord. 1985, ch. 85-59, § 10, 5-21-85)

Chapter 24

VEHICLES FOR HIRE*

Article I. In General

Sec. 24-1. Meaning of "hackney carriage".
Sec. 24-2. Authority to issue licenses for operators and drivers.
Sec. 24-3. Licenses required.
Sec. 24-4. Contents of application for license.
Sec. 24-5. Restrictions upon issuance of license.
Sec. 24-6. Issuance of licenses, collection of fees therefor.
Sec. 24-7. License fees.
Sec. 24-8. Duration of license.
Sec. 24-9. Transfer of license.
Sec. 24-10. Suspension or revocation of license.
Sec. 24-11. Records of licenses to be kept.
Sec. 24-12. Vehicle to display distinguishing mark, license number.
Sec. 24-13. Identity cards to be placed in conspicuous place in vehicles.
Sec. 24-14. Exceptions to requirements of section 24-13.
Sec. 24-15. Soliciting conveyance of passengers, baggage, merchandise, restricted.
Sec. 24-16. Use of taxicab stands.
Sec. 24-17. Conveyance of trunks.
Sec. 24-18. Licensing vehicles for conveyance of merchandise, other materials.
Sec. 24-19. Compliance with provisions required.
Sec. 24-20. Responsibility for violations.
Secs. 24-21—24-29. Reserved.

Article II. Rates and Charges

Secs. 24-30—24-32. Reserved.
Sec. 24-33. Power-driven vehicles—Generally.
Sec. 24-34. Same—Fare by hour.
Sec. 24-35. Same—Charge for going to place where ordered.
Sec. 24-36. Computation of distances in determining fares.
Secs. 24-37—24-46. Reserved.

***Cross references—**Superintendent of vehicles to have general authority over vehicles required to be licensed, § 2-220; use of towing service companies by police department, § 15-23.

State law references—Operation of vehicles as taxicabs and protection of taxicab passengers, ch. 39-14, Gen. Laws 1956; scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956.

Article III. Motor Buses

Sec. 24-47. License required.
Sec. 24-48. Application for license.
Sec. 24-49. Grant of license after inspection of vehicle.
Sec. 24-50. Bond required prior to licensing.
Sec. 24-51. Contents of license.
Sec. 24-52. Expiration of license.
Sec. 24-53. License fees prescribed.
Sec. 24-54. Record of licenses issued.
Sec. 24-55. Metal seal; issuance, contents, use.
Sec. 24-56. Chauffeur's license—Required.
Sec. 24-57. Same—Qualifications of licensee.
Sec. 24-58. Same—Application.
Sec. 24-59. Same—Fee.
Sec. 24-60. Same—Duration.
Sec. 24-61. Same—Record to be kept.
Sec. 24-62. Chauffeur's badge and identification card; issuance, contents, use.
Sec. 24-63. Display of license and identification card.
Sec. 24-64. Locations for picking up and discharging passengers.
Sec. 24-65. Buses not to stop except for certain reasons.
Sec. 24-66. Stopping at intersection.
Sec. 24-67. Stopping, holding bus.
Sec. 24-68. Distance between buses traveling in same direction.
Sec. 24-69. Substitution of buses.
Sec. 24-70. Maintenance, examination of vehicle.
Sec. 24-71. Removal of advertisements.
Sec. 24-72. Fenders required on buses.
Sec. 24-73. Number of passengers limited.
Sec. 24-74. Receipt and discharge of passengers.
Sec. 24-75. Standing on running board, step, fender or dashboard.
Sec. 24-76. Refusal to carry passengers; intoxicated, boisterous or profane passengers.
Sec. 24-77. Articles left in buses.
Sec. 24-78. Prohibited acts of driver upon bus in motion.
Sec. 24-79. Drivers not to smoke, drink, be under influence of intoxicants or drugs.
Sec. 24-80. Operation of bus route not to interfere with public work of city.
Sec. 24-81. Rights reserved to city.
Sec. 24-82. Companies to indemnify city from damages, costs and expenses.
Sec. 24-83. Conformance to rules, regulations.
Sec. 24-84. Abandonment of grants and privileges by companies.
Sec. 24-85. Vehicles excepted from article provisions.
Sec. 24-86. Printing and posting copies of rules, regulations.

Secs. 24-87—24-96. Reserved.

Article IV. Sound Trucks

Sec. 24-97. Definitions.
Sec. 24-98. Sound trucks for noncommercial use to be registered.
Sec. 24-99. Registration statement for sound trucks.
Sec. 24-100. Time limit to file amended registration statement.
Sec. 24-101. Possession of registration statement, display upon request.
Sec. 24-102. Regulations for use.
Sec. 24-103. Commercial advertising prohibited.

ARTICLE I. IN GENERAL

Sec. 24-1. Meaning of "hackney carriage".

Every vehicle drawn by one (1) or more horses, and every automobile, motor car or other power-driven vehicle (except railroad and railway cars and motor vehicles running upon rails or tracks), which shall be set up, used or driven in the city, for the conveyance of persons for hire shall be deemed a hackney carriage within the meaning of this chapter. Nothing herein contained shall include or affect any of the provisions of sections 24-47 through 24-86 providing for the licensing of motor buses and regulating the operation thereof in the city, or any ordinance in amendment thereof.
(Ord. 1914, ch. 24, § 2; Ord. 1921, ch. 304, § 2; Rev. Ords. 1946, ch. 34, § 1)

Sec. 24-2. Authority to issue licenses for operators and drivers.

The bureau of licenses of the city, from time to time, may grant to any person deemed by it suitable, licenses to set up or use hackney carriages or other vehicles for the conveyance of persons or things for hire within said city, and also licenses to drive or have charge of such vehicles, and shall grant the licenses for the other vehicles required to be licensed under the provisions of this chapter.
(Ord. 1927, ch. 583, § 1; Rev. Ords. 1946, ch. 34, § 2)

State law reference—Operators' licenses, § 39-14-20, Gen. Laws 1956.

Sec. 24-3. Licenses required.

No person shall set up, use or drive any hackney carriage or any other vehicle for the conveyance of persons or things for hire within the city without a license therefor. No person shall drive or have charge of any such vehicle within the city without a driver's license first had and obtained.
(Ord. 1921, ch. 304, § 3; Rev. Ords. 1946, ch. 34, § 3)

Sec. 24-4. Contents of application for license.

The application for a license for any automobile, motor car or power-driven vehicle used as a hackney carriage or vehicle for hire shall state the name and place of residence of the applicant, a full description of the vehicle to be used, the name of the maker, kind of motive power and the amount thereof stated in figures of horsepower, and the number of the engine, if any.
(Ord. 1921, ch. 304, § 4; Rev. Ords. 1946, ch. 34, § 7)

Sec. 24-5. Restrictions upon issuance of license.

No license hereunder shall be issued to any person who is not at least twenty-one (21) years of age, and a citizen residing in this state, or to any person who has been

convicted of any indictable offense within a period of three (3) years. The bureau of licenses shall not license any person to operate or drive any hackney carriage or other vehicle for hire who is unable to converse intelligibly in the English language.
(Ord. 1927, ch. 583, § 1; Rev. Ords. 1946, ch. 34, § 4)

Sec. 24-6. Issuance of licenses, collection of fees therefor.

The bureau of licenses shall issue all licenses to operate hackney carriages and other vehicles for hire, and shall collect the license fees therefor.
(Ord. 1927, § 583, § 1; Rev. Ords. 1946, ch. 34, § 5)

Sec. 24-7. License fees.

(a) *Vehicles.* For every license granted for vehicles used for the conveyance of persons or things for hire, there shall be paid the sum of ten dollars ($10.00), provided, that for every license so granted for automobiles, motor cars or other power-driven vehicles (except railroad and railway cars and motor vehicles running only upon rails or tracks), used for the conveyance of passengers for hire, there shall be paid the sum of twenty dollars ($20.00).

(b) *Drivers.* For every license so granted to persons to drive and have charge of any vehicle for hire, there shall be paid the sum of five dollars ($5.00).
(Ord. 1921, ch. 304, § 4; Rev. Ords. 1946, ch. 34, § 6; Ord. 1981, ch. 81-14, § 1, 3-26-81)

State law reference—Special act authorizing city council to establish system of fees for granting or issuing licenses and permits, P. L. 1922, ch. 2241.

Sec. 24-8. Duration of license.

All licenses for hackney carriages or other vehicles for hire, and all licenses issued to the drivers thereof, shall expire on the first Monday of July next following the date of issuance thereof.
(Ord. 1921, ch. 304, § 5; Rev. Ords. 1946, ch. 34, § 8)

Sec. 24-9. Transfer of license.

No license for a hackney carriage or other vehicle for hire shall be sold, assigned or transferred without the consent of the bureau of licenses endorsed thereon, unless a new license is issued in the place or stead thereof.
(Ord. 1921, ch. 304, § 5; Rev. Ords. 1946, ch. 34, § 8)

Sec. 24-10. Suspension or revocation of license.

The bureau of licenses may suspend or revoke, for cause, after hearing, any license for a hackney carriage or other vehicle for hire, and any license of a driver of such vehicle, suspensions to be for such period of time as said department shall deem necessary for the public good and welfare.
(Ord. 1921, ch. 304, § 5; Rev. Ords. 1946, ch. 34, § 8)

Sec. 24-11. Records of licenses to be kept.

The bureau of licenses shall keep a full and complete record of the name and place of residence of the owner of each licensed vehicle for hire, with the number and description of such vehicle, and the name and place of residence of each person licensed by them to drive or have charge thereof.
(Ord. 1927, ch. 583, § 1; Rev. Ords. 1946, ch. 34, § 5)

Sec. 24-12. Vehicle to display distinguishing mark, license number.

Every hackney carriage or other vehicle for hire as defined in this chapter shall display such a distinguishing mark and the license number thereof in such manner as may be prescribed from time to time by the bureau of licenses.
(Ord. 1928, ch. 601, § 1; Rev. Ords. 1946, ch. 34, § 10)

State law reference—Owner's name to be displayed on each side of rear doors, § 39-14-17, Gen. Laws 1956.

Sec. 24-13. Identity cards to be placed in conspicuous place in vehicles.

The name of the owner and the number of the license, together with the rates of fare, shall be placed on a card in all hackney carriages and other vehicles for hire in the most conspicuous place for the information of passengers.
(Ord. 1928, ch. 601, § 1; Rev. Ords. 1946, ch. 34, § 11)

State law reference—Display of licenses, rates, §§ 39-14-15, 39-14-16, Gen. Laws 1956.

Sec. 24-14. Exceptions to requirements of section 24-13.

The provisions of section 24-13 relative to displaying cards shall not apply to a vehicle exclusively rented for funerals or weddings or to a vehicle the exclusive use of which is rented to one (1) person for a consecutive period of at least one (1) month; provided however, that the owner of any such vehicle for hire shall satisfy the superintendent of vehicles that such vehicle is to be used only as aforesaid and shall obtain his permission to use said vehicle without displaying said cards.
(Ord. 1928, ch. 601, § 1; Rev. Ords. 1946, ch. 34, § 12)

Sec. 24-15. Soliciting conveyance of passengers, baggage, merchandise, restricted.

No person other than the owner or driver of a licensed hackney carriage or other licensed vehicle for hire shall solicit passengers, baggage or merchandise, to be conveyed for hire, within the city.
(Ord. 1914, ch. 24, § 9; Rev. Ords. 1946, ch. 34, § 15)

Sec. 24-16. Use of taxicab stands.

All designated taxicab stands on the public highways within the city now or hereafter so designated, shall be open for the use of any taxicab licensed by the bureau of licenses of the city.
(Ord. 1965, ch. 1722, § 1)

Sec. 24-17. Conveyance of trunks.

No owner, driver or other person having charge of any automobile, motor car or power vehicle for the conveyance of persons shall be required to convey with any passenger any trunk.
(Ord. 1914, ch. 25, § 2; Rev. Ords. 1946, ch. 34, § 28)

Sec. 24-18. Licensing vehicles for conveyance of merchandise, other materials.

Every truck, wagon, dray, cart and handcart or other vehicle which shall be used within the city for the conveyance within the city of wood, coal, lumber, stone, brick, sand, gravel, clay, dirt, rubbish, goods, wares, merchandise, furniture, building materials, or any other article or thing, shall be licensed, and shall have placed upon the outside of each side of the same the number of its license in plain, legible figures of not less than one and one-half (1½) inches in size, and in such manner that the same may be distinctly seen. No person shall use any such vehicle without being licensed, nor without having the number so placed, as aforesaid.
(Ord. 1914, ch. 24, § 2; Rev. Ords. 1946, ch. 34, § 14)

Sec. 24-19. Compliance with provisions required.

No owner or driver of any hackney carriage or other vehicle for hire shall use or drive any such vehicle, or permit the same to be used or driven, without complying with each and all of the provisions of this article, except those provisions which by their nature do not apply.
(Ord. 1928, ch. 601, § 1; Rev. Ords. 1946, ch. 34, § 13)

Sec. 24-20. Responsibility for violations.

The person in whose name a license is taken out shall, for all the purposes of this chapter, be considered as the owner of the vehicle licensed as a hackney carriage or other vehicle for hire, and, for any violation of this chapter, shall be liable to all the fines, forfeitures and penalties prescribed, until, upon the sale or other disposition of the vehicle licensed, notice thereof be given to the department of public safety, and the license delivered to it.
(Ord. 1915, ch. 96, § 5; Rev. Ords. 1946, ch. 34, § 9)

Secs. 24-21—24-29. Reserved.

ARTICLE II. RATES AND CHARGES*

Secs. 24-30—24-32. Reserved.

Editor's note—Ord. 1979, ch. 79-35, §§ 1, 2, approved Sept. 14, 1979, repealed §§ 24-30, 24-31, pertaining to nonpower-driven vehicles generally and fare by the hour, derived from Ord. 1914, ch. 25, § 1 and Rev. Ords. 1946, ch. 34, §§ 16—18, 20. At the editor's discretion, § 24-32, pertaining to refusal to carry when fare is tendered, has also been deleted. Sec. 24-32 derived from Ord. 1914, ch. 25, § 1; Rev. Ords. 1946, ch. 34, § 19.

Sec. 24-33. Power-driven vehicles—Generally.

The prices or rates of fare to be taken by or paid to the owner, driver or other person having charge of any automobile, motor car or other power-driven vehicle (except railroad and railway cars and motor vehicles running only upon rails or tracks), which is set up, used or driven within the city for the conveyance of persons for hire, shall be as follows:

(a) *Mileage.* For carrying from one (1) place to another within the limits of the city, one (1) passenger not exceeding one (1) mile, fifty cents ($0.50), and for each additional quarter (¼) mile or fractional part thereof, ten cents ($0.10); and for all additional passengers, ten cents ($0.10) each, irrespective of the distance carried.

(b) *Parties.* The fare for the conveyance of one (1) to four (4) passengers inclusive to weddings, parties or theatres and return shall not exceed three dollars ($3.00).

(c) *Waiting time.* If any such automobile, motor car or power vehicle is kept waiting, the charge for such wait shall not exceed the rate of one dollar ($1.00) per hour.

(Ord. 1914, ch. 25, § 2; Rev. Ords. 1946, ch. 34, §§ 21, 22, 26, 27)

Sec. 24-34. Same—Fare by hour.

Whenever any automobile, motor car or power vehicle as described in section 24-33 is hired by the hour for the conveyance of any person, the fare shall not exceed three dollars ($3.00) for the first hour, and two dollars ($2.00) for each subsequent hour and pro rata for any fractional part of each subsequent hour that the same is employed. (Ord. 1914, ch. 25, § 2; Rev. Ords. 1946, ch. 34, § 23)

***Cross reference—**Superintendent of vehicles to have general authority over vehicles required to be licensed, § 2-220.

State law reference—Display of license, rates, §§ 39-14-15, 39-14-16, Gen. Laws 1956.

Sec. 24-35. Same—Charge for going to place where ordered.

No charge shall be made for an automobile, motor car or power vehicle as described in section 24-33, while going unoccupied between the garage or public stand and the place ordered, unless the distance is more than two (2) miles, and the charge shall not exceed twenty cents ($0.20) for each mile of such distance in excess of two (2) miles, or fractional part thereof.
(Ord. 1914, ch. 25, § 2; Rev. Ords. 1946, ch. 34, § 25)

Sec. 24-36. Computation of distances in determining fares.

All distances applicable in the determination of fares shall be computed by straight lines on the map of the city.
(Ord. 1914, ch. 25, § 2; Rev. Ords. 1946, ch. 34, § 24)

Secs. 24-37—24-46. Reserved.

ARTICLE III. MOTOR BUSES*

Sec. 24-47. License required.

(a) No person shall engage in the business of transporting in the city passengers for hire by means of any motor vehicle, not running on tracks or rails, and operated for the purpose of affording a means of street transportation similar to that ordinarily afforded by street railways by accepting and discharging passengers along the route traversed by such vehicle, without first obtaining from the bureau of licenses a special annual license for each vehicle to be employed by such person in said business, and unless such license for such vehicle is in force.

***Annotation—**Regulation of vehicular traffic in crowded streets of city for purpose of promoting safety and convenience of people using those streets presents proper subject for exercise of police power. **Fritz v. Presbrey, 44 R.I. 207, 116 A. 419, 422.**

Whether policy of city council in regulating buses presents best scheme of regulation is not a judicial question. **Fritz v. Presbrey, 44 R.I. 207, 116 A. 419, 422.** Complaints should not be granted injunction, permanent or temporary, until they have established unmistakably that regulating buses by council constitutes arbitrary exercise of power, or that its provisions have no reasonable relation to promotion of safety and convenience of public, as whole, in its use of highways within prescribed area. **Fritz v. Presbrey, 44 R.I. 207, 116 A. 419, 422.**

Cross references—Bus lanes, § 15-54 et seq.; smoking on buses, § 16-14.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; regulation of motor and other vehicles, Title 31, Gen. Laws 1956.

(b) Such vehicle so employed in said business is termed a motor bus, and is not deemed a hackney carriage, but is a vehicle subject to all street traffic regulations so far as applicable and consistent herewith.
(Ord. 1915, ch. 93, § 1; Rev. Ords. 1946, ch. 21, § 1)

Sec. 24-48. Application for license.

(a) The application for a license hereunder shall be on a blank furnished by the bureau of licenses, and the form of the application and the kinds of information to be furnished therein by the applicant shall be such as from time to time may be prescribed by said bureau. In addition the application shall set forth:

(1) The termini between which and the route over which the applicant proposes to operate.

(2) A schedule showing the passenger fares to be charged between the several points or localities to be served.

(3) The seating capacity, according to its trade rating, of the motor bus for which the license is sought. If the motor bus has been adapted for use as such by reconstructing or modifying the original seating arrangement, or the size of the motor bus will warrant additional seating capacity, a statement of such fact and of the seating capacity shall be added.

(b) Said applicant shall be required to swear before an officer designated by said bureau and authorized to administer oaths that the facts stated in the application are true and that he will regularly operate or cause to be operated in compliance with the provisions herein set forth, the motor bus for which license is sought.

(c) Said application may be amended at any time with the consent of said bureau, and any such amendment shall be endorsed forthwith upon the license by said bureau.
(Ord. 1920, ch. 276, § 1; Rev. Ords. 1946, ch. 21, § 5)

Sec. 24-49. Grant of license after inspection of vehicle.

The bureau of licenses of the city is hereby authorized to grant to any persons, resident within this state, applying therefor and deemed by it suitable to conduct such business such special licenses for such motor vehicles, but said bureau shall not hereafter grant such license for any such vehicle until it has been inspected by some competent mechanician appointed by said bureau, and reported by him to be in safe and proper condition for use in said business and properly equipped as herein specified.
(Ord. 1920, ch. 276, § 1; Rev. Ords. 1946, ch. 21, § 2)

Sec. 24-50. Bond required prior to licensing.

(a) No license for any motor bus shall be issued until there is filed with the bureau of licenses a bond running to the city in an amount to be computed at the rate of five hundred dollars ($500.00) per seat of the passenger seating capacity thereof, exclusive of the driver's seat, as authorized by such license, with a surety company as surety, or with such other sureties as are approved by said bureau, conditioned in substance to pay all damages sustained by any person injured in his person or property or damaged in consequence of the death of any person caused by any careless, negligent or unlawful act on the part of the principal named in such bond, his agents, employees or drivers, in the conduct of his said business or in the use or occupation of such motor bus employed by him therein; and such bond shall be maintained during the term of the license, and shall run until the liability thereunder has ceased, and there shall be inserted in such bond the provision in substance that nothing therein contained shall be construed or held to impose any liability thereunder inconsistent with the rules of law relative to contributory negligence on the part of any such person injured or whose death is caused as aforesaid.

(b) In case any surety on any such bond is an individual, his execution thereof shall be acknowledged before a notary public designated by said bureau and duly authorized to take acknowledgments.

(c) Said bureau shall forthwith deposit with the city clerk all bonds filed with said bureau. The city clerk shall from time to time make such examination of the land records as may be necessary to determine whether the surety on any bond is seized and possessed of sufficient real estate to adequately cover the requirements of said bond.

(d) In case said bureau at any time shall find or have due reason to believe that any surety on any such bond is bankrupt, insolvent or not possessed of sufficient property to be able to respond to the obligation of such surety under such bond whether any such damages have occurred or accrued or not, said bureau, after giving the principal thereof an opportunity to be heard, may require such principal to furnish another or further surety on such bond, or a new bond for the remainder of the term of the license of the motor bus to which such bond relates, and if within five (5) days after notice of such requirement such principal shall not furnish such new bond or such other or further surety, approved by said bureau, the motor bus license to which such bond relates, without any further action by said bureau, shall stand suspended until such new bond or such other or further surety approved by said bureau is furnished.

(e) In case any surety on any such bond at any time desires to terminate his liability under such bond as to any damages that might occur or accrue in the future, such surety may terminate the same by giving at least five (5) days' previous written notice thereof to the principal named in such bond and said bureau, and upon receipt of such notice such principal shall furnish another surety on such bond or a new bond for the remainder of the term of the license of the motor bus to which such bond

relates, and if before such termination of such liability of such surety such principal shall not furnish such new bond or such other surety, approved by said bureau, the motor bus license to which such bond relates, without any action by said bureau, shall stand suspended until such new bond or such other surety, approved by said bureau, is furnished, but nothing herein shall be construed to prejudice any rights of any persons under such bond respecting any matter or thing occurring before such termination of such future liability.
(Ord. 1920, ch. 276, § 9; Rev. Ords. 1946, ch. 21, § 9)

Sec. 24-51. Contents of license.

The name, place of residence and post office address of the licensee, a brief description of the vehicle licensed hereunder, the authorized seating capacity thereof, the serial number of the license, the term of the license and the termini between which and the route over which the vehicle is to be operated, shall be stated in the license.
(Ord. 1920, ch. 276, § 1; Rev. Ords. 1946, ch. 21, § 4)

Sec. 24-52. Expiration of license.

A license hereunder shall expire on the first Monday of July next succeeding the date thereof.
(Ord. 1920, ch. 276, § 1; Rev. Ords. 1946, ch. 21, § 3)

Sec. 24-53. License fees prescribed.

The license fee for a license hereunder which shall be paid to the bureau of licenses for the city before the issuance thereof, is hereby fixed for each motor bus at the rate of five dollars ($5.00) per seat of the passenger seating capacity thereof, exclusive of the driver's seat, as authorized by such license, provided that the maximum fee for any such bus shall not exceed fifty dollars ($50.00). In case the route of any motor bus licensed in this city extends into any other city or town which requires a license and a license fee for such bus, instead of said five dollars ($5.00) such fee shall be at the rate of three dollars ($3.00) per such seat, but subject to said proviso.
(Ord. 1920, ch. 276, § 2; Rev. Ords. 1946, ch. 21, § 6)

Sec. 24-54. Record of licenses issued.

The bureau of licenses shall keep a record of each license issued hereunder, on the stub of the license book.
(Ord. 1920, ch. 276, § 1; Rev. Ords. 1946, ch. 21, § 5)

Sec. 24-55. Metal seal; issuance, contents, use.

The bureau of licenses shall issue to the licensee a circular metal seal bearing the words "Licensed Motor Bus No. _____ Prov., _____ 19____," setting forth the serial number of the license and the two (2) years in which the term

of the license runs. The seal shall be attached to and kept in plain sight on the dashboard of the bus at all times during the license term when the bus is in use in any street or public place in the city.
(Ord. 1920, ch. 276, § 2; Rev. Ords. 1946, ch. 21, § 6)

Sec. 24-56. Chauffeur's license—Required.

No person shall drive, operate or be in charge of any motor bus in any street or public place in the city without first obtaining a special annual chauffeur's license therefor from the bureau of licenses, and unless such license is in force.
(Ord. 1920, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 7)

Sec. 24-57. Same—Qualifications of licensee.

No chauffeur's license shall hereafter be granted hereunder to any person who is under the age of twenty-one (21) years, or not a resident of this state, or who is unable to carry on an intelligible conversation in the English language, or not a citizen of the United States, and the bureau of licenses shall not grant such license to any applicant who has not previously been granted such a license, until he has demonstrated to said bureau or some person designated by it his ability to drive the bus proposed to be operated by him or some similar motor vehicle by his actually driving the same in a proper manner, and his familiarity with the motor vehicle laws of the state, and with the rules and regulations herein prescribed, and with the street traffic regulations of the city, and until he has passed such other examination as to his qualifications as the bureau may require.
(Ord. 1920, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 8)

Sec. 24-58. Same—Application.

The application for a chauffeur's license shall be on a blank furnished by the bureau of licenses, and the form of the application and the kinds of information to be furnished thereon by the applicant shall be such as from time to time may be prescribed by the bureau. Said applicant shall be required to swear, before an officer designated by said bureau and authorized to administer oaths, that the facts stated in the application are true and that the applicant will not operate any motor bus in violation of the provisions herein set forth.
(Ord. 1920, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 10)

Sec. 24-59. Same—Fee.

The fee for a chauffeur's license shall be one dollar ($1.00).
(Ord. 1920, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 12)

Sec. 24-60. Same—Duration.

A chauffeur's license issued as provided herein shall expire on the first Monday of July next succeeding the date thereof.
(Ord. 1914, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 7)

Sec. 24-61. Same—Record to be kept.

The bureau of licenses shall keep on the stub of the license book a record of each chauffeur's license issued as provided in this article.
(Ord. 1920, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 11)

Sec. 24-62. Chauffeur's badge and identification card; issuance, contents, use.

(a) The bureau of licenses at the time of issuing a chauffeur's license as provided herein, shall deliver to the licensee a circular metal badge bearing the words "Licensed Chauffeur No. _____, Prov., _____" setting forth the serial number of the license, which badge shall be worn upon the right breast of the outer garment of the licensee at all times when he is driving or in charge of any motor bus in any street or public place; and said bureau shall also then deliver to the licensee an identification card stating thereon the number of the license and the name, age, height, weight, color of hair, color of eyes and race of the licensee, and the term of the license. A deposit of fifty cents ($0.50) shall be made for each metal badge, which deposit shall be refunded whenever said badge is returned in good condition.

(b) No such licensee shall permit any other person to wear such badge, nor shall any person wear the badge of any other licensee, while driving or in charge of any motor bus in any street or public place. The identification card shall be carried by the licensee at all times while operating or in charge of any motor bus in any street or public place.
(Ord. 1920, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 13)

Sec. 24-63. Display of license and identification card.

Every person while driving or in charge of any motor bus in any street or public place shall carry the license for such bus, and at any time when requested by any police officer shall show him such license and identification card.
(Ord. 1920, ch. 276, § 3; Rev. Ords. 1946, ch. 21, § 14)

Sec. 24-64. Locations for picking up and discharging passengers.

A driver or person in charge of any motor bus shall not permit the same to stand to wait for passengers in any street, square or public place or part thereof, except on such portion thereof and during such hours as may be prescribed therefor by the commissioner of public safety, and said commissioner from time to time may fix such locations therefor, and shall fix such locations in such streets, public place or places,

or parts thereof, in which general street travel will not be materially interfered with, where such buses may remain unemployed or out of use. The commissioner of public safety, at any time it finds that any such location materially interferes with public travel, may cancel such location and may substitute another location therefor, and said commissioner at any time may cancel any such hours for such use and prescribe other hours therefor.
(Ord. 1920, ch. 276, § 4; Rev. Ords. 1946, ch. 21, § 15)

Sec. 24-65. Buses not to stop except for certain reasons.

No driver or person in charge of a motor bus at any time shall stop such motor bus in any street or public place or part thereof, except in case of emergency, or upon signal to take on or let off passengers, or to collect fares or make change, or to observe street traffic regulations, or when required to do so by reason of street traffic congestion, or except in such place or places therein as are prescribed by the commissioner of public safety as stands for such buses. Nothing in this section contained shall be construed to affect the provisions and remedies contained in the traffic regulations of the commissioner of public safety or any ordinance in addition thereto or amendment thereof, to prevent and remedy street traffic congestion.
(Ord. 1920, ch. 276, § 4; Rev. Ords. 1946, ch. 21, § 16)

Sec. 24-66. Stopping at intersection.

No person having control of any bus shall stop the same in front of any intersecting street, except to avoid collision or to prevent danger to persons in the street.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 2)

Sec. 24-67. Stopping, holding bus.

No bus regulated by the provisions of this article shall be stopped or held, except at such termini of its route as are located in the suburbs of the city, in any much traveled street for the purpose of delay, and every bus on route, although ahead of its schedule time, shall continue to be operated in every much traveled street except as aforesaid, unless it can be stopped or held in order not to interfere with the operation of any other bus and not to obstruct any general line of highway travel on foot or with vehicles, except temporarily at a junction to permit another bus which is due ahead and is in sight and near such junction, to proceed at said junction, provided it can be done without obstructing any general line of highway travel on foot or with vehicles.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 3)

Sec. 24-68. Distance between buses traveling in same direction.

Buses proceeding in the same direction shall not approach each other within a distance of thirty (30) feet, except in the approaches to a passenger station or terminal, the entrances to a city park, and at turnouts; or except in case of accident, or to prevent injury to persons or property, or to avoid blockading a street.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 1)

Sec. 24-69. Substitution of buses.

(a) *Generally.* Any motor bus licensee may substitute for any licensed motor bus another motor bus of the same passenger seating capacity, exclusive of the driver's seat, as such licensed motor bus, as hereinafter provided. The fee for such substitution shall be one dollar ($1.00). If the substitution is intended to be permanent, the license shall be amended to show the substitution and give a brief description of the substituted bus, and the license thereafter shall apply to such bus for the remainder of the license term, and not to the original bus. If the substitution is intended to be temporary, the bureau of licenses shall issue a temporary permit to operate such bus in place of the licensed bus, which permit shall be carried by the driver thereof. No such substitution shall be made until after notice to the bureau of licenses and said bureau or its representative shall have authorized the same.

(b) *Effect on bond.* In case of any such permanent substitution, the bond provided for relating to the licensed bus shall apply to such substituted bus for the remainder of the license term, and shall not apply to the original bus for the remainder of said term, but nothing herein shall be construed to prejudice any causes of action or rights of any persons under such bond which have attached respecting any matter or thing occurring before such substitution is made; and said bureau shall amend such bond so that such substitution and a brief description of the substituted bus shall be stated therein or thereon; and the right to make such substitution and such amendment of said bond shall be stated in or on every bond filed with said bureau as hereinafter provided. In case of any such temporary substitution, the bond relating to the licensed bus shall apply only to such substituted bus during the period that it is substituted, and upon the termination thereof to the original bus again, but nothing herein shall be construed to prejudice any causes of action or rights of any persons under such bond which have attached respecting any matter or thing occurring before such substitution is made or after the period of such substitution is ended, or occurring relative to the substituted bus during the period of such substitution; and said bureau shall endorse on such bond a statement of such substitution and the period thereof; and the right to make such temporary substitution and such endorsement on said bond shall be stated in or on every bond filed with said bureau as herein provided.

(c) *Applicability of article.* All regulations and provisions of this article consistent herewith shall apply to every such substitution bus the same as to the bus for which it is substituted.
(Ord. 1920, ch. 276, § 5; Rev. Ords. 1946, ch. 21, § 17)

Sec. 24-70. Maintenance, examination of vehicle.

Every motor bus shall be kept in safe and proper condition for use in the business regulated herein, and properly and completely equipped as specified herein, and to that end the commissioner of public safety shall cause every motor bus to be examined by a designated mechanic familiar with the construction and operating mechanism of

such motor bus at least once in three (3) months. Every motor bus shall be held subject to the further right of said commissioner to have the same examined at any reasonable time by any representative or agent of said commissioner, without charge therefor.
(Ord. 1920, ch. 276, § 6; Rev. Ords. 1946, ch. 21, § 18)

Sec. 24-71. Removal of advertisements.

The commissioner of public safety shall have the right to order removed from any bus or any other vehicle of public transportation, any advertisement considered by him to be offensive or improper, and thereupon the same shall be removed.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 4; Ord. 1951, ch. 532, § 1)

Sec. 24-72. Fenders required on buses.

Every bus used for transportation of passengers shall be equipped with safe and suitable fenders.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 6)

Sec. 24-73. Number of passengers limited.

No greater number of passengers shall be carried at any one (1) time in any motor bus, and no person driving or in charge of any motor bus shall take on or suffer or permit any more persons to ride or be carried therein at any one (1) time, than such bus has seating capacity for as authorized by the license required herein; provided that in addition thereto children under seven (7) years of age may be carried therein in arms or seated on the lap of a parent or adult person accompanying them, but no passenger with a child in arms or seated on the lap shall be permitted on any front seat beside the driver.
(Ord. 1920, ch. 276, § 7; Rev. Ords. 1946, ch. 21, § 19)

Sec. 24-74. Receipt and discharge of passengers.

No driver or person in charge of any motor bus shall stop the same to receive or discharge any passenger except at the street curb, or permit any passenger to enter or leave the same except from the side thereof nearest the street curb.
(Ord. 1920, ch. 276, § 7; Rev. Ords. 1946, ch. 21, § 21)

Sec. 24-75. Standing on running board, step, fender or dashboard.

No person driving or in charge of any motor bus shall permit any person to stand upon any running board or step thereof, or to sit upon any fender, dashboard or door thereof.
(Ord. 1920, ch. 276, § 7; Rev. Ords. 1946, ch. 21, § 20)

Sec. 24-76. Refusal to carry passengers; intoxicated, boisterous or profane passengers.

No person driving or in charge of any motor bus shall refuse to carry any person offering to be carried as a passenger therein, unless the seats of the same are fully occupied, except any person intoxicated or acting in a boisterous manner or at the time using profane or obscene language.
(Ord. 1920, ch. 276, § 7; Rev. Ords. 1946, ch. 21, § 24)

Sec. 24-77. Articles left in buses.

Every person driving or in charge of any motor bus shall deliver every article left therein by any passenger to the office of the commissioner of public safety not later than twenty-four (24) hours after finding the same and shall receive a receipt therefor from said commissioner, and said commissioner shall provide for returning the same to the owner upon proper identification and proof of ownership. All such articles delivered to said commissioner and not claimed within ninety (90) days from such delivery shall be returned to the finder thereof.
(Ord. 1920, ch. 276, § 7; Rev. Ords. 1946, ch. 21, § 25)

Sec. 24-78. Prohibited acts of driver upon bus in motion.

No person driving any motor bus shall collect fares, make change or take on or discharge passengers while such vehicle is in motion.
(Ord. 1920, ch. 276, § 7; Rev. Ords. 1946, ch. 21, § 22)

Sec. 24-79. Drivers not to smoke, drink, be under influence of intoxicants or drugs.

No person driving or in charge of any motor bus shall smoke tobacco or other mixture while any passenger is being carried therein, or drink any intoxicating liquors or beverages of any kind, or be under the influence of the same or any drugs, while engaged in the service of operating or having charge of such bus in any street or public place.
(Ord. 1920, ch. 276, § 7; Rev. Ords. 1946, ch. 21, § 23)

Sec. 24-80. Operation of bus route not to interfere with public work of city.

(a) No right to maintain or operate a bus route in the city shall be in preference or hindrance of public work of the city, and should the operation of a bus route in any way interfere with the construction, alteration, or repair of any public work in any street, whether done by the city or by any contractor for the city, the bus company shall discontinue operation thereon for the time being, as directed by the director of public works, without the city being liable for any damages suffered by the company thereby.

(b) The city shall notify the bus company, a reasonable time in advance, of any public work which will interfere with its operations.
(Ord. 1914, ch. 51, § 17; Rev. Ords. 1946, ch. 30, § 19)

Sec. 24-81. Rights reserved to city.

(a) *Scope of order.* The city council hereby reserves the right, in the exercise of its powers for the time being, at any time and from time to time existing, to amend, alter or annul any provision of this article, and the terms and conditions upon which permission is given to bus companies to operate within the city.

(b) *Time to comply.* Said city council shall give at least ninety (90) days' notice to any company of its intentions to alter, annul or amend the terms and conditions of the permission granted by it; and whenever said terms and conditions shall be altered, amended or annulled, a bus company shall have at least ninety (90) days from the passage of the order making said alteration or requirement to comply with the same.
(Ord. 1914, ch. 51, § 26; Rev. Ords. 1946, ch. 30, § 26)

Sec. 24-82. Companies to indemnify city from damages, costs and expenses.

Every bus company subject to the provisions of this article shall at all times indemnify and save harmless and defend the city of and from all damages, costs and expenses to which said city may be subjected or made liable by any proceedings at law or in equity or otherwise, growing out of the grant or continuance of any permission or privileges granted to such company, or out of the exercise and enjoyment of the same by such company.
(Ord. 1914, ch. 51, § 21; Rev. Ords. 1946, ch. 30, § 23)

Sec. 24-83. Conformance to rules, regulations.

Every bus company regulated herein shall at all times conform to all such reasonable rules and regulations as from time to time may be made by the city council.
(Ord. 1914, ch. 51, § 20; Rev. Ords. 1946, ch. 30, § 22)

Sec. 24-84. Abandonment of grants and privileges by companies.

Each bus company subject to the provisions of this article shall have the right to give notice to the city council, at any time, that such company will no longer use or enjoy the grant or privilege given to such company, as to all or any portions of the streets used by it.
(Ord. 1914, ch. 51, § 25; Rev. Ords. 1946, ch. 30, § 25)

Sec. 24-85. Vehicles excepted from article provisions.

Nothing in this article contained shall be deemed to apply to any motor vehicle used exclusively for sightseeing purposes or as a hotel bus, or to any motor vehicle which is rented from a stand in any street or public place fixed by any public authorities or

at any railroad station or steamboat landing, or from a public or private garage, the destination and route of which is under the direction of the passengers transported therein.
(Ord. 1920, ch. 276, § 10; Rev. Ords. 1946, ch. 21, § 26)

Sec. 24-86. Printing and posting copies of rules, regulations.

It shall be the duty of any bus company operating buses within the city to place and keep posted in a conspicuous position in each bus terminal and in each waiting room upon its respective lines a printed copy of these rules and regulations and of such additional rules and regulations on the same subject as may from time to time be adopted by the city council, and said company shall also provide each driver in its employ with a copy of such rules and regulations.
(Ord. 1914, ch. 51, § 1; Rev. Ords. 1946, ch. 30, § 7)

Secs. 24-87—24-96. Reserved.

ARTICLE IV. SOUND TRUCKS*

Sec. 24-97. Definitions.

For the purposes of this article, the following terms shall have the meanings respectively ascribed herein:

Sound amplifying equipment. The words "sound amplifying equipment" as used herein shall mean any machine or device for the amplification of the human voice, music or any other sound. "Sound amplifying equipment" as used herein shall not be construed as including standard automobile radios when used and heard only by the occupants of the vehicle in which installed, or warning devices on authorized emergency vehicles, or horns or other warning devices on other vehicles used only for traffic safety purposes.

Sound truck. The words "sound truck" as used herein shall mean any vehicle, or horse-drawn vehicle, having sound amplifying equipment mounted thereon or attached thereto.
(Ch. 32B, § 1, added by Ord. 1949, ch. 312, § 1)

Sec. 24-98. Sound trucks for noncommercial use to be registered.

No person shall use, or cause to be used, a sound truck with its sound amplifying equipment in operation for noncommercial purposes in the city before filing a registration statement in writing with the commissioner of public safety.
(Ch. 32B, § 3, added by Ord. 1949, ch. 312, § 2)

***State law references—**Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; regulation of motor and other vehicles, Title 31, Gen. Laws 1956.

Sec. 24-99. Registration statement for sound trucks.

A registration statement for the use of a sound truck with its sound amplifying equipment for noncommercial purposes shall be filed in duplicate, and shall state the following:

(a) Name and home address of the applicant.

(b) Address of place of business of applicant.

(c) License number and motor number of the sound truck to be used by applicant.

(d) Name and address of the person who owns the sound truck.

(e) Name and address of the person having direct charge of the sound truck.

(f) Names and addresses of all persons who will use or operate the sound truck.

(g) The purpose for which the sound truck will be used.

(h) A general statement as to the section or sections of the city in which the sound truck will be used.

(i) The proposed hours of operation of the sound truck.

(j) The number of days of proposed operation of the sound truck.

(k) A general description of the sound amplifying equipment which is to be used.

(l) The maximum sound producing power of the sound amplifying equipment to be used in or on the sound truck, including:

(1) The wattage to be used.

(2) The volume in decibels of the sound which will be produced.

(3) The approximate maximum distance for which sound will be thrown from the sound truck.

(Ch. 32B, § 3, added by Ord. 1949, ch. 312, § 2)

Sec. 24-100. Time limit to file amended registration statement.

All persons using or causing to be used, sound trucks for noncommercial purposes shall amend any registration statement filed pursuant to section 24-99 of this chapter, within forty-eight (48) hours after any change in the information therein furnished.
(Ch. 32B, § 4, added by Ord. 1949, ch. 312, § 2)

Sec. 24-101. Possession of registration statement, display upon request.

The commissioner of public safety shall return to each applicant under section 24-99 of this chapter, one (1) copy of said registration statement. Said copy of the application shall be in the possession of any person operating the sound truck at all times while the sound truck's sound amplifying equipment is in operation and said copy shall be promptly displayed and shown to any policeman of the city upon request.
(Ch. 32B, § 5, added by Ord. 1949, ch. 312, § 2)

Sec. 24-102. Regulations for use.

Noncommercial use of sound trucks in the city with sound amplifying equipment in operation shall be subject to the following regulations:

(a) The only sounds permitted shall be music or human speech.

(b) No operations shall be permitted between the hours of 10:00 p.m. and 10:00 a.m., provided that on Sundays and legal holidays operations shall be permitted only between the hours of 12:00 noon and 6:00 p.m.

(c) Sound amplifying equipment shall not be operated unless the sound truck upon which such equipment is mounted is operated at a speed of at least ten (10) miles per hour except when used for public functions or for public addresses or when said truck is stopped or impeded by traffic. Where stopped by traffic the said sound amplifying equipment shall not be operated for longer than one (1) minute at each such stop.

(d) Sound shall not be issued within one hundred (100) yards of hospitals, schools, churches, synagogues or courthouses.

(e) No sound truck with its amplifying device in operation shall be operated on any street designated by the commissioner of public safety as within the downtown congested traffic area.

(f) The human speech and music amplified shall not be profane, lewd, indecent or slanderous.

(g) The volume of sound shall be controlled so that it will not be audible for a distance in excess of two hundred (200) feet from the sound truck and so that said volume is not unreasonably loud, raucous, jarring, disturbing or a nuisance to persons within the area of audibility.

(h) No sound amplifying equipment shall be operated with an excess of fifteen (15) watts of power in the last stage of amplification.

(Ch. 32B, § 6, added by Ord. 1949, ch. 312, § 2)

Sec. 24-103. Commercial advertising prohibited.

No person shall operate, or cause to be operated, any sound truck for commercial sound advertising purposes in the city, with sound amplifying equipment in operation.
(Ch. 32B, § 2, added by Ord. 1949, ch. 312, § 3)

Chapter 25

WATER AND SEWERS*

Article I. In General

Sec. 25-1. Inflammables and hot water not to be turned into sewer.
Sec. 25-2. Rubbish, other waste not to be placed in sewers.
Secs. 25-3—25-12. Reserved.

Article II. Installation of Water Mains

Sec. 25-13. Petition to director of public works to file applications with water supply board.
Sec. 25-14. Deposit of estimated cost to accompany petition.
Sec. 25-15. Deposit of estimated cost in "New Water Main Account".
Sec. 25-16. Filing application with water supply board by director of public works.
Sec. 25-17. Payments upon voucher from director of public works.
Sec. 25-18. Certification of cost of installation, pro rata share for abutting property.
Sec. 25-19. Payment of difference between estimated cost, actual cost by petitioner.
Sec. 25-20. Connection with main by property owners other than original petitioner.
Secs. 25-21—25-30. Reserved.

Article III. Water Services

Sec. 25-31. Water meters; installation, maintenance, record.
Sec. 25-32. Water meter revolving fund to finance purchase of meters.
Sec. 25-33. Crediting receipt of payments for meters.

***Cross references—**Duties of city engineer in connection with sewers, § 2-136; supply of running water for premises where poultry is slaughtered, § 10-106; wholesome water to be provided, § 12-12; unwholesome wells, § 12-13; depositing matter taken from catch basins, § 12-59; privies and cesspools, § 12-90 et seq.; flush toilet and lavatory basin required by housing code, § 13-5 et seq.; bathtub and shower bath requirements of housing code for rooming houses, § 13-5 et seq.; hot water requirements, § 13-5 et seq.; alteration by railroad of sewerage or drainage system, § 19-19; waterworks depreciation and extension fund, § 21-65; deposits in sinking fund for redemption of water bonds, § 21-88.

State law references—Scope of ordinances which may be enacted, § 45-6-1, Gen. Laws 1956; imposition, collection of sewage charges, ch. 45-14, Gen. Laws 1956; water pollution, ch. 46-12, Gen. Laws 1956; public drinking water supply, ch. 46-13, Gen. Laws 1956; contamination of drinking water, ch. 46-14, Gen. Laws 1956; inspection of dams and reservoirs, ch. 46-19, Gen. Laws 1956; ditches and drains, ch. 46-20, Gen. Laws 1956.

Sec. 25-34. Charges against water meter fund.
Sec. 25-35. Disposition of balance in water meter fund.
Sec. 25-36. Bills for water, water rents, meter repairs, connections, etc.
Sec. 25-37. Bills of water supply board to be payable to city.
Sec. 25-38. Correction of bills for water services.
Sec. 25-39. Drinking fountains for free public use.
Sec. 25-40. Hydrant fees.
Sec. 25-41. Payment for hydrant rentals.
Secs. 25-42—25-49. Reserved.

Article IV. Reserved

Secs. 25-50—25-70. Reserved.

Article V. Connection and Discharge to Public Sewer

Sec. 25-71. Purpose.
Sec. 25-72. Definitions.
Sec. 25-73. Building sewers and connections.
Sec. 25-74. Construction requirements for public sewers and drains.
Sec. 25-75. Use of public sewers.
Sec. 25-76. Garbage disposal units.
Sec. 25-77. Vandalism; protection from damages.
Sec. 25-78. Inspection on private property; powers and authority of director.
Sec. 25-79. Certain persons authorized to construct and repair sewers and drains.
Sec. 25-80. Offenses enumerated.
Sec. 25-81. Interpretation of requirements; appeal.
Sec. 25-82. Amendment to rules and regulations.
Sec. 25-83. Illicit discharge detection and elimination.

ARTICLE I. IN GENERAL

Sec. 25-1. Inflammables and hot water not to be turned into sewer.

No person shall introduce or turn into or cause or suffer to be introduced or turned into any common sewer or catch basin in the city any steam, highly volatile or inflammable material, any rubbish, oil or other product of petroleum, or any hot water above one hundred thirty (130) degrees Fahrenheit temperature.
(Ord. 1921, ch. 294, § 1; Rev. Ords. 1946, ch. 23, § 12)

Cross reference—Similar provisions, § 25-75(g)(1).

Sec. 25-2. Rubbish, other waste not to be placed in sewers.

No person shall place or deposit in any street opening to any sewer or in any catch basin any animal or vegetable matter, solid or liquid, nor any filthy substance or rubbish.
(Ord. 1939, ch. 984, § 1; Rev. Ords. 1946, ch. 23, § 13)

Cross reference—Similar provisions, § 25-75(g)(4).

Secs. 25-3—25-12. Reserved.

ARTICLE II. INSTALLATION OF WATER MAINS*

Sec. 25-13. Petition to director of public works to file applications with water supply board.

Any owner of property abutting on a street in the city may petition, in writing, the director of public works to file an application with the water supply board of the city for the installation of a water distribution main in said street.
(Ch. 35, § 10, added by Ord. 1950, ch. 348, § 1)

Sec. 25-14. Deposit of estimated cost to accompany petition.

A property owner shall deposit with the petition described in section 25-13 an amount equal to the estimated cost of the installation as certified by the chief engineer of the water supply board.
(Ch. 35, § 11, added by Ord. 1950, ch. 348, § 1)

***Cross reference—**Supply of running water for premises where poultry is slaughtered, § 10-106.

State law references—Public drinking water supply, ch. 46-13, Gen. Laws 1956; special act to provide supply of pure water for city, P. L. 1915, ch. 1278, as amended by P. L. 1921, ch. 2108, P. L. 1931, ch. 1815, P. L. 1932, ch. 1966 and P. L. 1936, ch. 2316.

Sec. 25-15. Deposit of estimated cost in "New Water Main Account".

The amount of the estimated cost of installation as required by section 25-14 shall be turned over to the city collector for deposit in a special account known as the "New Water Main Account".
(Ch. 35, § 12, added by Ord. 1950, ch. 348, § 1)

Sec. 25-16. Filing application with water supply board by director of public works.

The director of public works, after the provisions of sections 25-13 through 25-15 have been complied with, shall file the requested application with the water supply board for the installation of the distribution main, together with the payment of the estimated cost.
(Ch. 35, § 13, added by Ord. 1950, ch. 348, § 1)

Sec. 25-17. Payments upon voucher from director of public works.

All payments as required by section 25-16 shall be made by the city treasurer from the water main account, upon voucher from the director of public works.
(Ch. 35, § 14, added by Ord. 1950, ch. 348, § 1)

Sec. 25-18. Certification of cost of installation, pro rata share for abutting property.

Upon completion of an installation provided for in this article, the water supply board shall certify to the director of public works the total cost of the work and the pro rata share of said cost for each lot abutting on said street, based upon the lineal frontage of each lot.
(Ch. 35, § 15, added by Ord. 1950, ch. 348, § 2)

Sec. 25-19. Payment of difference between estimated cost, actual cost by petitioner.

The petitioner upon certification of the cost and pro rata share of an installation hereunder, shall thereupon pay to the director of public works the difference, if any, between the estimated cost and the actual cost of said work before he may connect with said distribution main.
(Ch. 35, § 16, added by Ord. 1950, ch. 348, § 2)

Sec. 25-20. Connection with main by property owners other than original petitioner.

No property owner on a street other than the original petitioner pursuant to this article shall be allowed to connect with a newly installed water distribution main until an amount equal to the applicant's pro rata share of the cost incurred in laying said main shall have been deposited by the applicant to the credit of the new water main

account. When such deposit shall have been made, the director of public works shall authorize the water supply board to make the connection, and shall further submit an approved voucher to the city treasurer for payment to the original petitioner of the amount of such deposit; said payment to be likewise made from the new water main account. Said deposits shall not bear interest.
(Ch. 35, § 17, added by Ord. 1950, ch. 348, § 2)

Secs. 25-21—25-30. Reserved.

ARTICLE III. WATER SERVICES*

Sec. 25-31. Water meters; installation, maintenance, record.

The chief engineer of the water supply board shall, under the direction of said board, control and manage the supplying of water meters for the city in accordance with rules adopted from time to time by the water supply board. He shall keep all meters stored in the department in as good condition and repair as is possible, and shall install and maintain a proper system of accounting for the same.
(Ord. 1942, ch. 1165, § 1; Rev. Ords. 1946, ch. 35, § 9)

Sec. 25-32. Water meter revolving fund to finance purchase of meters.

A water meter revolving fund shall be held and maintained by the city treasurer as a separate fund of the city for the purpose of financing all proper charges against the water supply board for the purchase of water meters.
(Ord. 1942, ch. 1165, § 3; Rev. Ords. 1946, ch. 35, § 1)

Sec. 25-33. Crediting receipt of payments for meters.

Upon receipt of the payments for water meters the city controller shall credit the water meter revolving fund with the receipts for said meters.
(Ord. 1942, ch. 1165, § 3; Rev. Ords. 1946, ch. 35, § 2)

***Cross references—**Providing wholesome water in dwellings, factories, stores, etc., § 12-12; water on streets or sidewalks, § 12-13.

State law references—Special act to provide supply of pure water for city, P. L. 1915, ch. 1278, as amended by P. L. 1921, ch. 2108, P. L. 1931, ch. 1815, P. L. 1932, ch. 1966 and P. L. 1936, ch. 2316; water pollution, ch. 46-12, Gen. Laws 1956; public drinking water supply, ch. 46-13, Gen. Laws 1956; contamination of drinking water, ch. 46-14, Gen. Laws 1956; inspection of dams and reservoirs, ch. 46-19, Gen. Laws 1956; ditches and drains, ch. 46-20, Gen. Laws 1956.

Sec. 25-34. Charges against water meter fund.

The chief engineer of the water supply board shall make appropriate charges against the water meter revolving fund with respect to water meters purchased.
(Ord. 1942, ch. 1165, § 3; Rev. Ords. 1946, ch. 35, § 3; Ord. 1948, ch. 38, § 1)

Sec. 25-35. Disposition of balance in water meter fund.

Any balance in the water meter revolving fund at the end of each fiscal year in excess of the amount appropriated shall revert to water receipts.
(Ord. 1942, ch. 1165, § 3; Rev. Ords. 1946, ch. 35, § 4; Ord. 1948, ch. 38, § 1)

Sec. 25-36. Bills for water, water rents, meter repairs, connections, etc.

The water supply board shall make out against the parties indebted, all bills for water, for water rents, for repairs on meters and connecting pipes, and for all other supplies and labor furnished by him, and shall send said bills to the office of the city collector for collection.
(Ord. 1914, ch. 49, § 2; Rev. Ords. 1946, ch. 35, § 5)

Sec. 25-37. Bills of water supply board to be payable to city.

All bills made out by the water supply board by the terms thereof shall be payable to the city.
(Ord. 1914, ch. 49, § 3; Rev. Ords. 1946, ch. 35, § 6)

Sec. 25-38. Correction of bills for water services.

Whenever any error is made by the water supply board in the reading of water meters or an error is made in the making out of bills for the water used by any consumer whereby an overcharge results, the water supply board is hereby authorized to correct and adjust any such error by a proper bill in favor of the consumer for the amount of such overcharge and said bill shall be certified to the city controller for payment, the amount of said bill to be charged to the appropriation for waterworks maintenance.
(Ord. 1918, ch. 193, § 1; Rev. Ords. 1946, ch. 35, § 8)

Sec. 25-39. Drinking fountains for free public use.

The water supply board shall take charge of and maintain for the use of the public, and keep supplied with water from the city water mains free of charge, the drinking fountains now or hereafter established, the expense to be charged to the appropriation for care, maintenance and management of the waterworks.
(Ord. 1914, ch. 49, § 29; Rev. Ords. 1946, ch. 35, § 7)

Sec. 25-40. Hydrant fees.

The rental fees or other charges for any fire hydrant located within the city which is supplied by the Providence Water Supply Board shall not be charged to the City of Providence.
(Ord. 2011, ch. 2011-33, § 1, 7-19-11)

Sec. 25-41. Payment for hydrant rentals.

The rental fees or other charges for any fire hydrant located within the city which is supplied by the Providence Water Supply Board shall be the responsibility of the water rate payers in the city, pursuant to an appropriate order of the Rhode Island Public Utilities Commission. The city clerk shall provide notice of this section to the Rhode Island Public Utilities Commission upon the section's enactment.
(Ord. 2011, ch. 2011-33, § 2, 7-19-11)

Secs. 25-42—25-49. Reserved.

ARTICLE IV. RESERVED*

Secs. 25-50—25-70. Reserved.

ARTICLE V. CONNECTION AND DISCHARGE TO PUBLIC SEWER†

Sec. 25-71. Purpose.

In order to ensure proper removal and disposal of sewage wastes and waste waters within the region; to provide waste disposal standards for the protection and propagation of indigenous and migratory populations of organisms and allow for safe recreational activities in and on the waters of upper Narragansett Bay; to ensure the proper operation and maintenance of public sewers, drains, treatment facility and other drainage or sewerage works within the region; to encourage waste water flow reduction to ensure adequate capacity of the Providence sewerage system; and to

---

***Editor's note—**Ch. 82-20, approved April 30, 1982, amended Art. XIV of ch. 79-37, which had not formerly been included herein. At the editor's discretion, ch. 82-20 was codified as having superseded Art. IV, "Sewer Rents," §§ 25-50—25-63. Subsequently, ch. 86-2, approved February 12, 1986, repealed Code §§ 25-50—25-63.

†**Editor's note—**Ord. 1979, ch. 79-37, Arts. I—XII, approved Sept. 28, 1979, did not expressly amend this Code; thus, codification as Art. V, §§ 25-71—25-82, has been at the editor's discretion. The editor has added catchphrases in order to facilitate indexing and use. Arts. XIII, validity, and XV, effective date, have been omitted from codification to preserve Code format.

Cross references—Privies and cesspools, § 12-90 et seq.; alteration in sewerage or drainage system by railroad, § 19-19; sewer improvement bonds, App. C.

provide for keeping adequate records of sewers, drains and appurtenances and connections thereto; and to set water quality standards within those allowed under the National Pollution Discharge Elimination System permit; this article regulating the construction, use, repair, alteration and discontinuance or abandonment of sewers, drains and appurtenances; the connections thereto, including drains and pipes discharging directly or indirectly into said sewers or drains; and the substances to be discharged directly or indirectly into and through sewers, drains and appurtenances of the public sewerage system and storm drainage system of the region; and establishing a cost recovery program is hereby enacted by the Providence city council, as provided by the Charter of the City of Providence, including special acts approved by the State of Rhode Island. All other municipalities discharging waste water into the Providence sewerage system shall be required under the terms of their sewerage contracts with the City of Providence to adhere to the provisions, requirements, rules and regulations contained within this article, and to prohibit any discharges into their sewers of types of waste water that are defined herein as unacceptable discharges into the Providence system.
(Ord. 1979, ch. 79-37, Art. I. 9-28-79)

Sec. 25-72. Definitions.

Unless the context specifically indicates otherwise, the meaning of terms used in this article shall be as follows:

Applicant shall mean any person requesting approval to discharge waste waters into municipal facilities or for a new connection to the public system.

ASTM shall mean the American Society for Testing and Materials.

Biochemical oxygen demand (BOD_5) shall mean the quantity of dissolved oxygen, expressed in milligrams per liter, used in the biochemical oxidation of organic matter in waste water averaged during five (5) consecutive work days at twenty (20) degrees Centigrade (sixty-eight (68) degrees Fahrenheit) under standard laboratory procedures, as determined by Standard Methods.

Building drain shall mean those drains referred to in Section 1701.0 of the plumbing code of the City of Providence and/or that part of the lowest horizontal piping of a sanitary waste water system which receives the discharge from soil, waste and other sanitary pipes inside the walls of the building and conveys into the building sewer beginning five (5) feet (1.5 meters) outside from the inner face of the building wall.

Building sewer shall mean a pipe connecting a public sewer with a building for the purpose of conveying sewage of any kind from said building to the public sewer.

Building sewer lateral shall mean a pipe or conduit laid incidental to the original construction of a public sewer, from that public sewer to some point at the side of the

street, highway or similar location, and there capped, having been provided and intended for extension and for use at some time thereafter as part of a building sewer as defined above.

Chemical oxygen demand (COD) shall mean the measure of the oxygen consuming capacity of inorganic and organic matter present in water or waste water. It is expressed as the amount of oxygen consumed from a chemical oxidant in a specific test and does not differentiate between stable and unstable organic matter; thus it does not necessarily correlate with biochemical oxygen demand.

Chlorine demand shall mean the amount of chlorine, expressed in milligrams per liter (mg/l) by weight, that is required to produce a residual of 0.5 mg/l of chlorine after fifteen (15) minutes' contact of chlorine with sewage, as determined by Standard Methods.

Combined sewer shall mean a sewer intended to receive and convey both waste water and surface runoff from storms.

Combined sewage or combined waste water shall mean waste water, water-carried wastes, or a mixture of them from residences, business buildings, institutions and industrial establishments together with such stormwater as may be present.

Contamination shall mean the introduction of pathogenic or potentially pathogenic organisms, or of toxic or potentially pathogenic organisms, or of toxic or potentially toxic substances or any other factor into a watercourse that will render the water hazardous and, therefore, unfit for human consumption or for domestic usage of any kind or disrupt the ecology of the receiving water's indigenous or migratory organisms or prevent recreational activities in and on said water.

Contractor shall mean either an individual, partnership or corporation, and the proper agents and representatives thereof, approved by the director and to whom the director shall have issued a license to install and repair sewers, during the period when such license is valid.

Cooling water shall mean the clean waste water from air conditioning, industrial cooling, condensing and similar apparatus, and from hydraulically powered equipment. Cooling water shall include only water which is sufficiently clean, uncontaminated and unpolluted to admit of being discharged without treatment or purification, into any natural open stream or watercourse without offense.

Dilution shall mean the reduction in concentration of an excessive waste substance to be discharged in accord with the best available technology, with priority given to decreasing the volume of effluent.

Director shall mean the director of public works in the City of Providence or his authorized deputy or representative.

Drain: See "storm sewer."

Easement shall mean the acquired legal right to use for a specific purpose land owned by others.

Excessive shall mean the amounts or concentration of a constituent of a waste water which in the judgment of the municipality:

(a) Will cause damage to any facility,

(b) Will be harmful to a waste water treatment process,

(c) Cannot be removed in the treatment works to the degree required by existing laws and regulations protecting upper Narragansett Bay water quality,

(d) Can otherwise endanger life or property, or

(e) Can constitute a nuisance.

Floatable oil is oil, fat or grease in a physical state such that it will separate by gravity from waste water by treatment in an approved pretreatment facility. A waste water shall be considered free of floatable fat if it is properly pretreated and the waste water does not interfere with the collection system.

Flow reduction shall mean reducing the volume of waste water discharged into the public sewers.

Garbage shall include the wastes resulting from the handling, preparation, cooking and serving of food, and from handling, storage and sale of produce. It is composed largely of putrescible organic matter, usually with a high natural moisture content.

Garbage disposal unit shall mean a mechanical device used for the grinding, shredding or macerating of any kind of material or waste preparatory to disposal thereof into the public sewage system.

Grease shall mean volatile and nonvolatile residual fats, oils, fatty acids, soaps, waxes, mineral oils and other materials of like repute.

Grit shall mean heavy inorganic matter such as stones, gravel, cinders, sand, silt, ashes or other inert materials.

Incompatible pollutant shall mean any pollutant other than biochemical oxygen demand, suspended solids, pH, coliform bacteria, or additional pollutants identified in the permit which the treatment works was not designed to treat and does not remove to a substantial degree which pollutant will adversely affect the efficiency of the treatment works, will cause contamination of the receiving water or would cause a violation of discharge as allowed under the city's NPDES permit.

Industrial waste water or industrial sewage shall mean any industrial waste product not included within the definitions of sanitary sewage, storm water or cooling water.

Major contributing industry shall mean an industry that:

(a) Has a flow of fifty thousand (50,000) gallons or more per average work day;

(b) Has a flow greater than five (5) percent of the flow carried by the municipal system receiving the waste;

(c) Has in its wastes a toxic pollutant in toxic amounts as defined in standards issued under Section 307(a) of the Federal Water Pollution Control Act as amended; or

(d) Has a significant impact, either singly or in combination with other contributing industries, on a publicly owned treatment works or on the quality of effluent from that treatment works.

May is permissive. (See "shall.")

Municipal or municipality or any other word in common usage designating a legally constituted unit of local government or pertaining or belonging to said government shall mean the City of Providence, State of Rhode Island, hereinafter referred to as the city; and also shall mean the towns of North Providence, Johnston and Smithfield, State of Rhode Island, hereinafter referred to as the town or towns.

Natural outlet shall mean any outlet of surface water or groundwater into a watercourse, pond, ditch, lake or other body.

Nonstructural shall mean habits and methods that users can adopt to help reduce waste water volume which do not require the purchase or addition of any equipment.

NPDES permit is the National Pollutant Discharge Elimination System permit issued by the director of the Enforcement Division, Region I, U.S. Environmental Protection Agency, Boston, Massachusetts.

Person shall mean any individual, firm, company, association, society, corporation, group, trust, municipality or governmental authority.

pH shall mean the reciprocal of the logarithm (to the base ten (10)) of the hydrogen ion concentration in grams per liter (gm/l) of solution. Neutral water, for example, has a pH value of seven (7) and a hydrogen ion concentration of 10^{-7} (or 1/10,000,000).

Pollution shall mean the introduction of substances of such character and of such quantity into a watercourse such that its natural quality is so altered as to impair its usefulness as an ecological habitat for the indigenous and migratory population of organisms or for recreational purposes in and on the water, to pose a health problem or to render the watercourse offensive to the senses of sight, taste or smell.

Pretreatment shall mean the application of physical, chemical and biological processes to reduce the amount of pollutants in or alter the nature of the pollutant properties in a waste water prior to discharging such waste water into the publicly owned waste water treatment system.

Pretreatment standards shall mean all applicable federal rules and regulations implementing Section 307 of the Act, as well as any nonconflicting state or local standards. In cases of conflicting standards or regulations, the more stringent thereof shall be applied.

Private drain shall include any drain located on private property and not under the care and control of the city.

Private sewer shall mean any sewer located on private or public property that collects and conveys waste water from one (1) or more building sewers, discharges into a public sewer, and is not under the care and control of the city.

Properly shredded garbage shall mean solid wastes from the preparation, cooking, and dispensing food that have been shredded to such a degree that all particles will be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than one-half inch (1.27 centimeters) in any dimension.

Property owner or owner of property or owner, as used herein, shall include both the owner of fee in any real estate and all tenants, lessees or others in control, or possession and use of the property in question, or having any interest therein, and his, her, its or their agents or representatives, as the interest, duties, powers or liabilities of each may be.

Excluded from the definition of a property owner or owner of property or owner is a mortgagee of said property unless said mortgagee exercises his rights and becomes an owner of property or owner.

Public sewer shall be used only with respect to the main line of pipe which is owned, controlled and maintained by the city for the conveyance of waste or sewage from several properties, and shall not be understood to include the building sewers as defined in this section, above.

Receiving waters shall mean any watercourse, river, pond, ditch, lake, aquifer or other body of surface water or groundwater receiving discharge of waste waters.

Recycle shall mean methods to reuse cooling or process waters rather than discharging once-used waters into the sewerage system.

Relief sewer or relief drain shall mean a sewer or storm drain constructed to supplement the capacity of an existing sewer or drain by conveying part of the wastes which would otherwise be discharged into and be conveyed by said existing sewer or drain. The particular wastes to be conveyed by any such relief sewer or drain shall be determined by the wastes for which it was designed, laid out or intended to receive and convey, as may appear in the records of the city or other body under which it was created.

Sanitary sewer shall mean a sewer intended to convey only sanitary sewage or, if so stipulated with respect to the particular sewer, sanitary sewage plus industrial or other wastes, but excluding storm, surface and groundwaters.

Sanitary waste water or sanitary sewage shall mean the common waste water and water-carried wastes from residences, and from toilet and lavatory fixtures, commercial and noncommercial kitchens and laundries, carwashes, and similar sanitary facilities of business and industrial buildings.

Seepage or subsoil drainage shall mean water from soil percolating into subsoil drains and through foundation walls, basement floors or underground pipes, or from similar sources.

Sewage shall be held to mean and to include any human or animal or vegetable matter, garbage, offal, filth, waste, chemicals, acid, dyestuff, starch, coloring matter, oil and tar, radioactive substances, and any compound, solution, mixture or product thereof, and every substance which may be injurious to public health or comfort, or which would injuriously affect the natural and healthy propagation, growth or development of any fish or shellfish in the waters of this state, or of the nourishment of the same, or which would injuriously affect the flavor, taste or value as food of any such fish or shellfish; or which would defile said waters or injure or defile any vessel, boat, wharf, pier or any public or private property upon, in or under said waters, or any shore thereof. The preferred term is "waste water." See "waste water," below.

Sewer shall mean the main pipe or conduit, manholes and other structures and equipment appurtenant thereto, provided to carry sewage, industrial wastes, storm water, cooling water or similar wastes, subject in each particular case to the purposes and limitations imposed upon the particular pipe or conduit.

Septic tank shall mean an approved type of watertight compartment made of concrete or other approved material into which the outflowing sewage from dwellings or other buildings may be discharged.

Shall is mandatory. (See "may.")

Slug shall mean any discharge of water, waste water, sewage or industrial sewage or a quantity of flow, which causes a surcharge higher than the crown of a normally constructed sewer or which exceeds for any period of duration longer than fifteen (15) minutes, more than five (5) times the average twenty-four-hour concentration or flow during normal operation or which in concentration of any given constituent or otherwise adversely affects the collection system and/or the performance of the waste water treatment facility.

Standard Methods shall mean the latest edition of "Standard Methods for the Examination of Water and Waste Water," as published by the American Public Health Association.

Storm sewer or storm drain or drain shall mean a sewer provided and intended for the conveyance of storm water with or without other clean waste waters, as may be stipulated for any particular drain or sewer, but excluding sewage or contaminated or polluted industrial wastes.

Storm water shall include the runoff or discharge of rain and melted snow or other clean water from roofs, surfaces of public or private lands or elsewhere, and only such water which is sufficiently clean, uncontaminated and unpolluted to admit of being discharged, without treatment or purification, into any natural open stream or natural brook, rivulet or stream.

Suspended solids (SS) shall mean the solids that either float on the surface of, or are in suspension in water, waste water or other liquids, and which are removable by laboratory filtering, as determined by standard methods.

Toxic shall mean any material lethal to humans, animals or to aerobic and anaerobic bacteria required for biological treatment processes.

Turbidity shall include the following:

(a) Condition in water or waste water caused by the presence of suspended matter, resulting in the scattering and absorption of light rays,

(b) Measure of fine suspended matter in liquids, and

(c) Analytical quantity usually reported in arbitrary turbidity units determined by measurements of light diffraction.

Unpolluted water shall mean water of quality equal to or better than the effluent limitations in effect and/or water that would not cause violation of receiving water quality standards and would not be benefited by discharge to the sanitary sewers and waste water treatment facilities provided and would not damage directly or indirectly the receiving waters either by physical, chemical or biological modification.

Wastes shall mean substances in liquid, solid or gaseous form that can be carried in water.

Watercourse shall mean a natural or artificial channel for the passage of water, either continuously or intermittently.

Waste water shall mean the spent water of a community. From the standpoint of source, it may be a combination of the liquid and water-carried wastes from residences, commercial buildings, industrial plants, and institutions, together with any groundwater, surface water and storm water that may be present.

Waste water facilities shall mean all public facilities for collecting, pumping, treating and disposing of waste water and for the control of water pollution.

Waste water treatment facility shall mean any arrangement of devices and structures used for treating waste water and for the control of water pollution within regulation of the NPDES permit.

WPCF is the abbreviation for The Water Pollution Control Federation.
(Ord. 1979, ch. 79-37, Art. II, §§ 1—66, 9-28-79)

Sec. 25-73. Building sewers and connections.

(a) *Local building and plumbing codes to be observed.* The requirements of local building, housing and plumbing codes shall be observed with respect to fixtures inside and immediately adjacent to buildings and within the areas of jurisdiction of said several codes, subject only to the general requirements of this article. Pipe more than five (5) feet (1.5 meters) outside the inner face of the building walls shall conform to the requirements of this article as to permits, materials and workmanship.

(b) *Permits required.* No person shall uncover, make any connections with or opening into, use, alter or disturb any public sewer or drain or appurtenance thereof without first obtaining an appropriate written permit from the director. Applicants shall apply for separate permits for sewers and drains.

(c) *Types of permits established.* There shall be two (2) classes of building sewer permits: class A permits, which shall authorize the connection of establishments generating essentially sanitary waste water, as defined in section 25-72, to the public sewer; and class B permits, which shall authorize the connection of establishments producing industrial waste water, as defined in section 25-72, to the public sewer.

(d) *Application requirements.* Application for a building sewer permit shall be made by a licensed plumber of licensed drain layer for the building to be connected and shall be made on an application form provided by the director. Each application shall be supplemented with the plans and specifications for the sewer connection and such other information relating to the building and the wastes to be discharged as may be considered pertinent by the director. At his discretion, the director may also require that all plans, specifications and data so submitted shall bear the seal and signature of a professional engineer registered in the State of Rhode Island. A permit and inspection fee of fifty dollars ($50.00) for a class A permit and of one hundred dollars ($100.00) for a Class B permit shall be paid to the city at the time the application is filed.

(e) *Notification of discharge.* Any person proposing any of the following shall notify the director at least forty-five (45) days prior to the proposed change or connection:

(1) A new discharge into the system or a substantial change in the volume or character of pollutants over that being discharged into the system on (the date of issuance of the city's NPDES permit); or

(2) A new discharge into the public sewer of pollutants from any source which would be a new source as defined in Section 306 of the Federal Water Pollution Control Act as amended to date or hereafter, 33 U.S.C., if such source were discharging pollutants; or

(3) A new discharge into the public sewer of pollutants from any source which would be subject to Section 301 of the said Act, as amended to date or hereafter, if it were discharging such pollutants.

The director shall notify the regional administrator of the federal Environmental Protection Agency of any such discharge proposed as above within thirty (30) days after receipt of notification from the person so proposing.

(f) *Swimming pools.* The director shall be notified by the owner of the proposed discharge of water from a swimming pool to the public sewer. The director shall have the right to approve or deny the request, designate the time and rate of flow permitted, and to enter upon the premises to inspect the project prior to and during the operation. If an owner fails to provide such notification or disregards instructions either accidentally or intentionally, the owner will be held responsible for any damage that may be caused from such discharge subject to the enforcement powers contained in these rules and regulations, and the director shall not be held liable for said violations.
(Ord. 1979, ch. 79-37, Art. III, §§ 1—6, 9-28-79)

Sec. 25-74. Construction requirements for public sewers and drains.

(a) *Building sewer or drain connection required.* The director is hereby authorized in all cases where there is a public sewer or drain in any street of the city or easement held by the city, to cause every owner of land adjoining such street, or easement, his agent, or tenant to provide, subject to the provisions of this article, a sufficient building sewer or drain from his house, yard or lot, to and into such public sewer or drain, whenever in the opinion of the director the same shall be necessary for the protection of the public health, and shall, thereupon, give such owner, agent or tenant notice in writing, specifying the time within which such building sewer or drain shall be constructed. The director shall prohibit the maintenance of any privy or cesspool on any premises connected with a public sewer or drain. Any person who neglects to construct a building sewer or drain under the provisions of this article within the time specified in such notice to do so, or maintains a privy in violation of such prohibition, shall forfeit and pay a penalty of two hundred dollars ($200.00) for each violation per day. Said penalty may be waived at the discretion of the director and/or city solicitor.

(b) *Installation of sanitary facilities; connection to public sewer; exceptions.* The owner of any house, building or property used for human occupancy, employment, recreation or other purpose, situated within the city and abutting on any street, alley or right-of-way in which there is now located or in the future may be located a public sanitary sewer of the city, is hereby required at his expense to install suitable sanitary facilities therein, and to connect such facilities directly with the proper public sewer in accordance with the provisions of this article, within ninety (90) days after the date of official notice to do so, provided that said public sewer is determined to be accessible and available by the director and located within one hundred (100) feet to the property line. Extensions greater than ninety (90) days may be granted by the director to individual property owners upon appeal. Said extension shall be granted only when it

can be demonstrated that the connection to the public sewer system would create an undue financial hardship upon the owner and an agreement between the owner and the director shall be enacted. Said agreement shall be conditioned on the following:

(1) That the waste water from the subject property not be discharged directly or indirectly through groundwater to receiving waters;

(2) That the property is served by an acceptable subsurface disposal system, as determined by the director;

(3) That the agreement is nontransferable; that is, a new owner must connect up to the sewer system within ninety (90) days of the passing of papers;

(4) That the owner agrees to pay the city sewer assessment charge as determined by the city's cost recovery program.

(c) *Procedure for laying out or constructing new public sewers and drains by the city.* Whenever the laying out or construction of a new public sewer or drain by the city is wanted, application therefor shall be made by petition in writing to the mayor or city council signed by not less than six (6) adjacent property owners within six hundred (600) feet of the construction or by the city planning director or by the city engineer. Upon filing of said petition, the mayor or city council may refer the petition to the department of public works for investigation, hearing and report thereon. Before holding any hearing on said petition, the department of public works shall give all parties notice in the same manner as required by the zoning ordinance of the City of Providence.

After hearing all interested parties in the same manner as provided in the said zoning ordinance, the department of public works shall report to the mayor or city council whether in the director's opinion, the public convenience or the public health require the laying out of construction of a new public sewer or drain by the city.

(d) *Preconstruction report, hearing requirements.*

(1) No new public sewer or drain shall be constructed by the city unless the question of such construction or making shall first be referred to the department of public works, who shall report to the mayor or city council an estimate of its cost, the materials of which and the manner in which the same should be constructed or made, and an estimate of the damage likely to be occasioned by construction, taking land, or encroachment of watercourses; and if the sewer or drain or any portion thereof shall be outside the limits of the streets, it shall not be constructed or made otherwise than by the consent of all persons interested, without the same proceedings being followed as are required for laying out streets.

(2) In addition to the aforementioned procedure, the department of public works shall conduct a hearing for all interested parties in accordance with the

notification procedure set forth in the said zoning ordinance, after the estimate for damages and estimate of assessments is complete, but before final enactment by the city council.

(e) *Drawings to be on file.* Whenever any public drain or sewer is to be built, the director shall make or cause to be made a plan of the same, showing the form, mode of construction, depth below the surface, relation of the sewer invert elevations to the city base, the alignment and general direction of the drain or sewer relative to the street lines or neighboring property, and the sill elevations of all houses to be served, which plan shall be kept on file in his office. This plan shall be the basis of the elevation and report by the director required under subsection (d) above.

(f) *Construction requirements—Location, materials.* All public sewers which shall be ordered by mayor and city council in any street or highway shall, whenever practical, be laid out in such a way as to not hinder traffic and utilities in such street or highway, and shall be constructed of such materials and of such dimensions as the director shall direct.

(g) *Same—Other pipes not to interfere.* Whenever any street shall be opened for the laying of pipes for water, gas or other purposes, or for the performance of any works of construction or repairs, such laying of pipes and repairs and work connected therewith, or such work of construction shall be executed so as not to obstruct the course, capacity or construction of a public sewer or drain, and whenever pipes for any purpose or any work of construction shall hereafter be found to exist at such depth or in such location as to interfere with any existing sewer or with the building of any public sewer of the required size, and at the proper depth and grades, the person maintaining the same shall, upon notice thereof, at once remove, change and alter such pipes or other works in such manner as the director may direct. If such person neglects to immediately remove, change or alter such pipes in accordance with the terms of notification, then the director may make such removal, change or alteration, and the cost thereof shall be paid by such person.
(Ord. 1979, ch. 79-37, Art. IV, §§ 1—7, 9-28-79)

Sec. 25-75. Use of public sewers.

(a) *Unpolluted discharges.*

(1) All users who discharge sanitary waste water to the public sewers shall take all reasonable steps to reduce the volume of their discharge. The director, no later than October 1, 1981, shall prepare a list of devices for existing toilets, water closets, faucets, showerheads and toilet leak detection which can achieve significant flow reduction cost-effectively; and he shall also prepare information about nonstructural methods for reducing such flows. He or his designee shall cause such list and information to be distributed to each user as soon as possible. He shall, subject to the approval of the city council, develop and implement a distribution system for said devices no later than July 1, 1983.

(2) No person shall discharge or cause to be discharged any unpolluted waters such as storm water, surface water, groundwater, roof runoff, subsurface drainage to any sanitary sewer other than such discharge as is present at the time of passage of this article. All new or altered connections, excluding ordinary repairs, to the sanitary waste water system shall conform with the provisions of this article.

(3) Storm water and all other unpolluted drainage shall be discharged to such drains as are specifically designated as storm drains or combined sewers or to a natural outlet approved by the director. Industrial cooling water of proper temperature and volume or unpolluted process waters may be discharged on approval of the director to a storm drain, combined sewer or natural outlet, only if in the opinion of the director, all reasonable attempts compatible with best practicable technology have been taken to reduce such discharges by the use of recycling and reuse systems for such cooling or unpolluted process waters. However, no materials, the discharge of which into natural streams, ponds, lakes, or other natural bodies of water is prohibited by state or federal law or regulation shall be discharged into any storm drain.

(b) *Discharge to a natural outlet.* The owner of any house, building or property or any industrial, business or commercial establishment situated within the city and presently discharging, either directly or indirectly, to any river, canal, stream, lake or other surface or subsurface watercourse within the city, any industrial waste water, as defined in section 25-72, or any polluted discharges described in subsections (f) and (g) below, within ninety (90) days after the passage and adoption of this article file an application for a permit with the State Department of Environmental Management and the Environmental Protection Agency, and send a copy of the application to the department of public works. The application shall be in conformance with the NPDES requirements.

(c) *Separate sewer usage—Required.* No person shall discharge into or put into any public sewer or drain of the city, or into any sewer, drain or fixture which thereafter discharges into any public sewer, drain or appurtenance thereof, any waste or substance other than such kinds or types of water or water-carried wastes for the conveyance of which the particular sewer, drain or appurtenance is intended, designed and provided.

(d) *Same—Prohibited uses.* Except as specifically provided with reference to some particular sewer, sanitary sewers shall be used for the conveyance and disposal of sanitary waste water, as defined in section 25-72 and for diluted, water-carried industrial sewage which is not objectionable as hereinafter provided. No sanitary sewer shall be used to receive and convey or dispose of any storm or surface water (as defined in section 25-72), subsoil drainage, any large continuous flow of water seeping into buildings or excavations from soils or other underground sources, flows of natural

springs or groundwaters, surplus from flowing wells, the discharges from roofs, roof conductors, yard drains, street or highway drains, or of cooling water (as defined in section 25-72).

(e) *Same—Determination of sewer type.* If the original proceedings for the layout and construction of any particular sewer or for its acquisition by the city did not indicate what kind of sewer or drain it was intended to be, or what waste waters could or could not be discharged therein, the director shall consider the pertinent facts and shall determine the kind of sewer or drain said sewer is for the purposes of this article and what waste or waste waters shall be permitted to be discharged thereinto or be excluded therefrom.

(f) *Polluted discharges—Prohibited.* No person(s) shall discharge or cause to be discharged any of the following described pollutants to any public sewers:

(1) Any gasoline, benzene, naphtha, fuel oil, or other flammable or explosive liquid, solid or gas;

(2) Any waters containing toxic or poisonous solids, liquids or gases in sufficient quantity, either singly or by interaction with other wastes, to injure or interfere with any waste treatment process, constitute a hazard to humans or animals, create a public nuisance, create any hazard in the receiving waters of the waste water treatment facility, or exceed the limiting standards issued from time to time under Section 307(a) of the Federal Water Pollution Control Act, 33 U.S.C. Section 1317(a), as amended to date or hereafter.

(3) Any waters or wastes having a pH lower than five and five-tenths (5.5) or having any other corrosive property capable of causing damage or hazard to structures, equipment and personnel of the waste water works.

(4) Solid or viscous substances in quantities or of such size capable of causing obstruction to the flow in sewers, or other interference with the proper operation of the waste water facilities such as, but not limited to, ashes, bones, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, unground garbage, whole blood, paunch manure, hair and fleshings, entrails, and paper dishes, cups, milk containers, etc., either whole or ground by garbage grinders.

(5) Any septic tank solids or pumpings.

(6) In the case of a major contributing industry, as defined herein, any incompatible pollutant, as further defined herein, in an amount or concentration in excess of that allowed under standards or guidelines issued from time to time pursuant to Sections 304, 306 and/or 307, of the Federal Water Pollution Control Act, 33 U.S.C., Sections 1314, 1316, 1317, as amended to date or hereafter.

(g) *Same—Restricted.* The following described substances, materials, water or waste shall be limited in discharges to public sewers to concentrations or quantities which will not harm either the sewers, waste water treatment process or equipment, will not have an adverse effect on the receiving water's physical, chemical or biological components, or will not otherwise endanger lives, limb, public property, or constitute a nuisance. The director may set limitations lower than the limitations established in the regulations below if, in his opinion, such more severe limitations are necessary to meet the above objectives. In forming his opinion as to the acceptability, the director will give consideration to such factors as the quantity of subject waste in relation to flows and velocities in the sewers, materials of construction of the sewers, the waste water treatment process employed, capacity of the waste water treatment facility, degree of treatability of the waste in the waste water treatment facility, harmful effects on the ecology of the receiving water, and other pertinent factors. The limitations or restrictions on materials or characteristics of waste or waste waters discharged to the sanitary sewer which shall not be violated without approval of the director are as follows:

(1) Waste water having a temperature higher than one hundred and four (104) degrees Fahrenheit (40 degrees Celsius).

(2) Waste water containing more than twenty-five (25) milligrams per liter of petroleum oil, nonbiodegradable cutting oils, or product of mineral oil origin or containing substances which may solidify or become viscous at temperatures between thirty-two (32) degrees and one hundred four (104) degrees Fahrenheit (zero (0) degrees and forty (40) degrees Celsius) or would cause obstruction to the flow in sewers or other interference with proper operation of the treatment works.

(3) Waste water from industrial plants containing floatable oils, fat, or grease in excess of one hundred (100) milligrams per liter.

(4) Any garbage that has not been properly shredded (see section 25-72). Garbage grinders may be connected to sanitary sewers from homes, hotels, institutions, restaurants, hospitals, catering establishments or similar places where garbage originates from the preparation of food in kitchens for the purpose of consumption on the premises or when served by caterers. The installation and operation of any garbage grinder equipped with a motor of three-fourths horsepower (0.76 hp metric) or greater shall be subject to the review and approval of the director.

(5) Any waters or wastes containing strong acid, iron pickling wastes, or concentrated plating solutions, whether neutralized or not.

(6) Any waters or wastes containing iron, chromium, copper, zinc, and similar objectionable or toxic substances to such degree that any such material received in the composite waste water treatment works exceeds the limits established by the director for such materials.

(7) Any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the director in compliance with applicable state or federal regulations.

(8) Any noxious or malodorous gas or substance which is, in the opinion of the director, capable of creating a public nuisance.

(9) Any waters or wastes containing phenols or other taste or odor producing substances in such concentrations as to exceed the limits established by the director and/or the requirements of the state, federal or other public agencies or jurisdictions for such discharge to the receiving waters.

(10) Any wastes having a pH in excess of nine-tenths (0.9).

(11) Materials which exert or cause:

a. Unusual concentrations of inert suspended solids (such as, but not limited to, Fuller's earth, lime slurries and lime residues) or dissolved solids (such as, but not limited to, sodium chloride and sodium sulfate).

b. Color or turbidity in such an amount that it will prevent the city from discharging a treated effluent in compliance with its NPDES permit (such as, but not limited to, dye wastes and vegetable tanning solutions).

c. Unusual BOD concentrations, chemical oxygen demand, or chlorine demand in such quantities as to constitute a significant load on the sewage treatment facilities and/or may cause the effluent limitations of the city's NPDES permit to be exceeded.

d. Quantities of flow, concentrations, or both which constitute a "slug" as defined herein (see section 25-72).

e. A potential to contaminate the sludge and contribute to sludge disposal problem.

(12) Waters or wastes containing substances which are not amenable to treatment or reduction by the waste water treatment processes employed, or are amenable to treatment only to such degree that the waste water treatment plant effluent cannot meet the requirements of other agencies having jurisdiction over discharge to the receiving waters.

(13) Any water or wastes which, by interaction with other water or wastes in the public sewer system, releases obnoxious gases, form suspended solids which interfere with the collection system, or create a condition deleterious to structures and treatment processes.

(14) Any water or waste which by interaction with other water or wastes either directly or indirectly causes the physical, chemical or biological structure of the receiving waters to be adversely affected, causes a health hazard, or disrupts recreational activities on or in the receiving water.

(h) *Options of director relative to receiving restricted wastes.* If any waters or wastes are discharged or are proposed to be discharged to the public sewers, which waters contain the substances or possess the characteristics enumerated in subsection (g) above, and which, in the judgment of the director, may have a deleterious effect upon the waste water facilities, processes, equipment or receiving waters, or which otherwise create a hazard to life or constitute a public nuisance, the director may:

(1) Reject the wastes,

(2) Require pretreatment to an acceptable condition for discharge to the public sewers,

(3) Require control over the quantities and rates of discharge, and/or

(4) Require payment to cover added cost of handling and treating the waste.

If the director permits the pretreatment or equalization waste flows, the design and installation of the plants and equipment shall be subject to the review and approval of the director and/or other regulatory agencies. Said review and approval shall include an analysis of whether all practical methods, compatible with the particular processes involved, have been taken to include a water recycling system and/or other flow reduction measures in the pretreatment or equalization system.

(i) *Excluding polluted discharges from public sewers.* In determining whether any waste discharged or proposed to be discharged into any public sewer or drain would have a deleterious effect as described in subsection (h) above, and therefore, should be excluded from the public sewers, consideration shall be given to the quantity, time or times of discharge; rate and manner of discharge; dilution; the biological, chemical and physical composition of the waste water in question; the size of the sewer or drain into which it is or is to be discharged; the probable quantity of other sewage or objectionable wastes in said sewer or drain at the time of discharge; the effects on the receiving waters and other pertinent facts. Minute quantities of a waste which would be objectionable in larger quantity may be permitted upon specific permission of the director if sufficiently diluted when and as discharged, or if the quantity discharged is very small in comparison to the receiving sewer and the flow therein at the time of discharge. Any permission to discharge minute quantities of an otherwise excluded waste shall be revocable at any time by the director.

(j) *Pretreatment.* Where necessary, in the opinion of the director, the owner shall, at his expense, provide such preliminary treatment as may be necessary to reduce such objectionable characteristics or constituents to within the maximum limits provided for in this section, or to control the quantities and rates of discharge of such waters or waste waters. Plans, specifications and any other pertinent information relating to proposed preliminary treatment facilities shall be submitted to the director for review and approval; and no construction of such facilities shall be commenced until said

approval is obtained in writing, provided that such agreements do not contravene any requirements of existing federal laws and are compatible with any user charge and industrial cost recovery system in effect.

(k) *Equipment to prevent prohibited wastes from discharge into public sewer.* In all premises where wastes or substances specified to be excluded from sewers or drains by this article are customarily present and liable to be discharged directly or indirectly into any public sewer or drain, suitable and sufficient piping layouts, oil or grease traps or separators, screens, sedimentation chambers, diluting devices, storage and regulating, treatment, cooling or condensing equipment and similar devices or equipment shall be provided, maintained and operated, as required by the director to ensure that no waste, substance or water required to be excluded from said sewer or drain shall be discharged thereinto in violation of the requirements of this article.

(l) *Accessibility, operation and maintenance of pretreatment facilities—Generally.* Where preliminary treatment or flow equalizing facilities are provided for any waters or wastes, they shall be maintained continuously in a condition satisfactory to the director and be effectively operated by the owner at the owner's expense.

(m) *Same—Grease, oil, sand traps.* Grease, oil and sand removal facilities (traps, etc.) shall be provided when, in the opinion of the director, they are necessary for the proper handling of liquid wastes containing floatable grease in excessive amounts, as specified in this section under subsection (g)(3), or any flammable wastes, sand or other harmful ingredients; except that such facilities shall not be required for private living quarters or dwelling units. All facilities shall be of a type and capacity approved by the director, and shall be located as to be readily and easily accessible for cleaning and inspection. In the maintaining of these facilities the owner(s) shall be responsible for the proper removal and disposal by appropriate means of the captured material and shall maintain records of the dates, and means of disposal which are subject to review by the director. Any removal and hauling of the collected materials not performed by the owner(s) must be performed by currently licensed waste disposal firms.

(n) *Measuring, sampling and other devices.* At premises where any of the substances or wastes prescribed as being or to be excluded for any sewer or drain are present and liable to be discharged contrary to the limitations of this article, the director may require that the owner of said premises provide, operate and maintain a sampling well or wells, a flow measuring device, manholes, catchbasins, or other suitable devices or treatment facilities on any or all building sewers or drains from said premises near the point or points where said sewers connect to any public sewer or drain. By means of said sampling well or wells, or other devices, the owner of said premises and the director or any public officer charged with the duty of supervising the disposal of waste waters may secure samples of or examine the wastes and waste waters discharged into said public sewer and measure the quantities thereof for the purpose of ascertaining the compliance or noncompliance with the requirements of

this article. All such devices and facilities shall be installed by the owner at his expense and in accordance with plans approved by the director, and shall be maintained by him so as to be safe and accessible at all times.

(o) *Description of pretreatment facilities and measuring or sampling devices in building sewer permit.* To facilitate compliance with the requirements of this section, the director shall require the owner applying for a permit to install a new connection to any sewer or drain, or to alter or extend an existing building sewer, in any case, where a sampling well, oil or grease trap or separator, diluting device or similar appurtenance is or may be required to furnish the director as part of the application for said permit, a plan or satisfactory description, or both, of the device of whatever kind it is proposed to provide, and a description of the proposed operation thereof. Said plan, description or both shall become part of said application and the installation of the device in accordance therewith shall be a condition attached to the granting of said permit.

(p) *Analyses of industrial waste waters*—Methods.

(1) All measurements, tests and analyses of the characteristics of water and wastes to which reference is made in this article shall be determined in accordance with the latest edition of "Standard Methods for the Examination of Water and Waste Water," published by the American Public Health Association, and shall be determined at the control manhole provided, or upon suitable samples taken at said control manhole. In the event that no special manhole has been required, the control manhole shall be considered to be the nearest downstream manhole in the public sewer or private sewer to the point at which the building sewer is connected.

(2) Sampling shall be carried out by customarily accepted methods to reflect the effect of constituents upon the waste water works and to determine the existence of hazards to life, limb and property. The particular analyses involved will determine whether a twenty-four-hour composite of all discharges from the premises is appropriate or whether a grab sample or samples should be taken and analyzed. Normally, but not always, BOD and suspended solids analyses are obtained from twenty-four-hour composites of all outfalls, whereas pHs are determined from periodic grab samples.

(q) *Same—Responsibility.* Furnishing required analyses, flow date, etc., shall be the responsibility of the applicant. The director will stipulate the minimum analyses and other data that shall be obtained and shall conduct such waste water sampling and measuring programs as are requested by the applicant. Expenses thus incurred by the city shall be assessed to the applicant.

(r) *Same—Reports.* All industries discharging into a public sewer shall perform such monitoring of their discharges as the director and/or other duly authorized employees of the city may reasonably require, including installation, use and

maintenance of monitoring [equipment, keeping records and reporting the results of such monitoring] to the director. Such records shall be made available upon request by the director or by other agencies having jurisdiction over discharges to the receiving waters.

(s) *Treatment of industrial waste waters by city.* No statement contained in this section shall be construed as preventing any agreement or arrangement between the city and any industrial concern whereby an industrial waste of unusual strength or character may be accepted by the city for treatment, subject to payment therefor, by the industrial concern. Such agreement or arrangement shall first be approved by the director, provided that arrangements do not contravene any requirements of existing federal laws and are compatible with any user charge and industrial cost recovery system in effect.

(t) *Industrial user permit.*

(1) Every industrial user shall be required to obtain a permit and shall, within ninety (90) calendar days of the promulgation of these regulations, complete and file at their own expense a permit application form with the director wherein its discharge is located. All industrial users are required to apply for a permit. The director shall evaluate the adequacy of data furnished in the application form. If insufficient data has been furnished, the director will notify the industrial user to provide additional data within a specified time. After acceptance of data, the director will issue the permit. The director may stipulate special conditions and terms upon which the permit may be issued.

(2) Each industrial permittee shall submit a duly signed semiannual discharge report to the director. The director shall establish guidelines which will specify the content of the discharge report.

(3) The director will evaluate the data furnished. If insufficient data has been furnished, additional information may be required.

(4) Each industrial user shall monitor and analyze for the necessary parameters according to its standard industrial classification (SIC) as established by the director. SIC designation and parameters to be monitored and analyzed shall conform to approved EPA pretreatment standards and/or guidelines established by the director.

(5) Any person who knowingly makes any false statement, representation or certification in any application, record, report, plan or other document filed or required to be maintained under this article or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required to be maintained under this article, shall, upon conviction, be punished by a fine of not more than two hundred dollars ($200.00) or by imprisonment for not more than six (6) months, or by both.

(u) *Intermunicipal sewerage connections.*

(1) A municipality which connects its sewers with a providence sewerage system shall do so subject to the direction, control and regulation of the director and shall be referred to in this section as a "tributary municipality."

(2) All tributary municipalities shall adopt, within one hundred eighty (180) days of the adoption of this article, a sewer use ordinance no less restrictive than the Providence sewer use ordinance, together with procedures and adequate resources for monitoring and enforcing compliance with such by-law or ordinance. All tributary municipal sewer use by-laws, ordinances and regulations shall be approved by the director prior to their adoption by the tributary municipality.

(3) Each tributary municipality shall obtain a permit from the director for all connections from that municipality to the Providence sewerage system. A municipality proposing a new connection or the elimination of an existing connection to the Providence sewerage system shall obtain an amendment to its permit prior to constructing or eliminating such discharge or connection.

The director may change the conditions of a permit from time to time as circumstances, including law or regulations enacted or promulgated by the state or federal government or its agencies, may require.

(4) Each tributary municipality shall within one hundred eighty (180) calendar days of the promulgation of any such regulations by the director under this section, complete and file at its own expense a "permit application form" with the director which shall cover existing discharges and connections to the Providence sewerage system. Permit application forms may be obtained from the director.

(5) The director shall evaluate the adequacy of data furnished in the application form. If insufficient data has been furnished, the director will notify the tributary municipality to provide additional data within a specified time. After acceptance of data, the director will issue the permit. The director may stipulate special conditions and terms upon which the permit will be issued.

(6) Each tributary municipality shall furnish all necessary information and data in accordance with any guidelines established by the director.

(Ord. 1979, ch. 79-37, Art. V, §§ 1—21, 9-28-79)

Sec. 25-76. Garbage disposal units.

(a) *Permit required.* No garbage disposal unit, as defined in section 25-72, shall be installed in a commercial or industrial establishment before the owner thereof shall have obtained a permit from the director. Any person desiring to install a domestic garbage disposal unit in a one- or two-family dwelling unit does not need a permit unless the director has previously, by legal public notice in a newspaper of general

circulation, declared that the capacity of the public sewerage system in that particular sewer district is insufficient and that the installation of garbage disposal units is likely to impair such sewerage system.

(b) *Application requirements.* Any person desiring to install a garbage disposal unit shall first make application in writing to the director upon a form provided by him for that purpose, which application shall state the name and address of the applicant, the address of the premises in which such installation is desired, and a general description of the premises and the existing sewerage system within the premises affected.

(c) *Granting a permit.* Upon the filing of such application, the director shall, within a reasonable time, cause the premises and the available sewer system to be inspected and surveyed and, from the findings so obtained, determine upon such change or alteration in such system as, in his opinion, shall be necessary before issuing an approval of the application. No such approval shall be issued in any instance where the capacity of the public sewerage system shall be insufficient, or where the additional demand and service caused by the use of such garbage disposal unit shall be likely to impair the efficiency of such sewerage system. A reasonable time in this case, shall be considered to mean no more than two (2) weeks from the date of application.
(Ord. 1979, ch. 79-37, Art. VI, §§ 1—3, 9-28-79)

Sec. 25-77. Vandalism; protection from damages.

No person(s) shall maliciously, willfully or negligently break, damage, destroy, uncover, deface or tamper with or alter any structure, property, appurtenance or equipment; or dump garbage, refuse or other objectionable material on or within land or right-of-way or sewerage structure which is a part of the waste water facilities. Any person(s) violating this provision shall be subject to immediate arrest and the penalty upon conviction shall be a fine of two hundred dollars ($200.00) for each offense.
(Ord. 1979, ch. 79-37, Art. VII, § 1, 9-28-79)

Sec. 25-78. Inspection on private property; powers and authority of director.

(a) *Authorized employees to be admitted.* The director and other duly authorized employees of the city bearing proper credentials and identification shall be permitted to enter all private properties through which the city holds an easement for the purposes of, but not limited to, inspection, observation, measurement, sampling, repair, and maintenance of any portion of the waste water works lying within said easement. All entry and subsequent work, if any, on said easement shall be done in full accordance with the terms of the easement pertaining to the private property involved.

(b) *Authority to gather data.* The director or other duly authorized employees are authorized to obtain information concerning industrial processes which have a direct bearing on the kind and source of discharge to the waste water collection system. The industry must justify any withholding of information by establishing that the revelation to the public of the information in question might result in an advantage to competitors and would not serve the purposes of this section, and that the discharged effluent is not toxic or otherwise harmful, dangerous, difficult to treat, or likely to create obstructions in pipes or treatment tanks of the municipality or have adverse effects on the ecology of the receiving water.

(c) *Observance of safety rules.* While performing the necessary work on private properties referred to in subsection (a) above, the director or duly authorized employees of the city shall observe all safety rules established by the company and applicable to persons within the premises.

(d) *General responsibilities of director.* The director shall be responsible for the operation and maintenance of the waste water works, the administration of contracts and agreements between the city and municipalities and industries served by the city, and the administration of this article. He shall make all rules and regulations required to satisfactorily implement and enforce the provisions of this article and the intent thereof.

(e) *Monitoring by industry.* Any industry discharging into the public sewer shall perform such monitoring of its discharge as the director may reasonably require, including the installation, use and maintenance of monitoring equipment and methods, shall keep records of the results of such monitoring and shall report the results of such monitoring to the director.

(f) *Application deemed consent to section.* The director and other duly authorized employees of the city bearing proper credentials and identification shall be permitted to enter upon all properties at reasonable times for the purpose of inspection, examination and copying of any relevant records, monitoring equipment and methods, observation, measurement, sampling and testing in accordance with the provisions of this article and any rules and regulations adopted pursuant hereto. Any person who applies for and/or receives services from this system under this article shall be deemed to have consented to inspections pursuant to this section, including entrance upon that person's property at reasonable times to make inspections. Inspections shall be conducted at least once a year for each industry.
(Ord. 1979, ch. 79-37, Art. VIII, §§ 1—6, 9-28-79)

Sec. 25-79. Certain persons authorized to construct and repair sewers and drains.

(a) *Effect on plumbers and others.* The limitations as to person(s) who may construct, alter or repair public sewers and drains, as provided in subsection (f) below shall not restrict the usual work of plumbers or others when operating in accordance

with the plumbing and building codes of the city; provided no plumber or other person shall make any connection to a public sewer or drain of the city without a permit therefor, even if said sewer or drain is located under or immediately adjacent to any building or similar structure; and provided all drains and fixtures within said building or structures and all use made of them shall conform to the requirements of this article as to what may and may not be permitted to be discharged into public sewers and drains.

(b) *Building sewer application.* Every application for building sewer permit shall be made in writing on forms to be provided by the director for that purpose and shall be signed by the licensed plumber or licensed drainlayer. The application shall state the location and ownership of the property to be served by the sewer or drain in question, the post office address of said property owner, a brief description of the work to be done, and shall contain an agreement that the permittee will do the work in accordance with the local laws, ordinances, regulations and permits of the city as those local laws may apply to the particular location or work, and will save the city and others harmless from damages, loss or damage claims of every name and nature, all in such form and detail as may be directed by the director on the form provided. The director in his discretion, may require, as a prerequisite to the issuance of any permit, that he be furnished evidence:

(1) That any and all permissions and necessary permits to open public streets, public or private grounds or property have been or will be issued;

(2) That the agent of the applicant is properly authorized to sign the application in question;

(3) That the devices or provisions to prevent the entry into public sewers or drains of any substances forbidden entry by this article will be provided, maintained and operated or repaired by this article; and

(4) Any other information or proof pertinent to the particular job in question.

(c) *Building sewer permit.* Each permit to construct, alter or repair any sewer, building sewer or drain under this section shall be issued only after an application as hereinbefore provided has been made. It shall state the limit of time within which the work must be performed and at the expiration of which the privileges for construction under the permit shall terminate, unless such time limit shall have been extended in writing by the director. Permits shall not be transferable or assignable by the permittee.

(d) *Only authorized persons permitted to construct sewers.* To ensure compliance with the foregoing sections of this article and to facilitate the supervision of the construction, operation, and repair of sewers and drains and the keeping of records thereof, no person other than those described in this section, shall construct, repair, alter or remove any sewer, building sewer or drain connected to or with, or discharging

directly or indirectly to or into any public sewer or drain of the city or intended to discharge thus, at some future time, regardless of whether said work is located in a public street or in public or private land.

(e) *Authorized personnel to obtain permit.* No person, other than those working for and under the direction of the director, shall make any excavation for or construct, install, lay, repair, alter or remove any sewer, drain, sewer connection, or appurtenances thereof within the city which is in any way connected to or discharges directly or indirectly to or into any public sewer or drain of the city, or is intended at some future time to be so connected or to so discharge, until said person shall have applied for and secured from the director a permit for doing such work. Such permits may be issued only to those qualified to perform such work as provided in subsection (f) below.

(f) *Authorized personnel enumerated.*

(1) The following may, as indicated, construct, repair, alter or remove public sewers and drains, except building sewers, subject to supervision and approval by the director:

a. Regular forces of a contractor employed by the city operating under orders of the director and in the performance of work for the city.

b. Regular forces of the city or the Rhode Island Department of Health operating under and subject to permit for the particular job to be issued by the director and while engaged in the regular operations of the water supply board or the department of public works.

c. Regular forces of any public utility corporation authorized by state law to construct, maintain and operate pipes or ducts within public highways within the city, while engaged in work incidental to the regular structures of said utility company and operating under and subject to the conditions of the permit for the particular job issued by the director.

d. Any contractor or person who shall have been duly licensed by the director to perform work of the type in question during the period provided in such license and when operating under and subject to the conditions of a permit for the particular job issued therefor, by the director. Such licenses shall be valid for one (1) year and subject to revocation for cause. Fees for such licenses shall be established by the director and approved by the city council.

(2) The connection of all private drains or sewers within the street limits and all connections to any public drain or sewer shall be performed by the director, or his agent, and all material therefor shall be furnished by the city, and the cost thereof and of the labor of laying the same shall be included in the sum paid for the permit.

(3) Building sewers must be constructed by a licensed plumber or licensed drainlayer as outlined in section 25-73(d).

(g) *Duties and responsibility of the contractor.* Each contractor or person shall be responsible for the faithful performance of all work performed under the license or permits issued and for the conduct of all work and all materials furnished on work by his employees or agents. No work shall be sublet by a contractor or person under any permit issued under such license in any manner to divest said contractor or person of full control and responsibility for all parts of said work. Only competent persons shall be employed on work performed under such license and only suitable material conforming to the standards established by the director shall be furnished or used on such work.

(h) *Revocation of contract or license.* Should the director find that any contractor or person has failed to conform to the requirements of this article and to the conditions of any permit issued thereunder, or that such contractor has not been faithful in the performance of work or furnishing of materials under his license, the director may suspend, cancel or revoke such license and/or permit, and may extend the suspension of such license and/or permit for such period, or limit the activities of such contractor or person in such manner as may appear to be in the public interest after a duly conducted hearing before the director and upon their direction. Suspension, cancellation or termination of a permit shall not entitle the permittee to any compensation or reimbursement from the city or its agents for any alleged loss or expense incurred thereby; and licenses and permits shall be issued only on this condition.
(Ord. 1979, ch. 79-37, Art. IX, §§ 1—8, 9-28-79)

Sec. 25-80. Offenses enumerated.

(a) *Violation, notification and time limit.* Any person found to be violating any provision of this article shall be served by the city solicitor or his authorized agent, or by the director, with written notice stating the nature of the satisfactory correction thereof. A reasonable time limit shall be understood to be thirty (30) days from date of notice to correct. The offender shall, within the period of time stated in such notice, permanently cease all violations and take such action as is recommended or necessary to ensure that there will be no recurrence of such violation. All such work in connection therewith shall be performed by said person without delay and without expense to the city, and in accordance with a permit to be applied for and obtained in the usual manner.

(b) *Liabilities.* Any person violating any of the provisions of the article shall become liable to the city for any expense, loss or damage occasioned the city by reason of such violation, so that if the director shall have caused the disconnection of a building sewer or drain from the public sewerage system, the director may collect the cost of making such disconnection from any person responsible for or willfully concerned in or who profited by such violation of the requirements of this article and may thereafter refuse to permit the restoration of the former connection or of any new connection to

the property concerned in the violation of this article until the claim of the city for the cost of making such disconnection shall have been paid in full, plus interest, and the reasonable cost of any legal expenses incurred by the city in connection therewith.

(c) *Penalties.* Any person who shall continue any violation beyond the time limit provided for in subsection (a) above shall be assessed a fine in an amount not exceeding two hundred dollars ($200.00). Each day in which such violation shall continue shall be deemed a separate violation for the purpose of applying the above assessments. In addition, the director may direct the person to disconnect or otherwise act to prevent the building sewer, from the premises in which said violation of the requirements of this article shall have occurred, from discharging to the public sewerage system.

(d) *Inspection of work in violation of article.* If any person shall construct, install, alter or repair any sewer or connection to any interceptor in violation of the requirements of these rules and regulations, the director may, in his discretion, order or direct such person to uncover and fully expose any or all portions of such sewer or connection and afford the director and his representatives adequate opportunity for examination and inspection of the work. If the sewer or connection and appurtenances thereof shall be found not to be in full accord with the requirements of these rules and regulations and the standards established under its provisions, then the director may serve the violator with written notice as provided in subsection (a) above.

(e) *Accidental discharge.* Each industrial user shall provide protection from accidental discharge of prohibited materials or other wastes regulated by this article. Facilities to prevent accidental discharge of prohibited materials shall be provided and maintained at the owner or operator's own cost and expense. Detailed plans showing facilities and operating procedures to provide this protection shall be submitted to the director for review, and shall be approved by him before construction of the facility. Review and approval of such plans and operating procedures shall not relieve the industrial user from the responsibility to modify his facility as necessary to meet the requirements of this article.

(1) If, for any reason, a facility does not comply with or will be unable to comply with any prohibition or limitations in this article, the facility responsible for such discharge shall immediately notify the director so that corrective action may be taken to protect the treatment system. In addition, a written report addressed to the director detailing the date, time and cause of the accidental discharge, the quantity and characteristics of the discharge and corrective action taken to prevent future discharges shall be filed by the responsible industrial facility within five (5) days of the occurrence of the noncomplying discharge.

(2) Such notification will not relieve users of liability for any expense incurred due to loss or damage to the public sewer system, waste water treatment works, or treatment process.

(3) In order that employees of users may be informed of city requirements, users shall make available to their employees copies of this article, together with such other waste water information and notices which may be furnished by the city, from time to time, directed toward more effective water pollution control. A notice shall be furnished and permanently posted on the user's bulletin board advising employees whom to call in case of an accidental discharge in violation of this article.

(4) Any direct or indirect connection or entry point for persistent or deleterious wastes to the user's plumbing or drainage system should be eliminated. Where such action is impractical or unreasonable, the user shall appropriately label such entry points to warn against discharge of such wastes in violation of this article.

When the city finds that a discharge of waste water has taken place, in violation of prohibitions or limitations of this article, or the provisions of a waste water discharge permit, the director may issue an order to cease and desist, and direct that those persons not complying with such prohibitions, limits, requirements or provisions to:

(1) Comply forthwith;

(2) Comply in accordance with a time schedule set forth by the city, or

(3) Take appropriate remedial or preventive action in the event of a threatened violation.

Any user, permit applicant or permit holder affected by any decision, action or determination, including cease-and-desist orders, made by the director, interpreting or implementing the provisions of this article or in any permit issued herein, may file with the director a written request for reconsideration within ten (10) days of such decision, action or determination, setting forth in detail the facts supporting the user's request for reconsideration.

If the ruling made by the director is unsatisfactory to the person requesting reconsideration, he may within ten (10) days after notification of the action, file a written appeal to the city council. The written appeal shall be heard by the city council within thirty (30) days from the date of filing. The city council shall make a final ruling on the appeal within fifteen (15) days of the close of the meeting. The director's decision, action, or determination shall remain in effect during such period of reconsideration.
(Ord. 1979, ch. 79-37, Art. X, §§ 1—5, 9-28-79)

Sec. 25-81. Interpretation of requirements; appeal.

(a) *Interpretation.* The provisions of these rules and regulations with respect to the meaning of technical terms and phrases, the classification of different kinds of types of sewers, the restrictions as to what wastes may be discharged into sewers, the regulations with respect to making connections to sewers and other technical matters

shall be interpreted and administered by the director. Details as to sewer use, sewer connections, etc., not otherwise regulated or described by some provision of these rules and regulations shall continue as heretofore established by local custom and practice, as interpreted by the director.

(b) *Appeals.* Any party aggrieved by any decision, regulation or provision under this sewer use article, as amended from time to time, shall have the right of appeal within twenty (20) days of said decision to the director who shall issue a decision within twenty (20) days. If said appeal is denied by the director, then said aggrieved party shall have the right to appeal to the superior court for equitable relief, provided that said appeal is entered within thirty (30) days from the issuance of the decision of the director.
(Ord. 1979, ch. 79-37, Art. XI, §§ 1, 2, 9-28-79)

Sec. 25-82. Amendment to rules and regulations.

(a) The rules and regulations set down herein may be amended by the city council of the City of Providence, in accordance with the City Charter.

(b) Prior to any change in this article, the city clerk shall give notice of such public hearing by publication of the date, time and place of such hearing in a newspaper of general circulation in the City of Providence. Such notice shall appear at least one (1) day each week for the four (4) weeks preceding such hearing.
(Ord. 1979, ch. 79-37, Art. XII, §§ 1, 2, 9-28-79)

Sec. 25-83. Illicit discharge detection and elimination.

(a) *Illicit discharges.* Illicit discharges to the municipal storm sewer system are comprised of non-stormwater discharges that are expressly prohibited from the municipal storm sewer system unless the discharges have received all required federal, state and local permits including the Rhode Island Pollutant Discharge Elimination System (RIPDES) or is included in one (1) of the following categories of discharges: discharges which result from the washdown of vehicles at retail dealers selling new and used automobiles where no detergents are used and individual residential car washing; external building washdown where no detergents are used; the use of water to control dust; fire fighting activities; fire hydrant flushing; natural springs; uncontaminated groundwater; dechlorinated pool discharges; air conditioning condensate; lawn watering; potable water sources including waterline flushing; irrigation drainage; pavement washwaters where spills or leaks of toxic or hazardous materials have not occurred (unless all spilled materials have been removed) and where detergents are not used; discharges from foundation or footing drains where flows are not contaminated with process materials such as solvents, or contaminated by contact with soils where spills or leaks of toxic or hazardous materials have

occurred; uncontaminated utility vault dewatering; dechlorinated water line testing water; hydrostatic test water that does not contain any treatment chemicals and is not contaminated with process chemicals.

(b) *Right of entry.* To the extent permitted by state law, or if authorized by the owner or other party in control of the property, the director of public works and/or his/her designated representative may enter upon privately owned property for the purpose of performing their duties under this section. He/she may make or make cause for such examinations, surveys or sampling as the city deems reasonably necessary.

(c) *Notification of spills.* Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any known or suspected release of materials, which are resulting or may result in unauthorized discharges or pollutants discharging into stormwater, the storm drain system, or waters of the state from said facility, said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of a hazardous material said person shall immediately notify emergency response officials of the occurrence via emergency dispatch services (911). In the event of a release of non-hazardous materials, said person shall notify the authorized enforcement agency no later than the next business day. Notifications in person or by phone shall be confirmed by written notice addressed and mailed to the authorized enforcement agency within five (5) business days of the phone notice. If the discharge of prohibited materials emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three (3) years. Nothing in this section shall preclude any owner/lessee from compliance with relevant provisions of the Rhode Island Clean Water Act, R.I.G.L. § 46-12-1 et seq. or other applicable laws or regulations.

(d) *Enforcement.* If an illicit discharge to the municipal storm system is detected, the owner shall cease the discharge within seven (7) calendar days from notice. Any owner who fails and/or refuses to cease a discharge within seven (7) calendar days from notice shall be fined up to seventy five dollars ($75.00), and each day following notice during which said discharge continues shall constitute a separate offense. The city also may charge the owner any costs associated with the removal or repair of damage resulting from the discharge. In addition, any continuing discharge after notice shall be deemed, and is hereby declared to be, a public nuisance and the city solicitor is hereby empowered to institute an action for an injunction, abatement or any other appropriate action to prevent, enjoin or abate such nuisance. The remedies provided for herein shall be cumulative and not exclusive and shall be in addition to any other remedies provided by law.

(e) *Discharge of waste.* Any individual or other party is prohibited from discharging waste, including construction waste, building material, truck washout, chemicals, litter, sanitary wastes or other waste into the city right-of-way, storm drain or other city property. If such discharge is detected, the owner shall cease the discharge within ten (10) calendar days from notice. Any owner who fails and/or refuses to cease such a discharge within ten (10) calendar days from notice shall be fined up to two hundred dollars ($200.00), and each day following notice during which said discharge continues shall constitute a separate offense. The city also may charge the owner any costs associated with the removal or repair of damage resulting from the discharge. In addition, any continuing discharge after notice shall be deemed, and is hereby declared to be, a public nuisance and the city solicitor is hereby empowered to institute an action for an injunction, abatement or any other appropriate action to prevent, enjoin or abate such nuisance. The remedies provided for herein shall be cumulative and not exclusive and shall be in addition to any other remedies provided by law.

(Ord. 2005, ch. 05-56, §§ 1—4, 12-1-05)

Chapter 26

WEIGHTS AND MEASURES*

Sec. 26-1. Record book to be kept by director of inspection and standards.
Sec. 26-2. Sealing weights, measures, measuring machines or balances.
Sec. 26-3. Report by director of inspection and standards of fees and expenses.
Sec. 26-4. Records of director of inspection and standards.
Sec. 26-5. Receipt book of the director of inspection and standards.
Sec. 26-6. Office hours at city platform scale.
Sec. 26-7. Fees for loads, vehicles weighted, certificates.
Sec. 26-8. Record of casks gauged.
Sec. 26-9. Return of casks gauged.
Sec. 26-10. Weighing goods, wares and merchandise.
Sec. 26-11. Weighing coal.
Sec. 26-12. Fees for cartage and travel.
Sec. 26-13. Fees for adjustment.
Sec. 26-14. Weighing hay and straw in bundles.

***Editor's note—**Ch. 83-65, approved Dec. 20, 1983, amended ch. 26 to read as herein set out. Formerly, said chapter consisted of §§ 26-1—26-12, deriving from Ord. 19.4, ch. 38, §§ 20—22, 32—39; Ord. 1927, ch. 595, § 1; Rev. Ords. 1946, ch. 2, §§ 126—131, 133—138; Ord. No. 1952, ch. 584, § 1; Ord. 1953, ch. 714, § 1; Ord. 69-7, § 1; ch. 80-10, § 1.

Cross references—Superintendent of weights and measures, § 2-206 et seq.; seal of department of weights and measures, § 2-348.

State law reference—Treatment of weights and measures under state law, chs. 47-1—47-14, Gen. Laws 1956.

Sec. 26-1. Record book to be kept by director of inspection and standards.

The director of inspection and standards shall make and keep in a book to be provided by him or her for that purpose a true record of the names of every person in the city selling goods, wares, merchandise, liquors or provisions therein, and shall report in writing to the chief of police the name of every person who shall violate the laws as to weights and measures.
(Ord. 1983, ch. 83-65, § 3, 12-20-83)

Sec. 26-2. Sealing weights, measures, measuring machines or balances.

The director of inspection and standards, between the fifteenth day of February and the fifteenth day of December following, shall visit the places of business of all persons having weights, measures, measuring machines, and balances of any description which shall be sealed by him or her, and which have not been sealed since the first day of January next preceding said visit, and seal any weights, measures, measuring machines or balances that may be presented to him or her, or send the same to his or her office to be tried, proved and sealed.
(Ord. 1983, ch. 83-65, § 2, 12-20-83)

Sec. 26-3. Report by director of inspection and standards of fees and expenses.

The director of inspection and standards, or his or her designee, semiannually in the months of June and December of each year, shall report in writing to the city council the amount of the fees received by him or her, and from whom the same were received, and also the expenses incurred by him or her and for what purpose.
(Ord. 1983, ch. 83-65, § 3, 12-20-83)

Sec. 26-4. Records of director of inspection and standards.

The director of inspection and standards or his or her designee shall keep a record of all sealings, repairs, alterations and adjustments made by him or her or his or her assistants, and also of all cartage done, and of the amounts of money received from said sources, together with the names and places of business of all parties for whom sealings, repairs, alterations or adjustments are done.
(Ord. 1983, ch. 83-65, § 4, 12-20-83)

Sec. 26-5. Receipt book of the director of inspection and standards.

The director of inspection and standards or his or her designee shall give receipts from stub receipt books to all parties from whom money is received and shall keep a record upon the stubs of the receipt books of the names and places of business of the

parties for whom said work is done, together with the amounts received therefor. The pages of the receipt book shall be numbered consecutively, each stub with its corresponding receipt having the same number.
(Ord. 1983, ch. 83-65, § 5, 12-20-83)

Sec. 26-6. Office hours at city platform scale.

The city shall provide and keep in good order a suitable platform scale. The office hours of the director of inspection and standards or his or her designee at said platform scale shall be daily, Sundays and legal holidays excepted, between the hours of 7:00 a.m. and 5:00 p.m. with the exception of Saturdays, when the office hours shall be from 7:00 a.m. until 1:00 p.m.
(Ord. 1983, ch. 83-65, § 6, 12-20-83)

Sec. 26-7. Fees for loads, vehicles weighted, certificates.

The director of inspection and standards shall be entitled to demand and receive from the owner or person weighed by him or her and such owner or person shall be entitled to receive such reasonable number of certificates of weight as he or she may require. For loads or vehicles weighing not more than two thousand (2,000) pounds, the fee shall be ten dollars ($10.00); for loads or vehicles weighing in excess of two thousand (2,000) pounds, and less than ten thousand (10,000) pounds, and the fee shall be fifteen dollars ($15.00); for loads or vehicles weighing at least ten thousand (10,000) pounds and less than twenty thousand (20,000) pounds, the fee shall be twenty dollars ($20.00); for loads or vehicles weighing at least twenty thousand (20,000) pounds and less than fifty thousand (50,000) pounds, the fee shall be thirty-five dollars ($35.00); for loads or vehicles weighing fifty thousand (50,000) pounds or more, the fee shall be fifty dollars ($50.00).
(Ord. 1983, ch. 83-65, § 7, 12-20-83; Ord. 1984, ch. 84-15, § 1, 2-21-84)

Sec. 26-8. Record of casks gauged.

The director of inspection and standards or his or her designee shall keep a true and faithful record of the number of casks gauged by him or her with the contents of the same and the amount of fees received by him or her for said services.
(Ord. 1983, ch. 83-65, § 8, 12-20-83)

Sec. 26-9. Return of casks gauged.

The director of inspection and standards or his or her designee shall make return to the city council on the first Monday in January annually, of the number of casks gauged by himself or herself or his or her designees, specifying the contents of said casks, and by whom gauged, and the amount of all fees received by him or her or his or her designees.
(Ord. 1983, ch. 83-65, § 9, 12-20-83)

Sec. 26-10. Weighing goods, wares and merchandise.

No person shall sell or deliver or service any goods, wares or merchandise, the price of which is determined by weight unless the weight thereof is clearly and visibly marked thereon or upon the parcel, package or container or upon a slip accompanying the same except where said goods, wares or merchandise are weighed in the immediate presence of the purchaser upon a scale whose face is clearly visible to the purchaser. Any person violating this provision shall be deemed guilty of an offense.
(Ord. 1983, ch. 83-65, § 10, 12-20-83)

Sec. 26-11. Weighing coal.

(a) All anthracite or other coal sold by weight in any quantity not exceeding fifteen (15) tons, and not less than one-half (½) of a ton, shall, previous to the delivery thereof to the purchaser, be weighed by some public weigher who shall immediately make and deliver to the carrier thereof, or to the driver of the vehicle in which the same shall have been placed for delivery, a certificate of the weight thereof, which certificate shall be by such carrier or driver delivered with such coal to the purchaser thereof. Any person who shall sell and deliver by weight, or permit to be sold and delivered for him by weight, any anthracite or other coal which shall not have been weighed, and the weight thereof certified as required by this section, shall be deemed guilty of an offense.

(b) All anthracite coal sold in less quantity than one-half (½) ton shall be sold by weight. Any person who shall sell and deliver, or permit to be sold and delivered, any anthracite coal in less quantity than a one-half (½) of a ton, otherwise than by weight, shall be deemed guilty of an offense.
(Ord. 1983, ch. 83-65, § 11, 12-20-83)

Sec. 26-12. Fees for cartage and travel.

The director of inspection and standards shall impose fees for cartage and travel upon all persons to businesses having weights, measures, measuring machines and balances of any description and which shall be sealed by him or her under this section in the following manner:

(a) For any person or business having weights, measures, measuring machines and balances of any description and located in the downtown area as defined by the office of the traffic engineer of the City of Providence, the fee shall be two dollars and fifty cents ($2.50).

(b) For any person or business having weights, measures, measuring machines and balance of any description and located without that area, the fee shall be five dollars ($5.00).
(Ord. 1983, ch. 83-65, § 12, 12-20-83)

Sec. 26-13. Fees for adjustment.

The director of inspection and standards shall impose a fee of five dollars ($5.00) whenever any weights, measures, measuring machines and balances shall be adjusted by him or her or his or her designee to insure its accuracy.
(Ord. 1983, ch. 83-65, § 13, 12-20-83)

Sec. 26-14. Weighing hay and straw in bundles.

The director of inspection and standards or his or her designee shall, whenever requested so to do, weigh all hay or straw pressed into bales or bundles which may be sold or offered for sale in the city, and shall deduct from the gross weight the tare of each bundle or bale for wood or other bindings, as nearly as he or she can ascertain the same, and shall mark such tare and the gross weight of such bale or bundle, together with his or her own initials, in a legible and durable manner upon some suitable substance attached to each bale or bundle; and he or she shall be entitled to demand and receive for his or her services hereunder the sum of ten cents ($0.10) for each bale or bundle weighed by him or her to be paid by the person requesting said services.
(Ord. 1983, ch. 83-65, § 14, 12-20-83)

State law reference—Sale of hay and straw, § 47-14-1 et seq., Gen. Laws 1956.

Chapter 27

ZONING

Please click here to view the Providence Zoning Code.

APPENDIX A

WILL OF MARSHALL H. GOULD

Sec. 1. Acceptance of fourth clause of will; Elizabeth Angell Gould Fund.

The city council of the city hereby accepts the bequest to said city under the fourth clause of the will of Marshall H. Gould, late of Boston, deceased, which reads as follows:

> "FOURTH: I give to the CITY OF PROVIDENCE in the State of Rhode Island the sum of One Hundred Thousand Dollars to be known as the 'Elizabeth Angell Gould Fund' in memory of my mother, the income only therefrom to be used especially toward the maintenance and repair of the Esek Hopkins Homestead on Admiral Street in said Providence, so long as it exists, and thereafter toward the maintenance of the land and playgrounds belonging to and adjoining the same, the said Homestead being the same estate conveyed by me to the City of Providence by deed dated December 16, 1908, in order to complete and fully carry out the wishes and intentions of my mother. But I desire the said City of Providence cause to be placed somewhere on or about said Homestead or grounds a bronze tablet reading substantially as follows:
>
> "'In memory of Elizabeth Angell Gould 1833-1907, who gave this Homestead of her ancestor, Commodore Esek Hopkins, to the City of Providence for patriotic and park purposes.'"

The city collector of the city is hereby authorized to collect such fund when payable and deliver the same to the board of commissioners of sinking funds.
(Ord. 1950, ch. 337, § 1)

Sec. 2. Control and management of fund.

The board of commissioners of sinking funds of the city is hereby entrusted with the "Elizabeth Angell Gould Fund", with full power to control and manage such fund and to invest and reinvest the same in the best interests of the city and as may be required to carry out the intention of Marshall H. Gould as expressed in his will. The board of commissioners of sinking funds is directed to pay over to the finance director of the city annually for the use of the board of park commissioners of the city the income only therefrom to be used by the board of park commissioners as directed by such will.
(Ord. 1950, ch. 337, § 2)

Sec. 3. Fifth clause of will; entrustment of articles.

The board of park commissioners of the city is hereby entrusted with the articles referred to in the fifth clause of the will of the late Marshall H. Gould, most of which formerly belonged to Esek Hopkins or his immediate family, and is directed to carry out the provisions of said fifth clause of said will, which reads as follows:

> "FIFTH: I give to the City of Providence to be kept in said Homestead all articles I may have loaned to or placed in said Homestead, most of which formerly belonged to Commodore Esek Hopkins or his immediate family. I suggest that a part of the income from the above trust fund given to the City of Providence be used from time to time to keep the furniture in said Homestead in repair."

(Ord. 1950, ch. 337, § 3)

Sec. 4. Sixth clause of will; Esek Hopkins School trust fund.

The board of commissioners of sinking funds is hereby entrusted with the fund of five thousand dollars given to the city in trust, under the sixth clause of the will of Marshall H. Gould, and accepted by the city council, by Resolution No. 220, approved April 16, 1948, the board of commissioners of sinking funds to have full power to invest and reinvest such fund for the purposes enumerated in said sixth clause of said will, and to pay over to the finance director of the city for the use of the school committee of the city the income only therefrom annually or oftener as may be convenient.

The school committee of the city is hereby requested to use the income only from said trust fund as set forth in the sixth clause of said will, viz.:

> "SIXTH: I give to said City of Providence, IN TRUST, the sum of Five Thousand Dollars, the income only therefrom to be used to give one or more annual prizes for the best essay or composition by one or more of the pupils of the Esek Hopkins School on Charles Street in said City of Providence on the subject of the founding of our American Republic and the history of the Colonies from the earliest time down and through the American Revolution to the year 1800 and also on broader general subjects relating to American history and government, if it seems desirable."

(Ord. 1948, ch. 127, §§ 1, 2)

APPENDIX B

ORDINANCES APPROVING AND ADOPTING REDEVELOPMENT PLANS*

The following tabulation gives the ordinances, approving and adopting official redevelopment plans, listed in chronological sequence, as amended (the complete text thereof are in the files of the city council):

Year	Project Name	Ordinance No. and Year	
1951	"Point Street D2-R"	Ch. 474	Ords. of 1951
	Amended by	Ch. 1230	Ords. of 1958
	Amended by	Ch. 87-27	Ords. of 1987
1953	"Willard Center D2-A1"	Ch. 749	Ords. of 1953
1954	"Willard Center D2-A2"	Ch. 854	Ords. of 1954
	Amended by	Ch. 73-24	Ords. of 1973
	Amended by	Ch. 76-34	Ords. of 1976
1956	"West River UR R.I. 1-6"	Ch. 1044	Ords. of 1956
	Amended by	Ch. 1142	Ords. of 1957
	Amended by	Ch. 1191	Ords. of 1958
	Amended by	Ch. 1249	Ords. of 1959
	Amended by	Ch. 1250	Ords. of 1959
	Amended by	Ch. 1366	Ords. of 1960
	Amended by	Ch. 1666	Ords. of 1964
	Amended by	Ch. 72-45	Ords. of 1972
	Amended by	Ch. 84-11	Ords. of 1984
	Amended by	Ch. 86-6	Ords. of 1986
	Amended by	Ch. 87-7	Ords. of 1987
	Amended by	Ch. 88-41	Ords. of 1988
	Amended by	Ch. 91-9	Ords. of 1991
	Amended by	Ch. 93-45	Ords. of 1993
	Amended by	Ch. 94-18	Ords. of 1994
	Amended by	Ch. 97-48	Ords. of 1997
	Amended by	Ch. 98-20	Ords. of 1998
1959	"Lippit Hill R.I. R-3"	Ch. 1272	Ords. of 1959
	Amended by	Ch. 1512	Ords. of 1962
	Amended by	Ch. 76-1	Ords. of 1976
	Amended by	Ch. 83-9	Ords. of 1983
1960	"Mashapaug Pond"	Ch. 1375	Ords. of 1960
	Amended by	Ch. 1434	Ords. of 1961
	Amended by	Ch. 1728	Ords. of 1965
	Amended by	Ch. 87-12	Ords. of 1987
	Amended by	Ch. 88-11	Ords. of 1988
	Amended by	Ch. 92-22	Ords. of 1992
	Amended by	Ch. 93-46	Ords. of 1993

*__Cross reference—__Boundaries of redevelopment area, § 20-1 et seq.

Year	Project Name	Ordinance No. and Year	
1961	"Central-Classical R.I. R-2"	Ch. 1419	Ords. of 1961
	Amended by	Ch. 1433	Ords. of 1961
	Amended by	Ch. 1511	Ords. of 1962
	Amended by	Ch. 1554	Ords. of 1963
	Amended by	Ch. 1670	Ords. of 1964
	Amended by	Ch. 73-25	Ords. of 1973
	Amended by	Ch. 79-33	Ords. of 1979
	Amended by	Ch. 82-8	Ords. of 1982
1961	"Weybosset Hill Annex"	Ch. 14-98	Ords. of 1962
1963	"Weybosset Hill R.I. R-7"	Ch. 1575	Ords. of 1963
	Amended by	Ch. 1589	Ords. of 1964
	Amended by	Ch. 1642	Ords. of 1964
	Amended by	Ch. 1655	Ords. of 1964
	Amended by	Ch. 1734	Ords. of 1965
	Amended by	Ch. 1773	Ords. of 1966
	Amended by	Ch. 1794	Ords. of 1966
	Amended by	Ch. 68-1	Ords. of 1968
	Amended by	Ch. 69-30	Ords. of 1969
	Amended by	Ch. 70-8	Ords. of 1970
	Amended by	Ch. 70-25	Ords. of 1970
	Amended by	Ch. 70-49	Ords. of 1970
	Amended by	Ch. 71-61	Ords. of 1971
	Amended by	Ch. 71-46	Ords. of 1971
	Amended by	Ch. 72-28	Ords. of 1972
	Amended by	Ch. 72-72	Ords. of 1972
	Amended by	Ch. 73-1	Ords. of 1973
	Amended by	Ch. 73-26	Ords. of 1973
	Amended by	Ch. 74-7	Ords. of 1974
	Amended by	Ch. 75-18	Ords. of 1975
	Amended by	Ch. 76-33	Ords. of 1976
	Amended by	Ch. 77-6	Ords. of 1977
	Amended by	Ch. 78-26	Ords. of 1978
	Amended by	Ch. 78-27	Ords. of 1978
	Amended by	Ch. 80-46	Ords. of 1980
	Amended by	Ch. 83-8	Ords. of 1983
	Amended by	Ch. 85-44	Ords. of 1985
	Amended by	Ch. 87-33	Ords. of 1987
	Amended by	Ch. 88-39	Ords. of 1988
	Amended by	Ch. 89-25	Ords. of 1989
	Amended by	Ch. 91-6	Ords. of 1991
	Amended by	Ch. 99-29	Ords. of 1999
1966	"East Side R.I. R-4"	Ch. 1797	Ords. of 1966
	Amended by	Ch. 1841	Ords. of 1967
	Amended by	Ch. 1855	Ords. of 1967
	Amended by	Ch. 71-29	Ords. of 1971
	Amended by	Ch. 71-46	Ords. of 1971

Year	Project Name		Ordinance No. and Year
	Amended by	Ch. 71-50	Ords. of 1971
	Amended by	Ch. 71-62	Ords. of 1971
	Amended by	Ch. 72-2	Ords. of 1972
	Amended by	Ch. 72-3	Ords. of 1972
	Amended by	Ch. 72-73	Ords. of 1972
	Amended by	Ch. 74-18	Ords. of 1974
	Amended by	Ch. 76-4	Ords. of 1976
	Amended by	Ch. 76-32	Ords. of 1976
	Amended by	Ch. 77-19	Ords. of 1977
	Amended by	Ch. 77-49	Ords. of 1977
	Amended by	Ch. 82-1	Ords. of 1982
	Amended by	Ch. 83-46	Ords. of 1983
	Amended by	Ch. 85-76	Ords. of 1985
	Amended by	Ch. 98-26	Ords. of 1998
1968	"Mount Hope R.I. R-18"	Ch. 68-11	Ords. of 1968
	Amended by	Ch. 68-13	Ords. of 1968
	Amended by	Ch. 72-30	Ords. of 1972
	Amended by	Ch. 72-46	Ords. of 1972
	Amended by	Ch. 73-24.1	Ords. of 1973
	Amended by	Ch. 75-6	Ords. of 1975
	Amended by	Ch. 80-38	Ords. of 1980
	Amended by	Ch. 87-32	Ords. of 1987
	Amended by	Ch. 92-43	Ords. of 1992
1971	"West Broadway NDP		
	Urban Renewal Area (1)"	Ch. 71-24	Ords. of 1971
	Amended by	Ch. 72-29	Ords. of 1972
	Amended by	Ch. 72-47	Ords. of 1972
	Amended by	Ch. 72-71	Ords. of 1972
	Amended by	Ch. 73-52	Ords. of 1973
	Amended by	Ch. 74-6	Ords. of 1974
	Amended by	Ch. 74-38	Ords. of 1974
	Amended by	Ch. 74-39	Ords. of 1974
	Amended by	Ch. 74-40	Ords. of 1974
	Amended by	Ch. 75-13	Ords. of 1975
	Amended by	Ch. 75-31	Ords. of 1975
	Amended by	Ch. 76-6	Ords. of 1976
	Amended by	Ch. 76-16	Ords. of 1976
	Amended by	Ch. 77-4	Ords. of 1977
	Amended by	Ch. 78-16	Ords. of 1978
	Amended by	Ch. 78-28	Ords. of 1978
	Amended by	Ch. 80-44	Ords. of 1980
	Amended by	Ch. 80-45	Ords. of 1980
	Amended by	Ch. 84-19	Ords. of 1984
	Amended by	Ch. 92-46	Ords. of 1992
	Amended by	Ch. 97-13	Ords. of 1997
	Amended by	Ch. 98-7	Ords. of 1998

Year	Project Name		Ordinance No. and Year
	Amended by	Ch. 01-56	Ords. of 2001
1971	"Model Cities NDP		
	Urban Renewal Area (2)"	Ch. 71-25	Ords. of 1971
1972	Comstock Redevelopment Plan		
	Amended by	Ch. 72-42	Ords. of 1972
	Amended by	Ch. 79-34	Ords. of 1979
1972	"Lockwood Street Renewal	Ch. 74-29	Ords. of 1974
	Area R.I. R-27"	Ch. 72-55	Ords. of 1972
	Amended by	Ch. 77-47	Ords. of 1977
1972	"Upper South Providence		
	Urban Renewal Area"	Ch. 72-58	Ords. of 1972
1972	"Lower South Providence		
	NDP Urban Renewal		
	Area (2)"	Ch. 72-60	Ords. of 1972
1972	"Federal Hill East		
	NPD Urban		
	Renewal Area"	Ch. 72-68	Ords. of 1972
	Approved by	Ch. 77-15	Ords. of 1977
	Amended by	Ch. 77-48	Ords. of 1977
	Amended by	Ch. 79-2	Ords. of 1979
	Amended by	Ch. 80-26	Ords. of 1980
	Amended by	Ch. 81-6	Ords. of 1981
	Amended by	Ch. 92-45	Ords. of 1992
	Amended by	Ch. 90-4	Ords. of 1990
	Amended by	Ch. 92-45	Ords. of 1992
	Amended by	Ch. 95-25	Ords. of 1995
	Amended by	Ch. 96-5	Ords. of 1996
	Amended by	Ch. 97-15	Ords. of 1997
	Amended by	Ch. 97-46	Ords. of 1997
	Amended by	Ch. 98-5	Ords. of 1998
	Amended by	Ch. 99-28	Ords. of 1999
	Amended by	Ch. 01-4	Ords. of 2001
	Amended by	Ch. 02-20	Ords. of 2002
1977	"Downtown Providence		
	Renewal"	Ch. 77-5	Ords. of 1977
	Amended by	Ch. 78-24	Ords. of 1978
	Amended by	Ch. 81-26	Ords. of 1981
	Amended by	Ch. 81-50	Ords. of 1981
	Amended by	Ch. 83-7	Ords. of 1983
	Amended by	Ch. 83-14	Ords. of 1983
	Amended by	Ch. 93-26	Ords. of 1993
	Amended by	Ch. 94-33	Ords. of 1994
	Amended by	Ch. 97-14	Ords. of 1997
	Amended by	Ch. 98-6	Ords. of 1998
	Amended by	Ch. 98-57	Ords. of 1998
1979	"West End Project"	Ch. 79-26	Ords. of 1979

APPENDIX B—REDEVELOPMENT PLANS

Year	Project Name		Ordinance No. and Year
	Amended by	Ch. 80-2	Ords. of 1980
	Amended by	Ch. 86-39	Ords. of 1986
	Amended by	Ch. 88-32	Ords. of 1988
	Amended by	Ch. 90-22	Ords. of 1990
	Amended by	Ch. 94-57	Ords. of 1994
	Amended by	Ch. 96-40	Ords. of 1996
	Amended by	Ch. 98-3	Ords. of 1998
	Amended by	Ch. 01-30	Ords. of 2001
1980	"Charles Street		
	Renewal"	Ch. 80-27	Ords. of 1980
	Amended by	Ch. 83-6	Ords. of 1983
	Amended by	Ch. 95-10	Ords. of 1995
	Amended by	Ch. 97-12	Ords. of 1997
	Amended by	Ch. 97-66	Ords. of 1997
	Amended by	Ch. 98-16	Ords. of 1998
1982	"Hartford Avenue		
	Renewal"	Ch. 82-15	Ords. of 1982
	Amended by	Ch. 91-28	Ords. of 1991
	Amended by	Ch. 95-10	Ords. of 199
	Amended by	Ch. 97-4	Ords. of 1997
	Amended by	Ch. 98-2	Ords. of 1998
	Amended by	Ch. 99-12	Ords. of 1999
1982	"Smith Hill		
	Renewal"	Ch. 82-16	Ords. of 1982
	Amended by	Ch. 82-34	Ords. of 1982
	Amended by	Ch. 83-21	Ords. of 1983
	Amended by	Ch. 83-60	Ords. of 1983
	Amended by	Ch. 84-18	Ords. of 1984
	Amended by	Ch. 87-8	Ords. of 1987
1982	"Eagle Park		
	Renewal	Ch. 82-47	Ords. of 1982
	Amended by	Ch. 87-34	Ords. of 1987
	Amended by	Ch. 91-16	Ords. of 1991
	Amended by	Ch. 92-14	Ords. of 1992
1982	"Washington Park		
	Revitalization	Ch. 82-49	Ords. of 1982
	Amended by	Ch. 83-47	Ords. of 1983
	Amended by	Ch. 97-10	Ords. of 1997
1983	"Silver Lake		
	Revitalization"	Ch. 83-4	Ords. of 1983
	Amended by	Ch. 84-21	Ords. of 1984
	Amended by	Ch. 87-9	Ords. of 1987
	Amended by	Ch. 92-47	Ords. of 1992
	Amended by	Ch. 95-12	Ords. of 1995
	Amended by	Ch. 97-11	Ords. of 1997
	Amended by	Ch. 97-45	Ords. of 1997

Year	Project Name	Ordinance No. and Year	
	Amended by	Ch. 98-8	Ords. of 1998
	Amended by	Ch. 98-27	Ords. of 1998
	Amended by	Ch. 02-19	Ords. of 2002
	Amended by	Ch. 03-2	Ords. of 2003
	Amended by	Ch. 03-77	Ords. of 2003
1983	"Trinity Gateway Revitalization"	Ch. 83-19	Ords. of 1983
	Amended by	Ch. 88-44	Ords. of 1988
	Amended by	Ch. 90-30	Ords. of 1990
	Amended by	Ch. 93-18	Ords. of 1993
1983	"Olineyville Square Revitalization"	Ch. 83-20	Ords. of 1983
	Amended by	Ch. 84-30	Ords. of 1984
	Amended by	Ch. 94-58	Ords. of 1994
1984	"Upper South Providence Redevelopment"	Ch. 84-17	Ords. of 1984
	Amended by	Ch. 90-31	Ords. of 1990
	Amended by	Ch. 91-17	Ords. of 1991
	Amended by	Ch. 92-44	Ords. of 1992
	Amended by	Ch. 95-13	Ords. of 1995
	Amended by	Ch. 97-9	Ords. of 1997
	Amended by	Ch. 98-15	Ords. of 1998
	Amended by	Ch. 98-51	Ords. of 1998
	Amended by	Ch. 00-32	Ords. of 2000
	Amended by	Ch. 01-23	Ords. of 2001
	Amended by	Ch. 01-29	Ords. of 2001
	Amended by	Ch. 02-9	Ords. of 2002
	Amended by	Ch. 02-21	Ords. of 2002
	Amended by	Ch. 02-48	Ords. of 2002
	Amended by	Ch. 03-4	Ords. of 2003
	Amended by	Ch. 04-46	Ords. of 2004
1984	"Promenade Center Renewal Project"	Ch. 84-22	Ords. of 1984
	Amended by	Ch. 89-4	Ords. of 1989
1984	"Port Project"	Ch. 84-23	Ords. of 1984
1984	"Lower South Providence Redevelopment Project"	Ch. 84-36	Ords. of 1984
	Amended by	Ch. 85-26	Ords. of 1985
	Amended by	Ch. 86-5	Ords. of 1986
	Amended by	Ch. 91-3	Ords. of 1991
	Amended by	Ch. 97-8	Ords. of 1997
	Amended by	Ch. 99-11	Ords. of 1999
1986	"Special Vacant		

APPENDIX B—REDEVELOPMENT PLANS

Year	Project Name	Ordinance No. and Year	
	Lot Project"	Ch. 86-28	Ords. of 1986
	Amended by	Ch. 86-53	Ords. of 1986
	Amended by	Ch. 89-26	Ords. of 1989
	Amended by	Ch. 97-3	Ords. of 1997
	Amended by	Ch. 98-1	Ords. of 1998
	Amended by	Ch. 98-29	Ords. of 1998
	Amended by	Ch. 99-9	Ords. of 1999
	Amended by	Ch. 00-15	Ords. of 2000
	Amended by	Ch. 00-16	Ords. of 2000
	Amended by	Ch. 00-17	Ords. of 2000
	Amended by	Ch. 01-5	Ords. of 2001
	Amended by	Ch. 01-6	Ords. of 2001
	Amended by	Ch. 01-31	Ords. of 2001
	Amended by	Ch. 01-32	Ords. of 2001
	Amended by	Ch. 01-52	Ords. of 2001
	Amended by	Ch. 01-53	Ords. of 2001
	Amended by	Ch. 02-34	Ords. of 2002
	Amended by	Ch. 02-35	Ords. of 2002
	Amended by	Ch. 03-3	Ords. of 2003
	Amended by	Ch. 03-23	Ords. of 2003
	Amended by	Ch. 03-24	Ords. of 2003
	Amended by	Ch. 03-25	Ords. of 2003
	Amended by	Ch. 03-76	Ords. of 2003
	Amended by	Ch. 04-14	Ords. of 2004
1996	"Douglas Avenue Revitalization	Ch. 96-23	Ords. of 1996
	Amended by	Ch. 97-7	Ords. of 1997
	Amended by	Ch. 98-17	Ords. of 1998
	Amended by	Ch. 98-28	Ords. of 1998
	Amended by	Ch. 00-18	Ords. of 2000
	Amended by	Ch. 00-31	Ords. of 2000
	Amended by	Ch. 01-7	Ords. of 2001
	Amended by	Ch. 02-47	Ords. of 2002
1997	"Gorham Redevelopment Project"	Ch. 97-47	Ords. of 1997
2000	"Wanskuck Redevelopment Project"	Ch. 00-6	Ords. of 2000
	Amended by	Ch. 03-60	Ords. of 2003
2000	"Ninth Ward Redevelopment Project"	Ch. 00-14	Ords. of 2000
	Amended by	Ch. 01-22	Ords. of 2001
2008	"Promenade Center Redevelopment Project Plan and Tax Increment Financing Plan	Ch. 08-49	Ords. of 2008
2010	"Port Redevelopment Project Plan"	Ch. 2010-33	Ords. of 2010
	Amended by	Ch 2015-11	Ords. of 2015
2014	"Davol Square Redevelopment Plan"	Ch. 2014-5	Ords. of 2014
2015	"Redevelopment Plan for the Charles Street Renewal Plan"	Ch. 2015-10	Ords. of 2015
2016	"Port Redevelopment Plan"	Ch. 2016-4	Ords. of 2016

Year	Project Name	Ordinance No. and Year	
2016	"Redevelopment Plan for the Upper South Providence Redevelopment Project"	Ch. 2016-50	Ords. of 2016
2017	"Special Redevelopment Plan for Vacant House"	Ch. 2017-50	Ords. of 2017
2018	"Redevelopment Plan for the Ninth (9th) Ward Redevelopment Project"	Ch. 2018-78	Ords. of 2018

APPENDIX C

TABLE OF BOND ISSUES OUTSTANDING
BRIDGE BONDS

Year	Ordinance No.	Authority	Date of Approval
1966	Ch. 1756	P. L. 1964, ch. 81	4-25-66
1967	Ch. 1818	P. L. 1964, ch. 81	2-16-67

APPENDIX C

COMMUNITY FACILITIES BOND

Year	Ordinance No.	Authority	Date of Approval
1996	Ch. 96-9		4-10-96

APPENDIX C

EMERGENCY HOUSING BONDS

Year	Ordinance No.	Authority	Date of Approval
1949	Ch. 245	P. L. 1946, ch. 1750 P. L. 1947, ch. 1859 P. L. 1948, ch. 2069	4- 8-49
1950	Ch. 398	P. L. 1947, ch. 1750 P. L. 1948, ch. 1859 P. L. 1950, ch. 2069	6- 5-50

APPENDIX C

FIRE DEPARTMENT—BONDS FOR MODERNIZING

Year	Ordinance No.	Authority	Date of Approval
1949	Ch. 325	P. L. 1945, ch. 1617	
		P. L. 1947, ch. 1858	12-16-49
1950	Ch. 394	P. L. 1945, ch. 1617	
		P. L. 1947, ch. 1858	6- 5-50
	Ch. 395	P. L. 1949, ch. 2188	6- 5-50
1952	Ch. 609	P. L. 1950, ch. 2587	5-19-52
1984	Ch. 84-56		9-20-84

APPENDIX C

FUNDING BONDS

Year	Ordinance No.	Authority	Date of Approval
1940	Ch. 1000	P. L. 1940, ch. H1006	4-15-40
1941	Ch. 1062	P. L. 1941, ch. 1090	5-12-41

APPENDIX C

GENERAL OBLIGATION BONDS

Year	Ordinance No.	Authority	Date of Approval
2000	Ch. 00-19		7- 7-00
2004	Ch. 04-26		5-27-04
	Ch. 04-34		8-12-04
2018	Ch. 2018-45		8- 2-18
2021	Ch. 2021-12		4-19-21
2022	Ch. 2022-34		8-10-22

APPENDIX C

HIGHWAY BONDS—CONSTRUCTION AND RECONSTRUCTION

Year	Ordinance No.	Authority	Date of Approval
1948	Ch. 196	P. L. 1946, ch. 1738	12-17-48
1949	Ch. 327	P. L. 1946, ch. 1738	12-16-49
	Ch. 328	P. L. 1949, ch. 2189	12-16-49
1950	Ch. 399	P. L. 1946, ch. 1738	6- 5-50
	Ch. 400	P. L. 1948, ch. 2071	6- 5-50
	Ch. 401	P. L. 1949, ch. 2243	6- 5-50
	Ch. 402	P. L. 1950, ch. 2589	6- 5-50
1952	Ch. 605	P. L. 1950, ch. 2589	5-19-52
	Ch. 606	P. L. 1951, ch. 2685	5-19-52
1953	Ch. 811	P. L. 1952, ch. 2969	12-18-53
1957	Ch. 1100	P. L. 1951, ch. 2688	3-11-57
1959	Ch. 1279	P. L. 1956, ch. 3679	8- 7-59
	Ch. 1280	P. L. 1954, ch. 3360	8- 7-59
1963	Ch. 1545	P. L. 1958, ch. 21	5-17-63
1964	Ch. 1628	P. L. 1960, ch. 104	7- 3-64
1966	Ch. 1763	P. L. 1964, ch. 83	4-25-66
1967	Ch. 1821	P. L. 1964, ch. 83	2-16-67
1970	Ch. 70-15	P. L. 1964, ch. 83	4-16-67

APPENDIX C

HURRICANE BONDS

Year	Ordinance No.	Authority	Date of Approval
1939	Ch. 982	P. L. 1939, ch. 774	6-16-39
1954	Chs. 875, 876	P. L. 1902, ch. 1017 P. L. 1943, ch. 1266 P. L. 1955, ch. 3545	9- 3-54
1964	Ch. 1625	P. L. 1959, ch. 109	7- 3-64
1966	Ch. 1766	P. L. 1959, ch. 109	4-25-66
1967	Ch. 1817	P. L. 1959, ch. 109	2-16-67

APPENDIX C

INCINERATOR AND SLUDGE DISPOSAL BONDS

Year	Ordinance No.	Authority	Date of Approval
1948	Ch. 195	P. L. 1946, ch. 1737	12-17-48
1950	Ch. 396	P. L. 1946, ch. 1737	
		P. L. 1948, ch. 2072	
		P. L. 1949, ch. 2185	6- 5-50
	Ch. 397	P. L. 1946, ch. 1737	
		P. L. 1948, ch. 2072	
		P. L. 1949, ch. 2244	6- 5-50
1966	Ch. 1764	P. L. 1963, ch. 32	4-25-66
1967	Ch. 1822	P. L. 1963, ch. 32	2-16-67
1980	Ch. 80-18	P. L. 1977, ch. 160	5- 3-80
1982	Ch. 82-33	P. L. 1980, ch. 4	6-11-82

APPENDIX C

MUNICIPAL DOCK IMPROVEMENT AND EXTENSION BONDS

Year	Ordinance No.	Authority	Date of Approval
1963	Ch. 1544	P. L. 1954, ch. 3359	5-17-63
1979	Ch. 79-16	P. L. 1975, ch. 92	3-26-79

APPENDIX C

MUNICIPAL WHARF SHED BONDS

Year	Ordinance No.	Authority	Date of Approval
1952	Ch. 607	P. L. 1948, ch. 2073	5-19-52

APPENDIX C

OFF-STREET PARKING BONDS

Year	Ordinance No.	Authority	Date of Approval
1961	1439	P. L. 1960, ch. 121	11-17-61
1979	Ch. 79-14	P. L. 1950, ch. 2514 P. L. 1960, ch. 121	3-26-79

APPENDIX C

PUBLIC IMPROVEMENT BONDS

Year	Ordinance No.	Authority	Date of Approval
1944	Ch. 1301	P. L. 1941, ch. 1091	11-17-44
1980	Ch. 80-16	P. L. 1971, ch. 79	5- 3-80
	Ch. 80-20	P. L. 1972, ch. 51	5- 3-80
1982	Ch. 82-29	P. L. 1968, ch. 220	6-11-82
	Ch. 82-30	P. L. 1979, ch. 306*	6-11-82
	Ch. 83-32	P. L. 1980, ch. 3	6-11-82
	Ch. 82-67	P. L. 1972, ch. 51	12-17-82
1983	Ch. 83-64	P. L. 1967, ch. 8; P. L. 1971, ch. 181; P. L. 1972, ch. 51; P. L. 1974, ch. 90	12- 2-83
2016	Ch. 2016-34	G.L. § 45-12-2	8- 5-16

Editor's note—The time limit for issuance of bonds and notes under Ch. 306 of P.L. 1979 was extended to June 26, 1984, by Ch. 82-59, Ords. of 1982, approved Oct. 29, 1982. The time limit for issuance of bonds and notes under Ch. 3 of P.L. 1980 was extended to March 28, 1985, by Ch. 83-13, Ords. of 1983, approved March 31, 1983.

APPENDIX C

PUBLIC LIBRARY BONDS

Year	Ordinance No.	Authority	Date of Approval
1953	Ch. 810	P. L. 1947, ch. 1899 P. L. 1949, ch. 2226 P. L. 1951, ch. 2689	12-18-53
1979	Ch. 79-17	P. L. 1967, ch. 8 P. L. 1971, ch. 181	3-23-79
1982	Ch. 82-65	P. L. 1967, ch. 8 P. L. 1981, ch. 1981	12-10-82
1984	Ch. 84-58		9-20-84

APPENDIX C

PUBLIC WORKS AND/OR MUNICIPAL GARAGE AND WAREHOUSE BONDS

Year	Ordinance No.	Authority	Date of Approval
1957	Ch. 1097	P. L. 1952, ch. 2970	3-11-57
1960	Ch. 1364	P. L. 1959, ch. 17	10- 7-60
1968	Ch. 68-26	P. L. 1965, ch. 160	4- 4-68

APPENDIX C

P.W.A. DOCKETS

Year	Ordinance No.	Authority	Date of Approval
1934	Ch. 892	P. L. 1933, ch. 2136	
		P. L. 1934, ch. 2078	12- 7-34

APPENDIX C

RECREATIONAL FACILITIES BONDS

Year	Ordinance No.	Authority	Date of Approval
1949	Ch. 246	P.L. 1946, ch. 1739	4- 8-49
1958	Ch. 1182	P.L. 1950, ch. 2591	2-24-58
1961	Ch. 1440	P.L. 1958, ch. 20	11-17-61
1964	Ch. 1627	P.L. 1960, ch. 106	7- 3-64
1971	Ch. 71-2	P.L. 1965, ch. 118	1-21-71
1988	Ch. 88-12*		10-23-90

Editor's note—The time limit for issuance of bonds under Ord. 1990, ch. 88-12, was extended by Ord. 1990, ch. 90-21, approved Oct. 23, 1990, to the date which is five (5) years following the certification of the approval of the voters of the City of Providence at the election held Nov. 3, 1987.

APPENDIX C

REDEVELOPMENT BONDS

Year	Ordinance No.	Authority	Date of Approval
1957	Ch. 1102	P. L. 1956, ch. 3654	3-11-57
1960	Ch. 1361	P. L. 1956, ch. 3654	10- 7-60
	Ch. 1362	P. L. 1956, ch. 3654	10- 7-60
1961	Ch. 1441	P. L. 1956, ch. 3654	11-17-61
1963	Ch. 1543	P. L. 1956, ch. 3654	5-17-63
1964	Ch. 1623	P. L. 1956, ch. 3654	7- 3-64
1966	Ch. 1757	P. L. 1956, ch. 3654	4-25-66
	Ch. 1760	P. L. 1956, ch. 3654	4-25-66
1967	Ch. 1819	P. L. 1956, ch. 3654	2-16-67
	Ch. 1820	P. L. 1956, ch. 3654	2-16-67
1970	Ch. 70-14	Sec. 45-33-1, Gen. Laws	4-16-70
1978	Ch. 78-141	Sec. 45-33-1, Gen. Laws	5- 9-78
1979	Ch. 79-18	P. L. 1969, ch. 220	3-23-79
1984	Ch. 84-27	P. L. 1979, ch. 306	5- 9-84
1986	Ch. 86-36	Sec. 45-33-2, Gen. Laws	6-26-86

APPENDIX C

REFUNDING BONDS

Year	Ordinance No.	Authority	Date of Approval
1941	Ch. 1061	P.L. 1941, ch. 1089	5-12-41
1942	Ch. 1147	P.L. 1941, ch. 1089	7-11-42
1943	Ch. 1203	P.L. 1941, ch. 1089	9-17-43
1944	Ch. 1260	P.L. 1941, ch. 1089	6- 2-44
1945	Ch. 1352	P.L. 1941, ch. 1089	6-11-45
1946	Ch. 1486	P.L. 1945, ch. 1664	6- 7-46
1947	Chs. 1638, 1653	P.L. 1945, ch. 1664	7-11-47
1948	Ch. 85	P.L. 1945, ch. 1664	5-21-48
1949	Ch. 247	P.L. 1945, ch. 1664	4- 8-49
1984	Ch. 84-31	P.L. 1967, ch. 8; P.L. 1974, ch. 181, Ord. ch. 82-65; P.L. 1972, ch. 51, Ord. ch. 82-67; P.L. 1974, ch. 90, Ord. ch. 82-66	5-24-84
1985	Ch. 85-60	P.L. 1979, ch. 306, Ord. ch. 84-27	5-21-85
	Ch. 85-61	P.L. 1979, ch. 306, Ord. ch. 84-27; P.L. 1967, ch. 8; P.L. 1971, ch. 181, Ord. ch. 84-31; P.L. 1972, ch. 51, Ord. ch. 84-31; P.L. 1974, ch. 90, Ord. ch. 84-31	5-21-85
	Ch. 85-75	G.L. 45-12-5.2 Ord. ch. 86-48	8- 9-85
1986	Ch. 86-27	P.L. 1979, ch. 306, Ord. ch. 84-27; Ord. ch. 85-60	5-19-86
	Ch. 86-37	P.L. 1979, ch. 306, Ord. ch. 84-27; Ord. ch. 85-60; Ord. ch. 86-27	6-26-86
	Ch. 86-49	G.L. 45-12-5.2	9-25-86
	Ch. 86-50	G.L. 45-12-5.2	9-25-86
1991	Ch. 91-26	G.L. 45-12-5.2	8- 6-91
1992	Ch. 92-27	G.L. 45-12-5.2	7-19-92

Year	Ordinance No.	Authority	Date of Approval
2002	Ch. 02-17	G.L. Tit. 45, Ch. 12	6-24-02

APPENDIX C

SANITATION BONDS

Year	Ordinance No.	Authority	Date of Approval
1966	Ch. 1764	P. L. 1964, ch. 84	4-25-66
1967	Ch. 1815	P. L. 1964, ch. 84	2-16-67

APPENDIX C

SCHOOL BONDS

Year	Ordinance No.	Authority	Date of Approval
1931	Ch. 819	P. L. 1897, ch. 510 P. L. 1929, ch. 1442 P. L. 1930, ch. 1630	
1932	Ch. 832	P. L. 1897, ch. 510 P. L. 1929, ch. 1442 P. L. 1930, ch. 1630 P. L. 1931, ch. 1808	3-23-32
	Ch. 839	P. L. 1897, ch. 510 P. L. 1925, ch. 690 P. L. 1926, ch. 871 P. L. 1927, ch. 1080	6- 8-32
1933	Ch. 853	P. L. 1897, ch. 510 P. L. 1929, ch. 1442 P. L. 1930, ch. 1630 P. L. 1931, ch. 1808	2-17-33
1934	Ch. 865	P. L. 1897, ch. 510 P. L. 1927, ch. 1080 P. L. 1929, ch. 1442 P. L. 1930, ch. 1630 P. L. 1931, ch. 1808	2- 7-34
1948	Ch. 194	P. L. 1947, ch. 1898	12-17-48
1949	Ch. 326	P. L. 1947, ch. 1898	12-16-49
1953	Ch. 812	P. L. 1950, ch. 2559	12-18-53

Year	Ordinance No.	Authority	Date of Approval
1957	Ch. 1098	P. L. 1954, ch. 3250	3-11-57
1958	Ch. 1179	P. L. 1951, ch. 2683	2-24-58
1959	Ch. 1277	P. L. 1956, ch. 3638	8- 7-59
	Ch. 1278	P. L. 1956, ch. 3639	8- 7-59
1960	Ch. 1363	P. L. 1958, ch. 22	10- 7-60
1961	Ch. 1438	P. L. 1959, ch. 141	11-17-61
	Ch. 1442	P. L. 1958, ch. 23	11-17-61
1962	Ch. 1451	P. L. 1958, ch. 23	2- 2-62
1966	Ch. 1758	P. L. 1962, ch. 177	4-25-66
	Ch. 1759	P. L. 1964, ch. 155	4-25-66
	Ch. 1761	P. L. 1947, ch. 1898	4-25-66
	Ch. 1762	P. L. 1947, ch. 1898	4-25-66
1967	Ch. 1813 Ch. 1814	P. L. 1964, ch. 155	2-16-67
	Ch. 1823	P. L. 1962, ch. 177	2-16-67
1968	Ch. 68-27	P. L. 1962, ch. 185	4- 4-68
	Ch. 68-28	P. L. 1947, ch. 1898	3- 4-68
1970	Ch. 70-16	P. L. 1958, ch. 24	4-16-67
1971	Ch. 71-1	P. L. 1967, ch. 7	1-21-71
	Ch. 71-3	P. L. 1962, ch. 185	1-21-71
1979	Ch. 79-15	P. L. 1971, ch. 142	3-26-79
1980	Ch. 80-17	P. L. 1974, ch. 90	5- 3-80
	Ch. 80-19	P. L. 1971, ch. 142	5- 3-80
1982	Ch. 82-31	P. L. 1974, ch. 90	6-11-82
	Ch. 82-66	P. L. 1974, ch. 90	12-10-82
1984	Ch. 84-57		9-20-84
1986	Ch. 86-47		9-19-86
1989	Ch. 89-20		8-18-89

APPENDIX C

SEWER BONDS

Year	Ordinance No.	Authority	Date of Approval
1949	Ch. 329	P.L. 1949, ch. 2190	12-16-49
1952	Ch. 608	P.L. 1951, ch. 2684	5-19-52
1953	Ch. 813	P.L. 1952, ch. 2968	12-18-53
1957	Ch. 1101	P.L. 1951, ch. 3251	3-11-57
1958	Ch. 1180	P.L. 1953, ch. 3049	2-24-58
	Ch. 1181	P.L. 1953, ch. 3049	2-24-58
1959	Ch. 1281	P.L. 1956, ch. 3657	8- 7-59
1963	Ch. 1546	P.L. 1956, ch. 3680	5-17-63
1964	Ch. 1629	P.L. 1960, ch. 103	7- 3-64
1966	Ch. 1765	P.L. 1964, ch. 82	4-25-66
1967	Ch. 1816	P.L. 1964, ch. 82	2-16-67
1977	Ch. 77-160	—	5-13-77

APPENDIX C

SPECIAL OBLIGATION TAX INCREMENT REVENUE BONDS

Year	Ordinance No.	Authority	Date of Approval
1994	Ch. 94-30	Title 45, Ch. 33.2, § 10	9-23-94
2005	Ch. 05-3	Title 45, Ch. 33.2, § 10	2-17-05
	Ch. 05-33	Title 45, Ch. 33.2, § 10	7-25-05
2006	Ch. 06-4	Title 45, Ch. 33.2, § 10	2-2-06

APPENDIX C

TRAFFIC SIGNAL AND TRAFFIC CONTROL BONDS

Year	Ordinance No.	Authority	Date of Approval
1957	Ch. 1099	P. L. 1950, ch. 2594	3-11-57

APPENDIX C

UNEMPLOYMENT RELIEF BONDS

Year	Ordinance No.	Authority	Date of Approval
1940	Ch. 1027	P. L. 1940, ch. 835	9-24-40
1941	Ch. 1052	P. L. 1940, ch. 835	2-24-41
1943	Ch. 1173	P. L. 1940, ch. 835	3- 6-43

APPENDIX C

WAR MEMORIAL BONDS

Year	Ordinance No.	Authority	Date of Approval
1932	Ch. 841	P. L. 1923, ch. 2376	6- 8-32

APPENDIX C

WATER REVENUE BONDS

Year	Ordinance No.	Authority	Date of Approval
2018	Ch. 2018-5	G.L. Ch. 46-12.8	2-21-18
2018	Ch. 2018-77	G.L. Ch. 46-12.8	11-20-18
2023	Ch. 2023-2		4-10-23

APPENDIX C

WATER SUPPLY BONDS

Year	Ordinance No.	Authority	Date of Approval
1921	Ch. 310	P.L. 1915, ch. 1278	12- 9-21
1922	Ch. 322	P.L. 1915, ch. 1278	3- 9-22
	Ch. 334	P.L. 1915, ch. 1278	9-23-22
1923	Ch. 387	P.L. 1915, ch. 1278	12-10-23
1924	Ch. 420	P.L. 1915, ch. 1278	9-13-24
1925	Ch. 470	P.L. 1915, ch. 1278	6- 2-25
1927	Ch. 592	P.L. 1915, ch. 1278	11-18-27
1932	Ch. 840	P.L. 1915, ch. 1278	6- 8-32
1962	Ch. 1487	P.L. 1960, ch. 92	9- 7-62
	Ch. 1486	P.L. 1960, ch. 102	9- 7-62
1969	Ch. 69-31	P.L. 1965, ch. 46	9- 4-69
1971	Ch. 71-23	P.L. 1965, ch. 46	5- 6-71
1994	Ch. 94-40	§ 46-12.8-9	11-23-94
2002	Ch. 02-38	G.L. Ch. 46-12.8	11- 8-02
2005	Ch. 05-02	G.L. §§ 46-12.8-8, 46-12.8-9	2-17-05
2008	Ch. 08-17	G.L. Ch. 42-12.8	3-20-08
2009	Ch. 09-54	G.L. Ch. 46-12.8	10- 6-09
2011	Ch. 2011-74	G.L. Ch. 46-12.8	11-22-11
2015	Ch. 2015-31	G.L. Ch. 46-12.8	7-24-15
2016	Ch. 2016-32	G.L. Ch. 46-12.8	8- 3-16
2020	Ch. 2020-11	G.L. Ch. 46-12.8	3-20-20
2021	Ch. 2021-11	G.L. Ch. 46-12.8	4-19-21
2022	Ch. 2022-43		11-10-22
2022	Ch. 2022-65		12- 8-22

APPENDIX D

PUBLIC LAWS RELATING TO THE CITY*

A

Acquisition of Building and Land

Authority to acquire property for use by state agencies.....P. L. 1955, c. 3413

Ambulances

Right-of-way for ambulances.....P. L. 1899, c. 607, Feb. 21

Animals and Fowl

Animals at large.....P. L. 1845, Jan. 16; P. L. 1863, c. 458, March 14; P. L. 1872, c. 988, April 26

City council to fix fees of dog officers.....P. L. 1897, c. 453, May 18

Homeless stray cats.....P. L. 1915, c. 1277, April 8

Annexation

Land devised by Betsey Williams.....P. L. 1873, c. 315, March 28

North Providence.....P. L. 1873, c. 316, March 28; P. L. 1874, c. 365, March 27; P. L. 1874, c. 420, June 25; P. L. 1875, c. 425, Jan. 28; P. L. 1876, c. 523, March 31; P. L. 1879, c. 738, March 4; P. L. 1880, c. 818, April 16

Park Avenue to Cranston.....P. L. 1907, c. 1481, April 11

Portion of Cranston.....P. L. 1868, c. 770; June 10; P. L. 1869, c. 783, March 9; P. L. 1887, c. 653, May 6

Taken for park purposes.....P. L. 1892, c. 1140, July 1

Portion of Johnston.....P. L. 1898, c. 562, May 6;

***Editor's note—**This appendix contains the Public Laws of the State of Rhode Island relating to the City of Providence, from 1797 to date, classified according to subject matter. For those Public Laws included in Part I of this publication, "Charter Laws", see the Disposition Table immediately following Part I.

P. L. 1899, c. 687, May 23; P. L. 1919, c. 1810, April 16

Probate matters in.....P. L. 1898, c. 596, June 15

Records, etc., of annexed territory .....P. L. 1898, c. 597, June 15

To refund Johnston debt assumed by city .....P. L. 1899, c. 690, May 25

Appropriations

Ada E. Lyons .....P. L. 1928, c. 1246

Annie C. Robbins .....P. L. 1925, c. 698

Annie E. Jackson .....P. L. 1941, c. 1095

Annie Williams .....P. L. 1934, c. 2138

Barbara O'Grady .....P. L. 1935, c. 2277

Bridget Cahir.....P. L. 1941, c. 1093

Catherine A. Flynn and Catherine L. O'Brien .....P. L. 1928, c. 1248

Celebration of three hundredth anniversary of city .....P. L. 1936, c. 2461

Deeper Waterways Association .....P. L. 1910, c. 598, April 14

Domenica Zangari .....P. L. 1941, c. 1094

Edward Williams or his wife.....P. L. 1944, c. 1393

Evangeline Silva.....P. L. 1934, c. 2137

Filomeno Caputo.....P. L. 1937, c. 2503

George W. Brown .....P. L. 1928, c. 1251; P. L. 1932, c. 1967

Guiseppina Tortis.....P. L. 1930, c. 1625

Helen Connell .....P. L. 1938, c. 2597

Innocenzio DeClemente.....P. L. 1949, c. 2409

James F. McCaffrey
Payment to widow .....P. L. 1947, c. 1815

John Hutchins Cady.....P. L. 1931, c. 1807

July Fourth appropriation.....P. L. 1910, c. 641, Aug. 18; P. L. 1911, c. 658, March 21

Macrina Corbi .....P. L. 1937, c. 2492

Marie Mulvey.....P. L. 1932, c. 1964

Mary Murray ..... P. L. 1931, c. 1806

Mrs. Carlo Di Sano ..... P. L. 1930, c. 1622

Mrs. Helen M. Hogan ..... P. L. 1946, c. 1671

Mrs. Mary Mello
Payment to next of kin ..... P. L. 1942, c. 1177

Relief of flood sufferers ..... P. L. 1913, c. 985, April 29

Salary of Councilman William L. Hickey ..... P. L. 1942, c. 1163

San Francisco sufferers ..... P. L. 1906, c. 1382, April 20

Thomas Clifford
Payment to next of kin ..... P. L. 1947, c. 1827

Three hundredth anniversary of founding of
city ..... P. L. 1936, c. 2299

Use of unexpended balances of appropriations ..... P. L. 1897, c. 481, Feb. 5

Armed Service

Authorized to convey land for disabled
veterans' hospital ..... P. L. 1945, c. 1548, March 2

Citizens veteran fund ..... P. L. 1922, c. 2248

Rolls of Honor ..... P. L. 1918, c. 1618

Transfer of armory ..... P. L. 1918, c. 1685

Automobile Parking Places

Licensing ..... P. L. 1940, c. 834

B

Bathhouses ..... P. L. 1913, c. 972, April 8; P. L. 1916, c. 1406, April 10

Condemnation of land ..... P. L. 1922, c. 2240

Enlargement of bathhouse at Franklin Park ..... P. L. 1921, c. 2116

Utilizing part of Tockwotton Park ..... P. L. 1922, c. 2237

Births

Compensation for collection of statistics of
births ..... P. L. 1899, c. 621, March 3

Board of Aldermen

Election: See ELECTIONS

President pro tempore .....P. L. 1879, c. 744, March 10; P. L. 1902, c. 1012, Feb. 20

Board of Canvassers

See ELECTIONS

Board of Contract and Supply .....P. L. 1943, c. 1285

Board of Public Safety.....P. L. 1917, c. 1558; P. L. 1931, c. 1710

Transferring duties .....P. L. 1935, c. 2186

Bonded Debt

City Debt Bonded.....P. L. 1855, June 15

Municipal indebtedness .....P. L. 1878, c. 666, April 10

Bonds .....P. L. 1947, c. 1898; P. L. 1962, c. 166; P. L. 1963, c. 106

Approval of voters required for issuance.....P. L. 1943, c. 1266

Bonds for balance of indebtedness .....P. L. 1878, c. 701, May 30

Bonds of Springfield R. R. Co. .....P. L. 1872, April 11

Bonds to be paid in gold.....P. L. 1894, c. 1290, April 13

Bridges: See that title

City hall .....P. L. 1875, c. 436, Feb. 19

City treasurer may issue bonds, when .....P. L. 1893, c. 1234, May 3

Civic center: See that title

Docks: See **Wharves**

Fire department: See that title

Funding purposes.....P. L. 1933, c. 2067; P. L. 1934, c. 2135; P. L. 1935, c. 2225; P. L. 1938, c. 2634; P. L. 1939, c. 774; P. L. 1940, c. 837; P. L. 1941, cc. 1090, 1091

Garages: See that title

Highways: See that title

Housing projects

Issuance for aiding housing authority.....P. L. 1946, c. 1750; P. L.

1947, c. 1859; P. L. 1948, c. 2069; P. L. 1950, c. 2577

Hurricane barrier: See that title

Hurricane relief: See HURRICANE DAMAGE

Immediate suit on water bonds ..... P. L. 1871, c. 941, March 24

Incinerator plant and sewage disposal plant: See INCINERATOR PLANT

Issuance of coupon bonds in place of registered bonds ..... P. L. 1944, c. 1434

Libraries: See that title

Municipal wharf at Field's Point. See: WHARVES

Parks and recreation: See that title

Port: See that title

See also WHARVES

Public welfare administration building ..... P. L. 1965, c. 46; P. L. 1965, c. 160

Public works-highway office building and garage ..... P. L. 1959, c. 17

Redevelopment: See that title

Refunding ..... P. L. 1941, c. 1089; P. L. 1945, c. 1664, April 27

Registration of bonds ..... P. L. 1869, c. 739, March 12

Sanitation: See that title

Seawalls: See Wharves

Schools: See that title ..... P. L. 1899, c. 688, May 3

Sewer bonds: See SEWERS

Authorizing issuance: See SEWERS

Streets, sidewalks and bridges: See that title

Bond issues for highway purposes: See HIGHWAYS

Traffic signal installation and traffic control: See TRAFFIC

Unemployment relief ..... P. L. 1940, c. 835

War bonds ..... P. L. 1862, c. 441, Sept. 6

Water: See that title

Distribution reservoir: See WATER

Improvement to water purification works: See WATER

Improvements to water purification works in Scituate, Rhode Island: See WATER

Payable in gold .....P. L. 1872, c. 967, Jan. 25; P. L. 1876, c. 573, June 14

Water bonds .....P. L. 1875, c. 430, Feb. 16; P. L. 1876, c. 528, April 12; P. L. 1891, c. 945, April 30

Welfare and relief purposes: See WELFARE

Wharf and dock improvements: See WHARVES

Bootblacks .....P. L. 1885, c. 501, April 24

Boundaries

Annexation: See ANNEXATION

Commission to readjust ward lines .....P. L. 1900, c. 798, June 13

Eighth and Ninth Representative Districts .....P. L. 1918, c. 1612

Johnston boundary line .....P. L. 1891, c. 999, May 29

North Providence Boundary Line.....P. L. 1861, c. 362, March 5; P. L. 1866, c. 618, Feb. 6

Voting districts .....P. L. 1930, c. 1525

Wards and voting districts.....P. L. 1936, c. 2465

Bridges

See STREETS, SIDEWALKS AND BRIDGES

Brown University

Authorized to build conduit with consent of city council .....P. L. 1895, c. 1398, May 22

Authorizing Brown University to build conduct under Prospect Street .....P. L. 1901, c. 874, March 14

Subways under certain streets .....P. L. 1908, c. 1607, April 15

Budget Director.....P. L. 1943, c. 1270

Building Law.....P. L. 1878, c. 688, April 12; P. L. 1895, cc. 1406, 1411, May 17; P. L. 1897, c. 483, May 4; P. L. 1908, c. 1603, April 28; P. L.

1909, c. 472, April 30; P. L. 1911, c. 736, May 12; P. L. 1912, c. 869, April 26; P. L. 1916, c. 1416, April 14

Authority to enact ordinance ..... P. L. 1923, c. 2370

Building Law amended ..... P. L. 1914, c. 1107, Feb. 27; P. L. 1915, c. 1276, March 26; P. L. 1915, c. 1281, April 23

Inspector of buildings ..... P. L. 1896, c. 367, May 14

Buildings

Authority to enact building regulations ..... P. L. 1954, c. 3338; P. L. 1962, c. 125; P. L. 1966, c. 251; P. L. 1969, c. 96

Dwellings

Minimum standards ..... P. L. 1956, c. 3715

Housing

Authority to raise money for projects ..... P. L. 1946, c. 1750; P. L. 1947, c. 1859; P. L. 1948, c. 2069; P. L. 1950, c. 2577

Minimum housing standards ..... P. L. 1962, c. 122; P. L. 1962, c. 251

Providence Minimum Standards Housing Act ..... P. L. 1956, c. 3715; P. L. 1969, c. 217

Removal of buildings into adjoining towns ..... P. L. 1854, Feb. 24

Bureau of Police and Fire ..... P. L. 1935, c. 2275; P. L. 1936, c. 2478; P. L. 1939, c. 748

Sick leave ..... P. L. 1940, c. 838

C

Campbell, John P.

Compensation for ..... P. L. 1908, c. 1604, April 8

Caucus Law

See ELECTIONS

Cemeteries and Burials

City may take Proprietors' Burial Ground for a public park.....P. L. 1884, c. 431, May 2

Conveying portion of North Burial Ground .....P. L. 1917, c. 1562

Field Burial Ground .....P. L. 1882, c. 267, March 9

Hopkins Burial Ground for park purposes .....P. L. 1891, c. 946, March 24

North Burial Ground .....P. L. 1861, c. 367, March 8; P. L. 1865, c. 572, March 16; P. L. 1889, c. 781, April 25

Bequests to North Burial Ground.....P. L. 1895, c. 1410, May 25

Loan for tomb in North Burial Ground.....P. L. 1902, c. 1013, Feb. 27

Charter

Commission to amend.....P. L. 1939, c. 672

Finance act.....P. L. 1945, c. 1665, April 27

Validation of certain provisions of 1980 home rule charter .....P. L. 1981, c. 37

City Clerk .....P. L. 1913, c. 978, April 29

Act relative to department.....P. L. 1923, c. 2371

Duties of city clerk transferred to board of canvassers.....P. L. 1914, c. 1113, May 4

City Controller

Election .....P. L. 1930, c. 1634; P. L. 1940

City Council

Election.....P. L. 1930, c. 1634; P. L. 1940, c. 833; P. L. 1966, c. 99

Powers of city council .....P. L. 1868, c. 719, March 5

Terms of mayor, councilmen.....P. L. 1966, c. 99

City Hall

Bonds .....P. L. 1875, c. 436, Feb. 19

Improvement loan.....P. L. 1913, c. 969, Feb. 25

Loan .....P. L. 1878, c. 687, April 12;

P. L. 1895, c. 1404, Feb. 28; P. L. 1901, c. 934, Nov. 26

City Registrar

Deputy superintendent of health and deputy city registrar ..... P. L. 1914, c. 1117, May 4

Duties and fees of city registrar ..... P. L. 1898, c. 549, May 6

City Sergeant

Deputies ..... P. L. 1917, c. 1559

City Treasurer

Election ..... P. L. 1930, c. 1629

Fees due paid to city treasurer ..... P. L. 1919, c. 1809, April 16

Civic Center

Creation of authority, issuance of bonds, etc. ..... P. L. 1968, c. 259 (repealed by P. L. 1969, c. 3); P. L. 1969, c. 3; P. L. 1970, c. 173; P. L. 1971, c. 1; P. L. 1971, c. 242; P. L. 1972, c. 220; P. L. 1973, c. 251

Surcharge on admissions ..... P. L. 1974, c. 280

Civil Service

See OFFICERS AND EMPLOYEES

Columbus Day

Appropriation for ..... P. L. 1892, c. 1157, Oct. 7

Comfort Stations ..... P. L. 1906, c. 1376, March 29

Public comfort stations authorized ..... P. L. 1910, c. 596, March 8

Commissioner of Public Safety

Authority to make rules and regulations concerning sick leave for patrolmen and firemen ..... P. L. 1955, c. 3449

Commissioner of Public Works

See PUBLIC PROPERTY AND PUBLIC WORKS

Commissioners of Sinking Funds

See SINKING FUNDS

Conduits

See POLES, WIRES AND OTHER INSTALLATIONS

Constables ..... P. L. 1878, c. 685, April 12; P. L. 1880, c. 823, May 27

Appointment, etc. ..... P. L. 1928, c. 1250

Special constables ..... P. L. 1845, Jan. 16

Contracts

Special city contracts authorized ..... P. L. 1909, c. 469, April 6

Corliss Park. Transfer of portion to city ..... P. L. 1973, c. 68

Cotton Waste ..... P. L. 1847, June 25

Councilmen

Terms of office ..... P. L. 1966, c. 99

Courthouse Commission

Acquiring land ..... P. L. 1929, c. 1345

Powers and duties ..... P. L. 1929, c. 1360

Courts

City court

Hire of money to buy land adjoining city yard ..... P. L. 1896, c. 426, Oct. 2

Fees ..... P. L. 1965, c. 146

Fees in probate courts ..... P. L. 1932, c. 1970

Marriage

Justice of police court ..... P. L. 1933, c. 2042

Municipal court ..... P. L. 1929, c. 1444; P. L. 1925, c. 692

Municipal court and police court ..... P. L. 1896, c. 371, May 13

Police court ..... P. L. 1929, c. 1446; P. L. 1944, c. 1461; P. L. 1956, c. 3807

Probate court ..... P. L. 1944, c. 1482; P. L. 1954, c. 3340

Fees ..... P. L. 1932, c. 3340

Probate matters in annexed portion of Johnston.....P. L. 1898, c. 596, June 15

Probation officers.....P. L. 1899, c. 664, May 23; P. L. 1903, c. 1116, April 17

Surety for costs not required.....P. L. 1866, c. 636, Feb. 6

Cove Basin

Filling of Cove Basin.....P. L. 1893, c. 1235, March 22

Loan.....P. L. 1878, c. 687, April 12

Cruiser Providence

Authorizing gift to navy.....P. L. 1945, c. 1547, March 1

D

Dexter Asylum

Improvements at Dexter Asylum.....P. L. 1912, c. 859, April 17; P. L. 1914, c. 1112, May 4

Director of Public Aid

Changed to director of public welfare.....P. L. 1936, c. 2312

Election.....P. L. 1930, c. 1629

Director of Public Safety

Duties transferred to.....P. L. 1935, c. 2186

Director of Public Welfare.....P. L. 1936, c. 2312

Docks

See Wharves

Drunkenness

Penalty for intoxication.....P. L. 1878, c. 686, April 12

Dry-Cleaning Establishments

Registration of identification marks.....P. L. 1954, c. 3376

Dumping Ground.....P. L. 1931, c. 1810

Dwellings

See BUILDINGS

E

Elections

Biennial elections ..... P. L. 1912, c. 863, April 29

Board of aldermen ..... P. L. 1930, c. 1634

Board of canvassers and registration ..... P. L. 1929, c. 1320; P. L. 1931, c. 1804

Board of canvassers made returning board in municipal elections ..... P. L. 1896, c. 363, May 14

Meetings ..... P. L. 1923, c. 2309

Boundary lines of wards and voting districts ..... P. L. 1930, c. 1525; P. L. 1936, c. 2465

Canvassing rights and correcting lists of voters ..... P. L. 1929, c. 1324

Caucus law amended ..... P. L. 1912, c. 781, March 20; P. L. 1912, c. 850, May 6; P. L. 1914, c. 1038, April 21; P. L. 1914, c. 1049, April 24

City committees ..... P. L. 1912, c. 877, April 29

Conduct of elections ..... P. L. 1901, c. 829, March 21

Council ..... P. L. 1930, c. 1634; P. L. 1966, c. 99

Counting ballots ..... P. L. 1901, c. 828, March 12

Date of municipal election ..... P. L. 1896, c. 402, May 28

Discontinuance of voting machines ..... P. L. 1901, c. 916, Nov. 20; P. L. 1905, c. 1226, April 21

Duties of city clerk transferred to board of canvassers ..... P. L. 1914, c. 1113, May 4

Duties of moderators ..... P. L. 1911, c. 677, April 25

Holding of caucuses ..... P. L. 1902, c. 1078, Dec. 12; P. L. 1917, c. 1547

Mayor ..... P. L. 1930, c. 1629; P. L. 1940, c. 832; P. L. 1966, c. 99

New elections ..... P. L. 1879, c. 744, March 10

Officers and employees ..... P. L. 1930, c. 1629

Poll taxes: See TAXATION

Reapportionment of representative districts ..... P. L. 1929, c. 1317

Registration and right to vote in accordance with article XX of amendments to the constitution ..... P. L. 1929, c. 1356

Representative districts ..... P. L. 1930, c. 1526; P. L. 1936, c. 2412; P. L. 1940, c. 843

Schools

Use of school property for election purposes ..... P. L. 1931, c. 1814; P. L. 1918, c. 1681

Senatorial districts ..... P. L. 1930, c. 1526; P. L. 1936, c. 2412; P. L. 1940, c. 843

Commission to divide ..... P. L. 1939, c. 747; P. L. 1936, c. 2467

Special elections

Certain special elections excepted from election law in certain respects ..... P. L. 1948, c. 2070; P. L. 1955, c. 3526

Resolution ordering special election for senator ..... P. L. 1891, Aug. 4

Time for opening of polls ..... P. L. 1963, c. 157

Time polls close ..... P. L. 1942, c. 1210

Electricity

See POLES, WIRES AND OTHER INSTALLATIONS

Engineers and Boiler Operators

Licensing ..... P. L. 1943, c. 1364

Explosives and Inflammables

Combustible materials in buildings ..... P. L. 1898, c. 555, May 6

Dangerous substances ..... P. L. 1905, c. 1255, March 15

Gunpowder ..... P. L. 1821, Oct. 30

Storage of gasoline, etc. ..... P. L. 1922, c. 2251

F

Fences

Authority to regulate ..... P. L. 1964, c. 172

Ferries ..... P. L. 1843, Feb. 4; P. L. 1848, Jan. 18

Field Point area. Filling around Starve Goat Island, confirmation of title ..... P. L. 1975, c. 216

Filling Cove Basin ..... P. L. 1888, c. 722, May 31

Finance Act ..... P. L. 1945, c. 1665, April 27

Amended ..... P. L. 1962, c. 3

Fire Department

Annuities to widows of firemen ..... P. L. 1958, c. 88

Appropriation for relief of disabled firemen and policemen ..... P. L. 1909, c. 466, March 9

Bonds

Issuance for modernizing ..... P. L. 1945, c. 1617, April 24; P. L. 1939, c. 748; P. L. 1936, 2478; P. L. 1935, c. 2275; P. L. 1940, c. 838; P. L. 1947, c. 1858; P. L. 1949, c. 2188; P. L. 1950, c. 2587

Days off for firemen ..... P. L. 1914, c. 1110, April 24; P. L. 1923, c. 2369

Diminishing danger to life ..... P. L. 1916, c. 1366, April 13; P. L. 1919, c. 1718, March 12; P. L. 1919, c. 1780, April 24

Erecting and furnishing fire station ..... P. L. 1926, c. 876

Erection of building ..... P. L. 1917, c. 1556

Fire commissioners ..... P. L. 1892, c. 1100, May 21

Fire department loan ..... P. L. 1914, c. 1105, Feb. 20

Fire station loan ..... P. L. 1902, c. 1011, Feb. 20; P. L. 1905, c. 1259, March 15; P. L. 1906, c. 1377, April 5

Hiring money

Construction of central fire station and other purposes ..... P. L. 1900, c. 799, June 13

Construction of station in vicinity of Reservoir Avenue ..... P. L. 1931, c. 1809

Erection and equipment of buildings ..... P. L. 1928, c. 1245

Fire alarm system ..... P. L. 1897, c. 484, May 14

Payment to relatives of members ..... P. L. 1932, c. 1971

Pension fund ..... P. L. 1893, c. 1232, May 16; P. L. 1938, c. 2561

Annuities to widows ..... P. L. 1958, c. 88

Permanent Firemen's Relief Association ..... P. L. 1952, S. 125

Presidents of fire department ..... P. L. 1867, c. 654, Feb. 5

Providing motor-driven fire apparatus for fire department ..... P. L. 1916, c. 1404, March 15

Purchase of fire boat ..... P. L. 1922, c. 2249

Purchasing motor-driven fire apparatus ..... P. L. 1925, c. 695

Reimbursement for persons injured by fire department ..... P. L. 1912, c. 874, April 26

Relief of disabled firemen ..... P. L. 1889, c. 782, March 14; P. L. 1896, c. 372, April 16; P. L. 1921, c. 2105; P. L. 1927, c. 1073

Retirement of members ..... P. L. 1917, c. 1551; P. L. 1913, c. 977, April 29; P. L. 1976, c. 12

Annuities to widows ..... P. L. 1958, c. 88

Sick leave: See COMMISSIONER OF PUBLIC SAFETY

Taking property for use by ..... P. L. 1928, c. 1247

Underground fire alarm wires ..... P. L. 1898, c. 558, May 6

Food and Food Products

Appointment of inspector of provisions ..... P. L. 1909, c. 470, April 16

Inspector of beef and pork ..... P. L. 1833, June 29

Unwholesomeness provisions ..... P. L. 1858, c. 281, March 5

Franchises

See RAILROADS AND STREET RAILROADS, and STREETS, SIDEWALKS AND BRIDGES

Funded Loan

City authorized to issue notes until loan is funded ..... P. L. 1902, c. 1017, Jan. 29

G

Garages

Bond issue for public works garage and/or municipal garage and warehouse ..... P. L. 1952, c. 2970

Garages regulated ..... P. L. 1915, c. 1280, April 23

Municipal garage ..... P. L. 1921, c. 2109

Garbage, Trash and Ashes ..... P. L. 1931, c. 1810

Collection and disposal ..... P. L. 1926, c. 870

Collectors, licensing and regulation ..... P. L. 1961, c. 150

Equipment and facilities for collection and disposal of garbage ..... P. L. 1916, c. 1410, April 14

Plant or unit for disposal ..... P. L. 1931, c. 1810

Removal of ashes ..... P. L. 1912, c. 866, April 26

Removal of swill ..... P. L. 1906, c. 1374, March 14

Swill and house offal ..... P. L. 1877, c. 616, March 30

Golf Courses

Charges for admission and professional tournaments ..... P. L. 1941, c. 1092

H

Harbor and Harbor Lines ..... P. L. 1959, c. 94

Harbor and Port

Channel to be dredged in Seekonk River, defined ..... P. L. 1885, c. 518, April 24

Duties of harbor master ..... P. L. 1903, c. 1121, March 18

Election of harbor master ..... P. L. 1930, c. 1629

Harbor flats ..... P. L. 1837, Jan. 21

APPENDIX D

Harbor improvement.....P. L. 1882, c. 273, March 22

Harbor lines

Bower Street to Red Bridge.....P. L. 1901, c. 873, March 13

Crawford Street Bridge to Fox Point.....P. L. 1879, c. 758, April 10

Crawford Street Bridge to Point Street Bridge.....P. L. 1879, c. 771, April 11

Crawford Street to Point Street Bridge.....P. L. 1878, c. 696, April 27

Dorrance Street Wharf to Sassafras Point.....P. L. 1855, March 3

Field's Point to Rock Island.....P. L. 1881, April 28

Fox Point to India Point.....P. L. 1865, c. 557, Jan. 31; P. L. 1892, c. 1096, March 16

Fox Point to railroad bridge.....P. L. 1890, c. 914, May 30

Defined.....P. L. 1896, c. 424, Oct. 2

Establishment.....P. L. 1928, c. 1241

Fox Point to railroad bridge at India Point.....P. L. 1885, c. 476, April 10

Line near Indian Point.....P. L. 1879, c. 759, April 10

Line near Sassafras and Field's Point.....P. L. 1880, c. 819, April 16

Point Street Bridge to Henderson Street.....P. L. 1883, c. 365, April 12

Providence River, on west side.....P. L. 1925, c. 583

Near Field's Point.....P. L. 1918, c. 1619

South of Field's Point (conveyance to city of shipyard site).....P. L. 1940, c. 839

Seekonk River

Line in river.....P. L. 1877, June 1; P. L. 1878, April 8

Line on west side of river.....P. L. 1870, c. 870, March 31; P. L. 1883, March 7

Harbor master.....P. L. 1859, March 11

Duties.....P. L. 1903, c. 1121, March 18

Election.....P. L. 1930, c. 1629

Limits and preservation.....P. L. 1815, Nov. 3

Loan for retaining wall.....P. L. 1912, c. 868, April 26

Money for improvement of harbor.....P. L. 1899, c. 689, May 26

Port wardens .....P. L. 1855, May

Wharves. See WHARVES

Health

City registrar .....P. L. 1925, c. 682

Deputy superintendent of health .....P. L. 1872, c. 1002, May 31

Deputy superintendent of health and deputy city registrar.....P. L. 1914, c. 1117, May 4

Elimination of mosquitoes .....P. L. 1918, c. 1684

Hospitals

Addition to tuberculosis ward of City Hospital .....P. L. 1916, c. 1408, April 10

Appropriations

District Nursing Association .....P. L. 1916, c. 1405, March 23; P. L. 1925, c. 687; P. L. 1934, c. 2134

Homeopathic Hospital .....P. L. 1913, c. 971, April 8

Miriam Hospital .....P. L. 1927, c. 1075

Providence Lying-In Hospital and St. Joseph's Hospital .....P. L. 1904, c. 1168, Feb. 11

Rhode Island Hospital .....P. L. 1890, c. 871, May 2

R. I. Hospital .....P. L. 1904, c. 1167, Feb. 11

Authorized to convey land to United States as disabled veterans' hospital .....P. L. 1945, c. 1548, March 2

Board of hospital commissioners .....P. L. 1909, c. 467, March 31; P. L. 1935, c. 2226

City hospital loan .....P. L. 1905, c. 1256, March 15; P. L. 1907, c. 1477, April 10; P. L. 1908, c. 1598, April 14

Contract with R. I. Hospital for hospital for contagious diseases .....P. L. 1895, c. 1408, March 1

Elevator at Charles V. Chapin Hospital.....P. L. 1937, c. 2490

Exempting Hope Hospital from taxation .....P. L. 1933, c. 2054

Gift to Providence Lying-In Hospital.....P. L. 1942, c. 1172

Hiring money for enlargement of isolation building .....P. L. 1930, c. 1621

Hiring money for hospital purposes ..... P. L. 1928, c. 1238
Patients at psychopathic wards ..... P. L. 1929, c. 1447
Providence Floating Hospital Association ..... Resolution 1941
Superintendent of health ex officio superintendent of Charles V. Chapin Hospital ..... P. L. 1932, c. 1968
Support of Floating Hospital Association ..... P. L. 1918, c. 1682
North End Dispensary of Providence section, Council of Jewish Women ..... P. L. 1916, c. 1412, April 14
Sanitary engineer ..... P. L. 1925, c. 685
Sanitation: See that title
Superintendent of health ..... P. L. 1889, c. 780, April 26; P. L. 1925, c. 682; P. L. 1935, c. 2226
Ex officio registrar and superintendent of Charles V. Chapin Hospital ..... P. L. 1932, c. 1968
Inspector of milk ..... P. L. 1914, c. 1020, Feb. 10

Highways ..... P. L. 1829, Jan.
Bond issues ..... P. L. 1931, c. 1811; P. L. 1948, c. 2071; P. L. 1949, c. 2189; P. L. 1949, c. 2243; P. L. 1950, c. 2589; P. L. 1952, c. 2969; P. L. 1954, c. 3360; P. L. 1956, c. 3679; P. L. 1958, c. 21; P. L. 1960, c. 104; P. L. 1964, c. 83
On request of city council ..... P. L. 1862, c. 406, Jan. 28
See STREETS, SIDEWALKS AND BRIDGES

Hospitals
See HEALTH

Hotels and Boardinghouses
Authorizing tax on accommodations ..... P. L. 1946, c. 1735
Transient lodging tax on hotels, motels ..... P. L. 1980, c. 84

House of Correction ..... P. L. 1833, Nov. 2; P. L. 1843, Oct.; P. L. 1844, Jan.; P. L. 1868, c. 755, March 25

Housing
See BUILDINGS

Hurricane Barrier

Bonds ..... P. L. 1959, c. 109

Construction authorized ..... P. L. 1960, c. 105

Hurricane Damage

Bond issue for relief ..... P. L. 1955, c. 3545

I

Incinerator Plant

Bond issue for addition ..... P. L. 1946, c. 1737; P. L. 1948, c. 2072; P. L. 1949, c. 2185; P. L. 1949, c. 2244

J

Junk and Secondhand Dealers ..... P. L. 1903, c. 1097, April 16

Junk dealers ..... P. L. 1901, c. 863, March 29; P. L. 1901, c. 871, March 8; P. L. 1902, c. 1058, Dec. 12

L

Laundry and Dry-Cleaning Establishments

See DRY-CLEANING ESTABLISHMENTS

Law Department ..... P. L. 1874, c. 408, June 17

Lectures

Free public lectures ..... P. L. 1912, c. 858, Feb. 6

Libraries

Annual payment to Elmwood Association ..... P. L. 1918, c. 1679

Annual public library appropriation ..... P. L. 1889, April 24

Bonds ..... P. L. 1949, c. 2226; P. L. 1971, c. 181

Licenses and Permits

Fees ..... P. L. 1922, c. 2241

Victualling houses ..... P. L. 1948, c. 2009; P. L. 1962, c. 145

Life Tenants Remaindermen

Contribution between ..... P. L. 1893, c. 1239, May 4

Lime

Storage ..... P. L. 1805, Feb. 26

Lodginghouses ..... P. L. 1902, c. 1014, March 28

Tenement and lodginghouses,
construction and operation ..... P. L. 1885, c. 502, April 24

Lumber

Piling of lumber ..... P. L. 1831, Nov. 2

M

Markets

Public market loan ..... P. L. 1914, c. 1116, May 4

Marriage

Courts

Justice of police court ..... P. L. 1933, c. 2042

Mayor

Elections: See ELECTIONS

Mayor has casting vote ..... P. L. 1866, c. 599, March 13

Officers and employees

Appointing by mayor ..... P. L. 1939, c. 672

Return of veto by mayor ..... P. L. 1879, c. 744, March 10

Term of office ..... P. L. 1966, c. 99

Militia

See ARMED SERVICE

Milk and Milk Products ..... P. L. 1911, c. 676, April 20

Superintendent of health is
inspector of milk ..... P. L. 1914, c. 1020, Feb. 10

Monuments

See STATUES AND MONUMENTS

Mosquitoes

Elimination ..... P. L. 1918, c. 1684

Motels

Hotels and lodginghouses. See that title

Moving Household Goods, Etc. .....P. L. 1916, c. 1365, April 12; P. L. 1919, c. 1726, April 10; P. L. 1930, c. 1506

N

Newsboys.....P. L. 1885, c. 501, April 24

O

Officers and Employees

Civil service system authorized .....P. L. 1965, c. 111

Elections. See that title

Fees for licenses and commissions .....P. L. 1897, c. 474, May 21

Half-holidays .....P. L. 1907, c. 1475, March 19

Injured or disabled employees.....P. L. 1928, c. 1239; P. L. 1956, c. 3681

Mayor

Appointment by mayor.....P. L. 1939, c. 672

Medals for city officers and employees .....P. L. 1915, c. 1272, March 3

Military or naval service.....P. L. 1917, c. 1538

Officers receiving money or fees .....P. L. 1872, c. 978, April 25

Preservation of records .....P. L. 1922, c. 2219

Probation officers.....P. L. 1899, c. 664, May 23; P. L. 1903, c. 1116, April 17

Retirement .....P. L. 1923, c. 489; P. L. 1923, c. 2374; P. L. 1926, c. 873; P. L. 1950, c. 2546; P. L. 1950, c. 2557; P. L. 1952, c. 2994; P. L. 1953, c. 3155; P. L. 1954, c. 3363; P. L. 1954, c. 3373; P. L. 1955, c. 3541; P. L. 1956, c. 3682; P. L. 1959, c. 54; P. L. 1960, c. 197; P. L. 1961, c. 119; P. L. 1961, c. 137; P. L. 1962, c. 164; P. L. 1963, c. 151; P. L. 1964, c. 170; P. L. 1965, c. 25; P. L. 1965, c. 189; P. L. 1968, c. 146; P. L. 1969, c. 164; P. L. 1970, c. 102; P. L. 1971, c. 29; P. L. 1971, c. 289; P. L. 1972, c. 82, § 5; P. L. 1972, c. 229; P. L. 1972, c. 244; P. L. 1972, c. 261; P. L. 1974, c. 267; P. L. 1975, c. 14; P. L. 1975, c. 103; P. L. 1975, c. 158; P. L. 1976, c. 100; P. L. 1977, c. 31; P. L. 1977, c. 102; P. L. 1977, c. 245; P. L. 1978, c. 323;

P. L. 1979, c. 285; P. L. 1979, c. 286; P. L. 1980, c. 353; P. L. 1980, c. 410; P. L. 1981, c. 359; P. L. 1981, c. 361

Retirement board for certain employees ..... P. L. 1916, c. 1411, April 14

Salaries

Council to fix by ordinance ..... P. L. 1927, c. 1074

Salaries of city officers ..... P. L. 1894, c. 1334, June 13

Salaries readjusted ..... P. L. 1913, c. 984, April 29

Stopping work at noon on Saturdays ..... P. L. 1936, c. 2413

Ordinances

Amendment and repeal ..... P. L. 1881, c. 856, April 19

Publication of general ordinances not required ..... P. L. 1912, c. 862, April 18

Orphan Asylum

Annual appropriation for Jewish Orphanage ..... P. L. 1935, c. 2276

City may appropriate to Orphan Asylum ..... P. L. 1914, c. 1109, April 3

P

Parking

Off-street parking facilities ..... P. L. 1949, c. 2307; P. L. 1950, c. 2514; P. L. 1956, c. 3726

Exemption from taxation ..... P. L. 1962, c. 165

Parking meters

Authorizing installation ..... P. L. 1947, c. 1830; P. L. 1960, c. 196

Public hearing act ..... P. L. 1960, c. 121

Parks and Recreation

Abandonment

Broadway playground ..... P. L. 1922, c. 2245

Certain land ..... P. L. 1917, c. 1561; P. L. 1919, c. 1806, April 10

Portion of Blackstone Park ..... P. L. 1945, c. 1630, April 25; P. L. 1956, c. 3716

Portion of Pleasant Valley parkway ..... P. L. 1942, c. 1178, 1179

Authorizing purchase of land for Blackstone Park ..... P. L. 1901, c. 875, March 29

Board of recreation ..... P. L. 1913, c. 980, April 29; P. L. 1914, c. 1111, May 1

Bond issues ..... P. L. 1950, c. 2591; P. L. 1958, c. 20; P. L. 1965, c. 118

- Acquisition and/or improvement of facilities ..... P. L. 1960, c. 106

Borrowing $500,000.00 for parks ..... P. L. 1891, c. 943, April 30

Boundaries

- Roger Williams Park ..... P. L. 1908, c. 1601, April 28
- Straightening boundary line of Roger Williams Park ..... P. L. 1931, c. 1805
- Triggs Memorial Park ..... P. L. 1932, c. 1969

Condemnation

- Authorizing condemnation ..... P. L. 1921, c. 2106
- Certain land ..... P. L. 1922, c. 2243
- Fenner Park ..... P. L. 1891, c. 998, May 29
- Park and playground purposes ..... P. L. 1922, c. 2236
- Park purposes ..... P. L. 1914, c. 1120, May 4; P. L. 1915, c. 1279, April 23; P. L. 1895, c. 1409, May 22
- Tockwotton Park ..... P. L. 1912, c. 867, April 26

Conveyance of portion of Valley Street Playground ..... P. L. 1945, c. 1616, April 24

Conveyance of property by state to city for park and recreation purposes ..... P. L. 1956, c. 3796

Conveyance of property to Providence Redevelopment Agency ..... P. L. 1958, c. 81; P. L. 1959, c. 13

Department

- Authorizing establishment of department of recreation ..... P. L. 1947, c. 1856

Discontinuance of use of certain lands on Cypress Street and Duncan Avenue ..... P. L. 1922, c. 2239

Exchange of certain land ..... P. L. 1919, c. 1811, April 24

Hiring money
Building casino at Roger Williams Park ..... P. L. 1896, c. 427, Oct. 2
For construction, etc. ..... P. L. 1930, c. 1626
For improvement of land in ninth ward ..... P. L. 1929, c. 1448
For park and playground purposes ..... P. L. 1917, c. 1553; P. L. 1929, c. 1439; P. L. 1936, c. 2300
For purchase and improvement ..... P. L. 1923, c. 2373
For Roger Williams and Blackstone Parks ..... P. L. 1896, c. 425, Oct. 2
Furnishing casino at Roger Williams Park ..... P. L. 1898, c. 525, Feb. 16
Hopkins Burial Ground for park purposes ..... P. L. 1891, c. 946, March 24
Improvement of Davis Park ..... P. L. 1896, c. 365, April 28
Land for Roger Williams Park ..... P. L. 1891, c. 1018, July 24
Land for Tockwotton Park ..... P. L. 1890, c. 876, March 11
Loans ..... P. L. 1891, c. 993, May 28; P. L. 1902, c. 1075, Dec. 4; P. L. 1906, c. 1381, April 19; P. L. 1913, c. 981, April 29
Davis Park loan ..... P. L. 1893, c. 1229, March 7
Park purposes ..... P. L. 1895, c. 1401, May 22
Roger Williams and Blackstone Parks ..... P. L. 1893, c. 1230, April 19
To buy land for parks ..... P. L. 1894, c. 1291, May 1
Metropolitan Marine Park ..... P. L. 1916, c. 1372, April 14
Neutakoncanut Hill Park exempt from taxation ..... P. L. 1906, c. 1380, April 12
Park commissioners ..... P. L. 1878, c. 700, May 30
Commissioners of estate of Charles H. Smith ..... P. L. 1937, c. 2553
Metropolitan Park ..... P. L. 1911, c. 656, March 22
Park purposes
Commissioners of estate of Charles H. Smith ..... P. L. 1946, c. 1733

Playgrounds ..... P. L. 1911, c. 733, Feb. 3

Public garden ..... P. L. 1916, c. 1375, April 14

Purchase and equipment of land, etc. ..... P. L. 1926, c. 872

Purchase the life interests of certain persons in certain lands ..... P. L. 1916, c. 1413, April 14

Tockwotton Park ..... P. L. 1888, c. 680, March 23

Peddlers and Hawkers ..... P. L. 1902, c. 1065, Dec. 12

Peddlers' license act ..... P. L. 1901, c. 846, March 28; P. L. 1901, c. 923, Nov. 22

Pedestrian malls ..... P. L. 1962, c. 176

Playgrounds

See PARKS AND RECREATION

Plumbing

Assistant inspectors of plumbing ..... P. L. 1896, c. 368, May 15

Drainage and plumbing of buildings ..... P. L. 1895, c. 1444, May 30

Sanitary engineer ..... P. L. 1925, c. 685

Unlicensed plumbers not to advertise ..... P. L. 1909, c. 471, April 29

Poles, Wires and Other Installations

Authorizing certain construction under sidewalks ..... P. L. 1916, c. 1417, April 14

Conduits ..... P. L. 1916, c. 1418, April 14

Across Edith Street ..... P. L. 1904, c. 1203, Feb. 19

Across Middle Street ..... P. L. 1903, c. 1120, March 4

Silver Spring B. & D. Co. to build ..... P. L. 1896, c. 435, Oct. 1

Under Bullion Street ..... P. L. 1906, c. 1402, March 8

Under Central Street ..... P. L. 1913, c. 955, April 29

Under Fountain Street ..... P. L. 1913, c. 918, March 25

Under Holden Street ..... P. L. 1913, c. 916, April 1

Under Jackson Street ..... P. L. 1906, c. 1403, Feb. 16

Under Leland Street ..... P. L. 1908, c. 1606, May 21

Under Orange Street ..... P. L. 1902, c. 1074, Dec. 11

Under Peace Street ..... P. L. 1913, c. 908, Feb. 19

Under Pine Street.....P. L. 1914, c. 1022, Feb. 20
Electrical wires.....P. L. 1880, c. 804, April 8
To place city wires underground.....P. L. 1888, c. 670, Feb. 28
Hiring money for placing underground.....P. L. 1921, c. 2117
Loan for placing wires underground.....P. L. 1911, c. 735, May 2
Pines
Under Allen's Avenue.....P. L. 1907, c. 1511, March 21
Under Hartford Avenue.....P. L. 1914, c. 1027, March 27

Police

Annuities to widows of policemen.....P. L. 1958, c. 88
Bureau of police and fire. See that title
Chief of police.....P. L. 1867, c. 693; March 16
Constables: See that title
Days off for policemen.....P. L. 1911, c. 716, May 12; P. L. 1913, c. 975, April 22; P. L. 1914, c. 1108, March 13
Hiring, $40,000 for police station and stable.....P. L. 1900, c. 801, June 13
Loans
Loan for Central Police Station.....P. L. 1892, c. 1139, June 3
Additional loan.....P. L. 1893, c. 1233, May 25
Police department loan.....P. L. 1914, c. 1114, May 4
Lost or stolen property in hands of police.....P. L. 1875, c. 502, June 18
Officers given personal recognizance.....P. L. 1929, c. 1437
Payment to relatives of members.....P. L. 1932, c. 1971
Pension fund.....P. L. 1893, c. 1232, May 16; P. L. 1921, c. 2107; P. L. 1938, c. 2561
Annuities to widows.....P. L. 1958, c. 88
Providence Protective Department.....P. L. 1905, c. 1261, April 20
Police commissioners.....P. L. 1925, c. 699
Amendments to board of police commissioners.....P. L. 1901, c. 930, Nov. 22

Establishment of board of police commissioners....P. L. 1901, c. 930, Nov. 22

Police Commission Act....P. L. 1906, c. 1379, April 6

Police Commission amendment....P. L. 1911, c. 734, April 18; P. L. 1912, c. 864, March 26; P. L. 1912, c. 871, April 26; P. L. 1913, c. 976, April 29

Relief of disabled policemen....P. L. 1889, c. 782, March 14; P. L. 1896, c. 372, April 16; P. L. 1927, c. 1073

Appropriation....P. L. 1909, c. 466, March 9

Second precinct station....P. L. 1928, c. 1243; P. L. 1930, c. 1623

Sick leave....P. L. 1940, c. 838

Commissioners of public safety: See that title

Supplying police department with motor vehicles....P. L. 1916, c. 1409, April 14

Poor

Annual appropriation for Jewish Orphanage....P. L. 1935, c. 2276

City may appropriate to Orphan Asylum....P. L. 1914, c. 1109, April 3

Deputy overseer of poor....P. L. 1915, c. 1275, March 3

Port

Bonds....P. L. 1980, c. 3

Powers of City....P. L. 1963, c. 104

Private Ways....P. L. 1822, Jan. 22

Protection of Life and Property....P. L. 1917, c. 1548

Providence College....P. L. 1938, c. 2575

Providence Finance Act of 1945....P. L. 1945, c. 1665, April 27

Providence Redevelopment Agency

Transfer of property to....P. L. 1974, c. 276

Providence Review Commission

Validation of establishment by ordinance....P. L. 1981, c. 207

Public Administrator .....P. L. 1876, c. 567, June 2; P. L. 1950, c. 2596

Public Celebrations and Concerts

Appropriations for .....P. L. 1899, c. 660, May 10

Public Property and Public Works

Appropriations for relief of disabled employees of public works department .....P. L. 1909, c. 465, March 9

Bathhouses. See that title

Board of public works .....P. L. 1875, c. 431, Feb. 18; P. L. 1876, c. 549, April 20

Buildings and improvements erected by United States at Field's Point .....P. L. 1919, c. 1808, April 15

Central heating plant.....P. L. 1922, c. 2235

Commissioner of public buildings.....P. L. 1913, c. 973, April 11

Commissioner of public works

Deputy commissioner.....P. L. 1915, c. 1270, Feb. 17; P. L. 1925, c. 691

May employ agents.....P. L. 1913, c. 970, Feb. 28

May employ secretary.....P. L. 1889, c. 813, May 31

Mayor to appoint .....P. L. 1890, c. 869, May 1

Office created .....P. L. 1888, c. 677, March 23

Salaries of agents and servants .....P. L. 1921, c. 2110

Secretary.....P. L. 1921, c. 2111

Department of public works.....P. L. 880, c. 815, April 15; P. L. 1885, c. 530, May 29; P. L. 1939, c. 672

Hiring money for improvement of land near Field's Point for use by department of public works .....P. L. 1928, c. 1244

Relief of employees of department.....P. L. 1912, c. 870, April 26

Repairs.....P. L. 1919, c. 1807, April 15

Superintendent of public buildings.....P. L. 1871, c. 942, March 23

R

Railroads and Street Railroads

Abandonment of passenger station.....P. L. 1892, c. 1041, March 8

Abolition of certain grade crossings.....P. L. 1817, c. 1282, April 23; P. L. 1901, c. 931, Nov. 22; P. L. 1911, c. 737, May 12

Act requiring Providence Cable Tramway Co. and Union R. R. Co. to make payments to city .....P. L. 1893, May 23

Bonds of Springfield R. R. Co. .....P. L. 1872, April 11

Certificates

Railways to file certain certificates .....P. L. 1901, c. 918, Nov. 21

Franchise

Narragansett Electric Lighting Co.....P. L. 1892, May 19

Union Railroad Co. .....P. L. 1892, May 3

Free transfers.....P. L. 1902, c. 965, March 28; P. L. 1902, c. 1008, April 4

Grants to railroads .....P. L. 1848, May 4; P. L. 1845, May 9

Hiring money for erection of railroad bridge.....P. L. 1929, c. 1445

Providence and Springfield R. R. Co. .....P. L. 1882, March 1

Providence Cable Tramway Co. may use electricity as motive power .....P. L. 1893, May 17

Railroad passenger station and approaches .....P. L. 1890, c. 868, March 28

Rhode Island Company: See RHODE ISLAND COMPANY

Tax on street railways.....P. L. 1898, c. 580, June 15

Telephone booths in highways .....P. L. 1917, c. 1554

Track in East River Street authorized .....P. L. 1903, c. 1119, March 3

Union Railroad

Franchises.....P. L. 1900, c. 737, April 20

To establish system of free transfers, when .....P. L. 1896, c. 373, May 7

To make new contracts with Union R.R.
Co. in re transfer tickets.....P. L. 1895, c. 1403, April 11

Recorder of Deeds.....P. L. 1925, c. 684

Act of recorder of deeds validated.....P. L. 1893, c. 1237, March 15

Deputy recorder of deeds.....P. L. 1885, c. 528, May 29

Redevelopment

Bonds .....P. L. 1968, c. 220, P. L. 1979, c. 306

Reform School

Transferred to state .....P. L. 1880, c. 817, April 16

Relief of Earthquake Sufferers in Italy .....P. L. 1909, c. 463, Jan. 12

Relocation Payments

Authorized.....P. L. 1962, c. 32; P. L. 1962, c. 90

Representative Districts .....P. L. 1914, c. 1060, May 1; P. L. 1930, c. 1526; P. L. 1936, c. 2412; P. L. 1940, c. 843.

Dividing cities and towns into
representative districts.....P. L. 1910, c. 640, Aug. 22

Reapportionment .....P. L. 1929, c. 1317

Retirement

See OFFICERS AND EMPLOYEES

Reward

Arrest of Lorenz.....P. L. 1913, c. 986, April 29

Rhode Island Company

Approval of increase in fares.....P. L. 1918, c. 1624

Investigation of affairs.....P. L. 1918, cc. 1614, 1615

S

Salaries

See OFFICERS AND EMPLOYEES

Sale of Land

City may sell land in
Brook Street district .....P. L. 1882, c. 281, March 24

Sanitation

Bonds

Buildings and equipment.....P. L. 1964, c. 84

Schools

Attendance of children in public schools.....P. L. 1898, c. 587, June 15

Bond issues.....P. L. 1899, c. 688, May 3; P. L. 1950, c. 2559; P. L. 1954, c. 3250; P. L. 1956, c. 3638; P. L. 1956, c. 3639; P. L. 1958, cc. 22, 23, 24; P. L. 1959, c. 141; P. L. 1969, c. 53; P. L. 1970, c. 170; P. L. 1971, c. 142; P. L. 1974, c. 90; P. L. 1975, c. 91.

Improving school properties.....P. L. 1940, c. 841

Modernization, construction and/or acquisition of land.....P. L. 1964, c. 155; P. L. 1966, c. 18

School purposes.....P. L. 1962, c. 177; P. L. 1962, c. 185

Building and furnishing new schoolhouses.....P. L. 1916, c. 1403, March 1; P. L. 1925, c. 690

Condemnation of land for schools.....P. L. 1915, c. 1273, March 3

Disposal of school properties.....P. L. 1915, c. 1274, March 3

Elections

Use of school property for election purposes.....P. L. 1931, c. 1814; P. L. 1918, c. 1681

Evening schools

To borrow money for evening schools.....P. L. 1899, c. 634, Feb. 21

Gymnasium.....P. L. 1922, c. 2242; P. L. 1923, c. 2377

Hiring money

For building schoolhouses and buying land therefor.....P. L. 1896, c. 364, April 24

For schoolhouses and lots.....P. L. 1897, c. 510, May 27

For school purposes.....P. L. 1926, c. 871; P. L. 1927, c. 1080; P. L. 1929, c. 1442; P. L. 1930, c. 1630; P. L. 1931, c. 1808

For two senior high schools ..... P. L. 1934, c. 2136

Land for school purposes ..... P. L. 1895, c. 1402, Feb. 28

Loans

High school loan ..... P. L. 1878, c. 687, April 12

School furnishings ..... P. L. 1907, c. 1478, April 17

Schoolhouses and lots ..... P. L. 1891, c. 944, April 14; P. L. 1895, c. 1400, Feb. 20

School loan ..... P. L. 1891, c. 995, May 28; P. L. 1893, c. 1228, April 28; P. L. 1913, c. 983, April 29; P. L. 1914, c. 1118, May 4

Management and support ..... P. L. 1954, c. 3341

Management and support (Strayer Act) ..... P. L. 1925, c. 680; P. L. 1926, cc. 874, 879; P. L. 1930, c. 1633; P. L. 1931, c. 1813

Sanitation

To supply schools with sanitary furnishings. Expired ..... P. L. 1898, c. 526, March 4

School committee ..... P. L. 1867, c. 649, Feb. 14; P. L. 1889, c. 778, March 14; P. L. 1891, c. 996, May 29

May educate children at Normal School ..... P. L. 1898, c. 593, June 2

Member of school committee must reside in ward ..... P. L. 1873, c. 309, Feb. 21

Powers ..... P. L. 1896, c. 420, Oct. 2

When to organize ..... P. L. 1892, c. 1103, April 21

Schoolteachers' retirement fund ..... P. L. 1897, c. 485, May 21

Taking land for school purposes ..... P. L. 1922, c. 2238

Technical High School heating plant ..... P. L. 1907, c. 1476, April 5

Use of public school properties ..... P. L. 1959, c. 7

Use of public school properties for certain purposes ..... P. L. 1916, c. 1414, April 14

Seawalls

See Wharves

Senatorial Districts ..... P. L. 1930, c. 1526; P. L. 1936, c. 2412; P. L. 1940, c. 843

Commission to divide ..... P. L. 1939, c. 747; P. L. 1936, c. 2467

Sewers

Acquiring land between Branch Avenue and Charles Street ..... P. L. 1926, c. 877

Assessments ..... P. L. 1878, c. 711, May 31; P. L. 1881, c. 899, June 3; P. L. 1926, c. 869

Authorizing charges for use of system by industrial, etc., plants and facilities ..... P. L. 1946, c. 1734

Authorizing contract with Town of North Providence for disposal ..... P. L. 1940, c. 842

Bonds ..... P. L. 1875, c. 433, Feb. 18; P. L. 1883, c. 384, June 1; P. L. 1891, c. 942, April 30; P. L. 1893, c. 1231, March 2; P. L. 1931, c. 1812

Authority to issue ..... P. L. 1936, c. 2301; P. L. 1937, c. 2520; P. L. 1932, cc. 1965, 1972; P. L. 1949, c. 2190; P. L. 1952, c. 2968; P. L. 1954, c. 3251; P. L. 1956, c. 3680

Constructing and repairing ..... P. L. 1954, c. 3251

Issue for sewer purposes ..... P. L. 1931, c. 1812; P. L. 1960, c. 103; P. L. 1964, c. 82

Repair and rehabilitation of Fields Point treatment plant and sludge incinerators ..... P. L. 1980, c. 4

Sewage disposal plant ..... P. L. 1937, c. 2519; P. L. 1946, c. 1737; P. L. 1948, c. 2072; P. L. 1949, c. 2185; P. L. 1949, c. 2244; P. L. 1956, c. 3657

Sewer bonds ..... P. L. 1875, c. 433, Feb. 18; P. L. 1891, c. 942, April 30; P. L. 1893, c. 1231, March 2

Sludge incinerator ..... P. L. 1963, c. 32

Building connections inside curbline ..... P. L. 1894, c. 1336, June 12

City may regulate use of sewers ..... P. L. 1899, c. 632, Feb. 17

Connection

Neglect to connect with sewers on sewered streets ..... P. L. 1895, c. 1407, April 23

To compel sewerage connections ..... P. L. 1889, c. 777, April 25

Construction of portion of Seekonk district sewer ..... P. L. 1927, c. 1071

Contract for sewerage with Pawtucket ..... P. L. 1907, c. 1482, April 23

Cranston sewer contract ..... P. L. 1906, c. 1383, April 19

Easement of westerly side of Seekonk River ..... P. L. 1925, c. 686

Expenditure of receipts from sewer assessments ..... P. L. 1901, c. 870, Feb. 13

Hiring money

Enlarging sewage disposal plant ..... P. L. 1929, c. 1440

For sewer purposes ..... P. L. 1923, c. 2372; P. L. 1925, c. 688; P. L. 1926, c. 875; P. L. 1927, c. 1072; P. L. 1928, c. 1237; P. L. 1929, c. 1441; P. L. 1930, c. 1632

Loan ..... P. L. 1895, c. 1404, Feb. 28; P. L. 1904, c. 1169, Feb. 25; P. L. 1907, c. 1480, April 23; P. L. 1910, c. 597, March 8; P. L. 1914, c. 1106, Feb. 20

Manton Avenue sewer ..... P. L. 1922, c. 2246

Sewage disposal plant

Bond issues: See "Bonds" under this heading

Sludge incinerator

Bonds: See "Bonds" under this heading

Taking land for sewer purposes ..... P. L. 1927, c. 1079

Westerly side of Seekonk River ..... P. L. 1922, c. 2247

Sheriffs ..... P. L. 1958, c. 97

Term of office ..... P. L. 1935, c. 2185

Sinking Funds

Commissioners of sinking funds .....P. L. 1873, c. 310, March 14

Amendment .....P. L. 1912, c. 861, April 17

Powers and duties .....P. L. 1944, c. 1433

Smith, Charles H. Commission of estate of .....P. L. 1972, c. 224

State House

Acquisition of site .....P. L. 1890, c. 913, May 30

Statues and Monuments

Admiral Hopkins statue.....P. L. 1896, c. 366, May 14

Approach to Roger Williams monument .....P. L. 1941, c. 1034

Appropriation

Dedication of statue of Ebenezer Knight Dexter .....P. L. 1894, c. 1333, May 30

Doyle monument .....P. L. 1887, c. 611, Feb. 8

General Burnside statue .....P. L. 1882, June 2

Relocation of monuments .....P. L. 1902, c. 1077, Dec. 12; P. L. 1905, c. 1262, April 21

Soldiers' and sailors' monument .....P. L. 1926, c. 756

Statue of Ebenezer Knight Dexter .....P. L. 1894, c. 1292, March 28

World War I memorial .....P. L. 1923, c. 2376

Steam Boilers .....P. L. 1843, Nov.; P. L. 1875, c. 514, June 25; P. L. 1877, c. 617, March 30

Inspector of steam boilers .....P. L. 1913, c. 974, April 11

Streets, Sidewalks and Bridges

Abandonment of certain highways.....P. L. 1858, c. 261, Feb. 11; P. L. 1899, c. 666, May 23

Additional tax for improving.....P. L. 1918, c. 1670

Addition to Highway Act.....P. L. 1915, c. 1271, Feb. 26

Allen's Avenue improvement loan .....P. L. 1905, c. 1263, April 26

Appointing disinterested men to mark out highways .....P. L. 1886, c. 587, April 30

Assessment to bring streets to grade .....P. L. 1930, c. 1624

Authorizing certain constructions
under sidewalks ..... P. L. 1916, c. 1417, April 14

Bonds

Authorizing issuance ..... P. L. 1932, c. 1973; P. L. 1935, c. 2224; P. L. 1936, c. 2302; P. L. 1937, c. 2491; P. L. 1937, c. 2519; P. L. 1938, c. 2592; P. L. 1939, c. 775; P. L. 1940, c. 836; P. L. 1971, c. 67

Highway purposes: See HIGHWAYS

Repair, maintenance, replacement and reconstruction of bridges ..... P. L. 1964, c. 81

Bridges

Across Agnes Street ..... P. L. 1913, c. 917, April 2

Across Coin Street ..... P. L. 1922, c. 2305

Across Eagle Street ..... P. L. 1912, c. 873, April 26

Across Oak and Tray Streets ..... P. L. 1913, c. 954, April 29

Across Oak Street ..... P. L. 1911, c. 670, April 7

Across Power Street ..... P. L. 1912, c. 776, March 1

Across Throop Street ..... P. L. 1906, c. 1404, Feb. 20

Appropriation for Washington Bridge ..... P. L. 1884, c. 388, Feb. 15

Authorized over Middle Street ..... P. L. 1902, c. 1044, March 14

Bridge loan ..... P. L. 1902, c. 1010, Feb. 20; P. L. 1902, c. 1076, Dec. 4

Brown & Sharpe Mfg. Co. to build bridges ..... P. L. 1900, c. 726, Feb. 9

Builders Iron Foundry

May maintain bridge over Codding Street ..... P. L. 1902, c. 1043, March 25

May operate cars across Codding Street ..... P. L. 1902, c. 1042, April 2

Central or Red Bridge ..... P. L. 1869, c. 820, May 28; P. L. 1898, c. 559, May 6

City to build Red Bridge ..... P. L. 1894, c. 1332, June 12

Commissioners on Washington Bridge ..... P. L. 1884, c. 449, May 29

Crawford Street Bridge ..... P. L. 1871, c. 900, Feb. 24

Hiring money for building Weybosset Bridge and river walls ..... P. L. 1897, c. 482, April 20

Lounging on bridges ..... P. L. 1883, c. 354, March 29

Louttit Laundry to build and maintain bridge ..... P. L. 1940, c. 844

Point Street Bridge ..... P. L. 1868, c. 772, June 10; P. L. 1870, c. 880, June 16

Loan ..... P. L. 1905, c. 1260, April 7

New draw for Point Street Bridge ..... P. L. 1925, c. 694; P. L. 1927, c. 1076

Washington Bridge ..... P. L. 1883, c. 349, March 28; P. L. 1887, c. 652, May 6

Claims ..... P. L. 1890, c. 875, March 11

Commission ..... P. L. 1923, c. 2310; P. L. 1927, c. 1012

Conveyance of certain land on ..... P. L. 1945, c. 1618, April 24

Weybosset Bridge Act amended ..... P. L. 1898, c. 556, May 6

Amended and additional work authorized, Mill Street Bridge and layout of Exchange Place ..... P. L. 1899, c. 633, Feb. 21

Coal holes guarded ..... P. L. 1901, c. 933, Nov. 22

Comfort Street closed ..... P. L. 1897, c. 478, April 30

Crawford Street improvement loan ..... P. L. 1905, c. 1258, March 15

Curbing

Certain highways ..... P. L. 1927, c. 1070

Portions of Blackstone Boulevard ..... P. L. 1927, c. 1069

Damages in widening Delaine Street ..... P. L. 1918, c. 1683

Dedication of streets ..... P. L. 1913, c. 987, May 5

Elmwood Avenue loan ..... P. L. 1913, c. 982, April 29

Establishment of highways ..... P. L. 1916, c. 1415, April 14; P. L. 1938, c. 2633

Federal Highway Act ..... P. L. 1922, c. 2158

Franchises

Act authorizing cities and towns to grant franchises in highways ..... P. L. 1891, c. 975, May 29

Grade for platted streets or ways.....P. L. 1882, c. 322, April 21

Highway Betterment Act.....P. L. 1854, Feb. 22; P. L. 1871, c. 921, March 24; P. L. 1872, c. 991, April 26; P. L. 1882, c. 288, March 31; P. L. 1896, c. 369, May 14

Surrender of balance of land .....P. L. 1873, c. 317, March 28

Highway loan.....P. L. 1887, c. 658, June 3; P. L. 1890, c. 870, May 2; P. L. 1891, c. 941, April 30; P. L. 1891, c. 994, May 28; P. L. 1893, c. 1227, March 2; P. L. 1895, c. 1399, Feb. 26; P. L. 1910, c. 599, April 16; P. L. 1912, c. 872, April 26

Highways: See that title

Highways on request of city council: See HIGHWAYS

Hiring money

Acquisition of land for highways .....P. L. 1929, c. 1449

Erection of railroad bridge .....P. L. 1929, c. 1445

For highway purposes. Charles Street.....P. L. 1899, c. 635, March 3; P. L. 1901, c. 876, March 29; P. L. 1929, c. 1438; P. L. 1930, cc. 1627, 1628

Paving .....P. L. 1917, c. 1557; P. L. 1918, c. 1678; P. L. 1923, c. 2375; P. L. 1928, c. 1249

Rebuilding bridges .....P. L. 1928, c. 1242

In Cove .....P. L. 1841, Oct. 27

Laying out, widening, etc. .....P. L. 1917, c. 1560

Layout of highways.....P. L. 1843, Jan. 12

Parking: See that title

Off-street parking facilities: See PARKING

Paving certain portions of Hope, Thayer and Brook Streets.....P. L. 1927, c. 1078

Paving loan .....P. L. 1912, c. 857, March 28; P. L. 1914, c. 1115, May 4

Pedestrian malls: See that title

Platted streets as public highways.....P. L. 1917, c. 1549

Rebuilding streets.....P. L. 1925, c. 700

Rededication of part of Admiral Hopkins
Square.....P. L. 1938, c. 2578

Relieving congestion

Certain streets.....P. L. 1917, c. 1555

On Valley Street.....P. L. 1922, c. 2244

Shelters may be constructed from
buildings over sidewalks.....P. L. 1899, c. 636, March 3

Sidewalks.....P. L. 1821, Nov. 3; P. L. 1823, Oct. 29; P. L. 1841, Jan. 18

Sprinkling streets.....P. L. 1894, c. 1293, May 11

State land for city highways.....P. L. 1901, c. 932, Nov. 22

Storage and sale of merchandise in streets.....P. L. 1909, c. 468, March 31; P. L. 1940, c. 840

Subway

Across Clemence Street.....P. L. 1914, c. 1065, May 4

Under Fulton Street.....P. L. 1915, c. 1331, April 22

Taking land for highway purposes.....P. L. 1921, c. 2118

Trees in public highways.....P. L. 1892, c. 1102, April 29

Use of certain portions of
highways (Elmwood Ave.).....P. L. 1893, c. 1236, May 4

Watering

Streets to be watered, when, and expense
to be assessed abutting owners.....P. L. 1894, c. 1337, June 13

Widening

Exchange Place.....P. L. 1906, c. 1375, March 29

Smith and Francis Streets.....P. L. 1896, c. 418, Oct. 2

Waterman Street.....P. L. 1914, c. 1119, May 4

T

Taxation

Abatement of increases in assessments due to alterations and improvements to existing dwellings ..... P. L. 1966, c. 15

Assessing and collecting poll taxes ..... P. L. 1918, c. 1630; P. L. 1922, c. 2201

Board of assessors ..... P. L. 1925, c. 681; P. L. 1930, c. 1631

City may borrow money for payment of state tax ..... P. L. 1883, c. 323, April 21

Collection of taxes ..... P. L. 1871, c. 922, March 24

Election of assessor of taxes annually in February ..... P. L. 1886, c. 585, April 30

Exemption from taxation ..... P. L. 1916, c. 1376, April 14

- Exempting Hope Hospital ..... P. L. 1933, c. 2054
- Federal Hill House Association ..... P. L. 1916, c. 1459, April 10
- High School Athletic Field ..... P. L. 1912, c. 865, April 26
- Hope Street High School Athletic Field Association exempt from taxation ..... P. L. 1908, c. 1605, April 16
- Neutakoncanut Hill Park exempt from taxation ..... P. L. 1906, c. 1380, April 12
- Off-street parking facilities: See PARKING
- Providence Hebrew Day School, Inc. ..... P. L. 1952, S. 303

Improving streets ..... P. L. 1918, c. 1670

Parcel of land liable only for its own tax ..... P. L. 1898, c. 586, June 15

Property located in Town of Scituate ..... P. L. 1929, c. 1443

Tax assessors ..... P. L. 1913, c. 979, April 29

Tax on street railways ..... P. L. 1898, c. 580, June 15

Transient lodging

- Hotel, motel tax imposed ..... P. L. 1980, c. 84

Tenements

Tenement and lodginghouses, how to be constructed and conducted ..... P. L. 1885, c. 502, April 24

Theatres and Shows.....P. L. 1916, c. 1401, April 15

Emergency lighting.....P. L. 1922, c. 2252

Thomas Davis Estate

Purchase.....P. L. 1890, c. 873, April 25

Thomas Ruona

Claim of heirs.....P. L. 1897, c. 511, May 27

Traffic

Bond issue for traffic signal installation and traffic control.....P. L. 1950, c. 2594

Parking: See that title

Traffic engineering department

Authority to establish.....P. L. 1948, c. 2067

Trampolines

Operation.....P. L. 1962, c. 121

Trees

Preservation of shade trees.....P. L. 1907, c. 1479, April 23; P. L. 1908, c. 1602, March 25; P. L. 1925, c. 693

Tunnels

Tunnel Act.....P. L. 1912, April 26

Under East River Street, authorized.....P. L. 1902, c. 1073, Dec. 12

U

Undertakers.....P. L. 1885, c. 499, April 24

Unemployment Relief Bonds.....P. L. 1940, c. 835

Union Trust Company

Substitute loan for Union Trust Company deposit.....P. L. 1908, c. 1600, April 28

V

Validation of Conveyances.....P. L. 1942, c. 1182

Vendors.....P. L. 1885, c. 501, April 24

Veterans

See ARMED SERVICE

Victualling Houses

See LICENSES AND PERMITS

Vouchers ..... P. L. 1879, c. 744, March 10

W

Ward Room Loan ..... P. L. 1906, c. 1378, April 5; P. L. 1908, c. 1599, April 28

Wards

Commission to divide wards into districts ..... P. L. 1909, c. 464, March 9

Watchmen ..... P. L. 1845, Jan. 16

City watchmen ..... P. L. 1880, c. 823, May 27

Water

Bonds ..... P. L. 1875, c. 430, Feb. 16; P. L. 1876, c. 528, April 12; P. L. 1886, c. 577, April 30; P. L. 1891, c. 945, April 30; P. L. 1893, c. 1226, March 2

Distribution reservoir ..... P. L. 1959, c. 103; P. L. 1960, c. 102

Immediate suit on water bonds ..... P. L. 1871, c. 941, March 24

Improvements to water purification works in Scituate, Rhode Island ..... P. L. 1959, c. 142

Improvement to water purification works ..... P. L. 1959, c. 52, 102; P. L. 1960, c. 92

Payable in gold ..... P. L. 1872, c. 967, Jan. 25; P. L. 1876, c. 573, June 14

Water supply improvements ..... P. L. 1965, c. 46

Condemnation of reservoir and water supply ..... P. L. 1921, cc. 2113, 2115

Easement for pipelines ..... P. L. 1926, c. 878

Land for waterwork ..... P. L. 1871, c. 897, Jan. 24

Refund portion of water loan ..... P. L. 1900, c. 764, April 12

Reservoirs

Construction ..... P. L. 1925, c. 697

Supply of pure water....P. L. 1866, c. 640, March 8; P. L. 1921, c. 2108; P. L. 1931, c. 1815; P. L. 1932, c. 1966; P. L. 1936, c. 2316; P. L. 1947, c. 1897

Aqueduct and tunnel, acquisition of land....P. L. 1965, c. 40

Improvements....P. L. 1965, c. 46

Taking of land for water supply purposes....P. L. 1947, c. 1857; P. L. 1956, c. 3727

Title of land acquired....P. L. 1925, c. 701

Water Act....P. L. 1915, c. 1278, April 21; P. L. 1964, c. 91; P. L. 1963, c. 158; P. L. 1966, c. 5

Water supply board....P. L. 1925, c. 696; P. L. 1942, c. 1243

Weights and Measures

Department created....P. L. 1925, c. 683

Welfare

Bond issue for welfare purposes....P. L. 1950, c. 2545

Wharves, Docks, Seawalls

Bonds....P. L. 1948, c. 2073; P. L. 1954 c. 3359; P. L. 1971, c. 79; P. L. 1971, c. 251; P. L. 1975, c. 92

Dorrance Street Wharf....P. L. 1897, c. 480, Feb. 4

Development of municipal wharf....P. L. 1916, c. 1407, April 10; P. L. 1918, c. 1680

In Cove....P. L. 1841, Oct. 27

Municipal wharf at Field's Point....P. L. 1922, c. 2250

To build a retaining wall from Hill's Wharf to Sassafras Point....P. L. 1891, c. 997, May 29

Port. See that title

Wiretapping

Investigation....Resolution 1941

Workhouse Lands

Sale....P. L. 1938, c. 2596

APPENDIX D

Z

Zoning

Authorizing ordinances ..... P. L. 1921, c. 2069

CODE COMPARATIVE TABLE

Note—This is a chronological and/or numerical listing of the laws of the municipality used in this Code. Repealed or superseded laws and any omitted materials are not reflected in this table.

RULES OF BOARD OF ALDERMEN:

Chapter/Rule		Section this Code
1	23	12-61
		12-62
	24	12-71
	25	12-64
	26	12-74
	27	12-75
	28	12-72
	29	12-73
	31—33	6-1—
		6-3
	34-A	6-4
	49	10-4
		10-2
	50	12-91
	51	12-92
	53—55	12-94—
		12-96
	56	12-98
	57—59	5-32—
		5-34
	60	4-5
	61—63	5-35
2	1	14-43
	2	14-44
		14-45
		14-47
	3	14-48
		14-51
	4	14-49

RULES OF BOARD OF ALDERMEN:

Chapter/Rule		Section this Code
		14-50
	5	14-52
	7	14-53
	13	14-111
		14-112
	14	14-113
	15	14-114
	16	14-115
		14-116
	17	14-117
	18	17-3
	20	14-206
	21	14-207
		14-212
	22	14-110
	23	12-93
	24	14-156
3	1	17-26
	2	10-60
	7	2-220
	8	2-221
	9—13	2-223—2-227
	14	2-222
4	3	12-33
7		10-49—10-59
		10-61
8	1—7	10-104—10-110

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
1	1	1-1
	4	2-1
	5	1-7
	6	2-2
	7	2-3
	8	21-1
	9	1-5
2	1	2-24
	2	2-25
	3	2-26
	4	2-23
		2-28
	5—	2-29—
	10	2-34
	10	17-75
	11	17-77
	13	17-68
		17-78
	14	2-35
	15	2-21
	16	2-4
	17	2-5
	17.1	21-46
	17.2	21-47
	18—	21-27—
	19	21-29
	21	6-6
		21-30
	22—	21-31—
	31	21-42
	31.1	21-44
	32	21-43
	33	21-45
	34	21-26
	35	21-48
	36	21-50
	37	21-51

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section	Section this Code
38	21-64
39	21-65
40	21-70
41	21-73
42	21-66
43	21-67
43.1	21-71
43.2	21-72
43.3	21-68
44—	21-78—
56	21-90
57	2-98
58	2-100
59	2-99
60	2-46
61	2-47
62	2-49
63	2-48
64—	2-50—
67	2-53
68	2-54
69—	2-65—
76	2-72
77	21-7
	21-8
78	2-85
	17-54
	21-9
79	21-8
80	21-5
81	2-73
82	21-3
83	21-2
84	21-4
84½	21-12
84.1	21-6
85	2-84

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section	Section this Code
86	2-86
87	21-38
88	2-87
88.1—	2-286—
88.5	2-290
89—	2-111—
92	2-114
93	23-11
94	23-59
95	23-66
96	23-67
97	2-116
98	2-115
99	2-118
100	23-10
101	2-117
102—	2-131—
107	2-136
108	2-139
109	2-137
110	2-138
111	2-140
112	2-194
113	2-195
114	2-170
115	2-171
116	2-175
117	2-179
118	2-180
119	2-178
120	2-176
121	2-177
122—	2-181—
124	2-183
125	2-208
126	26-6
127	26-7

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section	Section this Code
128	26-9
129	26-8
130	26-1
131	26-2
132	2-206
133—	26-3—
135	26-5
136	2-207
137	26-11
137.1	26-10
138	26-12
139—	2-219—
141	2-221
142—	2-223—
146	2-227
147	2-222
149	21-15
150	2-297
151	2-298
	2-299
152	2-300
	2-301
153	2-296
153.1—	2-279—
153.3	2-281
154	17-26
155	21-49
156	17-26
157—	17-1—
161	17-5
162	17-11
	17-55
162.1—	17-12—
162.3	17-14
162.4	17-59
163	17-10
163.1	17-91

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section	Section this Code
163.2	17-92
163.3	17-94
163.4	17-93
164	2-9
165	2-10
165.1	17-57
165.2	17-58
166	17-17
167	17-7
168	17-8
169	17-6
171	17-76
172	17-20
	17-22
173	17-21
173.1	17-23
173.2	17-24
175	2-11
176.1	17-9
176.2	17-56
176.3	17-85
176.4	17-18
177	21-10
178	21-39
179	21-11
179½	2-27
180—	17-36—
187	17-43
187.1—	17-102—
187.9	17-110
187.8	17-112
187.9	17-111
187.12—	17-118—
187.16	17-122
187.17	17-139
	17-141
187.18	17-140

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	187.19	17-142
	187.20—	17-128—
	187.25	17-133
	188	2-151
	189	2-153
	190	2-154
	191	2-156
	192	2-158
	193	2-152
	194	2-155
	195	2-157
	196	2-159
	197	15-2
	198	15-3—
		15-7
	199	15-18
		15-21
		15-22
	200	14-8
	201	2-119
	202	2-120
3	1	3-1
		3-2
	2	14-10
	3	14-11
	4	3-4
	5	3-3
	6	3-5
4	1—3	4-2—
		4-4
	4	4-1
	5—7	4-19—
		4-21
	7.1	4-23
	8	4-22
	9	4-24
	10	4-26

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	11—13	5-32—5-34
	14	4-5
	15	5-35
5	1	14-23
	1.1	14-24
	2	14-22
	2(6)	14-28
	3	14-30
	4	14-29
	5	14-27
	6	14-25
	7	14-31
	8	14-32
	9	14-26
6	1	15-74
	2	15-70—15-73
	3	15-75
7	1—3	6-1—6-3
	4.1	6-4
	5	6-5
		6-17
	6	6-18
	7	6-19
	8	6-34
	9	6-22
		6-23
	10	6-20
	11	6-21
	12	6-25
	13	6-24
	14	6-26
	15	6-27
	16	6-28
	17	6-35

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	18	6-33
	19	6-29
	20	6-30
	22	6-31
	23	6-32
8	1—4	2-240—2-243
	5—10	2-249—2-254
	12	2-247
	13	2-248
	14	2-244
	15	2-245
	16	2-255
8A	1	7-1
	2	7-2
		7-3
	3—	7-4—
	5	7-6
	6	7-14
	7	7-15
	8—11	7-10—7-13
8B	1—9	5-13—5-21
9	1—7	8-1—8-7
10	1—6	14-85—14-90
	7	14-93
	8	14-91
	9	14-92
	10—	14-94—
	14	14-98
11	1	9-54
		9-55
		9-56

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	2	9-57
		9-58
		9-59
	3—5	9-60—
		9-62
	6—19	9-64—
		9-77
12	1—4	9-1—
		9-4
	4	9-5
	5	17-96
	6	17-79
	7	17-15
	8	17-16
	30½	9-6
	30.1—	9-22—
	30.7	9-28
	30.8	9-30
	30.9	9-33
	30.10(A)	9-34
	30.11	9-35
	30.12	9-38
	30.13	9-39
	30.14	9-36
	30.15	9-63
	30.16	9-7
	30.17	9-40
	30.18	9-41
	30.19	9-42
	30.20	9-8
	30.21	9-9
	30.22(a)	9-37
	30.22(b)	9-10
	30.23	9-43
	30.24	9-29
	30.25	9-11
	30.26	9-31

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	30.27	9-32
	31.10(B)—(D)	5-2
13	1	2-172
	2	2-173
	3	2-309
	4	2-174
	5	2-327
	6	2-328
	7—9	2-311—2-313
	10	2-310
	11	2-315
	12	2-316
	13	2-329
	14—21	2-319—2-326
	22	2-317
	23	2-308
	24	2-318
	25	2-314
	26	2-6
	27	2-7
	28	2-8
14	1	10-1
	2—5	10-7—10-10
	6	10-30
	7	10-2 10-4
	8	10-3
	9—15	10-104—10-110
	16(a)—(d), (f)—(m), (o)	10-72
	17	10-84
	18—21	10-74—

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
		10-77
	21.1	10-85
	22—26	10-79—10-83
	27—31	10-86—10-90
	32	10-78
	33	10-21
	34	10-23
		10-24
		10-26
	35	10-22
	36	10-33
	37	10-31
	38	10-32
	39	10-29
	40	10-28
	41—43	10-34—10-36
	43	10-38
	44	10-27
		10-37
	45	10-25
15	1	12-47
	2	12-49
	3	12-51
	4	12-53
	5	12-55
	6	12-58
	7	12-54
	8	12-61
		12-62
	9	12-64
	10	12-71
	11	12-74
	12	12-75
	13	12-72

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	14	12-73
	15	12-59
	16	12-56
	17	12-17
	18	4-6
	19	4-7
		10-5
	20	4-8
		10-6
	12—23	15-76—
		12-78
	24	12-60
	25	12-46
	26	12-50
	27	12-57
	28	12-79
16	1	11-2
	2	11-4
	3	11-5
	4	11-14
	5	11-9
	6	11-10
	7	11-6
	8	11-11
	9	11-8
	10	11-13
	11	11-20
	12	11-17
	13	11-7
	14	11-15
	15	11-3
	16	11-16
	17	11-12
	18	11-1
	19	11-18
	20	11-19
17	1	12-2

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	2	12-3
	3	12-1
	4—	12-4—
	10	12-10
	11	12-14
	12	12-12
	13	12-13
	14	12-11
	31—	12-110—
	33.1	12-113
	34—	12-114—
	37	12-117
	38	12-119
	39	12-118
	40	12-120
17A	2	13-1
		13-2
	3—	13-3—
	5	13-5
	6—	13-7—
	9	13-10
	10	13-15
	11	13-16
	12	13-13
	13	13-11
	14	13-12
	15	13-14
	16	13-21
	17	13-6
	18	13-24
	19	13-22
	20	13-17
	21	13-18
	22	13-19
	23	13-201
	24	13-23
	25—	13-35—

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	37	13-47
	38—	13-88—
	51	13-101
	52—	13-58—
	60	13-66
	61	13-67
		13-68
	62—	13-69—
	66	13-73
	67	13-76
	68	13-74
	69	13-75
	70	13-77
	71—	13-112—
	79	13-120
	80—	13-131—
	85	13-136
	86—	13-147—
	94	13-155
	95—	13-166—
	100	13-171
	101—	13-182—
	108	13-189
	109	13-200
	110—	13-202—
	119	13-211
	120—	13-222—
	141	13-243
	142	13-20
18	1—	14-127—
	5	14-131
	6—	14-134—
	12	14-140
	13	14-132
	14	14-133
	15—	14-141
	17	14-144

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
19	1	14-206
	2	14-207
		14-212
	3	14-156
	4	14-111
		14-112
	5—	14-113—
	9	14-117
	10	14-110
	11	14-43
	12	14-44
		14-45
	13	14-47
	14	14-48
		14-51
	15	14-49
		14-50
	16	14-52
	17	14-53
20	1	10-58
	2—	10-49—
	7	10-54
	8	10-61
	9—	10-55—
	11	10-57
	12	10-59
	13	10-60
21	1	24-47
	2	24-49
	3	24-52
	4	24-51
	5	24-48
		24-54
	6	24-53
		24-55
	7	24-56
		24-60

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	8	24-57
	9	24-50
	10	24-58
	11	24-61
	12	24-59
	13—	24-62—
	16	24-65
	17	24-69
	18	24-70
	19—	24-73—
	20	24-75
	22	24-78
	23	24-79
	24	24-76
	25	24-77
	26	24-85
22	1—	15-86—
	7	15-92
23	1	16-3
	2	16-7
	3	16-4
		16-5
	3.1	16-1
	3.2	14-6
		14-7
	4	16-6
	5—8	16-10—
		16-13
	10	14-9
	11	5-2
	12	25-1
	13	25-2
	14	16-14
	15	16-15
	16	14-1
	17	16-16
	18	16-17

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	19	14-196
	20	14-193—14-195
	21	16-2
	22	14-2—14-5
23A	1—7	14-65—14-71
	8	14-73
	9	14-72
		14-74
24	1	18-38
	2	18-39
	3	18-36
	4	18-37
	5	18-29
	6	18-35
	7	18-32
	7.1—	18-50—
	7.11	18-60
	7.12	18-61—18-64
	8	18-30
	9	18-33
	10	18-34
	11	18-31
	12	18-1
	13	18-2
	15	18-6
	16	18-4
	17	18-5
	18—	18-7—
	20	18-9
	22	18-10—18-12
	23	18-13
		18-14

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
		23-29
	24	18-15
		18-16
	25	18-17
		23-27
	26	18-18
25	1—	14-171—
	7	14-177
	8	14-179
	9	14-178
	10	14-181
	11	14-180
	13	14-182
26	2	2-235
	3	2-233
	4	23-102
	5	23-111
	6	23-125
	8—	23-98—
	11	23-101
	12	12-234
		23-103
	13	23-104
	14	23-105
	15	23-108
	16	23-106
	17	23-114
	18	23-109
	19	23-112
	20	23-113
	21	23-116
	22	23-115
	23—	23-117—
	27	23-121
	27	23-126
	28	23-122
	29	23-124

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	30	23-127
	31	23-123
	32	23-141
	33	23-130
	34	23-128
	35	23-129
	36	23-131
	37	23-132
	38	23-107
	39	23-133
		23-134
	40	23-135
	41	23-110
	42	23-142
	43	23-143
	44	23-136
	45—	23-138—
	47	23-140
	48	23-137
27	1	12-29
	2	12-30
	3	12-32
	4	12-28
	5	12-31
	8—	12-33—
	10	12-35
28	1—	12-90—
	7	12-96
	8	12-16
	9—	12-97—
	11	12-99
	12	12-15
29	1—	23-42—
	3	23-44
	5	23-40
		23-4
	7—	23-45—

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	10	23-48
30	1	19-24
		24-68
	2	24-66
	3	24-67
	4	24-71
	6	24-72
	7	24-86
	8	19-23
	9	19-25
	10	19-26
	11	19-1
	12—	19-13—
	15	19-16
	16	19-18
	17	19-17
	18	19-19
	19	19-20
		24-80
	20	19-21
	21	19-22
	22	19-3
		24-83
	23	19-27
		24-82
	24	19-11
	25	19-12
		24-84
	26	19-2
		24-81
	27	19-4
	28	19-5
	29	19-9
	30	19-7
	31	19-6
	32	19-8
		19-10

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
30A	1—	20-1—
	19	20-19
31	1	22-2
	2	22-6
	3—	22-3—
	5	22-5
	6	22-1
	7	22-7
	8	22-9
	9	22-10
	10	22-14
	11	22-12
	12	22-13
	13	22-11
	14	22-8
32	1—	2-335—
	14	2-348
32A	1	25-50
	2	25-51
		25-52
	3—	25-53—
	5	25-55
	7	25-57
	8	25-60
	9	25-56
	10	25-58
		25-59
	11	25-61
	12	25-62
32B	1	24-97
	2	24-103
	3	24-98
		24-99
33	1	23-60
		23-63
	2	23-61
		23-64

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section	Section this Code
	23-65
3	23-62
4	23-68
5	23-4
6	23-6
7	23-9
8	23-7
9	23-8
10	23-1
11	23-2
12—	23-155—
15	23-158
16—	23-160—
21	23-165
22	23-159
23	23-166
24	23-154
25	23-155
26	23-157
27	23-158
28	23-162
29	23-166
30	23-154
31	23-154
32	23-30
33	23-12
34	23-18
35	23-20
36	23-21
37	23-19
38	23-13
	23-14
39	23-16
40	23-3
	23-17
41	23-22
42	23-23

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	43	23-24
	44	23-28
	45	23-26
	47	23-5
	48	23-25
	49	23-15
34	1—	24-1—
	3	24-3
	4	24-5
	5	24-6
		24-11
	6	24-7
	7	24-4
	8	24-8
		24-9
		24-10
	9	24-20
	10—	24-12—
	12	24-14
	13	24-19
	14	24-18
	15	24-15
	16—18	24-30
	19	24-32
	20	24-31
	21	24-33
	22	24-33
	23	24-34
	24	24-36
	25	24-35
	26	24-33
	27	24-33
	28	24-17
35	1	25-32
	2	25-33
	5	25-36
	6	25-37

REVISED ORDINANCES 1946 AS AMENDED:

Chapter/Section		Section this Code
	7	25-39
	8	25-38
	9	25-31
	10	25-13
	11	25-14
	12	25-15
	13—	25-16—
	17	25-20
38	1	25-34
		25-35

Ordinance Year	Chapter	Section	Disposition this Code
1914	1	1	4-2
		2	4-3
		3	4-2
		4	4-4
		5	4-6
		6	4-7
			10-5
		7	4-8
			10-6
	2	1	14-23
		2	14-22
			14-28
		48	21-82
	3	1	16-16
		2	16-17
	4	1	14-9
	6	2	21-27—
			21-29
		3	21-30
		4	21-31—
			21-37
		5	21-41—
			21-43
		6	21-26
		9	21-50
			21-51
	7	1	18-31
		2	18-32

Ordinance Year	Chapter	Section	Disposition this Code
		3	18-30
		4	18-33
		5	18-34
		7	18-35
	8	2	12-4
	9	2	17-37
		3	17-38
		4	17-39
		5	17-40
			17-41
		7	14-42
	10	1—4	23-155—23-158
		5—10	23-160—23-165
		11	23-159
		12	23-166
		13	23-155
		14	23-157
		15	23-158
		16	23-162
		17	23-166
	11	1	2-4
	13	1	23-45—23-48
	14	4	2-29
			2-30
			2-31
	15	1	2-21
		2	2-5
		3	2-3
	16	2	12-35
	17	2	18-1
	18	1	4-24
	19	1	9-54
			9-55
			9-56
		2	9-57
			9-58
			9-59
			9-60
			9-61
			9-62
		3—5	9-64—9-66

Ordinance Year	Chapter	Section	Disposition this Code
		7	9-68
		8	9-69
		10	9-70
		12	9-71
	20	1	21-1
		5	2-28
		15	21-39
		22	21-11
		30	2-86
		37	2-84
		40	2-32
		41	2-33
		43	2-65
		44	2-66
			2-67
		46	2-69
		47	2-71
		48	2-72
		53	21-2
			21-3
		55	2-70
		56	21-49
		57	21-90
		58	2-85
		59	21-64
		60	21-65
	21	5	9-1
		7	9-6
		9	9-3
		11	9-4
			9-5
		13	17-79
	24	2	24-1
			24-18
		9	24-15
	25	1	24-30—
			24-32
		2	24-17
	25	2	24-33—
			24-36
	26	1	11-1
	27	1	11-2
		2	11-4
		3	11-5
		4	11-14

Ordinance Year	Chapter	Section	Disposition this Code
		5	11-9
		6	11-10
		7	11-6
		8	11-11
		9	11-8
		10	11-13
		11	11-20
		12	11-17
		13	11-3
			11-7
			11-15
			11-16
		14	11-12
	28	1—	14-171—
		7	14-177
		8	14-178—
			14-181
		11	14-182
	30	1	23-1
		2	23-2
		3	2-118
		4	23-10
		5	23-4
		6	23-6—
			23-9
		7	12-77
		8	12-76
		9	12-78
		10	23-28
		11	16-13
		13	14-11
		16	15-74
		18	23-18
		21	23-20
		22	23-21
		23	23-19
		24	23-13
			23-14
		25	23-16
		26—28	23-22—
			23-24
		29	23-26
		30	23-3
		31	12-60
		34	23-5

Ordinance Year	Chapter	Section	Disposition this Code
		35, 36	3-4
		37	3-3
		38	23-25
	33	1	14-127
			14-129
			14-130
			14-132—
			14-143
		2	14-128
		3	14-131
		5	14-144
	34	2	17-4
	35	1	16-6
		2	16-4
			16-5
		3	16-7
	36	2	8-7
	37	1	6-5
			6-17
			17-36
		2	6-18
			6-19
		3	6-34
		4	6-22
			6-23
		5	6-20
		6	6-21
		7	6-25
		8	6-24
		9—	6-26—
		11	6-28
		12	6-35
		13	6-33
		14, 15	6-29
		16	6-30
		17	6-6
		18—21	6-31
		22	6-32
	38	1	17-3
		4	17-1
		6	17-2
		9	17-5
		11	2-297
		12	2-46—
			2-49

Ordinance Year	Chapter	Section	Disposition this Code
			2-51—
			2-54
		17	2-98
		18	2-100
		20	26-7
		21	26-9
		22	26-8
		26	17-25
		30	2-195
		32	26-1
		33	26-2
		34	2-206
		35	2-207
			26-3—
			26-5
		36—38	26-11
		39	26-12
	40	2	18-36—
			18-39
		8	18-6
		10	18-4
		11	18-7
		12	18-8
		14	18-10—
			18-12
		15	18-13
			18-14
			23-29
		16	18-15
			18-16
		17	18-17
			23-27
		19	18-18
	41	1	2-26
	44	1	8-1
	45	4	12-28
	47	1	23-43
		2	23-42
		4	2-314
		7	23-44
		8	23-17
		9	15-1
	48	1	4-1
	49	1	2-117
		2	25-36

Ordinance Year	Chapter	Section	Disposition this Code
		3	25-37
		8	2-111
		11	2-113
			2-114
		12	2-112
		13	23-11
		14	23-59
			23-66
			23-67
		15	2-115
		16	23-136
			23-138
		17	23-139
			23-140
		18	23-137
		19—21	9-74—
			9-76
		22	2-131—
			2-134
		23	2-135
		24	2-136
		27	2-140
		28	2-137—
			2-139
		29	25-39
	51	1	19-24
			19-26
			24-66—
			24-68
			24-71
			24-72
			24-86
		2	19-23
		6	19-1
		11	19-13
			19-14
		12	19-15
		13	19-16
		14	19-18
		15	19-17
		16	19-19
		17	19-20
			24-80
		18	19-21
		19	19-22

Ordinance Year	Chapter	Section	Disposition this Code
		20	19-3
			24-83
		21	19-27
			24-82
		23	19-1
		24	19-11
		25	19-12
			24-84
		26	19-2
			24-81
		27	19-4
			19-6
		28	19-6
			19-7
			19-9
	52	8	12-1
	54	1	16-3
	55	5	17-54
			21-9
		2	22-8
		3	22-2
		4	22-3
			22-6
		5	22-4
		6	22-5
		7	22-1
		8	22-7
		9	22-9
		10	22-10
		11	22-14
		12	22-12
		13	22-13
		14	22-11
	61	2	21-78
		6	21-83—
			21-86
		7—9	21-87—
			21-89
	63	1	2-296
		4	23-98
		5	23-99
		6	23-100
			23-101
			23-103
			23-104

Ordinance Year	Chapter	Section	Disposition this Code
		7	23-105
		8	23-108
		9	23-106
			23-114
		10	23-109
		11	23-112
			23-113
		12	23-115
			23-116
		13—16	23-117—
			23-120
		19	23-121
		20	23-122
		21	23-124
		22	23-127
		23	23-123
		24	23-141
		25	23-130
		26	23-128
			23-129
		27	23-131
		28	23-132
		29	23-107
		30	23-133
			23-134
		31	23-135
		32	23-110
		33	23-142
1915	68	1	17-8
	90	1—	2-6—
		3	2-8
	92	1	23-30
	93	1	24-47
	94	1	21-48
	96	5	24-20
	101	1	9-67
	106	2	23-102
			23-111
		3	23-125
			23-126
		4	23-143
		7	19-25
		8	19-4
			19-5
		9	19-8

Ordinance Year	Chapter	Section	Disposition this Code
			19-10
1916	127	1	12-5
		2	12-6
			12-7
	129	1	18-5
	141	1—	12-8—
		3	12-10
1917	175	1	23-45—
			23-48
	183	1	4-26
1918	186	1	23-68
	193	1	25-38
1919	211	2	10-10
1920	248	1	5-2
		2	24-53
			24-55
		3	24-56—
			24-63
	276	1	24-48
			24-49
			24-51
			24-52
			24-54
		4	24-64
			24-65
		5	24-69
		6	24-70
		7	24-73—
			24-79
		9	24-50
		10	24-85
1921	288	1	17-17
	294	1	25-1
	296	1	21-45
	297	1	21-73
	304		10-30
		2	24-1
		3	24-3
		4	24-4
			24-7
		5	24-8—
			24-10
	310		App. C
	313	1	21-40
	314	1	2-194

Ordinance Year	Chapter	Section	Disposition this Code
1922	322		App. C
	329	1	2-176—
			2-183
1923	360	2	9-2
		3	17-96
		4	17-15
			17-16
	365	1	2-170
			2-171
			2-175
	387		App. C
1924	393	1	12-29
		2	12-30
		3	12-32
	420		App. C
1925	455	1	8-5
	470		App. C
	475	1	18-9
	492	1	2-317
		3	2-318
1926	501	1	2-99
	504	1	17-20
			17-22
		2	17-21
		3	14-12
	506	1—4	14-2—
			14-5
	521	1	15-70—
			15-73
1927	558	1	2-208
	568	1	12-49
			12-51
			12-53
	579	1	23-154
	583	1	2-219
			2-220
			24-2
			24-5
			24-6
			24-11
	595	1	26-6
	592		App. C
1928	601	1	24-12—
			24-14
			24-19

Ordinance Year	Chapter	Section	Disposition this Code
	622	1	21-66
	641	1	12-34
1929	689	1	8-6
	700	2	2-235
		3	2-233
			2-234
	712	1	10-7—
			10-9
	713	1	17-36
	714	1—	8-2—
		3	8-4
	716	1	3-1
			3-2
			14-10
	727	1	23-60—
			23-65
	748	1	17-42
1930	772	1	16-2
	776	1	17-75
			17-76
		2	17-75
	791	1	14-25
			14-27
			14-29—
			14-32
1931	800	1, 2	14-1
	801	1	17-7
	804	1	2-182
	816	1	9-72
	819		App. C
	824	1	18-29
	825	1, 2	23-40
		3	23-41
1932	832		App. C
	839		App. C
	840		App. C
	841		App. C
	843	1	4-19—
			4-22
1933	853		App. C
	860	1	17-6
	865		App. C
	892		App. C
1935	909	1	2-308
1936	930	1	14-32

Ordinance Year	Chapter	Section	Disposition this Code
	931	1	21-5
		2	2-73
1937	938	1	21-38
	943	2	17-11
			17-55
	945	1	21-12
	946	1	21-65
1938	954	1	15-75
	955	1	14-74
	963	1	17-10
			2-9
1939	972	1, 2	2-10
	978	1	12-31
	982		App. C
	984	1	12-12—
			12-17
			12-47
			12-54—
			12-56
			12-58
			12-59
			12-90
			12-97
			12-99
			16-15
			25-2
1940	994	1	2-11
	1000		App. C
	1026	1	2-68
	1027		App. C
1941	1048	1	2-2
		2	2-1
		3	1-7
	1050	1	11-18
		2	11-19
	1052		App. C
	1056	1	2-24
		2	2-25
	1057	1—	2-335—
		14	2-348
	1058	1	2-172
		2	2-173
		3	2-309
		4	2-174
		5	2-327

Ordinance Year	Chapter	Section	Disposition this Code
		6	2-328
		7	2-312
		8	2-311
		9	2-313
		10	2-310
		11	2-315
		12	2-316
		13	2-329
		14—	2-319—
		21	2-326
	1060	1	9-77
	1061		App. C
	1062		App. C
	1072	1	12-2
	1073	1	2-34
			17-67
			17-68
			17-77
			17-78
	1082	1	2-116
1942	1122	1—	16-10—
		3	16-12
	1138	1	2-27
	1147		App. C
	1158	1—	15-86—
		7	15-92
	1165	1	25-31
		3	25-32—
			25-35
	1171	1	2-23
1943	1173		App. C
	1174	12	2-50
	1176	1	14-193—
			14-196
	1178	1	2-298—
			2-301
	1188	1	12-3
	1196	1	14-85
			14-86
		2	14-87
			14-88
		3	14-89
		4	14-90
			14-93
		5	14-91

Ordinance Year	Chapter	Section	Disposition this Code
		6	14-92
		7—	14-94—
		9	14-96
		11	14-97
		14	14-98
	1197	1	9-73
	1199	1	16-14
	1203		App. C
1944	1234	1	21-70
	1248	1	21-8
	1254	1	2-35
	1260		App. C
	1269	1	2-240— 2-243
		2	2-249— 2-254
		3	2-244
			2-245
			2-247
			2-248
		4	2-255
	1281	1	23-12
	1293	1—4	21-67
	1301		App. C
1945	1335	1	21-79— 21-81
	1352		App. C
	1364	1	17-36
	1372	1, 2	21-15
	1386	1	21-4
	1401	1	17-36
1946	1451	1	2-87
	1486		App. C
	1503	1	10-58
	1525	1	25-50
		2	25-51
			25-52
		3—	25-53—
		5	25-55
		7	25-57
			25-60
		8	25-56
		9	25-58
			25-59
		10	25-61

Ordinance Year	Chapter	Section	Disposition this Code
		12	25-62
	1526	1	21-46
		2	21-47
	1546	1	14-65—
			14-68
1947	1582	1	17-7
	1617	1	9-22—
			9-24
		2—	9-25—
		5	9-28
			9-30
		6	9-33
		7	5-2
			9-34
		8	9-35
		9	9-38
		10	9-39
		11	9-36
		13	9-63
		14	9-7
		15	9-40
			9-41
		16	9-42
		17—	9-8—
		19	9-10
			9-37
		20	9-43
		21	9-29
		22	9-11
		23	9-31
		24	9-32
	1619	1	12-78
	1621	1	18-50
			18-51
		2—8	18-52—18-59
		9	18-60—18-64
	1622	1	2-182
	1638		App. C
	1649	1	25-50—
			25-62
	1653		App. C
	1668	2	6-4
	1711	1—	17-12—
		3	17-14
		4	17-59

Ordinance Year	Chapter	Section	Disposition this Code
		5	17-57
1948	60	1—	12-110—
		3	12-112
		4—	12-114—
		7	12-117
		8	12-119
		9	12-118
			12-120
	68	1—	2-286—
		5	2-290
	85		App. C
	97	1	17-57
	103	1	20-1—
			20-18
	127	1, 2	App. A
	163	1	2-151
			2-153
		2	2-154
			2-156
		3	2-156
		4	2-158
		5	2-152
		6	2-155
		7	2-157
		8	2-159
		9	15-2
	187	1	10-21
		2	10-23
			10-24
			10-26
		3	10-22
		4	10-33
		5	10-31
		6	10-32
		7	10-29
		8	10-28
		9	10-34
		10	10-35
		11	10-36
			10-38
	187	12	10-27
			10-37
		13	10-25
	190	1	2-23
	194		App. C

Ordinance Year	Chapter	Section	Disposition this Code
	195		App. C
	196		App. C
1949	215	1	2-153
	216	1	2-308
	217	1	5-2
			9-34
	226	1	25-50
	234	1	14-69
		2	14-70
		3	14-72
		4	17-71
		5	14-73
	245		App. C
	246		App. C
	247		App. C
	253	1	14-23
		2	14-24
	274	1	17-91
		2	17-92
		5	17-95
	312	1	24-97
		2	24-98—24-102
		3	24-103
	324	1	21-70
	325		App. B
	326		App. C
	327		App. C
	328		App. C
	329		App. C
1950	337	1—3	App. A
	348	1	25-13—25-17
		2	25-18—25-20
	350	1	12-50
		2	12-46
		3	12-57
		4	12-63
			12-79
	358	1	10-72
		2	10-84
		3	10-73—10-77
			10-91—

Ordinance Year	Chapter	Section	Disposition this Code
			10-93
		4	10-79
		5—8	10-80—10-83
		9—13	10-86—10-90
		14	10-78
	360	1	2-72
	393	1	2-69
	394—402		App. C
	418	1, 2	17-56
	419	1, 2	17-9
	421	1	10-54
			10-55
			10-57
1951	455	1—	17-102—
		9	17-110
		10	17-112
		11	17-111
	456	1—3	21-72
	457	1—3	21-71
	472	1	10-77
			10-85
	474		App. B
	513	1	9-10
			9-37
	532	1	24-71
	538	1	2-156
	549	1	17-75
	550	1	23-8
1952	572		17-102
	573	1	2-23
	575	1	17-106
	583	1	7-1
		2	7-2
			7-3
		3—5	7-4—7-6
		6	7-13
			7-14
		7	7-15
		8—11	7-10—7-13
	584	1	26-10
	585	1	23-62

Ordinance Year	Chapter	Section	Disposition this Code
	605—609		App. C
	636	1	2-298—
			2-301
	675	1	21-68
1953	714	1	26-7
	737	1	17-139
			17-141
		2	17-140
		3	17-142
	749		App. B
	778	1—	17-118—
		5	17-122
	785	1	4-23
	794	1	16-1
	810—813		App. C
1954	842	1	2-279
			2-280
		2	2-281
	846	1	2-87
	853		App. B
	864	1	17-120
	875		App. C
	876		App. C
	892	1	2-153
	911	1	14-6
			14-7
	914	1	12-113
1955	932	1	17-13
	934	1	17-104
	935	1	21-44
	970	1	17-75
			17-76
1956	1008	1	14-22
	1033	1	15-2
		2	15-3—
			15-7
			15-18
			15-21
			15-22
	1040	1	13-1
		2	13-2
			13-3—
			13-16
			13-21
		3	13-35—

Ordinance Year	Chapter	Section	Disposition this Code
			13-47
		4	13-88—13-101
		5	13-58—13-77
		6	13-112—13-120
		7	13-131—13-136
		8	13-147—13-155
		9	13-166—13-171
		10	13-182—13-189
		11	13-200
			13-202—13-211
		12	13-222—13-243
		13	13-17—13-19
			13-22—13-24
			13-201
	1044		App. B
	1056	1	17-91
			17-94
	1057	1	17-58
	1062	1, 2	17-85
1957	1087	1	17-75
			17-76
	1088	1	17-91
	1097—1102		App. C
	1108	1	13-7
			13-8
			13-10
			13-16
	1137	1	14-8
	1142		App. B
	1149		14-128
	1155	1	2-240—2-245
			2-247—2-255

Ordinance Year	Chapter	Section	Disposition this Code
	1159	1	20-17
	1165	1	4-26
1958	1179—		
	1182		App. C
	1183	1	23-15
	1191		App. B
	1201	1	5-14
		2	5-14
		3	5-16
		4, 5	5-17
		6—	5-18—
		9	5-21
		10	5-2
	1207	1	13-20
	1210	1—	17-128—
		6	17-133
	1219	1	2-119
		2	2-120
	1230		App. B
	1233	1	2-156
1959	1244	1	21-6
	1249		App. B
	1250		App. B
	1272		App. B
	1273	1, 2	3-5
	1277—1281		App. C
	1293	1, 2	17-18
	1294	1	14-193— 14-195
	1307	1	12-34
		2	12-35
1960	1327	1	21-82 21-85
	1343	1	15-19 15-20
		3	15-23
		4	15-25
		5	15-24
	1355	1	17-13
	1356	1	17-59
	1357	1	21-71
		2	21-72
	1358	1	17-58
	1361—1364		App. C
	1366		App. B

Ordinance Year	Chapter	Section	Disposition this Code
	1367	1	20-2
	1375		App. B
	1383	1	17-59
	1384	1	17-91
	1387	1	20-19
1961	1398	1	17-92
	1405	1	14-26
	1406	1	17-20— 17-24
	1419		App. B
	1422	1	23-13
		2	23-14
	1433		App. B
	1434		App. B
	1438—1442		App. C
		1	15-2
			15-18
			15-21
			15-22
1962	1450	1	17-103
	1451		App. C
	1456	1	15-3— 15-7
	1457	1	17-94
			17-95
	1461	1	14-8
	1471	1	2-298
			2-299
	1472	1	2-300
			2-301
	1473	1—4	21-97— 21-100
		4	21-101
	1477	1—	14-220—
		6	14-225
		7	14-229
	1486		App. C
	1487		App. C
	1497		App. B
	1498		App. B
	1499	1, 2	16-9
	1500	1	8-8
	1506	1	21-71
		2	21-72
	1511		App. B

Ordinance Year	Chapter	Section	Disposition this Code
	1512		App. B
	1513	1	13-37
		2	13-38
	1514	1	13-116
			13-133
	1515	1	10-23
			10-24
			10-26
		3	10-27
	1516	1	10-73
			10-74—
			10-77
			10-91—
			10-93
	1517	1	12-63
	1570	1	2-264
1963	1533	1	10-76
	1536	1	7-7
		2	7-9
		3	7-8
	1543—1546		App. C
	1554		App. B
	1559	1	12-48
		2	12-65—
			12-69
		3	12-70
		4	12-52
		5	12-46
		6	12-79
	1563	1—3	23-79—
			23-81
		5	23-82
		6	23-87
	1570	2—5	2-265—
			2-268
	1575		App. B
	1576	1—	15-54—
		5	15-58
		7	15-59
1964	1589		App. B
	1590	1	10-21
		2	10-23
			10-24
	1591	1, 2	16-8
	1594	1—	17-60—

Ordinance Year	Chapter	Section	Disposition this Code
		4	17-63
	1595	1	21-71
	1596	1	17-58
	1602	1	17-58
	1603	1	21-72
	1614	1	21-72
	1616	1—	17-64—
		3	17-66
	1623	1	17-60
	1624	1	21-63
	1625—1629		App. C
	1631	1	21-98
	1632	1	2-22
	1633	1	2-23
	1642		App. B
	1665		App. B
	1666		App. B
	1667	1—5	17-80— 17-84
	1670		App. B
	1672	2	23-81
	1673	1—6	5-46— 5-51
		7	5-53
		8	5-54
		9	5-52
		10	17-69
	1676	1	17-57
1965	1684	1	17-57
	1685	1	17-82
	1689	1	4-25
	1695	1	15-38
		2(a)—(c)	15-39
		2(d)	15-37
		3—	15-40—
		6	15-43
		7	15-36
	1699	1	15-2— 15-7
	1706	1	21-13 21-14
	1709	1	23-31
	1711	1	17-148
		2	17-150
		3	17-149

Ordinance Year	Chapter	Section		Disposition this Code
		4		17-152
		5		17-153
		6		17-154
				17-155
		7		17-151
		8		17-156
	1719	1		17-58
	1722	1		24-16
	1728			App. B
	1729	1		17-93
	1733	1		23-81
	1734			App. B
	1736	1		23-83
				23-84
		3		23-85
		5(1), (2)		23-86
3-22-66	Res. 178			17-19
1966	1747	1		3-1
				3-2
	1756—1766			App. C
	1773			App. B
	1778	1		16-5
	1780	1	(8-16-66)	21-6
	1782	1		21-69
	1793	1		10-23
				10-24
				10-26
				10-27
				10-37
	1794			App. B
	1797			App. B
	1798	1		20-17
				20-18
		2		2-17
		3		20-18
	1800	1		10-27
				10-37
	1801	1		14-1
	1802	1		14-20
		2		14-21
1967	1813—1823			App. C
	1829	1—8		2-161—2-168
	1839	1, 2		18-19, 18-20
	1840	1, 2		14-197(a), (b)
	1841			App. B

Ordinance Year	Chapter	Section		Disposition this Code
	1855			App. B
	1860	1—6		17-118—17-123
		7	Rpld.	17-118—17-122
	1861	1, 3		2-36(a), (b)
	1867	1		15-38
		2(a)—(c)		15-38(a)—(c)
		2(d)		15-37
		3—6		15-40—15-43
		7		15-36
	1875	1		17-104
	1876	1		21-14
	1882			2-257—2-262
	1883	1—4		14-198—14-201
	1885	1		15-21
1968	68-11			App. B
	68-13	1		20-17
				App. B
	68-14	1		21-8(a)
	68-15	1		21-7
	68-26—68-28			App. C
	68-39	1		14-29
	68-41	1—22		4-31—4-52
	68-47	1		16-5
	68-48	1, 2		2-37
		3, 4		2-38, 2-39
	68-49	1		9-16
	68-71	1		15-18, 15-22
	68-74	1—9		2-101—2-109
	68-74	1		15-86—15-88
				15-90—15-92
1969	69-1			16-13, 23-28
	69-2			16-10
	69-5	1		12-117
	69-6	1		12-56
	69-7	1		26-7
	69-18	1		15-2(a)
	69-19	1		13-102
	69-25	1		21-1
	69-30			App. B
	69-31			App. C
	69-44	1		20-12
	69-47	1		20-13
	69-54	1		21-63
1970	70-7	1		12-117
		2		12-117.1

Ordinance Year	Chapter	Section		Disposition this Code
	70-8			App. B
	70-10	1		21-14
	70-12	1		27-2
	70-14			App. C
	70-15			App. C
	70-16			App. C
	70-17	1		17-75
	70-21	1	Rpld.	4-44(b)
	70-25			App. B
	70-31	1		2-300
	70-32	1		2-22
	70-33	1		2-23
	70-45	1		13-1, 13-3—13-5 13-7, 13-14—13-17 13-19, 13-20(a), 13-21, 13-22 13-35, 13-36 13-37(b), 13-39 13-40, 13-44—13-46, 13-70, 13-88, 13-90—13-101
	70-49			App. B
1971	71-1			App. C
	71-2			App. B
	71-3			App. C
	71-7	1—3, 5, 6		2-124—2-128
	71-23			App. C
	71-24			App. B
	71-25			App. B
	71-29			App. B
	71-36	1, 2		15-2(a), (b)
		3		15-3
		4		15-4(a)
	71-44	1		18-2
	71-46			App. B
	71-50			App. B
	71-53	1, 2		14-197(a)(4), (b)
	71-55	1, 2		16-13, 16-13.1
	71-56	1, 2		16-13, 16-13.1
	71-57	1		18-16

Ordinance Year	Chapter	Section	Disposition this Code
	71-58	1	18-21
	71-59	1	9-78
	71-60	1	9-44
	71-61		App. B
	71-62		App. B
	71-65	1	17-85(a)
	71-66	1	25-50
		2	25-52
		3	25-63
	71-71	1, 2	15-9
	71-72	1, 2	16-13, 16-13.1
1972	72-10	1	17-91
	72-11	1	18-5
	72-12	1—7	15-101—15-107
	72-17	1	21-14
	72-22	1, 2	27-2
	72-24	1, 2	2-7, 2-8
	72-28		App. B
	72-29		App. B
	72-30		App. B
	72-42		App. B
	72-45		App. B
	72-46		App. B
	72-47		App. B
	72-55		App. B
	72-58		App. B
	72-60		App. B
	72-63	1—4	2-20
	72-65	1	4-33
		2	4-34(a)
		3	4-35(b)
		4	4-36
		5	4-52
	72-66	1—6	17-118—17-123
	72-68		App. B
	72-71		App. B
	72-72		App. B
	72-73		App. B
	72-74	1—6	17-128—17-133
1973	73-1		App. B
	73-13	1, 2	16-13, 16-13.1
	73-14	1	18-29.1
	73-17	1	18-52
	73-24		App. B
	73-24.1		App. B

Ordinance Year	Chapter	Section	Disposition this Code
	73-25		App. B
	73-26		App. B
	73-40	1	4-33
		2	4-34(a)
		3	4-35(b)
		4	4-36
		5	4-52
	73-52		App. B
1974	74-7		App. B
	74-8		16-13.2
	74-11	1—5	14-236—14-240
	74-12	1—3	21-111—21-113
	74-18		App. B
	74-25	1	2-99
	74-26	1	1-10(c)
	74-27	1	16-14.1
	74-29		App. B
	74-35	1	23-6
	74-36	1, 2	16-14.2
	74-38		App. B
	74-39		App. B
	74-40		App. B
	74-41	1	13-48
	74-43	1—3	2-22, 2-23
	74-57	1	18-51
		2	18-54
	74-59	1—4	2-40
1975	75-6		App. B
	75-12	1—3	13-251—13-253
	75-13		App. B
	75-18		App. B
	75-31		App. B
1976	76-1		App. B
	76-4		App. B
	76-6		App. B
	76-7	1—9	14-251—14-259
	76-16		App. B
	76-32		App. B
	76-33		App. B
	76-34		App. B
	76-39	1	13-251(b)(4)(d)
1977	77-2	1	17-104
	77-3	1	17-76
	77-4		App. B
	77-5		App. B

Ordinance Year	Chapter	Section	Disposition this Code
	77-6		App. B
	77-15		App. B
	77-19		App. B
	77-20	1, 2	14-75
	77-23	1—3	21-111—21-113
	77-24	1	4-34.1
	77-25	1	4-37.1
	77-26	1	4-49.1
	77-27	1	4-31
		2	4-33
		3	4-36
	77-36	1	17-124
	77-38	1	23-93—23-97
	77-39	1	15-10
	77-47		App. B
	77-48		App. B
	77-49		App. B
1978	78-3	1	3-4
	78-15	1—7	21-129—21-135
	78-16		App. B
	78-22	1	7-16
	78-23	1, 2	2-73—2-76
	78-24		App. B
	78-26		App. B
	78-27		App. B
	78-28		App. B
	78-29	1	15-18(b)
	78-37	1	2-23
	78-38	1	2-23
1979	79-1	1—34	16-51—16-84
	79-2		App. B
	79-4	1, 2	14-202, 14-202.1
		3	14-206
	79-5	1	9-79
	79-6	1	25-50
		2	25-52
		3	25-63
	79-11	1	2-300
	79-14		App. C
	79-15		App. C
	79-16		App. C
	79-17		App. C
	79-18		App. C
	79-23	1	4-37.2

Ordinance Year	Chapter	Section	Disposition this Code
	79-25	1	18-3.1
	79-26		App. B
	79-33		App. B
	79-34		App. B
	79-35	1, 2 Rpld	24-30, 24-31
	79-37	Art. I	25-71
		Art. II, §§ 1—6	25-72
		Art. III, §§ 1—6	25-73
		Art. IV, §§ 1—7	25-74
		Art. V, §§ 1—21	25-75
		Art. VI, §§ 1—3	25-76
		Art. VII, § 1	25-77
		Art. VIII, §§ 1—6	25-78
		Art. IX, §§ 1—8	25-79
		Art. X, §§ 1—5	25-80
		Art. XI, §§ 1, 2	25-81
		Art. XII, §§ 1, 2	25-82
	79-38	1	23-32
1980	80-1	1	12-54
	80-2	1	App. B
	80-10	1	26-7
	80-14	1—3	21-121—21-123
	80-16		App. C
	80-17		App. C
	80-18		App. C
	80-19		App. C
	80-20		App. C
	80-26		App. B
	80-27		App. B
	80-28	1	20-9
	80-29	1	2-41
	80-32	1	13-100
	80-33	1	5-4
	80-34	1	2-99.1
	80-35	1	5-5
	80-36	1	27-3
	80-38		App. B
	80-39	1—7	2-351—2-357
	80-40	1	4-27
	80-41	1	12-46(d), 12-57,

Ordinance Year	Chapter	Section		Disposition this Code
				12-79
	80-42	1—3		4-46.1
	80-43	1		4-53
			Rpld	4-37(a)
		2		4-54, 4-55
		3		4-56
	80-44			App. B
	80-45			App. B
	80-46			App. B
1981	81-1	1		21-13
	81-5	1		21-14
	81-6			App. B
	81-10			21-141—21-149
	81-11	1		2-42
	81-14	1		24-7
	81-15	1		14-1(c), 14-110, 14-129(e), 14-172 (a)—(c), 14-197(a)(2), (4) 14-206
	81-16	1		10-76(b)(1)—(3)
	81-17	1		10-24(b)
	81-18	1		21-16
	81-21	1		21-142(b)
		2		21-143(6)—(8)
	81-23	1		12-64
	81-26			App. B
	81-32	1		17-27
	81-33	1		15-2(a)
	81-35	1		25-52
	81-44	1		15-3
		2		15-4(a)
		3		15-8
	81-45	1		21-15.1
	81-46	1		27-2
	81-48	1		21-47
	81-49	1(a)		2-165
		1(b), (c)		2-168(b), (c)
		2		13-10.1
	81-50			App. B
	81-53	1		21-31
	81-59	1, 2		9-91, 9-92

Ordinance Year	Chapter	Section	Disposition this Code
		4—6	9-93—9-96
	81-62	1	13-25
	81-63	1—6	2-2.1
1982	82-1		App. B
	82-8		App. B
	82-15		App. B
	82-16		App. B
	82-17	1A	20-19
		1B	20-16
		1C	20-4
	82-20	1—13	25-50—25-62
		15	25-63
	82-21	1	14-202.1(a), 14-202.2
	82-25	1	4-34.1
	82-26	1	4-35
	82-27	1	16-3
	82-29		App. C
	82-30		App. C
	82-31		App. C
	82-32		App. C
	82-33		App. C
	82-34		App. B
	82-44	68	17-27
	82-46	1	4-33.1
	82-47		App. B
	82-48	1	20-8
	82-49		App. B
	82-50	1	20-20
	82-51	1	21-17
	82-53	2—8	21-39.1
	82-54	Arts. I—IV	2-361—2-364
		Art. V, § 1	2-365
	82-56	1	22-15
	82-58	1 Rpld	21-148
	82-59		App. C
	82-65		App. C
	82-66		App. C
	82-67		App. C
	82-69	1, 2	2-22, 2-23
1983	83-1	2	14-76
	83-4		App. B
	83-5	1	20-15
	83-6		App. B
	83-7		App. B

Ordinance Year	Chapter	Section	Disposition this Code
	83-8		App. B
	83-9		App. B
	83-12	1	15-18
		2, 3	15-26, 15-27
	83-13		App. C
	83-14		App. B
	83-15	1	16-18
	83-19		App. B
	83-20		App. B
	83-21		App. B
	83-23	1	21-160—21-168
		2	Ch. 21, Art. VIII(note)
	83-24	1, 2	12-18
	83-25	1	15-18(c)
		2	15-22(a)
		3	15-23(a)
	83-28	1	17-28
	83-43	1(a)—(d)	21-173—21-176
	83-44	1	21-31.1
	83-46		App. B
	83-47		App. B
	83-51	1	17-59(c)
	83-59	1	21-26.1
	83-60		App. B
	83-64		App. C
	83-65	1—14	26-1—26-14
	83-66	1	4-47(a)
1984	84-1	1	2-169
	84-9	1	15-2—15-9
	84-10	1	20-17
	84-11		App. B
	84-13	1	15-28
	84-15	1	26-7
	84-16	1—6	2-19
	84-17		App. B
	84-18		App. B
	84-19		App. B
	84-20	1	15-2—15-9
	84-21		App. B
	84-22		App. B
	84-23		App. B
	84-24	1	20-11
	84-25	1	20-16
	84-27		App. C

Ordinance Year	Chapter	Section		Disposition this Code
	84-30			App. B
	84-31			App. C
	84-32	1		2-42
	84-33	1		17-29
	84-34	1		2-302
	84-36			App. B
	84-37	1		21-28.1
	84-38	1		21-38.1
	84-39	1		17-30
	84-40	1		17-31
	84-41	1		17-32
	84-43	1, 2		2-2.2
	84-44	1		17-33
	84-46	1		2-71.1
	84-52	2	Rpld	15-36—15-43
		3—9		15-36—15-42
		10		15-27
	84-56			App. C
	84-57			App. C
	84-58			App. C
	84-65	1		21-27—21-29
	84-66	1		11-21
	84-68	1		2-298, 2-300
	84-71	1—3		21-6.1
	84-73	1		14-13
1985	84-74	1		14-1(g)
	85-1	1	Rpld	17-30
	85-2	1	Rpld	17-29
	85-26			App. B
	85-36	1		2-303
	85-37	1		14-145
		2		14-133.1, 14-161
	85-44			App. B
	85-59	1		23½-2
		2		23½-1
		3		23½-4
		4		23½-21
		5, 6		23½-24, 23½-25
		7		23½-23
		8		23½-26
		9		23½-41
		10		23½-43

Ordinance Year	Chapter	Section		Disposition this Code
		11		23½-42
		12, 13		23½-6, 23½-7
		14, 15		23½-27, 23½-28
		16		23½-5
		17		23½-22
		18		23½-3
		20		23½-8
	85-60			App. C
	85-61			App. C
	85-62	1—6		21-91—21-96
	85-74	2		2-43
	85-75			App. C
	85-76			App. B
	85-77	1—34		16-51—16-84
	85-82	1		23½-4(h)
	85-90	1—3		5-61—5-63
		4		5-66
		5		5-65
		6—8		5-67—5-69
		9		5-64
1986	86-1	1		17-125
	86-2	1	Rpld	25-50—25-63
	86-3	1		4-4
	86-4	1		1-10(a)
	86-5			App. B
	86-6			App. B
	86-9	1		15-18(c)
		2		15-22(a)
	86-22	1		2-160.1
	86-23	1		2-160
	86-25	1		17-126
	86-27			App. C
	86-28			App. B
	86-36			App. C
	86-37			App. C
	86-38	1		17-125
	86-39			App. B
	86-47			App. C
	86-48			App. C
	86-49			App. C
	86-50			App. C
	86-52			App. B
	86-53	1(A), (B)		20-11, 20-12
		(C), (D)		20-15, 20-16

Ordinance Year	Chapter	Section		Disposition this Code
		(E)		20-20
		(F)—(H)		20-5—20-7
	86-55	1—3	Added	21-111—21-113
		5	Rpld	21-111—21-113
	86-56	1, 2		23-28
	86-57	1, 2		2-22, 2-23
1987	87-2	1		12-46(e)
		2		12-61.1
	87-3	1		13-40
		2	Rpld	13-102
		3	Added	13-49
	87-7			App. B
	87-8			App. B
	87-9			App. B
	87-11	1		17-8
	87-12			App. B
	87-13	1, 2		23-63, 23-64
		3		23-69, 23-70
	87-24	1		2-256
	87-27			App. B
	87-28	1		15-2
	87-29	1(8.1-1—8.1-16)		8-11—8-26
1987	87-32			App. B
	87-33			App. B
	87-34			App. B
1988	88-1	1		15-18(c)
		2		15-22(a)
	88-2	1—17		16-91—16-107
	88-7	1		17-59(c)
	88-11			App. B
	88-17	1		21-18
	88-18	1		12-80—12-86
	88-19	1		12-57(c), 12-58, 12-61(a), 12-75
	88-27	1		21-181—21-183
	88-28	1		21-121, 21-122
		2		21-111
	88-29	1		21-126
	88-30	1		21-124, 21-125
	88-31	1		21-127, 21-128
	88-32			App. B
	88-33	1		2-169
	88-34	1		8-13

Ordinance Year	Chapter	Section		Disposition this Code
	88-39			App. B
	88-41			App. B
	88-44			App. B
1989	89-1	1		21-136
	89-3	1		12-46, 12-48, 12-61, 12-63, 12-64, 12-67, 12-68, 12-80
		2	Rpld	12-51, 12-52
		3		12-61.2, 12-70.1, 12-87
	89-4			App. B
	89-5	1		4-52
	89-6	1		16-108, 16-109
	89-7	1		4-31
	89-8	1		4-53
	89-9	1		4-56
	89-10	1		2-362(note)
	89-19	1		8-13
	89-20			App. C
	89-24	1		16-3
	89-25			App. B
1989	89-26			App. B
1990	90-3	1		21-169
	90-4			App. B
	90-6	1		15-108, 15-109
	90-7	1		21-52
	90-19	1		17-28
	90-20	1		15-2(a)
	90-21			App. C
	90-22			App. B
	90-30			App. B
	90-31			App. B
	91-2	1		21-19
	91-3			App. B
	91-5	1—17		17-181—17-197
	91-6			App. B
	91-9			App. B
	91-13	1		15-118
	91-15	1		8-1—8-5
		2	Rnbd	8-5—8-8 as 8-6—8-9
	91-16			App. B

Ordinance Year	Chapter	Section		Disposition this Code
	91-17			App. B
	91-18	1		14-260—14-274
	91-21	1		2-169(catchline)
	91-26			App. C
	91-27			App. C
	91-28			App. B
1992	92-1	1		16-92(j)
		2		16-106
	92-2	1		5-4
		2		12-79
		3		12-88
	92-3	1—3		2-304
	92-14			App. B
	92-22			App. B
	92-29	2	Rpld	27-1—27-3
			Added	Ch. 27, § 100—106, 200—205, 300—307, 400—423, 500-503, 600—610, 700—709, 801—806, 901—907, 1000, 1100—1109
	92-34	1		2-304
	92-41	1—8		2-371—2-378
	92-42	1		14-260—14-275
	92-43			App. B
	92-44	1		App. B
	92-45	1		App. B
	92-46	1		App. B
	92-47	1		App. B
	92-48	1		17-183(4)
	92-49	1		21-129
				21-131—21-136
			Rpld	21-130
	92-50	1		21-28.1(a)
	92-52	1		12-56, 12-57, 12-58, 12-80
		2		12-117
		3		12-117.1

Ordinance Year	Chapter	Section		Disposition this Code
1993	93-7	1		8-27, 8-28
	93-12	1		17-181
		2		17-184
	93-14	1	Rpld	23-24
		2	Added	23-24
	93-15	1—6		14-85—14-90
		6.1—6.7		14-91—14-97
		7—11		14-98—14-102
	93-16	1		Ch. 27, § 303(24.4)
	93-18	1		App. B
	93-21	1		17-185
	93-26	1		App. B
	93-28	1		17-125
		2		17-188.1
		3	Rpld	17-188(10), (11), (12)
	93-29	1		17-34
	93-30	1	Rpld	11-20
		2	Rnbd as	11-21 11-20
		3	Added	11-21
	93-31	1—11		16-121—16-131
	93-32	1		Ch. 27, § 306.1
	93-45	1		App. B
	93-46	1		App. B
	93-49	1		13-261—13-263
	93-54	1		4-3
	93-56	1		24-7
	93-57	1		15-2
	93-58	1, 2		16-141, 16-142
	93-59	1—6		12-89
1994	94-2	1, 2		17-189(14), (15)
		3	Rpld	17-189(16)
	94-4	1		9-101—9-104
	94-5	1		15-2
	94-14	1		13-261—13-263
	94-15	1		23½-41(e), (f)
	94-17	1	Rpld	21-14
		2	Added	App. A, Art. XII, §§ 27-1—27-5
	94-19	1	Rpld	2-256

Ordinance Year	Chapter	Section		Disposition this Code
	94-24	1		Ch. 27, §§ 100—105, 200—206, 300—307, 400—423, 500—503, 600—609, 700—708, 801—809, 901—909, 1000, 1100—1112
	94-24 No. 365			Ch. 27, §§ 100—1112, 27-1—27-5, Ch. 27, App. A
	94-28	1		2-99
	94-29	1		2-23
	94-30			App. C
	94-33			App. B
	94-39	1	Rpld	14-171—14-182
			Added	14-171—14-182
	94-40			App. C
	94-56	1		23-13
	94-57			App. B
	94-58			App. B
	94-59	1		21-20
1995	95-3	1		16-3
	95-8	1-1		Ch. 27, § 101.3
		1-2		Ch. 27, § 101.7
		1-3		Ch. 27, § 205.2
		1-4		Ch. 27, § 303
		1-5		Ch. 27, § 306
		1-6		Ch. 27, § 306.1
		1-7		Ch. 27, § 409.6
		1-8		Ch. 27, § 412
		1-9		Ch. 27, § 419.2
		1-10		Ch. 27, § 501.1
		1-11—1-13		Ch. 27, § 502.1(A)
		1-14—1-17		Ch. 27, § 502.1(C)
		1-18—1-20		Ch. 27, § 502.1(D)

Ordinance Year	Chapter	Section		Disposition this Code
		1-21		Ch. 27, § 502.2(A)
		1-22		Ch. 27, § 502.2(C)
		1-23, 1-24		Ch. 27, § 502.5
		1-25		Ch. 27, § 502.6
		1-26		Ch. 27, § 502.7(B)
		1-27		Ch. 27, § 503.4(C)3
		1-28		Ch. 27, § 504
		1-29		Ch. 27, § 602.1
		1-30		Ch. 27, § 604.8
		1-31		Ch. 27, § 605.5
		1-32		Ch. 27, § 607.3
		1-33		Ch. 27, § 607.5
		1-34		Ch. 27, § 703.2
		1-35		Ch. 27, § 705.6(E)
		1-36		Ch. 27, § 707
		1-37		Ch. 27, § 707.1
		1-38		Ch. 27, § 708.2
		1-39—1-54		Ch. 27, § 1000
		1-55		Ch. 27, App. A
	95-9	1		8-6
	95-10			App. B
	95-11			App. B
	95-12			App. B
	95-13			App. B
	95-14	1		20-2(C)
	95-15	1	Rpld	21-141—21-149
		2	Added	21-141—21-147
	95-17	2		17-181
		3		17-189(1)(c)
		4		17-189(5)
		5		17-189(17), (18)
		6		17-189(16)
		7	Rpld	17-189(17), (18)
		8	Amd	17-185(1)
		9		17-197
	95-18	2—5		17-85
	95-20			16-51—16-84
	95-26	1	Rpld	21-141—21-149
		2	Added	21-141—21-147
	95-27	1		2-256

Ordinance Year	Chapter	Section		Disposition this Code
1996	96-4	1		17-197
	96-5	1		App. B
	96-9			App. C
	96-22	1		17-184
	96-23	1		App. B
	96-24	1	Rpld	20-1—20-20
			Added	20-1—20-5
	96-31	1		Ch. 27, §§ 303, 421
	96-33	1		9-101
	96-34	1		17-28
	96-36	1—10		17-7
	96-39	1		App. A, §§ 303, 421
	96-40	1		App. B
	96-57	1		17-189(2)(b)
1997	97-3	1, 2		App. B
	97-4	1		App. B
	97-7	1		App. B
	97-8	1		App. B
	97-9	1		App. B
	97-10	1		App. B
	97-11	1		App. B
	97-12	1		App. B
	97-13	1		App. B
	97-14	1		App. B
	97-15	1		App. B
	97-16	1		20-2, 20-3
	97-17	1	Added	21-191—21-201
	97-19	1		21-169
	97-20	3		21-27
	97-39	1		Ch. 27, App. A
	97-45	1		App. B
	97-46	1		App. B
	97-47	1		App. B
	97-48	1		App. B
	97-60	1		17-7(a), (d)
	97-64	1—16	Added	23-6
		17	Rpld	23-6, 23-59, 23-62, 23-100—23-106
	97-66	1		App. B
	97-69	1		17-59(c)
	97-71	1		21-131

Ordinance Year	Chapter	Section		Disposition this Code
	97-74	1	Added	5-6
	97-75	1		9-94
1998	98-1	1		App. B
	98-2	1		App. B
	98-3	1		App. B
	98-5	1		App. B
	98-6	1		App. B
	98-7	1		App. B
	98-8	1		App. B
	98-15	1		App. B
	98-16	1		App. B
	98-17	1		App. B
	98-20	1		App. B
	98-22	1		17-181—17-188.1
				17-189—17-192
			Rpld	17-193, 17-195, 17-196
			Rnbd as	17-194 17-193
			Rnbd as	17-197 17-194
	98-26	1		App. B
	98-27	1		App. B
	98-28	1		App. B
	98-29	1		App. B
	98-30	1	Added	21-128.1, 21-128.2
	98-51	1		App. B
	98-53	1—7	Added	2-391—2-397
	98-57	1		App. B
1999	99-1	2—6	Added	23-97.1—23-97.5
	99-9	1		App. B
	99-10	2		ch. 27, § 504.2(C)2.
	99-11	1		App. B
	99-12	1		App. B
	99-13	1, 2	Added	21-211, 21-212
	99-15	1		12-88
	99-18	1		16-92, 16-93 16-97
	99-19	1		16-106
	99-20	1—7	Added	14-14

Ordinance Year	Chapter	Section		Disposition this Code
	99-26	1		9-101
	99-28	1		App. B
	99-29	1		App. B
	99-30	2		ch. 27, § 303
	99-45	1	Added	17-189.1
	99-47	1A		ch. 27, § 101.7
		1B	Added	ch. 27, § 505
	99-48	2		ch. 27, § 303
2000	00-2	2		15-36
		3, 4	Added	15-43
	00-6			App. B
	00-14			App. B
	00-15			App. B
	00-16			App. B
	00-17			App. B
	00-18			App. B
	00-19			App. C
	00-22	1—5	Added	15-11
	00-23	1	Added	14-230
	00-24			Ch. 7(tit.)
				7-1—7-16
	00-28	1		Ch. 27, § 101.7
			Added	Ch. 27, § 506
	00-30		Rpld	21-211, 21-212
			Added	21-211
	00-31			App. B
	00-32			App. B
	00-33		Added	21-212
	00-34	1	Added	21-53
	00-45	1		Ch. 27, § 423
2001	01-1	1	Added	21-171
	01-4			App. B
	01-5			App. B
	01-6			App. B
	01-7			App. B
	01-14	1.A		Ch. 27, § 101.7
		1.B	Added	Ch. 27, § 507
	01-20		Added	21-170
	01-22			App. B
	01-23			App. B
	01-24	1		Ch. 27, §§ 101.4, 303 1000.94
			Added	Ch. 27, § 1000.92

Ordinance Year	Chapter	Section		Disposition this Code
		2	Rnbd as	Ch. 27, §§ 1000.92—1000.153 as Ch. 27, §§ 1000.93—1000.154
	01-25	1		21-181
		2		21-182
		3	Rpld	21-183
	01-29			App. B
	01-30			App. B
	01-31			App. B
	01-32			App. B
	01-52			App. B
	01-53			App. B
	01-56			App. B
2002	02-2	1—5	Added	16-19
	02-3	2, 7a, 7b, 8		12-61
		3—5		12-63
		6	Added	12-89.1
		9, 10		12-111
		11—13	Added	12-89.2—12-89.4
		14, 15		12-80
		16		12-61.1
	02-5	1—3		2-304
	02-6	1—5	Added	18.5-1
	02-7	1		Ch. 27, § 501
		2		Ch. 27, § 501.4(B)
		3		Ch. 27, § 501.14
	02-8	1		21-181
		2		21-182
	02-9			App. B
	02-11	1—6	Added	15-12
	02-12	1.A		Ch. 27, § 101.7
		1.B		Ch. 27, § 506
	02-14	1—3	Added	16-20
	02-19			App. B
	02-20			App. B
	02-21			App. B
	02-24	1		21-181
		2		21-182

Ordinance Year	Chapter	Section		Disposition this Code
	02-30	1—12	Added	5-7
	02-34			App. B
	02-35			App. B
	02-36	1, 2	Added	4-9, 4-10
	02-37	1	Added	21-172
	02-39	1—21	Added	18.5-2
	02-47			App. B
	02-48			App. B
2003	03-2			App. B
	03-3			App. B
	03-4			App. B
	03-22	1—9	Added	14-285—14-293
	03-23			App. B
	03-24			App. B
	03-25			App. B
	03-27	1		Ch. 27, §§ 101.6, 303
			Added	Ch. 27, §§ 424, 1000.155, App. A, § 36.1
	03-28	1	Added	Ch. 27, § 425
		2	Rpld	Ch. 27, §§ 505.2(B), 506.3(D), 506.6(C), 507.3(D)(2), 507.6(C), 705.6, 705.7
		3		Ch. 27, § 502.2(D)
		4	Added	Ch. 27, § 1000.156
	03-29	1.A		Ch. 27, § 201.7
		1.B		Ch. 27, §§ 304—307
		1.C		Ch. 27, § 704.2
		1.D		Ch. 27, § 801
		1.E		Ch. 27, 1000.59
	03-36			12-88
	03-37			23-13
	03-44		Added	15-121—15-130
	03-45		Added	2-44
	03-46	1	Added	9-45

Ordinance Year	Chapter	Section		Disposition this Code
	03-47	1		9-95
	03-48	1		5-6
	03-49	1		15-13
	03-50	1		15-12
	03-51	1		15-2
	03-53	1		16-123
	03-54	1		16-128, 16-129
	03-55	1		13-44
	03-58			16-97
	03-60			App. B
	03-76			App. B
	03-77			App. B
2004	04-1	1	Added	2-12
	04-4	1		13-44
	04-10	1	Added	2-13
	04-14			App. B
	04-17	1		14-171—14-186
			Added	14-169, 14-170
	04-26			App. C
	04-27	1	Added	15-131
	04-28	1		9-101
	04-29	1		16-92, 16-108
	04-34			App. C
	04-35	1	Added	21-213—21-234
	04-37	1		16-123
	04-38	1		16-128, 16-129
	04-41	1		Ch. 27, §§ 101.7, 103, 502, 1000.1, 1000.20
			Rpld	Ch. 27, § 1000.118
	04-46			App. B
	04-52	1		15-131
	04-55	1	Rpld	16-125—16-127 16-130, 16-131
2005	05-02			App. C
	05-3			App. C
	05-18	1	Added	14-15
	05-24	1	Added	2-14
	05-25	1		9-101
	05-29	1	Added	2-15

Ordinance Year	Chapter	Section		Disposition this Code
	05-32	1		Ch. 27, §§ 101.7, 103, 502, 1000.1, 1000.20
	05-33			App. C
	05-44	I—V	Added	2-169.1
	05-45		Added	14-16
	05-54	1	Added	5-81—5-90
	05-55	1	Added	5-101—5-109
	05-56	1—4	Added	25-83
	05-59	1	Added	2-16
	05-61	1		16-13
	05-62	1—21		18½-2
	05-63	1		Ch. 27, §§ 101.7, 103, 502, 1000.1, 1000.20
2006	06-2	1(a)		Ch. 27, § 303
		1(b)		Ch. 27, § 426
		1(c)		Ch. 27, § 1000.83
		1(d)		Ch. 27, App. A
	06-4			App. C
	06-20			17-185
	06-21	2.A—D		Ch. 27, § 303
		2.E		Ch. 27, § 426
		2.F		Ch. 27, App. A
	06-22	1		15-2
	06-23	1		Ch. 21, Art. V⁹⁄₁₀ (tit.) 21-128.1 21-128.2
	06-24		Added	2-17
	06-25		Added	2-18
	06-27		Added	2-18.1
	06-28	1		17-33
	06-32	1	Added	13-212
		2	Added	16-21—16-24
	06-33	1	Added	2-18.2
	06-34	1		16-5
		2	Rpld	16-141, 16-142
			Added	16-141—16-145
	06-40	1	Added	2-398—2-402
	06-41	1	Added	16-25

Ordinance Year	Chapter	Section		Disposition this Code
	06-42	1		17-33
	06-43	1—3	Added	2-18.3
	06-45		Added	13-26
2007	07-13	1		16-141, 16-144
	07-15	1		2-18.2
	07-18	1		2-18
	07-23	1	Added	15-15
	07-24	I, II	Added	18½-3
	07-31	1		15-18(c)
				15-26
	07-32	1		15-15
	07-34			9-10
	07-35	1		15-2
	07-36	1		5-7
	07-37	1		15-2
	07-38	1		9-92
	07-39	1		9-101
	07-40	1		5-6
	07-41	1		14-95
	07-47	1		12-80—12-82
				12-86
			Rnbd	12-89.1
			as	12-87.1
	07-48	I—VI		2-169.1
	07-49	2	Rnbd	17-189(3), (4)
			as	17-189(4), (5)
			Added	17-189(3)
		3	Rnbd	17-189(5)
			as	17-189(6)
		4	Rnbd	17-189(6)
			as	17-189(7)
		5	Rnbd	17-189(7)—(15)
			as	17-189(8)—(16)
	07-50	1		Ch. 27, § 303, App. A
	07-51	2	Added	2-18.4
	07-52	1	Added	7-17
2008	08-16			17-189
	08-17			App. C
	08-20			Ch. 27, § 1000.157 App. A
	08-21	1—4	Added	21-241—21-244
	08-22		Added	15-16

Ordinance Year	Chapter	Section		Disposition this Code
	08-27	1—7	Added	17-134—17-138.2
	08-29		Added	17-188.1(8)
	08-31			17-188.1(2)
	08-32	1—9		21-251—21-259
	08-33	1		Ch. 27, § 401
	08-35	1	Added	5-110—5-119
	08-36	1	Added	16-26
	08-37	I	Added	12-131
	08-45	1		15-2
	08-46		Added	2-45
	08-47	1		9-28
	08-48	1	Added	23-33—23-35
	08-49			App. B
2009	09-16	1		17-189
	09-20	1	Dltd	Ch. 27, § 423
			Added	Ch. 27, § 423
	09-22	1	Added	17-29
	09-24	1		21-65(c)
	09-25	1		Ch. 27, § 902.4
	09-33	1		23-32
	09-38			17-189(1), (2)
	09-39			Ch. 27, § 101.7 Ch. 27, §§ 103, 104 Ch. 27, § 201.7 Ch. 27, § 201.9(B), (C) Ch. 27, § 202.4 Ch. 27, §§ 204.2, 204.3 Ch. 27, §§ 303, 304 Ch. 27, § 304.1 Ch. 27, §§ 305, 305.1 Ch. 27, §§ 306, 306.1 Ch. 27, § 403(C) Ch. 27, §§ 414—414.4 Ch. 27, § 417 Ch. 27, § 419

Ordinance Year	Chapter	Section		Disposition this Code
				Ch. 27, §§ 419.6, 419.7
				Ch. 27, § 421
			Added	Ch. 27, §§ 421.1, 421.2
				Ch. 27, § 422.3
				Ch. 27, §§ 425—425.4
			Dltd	Ch. 27, § 425.5
			Added	Ch. 27, § 425.5
				Ch. 27, §§ 425.6—425.9
			Added	Ch. 27, § 425.10
			Added	Ch. 27, §§ 427—427.5
			Added	Ch. 27, § 428
			Added	Ch. 27, §§ 429—429.2
				Ch. 27, § 201.2(B)
				Ch. 27, §§ 502, 502.1
				Ch. 27, § 502.2(A), (C)
			Added	Ch. 27, § 502.2(F)(3)
				Ch. 27, § 502.3(A)5.
				Ch. 27, § 502.4(A)3., 4.
				Ch. 27, § 502.4(B)3.
				Ch. 27, § 502.5B.1.a., E., F.
				Ch. 27, § 503
				Ch. 27, § 503.1(A)
				Ch. 27, § 503.2(B), (C)1.

Ordinance Year	Chapter	Section		Disposition this Code
				Ch. 27, § 503.4(A), (B), (C)5—7, 10
			Added	Ch. 27, § 503.4(C)13—17
			Dltd	Ch. 27, § 503.5(B)
				Ch. 27, § 503.5(C)
			Added	Ch. 27, § 508
				Ch. 27, §§ 602.3, 602.4
				Ch. 27, §§ 603.2, 603.3
				Ch. 27, § 700
			Added	Ch. 27, § 700.1, 700.2
				Ch. 27, §§ 701—703
				Ch. 27, § 703.2
				Ch. 27, § 704.2(A)—(C)
			Added	Ch. 27, § 704.2(D)
			Added	Ch. 27, §§ 704.3—704.5
				Ch. 27, § 705
				Ch. 27, §§ 705.1, 705.3, 705.5
				Ch. 27, § 706.4
				Ch. 27, § 707.2
			Added	Ch. 27, § 802.2
				Ch. 27, §§ 901—901.3
				Ch. 27, § 901.5
				Ch. 27, § 902.3(B)2.
				Ch. 27, § 902.4
			Added	Ch. 27, § 902.5
				Ch. 27, § 903.6
				Ch. 27, § 905
				Ch. 27, § 905.3
				Ch. 27, § 906

Ordinance Year	Chapter	Section		Disposition this Code
				Ch. 27, § Art. X(note)
				Ch. 27, § 1000.7
				Ch. 27, § 1000.34
				Ch. 27, § 1000.55
				Ch. 27, §§ 1000.74, 1000.75
				Ch. 27, § 1000.84
				Ch. 27, § 1000.90
				Ch. 27, § 1000.98
				Ch. 27, § 1000.110
				Ch. 27, § 1000.131
				Ch. 27, § 1000.141(b)
			Rnbd	Ch. 27, § 1000.49—1000.157
			as	Ch. 27, § 1000.50—1000.164
			Added	Ch. 27, § 1000.49, 1000.81
			Added	Ch. 27, § 1000.86
			Added	Ch. 27, §§ 1000.92—1000.94
			Added	Ch. 27, § 1000.104
				Ch. 27, App. A, §§ 16.1, 24
				Ch. 27, App. A, §§ 42, 64, 64.1
	09-40	1		14-14

Ordinance Year	Chapter	Section		Disposition this Code
			Added	14-14(g)—(m)
	09-41	1	Added	13-213—13-217
	09-42	1	Added	13-218—13-220
	09-43	1	Added	12-19
	09-44	4		21-182
		5		21-126
	09-50	1		15-131
	09-54			App. C
	09-55	1	Added	14-231
	09-56	1	Added	2-18.5
	09-60	1		21-182(b)(1)a.
	09-63	1		23-13
		2		23-14
		3		23-15
2010	2010-2	1		13-213—13-217
	2010-3	1		18½-2
	2010-7	1		4-1—4-10
			Added	4-11
			Dltd	4-19—4-24
				4-25—4-27
			Added	4-28, 4-29
				4-31, 4-32
	2010-8	1		9-101
	2010-28		Added	21-26(b)
	2010-30	1		15-2
	2010-31	4		21-182
		5		21-126
	2010-32	1		Ch. 27, §§ 401—401.2
	2010-33			App. B
	2010-34	1	Dltd	11-1—11-20
			Added	11-1—11-5
		2	Dltd	23-3, 23-156—23-166
	2010-35			21-28.1
	2010-36	1	Rpld	4-4
			Added	4-37.3
	2010-37			17-188.1(4)
	2010-39	1		2-18.5
	2010-42	1		3-4, 3-5
	2010-43		Added	21-74
2011	2011-1	1	Added	21-235
	2011-10	1		21-28.1

Ordinance Year	Chapter	Section		Disposition this Code
	2011-11	1(1)—(10)	Added	2-264—2-273
	2011-12			17-189.1
	2011-13	1	Added	14-300—14-307
	2011-15	1	Added	16-20(9)
	2011-16	1(1)—(10)		2-264—2-273
	2011-19	1	Added	17-196
	2011-20	1	Added	17-197
	2011-21	1	Added	21-75
	2011-22	1	Added	21-21
	2011-23	1	Added	21-22
	2011-24	4		21-182
		5		21-126
	2011-28	1		21-182
	2011-30	1		15-26(a)
	2011-31	1		9-92
	2011-32	I	Added	17-195
	2011-33	1, 2	Added	25-40, 25-41
	2011-34	1	Added	14-232
	2011-35	1	Added	16-27
	2011-36	1	Added	12-63(d)
				12-80(a)
	2011-38	1		17-125
	2011-39	1		17-126
	2011-40	1	Added	17-198
	2011-41	1	Added	17-199
	2011-47	1		16-27
	2011-75	1		5-7(a), (i)
2012	2012-3	1		15-2
	2012-4	1	Added	23-36
	2012-5	1		11-1—11-14
	2012-6	1	Added	14-308—14-310
	2012-7	1		14-300
				14-303
	2012-8	1		7-1—7-16
	2012-9	1		17-185
		2		17-189
	2012-12	1		11-1—11-14
	2012-13	1		14-308—14-310
	2012-14	1		14-300
		2		14-303
	2012-16	1	Added	3-6
	2012-17	1—3		2-304
	2012-18			17-189(1)(c)

Ordinance Year	Chapter	Section	Disposition this Code
	2012-20	1	17-181.1—17-199
	2012-21	1	11-1—11-14
	2012-25	1	Ch. 27, § 101.3
			Ch. 27, § 101.7
			Ch. 27, § 103(B)
			Ch. 27, § 303
			Ch. 27, § 421.1(B)2.
			Ch. 27, § 421.2(A)
			Ch. 27, § 425
			Ch. 27, § 502.1—502.7
			Ch. 27, § 607.5(A)
			Ch. 27, § 608.2
			Ch. 27, § 703
			Ch. 27, § 1000
			Ch. 27, App. A
	2012-26	1	Ch. 27, § 101.7
		Added	Ch. 27, § 509—509.13
	2012-27	1	21-91.1—21-96.2
		2 Rpld	2-169.1
	2012-28	1	2-45
	2012-29	1	14-127—14-138
	2012-38	1	14-169—14-186
	2012-39	1	Ch. 27, § 304.1.4
			Ch. 27, § 416.4
			Ch. 27, § 425.5(A)
			Ch. 27, § 425.6
			Ch. 27, § 607.3
			Ch. 27, § 607.4
			Ch. 27, § 802.2
			Ch. 27, § 902.3
		Added	Ch. 27, § 903.9
			Ch. 27, § 904
			Ch. 27, § 1000
			Ch. 27, § 1103

Ordinance Year	Chapter	Section		Disposition this Code
	2012-40	1	Added	23-36
	2012-41	1		4-1—4-11
			Added	4-19—4-21
				4-25—4-27
		2		18-8
	2012-45	1		Ch. 27, § 303
			Added	Ch. 27, § 419.8
				Ch. 27, § 1000
				Ch. 27, App. A
	2012-47	1		Ch. 27, § 101.1
				Ch. 27, § 303
				Ch. 27, § 304
			Added	Ch. 27, § 304.1.8
				Ch. 27, § 607.3
				Ch. 27, § 703.1
				Ch. 27, § 708.3
	2012-62	1	Added	13-190
	2012-63	1	Rpld	16-23, 16-24
				16-21, 16-22
		2	Rpld	13-212
	2012-64	1	Added	13-275—13-285
	2012-68	1		14-236—14-247.5
2013	2013-2	1		14-127—14-138
	2013-3	1		2-264—2-272
	2013-5			13-1—13-56
	2013-6	1		16-22
	2013-9	1		17-181—17-203
	2013-10	1	Added	14-233
	2013-11			14-193—14-199
				14-201—14-233
	2013-12	1		14-14
	2013-13	1		14-64—14-76
	2013-17	4		21-182
		5		21-126
	2013-25	1		21-111—21-113
				21-121—21-128
	2013-26	1		17-124
	2013-27	1		15-18—15-21
				15-23—15-27
	2013-28	1		3-4, 3-5
			Added	3-6
	2013-29	1	Added	4-12

Ordinance Year	Chapter	Section		Disposition this Code
	2013-31	1		17-181—17-203
	2013-32	1		5-7
	2013-33	4		21-182
		5		21-126
	2013-35	1		17-181—17-203
	2013-36	4		21-182
		5		21-126
	2013-37	1	Rpld	Ch. 27, § 423
		2	Added	Ch. 27, § 423
		3		Ch. 27, Art. X
	2013-53	1		2-161—2-169
	2013-56	1		14-64—14-76
	2013-57	1—7	Added	14-233
	2013-58	1		14-193—14-199 14-201—14-214 14-220—14-232
	2013-59	1		21-182
2014	2014-1	1		21-126
	2014-3	1	Added	21-271—21-274
	2014-4			9-92
	2014-5			App. B
	2014-6	1		16-91—16-99 16-105—16-107 16-109
	2014-7	1		23-24
	2014-9	1		14-196
	2014-10	1		16-57
	2014-11	2	Added	21-28.1(d), (e)
		3	Added	2-403—2-410
	2014-27	1		9-92
	2014-28	1		Ch. 27, § 401.1
	2014-29	1		21-182(a)
	2014-30	1		Ch. 27, § 303 Ch. 27, App. A
	2014-33	1		16-51—16-84
	2014-34	1		21-28.1
	2014-35	1	Added	14-17
	2014-39		Dltd	Ch. 27, §§ 100—106 200—206 300—307 400—429 500—509 600—609 700—708

Ordinance Year	Chapter	Section		Disposition this Code
				801—806 901—909 1000, 1100—1112
			Added	Ch. 27, §§ 100—104 200—202 300—302 400—403 500—504 600—607 700—703 800—804 900—904 1000—1004 1100—1108 1200—1204 1300—1304 1400—1411 1500—1507 1600—1607 1700—1719 1800—1803 1900—1918 2000—2005 2100
	2014-54	1	Added	2-411—2-415
	2014-55			14-251— 14-259.5
	2014-56	1	Added	18-22
2015	2015-5	1	Rpld	15-101—15-107
			Added	15-101—15-105
	2015-6	1		23-36
	2015-8	1		17-33
	2015-10	1		App B
	2015-11	1		App B
	2015-19	1	Added	15-132
	2015-21	1		21-4
	2015-22	1		16-27
	2015-23	1		27-201 27-202 A.3. ch. 27, Table 5-1

Ordinance Year	Chapter	Section		Disposition this Code
				27-503 A.3.a., d.
				27-503 B.2.c.
				27-503 4.a.iv., vii.
				27-903 C.3.
				27-903 E.a.iv., vii.
				ch. 27, Table 12-1
				27-1202 P.1., 4.
				27-1202 U.6.
				27-1204
				27-1302 A.3.
				27-1303 B.1.a.
				27-1303 B.2.c.
				27-1404 D.2.
				ch. 27, Table 14-1
				27-1404 B.3.
				27-1404 D.
				27-1407 B.1.
				27-1607 K.2., 3.
				27-1903 F.
				27-1904 C.1.b.
			Added	27-602 B.4.
			Rnbd	27-602 B.4., 5., 6.,
			as	27-602 B.5., 6., 7.
			Rnbd	27-1907 E.3.
			as	27-1907 E.2.
			Rnbd	27-1911 E.—H.
			as	27-1911 F.—I.
	2015-26	1	Rpld	14-169—14-186
			Added	14-169—14-179
	2015-27	1		27-1202 U.6.
	2015-28	1	Added	21-260—21-270
	2015-29	1	Rpld	21-271—21-274
			Added	21-271—21-283
	2015-31	1—10		App C
	2015-47	1		27-201
			Added	27-1202 L.5.

Ordinance Year	Chapter	Section		Disposition this Code
	2015-49	1		17-8
	2015-50	1	Rpld	17-181—17-199
			Added	17-181.1—17-199
	2015-51	1	Added	5-120—5-125
	2015-55	1		12-89.2
	2015-56	1		12-46
		2		12-61
	2015-57	1		12-80
	2015-58	1		5-7
	2015-60	1A		27-201
		1B	Rpld	27-1105
		1C	Rnbd	27-1106—27-1108
			as	27-1105—27-1107
	2015-64	1		15-132
2016	2016-1	1		21-271—21-283
	2016-3	1		23-13
		2		23-17
	2016-4			App. B
	2016-6	1		27-202.F., L.1., 2., O.4. 27-503.A.3.a. 27-1202.G. 27-1204 art. 14, Table 14-1 27-1404.H.1., 2.
			Added	27-1404.H.3. art. 16, Fig. 16-9
			Added	27-1801.D.2., D.5.
			Added	27-2000.D.
	2016-15	1		16-129
	2016-16	1		9-94
	2016-17	1		12-64
		2		12-61.1
	2016-20	1	Rpld	2-371—2-378
			Added	2-371—2-377
	2016-28	1		14-95
		2	Rpld	14-101

Ordinance Year	Chapter	Section		Disposition this Code
		3	Added	14-105—14-107
	2016-31	1		17-104
	2016-32			App. C
	2016-34			App. C
	2016-35	1		2-6, 2-7
			Rpld	2-8
	2016-50			App. B
	2016-52	1	Added	9-80—9-84
2017	2017-2	1	Added	21-54
	2071-4	1	Added	14-331—14-338
	2017-5	1	Added	11-1.1
	2017-9	1		15-101—15-105
	2017-13	1	Added	15-17
	2017-14	1		16-121—16-124
			Added	16-125—16-127
				16-128, 16-129
			Added	16-130, 16-131
	2017-15	1	Added	4-22
	2017-16	1	Added	16-85
	2017-18	1	Added	18½-4
	2017-19	1	Added	23-37
	2017-20	1		Ch. 27, § 201
				Ch. 27, § 202.B.1.
				Ch. 27, § 402
				Ch. 27, § 503.A.2.a., B.2.a.
				Ch. 27, § 603.C.1.
				Ch. 27, § 606.C.2.
				Ch. 27, § 902, Table 9-1
				Ch. 27, § 903.B.1.
				Ch. 27, § 1200.E.1.4.
				Ch. 27, § 1201
				Ch. 27, § 1202.M.1.b.ii., DD.6.
				Ch. 27, § 1204

Ordinance Year	Chapter	Section		Disposition this Code
			Added	Ch. 27, § 1302.A.9.
			Added	Ch. 27, § 1302.J.1.c., 2.e.
				Ch. 27, § 1503.B.2.b.
			Added	Ch. 27, § 1503.B.2.c.
			Added	Ch. 27, § 1702.E.
			Rpld	Ch. 27, § 1714.B.5.
			Rpld	Ch. 27, § 1715.B.7.
				Ch. 27, § 1800.G.
			Added	Ch. 27, § 1800.G.3.—6.
				Ch. 27, § 1801.B.3.b.
				Ch. 27, § 1901.A., B.1.—3., 3.c., C., D., G.
				Ch. 27, § 1902.A., B.1.—3., B.4., B.5., C., D., F.
				Ch. 27, § 1904.B., D.
				Ch. 27, § 1906.C.1.b.
				Ch. 27, § 1913.B., C., C.1.
			Rpld	Ch. 27, § 1913.C.2., D.
				Ch. 27, § 2003.A., E.
	2017-34	1		15-125(a)
		2		15-127(d)
	2017-50			App. B
2018	2018-2	1		18½-2

Ordinance Year	Chapter	Section		Disposition this Code
	2018-3	1		16-57
	2018-5	1—8		App. C
	2018-10	1	Added	2-10.1
	2018-11			12-89
	2018-12	1	Added	15-17.1
	2018-27	1		16-27
	2018-37	1		4-22
		2, 3	Added	4-23, 4-24
	2018-38	1		13-19—13-23
	2018-39	1		2-99
	2018-45	1—16		App. C
	2018-46	1	Added	2-10.2
	2018-48	1		21-251—21-258
			Rpld	21-259
	2018-51	1		17-189(a)(1)—(3)
	2018-70	1	Added	23-144
	2018-77	1—8		App. C
	2018-78	1—3		App. B
2019	2019-1	1, 2	Added	21-63.1
	2019-2	1		8-17
	2019-12	1	Added	16-86
	2019-15	1	Added	2-10.3
	2019-16	1	Added	12-20
	2019-17	1	Added	21-23
	2019-30	1	Added	2-19.1
	2019-33	1	Rpld	15-17.1
	2019-48	3		21-211, 21-212
	2019-49	1		11-1.1
	2019-56	1		17-189(a)(3)
2020	2020-2	1	Added	21-76
	2020-7	1		2-14
	2020-8	1		12-63
				12-80
	2020-11	1—8		App. C
	2020-20	1		23-31
	2020-21	1	Added	2-358
	2020-26			15-11
	2020-32	3		21-211, 21-212
	2020-36	1		2-358
	2020-48	1	Added	23-167—23-169
	2020-49	1	Added	2-18.6
2021	2021-2	1, 2		16-54, 16-55
		3—5		16-63—16-65
		6		16-76

Ordinance Year	Chapter	Section		Disposition this Code
	2021-3	1	Rpld	14-260—14-268, 14-270—14-275
			Added	14-260—14-275
	2021-7	1		8-14
	2021-11	1—8		App. C
	2021-12	1—8		App. C
	2021-15	1		21-111
	2021-17	1	Rpld	2-45
		2	Added	2-141—2-144
	2021-20	1	Added	13-57—13-62
	2021-21	1—11	Added	21-301—21-311
	2021-29	1	Added	23-191—23-197
		2		15-2
	2021-30	1	Added	5-8
	2021-31	1	Rpld	2-371—2-377
			Added	2-371—2-378
2022	2022-4	1	Added	21-24
	2022-12	1		2-304
	2022-13	1		14-134 14-137, 14-138
	2022-14	1	Rpld	23-167—23-169
			Added	23-167—23-170
	2022-25	1		2-304
	2022-31	1	Added	14-339—14-341
	2022-34	1—14		App. C
	2022-41	1		18-22
	2022-42	1		16-21
	2022-43	1—9		App. C
	2022-62	1		21-38.1
	2022-65	1—9		App. C
	2022-67	1	Added	15-133
2023	2023-2	1—9		App. C
	2023-3	1		16-54
	2023-9	1		17-8
	2023-36	1	Added	5-126—5-139
	2023-49	1		23-191—23-197
		2		15-2
	2023-50	1	Added	4-13
	2023-51			15-11
	2023-52	1		12-113
		2		5-8
2024	2024-3	1	Added	5-140—5-146
	2024-10	1	Added	21-312
	2024-11	1	Added	15-141, 15-142

Ordinance Year	Chapter	Section		Disposition this Code
		2	Rpld	23-154
		3		15-2
	2024-15	1		2-304
	2024-16	1		13-18
	2024-17	1		5-8
	2024-18	1	Added	17-35
	2024-25	1	Added	14-342—14-348
	2024-32	1		8-2
	2024-40	1	Added	5-147—5-160
	2024-64	1	Added	13-63—13-68

CHARTER INDEX

Section

A

ACTS
Transitional provisions
Inconsistent acts and ordinances..... 1404

ADVERTISING
Acquisition and disposal of property, readvertising provisions..... 416
City treasurer
Supervising advertisement for sale of bonds, etc. ..... 602(b)(7)

AFFIRMATIVE ACTION
Affirmative action office, officer..... 906

AGE DISCRIMINATION
Human relations commission..... 1103

AMENDMENTS TO CHARTER
Charter review commission 1302
Generally..... 1301
Public hearings on proposed charter amendments or changes ..... 411(f)

ANCESTRAL ORIGIN
Discrimination because of
Human relations commission 1103

APPOINTMENTS. See: OFFICERS AND EMPLOYEES

APPROPRIATIONS
Additional appropriations 811
Adopting annual city budget appropriation ordinance
Legislative powers of council..... 401(c)
Annual appropriation ordinance
Public hearing on ..... 411(b)
Appropriation ordinance
City council's power to change..... 805
Failure to pass 806
Budget provisions. See also: FINANCES
City controller's powers and duties re appropriations .... 813(b)
City council's powers re..... 401
City council's power to change appropriation ordinance 805
City treasurer's powers and duties re ..... 602(b)
Mayor's right of veto..... 302(f)
Ordinances requiring appropriation of money 409
Public hearings on annual appropriation ordinance..... 411

	Section
APPROPRIATIONS (Cont'd.)	
Transfer of appropriations	810
ARCHIVES	
Division of archives and history	601(b)
ASSESSMENTS	
Acquisition and disposal of property	416
Board of tax assessment review	814
City assessor	813(f)
ATTORNEYS AT LAW	
City solicitor	603
AUDITS	
Annual audit	817
City controller auditing invoices, claims, etc.	813(b)
Internal auditor	816
B	
BIDS, BIDDING	
Acquisition and disposal of property	416
Board of contract and supply	1007
Department of public property, provisions re bids and bidding	1006
BIRTHS	
Registrar of vital statistics keeping records of births	606
BLIZZARDS	
Emergency ordinances	413
BOARD OF CANVASSERS	
Appointment, term	203(a)
Powers and duties	203(b)
BOARDS. See: DEPARTMENTS AND OTHER AGENCIES OF CITY	
BONDS AND NOTES OF CITY	
Borrowing	
Bond anticipation notes	807(h)
Bond ordinances	807(e)
Debt service	807(i)
Demand notes prohibited; notes to be sold at not less than par	807(d)
Emergency bonds	807(f)
Emergency notes	807(c)

	Section
BONDS AND NOTES OF CITY (Cont'd.)	
Method of sale of bonds	807(l)
Obligations of the city	807(o)
Payment of bonds	807(j)
Period of usefulness	807(k)
Referendum	807(g)
Remaining balances from sale of bonds	807(n)
Special revenue notes	807(b)
Tax anticipation notes	807(a)
Time limit on bond issuance	807(p)
Validity of bond ordinances	807(m)
City solicitor preparing bonds	603(b)(8)
City treasurer's powers and duties re	602(b)(6), (7)
BONDS OF OFFICERS AND EMPLOYEES	
General provisions	1211
BORROWING. See: BONDS AND NOTES OF CITY; See also: FINANCES	
BOUNDARIES	
Port district, boundaries of	1016(b)
Wards and ward boundaries	204
Public hearings on	411(e)
BRIDGES	
Construction, reconstruction and maintenance of bridges	
Department of public works	1002
Department of traffic engineering	1017(b)
BUDGET. See: FINANCES	
BUILDING BOARD OF REVIEW	
Composition, appointment and terms of members, etc.	1011
Department of inspection and standards	
General administrative responsibility for board	1008
BUILDING CONSTRUCTION	
Building inspection	
Functions and responsibilities of department of inspection and standards	1008
Department of public property	1006
Department of public works	1002
BURIAL PERMITS	
Registrar of vital statistics issuing	606

Section

C

CALAMITIES
Emergency ordinances 413

CANVASSERS, BOARD OF. See: BOARD OF CANVASSERS

CAPITAL BUDGET. See: FINANCES

CEMETERIES
Board of park commissioners' jurisdiction over..... 1003

CHARLES H. SMITH ESTATE
Investment of assets, expenditure of income therefrom, etc..... 1106

CHARTER. See: HOME RULE CHARTER
Amendments to charter
Charter review commission..... 1302
Generally 1301
Public hearings on proposed charter amendments or changes..... 411(f)
Charter review commission 1302
Council powers to implement charter 1403
Effective dates of charter 1401
Inconsistent acts and ordinances 1404
Separability of provisions 1209
Transitional provisions
Continuity in office 1402
Council powers to implement charter 1403
Effective dates of charter 1401
Inconsistent acts and ordinances..... 1404

CHIEF EXECUTIVE. See: MAYOR

CITY
Form of government 105
Incorporation 102
General corporate powers..... 103
Exercise of powers 104
Powers
Exercise of powers..... 104
General corporate powers..... 103

CITY ASSESSOR
Qualifications, powers and duties, etc. ..... 813(f)

	Section
CITY CLERK	
Clerk to have status of department head	601(a)
Division of archives and history	
Responsibility of city clerk, etc.	601(b)
Election and term	601(a)
Powers and duties	601(a)
Vacancy in office	601(a)
CITY COLLECTOR	
Powers, responsibilities, etc.	813(e)
CITY CONTROLLER	
Qualifications, powers and duties, etc.	813(b)
CITY COUNCIL	
Acquisition and disposal of property	416
Appropriation ordinance	
City council's power to change	805
Failure to pass	806
Charges against administrative personnel	403
Charter	
Council powers to implement charter	1403
City clerk	
Clerk attending meetings, keeping journal, etc.	601(a)
City solicitor's powers and duties re council	603(b)
Compensation, salaries of council members	415
Elected officials	201
Date of election	202
Emergency measures	413
Mayor's veto and council reconsideration	412
Experts retained by council	
Personnel system coverage and exemptions	905(f)
Investigation	
Power of investigation	402
Legislative power	401
Mayor-council form of government	105
See also: Mayor	
Mayor's veto and council reconsideration	412
Meetings	
City clerk attending meetings, keeping journal, etc.	601(a)
City solicitor to attend meetings	603(b)(3)
Generally	406
Mayor calling special meetings of council	302(d)
Open meetings of public bodies of city generally	1204
Organization meeting of council	404

	Section
CITY COUNCIL (Cont'd.)	
Ordinances, resolutions. See also that subject	
Authentication and publication of	414
Emergency ordinances	413
Inspection of proposed ordinances and resolutions by public	410
Introduction and form of ordinances	409
Legislative power to enact ordinances, etc.	401
Mayor passing upon ordinances and resolutions adopted by council, veto	302(f)
Mayor's veto and council reconsideration	412
Public hearings	411
Voting on	408
Powers	
Legislative power	401
Power of investigation	402
President and president pro tempore of council	405
Public hearings	411
Recall	208
Robert's rules of order	407
Rules, quorum, journal	407
Salaries of city council members	415
Salary review commission	415
Swearing in of elected officials	205
Term of office	202
Vacancies in elective offices	206
Voting	408
CITY DEPARTMENT. See: DEPARTMENTS AND OTHER AGENCIES OF CITY	
CITY SERGEANT	
Appointment, powers and duties, etc.	605
CITY SOLICITOR	
Election and term	603(a)
Head of department of law	603(a)
Investigations by city council	
Provisions re city solicitor	402
Legal assistants to solicitor	
Personnel system coverage and exemptions	905(i)
Powers and duties	603(b)
Qualifications	603(a)
Salary	603(a)
Vacancies in office	603(a)

	Section
CITY TREASURER	
Election and term	602(a)
Powers and duties	602(b)
Qualifications	602(a)
Status of department head	602(a)
Vacancy in office	602(a)
CLERGY	
Registrar of vital statistics issuing licenses of clergy	606
COLLECTIVE BARGAINING, NEGOTIATIONS. See: OFFICERS AND EMPLOYEES	
COLLECTOR. See: CITY COLLECTOR	
COLOR DISCRIMINATION	
Human relations commission	1103
COMMISSIONS. See: DEPARTMENTS AND OTHER AGENCIES OF CITY	
COMMUNICATIONS	
Department of communications	1001(c)
COMPREHENSIVE PLAN	
Adoption	1014(b)
City plan commission preparing, etc.	1013
Department of planning and urban development	
Assisting plan commission in development of plan, etc.	1012
Effect of plan	1014(d)
Implementation of plan	1014(c)
Public hearings on	411(c)
Purpose; scope	1014(a)
CONFLICTS OF INTEREST	
Prohibited activities and conflicts of interest	1206
CONSERVATION	
Conserving water supply	
Powers and duties of water supply board	1101(a)
CONSTRUCTION	
Construction and maintenance of berths, docks, etc.	
Powers and responsibilities of port commission	1016
Department of public property	1006
Department of public works	1002
Department of traffic engineering	
Powers and duties re construction of proposed highways, bridges, parking terminals, etc.	1017(b)

	Section
CONTRACTS	
Board of contract and supply	1007
City controller examining contracts, etc.	813(b)
City solicitor preparing contracts	603(b)(8)
Department of public property	
Contract provisions generally	1006(c)
Responsibility for contractual services, etc.	1006
Persons employed by contract to perform special services for city	
Personnel system coverage and exemptions	905(k)
Port commission	
Contracting with a director for the Port of Providence.	1016(a)(3)
School department (school board)	
Purchases or contracts for supplies, materials, etc.	708
CONTROLLER. See: CITY CONTROLLER	
City treasurer reviewing decisions of controller	602(b)(2)
COUNCIL. See: CITY COUNCIL	
COUNTRY OF ANCESTRAL ORIGIN	
Discrimination because of	
Human relations commission	1103
COURT. See: MUNICIPAL COURT; See also: PROBATE COURT	

D

DEATHS	
Registrar of vital statistics keeping records of deaths	606
DEBT OF CITY. See: FINANCES	
DEEDS	
City solicitor preparing deeds	603(b)(8)
Recorder of deeds	604
DEPARTMENTS AND OTHER AGENCIES OF CITY	
Affirmative action office	906
Annual report of department heads, etc.	1201(e)
Appointed members of commissions, departments and agency heads	
Public hearing on salaries of	411
Appointment, promotion, demotion, etc., of employees	904
Authority of department heads	1201(c)
Board of canvassers	203
Board of commissioners of the Dexter Donation	1105

	Section
DEPARTMENTS AND OTHER AGENCIES OF CITY (Cont'd.)	
Board of contract and supply	1007
Board of investment commissioners	815
Board of licenses	1102
Board of park commissioners	1003
Board of tax assessment review	814
Budget officer's powers and duties re financial records, etc.	813(c)
Building board of review	1008(a)(2), 1011
Charges against department heads or agency heads	403
Charter review commission	1302
City controller's powers and duties re financial and budget control over departments, offices, etc.	813(b)
City plan commission	1013
City solicitor to be chief legal advisor and attorney for departments, boards, commissions, etc.	603(b)(2)
City solicitor's powers and duties re departments, boards, commissions, etc.	603(b)
Delegation of work by department head, etc.	1201(d)
Delivery of records to successor upon leaving office	1201(f)
Department heads generally	1201
Department of communications	1001(c)
Department of inspection and standards	1008
Department of law	603
Department of planning and urban development	1012
Department of public property	1006
Department of public safety	905(m), 1001
Department of public works	1002
Department of recreation	1004
Department of traffic engineering	1017
Deputies of department heads	
Appointment, duties, etc.	1201(b)
Division of archives and history	601(b)
Finance department	813
See also: FINANCES	
Fire department	1001(b)
General provisions for boards, authorities and commissions	1202
General provisions for departments, department heads	1201

	Section
DEPARTMENTS AND OTHER AGENCIES OF CITY (Cont'd.)	
Housing board of review	1008(a)(2), 1010
Human relations commission	1103
Investigations by city council	402
Mayor's powers and duties re departments, heads of departments, etc.	302
Open meetings of public bodies of city	1204
Personnel department	901 et seq.
See: OFFICERS AND EMPLOYEES	
Personnel system coverage and exemptions	905
Police department	1001(a)
Port commission	1016
Providence housing authority	1107
Providence redevelopment agency	1108
Qualifications of department heads	1201(a)
Recreation, department of	1004
Recreational advisory board	1005
Retirement board	908
Salaries of department and agency heads	
Public hearings on	411
Salaries of members of boards, commissions	415
Salary review commission	415
School department	701 et seq.
See: SCHOOL DEPARTMENT	
Water supply board	1101
Zoning board of review	1008(a)(2), 1009
DEPOSITORY	
City treasurer selecting depository, etc.	602(b)(5)
DEVELOPMENT	
Providence redevelopment agency	1108
DEXTER DONATION	
Board of commissioners of the Dexter Donation	1105
DISCLOSURES OF INTERESTS	
Conflicts of interest of city officers and employees, disclosure provisions	1206(d)
DISCRIMINATION	
Human relations commission	1103
Prohibitions concerning partisan political activities	1206(a)

	Section
DIVISION OF ARCHIVES AND HISTORY	
Provision re	601(b)
DOCKS, BERTHS, ETC.	
Powers and responsibilities of port commission	1016
DOCUMENTS. See: OFFICIAL DOCUMENTS, PAPERS, REPORTS, RECORDS, ETC.	
DRAINAGE	
Department of inspections and standards	
Functions and responsibilities of department re drainage inspection	1008
DRAWBRIDGES	
Department of public works	
Construction, reconstruction and maintenance of drawbridges, etc.	1002
DUMPS	
Department of public works	
Operation and maintenance of incinerators and dumps	1002

E

ELECTIONS	
Board of canvassers	
Powers and duties re elections	203(b)
Borrowing, bond ordinances	
Referendum	807(g)
City clerk	
Election and term	601
City solicitors	
Election and term	603
City treasurer, elections	602
Date of election and terms of office	202
Elected officials	201
Initiative	209
Prohibitions concerning partisan political activities	1206(a)
Recall	208
Salaries of elected officers	
Public hearings on	411
Swearing in of elected officials	207
Vacancies in elective offices	206
Vacancies in office, enforcement	207

	Section
ELECTIONS (Cont'd.)	
Wards and ward boundaries	204
Public hearings on	411(e)
ELECTRICITY	
Department of inspection and standards	
Electrical inspections, functions and responsibilities of department	1008
EMERGENCIES	
Borrowing provisions	
Emergency bonds	807(f)
Emergency notes	807(c)
Emergency measures of council	413
Mayor's veto reconsideration	412
Mayor declaring state of emergency, etc.	302(i)
EMPLOYEES OF CITY. See: OFFICERS AND EMPLOYEES	
ENGINEERING	
Department of traffic engineering	1017
EQUAL EMPLOYMENT OPPORTUNITIES	
Affirmative action	906
F	
FINANCES	
Accounting system for city government, offices, etc.	
City controller maintaining, etc.	813(b)
Application of revenue	808
Appropriations. See that subject	
Audits	
Annual audit	817
Internal auditor	816
City controller's powers and duties	813(b)
Board of commissioners of the Dexter Donation	1105
Board of contract and supply	1007
Board of investment commissioners	815
Board of park commissioners	
Use of bequests and income from sale of surplus property limited	1003(b)
Board of tax assessment review	814
Appointments, terms of members	814

	Section
FINANCES (Cont'd.)	
Chairperson	814(a)
Composition	814
Organization	814(a)
Powers and duties	814(b)
Qualifications	814(a)
Quorum	814(a)
Vacancies	814
Bonds and notes of city. See that subject	
Borrowing	
Bond anticipation notes	807(h)
Bond ordinances	807(e)
Debt service	807(i)
Demand notes prohibited; notes to be sold at not less than par	807(d)
Emergency bonds	807(f)
Emergency notes	807(c)
Method of sale of bonds	807(l)
Obligations of city	807(o)
Payment of bonds	807(j)
Period of usefulness	807(k)
Referendum	807(g)
Remaining balances from sale of bonds	807(n)
Special revenue notes	807(b)
Tax anticipation notes	807(a)
Time limit on bond issuance	807(p)
Validity of bond ordinances	807(m)
Budget	
Appropriations. See also that subject	
Budget analyst	813(d)
Budget estimates	802
Budget officer	813(c)
Budget presentation	804
Capital budget	812
Capital improvement budget	
Public hearings on	411(b)
City controller's powers and duties re budget	813(b)
City council adopting annual city budget appropriation ordinance	401(c)
Mayor preparing and implementing city budget	302(c)
Mayor's right of veto	302(f)
Operating budget	803

	Section
FINANCES (Cont'd.)	
Port commission	
Adopting annual budget	1016(a)(5)
Public hearing on capital improvement budget	411(b)
Reductions to balance budget	809
School department (school board)	707
Capital budget	812
Charles H. Smith Estate	
Investment of assets	1106
City controller	813(b)
City treasurer reviewing decisions of controller	602(b)(2)
City solicitor's powers and duties re funds of city, etc.	603(b)
City treasurer	602
Civic center authority	
Provisions re accountants, borrowing money, funding, etc.	1104(b)
Contracts	
City solicitor's powers and duties re contracts	603(b)(8), (10)
Department of public property	
Provisions re purchasing, revolving fund, contracts, etc.	1006
Finance department	813
Budget analyst	813(d)
Budget officer	813(c)
City assessor	813(f)
City collector	813(e)
City controller	813(b)
Finance director	813(a)
Budget officer to be deputy finance director	813(c)
Finance director	813(a)
Budget officer to be deputy finance director	813(c)
Fiscal year	801
Internal auditor	816
Investigation of financial transactions of officers or departments	402
Port commission	
Adopting annual budget, expenditures of funds, etc.	1016(a)
Prohibited activities and conflicts of interest of city officers and employees	
Accepting gifts, money, etc.	12-6
School department (school board)	
Budget	707
Purchases	708

Section

FINANCES (Cont'd.)
Taxation. See that subject

FIRE DEPARTMENT
Generally ..... 1001(b)

FIRE INSURANCE FUND
Board of investment commissioners holding fund 815

FIREMEN
Personnel system coverage and exemptions
Firemen under jurisdiction of department of public safety ..... 905(m)

FIRES
Emergency ordinances 413

FISCAL YEAR
Fiscal year designated, etc. 801

FLOODS
Emergency ordinances 413

FORESTS
Board of park commissioners' jurisdiction 1003

FRANCHISES
Incorporation
City enjoys rights, franchises, etc. 102
Port commission
Applications for franchises, etc. ..... 1016(a)(6)

FRAUD
Contracts procured by fraud
City solicitor's powers and duties ..... 603(b)(10)

G

GARAGE, MUNICIPAL. See: MUNICIPAL GARAGE

GARBAGE AND TRASH
Department of public work's functions and responsibilities for garbage and refuse collection and disposal ... 1002

GAS INSPECTIONS
Functions and responsibilities of department of inspection and standards 1008

GOVERNMENT
Form of government 105

Section

H

HANDICAPPED PERSONS
Discrimination
Human relations commission 1103

HEALTH AND SANITATION
Emergency ordinances passed to meet public emergency affecting life, health, property, etc. 413

HEARINGS
Board of park commissioners
Holding public hearings ..... 1003(a)(4)
Board of tax assessment review
Holding public hearings ..... 814(b)
Charges against administrative personnel
City council ordering public hearing 403
Human relations commission
Holding public hearing 1103
Public hearings generally 411
Recreational advisory board
Holding public hearings ..... 1005(a)(2)
Vacancy in office, enforcement procedure
Calling public hearing 207

HIGHWAYS
Department of public works
Construction, reconstruction and maintenance of highways and bridges 1002
Department of traffic engineering
Powers and duties re highways of city 1017

HISTORY
Division of archives and history ..... 601(b)

HOME RULE CHARTER
Definitions 107
General corporate power 103
Exercise of powers 104
Incorporation
Generally 102
Title 101

HOUSING
Providence housing authority 1107

	Section
HOUSING BOARD OF REVIEW	
Composition, appointment and terms of members, etc.	1010
Department of inspection and standards	
General administrative responsibility for board	1008
HOUSING CODE	
Department of inspection and standards	
Functions and responsibilities of department re minimum housing code enforcement and inspection	1008
HURRICANES	
Emergency ordinances	413
I	
IMPROVEMENTS	
Capital improvement plan	
City plan commission reviewing and approving for submission, etc.	1013
Comprehensive plan, provisions re capital improvements	1014(d)
Five-year capital improvement program, annual capital improvement budget	
Duties of department of planning and urban development	1012
INCINERATORS	
Department of public works	
Operation and maintenance of incinerators and dumps	1002
INITIATIVE	
Generally	209
INSPECTIONS AND STANDARDS, DEPARTMENT OF	
Director of inspections and standards	1008
Functions and responsibilities, etc.	1008
INTERNAL AUDITOR	
Audits. See also that subject	
Generally	816
Powers and duties	816(a)
Scope of audits	816(b)
INVESTMENTS AND INVESTED FUNDS OF CITY	
City treasurer to have custody of, etc.	602(b)(6)
Investigations by committees	411

Section

J

JUDGE OF MUNICIPAL COURT. See: MUNICIPAL COURT

JUDGE OF PROBATE COURT. See: PROBATE COURT

L

LAW, DEPARTMENT OF
City solicitor head of department of law, etc. 603

LEASES
City solicitor preparing leases..... 603(b)(8)
Civic center authority
Power to lease property, easement, etc..... 1104(b)(5)
Leases of city-owned real property ..... 416(6)
Port commission
Provisions re leasing of lands, facilities, etc. ..... 1016(a)(6)
Recorder of deeds, powers and duties re leases 604

LEGAL ADVISOR
City solicitor shall be chief legal advisor..... 603(b)(2)
Water supply board
Appointing legal advisor for purpose of advising board, etc. 1101

LICENSES AND PERMITS
Board of licenses 1102
Continuity in office, transitional provisions..... 1402
Marriage licenses, burial permits, licenses of clergy, etc.
Registrar of vital statistics issuing 606
Port commission
Applications for permits, licenses, etc..... 1016(a)(6)
Registrar of vital statistics issuing licenses and permits. 606

LIENS
Recorder of deed's powers and duties re liens 604

M

MARITAL STATUS
Discrimination because of
Human relations commission 1103

MARRIAGE LICENSES
Registrar of vital statistics issuing..... 606

	Section
MARRIAGES	
Registrar of vital statistics keeping records of marriages, etc.	606
MAYOR	
Absence or disability	304
Chief executive	105
City solicitor drafting executive orders, rules and regulations for mayor	603(b)(7)
Compensation, salary	303, 415
Elected officials	201
Date of election	202
Executive and administrative powers	301
Mayor-council form of government	105
See also: CITY COUNCIL	
Personnel system coverage and exemptions	905
Powers and duties of mayor	302
Executive and administrative powers	301
Recall	208
Salary	303, 415
Swearing in of elected official	205
Term of office	202
Vacancies in elective offices	206(b)
MECHANICAL INSPECTIONS	
Functions and responsibilities of department of inspections and standards	1008
MEETINGS	
Open meetings of public bodies of city	1204
MEETINGS OF COUNCIL. See: CITY COUNCIL	
MORTGAGES	
Recorder of deed's powers and duties re mortgages	604
MOTOR VEHICLES AND OTHER VEHICLES	
Traffic. See that subject	
MUNICIPAL COURT	
City solicitor's powers and duties re court	603
Judges; powers, duties, jurisdiction; etc.	501
MUNICIPAL GARAGE	
Director of public property	
Supervising and controlling municipal garage	1006(a)(6)

Section

N

NEWSPAPERS. See: PUBLICATIONS

NOTES. See: BONDS AND NOTES OF CITY

O

OATHS
- Board of licenses
  - Members authorized to administer oaths ..... 1102(c)
- Board of tax assessment review
  - Administering oaths..... 814(b)
- Oath of office 1208
- Recall petitions, provisions re oaths ..... 208(b)
- Swearing in of elected officials 205

OFFICERS AND EMPLOYEES
- Affirmative action officer..... 906
- Appointments
  - Appointments by mayor..... 302
    - City council approving or rejecting..... 401(b)
  - Appointments of employees generally..... 904
  - City council appointing officers and employees of city.. 401(e)
  - City council approving or rejecting appointments submitted to council by mayor ..... 401(b)
- Bonds of officers and employees..... 1211
- Budget analyst..... 813(d)
- Budget officer..... 813(c)
- Certain activities required to be disclosed..... 1206(b)
- Charges against appointive officers of city 403
- Chief of police ..... 1001(a)
- City assessor ..... 813(f)
- City archivist..... 601(b)
- City clerk..... 601 et seq.
  - See: CITY CLERK
- City collector ..... 813(e)
- City controller..... 813(b)
- City sergeant..... 605
- City solicitor..... 402 et seq.
  - See: CITY SOLICITOR
- City treasurer..... 602
- Clerk of municipal court..... 501
- Clerk of probate court..... 502
- Collective negotiations 907

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Commissioner of public safety	1001
Compensation, salaries	
Public hearing on salaries of elected officers, appointed members of commissions, etc.	411
Continuity in office	1402
Definition of "officer" or "official"	1207
Demotions	
Demotion of employees generally	904
Department of communications, commissioners	1001(c)
Director of communications	1001(c)
Director of inspection and standards	1008
Director of planning and urban development	1012
Director of public property	1006
Director of public works	1002
Director of recreation	1004
Discharge of official duties	
Mayor to insure	302(g)
Dismissal, discharges of employees	
Generally	904
Elected official	201 et seq.
See: ELECTIONS	
Employee organization and collective negotiations	907
Entry upon duties of office	1208
Equal employment opportunities	
Affirmative action	906
Finance director	813
See also: FINANCES	
Fire chief, fire commissioner	1001(b)
Human resources department	901
Director of human resources; duties and powers	903
Internal auditor	816
Investigations by city council	402
Judge of municipal court	501
Judge of probate court	502
Mayor	105 et seq.
See: MAYOR	
Oath of office	1208
Personnel policy	902
Personnel system coverage and exemptions	905
Police commissioner	1001(a)
President and president pro tempore of council	405
Prohibitions concerning partisan political activities	1206(a)

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Promotions	
Promotions of employees generally	904
Recall	208
Recorder of deeds	604
Registrar of vital statistics	606
Residence requirements; exemption	1210
Salaries of consultants, engineers, etc.	
City council's legislative powers re	401(d)
Superintendent of schools	706
Suspension of employees	
Generally	904
Traffic engineer	1017
Transitional provisions	
Continuity in office	1402
Vacancies in elective offices	206
Vacancies in office, enforcement	207
OFFICIAL DOCUMENTS, PAPERS, REPORTS, RECORDS, ETC.	
Board of licenses	
Compelling production of papers, documents, records, etc.	1102(c)
City clerk keeping on file, inspections, etc.	601
City controller keeping records of financial and budget control, etc.	813(b)
City treasurer maintaining financial records	602(b)(3)
Department heads or other officers of city	
Delivery of records to successor upon leaving office	1201(f)
Director of public property	
Maintaining records of purchases, contracts, etc.	1006(e)
Internal auditor to have access to records of offices, departments, etc.	816
Investigations by city council	
Compelling production of papers, books and other evidence	402
Public records generally	1203
Recorder of deeds	604
Registrar of vital statistics keeping records of births, deaths, etc.	606
OFF-STREET PARKING FACILITIES	
Powers and duties of department of traffic engineering	1017

	Section
OPEN MEETINGS	
Generally	1204
ORDINANCES, RESOLUTIONS, ETC.	
Appropriation ordinances. See: APPROPRIATIONS	
Bond ordinances	807(e)
City treasurer supervising preparation of bond ordinances	602(b)(7)
Validity of bond ordinances	807(m)
City council's powers and duties re	401 et seq.
See: CITY COUNCIL	
Emergency ordinances	413
Inconsistent acts and ordinances, transitional provisions	1404
Initiative	209
Mayor passing upon ordinances adopted by council, veto	302(f)
Police department, commissioner	
Enforcement of laws and ordinances	1001(a)(2)
Transitional provisions	
Inconsistent acts and ordinances	1404
P	
PAPERS. See: OFFICIAL DOCUMENTS, PAPERS, REPORTS, RECORDS, ETC.	
PARKING	
Department of traffic engineer	
Powers and duties re parking	1017
PARKS AND RECREATION	
Board of park commissioners	1003
Continuity in office, transitional provisions	1402
Department of recreation	1004
Recreational advisory board	1005
PERMITS. See: LICENSES AND PERMITS	
PERSONNEL OF CITY, PERSONNEL POLICY, ETC. See: OFFICERS AND EMPLOYEES	
PETITIONS	
Board of park commissioners	
Holding public hearings, provisions re petitions	1005(a)(3)
Initiative	209
Public hearings generally, provisions re petitions	411
Recall of mayor or city council member	208

	Section
PETITIONS (Cont'd.)	
Recreational advisory board	
Holding public hearings, provisions re petitions	1005(a)(2)
PLANNING	
City plan commission	1013
Civic center authority	
Power to engage or employ planning consultants, etc.	1104(b)(6)
Comprehensive plan	1014
Department of planning and urban development	1012
Public hearing on land use control	411(c)
PLUMBING	
Department of inspection and standards	
Plumbing inspections, functions and responsibilities of department	1008
POLICE DEPARTMENT	
Board of licenses	
Requiring police department to inspect, investigate and report on applications for licenses, etc.	1102
City solicitor to prosecute complaints brought by police	603(b)(6)
Generally	1001(a)
Personnel system coverage and exemptions	
Policemen under jurisdiction of department of public safety	905(m)
POLITICAL ACTIVITIES	
Prohibitions concerning partisan political activities	1206
PORT COMMISSION	
Composition; appointment and terms of members; powers and responsibilities; etc.	1016
POWERS	
Exercise of powers	104
General corporate powers	103
PRESIDENT OF CITY COUNCIL	
President and president pro tempore of council	405
Additional provisions re council. See: CITY COUNCIL	
PRINTING AND DUPLICATING EQUIPMENT	
Director of public property	
Supervising and controlling equipment	1006(a)(7)
PROBATE COURT	
City solicitor's powers and duties re court	603

	Section
PROBATE COURT (Cont'd.)	
Judges; powers, duties, jurisdictions; etc.	502
Judge swearing elected officials	205
PROPERTY	
City council	
Acquisition and disposal of property	416
Department of public property	1006
Emergency ordinances to protect property	413
PROVIDENCE HOUSING AUTHORITY	
Composition; appointment and terms of members; etc.	1107
PROVIDENCE PLAN HOUSING CORPORATION	
Sale of city property to	416(8)
PROVIDENCE REDEVELOPMENT AGENCY	
Composition; appointment and term of members; etc.	11-8
Sale of city property to	416(8)
PUBLIC HEARING. See: HEARINGS	
PUBLIC RECORDS. See: OFFICIAL DOCUMENTS, PAPERS, REPORTS, RECORDS, ETC.	
PUBLIC SAFETY, DEPARTMENT OF	
Commissioner of public safety	1001
Composition	1001
Department of communications	1001(c)
Fire department	1001(b)
Head of department	1001
Police department	1001(a)
Policemen and firemen under jurisdiction of	
Personnel system coverage and exemptions	905(m)
PUBLIC WORKS	
Department of public works	1002
PUBLICATIONS	
Acquisition and disposal of property	
Giving public notice in newspapers, etc.	416
Authentication and publication of ordinances and resolutions	414
Department of traffic engineering	
Publication of rules and regulations in newspaper	1017(c)
Public hearings, publication of generally	411, 1205
PURCHASES, PURCHASING. See also: FINANCES	
Board of contract and supply	1007

	Section
PURCHASES, PURCHASING (Cont'd.)	
City controller examining purchase orders, etc.	813(b)
Department of public property	
Provisions re purchases	1006
Responsibilities for purchasing and procurement of materials, supplies, etc.	1006
School department (school board)	708

R

RACIAL DISCRIMINATION	
Human relations commission	1103
RADIO EQUIPMENT	
Department of communications	1001(c)
REAL ESTATE	
Recorder of deeds	604
See also: DEEDS	
RECALL OF OFFICERS	
Generally	208
RECORDS, REPORTS. See: OFFICIAL DOCUMENTS, PAPERS, REPORTS, RECORDS, ETC.	
RECREATION. See: PARKS AND RECREATION	
REDEVELOPMENT AGENCY, PROVIDENCE	
Composition; appointment and terms of members; etc.	1108
REFERENDUM. See also: ELECTIONS	
Bond ordinances, referendum	807(g)
REFUSE. See: GARBAGE AND TRASH	
REGISTRAR OF VITAL STATISTICS	
Appointment, keeping records, etc.	606
RELIGIOUS DISCRIMINATION	
Human relations commission	1103
RESIDENCY	
Monitoring; violations reporting duties	1210
Residence requirement for city officers; exemption	1210
RESOLUTIONS. See: ORDINANCES, RESOLUTIONS	
RETIREMENT BOARD	
Composition	908(a)
Election and term	908(a)

	Section
RETIREMENT BOARD (Cont'd.)	
Powers and duties	908(b)
Vacancies	908(a)
REVENUE OF CITY. See: FINANCES	
RIOTS	
Emergency ordinances	413
S	
SCHOOL DEPARTMENT (School board)	
Appointment	701
Budget	707
Compensation	704
Composition	701
Continuity in office, transitional provisions	1402
Employees of department, personnel system coverage and exemptions	905(j)
Holding other offices or employment in service of city	702
Meetings	705
Number, selection, term of members	701
Organization, rules and meetings	705
Powers and duties	706
Purchases	708
Qualifications	702
Term of members	701
Vacancies	703
SCHOOL FUNDS	
Application of revenue	808
SCHOOL PROPERTY	
Public recreational areas including those on or adjacent to school property	
Board of park commissioners' jurisdiction over	1003
SCHOOLS	
Superintendent of schools	706(c), (e)
SERGEANT	
City sergeant	605
SEXUAL DISCRIMINATION	
Human relations commission	1103
SHRUBBERY. See: TREES AND SHRUBBERY	
SIDEWALKS. See: STREETS AND SIDEWALKS	

	Section
SMITH ESTATE, CHARLES H.	
Investment of assets, expenditure of income, etc.	1106
SNOW REMOVAL	
Department of public works' functions and responsibilities	1002
SOLICITATION	
Prohibited activities and conflicts of interest of city officers and employees	
Solicitations prohibited	1206
Soliciting money on a partisan political basis by city officers and employees	1206(a)
SOLICITORS. See: CITY SOLICITORS	
STATE OF EMERGENCY	
Mayor declaring, etc.	302(i)
STORAGE	
Department of public property	
Powers and duties of director of department	1006
STREET LIGHTING	
Department of public works	
Operation and maintenance of street lighting	1002
STREETS AND SIDEWALKS	
Department of public works' functions and responsibilities	1002
Trees, shrubs and plants in streets of city	
Board of park commissioners jurisdiction	1003
SUBPOENAS	
Board of licenses	
Compelling witnesses by subpoena, etc.	1102(c)
Human relations commission	
Provisions re subpoena of witnesses, evidence, etc.	1103(b)(6)
Investigations by city council	
Subpoena power	402

T

TAXATION. See also: ASSESSMENTS	
Board of tax assessment review	814
Continuity in office	1402
Borrowing. See also: FINANCES	
Special revenue notes	807(b)

	Section
TAXATION (Cont'd.)	
Tax anticipation notes	807(a)
City collector billing and collecting taxes	813(e)
City council	
Legislative powers, tax levy	401(c)
Public hearings on new taxes or increases in rate of existing taxes	411(d)
TELEVISION EQUIPMENT	
Department of communications	1001(c)
TESTIMONY	
Board of licenses	
Compelling witnesses to testify	1102(c)
Board of tax assessment review	
Administering oaths and receiving testimony	814(b)
Investigations by city council	402
TRAFFIC	
Department of traffic engineering	1017
TRANSITIONAL PROVISIONS	
Continuity in office	1402
Council powers to implement charter	1403
Effective dates of charter	1401
Inconsistent acts and ordinances	1404
TREASURER. See: CITY TREASURER	
TREES AND SHRUBBERY	
Board of park commissioners' jurisdiction	1003
U	
URBAN DEVELOPMENT	
Department of planning and urban development	1012
V	
VETOES BY MAYOR	
Generally	302(f)
Mayor's veto and council reconsideration	412
VITAL STATISTICS	
Registrar of vital statistics	606

Section

W

WARDS
Wards and ward boundaries 204
Public hearings on ..... 411(e)

WATER SUPPLY BOARD
Composition; appointment, terms of members; powers and duties; etc. 1101

WATER SUPPLY SYSTEM
Application of revenue 808

WATER, WATERFRONT
Port commission; powers and responsibilities re docks, berths, etc. 1016

WATERWORKS
Waterworks depreciation and extension fund
Board of investment commissioners holding fund 815

WEIGHTS AND MEASURES
Department of inspection and standards 1008

WITNESSES
Board of licenses
Summoning witnesses, etc. 1102
Charges against administrative personnel
Compelling attendance of witnesses 403
Human relations commission
Compelling attendance of witnesses for investigatory purposes ..... 1103(b)(6)
Investigations by council
Compelling attendance of witnesses 402

Z

ZONING
City plan commission
Submitting advisory opinions and recommendations on zoning amendments 1013
Public hearing on land use control ..... 411(c)

ZONING BOARD OF REVIEW
Composition, terms of members, etc. 1009
Department of inspection and standards
General administrative responsibility for board of review 1008

CODE INDEX

Section

A

ABANDONMENT
- Abandoned property registration, security and maintenance 13-47
- See: HOUSING
- Explosives and inflammables; drainage of tanks abandoned by filling stations 9-73
- Motor buses; abandonment of grants and privileges by companies..... 24-84
- Motor vehicles and traffic
  - Storage of dismantled, junked or abandoned vehicles 15-36 et seq.
- Offenses and miscellaneous provisions
  - Abandoned or unattended refrigerators, other receptacles 16-1
- Railroad companies, abandonment of grants and privileges by..... 19-12
- Real estate non-utilization tax
  - Notice of designation as vacant and abandoned 21-253

ACTIONS. See: SUITS, ACTIONS AND OTHER PROCEEDINGS

ADDRESSES
- Elections; purging to voters' list..... 2-302
- Numbering, renumbering of streets, buildings 23-2

ADMINISTRATIVE ASSISTANT
- Position created; appointment; salary; duties..... 2-40

ADULT ENTERTAINMENT
- Shows and other amusements
  - Commercial establishments where alcoholic beverages are offered for sale
    - Nudity on premises where alcoholic beverages are offered for sale..... 14-230

ADVERTISING
- Calling attention to displays, sales, business, conducted within building 3-2
- Erection, display of bills, posters, etc., on highways .. 3-5
- Handbills, circulars, similar items
  - Distribution of..... 3-1
- Motor buses; removal of advertisements 24-71
- Parks, prohibition re 18-10, 18-11
- Penalties 3-6

	Section
ADVERTISING (Cont'd.)	
Posting, affixing, bills, posters, etc., to structures	3-4
Shows, exhibitions and theatricals	3-3
Sound trucks; commercial advertising prohibited	24-103
AFFIRMATION. See: OATH, AFFIRMATION, SWEAR OR SWORN	
AGREEMENTS. See: CONTRACTS AND AGREEMENTS	
AIR CONDITIONING. See: HEATING, AIR CONDITIONING AND REFRIGERATION	
ALARM SYSTEMS	
Fire alarms; connection to private alarms systems with city systems	9-91 et seq.
See: FIRE PREVENTION AND PROTECTION	
ALCOHOLIC BEVERAGES	
Floor hosts; persons working as	
Licensing	14-14
Motor buses	
Drivers not to drink, be under influence	24-79
Offenses and miscellaneous provisions	
Prohibition against unlicensed establishments charging patrons fees related to the consumption of alcohol	16-25
Parks, prohibition re	18-21
Shows and other amusements	
Commercial establishments where alcoholic beverages are offered for sale	14-230 et seq.
Streets, sidewalks, etc.	
Consumption of alcoholic beverages on public way or grounds owned by city or on licensed parking lot or land	23-32
AMUSEMENTS AND AMUSEMENT PLACES	
Advertising shows, exhibitions and theatricals	3-3
Shows and other amusements	
Billiard parlors, poolrooms, bowling alleys, shooting galleries and amusement centers	
License	
Application	14-203
Distance of licensee from school	14-202.2

	Section
AMUSEMENTS AND AMUSEMENT PLACES (Cont'd.)	
Fees	
Bagatelle, billiard, pool or sippio tables and amusement centers	14-206
Bowling alleys, shooting galleries	14-207
License year; prorating license fees	14-208
Posting and display	14-210
Renewal	14-209
Required	14-202
Restrictions upon	14-212
Revocation	14-213
Transferability	14-211
Objections to issuance of license	
Effect of	14-205
Notice, opportunity to be afforded	14-204
Rules and regulations governing licensed premises	14-214
Commercial establishments where alcoholic beverages are offered for sale	
Event promoter licensing	14-233
Minors prohibited in certain establishments	14-231
Nudity on premises where alcoholic beverages are offered for sale	14-230
Restricting the presence of patrons under age of eighteen (18) in Class N liquor establishments when entertainment is offered	14-232
License required	
Definitions	14-194
Entertainment license	
Application and hearing required	14-195
Conditions	14-196
Exception—Special event entertainment	14-197
Fees for designated licenses; additional charges and costs	14-198
Investigation of show or exhibition; report of investigation; action on report	14-201
License expiration	14-199
Provisions, re	14-193
Trampolines	
Application for license	14-221
Effect of objections to issuance of license	14-223
Expiration, renewal of license	14-225
Fee for license; prorating fee	14-224
License required for operation	14-220

	Section
AMUSEMENTS AND AMUSEMENT PLACES (Cont'd.)	
Notice, opportunity to object to issuance of license to be afforded	14-222
Posting and display of license	14-226
Revocation of license	14-228
Rules and regulations governing places used	14-229
Transferability of license	14-227
AND, OR	
Definitions and rules of construction	1-2
ANIMALS AND FOWL	
Confinement of animals in motor vehicles prohibited	4-12
Control of dogs and other animals	
Bite cases, reports of	4-39
Confinement of dogs and other animals in heat	4-37
Definitions	4-31
Dog officer	
Interference with dog officer, police, unauthorized release of impounded animal	4-50
Records to be kept by	4-51
Right to enter premises, examine and seize dog	4-49
Summonses, authorized to serve	4-49.1
Enforcement	4-32
Exemptions from provisions	4-41
Fee for owner-requested destruction of dog	4-33.1
Filing complaints under provisions	4-48
Impoundment	
At-large dogs	4-46.1
Dogs and other animals	4-34
Fees	4-36
Proof of ownership required prior to impounding dog or cat	4-34.1
Redemption of impounded dogs or other animals	4-35
Keeping and harboring additional dogs	4-23
Maximum number of dogs allowed	4-37.1
Maximum number of felines allowed	4-37.2
Nuisance conditions declared; abatement required	4-47
Owners responsible for damage done by their dogs	4-55
Prohibition of the sale of dogs and cats	4-24
Rabies control	4-38
Registration of certain breeds of dogs required	4-54
Restraint of dogs required	4-33

	Section
ANIMALS AND FOWL (Cont'd.)	
Vaccination	
At-large dogs	4-46.1
Certificate prerequisite to licensing dog	4-44
Immunization prerequisite to owning, keeping, harboring dogs	4-45
Impounding, disposal of unvaccinated, uninoculated dog	4-46
Prerequisite to permitting dogs in city	4-42
Vaccine to be approved; certification of inoculation or vaccination	4-43
Veterinarians, responsibilities of	4-40
Vicious dogs, control of	4-53
Violation and penalty	4-52, 4-56
Dead animals	
Burying	4-6
Contract for removal	4-8
Transporting	4-7
Defecation	12-89.3
Premises to be free of animal excrement	12-89.4
Disposition or destruction of animals	4-10
Dogs	
Control of dogs and other animals. See herein that subject	
Dog breeding	4-22
Excreta	
Canine waste and removal	
Duties to dispose	4-27(a)
Duty to possess means of removal	4-27(b)
Exemption	4-27(e)
Fines for violations	4-27(d)
Method of removal and disposal	4-27(c)
Severability	4-27(f)
Licensure and proof of vaccinations	4-19
Police department dogs	
Molesting, injuring, interfering with	4-25
Sheltering, tethering and nourishment of dogs	4-28
Special constables	
Fees for destroying, listing dogs	4-26
Euthanization by lethal injection only	4-9
Fowl	
Maximum chicken hens allowed	4-37.3

	Section
ANIMALS AND FOWL (Cont'd.)	
Impoundment	
Control of dogs and other animals. See herein that subject	
Establishment of public pound	4-1
Manure and refuse	
Bins for manure and refuse, removal	4-5
Minimum care of animals	4-11
Parks, prohibitions re	18-1 et seq.
See: PARKS AND RECREATION	
Penalty for violation of sections 4-11 and 4-28	4-29
Prohibition on access to school property, athletic fields, playgrounds, or recreational areas	4-21
Duties to dispose	4-21(a)
Duty to possess means of removal	4-21(b)
Exemption	4-21(e)
Fines for violation	4-21(d)
Method of removal and disposal	4-21(c)
Severability	4-21(f)
Regulations for dogs in city parks and conservation areas; penalty for violations	4-20
Rabies control, vaccination, etc. See herein: Control of Dogs and other Animals	
Running at large	4-2
Stables	
Horses	5-32 et seq.
Swine, keeping	4-3
Traveling circuses prohibited	4-13
ART IN CITY LIFE	
Art in city life commission	
Composition	2-354(a)
Nominations	2-354(c)
Terms of office	2-354(b)
Definitions	2-352
Fund established; disbursements	2-357
Funds for works of art; informing commission of eligible projects	2-353
Placement of works of art	2-356
Plan	2-355
Purpose	2-351
Special committee for commemorative works	2-358

Section

ASSEMBLIES. See: DEMONSTRATIONS AND ASSEMBLIES

ATTORNEYS
City solicitor ..... 2-98 et seq.
See: CITY SOLICITOR

AUCTIONS AND AUCTIONEERS
Assistants must be duly elected, appointed and qualified 14-23
Cappers..... 14-31
Certain sales exempted..... 14-32
Election of auctioneer..... 14-20
False representations and substitutions 14-30
Fee for license and commission..... 14-21
Inspection of premises 14-28
Out-of-state assistants to obtain city permit, post bond, pay prescribed fee..... 14-24
Prohibited hours of sales..... 14-29
Record book to be kept 14-22
Seller to have been in business in city, not to have sold at auction within one year..... 14-27
Ten days, auction sales not to continue more than 14-25
Written notice to sale to be given..... 14-26

AUTO BODY SHOPS. See: MOTOR VEHICLE REPAIR BUSINESS

B

BATHING. See: SWIMMING OR BATHING

BICYCLES
Registration and licensing of bicycles
Definitions 14-236.5
Pedicab decal
Application for..... 14-241.5
Denial of decal for failure to comply with article . 14-243
Duration of validity of..... 14-242.5
Fee..... 14-242
Provisions, re 14-241
Suspension or revocation of operating permit or decal..... 14-247
Pedicab, generally
Application for operating permit..... 14-237.5
Damage to public property 14-246

	Section
BICYCLES (Cont'd.)	
Denial of pedicab operating permit, suspension or revocation	14-239.5
Denial of permit for failure to comply with article	14-239
Duration of validity of operating permit	14-238.5
Enforcement authority	14-247.5
Fare schedule	14-240.5
Identification badges issued to pedicab operators with a permit	14-240
Insurance requirements	14-246.6
Passenger seating requirements	14-245.5
Pedicab operating permit fee	14-238
Permit requirement to operate pedicab	14-237
Pedicab operators	
Damage to public property	14-246
Driver's license requirement to operate a pedicab	14-244.5
Duration of validity of operating permit	14-238.5
Identification badges issued to pedicab operators with a permit	14-240
Insurance requirements	14-246.6
Minimum age of pedicab operators	14-244
Other laws applicable to pedicab owners and operators	14-243.5
Passenger seating requirements	14-245.5
Permit requirement to operate pedicab	14-237
Regulations for pedicab operations	14-245
Permits	
Application for operating permit	14-237.5
Denial of pedicab operating permit, suspension or revocation	14-239.5
Denial of permit for failure to comply with article	14-239
Duration of validity of operating permit	14-238.5
Identification badges issued to pedicab operators with a permit	14-240
Pedicab operating permit fee	14-238
Permit requirement to operate pedicab	14-237
Suspension or revocation of operating permit or decal	14-247
Purpose	14-236
Traffic regulations	15-70 et seq.
See: MOTOR VEHICLES AND TRAFFIC	

BILLBOARDS. See: SIGNS AND BILLBOARDS

	Section
BILLIARD PARLORS	
Regulations enumerated	14-202 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	
BLASTING AGENTS. See: EXPLOSIVES AND BLASTING AGENTS	
BOARD OF CANVASSERS AND REGISTRATION	
Seal	2-347
BOARDS, COMMITTEES AND COMMISSIONS. See: DEPARTMENTS AND OTHER AGENCIES OF CITY	
BOATS, DOCKS AND WATERWAYS	
Harbor and port	11-1 et seq.
See: HARBOR AND PORT	
Roger Williams Park, operating canoes in	18-3
See: PARKS AND RECREATION	
Soliciting for watercraft	14-11
BODY WORKS SERVICES	
Advertisement	14-255.5
Authority to promulgate rules	14-252
Definitions	14-254
Employee and independent contractor restrictions	14-258
Enforcement	14-259.5
Exceptions and exclusions	14-254.5
Facilities	14-259
License	
Display of	14-255
Expiration date of	14-253.5
Required	14-251
Required and fee; nontransferability	14-253
Required records	14-256
Requirements for body works	
Establishment licensure	14-257.5
Personnel licensure	14-257
Sanitation and decency code	14-258.5
Supervisor	14-256.5
BODYGUARDS, BOUNCERS	
Floor hosts; persons working as; licensing	14-14
BONDS, SURETY OR PERFORMANCE	
City treasurer, duties as to register	2-72
Coupon sales	14-3

	Section
BONDS, SURETY OR PERFORMANCE (Cont'd.)	
Exchange of coupon bonds for registered bonds	21-7
Exchange of registered bonds for coupon bonds	21-8
Member of city government not to act as surety	2-5
Motor buses; bond required prior to licensing	24-50
Officers and employees, applicable provisions re	17-5, 17-36
See: OFFICERS AND EMPLOYEES	
Table of bond issues outstanding. See Appendix C	
BOOTBLACKS AND NEWSBOYS	
Badges	
Deposit for	14-49
Generally	14-48
Wearing of badge	14-50
Noise prohibited	14-53
Permit	
Persons not over sixteen years of age, issuance of permits to	14-46
Persons over sixteen years of age, issuance of permits to	14-45
Prerequisites to issuance of	14-44
Renewal	14-47
Required	14-43
Revocation	14-52
Record of permit, badges to be kept	14-51
BOUNDARIES	
Capital Center, special development district re Amendment of boundaries	2-363
Fulton street pedestrian mall	23-97.1
Market Square Pedestrian Mall	23-93
BOWLING ALLEYS	
Regulations enumerated	14-202 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	
BRUSH. See: WEEDS AND BRUSH	
BUILDINGS	
Advertising	
Calling attention to displays, sales, etc., conducted within buildings	3-2
Building energy reporting program	
Benchmarking required for municipal properties	5-129
Benchmarking required for other covered properties	5-130

	Section
BUILDINGS (Cont'd.)	
Definitions	5-127
Direct upload	5-134
Energy assessment or action requirements	5-136
Energy assessments or actions	5-135
Establishment	5-128
Exemptions	5-132
Maintenance of records	5-137
Notification of covered properties	5-131
Provision and publication of benchmarking information	5-133
Purpose and intent	5-126
Severability	5-139
Violations and enforcement	5-138
Convalescent, nursing homes and similar establishment	5-13 et seq.
See: CONVALESCENT, NURSING HOMES AND SIMILAR ESTABLISHMENTS	
Correcting violations prior to granting of exceptions	5-5
Deputy solicitor for housing and buildings	2-99.1
Division of housing and buildings	2-99.1
Egress requirements of certain occupancies	
Compliance required	5-2(c)
Doors, windows	5-2(a)
Lighting	5-2(b)
Energy efficiency and carbon neutral goals for municipal buildings	
Annual reporting guidelines	5-144
Definitions	5-141
Labor standards	5-145
Priorities and timeline	5-143
Purpose and intent	5-140
Scope and applicability	5-142
Severability	5-146
Fee schedule for new construction, alteration, demolition or other building operations	5-7
Fences	5-46 et seq.
See: FENCES, WALLS, HEDGES AND ENCLOSURES	
Fire limits, construction in	5-61 et seq.
See: FIRE LIMITS	
Fire prevention provisions	9-16 et seq.
See: FIRE PREVENTION AND PROTECTION	

	Section
BUILDINGS (Cont'd.)	
Fire safety approvals	5-6
Greenhouse gas emissions reduction targets in buildings	
Benchmarking required for municipal properties	5-150
Benchmarking required for other covered properties	5-151
Building energy reporting program	5-147
Definitions	5-148
Direct upload	5-155
Energy assessment or action requirements	5-157
Energy assessments or actions	5-156
Establishment	5-149
Exemptions	5-153
Maintenance of records	5-158
Notification of covered properties	5-152
Provision and publication of benchmarking information	5-154
Severability	5-160
Violations and enforcement	5-159
In-building public safety radio system coverage and obstruction to fixed point-to-point microwave network	
Amplification systems allowed	5-114
Costs	5-117
Definitions	5-111
Exemptions	5-116
Intent and purpose	5-110
Noncompliance	5-118
Penalties	5-119
Testing procedures	5-113
Use and occupancy	5-112
Who must comply	5-115
Lots	
Protection after demolition of structures thereon	5-4
Notice of application for a demolition permit	5-8
Nursing homes. See herein: Convalescent, Nursing Homes and Similar Establishments	
Post-construction stormwater control	5-81 et seq.
See: POST-CONSTRUCTION STORMWATER CONTROL	
Preservation of building ordinance, amendments	5-1

	Section
BUILDINGS (Cont'd.)	
Rat and vermin control	12-110 et seq.
See: RAT AND VERMIN CONTROL	
Sandblasting in cleaning	5-3
Soil erosion and sediment control	5-101 et seq.
See: SOIL EROSION AND SEDIMENT CONTROL	
Soliciting and entrances of hallways of buildings	14-10
Special flood hazard areas	5-120 et seq.
See: FLOOD HAZARD	
Stables	5-32 et seq.
See: STABLES	
Superintendent of public buildings	
General duties and records	2-194
Maintenance, custody, inspection of indexes, books and records	2-195
BUS LANES	
Provisions enumerated	15-54 et seq.
See: MOTOR VEHICLES AND TRAFFIC	
BUS SHELTERS	
Liability insurance for	15-10
BUSES	
Motor buses	24-47 et seq.
See: VEHICLES FOR HIRE	
BUSINESS IMPROVEMENT DISTRICTS	
Regulations enumerated	21-213 et seq.
See: FINANCES	

C

CAPITAL CENTER	
Capital Center Commission	
Designated	2-364
Purposes	2-361
Special development district	
Description	2-362
Public hearings prior to designation and amendment of boundaries	2-363
Zoning board of review, jurisdiction of	2-365

	Section
CARNIVALS	
Shows and other amusements	14-193 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	
CELEBRATION. See: FESTIVITIES	
CEMETERIES	
Board of control of state home and school	
Right to burial plot	6-3
Burials regulated	6-1
Female Academy	
Right to burial plot	6-2
Hopkins Burial Ground	
Control by park commission and superintendent	6-5
North Burial Ground	
Accounts of fees	6-27
Annual report of board of park commissioners	6-19
Certification of bills	6-27
Clerk and assistant clerk	
Appointment, duties	6-21
Control by park commission and superintendent	6-17
Deeds to persons providing for perpetual care	6-32
Disposition of funds received	6-34
Duties of board of park commissioners	6-18
Fees received by superintendent	6-26
Graves not to be dug in avenues or paths	6-30
Graves to be dug by superintendent or agents	6-29
Injury to monuments, trees, etc.	6-35
Lots to be held only as burial lots; transfer	6-28
Perpetual care of certain lots	6-31
Purchases	6-22
Record of burials in	6-25
Stakes, fences, etc.	
Removal of	6-35
Superintendent	
Appointment, duties, bond, compensation	6-20
Superintendent to maintain fences, report violations, to act under board	6-24
Trespass, committing	6-35
Vault or tomb	
Permission to erect; commissioners alone permitted to rent	6-33
Workmen, employment of	6-23

Section

CEMETERIES (Cont'd.)
Providence College
Right to burial plot 6-4
Violation and penalty 6-6

CERTIFICATES
Dog licenses; certificate prerequisite to issuance 4-44
Food services, health certificates re ..... 10-7 et seq.
See: FOOD AND FOOD PRODUCTS

CESSPOOLS. See: PRIVIES AND CESSPOOLS

CHICKENS
Slaughtering poultry ..... 10-104 et seq.
See: FOOD AND FOOD PRODUCTS

CIGARETTES. See: TOBACCO AND TOBACCO PRODUCTS

CIRCUSES
Shows and other amusements ..... 14-193 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES

CITY
Definitions and rules of construction 1-2
Motor vehicles
City vehicles to carry name of city 15-1
Public laws relating to city. See Appendix D
Seal ..... 2-335 et seq.
See: MUNICIPAL SEALS
Subscribing name of city 2-3

CITY CLERK
Clerk of committees, duty to act 2-52
Commissions issued by 17-2
Deputies and assistants
Duty of deputies as to committees 2-54
Generally 2-53
First night of Passover 2-10.1
Lobbyist registration
Duties and powers of the city clerk 2-270
Manual
Duty to prepare, superintend printing 2-51
Names of committeemen and elected officers, duty to furnish 2-47

Section

CITY CLERK (Cont'd.)
Votes, orders, resolutions and ordinances
Duty to furnish heads of departments, committee chairman copies..... 2-48
Duty to record..... 2-46
Expenditures, duty to furnish copies of votes of council requiring..... 2-49
Finance, duty to furnish copies of proposals and ordinances relating to..... 2-50

CITY CONTROLLER
Annual report
Required, contents..... 2-84
Documents
Destruction of certain documents after six years.... 2-87
Officers receiving fees, reports of..... 2-85
Statement of accounts deposited with city collector for collection..... 2-86

CITY COUNCIL
Acquiring option to purchase land
Authority..... 2-29
Payment for option and services of broker..... 2-30
Preservation of resolution or vote..... 2-31
Administrative assistant
Position created; appointment; salary; duties..... 2-40
Annual reports to council..... 2-27
Appointment of directors/officers/committee members 2-19.1
Committee on finance
Contracts with depositories; notice to city treasurer 2-33
Transfer of appropriation from one department to another..... 2-32
Committee on relief of firemen and policemen
Constituted..... 2-34
Community development block grant administration. 2-44
Definitions and rules of construction..... 1-2
Dr. Charles V. Chapin Memorial Award Committee
Constituted..... 2-35
Expenditures by committees of council..... 2-28
Filling office in case of disability, suspension, etc..... 2-19
Finance, committee on. See herein: Committee on Finance
Firemen. See herein: Committee on Relief of Firemen and Policemen

	Section
CITY COUNCIL (Cont'd.)	
Identification cards for council members	2-20
Internal auditor	
Powers and duties	2-42(a)
Scope of audit	2-42(b)
Leases to be accompanied by statement from city collector	2-41
Lobbyist registration	
Review by the city council	2-272
Mayor	
Authority to preserve public peace, property, health and safety	2-36
Declared public emergency, power of mayor during	
Enumerated, regulated	2-37
Ratification by city council	2-38
Termination	2-39
Emergency. See within subheading: Declared Public Emergency, Power of Mayor During	
Salaries	2-22
Signature on instruments in writing	2-21
Meetings	
Calling special meetings of council	2-24
Summoning members to special meetings of council	2-25
Petitions	
Notice of pendency and hearing of petitions to council	2-26
Policemen. See herein: Committee on Relief of Firemen and Policemen	
Recall, removal by	2-43
Salaries of councilmen; expense accounts	2-23
Seal	2-339 et seq.
See: MUNICIPAL SEALS	
Sustainability director	2-45
CITY ENGINEER	
Annual report; required, contents	2-140
Custody of plans; classification, indexing same	2-139
Duties generally	2-131
Matters on public improvement, consultation on	2-132
Measure, certified work done for city	2-134
Office of sustainability	
Director	2-142
Established	2-141

	Section
CITY ENGINEER (Cont'd.)	
Purpose and duties	2-143
Sustainability commission	2-144
Plats of streets and highways, duty to furnish	2-137
Record of highways, duty to keep	2-138
Sewers, duties in connection with	2-136
Streets, duties in relation to	2-135
Structures and public works, authority as to	2-133
CITY PLAN COMMISSION	
Adoption of general plan	2-250
Adoption of plans for specific improvements and projects	2-251
City plan director	
Appointment, term, assistants, employees	2-246
Experience	2-246
Compensation, members to serve without	2-243
Created, composition, appointment and term of members	2-240
Employing outside consultants and incurring necessary expense	2-248
Filling vacancies	2-241
Finance director, cooperation with as to capital improvement budget and program	2-253
General powers and duties	2-249
Hearing on adoption, amendment of plan	2-250
Investigations, maps and studies	
Making; distribution of copies of plans and studies.	2-254
Land development	
Authority to adopt, modify and amend regulations and rules governing	2-256
Manner of appointment and employees	2-247
Ordinances, resolutions affecting planning to be submitted to plan commission	2-255
Organization	2-242
Other departments, assistance from cooperation with	2-252
Regular and special meetings	2-244
Transaction of business, adoption of rules for	2-245
CITY REGISTRAR	
Seal	2-345
CITY SEAL. See: MUNICIPAL SEALS	

	Section
CITY SERGEANT AND CITY MESSENGER	
City hall and city property	
Custody of	2-180
Duties as to care, superintendence of city hall and offices	2-181
Specified hours, duty to keep city hall open during.	2-182
Custodian and keeper of city's flags, designated	2-172
Documents, pamphlets, books	
Custody of distribution	2-179
Duty to attend daily at office	2-177
Duty to keep flags and colors in good order; repairs and replacements	2-173
Meetings of council, duty to attend	2-176
Messages, summonses and notices	
Service as city messenger	2-178
Monthly reports of expenditures, obligations	2-183
National flag, duty to fly	2-174
Offices combined	2-170
Salary in lieu of fees	2-171
Writs, summonses and other legal processes	
Service as city sergeant	2-175
CITY SOLICITOR	
Annual reports	
Required, contents	2-98
Deputy solicitor for housing and buildings	2-99.1
Division of housing and buildings	2-99.1
Salaries and expenses	2-100
Small claims against city, authority delegated to settle	2-99
CITY TREASURER	
Accounts to be kept	2-66
Annual account	2-70
Contracting depositories, duty to deposit with	2-65
Daily records of receipts to be kept	2-67
Duty to credit yearly account with receipt	2-68
Foreclosure of right of redemption	2-75
Holding and disposition of land foreclosed by city of Providence	2-76
Issuance of notes	2-71
Nonpayment of taxes, redemption of land sold	2-73
Notes, bonds, other obligations	
Duties as to register of	2-72

	Section
CITY TREASURER (Cont'd.)	
Semiannual report of receipts, disbursements, balances and status of city debt	2-69
Tax title, assignment of	2-74
Urban renewal expenditures, regulating	2-71.1
CLERK. See: CITY CLERK	
CLIMATE PROTECTION	
Participation in Cities for Climate Protection Campaign	2-18.4
CODE OF ORDINANCES*	
Altering Code	1-9
Amendments	1-6
Catchlines for sections	1-3
Definitions and rules of construction	1-2
Designation, citation	1-1
Former enactments, references in ordinances to	1-7
Ordinances to be numbered consecutively as chapters	1-8
Penalty. See herein: Violations and Penalty	
Repeal of ordinance, effect of	1-4
Rules of construction. See herein: Definitions and Rules of Construction	
Severability of parts	1-5
Violations and penalty	
General penalty; continuing violations	1-10
Prosecution where different penalties exist for same offense	1-11
COLORS. See: FLAGS AND COLORS	
COMMERCIAL AND MULTI-FAMILY RESIDENTIAL PROPERTY	
Providence neighborhood revitalization act	
Appeals	21-281
Applicable law	21-283
Authorization and purpose	21-271
Criteria	21-274
Definitions	21-273
Eligible properties	21-272
Employment and contracts	21-278
Forms and procedures	21-277

*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

	Section
COMMERCIAL AND MULTI-FAMILY RESIDENTIAL PROPERTY (Cont'd.)	
Ineligible properties	21-279
Revocation	21-280
Severability	21-282
Tax considerations	21-275
Transfer of exempt; stabilized property	21-276
Tax predictability	
Appeals	21-268
Applicable law	21-270
Authorization and purpose	21-260
Criteria	21-262
Eligible properties	21-261
Employment and contracts	21-266
Forms and procedures	21-265
Revocation	21-267
Severability	21-269
Tax consideration and stabilization period	21-263
Transfer of exempt or stabilized property	21-264
COMMERCIAL PARKING LOTS	
Date of completion of protection barriers	14-72
Inspection, alterations and repairs of protection barriers	14-71
License application	14-65
License required	14-64
Plans for protection barriers to be approved by inspector of buildings; permit to be issued	14-70
Protection barriers to be erected on lots adjacent to dangerous conditions	14-69
Report of vehicle left on premises more than twenty-four (24) hours	14-74
Security guards required for multi-decked parking garage; violation	14-75
Security plan requirements	14-67
Security plan review	14-66
Signs required	14-68
Suspension and revocation of license	14-73
Tax exemption for certain structures	14-76
COMMITTEES AND COMMISSIONS. See: DEPARTMENTS AND OTHER AGENCIES OF CITY	
COMMUNICATION DEPARTMENT	
Created	2-124

	Section
COMMUNICATION DEPARTMENT (Cont'd.)	
Director	
Appointment	2-125
Powers and duties	2-127
Reports	2-128
Jurisdiction	2-124
Rules and regulations	2-126
COMMUNITY DEVELOPMENT BLOCK GRANT PROGRAM	
Administration	2-44
COMMUNITY MENTAL HEALTH BOARD	
Appointment, terms of members; filling vacancies	2-258
Chairman, designation of	2-261
Compensation, expenses of members	2-260
Creation, membership	2-257
Duties	2-262
Removal of members	2-259
COMPUTATION OF TIME	
Definitions and rules of construction	1-2
COMPUTERS	
Tax exemption for computer and telephone equipment	21-191 et seq.
See: TAXATION	
CONDUCT	
Offenses and miscellaneous provisions	
Disorderly and indecent conduct	16-3
Prohibited conduct	14-17
CONSERVATION	
Commission	
Appointment of commission members	2-399
Commission activities	2-401
Creation and purpose of commission	2-398
Meetings; records	2-400
Staff assistance	2-402
Diesel emission reduction	12-19
See also: GASOLINE AND PETROLEUM PRODUCTS	
CONTRACTORS	
Purchasing items fabricated in sweatshops; avoidance	
Employment standards for contractors and vendors	2-18(d)

	Section
CONTRACTS AND AGREEMENTS	
Awarding public contracts to certain campaign contributors, prohibition of	
Breach of regulated contract	2-408
Conflicting ordinances	2-409
Contribution statement; duty to report violations	2-406
Contributions made prior to effective date	2-405
Definitions	2-403
Prohibition on awarding public contracts to certain contributors	2-404
Reimbursement of contributions	2-407
Severability	2-410
Business improvement districts	
Agreements with the city	21-228
City treasurer; duty to deposit with contracting depositories	2-65
Committee on finance; contracts with depositories	2-33
Finances of city, provisions re contracts, purchases and sales	21-26 et seq.
See: FINANCES	
Mayor, signature on instrument in writing	2-21
Member of city government not to act as surety	2-5
Planning and urban development department	
Authority to enter into agreements, covenants and contracts	2-166
Post-construction stormwater control	
Maintenance agreements	5-88
Public works	23-40 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS	
School; agreement with Rhode Island School of Design	22-14
CONTROLLER. See: CITY CONTROLLER	
CONVALESCENT, NURSING HOMES AND SIMILAR ESTABLISHMENTS	
Applicability of provision	5-13
Cleaning or polishing compounds and inflammables	
Storage of	5-20
Dumbwaiters and laundry chutes	5-17
Hallways, exitways and passageways to be clear of obstructions	5-18
Heating, requirements as to	5-15

Section

CONVALESCENT, NURSING HOMES AND SIMILAR ESTABLISHMENTS (Cont'd.)
Marking and illuminating hallways, passageways or exitways 5-16
Mattresses, unused furniture and equipment
Storage of..... 5-19
Second floor of wood frame building, conditions for use of..... 5-14
Waste and rubbish
Storage and disposition of..... 5-21

CORPORATE LIMITS, CORPORATION LIMITS
Definitions and rules of construction 1-2

COUNCIL. See: CITY COUNCIL

COUNTY
Definitions and rules of construction 1-2

COUPON SALES
Regulations enumerated ..... 14-2 et seq.
See: LICENSES AND PERMITS

COURTS
Housing court..... 8-11 et seq.
See: HOUSING COURT
Municipal court
Annual report of clerk of municipal court; required content 8-4
Certification, payment of fees due witness in 8-3
Disposition of fines, costs, fees in 8-2
Evenings, scheduling sessions..... 8-5
Warrants issued by justice, return of..... 8-1
Probate court
Days for holding court for transaction of probate business..... 8-6
Days for special sessions 8-7
Microfilming records of 8-9
Place for holding..... 8-8

CREAM
Milk and milk products ..... 10-49 et seq.
See: FOOD AND FOOD PRODUCTS

CROWD CONTROL
Persons working as floor hosts; licensing 14-14

Section

CULTURAL AFFAIRS
Art in city life..... 2-351 et seq.
See: ART IN CITY LIFE

D

DAIRY PRODUCTS
Milk and milk products ..... 10-49 et seq.
See: FOOD AND FOOD PRODUCTS

DELEGATION OF AUTHORITY
Definitions and rules of construction 1-2

DEMOLITION
Lots, protection after demolition of structures 5-4
Rat and vermin control
Buildings or property to be rat eradicated prior to demolition or grading 12-113

DEMONSTRATIONS AND ASSEMBLIES
Offenses and miscellaneous provisions
Assemblages, demonstrations at War Memorial monument 16-2
Parks; addressing political or religious meetings 18-7

DEPARTMENTS AND OTHER AGENCIES OF CITY
Art in city life commission..... 2-354
Black History Month..... 2-10.2
Business improvement districts..... 21-216 et seq.
See: FINANCES
Capital Center Commission 2-364
City council..... 2-19 et seq.
City plan commission ..... 2-240 et seq.
Committee on sweatfree purchases..... 2-18(i)
Communication department..... 2-124 et seq.
Community mental health board ..... 2-257 et seq.
Conservation commission
Appointment of commission members..... 2-399
Commission activities 2-401
Creation and purpose of commission 2-398
Meetings; records..... 2-400
Staff assistance 2-402
Courts. See that subject
Housing court ..... 8-11 et seq.
Municipal court ..... 8-1 et seq.

Section

DEPARTMENTS AND OTHER AGENCIES OF CITY (Cont'd.)
Probate court ..... 8-7 et seq.
Dr. Charles V. Chapin Memorial Award Committee .. 2-35
Economic development planning commission ..... 2-411 et seq.
See: ECONOMIC DEVELOPMENT PLANNING COMMISSION
Elections; board of canvassers and registration 2-297
Finance, committee on 2-32, 2-33
Fire department ..... 9-1 et seq.
Fire prevention bureau ..... 9-22 et seq.
Firemen
Committee on relief of firemen and policemen 2-34
First night of Passover 2-10.1
Good Friday
Closing offices on 2-10
Hospital commissioners, board of 12-4
Housing board of review ..... 13-27 et seq.
See: HOUSING BOARD OF REVIEW
Industrial commission ..... 2-279 et seq.
Irish-American and Italian-American Heritage Month 2-10.3
Juvenile hearing board ..... 2-371 et seq.
Lobbyist registration ..... 2-264 et seq.
Mailing and posting of notices in English and other languages required 2-15
Mailing to residents of rental units required 2-14
Mary Elizabeth Sharpe Street Tree Advisory Committee 23½-23
Minority and women business enterprises advisory commission ..... 21-52(l)
Park commissioners, board of ..... 18-29 et seq.
Payment for snow removal 2-16
Planning and urban development department ..... 2-161 et seq.
Policemen
Committee on relief of firemen and policemen 2-34
Providence External Review Authority (PERA) 18.5-2
Providence review commission ..... 21-141 et seq.
See: TAXATION
Public property department 2-101
Public works department ..... 2-111 et seq.
Recreation department ..... 18-50 et seq.
See: PARKS AND RECREATION

Section

DEPARTMENTS AND OTHER AGENCIES OF CITY (Cont'd.)
Saturdays
Keeping offices open on Saturdays, in emergency... 2-9
School committee ..... 22-1 et seq.
Suggestion award committee..... 17-140
Traffic engineering advisory committee..... 2-152
Traffic engineering department ..... 2-151 et seq.
Truancy board ..... 2-391 et seq.
Workweek
Establishment of basic workweek in certain departments..... 17-11
Five-day week, departments may establish..... 17-10

DESSERTS
Frozen desserts..... 10-72 et seq.
See: FOOD AND FOOD PRODUCTS

DETECTIVES
Intelligence offices..... 14-109 et seq.

DEVELOPMENT. See: PLANNING AND DEVELOPMENT

DIESEL EMISSION REDUCTION. See: GASOLINE AND PETROLEUM PRODUCTS

DISABLED OR HANDICAPPED PERSONS
Personnel of city, disability compensation re..... 17-75 et seq.
See: OFFICERS AND EMPLOYEES
Tax exemption provisions..... 21-121 et seq.
See: TAXATION

DISCRIMINATION
Affirmative action plan..... 16-86
Amendment of complaint and answer; participation by commissioner assigned to preliminary determination..... 16-70
Answer to complaint; respondent's right at hearing .. 16-71
Certification of bona fide qualification 16-65
Commission
Commission's attorneys..... 16-82
Commission's copy of testimony; hearing on transcript 16-81
Decree for enforcement of commission's order 16-83

	Section
DISCRIMINATION (Cont'd.)	
Established	16-62
Function and duties of	16-63
Modification of commission's findings and orders on additional evidence	16-79
Powers of	16-64
Complaint and notice of hearing	16-69
Conciliation of charges of unlawful practices	16-68
Definition of terms	16-54
Equal pay task force	16-85
Evidence of patterns of	16-73
Exclusive jurisdiction of court; appeal to supreme court	16-80
Exercise of police power	16-53
Exercise of privilege; exemption	16-60
Extraordinary relief	16-67
Findings of the council	16-51
Modification of findings of orders	16-77
Order and compliance	16-76
Order dismissing charge or complaint	16-75
Posting of statutory provisions	16-84
Power to prevent unlawful practices; preference for informal methods	16-66
Public policy	16-52
Right to judicial review or enforcement	16-78
Rules of evidence	16-72
Testimony at hearing	16-74
Time limit for filing charges	16-61
Unlawful credit practices	16-58
Unlawful education practices	16-56
Unlawful employment practices	16-57
Findings and intent	16-57(a)
For the purposes of this section	16-57(b)
It shall be an unlawful employment practice	16-57(c)
Notice of rights	16-57(d)
Unlawful housing practices	16-55
Unlawful public accommodation practice	16-59
DISMANTLED VEHICLES	
Storage of dismantled, junked or abandoned vehicles	15-36 et seq.
See: MOTOR VEHICLES AND TRAFFIC	

	Section
DISTRICTS	
Business improvement districts	21-213 et seq.
See: FINANCES	
Capital Center, special development district re	2-362, 2-363
Downcity tax district	21-171
Election wards	2-304
DOCKS. See: BOATS, DOCKS AND WATERWAYS	
DOCUMENTS AND PUBLIC RECORDS	
Access to public documents	
Editing; copying	2-2.2(b)
Generally	2-2.2(a)
City controller; destruction of certain documents after six years	2-87
City messenger; custody and distribution of documents, pamphlets, books	2-179
Management and operations	
Annual report	14-336
Record of licensing proceedings	14-334
Probate court, microfilming records of	8-9
Public buildings, superintendent of	2-194, 2-195
DOGS. See: ANIMALS AND FOWL	
DRAINAGE	
Explosives and inflammables; drainage of tanks abandoned by filling station	9-73
DRUGS AND MEDICINES	
Motor buses	
Drivers not to be under influence of intoxicants or drugs	24-79
Parks and recreation	
Sale or use of tobacco and cannabis products in parks	18-22
DRY CLEANING ESTABLISHMENTS. See: LAUNDRY AND DRY CLEANING ESTABLISHMENTS	
E	
ECONOMIC DEVELOPMENT PLANNING COMMISSION	
Appointment and term of commission members	2-412
Commission activities	2-413

	Section
ECONOMIC DEVELOPMENT PLANNING COMMISSION (Cont'd.)	
Cooperation required	2-414
Creation and purpose of commission	2-411
Meetings; records	2-415
ELDERLY PERSONS	
Tax exemption provisions	21-111 et seq.
See: TAXATION	
ELECTIONS	
Awarding public contracts to certain campaign contributors, prohibition of	2-403 et seq.
See: CONTRACTS AND AGREEMENTS	
Board of canvassers and registration, offices	2-297
Meals for officials at polling places during elections	2-301
Meals for officials at polling places during primary	2-299
Payment of election officials	2-300
Polling place maps at polling places	2-303
Primary officials, payment of	2-298
Purging to voters' lists	2-302
Schools	
Use of public school property for election	22-15
Ward	
Notice of ward and district meetings	2-296
Wards	
Described	2-304
ELECTRICITY	
Convalescent, nursing homes and similar establishments	5-16
Pubic service engineer	2-233 et seq.
See: PUBLIC SERVICE ENGINEER	
EMERGENCIES	
Department heads; keeping offices open on Saturdays, in emergency	2-9
Emergency management	7-1 et seq.
See: EMERGENCY MANAGEMENT	
Emergency medical services, charges for	9-101 et seq.
See: FIRE PREVENTION AND PROTECTION	
Emergency police details for certain establishments	18.5-1
Mayor, powers during declared public emergency	2-37 et seq.
See: CITY COUNCIL	

Section

EMERGENCIES (Cont'd.)
Tree regulations; waiver for emergencies 23½-6

EMERGENCY MANAGEMENT
Advance warning to public of impending hazard 7-13
Authority..... 7-2
Construction of chapter 7-10
Creation and composition of PEMA 7-4
Creation and composition of Providence Emergency Management Advisory Council 7-5
Declaration of disaster emergency..... 7-8
Duties and responsibilities 7-7
Emergency siren warning systems 7-14
Liability for death, injury, damage, from emergency management activities..... 7-11
Obstructing members of organization; violation of rules and regulations; unlawful wearing of insignia 7-12
Office of homeland security 7-16
Organization and operation of the emergency operation center 7-6
Powers and duties of the emergency management agency director 7-15
Purpose..... 7-3
Temporary suspension of formal requirements..... 7-9
Title 7-1

EMISSIONS
Diesel emission reduction..... 12-19
See also: GASOLINE AND PETROLEUM PRODUCTS

EMPLOYEES. See: OFFICERS AND EMPLOYEES

EMPLOYMENT CONCERNS
Employment on public works; wages for 23-40
See also: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Hospitality business protection and worker retention 2-18.5
See also: HOSPITALITY BUSINESSES

ENCLOSURES. See: FENCES, WALLS, HEDGES AND ENCLOSURES

ENGINEERS, ENGINEERING
City engineer..... 2-131 et seq.
See: CITY ENGINEER

	Section
ENGINEERS, ENGINEERING (Cont'd.)	
Engineers and boiler operators	
Alarm	14-104
Automatic shutdown	14-105
Availability for inspection	14-102
Criteria for authorization of computerized monitoring systems; monitors and indicators	14-103
Housekeeping air conditioning and refrigeration systems	14-100
License	
Authority to issue	14-90
Boiler operators' license	14-87
Display	14-97
Examinations	14-91
Fees	14-95
Form	14-96
Issuance	14-92
Refrigeration machine operators' license	14-88
Renewals upon application	14-94
Required	14-85
Revocation	14-93
Stationary engineer license	14-86
Manual reset	14-106
Miscellaneous provisions	14-107
Operators required	14-98
Permits	
Apprentice boilers operators' permit	14-89
Temporary boilers; portable type	14-99
Public service engineer	2-233 et seq.
See: PUBLIC SERVICE ENGINEER	
Traffic engineering department	2-151 et seq.
See: TRAFFIC ENGINEERING DEPARTMENT	
EXCAVATIONS AND GRADING	
Streets and sidewalks, applicable provisions re	23-6 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS	
EXPLOSIVES AND BLASTING AGENTS	
Fire prevention provisions re explosives and inflammables	9-54 et seq.
See: FIRE PREVENTION AND PROTECTION	

Section

F

FEMALE ACADEMY
Cemetery; right to burial plot..... 6-2

FENCES, WALLS, HEDGES AND ENCLOSURES
Advertising
Posting, affixing bills, posters, etc., to structures ... 3-4
Barbed wire fences 23-5
Erection of fences and buildings on building lines; encroachments..... 23-4
Fences
Barbed wire fences..... 5-48
Complaint or neglect to maintain or remove fence.. 5-49
Fee for viewing fence on complaint 5-53
Height of fence adjacent to residential driveway.... 5-47
Lawful fences designated
Hedge ..... 5-46(a)
Other..... 5-46(d)
Stones..... 5-46(b)
Woven wire ..... 5-46(c)
Partition fence
Resolution of dispute as to cost of 5-52
Resolution of dispute as to division line..... 5-51
Removal of fences exceeding six feet in height..... 5-54
Repair, removal of fence by complainant 5-50
North Burial Ground, provisions re fences 6-24, 6-35
Vacant lots, fencing of 12-88

FESTIVITIES
Public celebrations in city; personnel, supplies, materials 2-11

FINANCES
Art in city life, applicable provisions re 2-353, 2-357
Avoidance of purchasing items fabricated in sweatshops 2-18
Bond. See that subject
Business improvement districts
Agreements with the city..... 21-228
Amendment..... 21-229
Annual budget 21-223
Authority
Bylaws..... 21-220
Creation of authority..... 21-216
Generally 21-217

	Section
FINANCES (Cont'd.)	
Governing board	21-221
Powers of authority	21-219
Purposes of authority	21-218
Collection of assessments	21-226
Creation of district or subdistrict	21-214
Credit of city not pledged	21-232
Definitions and construction	21-213
Dissolution	21-230
Exemption from liability	21-233
Exemption from taxation	21-231
Limit on assessments	21-225
Notice of creation of district; actions to contest	21-234
Officers	21-222
Petition for relief from assessment	21-227
Property taxes for designated historic properties	21-235
Public hearing on petition	21-215
Special tax assessments	21-224
Capital equipment budget	
Capital equipment ordinance	21-19(b)
Definitions	21-19(a)
Listing of payments	21-19(d)
Purchase of items under lease-financing arrangements	21-19(c)
Certificates of bills and licenses to be filled with controller	21-11
City controller	2-84 et seq.
See: CITY CONTROLLER	
City council internal auditor	2-42
City treasurer	2-65 et seq.
See: CITY TREASURER	
Commercial and multi-family residential property	21-260 et seq.
See: COMMERCIAL AND MULTI-FAMILY RESIDENTIAL PROPERTY	
Committee on finance	2-32, 2-33
Committees of council, expenditures by	2-38
Contracts, purchases and sales	
Acquisition to titles of tax-reverted properties for resale as dwellings	21-39.1
Appointment, compensation of officers	
Provisions not applicable to	21-50
Authority to reject bids	21-34

	Section
FINANCES (Cont'd.)	
Certain work of city employees, provisions not applicable to	21-51
Check or bond accompanying bid may be required; presentation of bids and bonds	21-32
Checks, mailing to vendors	21-38.1
City assessor ex officio member of board for purchase of real estate	21-40
Competitive bidding	21-27
Condemnation of city's land, agreements arising out of	21-44
Crediting payment for labor, materials to appropriation for which money expended	21-38
Division of purchase orders	21-28
Duty to preserve abstract of bids	21-35
Emergencies	21-29
Employment of experts for purchase, condemnation of real property	21-45
Form and manner of submission of claims by vendors	21-47
Form of agreement for purchase of land	21-43
Form of contracts and purchases entered into	21-36
Leases to be furnished controller	21-39
Minority and women business enterprises	
Advisory commission	21-52(l)
Applicability	21-52(d)
Definitions	21-52(e)
Discrimination prohibited	21-52(f)
Minority business enterprises	21-52(g)
Policy	21-52(c)
Purpose	21-52(a)
Review	21-52(i)
Rules and regulations	21-52(k)
Sanctions	21-52(j)
Summary of factual findings	21-52(b)
Women business enterprises	21-52(h)
Motor vehicles	
Contracts for storage of city's automobiles	21-48
Necessity for appropriation for contract, purchase	21-26
Opening bids	21-33
Performance bond, authority to require to accompany contract	21-37
Plans and specifications for work, materials	
Duty to furnish	21-30

	Section
FINANCES (Cont'd.)	
Purchase of real estate	
Duty of board of contract and supply	21-41
Duty to submit information, obtain approval	21-42
Qualifications of parties doing business with city	21-28.1
Regulation of assignments or sale of tax titles in bulk by the collector	
Definitions	21-53(a)
General provisions	21-53(b)
Scheduling of purchase requests on agenda	21-26.1
Sealed bids to be submitted	
Generally	21-31
Leasing of property	21-31.1
Sole source verification	21-54
Unclaimed property, sale of by purchasing agent	21-49
Vendors to submit claims to controller	21-46
Department heads, authority to compromise certain municipal claims	21-18
Departments and other agencies of city	
Payment for snow removal	2-16
Disposition of fees collected by city officers	21-9
Divesting from the Republic of Sudan	2-17
First source agreements	
Applicability	21-91
Covered employers	21-91.2
Covered jobs	21-92
Enforcement	21-96
First source oversight	21-94
Funding	21-95
Nature of first source applicability	21-93
Rules and regulations	21-96.1
Severance provision	21-96.2
Fiscal notes to accompany ordinances and resolutions	2-2.1
Fiscal year established, effect	21-1
Funding	
Diesel emission reduction	12-19(d)
Funds	
Animal care center fund	21-74
Automobile accident fund	
Amount	21-66(a)
Use	21-66(b)
Fire insurance fund	
Amount	21-64(b)

	Section
FINANCES (Cont'd.)	
Established	21-64(a)
Use	21-64(c)
Fire uniform allotment account	
Established, purpose	21-71(a)
New firemen, payments to	21-71(b)
One year's service, payment after	21-71(c)
Henry B. Anthony Fund for memorial fountain, use regulated	21-69
Housing authority fund	21-68
Investment of general fund cash and short-term securities and certificates of indebtedness	21-63
Police uniform allotment account	
Established, purpose	21-72(a)
New policemen, payments to	21-72(b)
One year's service, payments after	21-72(c)
Refund of collections account	
Funds established	21-70(b)
Procedure prescribed	21-70(a)
Scope	21-70(c)
[Reserve funds.]	21-75
Retention of cash by departments for making change	21-73
School fund	
Deposits	21-67(c)
Designation, use	21-67(a)
Source	21-67(b)
Sinking funds	
Chairman, secretary, treasurer designated	21-78
Control and management, investment of sinking funds	21-83
Custody of securities and books of account	21-82
Duty to keep record of meetings, proceedings	21-79
Examination, report of investment securities in sinking funds	21-81
Form of securities purchased; negotiability	21-85
North Burial Ground, custody of perpetual care fund of	21-89
Payments to board from sales of real estate for application to city debt	21-90
Percentage of indebtedness to valuation limiting investment by board	21-86
Preference to bonds and notes of city	21-84
Quarterly report to council required	21-80

	Section
FINANCES (Cont'd.)	
Redemption of water bonds, deposits in sinking fund for	21-88
Vote required on investment or change of investment	21-87
The city investment policy	21-63.1
Amendment and effective date	21-63.1(q)
Authorized financial institutions, depositories, and broker/dealers	21-63.1(p)
Ethics and conflict of interest	21-63.1(g)
Governing authority	21-63.1(b)
Internal controls	21-63.1(h)
Introduction	21-63.1(a)
Investment advisor	21-63.1(f)
Investment advisors	21-63.1(o)
Investment of federally tax-exempt bond proceeds	21-63.1(k)
Investment officers	21-63.1(e)
Investment parameters	21-63.1(j)
Objectives	21-63.1(d)
Performance standards	21-63.1(n)
Permitted investments	21-63.1(i)
Reporting requirements	21-63.1(m)
Safekeeping and custody	21-63.1(l)
Scope	21-63.1(c)
Waterworks depreciation and extension fund	
Amount	21-65(b)
Established	21-65(a)
Use	21-65(c)
Youth sports fund and grant program	21-76
Highways	
Filing fee for petition to abandon public highway	21-13
Industrial and commercial building district tenant relocation program	
Administration	21-243
Definitions	21-242
Program	21-244
Purpose and intent	22-241
Investment in manufacturers held liable for causing lead poisoning in the state prohibited	2-18.3
Marshal H. Gould, will of. See: WILL OF MARSHAL H. GOULD (Appendix A)	
Motor vehicles	
Purchase of fuel-efficient cars	2-12

	Section
FINANCES (Cont'd.)	
Municipal garage revolving fund	15-89, 15-91
Notification of external audits	21-23
Confidential information	21-23(d)
Definitions	21-23(b)
Notification	21-23(c)
Preamble	21-23(a)
Ordinances and resolutions, fiscal notes to accompany	2-2.1
Payroll list, inspection of	2-286 et seq.
Predatory lending	
City contracts	2-18.2(c)
Definitions; city depository	2-18.2(b)
Lending and deposit specifications required	2-18.2(a)
Prohibited interest of councilmen, officers, employees	2-4
Projection of revenues and expenditures	21-16
Providence Public School Department Capital Improvement Revolving Fund	21-24
Public celebrations in city; personnel, supplies, materials	2-11
Public property department; establishment of revolving fund	2-107
Purchases. See herein: Contracts, Purchases and Sales	
Real estate non-utilization tax	
Abatement of tax	21-256
Appeals	21-257
Authority	21-251
Definitions	21-252
Exceptions	21-255
Imposition	21-254
Notice of designation as vacant and abandoned	21-253
Use of collected taxes	21-258
Relief of the poor	12-28 et seq.
See: WELFARE	
Relocation payments	
Authority to make payments for moving expenses and property losses	21-98
Definitions	21-97
Determination of amounts to be paid	21-99
Limits on amounts of payments	21-100
Rules, regulations applicable to payments	21-101
Report of fees, financial reports to be furnished by controller	21-10
Sales. See herein: Contracts, Purchases and Sales	

Section

FINANCES (Cont'd.)
Schools, applicable provisions re ..... 22-1 et seq.
See: SCHOOLS
Senator Anthony Fund 22-12, 22-13
Socially responsible investing..... 2-18.1
Subscribing name of city 2-3
Taxation. See that subject
Uncollectible bills, cancellation of 21-12
Water services ..... 25-31 et seq.
See: WATER AND SEWERS

FINES, FORFEITURES AND OTHER PENALTIES
Code of Ordinances
General penalty; continuing violations..... 1-10
Prosecution where different penalties exist for same offense..... 1-11
Litter violations ..... 12-79 et seq.
See: GARBAGE AND TRASH
Lobbyist registration
Administrative penalty for violations 2-271
Municipal court
Disposition of fines, costs, fees 8-2
Traffic violations ..... 15-2 et seq.
See: MOTOR VEHICLES AND TRAFFIC

FIRE DEPARTMENT
Officers and employees. See that subject
Annual vacation for firemen..... 17-96
Annuities for widows of policemen and firemen ..... 17-128 et seq.
Compensation and other benefits ..... 17-54 et seq.
Disability compensation 17-77
Firemen not to engage in other employment 17-16
Powers of officers at fire; assistance from inhabitant. 9-2
Presumptive cancer benefit and wellness incentive for firefighters..... 17-134 et seq.
See: OFFICERS AND EMPLOYEES
Riding or climbing upon fire apparatus 9-3
Rules and regulations..... 9-1
Taking property out of city 9-4

FIRE LANES
Private property, designation of fire lanes on..... 15-118

	Section
FIRE LIMITS	
Construction in fire limits	
Certain uses and structures prohibited in fire limits	
Aboveground tanks	5-64(b)
High hazard uses	5-64(a)
Cooling towers	5-68
Definitions	5-62
Fire limits	
Described	5-63(b)
Generally	5-63(a)
Outside fire limits	5-63(c)
Fireresistive construction requirements	5-67
Ground signs	5-69
Height and area, increases in	5-65
Scope	5-61
Types of construction	
Bins, tanks, towers and roof structures	5-66(e)
Builders' shanties and reviewing stands	5-66(d)
Bus and passenger terminals	5-66(h)
Erection of buildings	5-66(f)
Generally	5-66(a)
Motor fuel service stations	5-66(g)
Storm enclosures	5-66(c)
Type 2C, 3B or 5A construction permitted	5-66(b)
Wood veneers	5-66(i)
FIRE PREVENTION AND PROTECTION	
Alarm systems	
Connection of private alarm systems with city system. See herein that subject	
Buildings	
Fire safety approvals	5-6
Bureau of fire prevention	
Annual report of bureau	
Required, contents	9-32
Chief of bureau	9-23
Chief of fire department to prepare instructions, forms for reports	9-27
Dumping grounds and places where waste, rubbish is placed	
Inspection of	9-37
Duty to enforce laws, ordinances, regulations	9-25

	Section
FIRE PREVENTION AND PROTECTION (Cont'd.)	
Effect of failure to remove waste, accumulations on order	9-41
Emergency situations, unforeseen circumstances not covered by statutes, ordinances	9-44
Establishment, control, operation and maintenance	9-22
Hazards	
Inspection of hazardous processes, explosives and inflammables, other hazards	9-33
Inspection, report of	9-35
Inspections	
Buildings and premises	9-34
Buildings, receptacles, places where inflammables stored	9-36
Dumping grounds and places where waste, rubbish is placed	9-37
Fees	9-45
Hazardous processes, explosives and inflammables, other hazards	9-33
Hazards, report of	9-35
Interfering with inspection	9-39
Inspectors	
Assistant inspectors	9-24
Solicitor to assist	9-29
Interfering with inspection	9-39
Investigation of cause and origin of fires	9-28
Lien for cost of removal of waste, accumulations	9-42
Order to remove waste accumulations	9-40
Recommendation of ordinances for protection against fire	9-26
Records and statistics as to fires	9-31
Report of fires to bureau; required, contents	9-30
Right of entry	9-38
Service of orders and notices	9-43
Solicitor to assist inspectors	9-29
Connection of private alarm systems with city system	
Application procedure	9-91
City not liable for losses	9-93
Disconnect/reconnect charge	9-95
Excessive avoidable false fire alarm fees	9-94
Yearly fee	9-92

Section

FIRE PREVENTION AND PROTECTION (Cont'd.)
Convalescent, nursing homes and similar establishments
Storage of cleaning or polishing compounds and inflammables 5-20
Dexter training ground, prohibitions re firewood, timber, etc. 18-1
Dumping grounds, burning at 9-8
Emergency medical services, charges for
Administration 9-103
Billing 9-102
Fees 9-101
Severability 9-104
Explosives and inflammables
Acetylene
Manufacture, use of 9-66
Appeals from decisions of bureau of fire prevention 9-70
Chemicals made dangerous by contact with heat, water, moisture or each other 9-65
Definitions 9-80
Drainage of tanks abandoned by filling station 9-73
Enforcement 9-84
Exceptions to storage restrictions
Dynamite for blasting 9-62
Pharmacists and celluloid 9-61
Increased danger from storage of explosive or inflammable wastes 9-63
Inspections of buildings in area where explosives are used in construction 9-77
License for manufacturing
Conditions 9-55
Issuance, duration 9-56
Required 9-54
License for storage
Conditions 9-59
Issuance, duration 9-58
Required 9-57
Storage limited to fifty pounds in first building district 9-60
Motor fuel dispensing stations 9-79
Naphtha, gasoline, benzine, benzol or other hydrocarbon
Storage, use 9-67

	Section
FIRE PREVENTION AND PROTECTION (Cont'd.)	
Use in stationary engines, devices	9-69
Vehicles using same, keeping	9-68
Permits	9-82
User permit	9-82(b)
Vendor permit	9-82(a)
Permits generally	
Blasting, permit required for	9-74
Expiration by limitation	9-72
Issuance of	9-75
Revocation of	9-76
Prohibition on sale and use of fireworks	9-81
Self-service motor fuel dispensing stations	
Attendant required	9-78(b)
Attendant's control and supervision	9-78(c)
Clear observation	9-78(g)
Delivery nozzles	9-78(h)
Emergency controls	9-78(d)
Emergency procedures	9-78(f)
Operating instructions	9-78(e)
Self-service dispensers	9-78(a)
Voice communication control	9-78(i)
Warning sign	9-78(j)
Steamship and railroad agencies, applicability of provisions to	9-71
Transportation of high explosives	9-64
Violations	9-83
Fire prevention code	
Adopted, incorporated by reference	9-16
Inflammables. See herein: Explosives and Inflammables	
Injuring fire hose or apparatus	9-6
Motor vehicle repair business; fire safety regulations	14-265
Obstructing fire escapes, passageways, doors, windows	9-7
Refuse, rubbish, waste to be burned in covered receptacles	9-10
Schools, fire drills	9-11
Streets or highways, burning in	9-9
FIREARMS AND WEAPONS	
Shooting galleries	14-202 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	

	Section
FLAGS AND COLORS	
City council flag	
Display in chamber of council	2-324
Display in city hall; material and dimensions	2-325
Material and proportions of	2-323
Mayor may authorize display of	2-326
City flag	
Display and chamber of council, mayor's office	2-320
Display on city hall; material and dimensions	2-321
Material and proportions	2-319
Mayor may authorize display of	2-322
City sergeant, applicable provisions re	2-172 et seq.
See: CITY SERGEANT AND CITY MESSENGER	
Inspection of flagstaff and flagpoles	2-329
National flag	
Approval of installation of sockets; responsibility for damage; removal of sockets	2-318
City hall, national flag to be flown on	2-311
Days for display	2-308
Departments, national flag used by	2-313
Half-staff, display of national flag at	2-315
Lowering and folding	2-316
Material and proportions	2-309
Not more than one national flag on city hall	2-312
Position and use of	2-310
School property, national flags for	2-314
Sockets in sidewalks for display	2-317
National storm flag	
Size of	2-327
Time to fly	2-328
FLOOD HAZARD	
Special flood hazard areas	
Administrative provisions	5-121
Abrogation, greater restriction	5-121(d)
Building permit	5-121(a)
Enforcement	5-121(e)
Liability disclaimer	5-121(b)
Penalties	5-121)f)
Severability	5-121(c)
Authority	5-125
Definitions	5-124
Notification of watercourse alteration	5-122

	Section
FLOOD HAZARD (Cont'd.)	
Purpose and application	5-120
Use regulations	5-123
FOLLOWING, PRECEDING	
Definitions and rules of construction	1-2
FOOD AND FOOD PRODUCTS	
Certificates	
Employing persons without health certificate, penalty for	10-10
Examination of food handler for health certificate	10-8
Exhibit of health certificate upon request	10-9
Required to prepare and serve food or drink	10-7
Desserts. See herein: Frozen Desserts	
Food establishments	
Classification of restaurants	10-22
Copies of regulations to be furnished	10-37
Definitions	10-21
Disease control; health of employees	10-34
Enforcement interpretation	10-36
Examination and condemnation of unwholesome or adulterated food or drink	10-33
Hospitality business protection and worker retention	2-18.5
Inspection of restaurant	10-31
License to operate restaurant	
Issuance, fee, posting	10-24
Issuing and prorating licenses	10-25
Mobile food establishments, licensing of	10-30
Notices, hearings on suspended or revoked licenses	
Revocation	10-27(b)
Suspension	10-27(a)
Operation without license prohibited	10-29
Reinstatement of license	10-28
Required	10-23
Suspension, revocation	10-26
Procedure when infection suspected	10-35
Sanitation requirements for restaurant	10-32
Violation and penalty	10-38
Frozen desserts	
Bureau of licenses, scope of authority	10-73
Copies of regulations for licensees	10-92
Definitions	10-72

	Section
FOOD AND FOOD PRODUCTS (Cont'd.)	
Examination of frozen desserts and ingredients	10-81
Future frozen desserts plants	10-88
Grading of frozen desserts plants	10-82
Ice-cream wagons, provisions not construed to prohibit	10-85
Infection suspected, procedure when	10-90
Inspection of frozen desserts plants	10-80
Labeling and placarding	10-79
Mix and frozen desserts from beyond limits of routine inspection	8-87
Notification of disease	10-89
Only products of grade A or B plants to be sold	10-83
Permits to handle frozen desserts or mix	
Fee designated; proration of fees	10-76
Issuance, conditions	10-75
Required	10-74
Suspension and reissuing; supplementary regrading	10-86
Suspension and revocation	
Notice, hearing on revocation	10-77(d)
Notice, hearing on suspension	10-77(b)
Revocation	10-77(c)
Suspension	10-77(a)
Violations, suspension or revocation for	10-78
Rules, regulations to enforcement	10-91
Sale of adulterated or misbranded frozen desserts or mix prohibited	10-84
Violation and penalties	10-93
Health department, handling to comply with rules of	10-1
Meat, meat products, meat food products	
Contract for removal	10-6
Standards for	10-4
Transporting condemned meat	10-5
Milk and milk products	
Bacteria count of cream and milk	10-54
Cream must be standard	10-53
Foreign substance not be added to cream	10-50
Homogenized milk, standards for	10-59
Inspector to give notice of violation; third offense	10-61
Labeling cream	10-52
Meaning of cream	10-49
Other fat, containers for cream to state minimum per centum of	10-51

Section

FOOD AND FOOD PRODUCTS (Cont'd.)
Pasteurized milk, milk products handling 10-57
Raw milk, standards for 10-58
Report of inspector of milk 10-60
Temperature
Milk or cream with temperature above fifty degrees Fahrenheit 10-55
Vitamin content
Increasing vitamin content of milk or cream 10-56
Poultry. See herein: Slaughtering Poultry
Restaurants. See herein: Food Establishments
Right of entry for purpose of inspection 10-3
Slaughtering poultry
Cans or troughs, use of 10-107
Cleaning rooms 10-109
Family, provisions inapplicable to slaughtering for . 10-110
Feathers, plucking or removing 10-108
Floors of premises 10-104
Walls of premises 10-105
Water
Supply of running water 10-106
Unwholesome provisions
Inspection, condemnation of 10-2

FOOD AND FOOD SERVICES
Food establishments
Hospitality business protection and worker retention 2-18.5

FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES

FOWL. See: ANIMALS AND FOWL

FROZEN DESSERTS
Regulations enumerated ..... 10-72 et seq.
See: FOOD AND FOOD PRODUCTS

FUEL. See: GASOLINE AND PETROLEUM PRODUCTS

G

GAMBLING
Offenses and miscellaneous provisions
On public conveyances, in public places, or while in trespass 16-18

	Section
GARAGE SALES	
Garage or yard sales	14-13
Vendors	14-169 et seq.
See: VENDORS	
GARAGES	
Municipal garage	15-86 et seq.
See: MOTOR VEHICLES AND TRAFFIC	
GARBAGE AND TRASH	
Animal defecation	12-89.3
Premises to be free of animal excrement	12-89.4
Authority of council to make rules for removal of refuse, swill, etc.	12-47
Catch basin, depositing matter taken from	12-59
Coal, dust, soot, etc.	
Deposits of	12-60
Collection	
Duty to remove after collection	12-63
Frequency and method of removal of waste	12-64
Preparation of combustible rubbish or refuse for	12-62
Time to place waste for	12-63
Containers	
Dumpsters, use of	12-61.1
Garbage receptacles, use of	12-61
Enforcement	12-61(d)
Required	12-61(a)
Use	12-61(b)
Violations and penalties	12-61(c)
Recyclable receptacles, use of	
Enforcement	12-61.2(d)
Required	12-61.2(a)
Use	12-61.2(b)
Violations and penalties	12-61.2(c)
Convalescent, nursing homes and similar establishments	
Storage and disposition of waste and rubbish	5-21
Definitions	12-46
Deposits of decomposable animal, vegetable, other offensive matter	12-58
Director of public works	
Charge of collection, disposal	12-49
Maintenance and operate system of collection	12-50

	Section
GARBAGE AND TRASH (Cont'd.)	
Scope of authority	12-48
Disposal of heavy litter other than at a solid waste management facility	12-89.2
Dumping grounds	
Permit to owner to use land as dumping ground	12-54
Permits, regulation of use of dumping grounds	12-55
Placing combustible refuse on vacant land, dumping ground	12-56
Fire prevention provisions	9-8, 9-10
Gaseous or liquid substance, release of from appliances	12-87.1
Leaf and yard debris, disposal of	12-89
License for removal of swill, offal	
Duration of appointment, license	12-73
Manner of removal; examination of receptacles	12-74
Marking vehicles for removal	12-75
Required	12-71
Restrictions upon appointments, licenses to remove	12-72
License to transport garbage, waste	
Expiration, renewal	12-68
Fee for license, renewal	12-67
Issuance	12-66
Required	12-65
Revocation	12-69
Transport to comply with rules and regulations of director of public work	12-70
Transport/license to keep segregated recyclables separate from municipal solid waste	12-70.1
Littering	
Litter to be disposed of in receptacles	12-57(e)
Owner to keep premises free of litter	12-57(c)
Owner to provide litter receptacles	12-57(d)
Private property; prohibitions; exceptions	12-57(a)
Public ways or public property; improper use of public receptacles	12-57(b)
Vacant land, litter on	12-57(e)
Permits	
Dumping grounds. See herein that subject	
Refuse, rubbish, waste to be burned in covered receptacle	9-10
Scavenging of household rubbish, garbage and recyclables	12-87

	Section
GARBAGE AND TRASH (Cont'd.)	
Superintendent of garbage disposal	
Appointment, functions	12-53
Transportation	
Ashes, coal, sand and rubbish	12-78
Bones, grease and fat	12-76
Wastepaper	12-77
Vacant lots, fencing of	12-88
Violations and penalties	
Failure to comply	12-86
Generally	12-79
Littering violations	12-80
Multiple violations relating to litter regulations, effect of	12-85
Payment of fines	
Effective payment	12-83
Generally	12-81
Notice requirement	12-84
Payment by mail	12-82
GASOLINE AND PETROLEUM PRODUCTS	
Diesel emission reduction	
Compliance	12-19(e)
Definitions	12-19(b)
Enforcement	12-19(f)
Funding	12-19(d)
Nonroad and on-road vehicles	
Use of ultra low sulfur diesel fuel and best available retrofit technology	12-19(c)
Purpose	12-19(a)
Regulations	12-19(g)
Fire prevention regulations re explosives and inflammables	9-54 et seq.
See: FIRE PREVENTION AND PROTECTION	
Permit fees for bulk storage and petroleum products	14-8
GENDER	
Definitions and rules of construction	1-2
GOOD FRIDAY	
Closing offices on	2-10
GRADING. See: EXCAVATIONS AND GRADING	
GRAFFITI	
Definitions	16-141

	Section
GRAFFITI (Cont'd.)	
Graffiti as nuisance	16-145
Abatement and cost recovery	16-145(e)
Prohibited	16-145(a)
Removal of graffiti by perpetrator	16-145(b)
Removal of graffiti by property owner or city	16-145(c)
Right of city to remove	16-145(d)
Prohibited acts—Defacement	16-142
Sale of graffiti materials to minors	16-144
Penalties	16-144(f)
Violation; penalty	16-143
GREENHOUSE GAS EMISSIONS	
Participation in Cities for Climate Protection Campaign	2-18.4

H

HANDICAPPED PERSONS. See: DISABLED OR HANDICAPPED PERSONS	
HARBOR AND PORT	
Harbor management commission	
Additional powers and duties	11-8
Appointments	11-5
Compensation	11-7
Composition	11-3
Establishment and authority	11-2
Ex-officio members	11-4
Officers	11-6
Harbor moorings and anchorages	11-1.1
Harbormaster	11-1
Port commission	
Advisory opinion	11-11
Operation of the Port of Providence	11-12
Powers and responsibilities	11-10
Staffing	11-13
Port district	11-14
Prohibited activities on and within the waters of the city	11-9
HEALTH AND SANITATION	
Animals, sanitary provisions re	4-5 et seq.
See: ANIMALS AND FOWL	

	Section
HEALTH AND SANITATION (Cont'd.)	
Body works services	14-252 et seq.
See: BODY WORKS SERVICES	
Cesspools. See herein: Privies and Cesspools	
Clinics. See herein: Hospitals, Clinics, Etc.	
Community mental health board	2-257 et seq.
See: COMMUNITY MENTAL HEALTH BOARD	
Convalescent, nursing homes and similar establishments	5-13 et seq.
See: CONVALESCENT, NURSING HOMES AND SIMILAR ESTABLISHMENTS	
Diesel emission reduction	12-19
See also: GASOLINE AND PETROLEUM PRODUCTS	
Food and food products	10-1 et seq.
See: FOOD AND FOOD PRODUCTS	
Garbage, trash, refuse	12-46 et seq.
See: GARBAGE AND TRASH	
Hazardous waste management treatment facility	12-18
Hospitals, clinics, etc.	
Board of hospital commissioners, powers of	12-4
Charges for hospital treatment	12-6
Hospital quiet zone	
Designation of	12-9
Establishment of	12-8
Unnecessary noise prohibited	12-10
Maintenance of free clinics	12-5
Nonresidents as patients, receiving	12-7
Hotels, motels, etc. See herein: Public Lodginghouses	
Mosquito control, appointment of supervisor	12-3
Poisonous weeds, ivy	
Removal of	12-17
Poor persons. See herein: Relief of Poor	
Privies and cesspools	12-90 et seq.
See: PRIVIES AND CESSPOOLS	
Public lodginghouses	
Sanitation rules for	12-11
Wholesome water to be provided	12-12
Rat and vermin control	12-110 et seq.
See: RAT AND VERMIN CONTROL	

	Section
HEALTH AND SANITATION (Cont'd.)	
Relief of poor	12-28 et seq.
See: WELFARE	
Retail Plastic Bag Reduction Act	12-20
Definitions	12-20(b)
Education, outreach, and enforcement	12-20(d)
Exempt retail establishments	12-20(e)
Purpose	12-20(a)
Requirements	12-20(c)
School; vaccination of pupils required	22-10
Superintendent of health, reports	12-1
Toilets, etc.	
Deposits in water closets, privies, cesspools, etc.	12-16
Keeping disposal facilities in repair	12-15
Separate toilets to be provided	12-14
Tuberculosis	
Director in charge of antituberculosis work, appointment of	12-2
Vermin control. See herein: Rat and Vermin Control	
Water	
Filling unwholesome wells	12-13
Wholesome water to be provided	12-12
HEATING, AIR CONDITIONING AND REFRIGERATION	
Convalescent, nursing homes and similar establishments, heating requirements re	5-15
HEDGES. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
HIGHWAYS. See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS	
HISTORIC DISTRICT	
Business improvement districts	
Property taxes for designated historic properties	21-235
HORSES	
Stables	5-32 et seq.
See: STABLES	
HOSPITALITY BUSINESSES	
Hospitality worker comeback	2-18.6
Definitions	2-18.6(b)
Enforcement	2-18.6(e)

	Section
HOSPITALITY BUSINESSES (Cont'd.)	
Preservation of rights	2-18.6(d)
Purpose	2-18.6(a)
Retention of hospitality business employees	2-18.6(c)
Severability	2-18.6(f)
Term	2-18.6(g)
Protection and worker retention	
Definitions	2-18.5(b)
Enforcement	2-18.5(e)
Maintaining minimum wage standards	2-18.5(d)
Purpose	2-18.5(a)
Retention of hospitality business employees	2-18.5(c)
Severability	2-18.5(f)
HOSPITALS	
Health regulations enumerated	12-4 et seq.
See: HEALTH AND SANITATION	
HOTELS, MOTELS, ETC.	
Hospitality business protection and worker retention	2-18.5
See also: HOSPITALITY BUSINESSES	
Sanitation rules for public lodging houses	12-11
Wholesome water to be provided	12-12
HOUSING	
Abandoned property registration, security and maintenance	
Definitions	13-48
Enforcement	13-52
Maintenance	13-51
Purpose	13-47
Registration fees	13-50
Registration of properties	13-49
Removal from the vacant and abandoned property database	13-53
Reporting	13-54
Rules and regulations	13-256
Use of collected funds	13-55
Affordable housing trust fund	
Allocation system for the	13-18
Conflict of chapter with other ordinances	13-4
Departments and other agencies of city	
Mailing to residents of rental units required	2-14
Deputy solicitor for housing and buildings	2-99.1
Division of housing and buildings	2-99.1

	Section
HOUSING (Cont'd.)	
Housing board of review	13-27 et seq.
See: HOUSING BOARD OF REVIEW	
Minimum housing standards	
Application to zoning board of review for variance, exception	13-13
Chief inspector and other personnel	
Appointment and duties of	13-9
Conflict of permits and licenses with chapter	13-12
Division	
Administration of divisions and delegation of powers	13-7
Created, designated	13-6
Enforcement of	13-8
Enforcement of Rhode Island Property Maintenance Code	13-5
Hearing officer	
Appointment and duties of	13-10
Personnel of division of	13-11
Recording notices and orders; liability of persons having notice of proceedings	13-17
Violations	
Prosecution of existing violations	13-15
Referral of housing violations not covered by chapter but by standards of other codes	13-14
Violations and penalties	13-16
Multi-unit dwellings	
Applicability and exemptions	13-64
Definitions	13-63
Fines and fees	13-66
Local property manager required	13-65
Rules and regulations	13-68
Use of collected funds	13-67
Notice of foreclosure to bona fide tenants of rental residential property	
Definitions	13-24
Notice to bona fide tenants	13-25
Penalties	13-26
Purpose of chapter	13-3
Residential owner-occupied mortgage foreclosure intervention	
Definitions	13-19
Notice of intent to foreclose/mediation conference	13-22
Penalties and effective date	13-23

	Section
HOUSING (Cont'd.)	
Purpose	13-21
Statement of policy	13-20
Security housing developments for elderly persons and persons with disabilities	
Definitions	13-57
Enforcement	13-60
Non-liability of the city	13-61
Protection from rent increases	13-59
Security requirements for elderly/disabled multi-family housing developments	13-58
Severability	13-62
Statement of policy	13-2
Title of chapter	13-1
HOUSING BOARD OF REVIEW	
Administering oaths and compelling attendance of witnesses	13-42
Compensation of board members	13-32
Composition; appointment of members	13-28
Conduct of hearings on appeals	13-41
Disqualification of members from certain matters	13-33
Effect of filing appeal	13-39
Established; general powers and duties	13-27
Filing appeal from compliance order	13-37
Grounds for appeal from compliance order	13-36
Judicial review of decisions of board	13-46
Meetings	13-34
Minutes, records of proceedings, decisions	13-44
Officers	13-30
Qualifications of members	13-29
Quorum for hearing appeal	13-40
Review of proceedings of board	13-45
Right to appeal to board from compliance order	13-35
Schedule of appeal fees	13-38
Terms of members; filling vacancies	13-31
Vote required to reverse, modify order, authorize variance	13-43
HOUSING COURT	
Administration of operation	8-18
Annual appropriation	8-26
Appeal	8-25
City exempt from fees	8-28

Section

HOUSING COURT (Cont'd.)
Clerks
Authority and duty 8-23
Bond 8-22
Established 8-13
Fees 8-27
Housing court administrator
Bond 8-22
Generally 8-20
Vacancy in office 8-21
Jurisdiction 8-13
Powers 8-14
Purpose 8-12
Registry 8-16
Report of trial; transcript 8-24
Rules of practice and procedure 8-19
Seal 8-13
Sessions 8-15
Short title 8-11
Tenure; filling of vacancy 8-17

I

ICE. See: SNOW AND ICE

IMPOUNDMENT
Animal control provisions ..... 4-1 et seq.
See: ANIMALS AND FOWL
Motor vehicles ..... 15-18 et seq.
See: MOTOR VEHICLES AND TRAFFIC

IMPROVEMENTS. See: PLANNING AND DEVELOPMENT

INDIGENT PERSONS
Relief of the poor ..... 12-28 et seq.
See: WELFARE

INDUSTRIAL AND COMMERCIAL BUILDING DISTRICT TENANT RELOCATION PROGRAM
Administration 21-243
Definitions 21-242
Program 21-244
Purpose and intent 22-241

	Section
INDUSTRIAL COMMISSION	
Compensation and expenses	2-280
Duties	2-281
Established, organizations	2-279
Secretary	2-280
Vacancies	2-280
INFLAMMABLE SUBSTANCES	
Explosives and inflammables	9-54 et seq.
See: FIRE PREVENTION AND PROTECTION	
INITIATIVE, REFERENDUM AND RECALL	
Elected officials; removal by recall	2-43
INSURANCE	
Bus shelters, liability insurance for	15-10
Public works director; acquisition of turbine and boiler insurance at incinerator building	2-116
INTELLIGENCE OFFICES	
Books to be kept	14-113
Inducing servant to leave employment prohibited	14-116
License	
Application fees	14-115
Fee	14-110
Production of	14-111
Required	14-109
Revocation	14-117
Office hours	14-114
Size required	14-112
INTERPRETATION	
Definitions and rules of construction	1-2
INVESTMENT	
Investment in manufacturers held liable for causing lead poisoning in the state prohibited	2-18.3
Socially responsible investing	2-18.1
J	
JOINT AUTHORITY	
Definitions and rules of construction	1-2
JUNK AND SECONDHAND DEALERS	
Acquisition of public property	14-137
Conduct of business in premises used as dwelling, restricted	14-133

	Section
JUNK AND SECONDHAND DEALERS (Cont'd.)	
Identification of seller of goods or merchandise	14-132
License	
Application	14-128
Display of	14-130
Expiration of	14-131
Fees for licenses	14-129
Holding period for property acquired by licensee	14-136
Required	14-127
Records	
Inspection of records and places of business	14-135
Records to be kept	14-134
JUNKED VEHICLES	
Storage of dismantled, junked or abandoned vehicles	15-36 et seq.
See: MOTOR VEHICLES AND TRAFFIC	
JUVENILE HEARING BOARD	
Composition	2-377
Duties	2-374
Establishment	2-371
Hearings	2-376
Juvenile hearing board coordinator	2-378
Appointment	2-378(b)
Eligibility	2-378(c)
Purpose	2-378(a)
Relationship to board	2-378(d)
Reporting	2-378(e)
Meetings	2-375
Referral	2-372
Refusal of referral	2-373
K	
KEEPER, PROPRIETOR	
Definitions and rules of construction	1-2
L	
LAUNDRY AND DRY CLEANING ESTABLISHMENTS	
Customer records, duty to preserve	14-7
Identification marks, duty to report	14-6
LEAD POISONING	
Investment in manufacturers held liable for causing lead poisoning in the state prohibited	2-18.3

Section

LICENSES AND PERMITS
Amusement centers. See herein: Shows and Other Amusements
Auctions and auctioneers ..... 14-20 et seq.
See: AUCTIONS AND AUCTIONEERS
Bells, ringing for sales 14-9
Bicycles, registration and licensing of ..... 14-236 et seq.
See: BICYCLES
Billiard parlors. See herein: Shows and Other Amusements
Body works services ..... 14-252 et seq.
See: BODY WORKS SERVICES
Boiler operators. See herein: Engineers and Boiler Operators
Bootblacks and newsboys ..... 14-43 et seq.
See: BOOTBLACKS AND NEWSBOYS
Bowling alleys. See herein: Shows and Other Amusements
Buildings
Notice of application for a demolition permit..... 5-8
Cesspools. See herein: Privies and Cesspools
Closing hours 14-1
Coupon sales
Duration of license; prorating 14-5
Fee for license 14-4
License, bond required 14-3
Regulated generally..... 14-2
Displaced workers notification 14-16
Dry cleaning establishments. See herein: Laundry and Dry Cleaning Establishments
Engineers and boiler operators ..... 14-85 et seq.
See: ENGINEERS, ENGINEERING
Explosives and inflammables ..... 9-54 et seq.
See: FIRE PREVENTION AND PROTECTION
Fees for licenses 17-3, 17-4
Flood hazard
Special flood hazard areas
Administrative provisions
Building permit 5-121
Garage or yard sales 14-13

	Section
LICENSES AND PERMITS (Cont'd.)	
Garbage collection, transportation, etc., licenses	12-65 et seq.
See: GARBAGE AND TRASH	
Garbage disposal units	25-76
Inflammables. See herein: Explosives and Inflammables	
Intelligence offices	14-109 et seq.
See: INTELLIGENCE OFFICES	
Junk and secondhand dealers	14-127 et seq.
See: JUNK AND SECONDHAND DEALERS	
Laundry and dry cleaning establishments	
Customer records, duty to preserve	14-7
Identification marks, duty to report	14-6
License fees, regulations for commercial establishments	14-1
Management and operations	14-331 et seq.
See: MANAGEMENT AND OPERATIONS	
Motor buses	24-47 et seq.
See: VEHICLES FOR HIRE	
Motor vehicle repair business	14-260 et seq.
See: MOTOR VEHICLE REPAIR BUSINESS	
Motor vehicles	
Dismantled, junked or abandoned vehicles; storage license required	15-37
Neighborhood events	14-339 et seq.
See: NEIGHBORHOOD EVENTS	
Newsboys. See herein: Bootblacks and Newsboys	
Pawnbrokers	14-155 et seq.
See: PAWNBROKERS	
Persons working as floor hosts; licensing	14-14
Petroleum products, permit fee for bulk storage	14-8
Poolrooms. See herein: Shows and Other Amusements	
Posting by applicants	14-15
Privies and cesspools	12-91 et seq.
See: PRIVIES AND CESSPOOLS	
Prohibited conduct	14-17
Restaurant licensees	10-23 et seq.

Section

LICENSES AND PERMITS (Cont'd.)
Secondhand dealers. See herein: Junk and Secondhand Dealers
Sewer permits ..... 25-73 et seq.
See: WATER AND SEWERS
Shoe shines. See herein: Bootblacks and Newsboys
Shooting galleries. See herein: Shows and Other Amusements
Short-term lenders ..... 14-342 et seq.
See: SHORT-TERM LENDERS
Shows and other amusements. See also: AMUSEMENTS AND AMUSEMENT PLACES
Billiard parlors, poolrooms, bowling alleys, shooting galleries and amusement centers..... 14-202 et seq.
Generally ..... 14-193 et seq.
Trampolines ..... 14-220 et seq.
Sidewalk construction and repair..... 23-60 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Soliciting
Entrances and hallways of buildings 14-10
Railroads and watercraft 14-11
Special event permits 23-36
Stable permits 5-35
Superintendent of vehicles, duties re licenses ..... 2-223 et seq.
See: MOTOR VEHICLES AND TRAFFIC
Tobacco dealers..... 14-300 et seq.
See: TOBACCO DEALERS
Trampolines. See herein: Shows and Other Amusements
Tree permits 23½-27
Uniforms and badges of examiners or inspectors of private corporation 14-12
Utility permits..... 23-35
Valet parking licenses ..... 14-285 et seq.
Vehicles for hire..... 24-3 et seq.

	Section
LICENSES AND PERMITS (Cont'd.)	
Vendors	14-173 et seq.
See: VENDORS	
LITTERING	
Parks	18-16
Violations and penalties enumerated	12-79 et seq.
LOBBYIST REGISTRATION	
Administrative penalty for violations	2-271
Definitions	2-265
Duties and powers of the city clerk	2-270
Exceptions	2-266
Identification badge	2-268
Purpose	2-264
Registration required	2-267
Reporting	2-269
Review by the city council	2-272
LODGING HOUSES. See: HOTELS, MOTELS, ETC.	
LOITERING	
Offenses and miscellaneous provisions	
On bus line property	16-26
LOTS	
Cemeteries	6-1 et seq.
Commercial parking lots	14-64 et seq.
Fencing of vacant lots	12-88
Protection after demolition of structures	5-4

M

MANAGEMENT AND OPERATIONS	
Annual report	14-336
Decorum and professional conduct	14-337
Information technology specialist	14-333
License administrator	14-331
Pre-hearing officer	14-332
Record of licensing proceedings	14-334
Required training of board members and staff	14-335
Rules of evidence	14-338
MAPS. See: SURVEYS, MAPS AND PLATS	

Section

MARKET SQUARE PEDESTRIAN MALL
Regulations enumerated ..... 23-93 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS

MARSHAL H. GOULD. See: WILL OF MARSHAL H. GOULD (Appendix A)

MAYOR
Definitions and rules of construction 1-2
Generally ..... 2-21 et seq.
See: CITY COUNCIL
Seal..... 2-343
Sustainability director..... 2-45

MEASURES. See: WEIGHTS AND MEASURES

MEAT AND MEAT PRODUCTS
Sanitary regulations ..... 10-4 et seq.
See: FOOD AND FOOD PRODUCTS

MEDAL, MUNICIPAL. See: MUNICIPAL MEDAL

MEDICINES. See: DRUGS AND MEDICINES

MENTAL HEALTH BOARD. See: COMMUNITY MENTAL HEALTH BOARD

MERRY-GO-ROUNDS
Shows and other amusements ..... 14-193 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES

MESSENGER. See: CITY SERGEANT AND CITY MESSENGER

MILK AND MILK PRODUCTS
Regulations enumerated ..... 10-49 et seq.
See: FOOD AND FOOD PRODUCTS

MINORS (Juveniles, children, etc.)
Bicycles, renting to minors 15-75
Bootblacks and newsboys, permit provisions re 14-45, 14-46
Cigarettes. See herein: Sale of Cigarettes, Tobacco Restricted; Notice Required
Community notification of sexual offenders..... 18½-3
Juvenile hearing board ..... 2-371 et seq.
See: JUVENILE HEARING BOARD

	Section
MINORS (Juveniles, children, etc.) (Cont'd.)	
Offenses and miscellaneous provisions	
Sale, delivery of model airplane glue prohibited	16-9
Sale of cigarettes, tobacco, restricted; notice required	16-8
Shows and other amusements	
Commercial establishments where alcoholic beverages are offered for sale	
Minors prohibited in certain establishments	14-231
Restricting the presence of patrons under age of eighteen (18) in Class N liquor establishments when entertainment is offered	14-232
Tobacco. See herein: Sale of Cigarettes, Tobacco, Restricted; Notice Required	
MONTH	
Black History Month	2-10.2
Definitions and rules of construction	1-2
MOTELS. See: HOTELS, MOTELS, ETC.	
MOTOR BUSES	
Regulations enumerated	24-47 et seq.
See: VEHICLES FOR HIRE	
MOTOR VEHICLE REPAIR BUSINESS	
City government	
Personal use of city vehicles	2-13
Purchase of fuel-efficient cars	2-12
Criminal records	14-266
Defined	14-261
Disposal of tires	14-269
Enforcement	14-274
Fire safety regulations	14-265
License	
Annual license fee	14-271
Application; fee	14-262
Display	14-270
Hearing and notice	14-263
Renewal	14-268
Required	14-260
Requirements for approval	14-267
Suspension or revocation	14-272
Severability	14-275
Violations and penalties	14-273
Zoning approval	14-264

	Section
MOTOR VEHICLES AND TRAFFIC	
Abandoned vehicles. See herein: Storage of Dismantled, Junked or Abandoned Vehicles	
Bicycles	
Carrying passenger on bicycle	15-73
Minors, renting bicycles to	15-75
Mode of riding bicycle	15-72
Operating bicycles abreast	15-71
Signal bells on bicycles	15-74
Speed of bicycles	15-70
Blocking intersections and crosswalks	15-16
Bus lanes	
Empire Street, establishment on portion of	15-57
Purpose of provisions	15-54
Removal of vehicles parked, standing in violation and provisions	15-59
Signs, markings, other devices to designate lanes	15-58
Washington Street, establishment on portion of	15-55
Weybosset Street, establishment on portion of	15-56
Bus shelters	
Liability insurance for	15-10
City vehicles to carry name of city	15-1
Crosswalks	
Blocking	15-16
Designation of intersections subject to section 31-15-12.2 of Rhode Island General Laws	15-17
Diesel emission reduction for nonroad and on-road vehicles	
Use of ultra low sulfur diesel fuel and best available retrofit technology	12-19(c)
Dismantled vehicles. See herein: Storage of Dismantled, Junked or Abandoned Vehicles	
Fines, payment of. See herein: Payment of Fines	
Fire lanes	
Private property, designation of fire lanes on	15-118
Garage. See herein: Municipal Garage	
Impoundment of vehicles	
Accident-chasing by tow companies, auto body or auto repair-companies	15-28
Disabled or abandoned vehicles on public highway, removal of	
Moving, alerting, repairing motor vehicle removed from highway	15-20

	Section
MOTOR VEHICLES AND TRAFFIC (Cont'd.)	
Order to remove	15-19(a)
Towing service, use of	15-19(b)
Duty to regain possession of vehicle	15-21
Police department, use of towing service companies by	
Agreement required	15-23(a)
Listing to be followed	15-23(b)
Post-seizure hearings for towed or impounded vehicles applicable to other sections	15-27
Rules and regulations to implement provisions	15-25
Scofflaws, towing, impoundment or immobilization of vehicles of	15-26
Violations by towing service company, owner or operator of premises to which vehicle is removed	15-24
Insurance	
Liability insurance for bus shelters	15-10
Intersections	
Blocking	15-16
Junked vehicles. See herein: Storage of Dismantled, Junked or Abandoned Vehicles	
Motorcycles	
Special parking areas	15-15
Motorized vehicles	
Definition of terms	15-133
Low speed vehicle	15-132
Motorized devices	15-131
Municipal garage	
Charges for labor, material, supplies and services	
Action upon	15-90
Director of public property, general authority	15-86
Maintenance of vehicles	
Accounting; charging department with expense items	15-88
Municipal garage revolving fund	
Approval, fund purpose	15-89
Reimbursement	15-91
Statement of value of material on hand	15-92
Vehicle stored in	15-87
Parking	
Motorcycles, special parking areas	15-15
Parking permits	
Issuance of parking permits on city streets	15-12

	Section
MOTOR VEHICLES AND TRAFFIC (Cont'd.)	
Valet parking	14-285 et seq.
Parking lots, commercial	14-64 et seq.
See: COMMERCIAL PARKING LOTS	
Parking meters	
Hours and rates	15-13
Multi-space parking meters and spaces	15-14
Parks, restrictions and prohibitions re	18-1 et seq.
See: PARKS AND RECREATION	
Payment of fines	
Effect of payment	15-5
Generally	15-3
Notice requirements	15-6
Payment by mail	15-4
Penalties for traffic violations	
Generally	15-2(a)
Meter violations	15-2(b)
Reasonable speeds	
Conditions requiring reduced speed	15-109
Reasonable and prudent speeds	15-108
Residential parking/standing of certain commercial vehicles	15-11
Snowmobiles and recreational off-road vehicles	
Definitions	15-101
Enforcement	15-104
Operations	15-103
Penalty	15-105
Registration	15-102
Speed	
Bicycles	15-70
Reasonable speeds. See herein that subject	
Stopping/standing in permitted valet parking area	14-291
Storage of dismantled, junked or abandoned vehicles	
Action upon determination of violation	15-39
Arrangement of junked or salvaged vehicles	15-43
Definitions	15-36
Determination of violation	15-38
Failure to remove upon proper notice	15-40
License	
Storage license required	15-37
Records required	15-42
Redemption of vehicles required	15-41

	Section
MOTOR VEHICLES AND TRAFFIC (Cont'd.)	
Superintendent of vehicles	
Additional duties	2-227
Appointment	2-219
Duty to devote entire time to business	2-221
Enforce ordinances and conditions of licenses	2-225
General duties	2-220
Investigate, report applications for licenses	2-223
Investigation, reports of complaints	2-226
Issue of licenses; collections and records	2-224
Office hours	2-221
Quarterly reports, duty to make	2-222
Taxation	
Motor vehicle tax exemption for handicapped	21-173 et seq.
Traffic control signs, signals and devices	
Automated red light enforcement	
Baseline and warning period; monitoring	15-128
Definitions	15-121
Installation and signage	15-127
Penalty	15-122
Penalty; effect of a conviction	15-124
Private entities	15-126
Proof; certificate	15-123
Requirements for traffic-control signals	15-129
Security of records	15-130
Summons	15-125
Valet parking	14-285 et seq.
See: VALET PARKING	
Vehicles for hire. See that subject	
Motor buses	24-47 et seq.
Sound trucks	24-97 et seq.
Violations and penalties	
Effect of multiple violations re stopping, standing, parking or operation	15-7
Failure to comply	15-8
Notification of administrative adjudication division of the State of Rhode Island	15-9
Payment of fines. See herein that subject	
Penalties for traffic violations. See herein that subject	

	Section
MOTOR VEHICLES AND TRAFFIC (Cont'd.)	
Weight limits	
Weight of trucks on certain streets	15-142
Weight of vehicles on bridges	15-141
MUNICIPAL COURT	
Generally	8-1 et seq.
See: COURTS	
MUNICIPAL GARAGE	
Provisions enumerated	15-86 et seq.
See: MOTOR VEHICLES AND TRAFFIC	
MUNICIPAL MEDAL	
Description	2-6
Person upon whom bestowed	2-7
MUNICIPAL SEALS	
Board of canvassers and registration, seal of	
Custody, preservation	2-347(b)
Description	2-347(a)
Use	2-347(c)
City council seal	
City clerk as custodian	2-341
Description	2-339
Meeting of description	2-340
Use of	2-342
City registrar, seal of	
Custody, preservation	2-345(c)
Description	2-345(a)
Meaning	2-345(b)
Use	2-345(d)
City seal	
City clerk as custodian	2-337
Description of	2-335
Meetings of description	2-336
Nature and use of	2-338
Department of weights and measures, seal of	
Custody preservation	2-348(b)
Description	2-348(a)
Mayor, seal of	
Custody, presentation	2-343(c)
Description	2-343(a)
Meaning	2-343(b)
Use	2-343(d)

	Section
MUNICIPAL SEALS (Cont'd.)	
Probate court, seal of	
Custody, preservation	2-346(c)
Description	2-346(a)
Meaning	2-346(b)

N

NEIGHBORHOOD EVENTS	
City services for neighborhood events	14-341
Eligibility of neighborhood events	14-340
Policy	14-339
NEWSBOYS. See: BOOTBLACKS AND NEWSBOYS	
NOISE	
Bells, ringing for sales	14-9
Bootblacks and newsboys; noise prohibited	14-53
Hospital quiet zones	12-8 et seq.
See: HEALTH AND SANITATION	
Offenses and miscellaneous provisions	
Prohibited generally	16-10
Sounding horn, signal device for unnecessary period	16-12
Sounding of horn or signal device of vehicle	16-11
NOISE CONTROL	
Amplified sound	16-105
Complaints	16-109
Construction of buildings and projects	16-98
Declaration of policy	16-91
Definitions	16-92
Drums	16-95
Hawkers and peddlers	16-94
Machinery, equipment, fans, and air conditioning	16-97
Radios, television sets, and similar devices	16-93
Schools, hospitals and churches	16-96
Vehicle	
Regulations	16-105
Repairs	16-99
Violations	
Penalty	16-106
Public nuisance; injunctions	16-107
NONTECHNICAL AND TECHNICAL WORDS	
Definitions and rules of construction	1-2

Section

NORTH BURIAL GROUND
Regulations enumerated ..... 6-17 et seq.
See: CEMETERIES

NUDITY
Shows and other amusements
Commercial establishments where alcoholic beverages are offered for sale
Nudity on premises where alcoholic beverages are offered for sale..... 14-230

NUISANCES
Dogs barking, etc.; conditions declared nuisance..... 4-47
Offenses and miscellaneous provisions
Chronic nuisance properties 16-22
Loud or unruly gatherings—Public nuisance..... 16-21

NUMBER
Definitions and rules of construction 1-2

NURSING HOMES. See: CONVALESCENT, NURSING HOMES AND SIMILAR ESTABLISHMENTS

O

OATH, AFFIRMATION, SWEAR OR SWORN
Definitions and rules of construction 1-2
Housing court oath 8-13
Subscribing name of city and making oath..... 2-3

OBSTRUCTIONS
Fire escapes, passage ways, doors, windows 9-7
Offenses and miscellaneous provisions
Of public ways 16-13
Or disturbance of public school session 16-13.2

OCCUPANT, TENANT
Definitions and rules of construction 1-2

OFFENSES AND MISCELLANEOUS PROVISIONS
Abandoned or unattended refrigerators, other receptacles..... 16-1
Alcohol
Prohibition against unlicensed establishments charging patrons fees related to the consumption of alcohol..... 16-25
Assemblages, demonstrations at War Memorial monument..... 16-2

	Section
OFFENSES AND MISCELLANEOUS PROVISIONS (Cont'd.)	
Discrimination	16-51 et seq.
See: DISCRIMINATION	
Disorderly and indecent conduct	16-3
Failure to pay city fees	16-27
Gambling	
On public conveyances, in public places, or while in trespass	16-18
Graffiti	16-141 et seq.
See: GRAFFITI	
Laser pointers, possession and use of	16-19
Definition	16-19(a)
Penalty for violation	16-19(e)
Pointing or focusing of laser beam at person or animal prohibited	16-19(b)
Prohibited display for sale	16-19(d)
Prohibited sale to minors	16-19(c)
Litter	
Throwing litter or foreign objects upon playing or performance area in civic center	16-14.2
Loitering	
On bus line property	16-26
Malicious injury	
Drinking fountains and urinals	16-7
Fences, posts, trees	16-4
Lights	16-6
Reward for apprehension of person maliciously damaging city property	16-5
Minors	
Sale of cigarettes, tobacco, restricted; notice required	16-8
Sale, delivery of model airplane glue prohibited	16-9
Noise	
Prohibited generally	16-10
Sounding horn, signal device for unnecessary period	16-12
Sounding of horn or signal device of vehicle	16-11
Noise control	16-91 et seq.
See: NOISE CONTROL	
Nuisances	
Chronic nuisance properties	16-22
Additional remedies	16-22(j)
Burden of proof	16-22(h)

	Section
OFFENSES AND MISCELLANEOUS PROVISIONS (Cont'd.)	
Corrections agreement	16-22(e)
Declaration of chronic nuisance property and procedure	16-22(c)
Definitions	16-22(a)
Enforcement	16-22(g)
Fines	16-22(f)
Owner cooperation	16-22(d)
Remedies	16-22(i)
Suspension of business license	16-22(k)
Violation	16-22(b)
Loud or unruly gatherings—Public nuisance	16-21
Defined	16-21(a)
Enforcement	16-21(d)
Notice via mailing	16-21(c)
Notice via posting	16-21(b)
Obstruction	
Of public ways	16-13
Or disturbance of public school session	16-13.2
Residential picketing	16-13.1
Security alarm systems	16-121 et seq.
See: SECURITY ALARM SYSTEMS	
Smoking	
On buses	16-14
Or possessing drugs in civic center	16-14.1
Solicitation	
Prohibition against certain forms of aggressive solicitation	16-20
Spitting	16-15
Swimming or bathing	
Prohibited in certain waters	16-17
Proper attire required	16-16
OFFICERS AND EMPLOYEES	
Administrative assistant	2-40
Bonds	
Bonding assistants in offices handling money	17-43
City controller, custody of	17-42
City to provide; cost	17-37
Enumeration and amount	17-36
Form and condition; approval by city solicitor, council	17-39

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Personal interest of officers making contracts, purchases or sales	
Condition in bond against	17-40
Qualifying and giving	17-5
Superintendent of public buildings, conditions of bond of	17-41
Termination	17-38
City clerk	2-46 et seq.
City controller	2-84 et seq.
City council members	2-19 et seq.
City engineer	2-131 et seq.
City forester	23½-5, 23½-24 et seq.
See: TREES AND SHRUBBERY	
City messengers. See herein: City Sergeant and City Messenger	
City plan director	2-246
City sergeant and city messenger	2-170 et seq.
City solicitor	2-98 et seq.
City treasurer	2-65 et seq.
Code of ethics	17-33
Collective bargaining agreements, ratification of	17-27
Commissions issued by city clerk	17-2
Communication director	2-125 et seq.
Compensation and other benefits	
Annuities for widows of policemen and firemen	
Appropriations by city to pay annuities	17-133
Eligibility; amount	17-128
Finance committee and city controller, duties of	17-129
Limitations upon amount payable	17-130
Monthly information return	
Effect of misstatements in return	17-132
Required	17-131
Certain city officers, compensation for services	17-54
Death of policeman, fireman in line of duty	
Benefits payable for	17-67
Restriction on amount allowed	17-68
Disability compensation	
Amount, duration of disability pay for temporary absence of fireman	17-79

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Blue Cross and Physician Service coverage for disabled employees	
Allowance	17-80
Allowance to persons receiving accident death benefits	17-81
Authority to provide family coverage at expense of city	17-83
Effect of other coverage	17-82
Payment for cost of hospitalization, related benefits	17-85
Rules and regulations to implement provisions.	17-84
Commission for relief of injured employees	
Organized, functions	17-75
Payments to injured employees	17-76
Entitlement of policemen, firemen to disability compensation	17-77
Restrictions on amounts allowed	17-78
Employees entering armed forces, continuance on payroll	17-56
Establishment of certain departments	17-55
Fence viewer, salary of	17-69
Holiday pay for policemen and firemen	17-58
Holidays and holiday pay	17-57
Overtime and call-back pay in fire department	
Call-back pay allowance	17-62
Generally	17-60
Hourly rate of overtime pay	17-63
Overtime allowance	17-61
Overtime and call-back pay in police department	
Call back pay allowed	17-65
Generally	17-64
Hourly rate of call-back pay	17-66
Overtime pay	
Daily basis of pay	17-59(b)
Hourly basis of pay	17-59(a)
Management and supervisory personnel	17-59(c)
Retired employees, additional payments to	
Authority to reduce, terminate payments	17-123
Determining payments, basis for	17-120
Durability, termination upon death	17-119
Established; amount, scope	17-118

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Monthly information return	
Effect of false statements in returns	17-122
Required of eligible employees	17-121
Payment of termination benefits	17-124
Purchase of service into retirement system	17-126
Transferability	17-119
Sick leave	
Certain defined reasons only, leaves to be granted for	17-103
Finance director	
Rules and regulations, decisions of	17-112
Full pay, leave with established	17-102
Lay-off or leave of absence, time not to accrue during	17-106
Maximum days allowed; accrual	17-104
Medical certification of illness, authority to require	17-108
Pregnancy, dissipation, immoral conduct not basis for leave	17-107
Prior service, time allowed employees for	17-105
Relief of certain injured employees prohibited during sick leave, payment by commission for	17-110
Right of recovery, termination of rights for unused sick leave	17-111
Violations, false claims or reports	17-109
Vacations with pay	
Accrual	17-93
Established, amount	17-91
Finance director, rules and regulations of	17-92
Firemen, annual vacation	17-96
Maximum accumulation	17-92
Military training, application of persons on	17-95
Provisions inapplicable to certain employees	17-94
Widows of policemen and firemen. See within this subheading: Annuities for Widows of Policemen and Firemen	
Conduct of employees. See herein: Standard of Conduct of Employees	
Confidential nature of payroll list	2-288
Constables, grounds for revocation of appointments	17-26
Definitions and rules of construction	1-2
Dog officer	4-49 et seq.
See: ANIMALS AND FOWL	

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Elections	2-296 et seq.
See: ELECTIONS	
Enumeration and terms of office	17-1
Examinations for police, fire candidates	17-29
Fees for licenses and commissions	
Collection of	17-4
Generally	17-3
Financial officers, lines of authority for	17-34
Fire department, day and night force for	17-15
Firemen not to engage in other employment	17-16
Five-day week, departments may establish	17-10
Heads of departments to keep lists of employees	17-6
Health, superintendent of	12-1
Housing court administrator, clerks, etc.	8-20 et seq.
Identification card. See herein: Uniform Identification Card	
Inspection and standards, director of	26-1 et seq.
See: WEIGHTS AND MEASURES	
Inspection of payroll list	
Right of inspection by taxpayers	2-286
Inspector of provisions, duties of	17-25
Internal auditor	2-42
Law enforcement agencies, cooperation with	17-32
Leave of absence	
Educational training	
Approval required	17-18(b)
Bond required	17-18(c)
Generally	17-18(a)
Rules and regulations	17-18(d)
Grant of leave of absence without pay	17-17
Sick leave. See herein: Compensation and Other Benefits	
Veterans' conventions	
Authorized	17-19(a)
Regulated	17-19(b)
Management and operations	14-331 et seq.
See: MANAGEMENT AND OPERATIONS	
Mayor	2-21 et seq.
See: CITY COUNCIL	
Member of city government not to act as surety	2-5
Misuse of information from payroll lists	2-289

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Misuse, penalty for	2-290
Mosquito control supervisor	12-3
Motor vehicles and traffic	
Personal use of city vehicles	2-13
Superintendent of vehicles	2-219 et seq.
Municipal medal	2-6 et seq.
See: MUNICIPAL MEDAL	
Paychecks, mailing of	17-31
Payroll list. See herein: Inspection of Payroll List	
Pensions	
Restriction on employment of persons drawing city pension	17-8
Planning and urban development director	2-162 et seq.
Police officers, assignment to construction projects	17-28
Police reserve	
"Active duty" defined	17-156
Authority to call members to active duty	17-153
Compensation, status of members; hospital, medical expenses of injured member	17-152
Establishment, function	17-148
Oath as special police constables	17-150
Police authority of member not on active duty	17-155
Police authority of members on active duty	17-154
Prerequisites to swearing in member	17-151
Rules and regulations applicable	17-149
Presumptive cancer benefit and wellness incentive for firefighters	
Affidavit required	17-138
Application for accidental disability pension	17-138.2
Definitions	17-134
Exceptions	17-136
Firefighter disabled by cancer entitled to accidental disability pension	17-138.1
Powers of city	17-137
Presumption; requirements	17-135
Prohibited interest of councilmen, officers, employees	2-4
Providence public school graduates	17-35
Public buildings, superintendent of	2-194, 2-195
Public property director	2-102 et seq.
Public service engineer	2-233 et seq.
Public works director	2-112 et seq.

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Reasonable rules and regulations, inspection subject to	2-287
Recreation director	18-51 et seq.
See: PARKS AND RECREATION	
Residency requirements	
Employees to be residents; exceptions	17-7
Retirement system	
Benefits payable	17-189
Conflicts with other laws	17-197
Cost of living adjustment	17-194
Definitions	17-181.3
Effective date	17-199
Elective officers	17-192
Guarantee by city	17-186
Investment of funds	17-184
Legislative findings	17-181.2
Limits on post-retirement benefits	17-195
Membership of retirement system	17-187
Method of financing	17-185
Name and date of establishment	17-182
Options	17-190
Pensions not to exceed one hundred fifty percent of state median household income	17-196
Pensions offset by compensation benefits	17-191
Protection against fraud	17-193
Purpose	17-181.1
Retirement system	17-183
Revocation or reduction of retirement benefits of employees for dishonorable service	17-189.1
Service creditable	
Generally	17-188
Purchase of service credit	17-188.1
Severability—Indispensable party	17-198
School superintendent and teachers	22-2 et seq.
Sewers and sewage disposal, provisions re garbage disposal units	25-76
Suggestion award program	
Adoption	17-139
Participation in program, regulations governing	17-141
Procedure for making and consideration of suggestions	17-142

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Suggestion award committee	
Clerk	17-140(d)
Created, function	17-140(a)
Members, chairman	17-140(b)
Terms of members	17-140(c)
Traffic engineer	2-153 et seq.
Tuberculosis	
Director in charge of antituberculosis work	12-2
Uniform identification card	
Application to members of police, fire department	17-23
Counterfeiting, tampering, misusing cards	17-24
Record to be kept by director	17-22
Required	17-20
Size, color, contents	17-21
Vehicles, superintendent of	2-219 et seq.
See: MOTOR VEHICLES AND TRAFFIC	
Veterans of armed forces, return to city employment	
Generally	17-9(a)
Reserves	17-9(b)
Weights and measures, superintendent of	2-206 et seq.
Workweek	
Departments may establish five-day week	17-10
Distribution of hours as to days	17-14
Establishment of basis workweek in certain departments	17-11
Prescribed	17-12
Standard hours and days of work per week prescribed	
Daily pay	17-13(b)
Hourly pay	17-13(a)
OPEN SPACES. See: YARDS AND OPEN SPACES	
OR, AND	
Definitions and rules of construction	1-2
ORDINANCES, RESOLUTIONS, ETC.	
City clerk, duties re	2-46 et seq.
See: CITY CLERK	
City plan commission	
Ordinances, resolutions, affecting planning to be submitted to plan commission	2-255
Code of Ordinances	1-1 et seq.
Fiscal notes to accompany ordinances and resolutions	
Content of fiscal notes	2-2.1(b)

Section

ORDINANCES, RESOLUTIONS, ETC. (Cont'd.)
Note or explanation for absence of note required prior to council action ..... 2-2.1(f)
Preparation of fiscal notes ..... 2-2.1(d)
Request for fiscal notes ..... 2-2.1(c)
Return of fiscal notes ..... 2-2.1(e)
When required ..... 2-2.1(a)
Ordinances approving and adopting redevelopment plan. See Appendix B
Posting ordinances and resolutions in city hall 2-2
Publication of ordinances and resolutions 2-1

OWNER
Definitions and rules of construction 1-2

P

PAINT MANUFACTURERS
Investment in manufacturers held liable for causing lead poisoning in the state prohibited 2-18.3

PARADES AND PROCESSIONS
Fire department participation in parades 9-5

PARKING
Market Square Pedestrian Mall; towing of unlawfully parked or standing vehicles 23-95
Motor vehicles and traffic
Parking meters
Multi-space parking meters and spaces 15-14
Parking permits
Issuance of parking permits on city streets 15-12
Valet parking ..... 14-285 et seq.

PARKING LOTS
Commercial parking lots ..... 14-64 et seq.

PARKS AND RECREATION
Advertising
Affixing notices, other papers in parks 18-10
Disturbing circulars in parks 18-11
Alcoholic beverages
Sale, use, possession of 18-21
Animals
Dexter training ground 18-1

	Section
PARKS AND RECREATION (Cont'd.)	
Disturbing animals	18-9
Domestic animals in parks	18-8
Bathing or fishing	18-9
Board of park commissioners	
Close parks to public during certain hours, authority	18-29.1
Dexter training ground, authority over	18-31
Expenditures, accounts	
Authority to direct expenditures, approve and certify accounts	18-36
Not to incur indebtedness in excess of appropriations	18-37
Gift or trust as to playgrounds, duty not to violate terms of	18-35
Management and regulations of public playgrounds	18-32
Office and office hours	18-38
Powers and duties	
Generally	18-29(a)
Gifts, devices, bequests	18-29(d)
Personnel	18-29(e)
Purchases	18-29(b)
Rules and regulations	18-29(f)
Sales, display	18-29(c)
Records and reports required	18-39
Rules and regulations as to playgrounds	18-33
School property and other property, authority to use	18-30
Superintendents, supervisors, other personnel for playgrounds	
Employment of	18-34
Department of recreation	
Advisory committee	
Appointment of	18-60
Compensation of members	18-63
Expiration of terms of office, vacancies in	18-61
Functions	18-64
Organization of	18-62
Deputies, assistants and employees	18-54
Director of recreation	
Appointment, term	18-51
Duties re playgrounds, sports, etc.	18-56
General duties	18-55

	Section
PARKS AND RECREATION (Cont'd.)	
Public, private property	
Authority to use	18-58
Qualifications	18-42
Salary	18-53
School property, authority of director to use	18-57
Effect of provisions on board of park commissioners, other boards	18-59
Established	18-50
Dexter training ground	
Firewood, timber, other material, animals, vehicles in	18-1
Driving teams, swill carts, business vehicles into parks	18-6
Fish	
Fishing, disturbing fish, waterfowl	18-9
Grass, duty to keep off	18-13
Injuring, tampering with property in parks	18-15
Lighting, building or making fires in parks	18-17
Littering parks, etc.	18-16
Park seats, lying on or overturning	18-14
Pleasant Valley Parkway, application of provisions to portions of	18-18
Political religious meetings, addressing	18-7
Property damage	
Injuring, tampering with property in parks	18-15
Reward for information as to persons damaging property	18-20
Riding and driving on turf in parks	18-5
Riding or driving in parks	18-4
Roger Williams Park	
Canoes, operating in	
Compliance with rules	18-3(d)
Display of registration numbers	18-3(c)
Duration of registration	18-3(b)
Registration required	18-3(a)
Violations and penalties	18-3(e)
Hours to open	18-2
Tennis courts, fees for use in	18-3.1
Sale or use of tobacco and cannabis products in parks	18-22
Selling goods, etc., in parks	18-12

Section

PARKS AND RECREATION (Cont'd.)
Wildlife
Reward for information as to persons injuring, destroying wildlife 18-19

PAWNBROKERS
Books and records to be kept 14-160
Identification of seller of goods and merchandise..... 14-161
License
Fee 14-156
Posting and display 14-157
Required 14-155
Revocation..... 14-159
Transferability 14-158

PAYROLL LIST
Personnel of city; inspection of payroll list ..... 2-286 et seq.
See: OFFICERS AND EMPLOYEES

PEDESTRIAN MALLS
Regulations enumerated ..... 23-93 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS

PEDICABS. See: BICYCLES

PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES

PENSIONS AND RETIREMENT
Personnel of city, applicable provisions re ..... 17-8 et seq.
See: OFFICERS AND EMPLOYEES

PERMITS. See: LICENSES AND PERMITS

PERSON
Definitions and rules of construction 1-2

PETROLEUM PRODUCTS. See: GASOLINE AND PETROLEUM PRODUCTS

PICKETING. See: DEMONSTRATIONS AND ASSEMBLIES

PLANNING AND DEVELOPMENT
Business improvement districts..... 21-213 et seq.
See: FINANCES

Section

PLANNING AND DEVELOPMENT (Cont'd.)
Capital Center ..... 2-361 et seq.
See: CAPITAL CENTER
City engineer ..... 2-131 et seq.
See: CITY ENGINEER
City plan commission ..... 2-240 et seq.
See: CITY PLAN COMMISSION
City treasurer; regulating urban renewal expenditure 2-71.1
Community development block grant administration. 2-44
Ordinances approving and adopting redevelopment plan. See Appendix B
Post-construction stormwater control
Stormwater management plans 5-87
Redevelopment areas
Authority; designation of areas 20-1
Enumerated ..... 20-2 et seq.
Tree; proposed development on public land 23½-43

PLANNING AND URBAN DEVELOPMENT DEPARTMENT
Agreements, covenants and contracts
Authority to enter into 2-166
Conflict with other ordinances, effect of 2-168
Creation 2-161
Director
Appointment 2-162
Delegation of powers, duty to subordinate 2-162
Powers and duties 2-165
Reports of 2-167
Jurisdiction 2-161
Official capital improvement program 1990—1995
Definitions ..... 2-169(c)
Objectives ..... 2-169(a)
Purpose ..... 2-169(b)
Personnel of department
Appointment, powers, duties, compensation, classification 2-164
Preservation of agencies, offices 2-168
Rules and regulations
Adoption, scope 2-163
Transfer of powers and duties 2-168

PLATS, PLATTING. See: SURVEYS, MAPS AND PLATS

POLES AND WIRES

	Section
POLES AND WIRES (Cont'd.)	
Advertising	
Posting, affixing bills, posters, etc., to structures ...	3-4
Streets and sidewalks, applicable provisions re poles, wires and conduits.....	23-98 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS	
POLICE DEPARTMENT	
Community notification of sexual offenders.....	18½-3
Emergency police details for certain establishments..	18.5-1
Officers and employees. See that subject	
Annuities for widows of policemen and firemen	17-128 et seq.
Compensation and other benefits	17-54 et seq.
Construction projects, assignment of police officers to	17-28
Disability compensation	17-77
Police reserve.....	17-148 et seq.
Providence Community-Police Relations Act.....	18½-4
Providence External Review Authority (PERA).....	18.5-2
POOLROOMS	
Regulations enumerated	14-202 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	
POOR PERSONS	
Relief of the poor.....	12-28 et seq.
See: WELFARE	
PORT	
Harbor and port.....	11-1 et seq.
See: HARBOR AND PORT	
POST-CONSTRUCTION STORMWATER CONTROL	
Applicability.....	5-82
Application fees	5-89
Enforcement.....	5-90
Exemptions.....	5-83
Maintenance agreements	5-88
Maintenance requirements for best management practices (BMPs).....	5-86
Purpose.....	5-81
Stormwater management plans	5-87

Section

POST-CONSTRUCTION STORMWATER CONTROL (Cont'd.)
Submissions and approvals 5-84
Technical standards 5-85

POULTRY
Slaughtering poultry ..... 10-104 et seq.
See: FOOD AND FOOD PRODUCTS

PRECEDING, FOLLOWING
Definitions and rules of construction 1-2

PREMISES
Definitions and rules of construction 1-2

PRISONERS OF WAR
Taxation
Former
Tax exemption provisions ..... 21-128.1 et seq.

PRIVATE DETECTIVES
Intelligence offices ..... 14-109 et seq.
See: INTELLIGENCE OFFICES

PRIVIES AND CESSPOOLS
Apparatus used to remove contents 12-94
Deposit of contents 12-98
Disinfecting 12-99
Duty when sewer connection not available 12-90
Entire contents to be removed 12-96
Height of contents 12-97
Hours of operation 12-95
License for removal of contents
Duration 12-92
Fees 12-93
Required 12-91
Permit, removal by owner on 12-91

PROBATE COURT
Generally ..... 8-6 et seq.
See: COURTS
Seal 2-346

Section

PROCEEDINGS. See: SUITS, ACTIONS AND OTHER PROCEEDINGS

PROCESSES. See: WRITS, WARRANTS AND OTHER PROCESSES

PROCESSIONS. See: PARADES AND PROCESSIONS

PROPERTY
Acquiring option to purchase land..... 2-29 et seq.
See: CITY COUNCIL
Commercial and multi-family residential property.... 21-260 et seq.
See: COMMERCIAL AND MULTI-FAMILY RESIDENTIAL PROPERTY
Definitions and rules of construction 1-2
Department of public property ..... 2-101 et seq.
See: PUBLIC PROPERTY DEPARTMENT
Fire lanes, designation of private property..... 15-118
Prohibition against the accumulation of stagnant water in swimming pools, spas, hot tubs, artificial ponds, and containers on private property 12-131
Tax exemption for certain property owned by the Providence Redevelopment Agency..... 21-211 et seq.
See: TAXATION
Taxation, applicable provisions re ..... 21-111 et seq.
See: TAXATION
Vendors..... 14-169 et seq.
See: VENDORS

PROPRIETOR, KEEPER
Definitions and rules of construction 1-2

PROVIDENCE, CITY OF. See: CITY

PROVIDENCE COLLEGE
Cemetery; right to burial plot..... 6-4

PROVIDENCE, COUNTY OF. See: COUNTY

PROVIDENCE TAX STABILIZATION INVESTMENT ACT
Additional requirements for stabilized projects 21-306
Affordable housing trust..... 21-306(l)

	Section
PROVIDENCE TAX STABILIZATION INVESTMENT ACT (Cont'd.)	
Apprenticeship	21-306(h)
"Buy Providence" initiative	21-306(g)
City of Providence Parks and Recreation Trust Fund	21-306(k)
Commencement of performance	21-306(a)
Equal employment	21-306(f)
First source	21-306(e)
Internal revenue service reporting	21-306(d)
MBE/WBE	21-306(c)
Payment of area standard wages	21-306(m)
Permits and certificates of occupancy	21-306(b)
Post construction jobs	21-306(n)
Prohibited and restricted uses	21-306(j)
Project compliance	21-306(i)
Annual progress report	21-308
Reporting generally	21-308(a)
Reporting requirements	21-308(b)
Applicable law	21-310
Application procedure, approval, and drafting	21-305
Application	21-305(a)
Approval of application and setting base assessment	21-305(c)
City-wide departmental review	21-305(b)
Council review	21-305(e)
Drafting of agreement	21-305(d)
Default notice and cure	21-311
Definitions	21-302
Eligible project	21-303
Grant	21-303(a)
Qualifying new construction or rehabilitation	21-303(b)
Scope	21-301
Severability	21-309
Tax amnesty	21-312
Tax stabilization	21-304
Stabilization plan requirements applicable to all category projects	21-304(b)
Stabilization terms and plans	21-304(a)
Transfer of property	21-307
Post-expiration transfers	21-307(c)
Transfer generally	21-307(a)
Transfer to tax exempt entities	21-307(b)

	Section
PUBLIC BUILDINGS, SUPERINTENDENT OF. See: SUPERINTENDENT OF PUBLIC BUILDINGS	
PUBLIC LAWS RELATING TO CITY	
Enumerated	App. D
PUBLIC PROPERTY DEPARTMENT	
Adoption, scope	2-103
Conflict with other ordinances, effect of	2-109
Creation	2-101
Director	
Appointment	2-102
Powers and duties	2-105
Reports of	2-106
Disposition of accumulated surplus	2-108
Jurisdiction	2-101
Personnel of department	
Appointment, powers, duties, compensation, classification	2-104
Revolving fund, establishment of	2-107
Rules and regulations	2-103
PUBLIC RECORDS. See: DOCUMENTS AND PUBLIC RECORDS	
PUBLIC SAFETY RADIO SYSTEM	
In-building coverage and obstruction to fixed point-to-point microwave network	
Amplification systems allowed	5-114
Costs	5-117
Definitions	5-111
Exemptions	5-116
Intent and purpose	5-110
Noncompliance	5-118
Penalties	5-119
Testing procedures	5-113
Use and occupancy	5-112
Who must comply	5-115
PUBLIC SERVICE ENGINEER	
Deputy public service engineer, appointment of	2-235
Faithful discharge of duties required; salary	2-234
Railroads, powers and duties re	19-4 et seq.
See: RAILROADS AND TRAINS	
Scope of authority	2-233

Section

PUBLIC WAYS. See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS

PUBLIC WORKS
Provisions enumerated ..... 23-40 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS

PUBLIC WORKS DEPARTMENT
Annual report
Required, contents 2-111
Director
Accounting for property, employing labor 2-115
General powers and duties..... 2-117
Highway matters, report by director on 2-112
Insurance
Acquisition of turbine and boiler insurance at incinerator building 2-116
Numbering streets and placing of signs, director to superintend 2-114
Obstruction of streets, highways 2-118
Sidewalk construction and repair, authority re ..... 23-60 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS
Work on streets and sidewalks, director to superintend 2-113
Division of relocation
Established, organized 2-119
Functions and services..... 2-120

PURCHASING
Acquiring option to purchase land..... 2-29 et seq.
See: CITY COUNCIL
Contracts, purchases and sales. See: FINANCES
Finances of city, provisions re contracts, purchases and sales ..... 21-26 et seq.
See: FINANCES
Items fabricated in sweatshops
Avoidance of purchasing..... 2-18
North Burial Ground..... 6-22
Public celebrations in city; personnel, supplies, materials 2-11

R

RABIES CONTROL. See: ANIMALS AND FOWL

	Section
RAILROADS AND TRAINS	
Abandonment of grant and privileges by companies	19-12
Allen's Avenue, right to run tracks on	19-11
Capital Center	2-361 et seq.
See: CAPITAL CENTER	
Companies to indemnify city from damages, costs and expenses	19-27
Conformance to rules, regulations	19-3
Curves, rails at	19-18
Distance between cars traveling in same direction	19-24
Ice. See herein: Snow and Ice	
India Street, right to run tracks on	19-11
Lights on boxcars	19-26
Location, routes, etc., to conform to surveys and plans	19-14
Permit to certain companies continued	19-1
Public service engineer	
Check delays, installation of signs, cleanliness; enforcement of compliance	19-6
Inspection of cars, fixtures, appurtenances	19-5
Keep records, make reports of work	19-10
Overcrowding, investigation of	19-7
Records of operations to be kept by	19-9
Request to make investigation	19-8
Supervision of railroads, fixtures	19-4
Public work of city, railways not to interfere with	19-20
Paving, repaving or repairing at option of city	19-21
Rights reserved to city	
Scope of order	19-2(a)
Time to comply	19-2(b)
Sewerage or drainage system, alteration in	19-19
Snow and ice	
Removal of	19-22
Use of salt for melting	19-23
Soliciting for railroads	14-11
Streets	
Cement concrete subbase, tracks to be laid on	19-16
Director of public works to supervise railroad work on streets	19-17
Duty to keep streets in good repair, pave between rails	19-15
Freight cars on tracks in street	19-25
Tracks to conform to surveys, grades and regulations	19-13

Section

RAT AND VERMIN CONTROL
Birds, etc.
Feeding domesticated birds, fowl, animals 12-118
Feeding wild birds..... 12-119
Buildings or property to be rat eradicated prior to demolition or grading 12-113
Definitions 12-110
Duty of owner or occupant to remedy infested conditions 12-115
Injuring rat proofing construction 12-116
Inspection of premises
Notice of infested conditions; service of notice 12-114
Keeping premises in rat-infested, vermin-infested condition 12-111
New buildings and buildings repaired or altered to be ratproofed..... 12-112
Throwing rat or vermin harborage on vacant lands, streets, etc.
Enforcement of against owners and tenants..... 12-117
Violation and penalty 12-120

RECALL. See: INITIATIVE, REFERENDUM AND RECALL

RECORDER OF DEEDS
Seal..... 2-344

RECORDS. See: DOCUMENTS AND PUBLIC RECORDS

RECREATION. See: PARKS AND RECREATION

REFERENDUM. See: INITIATIVE, REFERENDUM AND RECALL

REFRIGERATION. See: HEATING, AIR CONDITIONING AND REFRIGERATION

REGISTRATION
Registration and licensing of bicycles..... 14-236 et seq.

See: BICYCLES

RESIDENCE
Definitions and rules of construction 1-2

RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.

Section

RESTAURANTS
Food establishments..... 10-21 et seq.
See: FOOD AND FOOD PRODUCTS
Hospitality business protection and worker retention 2-18.5
See also: HOSPITALITY BUSINESSES

RETIREMENT. See: PENSIONS AND RETIREMENT

RETROFIT TECHNOLOGY
Diesel emission reduction for nonroad and on-road vehicles
Use of best available retrofit technology..... 12-19(c)

RHODE ISLAND, STATE OF. See: STATE

RODENTS
Rat and vermin control..... 12-110 et seq.
See: RAT AND VERMIN CONTROL

ROGER WILLIAMS PARK
Regulations enumerated ..... 18-2 et seq.
See: PARKS AND RECREATION

RUBBISH. See: GARBAGE AND TRASH

S

SANITATION. See: HEALTH AND SANITATION

SATURDAYS
Department heads; keeping offices on Saturdays, in emergency 2-9

SCHOOLS
Books, stationery and supplies
Purchase of 22-6
Composition, original address, essay and reading
Medals for..... 22-11
Elections
Use of public school property for election purposes. 22-15
Fire drills in..... 9-11
Free instruction to be furnished pupils..... 22-8
Nonresident pupils, payments required 22-9
School committee
Control of appropriations; general power..... 22-1
Prohibited financial interest of personnel..... 22-7
Senator Anthony Fund, power and duty re 22-13

	Section
SCHOOLS (Cont'd.)	
School of Design, agreement with	22-14
Senator Anthony Fund	
Character of prizes awarded from fund	22-12
Power and duty of school committee	22-13
Superintendent	
Employment, compensation	22-2
Teachers	
Employment, compensation	22-2
Payment of salaries to	22-4
Persons disqualified to act as teachers	22-5
Records as to teachers; accounts of books, stationary, supplies, bills	22-3
Truancy board	2-391 et seq.
See: TRUANCY BOARD	
Vaccination of pupils required	22-10
SEAL	
Definitions and rules of construction	1-2
SEALS, MUNICIPAL. See: MUNICIPAL SEALS	
SECONDHAND DEALERS. See: JUNK AND SECONDHAND DEALERS	
SECURITY ALARM SYSTEMS	
Alarm permits	16-123
Alarm user awareness class	16-127.1
Appeals	16-128
Confidentiality	16-129
Declaration of policy	16-121
Definitions	16-122
Duties of alarm company	16-125
Duties of alarm user	16-124
Enforcement	16-127
Government immunity	16-130
Prohibited acts	16-126
Severability	16-131
SECURITY GUARDS	
Floor hosts; persons working as; licensing	14-14
SENIOR CITIZENS. See: ELDERLY PERSONS	
SERGEANT. See: CITY SERGEANT AND CITY MESSENGER	

	Section
SEWERS. See: WATER AND SEWERS	
SEXUAL OFFENDERS	
Community notification of sexual offenders	18½-3
SHOE SHINES. See: BOOTBLACKS AND NEWSBOYS	
SHOOTING GALLERIES	
Regulations enumerated	14-202 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	
SHORT-TERM LENDERS	
Books and records to be kept	14-347
Definitions	14-342
License fee	14-344
License required	14-343
Posting and display of license	14-345
Revocation of license	14-348
Transferability of license	14-346
SHRUBBERY. See: TREES AND SHRUBBERY	
SIDEWALKS. See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS	
SIGNATURE, SUBSCRIPTION	
Definitions and rules of construction	1-2
SIGNS AND BILLBOARDS	
Advertising, applicable provisions re	3-4, 3-5
Fire limits, construction in; ground signs	5-69
Intelligence offices; size required	14-112
Parking lots	
Commercial parking lots; size required	14-65
SMOKING	
Offenses and miscellaneous provisions	
On buses	16-14
Or possessing drugs in civic center	16-14.1
Tobacco dealers	14-300 et seq.
See: TOBACCO DEALERS	
SNOW AND ICE	
Departments and other agencies of city	
Payment for snow removal	2-16
Railroads	
Removal of snow and ice	19-22

	Section
SNOW AND ICE (Cont'd.)	
Use of salt from melting snow and ice	19-23
Streets and sidewalks, applicable provisions re	23-13 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC WAYS	
SNOWMOBILES AND RECREATIONAL OFF-ROAD VEHICLES	
Regulations enumerated	15-101 et seq.
See: MOTOR VEHICLES AND TRAFFIC	
SOCIALLY RESPONSIBLE INVESTING	
Regulations	2-18.1
SOIL EROSION AND SEDIMENT CONTROL	
Applicability	5-102
Approval; expiration; renewal	5-106
Definition of selected terms	5-109
Determination of applicability	5-103
Inspections	5-107
Noncompliance	5-108
Provisions of plan; procedures	5-104
Purpose	5-101
Soil erosion and sediment control plan	5-105
SOLICITATION	
Entrances and hallways of buildings, soliciting in	14-10
Offenses and miscellaneous provisions	
Prohibition against certain forms of aggressive solicitation	16-20
Railroads and watercraft, soliciting for	14-11
SOLICITOR. See: CITY SOLICITOR	
SOUND TRUCKS	
Regulations enumerated	24-97 et seq.
See: VEHICLES FOR HIRE	
STABLES	
Applications accompanied by plans	5-33
Applications to be sent to council; time limit to begin work, occupy building	5-34
Approval of location	5-32
Permits	
Condition of grant of permits for stables	5-35

	Section
STAGNANT WATER	
Prohibition against the accumulation of stagnant water in swimming pools, spas, hot tubs, artificial ponds, and containers on private property	12-131
STATE	
Definitions and rules of construction	1-2
STORAGE	
Convalescent, nursing homes and similar establishments	5-19 et seq.
See: CONVALESCENT, NURSING HOMES AND SIMILAR ESTABLISHMENTS	
Dismantled, junked or abandoned vehicles	15-36 et seq.
See: MOTOR VEHICLES AND TRAFFIC	
Explosives and inflammables	9-58 et seq.
See: FIRE PREVENTION AND PROTECTION	
Petroleum products; permit fees for bulk storage	14-8
STREETS, SIDEWALKS AND OTHER PUBLIC WAYS	
Advertising	
Erection, display of bills, posters, etc., on highway	3-5
Alcoholic beverages	
Consumption on public street, sidewalk, etc.	23-32
Authority to pave gutters and improve streets	23-10
Bridges	
Speed on bridges	23-155
City engineer, duties re	2-135 et seq.
See: CITY ENGINEER	
Coal	
Breaking up on sidewalk	23-26
Conduits. See herein: Poles, Wires and Conduits	
Construction and repair of sidewalks	
Curbcuts; permit required	23-69
Effect of noncompliance with time limit for construction, repair	23-67
License	
Duration of	23-65
Fee for	23-64
Issuance of	23-61
Place of business prerequisite to	23-63
Required from director of public works	23-60
Notice of sidewalk construction, alteration required	23-66
Width of sidewalk	23-68
Definitions and rules of construction	1-2

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)	
Diesel emission reduction	12-19
See also: GASOLINE AND PETROLEUM PRODUCTS	
Enforcement of interior placement obligations	23-34
Excavations	
Construction and repair of sidewalks. See herein that subject	
Filling up and repairing excavation	23-9
Opening, excavating, etc., on, in, across or under public roadway or sidewalk	23-6
Warning lights required at excavation, obstruction	23-8
Warning signs required at excavation, obstruction	23-7
Fences, etc.	
Barbed wire fences	23-5
Erection of fences and buildings on building lines; encroachments	23-4
Fire prevention	
Burning in streets or highways	9-9
Fires	
Lighting, building or making fires	23-27
Firewood	
Cutting or breaking on sidewalk	23-26
Fulton street pedestrian mall	
Established; limits fixed	23-97.1
Operation of vehicular traffic	23-97.2
Penalties	23-97.3
Reservation of rights to city	23-97.5
Towing of unlawfully parked or standing vehicles	23-97.4
Grass, duty to keep off	23-29
Green and complete streets	
Definition	23-192
Exceptions	23-196
Green and complete streets advisory council	23-194
Implementation	23-195
Performance measures and reporting	23-197
Scope of applicability	23-193
Vision and purpose	23-191
Ground cover on public streets and sidewalks	
Maintenance; removal	23-28
Hoisting or lowering merchandise over street	23-25
Ice. See herein: Snow and Ice	

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)	
Injurious oil, vitriol or other liquid	
Removal of	23-21
License	
By whom application is made	23-70
Market Square Pedestrian Mall	
Established; limits fixed	
Intersections	23-93(b)
Street	23-93(a)
Interpretation of provisions; reservations of rights to city	23-96
Maintenance responsibilities	23-97
Towing of unlawfully parked or standing vehicles	23-95
Vehicular traffic, operation of	23-94
Names of streets	23-1
Numbering, renumbering of streets, buildings	23-2
Obstruction of public right-of-way	23-24
Pedestrian mall	
Market Square Pedestrian Mall. See herein that subject	
Poles, wires and conduits	
Approval of location of wires aboveground required	23-112
Arc lamps over sidewalks, clearance of	23-120
Bills for city, certifying	23-140
Causing city lights to be set up	23-137
Changes in location of poles, structures supporting wires	23-113
City lights, authority of public service engineer over	23-136
City lights found not burning, duty as to	23-139
Clearance of wires over buildings	23-121
Electric current, authority to order shut off	23-135
Electrolysis	
Examinations, tests and reports as to	23-132
Protection of city property from	23-131
Emergency, removal of poles in case of	23-114
Eruv	23-144
Fire alarm and police signal wire, approval of poles for	23-111
High-tension wires	
Installation of	23-117
Insulation of	23-118

Section

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
Indemnity of city against claims arising out of electrical installations 23-109
Inspection of apparatus, equipment, use thereof
Notice, report or irregularities 23-125
Investigation, report of complaints to council 23-126
Lines, poles, fixtures, appurtenances to be kept in repair 23-123
Locations, installations to comply with provisions, state acts, contracts 23-98
Machinery
Insulation; tests of circuits 23-119
Maps showing locations of installation, public service engineer to keep 23-142
Marking and painting poles 23-116
Permission of council required for installations; exception 23-99
Precedence of wires, apparatus of city signal service 23-108
Public service engineer, information as to installations to be furnished to 23-110
Public work of city to take precedence over installations 23-107
Records of examinations, tests, orders, work
Public service engineer to keep; report 23-143
Refusal, neglect to comply with orders, directions of public service engineer 23-127
Renewing, resetting or relocating poles 23-115
Restoration of streets and sidewalks, other ways
Duty ..... 23-130(a)
Effect of noncompliance ..... 23-130(b)
Safe repair and condition, duty to keep installations in 23-124
Safety device required on low-tension wires entering buildings 23-122
Schedule for lighting, extinguishing city lights 23-138
Service connections for underground conduits distribution ducts 23-129
Submission of application for installation, plat accompany same 23-100
Tests and examinations of character of product of public service companies
Duty ..... 23-133(a)

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)	
Right of access	23-133(b)
Tests and examinations of safety of installations	23-134
Underground conduits, installation of	
Barriers and safeguards	23-128(b)
Location	23-128(c)
Opening, encumbering street, way	23-128(a)
Public works	
Annexes, use of city buildings by school committee as	23-44
Bathhouses and comfort stations	
Authority of superintendent of buildings as to	23-46
Care and management of	23-45
Expulsion of disorderly persons from	23-48
Rules for	23-47
Employment on public works	
Enlargements, alterations of city buildings; plans required	23-42
Ordinance part of contracts for public works	23-41
Preferences of citizens	23-40(a)
Wages	23-40(b)
New city buildings; plans required	23-43
Public works department	2-111 et seq.
See: PUBLIC WORKS DEPARTMENT	
Railroads, applicable provisions re	19-15 et seq.
See: RAILROADS AND TRAINS	
Report of street work to be accompanied by estimate of costs and plats	23-11
Skateboards	
Use on street, highway, sidewalk, pedestrian mall	23-31
Slippery fruit skins, similar substances	
Stores to post copy of ordinance	23-23
Throwing	23-22
Snow and Ice	
Depositing snow on highway	23-15
Removal of ice from sidewalks, required	23-16
Removal of	
Deposit restricted	23-14
On sidewalks adjoining city property	23-17
Required	23-13
Special event permits	23-36

Section

STREETS, SIDEWALKS AND OTHER PUBLIC WAYS (Cont'd.)
Sports, etc.
Playing ball, throwing missiles, sliding and skating 23-30
Street and sidewalk sweeping
Notice of street and sidewalk sweeping 23-169
Parking bans 23-170
Sidewalk sweeping 23-168
Street sweeping 23-167
Throwing or sweeping dirt, sand on sidewalks 23-12
Traffic engineering department 2-151 et seq.
See: TRAFFIC ENGINEERING DEPARTMENT
Traffic regulations 15-1 et seq.
See: MOTOR VEHICLES AND TRAFFIC
Use of tobacco products in the public way 23-37
Utility
Permits 23-35
Services 23-33
Valet parking 14-285 et seq.
See: VALET PARKING
Vendors 14-169 et seq.
See: VENDORS
Water
Deposits of unhealthy effluvia and dirty water 23-20
Permitting water to run from land upon street 23-19
Throwing water on sidewalks 23-18
Wires. See herein: Poles, Wires and Conduits

SUGGESTION AWARD PROGRAM
Provisions enumerated 17-139 et seq.
See: OFFICERS AND EMPLOYEES

SUITS, ACTIONS AND OTHER PROCEEDINGS
City solicitor; authority to settle small claims against city 2-99

SUPERINTENDENT OF PUBLIC BUILDINGS
General duties and records 2-194
Maintenance, custody, inspection of indexes, books and records 2-195

	Section
SURVEYS, MAPS AND PLATS	
City engineer; duty to furnish plats of streets and highways	2-137
City plan commission making investigations, maps and studies	2-254
Elections; polling place maps at polling places	2-303
Street work	
Report to be accompanied by estimate of costs and plats	23-11
SWEAR OR SWORN. See: OATH, AFFIRMATION, SWEAR OR SWORN	
SWEATSHOPS	
Purchasing items fabricated in sweatshops, avoidance	
Applicability—Apparel	2-18(b)
Bid specifications and pre-award procedures	2-18(e)
Committee on sweatfree purchases	2-18(i)
Definitions	2-18(c)
Employment standards for contractors and vendors	2-18(d)
Monitoring and enforcement	2-18(g)
Purpose	2-18(a)
Requirements for contracts and other procurement arrangements	2-18(f)
Severability	2-18(h)
SWIMMING OR BATHING	
Offenses and miscellaneous provisions	
Prohibited in certain waters	16-17
Proper attire required	16-16
Parks, prohibition	18-9
SWIMMING POOLS	
Prohibition against the accumulation of stagnant water in swimming pools, spas, hot tubs, artificial ponds, and containers on private property	12-131
T	
TAXATION	
Abated taxes, deduction of	21-2
Acceptance of money to derive from real property purchased at tax sale	21-5
Agent	
Designation of agent for purpose of receiving process	21-20
Annual audit	21-22

	Section
TAXATION (Cont'd.)	
Annual budget and oversight	21-21
Attorneys'	
Authority to employ collection attorneys	21-6
Board of tax assessment review	
Appointment of executive secretary and other assistants	21-15
Hear appeals on excise tax	21-15.1
Business improvement districts	21-213 et seq.
See: FINANCES	
Commercial and multi-family residential property	21-260 et seq.
See: COMMERCIAL AND MULTI-FAMILY RESIDENTIAL PROPERTY	
Computers. See herein: Tax Exemption for Computer and Telephone Equipment	
Disabled persons	
Motor vehicle tax exemption for handicapped. See herein that subject	
Real property tax exemption for disabled. See herein that subject: Handicapped	
Elderly persons. See herein: Real Property Tax Exemption for Elderly	
Exemption for certain property owned by the Providence Redevelopment Agency	
Generally—Tax exempt property	21-212
Tax-exempt property acquired for the development of the MET School and the development of the public safety facility	21-211
Increases in the amount of various real property tax exemptions	
Generally	21-126
Industrial property. See herein: Tax Stabilization for Industrial Property	
Limitation upon amount of tax anticipation notes outstanding	21-17
Motor vehicle tax exemption for handicapped	
Application	21-175
Authorized; amount	21-173
Basis for exemption	21-174
Scope	21-176

	Section
TAXATION (Cont'd.)	
Overdue taxes, assessments	
Authority to compromise interest on	21-4
Payment of taxes regulations	21-1
Property tax classification for city	
Apportionment of taxes	21-182
Generally	21-181
Providence review commission	
Authority	21-143
Cooperation	21-144
Creation	21-142
Declaration of policy	21-141
Operation	21-145
Prohibitions; penalties, disciplinary actions, etc.	21-147
Reports by	21-146
Providence tax stabilization investment act	21-301 et seq.
See: PROVIDENCE TAX STABILIZATION INVESTMENT ACT	
Real estate non-utilization tax	
Abatement of tax	21-256
Appeals	21-257
Authority	21-251
Definitions	21-252
Exceptions	21-255
Imposition	21-254
Notice of designation as vacant and abandoned	21-253
Use of collected taxes	21-258
Real property relief for owner-occupied residential real estate wherein household income is not greater than seventeen thousand five hundred dollar per annum	
Filing of application; proof of right to relief	21-128
Residential real property tax relief; qualifications	21-127
Real property tax exemption for disabled	
Authority of council to grant; qualifications	21-121
Filing of application; proof of right to exemption	
Legal domicile	21-122(4)
Occupancy	21-122(3)
Other forms of proof	21-122(5)
Ownership	21-122(2)
Proof of disability	21-122(1)
Residential property	21-122(6)

	Section
TAXATION (Cont'd.)	
Termination of exemptions	21-123
Real property tax exemption for elderly	
Exemption granted; conditions	21-111
Filing of application; proof of right to exemption	
Legal domicile	21-112(4)
Occupancy	21-112(3)
Other forms of proof	21-112(5)
Ownership	21-112(2)
Proof of age	21-112(1)
Residential property defined	21-112(6)
Termination of exemptions	21-113
Real property tax exemption for former prisoners of war	
Exemption granted	21-128.1
Filing of application; qualifications	21-128.2
Real property tax exemption for persons aged sixty-two through sixty-four years of age receiving social security old age insurance benefits	
City assessor to grant; qualification	21-124
Filing of application; proof of right to exemption	21-125
Real property tax exemption for veterans of enumerated conflicts	
Exemption granted	21-128.1
Filing of application; qualifications	21-128.2
Rehabilitated property. See herein: Tax Abatement on Rehabilitated Property	
Remitted taxes, payment of	21-3
Review commission. See herein: Providence Review Commission	
Tax abatement on rehabilitated property	
Application; documentation	21-132
Definitions	21-129
Final approval by city collector, requirements for	21-134
Lien to be placed on deed	21-136
Prohibited tax sale; effect of prior sale	21-133
Requirements for qualifications	21-131
Time limit for council approval	21-135
Tax exemption for computer and telephone equipment	
Abatement not available for intrastate relocation	21-197
Declaration of policy	21-191
Eligible property	21-192
Exemption	21-194

	Section
TAXATION (Cont'd.)	
Forms and administration	21-195
Job creation	
Providence residents	21-201
Limited scope	21-196
Procedure	21-193
Relocation of company	21-199
Revocation	21-200
Transfers of exempt property	21-198
Tax stabilization for industrial property	
Declaration of policy	21-160
Downcity tax district	21-171
Eligible property	21-161
Exempt property, transfers of	21-167
Exemption	21-163
Forms and administration	21-164
Interstate relocations, abatement not available for	21-166
Limited scope	21-165
Procedure	21-162
Property taxes for designated properties	21-172
Revocation	21-168
Tax stabilization for certain commercial, industrial, and residential property	21-169
Tax stabilization for certain exterior lighting	21-170
Tax titles, regulation of assignments or sale of in bulk by the collector	21-53
Telephones. See herein: Tax Exemption for Computer and Telephone Equipment	
TAXICABS. See: VEHICLES FOR HIRE	
TECHNICAL AND NONTECHNICAL WORDS	
Definitions and rules of construction	1-2
TELEPHONES	
Tax exemption for computer and telephone equipment	21-191 et seq.
See: TAXATION	
TENANT, OCCUPANT	
Definitions and rules of construction	1-2
TIME	
Definitions and rules of construction	1-2

	Section
TOBACCO AND TOBACCO PRODUCTS	
Minors	
Sale of cigarettes, tobacco, restricted; notice required	16-8
Smoking. See that subject	
Streets, sidewalks and other public ways	
Use of tobacco products in the public way	23-37
Tobacco dealers	14-300 et seq.
See: TOBACCO DEALERS	
TOBACCO DEALERS	
Definitions	14-300, 14-308
Enforcement and penalties	14-310
License	
Application	14-302
Prohibitions applicable to license holders, their employees and agents	14-303
Required	14-301
License suspension	
Suspension or revocation of license—Fines and costs	14-304
Use of premises during	14-305
Parks and recreation	
Sale or use of tobacco and cannabis products in parks	18-22
Sale of flavored tobacco products prohibited	14-309
Severability	14-307
Vending machines	14-306
TOILETS	
Health regulations generally	12-14 et seq.
See: HEALTH AND SANITATION	
TRAFFIC ENGINEERING DEPARTMENT	
Appointments under provisions exempt from classification plan of city	2-155
Construction projects, parades, races, rallies, etc.	
Assignment of traffic engineer personnel to	2-160
Drawings of proposed traffic facilities to be submitted to traffic engineer	2-158
Established	2-151
Existing laws, ordinances, etc.	
Preservation until changed by traffic engineer	2-157

	Section
TRAFFIC ENGINEERING DEPARTMENT (Cont'd.)	
Parking meters	
Temporary removal from service due to building and road construction projects, dumpsters, street closing and special events	2-160.1
Publication of rules and regulations	2-159
Traffic engineer	
Appointment of deputy and assistance	2-154
Appointment, term, function	2-153
Powers and duties	2-156
Traffic engineering advisory committee	
Composition, meetings, powers	2-152
TRAINS. See: RAILROADS AND TRAINS	
TRAMPOLINES	
Regulations enumerated	14-220 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	
TRANSPORTATION	
Explosives	9-64
TRASH. See: GARBAGE AND TRASH	
TRAVELING SHOWS	
Shows and other amusements	14-193 et seq.
See: AMUSEMENTS AND AMUSEMENT PLACES	
TREASURER. See: CITY TREASURER	
TREES AND SHRUBBERY	
Appeals	23½-22
Board of park commissioners	
Authority and responsibility	23½-21
City forester	
Appointment and qualifications	23½-24
Authority and responsibility	23½-26
Duties, generally	23½-25
Interference with	23½-5
Definitions	23½-4
Emergencies, waiver for	23½-6
Forester. See herein: City Forester	
Mary Elizabeth Sharpe Street Tree Advisory Committee	
Administrative provisions	23½-23

	Section
TREES AND SHRUBBERY (Cont'd.)	
Moving large objects	23½-7
Nonapplicability to one-and two-family residences	23½-8
Permits	
Generally	23½-27
Planting and maintenance standards	
Proposed development on public land	23½-43
Protection	23½-41
Pruning	23½-42
Registration of tree experts	23½-28
Short title	23½-1
Urban trees, value of	23½-2
Violation and penalty	23½-3
TRUANCY BOARD	
Establishment	2-391
Legal representation	2-394
Meetings and rules of procedure	2-396
Membership, term of office	2-397
Powers and duties; imposition of sanctions	2-395
Referral of truant offenders to board	2-392
Refusal of referral	2-393
TRUCKS	
Sound trucks	24-97 et seq.
See: VEHICLES FOR HIRE	
TUBERCULOSIS	
Director in charge of antituberculosis work, appointment of	12-2
TURKEYS	
Slaughtering poultry	10-104 et seq.
See: FOOD AND FOOD PRODUCTS	

V

VACCINATION	
Rabies control provisions	4-38 et seq.
See: ANIMALS AND FOWL	
VALET PARKING	
Creation of area for receiving and discharging of persons	14-287

	Section
VALET PARKING (Cont'd.)	
Licenses	
Annual renewal	14-288
Cost	14-290
Petition to board of licenses	14-285
Review of application	14-286
Obstruction of public way	14-293
Permits	
Subject to revocation	14-289
Use of area for valet parking with permit	14-292
Stopping/standing in permitted valet parking area	14-291
VANDALISM	
Parks	
Injuring, tampering with property in parks	18-15
Reward for information as to persons damaging property	18-20
VEGETATION	
Trees	23½-1 et seq.
See: TREES AND SHRUBBERY	
VEHICLES FOR HIRE	
Charges. See herein: Rates and Charges	
Compliance required	24-19
Hackney carriage, meaning of	24-1
Identity cards to be placed in conspicuous place in vehicles	24-13
Exceptions to requirements	24-14
Licenses	
Authority to issue licenses for operators and drivers	24-2
Contents for other application	24-4
Conveyance, merchandise, other materials	24-18
Duration	24-8
Issuance of licenses, collection of fees	24-6
License fees	
Drivers	24-7(b)
Vehicles	24-7(a)
Motor buses. See herein that subject	
Records to be kept	24-11
Required	24-3
Restrictions upon issuance	24-5
Suspension or revocation	24-10
Transfer	24-9

	Section
VEHICLES FOR HIRE (Cont'd.)	
Vehicle to display distinguishing mark, license number	24-12
Motor buses	
Abandonment of grants and privileges by companies	24-84
Advertisements, removal of	24-71
Articles left in buses	24-77
Companies to indemnify city from damages, costs and expenses	24-82
Conformance to rules, regulations	24-83
Distance between buses traveling in same direction	24-68
Drivers not to smoke, drink, be under influence of intoxicants or drugs	24-79
Fenders required	24-72
Intoxicated, boisterous or profane passengers	24-76
License	
Application	24-48
Bond required prior to licensing	24-50
Chauffeur's badge and identification card; issuance, contents, use	24-62
Chauffeur's license	
Application	24-58
Duration	24-60
Fee	24-59
Qualifications of licensee	24-57
Records kept	24-61
Required	24-56
Contents	24-51
Display of license and identification card	24-63
Expiration	24-52
Grant after inspection of vehicle	24-49
License fees prescribed	24-53
Locations for picking up and discharging passengers	24-64
Metal seal; issuance, contents, use	24-55
Record of licenses issued	24-54
Required	24-47
Maintenance, examination of vehicle	24-70
Number of passengers limited	24-73
Operation of bus routes not to interfere with public work of city	24-80
Printing and posting copies of rules, regulations	24-86
Prohibited acts of driver upon bus in motion	24-78

	Section
VEHICLES FOR HIRE (Cont'd.)	
Receipt and discharge of passengers	24-74
Refusal to carry passengers	24-76
Rights reserved to city	
Scope of order	24-81(a)
Time to comply	24-81(b)
Standing on running board, step, fender or dashboard	24-75
Stopping	
Buses not to stop except for certain reasons	24-65
Intersection, stopping at	24-66
Stopping, holding bus	24-67
Substitution of buses	
Applicability of provisions	24-69(c)
Bond, effect on	24-69(b)
Generally	24-69(a)
Vehicles excepted from provisions	24-85
Penalties. See herein: Violations and Penalties	
Rates and charges	
Computation of distances in determining fares	24-36
Power-driven vehicles	
Charge for going to place where ordered	24-35
Fare by hour	24-34
Mileage	24-33(a)
Parties	24-33(b)
Waiting time	24-33(c)
Soliciting conveyance of passengers, baggage, merchandise, restricted	24-15
Sound trucks	
Commercial advertising prohibited	24-103
Definitions	24-97
Noncommercial use, sound trucks to be registered	24-98
Possession of registration statement, display upon request	24-101
Registration statement	24-99
Regulations for use	24-102
Time limit to file amended registration statement	24-100
Taxicab stands, use of	24-16
Trunks, conveyance of	24-17
Violations and penalties	
Responsibility for violations	24-20
VENDORS	
Definitions	14-170

	Section
VENDORS (Cont'd.)	
License	
Application and fees	14-173
Licensee to wear badge	14-174
Misuse of badge	14-175
Refusal to exhibit license and badge	14-176
Revocation of	14-178
Market	14-172
Mobile vendor	14-171
Newspapers	
Provisions not applicable to newspapers	14-177
Purpose	14-169
Severability	14-179
Violation, penalties and revocation of license	14-178
VETERANS OF ENUMERATED CONFLICTS	
Tax exemption provisions	21-128.1 et seq.
See: TAXATION	

W

WALLS. See: FENCES, WALLS, HEDGES AND ENCLOSURES

WARRANTS. See: WRITS, WARRANTS AND OTHER PROCESSES

WATER AND SEWERS	
Cesspools. See herein: Privies and Cesspools	
Connection and discharge to public sewer	
Amendments to rules and regulations	25-82
Appeals	25-81(b)
Building sewers and connections	
Application requirements	25-73(d)
Local building and plumbing codes to be observed	25-73(a)
Notification of discharge	25-73(e)
Permits required	25-73(b)
Swimming pools	25-73(f)
Types of permits established	25-73(c)
Certain persons authorized to construct and repair sewers and drains	
Authorized personnel enumerated	25-79(f)
Authorized personnel to obtain permit	25-79(e)
Building sewer application	25-79(b)

	Section
WATER AND SEWERS (Cont'd.)	
Building sewer permit	25-79(c)
Contractor, duties and responsibility of	25-79(g)
Effect on plumbers and others	25-79(a)
Only authorized persons permitted to construct sewers	25-79(d)
Revocation of contract or license	25-79(h)
Construction requirements for public sewers and drains	
Building sewer or drain connection required	25-74(a)
Construction requirements	
Location, materials	25-74(f)
Other pipes not to interfere	25-74(g)
Drawings to be on file	25-74(e)
Installation of sanitary facilities; connection to public sewer; exceptions	25-74(b)
Preconstruction report, hearing requirements	25-74(d)
Procedure for laying out or constructing new public sewers or drains by city	25-74(c)
Definitions	25-72
Garbage disposal units	
Application requirements	25-76(b)
Granting a permit	25-76(c)
Permit required	25-76(a)
Illicit discharge detection and elimination	25-83
Inspection on private property; powers and authority of director	
Application deemed consent	25-78(f)
Authority to gather data	25-78(b)
Authorized employees to be admitted	25-78(a)
Director, general responsibilities	25-78(d)
Monitoring by industry	25-78(e)
Observance of safety rules	25-78(c)
Interpretation of requirements	25-81(a)
Offenses enumerated	
Accidental discharge	25-80(e)
Inspection of work in violation of article	25-80(d)
Liabilities	25-80(b)
Violation, notification and time limit	25-80(a)
Violations and penalties	25-80(c)
Purpose	25-71

	Section
WATER AND SEWERS (Cont'd.)	
Use of public sewers	
Accessibility, operation and maintenance of pretreatment facilities	
Generally	25-75(l)
Grease, oil, sand traps	25-75(m)
Analyses of industrial waste waters	
Methods	25-75(p)
Reports	25-75(r)
Responsibility	25-75(q)
Description of pretreatment facilities and measuring or sampling devices in building sewer permit	25-75(o)
Discharge to a natural outlet	25-75(b)
Equipment to prevent prohibited wastes from discharge into public sewer	25-75(k)
Excluding polluted discharges for public sewers	25-75(i)
Industrial user permit	25-75(t)
Intermunicipal sewerage connections	25-75(u)
Measuring, sampling and other devices	25-75(n)
Options of director relative to receiving restricted wastes	25-75(h)
Polluted discharges	
Prohibited	25-75(f)
Restricted	25-75(g)
Pretreatment	25-75(j)
Separate sewer usage	
Determination of sewer type	25-75(e)
Prohibited uses	25-75(d)
Required	25-75(c)
Treatment and industrial waste waters by city	25-75(s)
Unpolluted discharges	25-75(a)
Vandalism; protection from damages	25-77
Health regulations generally	12-12 et seq.
See: HEALTH AND SANITATION	
Installation of water mains	
Certification of cost of installation, pro rata share for abutting property	25-18
Connection with main by property owners other than original petitioner	25-20
Deposit of estimated cost to accompany petition	25-14
Filing application with water supply board by director of public works	25-16

	Section
WATER AND SEWERS (Cont'd.)	
"New Water Main Account", deposited of estimated cost in	25-15
Payment of difference between estimated cost, actual cost by petitioner	25-19
Payments upon voucher from director of public works	25-17
Petition to director of public works to file application with water supply board	25-13
Privies and cesspools	12-90 et seq.
See: PRIVIES AND CESSPOOLS	
Sewers and sewage disposal	
City engineer, duties re	2-136
Connection and discharge to public sewer. See herein that subject	
Inflammables in hot water not to be turned in sewers	25-1
Rubbish-other waste not to be placed in sewers	25-2
Street and sidewalks	
Permitting water to run from land upon street	23-19
Throwing water on sidewalks	23-18
Water mains. See herein: Installation of Water Mains	
Water services	
Bills for water, water rents, meter repairs, connections, etc.	25-36
Bills of water supply board to be payable to city	25-37
Correction of bills for water services	25-38
Drinking fountains for free public use	25-39
Hydrant	
Fees	25-40
Payment for rentals	25-41
Meters	
Charges against water meter fund	25-34
Crediting receipt of payments for	25-33
Disposition of balance in water meter fund	25-35
Installation, maintenance, record	25-31
Revolving fund of finance purchase	25-32
WATERWAYS. See: BOATS, DOCKS AND WATERWAYS	
WEAPONS. See: FIREARMS AND WEAPONS	
WEEDS AND BRUSH	
Removal of poisonous weeds, ivy	12-17

	Section
WEEK	
Definitions and rules of construction	1-2
WEIGHTS AND MEASURES	
Adjustment, fees for	26-13
Cartage and travel, fees for	26-12
Casks gauged	
Record of	26-8
Return of	26-9
City engineer; duty to measurer, certified work done for city	2-134
Coal, weighing	26-11
Department of weights and measures	
Seal	2-348
Director of inspection and standards	
Receipt book of	26-5
Record book to be kept by	26-1
Records of	26-4
Report of fees and expenses	26-3
Fees for loads, vehicles weighted, certificates	26-7
Hay and straw in bundles, weighing	26-14
Junk or old metals weighing ton or more	14-139
Office hours at city platform scale	26-6
Sealing weights, measures, measuring machines or balances	26-2
Superintendent of weights and measures	
Approval of accounts	2-207
Deputies; appointment, duties	2-208
Salary, fees and superintendent	2-206
Weighing goods, wares and merchandise	26-10
WELFARE	
Relief of the poor	
Annual, monthly reports of director of public welfare to city council	12-28
Certification of accounts	12-32
Dexter donation	
Meetings of citizens	12-34
Notice of meetings	12-35
Maximum amount allowable for temporary relief; receipts for expenditures	12-31
Monthly receipts, return to treasurer of	12-33
Temporary relief of persons residing in city	12-29
Temporary relief to transients	12-30

	Section
WILL OF MARSHAL H. GOULD (Appendix A)	
(Note—Sections contained herein refer to sections found within Appendix A)	
Acceptance of fourth clause of will; Elizabeth Angell Gould Fund	1
Control and management of fund	2
Fifth clause; entrustment of articles	3
Sixth clause; Esek Hopkins School trust fund	4
WIRES. See: POLES AND WIRES	
WRITS, WARRANTS AND OTHER PROCESSES	
City sergeant and city messenger	
Service of messages, summonses and notices as city messenger	2-178
Service of writs, summonses and other legal processes as city sergeant	2-175
Municipal court; return of warrants issued by justice	8-1
WRITTEN, IN WRITING	
Definitions and rules of construction	1-2
Y	
YARDS AND OPEN SPACES	
Garage or yard sales	14-13
YEAR	
Definitions and rules of construction	1-2
Z	
ZONING (Miscellaneous)	
Capital Center; jurisdiction of zoning board of review	2-365
Motor vehicle repair business; zoning approval	14-274